SUPPLEMENT NO. 36
April 2026

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16560, enacted October 20, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxii	xv—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
CD10:50.1—CD10:50.4	CD10:50.1—CD10:50.5
CD18:1	CD18:1
CD18:15—CD18:21	CD18:15—CD18:19
CD70:7, CD70:8	CD70:7, CD70:8
CD70:38.5—CD70:38.7	CD70:38.5—CD70:38.7
CD70:133—CD70:137	CD70:133—CD70:140
CDA:11, CDA:12	CDA:11, CDA:12
CDA:73—CDA:80	CDA:73—CDA:80.1
CDA:83—CDA:86	CDA:83—CDA:86
CDA:89—CDA:94.1	CDA:89—CDA:94.1
CCT:37, CCT:38	CCT:37—CCT:39
CDi:1—CDi:147	CDi:1—CDi:149

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SUPPLEMENT NO. 35
January 2025

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16420, enacted October 21, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
iii	iii
xv—xxii	xv—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
CD18:5—CD18:18	CD18:5—CD18:17
CD34:27, CD34:28	CD34:27, CD34:28
CD46:9—CD46:10.1	CD46:9—CD46:10.1
CD50:3—CD50:5	CD50:3—CD50:5
CD50:61—CD50:71	CD50:61—CD50:72
CD66:3—CD66:6	CD66:3—CD66:6
CD66:43—CD66:46.2.1	CD66:43—CD66:46.2.1
CD70:1, CD70:2	CD70:1, CD70:2
CD70:35—CD70:36.1	CD70:35—CD70:36.1
CDA:25—CDA:42	CDA:25—CDA:42.2
CDA:75—CDA:86	CDA:75—CDA:86
CDA:91—CDA:94	CDA:91—CDA:94.1
CDA:101—CDA:106	CDA:101—CDA:106
CCT:37	CCT:37, CCT:38
SLT:1—SLT:7	SLT:1—SLT:7
CDi:1—CDi:146	CDi:1—CDi:147

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SUPPLEMENT. NO. 34
March 2024

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16255, enacted January 2, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxii	xv—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3—SH:5
CD14:1—CD14:17	CD14:1—CD14:17
CD38:7—CD38:10	CD38:7—CD38:10
CD46:1, CD46:2	CD46:1, CD46:2
CD46:15, CD46:16	CD46:15, CD46:16
CD46:21, CD46:22	CD46:21—CD46:26
CD54:1, CD54:2	CD54:1—CD54:2.1
CD54:43	CD54:43—CD54:48
CD62:1, CD62:2	CD62:1, CD62:2
CD62:9, CD62:10	CD62:9, CD62:10
CD70:7, CD70:8	CD70:7, CD70:8
CD70:115—CD70:116.2	CD70:115—CD70:116.3
CD70:121—CD70:136	CD70:121—CD70:136.1
CDA:5—CDA:7	CDA:5—CDA:7
CDA:11, CDA:12	CDA:11, CDA:12
CDA:23—CDA:38	CDA:23—CDA:38
CDA:43—CDA:46	CDA:43—CDA:46.1
CDA:73—CDA:78	CDA:73—CDA:78
CDA:81—CDA:86	CDA:81—CDA:86.1
CDA:89—CDA:92	CDA:89—CDA:92.1
CDA:101, CDA:102	CDA:101—CDA:102.1
CDA:105, CDA:106	CDA:105, CDA:106
CCT:35, CCT:36	CCT:35—CCT:37
SLT:1—SLT:7	SLT:1—SLT:7
CDi:1—CDi:156	CDi:1—CDi:146

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SUPPLEMENT NO. 33, Redo
October 2022

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15982, enacted August 1, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title Page	Title Page
iii	iii
xv—xxii	xv—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD1:9—CD1:16	CD1:9—CD1:16
CD6:3—CD6:5	CD6:3—CD6:5
CD10:5—CD10:16.1	CD10:5—CD10:16.1
CD10:43—CD10:50.2	CD10:43—CD10:50.2
CD10:59, CD10:60	CD10:59, CD10:60
CD10:65—CD10:68	CD10:65—CD10:68
CD14:1—CD14:16	CD14:1—CD14:17
CD18:1	CD18:1
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CD26:3—CD26:8.1	CD26:3—CD26:7
CD26:13—CD26:20.1	CD26:13—CD26:20.1
CD26:35, CD26:36	CD26:35, CD26:36
CD30:3, CD30:4	CD30:3, CD30:4
CD30:33, CD30:34	CD30:33, CD30:34
CD34:25, CD34:26	CD34:25, CD34:26
CD38:3—CD38:21	CD38:3—CD38:24
CD46:1—CD46:10.1	CD46:1—CD46:10.1
CD46:15—CD46:22	CD46:15—CD46:22
CD50:3—CD50:16.1	CD50:3—CD50:16.3
CD50:39—CD50:42	CD50:39—CD50:42
CD50:53—CD50:67	CD50:53—CD50:71
CD54:3—CD54:29	CD54:3—CD54:43

Remove Old Pages	*Insert New Pages*
CD62:5—CD62:12	CD62:5—CD62:12.1
CD66:5—CD66:12	CD66:5—CD66:12.1
CD66:15—CD66:22	CD66:15—CD66:22.1
CD66:33, CD66:34	CD66:33—CD66:34.1
CD66:41—CD66:46.2	CD66:41—CD66:46.2.1
CD66:46.5—CD66:48	CD66:47—CD66:48.5
CD66:53—CD66:59	CD66:53—CD66:59
CD70:5, CD70:6	CD70:5, CD70:6
CD70:9—CD70:12.1	CD70:9—CD70:12.1
CD70:21—CD70:24	CD70:21—CD70:24.1
CD70:81—CD70:96	CD70:81—CD70:96.1
CD70:101—CD70:110.17	CD70:101—CD70:110.18
	CDA:1—CDA:110
CCT:29, CCT:30	CCT:29—CCT:36
SLT:1—SLT:7	SLT:1—SLT:7
CDi:11—CDi:14	CDi:11—CDi:14
CDi:17—CDi:24	CDi:17—CDi:24
CDi:27—CDi:30	CDi:27—CDi:30
CDi:37—CDi:52	CDi:37—CDi:47
CDi:55—CDi:60	CDi:55—CDi:60
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CDi:83, CDi:84	CDi:83—CDi:84.1
CDi:86.1—CDi:88	CDi:87—CDi:88.1
CDi:95—CDi:98	CDi:95—CDi:98
CDi:105—CDi:110	CDi:105—CDi:110
CDi:121—CDi:128.1	CDi:121—CDi:128
CDi:131—CDi:132.1	CDi:131—CDi:132.1
CDi:137, CDi:138	CDi:137—CDi:138.1
CDi:142.1—CDi:146	CDi:143—CDi:146.1
CDi:149, CDi:150	CDi:149, CDi:150
CDi:152.1—CDi:156	CDi:153—CDi:156

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SUPPLEMENT NO. 33
August 2022

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15946, enacted June 6, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title Page	Title Page
iii	iii
xv—xxii	xv—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
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CD26:7, CD26:8	CD26:7, CD26:8
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CD54:5—CD54:8	CD54:5—CD54:8
CD54:17—CD54:18.4	CD54:17—CD54:18.4
CD66:46.5—CD66:46.8	CD66:46.5—CD66:46.8
CD70:5, CD70:6	CD70:5, CD70:6
CD70:101—CD70:110.3	CD70:101—CD70:110.18
CCT:29, CCT:30	CCT:29, CCT:30
SLT:1—SLT:7	SLT:1—SLT:7
CDi:5—CDi:8	CDi:5—CDi:8
CDi:19, CDi:20	CDi:19, CDi:20
CDi:31, CDi:32	CDi:31, CDi:32
CDi:34.1—CDi:38	CDi:35—CDi:38.1
CDi:61—CDi:64	CDi:61—CDi:64
CDi:73, CDi:74	CDi:73, CDi:74
CDi:77—CDi:78.1	CDi:77—CDi:78.2
CDi:101, CDi:102	CDi:101—CDi:102.1
CDi:113, CDi:114	CDi:113, CDi:114
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CDi:135—CDi:142.1	CDi:135—CDi:142.1

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SUPPLEMENT NO. 32
July 2021

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15852, enacted June 21, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title Page	Title Page
iii	iii
v	v
xv—xxi	xv—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD10:15, CD10:16	CD10:15—CD10:16.1
CD10:39—CD10:50	CD10:39—CD10:50.4
CD10:57—CD10:58.1	CD10:57—CD10:58.1
CD10:63—CD10:66	CD10:63—CD10:66
CD18:17, CD18:18	CD18:17, CD18:18
CD34:1—CD34:24	CD34:1—CD34:29
CD46:1, CD46:2	CD46:1, CD46:2
CD46:19	CD46:19—CD46:22
CD54:7—CD54:8.1	CD54:7—CD54:8.1
CD54:18.3, CD54:18.4	CD54:18.3, CD54:18.4
CD62:10.1—CD62:14.10.1	CD62:11—CD62:14.10.2
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CDi:37, CDi:38	CDi:37, CDi:38
CDi:57—CDi:64	CDi:57—CDi:64
CDi:73—CDi:78	CDi:73—CDi:78.1
CDi:91—CDi:108	CDi:91—CDi:108
CDi:150.1—CDi:152	CDi:151—CDi:152.1

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SUPPLEMENT NO. 31
October 2020

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15696, enacted September 8, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD1:1	CD1:1
CD1:13, CD1:14	CD1:13—CD1:16
CD42:9—CD42:11	CD42:9—CD42:11
CD46:1, CD46:2	CD46:1, CD46:2
CD46:6.1—CD46:8	CD46:7—CD46:8.1
CD50:4.1	CD50:4.1
CD50:59—CD50:67	CD50:59—CD50:67
CD54:5—CD54:8	CD54:5—CD54:8.1
CD54:17—CD54:18.4	CD54:17—CD54:18.4
CD62:9—CD62:10.1	CD62:9—CD62:10.1
CD66:3—CD66:6	CD66:3—CD66:6
CD66:43—CD66:46.8	CD66:43—CD66:46.9
CD70:25, CD70:26	CD70:25, CD70:26
CD70:31—CD70:36	CD70:31—CD70:36.1
CCT:29	CCT:29
SLT:1—SLT:6	SLT:1—SLT:6
CDi:21, CDi:22	CDi:21, CDi:22
CDi:51, CDi:52	CDi:51, CDi:52
CDi:76.1—CDi:82	CDi:77—CDi:80
CDi:97—CDi:98.1	CDi:97—CDi:98.1
CDi:123—CDi:128	CDi:123—CDi:128.1

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SUPPLEMENT NO. 30
December 2019

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15520, enacted August 5, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3, SH:4
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CD38:7—CD38:12	CD38:7—CD38:12.1
CD58:1—CD58:3	CD58:1—CD58:3
CD58:21, CD58:22	CD58:21, CD58:22
CD70:17—CD70:18.1	CD70:17, CD70:18
CD70:35—CD70:38:7	CD70:35—CD70:38:7
CD70:121—CD70:138	CD70:121—CD70:137
CCT:27, CCT:28	CCT:27—CCT:29
SLT:3, SLT:4	SLT:3, SLT:4
CDi:39, CDi:40	CDi:39, CDi:40
CDi:85, CDi:86	CDi:85, CDi:86
CDi:111, CDi:112	CDi:111, CDi:112

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SUPPLEMENT NO. 29
June 2019

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15448, enacted March 18, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD26:2.1	CD26:2.1
CD26:35—CD26:37	CD26:35—CD26:44
CD62:11—CD62:14	CD62:11—CD62:14
CD62:14.7—CD62:14.10	CD62:14.7—CD62:14.10.1
CD62:19—CD62:22	CD62:19—CD62:22
CD70:34.1—CD70:38.5	CD70:35—CD70:38:7
CD70:104.1—CD70:110	CD70:104.1—CD70:110
CCT:27, CCT:28	CCT:27, CCTi:28
CDi:133, CDi:134	CDi:133, CDi:134
CDi:145, CDi:146	CDi:145, CDi:146
CDi:149, CDi:150	CDi:149—CDi:150.1

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SUPPLEMENT NO. 28
November 2018

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15382, enacted October 15, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD50:3, CD50:4	CD50:3—CD50:4.1
CD50:57, CD50:58	CD50:57—CD50:67
CD62:14.5—CD62:14.18	CD62:14.5—CD62:14.16
CD66:5, CD66:6	CD66:5, CD66:6
CD66:43—CD66:46.2.2	CD66:43—CD66:46.1
CD70:101—CD70:104.1	CD70:101—CD70:104.1
CCT:27, CCT:28	CCT:27, CCT:28
SLT:1—SLT:6	SLT:1—SLT:6
CDi:97, CDi:98	CDi:97—CDi:98.1
CDi:123—CDi:124.1	CDi:123—CDi:124.1

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SUPPLEMENT NO. 27
June 2018

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15296, enacted May 21, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
v	v
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD26:7, CD26:8	CD26:7—CD26:8.1
CD62:1—CD62:3	CD62:1—CD62:3
CD62:11—CD62:14.8	CD62:11—CD62:14.18
CCT:27, CCT:28	CCT:27, CCT:28
SLT:3—SLT:6	SLT:3—SLT:6
CDi:115, CDi:116	CDi:115—CDi:116.1

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SUPPLEMENT NO. 26
December 2017

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15233, enacted December 4, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD70:25, CD70:26	CD70:25, CD70:26
CCT:27, CCT:28	CCT:27, CCT:28

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SUPPLEMENT NO. 25
November 2017

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15220, enacted October 16, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD66:5, CD66:6	CD66:5, CD66:6
CD66:43—CD66:46.2	CD66:43—CD66:46.2.4
CD70:35—CD70:38.5	CD70:35—CD70:38.5
CCT:27, CCT:28	CCT:27, CCT:28
CDi:123—CDi:124.1	CDi:123—CDi:124.1

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SUPPLEMENT NO. 24
September 2017

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15187, enacted September 5, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD34:3—CD34:6	CD34:3—CD34:6.1
CD34:13—CD34:18	CD34:13—CD34:18.1
CD34:22.1—CD34:24	CD34:23, CD34:24
CCT:27, CCT:28	CCT:27, CCT:28

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SUPPLEMENT NO. 23, REVISION
September 2017

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement No. 23, Revision, is printed to revise pages appearing in Supplement No. 23, and should be inserted as directed below.

Remove Old Pages	*Insert New Pages*
CD70:18.1	CD70:18.1

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SUPPLEMENT NO. 23
August 2017

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

The Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15162, enacted August 7, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD46:1, CD46:2	CD46:1, CD46:2
CD46:17, CD46:18	CD46:17—CD46:19
CD70:18.1	CD70:18.1
CCT:27, CCT:28	CCT:27, CCT:28
SLT:1—SLT:6	SLT:1—SLT:6
CDi:33, CDi:34	CDi:33—CDi:34.1

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SUPPLEMENT NO. 22
October 2016

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

The Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15012, enacted October 3, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CHT:83, CHT:84	CHT:83, CHT:84
CD10:21—CD10:48.2	CD10:21—CD10:48.4
CD10:53—CD10:58	CD10:53—CD10:58.1
CD10:65—CD10:68	CD10:65—CD10:69
CD18:3—CD18:6	CD18:3—CD18:6.1
CD42:1	CD42:1
CD42:11	CD42:11
CD66:3—CD66:5	CD66:3—CD66:6
CD66:31—CD66:38	CD66:31—CD66:38.3
CD66:43, CD66:44	CD66:43, CD66:44
CD66:46.5—CD66:46.8	CD66:46.5—CD66:46.8
CCT:27	CCT:27, CCT:28
SLT:1—SLT:6	SLT:1—SLT:6
CDi:39, CDi:40	CDi:39, CDi:40
CDi:75, CDi:76	CDi:75—CDi:76.1
CDi:85, CDi:86	CDi:85—CDi:86.1
CDi:123, CDi:124	CDi:123—CDi:124.1
CDi:129—CDi:132.1	CDi:129—CDi:132.1

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SUPPLEMENT NO. 21
September 2016

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

The Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14994, enacted August 15, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title Page	Title Page
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD10:3, CD10:4	CD10:3, CD10:4
CD10:67—CD10:72	CD10:67—CD10:69
CD26:1, CD26:2	CD26:1—CD26:2.1
CD26:19, CD26:20	CD26:19—CD26:20.1
CD26:25—CD26:28	CD26:25—CD26:28.2
CD42:9—CD42:11	CD42:9—CD42:11
CD70:1, CD70:2	CD70:1, CD70:2
CD70:10.1—CD70:12	CD70:11—CD70:12.1
CD70:25—CD70:28	CD70:25—CD70:28
CD70:31—CD70:34	CD70:31—CD70:34.1
CCT:27	CCT:27
CDi:9—CDi:14	CDi:9—CDi:14
CDi:99—CDi:102	CDi:99—CDi:102
CDi:139, CDi:140	CDi:139, CDi:140

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SUPPLEMENT NO. 20, REVISION
June 2016

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement No. 20, Revision, is printed to revise pages appearing in Supplement No. 20, and should be inserted as directed below.

The Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14914, enacted April 4, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
CD18:9—CD18:12	CD18:9—CD18:12

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SUPPLEMENT NO. 20
April 2016

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14914, enacted April 4, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1—SH:3
CD18:1	CD18:1
CD18:3—CD18:24	CD18:3—CD18:21
CD62:19—CD62:22	CD62:19—CD62:22
CD70:17, CD70:18	CD70:17—CD70:18.1
CD70:25—CD70:28.1	CD70:25—CD70:28.1
CD70:38.3—CD70:38.5	CD70:38.3—CD70:38.5
CCT:27	CCT:27
SLT:3—SLT:6	SLT:3—SLT:6
CDi:23, CDi:24	CDi:23, CDi:24

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SUPPLEMENT NO. 19
February 2016

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14877, enacted December 21, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
v	v
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
CD34:21, CD34:22	CD34:21—CD34:22.1
CCT:27	CCT:27

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SUPPLEMENT NO. 18
November 2015

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14845, enacted October 19, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xix—xxi	xix—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
CD50:52.1—CD50:54	CD50:53—CD50:54.3
CD54:18.7—CD54:18.11	CD54:18.7—CD54:18.12
CD62:1—CD62:3	CD62:1—CD62:3
CD62:7—CD62:10	CD62:7—CD62:10.1
CD62:17, CD62:18	CD62:17, CD62:18
CD66:1—CD66:8	CD66:1—CD66:8
CD66:51—CD66:53	CD66:51—CD66:59
CD70:115, CD70:116	CD70:115, CD70:116
CCT:25, CCT:26	CCT:25—CCT:27
CDi:33, CDi:34	CDi:33, CDi:34
CDi:75, CDi:76	CDi:75, CDi:76
CDi:97, CDi:98	CDi:97, CDi:98
CDi:113—CDi:118	CDi:113—CDi:118
CDi:131, CDi:132	CDi:131—CDi:132.1
CDi:151, CDi:152	CDi:151, CDi:152

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SUPPLEMENT NO. 17
August 2015

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14811, enacted June 15, 2015.

See the Code Comparative Table — Ordinances for further information.

Included in the Charter is:

Session Law 2015-82 of 2015

See the Charter Comparative Table — Session Laws for further information.

Remove Old Pages	*Insert New Pages*
xv—xxi	xv—xxi
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
CHT:1—CHT:6	CHT:1—CHT:6
CHT:19—CHT:22.1	CHT:19—CHT:22.1
CHT:68.1—CHT:68.3	CHT:68.1—CHT:68.4
CHTCT:5, CHTCT:6	CHTCT:5, CHTCT:6
CD1:3, CD1:4	CD1:3, CD1:4
CD66:3—CD66:5	CD66:3—CD66:5
CD66:31—CD66:46	CD66:31—CD66:46.8
CD70:1, CD70:2	CD70:1, CD70:2
CD70:9—CD70:10.1	CD70:9—CD70:10.1
CD70:17—CD70:28	CD70:17—CD70:28.1
CCT:25, CCT:26	CCT:25, CCT:26
SLT:1—SLT:6	SLT:1—SLT:6
CHTi:1, CHTi:2	CHTi:1—CHTi:2.1
CHTi:21—CHTi:22.1	CHTi:21—CHTi:22.1
CHTi:27—CHTi:30.1	CHTi:27—CHTi:30.1
CDi:29—CDi:32	CDi:29—CDi:32
CDi:87—CDi:90	CDi:87—CDi:90
CDi:103, CDi:104	CDi:103, CDi:104
CDi:121—CDi:142	CDi:121—CDi:142.1



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SUPPLEMENT NO. 16
October 2014

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14665, enacted August 18, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
CD22:1	CD22:1
CD22:3—CD22:6	CD22:3—CD22:5
CD38:7—CD38:10	CD38:7—CD38:10
CD46:1—CD46:6.5	CD46:1—CD46:6.1
CD62:1—CD62:3	CD62:1—CD62:3
CD62:11—CD62:14	CD62:11—CD62:14.8
CCT:25, CCT:26	CCT:25, CCT:26
SLT:1—SLT:6	SLT:1—SLT:6
CDi:1—CDi:8	CDi:1—CDi:8
CDi:15—CDi:20	CDi:15—CDi:20
CDi:25—CDi:46	CDi:25—CDi:40
CDi:51—CDi:56	CDi:51—CDi:56
CDi:60.1—CDi:80	CDi:61—CDi:78
CDi:87—CDi:92	CDi:87—CDi:92
CDi:97—CDi:104	CDi:97—CDi:104
CDi:115—CDi:120	CDi:115—CDi:120
CDi:131, CDi:132	CDi:131, CDi:132
CDi:145—CDi:156	CDi:145—CDi:156

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SUPPLEMENT NO. 15
May 2014

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14595, enacted March 20, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
v	v
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
CD18:21, CD18:22	CD18:21—CD18:22.1
CD42:3—CD42:6	CD42:3—CD42:6.1
CD54:1—CD54:12	CD54:1—CD54:12.2
CD54:27, CD54:28	CD54:27—CD54:29
CD70:37, CD70:38	CD70:37, CD70:38
CCT:25	CCT:25, CCT:26
SLT:1—SLT:6	SLT:1—SLT:6
CDi:103—CDi:108	CDi:103—CDi:108

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SUPPLEMENT NO. 14
January 2014

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14551, enacted December 16, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
CD6:1	CD6:1
CD6:3, CD6:4	CD6:3—CD6:5
CD46:3, CD46:4	CD46:3—CD46:4.1
CD50:13—CD50:16	CD50:13—CD50:16.1
CD50:41—CD50:46	CD50:41—CD50:46.1
CD62:1—CD62:3	CD62:1—CD62:3
CD62:19—CD62:22	CD62:19—CD62:22
CD70:1—CD70:6	CD70:1—CD70:6
CD70:9, CD70:10	CD70:9—CD70:10.1
CD70:21—CD70:34	CD70:21—CD70:34
CD70:38.1—CD70:38.4	CD70:38.1—CD70:38.5
CD70:45—CD70:78.6	CD70:45—CD70:78.7
CCT:25	CCT:25
SLT:3—SLT:6	SLT:3—SLT:6
CDi:1—CDi:10	CDi:1—CDi:10
CDi:31—CDi:34	CDi:31—CDi:34.1
CDi:59, CDi:60	CDi:59—CDi:60.1
CDi:79, CDi:80	CDi:79, CDi:80
CDi:115, CDi:116	CDi:115, CDi:116
CDi:135—CDi:138	CDi:135—CDi:138
CDi:141—CDi:159	CDi:141—CDi:156



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SUPPLEMENT NO. 13
May 2013

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14435, enacted April 15, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1, SH:2
CD1:1	CD1:1
CD1:7—CD1:13	CD1:7—CD1:14
CD2:3, CD2:4	CD2:3, CD2:4
CD6:3, CD6:4	CD6:3, CD6:4
CD18:1	CD18:1
CD18:17—CD18:21	CD18:17—CD18:24
CD34:9, CD34:10	CD34:9, CD34:10
CD38:1, CD38:2	CD38:1, CD38:2
CD38:5—CD38:10	CD38:5—CD38:10
CD42:5, CD42:6	CD42:5, CD42:6
CD46:1—CD46:6	CD46:1—CD46:6.5
CD46:15—CD46:18	CD46:15—CD46:18
CD50:3, CD50:4	CD50:3, CD50:4
CD50:57—CD50:59	CD50:57, CD50:58
CD54:18.7, CD54:18.8	CD54:18.7, CD54:18.8
CD66:3, CD66:4	CD66:3, CD66:4
CD66:23—CD66:24.1	CD66:23, CD66:24
CD66:47, CD66:48	CD66:47, CD66:48
CD70:103, CD70:104	CD70:103—CD70:104.1
CD70:127—CD70:132	CD70:127—CD70:132
CCT:23, CCT:24	CCT:23—CCT:25
SLT:1—SLT:4	SLT:1—SLT:4
CDi:7, CDi:8	CDi:7, CDi:8
CDi:15—CDi:28	CDi:15—CDi:25

Remove Old Pages	*Insert New Pages*
CDi:43	CDi:43
CDi:83—CDi:88	CDi:83—CDi:88
CDi:97—CDi:102	CDi:97—CDi:102
CDi:107, CDi:108	CDi:107, CDi:108
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CDi:157—CDi:159	CDi:157—CDi:159



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SUPPLEMENT NO. 12
January 2013

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14378, enacted December 17, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
CD46:15—CD46:18	CD46:15—CD46:18
CD50:1—CD50:4	CD50:1—CD50:4
CD50:9—CD50:52	CD50:9—CD50:52.4
CD54:1—CD54:18	CD54:1—CD54:18.11
CD66:1—CD66:5	CD66:1—CD66:5
CD66:9, CD66:10	CD66:9—CD66:10.1
CD66:23, CD66:24	CD66:23—CD66:24.1
CD66:51, CD66:52	CD66:51—CD66:53
CD70:1—CD70:4	CD70:1—CD70:4
CD70:34.1—CD70:38.6	CD70:35—CD70:38.4
CCT:23	CCT:23, CCT:24
SLT:1—SLT:6	SLT:1—SLT:6
CDi:1, CDi:2	CDi:1, CDi:2
CDi:27, CDi:28	CDi:27, CDi:28
CDi:61, CDi:62	CDi:61, CDi:62
CDi:67—CDi:70	CDi:67—CDi:69
CDi:75, CDi:76	CDi:75, CDi:76
CDi:87, CDi:88	CDi:87, CDi:88
CDi:93—CDi:98.1	CDi:93—CDi:98
CDi:103—CDi:108	CDi:103—CDi:108
CDi:113, CDi:114	CDi:113, CDi:114
CDi:119—CDi:122	CDi:119—CDi:122
CDi:129—CDi:132	CDi:129—CDi:132.1
CDi:139, CDi:140	CDi:139, CDi:140

Remove Old Pages	*Insert New Pages*
CDi:147, CDi:148	CDi:147, CDi:148
CDi:155—CDi:160	CDi:155—CDi:159



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SUPPLEMENT NO. 11
August 2012

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14274, enacted June 4, 2012.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 2012, adopted June 28, 2012.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	v
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
CHT:51—CHT:60	CHT:51—CHT:60.1
CHTCT:5, CHTCT:6	CHTCT:5, CHTCT:6
CD10:1—CD10:4	CD10:1—CD10:4
CD10:15—CD10:48.1	CD10:15—CD10:48.2
CD26:25, CD26:26	CD26:25—CD26:26.1
CD70:7, CD70:8	CD70:7, CD70:8
CD70:121—CD70:134	CD70:121—CD70:138
CCT:23	CCT:23
SLT:1—SLT:6	SLT:1—SLT:6
CDi:1—CDi:20.1	CDi:1—CDi:17
CDi:27—CDi:44	CDi:27—CDi:43
CDi:49, CDi:50	CDi:49, CDi:50
CDi:55—CDi:68	CDi:55—CDi:67
CDi:73—CDi:82	CDi:73—CDi:82
CDi:87, CDi:88	CDi:87, CDi:88
CDi:103, CDi:104	CDi:103, CDi:104
CDi:109—CDi:122	CDi:109—CDi:122

Remove Old Pages	*Insert New Pages*
CDi:137, CDi:138	CDi:137, CDi:138
CDi:145, CDi:146	CDi:145, CDi:146
CDi:155—CDi:159	CDi:155—CDi:160



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SUPPLEMENT NO. 10
May 2012

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14245, enacted April 16, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
CD10:3	CD10:3, CD10:4
CD10:39, CD10:40	CD10:39, CD10:40
CD10:48.1	CD10:48.1
CD10:67	CD10:67—CD10:72
CD18:21	CD18:21
CD38:7—CD38:10	CD38:7—CD38:10
CD50:3, CD50:4	CD50:3, CD50:4
CD50:11, CD50:12	CD50:11—CD50:12.1
CD50:44.1—CD50:46	CD50:45—CD50:46.1
CD70:17, CD70:18	CD70:17—CD70:18.1
CCT:23	CCT:23
SLT:1—SLT:6	SLT:1—SLT:6
CDi:11—CDi:18	CDi:11—CDi:18.1
CDi:97, CDi:98	CDi:97—CDi:98.1
CDi:101, CDi:102	CDi:101, CDi:102

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SUPPLEMENT NO. 9
August 2011

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14170, enacted August 15, 2011.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 2011-168, adopted June 17, 2011.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
CHT:3—CHT:6	CHT:3—CHT:6
CHT:66.1—CHT:68.1	CHT:67—CHT:68.3
CHTCT:5, CHTCT:6	CHTCT:5, CHTCT:6
CD30:17—CD30:20	CD30:17—CD30:20
CD46:1, CD46:2	CD46:1, CD46:2
CD46:9, CD46:10	CD46:9—CD46:10.1
CD70:5—CD70:8	CD70:5—CD70:8
CD70:27—CD70:30.1	CD70:27—CD70:29
CD70:33, CD70:34	CD70:33—CD70:34.1
CD70:100.7—CD70:110	CD70:101—CD70:110.3
CCT:23	CCT:23
SLT:3—SLT:6	SLT:3—SLT:6
CHTi:1—CHTi:8.1	CHTi:1—CHTi:8.1
CHTi:27, CHTi:28	CHTi:27—CHTi:28.1
CDi:41, CDi:42	CDi:41, CDi:42
CDi:51—CDi:56	CDi:51—CDi:56
CDi:63—CDi:66.1	CDi:63—CDi:66.1
CDi:73, CDi:74	CDi:73, CDi:74
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CDi:91—CDi:92.1	CDi:91, CDi:92

Remove Old Pages	*Insert New Pages*
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CDi:131—CDi:142	CDi:131—CDi:142.1
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SUPPLEMENT NO. 8
May 2011

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14097, enacted February 21, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents) SH:1(following the checklist of up-to-date pages)
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CD70:25, CD70:26	CD70:25, CD70:26
CCT:23	CCT:23

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SUPPLEMENT NO. 7
November 2010

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14063, enacted October 18, 2010.

See the Code Comparative Table for further information.

Included in the Charter is:

Session Law No. 2010-81 of 2010.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CHT:65, CHT:66	CHT:65—CHT:66.2
CHTCT:5, CHTCT:6	CHTCT:5, CHTCT:6
CD30:21—CD30:26	CD30:21—CD30:26
CD70:1—CD70:4	CD70:1—CD70:4
CD70:37—CD70:38.6	CD70:37—CD70:38.6
CCT:23	CCT:23
SLT:3—SLT:6	SLT:3—SLT:6
CHTi:2.1—CHTi:4	CHTi:3—CHTi:4.1
CHTi:29, CHTi:30	CHTi:29—CHTi:30.1
CDi:147—CDi:152	CDi:147—CDi:149

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SUPPLEMENT NO. 6
August 2010

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14012, enacted June 21, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD6:3, CD6:4	CD6:3, CD6:4
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SLT:1—SLT:4	SLT:1—SLT:4
CDi:13, CDi:14	CDi:13—CDi:14.1
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SUPPLEMENT NO. 5
February 2010

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13948, enacted December 21, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD6:1	CD6:1
CD6:3, CD6:4	CD6:3, CD6:4
CD70:5—CD70:8	CD70:5—CD70:8
CD70:95—CD70:100.9	CD70:95—CD70:100.8
CD70:109—CD70:116	CD70:109—CD70:116.2
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SLT:3—SLT:5	SLT:3—SLT:6
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CDi:41, CDi:42	CDi:41, CDi:42
CDi:65—CDi:66.1	CDi:65—CDi:66.1
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CDi:149—CDi:156	CDi:149—CDi:156.1

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SUPPLEMENT NO. 4
September 2009

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13840, enacted June 15, 2009.

See the Code Comparative Table for further information.

Included in the Charter is:

Session Law 2009-252 of 2009.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CHT:3—CHT:6	CHT:3—CHT:6
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CHT:65—CHT:68.1	CHT:65—CHT:68.1
CHTCT:5, CHTCT:6	CHTCT:5, CHTCT:6
CD2:1	CD2:1
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CD70:95—CD70:100.3	CD70:95—CD70:100.9
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OC Correction
June 2009

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This OC Correction is issued to correct pages appearing in the Code of Ordinances, Durham, North Carolina. Please remove and insert pages as directed below.

Remove old pages	*Insert new pages*
xix—xxi	xix—xxi
CD54:4.1—CD54:14	CD54:5—CD54:14.1

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SUPPLEMENT NO. 3
April 2009

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13785, enacted April 20, 2009.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 2008-77, adopted July 10, 2008.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
xv—xxi	xv—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CHT:3—CHT:6	CHT:3—CHT:6
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CHT:67, CHT:68	CHT:67—CHT:68.1
CHTCT:5, CHTCT:6	CHTCT:5, CHTCT:6
CD6:1	CD6:1
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CD18:3—CD18:6	CD18:3—CD18:6
CD30:1—CD30:10.1	CD30:1—CD30:10.2
CD70:7	CD70:7
CD70:21—CD70:30	CD70:21—CD70:30
CD70:109, CD70:110	CD70:109—CD70:110.1
CD70:121—CD70:126	CD70:121—CD70:131
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CHTi:1, CHTi:2	CHTi:1—CHTi:2.1
CHTi:7—CHTi:8.1	CHTi:7—CHTi:8.1
CDi:5, CDi:6	CDi:5, CDi:6
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CDi:91—CDi:92.1	CDi:91—CDi:92.1
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Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 2
December 2008

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13716, enacted October 20, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv—xxi	xv—xxi
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CD10:3	CD10:3
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CD30:13—CD30:24	CD30:13—CD30:24
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CD70:3—CD70:7	CD70:3—CD70:7
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CD70:125	CD70:125, CD70:126
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SLT:1—SLT:5	SLT:1—SLT:5
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CDi:23—CDi:36	CDi:23—CDi:36
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CDi:73—CDi:76	CDi:73—CDi:76
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CDi:108.1—CDi:110	CDi:109—CDi:110.1
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CDi:151—CDi:158	CDi:151—CDi:159

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SUPPLEMENT NO. 1
June 2008

CODE OF ORDINANCES

City of

DURHAM, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13576, enacted April 7, 2008.

See the Code Comparative Table for further information.

Included in the Charter is:

Session Law 2007-269 of 2007.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
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	xv—xxi
	Checklist of up-to-date pages (following Table of Contents)
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CD30:33, CD30:34	CD30:33, CD30:34
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CD38:1—CD38:14	CD38:1—CD38:14.1
CD42:3—CD42:12	CD42:3—CD42:11
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CD50:53, CD50:54	CD50:53, CD50:54
CD54:1—CD54:4	CD54:1—CD54:4.1
CD54:19—CD54:24	CD54:19—CD54:24
CD66:37—CD66:40	CD66:37—CD66:40
CD70:1—CD70:7	CD70:1—CD70:7

Remove old pages	*Insert new pages*
CD70:23—CD70:38	CD70:23—CD70:38.6
CD70:95—CD70:100	CD70:95—CD70:100.3
CCT:1—CCT:3	CCT:1—CCT:3
CCT:5—CCT:8	CCT:5—CCT:8
CCT:19, CCT:20	CCT:19—CCT:21
SLT:3—SLT:5	SLT:3—SLT:5
CHTi:7, CHTi:8	CHTi:7—CHTi:8.1
CHTi:21, CHTi:22	CHTi:21—CHTi:22.1
CDi:5, CDi:6	CDi:5—CDi:6.1
CDi:25—CDi:30	CDi:25—CDi:30.1
CDi:41, CDi:42	CDi:41—CDi:42.1
CDi:73—CDi:76	CDi:73—CDi:76
CDi:81—CDi:84	CDi:81—CDi:84.1
CDi:91, CDi:92	CDi:91—CDi:92.1
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CDi:105—CDi:108	CDi:105—CDi:108.1
CDi:129, CDi:130	CDi:129—CDi:130.1
CDi:145—CDi:152	CDi:145—CDi:152.1

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CODE OF ORDINANCES

CITY OF

DURHAM, NORTH CAROLINA

Published 2007 by Order of the City Council

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of

DURHAM, NORTH CAROLINA

Leonardo Williams
Mayor

Mark-Anthony Middleton
Mayor Pro Tempore

Nate Baker
Javiera Caballero
Chelsea Cook
DeDreana Freeman
Carl Rist
City Council

Wanda Page
City Manager

Kimberly Rehberg
City Attorney

Dianalynn Schreiber, NCCMC, CMC
City Clerk

OFFICIALS

of

DURHAM, NORTH CAROLINA

AT THE TIME OF THIS RECODIFICATION

William V. Bell
Mayor

Cora Cole-McFadden
Mayor Pro Tempore

Eugene A. Brown
Diane N. Catotti
Howard Clement, III
Thomas A. Stith, III
J. Michael Woodard
City Council

Henry Blinder
City Attorney

D. Ann Gray, CMC
City Clerk

Patrick Baker
City Manager

PREFACE

This Code constitutes a recodification of the general and permanent ordinances of Durham, North Carolina.

Source materials used in the preparation of the Code were the ordinances subsequently adopted by the City Council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order, and the various sections within each chapter have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two parts separated by a dash. The figure before the dash refers to the chapter number, and the figure after the dash refers to the position of the section within the chapter. Thus, the second section of chapter 1 is numbered 1-2, and the first section of chapter 6 is 6-1. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 6-1 and 6-2 is desired to be added, such new section would be numbered 6-1.5. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New chapters may be included by using one of the reserved chapter numbers. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the

left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

CHARTER	CHT:1
CHARTER COMPARATIVE TABLES	CHTCT:1
CODE	CD1:1
CODE COMPARATIVE TABLES	CCT:1
STATE LAW REFERENCE TABLE	SLT:1
CHARTER INDEX	CHTi:1
CODE INDEX	CDi:1

Indexes

The indexes have been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the indexes themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up-to-date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

This publication was under the direct supervision of Jan Shekitka, Code Attorney, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Ms. D. Ann Gray, for her cooperation and assistance during the progress of the work on this publication. It is hoped that her efforts and those of the publisher have resulted in a Code that will make the active law of the City readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the City's affairs.

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ORDINANCE REPEALING THE 1982 CITY CODE AND ADOPTING A REVISED CITY CODE

THE CITY COUNCIL OF THE CITY OF DURHAM ORDAINS:

Section 1. The Code of the City of Durham, North Carolina, consisting of chapters 1 through 27, as it was in effect on December 5, 2006 (the "1982 Code"), is repealed. Excluded from the repeal are all portions of ordinances, if any, that did not, in substantial violation of section 1-3(a) of the 1982 Code, actually appear in the paper copies of chapters 1 through 27 of said Code as published by the Municipal Code Corporation through Supplement No. 67 (which supplement was designed to bring said Code up to date through City Council actions taken on December 4, 2006). In this ordinance, all of the ordinances and City Council actions repealed by this section may be referred to as the "Repealed Code."

Section 2. The "Code of Ordinances, City of Durham, North Carolina," published by Municipal Code Corporation, consisting of chapters 1 through 70 is adopted. In this ordinance, said code may be referred to as the "Revised Code."

Section 3. Ordinances adopted after ordinance number 13350, which was adopted on December 4, 2006, are not repealed by this ordinance but shall be made a part of the Revised Code pursuant to section 1-3 of the Revised Code.

Section 4. (a) Appendix A to the Code of the City of Durham, North Carolina, titled License and Privilege Taxes, being ordinance no. 9167, as amended through December 4, 2006, shall be made a part of the Revised Code as provided in the Revised Code.

(b) Appendix G of the Repealed Code, titled Gross Receipts Tax on Short-Term Lease or Rental of Vehicle, being ordinance no. 11993, as amended through December 4, 2006, shall be made a part of the Revised Code as provided in the Revised Code.

Exhibit 1 to agenda item

Section 5. The following are not repealed by the adoption of this ordinance but are, to the extent provided by section 1-3 or other provisions of the Revised Code, hereafter codified as technical ordinances to be published separately from the Revised Code:

(a) Franchises granted pursuant to section 67 et seq. of the charter or pursuant to G.S. 160A-76. These include:

1) Appendix B, natural gas franchise, An Ordinance Granting a Gas Franchise to Public Service Gas Company of North Carolina, Inc., titled Public Service Co. of N. C., Inc. Company Gas Franchise, being ordinance no. 5746.

2) Appendix C, telephone franchise, An Ordinance Granting a Telephone Franchise to General Telephone Company of the Southeast, titled GTSE Telephone Services Franchise, being ordinance no. 6168.

3) Appendix D, cable television franchise, An Ordinance Granting a Franchise to Cablevision of Durham, Inc. to Construct, Operation and Maintain a Cable Television System in the City of Durham; Setting Forth Conditions Accompanying the Grant of the Franchise; Providing for Regulation and Use of the System; and Prescribing Procedures for the Enforcement of its Provisions, titled City of Durham Cable Television Franchise Ordinance, being ordinance no. 9172.

4) Appendix E, electricity franchise, titled An Ordinance Granting a Franchise to Duke Energy Corporation, being ordinance 13168.

(b) The emergency operations plan adopted pursuant to section 22-21 of the Revised Code.

(c) The United Development Ordinance.

Section 6. Classes of ordinance required by the Repealed Code to be codified by appropriate entries upon official map books are not repealed by this ordinance.

Section 7. The repeal of an ordinance by this ordinance shall not affect any right accrued, any offense committed, any penalty or punishment incurred, or any proceeding commenced, if the accrual, commission, incurring, or commencement took place before the repeal takes effect. Where an ordinance repealed by this ordinance itself repealed another ordinance, the previous ordinance shall not be revived without express words to that effect.

Section 8. This ordinance is effective at 12:01 AM on April 21, 2008.

Editor's note—Part 1, Section K of Ord. No. 13574, adopted April 7, 2008, states the following: "K. Notwithstanding the ORDINANCE REPEALING THE 1982 CITY CODE AND ADOPTING A REVISED CITY CODE, ordinance 13408, adopted 8-7-2006, amending Personnel ordinances, is not repealed but shall remain in effect."

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(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

By adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

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14080	12- 6-2010	Included	8
14097	2-21-2011	Included	8
14120	5-16-2011	Included	9
14128	5-16-2011	Included	9
14130	6- 6-2011	Included	9
14132	6- 6-2011	Included	9
14137	6-20-2011	Included	9
14170	8-15-2011	Included	9
14195	11- 7-2011	Included	10
14231	3- 5-2012	Included	10
14238	3-19-2012	Included	10
14241	4- 2-2012	Included	10
14245	4-16-2012	Included	10
14271	6- 4-2012	Included	11
14272	6- 4-2012	Included	11
14274	6- 4-2012	Included	11
2012-94 (S.L.)	6-28-2012	Included	11
14332	10-15-2012	Included	12
14333	10-15-2012	Included	12
14355	11- 5-2012	Included	12
14371	12- 3-2012	Included	12
14375	12-17-2012	Included	12
14378	12-17-2012	Included	12
14415	4- 1-2013	Included	13
14416	4- 1-2013	Included	13
14417	4- 1-2013	Included	13
14418	4- 1-2013	Included	13
14419	4- 1-2013	Included	13
14420	4- 1-2013	Included	13

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14421	4- 1-2013	Included	13
14422	4- 1-2013	Included	13
14423	4- 1-2013	Included	13
14424	4- 1-2013	Included	13
14425	4- 1-2013	Included	13
14426	4- 1-2013	Included	13
14427	4- 1-2013	Included	13
14428	4- 1-2013	Included	13
14429	4- 1-2013	Included	13
14430	4- 1-2013	Included	13
14431	4- 1-2013	Included	13
9849 (Res.)	4- 1-2013	Included	13
9850 (Res.)	4- 1-2013	Included	13
14434	4-15-2013	Included	13
14435	4-15-2013	Included	13
14496	9- 3-2013	Included	14
14497	9- 3-2013	Included	14
14512	9-16-2013	Included	14
14516	11- 4-2013	Included	14
14538	11-18-2013	Included	14
14539	11-18-2013	Included	14
14540	11-18-2013	Included	14
14551	12-16-2013	Included	14
14572	2- 3-2014	Included	15
14580	2-20-2014	Included	15
14581	2-20-2014	Included	15
14595	3-20-2014	Included	15
14651	6-16-2014	Included	16
14652	6-16-2014	Included	16
14654	6-16-2014	Included	16
14665	8-18-2014	Included	16
2013-386(S.L.)	8-23-2013	Included	17
14748	5-18-2015	Included	17
14749	5-18-2015	Included	17
14753	5-18-2015	Included	17
14774	6-15-2015	Included	17
14809	6-15-2015	Included	17
14811	6-15-2015	Included	17
2015-82(S.L.)	6-18-2015	Included	17
14818	8- 3-2015	Included	18
14819	8- 3-2015	Included	18
14825	8- 3-2015	Included	18
14828	8-17-2015	Included	18
14845	10-19-2015	Included	18
14877	12-21-2015	Included	19
14897	3- 7-2016	Included	20

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14907	3-21-2016	Included	20
14908	3-21-2016	Included	20
14914	4- 4-2016	Included	20
14933	6- 6-2016	Included	21
14934	6- 6-2016	Included	21
14935	6- 6-2016	Included	21
14973	6-20-2016	Included	21
14974	6-20-2016	Included	21
14994	8-15-2016	Included	21
15000	9- 6-2016	Included	22
15009	9- 6-2016	Included	22
15010	9- 6-2016	Included	22
15012	10- 3-2016	Included	22
15155	6-19-2017	Included	23
15162	8- 7-2017	Included	23
15186	9- 5-2017	Included	24
15187	9- 5-2017	Included	24
15209	10-16-2017	Included	25
15218	10-16-2017	Included	25
15219	10-16-2017	Included	25
15220	10-16-2017	Included	25
15233	12- 4-2017	Included	26
15245	1- 2-2018	Omitted	27
15255	2- 5-2018	Included	27
15256	2- 5-2018	Omitted	27
15257	2-19-2018	Included	27
15295	5-21-2018	Omitted	27
15296	5-21-2018	Included	27
15297	5-21-2018	Included	28
15302	6-18-2018	Omitted	28
15303	6-18-2018	Omitted	28
15304	6-18-2018	Omitted	28
15348	6-18-2018	Omitted	28
15362	8- 9-2018	Omitted	28
15380	10-15-2018	Included	28
15381	10-15-2018	Omitted	28
15382	10-15-2018	Included	28
15413	12-17-2018	Included	29
15436	3- 4-2019	Included	29
15439	3-18-2019	Included	29
15440	3-18-2019	Included	29
15448	3-18-2019	Included	29
15461	5- 6-2019	Included	30
15465	5-20-2019	Included	30
15467	5-20-2019	Included	30

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
15468	5-20-2019	Included	30
15483	6-17-2019	Included	30
15520	8- 5-2019	Included	30
15540	9- 3-2019	Omitted	31
15558	10- 7-2019	Omitted	31
15598	2- 3-2020	Included	31
15599	2- 3-2020	Omitted	31
15605	2-17-2020	Included	31
15614	5-18-2020	Included	31
15680	7- 1-2020	Included	31
15684	8- 3-2020	Included	31
15685	8- 3-2020	Included	31
15689	8- 3-2020	Included	31
15695	9- 8-2020	Omitted	31
15696	9- 8-2020	Included	31
15709	10- 5-2020	Omitted	32
15762	1-19-2021	Included	32
15780	2-15-2021	Omitted	32
15785	3-15-2021	Included	32
15791	4- 5-2021	Included	32
15809	5-17-2021	Included	32
15818	6-21-2021	Included	32
15850	6-21-2021	Included	32
15851	6-21-2021	Included	32
15852	6-21-2021	Included	32
15882	10-18-2021	Included	33 Redo
15930	5- 2-2022	Included	33 Redo
15940	6- 6-2022	Included	33 Redo
15942	6- 6-2022	Included	33 Redo
15946	6- 6-2022	Included	33 Redo
15981	8- 2-2022	Included	33 Redo
15982	8- 1-2022	Included	33 Redo
15960	6-21-2022	Included	34
15996	9- 6-2022	Included	34
16005	9-19-2022	Included	34
16030	10-17-2022	Included	34
16033	10-17-2022	Included	34
16040	11- 7-2022	Included	34
16041	11- 7-2022	Included	34
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16112	3- 6-2023	Omitted	34
16120	3-20-2023	Included	34
16129	4-17-2023	Included	34
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16149	5-15-2023	Included	34

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16157	6-20-2023	Included	34
16171	6-20-2023	Included	34
16172	6-20-2023	Included	34
16210	9-18-2023	Included	34
16219	10- 2-2023	Included	34
16221	10- 2-2023	Included	34
16255	1- 2-2024	Included	34
16270	2-19-2024	Included	35
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16292	4- 1-2024	Included	35
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16311	5- 6-2024	Included	35
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16317	5-20-2024	Included	35
16336	6- 3-2024	Included	35
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16346	6-17-2024	Included	35
16347	6-17-2024	Included	35
16348	6-17-2024	Included	35
16420	10-21-2024	Included	35
16461	1-21-2025	Included	36
16488	4-21-2025	Included	36
16498	5- 5-2025	Included	36
16512	6- 2-2025	Omitted	36
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16522	6-16-2025	Included	36
16523	6-16-2025	Included	36
16531	6-16-2025	Included	36
16535	8- 4-2025	Included	36
16560	10-20-2025	Included	36

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***Editor's note—**Printed herein is the Charter of the City of Durham, North Carolina, being chapter 671 of the Session Laws of 1975, as adopted by the General Assembly and ratified on June 18, 1975. Amendments to the original Charter are indicated by parenthetical history notes following amended provisions. The absence of a history note indicates the provision remains unchanged from the original Charter. Obvious misspellings have been corrected without notation. For stylistic purposes, a uniform system of headings, catchlines and citation to state statutes has been used. Additions made for clarity are indicated by brackets.

State law reference—General laws supplementary to municipal charters, G.S. 160A-3.

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CHAPTER I. NAME, CORPORATE POWER, AND BOUNDARIES

Sec. 1. Incorporation.

That the inhabitants of the City of Durham shall be, and continue as they have been a body politic and corporate, and henceforth the corporation shall continue to bear the name and style of the "City of Durham," and under such name and style is hereby vested with all the property and rights of property which now belong to the corporation, and by this name may acquire and hold for the purpose of its government, welfare, and improvement, all such estate as may be devised, bequeathed, conveyed to, or otherwise acquired by it, and may, from time to time, sell, dispose of, and invest the same, as shall be deemed advisable by the proper authorities of the corporation, and as shall be in conformity with the provisions of this charter.
(Acts 1975, ch. 671, § 1)

Sec. 2. Corporate boundaries.

The corporate limits of the City of Durham shall be as follows:

Beginning at the point of intersection of the west right-of-way line U.S. Highway 15-501 and a line 200 feet south of the centerline of Cornwallis Road; thence in a westerly direction along a line perpendicular to the west right-of-way line of U.S. 15-501, a distance of 200 feet; thence in a southerly direction along a line 200 feet west of and parallel to the west right-of-way line of U.S. 15-501 about 700 feet to a point; thence N 80° 42' W, a distance of 207.53 feet to a point; thence N 71° 4' W, 272.8 feet to a point; thence N 86° 40' W, a distance of 266.8 feet to a point; thence S 75° 7' W, a distance of 241.54 feet to a point; thence S 45° W, a distance of 160.16 feet to a point; thence S 31° 24' W, a distance of 474.82 feet to a point; thence S 49° 19' W, a distance of 511.97 feet to a point; thence N 47° 50' 41" W, a distance of 505.9 feet to a point; thence N 49° 2' 41" W, a distance of 257.86 feet to a point; thence N 87° 8' 52" W, a distance of 524.12 feet to a point; thence S 3° 12' 4" W, a distance of 539.58 feet to a point; thence N 86° 46' 55" W, a distance of 250 feet to a point; thence S 6° 13' 5" W, a distance of 174.98 feet to a point; thence N 86° 46' 55" W, a distance of 230.65 feet to a point; on the eastern right-of-way line of Ridge Road; thence in a southerly direction along eastern right-of-way line of Ridge Road, the following courses and distances: S 6° 23' 12" W, a distance of 277.39 feet to a point; thence in a southerly direction along an arc to the left, said arc having a radius of 993.1 feet, a length of 101.83 feet to a point; thence S 0° 30' 42" W, a distance of 241.18 feet to a point; thence leaving said right-of-way line of Ridge Road S 85° 20' 17" E, a distance of 199.73 feet to a point; thence S 0° 32' 2" W, a distance of 199.81 feet to a point on the northern right-of-way line of Pickett Road; thence S 85° 41' 33" E along said northern right-of-way line of Pickett Road, a distance of 262.04 feet to a point; thence N 0° 22' 48" E, a distance of 249.46 feet to a point; thence south 82° 22' 48" E, a distance of 148.93 feet to a point; thence S 11° 34' 7" E, a distance of 249.44 feet to a point; on said northern right-of-way line of Pickett Road; thence S 85° 37' 55" E along said northern right-of-way line of Pickett Road, a distance of 674.87 feet to a point; thence S 81° 6' 07" E, a distance of 35.05 feet to a point; thence in an easterly direction along an arc to the right, said arc having a radius of 1030.47 feet, a length of 297.65 feet to a point; thence N 10° 58' E, a distance of 145.57 feet to a point; thence N 49° 45' E, a distance of 363.65

feet to a point; thence 57° 29' E, a distance of 320.5 feet to a point; thence S 5° 19' W, a distance of 202.43 feet to a point; thence S 63° 39' E, a distance of 306.5 feet to a point; thence S 63° 48' E, a distance of 94.42 feet to a point 200 feet west of the western right-of-way line of U.S. 15-501; thence in a southerly direction along a line 200 feet west of and parallel to the west right-of-way line of U.S. 15-501 about 2230 feet to the point of intersection with the east line of the property of the City of Durham, formerly the property of L. G. Pickett, recorded in Plat Book 1, page 260, Durham County Register of Deeds office; thence in a southeasterly direction along said City of Durham property line in a projection thereof, a distance of about 830 feet to the point of intersection with the south right-of-way line of U.S. 15-501; thence in a southerly direction along a straight line that would intersect at a point 230 feet west of a centerline of Shannon Road and 230 feet north of the centerline of Chapel Hill Road, a distance of about 3275 feet to a point on the D. L. Phillips property; thence N 85° 0' W, a distance of 604.7 feet to a point; thence S 5° 0' W, a distance of 863.69 feet to a point; thence 85° 12' E, a distance of 240 feet to a point; thence S 84° 33' E, a distance of 337 feet to a point; thence S 51° 12' 30" E, a distance of 762.63 feet to a point 200 feet west of the western property line of Chapel Hill Road; thence in a southwesterly direction along a line 200 feet west of the western right-of-way line of Chapel Hill Road, a distance of approximately 820 feet to a point; thence southwardly along a line perpendicular to Chapel Hill Road, a distance of 260 feet to the southeast right-of-way line of Chapel Hill Road; thence southwardly along the west property line of (Van Trine Park) Subdivision as recorded in Plat Book 42, page 3, a distance of approximately 900 feet to a point on the northern property line of Hope Valley West Subdivision; thence N 86° 59' W, a distance of 335.28 feet to a point; thence S 56° 20' W, a distance of 351.85 feet to a point; thence S 4° 57' W, a distance of 180.05 feet to a point; thence N 85° 2' W, a distance of 270.37 feet to a point; thence S 5° 48' W a distance of 376.79 feet to a point; thence S 4° 43' 20" W, a distance of 317 feet to a point; thence S 49° 27' E, a distance of 361.22 feet to a point; thence S 40° 41' E, a distance of 94 feet to a point; thence S 36° 13' 20" E, a distance of 72.12 feet to a point; thence S 60° 0' 45" E, a distance of 143 feet to a point; thence S 5° 30' W, a distance of 143.5 feet to a point; thence S 2° 2' W, a distance of 50.08 feet to a point; thence S 5° 30' W, a distance of 152.5 feet to a point; thence S 73° 33' W, a distance of 114.92 feet to a point; thence S 11° 25' E, a distance of 57 feet to a point; thence S 33° 51' W, a distance of 39.44 feet to a point; thence S 5° 25' W, a distance of 375 feet to a point; thence S 47° 18' E, a distance of 191.84 feet to a point; thence S 82° 17' E, a distance of 59.1 feet to a point; thence S 53° 33' E, a distance of 186 feet to a point; thence N 67° 57' E, a distance of 76 feet to a point; thence S 5° 28' W, a distance of about 200 feet to a point; thence N 64° 28' W along the north property line of Walter A. Biggs and Claude Currie Subdivision as recorded in Plat Book 49, page 11, a distance of 506.2 feet to a point; thence N 62° 44' W, a distance of 357.4 feet to a point; thence N 85° 4' W, a distance of 1238.55 feet to a point; thence S 22° 9' E, a distance of 747.34 feet to a point; thence S 17° 10' E, a distance of 1060.89 feet to a point; thence S 33° E, a distance of 273.03 feet to a point; thence S 25° 41' E, a distance of 237.73 feet to a point; thence S 16° 45' E, a distance of 256.38 feet to a point; thence S 84° 45' E, a distance of 74.3 feet to a point; thence S 20° 13' E, a distance of 607.8 feet to a point; thence S 69° 50' W, a distance of 506.5 feet to a point on the western right-of-way line of Garrett Road; thence N 19° 59' 23" W along said western right-of-way line of Garrett Road, a distance of 120 feet to a point; thence in a

northerly direction along an arc to the left, said arc having a radius of 4130.28 feet, a length of 379.36 feet to a point; thence leaving said western right-of-way line of Garrett Road, S 71° 55' W, a distance of 251.93 feet to a point; thence S 56° 2' 55" W, a distance of 52.37 feet to a point; thence N 85° W, a distance of 188.65 feet to a point; thence S 12° 39' W, a distance of 240 feet to a point; thence S 30° 33' W, a distance of 189 feet to a point; thence S 35° 37' E, a distance of 60 feet to a point; thence S 17° 19' E, a distance of 42 feet to a point; thence S 50° 42' W, a distance of 158 feet to a point; thence in a southerly direction along an arc to the right, said arc having a radius of 50 feet, and a length of 62.68 feet to a point; thence in a southerly direction along an arc to the left, said arc having a radius of 20 feet, a length of 17.45 feet to a point; thence S 17° 28' E, a distance of 116.45 feet to a point; thence in an easterly direction, along an arc to the right, said arc having a radius of 2335.8 feet; a length of 21.81 feet to a point; thence continuing in an easterly direction along an arc to the right, said arc having a radius of 274.76 feet, a length of 162.36 feet to a point; thence S 10° 12' 3" E, a distance of 262.23 feet to a point; thence 61° 26' 9" E, a distance of 42.18 feet to a point; thence N 77° 41' 32" E, a distance of 182.73 feet to a point; thence N 61° 34' 44" E, a distance of 60.53 feet to a point; thence N 84° 13' 16" E, a distance of 163.79 feet to a point; thence N 52° 57' 26" E, a distance of 48.96 feet to a point; thence N 62° 35' 16" E, a distance of 75.31 feet to a point; thence N 42° 40' 14" E, a distance of 51.98 feet to a point, 200 feet west of the western right-of-way line of Garrett Road; thence in a southerly direction along a line 200 feet west of and parallel to the west property line of Garrett Road a distance of about 1550 to a point on the northern property line of Trotteridge Subdivision; thence N 83° 59' 22" W, a distance of 373.15 feet to a point; thence N 5° 36' 3" E, a distance of 301.58 feet to a point; thence S 60° 15' 20" W, a distance of 296.45 feet to a point; thence S 31° 33' 51" W, a distance of 58.09 feet to a point; thence S 63° 59' 31" W, a distance of 194.51 feet to a point; thence N 43° 4' 53" W, a distance of 233.92 feet to a point; thence N 77° 42' 27" W, a distance of 250.74 feet to a point; thence S 76° 10' 51" W, a distance of 250.74 feet to a point; thence S 50° 4' 19" W, a distance of 250.74 feet to a point; thence S 14° 14' 56" W, a distance of 203.04 feet to a point; thence S 25° 46' 18" E, a distance of 130.47 feet to a point; thence S 85° 59' 41" E, a distance of 200 feet to a point; thence S 4° 0' 19" W, a distance of 150 feet to a point; thence N 85° 59' 41" W, a distance of 35 feet to a point; thence S 4° 0' 19" W, a distance of 50 feet to a point; thence in a southeasterly direction along an arc to the right, said arc having a radius of 20 feet, a length of 31.42 feet to a point; thence S 4° 0' 19" W, a distance of 159.9 feet to a point; thence S 85° 59' 41" E, a distance of 1012.27 feet to a point; thence N 0° 0' 0", a distance of 358.01 feet to a point; thence S 80° 9' 12" E, a distance of 339.7 feet to a point on a line 200 feet west of the western right-of-way line of Garrett Road; thence in a southerly direction along a line 200 feet west of and parallel to the western property line of Garrett Road, a distance of about 3500 feet to a point of an intersection with a westerly projection of a line 200 feet south of and parallel to the east right-of-way line of N.C. 751; thence northeasterly along a line 200 feet east of the east right-of-way line of N.C. 751, Hope Valley Road, a distance of approximately 1400 feet to a point on the southern property line of Hope Valley Realty and Construction Corp. property; thence S 40° 16' 50" E, a distance of 176 feet to a point; thence S 1° 14' 43" W, a distance of 81.4 feet to a point; thence S 68° 46' 26" W, a distance of 960.47 feet to a point; thence N 23° 43' 49" E, a distance of 143.28 feet to a point; thence S 86° 34' 47" E, a distance of 251.14 feet to a point; thence S 87° 6' 18"

E, a distance of 665.3 feet to a point; thence S 87° 6' 33" E, a distance of 216.62 feet to a point; thence S 5° 36' 30" W, a distance of 722.62 feet to a point; thence S 84° 50' 44" E, a distance of 653.44 feet to a point; thence N 0° 59' 47" W, a distance of 13.3 feet to a point; thence N 0° 56' 59" W, a distance of 121.68 feet to a point; thence S 84° 10' 28" E, a distance of 775.98 feet to a point; thence S 46° 4' 5" W, a distance of 248.8 feet to a point; thence S 51° 16' E, a distance of 172.48 feet to a point; thence in a northeasterly direction along an arc to the right, said arc having a radius of 239.9 feet, a length of 153.64 feet to a point; thence N 50° 22' 54" E, a distance of 330.27 feet to a point; thence N 46° 4' 5" E, a distance of 67.14 feet to a point; thence S 5° 26' 14" W, a distance of 632.82 feet to a point; thence S 85° 54' 10" E, a distance of 850.56 feet to a point; thence N 7° 14' 10" E, a distance of 616.12 feet to a point; thence S 84° 55' 14" E, a distance of 635.8 feet to a point; thence S 80° 48' 5" E, a distance of 373.44 feet to a point; thence S 80° 46' E, a distance of 583.64 feet to a point; thence N 5° 40' 16" E, a distance of 1171.03 feet to a point; thence S 81° 38' 50" W, a distance of 202.72 feet to a point; thence N 2° 11' 11" W, a distance of 60 feet to a point; thence N 18° 19' 1" W, a distance of 568.45 feet to a point; thence N 6° 9' 57" E, a distance of 2,394.62 feet to a point in the centerline of the creek; thence in a westerly direction along the centerline of the creek a distance of 3,243.45 feet to a point; thence N 84° 7' 30" W, a distance of 180.88 feet to a point; thence N 86° 48' 14" W, a distance of 1040.5 feet to a point; thence S 34° 53' 10" W, a distance of 118.31 feet to a point; thence S 89° 31' W, a distance of 459.75 feet to a point; thence S 35° 6' 37" W, a distance of 300.43 feet to a point; thence N 54° 51' 35" W, a distance of 299.6 feet to a point 200 feet east of the eastern right-of-way line of Hope Valley Road (N.C. 751); thence in a northeasterly direction along a line 200 feet east of and parallel to the eastern right-of-way line of N.C. 751, a distance of about 1790 feet to a point on the southern property line of Southland Park; thence S 86° 57' 50" E, a distance of 84.83 feet to a point; thence S 23° 9' 22" W, a distance of 109.96 feet to a point; thence S 22° 53' W, a distance of 110.38 feet to a point; thence S 85° 38' 49" E, a distance of 628.83 feet to a point; thence N 5° 8' 40" E. a distance of 650.93 feet to a point; thence N 84° 57' 10" W, a distance of 451.2 feet to a point 200 feet east of the eastern right-of-way line of N.C. 751; thence in a northeasterly direction with a line 200 feet east of and parallel to the eastern right-of-way line of N.C. 751, a distance of about 2490 feet to a point on the south property line of (the crescent of Hope Valley) subdivision recorded in Plat Book 47, page 63; thence easterly along the said south property line of (the crescent of Hope Valley) subdivision in a projection of said line a distance of approximately 1030 feet to the centerline of Third Fork Creek; thence northwardly along the centerline of Third Fork Creek a distance of approximately 1700 feet to a point; thence westwardly along the north property line of the said (crescent of Hope Valley) subdivision in an eastward projection of said line a distance of approximately 1410 feet to a point; thence northwardly along a line 200 feet east of and parallel to the east right-of-way line of Hope Valley Road, a distance of approximately 4850 feet to a point of intersection with a line 200 feet south of and parallel to the south line of Brighton Road; thence eastwardly along a line 200 feet south of the south right-of-way line of Brighton Road, a distance of approximately 30 feet to a point on the western property line of map showing property of Louis M. McKee and Wife, Ellen B. McKee, and D. Otis Pate and Wife, Martha McKee Pate; thence S 4° 49' 37" W, a distance of 784.96 feet to a point, thence S 45° 13' 12" W, a distance of 1698.61 feet to a point; thence S 32° 0' 5" E, a distance of 532.7 feet to

a point; thence N 87° 32' 5" W, a distance of 118.6 feet to a point; thence S 21° 46' 33" E, a distance of 169.4 feet to a point; thence S 30° 40' 30" E, a distance of 123.5 feet to a point; thence S 51° 20' 30" E, a distance of 188.3 feet to a point; thence S 87° 9' 30" E, a distance of 1522.04 feet to a point at the centerline of the creek; thence in a northeasterly direction along the center of the creek, a distance of 513.78 feet to a point; thence N 87° 3' 42" W, a distance of 471.72 feet to a point; thence N 5° 15' E, a distance [of] 656.9 feet to a point; thence eastwardly along the south property line of Lot 20, Block B, and Lot 20, Block A of W. R. Hall Subdivision, as recorded in Plat Book 35, page 4, a distance of approximately 500 feet to a point; thence southwardly along the west property line of Lena E. Harris Subdivision, recorded in Plat Book 28, page 99, a distance of approximately 540 feet to a point of intersection with the centerline of Third Fork Creek; thence northwardly along the centerline of Third Fork Creek, a distance of approximately 660 feet to the point of intersection with the east property line of said Lena E. Harris Subdivision; thence northwardly along the east property line in a projection thereof of Lena E. Harris Subdivision as recorded in Plat Book 28, page 99, a distance of approximately 2100 feet to a point; thence S 86° 22' 49" E, a distance of 670.63 feet to a point; thence north N 3° 26' 10" E, a distance of 850.13 feet to a point; thence N 3° 30' E, a distance of 199.83 feet to a point; thence N 85° 57' W, a distance of 132.62 feet to a point; thence N 2° 45' 4" E, a distance of 589.38 feet to a point; thence N 85° 23' 50" W, a distance of 1229.07 feet to a point; thence N 5° 25' 54" E, a distance of 121.13 feet to a point on a line 200 feet east of the east right-of-way line of N.C. 751; thence northwardly along a line 200 feet east of and parallel to the east right-of-way line of Hope Valley Road; a distance of approximately 340 feet to a point; thence eastwardly along a line 200 [feet] south of and parallel to the south right-of-way line of Archdale Drive, a distance of approximately 2550 feet to a point; thence southwardly and eastwardly along a line 200 feet west of and parallel to the west property line of Oakridge Boulevard and a projection of a line 200 feet south of and parallel to the south right-of-way of Willowdale Drive; a distance of approximately 2180 feet to a point; thence eastwardly along a line 200 feet south of and parallel to the south right-of-way line of Willowdale Drive and a westwardly projection thereof; a distance of approximately 1250 [feet] to a point on the west property line of Elliswood Subdivision, Section 2; thence S 8° 14' W, a distance of 133.5 feet to a point; thence S 86° 01' E, a distance of 692.62 feet to a point on a line 200 feet south of the southern right-of-way line of Willowdale Drive; thence in a southeasterly direction along a line 200 feet south of and parallel to the southern right-of-way line of Willowdale Drive; a distance of approximately 400 feet to a point; thence S 2' 38' 36" W, a distance of 582.82 feet to a point on the northern right-of-way line of Cook Road; thence in a[n] easterly direction along an arc to the left, said arc having a radius of 408.60 feet, a length of 89.67 feet to a point; thence in an easterly direction along an arc to the left, said arc having a radius of 1040.77 feet, a length of 230.21 feet to a point; thence N 64° 18' 27" E, a distance of 16.27 feet to a point; thence S 26° 48' 27" E, across Cook Road, a distance of 260 feet to a point on a line 230 south of the centerline of Cook Road; thence in an easterly direction along the said line parallel to and 230 feet south of the centerline of Cook Road to the point of intersection with a line 230 feet west of and parallel to the centerline of Cornwallis Road, a distance of about 1490 feet; thence in a southeasterly direction along the said line parallel to and 230 feet west of the centerline of Cornwallis Road to the point of intersection with a line

230 [feet] south of and parallel to the centerline of Buxton Drive, a distance of about 1130 feet; thence in an easterly direction along said line parallel to and 200 feet south of Buxton Drive to the point of intersection with a line parallel to and 230 feet south of Riddle Road, a distance of about 600 feet; thence in a northeasterly direction along the said line parallel to, and 230 feet south of, the centerline of Riddle Road to the point of intersection with the east right-of-way line of Norfolk and Southern Railroad, a distance of about 150 feet; thence eastwardly along a line 200 feet south of and parallel to the south right-of-way line of Riddle Road, a distance of approximately 3900 feet to a point; thence S 76° 19' W, a distance of 185.73 feet to a point on the eastern right-of-way line of N.C. 55; thence S 13° 41' E along said eastern right-of-way line of N.C. 55, a distance of 386.45 feet to a point; thence N 60° 16' E, a distance of 367.37 feet to a point; thence 75° 2' E, a distance of 337.76 feet to a point; thence N 5° 21' E, a distance of 283.03 feet to a point; thence S 89° 8' W, a distance of 125 feet to a point; thence N 5° 34' E, a distance of approximately 35 feet to a point on a line 200 feet south of the southern right-of-way line of Riddle Road; thence in an easterly direction along a line 200 feet south of and parallel to the southern right-of-way line of Riddle Road, a distance of approximately 2760 feet to a point; thence northwardly along a line 200 feet east of and parallel to the east right-of-way line of Chicago Street and a projection thereof, a distance of approximately 1790 feet to a point; thence eastwardly along the south property line of Max W. Bryant property in a projection thereof, a distance of approximately 930 feet to a point, on a western property line of Homeco, Inc.; thence S 35° 2' 48" E, a distance of 340.16 feet to a point; thence S 89° 22' 20", a distance of 850.56 feet to a point; thence S 89° 21' 17" E, a distance of 668.71 feet to a point on the western right-of-way line of the Durham Southern Railroad; thence in a northeasterly direction along an arc to the left, said arc having a radius of 2336.13 feet, a length of 306.84 feet to a point; thence N 37° 44' 48" E along said western right-of-way line of the Durham Southern Railroad, a distance of 290.31 feet to a point; thence N 88° 19' 14" W, a distance of 526.27 feet to a point; thence N 18° 45' 51" E, a distance of 93.94 feet to a point; thence N 73° 1' 18" W, a distance of 282.58 feet to a point; thence N 16° 46' 29" E, a distance of 850.26 feet to a point; thence N 77° 33' 41" W, a distance of 695.11 feet to a point; thence N 76° 27' 26" W, a distance of 808.81 feet to a point; thence N 30° 21' 01" E, a distance of 106.19 feet to a point; thence N 23° 30' 51" E. a distance of 293.99 feet to a point; thence N 37° 10' 13" E. a distance of 401.32 feet to a point; thence N 25° 38' E, a distance of 197.05 feet to a point; thence N 31° 7' 13" E, a distance of 438.29 feet to a point; thence N 16° 47' 03" E, a distance of 695.23 feet to a point; thence N 2° 44' 25" E, a distance of 323.68 feet to a point; thence N 89° 00' 42" W, a distance of 263.01 [feet] to a point in the center of Rocky Creek; thence in a northeasterly direction along the centerline of Rocky Creek a distance of about 160 feet to a point; thence N 89° 55' 22" E, a distance of 62.19 feet to a point; thence N 55° 45' 31" E, a distance of 202.78 feet to a point; thence N 55° 53' 59" E. a distance of 120.63 feet to a point; thence N 83° 03' 08" E, a distance of 2236.28 feet to a point on a line parallel to and 50 feet north of the centerline of the main track of the North Carolina Railroad Company*; thence in a southerly and southeasterly direction a distance of approximately 5205 feet along the said line parallel to and at all points 50 feet north of the centerline of the main track of the North Carolina Railroad Company to its intersection with the projection of a line 200 feet south of and parallel to Pleasant Drive; thence eastwardly along said line a distance of approximately 2075 feet to its

intersection with the projection of the line parallel to and 200 feet east of the east right-of-way line of Lynn Road; thence in a northerly direction along a line parallel to and 200 feet east of the east right-of-way line of Lynn Road, a distance of approximately 2240 feet to a point on the south property line of Columbia Corporation; thence with the Columbia Corporation property line the following courses and distances: S 18° 13' 49" E, a distance of 65.26 feet to a point; thence S 78° 34' 42" E, a distance of 555.6 feet; thence S 11° 25' 18" W, a distance of 100 feet to a point; thence S 78° 34' 42" E, a distance of 921.7 feet to a point; thence S 5° 5' 13" W, a distance of 201.77 feet to a point; thence N 79° 28' 02" W, a distance of 340 feet to a point; thence S 1° 35' 20" W, a distance of 86.75 feet to a point; thence S 82° 04' E, a distance of 235.9 feet to a point; thence S 82° 22' 40" E, a distance of 91.7 feet to a point; thence S 81° 46' 35" E, a distance of 91.75 feet to a point; thence S 82° 15' 11" E, a distance of 801 feet to a point; thence N 83° 46' 20" E, a distance of 128.4 feet to a point; thence N 5° 56' 24" E, a distance of 201.74 feet to a point; thence S 85° 47' 15" E, a distance of 130 feet to a point; thence N 05° 56' 24" E, a distance of 568.7 feet to a point; thence N 83° 50' 00" W, a distance of 478.3 feet to a point; thence N 84° 00' 04" W, a distance of 675.2 feet to a point; thence N 05° 05' 13" E, a distance of 231 feet to a point; thence N 85° 33' 40" W, a distance of 330 feet to a point; thence N 85° 17' 03" W, a distance of 437.8 feet to a point; thence N 03° 56' 44" E, a distance of 487 feet to a point; thence N 85° 70' 23" W, a distance of 528.52 feet to a point on a line 200 feet east of the eastern right-of-way line of Lynn Road; thence in a northerly direction on a line 200 feet east of and parallel to Lynn Road a distance of approximately 6030 feet to the intersection of a line 200 feet south of the south right-of-way line of N.C. 98; thence north [along] N.C. 98, a distance of approximately 1330 feet to a point; thence in a northerly direction along a line perpendicular to N.C. 98, a distance of approximately 460 feet to a point; thence in a westerly direction along a line 200 feet north of and parallel to the northern right-of-way line of N.C. 98, a distance of approximately 390 feet to a point; thence in a northwardly direction along a line parallel to and 200 feet east of the east right-of-way line of Chandler Road, a distance of approximately 1300 feet to a point; thence south 85° east, a distance of 164.66 feet to a point; thence N 75° 58' 51" E, a distance of 182.65 feet to a point; thence S 62° 23' 48" E, a distance of 262.12 feet to a point; thence S 26° 31' 32" W, a distance of 27.64 feet to a point; thence S 85° 24' 35" E, a distance of 692.48 feet to a point; thence N 6° 55' 43" E, a distance of 649.91 feet to a point; thence S 80° 22' E, a distance of 547.02 feet to a point; thence S 80° 17' E, a distance of 1604 feet to a point; thence N 10° 23' E, a distance of 850.7 feet to a point; thence N 10° 8' E, a distance of 1487.8 feet to a point; thence N 82° 46' W, a distance of 1488.05 feet to a point; thence in a southerly direction along an arc to the right, said arc having a radius of 332.2 feet, a length of 151.14 feet to a point; thence N 70° 42' W, a distance of 175 feet to a point; thence N 19° 18' E, a distance of 116 feet to a point; thence N 82° 46' W, a distance of 436.3 feet to a point; thence N 6° 25' E, a distance of 663.9 feet to a point; thence N 81° 25' W, a distance of 1378.1 feet to a point; thence S 5° 32' W, a distance of 697 feet to a point; thence S 82° 45' E, a distance of 461.4 feet to a point; thence 7° 40' W, a distance of 1162.98 feet to a point on a line 200 feet north of the northern right-of-way line of Chandler Road; thence in a westerly direction along a line 200 feet north of and parallel to the northern right-of-way line of Chandler Road, a distance of approximately 1130 feet to a point; thence westwardly along a line 200 feet north of and parallel to the north property line of Ross Road, a distance of approximately 860 feet to a point;

thence northwardly along a line 200 feet east of and parallel to the east property line of Fernando Street, a distance of approximately 1460 [feet] to a point; thence westwardly along a line 200 feet north of and parallel to the north right-of-way line of Independence Avenue, a distance of approximately 1540 feet to a point; thence northwardly along a line 200 feet east of and parallel to the east property line of Center Avenue, a distance of approximately 1030 feet to a point; thence westwardly a distance of approximately 980 feet along the northern property line of the subdivision of land known as resubdivision of lots 210 and 221, Joyland Heights, recorded in Plat Book 20, page 13; thence in a southerly direction along the west line of said subdivision, resubdivision of lots 210 and 221, Joyland Heights, a distance of 51 feet to a point; thence westwardly along the northern property line of a subdivision of lands known as resubdivision of lots 210 and 221, Joyland Heights, as recorded in Plat Book 20, page 13, in projection of said line, a distance of approximately 220 feet to its intersection with a line 20 feet east of and parallel to the centerline of the Southern Railway, Keysville Branch Track, being also the easternmost track at this point; thence southwardly along said line 20 feet east of and parallel at all points to the centerline of Southern Railway Company, Keysville Branch Railroad Track, a distance of approximately 3050 feet to its intersection with a line 200 feet north of and parallel to Ross Road, if projected; thence westwardly along a line 200 feet north of and parallel to the north right-of-way line of Ross Road in a projection thereof, a distance of approximately 1920 feet to its intersection with the eastern right-of-way line of U.S. 70; thence running in a northerly direction along said U.S. 70, right-of-way line, approximately 1530 feet to a point on the southern property line of property of Fellowship Freewill Baptist Church; thence S 85° 42' E, a distance of 560.23 feet to a point; thence north [N] 11° 42' E, a distance of 109.99 feet to a point; thence N 6° 19' E, a distance of 224.7 feet to a point; thence N 8° 44' E, a distance of 102 feet to a point; thence N 9° 5' E, a distance of 382.49 feet to a point; thence N 10° 35' E, a distance of 108.3 feet to a point; thence N 84° 0' W, a distance of 510.57 feet to a point on the eastern right-of-way line of U.S. 70; thence in a northerly direction along said U.S. 70 right-of-way line, approximately 1100 feet to a point; 200 feet from the south right-of-way line of Cheek Road; thence eastward along a line parallel to and 200 feet from the south right-of-way line of Cheek Road, a distance of approximately 790 feet to a point; thence northwardly along a line in projection thereof located 200 feet east of the eastern right-of-way line of Midland Terrace, a distance of approximately 6350 feet to the eastern right-of-way line of Camden Avenue*; thence N 47° 25' E along the eastern right-of-way line of Camden Avenue, a distance of 909.1 feet to a point on the south property line of City of Durham Tract No. 443; thence S 34° 16' E along said southern property line of City of Durham Tract No. 443, a distance of 278.56 feet to a point; thence S 77° 32' E, a distance of 471.91 feet to a point; thence N 20° 33' E, a distance of 856 feet to a point; thence N 31° 27' W, a distance of 280.89 feet to a point on the eastern right-of-way line of Camden Avenue; thence N 47° 25' E, a distance of 1073.43 feet to a point; in the center of Goose Creek; thence in a westerly direction along the centerline of Goose Creek; a distance of 1633 feet to a point; thence N 41° 20' 46" W, a distance of 209.31 feet to a point; thence N 72° 39' 46" W, a distance of 177.04 feet to a point in the centerline of old run of Ellerbee Creek; thence in a westerly direction along the old run of Ellerbee Creek, a distance of 1688.01 feet to a point on a line 200 feet east of the eastern right-of-way line of Midland Terrace; thence in a northerly direction along said line 200 feet

east of and parallel to the eastern right-of-way line of Midland Terrace, a distance of approximately 750 feet to its intersection with a line 200 feet east of and parallel to the east right-of-way line of Dearborn Drive; thence northwardly along said line 200 feet east of Dearborn Drive, a distance of approximately 1820 feet to its intersection with a line 200 feet south of south right-of-way line of Maplewood Drive; thence eastwardly along a line 200 feet from and parallel to Maplewood Drive as it loops back into Dearborn Drive, a distance of approximately 2430 feet to a line, 200 feet east of and parallel with Dearborn Drive; thence northwardly along a line 200 feet east of and parallel to the east right-of-way line of Dearborn Drive, a distance of approximately 2740 feet to the east right-of-way line of the Norfolk and Western Railroad; thence northwardly along the east right-of-way line of the Norfolk and Western Railway, a distance of approximately 1760 feet to the intersection of a line projected which is located 200 feet north of and parallel to the north right-of-way line of Arlene Street; thence westwardly along said line, a distance of approximately 1360 feet to the intersection of a line projected which is 200 feet west of the west right-of-way line of Usher Street and parallel thereto; thence southwardly along a line 200 feet west of and parallel to the west right-of-way line of Usher Street, a distance of 630 feet to a point; said point being located 200 feet north of the north right-of-way line of Craven Street; thence westwardly along said line 200 feet north of and parallel to the north right-of-way line of Craven Street, a distance of approximately 650 feet to a point; thence northwardly along a line 200 feet east of the east right-of-way line of Old Oxford Highway, a distance of approximately 550 feet to a point; thence westwardly along a line 200 feet north of and parallel to the north right-of-way line of Arlene Street as projected, a distance of approximately 580 feet to a point; thence southwardly along a line 200 feet west of and parallel to the west right-of-way line of Old Oxford Highway, a distance of approximately 2200 feet to a point on the western property line of Wiggins Street; thence N 3° 22' E along said western property line of Wiggins Street, a distance of about 860 feet to a stake; thence S 63° 56' W, a distance of 364.72 feet to a stake; thence S 68° 19' W, a distance of 249.52 feet to a stake; thence S 58° 33' W, a distance of 240.5 feet to a stake; thence S 82° 42' W, a distance of 234.3 feet to a stake on the eastern property line of Duke Lane; thence along the eastern property line of Duke Lane, the following courses and distances: S 7° 6' E, a distance of 446.19 feet to a stake; thence in a southerly direction along an arc to the right, said arc having a radius of 254.61 feet, a distance of 39.03 feet to a stake; thence S 1° 42' W, a distance of 243.89 feet to a point on the northwest corner of Eno Primitive Baptist Church; thence S 85° 47' E along the northern property line of said church, a distance of 346.63 feet to a stake; thence S 44° 38' E, a distance of about 107 feet to a point on a line 200 feet north of the right-of-way of Old Oxford Highway; thence in a southwesterly direction along said line parallel to and 200 feet north of the northern right-of-way line of Old Oxford Highway about 2500 feet to a point on a line 230 feet east of the centerline of Roxboro Road; thence in a northerly direction along said line parallel to and 230 feet east of the centerline of Roxboro Road, a distance of about 1400 feet to a point; thence N 9° 49' E a distance of 530 feet to a point; thence N 81° 0' W, a distance of 99.88 feet to a point; thence N 9° 0' E, a distance of 98.7 feet to a point; thence N 0° 20' E, a distance of 109.55 feet to a point; thence N 81° W, a distance of 399.75 feet to a point; thence S 42° 56' W, a distance of 242.38 feet to a point on a line 230 feet from and parallel to the centerline of Roxboro Road; thence in a northerly direction along

said line parallel to and 230 feet east of the centerline of Roxboro Road, a distance of about 3970 feet to a point; thence N 82° 49' E, a distance of 281.22 feet to a point; thence N 06° 51' W, a distance of 223.17 feet to a point on the southern property line of Pacific Avenue; thence N 82° 38' E along the southern property line of Pacific Avenue, a distance of 184.5 feet to a point; thence S 6° 51' E, a distance of 223.27 feet to a point; thence N 82° 49' E, a distance of 424.12 feet to a point; thence N 05° 00' E, a distance of 1392.86 feet to a point; thence N 84° 52' W, a distance of 918.54 feet to a point; thence N 2° 24' 30" W, a distance 338 feet to a point; thence N 84° 11' W, a distance about 269 feet to a point on a line 200 feet east of the eastern right-of-way line of Denfield Street; thence in a northerly direction with said line 200 feet east of and parallel to the eastern right-of-way line of Denfield Street, a distance of about 6400 feet to a point on the southern property line of lot found in Deed Book 300, page 694; thence in a westerly direction along said lot, a distance of about 202 feet to the eastern property line of Denfield Street; thence in a southward direction along the eastern right-of-way line of Denfield Street, a distance of about 17.6 feet to a point; thence in a westerly direction across Denfield Street, a distance of 123.33 feet to a point at the southwest corner of said lot; thence in a northerly direction along the western property line of said lot, and the western property line of Lot 3 of Eno Farms, Incorporated, recorded in Plat Book 64, page 44, a distance of about 2300 feet to the center of Eno River; thence in a westerly direction up the center of the Eno River, a distance of about 2720 feet to a point on the southeast property corner of Lot 14 of the Ruffin land, recorded in Plat Book 6, page 71, and running in a northerly direction along the eastern property line of said lot, a distance of about 1220 feet to a point on a line 200 feet north of the northern right-of-way line of Infinity Road; thence in a westerly direction with said line 200 feet north and parallel to the northern right-of-way line of Infinity Road, a distance of about 3120 feet to a point on a line 200 feet west of the western right-of-way line of Roxboro Road, U.S. 501; thence in a southerly direction with said line 200 feet west of and parallel to the western right-of-way line of Roxboro Road (U.S. 501), a distance of about 4700 feet to a point on the northern property line of the Argonne Hills Subdivision, recorded in Plat Book 36, Page 35; thence in a westerly direction along said northern property line of Argonne Hills Subdivision, a distance of about 820 feet to a point on a creek; thence in a southwesterly direction along the creek line, which is also the property line of aforesaid Argonne Hills Subdivision, a distance of approximately 670 feet to a point; thence westerly along the north line of aforesaid Argonne Hills Subdivision, a distance of approximately 680 feet to a point; being also the northwest corner of Argonne Hills Subdivision; thence southwardly along the western property line and extension thereof of Argonne Hills Subdivision, a distance of approximately 2100 feet to its intersection with the north property line of a subdivision of land known as property of P. M. Bussell, as shown in Plat Book 18, page 97; thence westerly along the said northern property line, a distance of approximately 2290 feet to its intersection with the line 200 feet north of and parallel to the north right-of-way line of Horton Road; thence westerly a distance of approximately 2895 feet along a line 200 feet north of and parallel to the north right-of-way line of Horton Road to a point 200 feet west of Guess Road; thence southwardly along a line 200 feet west of and parallel to the west right-of-way line of Guess Road, a distance of approximately 260 feet to a point on the northern property line of a map showing property of Lula B. Proctor; thence N 84° 54' 30" W, a distance of 580.54 feet to a point;

thence N 28° 20' W, a distance of 935.85 feet to a point on the centerline of Mill Creek; thence in a southwesterly direction along the centerline of Mill Creek, a distance of about 1707 feet to a point on the eastern right-of-way line of Hillandale Road; thence S 28° 38' E, a distance of 434.6 feet to a point; thence S 71° 10' E, a distance of 1428.14 feet to a point on a line 200 feet west of the western right-of-way line of Guess Road; thence in a southerly direction with said line 200 feet west of and parallel to the western right-of-way line of Guess Road, a distance of about 2850 feet to a point on the northern property line of a map showing property of Hazard Cannon; thence N 88° 55' 6" W, a distance of 138.28 feet to a point; thence N 1° 21' 42" E, a distance of 124.97 feet to a point; thence N 1° 26' 23" E, a distance of 174.72 feet to a point; thence N 1° 23' 48" E, a distance of 200.17 feet to a point; thence N 1° 30' 39" E, a distance of 249.92 feet to a point; thence N 5° 23' 55" E, a distance of 406.33 feet to a point; thence N 44° 39' 6" W, a distance of 247.71 feet to a point; thence N 19° 28' 32" W, a distance of 296.99 feet to a point; thence N 42° 57' 7" W, a distance of 130.98 feet to a point on the southern property line of Crystal Lake Road; thence in a southwesterly direction along the centerline of a branch, a distance of about 2506.5 feet to a point on the eastern right-of-way line of Hillandale Road; thence S 15° 19' 2" E, a distance of 66.39 feet to a point; thence in a westerly direction across Hillandale Road to a point 200 feet west of the western right-of-way line of Hillandale Road, a distance of about 250 feet; thence in a southerly direction along said line 200 feet west of and parallel to the western right-of-way line of Hillandale Road, a distance of approximately 2390 feet to a point located 200 feet north of Carver Street; thence along a line 200 feet north of and parallel to the north right-of-way line of Carver Street, a distance of approximately 550 feet to its intersection with the projection of a line being the west property line of Hillandale School; thence S 1° 50' w, a distance of 205.52 feet to a point on the northern right-of-way line of Carver Street; thence in a westerly direction along the northern right-of-way line of Carver Street, a distance of 4485.17 feet to a point; thence S 67° 33' 38" W, a distance of 456.1 to a point; thence S 00° 29' 13" W, a distance of 939.66 feet to a point; thence S 68° 38' 09" W, a distance of 492.02 feet to a point on the western right-of-way line of Cole Mill Road; thence in a southerly direction along said right-of-way line of Cole Mill Road, a distance of about 4461 feet to a point; 200 feet north of the northern right-of-way line of U.S. Highway I-85; thence northwesterly along a line 200 feet north of and parallel to the north right-of-way line of U.S. I-85, a distance of approximately 1227 feet to a point; thence in a southwesterly direction perpendicular to the west bound lane of U.S. Highway I-85, a distance of approximately 969 feet to a point on the west right-of-way line of the Southern Railway; thence southerly along and with the west right-of-way line of the Southern Railway, a distance of approximately 660 feet to a point on a projected line, which is 200 feet west of the west property line of Morreene [sic] Road; thence southerly along a line which is 200 feet west of the west property line of Morreen [sic] Road, a distance of approximately 2371 feet to a point; thence N 89° 31' 22" W, a distance of 1149.2 feet to a point; thence S 8° 48' W, a distance of 1124.85 feet to a point on the northern property line of American Village; thence N 68° W, a distance of 788.52 feet to a point; thence in a westerly direction along an arc to the left, said arc having a radius of 1074.08 feet, a length of 874.2 feet to a point; thence S 65° 22' W, a distance of 437 feet to a point; thence S 24° 38' E, a distance of 60 feet to a point; thence S 30° 40' 26" W, a distance of 118.65 feet to a point; thence S 7° 33' 25" E, a distance of 69.27 feet to

a point; thence S 39° 17' 11" E, a distance of 71.97 feet to a point; thence S 40° 24' 14" E, a distance of 529.81 feet to a point; thence S 70° 13' 47" E, a distance of 116.03 feet to a point; thence S 19° 5' 34" E, a distance of 256.16 feet to a point; thence S 4° 14' 17" E, a distance of 1031.22 feet to a point; thence S 89° 4' 44" E, a distance of 491.65 feet to a point; thence N 25° 56' 59" E, a distance of 1382.77 feet to a point; thence N 27° 8' 27" E, a distance of 353.35 feet to a point; thence S 72° 13' 07" E, a distance of 1323.3 feet to a point; thence S 38° 51' 20" E, a distance of 1,360 feet to a point on the western right-of-way line of U.S. 15-501; thence in a southerly direction along said western right-of-way line of U.S. 15-501, a distance of approximately 10,000 feet to a point of intersection on said western right-of-way line of U.S. 15-501, a line 200 feet south of and parallel to the southern property line of Cornwallis Road, said point being the place and point of beginning.

Editor's note—This point is the end of the eastern boundary referred to in the Ward Number Six description at the end of this section.

Whenever the corporate boundaries of the city are altered in accordance with general or special law, such changes in the corporate boundaries shall be indicated by appropriate additions to the official map or description of the boundaries of the city, to be maintained in the office of the city clerk.

Ward Number Six: Ward Number Six shall be comprised of that territory lying in that section of the City of Durham bounded as follows, to wit: Beginning at a point in the centerline of North Carolina Railroad at its intersection with centerline of the right-of-way of Norfolk and Western Railroad lying east of Fayetteville and Rowland Streets; thence along the centerline of the Norfolk and Western Railroad right-of-way in a northerly direction to the centerline of U.S. Highways 70-15; thence along the centerline of U.S. Highways 70-15 in an easterly direction to the centerline of U.S. Highway 15; thence along the centerline of U.S. Highway 15 in a northeasterly direction to the eastern city limits line; thence along and with the meandering of the eastern city limits boundary line (For description of eastern city limit line see asterisks and notes above) in a general eastwardly and southerly direction to the city limits boundary line which is 50 feet north of the centerline of the mainline track of the North Carolina Railroad; thence along and with the city limits boundary line in the right-of-way of the North Carolina Railroad in a general westwardly and northwestwardly direction to the intersection of the centerline of the North Carolina Railroad and Seaboard Coast Line Railroad; thence in an westwardly direction along the city limits line approximately 970 feet to the centerline of the East-West Freeway; thence along the centerline of the East-West Freeway in a northwesterly direction to a point at the eastern right-of-way of Fayetteville Street; thence from the point on the eastern right-of-way of Fayetteville Street in a northeasterly direction approximately 450 feet to the point of beginning.
(Acts 1975, ch. 671, § 2)

Editor's note—The area of Ward Number Six was added to the city by annexation.

Sec. 2.1. Annexation of areas lying within the corporate boundaries of the city.

In addition to areas prescribed by G.S. 160A-48, the city council may annex any area, or part thereof, that is surrounded by the corporate boundaries of the city. The procedure prescribed

by Part 3 of Article 4A of Chapter 160A of the North Carolina General Statutes (G.S. 160A-45 et seq.) shall be applicable to any such annexation. The property tax liability of any such annexed area shall be determined in the manner prescribed by Part 5 of Article 4A of Chapter 160A of the North Carolina General Statutes (G.S. 160A-58.10 et seq.).
(Laws 1985, Ch. 744, § 1)

Sec. 2.2. Annexation of areas adjacent or contiguous to certain described territory in Durham County.

For the purpose of determining whether an area which the city proposes to annex qualifies for annexation pursuant to G.S. 160A-31, G.S. 160A-48, or G.S. 160A-58.1, the boundary of the territory described in Section 2 of Chapter 435, Session Laws of 1985, to the extent that said territory lies within Durham County, shall be considered a part of the municipal boundary of the city when, through annexation of intervening land, the boundary of said territory (described in Section 2 of Chapter 435, Session Laws of 1985) coincides with the municipal boundary of the city for a distance of at least 5,300 feet.
(Laws 1987, Ch. 606, § 1)

Sec. 2.3. Effective date of annexation ordinances.

(a) The provisions of G.S. 160A-31(d), 160A-58.2, and 160A-58.7 notwithstanding, the city council may make annexation ordinances adopted pursuant to Parts 1 or 4 of Article 4A of Chapter 160A of the General Statutes effective on any specified date within 10 years from the date of passage of the annexation ordinance.

(b) The provisions of G.S. 160A-49(e)(4) notwithstanding, the city council may fix the effective date of annexation ordinances adopted pursuant to Part 3 of Article 4A of Chapter 160A of the General Statutes (G.S. 160A-45 et seq.) for any date not less than 40 days nor more than 3 years from the date of passage of the ordinances.

(c) An annexation ordinance adopted pursuant to Article 4A of Chapter 160A of the General Statutes (G.S. 160A-29 et seq.) or this Charter may be amended by ordinance at any time prior to the effective date of such ordinance to change the effective date of the ordinance to any other date permitted by general law or this Charter. Such ordinance amending the ordinance may be adopted at any regular or special meeting of the city council and requires 4 affirmative votes for passage. If the ordinance is to delay the effective date, no notice, public hearing, or other procedural requirement of Article 4A of Chapter 160A of the General Statutes (G.S. 160A-29 et seq.), other than G.S. 160A-29, 160A-51, and 160A-58.8 as applicable, applies to the adoption of such an ordinance. If the ordinance is to advance the effective date, notice of the proposed ordinance shall be given and a public hearing on the proposed ordinance shall be held under the same procedure required for the original annexation, but:

(1) With only the requirement of information in the notice and at the hearing as to the area to be affected and the adopted effective date and proposed new effective date; and

(2) No other procedural requirement of Article 4A of Chapter 160A of the General Statutes (G.S. 160A-29 et seq.), except for G.S. 160A-29, 160A-51, and 160A-58.8 as applicable, applies to the adoption of such an ordinance amendment.

(d) Any annexation ordinance adopted pursuant to Article 4A of Chapter 160A of the General Statutes (G.S. 160A-29 et seq.) or this Charter may be repealed by ordinance at any time prior to the effective date of the ordinance.
(Laws 1993, Ch. 342, § 1; Ord. No. 12281, § 1, 5-7-2001; S.L. 2013-386, § 3, 8-23-2013)

Sec. 2.4. Annexation petition signatures.

A petition for annexation of property submitted pursuant to G.S. 160A-31 need not be signed by any owner of real property that is wholly exempt from property taxation under the constitution and laws of North Carolina, nor by railroad companies, public utilities as defined in G.S. 62-3(23), or electric or telephone membership corporations.
(Laws 1993, Ch. 342, § 1)

Sec. 2.5. (Repealed by S.L. 2001-480, § 1)

Sec. 2.5A. Annexation of streets adjacent to city limits.

In addition to its authority to annex streets under this Charter and under general law, the city may annex the portions of public or private streets that are directly contiguous on 2 opposing sides to property that is within the city limits. When the city proposes to annex a street under this authority and the annexation is of the street alone, and no other property, the city may accomplish the annexation using the procedure described in this section. The city council shall pass a resolution describing the street area to be annexed, and setting a date for a public hearing. Notice and a public hearing as required under Part[s] 1 and 4 of Article 4A of Chapter 160A of the General Statutes [G.S. 160A-29 et seq. or G.S. 160A-58 et seq.] shall be provided. Upon compliance with these requirements, the city council may pass an ordinance annexing the described area, and no other requirements shall apply. The time period for appeal of the annexation shall be as provided in section 2.6 of this Charter.
(S.L. 2003-26, § 1)

Sec. 2.6. Petition annexation appeals.

Any judicial action contesting the validity of an annexation by the city pursuant to Part 1 or 4 of Article 4A of Chapter 160A of the General Statutes (G.S. 160A-29 et seq. or G.S. 160A-58 et seq.) shall be filed within 30 days after the adoption of the annexation ordinance.

Sec. 2.7. Restrictions on annexation and extraterritorial jurisdiction as to the City of Durham.

Notwithstanding the provisions of G.S. 160A-58.1(b)(2) and provided the remainder of the requirements of Part 4 of Article 4A of Chapter 160A of the General Statutes are met, the City

of Durham may annex by satellite annexation pursuant to G.S. 160A-58.1, or any successor statute, any territory in Durham County that is closer to the primary corporate limits of the Town of Butner than to the primary corporate limits of the City of Durham.
(S.L. 2007-269, § 1.1)

Editor's note—Sec 1.1 of S.L. 2007-269 states as follows. The bracketed words were inserted by the editor.

In addition to any other requirements of law, the Town of Butner may not annex under Article 4A of Chapter 160A of the General Statutes any territory in Durham County, or exercise extraterritorial authority under Article 19 of Chapter 160A of the General Statutes in Durham County, without first receiving approval of the City of Durham, as evidenced by a resolution or ordinance adopted by the City Council.

The Town of Butner shall not request any changes in this section [2.4] of the [Butner] Charter without first receiving approval of the City of Durham, as evidenced by a resolution or ordinance adopted by the City Council.

Sec. 2.8. [Description of any adjacent streets or street rights-of-way to the area to be annexed.]

Notwithstanding the provisions of G.S. 160A-31(i) and G.S. 160A-58.7(b), in an annexation ordinance adopted under Part 1 or Part 4 of Article 4A of Chapter 160A of the General Statutes, the city council may include in the description of the area to be annexed any adjacent streets or street rights-of-way.
(S.L. 2015-82, § 1, 6-18-2015)

CHAPTER II. ELECTIONS

Sec. 3. Conduct of elections.

The general municipal elections shall be conducted in the manner prescribed by the uniform municipal election laws of North Carolina.

The nonpartisan primary and election method shall be used to nominate candidates and determine the results of the city's elections.
(Acts 1975, ch. 671, § 3)

State law reference—Municipal elections, G.S. 163-279 et seq.

Sec. 4. Election wards.

(a) The territory located within the corporate limits of the City shall continue to be divided into three numbered election wards, which shall be shown on the map showing the city limits maintained by the City Clerk pursuant to the provisions of general law.

(b) Such ward boundaries may be amended periodically pursuant to the provisions of general law.

(c) Within six months of the release of official United States decennial census figures (but not later than seven calendar days before the opening of filing under G.S. 163-294.2 for the next regular municipal election after release of the figures), the City Council shall by

ordinance, using such figures and taking into account the election ward boundaries in existence at the time, revise the three election wards so that they are of approximately equal population, as determined in the discretion of the City Council.

(d) The council shall allocate to the election wards, or by ordinance provide procedures for the city manager to allocate to the election wards, areas that are annexed to the city after the ordinance adopted pursuant to subsection (c) of this section and such allocation shall be made before the effective date of each annexation.

(e) This section is supplementary to the provisions of general law. In case of conflict or inconsistency, this section controls.
(Acts 1975, ch. 671, § 4; Laws 1983, Ch. 369, § 1; Ord. No. 12281, § 2, 5-7-2001; S.L. 2008-66, § 1)

Sec. 5. Elective offices.

In November 2001, and every 4 years thereafter, 3 councilmembers shall be elected from districts (wards) for 4-year terms. In November 2001, 3 councilmembers shall be elected at large for 2-year terms. In November of 2003, and every 4 years thereafter, 3 councilmembers shall be elected at large for 4-year terms.

Candidates for election to ward seats on the council shall reside in and represent their respective wards, but all candidates for city council and the mayor shall be nominated and elected by all the voters of the city.

The mayor shall serve for a term of 2 years, and all councilmembers shall serve for a term of 4 years.
(Acts 1975, ch. 671, § 5; Ord. No. 12281, § 3, 5-7-2001)

CHAPTER III. MAYOR AND COUNCIL

Sec. 6. City council.

The councilmembers and mayor, when elected and duly qualified, shall constitute a board to be known and designated as the city council.
(Acts 1975, ch. 671, § 6)

Sec. 7. Oaths of office.

The mayor and each councilmember, before entering upon the duties of the office to which they have been elected, shall take before some officer authorized to administer oaths, an oath that they will fairly and impartially perform the duties of their office. The mayor and councilmembers shall hold their respective offices until their respective successors have been duly qualified.
(Acts 1975, ch. 671, § 7; S.L. 2001-480, § 2)

Sec. 8. Powers of the city council.

The city council shall have full power and authority, except as otherwise provided for in this charter, to exercise all of the powers conferred upon and delegated to the City of Durham by this charter and by the laws of North Carolina. The city council shall have power to make such ordinances, rules and regulations as it may deem necessary for the proper government of the city and to promote and safeguard the health, morals, safety and general welfare and convenience of the public. The city council may provide for the proper enforcement of such ordinances, in such manner as it may think best, by fine, imprisonment or otherwise. The city council may provide for the organization of the offices, departments and divisions of city government, not inconsistent with this charter: By way of example and not limitation, the city council, in performing the duties and responsibilities set forth in G.S. 160A-412, may assign all or part of the duties of an inspection department to an existing or newly created department, division or office of the city, may assign all or some of the personnel appointed pursuant to G.S. 160A-411 to an existing or newly created department, division or office of the city and may designate the job titles and duties of the personnel so assigned.
(Acts 1975, ch. 671, § 8; Laws 1983, Ch. 370, § 1; Laws 1985, Ch. 169, § 1; S.L. 2001-480, § 3)

Sec. 9. Power and duties of the mayor.

The power and duties of the mayor shall be such as are conferred upon him by this act, together with such others as are conferred by the city council in pursuance of the provisions of this act and no other.

He shall preside at all meetings of the city council and shall vote upon all questions unless excused as provided in section 11(3) of this charter, but shall have no additional vote in case of a tie. He shall appoint all standing committees and special committees of the city council, unless the city council shall vote to elect any or all of such standing or special committees.

He shall be recognized as the official head of the city, and shall be so considered by the public for all ceremonial purposes. He shall have power to administer oaths and take affidavits. Such functions not enumerated in this charter as are conferred upon the mayor by the general laws of the state shall be exercised by the city manager, unless the city council designates some other person to exercise the same.
(Acts 1975, ch. 671, § 9)

Sec. 10. Mayor pro tempore.

During the disability of the mayor, or his absence from the city, the functions of his office shall devolve upon some member of the city council designated by that body as mayor pro tempore at its first meeting after each general municipal election. The mayor pro tempore shall preside over meetings of the city council in the absence of the mayor.
(Acts 1975, ch. 671, § 10)

Sec. 11. Meetings of the city council.

(1) Regular meetings of the city council shall be held at such times as may be designated by ordinance of the city council.

(2) The mayor, any 4 members of the city council, or the city manager, hereinafter provided for, may call special meetings of the council upon at least 6 hours notice to each member. Notice may be given to a member by direct telephone communication with such member or by direct personal conversation with such member or by written notice to any member not otherwise notified by serving such written notice personally upon such member or by leaving such written notice at such member's residence or business. Written notice as provided herein may be served by any person or persons designated by the city manager. A special meeting may be held at any time without notice provided that all of the members of the council attend.

The city clerk may give notice of a special or emergency meeting of the city council, or any other public body of the city, to any member of the city council and to any person, newspaper, wire service, radio station, or television station entitled to such notice pursuant to G.S. 143-318.12(b), by means of facsimile transmission or electronic mail, when such form of notification has been requested in writing and filed with the city clerk by any such member of the city council, person, newspaper, wire service, radio station, or television station. The term "public body" as used in this paragraph has the meaning prescribed by G.S. 143-318.10(b).

(3) Meetings of the city council shall be public, when required by G.S. Chapter 143, Article 33B (G.S. 143-318.9 et seq.), and any citizen shall have access to the records or minutes thereof at all reasonable times, unless otherwise provided by law. A majority of the members of the city council shall constitute a quorum for the transaction of business. The ayes and [nays] shall be taken upon the passage of all ordinances, resolutions or actions having the effect of an ordinance or resolution and entered by the clerk upon the journal of the proceedings of the council. The city council may provide for the taking of aye and nay votes by means of electronic or mechanical tabulation visible to persons attending the meeting. Every ordinance, resolution or action having the effect of an ordinance or resolution shall require 4 affirmative votes, and no person shall be appointed to fill a vacancy as mayor or member of the council except by 4 or more votes in favor of that person, provided, however, any provision of general law requiring a different vote than prescribed herein shall control except the provisions of G.S. 160A-75 which shall not apply to the City of Durham. An ordinance is effective upon passage or at such subsequent time as the city council may prescribe. No member shall be excused from voting, except on matters involving consideration of his own official conduct, or where his financial

interests are involved. In all other cases, a failure to vote by a member who is physically present in the council chamber, or who has withdrawn without being excused by a majority vote of the remaining members present, shall be recorded as an affirmative vote. The question of the compensation and allowances of members of the council is not a matter involving a member's own financial interest or official conduct.
(Acts 1975, ch. 671, § 11; Laws 1979, Ch. 852, § 3; Laws 1993, Ch. 279, § 1; Laws 1995, Ch. 642, § 1; Ord. No. 12281, § 4, 5-7-2001)

Sec. 12. Appointive powers continued.

The city council shall continue to have such power and authority to appoint officers and members of boards and commissions, such as members of the city board of education, as was heretofore delegated to the board of aldermen under prior laws applicable to the city.
(Acts 1975, ch. 671, § 12)

Sec. 13. (Repealed by Laws 1979, Ch. 852, § 1)

Sec. 13.1. (Repealed by S.L. 2001-480, § 1)

Sec. 13.2. Vacancies in office of mayor or member of city council.

(a) For the purpose of this section, the word "vacancy" also includes a refusal or failure to qualify for office.

(b) If a vacancy occurs in the office of mayor, the city council shall, except as provided in subsection (d) of this section, within 60 days of the vacancy, choose some qualified person for mayor for the unexpired portion of the term.

(c) If a vacancy occurs in the office of councilmember, the city council shall, except as provided in subsection (d) of this section, within 60 days of the vacancy, choose some qualified person to fill the place of such councilmember for the remainder of the unexpired term.

If the vacancy to be filled occurs in a seat occupied by a councilmember elected from a ward, then such person chosen to fill such vacancy shall reside in the ward from which the councilmember whose place is to be filled was nominated.

(d) If the council fails to choose some qualified person within 60 days after the vacancy occurs, it may not fill the vacancy by appointment, but shall call a special election under the provisions of section 13.3 of this charter, provided that if the vacancy occurs after the first day of June in the year in which the term is to expire, the council need not call a special election.
(Laws 1979, Ch. 852, § 2)

Sec. 13.3. Special election to fill vacancies.

(a) If the city council is required to call a special election under the provisions of section 13.2 of this charter, it shall follow the procedures of this section.

(b) The special election shall be called and conducted in accordance with G.S. 163-287, except as otherwise provided in this section.

(c) The council shall within 7 days of the expiration of the 60 day period provided in section 13.2(d) of this Charter adopt a resolution calling a special election. Such special election may be held on the same date as any county or State or municipal primary, or general election, referendum or special election, but may not otherwise be held within the period beginning 30 days before and ending 30 days after the date of any such election, primary, special election, or referendum.

(d) If the city council calls a special election to be held at the time of the regularly scheduled elections for municipal officials, the special election shall be conducted according to the rules, regulations and procedures established for such regular elections by Subchapter IX of Chapter 163 of the General Statutes of North Carolina (G.S. 163-279 et seq.) The election shall be conducted according to the nonpartisan primary and election method. If the city council elects to change the method of determining the results of the regular municipal elections, the special election shall be conducted according to the method chosen by the city council.

(e) If the city council calls for a special election to be held at any time other than the time of the regularly scheduled elections for municipal officials, the election shall be conducted according to the rules, regulations and procedures established for special elections by G.S. 163-287 and by the remainder of G.S. ch. 163, as modified by the following provisions:

(1) The election shall be conducted and the results of the election determined in accordance with the nonpartisan plurality method of election set out in G.S. 163-292.

(2) Candidates may file their notices of candidacy during the time prescribed by G.S. 163-294.2.

(3) The filing fee in the special election shall be the same as that most recently fixed by the city council pursuant to G.S. 163-294.2(e) for the regularly scheduled election for municipal officials.

(Laws 1979, Ch. 852, § 2)

Sec. 14. Double office holding.

No person elected to the city council, whether he qualify [qualifies] or not, shall, during the term for which he was elected, be elected or appointed to any other position, or office of trust or profit, under the city government. However, when a vacancy exists or shall occur in the office of mayor, a councilmember shall not be debarred from election as mayor for the existing term or unexpired part of the term.

(Acts 1975, ch. 671, § 14)

Sec. 15. Removal of elective officers from office.

(1) Absence from 5 consecutive regular meetings shall operate to vacate the seat of a councilmember, unless the absence is excused by the council by resolution setting forth the reason therefor, and such resolution shall be entered upon the minutes.

(2) The city council by a vote of 4 of its members, in meeting assembled, shall have power to remove from office the mayor or any councilmember for misfeasance, malfeasance, corruption, neglect of duty or other misconduct in office, but the person to be proceeded against shall have at least ten days' notice in writing of the motion to remove him, accompanied by a copy of the charges alleged as the grounds for his proposed removal. He shall have the right to be heard in person or by counsel in his defense. In case of the removal of the mayor, or any councilmember, the vacancy shall be filled by the city council or the remaining members thereof.

(3) The mayor or any member of the city council may also be removed from office in the following manner:

(a) Any elector of the city may make and file with the Supervisor of Election of the Board of Elections of Durham County an affidavit containing the name of the City officer whose removal is sought and a statement of the grounds alleged for his removal. The said supervisor of elections shall thereupon deliver to the elector making such affidavit copies of petition blanks for demanding such a removal, printed forms of which the supervisor of elections shall keep on hand. Such blanks shall be issued by the supervisor of elections with his or her signature thereto attached and shall be dated and addressed to the Board of Elections of Durham County, indicate the person to whom issued, and state the name of the officer whose removal is sought. A copy of the petition shall be promptly delivered to the city clerk who shall enter the copy of the petition in a record book kept for that purpose in the office of the clerk. A recall petition to be effective must be returned and filed with the supervisor of elections within 30 days after the filing of the affidavit, and to be sufficient must bear the signature of registered voters of the city equal in number to 25 percent of the registered voters of the city as shown by the registration records of the last preceding general municipal election.

(a1) It shall be the duty of the Board of Elections of Durham County to investigate the sufficiency of any such petition and to certify the results of such investigation to the city council. The board of elections may employ such persons as it deems necessary to undertake such investigation and the reasonable cost of such investigation shall be reimbursed to the board of elections by the city. The board of elections may adopt such rules and regulations as it deems necessary or advisable concerning the validation of signatures appearing on the recall petition, and such rules and regulations shall be available for public inspection consistent with G.S. ch. 132.

(b) If a recall petition shall be certified by the board of elections to be sufficient, the board shall at once submit it to the council with its certificate to that effect and shall notify the officer whose removal is sought of such action. If the officer whose removal is sought does not resign within 5 days after such notice the council shall thereupon order and fix a day for holding a recall election. Any such election shall be held not less than 50 nor more than 70 days after the petition has been certified to the council, and it may be held at the same time as any other general or special election within such

period; but if no other election is to be held within such period the council shall call a special recall election to be held within the time aforesaid, provided however, if the provisions of general law prohibit the holding of special elections during the time aforesaid, and no general or special election is otherwise scheduled during said period of time, then the council shall call said special recall election for some date within ten days after the last day of said period of time during which special elections are prohibited by general law.

(c) The question of recalling any number of officers may be submitted at the same election but, as to each such officer, a separate petition shall be filed and there shall be an entirely separate ballot.

(d) The ballots used in a recall election shall submit the following propositions in the order indicated:

☐ For the recall of (name of officer).

☐ Against the recall of (name of officer).

Except that the spaces left for the name and date shall be filled by the correct names and date, the ballots used in a recall election shall be in form substantially as follows:

RECALL ELECTION

City of Durham

_____ (month and day of month) ____ 20____.

For the recall of ____

Against the recall of____

(e) If a majority of the votes cast on the question of recalling an officer be against his recall he shall continue in office for the remainder of the unexpired term, but subject to the recall as before. If a majority of such votes be for the recall of the officer designated on the ballot he shall, regardless of any defects in the recall petition, be deemed removed from office.

(f) If an officer in regard to whom a sufficient recall petition is submitted to the board of elections shall resign before the election, or be removed as a result thereof, the vacancy so caused shall be filled in the manner provided by this charter for filling vacancies in such office, except as provided in section 15(3)(h). But an officer removed by the voters as the result of a recall election, or resigning after a sufficient petition for his recall has been submitted to the board of elections shall not be reelected to fill the vacancy caused by his own removal or resignation.

(g) No recall petition shall be filed against an officer within 3 months after he takes office, nor, in case of an officer subjected to a recall election and not removed thereby, until at least 6 months after that election.

(h) If the recall of a majority of the members of the city council, including the mayor as one of the members, shall be effected at a single recall election, the successors of the

officers recalled shall be elected by the registered, qualified voters of the city at a special municipal election, and said successors shall serve for the unexpired part of the terms of the officers recalled. The members of the city council who have not been recalled are empowered to call said special election and to make all necessary provisions regarding the same in conformity to the constitution and general laws of North Carolina. If the recall of all of the members of the city council, including the mayor, shall be effected at a single recall election, they shall be continued in office for the purpose, and only for the purpose, of calling a special municipal election for the election of their successors as above provided, and of ascertaining and declaring the result thereof.

(Acts 1975, ch. 671, § 15; Laws 1987, Ch. 280, §§ 1—4; Ord. No. 12281, § 5, 5-7-2001)

CHAPTER IV. ORGANIZATION AND ADMINISTRATION

ARTICLE 1. APPOINTIVE OFFICES

Sec. 16. City manager.

A city manager shall be chosen to be the administrative head of the municipal government. He shall be chosen by the council without regard to his political beliefs, and solely upon the basis of his training, and executive and administrative qualifications. The choice shall not be limited to inhabitants of the city or state. The city manager shall receive such compensation as shall be provided by the council by ordinance. He shall give such bond as may be required by the city council. He shall be appointed for an indefinite period, and shall serve at the will of the council; provided, however, that he may not be removed within 12 months from the date on which he assumed his duties, except for incompetence, malfeasance, misfeasance, or neglect of duty. In case of his removal within this period, he may demand written charges and a public hearing thereon before the council prior to the date on which his final removal shall take effect; but the decision and action of the council on such hearing shall be final, and pending such hearing the council may suspend him from duty. During the absence or disability of the city manager, or while the office is not filled, the council shall designate some properly qualified person to perform his duties.

(Acts 1975, ch. 671, § 16)

Sec. 17. Powers and duties of the city manager.

(a) The city manager shall be responsible to the city council for the efficient administration of all the affairs of the city under his direction and control. It shall be his duty to attend all meetings of the city council, with the right to take part in the discussion, but without a vote. He shall be entitled to notice of all special meetings. He shall recommend to the city council from time to time such measures as he shall deem necessary, and shall furnish the city council with necessary information respecting any of the departments of the city under his direction and control. The city manager shall not be personally interested in any contract in which the

city is a party for supplying the city materials of any kind. The city manager shall have power, and it shall be his duty, to see that the laws and ordinances of the city are enforced. He shall have power and authority to revoke licenses, pending action by the city council.

(b) Except as otherwise provided in this charter, the city manager shall have power to appoint and remove all heads of departments and all subordinate officers and employees of the city. He shall, except when clearly inconsistent with the provisions of this charter, exercise supervision and control over all departments and divisions created herein, or that hereafter may be created by the city council. He shall see that all terms and conditions imposed in favor of the city or its inhabitants in any public utility franchise are faithfully kept and performed, and upon knowledge of any violation thereof, he shall call the attention of the city council and the city attorney to the same. He shall prepare and submit to the city council a proposed annual budget, after receiving estimates made by the heads or directors of departments or by any board officer, or commissioner not within a department. He shall keep the city council at all times advised as to the financial needs and condition of the city. He shall from time to time make oral and written reports to the city council of the condition and efficiency of the various departments of the city government under his direction and control. The council may in its discretion cause such written reports to be published for the information of citizens. The city manager shall perform such other duties as may be prescribed by this charter, or be required of him by ordinance or resolution of the city council.

(c) The city manager shall not engage in political campaigns for elective office, nor attempt to influence the result of such campaigns, except by exercising his right to vote. Improper campaign activity as described herein by the city manager shall be a cause for his immediate suspension or removal from office.

(d) The city council may delegate authority to the city manager to purchase real property or any interest in real property, provided:

(1) The money for the purchase of such real property or interest in real property is available in the then current budget; and

(2) The city manager, within 45 days following the purchase, shall submit to the city council a written report setting forth the names of the persons from whom such property or property interest is purchased, a general description of the property or interest in property acquired, the purchase price paid therefor, and the intended use of the property or interest in property.

(e) Reserved.

(f) Where any provision of this Charter or general or local law provides that the City Council may call, fix, or set public hearings or cause public hearings to be called, fixed, or set; give, mail, post, or publish notices or cause notices to be given, mailed, posted, or published; or to accept or reject offers made to the City, the City Council may delegate to the City Manager or the City Manager's designee the authority to perform any or all of these acts. Where any provision of this Charter or general or local law provides that before an act described in this subsection can be performed the City Council must first adopt a resolution stating the City

Council's intent to take the action, the City Council may delegate to the City Manager or the City Manager's designee the authority to declare that a resolution of intent has been adopted, and the declaration shall satisfy the requirement that the City Council adopt a resolution of intent. The City Council may delegate authority to the City Manager as provided by this subsection in a resolution or ordinance, which may contain any restrictions or conditions the City Council deems proper.

(g) The City Council may, on terms it deems proper, delegate to the City Manager or the City Manager's designee the authority to solicit and advertise for bids and proposals, to reject bonds, bids, and proposals, to re-advertise to receive bids and proposals, to award contracts, and to execute contracts. The City Council may provide that the City Manager or the City Manager's designee when acting pursuant to the authority granted by this subsection is authorized to take any action that the City Council is required or authorized to take under the provisions of Article 8 of Chapter 143 of the General Statutes if that action is with respect to advertising, making, approving, awarding, and executing contracts, including complying with the procedures in G.S. 143-129(b) that apply when the lowest responsible bids are in excess of the funds available for the project or purchase. The City Manager or the City Manager's designee acting pursuant to the authority granted by this subsection shall comply with any provisions of law that would otherwise apply to the City Council if it were taking the action. The City Manager or the City Manager's designee shall make and execute any contracts authorized by the provisions of this subsection in the manner authorized or provided by the City Council. The authority granted by this subsection is in addition to, and not in derogation of, any other authority granted by the provisions of this Charter or any other general or local law.

(Acts 1975, ch. 671, § 17; Laws 1979, 2nd Session, Ch. 1249, § 1; Laws 1981, Ch. 694, § 1; Laws 1983, Ch. 458, § 1; Laws 1991, Ch. 532, § 2, Ch. 617, § 1; Laws 1993, Ch. 121, § 1; S.L. 1999-36; S.L. 2009-41, § 1)

Sec. 18. Relations between the city council and the city manager.

Except for the purpose of inquiry, the council and its members shall deal with the administrative service of the city solely through the city manager hereinafter provided for, unless otherwise provided in this charter. No member of the council shall give orders to any of the subordinates of the city manager either publicly or privately. Where this charter gives to the city manager the power to appoint or to employ persons in the administrative service of the city, neither the council nor any of its members shall dictate the appointment or employment of any such person or persons, but the city manager shall be left free to exercise his own judgment in appointing or employing such person or persons.

(Acts 1975, ch. 671, § 18)

Sec. 19. Investigations.

The council and the city manager, or either of them, shall have power to make investigations as to city affairs and for that purpose to subpoena witnesses, administer oaths and compel the production of books and papers.

Any person refusing or failing to attend, or to testify, or to produce such books and papers, may by summons issued by such council or city manager be summoned before the general court of justice by the council or city manager making such investigation and, upon failure to give satisfactory explanation of such failure or refusal, he shall be guilty of a misdemeanor and may be fined a sum not exceeding $100.00, or imprisoned for a period not exceeding 30 days. Any person who shall give false testimony under oath at any such investigation shall be liable to prosecution for perjury.
(Acts 1975, ch. 671, § 19)

Sec. 20. City clerk.

The city council shall appoint a clerk to be known as the city clerk, who shall hold office at the pleasure of the city council. He shall keep the records and minutes of the city council, and perform such other duties as may be prescribed by this charter or by the city council. The city clerk shall appoint and suspend or remove all subordinate employees of the city clerk's office.

The city council is authorized and empowered to appoint or designate a person as acting city clerk to perform the duties of the city clerk during his or her absence or disability, and in the performance of such duties the acting city clerk shall possess all of the legal authority and power of the city clerk.
(Acts 1975, ch. 671, § 20; Laws 1977, Ch. 255, § 1)

Sec. 21. City attorney.

The city council shall appoint an attorney who shall be known as the city attorney, who shall hold office at the pleasure of the city council. The city attorney shall be legal advisor to, and attorney and counsel for the city. He shall act as counsel for all officers of the city in matters relating to their official duties. The city attorney shall appoint and suspend or remove all subordinate attorneys and other employees of the city attorney's office.

In addition to the duties enumerated, he shall perform such other duties as may be required of him by the city council.
(Acts 1975, ch. 671, § 21)

Sec. 22. Collector of revenue.

The city council shall appoint a collector of revenue who shall hold office at the pleasure of the city council. In all other respects the collector of revenue shall be deemed a subordinate of the city manager. Where the general laws of North Carolina refer to duties and obligations of a tax collector, this reference shall be deemed, insofar as the City of Durham is concerned, to refer to the collector of revenue.
(Acts 1975, ch. 671, § 22)

ARTICLE 2. POLICEMEN, FIREMEN AND PUBLIC SAFETY OFFICERS

Sec. 23. (Repealed by S.L. 2001-480, § 1)

Sec. 24. (Repealed by S.L. 2001-480, § 1)

Sec. 25. Arrest authority of firemen.

Persons exercising the duties of firemen shall have power, and are hereby authorized, to make arrests during fires for interference with or obstruction of their duties.
(Acts 1975, ch. 671, § 25)

Sec. 26. Destruction of hazardous buildings.

Whenever any building in the city shall be on fire, it shall be lawful for the chief of the fire department to order and direct such building or any other building which he may deem hazardous and likely to communicate fire to other buildings, or any part of such buildings, to be pulled down or destroyed; and no action shall be maintained against the chief or any person under his authority, or against the city therefore, except as hereinafter provided. But any

person interested in the property so destroyed may within one year thereafter apply in writing to the council to assess and pay the damages he has sustained. The council may thereupon pay to the claimant such sum as may be agreed upon between him and the council. No such claimant shall being suit against the city for such damage unless he shall have first presented his claim in the manner prescribed by this section, and the city council shall have declined to pay or settle the same, or for ten days after such presentation shall have neglected to enter, or cause to be entered, upon its minutes its determination in regard thereto.
(Acts 1975, ch. 671, § 26)

Sec. 27. Auxiliary policemen and firemen.

The city council is authorized to provide by ordinance for the organization, recruiting, training, equipping and appointing of auxiliary policemen and auxiliary firemen for the city, subject to the following conditions:

(a) Auxiliary policemen and firemen duly appointed by the proper authorities of the city shall, while training and while performing duties on behalf of the city incidental to their appointment, be entitled to the benefits of G.S. ch. 97, designated "Workmen's [Workers'] Compensation Act" to the same extent that regular employees of the city are entitled to the benefits of the act. For the purposes of determining the basis for workmen's [workers'] compensation payments to auxiliary policemen such payments shall be based upon the entrance salary of a regular police patrolman of the city at the time of injury to an auxiliary policeman. For the purpose of determining the basis for workmen's [workers'] compensation payments to auxiliary firemen such payments shall be based upon the entrance salary of a regular fireman of the city at the time of injury to an auxiliary fireman.

(b) Auxiliary policemen and firemen, appointed pursuant to this authority, shall not be entitled to pay for their services unless called into active duty by the city council because of emergency, in which event they may receive such compensation for their services as shall be fixed by ordinance adopted by the city council. Auxiliary policemen and firemen shall not be entitled to any of the benefits provided for regular employees of the city, except workmen's compensation as set out in this section; provided, that this subsection shall not in any manner affect the rights of any person to benefits provided by the State of North Carolina or by act of Congress for civilian defense workers or auxiliary policemen or firemen.

(c) The city shall be entitled to the same immunities with respect to the action of auxiliary policemen and auxiliary firemen in the performance of their duties, while training or otherwise, that it is entitled to with respect to the action of the regular policemen and firemen of the city in the performance of their duties.
(Acts 1975, ch. 671, § 27)

Sec. 28. (Repealed by S.L. 2001-480, § 1)

Sec. 29. (Repealed by S.L. 2001-480, § 1)

ARTICLE 3. WATER DEPARTMENT

Sec. 30. Authority to operate waterworks.

The city council, and all persons acting under their authority, shall have the right to use the ground or soil, in, or upon, or under any road, railroad, highway, lane or alley for the purpose of enlarging or improving or maintaining the plant or system of waterworks owned by the city, upon the condition that they shall not permanently injure any such property, and that the same shall be restored to its original condition, or damages done thereto shall be repaired by the city council.
(Acts 1975, ch. 671, § 30; S.L. 2001-480, § 4)

Sec. 31. Rates and charges.

The city council shall provide for the collection of all rents, forfeitures or emoluments arising from the operation of the system of waterworks of the city. They shall cause accurate accounts to be kept of all receipts and expenditures of money, from or on account of the operation of the municipal waterworks, separate and apart from the other receipts and expenditures of the city.

The city council shall regulate the distribution and use of water for all places and all purposes, where the same may be required, and from time to time shall fix a price for the use thereof and the time of payment, and they shall erect such a number of public hydrants in such places as they shall see fit, and shall direct in what manner and for what purpose the same shall be used, and they shall also erect any and all such other hydrants as may be necessary; provided, that the city council shall have the power to make ordinances, rules and regulations governing the erection, installation and use of hydrants on private property, and to fix the rate of charges therefor; and they are hereby expressly given the right and power to make rules and regulations governing the use of all hydrants heretofore erected on any and all private property as they may deem best for the proper management of the waterworks system and the proper fire protection of the city.

The city council shall have full power and authority to require payment in advance for the use or rent of water furnished by them in or upon any building, place or premises, and in case prompt payment shall not be made, they may shut off the water from such building, place or premises after 5 days' notice, and shall not be compelled again to supply the premises, building or place with water until the arrears thereon shall be fully paid.
(Acts 1975, ch. 671, § 31)

Sec. 32. Regulations.

The city council shall have power to make rules and regulations with respect to the introduction of water into or upon any premises, and from time to time to regulate the use

thereof, in such manner as shall seem to them necessary and proper, and the city council and all engineers, superintendents or inspectors in their service, are hereby authorized and empowered to enter, after demand made and refusal, at all reasonable hours, any dwelling or other place where such water is taken and used where unnecessary waste of water thereof is known or suspected, to examine and inquire into the cause thereof, and if any person refuses to permit such examination, or opposes or obstructs such officer in the performance of such duties, he, she or they so offending shall forfeit and pay the sum of $10.00, to be recovered before the general court of justice in an action by the city council, and the supply of water may also be cut off until the required examination is made and the required alterations and repairs are made.

If any person or persons shall maliciously or willfully divert the water or any portion thereof from the city waterworks, or shall corrupt or render the same impure, or shall destroy or injure any canal, aqueduct, pipe, or other property, used or acquired for distributing the water, such person shall be guilty of a misdemeanor, and upon conviction shall be fined not exceeding $500.00, or shall be imprisoned not exceeding one year, at the discretion of the court.

The city council shall have the power to adopt such rules and regulations as may be just and proper, regulating the use of water by householders, persons, firms and corporations, and in order to conserve the water supply of the city in case of any drought may require reasonable curtailment in the use of water by the adoption of reasonable ordinances, rules and regulations; and all persons, firms and corporations in the city are required to observe the ordinances, rules and regulations adopted by the city council, and any person, firm or corporation who shall fail, neglect, or refuse to observe any of the ordinances, rules and regulations of the city council shall be subject to and pay a penalty of $25.00 for each offense, to be recovered before the general court of justice.
(Acts 1975, ch. 671, § 32)

Sec. 33. (Repealed by S.L. 2001-480, § 1)

Sec. 34. Water and sewer fees and charges.

Under the circumstances specified in this section, the portion of any unpaid rates, fees, or charges imposed by the city for the use of or the services furnished by either of the public enterprises defined in G.S. 160A-311(2) or (3) which the city determines to be the result of broken or leaking plumbing fixtures, pipes, or facilities owned by the real property owner and located on the real property using or served by the public enterprise shall become a lien on the real property, and may be collected in any manner following notice and opportunity for appeal as provided herein, in a foreclosure action using the same procedure by which delinquent personal or real property taxes may be collected. Any such lien shall be inferior to all prior and subsequent liens for federal, state, and local taxes, equal to liens of special assessments, and superior to all other liens and encumbrances.

(a) This section only applies where the public enterprise customer is not an owner of the real property using or served by the public enterprise.

(b) No lien shall arise unless the city, following discovery by the city of the break or leak, sends written notice to the owner of the property, either by personal service or by registered or certified mail return receipt requested, with a copy by regular mail to the public enterprise customer. Such notice shall inform the owner of the break or leak, and that a lien against the real property will arise unless the owner repairs the break or leak and provides written evidence thereof to the city within 30 days from the date of receipt of the notice. Only the portion of the unpaid rates, tees, or charges that accrues or is imposed after the expiration of this 30-day period shall become a lien on the real property as provided in this section. The lien shall include only that portion of the rates, fees, or charges that is attributable to the use of or services furnished by the public enterprise both after the expiration of this 30-day period and as the result of the break or leak.

(c) If the owner believes the city's determination that there is a break or leak to be in error, the owner may appeal to the city manager or designee within 15 days from the date of receipt of the notice. Following a decision by the city manager or designee, the owner may appeal such decision to the city council under guidelines and procedures to be developed by the city. The city manager or designee shall provide the owner with a copy of such guidelines and procedures along with or prior to the decision by the city manager or designee. The decision of the city council may be delivered to the owner either by personal service or by registered or certified mail return receipt requested The decision by the city council shall be subject to review by the superior court by proceedings in the nature of certiorari. Any petition for review by the superior court shall be filed with the clerk of superior court within 15 days after the decision of the city council. During the period of such appeal and review, the 30-day period referred to in section 34(b) for repair of the break or leak shall be stayed.

(d) For purposes of this section, "owner" means the person or persons shown on the county tax listing as the owner of the property.

(Laws 1993, Ch. 768, § 1)

Sec. 35. Repairs to stormwater system located on private property.

(a) The city is authorized to use funds collected from stormwater fees to participate in the cost of repairs, improvements, and maintenance to the stormwater system located on private property within the city, and to enact ordinances that allocate the private and public share of the cost of such activities. Upon written request by the property owner, the city is also authorized to allow the private share of the cost, with interest at a rate to be fixed by the city council but not to exceed 9 percent per annum, to be paid over a period of time to be fixed by the city council but not to exceed ten years. The unpaid portion owed to the city by the property owner shall become a lien on the real property, and may be collected in the same manner and using the same procedures by which the city collects delinquent personal or real property taxes. Any such lien shall be inferior to all prior and subsequent liens for federal, state, and local taxes, equal to liens of special assessments, and superior to all other liens and encumbrances.

(b) The authority granted by this section is in addition to and not in derogation of any other authority granted to the city by this charter or any other law.
(S.L. 1998-52, § 1)

Editor's note—Session Law 1998-52 added a new section 34 to the Charter. In order to avoid duplication of section numbering, the editor has renumbered the provisions of Session Law 1998-52 as section 35.

Secs. 36, 37. Reserved.

ARTICLE 4. CITY SERVICES*

Sec. 38. Stationary container collection service.

(a) Where housing units qualify under city ordinances for roll-out cart solid waste collection service, and the housing units instead choose to be served by stationary containers in accordance with city ordinances, a city may provide stationary container collection service without charging fees for such service other than the fees applicable to roll-out cart service.

(b) Nothing in this section shall be construed to impair the authority of a city to charge customers who do not qualify for service under subsection (a) of this section the fees established by city ordinances for stationary container collection service.
(S.L. 1998-50, §§ 1, 2; S.L. 2001-480, § 5)

Secs. 39, 40. Reserved.

CHAPTER V. FINANCE AND TAXATION

ARTICLE 1. ANNUAL BUDGET

Sec. 41. (Repealed by S.L. 2001-480, § 1)

Sec. 42. (Repealed by S.L. 2001-480, § 1)

Sec. 43. Collection of liens and charges.

When any lien or charge for repairs or improvements of the sidewalks, gutters or streets of the city, or for the inspection, removal or destruction of buildings, or for the suppression and removal of nuisances, or other lien or charge of whatever nature or kind, authorized by this charter, shall be due and unpaid to the city, the collector of revenue shall proceed to collect the same by the same process and in the same manner as he is authorized to collect taxes due upon the property subject to such lien or charge by applicable state and local laws.
(Acts 1975, ch. 671, § 43)

***Editor's note—**Art. 4, § 38, has been added to the Charter by the editor to accommodate Session Law 1998-50 of General Assembly of North Carolina.

ARTICLE 2. PROPERTY TAXES

Sec. 44. Administration.

The listing and appraisal of property and the levy and collection of property taxes in the city shall in all respects be governed by the general laws of the state, except as they shall be specifically amended by this charter.
(Acts 1975, ch. 671, § 44)

Sec. 45. Acceptance of deeds in lieu of payment.

(1) When the taxes or any special assessments upon any real property in the County of Durham are past due and unpaid, and the owner or owners thereof offer to convey such real property to the city, the city council is authorized to accept the deed for such real property in payment of the taxes and special assessments due the city, and to pay the necessary expense of procuring and recording such deed.

(2) The acceptance of such deed by the city council shall not interfere with the lien for taxes or assessments due any other taxing unit, and shall not interfere with any other valid recorded lien on such real property at the time of the execution of such deed. Any real property so conveyed to the city may be resold by such unit at any time to such person or persons and for such prices as the city council may approve.

(3) This section amends G.S. 105-357(a) of the Machinery Act.
(Acts 1975, ch. 671, § 45)

State law reference—For "The Machinery Act," see G.S. 105-271 et seq.

ARTICLE 3. RESERVED*

ARTICLE 3A. OTHER TAXES

Sec. 46. Reserved.

Sec. 46.1. Municipal vehicle tax for public transportation.

The City of Durham may levy a tax of not more than five dollars ($5.00) upon any vehicle resident in the city. The tax authorized in this section is in addition to the general municipal vehicle tax authorized by G.S. 20-97. The proceeds of the tax may be used only for financing, constructing, operating, and maintaining local public transportation systems. The City of Durham shall use the proceeds of the tax to supplement and not to supplant or replace existing funds or other resources for public transportation systems.
(S.L. 2009-166, § 2(a))

***Editor's note—**Session Laws 2009-166, § 2(a), repealed article 3 in its entirety. Formerly, article 3, §§ 46 (repealed by S.L. 2001-480, § 1), 47 (repealed by S.L. 1999-256, § 1), and 48 (repealed by S.L. 2001-480, § 1) pertained to privilege license taxes.

Secs. 47, 48. Reserved.

CHAPTER VI. ADDITIONAL POWERS

ARTICLE 1. LAW ENFORCEMENT

Sec. 49. Payment of rewards.

(1) The city council is hereby fully authorized and empowered, in its sound discretion, to offer to pay, and to pay, rewards to any person or persons who furnish information leading to the arrest and conviction of any person who turns in a false fire alarm, or who wilfully injures or damages any property or facility owned, operated, or maintained by the city, or who commits within the city any criminal act in violation of the laws of the State of North Carolina.

(2) Any available public funds may be used for the purposes herein specified, it being the legislative determination and declaration that the offering and payment of such reward for this purpose is in promotion of the public safety and general welfare and is a necessary governmental function.
(Acts 1975, ch. 671, § 49)

Sec. 50. (Repealed by S.L. 2001-480, § 1)

ARTICLE 2. STREETS, TRAFFIC AND PARKING

Sec. 51. Street closings; notice.

In the closing of streets and alleys in the city pursuant to the provisions of G.S. 160A-299, a copy of the resolution declaring the council's intent to close any street or alley need be sent only to those owners of property adjoining the street or alley in the portion of the street or alley proposed to be closed. A notice may be sent to such owners in lieu of a copy of the resolution. A notice may be published in lieu of the publication of the resolution.

The notice shall be published once a week for 2 successive calendar weeks in a newspaper having general circulation in the city. The notice shall be published the first time not less than ten nor more than 25 days before the date fixed for the hearing. In computing such period, the day of publication is not to be included, but the day of the hearing shall be included.

The provisions of G.S. 160A-299 shall not be construed to limit the authority of the city under this Charter or under general law to sell, lease, rent, exchange or otherwise convey any property or interest in property which the city may have in any street or alley.
(Acts 1975, ch. 671, § 51; Laws 1981, Ch. 694, § 2; Laws 1985, Ch. 332, § 1)

Sec. 51.1. Reserved.

Sec. 51.2. Prior notice of withdrawal of street dedication.

The city council is authorized to enact by ordinance provisions that establish reasonable procedural requirements designed to give the city prior notice of any declaration of withdrawal and any related plats or maps proposed to be recorded in the county registry pursuant to G.S. 136-96. The authority granted herein shall extend to the withdrawal from dedication of any street or roadway within the City of Durham or its extraterritorial area. Such procedural enactments may include, but are not limited to, a requirement that the proposed declaration of withdrawal and any related maps or plats be filed with a designated office of the city government for a specified number of days, not greater than 30 calendar days, prior to the recordation of any such document in the county registry.
(Laws 1985, Ch. 624, § 1)

Sec. 52. Railroad crossings.

The city is authorized to provide for the better protection of life, limb, person and property at crossings of the streets of the city and the railroad tracks now located, or which may hereafter be located, in the city, and to require railroad companies operating on these tracks to erect gates or place flagmen to warn the public of the approach of trains or engines.
(Acts 1975, ch. 671, § 52)

Sec. 53. (Repealed by S.L. 2001-480, § 1)

Sec. 54. Regulation of parking.

(1) The city is granted the power and authority to enact ordinances for the regulation of the use of vehicles of:

(a) Municipally owned or operated off-street parking areas and facilities;

(b) Off-street publicly owned parks, outdoor recreation areas, yards and grounds occupied by public buildings; and

(c) Privately owned areas permissively used by the general public for street purposes.

(2) In the exercise of the power and authority granted by subsection (1) hereof, the council shall have full power and authority to make and provide criminal penalties for violations of such ordinances, not exceeding the penalties provided by general law for the violation of city ordinances; provided, however, the council is granted power and authority, in addition to the foregoing, to provide that such vehicles in violation of parking regulations at any of the places included within the authority designated herein may be towed away and the owner or person responsible therefor required to pay the resulting towing and storage charges.

(3) The council is authorized to provide by ordinance that vehicles stalled, wrecked, abandoned or illegally parked upon any of the public streets of the city may be removed therefrom by having the same towed away to such off-street or other on-street place as may be designated by the council, and to require that the owner or person, firm or corporation responsible for the vehicle be required to pay the towing and storage charges accruing from such removal; and in the carrying out of the provisions relating to the removal and storage of vehicles, the council is fully authorized and empowered to provide such towing and storage facilities by and through its own forces, equipment, and property as well as by contract with independent towing and storage contractors and operators, and the council may appropriate and use reasonable sums of public funds to defray the necessary expenses thereof.
(Acts 1975, ch. 671, § 54)

Sec. 54.1. Traffic control measures.

The city council may, by ordinance, delegate to the city manager or the manager's designee the authority to make routine determinations regarding speed limits, parking, loading, standing, and traffic control measures, including the location of stop signs, yield signs, turn restrictions, loading zones, bus stops, and parking restrictions in rights-of-way.
(S.L. 2003-85, § 1)

Sec. 55. Removal of abandoned or junked motor vehicles from private property.

(1) In addition to the power and authority now possessed or hereafter granted by general or special laws, the city council is hereby granted the power and authority to establish charges to be made for the cost of removing abandoned or junk motor vehicles from private property. When the city causes the removal of any such vehicle from private property pursuant to an ordinance permitting such removal and the owner or other person having control of the property fails to pay the cost of such removal and disposal within 30 days after it becomes due, the amount of the cost of removal and disposal of such vehicle shall on the thirtieth day after the due date thereof become a lien against the real property from which the vehicle was removed; and the amount of such costs shall be placed upon the tax books of the city against the property and may be collected and the lien may be foreclosed in the same manner as taxes are collected and foreclosed, or by suit, as the municipality may determine.

(2) The term "abandoned motor vehicle" and "junk or junked motor vehicle" have the same meaning as prescribed in G.S. 160A-303(b).

(2a) The provisions of G.S. 160A-303 notwithstanding, the city council may, by ordinance, regulate, restrain or prohibit the keeping on private property of any motor vehicle that does not display a current license plate and that:

(1) Is partially dismantled or wrecked; or

(2) Cannot be self-propelled or moved in the manner in which it was originally intended to move; or

(3) Is more than 5 years old and appears to be worth less than $100.00.

Such an ordinance may provide for the removal of any such vehicle from private property consistent with G.S. 160A-303 except that the provisions of G.S. 160A-303(c) which require the written request of the owner, lessee, or occupant of the premises shall not apply and such vehicle need not be a junked motor vehicle, as that term is defined in G.S. 160A-303, so long as such vehicle meets the requirements of this subsection (2a). Nothing in this subsection shall be construed to authorize the removal or disposal of a motor vehicle which is kept or stored: (i) at a bona fide 'automobile graveyard' or 'junkyard' as defined in G.S. 136-143, or (ii) at a bona fide automobile repair business for a period of time not to exceed the time specified in any such ordinance, which period of time shall not be less than 15 days.

(3) The provisions of this section and of any ordinance enacted pursuant hereto are hereby declared to be in furtherance and promotion of the public interest and welfare and to constitute a public purpose.
(Acts 1975, ch. 671, § 55; Laws 1987, Ch. 755, § 1(1), (2))

Sec. 56. Private parking lots.

The provisions of G.S. 20-162.2, relating to the removal of unauthorized vehicles from private lots, shall also apply to parking spaces leased to persons, firms or corporations in parking lots or garages owned, leased or otherwise operated by the city.
(Acts 1975, ch. 671, § 56)

Editor's note—Former G.S. 20-162.2 was changed to G.S. 20-219.2.

ARTICLE 3. POLICE POWER

Sec. 57. Shade-tree protection.

The city council is authorized to adopt such measures as may be necessary to protect the shade trees of the city.
(Acts 1975, ch. 671, § 57)

Sec. 58. (Repealed by S.L. 2001-480, § 1)

Sec. 59. (Repealed by S.L. 2001-480, § 1)

Sec. 59.1. Public records.

In enacting ordinances regulating toxic or hazardous substances, the city council may provide procedures for evaluating claims to "trade secret" protection and maintaining the confidentiality of any "trade secret" disclosed to the city pursuant to any such ordinance as an exception to the public records disclosure and inspection provisions otherwise provided by G.S. ch. 132.
(Laws 1985, Ch. 727, § 3)

Sec. 60. Fireworks and firearms.

The city council may regulate or prevent the firing of firearms, fireworks and all explosives or combustible or dangerous material in the streets, public grounds or elsewhere, within or near the city.

Fireworks may be exhibited, used or discharged at public exhibitions, such as fairs, carnivals, shows of all descriptions and public celebrations, only after written permission has been obtained from the city. The city council may delegate authority to grant such permission to the city fire department.
(Acts 1975, ch. 671, § 60; S.L. 1999-45, § 1)

Sec. 61. (Repealed by S.L. 2001-480, § 1)

Sec. 62. (Repealed by S.L. 2001-480, § 1)

Sec. 63. Removal of trash, weeds, etc.; lien.

The city council shall have power to require the owner or owners of all premises, vacant or improved, to keep the same free from trash, obnoxious weeds, overgrowth, solid wastes and

stagnant water and to provide that in the case of failure on the part of such owner or owners to comply with any such requirement, to go upon their premises and perform such work as may be necessary to comply with such requirement, and to charge the cost thereof against the premises upon which such work is performed.

The costs to the city of any work performed under this section shall constitute a lien upon the premises upon which the work is performed and may be collected in the same manner as taxes upon real property. The term "costs" as used in this section shall include interest at the rate of 8 percent per annum until said lien is paid.
(Acts 1975, ch. 671, § 63)

ARTICLE 4. REGULATION OF BUSINESSES

Sec. 64. (Repealed by S.L. 2001-480, § 1)

Sec. 65. (Repealed by S.L. 2001-480, § 1)

Sec. 66. (Repealed by S.L. 2001-480, § 1)

ARTICLE 5. FRANCHISES

Sec. 67. Franchises.

When in their judgment it is necessary for the safety, welfare, or convenience of the people of the city, the city council shall have power to grant franchises for the use of the public property of the city. No franchise shall be granted for a longer period than 60 years.
(Acts 1975, ch. 671, § 67)

Sec. 68. Right of city to purchase or take over property.

Every grant of a franchise or privilege and every contract therefor, made or granted by the city, may provide that at the expiration of the term of period for which it is made or granted, the city, upon the payment of a fair valuation thereof to be made in the manner provided in the grant or contract, may purchase and take over to itself the plant as well as the property, if any, of the grantee in the streets, avenues and other public places in its entirety, but in no case shall the value of the franchise of the grantee be considered or taken into account in fixing such valuation; or such grant and contract may provide that such plant and property shall at the expiration of such term or period become the property of the city without any compensation to the grantee.
(Acts 1975, ch. 671, § 68)

Sec. 69. Method of granting franchise.

No franchise shall be granted, renewed, extended or amended except by ordinance. No franchise shall be granted, renewed, extended or amended unless the city council shall hold a

public hearing on the proposed ordinance. A notice of the public hearing shall be given once a week for 2 successive calendar weeks in a newspaper having general circulation in the city. The notice shall be published the first time not less than ten nor more than 25 days before the date fixed for the hearing. In computing such period, the day of publication is not to be included, but the day of the hearing shall be included. The notice shall fix the date, hour and place of the hearing, and shall contain a statement of the council's intent to consider the granting, renewing, extending or amending the franchise. The ordinance may be adopted at the meeting at which the public hearing is held or at some subsequent meeting. The ordinance shall be effective upon passage or at such subsequent time as the council may prescribe without the necessity of being adopted at 2 regular meetings of the council. No such ordinance shall be held invalid for failure to observe the procedural requirements for enactment imposed by this section unless the issue is joined in an appropriate proceedings initiated within 90 days after the date of passage of the ordinance.
(Acts 1975, ch. 671, § 69; Laws 1983, Ch. 458, § 2)

Sec. 70. Transfer of franchise.

No franchise shall be transferable except with the approval of the council expressed by ordinance, and copies of all transfers and mortgages or other documents affecting the title or use of any franchisee shall be filed with the city manager within ten days after the execution and delivery thereof.
(Acts 1975, ch. 671, § 70)

Sec. 71. Rights reserved to the city.

All grants, renewals, extensions or amendments of franchises, whether so provided in the ordinance or not, shall be subject to the right of the city:

(1) To repeal the same by ordinance at any time for misuse or nonuse, or for failure to begin construction within the time prescribed or otherwise to comply with the terms prescribed.

(2) To require proper and adequate extension of plant and services and the maintenance of the plant and fixtures at the highest practicable standard of efficiency.

(3) To establish standards of service and quality of products and prevent unjust discrimination in service or rates.

(4) To prescribe the form of accounts and at any time to examine and audit the accounts and other records of any such franchisee; provided that, if forms of accounts shall have been prescribed by the state utilities commission of North Carolina for public utilities throughout the state the forms so prescribed shall be controlling so far as they go. But the council may prescribe more detailed forms for the franchisees within its jurisdiction.

(5) To impose such other regulations as may be conducive to the health, safety, morals, welfare and convenience of the public.

(Acts 1975, ch. 671, § 71)

Sec. 72. Extensions.

All extension[s] of public utilities within the city limits shall become a part of the aggregate property of such public utility, shall be operated as such and shall be subject to all the obligations and reserved rights contained in this charter and in any original grant hereafter made. The right to use and maintain any such extension shall terminate with the original grant.
(Acts 1975, ch. 671, § 72)

Sec. 73. Regulation of franchise services.

Consistent with applicable state laws, the city council shall have the authority to:

(1) Prescribe and regulate the charges for the carriage of persons, baggage and freight by bus, streetcar, automobiles, taxicabs, wagons or other vehicles used in the city for the transportation for hire of persons, or things, and also to prescribe rules and regulations for the operation of all such vehicles.

(2) Establish all necessary rules and regulations for the government and conduct of the business of such persons or corporations as are engaged in supplying electricity or gas for lighting, heating or other purposes, street railway service, telephone service and other public utility service in the city, in order that the health, safety and convenience of the citizens of the city shall be secured.

(Acts 1975, ch. 671, § 73)

ARTICLE 6. EMINENT DOMAIN

Sec. 74. Optional condemnation procedures.

In addition to any other authority for the condemnation of property which is given to the city by general or special law, the city shall be authorized to:

(1) Purchase or acquire by condemnation any land, including the dwelling, yard or garden of any person, as may be necessary for the opening, extension, widening or improvement of the streets or alleys, or for the purpose of acquiring land for parks or public buildings, or for any other public purpose.

(2) Condemn any land that may be required for the purpose of erecting any building or buildings for the city hall, market houses, fire companies, graded or public schools, and for any other public building, whether like those enumerated above or not.

(Acts 1975, ch. 671, § 74)

Sec. 74.1. Acquisition of property by eminent domain.

(a) In order to provide housing for persons of low and moderate income, the city shall have the power of eminent domain to acquire property on which is located a dwelling which the city council or housing appeals board has ordered to be either vacated and closed or removed or demolished.

(b) The city shall not institute an action to acquire property pursuant to this section until at least 30 days after the date of recording, in the office of the register of deeds, of the order by the city council or housing appeals board which ordered that the dwelling be either vacated and closed or removed or demolished.

(c) Before exercising the authority granted to it by this section, the city council shall authorize a program to use condemned property for housing for persons of low and moderate income. The program shall: (i) include or identify sources of financing adequate to demolish or rehabilitate the dwellings acquired pursuant to this section; (ii) designate the geographical areas in which the program will be conducted; and (iii) describe other activities being conducted by or on behalf of the City of Durham within those areas to address housing needs or persons of low and moderate income.

(d) The provisions of G.S. ch. 40A shall apply to the exercise of the power of eminent domain authorized by this section. Vesting of title to the property taken under this section and right to possession thereto shall occur pursuant to the provisions of G.S. 40A-42(b).

(e) The initiation of an action to acquire property by eminent domain shall not prevent the city from exercising the powers granted to it by G.S. 160A-441 et seq., as amended by this Charter and local act, with respect to the property that is the subject of the eminent domain action.

(f) Limitations or prohibitions, in any provision of general law, on the use or disposition of property acquired by eminent domain, including but not limited to G.S. 160A-279 and G.S. 160A-457, shall not apply to property acquired pursuant to this section. Buildings acquired pursuant to this section may be deemed to be "private buildings" for purposes of any program of assistance and financing of rehabilitation and construction undertaken by the city principally for the benefit of low and moderate-income persons.

(g) The authority contained in this section is in addition to and not in limitation of any other authority granted by this Charter or any other law.
(Laws 1993, Ch. 658, § 1)

Sec. 75. (Deleted by authority of G.S. 40A-1)

Sec. 76. (Deleted by authority of G.S. 40A-1)

ARTICLE 7. SPECIAL ASSESSMENTS FOR IMPROVEMENTS

Sec. 77. Assessments for water, sewer, street, sidewalks, grass plot, lighting and waterfront improvements.

(1) It is the purpose of this section to provide a method whereby one or more local improvements of the kind specified in subsection (4) of this section and the assessments therefor may be made on or in one or more streets in a single proceeding by the city.

(2) This section is intended to prescribe the complete procedure for the making of those local improvements referred to in subsection (4) and for assessing and collecting such portion of the cost thereof as is hereinafter provided; but the method hereby provided is not intended to be exclusive, and the city may proceed with respect to such local improvements either as prescribed by this section or as is now or may hereafter be prescribed by the special or general law.

(3) In this section certain words and phrases will be used with the following meaning, unless some other meaning is plainly intended:

(a) A *local improvement* is an improvement defined by this section and made under the provisions hereof.

(b) A *street* is a public way embracing a street, boulevard, avenue, lane, alley, parkway, court and terrace, but not embracing sidewalks.

(c) A *sidewalk* is a path for pedestrians along a street.

(d) A *storm sewer* is a conduit above or below ground for the passage of stormwater, and may embrace a pumping station and outlet where deemed necessary; and may also embrace the building or culverts over or the enclosing of streams where necessary or advisable to carry off stormwater.

(e) A *sanitary sewer* is a conduit for the passage of sewage, and may embrace a pumping station and outlet where deemed necessary.

(f) A *water main* is a pipe for the passage of city water for public hydrants and private and public use and consumption.

(g) A *lateral* is a pipe connecting a storm or sanitary sewer or water main with the line of adjacent property or the curbline, as the city council may prescribe, being either a sewer lateral or a water lateral, but does not include a building connection, that is a pipe extending from a lateral at the property line or a curbline to the house or plumbing fixtures on the property to be served.

(h) The word *sewer* includes both sanitary and storm sewers unless a contrary intention is shown.

(4) Improvements authorized to be made under the provisions of this section are divided into 8 classes, as follows:

(a) *Water main improvements,* which include the laying or construction of water mains, the relaying where necessary of parts of paved streets and sidewalks torn up or damaged incident to the laying or construction of such mains, and in any case where the improvement is made upon petition and the petition so requests or in any case where the improvement is made without petition and the city council so directs, the laying of water laterals.

(b) *Storm sewer improvements,* which include the laying or construction of storm sewers, the relaying where necessary of parts of paved streets and sidewalks torn up or

damaged incident to the laying or construction of such sewers, and in any case where the improvement is made upon petition and the petition so requests, or in any case where the improvement is made without petition and the city council so directs, the laying of storm sewer laterals.

(c) *Sanitary sewer improvements,* which include the laying or construction of sanitary sewers, the relaying, where necessary, of parts of streets and sidewalks torn up or damaged incident to the laying or construction of such sewers, and in any case where the improvement is made upon petition and the petition so requests, or in any case where the improvement is made without petition and the city council so directs, the laying of sanitary sewer laterals, the construction or reconstruction of pumping stations and force mains or the construction or reconstruction of sanitary sewer outfalls.

(d) *Street paving improvements,* which include the grading, regrading, paving, repaving, macadamizing and remacadamizing of streets, with necessary drainage, sewer inlets, manholes and catchbasins and the construction or reconstruction of retaining walls made necessary by any change of grade incident to such improvement, and in any case where the improvement is made upon petition if the petition so requests, or in any case where the improvement is made without petition if the city council so directs, it may include the construction or reconstruction of curbs, gutters and drains.

(e) *Sidewalk improvements,* which include the grading, regrading, construction and reconstruction of paved or otherwise improved sidewalks, the construction or reconstruction of retaining walls made necessary by and incident to such improvement, and in any case where the improvement is made upon petition, if the petition so requests, or in any case where the improvement is made without petition if the city council so directs, it may include the construction or reconstruction of curbs, gutters, and drains.

(f) *Grass plot improvements,* which include the grading and planting of grass plots in a street or along one or both sides of a street.

(g) *Lighting improvements,* which include the construction of street lighting systems, consisting of ornamental lights or of lights of greater strength, or lights placed at more frequent intervals, or both, than is ordinarily provided by the city making the improvement for streets of such character at public expense.

(h) *Waterfront improvements,* which embrace the construction of boardwalks, bulkheads, seawalls and other retaining walls along a bay, river, canal or lake, with necessary fills and dredging, and may embrace the acquisition by purchase, condemnation or otherwise of land, rights and easements therefor.

(i) *Opening, clearing, grading, drainage, and otherwise improving streets, avenues and alleys* dedicated for public use by a recorded map or plat.

(5) The power of the city to make the local improvements embraced in this section shall be exercised only upon petition as set out in subsection (7) of this section, except in those cases covered by subsection (8) of this section, in which cases such power may be exercised without

petition. The provisions of this section shall not be construed to limit authority granted elsewhere in this charter or by general or special law to make special assessments for local improvements without the filing of a petition as provided in this section.

(6) Any petition to the city council for the making of the local improvements authorized by this section may embrace any one or more of the classes of local improvements named in subsection (4), and may embrace improvements to be made on or in more than one street; provided, any improvement to be made on or in more than one street shall be practically uniform in cost and kind throughout the improvement.

(7) The petition for any one or more of such local improvements shall designate by a general description the improvement or improvements proposed, and shall request that the same be made in conformity with the provisions of this section and that such proportion of the cost of each of such improvements as may be specified in the petition be specially assessed against the property abutting on the street or streets or part thereof in which or on which such improvements are proposed to be made. The petition shall be signed by at least a majority in number of the owners, which majority must own at least a majority of all the lineal feet of frontage, of the lands abutting upon the street or streets or part of a street or streets proposed to be improved, excluding street intersections, and for the purpose of the petition, all the owners of undivided interests in any land shall be deemed and treated as one person and such land shall be sufficiently signed for when the petition is signed by the owner or owners of a majority in amount of such undivided interests; provided, that for the purpose of this subsection the word "owners" shall be considered to mean the owners of any life estate, of an estate by entirety, or of the estate of inheritance, and shall not include mortgagees, trustees of a naked trust, trustees under deeds of trust to secure the payment of money, lienholders or persons having the inchoate rights of a surviving spouse. Upon the filing of such petition with the city council, the clerk, or other person designated by the council, shall investigate the sufficiency of the petition, and if it is found to be sufficient, he shall certify the same to the council.

(8) Whenever in the judgment of the city council any street or part of a street is unsafe and dangerous, or whenever the paving or repaving of any street or part thereof is necessary in order to connect streets already paved, or whenever the paving of any street is necessary in order to connect any paved portion of any city streets with a paved highway outside the corporate limits of the city, or whenever the paving of any street or part thereof is necessary to provide a paved approach to any railroad underpass or overpass or other bridge, or whenever any paved street or part thereof has been widened, if in such case, in the opinion of the city council, public interest requires that the improvements be made, and if, in the opinion of the council, the abutting property will be benefitted by the improvement to the extent of the part of the cost thereof to be assessed against such abutting property, the council may without petition of the property owners order the making of such improvement. Whenever any such improvement is ordered made by authority of this subsection, the ordering of the paving of any street or part thereof may include the necessary water main and sewer improvements and the necessary water and sewer laterals, and it may, but need not, include the construction of sidewalks on one or both sides of the street.

(9) Upon the finding by the city council that the petition for a local improvement or improvements is sufficient, or when it is proposed to make without petition any improvement or improvements authorized to be made without petition by subsection (8) of this section, the council shall adopt a resolution which shall contain substantially the following:

(a) That a sufficient petition has been filed for the making of the improvement or improvements; or, if it is proposed to make the improvement or improvements without petition, a statement of the reasons proposed for the making thereof;

(b) A brief description of the proposed improvement or improvements;

(c) The proportion of the cost of the improvement or improvements to be specially assessed and the terms of payment;

(d) A notice of the time and place, when and where a public hearing will be held on the proposed improvement or improvements. (The time fixed for such public hearing shall be such as to allow of notice being given thereof not less than ten days prior thereto.);

(e) A notice that all objections to the legality of the making of the proposed improvement or improvements shall be made in writing, signed in person or by attorney, and filed with the clerk of the city at or before the time of the hearing and that any such objections not so made will be waived.

At least ten days prior to the date fixed for the hearing, the city council shall cause a notice to be published at least one time in a newspaper of general circulation in the city. The notice shall contain the information described in paragraphs (a) through (e) of this subsection (9).

(10) At the time for the public hearing, or at some subsequent time to which such hearing shall be adjourned, the city council shall consider such objections to the legality of the making of the improvement or improvements as have been made in compliance with paragraph (e) of the preceding subsection, together with such objections as may be made to the policy or expediency of the making of the improvement or improvements; and the council shall thereafter determine whether it will order the making of the improvement or improvements. Any objection against the legality of the making of the improvement or improvements not made in writing, signed in person or by attorney, and filed with the clerk of the city at or before the time or adjourned time of such hearing shall be considered as waived; and if any such objection shall be made and shall not be sustained by the council, the adoption of the resolution ordering the making of the improvement or improvements, as provided in the next following subsection, shall be the final adjudication of the issues presented, unless within ten days after the adoption of such resolution proper steps shall be taken in a court of competent jurisdiction to secure relief.

(11) After such public hearing, if the city council determines to make the improvement or improvements proposed, the council shall adopt a resolution which shall contain:

(a) If the improvement or improvements are to be made by virtue of a petition, a finding by the council as to the sufficiency of the petition. (The finding of the council as to the sufficiency of the petition shall be final and conclusive.) If the improvement or

improvements are to be made without petition by virtue of the authority contained in subsection (8) of this section, a finding by the council of such facts as are required by the subsection in order to authorize the council to order the improvement or improvements made without petition;

(b) A general description of the improvement or improvements to be made and the designation of the street or streets or parts thereof where the work is to be done;

(c) If the improvement directed to be made is the paving of a street or part thereof wherein a street railway or railroad company has tracks, a direction that the company pave that part of the street occupied by its tracks, such part to include the space between the tracks, the rails of the tracks, and 18 inches in width outside such tracks, with such material and in such manner as the council may prescribe, and that unless such paving shall be completed on or before a day specified in the resolution, the council will cause the same to be done; provided, however, that where any such company shall occupy such street or streets under a franchise or contract which otherwise provides, such franchise or contract shall not be affected by this section, except in so far as may be consistent with the provisions of such franchise or contract;

(d) If the improvement directed to be made includes the construction of water mains or sewers, and in order to provide such mains or sewers in the street or streets to be improved it is necessary to extend the same beyond the limits of such street or streets, the resolution shall contain a provision for the necessary extension of such mains or sewers and a further provision that the cost of such extension shall eventually be assessed against the lots or parcels of land abutting on the street or streets in which such extensions are made but that such assessment shall not be made until such time as the council shall thereafter determine;

(e) If the improvement directed to be made is the paving of a street or part thereof, or the construction of sidewalks, the resolution may, but need not, contain a direction that the owner of each lot abutting on the part of the street to be improved, connect his lot by means of laterals with water mains, gas or sewer pipes, or any one or more thereof, located in the street adjacent to his premises in accordance with the requirements of the city governing the laying of such laterals, and that unless such owners cause such laterals to be laid on or before a date specified in the resolution, such date to be not less than 30 days after the date of the resolution, the council will cause the same to be laid;

(f) A designation of the proportion of the cost of the improvement or improvements to be assessed against abutting property, and of the number of equal annual installments in which assessments may be paid. The resolution after its passage shall be published at least once in some newspaper published in the city, or, if there be no such newspaper, the resolution shall be posted in 3 public places in the city for at least 5 days;

(g) In lieu of publishing the resolution in the manner prescribed by paragraph (f) of this subsection (11), the city council may publish, or cause to be published, a notice containing the information specified in paragraph (b) and the first sentence of paragraph (f) of this subsection. If the city council, in its discretion, chooses to publish

the notice prescribed by this paragraph in lieu of publishing the resolution prescribed in said subparagraph (f) then such notice shall be published at least once in some newspaper published in the city, or, if there be no such newspaper, the notice shall be posted in 3 public places in the city for at least 5 days. Two or more notices may be consolidated into a single notice.

(12) The city council shall have power to determine the character and type of construction and of material to be used and to determine any other details of plan or construction necessary to be determined in making any of the improvements authorized by this section and to determine whether any work to be done by the city shall be done by contract or by forces of the city. The council shall have power also subject to the provisions of subsection (11), paragraph (e) of this section to determine the number of water, sewer and gas laterals that shall be laid to any lot on any street to be improved. If the work or any part thereof is to be done by contract, the city may let all of the work in one contract, or it may divide the same into several contracts, and may let the contracts separately. In any case where part of a street is required to be paved by a street railway or railroad company as provided in the next preceding subsection, the city may, in the discretion of the council, contract with the street railway or railroad company for the paving, or work incidental thereto, or both, and the cost of the paving or work incidental thereto, or both, as fixed by the contract shall constitute a lien on the franchises and other property of such street railway or railroad company.

(13) Upon the completion of the improvement or improvements to be made by the resolution, the city council shall ascertain the total cost thereof. In addition to other items of cost, there shall be included in such total cost the cost of all necessary legal services, the amount of damages paid or to be paid for injury to property by reason of any change of grade or drainage, including court costs and other expenses incidental to the determination of such damages, and the cost of retaining walls, sidewalks or fences built or altered in lieu of cash payment for such property damage, including the cost of moving or altering any building. In determining the cost of any street lighting improvement, the council shall ascertain the excess of cost of construction of the system of lighting over and above the cost of construction of such system of lighting as the city provides at public expense for streets of the same kind, and such excess shall be considered the cost thereof. In determining the cost of any of the improvements authorized by this section, the council shall include therein the interest paid on the cost of the improvement during the period of construction. The determination of the council as to the total cost of any improvement shall be conclusive.

(14) Having determined such total cost, the City Council shall thereupon make a preliminary assessment as hereinafter set out in this section. Such preliminary assessment shall, however, be advisory only, and shall be subject to the action of the Council thereon as hereinafter set out in subsection 17 of this section. The preliminary assessment shall be made on the basis hereinafter set out in this subsection for the classes of improvements indicated; provided, that if the petition, or the resolution, in those cases where the improvement was ordered made without petition, specified that there should be specially assessed against the benefited property a smaller proportion of the cost of any improvement than is hereinafter

specified in this section, then there shall be assessed against the benefiting property only such proportion of the cost of the improvement as was specified in the petition or in the resolution.

(a) *Street paving.* The total cost of any street paving improvement, exclusive of so much of the cost as is incurred at street intersections and the share of street railways or railroads, shall be specially assessed against the lots and parcels of land abutting directly on the street paved, according to the extent of their respective frontages thereon, by an equal rate per foot of such frontage. The cost of that part of the paving required to be borne by a street railway or railroad, which paving is done by the city after default by the street railway [or railroad] in making the same as hereinbefore provided in this section, or which is done by the city by contract with the railway or railroad as provided in subsection (12) of this section, shall be assessed against the street railway or railroad, and the assessment shall be a lien on all of the franchises and property of the street railway or railroad company, and may be collected by sale of such property and franchises as is provided in subsection (23) of this section; provided, further, that in case of a corner lot, used as a single lot, the council may provide by ordinance for the city to bear a part of the cost of paving in accordance with the following formula, the amounts or distances therein shown being maximum amounts or distances which may be reduced by the ordinance:

(i) In the event that neither of the streets abutting a corner lot, used as a single lot, has ever been paved, such lot shall be exempt from assessment for the paving improvement alongside of such lot to the extent of 20 percent of the first 150 feet thereof or 30 feet, whichever is less. Thereafter, upon the paving of the intersecting street on which such lot abuts, such lot shall be exempt from assessment for the paving of the street to the extent of 50 percent of the frontage on such street or 30 feet, whichever is less.

(ii) In the event that the street alongside of a corner lot, used as a single lot, is paved and the intersecting street is to be paved, such lot shall be exempt from assessment for the paving of the intersecting street to the extent of 50 percent of the frontage thereon or 30 feet, whichever is less.

(iii) In the event a street in front of a corner lot, used as a single lot, has been paved and the street alongside of such lot is to be paved, the lot shall be exempt from assessment for the paving improvement alongside of such lot to the extent of 40 percent of the frontage on such street or 60 feet, whichever is less.

The exemption herein provided shall apply only in areas zoned for residential use or for apartments, and such portion of the cost of construction as would otherwise be assessed against such corner lot shall be borne by the city.

(b) *Sidewalks.* The total cost of constructing or reconstructing sidewalks shall be assessed against the lots and parcels of land abutting on that side of the street upon which the improvement is made, according to their respective frontages thereon by an equal rate per foot of such frontage, the lots within a block being deemed to abut upon a sidewalk although the latter extends beyond the lots to the curbline of an intersecting street;

provided, further, that in case of a corner lot, used as a single lot, the council may provide by ordinance for the city to bear a part of the cost of sidewalk improvements in accordance with the following formula, the amounts or distances therein shown being maximum amounts or distances which may be reduced by the ordinance:

(i) In the event that neither of the streets abutting a corner lot, used as a single lot, has sidewalks, such lot shall be exempt from assessment for the sidewalk improvement alongside of such lot to the extent of 20 percent of the first 150 feet thereof or 30 feet, whichever is less. Thereafter, upon the construction of sidewalks on the intersecting street, on which such lot abuts, such lot shall be exempt from assessment for the sidewalk improvement on the street to the extent of 50 percent of the frontage on such street or 30 feet, whichever is less.

(ii) In the event that the street alongside of a corner lot, used as a single lot, has sidewalks and sidewalks are constructed on the intersecting street, such lot shall be exempt from assessment for the sidewalks on the intersecting street to the extent of 50 percent of the frontage thereon or 30 feet, whichever is less.

(iii) In the event a street in front of a corner lot, used as a single lot, has sidewalks and sidewalks are to be constructed on the intersecting street, the lot shall be exempt from assessment for the sidewalk improvement alongside of such lot to the extent of 40 percent of the frontage thereon or 60 feet, whichever is less.

The exemptions herein provided shall apply only in areas zoned for residential use or for apartments, and such portion of the cost of construction as would otherwise be assessed against such corner lot shall be borne by the City.

(c) *Water mains and sewers.* In the case of water mains and storm and sanitary sewers, the cost of not exceeding an 8 inch water or sanitary sewer main and of not exceeding a 30 inch storm sewer main and of such portion of the mains as lie within the limits of the street or streets, or parts thereof, to be improved as provided in the petition or resolution ordering the same, shall be assessed against the abutting property. Such cost shall be assessed against the lots and parcels of land abutting on the street or streets, or parts thereof according to their respective frontages thereon (i.e., the entire frontage benefited by the water or sanitary sewer project) by an equal rate per foot of such frontage; provided, that in case of a corner lot, used as a single lot, no assessment shall be made against the long side of the lot abutting on the intersecting streets for any part of the frontage of such long[er] side of the lot except that portion in excess of 200 feet if the lot is in a residential section of the city, or in excess of 100 feet if the lot is in a business section of the city, and in such case the portion of the cost as would otherwise be assessed against the lot shall be borne by the city; provided further, that if a water or sanitary sewer main in excess of 8 inches in size or a storm sewer main in excess of 30 inches in size is laid in the portion of the street or streets, then the cost of the water or sanitary sewer main in excess of the cost of an 8 inch main and the cost of the storm sewer main in excess of a 30 inch main shall be borne by the city, provided further, that if the resolution ordered the construction of any septic tank or disposal

plant, no part of the cost of the same shall be specially assessed; provided further, that if the resolution ordered the construction of any pumping station, force main or sanitary sewer outfall, the costs thereof may be assessed against the lots and parcels of land abutting on the street or streets, or parts thereof, according to their respective frontages thereon (i.e., the entire frontage benefitted by such pumping station, force main or sanitary sewer outfall) by an equal rate per front foot of such frontage; provided, however, in the case of a corner lot, used as a single lot, where there is a sewer already laid on the intersecting street on which the lot abuts and by which the lot is or can be served, no assessment shall be made against the lot for the costs of any pumping station, force main or sanitary sewer outfall incident to the second sewer for any part of the frontage of the lot except that portion in excess of 200 feet if the lot is in a residential section, or in excess of 100 feet if the lot is in a business section, and in such case the portion of the cost as would otherwise be assessed against the lot shall be borne by the city. Nothing contained herein shall be construed to limit the right of the city to contract with any property owner or owners for the construction of any pumping station, outfall, septic tank or disposal plant or for the construction of water mains or storm or sanitary sewers and for the assessment of the cost thereof according to the terms of such contract.

(d) *Water and sewer laterals.* The entire cost of each water and sewer lateral required to be laid by the owner of the property for or in connection with which such lateral is laid, but laid by the city after default by the property owner in making the same as hereinbefore provided, shall be specially charged against the particular lot or parcel of land for or in connection with which it was made.

(e) *Water mains and sewers and laterals; flat rate assessment.* In lieu of assessing each water and sanitary sewer improvement project on the basis of the cost of that particular project, the city council shall have authority to establish flat rates per frontage foot for the assessment of property abutting water and sewer improvement projects, based on the average cost of constructing 8 inch water mains and 8 inch sanitary sewer mains in the city, and shall also have authority to establish flat rates for the assessment of property abutting the installation of water and sanitary sewer laterals, based on the average cost of installing such laterals in the city. The Council may then assess property abutting water and sanitary sewer improvement projects on the basis of the flat rates so established, subject to the right of any nonpetitioning property owner to have the assessment against his property adjusted as provided by law upon a showing that his property has not been benefitted to the extent of the assessment.

(f) *Grass plots.* The entire cost of grading or otherwise improving, or of planting, the grass plots in any street or part thereof, shall be assessed against the lots and parcels of land abutting on the street or part thereof wherein or whereon such improvements are made by an equal rate per front foot of such frontage; provided, that this subsection

shall be construed to mean that when a grass plot in any street is graded or planted or otherwise improved, the cost thereof shall be assessed against all of the property abutting on the street within the block where such grass plot is located.

(g) *Lighting improvements.* The cost of any lighting improvement, such cost being determined as provided in subsection (13) of this section, shall be specially assessed against the lots and parcels of land abutting directly on the street or streets, or part thereof, where such improvement is made, according to their respective frontage thereon by an equal rate per foot of such frontage.

(h) *Waterfront improvements.* The cost of any waterfront improvement shall be specially assessed against the lots and parcels of land abutting on the improvement according to their respective frontages thereon by an equal rate per foot of such frontage.

(i) In addition to the bases for making assessments for the cost of improvements specified above in paragraphs (a) through (h) of this subdivision, the city council may alternatively, or in conjunction, make assessments on the following bases:

(1) The area of land served, or subject to being served, by the improvement, at an equal rate per unit of area.

(2) The value added to the land served by the improvement, or subject to being served by it, being the difference between the appraised value of the land without improvements as shown on the tax records of the county, and the appraised value of the land with improvements according to the appraisal standards and rules adopted by the county at its last revaluation, at an equal rate per dollar of value added.

(3) The number of lots served, or subject to being served, where the project involves extension of an existing system to a residential or commercial subdivision, at an equal rate per lot.

(4) A combination of two or more of these alternative bases, which may also be combined with the specific assessment basis listed above in paragraphs (a) through (h) of this subdivision, for each class of improvement. Whenever the basis selected for assessment is either area or value added, the city council may provide for the laying out of benefit zones according to the distance of benefited property from the improvement being undertaken, and may establish differing rates of assessment to apply uniformly throughout each benefit zone. For each improvement, the city council shall endeavor to establish an assessment method from among the bases set out in this section that will most accurately assess each lot or parcel of land according to the benefit conferred upon it by the improvement.

(15) For the purpose of assessment, the city council shall cause to be prepared a preliminary assessment roll, on which shall be entered a brief description of each lot or parcel of land assessed, the amount assessed against each such lot as determined under the provisions of the next preceding subsection, and the name or names of the owner or owners of each such lot, as far as the same can be ascertained; provided, that a general plan map of the

improvement or improvements on which is shown the frontage and location of such lot on the street improved, together with the amount assessed against each such lot and the name or names of the owner or owners thereof, as far as the same can be ascertained, shall be a sufficient assessment roll. If the resolution directed the making of more than one improvement, a single preliminary assessment roll for all of the improvements authorized by such resolution shall be sufficient, but the cost of each improvement to each lot affected shall be shown separately.

The city council may choose not to levy assessments against property owned by the city, in which case, the amount assessable against city property shall be omitted from the preliminary assessment roll and shall not be assessed against the remaining property owners. The city council shall count city-owned property for the purpose of determining the sufficiency of a petition submitted pursuant to subsection (7) of this section notwithstanding the decision of the city council not to levy an assessment against such property.

(16) After such preliminary assessment roll has been completed, the city council shall cause it to be filed in the office of the city clerk for inspection by parties interested, and shall cause to be published one time, in some newspaper published in the city, or if there be no such newspaper the council shall cause to be posted in 3 public places in the city, a notice of the completion of the assessment roll, setting forth a description in general terms of the local improvement or improvements, and stating the time fixed for the meeting of the council for the hearing of objections to the special assessments, such meeting to be not earlier than ten days after the first publication or from the date of posting of such notice. Any number of assessment rolls may be included in one notice. The council shall publish in the notice the amount of each assessment.

(17) At the time appointed for that purpose or at some other time to which it may adjourn, the city council shall hear the objections to the preliminary assessment roll of all persons interested, who may appear and offer proof in relation thereto. Then or thereafter, the council shall either annul or sustain or modify in whole or in part the prima facie assessment as indicated on the roll, either by confirming the prima facie assessment against any or all lots or parcels described therein, or by canceling, increasing or reducing the same according to the special benefits which the council decides each of the lots or parcels has received or will receive on account of such improvement, except that assessments against railroads made because of contract or franchise obligations to pay a portion of cost shall be in accordance with such obligations. If any property which may be chargeable under this section shall have been omitted from the preliminary roll or if the prima facie assessment has not been made against it, the council may place on the roll an apportionment to such property. The council may thereupon confirm the roll, but shall not confirm any assessment in excess of the special benefits to the property assessed and the assessments so confirmed shall be in proportion to the special benefits, except as hereinabove provided in the case of franchise obligations of railroads. Whenever the council shall confirm an assessment for a local improvement, the city clerk shall enter on the minutes and on the assessment roll, the date, hour, and minute of such confirmation, and from the time of such confirmation the assessments embraced in the assessment roll shall be a lien on the property against which the same are assessed of the same

nature and to the same extent as county and city taxes and superior to all other liens and encumbrances. After the assessment roll is confirmed a copy of the same shall be delivered to the collector of revenue of the city.

(18) If the owner of, or any person interested in, any lot or parcel of land against which an assessment is made is dissatisfied with the amount of such assessment, he shall within 15 days after the confirmation of the assessment roll file a written request with the city clerk for reconsideration of said assessment by the city council. If the city council has not previously heard the requesting person on the matter, it shall reconsider the assessment and affirm or modify its action. If it has previously heard the requesting person on the matter, the city council may affirm its previous action without further consideration, or it may, in its discretion, again consider the matter and affirm or modify its previous action. If the requesting person still is dissatisfied with the city council action, he shall within 20 days after such further action serve on the city clerk a written notice that he is taking an appeal to the Superior Court of Durham County and a statement of facts upon which he bases his appeal. The appeal shall be tried in the Superior Court of Durham County as other actions at law. The remedy herein provided for any person dissatisfied with the amount of the assessment against any property of which he is the owner or in which he is interested shall be exclusive.

(19) If it shall be made to appear to the city council after confirmation of any assessment roll that any error has been made therein, then the council shall cause to be published one time in some newspaper published in the city, or if there be no such newspaper the council shall cause to be posted at 3 public places in the city, a notice referring to the assessment roll in which such error was made, naming the owner or owners of the lot or parcel of land with respect to which such error was made, if the same can be ascertained, and naming the time and place fixed for the meeting of the council for the correction of the error, such meeting not to be earlier than ten days from the publication or from the date of the posting of the notice. At the time fixed in the notice or at some subsequent time to which the council may adjourn, the council, after giving the owner or owners of the property affected and other persons interested therein an opportunity to be heard, may proceed to correct the error, and the assessment then made shall have the same force and effect as if it had originally been properly made.

(20) The city council shall have the power, when in its judgment there is any irregularity, omission, error or lack of jurisdiction in any of the proceedings relating thereto, to set aside the whole of the local assessment made by it, and thereupon to make a reassessment. In such case there shall be included, as a part of the cost of the public improvement involved, all interest paid or accrued on notes or certificates of indebtedness, or bonds issued by the city to pay the expenses of such improvement. The proceeding shall, as far as practicable, be in all respects as in the case of original assessments, and the reassessment shall have the same force as if it had originally been properly made.

(21) After the expiration of 20 days from the confirmation of the assessment roll, the collector of revenue, or such other officer of the city as the council may direct so to do, shall cause to be published one time in such newspaper published in the city, or if there be no such newspaper, shall cause to be posted at 3 public places in the city, a notice that any assessment

contained in the assessment roll, naming and describing it, may be paid to him at any time before the expiration of 30 days from the date of publication or posting of the notice, without interest from the date of confirmation of the assessment roll, but that if the assessment is not paid in full within this time, all installments thereof shall bear interest at a rate fixed by the city council of not more than 9 percent per annum from the date of confirmation of the assessment roll.

(22) The property owner or street railway or railroad hereinbefore mentioned in this section shall have an option and privilege of paying for the improvements hereinbefore provided in cash as provided in the preceding subsection or in not less than 12 equal monthly installments nor more than ten equal annual installments as may have been determined by the original resolution ordering the improvement or improvements. Nothing in this subsection shall preclude the payment of assessments in advance of the maturity or installment schedule affixed by the city council. If paid in installments, such installments shall bear interest at a rate fixed by the city council of not more than 9 percent per annum from the date of the confirmation of the assessment roll. If any assessment is not paid in cash, the first installment thereof with interest thereon shall become due and payable 30 days after the publication or posting of the notice required by the preceding subsection and one subsequent installment and interest thereon shall be due and payable on the same day of the same month in each successive year until the assessment is paid in full; provided, however, that if the council shall so direct, such installments shall become due and payable on the same date when property taxes of the city are due and payable. If any installment with interest thereon is not paid when due, it shall be subject to the same penalties as are now prescribed by law for unpaid taxes, in addition to the interest herein provided for. The whole assessment may be paid at any time by the payment of the full amount due with accrued interest.

(22.1) (a) Notwithstanding subsection (22) of this section, the city council may allow payment of assessments over an extended period of time, not to exceed 20 years, and at a reduced interest rate where the property owner demonstrates special financial hardship. In case of an assessment for water or sewer improvements, the special payment provisions shall apply until the earlier of (i) when the owner makes application for connection to receive water or sewer service; or (ii) such time as a fee interest in the property is transferred or conveyed, whether voluntarily or involuntarily, and whether during the lifetime of the owner or by devise or descent. In case of an assessment for street paving, sidewalks, or other improvements, the special payment provisions shall apply until such time as a fee interest in the property is transferred or conveyed, whether voluntarily or involuntarily, and whether during the lifetime of the owner or by devise or descent. At the time of application for connection or the time of transfer or conveyance, as applicable, the unpaid balance of the assessment shall become immediately due and payable in full. For purposes of this subsection, a lease, mortgage, or deed of trust shall not be considered as a transfer or conveyance of a fee interest in the property. In no event may the due date of the unpaid balance of the assessment extend beyond the lifetime of the owner.

(b) As a prerequisite to exercising the authority granted by this subsection, the city council shall define what constitutes a special financial hardship, and may amend this definition from time to time.

(c) The authority granted by this subsection shall be exercised only upon written application of the owner of property subject to the assessment. The application must be filed with the city clerk no later than 15 days after confirmation of the assessment roll. The application shall be on a form approved by the city council. The application shall contain such information and documentation pertaining to special financial hardship, and such other information, as the city council may require.

(d) The city council may delegate authority to the city manager or designee of the city manager to approve or deny any application submitted pursuant to this section. If any such application shall be approved by the city, the city clerk shall mark upon the confirmed assessment roll such words as shall indicate such approval by the city, the special payment provisions and the date and time of the approval.

(23) In case of the failure of any property owner or street railway or railroad company to pay any installment when the same shall become due and payable, then and in that event all of the installments remaining unpaid shall immediately become due and payable, and the property and franchises may be sold by the city under the same rules, regulations, rights of redemption and savings as are now prescribed by law for the sale of land for unpaid taxes. Collection of such assessments with interest and penalties, may also be made by the city by proceeding to foreclose the lien of assessments as a lien for mortgages is or may be foreclosed under the laws of the state, and it shall be lawful to join in any bill for foreclosure any one or more lots or parcels of land, by whomsoever owned, if assessed for an improvement ordered by the same resolution. After default in the payment of any installment, the payment of the installment, together with interest and penalties due thereon, before the lot or parcel of land, against which the same is a lien, is sold or the lien is foreclosed as hereinbefore provided, shall bar the right of the city to sell the land or to foreclose the lien thereon by reason of the default.

(24) If the resolution ordering the making of any improvement or improvements included a provision for any necessary extension of a water or sewer or sewers, as provided in subsection (11), paragraph (d) of this section, at such time after the completion of the extension or extensions as, in the judgment of the city council, circumstances justify the assessment of the cost thereof, the council shall cause a preliminary assessment to be made as provided in subsection (14), paragraph (c) of this section, and the procedure thereafter to be followed with respect to such assessment and the force and effect thereof shall be as already prescribed in this section.

(25) After any lighting improvement is made as provided in this section, the city is hereby authorized, as long as the lighting system shall be maintained, to make an annual assessment against the lands assessed with the original cost of the improvement sufficient to cover the excess of actual cost of maintenance and operation of the lighting system over and above the cost of maintenance and operation of such system of lighting as the city provides at public expense for streets of the same character as that whereon the lighting improvement is made. To that end, the city council shall cause to be prepared a preliminary assessment which shall, as far as practicable, conform to the requirements of subsection (14), paragraph (g) of this section; and the procedure thereafter to be followed with respect to such assessment and the force and effect thereof shall be as already prescribed in this section.

(26) When any special assessment has been made against any property for any improvement authorized by this section, and it is desirable that the assessment be apportioned among subdivisions of the property, the city council shall have authority, upon petition of the owner of the property, to apportion the assessment fairly among the subdivisions. Thereafter, each of the subdivisions shall be relieved of any part of such original assessment except the part thereof apportioned to the subdivision and the part of the original assessment apportioned to any such subdivision shall be of the same force and effect as the original assessment. The provisions of this subsection shall not be construed to limit authority granted elsewhere in this charter or by general or special law to apportion assessments among subdivisions of property without requiring a petition from or the consent of the owners of such property.

(27) No change of ownership of any property or interest therein after the passage of a resolution ordering the making of any improvement authorized by this section shall in any manner affect subsequent proceedings, and such improvement may be completed and assessments made therefor as if there had been no change in such ownership.

(28) No lands in the city shall be exempt from special assessments as provided in this section except lands belonging to the United States; and the city council and the officers, trustees or boards of all incorporated or unincorporated bodies in whom is vested the right to hold and dispose of real property shall have the right by authority duly given to sign the petition for any local improvement authorized by this section; provided, however, that assessments against land owned by the State of North Carolina are controlled by the provisions of G.S. 160A-221; provided further that, except as provided by this section, assessments against railroads are controlled by the provisions of G.S. 160A-222.

(29) All proceedings for special assessment under the provisions of this section shall be regarded as proceedings *in rem,* and no mistake or omission as to the name of any owner or person interested in any lot or parcel of land affected thereby shall be regarded a substantial mistake or omission.
(Acts 1975, ch. 671, § 77; Laws 1977, Ch. 632, § 1; Laws 1981, Ch. 694, § 3; Laws 1983, Ch. 458, § 3; Laws 1985, Ch. 641, § 1; Laws 1987, Ch. 753, § 1; Laws 1991, Ch. 577, §§ 1, 2; Laws 1991, Ch. 992, § 3; Laws 1995, Ch. 755, § 1; S.L. 2012-94, § 1)

Sec. 78. Assessments for local improvements without petition.

(1) Supplemental to and independent of the powers and authority heretofore or hereafter granted the city by the general assembly, the city council is authorized and empowered without the necessity of having filed by the owners of abutting property, to construct and install or contract for the construction and installation of paving, repaving, macadamizing, and remacadamizing of any of the public streets, sidewalks and alleys, and the construction, reconstruction and altering of curbs, gutters and drains in any of the public streets and alleys, and the construction and installation of sanitary sewers, water mains and sanitary sewer and water laterals in any of such public streets and alleys, and specially assess the entire cost of

such construction and installation, except the part thereof as is incurred at street intersections, against the property abutting upon the street or alley or streets or alleys which are so improved.

The city council is further authorized and empowered without the necessity of having a petition filed with it to open, clear, grade, construct drainage and otherwise improve streets, avenues and alleys which have been dedicated to public use by making and recording in the office of the register of deeds a map or plat designating such streets, avenues or alleys thereon, and to specially assess the entire cost of such opening, clearing, grading, construction of drainage and other improvements to such streets, avenues or alleys against the property abutting upon such streets, avenues or alleys so opened and improved.

The city council may specially assess less than the total cost against the abutting property if it should determine by resolution that it would be inequitable to specially assess the entire cost thereof; and in determining whether it would be inequitable, the city council is authorized to take into consideration the location, width, use and general importance of such street or alley as it relates to the public welfare, safety, health, and convenience.

(2) When it is proposed to make without petition any improvement or improvements described in subsection (1) hereof, the city council shall adopt a resolution which shall contain substantially the following:

(a) That this proceeding is taken under and will be governed by the provisions of this charter (stating the number of the chapter and section);

(b) A statement of the reasons proposed for the making thereof;

(c) A brief description of the proposed improvement or improvements;

(d) The proportion of the cost of the improvement or improvements to be specially assessed and the terms of payment;

(e) A notice of the time and place when and where a public hearing will be held on the proposed improvement or improvements. The time fixed for the public hearing shall be such as to allow of notice being given thereof not less than ten days prior thereto;

(f) A notice that all objections to the legality of the making of the proposed improvement or improvements shall be made in writing, signed in person or by attorney, and filed with the city clerk at or before the time of such hearing, and that any such objections not so made will be waived.

At least ten days prior to the date fixed for the hearing, the city council shall cause a notice to be published at least one time in a newspaper of general circulation in the city. The notice shall contain the information described in paragraphs (a) through (f) of this subsection (2). (Laws 1981, Ch. 694, § 4)

(3) In the event the city council elects to proceed under this section to make local improvements and specially assess the cost thereof against abutting property without the filing of a petition therefor, as is authorized by this section, and does adopt the resolution provided for in subsection (2), then and in such event, the procedure applicable to such proceedings from that point to the final completion of the improvement, the final confirmation of the assessment roll, and the remedies available, shall be as particularly set forth and provided in subsections (10) [through (29)] of Section 77 of this Charter.

(4) When electing to make local improvements and specially assess the cost thereof upon abutting property, without petition therefor, as authorized by this section, the city council shall specially state in the resolution adopted as provided in subsection (2) hereof that it is proceeding under and by virtue of the provisions of this section of the city charter.
(Acts 1975, ch. 671, § 78)

Sec. 79. Apportionment of assessments among lots in subdivisions.

(1) In any case where one or more special assessments shall have been made against any property for any local improvement or improvements authorized by general or special law, and the property shall thereafter be subdivided or about to be subdivided and it is, therefore, desirable that the assessment or assessments be apportioned among the subdivision of such property, the city council may, without requiring any petition or consent from the property owners or other persons affected thereby, apportion the assessment or assessments, or the total thereof, fairly among such subdivisions, as same are benefited by the improvement and release such subdivisions, if any, as in the opinion of the city council are not benefited by the improvement. Upon the making of such a reapportionment and reallocation, each of the subdivisions shall be relieved of any part of the original assessment or assessments except the part thereof apportioned to a specific lot, parcel or subdivision, and the part of the original

assessment or assessments apportioned to any such lot, parcel or subdivision shall be of the same force and effect as to such lot, parcel or subdivision to the extent of the amount and interest thereon apportioned to the lot, parcel or subdivision as the original assessment or assessments were prior to the making of such reapportionment. The making of such an apportionment by the city council shall be by resolution, which resolution shall set forth the manner and extent of the reapportionment with sufficient clarity to enable the office of the city collector of revenue to correctly and accurately reflect such reapportionment upon the records of the assessment account or accounts in his office. Such reapportionment or reassessment may include past due installments of principal, interest and penalty, if any, as well as assessments not then due, and the remaining installments shall fall due.

(2) When it is proposed to make a reapportionment of such assessments as authorized by this section, the city council shall adopt a preliminary resolution which shall contain substantially the following:

(a) A brief description or statement of the location of the property affected;

(b) The total principal amount of the assessments involved in the proposed reapportionment, together with a brief statement showing the date of confirmation and the kind and character of the assessments;

(c) A notice of the time and place when and where a public hearing will be held on the question of making a reapportionment or reassessment of the assessments, and the extent thereof. (The time fixed for the public hearing shall be such as to allow of notice being given thereof not less than 2 weeks prior thereto).

The resolution shall be published once a week for 2 successive weeks in some newspaper published in Durham County, the first publication to be at least 2 weeks prior to the public hearing. At the time for the public hearing, or at some subsequent time to which the hearing, shall be adjourned, the city council shall consider all objections which may be made to the making of such reapportionment, and shall thereafter determine whether it will make the reapportionment and the manner and extent to which the reapportionment of assessments will be made. The final decision of the city council shall be in the form of a resolution making the apportionment, which resolution shall set forth all of the facts and pertinent provisions mentioned and required by subsection (1) of this section.
(Acts 1975, ch. 671, § 79)

Sec. 80. Condemnation and assessment authority outside the corporate limits.

Supplemental to and independent of any other power and authority possessed by the city, the city council shall have the right and power to acquire rights-of-way, easements, and other property outside its corporate boundaries in the exercise of the power of eminent domain in the same way and under the same authority and procedures as it has the power to acquire such rights-of-way, easements and property inside the corporate boundaries, provided that nothing herein shall be construed to enlarge the power of the city to condemn property already devoted to public use. The city council shall also have the power and authority, in the extension, installation, construction, operation, and maintenance of its water and sewerage facilities

outside of its corporate boundaries to create water and/or sewer benefit assessment districts and to specially assess the cost of such water or sewer installations or construction against the property in such benefit assessment districts on the basis of the front foot rule, the benefits derived or to be derived by the property in such assessment districts, or some other equitable method promulgated and established by the city council in the exercise of its sound legislative discretion.
(Acts 1975, ch. 671, § 80)

Sec. 81. Additional assessment authority.

In exercising the authority granted under G.S. 160A-311 et seq. to extend and operate public enterprises outside its corporate limits, the city council may specially assess all or part of the costs of constructing, reconstructing, extending, building or improving water supply and distribution systems or sewage collection and disposal systems, or any part thereof, outside the corporate limits of the city against property benefited therefrom. Special assessments levied pursuant to this section shall be levied and collected in the same way and under the same authority and procedures as special assessments levied and collected by the city upon property within the corporate limits. No special assessment shall be levied under the authority of this section until a petition which meets the requirements set forth in Section 77, subsection (7) of this Charter has been submitted to the city by the owners of the property affected; provided, however, no petition is necessary in cases where the city council finds that it is reasonably necessary or expedient to extend such water supply and distribution system, sewage collection and disposal system, or both such systems, to serve, in whole or in part, property in Durham County when the board of commissioners of the County of Durham requests such extension or extensions.
(Acts 1975, ch. 671, § 81; Laws 1995, Ch. 687, § 1)

Sec. 82. Lien affixed for water and sewer service.

(1) In addition to any other powers and authority heretofore granted by general law, local act or this charter, the city council is hereby authorized and empowered to provide water service or sewer service or both such services to property, within or without the corporate limits, abutting existing city water or sewer mains or the right-of-way thereof and affix a lien to the property for the cost of providing this service.

(2) The authority granted by this section shall be exercised only upon petition by the owner or owners of such abutting property. Such petition shall be upon a form approved by the city council and shall contain:

(a) A description of the service or services requested; and

(b) A description of the property to be served; and

(c) The anticipated cost of furnishing such services; and

(d) The term of payment by such property owner for the costs incurred by the city in furnishing such service, including but not limited to, the number of installments in which payment shall be made and the interest rate to be applied to any unpaid balance; and

(e) Such other information as may be required by the city council.

(3) The city council may approve or deny any such petition submitted. If any such petition shall be approved by the city council, the city clerk shall mark upon the face of such petition such words as shall indicate such approval by the city council, and the date and time of the approval.

(4) From and after approval of any petition submitted pursuant to this section, a lien in favor of the city shall exist upon the property described in such petition for the amount stated in such petition as the anticipated cost of furnishing such service. Such lien shall be inferior to all prior and subsequent federal, state and county tax liens of record but superior to all others. This lien may be collected by foreclosure in the same manner as provided by law for the foreclosure of liens for special assessments. Any foreclosure proceeding instituted pursuant to this section shall be deemed a proceeding *in rem* and no mistake or omission as to the name of any owner or person interested in any lot or parcel of land affected thereby shall be regarded a substantial mistake or omission. No change of ownership shall affect any lien created pursuant to this section.

(5) Payment of the anticipated costs of providing service shall be as prescribed by the terms of the petition approved by the city council. If any installment payment due and payable under the terms of the approved petition shall be unpaid for a period of 30 days or more, then all subsequent installment payments shall become due and payable and proceedings as set forth in subsection (4) herein may be instituted.

(6) If the city council shall determine that the actual costs of furnishing the services provided for in any approved petition shall have exceeded the amount originally stated in such petition as the anticipated costs of providing such services, the city council may, by resolution, amend the approved petition to set forth the correct cost. The city council's determination of such actual cost shall be deemed conclusive. Upon amendment as provided by this section, the petition shall be deemed effective as if originally submitted with the amended cost set forth therein. The city council may provide for payment of any such increased amended cost, by increasing the amounts of any unpaid installments due under the original approved petition. A copy of any resolution enacted pursuant to this subsection shall be mailed or personally delivered to the owner or owners of such property at their last known address.

(7) Any petition approved by the city council and any amendment thereof shall be filed in the office of the city clerk. The city clerk shall forward a copy of any such petition or amendment to the collector of revenue. The collector of revenue shall maintain a record of such approved petitions and amendments thereof and such records shall be available to public view during regular business hours.

(8) If the actual cost of providing the services requested in any approved petition shall be less than the costs set forth in such petition as anticipated costs, the city council may order such excess deposited in the water and sewer fund of the city for the use of the city or may order such excess paid to the owner or owners of the property set forth in such petition as their respective interests may appear; provided, however, any anticipated cost set forth in the approved petition which shall have been determined under any schedule of charges approved by the city council shall, for the purpose of this section, be deemed the actual cost of providing such service.

(9) The city council may delegate authority to the city manager or designee of the city manager to approve or deny any petition submitted pursuant to this section, and to take any other actions which the city council is authorized to take pursuant to this section, all without the necessity of further action by the city council.
(Acts 1975, ch. 671, § 82; Laws 1993, Ch. 297, § 1)

Sec. 82.1. Assessment authority for stormwater facilities.

(a) The City Council is authorized to assess the City's costs for projects that construct, reconstruct, or repair stormwater facilities on private or public property when the projects remediate a flooding or other public nuisance or enable compliance with State or federal requirements regarding water quality. The assessments shall be made against properties the project serves or will serve or against the owner of a failing facility or the property on which the facility is located. The authority granted under this section does not allow the City to enter private property except as otherwise authorized by law or agreement. In the event that work is necessary on an existing facility, unless the project is necessary to remediate a current public nuisance, prior to initiating a project, the City shall give advance written notice to the property owner or owners upon which the facility is located and shall afford the owner or owners a reasonable opportunity to cure any deficiency in the facility. The City Council's assessment authority under this section shall be exercised pursuant to one or more ordinances adopted by the City Council which are consistent with the provisions of this section.

(b) The City shall make a professional engineering determination regarding the properties that are or will be served by the project using drainage basins, subdivision plats, site plans, or other professionally recognized indicators. When costs are to be allocated to more than one property, the City shall allocate the costs using any or a combination of the following criteria: (i) the area of individual properties; (ii) tax valuation; (iii) the number of buildable lots or properties; (iv) zoning; (v) one or more professional appraisals; or (vi) impervious area. In addition, the City may take into account contributions and fees a property has already made toward construction or repair of a facility.

(c) The City shall prepare an assessment roll showing the cost allocated to each property which shall be filed and available for public review in the office indicated in notices provided pursuant to this subsection. The City Council shall conduct a public hearing regarding the proposed assessment and assessment roll. At least 21 days prior to the public hearing, individual notice by first-class mail shall be sent to each impacted property owner at the

address shown on the most current county tax records. The notice shall include a description of the project, the assessment roll, and the time and date of the council meeting at which the public hearing is scheduled. Notice shall also be published not less than 10 days before the public hearing on the City's Web site and in a daily newspaper that serves the City. Published notice shall include a description and location of the project, the total costs to be assessed, the geographic area subject to the assessment, the public office in which the assessment roll showing individual properties and assessment amounts can be found, and an Internet link where the specifics of the assessment roll can be located. The person who has mailed notice and ensured compliance with the published and Internet postings shall file with the City Council a certificate of compliance with the requirements of this subsection and, in the absence of fraud, the certificate shall be conclusive.

(d) After the public hearing, the City Council may confirm the assessment as proposed, continue the matter, not approve the proposed assessment, or direct that the assessment process begin anew. All documentation regarding the approved assessment shall be retained in the Office of the City Clerk or the Department of Public Works.

(e) The City Council may set aside or reduce a prior assessment made against a property, with individual notice to the affected property owner, if a clerical or factual error has substantially impacted the result of any assessment by more than five percent (5%). For purposes of this subsection, the term "error" includes, but is not limited to, the use of an incorrect tax value, incorrect calculation of buildable lots or area of property, or mistaken identification of a property or lot. In addition, the City Council may set aside the whole of an assessment if there has been a substantial irregularity in the proceedings or process as required under this section. The assessment process shall be considered an in rem proceeding.

(f) A final assessment approved by the City Council shall be a lien against the property assessed of the same nature and to the same extent as a lien for county and city taxes, according to the priorities set forth in G.S. 160A-233(c).

(g) The provisions of subsections (21), (22), (22.1), (23), (26), (27), and (29) of Section 77 of this Charter shall apply to assessments approved pursuant to the provisions of this section. A request for apportionment of an assessment for property that is subdivided as provided under Section 77(26) of this Charter may be approved administratively by the City Manager and the City Manager's approval, and the resulting assessment amounts for subdivided properties shall be filed with the City Clerk with the originally approved assessment amounts. Notwithstanding the provisions of subsections (21), (22), (22.1), (23), (26), (27), and (29) of Section 77 of this Charter, the City Council may, in its discretion, by ordinance, accelerate payment of assessments due for land that at the time of assessment was undeveloped so that payment is required prior to issuance of a building permit or a certificate of compliance.

(h) The authority provided in this section is in addition to and not in limitation of any other authority granted by this Charter or any other provision of general or local law.
(S.L. 2010-81, § 1)

ARTICLE 8. ACQUISITION AND DISPOSAL OF PROPERTY

Sec. 83. (Repealed by S.L. 2001-480, § 1)

Sec. 84. (Repealed by S.L. 2001-480, § 1)

Sec. 84.1. Minority or women's business enterprise requirements.

(a) The city council may establish, agree to and/or comply with minimum minority and/or women's business enterprise participation requirements in projects financed by public funds, to ensure equal employment opportunities and/or to redress past discrimination, by including such minimum requirements in the specifications for contracts to perform all or part of such projects, and awarding bids pursuant to G.S. 143-129 and G.S. 143-131, if applicable, to the lowest responsible bidder or bidder meeting these and other specifications.

(b) The City Council may delegate to the City Manager or his or her designee the authority to carry out requirements established under subsection (a) of this section in the specifications for contracts to perform all or part of any projects financed by public funds and to award bids to the lowest responsible bidders meeting these and other specifications.
(Laws 1983, Ch. 474, § 1; S.L. 2009-165, § 1)

Sec. 84.2. Contracts for additional facility capacity.

When any person, firm or corporation proposes to construct and dedicate to public use any street, sidewalk, water system, sewage collection and disposal system, or storm sewer and drainage system, or any part of any of the foregoing facilities, the city may contract with, and appropriate money to, any such person, firm or corporation for the purpose of constructing a facility of a greater length, width, capacity or quality than that which is proposed to be constructed. The city may establish policies to provide for the reimbursement of any person, firm or corporation for the construction of such greater length, width, capacity or quality of such facility. The provisions of Article 8 of Chapter 143 of the North Carolina General Statutes (G.S. 143-128 et seq.) shall not apply to a contract or reimbursement made pursuant to this section. The authority granted by this section is in addition to and not in derogation of any other authority granted to the city by this charter or any other law.
(Laws 1985, Ch. 714, § 1)

Sec. 84.3. Acquisition of real property with improvements by seller or lessor.

(a) The city may enter into contracts for the purchase or lease of buildings or other structures in which the seller or lessor shall be responsible for carrying out or providing for: (i) reconstruction, repair, or renovation of the property; (ii) construction of any additions or improvements to the property; and (iii) purchase of apparatus, supplies, materials, or equipment for the property. Such contracts shall include such provisions as the city council deems sufficient to assure that the work is performed and items purchased at a reasonable

price. The provisions of Chapter 143 of the General Statutes and Article 3 of Chapter 44A of the General Statutes (G.S. 143-128 et seq. and G.S. 44A-25 et seq.) shall not apply to such contracts.

(b) The authority granted by this section is in addition to, and not in derogation of, any other authority granted to the city by this charter or any other law.
(Laws 1991, Ch. 107, § 1)

Sec. 84.4. Anti-sweatshop requirements.

(a) The city council may establish, agree to, and comply with anti-sweatshop requirements by including the requirements in the specifications for contracts to purchase or rent apparel or textiles and awarding bids pursuant to G.S. 143-129 and G.S. 143-131, if applicable, to the lowest responsible bidders meeting these and other specifications. Anti-sweatshop requirements may include:

(1) Prohibitions against violations of applicable law or regulation, forced labor, or employment of children; and

(2) The disclosure of:

a. The locations and ownership of the manufacturing company where the apparel or textiles are made, finished, packed, or otherwise processed;

b. Compensation to workers; and

c. Any other information necessary and proper for the enforcement of other anti-sweatshop requirements and not in violation of any other state law.

(a1) The City Council may, on any terms it deems proper, authorize the City Manager or the City Manager's designee to include anti-sweatshop requirements authorized in subsection (a) of this section in the specifications for contracts to purchase or rent apparel or textiles and to award bids to the lowest responsible bidders meeting these and other specifications.

(b) The authority granted by this section is in addition to, and not in derogation of, any other authority granted by this Charter or any other law.
(S.L. 2000-47, § 1; S.L. 2009-252, § 1)

Sec. 84.5. Small business enterprise program.

(a) The City may establish a race and gender neutral small business enterprise program to promote the development of small businesses in the Durham Metropolitan Statistical Area, and to enhance opportunities for small businesses to participate in City contracts. The City may define the term 'small business enterprise' as appropriate and consistent with the City's contracting practices. The City may establish bid and proposal specifications that include subcontracting goals and good faith efforts requirements to enhance participation by small business enterprises in City contracts. Notwithstanding the provisions of G.S. 143-129 and G.S. 143-131, the City may consider a bidder's efforts to comply with small business enterprise

program requirements in its award of City contracts and, if a bidder is determined to have failed to comply with the requirements, the City may, within its discretion, refuse to award a contract to the bidder.

(b) The small business enterprise program authorized by this section is intended to supplement and not replace the requirements of G.S. 143-128.2, 143-131, or 143-135.5. Any goals or efforts established to achieve minority and women business participation consistent with the requirements of G.S. 143-128.2, 143-131, or 143-135.5 shall take precedence over goals for small business enterprise participation established under the program authorized by this section. A small business enterprise program established pursuant to this section shall be deemed consistent with the public policy of the State of North Carolina to promote and utilize small and underutilized business enterprises as set forth in G.S. 143-128.2, 143-128.3, and 143-135.5.
(S.L. 2011-168, § 1)

Sec. 85. Purchase of parts for specialized equipment.

The city may purchase apparatus, supplies, materials or equipment necessary to properly maintain and keep in repair specialized equipment of the city and may make contracts for the repair of such equipment after obtaining informal bids, provided, however, when there is only one known manufacturer or supplier of such equipment or only one known party who can repair such equipment, then a single informal bid from such supplier, manufacturer or party is sufficient. This authority may be exercised without regard to the maximum limits or the requirement for advertising for bids as set forth in G.S. 143-129 and 143-131. It shall be the duty of the purchasing agent or other authorized employee or department to keep a record of all such informal bids submitted, and such record shall be subject to public inspection.
(Acts 1975, ch. 671, § 85; Laws 1981, Ch. 694, § 5)

Sec. 85.1. Utilization of design-build delivery methods.

(a) The City may award contracts for the design and construction of a police headquarters and annex facility, two police service centers, and a 911 facility without being subject to the requirements of G.S. 133-1, 133-2, or 133-3, the provisions of Article 3D of Chapter 143 of the General Statutes, and Article 8 of Chapter 143 of the General Statutes. The authorization granted in this section includes the use of the following methods: design-build; design-build-operate; design-build-operate-maintain; or any combination of design-build, operate, or maintain.

(b) The City shall obtain proposals from at least three design-build teams for the projects authorized under subsection (a) of this section. If three proposals are not received and the project has been publicly advertised for a minimum of 30 days, the City may proceed with the proposals received. In evaluating the proposals received, the City may pay the same fixed stipend to short-listed design-build teams for preparation of additional technical proposals if necessary to advance the contract award process. The evaluation of design-build teams and the

proposals shall not be exempt from the requirements of the City's Equal Business Opportunity Program Ordinance, created pursuant to the authority granted in Section 84.1 of this Charter, to establish minority and women business participation goals.

(c) The City Council shall award the contract to the best qualified design-build team, taking into account the time of completion of the project, the capital and operation and maintenance cost of the project, the technical merits of the proposal, and any other factors and information set forth in the request for proposal that the City determines to have a material bearing on the ability to evaluate any proposal.
(S.L. 2013-386, § 4, 8-23-2013)

Sec. 86. Public or private sale of property.

The city council may, upon the affirmative vote of at least 4 members of the city council, publicly or privately sell, lease, rent, exchange or otherwise convey, or cause to be publicly or privately sold, leased, rented, exchanged or otherwise conveyed, any property, real or personal or any interest in such property, belonging to the city.
(Acts 1975, ch. 671, § 86; Laws 1979, 2nd Session, Ch. 1140, § 1; Laws 1987, Ch. 756, § 3; Ord. No. 12281, § 6, 5-7-2001)

Sec. 86.1. Sale of property subject to restrictions.

(a) The city council may sell, exchange, or otherwise transfer the fee or any lesser interest in real property to any purchaser subject to such covenants, conditions and restrictions as the city council may deem to be in the public interest. Such sale, exchange or other transfer may be made pursuant to either (i) Section 86 of this Charter, (ii) Article 12 of Chapter 160A of the North Carolina General Statutes (G.S. 160A-265 et seq.), (iii) G.S. 160A-514 or (iv) any other applicable provision of law, and the consideration received by the city, if any, for such sale, exchange or transfer may reflect the restricted use of the property resulting from such covenants, conditions and restrictions. The city may invite bids or written proposals (including detailed development plans and site plans) for the purchase of any such property or property interest (whether by sale, exchange or other transfer) pursuant to such specifications as may be approved by the city. A sale, exchange or other transfer of real property (or interest therein) pursuant to this section may be made contingent upon any necessary rezoning of such property.

(b) The authority contained in this section is in addition to and not in limitation of any other authority granted by this charter or any other law.
(Laws 1987, Ch. 232, § 1)

Sec. 86.2. Disposition of property by city manager.

The city council may authorize the city manager to dispose of the following property without the necessity of approval by the city council of each such disposition:

(1) Wrecked or damaged property as part of the settlement of a claim by the city for damage to such property;

(2) Water or sewer easements, or similar interests in real property, as part of an exchange for other water or sewer easements or similar interests in property; and

(3) Water or sewer easements, or similar interests in real property when such easement or similar interests in real property is no longer needed by the city.

The provisions of Article 12 of Chapter 160A of the North Carolina General Statutes (G.S. 160A-265 et seq.) shall not apply to the disposition of property pursuant to this section.
(Laws 1987, Ch. 756, § 4)

Sec. 86.3. City Manager authorized to conclude the sale of real property.

The city council may after authorizing the sale of real property under the provisions of Article 12 of Chapter 160A of the General Statutes delegate to the city manager the power to take any action that the city council is required or allowed to take to conclude the sale and conveyance of the real property, including accepting and confirming bids and offers, requiring deposits, publishing notices and advertisements, receiving reports of bids, and rejecting all bids and offers. The city manager shall within 45 days following the acceptance of a bid or a similar final determination, made within the discretion of the city manager, submit to the city council a written report setting forth a legal and general description of the property, the purchase price, and the names of the persons to whom the property will be or has been conveyed. The city manager's authority under this section is in addition to and not limited by any other authority granted to the city manager under the provisions of this charter or any general, special, or local law.
(S.L. 2008-77, § 1)

ARTICLE 9. PLANNING AND ZONING

Sec. 87. Surveys and studies.

(1) The city council is hereby authorized to appropriate and expend public funds for use in connection with making surveys and studies and for the purpose of defraying other reasonable expenses in cooperating with the County of Durham or any of its agencies in zoning and planning matters outside of but near enough to the corporate boundaries of the city or the city's extraterritorial jurisdiction boundary as to affect the salutary operation and effect of the planning and zoning regulations and uses existing within the city and the growth of the city or as may reasonably be expected or anticipated to affect the same in the future.

(2) The purpose and uses herein mentioned are hereby declared to be public uses and public purposes.
(Acts 1975, ch. 671, § 87)

Sec. 88. Expenditure of bond funds for planning in anticipation of annexation.

On and after the approval by the voters of the city who vote thereon for ordinances authorizing the issuance of bonds for the purpose of raising revenues to defray the costs and expenses of the construction of water and sewer lines, water and sewer treatment disposal

facilities, outfalls, fire stations, and any other capital facilities, and the acquisition of sites, lands and rights-of-way, the city council shall have full power and authority, in its discretion, to expend from such funds amounts which may be necessary to acquire sites and rights-of-way for such facilities outside and beyond the then corporate limits of the city within the area proposed to be annexed, and for engineering and planning, even though an annexation ordinance has not been adopted and the proposed area to be annexed has not actually been annexed. The authority granted by this section is supplementary of authority granted by general law and this charter and not in derogation thereof.
(Acts 1975, ch. 671, § 88)

Sec. 89. Enactment of ordinances prior to effective date of annexation.

The city council and the planning and zoning commission of the city are hereby authorized and empowered, after the passage of an annexation ordinance and prior to the date upon which the territory described therein is actually annexed to the city, to initiate, hold hearings upon, adopt resolutions providing for public hearings, conduct public hearings upon such resolutions, petitions, proposals and ordinances and the council is further empowered to enact zoning ordinances, for the determination of zone boundaries and allocation of the area into zoning, classifications and districts, and the application of zoning regulations and restrictions, to be applicable to the territory described in the annexation ordinances to be annexed. But no such

establishment of zone boundaries or any zoning regulations or restrictions in such annexed territory described in the annexation ordinances shall be effective until the effective date upon which the area is actually annexed to the city as provided in the annexation ordinances, but at that time such zoning regulations and restrictions and boundaries shall simultaneously become effective with such annexation.

This section does not limit the authority of the city to exercise its extraterritorial jurisdiction pursuant to Article 19 of Chapter 160A of the North Carolina General Statutes (G.S. 160A-360 et seq.).
(Acts 1975, ch. 671, § 89; Laws 1981, Ch. 694, § 6)

Sec. 90. Amortization of nonconforming uses.

In exercising the zoning power granted to municipalities by G.S. 160A-381, the city council shall have and is hereby granted power and authority to provide by ordinance for the amortization and phasing out of nonconforming buildings and uses upon such reasonable terms and provisions, including a period of time, as it seems just and proper.
(Acts 1975, ch. 671, § 90)

Sec. 91. Regulation of townhouses.

The city council shall have, and is hereby granted, power and authority to provide and require by ordinance that special types of dwellings such as those known as "townhouses" or of similar category be required to have an organized home ownership or similar association to assist in the orderly regulation and policing of such "townhouses" or similar category, on such reasonable terms and regulations as the council may promulgate.
(Acts 1975, ch. 671, § 91)

Sec. 92. Development plans and site plans.

In exercising the zoning power granted to municipalities by G.S. 160A-381, the city council may require that a development plan showing the proposed development of property be submitted with any request for rezoning of such property. The city council may consider such development plan in its deliberations and may require that any site plan subsequently submitted be in conformity with any such approved development plan. The city council may also consider any limitations an applicant who submits a development plan may propose on the number, range, or type of uses to be made of the property and may limit its consideration of uses to those proposed uses. Such use proposals, where approved, shall be binding as part of the zoning of the property. In considering development plans and developer-proposed use limitations, the city council shall use the legislative public hearing procedures applicable to general use district rezonings. In addition, the council is authorized to require that a site plan be submitted and approved prior to the issuance of any building permit. The council may specify the information to be set forth in a site plan and may require that such site plan be prepared by a professional engineer, architect, or land surveyor licensed to practice in North Carolina. The council may prescribe procedures for the review of such site plans to ensure that development of property shall conform to applicable zoning and building laws and regulations

or any other relevant law or regulation. The council may require that site plans be in conformity with previously approved development plans for the same property. In approving development plans, site plans, and subdivision plats, the city may require that on-site and off-site street and utility rights-of-way be dedicated to the public, that necessary street and utility improvements be constructed, and that provision be made for recreational space and facilities where appropriate.
(Acts 1975, ch. 671, § 92; Laws 1991, Ch. 380, § 1; S.L. 1999-70, § 1)

Sec. 93. Board of adjustment.

(1) The city council is authorized to provide for the appointment and compensation of a board of adjustment consisting of 5 or more members (exclusive of additional members appointed to represent residents of the extraterritorial area pursuant to G.S. 160A-362) each to be appointed for 3 years.

(2) The concurring vote of three-fifths of the members of the board shall be necessary to reverse any order, requirement, decision or determination of any administrative official charged with the enforcement of the city zoning ordinance, or to decide in favor of the applicant any matter upon which it is required to pass under the city zoning ordinance, or to grant a variance from the provisions of such ordinance.
(Acts 1975, ch. 671, § 93; S.L. 1997-166, § 1)

Sec. 94. Notice of public hearings.

(a) Before adopting or amending any ordinances authorized by Article 19 of Chapter 160A of the General Statutes (G.S. 160A-360 et seq.), the city council shall hold a public hearing in accordance with G.S. 160A-364, except that notice of such public hearing shall be published the first time not less than ten days nor more than 25 days before the date fixed for the hearing.

(b) In lieu of complying with G.S. 160A-384, when property annexed by the city is proposed to be zoned to the same zone classification the property held when in the county, the city shall either give individual mailed notice to the property owner under G.S. 160A-384(a) or shall publish notice under G.S. 160A-364.
(Acts 1975, ch. 671, § 94; Laws 1995, Ch. 282, § 1)

Sec. 94.1. Overlay zones.

In exercising the authority conferred upon cities by G.S. 160A-381 and G.S. 160A-382, the city council may adopt ordinances establishing overlay districts, in which additional requirements are imposed on certain properties within one or more general or special use districts. The provisions of G.S. 160A-384 which follow the first sentence of such section (concerning the giving of mailed notice) shall not apply to the ordinances which establish or amend: (i) overlay districts, or the boundaries of such districts; or (ii) the requirements applicable within such overlay districts.
(Laws 1985, Ch. 716, § 1; Laws 1989, Ch. 512, § 1)

Sec. 94.2. Low and moderate income housing; density bonuses.

(a) The city council may provide for the granting of density bonuses in one or more zoning districts in which residential uses are permitted, or provide other incentives of value to a developer of housing within the city and its extraterritorial zoning jurisdiction (if any), if the developer agrees to construct at least 15 percent of the total housing units within the development for persons and families of low and moderate income. The size of the density bonus may vary with the percentage of housing units constructed within the development for persons or families of low and moderate income.

(b) The city council may provide for the enforcement of a developer's commitment to provide low and moderate income housing by ordinance or through the adoption of rules and regulations. Such ordinance or rules and regulations may require the developer to record restrictive covenants applicable to the property, to convey real estate interests in the property, to enter into binding contracts satisfactory to the city or to take any other lawful action prescribed by the city. The city may prescribe the period of time during [which] the developer's commitment shall be binding.

(c) When used in this section, the following words or terms have the meanings indicated:

(1) *Density bonus* means an increase in the number of housing units allowed on the tract of land upon which the development is located, when compared to the maximum number of housing units which would be allowed on the tract of land in the absence of the density bonus.

(2) *Low and moderate income* has the meaning prescribed by regulations of the United States Department of Housing and Urban Development applicable to the City of Durham's metropolitan area. In the absence of such regulations, the term "low and moderate income" shall have the meaning prescribed by the city council by ordinance or resolution. The term "low and moderate income" shall also be construed to mean low or moderate income.

(Laws 1991, Ch. 503, § 1)

Sec. 94.3. Vote required for zoning ordinances; protest petitions.

In case a protest petition is filed against any amendment, supplement, change, modification or repeal of a zoning regulation, restriction or zone boundary, and such protest is determined to be sufficient, under G.S. 160A-385, to require a three-fourths vote of all members of the city council for passage, the number of members of the city council shall be reduced (for purposes of calculating the number of affirmative votes required) by the number of city councilmembers, if any, who have been excused from voting because the councilmember or councilmembers' financial interests are involved.

(Laws 1993, Ch. 81, § 1)

Sec. 94.4. Planning commission rezoning authority.

The city council may, by ordinance, delegate to the Durham Planning Commission, a commission established by the County of Durham and City of Durham pursuant to Article 20

of Chapter 160A of the General Statutes (G.S. 160A-460 et seq.), or to any successor commission, board, or agency created by the city pursuant to G.S. 160A-361, the power and authority to rezone property. Such an ordinance shall provide for rights of appeal to the city council or review by the city council. Appeal may be taken by: (i) the person who petitioned for the rezoning; (ii) any resident of the City of Durham; or (iii) any person who the zoning ordinance required to be provided notice of the rezoning. Any authority so granted to the Durham Planning Commission, or its successor, shall be exercised under such rules and regulations as may be established by the city council.
(Laws 1993, Ch. 264, § 1)

Sec. 94.5. Protest petitions.

The provisions of G.S. 160A-386, as applied to the City of Durham, are modified to require that protest petitions be received by the city clerk in sufficient time to allow the City at least 4 normal work days, excluding Saturdays, Sundays, and legal holidays, before the date established for a public hearing on the proposed charge or amendment to determine the sufficiency and accuracy of the petition.
(S.L. 1997-452, § 8)

Editor's note—S.L. 1997-452 (House Bill 786) amended the Charter by adding provisions designated as section 94.4. In order to avoid conflicts in section numbering the editor has redesignated the provisions of said state law as section 94.5.

Sec. 94.6. Service of process of zoning code violations.

(a) Notice of violation of an ordinance adopted under Parts 1, 2, 3, or 3C of Article 19 of the General Statutes (G.S. 160A-360 et seq., G.S. 160A-371 et seq., G.S. 160A-381 et seq. or G.S. 160A-400.1 et seq.) shall be served upon violators either personally or by registered or certified mail. When service is made by registered or certified mail, a copy of the notice of violation may also be sent by regular mail. Service shall be deemed sufficient if the registered or certified mail is unclaimed or refused, but the regular mail is not returned by the post office within ten days after mailing, provided that a notice of violation is posted in a conspicuous place on the premises affected.

(b) If the identities or the whereabouts of violators are unknown and cannot be ascertained after the exercise of reasonable diligence, or if the violators are known but refuse to accept service by registered or certified mail and an affidavit is made to that effect, then the serving of the notice of violation upon the violators may be made by publication at least once in a newspaper having general circulation in the city. When service is made by publication, a notice of violation shall be posted in a conspicuous place on the premises affected.
(S.L. 1999-55, § 2)

Sec. 94.7. Maintenance of landmarks and historic buildings.

The city may enact ordinances requiring owners of designated landmarks or owners of contributing buildings, structures, or sites within historic districts to maintain their property

in good condition. Any ordinances adopted under this section shall contain appropriate safeguards to protect owners if the required maintenance would cause undue economic hardship.
(S.L. 2001-382, § 1)

ARTICLE 10. SUBDIVISION REGULATIONS

Sec. 95. Opening of new subdivisions.

The city council is authorized to provide that no person, corporation, association or partnership shall open or lay out new streets, or sell lots abutting the same without first making a plat of the proposed street or streets and having the plat approved by the city council. The city council may designate a planning agency created pursuant to G.S. 160A-361 or a subdivision review board created pursuant to section 97 of this charter to approve the plat. The council may regulate and control the opening of streets and alleys within its jurisdiction.
(Acts 1975, ch. 671, § 95; Laws 1981, Ch. 694, § 7)

Sec. 96. Filing of a duplicate map or plat.

Any person, firm or corporation filing or recording with the register of deeds of Durham County, any map or plat of a subdivision of land in the city shall, at the time of the filing or recording of same with the register of deeds of Durham County, furnish the register of deeds with a copy thereof for the use of the city. All such copies of maps or plats of subdivisions which shall be filed with the register of deeds of Durham County shall be certified by the register of deeds, stating the time when recorded and the plat book and page number where such maps or plats were recorded, and shall be delivered by the register of deeds to the city manager.
(Acts 1975, ch. 671, § 96)

Sec. 97. Enactment of subdivision controls.

(1) For the purpose of promoting the health, safety, morals, convenience, economy and general welfare of the city; the well-ordered establishment and growth of a system of public streets, alleys and thoroughfares; the more convenient transportation and access by means of streets, avenues, alleys, and public ways in the city and its environs; the quicker and more effective use of the street system in the fighting of fires and extension of police protection; the prevention of the overcrowding of lands with buildings with resulting increase of density of population within a small area; to require the reasonable separation of buildings from each other for such distances as may be required to lessen the danger of spreading conflagration; to facilitate the proper laying, maintaining and operating of water mains and sewer mains and the installation and maintenance of other public utilities so as to serve the residents and commercial houses and manufacturing plants of the city in a more economical, practical, orderly and efficient manner; and for other general welfare, health and safety purposes, the city council is hereby authorized and fully empowered to regulate the establishment, dedication, location and dimensions of any proposed public street, alley or other public way, and the subdivision, rearrangement or platting of the boundaries of lots or parcels of real

property when any such real property is located in whole or in part upon any existing or proposed public street, alley, avenue, boulevard or other public way within the corporate limits of the city or within the extraterritorial jurisdiction of the city, upon or through or by means of which existing or proposed public streets, alley, avenue, boulevard or other public way the city now provides, or may in the future provide either grading, paving, curbs, gutters, drainage, public sewer or water facilities, street lighting, police and fire protection, or any other municipal service or facility.

(2) The city council is authorized and empowered to adopt ordinances setting up and establishing standards and requirements with which all subdivisions and rearrangements of the boundaries of the land and maps and plats thereof thereafter made shall comply; and adopt ordinances setting up and establishing standards and requirements for the location, dedication and dimensions of all proposed streets, alleys and other public ways, and such other matters as affect or will affect the public convenience, safety and general welfare; and adopt ordinances requiring that streets and public ways shall be graded, curbed, guttered [and] paved; drainage, sidewalks, street lights and signs installed, and water, sewer, and other utility mains and connections be installed, or such of the facilities and the extent and manner of such improvements as may be determined from time to time by the council to be in the public interest, and such ordinances may provide that, in lieu of the completion of such work and installations previous to the final approval of a plat or map, the council may authorize the filing of a bond in an amount and with surety and conditions satisfactory to it providing for and securing to the city the actual construction and installation of such improvements and utilities within a period specified by the council and expressed in such bond or other approved undertaking, which bond or other undertaking may be enforced by the city by all appropriate legal and equitable remedies and proceedings, all as a condition precedent to the approval of maps and plats of such subdivisions within the area referred to in subsection (1) of this section. In adopting ordinances fixing standards and requirements the council is hereby specifically authorized and empowered to include any or all of the following provisions, namely: Adopt a plan of major thoroughfares and collector streets and require that all new streets or enlarged streets shall conform to the same where such plan is applicable, both as to location and width; to provide for the minimum width of alleys, avenues, neighborhood streets, collector streets and major thoroughfares; to require the dedication of alleys and determine minimum width thereof, which requirement may vary as between residential and business property, as between property fronting on major thoroughfares and that not fronting on such thoroughfares, and as between blocks in which the lots are small and blocks in which lots are larger, and in such other cases and circumstances as the council may find to be in promotion of the public safety, convenience and welfare; to require dedication of easements in the rear of lots, or in such other parts of such lots as may be more appropriately applicable in any given case, for the location of poles, wires, conduits, storm or sanitary sewers, gas, telephone and water lines, or other public and quasi-public utilities, due consideration of all factors so as to work the least practical hardship or difficulty upon the lots or the owners thereof to be considered in locating the easements upon the lots; to provide for the minimum and maximum length and width of blocks of land between intersecting streets; to provide that the lot side lines shall be radial to

the street line; to require that the lines and frontages of buildings on corner lots shall be such as to prevent the rear of the building on a corner lot from protruding beyond the building setback line of the building fronting on a street which constitutes a side of such corner lot; to regulate and prescribe the arc and radius and layout of property lines at all intersecting streets, having regard for traffic hazards, congestion and other pertinent factors involved; to regulate and prescribe conditions and safeguards under which dead-end streets and cul-de-sacs may be authorized; to prohibit street offsets at intersections or permit such street offsets under conditions which may be prescribed; to establish building setback lines and when established to require that they be properly shown and designated on the map or plats of such subdivisions of property; to regulate and prescribe conditions under which reserve strips in subdivisions or shown on plats thereof controlling access to public ways may be used or set apart; to provide for the naming of public streets and other public ways; to require that permanent monuments of stone or concrete of dimensions which may be prescribed be set at all block corners and at all corners in the exterior boundary of any subdivision and that the location thereof be clearly set forth and designated on the final approved plat, and to provide that all lot corners be staked by metal stakes or other approved stakes; to require that street lines deflecting from each other within a block be connected by a curve, the radius of which shall be determined after considering the factors of sign distance, the type and importance of street, anticipated traffic volume, and convenience of traffic movement; to require that the arrangement and location of streets and other ways in new subdivisions shall make provision for continuation of the principal existing streets and other ways in adjoining subdivisions, or their proper projection when adjoining property is not subdivided; to require that a preliminary plat shall be furnished the planning division or other department designated by the council for preliminary checking to determine whether the preliminary plat is in compliance with the ordinances and requirements established by the council; to provide that a final plat be prepared and submitted and contain compliance with all of the provisions of the ordinances and be so marked on its face before the same may be filed for record; to provide that no street shall be accepted or maintained by the city, nor shall any public utility such as water, sewer or street lighting be extended to or connected with any subdivision of land, nor shall any permit be issued by any administrative official or department of the city for the construction of any building or improvement requiring a permit, upon any land concerning which a plat may be required by such ordinance until the requirements of such ordinances have been complied with; and to provide such other details as may be found, in the legislative discretion of the council, to have a substantial relation to the public convenience, health, safety or welfare; to require that such plat or map be finally approved as being in compliance with the ordinances adopted by the council before such map or plat of such subdivision shall be entitled to be filed or recorded in the office of the register of deeds of Durham County and to require that all such approved plats and maps of subdivisions of real estate be recorded or filed in the office of the register of deeds of Durham Count [County] in which such lands are situate; to provide that the violation of the provisions of such ordinances shall subject the person violating the same, including the surveyor, to penalties, upon conviction, not exceeding a fine of $50.00. The enumeration of the above mentioned circumstances and things shall not be exclusive.

(3) The city council may provide for the appointment of a board to be known as a development review board consisting of 4 or more members who shall serve without pay as such members, each of whom shall be appointed by the council for a term of years or for a term at the will of the council, as may be determined by the council; in the event the council appoints such board for a term of years, the term of office of each member shall be 3 years. The development review board shall hear and decide appeals from and review any order, requirement, decision or determination made by any administrative official charged with the enforcement of any ordinance adopted pursuant to this section. It shall also hear and decide all matters referred to in or upon which it is required to pass under any such ordinance. The affirmative vote of a majority of members of the board shall be necessary to reverse any order, requirement, decision or determination of any administrative official, or to decide in favor of the applicant any matter upon which it is required to pass under any such ordinance or to effect any variation in any of the provisions of such ordinance. Every decision of such board shall, however, be subject to review by proceedings in the nature of certiorari. Such appeal may be taken by any person aggrieved or by an officer, department, board or bureau of the city. Such appeal shall be taken within such time as shall be prescribed by the development review board by general rule, by filing with the officer from whom the appeal is taken and with the development review board a notice of appeal, specifying the grounds thereof. The officer from whom the appeal is taken shall forthwith transmit to the board all the papers constituting the record upon which the action appealed from was taken. An appeal from the administrative official to the development review board stays all proceedings in furtherance of the action appealed from until the decision of the development review board is rendered, at which time the stay of proceedings shall cease, unless the proceedings shall be further stayed by a restraining order granted by a court of record or by the development review board. The development review board shall fix a reasonable time for the hearing of the appeal from the administrative official and shall give due notice thereof to the parties, and decide the same within a reasonable time. Upon the hearing, any party may appear in person or by agent or by attorney. The development review board may reverse or affirm, wholly or partly, or may modify the order, requirement, decision, action or determination appealed from, and shall make such order, requirement, decision or determination as in its opinion ought to be made in the premises, and to that end shall have all of the powers of the officer from whom the appeal is taken. Where there are practical difficulties or unnecessary hardships in the way of carrying out the strict letter of such ordinances, the development review board shall have the power, in passing upon appeals, to vary or modify any of the regulations or provisions of such ordinances relating to subdivisions, plats, maps and all other requirements of the ordinance, in harmony with the general purpose and intent of this section, so that the spirit of the ordinance may be observed, public safety, convenience and welfare secured and substantial justice done.

(4) In case any person, firm, or corporation shall violate any of the provisions of any ordinance which may be adopted by the city council under the authority of this section, or is about to violate such provision, the city, in addition to other remedies, may institute any appropriate action or proceedings in its name in the superior court to prevent and restrain such unlawful act or violation or the continuance thereof.

(5) This section is enacted in the exercise of the police power of the State of North Carolina, and the power and authority hereby delegated to the city council to adopt ordinances and to require compliance with such ordinances, including the dedication of alleys and easements for utilities as authorized, shall be deemed to be an exercise by the city council of the police powers delegated to it, and shall not be deemed to be an exercise of the power of eminent domain which may be possessed by the city.

(6) It is the legislative intent that if any portion, clause or sentence of this section shall be deemed to be invalid or unconstitutional, such declaration of invalidity shall not affect the remaining portions of this section, which would have been passed notwithstanding the invalidity of such portions which may be declared invalid.
(Acts 1975, ch. 671, § 97; S.L. 1997-452, § 7)

Sec. 98. (Repealed by S.L. 2001-480, § 1)

ARTICLE 11. REGULATION OF BUILDINGS AND HOUSING

Sec. 99. (Repealed by S.L. 2001-480, § 1)

Sec. 100. Action against unsafe buildings.

The powers granted to the city by Part 5 of Article 19, Chapter 160A of the General Statutes (G.S. 160A-411 et seq.), shall extend to buildings which are in such condition as to be a fire or safety hazard, or which are a public nuisance.
(Acts 1975, ch. 671, § 100)

Sec. 100.1. Summary disposition of certain personal property.

The city council may provide for the removal, sale or other disposition of personal property which is found within buildings or dwellings when the building inspector, housing inspector or other public officer proceeds to cause such building or dwelling to be vacated and closed, or demolished pursuant to any ordinances adopted under authority of Part 5 or Part 6 of Article 19, Chapter 160A of the General Statutes (G.S. 160A-411 et seq. or G.S. 160A-441 et seq.) or this Charter. The city council shall cause reasonable notice of the intended removal, sale or other disposition of the personal property to be given to the owner of the building or dwelling or to the owner of the personal property if such owner is known and is someone other than the owner of the building or dwelling, and shall afford such owner or owners a reasonable period of time to remove such personal property. Reasonable notice shall be deemed to have been given if posted in a conspicuous location on the building or dwelling at least 7 days prior to removal of said personal property by the city. The provisions of Section 86 of this charter, which authorize the sale of property at private sale, may, but need not, be followed in the sale of such personal property. The proceeds of such sale shall be applied to the costs of the sale and to the costs of vacating and closing, or demolishing such building or dwelling. Any surplus shall be paid to the general fund of the city.
(Laws 1987, Ch. 756, § 2)

Sec. 101. Board of building appeals.

(1) The city council shall have power to provide for the creation and organization of a board of building appeals to which appeals may be taken from the decision of the building inspector upon any provision of the building code of the city. Such board shall consist of 5 members, each to be appointed for a term of 3 years, except the first members appointed by authority hereof, one of whom shall be appointed for 1 year, 2 for 2 years and 2 for 3 years. Such board shall have power to elect its own officers, to fix the time and places for its meetings, to adopt necessary rules of procedure and to adopt all other rules and regulations not inconsistent herewith which may be necessary for the proper discharge of its duties; and it shall keep an accurate record of its proceedings. An appeal from any decision or order of the building inspector to such board shall be taken within such reasonable time as shall be prescribed by the board by general rule and shall be taken by filing with the building inspector and with the clerk or secretary of the board, or with such other person as may be designated by the board, a notice of appeal which shall specify the grounds upon which the appeal is based. Upon the filing of any such notice of appeal, the building inspector shall forthwith transmit to the board all the papers constituting the record upon which the decision appealed from was made. When any such appeal is from a decision of the building inspector refusing to allow the person aggrieved thereby to do any act, such decision of the building inspector shall remain in force until modified or reversed by the board as hereinafter provided. When any such appeal is from a decision of the building inspector requiring the person aggrieved to do any act, such appeal shall have the effect of suspending the requirements of the building inspector until the hearing thereon by the board unless the building inspector certifies to the board, after the notice of appeal shall have been filed with him, that by reason of the facts stated in the certificate (a copy of which certificate shall be furnished the appellant), a suspension of his requirement would, in his opinion, cause imminent peril to life or property, in which case such requirement shall not be suspended except by a restraining order, which may be granted for due cause shown and upon not less than one day's written notice to the building inspector, by the board or by any judge of the superior court authorized by law to grant restraining orders. The board shall fix a reasonable time for the hearing of all appeals and shall decide the same within a reasonable time. Upon the hearing of any appeal any party may appear in person or by agent or attorney. The board of building appeals may reverse or affirm, wholly or partly, or may modify the decision appealed from, and may make such decision and order as in its opinion ought to be made in the matter, and to that end it shall have all the powers of the building inspector; provided, that the concurring vote of 4 members of the board shall be necessary to reverse or modify any decision of the building inspector. In passing upon appeals, the board shall have power not only to determine whether the decision of the building inspector is made upon a proper construction of the pertinent provisions of the building code, but it shall have power also to allow materials and methods of construction other than those required by the building code to be used when in its opinion such other materials and methods of construction are as good as those required by the code; and for this purpose the requirements of the building code as to such matters shall be considered simply as a standard to which construction shall conform. The board shall have power also in passing upon appeals, in any case where there are practical difficulties or

unnecessary hardships in the way of carrying out the strict letter of the building code, to adopt the application of the code to the necessities of the case to the end that the spirit of the code shall be observed, public safety and welfare secured and substantial justice done. Every decision of the board shall be subject to review by the superior court of Durham County.
(Acts 1975, ch. 671, § 101)

Sec. 102. Housing appeals board.

(a) In exercising the authority to provide for creation and organization of a housing appeals board, conferred upon municipalities by G.S. 160A-446, the city council may, by ordinance, authorize such housing appeals board to adopt ordinances ordering the building inspector or public officer as defined in G.S. 160A-442(7) to proceed to effectuate the purposes of Article 19, Chapter 160A, as provided in G.S. 160A-443(5), with respect to any particular property or properties which the building inspector shall have found to be unfit for human habitation and which property or properties shall be described in such ordinance, without the necessity of further action by the council.

(b) The city council may, by ordinance, also authorize the Housing Appeals Board to hear and decide, without the necessity of further action by the council, any other cases under Part 5 or 6 of Article 19 of Chapter 160A of the General Statutes (G.S. 160A-411 et seq. or G.S. 160A-441 et seq.) of Chapter VI of this Charter, and G.S. 160A-193 which, in the absence of such ordinance, would or may reach the council for action or decision. If a case is heard by the Housing Appeals Board, the same procedures for the hearing of appeals under subsection (a) herein shall apply, and the decision of the board shall be reviewable in the same manner as decisions under subsection (a) herein.
(Acts 1975, ch. 671, § 102; Laws 1987, Ch. 756, § 1; S.L. 2003-51, § 1; S.L. 2004-91, § 1)

Sec. 102.1. Additional building and housing code remedies.

In addition to any other remedy provided by law, the city council may impose fines and penalties and take any other action authorized by G.S. 160A-175 in adopting, amending or enforcing any ordinance authorized by Parts 5 or 6 of Article 19 of Chapter 160A of the General Statutes (G.S. 160A-411 et seq. or G.S. 160A-441 et seq.).
(Laws 1987, Ch. 224, § 1; Laws 1991, Ch. 532, § 1)

Sec. 102.2. Building and housing code errors; notice of lis pendens.

Any ordinance adopted by the city council under Parts 5 or 6 of Article 19 of Chapter 160A of the General Statutes (G.S. 160A-411 et seq. or G.S. 160A-441 et seq.) may provide that any complaint and notice or order issued pursuant to that ordinance may be filed in the notice of lis pendens in the office of the clerk of superior court of the county where the property is located. From the date of recording of such complaint and notice or order, it shall be binding upon the successors and assigns of the owners of the building or dwelling. The ordinance may authorize a public officer to cancel the notice of lis pendens in specified circumstances.
(Laws 1991, Ch. 532, § 3)

Sec. 102.3. Emergency repairs in housing code cases.

(a) The city council may, by ordinance, authorize a housing appeals board created pursuant to G.S. 160A-446 to adopt ordinances ordering the housing inspector to repair a condition or conditions of a dwelling or dwelling unit that pose(s) an immediate threat of danger or harm to the safety of the occupants in such dwelling or dwelling unit. Any ordinance adopted under this section shall provide that at least 72 hours notice will be given to the owner of and parties in interest in such dwelling or dwelling unit prior to the making of any repairs or improvements by the housing inspector.

(b) The amount of the cost of such repairs, alterations, or improvements shall be a lien against the real property upon which such cost was incurred, which lien shall be filed, have the same priority and shall be collected as provided by Article 10 of Chapter 160A of the General Statutes (G.S. 160A-216 et seq.).
(Laws 1993, Ch. 556, § 1)

Sec. 102.4. Service of complaints and orders.

Complaints or orders issued by a public officer pursuant to Part 5 or 6 of Article 19 of Chapter 160A of the General Statutes (G.S. 160A-411 et seq. or G.S. 160A-441 et seq.) shall be served upon persons either personally or by registered or certified mail and, in addition thereto, may be served by regular mail. When service is made by registered or certified mail and, in addition thereto, regular mail and the registered or certified mail is unclaimed but the regular mail is not returned by the post office within ten days after mailing, service shall be deemed sufficient under Part 5 or 6 of Article 19 of Chapter 160A of the General Statutes (G.S. 160A-411 et seq. or G.S. 160A-441 et seq.).
(Laws 1993, Ch. 283, § 1)

Sec. 102.5. Owner of rental property shall authorize agent to accept service of process.

The city council may, by ordinance, require that each owner of rental property within the city authorize a person residing in Durham County or a county bordering Durham County to serve as his or her agent for the purpose of accepting service of process; that the owner provide, on a form supplied by the housing services department, the authorized agent's name, address, and phone number; and the owner shall notify the housing services department of any changes in the information provided not more than ten days after such changes have occurred. Nothing in this section shall require an owner to designate an agent to accept service of process where the owner of the rental property resides within Durham County.
(Laws 1993, Ch. 261, § 1; Laws 1995, Ch. 320)

Sec. 102.6. Emergency repairs to nonresidential buildings.

(a) The city council may, by ordinance, authorize the housing appeals board to adopt ordinances ordering the housing inspector to repair, alter, or improve any building which appears to the inspector to be especially dangerous to public safety or welfare because of, but

not limited to, its liability to fire or because of bad condition of walls, overloaded, floors, defective construction, decay, unsafe wiring or heating system, inadequate means of egress, or other causes. Any ordinance adopted under this section shall provide that the city manager must approve such repairs, alterations, or improvements and that at least 72-hours notice will be given to the owner of and parties in interest in such building prior to the making of any such repairs, alterations, or improvements by the housing inspector.

(b) The amount of the cost of such repairs, alterations, or improvements shall be a lien against the real property upon which such cost was incurred, which lien shall be filed, have the same priority, and shall be collected as provided by Article 10 of Chapter 160A of the General Statutes (G.S. 160A-216 et seq.).

(Laws 1995, Ch. 689, § 1)

Editor's note—Senate Bill 684, Chapter 689, adopted during the 1995 North Carolina General Assembly amended the City Charter by adding provisions designated as section 102.5. In order to prevent conflicts in section numbering, the editor has redesignated the provisions of Chapter 338 of the Laws of 1995 as section 102.6 as herein set out.

ARTICLE 12. RECREATION AND CULTURAL ACTIVITIES

Sec. 103. (Repealed by S.L. 2001-480, § 1)

Sec. 104. (Repealed by S.L. 2001-480, § 1)

Sec. 105. Operation of a theater and moving picture theater.

The city council is authorized to purchase and install such equipment, apparatus, machines, furniture and any and all other fixtures and things found necessary to properly equip, provide, operate and conduct a theater, or moving picture theater or both, in the academy of music; to conduct and operate such a theater, or moving picture theater, or both, in such building; to lease, rent, or otherwise contract for the operation of such a theater or moving picture theater, or both, in such building; to make all such rules and regulations in relation to the operation of such a theater, or moving picture theater, or both, in such building, as may be necessary and proper; to appropriate money or transfer funds from appropriations already made, or use funds not otherwise appropriated, for the purpose of carrying out any or all of the powers hereby conferred.

(Acts 1975, ch. 671, § 105)

Sec. 106. (Repealed by S.L. 2001-480, § 1)

ARTICLE 13. ECONOMIC DEVELOPMENT

Sec. 107. (Repealed by S.L. 2001-480, § 1)

Sec. 108. (Repealed by S.L. 2001-480, § 1)

Sec. 108.1. Urban development projects.

(a) *Definition.* The term "urban development project" means a capital project comprising one or more buildings or other improvements in which part of the project is privately owned and part is publicly owned. By way of illustration but not limitation, such a project might include a publicly owned parking structure, a publicly owned convention center and a privately owned hotel and/or office building.

(b) *Authorization.* The city may acquire, construct, own, and operate or participate in the acquisition, construction, ownership, and operation of an urban development project or of specific facilities within such a project, including the making of loans and grants from any moneys lawfully available therefor.

The city may enter into binding contracts with one or more private developers with respect to acquiring, constructing, owning, or operating such a project. Such a contract may specify the following:

(1) The property interests of both the city and the developer or developers in the project.

(2) The responsibilities of the city and the developer or developers for construction of the project.

(3) The responsibilities of the city and the developer or developers with respect to financing the project.

Such a contract may be entered into before the acquisition of any real property necessary to the project.

(c) *Property acquisition.* An urban development project may be constructed on property acquired by the developer or developers, on property acquired by the city or on property acquired jointly by the city and the developer or developers.

(d) *Property disposition.* The city may lease or convey interests in urban development project property or other property owned by it, including air rights over public facilities.

(e) *Construction of the project.* The contract between the city and the developer or developers may provide that the developer or developers shall be responsible for: (i) construction of the entire urban development project, (ii) reconstruction and/or repair of the urban development project or any part thereof subsequent to construction of said project, (iii) construction of any addition to the urban development project, (iv) renovation of the urban development project or any part thereof, and/or (v) purchase of apparatus, supplies, materials, or equipment for the urban development project (whether during the initial equipping of the said project or subsequent thereto). If so, the contract shall include such provisions as the city council deems sufficient to assure that the public facility or facilities included in the project or added thereto are constructed, reconstructed, repaired and/or renovated, and the apparatus, supplies, materials and equipment included in the project, are purchased at a reasonable price and the provisions of Article 8 of Chapter 143 and Article 3 of Chapter 44A of the General Statutes (G.S. 143-128 et seq. or G.S. 44A-25 et seq.) shall not apply to such urban development project.

(f) *Operation.* The city may contract for the operation of any public facility or facilities included in an urban development project by any person, partnership, firm, or corporation, public or private.

(g) *Financing.* To assist in the financing of its share of an urban development project, the city may apply for, accept and expend funds from the federal or state government or from any other lawful source.

(h) *[Authority.]* The authority granted by this section is in addition to and not in derogation of any other authority granted to the city by law. The city may exercise any authority granted to it by any other section of this Charter or by local act or general law in furtherance of an urban development project. By way of illustration but not limitation, the city may exercise the following authority in furtherance of an urban development project:

(1) The authority granted by Section 86 of this Charter with respect to the public or private sale, lease, rent, exchange or other conveyance of property.

(2) The authority granted by Section 8 of this Charter with respect to contracts with, and appropriation of money to, persons, associations or corporations for the accomplishment of public purposes.

(3) The authority granted by Section 112 of this Charter with respect to the installation and rental of storerooms, restaurants, observation decks, heliports and other facilities in and upon certain specified public facilities.

(Laws 1985, Ch. 727, § 1; Laws 1987, Ch. 789, § 1)

Sec. 108.2. Incubator facilities.

The city council may establish one or more incubator facilities within the city.

The term "incubator facility" has the same meaning as stated in G.S. 143B-471.4. The city council may purchase and/or lease as lessee any real and/or personal property for incubator facility purposes and may lease or sublease any such property or any other real or personal property owned by the city to any corporation that is eligible to manage and maintain incubator facilities under the provisions of G.S. 143B-471.4.

The city council may make grants and/or loans to any such corporation from funds lawfully available for such purpose subject to such rules, regulations, restrictions and conditions as the city council shall deem to be in the public interest.

(Laws 1987, Ch. 732, § 1)

Sec. 108.3. Financing programs in inner city.

(a) *Definitions.* The following definitions apply in this section:

(1) *Inner city.* The central business district, surrounding downtown area of the city, and adjacent or nearby inner city areas, all as may be defined and amended from time to time by the city council of the city.

(2) *Commercial use.* Retail, commercial, industrial, or other nonresidential use. For buildings and improvements in mixed use, any portion of the buildings or improvements not being used for residential purposes is considered to be in commercial use.

(b) *Authorization.* Subject to the limitations provided in this subsection, the city may engage in programs of assistance and financing, including the making of loans, for acquisition, rehabilitation, repair, construction, reconditioning, furnishing, and equipping of real property, buildings, and improvements in commercial use in all or any part of the inner

city and for design, administrative, legal, and other costs and expenses related or incidental to the foregoing. Each program shall include either the making of loans or grants jointly with other public or private parties or the participation in or purchase of loans under terms and conditions prescribed by the city. The city shall not be obligated for more than 50 percent of the total amount of assistance or financing provided under each program. For each loan program, the city shall engage a public or private lender to perform origination and servicing of the loans under terms and conditions prescribed by the city.

(c) *Findings and declaration of policy.* It is hereby determined and declared as a matter of legislative finding and policy that the authority hereby conferred will assist in avoiding the growth of conditions of deterioration and blight in the inner city, have a significant effect on the revitalization and rejuvenation of the inner city, promote economic development of the inner city, create employment opportunities, increase the taxable value of property in the inner city, and enhance the general welfare and public use and enjoyment of the inner city, which are hereby determined and declared to be public purposes for which public money may be spent.
(Laws 1993, Ch. 768, § 2)

ARTICLE 14. MISCELLANEOUS POWERS

Sec. 109. (Repealed by S.L. 2001-480, § 1)

Sec. 109.1. Public transportation authority.

In establishing a Public Transportation Authority pursuant to the North Carolina Public Transportation Authority Act, Article 25 of Chapter 160A of the General Statutes (G.S. 160A-575 et seq.), the city council may:

(1) Except as provided by subdivision (1a) of this section, require that a majority vote of all of the members of the authority shall be required to constitute action of the authority;

(1a) Require a super majority vote of all the members of the authority in order to take certain actions prescribed by the city council, including, but not limited to, hiring and firing personnel and changing bus routes;

(2) Provide that no member of the authority shall be excused from voting except on matters involving consideration of the member's own official conduct, or where the member's financial interests are involved, and that in all other cases, a failure to vote by a member who is physically present at an authority meeting, or who has withdrawn without being excused by a majority vote of the remaining members present, shall be recorded as an affirmative vote; and

(3) Appoint and provide compensation for alternate members to serve on the authority in the absence of any regular member and to prescribe the terms of such alternate

members. Each alternate member, so appointed, while attending any meeting of the authority and serving in the absence of any regular member, shall have and exercise all the powers and duties of a regular member.

(Laws 1991, Ch. 560, § 1; Laws 1995, Ch. 338, § 1)

Sec. 110. (Repealed by S.L. 2001-480, § 1)

Sec. 111. Aid to charitable institutions.

The city council is authorized to appropriate annually reasonable sums in aid of public libraries, public hospitals and other charitable institutions.

(Acts 1975, ch. 671, § 111)

Sec. 112. Certain facilities upon water tanks and off-street parking structures.

The city council is fully authorized and empowered to provide for the construction and installation of storerooms, restaurants, observation decks, heliports and other facilities in its discretion, in and upon off-street parking structures and facilities and in and upon structures and tanks for the storage of water, and it is further authorized and empowered to rent or lease such storerooms, restaurants, observation towers, offices and other facilities which may be constructed and installed upon, over or around such off-street parking structures and facilities and such water towers and tanks, upon such terms and conditions as the city council may from time to time prescribe. The revenue to be derived from such rentals or leases of these facilities shall be used for such public purpose or purposes as the city council may determine.

(Acts 1975, ch. 671, § 112)

Sec. 113. (Repealed by S.L. 2001-480, § 1)

Sec. 114. Community Action and Manpower Development Programs.

In exercising the authority granted the city in G.S. 160A-492 to undertake and support community action and manpower programs, the following definitions of terms shall apply:

(1) *Community action program:* A community based and operated program that includes or is designed to include a range of services and activities having a measurable and potentially major impact on the causes of poverty in the community; such a program includes the planning of responses to causes of poverty, coordinating existing public and private responses, initiating and supporting new projects to combat poverty, and encouraging participation by members of the community in development of programs and projects affecting their interests.

(2) *Manpower development program:* A program of occupational training for the economically disadvantaged, unemployed, and underemployed and may include, by way of illustration but not limitation, efforts to acquaint eligible persons with the availability of training; assessment of individual needs, potentialities and interests; counseling

and provision of training, including on-the-job training; allowances for training and for transportation, subsistence and other expenses while training; supportive services and development of information on the labor market and its activities.

(Acts 1975, ch. 671, § 114)

Sec. 114.1. Drainage.

The city may provide for drainage projects. The city may provide for drainage programs and programs to prevent obstructions to the natural flow of streams, creeks and natural water channels or to improve drainage facilities. The authority contained in this section is in addition to any authority contained in G.S. ch. 156.

(Laws 1985, Ch. 727, § 2)

Sec. 115. Enumeration of powers not exclusive.

The enumeration of particular powers by this charter shall not be held or deemed to be exclusive, but in addition to the powers enumerated or implied herein, the city, either through its city council, or through such other officers as may by law be provided for, shall have and may exercise all other powers which, under the constitution and laws of North Carolina now are, or hereafter may be, granted to cities.

(Acts 1975, ch. 671, § 115)

ARTICLE 15. CAPITAL FACILITIES FEES

Sec. 115.1. Definitions.

The following words in this article shall have the following meanings unless a different meaning clearly appears from the context:

(1) *Capital costs* has the meaning set forth in G.S. 159-48(h). The term "purpose authorized", as used in G.S. 159-48(h), shall, for the purposes of this Article 15, be deemed to refer to the purposes authorized by Section 115.3 hereof. "Capital costs" includes payment of the principal and interest on any debt or other financial obligation incurred by the city with respect to a purpose authorized by Section 115.3 of this article.

(2) *Developer* means any person, firm, corporation or other legal entity, including but not limited to political subdivisions of the State, who or which constructs or creates new construction.

(3) *Facilities fee* means the fee authorized by this article.

(4) *New construction* means any new development, construction, or installation that results in real property improvement or for which a building permit is required. This term shall include the installation of a mobile home and factory built and modular housing. This term shall not include fences, billboards, poles, pipelines, transmission

lines, advertising signs, or similar structures and improvements, or renovations and repairs, which do not generate the need for additional or expanded projects of the kind described in section 115.3 upon completion of the new construction.

(Laws 1987, Ch. 802, § 2)

Sec. 115.2. Fees authorized.

(a) The city council is authorized to establish, impose and collect facilities fees for the purposes authorized in Section 115.3, on all new construction located within the city's corporate limits and/or within the boundaries of any extraterritorial jurisdiction established by the city pursuant to G.S. 160A-360 or any other law. Before establishing or amending any fee authorized by this article, the city council shall hold a public hearing and shall give notice of such public hearing in a manner consistent with Section 94 of this charter.

(b) The city council may adopt such rules and regulations as it deems necessary or convenient to effectuate the purposes of this article, and such rules and regulations shall apply both within the city and its extraterritorial jurisdiction area.

(Laws 1987, Ch. 802, § 2)

Sec. 115.3. Purposes; limitation on use of facilities fees hereunder.

(a) Facilities fees may be imposed for the following purposes:

(1) Providing streets and sidewalks, including without limitation bridges, viaducts, causeways, overpasses, underpasses, and alleys; paving, grading, resurfacing and widening streets; sidewalks, curbs and gutters, culverts and drains; traffic controls, signals, and markers; lighting; and grade crossings and the elimination thereof and grade separations.

(2) Providing parks and recreation facilities, including without limitation land, athletic fields, parks, playgrounds, recreation centers, shelters, stadiums, arenas, permanent and temporary stands, golf courses, swimming pools, wading pools, marinas, lighting, and bikepaths.

(3) Providing drainage projects in accordance with G.S. chs. 156 or 160A or in accordance with this Charter.

(4) Providing or acquiring open space land in accordance with Article 19, Part 4, Chapter 160A of the General Statutes (G.S. 160A-401 et seq.) or of this Charter.

(b) Facilities fees collected for each purpose listed in subsection[s] (a)(1) through (a)(4) above, shall be kept in separate funds in a manner consistent with the Local Government Budget and Fiscal Control Act and the revenues so collected shall be used only for the purpose of paying the capital costs of the facilities described in each said subsection.

(Laws 1987, Ch. 802, § 2)

Sec. 115.4. Setting of fees.

(a) In establishing facilities fees to be imposed pursuant to this article, the city council shall consider the following:

(1) The estimated cost of providing the facilities and land described in Section 115.3(a)(1) through (4) for the area within the city and its extraterritorial jurisdiction during a reasonably foreseeable period of time (not exceeding 20 years), and

(2) The percentage of such costs (determined under [subsection] (1) above) which is estimated to be attributable to the need for such facilities and land caused by the new construction upon which the facilities fees are to be imposed.

(b) The amount of each facilities fee imposed and collected hereunder may be based upon schedules of fees, formulae for determining such fees or any other similar method prescribed by the city council.

(c) In establishing the facilities fees to be imposed under this article, the city council may divide the city and its extraterritorial jurisdiction area into 2 or more zones in order to determine the estimated costs of providing any or all of the facilities and/or land described in Section 115.3 of this charter.

(d) The city council may establish reasonable classifications of facilities fees and such fees shall be uniformly applied within each class, provided, however, said fees may vary between zones established under subsection (c) of this section. Facilities fees collected within any zone created pursuant to subsection (c) of this section, shall be spent for the capital costs of providing facilities or projects authorized under Section 115.3 which serve such zone.
(Laws 1987, Ch. 802, § 2)

Sec. 115.5. Credits for dedicated facilities.

In establishing the facilities fees authorized by this article, the city council may provide for credits against any applicable facilities fee when a developer constructs or otherwise provides any facility and/or land described in Section 115.3(a) of this charter for public use. The city council may prescribe the circumstances under which a developer may provide such facilities and/or land and receive such credit.
(Laws 1987, Ch. 802, § 2)

Sec. 115.6. Payment of facilities fees.

(a) The city council may prescribe when and by whom a facilities fee authorized by this article shall be paid. By way of illustration and not limitation, the city council may require the payment of any applicable facilities fee by a developer as a condition precedent to the issuance of a building permit for the developer's new construction, or any part thereof.

(b) The city council may permit the payment of a facilities fee in a lump sum or in equal monthly or annual installments over a period of time not to exceed ten years. The city council may delegate authority to the city manager, or designee of the city manager, to authorize the

payment of a facilities fee in installments when requested by the person who is responsible for paying the fee. If paid in installments, such installments shall bear interest at a rate fixed by the city council of not more than 9 percent per annum from the date when the city approves payment of the facilities fee in installments. The facilities fee, with accrued interest, may be paid in full at any time.

(c) If a facilities fee is to be paid in installments pursuant to subsection (b) of this section, then from and after the date when the city approves payment of the facilities fee in installments, the fee shall be a lien on the property of the developer or other person against which the fee was imposed. The facilities fee lien shall be of the same nature and to the same extent as the lien for city and county property taxes. The lien shall be inferior to all prior and subsequent liens for state, local, and federal taxes, equal to liens of special assessments, and superior to all other liens and encumbrances.

(d) If any installments on a facilities fee is not paid when due, then all of the installments remaining unpaid shall immediately become due and payable, and the sums due may be collected by the same process and in the same manner as property taxes due upon the property subject to the lien. By way of illustration and not limitation, the property may be sold by the city under the same rules as are prescribed by law for the foreclosure and sale of land for unpaid property taxes. Foreclosure may begun at any time following 30 days after the due date. The city shall not be entitled to a deficiency judgment in an action to foreclose a facilities fee lien.

(e) The city may not maintain an action or proceeding to enforce any remedy for the foreclosure of a facilities fee lien unless the action or proceeding is begun within the period of time prescribed by law for the foreclosure of special assessment liens.

(f) For purposes of this section, a "facilities fee" includes both the fee as defined in Section 115.1(3) of this Charter and the capital facilities fees for water and sewer connections established by the city pursuant to authority conferred by Article 16 of Chapter 160A of the General Statutes (G.S. 160A-311 et seq.).
(Laws 1987, Ch. 802, § 2; Laws 1989, Ch. 476, § 1; Laws 1991, Ch. 992, § 2; S.L. 1997-445, § 1; S.L. 1997-452, § 6)

Sec. 115.7. Construction of facilities outside city limits.

In addition to any other authority conferred upon the city by law, and not in derogation thereof, the city council may provide for the construction of any facility described in Section 115.3 outside of the corporate limits of the city and may appropriate money for such purpose of [or] purposes. The city may acquire any interest in real or personal property for any of the purposes described in said Section 115.3. Such acquisition may be pursuant to this charter and/or the provisions of general law, including but not limited to the provisions of G.S. ch. 40A.
(Laws 1987, Ch. 802, § 2)

Sec. 115.8. Administrative appeal procedures.

The city council may provide a procedure for hearing and deciding appeals concerning the amount of a facilities fee or the amount of any applicable credit. Such procedure, if established, may provide for a final decision to be made either by the city council or by the board of adjustment. Every such decision of the city council or the board of adjustment shall be subject to review by the superior court by proceedings in the nature of certiorari. Any petition for review by the superior court shall be filed with the clerk of superior court within 30 days after the decision of city council or the board of adjustment is delivered to the appealing party. Such delivery may be by personal service or by registered mail or certified mail return receipt requested. No petition for review by the superior court of the amount of facilities fee shall lie to the court unless the appealing party shall first pay the amount of the facilities fee to the city with such amount clearly marked as paid under protest.
(Laws 1987, Ch. 802, § 2)

Sec. 115.9. Limitations on actions.

Any action contesting the validity of any ordinance or resolution adopted, or any action taken, pursuant to this article shall be commenced not later than 9 months after the effective date of such ordinance or resolution or date of such action. Provided, however, if a procedure for hearing and deciding appeals concerning the amount of a facilities fee or the amount of any applicable credit is established pursuant to Section 115.8, then such procedure shall be exclusive and the time limitations prescribed by said Section 115.8 shall apply.
(Laws 1987, Ch. 802, § 2)

CHAPTER VII. MISCELLANEOUS PROVISIONS

Sec. 116. (Repealed by S.L. 1997-65, § 1)

Sec. 117. (Repealed by S.L. 2001-480, § 1)

Sec. 118. Presumption of title in the city.

In the absence of any contracts with the city in relation to the lands used or occupied by it for the purpose of streets, sidewalks, alleys or other public works of the city, signed by the owner thereof or his agent, it shall be presumed that such land has been granted to the city by the owner or owners thereof, and the city shall have good right and title thereto, and shall have, hold, and enjoy the same. Unless the owner or owners of such land, or those claiming under them shall make claim or demand for compensation within 2 years next after such land was taken, he, or they, shall be forever barred from recovering the land, or having any compensation therefor; provided, nothing herein contained shall affect the rights of infants until 2 years after the removal of their disabilities.
(Acts 1975, ch. 671, § 118)

Sec. 119. (Repealed by implication of G.S. 1-539.15, 1-539.16)

Sec. 120. Personnel records.

(a) Notwithstanding any provision of G.S. 160A-168, the city manager may, with the approval of the city council, inform any person or corporation of any promotion, demotion, suspension, reinstatement, transfer, separation, dismissal, employment or nonemployment of any applicant, employee or former employee employed by or assigned to the city or whose personnel file is maintained by the city and the reasons therefor and may allow the personnel file of such person or any portion thereof to be inspected and examined by any person or corporation when the city manager shall determine that the release of such information or the inspection and examination of such file or portion thereof is essential to maintaining the integrity of the city or to maintaining the level or quality of services provided by the city; provided that prior to releasing such information or making such file or portion thereof available as provided herein, the city manager shall prepare a memorandum setting forth the circumstances which he deems to require such disclosure and the information to be disclosed. The memorandum shall be retained in the files of the city and shall be a public record.

(b) Notwithstanding G.S. 160A-168, the city manager or the city manager's designee may, to facilitate citizen review of the police disciplinary process, release the disposition of disciplinary charges against a police officer and the facts relied upon in determining the disposition to (i) members of the citizen review board and (ii) the person alleged to have been aggrieved by the police officer's action or the person's survivor. The disposition of disciplinary charges includes a determination that the charges were sustained, not sustained, unfounded, exonerated, or the result of a policy failure. If the citizen review board hears an appeal of a police disciplinary case, the disposition of disciplinary charges as well as the facts and circumstances of the case may be released by the city manager or the city manager's designee to the citizen review board or to the staff to the board. Citizen review board members and other persons shall keep confidential all information released to them under this subsection that is not a matter of public record under G.S. 160A-168 or subsection (a) of this section, and any person who violates the confidentiality shall be prosecuted as prescribed in G.S. 160A-168(e) and (f).
(Laws 1979, 2nd Session, Ch. 1249, § 2; S.L. 1998-142, § 1)

CHAPTER VIII. FAIR HOUSING

Sec. 121. Equal housing.

(a) The City Council may adopt ordinances prohibiting discrimination on the basis of race, color, sex, religion, national origin, age, familial status, or handicap in real estate transactions. Such ordinances may regulate or prohibit any act, practice, activity or procedure related, directly or indirectly to the sale or rental of public or private housing, which affects or may tend to affect the availability or desirability of housing on an equal basis to all persons; may provide that violations constitute a misdemeanor, and shall be punishable under G.S. 14-4;

may subject the offender to civil penalties; and may provide that the City may enforce the ordinances by application to the General Court of Justice, Superior Court Division, for appropriate legal and equitable remedies, including but not limited to, mandatory and prohibitory injunctions and orders of abatement, attorney's fees and punitive damages, and the court shall have jurisdiction to grant such remedies.

(b) A fair housing enforcement organization, as defined in regulations adopted under 42 USC 3602 (1968), may file a complaint with a committee established or designated by the City Council under Section 123 of this charter on behalf of a person who claims to have been injured by or reasonably believes he or she will be irrevocably injured by an unlawful discriminatory housing practice.

(Laws 1983, Ch. 373, § 1; Laws 1985, Ch. 715, § 1; Laws 1991, Ch. 379, § 1; Laws 1993, Ch. 658, § 1.1; S.L. 2006-131, § 1)

Sec. 122. Exemptions.

Any ordinance enacted pursuant to this chapter may provide for exemption from its coverage:

(1) a. Any single-family house sold or rented by an owner; provided, however, that such private individual owner does not own more than 3 such single-family houses at any one time; provided further, however, that in the case of the sale of any such single-family house by a private individual owner not residing in such house at the time of such sale or who was not the most recent resident of such house prior to such sale, the exemption granted by this subdivision (1) shall apply only with respect to one such sale within any 24 month period; provided further, however, that such bona fide private individual owner does not own any interest in, nor is there owned or reserved on his or her behalf, under any express or voluntary agreement, title to or any right to all or a portion of the proceeds from the sale or rental of, more than 3 such single-family houses at any one time; provided further, however, that the sale or rental of any such single-family house shall be exempted from the application of an ordinance adopted pursuant to this chapter only if such house is sold or rented (i) without the use in any manner of the sales or rental facilities or the sales or rentals services of any real estate broker, agent or salesman, or of such facilities or services of any person in the business of selling or renting housing accommodations, or of any employee or agent of any such broker, agent, salesman, or person and (ii) without the publication, posting, or mailing, after notice, of any advertisement or written notice in violation of the provisions of the ordinance.

b. Nothing in this subdivision (1) shall prohibit the use of attorneys, escrow agents, abstractors, title companies, or other such professional assistance as necessary to perfect or transfer the title.

c. For the purposes of this subdivision (1), a person shall be deemed to be in the business of selling or renting accommodations if:

1. He has, within the preceding 12 months, participated as principal in 3 or more transactions involving the sale or rental of any housing accommodations or interest therein, or

2. He has, within the preceding 12 months, participated as agent other than in the sale of his own personal residence in providing sales or rental facilities or sales or rental services in 2 or more transactions involving the sale or rental of any housing accommodation or interest therein, or

3. He is the owner of any housing accommodation designed or intended for occupancy by, or occupied by, 5 or more families.

(2) Rooms or units in housing accommodations containing living quarters occupied or intended to be occupied by no more than 3 families living independently of each other, if the owner actually maintains and occupies one of such living quarters as his residence;

(3) With respect to discrimination based on sex, to the rental or leasing of housing accommodations in a single-sex dormitory property;

(4) With respect to discrimination based upon religion, to housing accommodations owned and operated for other than a commercial purpose by a religious organization, association, or society, or any nonprofit institution or organization operated, supervised, or controlled by or in conjunction with a religious organization, association, or society, the sale, rental or occupancy of such housing accommodations being limited or preference being given to persons of the same religion, unless membership in such religion is restricted because of race, color, national origin, sex, handicap, familial status, or age;

(5) With respect to discrimination based on age, to any bona fide senior citizen or retirement community, provided, however, that this exemption shall be subject to the following limitations:

a. The covenants, conditions, and restrictions or other documents or written policy pertaining to such community shall not limit occupancy more proscriptively than to require that one person in each resident be a senior citizen and that each other resident, if any, except the spouse or cohabitant of, or a person who resides with and provides primary physical or economic support to, the senior citizen shall be at least 45 years of age;

b. The covenants, conditions, and restrictions or other documents or written policy pertaining to such community shall permit temporary residency by a person less than 45 years of age for specified periods of not more than 60 days in any calendar year;

c. Upon the death or dissolution of marriage, or upon hospitalization, or other prolonged absence of the qualifying resident, any other person who was a qualified permanent resident pursuant to the provisions of this subdivision (5) shall be entitled to continue in residence;

d. The senior citizen or retirement community shall have been developed for, and initially put to use as, housing for senior citizens, or shall have been substantially rehabilitated or renovated for, and immediately afterward put to use as, housing for senior citizens;

e. Any person who has the right to reside in, occupy, or use the housing subject to this section prior to the date of its enactment shall not be deprived of the right to continue that residency, occupancy, or use as the result of the enactment of this section.

(6) Any person subject to this chapter who adopts and carries out a plan to eliminate present effects of past discriminatory practices or to assure equal opportunity in real estate transactions if the plan is part of a conciliation agreement entered into by that person under the provisions of an ordinance adopted pursuant to this chapter.

(Laws 1983, Ch. 373, § 1; Laws 1985, Ch. 715, § 1; Laws 1987, Ch. 754, § 1; Laws 1991, Ch. 379, § 2; S.L. 2001-359, § 1)

Sec. 123. Enforcement.

(a) The city council may create or designate a committee or committees to assume the duty and responsibility of enforcing ordinances adopted pursuant to this chapter. Such committee(s) may be granted the necessary authority by the city council for the proper enforcement of any fair housing ordinance, including, but not limited to, the power to:

(1) Promulgate rules for the receipt, initiation, investigation and conciliation of complaints of violations of the ordinance;

(2) Require answers to interrogatories, the production of documents and things, and the entry upon land and premises in the possession of a party to a complaint alleging a violation of the ordinance; compel the attendance of witnesses at hearings; administer oaths; and examine witnesses under oath or affirmation;

(3) Apply to the Superior Court Division of the General Court of Justice, upon the failure of any person to respond to or comply with a lawful interrogatory, request for production of documents and things, request to enter upon land and premises, or subpoena, for an order requiring such person to respond or comply;

(4) Upon finding reasonable cause to believe that a violation of the ordinance has occurred, to petition the General Court of Justice, Superior Court Division, for appropriate civil relief on behalf of the aggrieved person or persons;

(5) Sit as arbitrators in binding arbitration pursuant to the Uniform Arbitration Act, embodied in Article 45A of Chapter 1 of the North Carolina General Statutes (G.S. 1-567.1 et seq.); provided, that the time within which a part may apply to the General Court of Justice to vacate, modify or correct an award may be limited to 60 days.

(b) Judicial review of committee orders. Judicial review of committee orders other than arbitration awards shall be in accordance with Article 4 of Chapter 150B of the General Statutes (G.S. 150B-43 et seq.) provided, however, that the provisions of G.S. 150B-45 notwithstanding, petitions for judicial review shall be filed in the Superior Court of Durham County; provided, further, the provisions of G.S 150B-51(b) notwithstanding, the trial court judge may grant to the petitioner, or to any other party, such temporary relief, restraining order, or other order as the court determines is just and proper and the trial court judge may

affirm, modify, or set aside, in whole or in part, the committee's order, or remand the order for further proceedings and enforce the order to the extent that the order is affirmed or modified. The term "agency," whenever used in Article 4 of the Chapter 150B of the North Carolina General Statutes (G.S. 150B-43 et seq.), shall mean the committee(s) as authorized or created by the city council of the City of Durham under the authority of this act.

(c) Enforcement of committee orders:

(1) Decisions of a committee sitting as arbitrators shall be enforced as provided in Article 45A of Chapter 1 of the General Statutes (G.S. 1-567.1 et seq.). Otherwise, if, within 60 days after entry of an order of the committee, a respondent has neither complied with nor sought review of such order, any aggrieved person or the committee may apply to the Superior Court of Durham County for an order of the court enforcing the order of the committee.

(2) Within 30 days after the court's receipt of the petition for enforcement of the agency's order, or within such additional time as the court may allow, the committee shall transmit to the court the original or a certified copy of the entire record of the proceedings leading to the order. With the permission of the court, the record may be shortened and testimony submitted by tape recording, by stipulation of all parties. Any party unreasonably refusing to stipulate to limit the record may be taxed by the court for such additional cost as may be occasioned by the refusal. The court may require or permit subsequent corrections or additions to the record when deemed desirable.

(3) The hearing on the petition for enforcement of the committee's order shall be conducted by the court without a jury. The court shall hear oral arguments and receive written briefs, but shall take no evidence not offered at the committee's hearing; except that in cases of alleged irregularities in proceedings before the committee not shown in the record, testimony thereon may be taken by the court; and except that where no record was made of the proceedings or the record is inadequate, the judge in his discretion, may hear all or part of the matter *de novo;* provided, that if the order imposed includes punitive damages, then as to that portion of the order, the respondent shall have a right to a trial *de novo* on that issue.

(4) The court shall issue the order requiring compliance with the committee's order, unless it finds that enforcement of the committee's order would prejudice substantial rights of the party against whom the order is sought to be enforced, because the committee's findings, inferences, conclusions or decisions are:

a. In violation of constitutional provisions; or

b. In excess of the statutory authority of jurisdiction of the committee; or

c. Made upon unlawful procedure; or

d. Affected by other error of law; or

e. Unsupported by substantial evidence in view of the entire record as submitted; or

f. Arbitrary or capricious.

(5) If the court declines to enforce the committee's order for one of the reasons specified in paragraph (4) of this section, it shall either:

a. Dismiss the petition; or

b. Modify the committee's order and enforce it as modified; or

c. Remand the case to the committee for further proceedings.

(6) Any party to the hearing on the petition for enforcement of the committee's order may appeal the court's decision to the appellate division under the rules of procedure applicable to other civil cases.

(Laws 1983, Ch. 373, § 1; Laws 1993, Ch. 658, § 1.2)

Sec. 124. [Further recourse of complainant.]

(a) *Civil action for unlawful housing practice.* An ordinance adopted pursuant to this act may permit any complainant to bring a civil action in the Superior Court Division of the General Court of Justice of Durham County against the person allegedly engaging in the unlawful practice. Such civil action for a housing practice shall be brought no later than one year after an alleged discriminatory housing practice has occurred or terminated.

(b) *Injunctions; equitable relief.* If the court finds that the respondent has engaged in or is engaging in an unlawful housing practice charged in the complaint, the court may enjoin the respondent from engaging in such unlawful housing practice, award special damages, actual damages, and punitive damages.

(Laws 1983, Ch. 373, § 1; Laws 1993, Ch. 658, § 1.3)

Sec. 125. [Award of attorney's fees.]

An ordinance adopted pursuant to this act may provide for an award of attorney's fees to the prevailing party in any action or proceedings under such ordinance, other than the committee, in the discretion of the committee or court.

(Laws 1983, Ch. 373, § 1)

Sec. 126. Complainants and other records.

The city council may provide that neither complaints filed with any committee pursuant to the ordinance nor the discovery, or attempts at conciliation, in whatever form prepared and preserved, shall be subject to inspection, examination, or copying under the provisions of what is now G.S. ch. 132.

(Laws 1983, Ch. 373, § 1)

Sec. 127. Committee meetings.

The provisions relating to meetings of governmental bodies, as set forth in Article 33C of Chapter 143 of the General Statutes (G.S. 143-318.9 et seq.), shall apply to the activities of any

committee authorized to enforce the ordinance. Provided, however, that the city council may provide that said statutory provisions shall not apply to the activity of a committee to the extent that the committee is:

(1) Receiving a complaint; or

(2) Conducting an investigation, discovery or conciliation pertaining to a complaint filed pursuant to the ordinance.

(Laws 1983, Ch. 373, § 1)

CHARTER COMPARATIVE TABLE

ACTS

This table shows the location, within the Charter and amendments thereto, of provisions derived from legislative measures designated as Acts.

Year	Chapter	Section	Section this Charter
1975	671	1—12	1—12
		14—22	14—22
		25—27	25—27
		30—32	30—32
		43—45	43—45
		49	49
		51, 52	51, 52
		54—57	54—57
		60	60
		63	63
		67—74	67—74
		77—82	77—82
		85—97	85—97
		100—102	100—102
		105	105
		111, 112	111, 112
		114, 115	114, 115
		118	118

CHARTER COMPARATIVE TABLE

LAWS

This table shows the location, within the Charter and amendments thereto, of provisions derived from legislative measures designated as Laws.

Year	Chapter	Section	Section this Charter
1977	255	1	20
	632	1	77
1979	852	1	13
		2	13.2, 13.3
		3	11
1979(2nd Sess.)	1140	1	86
	1249	1	17
		2	120
1981	694	1	17
		2	51
		3, 4	77, 78
		5	85
		6	89
		7	95
1983	369	1	4
	370	1	8
	373	1	121—127
	458	1	17
		2	69
		3	77
	474	1	84.1
1985	169	1	8
	332	1	51
	624	1	51.2
	641	1	77
	714	1	84.2
	715	1	121, 122
	716	1	94.1
	727	1	108.1
		2	114.1
		3	59.1
	744	1	2.1
1987	224	1	102.1
	232	1	86.1
	280	1—4	15
	606	1	2.2
	732	1	108.2
	753	1	77
	754	1	122

Year	Chapter	Section	Section this Charter
	755	1(1), (2)	55
	756	1	102
		2	100
		3	86
		4	86.2
	789	1	108.1
	802	2	115.1—115.9
1989	476	1	115.6
	512	1	94.1
1991	107	1	84.3
	379	1, 2	121, 122
	380	1	92
	503	1	94.2
	532	1	102.1
		2	17
		3	102.2
	560	1	109.1
	577	s; 1, 2	77
	617	1	17
	992	2	115.6
		3	77
1993	81	1	94.3
	121	1	17
	261	1	102.5
	264	1	94.4
	279	1	11
	283	1	102.4
	297	1	82
	342	1	2.3, 2.4
	556	1	102.3
	658	1	74.1
		1.1	121
		1.2, 1.3	123, 124
	768	1	34
		2	108.3
1995	282	1	94
	320	320	102.5
	338	1	109.1
	642	1	11
	687	1	81
	689	1	102.6
	755	1	77

CHARTER COMPARATIVE TABLE

SESSION LAWS

This table shows the location, within the Charter and amendments thereto, of provisions derived from legislative measures designated as Session Laws.

Session Laws Year	Section	Section this Charter
1997-65	1	116
1997-166	1	93
1997-445	1	115.6
1997-452	6	115.6
	7	97
	8	94.5
1998-50	1, 2	38
1998-52	1	35
	34(added)	35
1998-142	1	120
1999-36		17
1999-45	1	60
1999-55	2	94.6
1999-70	1	92
1999-256	1	47
2000-47	1	84.4
2001-359	1	122
2001-382	1	94.7
2001-480	1	13.1
		23, 24
		28, 29
		33
		41, 42
		46
		48
		50
		53
		58, 59
		61, 62
		64—66
		83, 84
		98, 99
		103, 104
		106—110
		113
		117
	2	7
	3	8
	4	30

Session Laws Year	Section		Section this Charter
	5		38
2003-26	1		2.5A
2003-51	1		102
2003-85	1		54.1
2004-91	1		102
2006-131	1		121
2007-269	1.1	Added	2.7
2008-66	1		4
2008-77	1	Added	86.3
2009-41	1		17(b)
		Rpld	17(e)
		Added	17(f), (g)
2009-165	1	Added	84.1(b)
2009-166	2(a)	Rpld	Ch. V, Art. 3
		Added	Ch. V, Art. 3A, § 46.1
2009-252	1	Added	84.4(a1)
2010-81	1	Added	82.1
2011-168	1	Added	84.5
2012-94	1		77(14)
2013-386	3		2.3(a)
	4	Added	85.1
2015-82	1	Added	2.8

CHARTER COMPARATIVE TABLE

ORDINANCES

This table shows the location, within the Charter and amendments thereto, of provisions derived from legislative measures designated from ordinances.

Ordinance Number	Date	Section	Section this Charter
12281	5- 7-2001	1	2.3
		2, 3	4, 5
		4	11
		5	15
		6	86

PART II

CODE OF ORDINANCES

Chapter 1

GENERAL PROVISIONS

Sec. 1-1. How Code designated and cited.
Sec. 1-2. Definitions and rules of construction.
Sec. 1-3. Supplementation of Code; ordinances of limited interest or transitory nature; setting fees.
Sec. 1-4. Captions; history notes and references.
Sec. 1-5. Altering Code.
Sec. 1-6. Effect of repeal or expiration of ordinance or resolution.
Sec. 1-7. Surety bonds.
Sec. 1-8. Severability of parts of ordinances.
Sec. 1-9. General penalties; misdemeanor penalty; civil penalties for parking violations; vehicle operation violations; continuing violations; alternative remedies.
Sec. 1-10. Designation of powers and duties.
Sec. 1-11. Powers of city manager regarding hearings, applications, permits, and licenses.
Sec. 1-12. Geographical applicability.
Sec. 1-13. Time of effectiveness of acts of council.
Sec. 1-14. References to previous codes.
Sec. 1-15. Method of showing changes to ordinances by underlining and strike-throughs.
Sec. 1-16. Reference guide for development.

Sec. 1-1. How Code designated and cited.

The provisions of this and the following chapters shall constitute and be designated the "Code of Ordinances, City of Durham, North Carolina," which may also be cited as the "Durham City Code," "City Code," "Code of the City of Durham," or phrase of like nature. (Code 1982, § 1-1)

State law references—Codification required, G.S. 160A-77; admission into evidence of Code, G.S. 160A-79.

Sec. 1-2. Definitions and rules of construction.

In the construction of this Code and of all ordinances and resolutions, the following definitions and rules of construction shall be observed, unless inconsistent with the manifest intent of the council or the context clearly requires otherwise. This section is subject to section 1-10.

Charter. The term "Charter" means the Charter of the City of Durham, North Carolina.

City, municipality. The terms "city" and "municipality" mean the City of Durham, in the State of North Carolina. Where the context admits, it shall mean the city manager.

Code. The terms "the Code" and "this Code" mean the Code of Ordinances, City of Durham, North Carolina, as designated in section 1-1.

Computation of time. The time within which an act is to be done shall be computed by excluding the day of the act, event, default or publication after which the designated period of time begins to run and including the last day; unless the last day is a Saturday, Sunday or legal holiday, in which event the period runs until the end of the next day which is not a Saturday, Sunday or legal holiday. When the period of time prescribed or allowed is less than seven days, intermediate Saturdays, Sundays and legal holidays shall be excluded in the computation. A half holiday shall be considered as other days and not as a legal holiday.

Conjunctions. Conjunctions, such as "and" and "or," shall each be deemed to include the other as the context shall admit.

Council, governing body. The terms "council," "city council," and "governing body" mean the city council of the City of Durham.

County. The term "county" means the County of Durham, in the State of North Carolina. Where the pertinent location is not in the County of Durham, the applicable county is intended.

Day, business day, working day. The term "day" means a calendar day. The terms "business day" and "working day" are equivalent to each other and exclude weekends and legal holidays. This definition is subject to the definition of "computation of time" above.

Examples. The principle that the expression of one thing is the exclusion of another will not alone generally be sufficient to override the presumption that the provisions of this chapter are to be used to construe all ordinances. For instance, if an ordinance twice uses the word

"includes," and at one of those occasions it modifies that use with the phrase "but is not limited to," the presumption will still stand that the definition of "include" in this section 1-2 applies to the other use of "includes" in that ordinance.

G.S., General Statutes. The abbreviation "G.S." and the expression "General Statutes," mean the General Statutes of North Carolina.

Gender. Words importing one gender include the other genders.

Governmental person. The term "governmental person" means government and an agency, subdivision, or unit of government, such as a city, town, county, board of education, sanitary district, airport authority, state, and the federal government. Depending on the context, the term may include the City of Durham.

Holiday. A "holiday" is a day observed by city government as a holiday or legal holiday as provided in section 42-16(a), (b).

Include. The term "include" and its various forms are used without limitation.

Joint authority. All words giving a joint authority to three or more persons or officers shall be construed as giving such authority to a majority of such persons or officers.

Law, statute, rule, regulation, code.

(a) Where an ordinance or resolution incorporates by reference a law, statute, rule, regulation, standard, or code adopted by any person other than the city council, the law, statute, rule, regulation, standard, or code in effect on the date of adoption by the city council of the ordinance or resolution is incorporated.

(b) Where the City Code as adopted in the 2008 recodification incorporates by reference a law, statute, rule, regulation, standard, or code adopted by any person other than the city council, subsection (a) of this definition shall not apply. Instead, the law, statute, rule, regulation, standard, or code in question is incorporated as it was in effect of the date of the adoption of the ordinance adopting the 2008 recodification.

(c) References in ordinances and resolutions that are intended to call attention to laws, statutes, rules, regulations, standards, and codes, but which are not intended to incorporate by reference, are not subject to subsections (a) and (b) of this definition.

Legal holiday. A "legal holiday" is a day observed by city government as a holiday or legal holiday as provided in section 42-16(a), (b).

Manager, city manager. The term "manager" or "city manager" means the city manager of the City of Durham and his or her designee.

Month. The term "month" means a calendar month.

Number. Words used in the singular include the plural and the plural includes the singular number.

Oath. The term "oath" includes an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the terms "swear" and "sworn" are equivalent to the terms "affirm" and "affirmed."

Officer. Reference to an officer by title includes any duly authorized deputy or assistant of such officer, or, to the extent allowed by law, the agent of such officer.

Officer, department, board, etc. Reference to an officer, department, board or other entity by title refers to the officer, department, board, etc., of the city in contrast with an officer, department, board, etc., of any other entity.

Ordinance. The term "ordinance" includes ordinances contained in this Code and ordinances omitted from this Code.

Owner. The term "owner," applied to a building or land, includes any part owner, joint owner, tenant in common, joint tenant or tenant by the entirety, of the whole or a part of such building or land.

Person:

(1) The term "person" includes an individual, corporation, limited liability company, firm, partnership, association, organization, any group acting as a unit, and governmental person. The use of the term "person" in the ordinances and in resolutions, where either is adopted after the date of the adoption of the 2007 recodification of the City Code, is as stated in this subsection (1).

(2) The use of the term "person" in ordinances and in resolutions, where either was adopted on or before the date of the adoption of the 2007 recodification of the City Code, shall be construed without consideration of subsection (1) of this definition.

Personal property. The term "personal property" includes every species of property except real property.

Preceding, following. The terms "preceding" and "following" mean next before and next after, respectively.

Property. The term "property" includes real and personal property.

Real property. The term "real property" includes lands, tenements and hereditaments.

Registered mail. The term "registered mail" includes certified mail.

Religious facility. The expression "religious facility" means a building or structure, and any appurtenance thereof, where the building or structure is primarily used or designated by a non-profit organization for religious observance, services, worship, or instruction.

Shall, may. The term "shall" is mandatory; the term "may" is permissive.

Sidewalk. The term "sidewalk" means any portion of a street between the curbline and the adjacent property line intended for the use of pedestrians.

Signature. The term "signature" includes a mark when the person cannot write.

State. The term "state" means the State of North Carolina.

Street. The term "street" includes any public way, road, highway, street, avenue, boulevard, parkway, alley, lane, viaduct, and bridge and the approaches thereto, which has been accepted for maintenance by the state or by the city.

Tenant, occupant. The terms "tenant" and "occupant," applied to a building or land, include any person who leases or occupies, respectively, the whole or a part of such building or land, whether alone or with others.

Time. Words used in the past, present or future tense each include the other tenses.

UDO, Unified Development Ordinance. The term "UDO" means the Unified Development Ordinance. Unless the context indicates otherwise, UDO and Unified Development Ordinance refer to the Unified Development Ordinance of the city, rather than of the county.

Weekdays, weekend. "Weekdays" are Monday, Tuesday, Wednesday, Thursday, and Friday. The "weekend" is Saturday and Sunday.

Writing. The terms "writing" and "written" includes printing and any other visual mode of representing words and letters.

Year. The term "year" means a calendar year in contrast to a fiscal or other year. However, in some contexts the term "year" means the period of time between two dates such that they are one year apart. For instance, "during the two years before January 15, 2006" will generally mean January 15, 2004 through January 14, 2006 instead of January 1, 2004 through December 31, 2005.

(Code 1982, § 1-2; Ord. No. 13574, Pt. 1, 4-7-2008)

State law references—Similar definitions and rules of statutory construction, G.S. 12-3, 160A-1; computation of time, G.S. 1-593 (Rules of Civ. Proc., Rule 6(a)).

Sec. 1-3. Supplementation of Code; ordinances of limited interest or transitory nature; setting fees.

(a) By contract or by municipal personnel, supplements to this Code shall be prepared and printed whenever authorized or directed by the city. A supplement to the Code shall include all substantive permanent and general parts of ordinances passed by the city council during the period covered by the supplement and all changes made thereby in the Code, and such supplement may also include amendments to the charter. The pages of a supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages which have become obsolete or partially obsolete, and the new pages shall be so prepared that, when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of the Code which have been repealed shall be excluded from the Code by the omission thereof from reprinted pages.

(c) When preparing a supplement to this Code, the codifier (meaning the person authorized to prepare the supplement) may make formal, nonsubstantive changes in ordinances and parts of ordinances included in the supplement, insofar as it is necessary to do so to embody them into a unified code. For example, the codifier may:

(1) Organize the ordinance material into appropriate subdivisions;

(2) Provide appropriate catchlines, headings and titles for sections and other subdivisions of the Code printed in the supplement, and make changes in such catchlines, headings and titles;

(3) Assign appropriate numbers to sections and other subdivisions to be inserted in the Code and, where necessary to accommodate new material, change existing section or other subdivision numbers;

(4) Change the words "this ordinance" or words of the same meaning to "this chapter," "this article," "this division," etc., as the case may be, or to "sections _____ to _____" (inserting section numbers to indicate the sections of the Code which embody the substantive sections of the ordinance incorporated into the Code); and

(5) Make other nonsubstantive changes necessary to preserve the original meaning of ordinance sections inserted into the Code; but, in no case, shall the codifier make any change in the meaning or effect of ordinance material included in the supplement or already embodied in the Code.

(d) The following ordinances, including ordinances renewing, extending, or amending such ordinances, are not to be codified:

(1) Ordinances that set dates, times, or locations of regular city council meetings, including work session meetings, when all of such meetings will occur within 13 months of the adoption of the ordinance.

(2) Ordinances that will have no effect after 13 months from the adoption of the ordinance.

(3) Ordinances that promise or guarantee the payment of money by or for the city, or authorize the issuance of bonds of the city or evidence of the city's indebtedness.

(4) Ordinances that authorize a contract or the assumption of an obligation by the city.

(5) Ordinances that make an appropriation.

(6) Ordinances that provide for local improvements or that impose assessments therefor.

(7) Ordinances that accept a plat or subdivision.

(8) Ordinances that change the boundaries of the city.

(9) Ordinances that set the rate for ad valorem property taxes.

(10) Capital project ordinances and grant project ordinances.

(11) Ordinances that name streets.

(12) Budget ordinances.

(e) The following ordinances, including ordinances renewing, extending, or amending such ordinances, are to be codified as technical ordinances and shall be published separately from this Code:

(1) Franchises granted pursuant to section 67 et seq. of the Charter or pursuant to G.S. 160A-76.

(2) Ordinances that set tax rates, except for ad valorem property taxes and privilege license taxes.

(3) The emergency operations plan adopted pursuant to section 22-21.

(4) The Unified Development Ordinance.

(f) The following ordinances, including ordinances renewing, extending, or amending such ordinances, shall be codified by entry upon official lists or schedules:

(1) Ordinances that set rates for utility or other public enterprise services.

(2) Ordinances that set fees to be charged by the city.

(3) Ordinances that set fares, rates, and charges that may be charged by passenger vehicles for hire.

(4) Except to the extent the city council otherwise provides, and except as provided in other subsections of this section, ordinances that regulate or set any rates, deposits, fees, fares, and charges imposed by any person, including the city, and including credits granted by the city; provided, however, that ordinances setting a charge that is denominated as a "civil penalty" will be in this Code instead of on an official list or schedule.

(g) Unless provided otherwise, fees referred to in ordinances will be set by the city council from time to time.

(h) The technical ordinances referred to in subsection (e)(2) and the official lists and schedules referred to in subsection (f) are referred to in this subsection as the "fee schedule." From time to time the city manager shall, in consultation with the city attorney, prepare and revise the fee schedule as appropriate to accurately reflect decisions by the city council regarding fees, fares, rates, charges, etc. set by such technical ordinances and official lists and schedules (referred to collectively as "fee schedule charges"). The intent is that the fee schedule is to be kept current to show fee schedule charges in effect when the schedule is revised. In general, repealed fee schedule charges shall be removed from the schedule, but in the city manager's discretion historical information may be provided in the fee schedule if it is labeled or arranged so that readers are not likely to be confused regarding which schedule charges are in effect. Without limiting the foregoing authority, the city manager may make non-

substantive changes to decisions by the city council, insofar as it is necessary to do so to embody them in the fee schedule. For example, the city manager may in consultation with the city attorney:

(1) Reorganize the material into appropriate subdivisions, including parts, sections, and chapters, including designating which departments, divisions, offices, etc. are primarily responsible for particular schedule charges.

(2) Assign and change captions.

(3) Assign and change numbers of subdivisions.

(4) Write and change references to ordinances, resolutions, chapters, sections, articles, divisions, etc. to communicate the meaning of the council's decisions being embodied in the schedule.

(5) Make other non-substantive changes as necessary to preserve the meaning of the council's decisions being embodied in the schedule.

(Code 1982, § 1-3; Ord. No. 13574, Pt. 1, 4-7-2008; Ord. No. 13575, § 4, 4-7-2008; Ord. No. 14415, § 1, 4-1-2013; Ord. No. 14416, § 1, 4-1-2013)

State law reference—Code of Ordinances, G.S. 160A-77.

Sec. 1-4. Captions; history notes and references.

(a) Unless inconsistent with the manifest intent of the council, captions, titles and headings of ordinances and resolutions, as well as captions, titles and headings of chapters, articles, divisions, sections, subsections and other parts of ordinances and resolutions, are intended as mere aids to the users of the ordinances and shall not be considered in interpretation.

(b) The history notes and references scattered throughout the Code are mere aids to the user of the Code and shall not be considered part of the Code.

(Code 1982, § 1-4)

Sec. 1-5. Altering Code.

It shall be unlawful for any person to change or amend, by additions or deletions, any part or portion of this Code or to insert or delete pages, or any portions thereof, or to alter or tamper with such Code in any manner whatsoever, except pursuant to ordinance or resolution or other official act of the city council, which will cause the law of the municipality to be misrepresented thereby.

In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1982, § 1-5; Ord. No. 15982, § 1, 8-1-2022)

Sec. 1-6. Effect of repeal or expiration of ordinance or resolution.

(a) The repeal of an ordinance, or its expiration by virtue of any provision contained therein, shall not affect any right accrued, any offense committed, any penalty or punishment incurred or any proceeding commenced before the repeal took effect or the ordinance expired.

(b) When an ordinance or resolution that repealed another shall itself be repealed, the previous ordinance or resolution shall not be revived without express words to that effect.
(Code 1982, § 1-6)

Sec. 1-7. Surety bonds.

Where any bond or other like obligation shall be required by any ordinance or order of the city council, the same shall not be approved or accepted until the maker thereof obtains as surety thereon a regular surety company authorized to do business in the state, as surety, for the faithful performance of such obligation.
(Code 1982, § 1-7)

Sec. 1-8. Severability of parts of ordinances.

It is hereby declared to be the intention of the council that the phrases, clauses, sentences, provisions, paragraphs, and sections of ordinances are presumed to be severable, and if any phrase, clause, sentence, provision, paragraph, or section of any ordinance shall be declared unconstitutional or otherwise invalid by the valid judgment or decree of any court of competent jurisdiction, such unconstitutionality or invalidity shall not affect any of the remaining phrases, clauses, sentences, provisions, paragraphs, and sections of the ordinance, because it shall be presumed that they would have been enacted without the incorporation of such unconstitutional or invalid phrase, clause, sentence, provision, paragraph, or section. This section does not apply to article IV or article VIII of chapter 70. This presumption may be rebutted, without limitation, by a different severability provision that is made applicable to an ordinance.
(Code 1982, § 1-8)

Sec. 1-9. General penalties; misdemeanor penalty; civil penalties for parking violations; vehicle operation violations; continuing violations; alternative remedies.

(a) *Misdemeanor penalty.* Whenever in any ordinance, any act is made or declared to be a misdemeanor, or the failure to do any act is made or declared to be a misdemeanor, each separate violation of such provision shall be a Class 3 misdemeanor, for which the maximum fine shall be $50.00 unless the ordinance expressly states that the maximum fine is greater than $50.00, and for which the maximum imprisonment shall be 20 days. No fine shall exceed $500.00. Unless provided otherwise, limits on criminal fines do not imply limits on noncriminal or other criminal remedies.

(b) *Civil penalties for parking violations.*

(1) Whenever in any ordinance, any act of vehicle parking is prohibited or is made or declared unlawful, or the doing of any act of vehicle parking is required, or the failure to do any act of vehicle parking is declared to be unlawful, the violation of such provision shall subject the offender to a civil penalty to be recovered by the city in a civil action in the nature of debt if the offender, or the registered owner of the vehicle, does not pay the penalty within ten days of the violation. The violations shall not be deemed criminal and no criminal penalty shall be imposed therefor.

(2) Whenever in any ordinance, any act of vehicle parking is prohibited or made or declared to be unlawful, or the doing of any act of vehicle parking is required, or the failure to do any act of vehicle parking is prohibited or declared to be unlawful, whether the violation occurs on a street, or on a public vehicular area as defined in G.S. 20-4.01(32), or on any land or in any building owned by or leased to the city, or where the city operates a parking facility, it shall be prima facie evidence in any court that such vehicle was parked and operated at the time of the violation by the person in whose name such vehicle is then registered and licensed according to the records of the North Carolina Division of Motor Vehicles, or similar agency of any other state for vehicles not registered or licensed in this state, and such person in whose name such vehicle is then registered shall be subject to the same civil penalty provided by the applicable ordinance, to be recovered by the city in a civil action in the nature of debt if the civil penalty is not paid within ten days of such violation. The violations shall not be deemed criminal and no criminal penalty shall be imposed therefor.

(3) In addition to the above penalties, the city manager may immobilize by the use of wheel locks and tow and impound any vehicle which is illegally parked in violation of chapter 66, article IV, and charge a vehicle immobilization fee, as a civil penalty, of $50.00, to be recovered by the city in a civil action in the nature of debt if the fee is not paid within ten days of the attachment of the wheel lock to the vehicle.

(4) Violations for which civil penalties may be imposed pursuant to this section 1-9(b) are not criminal, and no criminal penalty shall be imposed therefor.

(c) *Infractions for vehicle operation violations.* Whenever in any ordinance, any act of vehicle operation (except parking) is made or declared to be an infraction, or whenever in any ordinance, the failure to do any act of vehicle operation (except parking) is made or declared to be an infraction, the person found responsible for such infraction shall pay a penalty not to exceed $50.00, which shall be recovered as provided by law for the violation of infractions.

(d) *Continuing offenses.* Except as otherwise provided, each day's continuing violation of any ordinance shall be a separate and distinct offense for purposes of all remedies, including civil and criminal.

(e) *Enforcement alternatives.* Except as otherwise provided, violation of any ordinance may be enforced by one, all, or any combination of the remedies authorized.

(f) *Penalty not excuse.* The imposition or payment of a penalty, fine, or punishment shall not be construed to excuse any violation of any ordinance.

(g) *Late payment charges.* The city council has found that it is in the public interest to impose late payment charges on certain civil penalties because late payment charges may help ensure that the penalties are paid on time. The date of delinquency shall be the date described by the ordinance, resolution, or other legal authority establishing when the civil penalty is delinquent or past due. If an ordinance, resolution or other legal authority does not establish the date of delinquency, then the civil penalty shall be delinquent 60 days after it is payable. A rate of interest of eight percent simple interest per year shall be imposed on the following civil penalties from the date they become delinquent: all civil penalties, denominated as such, provided for by division 2 of article III of chapter 46 (fire prevention code); and article IV of chapter 46 (police and fire alarm systems).

(Code 1982, § 1-9; Ord. No. 7001, § 1, 6-26-1986; Ord. No. 10960, § 1, 11-4-1996; Ord. No. 13574, Pt. 1, 4-7-2008; Ord. No. 15982, § 2, 8-1-2022)

Charter references—Authority to enforce ordinances by fine, imprisonment or otherwise, § 8; fine for refusal to permit inspection to determine wasting of water, or for damage, etc., to waterworks, § 32; fine for violation of subdivision ordinance, § 97(1).

State law references—Violation of ordinance declared a misdemeanor, punishable by fine not exceeding $500.00, G.S. 14-4; authority to impose fines and penalties, G.S. 160A-175; restrictions on ordinance-making power—where offense defined is identical to state or federal statute, G.S. 160A-174; authority to provide for civil penalties and equitable remedy, G.S. 160A-175.

Sec. 1-10. Designation of powers and duties.

(a) For purposes of this section, a "subordinate" of the city manager includes a department, division, title, office, or position over which the city manager exercises supervision or control.

(b) Where an ordinance or resolution specifies that a particular subordinate of the city manager shall have certain powers or duties, the city manager shall nevertheless have the authority to transfer or assign any of such powers and duties to any other subordinate or to exercise any of such powers and duties himself or herself. The transfer or assignment may be in any manner that the city manager deems appropriate, for example, by designating an individual, officer, job title, department, division, department head, or division head or by allowing other appropriate persons to make the transfer or assignment. The city manager shall have the authority to change those designations from time to time as he or she deems proper. Any designee or subordinate of the city manager may further designate to the extent allowed by the city manager.

(c) This section applies except to the extent it is inconsistent with the manifest intent of the council, the context clearly requires otherwise, or it conflicts with state or federal law. The principle that the expression of one thing is the exclusion of another will not alone generally be sufficient to prevent the application of subsection (b) of this section.

Sec. 1-11. Powers of city manager regarding hearings, applications, permits, and licenses.

(a) *Hearings.* Where ordinances allow the city manager or the city council to do an act or make a decision, and the constitution of the United States or North Carolina requires a hearing to be held before the act or decision, after the act or decision, or both before and after, but the ordinance does not explicitly require such hearings, the city manager or the city council shall hold the constitutionally required hearings.

(b) *Applications.* Where an application is required or appropriate, for example, before the city will allow or take some action, the city manager may require as a condition precedent to the allowance or taking of the action that an application in a form that the city manager determines to be appropriate be submitted to the city.

(c) *Licenses and permits.* Where the city may issue a permit or license, the city manager may require as a condition precedent to the issuance of the permit or license that the prospective permittee or licensee complete and submit an application.

Sec. 1-12. Geographical applicability.

Ordinances and resolutions are presumed to be effective within the applicable jurisdiction of the city. Depending on the context, an ordinance may be effective on and to property and rights-of-way belonging to the city and located outside the corporate limits. This section is not intended to restrict the authority of the city to summarily remove, abate, or remedy that which is dangerous or prejudicial to the public health or public safety.

Sec. 1-13. Time of effectiveness of acts of council.

Ordinances and resolutions will be effective as of the time of adoption by the city council, unless inconsistent with the manifest intent of the council or the context clearly requires otherwise.

Sec. 1-14. References to previous codes.

Unless contrary to the manifest intent of the city council, whenever a reference is made in any ordinance or resolution to a portion of the City Code as the code existed before the adoption of this Code, that reference shall be deemed to refer to the portion of the recodified code that most nearly corresponds to the portion of the City Code as it existed before the adoption of this recodified version.

Sec. 1-15. Method of showing changes to ordinances by underlining and strike-throughs.

(a) Whenever an ordinance states that (i) a previously adopted ordinance or a portion thereof is revised thereby to read in a specified manner, and (ii) the previously adopted ordinance or a portion thereof is set out showing material underlined or struck through, or

both, the rule of construction to be applied is: the material underlined is being added to the previously adopted ordinance, and the underlining itself is not part of the revised ordinance; and the material struck through is being deleted from the previously adopted ordinance.

(b) Whenever a new chapter, article, division, subdivision, section, subsection, part, or subpart is added to the City Code or the fee schedule, and that chapter, article, division, subdivision, section, subsection, part, or subpart is underlined, the underlining is not part of the City Code or fee schedule, but is merely an illustration that the material is new.

(c) This section is not intended to require that material in proposed ordinances be underlined or struck through.

(d) Underlining in this section refers to a single underline.

(e) This section applies except where the manifest intent of the council or the context requires otherwise.

(f) This section does not apply to underling beneath a column of numbers where immediately beneath the underlining is the result of addition or subtraction of numbers in the column.

(g) This section applies to all ordinances adopted or and after May 20, 2013, including those in the City Code, the Unified Development Ordinance, traffic regulation and control ordinances listed in the schedule in City Code section 66-345, and the fee schedule.

(h) This section does not apply to franchises granted pursuant to section 67 et seq. of the Charter or pursuant to G.S. 160A-76, or to the emergency operations plan adopted pursuant to section 22-21.
(Ord. No. 14430, 4-1-2013)

Sec. 1-16. Reference guide for development.

(a) The reference guide for development shall serve as the technical code or standards applicable to infrastructure construction and development within the city.

(b) References found within the City's Code of Ordinances to development standards established by public works, water management, or the city's transportation department shall be understood to refer to the standards included in the reference guide for development.

(c) The reference guide for development shall be initially adopted by city council as the legally enforceable technical codes or standards applicable to infrastructure construction and development within the city.

(d) City staff in the departments of public works, water management, and transportation may propose changes to the reference guide for development. The following procedure shall be followed to make proposed changes:

(1) City staff shall prepare a draft letters to industry ("LTI").

(2) Draft LTIs will be noticed to the development community at large through the development services center's weekly e-mail newsletter. There shall be a minimum 30-day comment period before final approval of a LTI. Written comments received during the comment period will be considered by city staff prior to finalization of a LTI.

(3) Draft LTI's will also be presented and discussed on a quarterly basis with a subcommittee of the local home builders association. Representatives of the local home builders association at these quarterly meetings will be comprised of one each of the following professions: an engineer, an architect, a general contractor, a developer, and a landscape architect, with the option of adding additional representatives at the city's discretion. Comments received at these quarterly meetings will be considered by city staff prior to finalization of a LTI.

(4) After city staff has considered the comments received in sub-paragraphs (2) and (3) above, the LTI shall be presented to the department director with jurisdiction over the proposed change for approval.

(5) A LTI will only be final and enforceable as a modification or addition to the reference guide for development after it has been signed by the relevant department director, and the manager or a deputy city manager.

(6) On an annual basis, city staff will incorporate final LTIs into the text of the reference guide for development.

The following categories of LTIs do not have to be approved as outlined above, but do require the signature of the relevant department director and the manager or a deputy city manager:

1. A LTI that is written for the sole purpose of complying with a state or federal requirement.

2. A LTI that is written solely to be informative and that does not change a Reference Guide for Development requirement or standard.

3. A LTI that is written to address an immediate public and health and safety concern.

Basic grammar and formatting changes may be made to the reference guide to development by city staff without further approval as long as the change does not make a substantive change to a requirement or standard in the reference guide for development.

(e) Executed LTI's will be made available to the public on the city's website, accessible through the public works, development services center, and water management webpages.

(f) Any construction and/or development project shall adhere to the official version of the reference guide for development, which shall include any final LTIs, in effect at the time of the project's construction drawing approval or building/construction permit application approval.

(g) The reference guide for development, including final LTIs, shall be available for viewing by the general public on the City of Durham's website and an official copy will be maintained in the city clerks' office.

(h) An appeal of staff's application of a standard set by the reference guide for development to a particular development application shall initially be made to the director of the city department applying the standard. If further action is desired after a decision is made by a department director, the appeal may be escalated to the city manager's office. A decision by the city manager's office shall be final.

(i) Requests to vary from a requirement set by the reference guide for development, including final LTIs, shall be made pursuant to the reference guide for development's alternatives application procedures which can be found in the reference guide for development. Council may establish application fees for alternatives applications.
(Ord. No. 15614, § 1, 5-18-2020)

Chapter 2

ADMINISTRATION AND COUNCIL

Article I. In General

Sec. 2-1. City seal.
Secs. 2-2—2-20. Reserved.

Article II. Council

Division 1. Generally

Sec. 2-21. Assignment of territory to election wards.
Secs. 2-22—2-43. Reserved.

Division 2. Meetings

Sec. 2-44. Regular meetings.
Sec. 2-45. Books of ordinances, resolutions and other actions of the council.
Sec. 2-46. Captions and numbering of ordinances and resolutions.
Sec. 2-47. References to ordinances in minutes.

ARTICLE I. IN GENERAL

Sec. 2-1. City seal.

(a) The seal of the city shall be as follows: A circle 1⅝ inches in diameter with the device of two leaves of tobacco tied with a bow through the center thereof. Above said device, the words "City of Durham" and below "North Carolina" shall be inscribed and in the circle to the left of the leaves, the figure "18" and to the right of the leaves the figure "69."

(b) It shall be the duty of the city clerk to keep in some secure place the seal of the city and affix the seal to whatever papers the city council shall direct.
(Code 1964, § 1-7; Code 1982, § 2-1)

State law reference—Authority to have, etc., a common seal, G.S. 160A-11.

Secs. 2-2—2-20. Reserved.

ARTICLE II. COUNCIL*

DIVISION 1. GENERALLY

Sec. 2-21. Assignment of territory to election wards.

(a) Definitions.

The *Cheek Road-Old Weaver Trail line* is the centerline of the right-of-way of Cheek Road beginning at the boundary of Durham County and Wake County and continuing until Cheek Road ends at what is now or formerly was the intersection with Old Weaver Trail, and continuing with the centerline of the right-of-way of Old Weaver Trail as it runs in a generally northeast direction.

Territory means real property in the corporate boundaries of the city on April 1, 2013, or annexed into the city after that date.

(b) Territory located in Durham County. All territory located in the election precincts listed in this table is assigned to the indicated election wards.

Durham County Election Precinct Number	*City Election Ward*
1, 2, 3, 7, 8, 10, 12, 15, 17, 18, 19, 20, 21, 22, 23, 25, 26, 28, 29, 44, 45, 46, 55-11, and 55-49	1
13, 14, 30-1, 30-2, 31, 32, 33, 34-1, 34-2, 35.3, 41, 42, 47, 51, 52, and 54	2
4, 5, 6, 9, 16, 24, 27, 36, 37, 38, 39, 40, 43, 48, 50, 53-1, and 53-2	3

If precinct boundaries change after April 1, 2013, the precinct boundaries in effect as of that date shall continue to be used in applying this table.

***Charter references—**At least 2, but not more than 4, meetings each month, § 11(1); calling special meetings, § 11(2).

(c) Territory located in counties other than Durham County.

(1) The following is assigned to Election Ward 3: All territory that is both (i) in Chatham County and (ii) west of the centerline of the right-of-way of Highway 751.

(2) The following is assigned to Election Ward 2: All territory that is simultaneously (i) both east of the centerline of the right-of-way of Highway 751 and south of the Cheek Road-Old Weaver Trail line, and (ii) in either Chatham County or Wake County.

(3) The following is assigned to Election Ward 1: All territory that is both (i) north of the Cheek Road-Old Weaver Trail line and (ii) in either Wake County or Granville County.

(4) The following is assigned to Election Ward 1: All territory that is both due north of Durham County and in Person County.

(5) The following is assigned to Election Ward 1: All territory that is (i) north of the centerline of Eno River and (ii) in either Orange County or Person County.

(6) The following is assigned to Election Ward 3: All territory that is both south of the centerline of Eno River and in Orange County.

(d) Any territory that is not assigned by the provisions of subsections (b) and (c) will be assigned to Ward 1.

(e) Assignments of territory to election wards pursuant to this section shall occur without the necessity of further city council action.
(Ord. No. 13809, § 1, 6-1-2009; Ord. No. 14417, § 1, 4-1-2013)

Secs. 2-22—2-43. Reserved.

DIVISION 2. MEETINGS*

Sec. 2-44. Regular meetings.

(a) There shall be regular meetings of the city council in the city hall council chambers at 7:00 p.m., on the first and third Monday of each month other than in the month of July. In July, there shall be only one regular meeting, on the third Monday of July at the time and place provided for regular meetings in this section. Provided, however, when Monday is observed as a legal holiday, the regular meeting to have been held on such Monday shall be held at the same time on the next day that is not observed as a legal holiday.

(b) There shall be regular work session meetings of the city council in the committee room on the second floor of city hall on Thursday at 1:00 p.m. of the same week of each regular meeting of the city council. Provided, however, when Thursday is observed as a legal holiday, the work session meeting to have been held on such Thursday shall be held at such date and time as may be designated by action of the city council.
(Code 1964, § 2-1; Code 1982, § 2-20; Ord. No. 5132, § 1, 5-7-1979; Ord. No. 5525, § 1, 11-17-1980; Ord. No. 6311, § 1, 3-5-1984; Ord. No. 6444, § 1, 7-23-1984; Ord. No. 7446, § 1, 3-7-1988; Ord. No. 8012, § 1, 2-19-1990; Ord. No. 9396, § 1, 9-3-1991; Ord. No. 9908, § 2, 7-19-1993; Ord. No. 12752, § 1, 2-3-2003; Ord. No. 12772, § 1, 4-7-2003)

*__Charter reference—__Mayor and council, §§ 6—15.

Sec. 2-45. Books of ordinances, resolutions and other actions of the council.

All ordinances, resolutions and other official actions of the city council shall, upon adoption, be recorded by the city clerk in permanent ordinance books, minute books, and such other books as may be necessary to contain an accurate record of the official proceedings of the council.

(Code 1964, § 2-13; Code 1982, § 2-33)

Charter reference—Duty of city clerk, § 20.

Sec. 2-46. Captions and numbering of ordinances and resolutions.

All ordinances and resolutions shall have proper captions, and the ordinances shall be numbered in numerical order.

(Code 1964, § 2-14; Code 1982, § 2-23)

Sec. 2-47. References to ordinances in minutes.

The minutes of the clerk shall refer to the captions of all ordinances adopted by the council, number of same and date of passage, but shall not contain the ordinance.

(Code 1964, § 2-15; Code 1982, § 2-35)

Chapters 3—5

RESERVED

Chapter 6

ANIMALS*

Sec. 6-1. County ordinances applicable within the corporate limits of the city.
Sec. 6-2. Bird sanctuary.
Sec. 6-3. Shooting or poisoning wild game or squirrels, and deer bow hunting.
Sec. 6-4. Fowl at large; impounding.
Sec. 6-5. Livestock on sidewalk.

*__State law references—__Authority to regulate animals, G.S. 160A-186, 160A-187; authority to prohibit abuse, G.S. 160A-182; authority to license the keeping of animals, G.S. 160A-212; permitting dogs to run at large, G.S. 67-2, 67-12; impounding livestock at large, G.S. 68-17 et seq.; rabies control, G.S. 106-364 et seq.; animal shelters, G.S. 160A-493.

Sec. 6-1. County ordinances applicable within the corporate limits of the city.

Editor's note—The Durham County Animal Control Ordinance, codified as chapter 4 of the Durham County Code of Ordinances, as amended from time to time, applies in the portions of the city that are in Durham County. Nothing in this resolution is intended to make section 1-9 (General penalties, etc.) of the Durham City Code apply with respect to violations of the Durham County Animal Control Ordinance. The Wake County Animal Control Ordinance, codified as section 2-3-1 through section 2-3-40 of the Wake County Code of Ordinances, as amended from time to time, applies in the portions of the city that are in Wake County. All provisions of the Wake County Code of Ordinances relating to civil and criminal remedies, including fines, penalties, equitable relief, and treatment of each day's continuing violation as a separate and distinct offense, as amended from time to time, apply with respect to violations of the Wake County Animal Control Ordinance within the portions of the city that are in Wake County. Nothing in this resolution is intended to make section 1-9 (General penalties, etc.) of the Durham City Code apply with respect to violations of the Wake County Animal Control Ordinance. Resolution 9681, adopted November 2, 2009, provides that the Orange County Animal Control Ordinance is applicable in the portions of the city that are in Orange County.

(Ord. No. 13918, §§ 1, 2, 11-2-2009; Res. No. 9849, § 1, 4-1-2013; Res. No. 9850, § 1, 4-1-2013)

State law reference—Making county ordinance applicable in city, G.S. 153A-122.

Sec. 6-2. Bird sanctuary.

(a) *Designation of city.* The entire area embraced within the corporate limits of the city is hereby designated as a bird sanctuary.

(b) *Trapping, shooting birds or wildfowl.* It shall be unlawful to trap, hunt, shoot or attempt to shoot or molest in any manner any bird or wildfowl or to rob bird nests or wildfowl nests; provided, however, that if starlings, pigeons, or similar birds are found to be congregating in such numbers in a particular locality that they constitute a nuisance or menace to health or deface property, in the opinion of the director of public safety, and no satisfactory alternative is found to abate such nuisance, such birds may be destroyed in such numbers and in such manner as is deemed advisable by the director of public safety.

(c) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1964, §§ 4-2, 4-3; Code 1982, §§ 5-1, 5-2; Ord. No. 15982, § 3, 8-1-2022)

State law reference—Cruelty to animals, G.S. 14-360.

Sec. 6-3. Shooting or poisoning wild game or squirrels, and deer bow hunting.

(a) It shall be unlawful for any person to shoot any wild game or any squirrel, whether wild or tame, with a gun or firearm or to willfully poison any wild game or squirrel.

However, deer hunting by bow and arrow or crossbow ("collectively archery"), as defined by the state wildlife resources commission, is permitted on private property during the

Central North Carolina deer archery season as established by the state wildlife resources commission. A person may engage in deer archery on his or her own property if he or she has on his or her person a valid state hunting license (or qualifies for an exemption from licensing by the state wildlife resources commission), or on the property of another in their absence if he or she has on his or her person both a valid state hunting license (or qualifies for an exemption from licensing by the state wildlife resources commission) and written permission from the property owner or the property owner's authorized agent or manager. Parcels or tracts of land that are either owned by a person engaged in deer archery or for which that person has been given written permission to hunt shall be referred to as "areas of consent". Deer archery may only occur within areas of consent when the following requirements are met:

(1) Deer archery must be conducted from a permanent or portable elevated platform of at least ten feet above the ground; and

(2) Areas of consent must be greater than five acres in area and may be comprised of contiguous parcels or tracts; and

(3) No arrow shall be discharged within 250 feet of any residential dwelling, school, church, commercial building, governmental property, occupied structure, street, park, or other recreational area, nor shall any arrow be discharged within 250 feet of the perimeter of the area of consent; and

(4) Hunters shall make every reasonable effort to track wounded deer for the purpose of completing the harvest and recovering the carcass; and

(5) There is a valid hunting season in effect for which the hunting license applies at the time the bow or crossbow is discharged; and

(6) The hunter adheres to all applicable state and local regulations; and

(7) The person discharging the bow or crossbow exercises reasonable regard for the safety and property of other persons.

(b) On a biennial basis the city manager shall make a report to city council regarding deer archery within the city. This report shall include available information on the number of deer harvested, any impact on the number of deer interference incidents, and any safety issues that may arise.

(c) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1964, § 4-1; Code 1982, § 5-3; Ord. No. 14516, § 1, 11-4-2013; Ord. No. 15982, § 4, 8-1-2022)

Editor's note—Ord. No. 14516, § 1, adopted November 4, 2013, amended the title of § 6-3 to read as set out herein. Previously § 6-3 was titled shooting or poisoning wild game or squirrels.

Sec. 6-4. Fowl at large; impounding.

Any person, upon whose premises any poultry may run at large, in contravention of this Code or any other ordinance of the city, may distrain such poultry and turn them over to the police authorities of the city, who shall impound them for the costs of the proceedings against the owner of the poultry and any fine and other cost incurred by reason of such running at large. If the fine and costs assessed against the owner are not promptly paid, the trial court may order such poultry sold, and the proceeds of the sale be applied to the payment of the fines, penalties and costs assessed against the owners.
(Code 1964, § 4-4; Code 1982, § 5-4)

Sec. 6-5. Livestock on sidewalk.

It shall be unlawful for any person to permit or allow any horse, mule, cow or other livestock to walk or travel on any of the sidewalks of the city. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 4-6; Code 1982, § 5-6; Ord. No. 15982, § 5, 8-1-2022)

Sec. 6-6. Reserved.

Editor's note—Ord. No. 13757, § 3, adopted January 5, 2009, repealed § 6-6 in its entirety, which pertained to keeping bees, and derived from the Code of 1964, § 4-7.1; the Code of 1982, § 5-8, and Ord. No. 13574, Pt. 1, adopted April 7, 2008.

Chapters 7—9

RESERVED

Chapter 10

BUILDINGS AND BUILDING REGULATIONS*

Article I. In General

Sec. 10-1. Fire district.
Sec. 10-2. Director of city-county inspections; housing code administrator; establishment of positions; appointment.
Secs. 10-3—10-22. Reserved.

Article II. Building Codes

Division 1. Generally

Secs. 10-23—10-47. Reserved.

Division 2. Permits

Sec. 10-48. Permits for construction, plumbing, electrical, and mechanical work.
Sec. 10-49. Notification of utilities; safety provisions; notice of completion of work.
Sec. 10-50. Schedule of fees—Required by section 10-48.
Sec. 10-51. Same—Payment of fees.
Sec. 10-52. Same—Required by the UDO.
Sec. 10-53. Temporary electrical service for one- and two-family residential dwellings.
Secs. 10-54—10-79. Reserved.

Article III. Electrical Code

Division 1. Generally

Sec. 10-80. Definitions.
Sec. 10-81. Cutting or disconnection of wires.
Sec. 10-82. Approval of temporary service connections.
Sec. 10-83. Liability for damages.
Sec. 10-84. Reserved.
Sec. 10-85. Industries and institutions generally—Employment of helpers or apprentices by industries or institutions.
Sec. 10-86. Same—Installation, etc., of wiring, etc.
Sec. 10-87. Industries and institutions renting out property—Installation, etc., of wiring, etc.
Sec. 10-88. Same—Permits, fees, etc.
Sec. 10-89. Right of holder of state electrical contractor's license to engage in business of installation, etc., of electrical wiring, etc.; bond.
Secs. 10-90—10-106. Reserved.

***Charter reference—**Authority, § 100 et seq.
State law reference—Authority, G.S. 143-138(e), 160A-411 et seq.

Division 2. Permits and Inspections

Sec. 10-107. Permit required generally.
Sec. 10-108. Permit not required for installation of certain devices, etc., for operation of signals or transmission of intelligence.
Sec. 10-109. Permit not required for installation of certain equipment by public service corporations.
Sec. 10-110. Application for permit.
Sec. 10-111. Issuance of permit.
Sec. 10-112. Permittee to be holder of state electrical contractor's license.
Sec. 10-113. Effect of failure to correct defects within 48 hours of notice.
Sec. 10-114. Schedule of fees.
Sec. 10-115. Payment of fees.
Sec. 10-116. Effect of failure to pay fees.
Sec. 10-117. Notice and performance of inspection upon completion of work.
Sec. 10-118. Completion of rough-in work.
Sec. 10-119. Inspection prior to concealment of work.
Sec. 10-120. Certificate of approval.
Sec. 10-121. Notice of defects.
Sec. 10-122. Approval of wiring upon reconnection of commercial and industrial type occupancies.
Secs. 10-123—10-142. Reserved.

Division 3. Standards and Specifications

Sec. 10-143. Installation of electrical wiring and appliances in existing residence buildings.
Sec. 10-144. Wires over streets and sidewalks.
Secs. 10-145—10-171. Reserved.

Article IV. Mechanical Code

Sec. 10-172. Permit.
Sec. 10-173. Inspection fees—Generally.
Sec. 10-174. Same—Payment on cash basis.
Secs. 10-175—10-201. Reserved.

Article V. Plumbing Code

Sec. 10-202. Schedule of fees.
Sec. 10-203. Payment of fees.
Secs. 10-204—10-229. Reserved.

Article VI. Housing Code

Sec. 10-230. Title.
Sec. 10-231. Legislative findings.
Sec. 10-232. Scope, application and administration of article.
Sec. 10-233. Definitions.
Sec. 10-234. Standards of fitness.
Sec. 10-235. Rooming houses, boardinghouses, bed and breakfast inns, residency hotels and other similar buildings.

Sec. 10-236. Responsibilities of occupants.
Sec. 10-237. Responsibilities of owners.
Sec. 10-238. Housing appeals board.
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Article VIII. Periodic Inspection of Rental Dwellings

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Division 3. Reserved

ARTICLE I. IN GENERAL

Sec. 10-1. Fire district.

The following area is hereby established and defined as the city's fire district and primary fire limits: Beginning at the centerline of the Southern Railroad at Duke Street; thence north along the centerline of Duke Street to Fernway Avenue; thence eastwardly along the centerline of Fernway Avenue to the centerline of the Norfolk & Western Railroad right-of-way; thence northwardly along the centerline of the Norfolk & Western railroad right-of-way to Lamond Avenue; thence eastwardly along the centerline of Lamond Avenue to the centerline of Washington Street; thence in a straight line to the centerline of Morris and Corporation Streets; thence along the centerline of Corporation Street eastwardly to a point 150 yards east of Rigsbee Avenue; thence in a line parallel with Rigsbee Avenue southwardly to a point 140 feet north of Hunt Street; thence eastwardly in a parallel line with Hunt Street to a point 365 feet east from Rigsbee Avenue; thence southwardly in a line parallel with and 365 feet eastwardly from Rigsbee Avenue to a point 230 feet from Seminary Street; thence eastwardly along a line parallel with and 230 feet north of Seminary Street to the centerline of Magnum Street; thence along the centerline of Magnum Street to Chapel Hill Street; thence along the centerline of Chapel Hill Street to Cleveland Street; thence along the centerline of Cleveland Street to Liberty Street; thence along the centerline of Liberty Street to a point 150 feet east of North Roxboro Street; thence southwardly along a line parallel to North Roxboro Street and 150 feet eastwardly therefrom to the centerline of Main Street; thence eastwardly along the centerline of Main Street to the centerline of Dillard Street; thence southwardly along the centerline of Dillard Street to the centerline of Pettigrew Street; thence along the centerline of Pettigrew Street to Branch Place; thence along the centerline of Branch Place to the centerline of Mt. Vernon Street; thence along the centerline of Mt. Vernon Street to the centerline of Ramsey Street; thence along the centerline of Ramsey Street to Poplar Street; thence along the centerline of Poplar Street to South Roxboro Street; thence along the centerline of South Roxboro Street to Cora Street; thence along the centerline of Cora Street to South Magnum Street; thence along the centerline of South Magnum Street to a point 200 feet south of Cora Street; thence in a straight line to the intersection of Matthews Street and Blackwell Street; thence along the centerline of Blackwell Street to Morehead Avenue; thence along the centerline of Morehead Avenue to Carr Street; thence along the centerline of Carr Street to the centerline of the Southern Railroad right-of-way and thence along the centerline of the Southern Railroad right-of-way to Duke Street, which is the beginning.

(Code 1964, § 28-6; Code 1982, § 6-1)

State law references—Establishment of fire limits, G.S. 160A-435; building regulations in fire district, N.C. State Building Code, Ch. III.

Sec. 10-2. Director of city-county inspections; housing code administrator; establishment of positions; appointment.

(a) There are hereby established the positions of director of the city-county inspections department, hereinafter referred to as director, and housing code administrator, hereinafter sometimes referred to as administrator. Such officers shall be appointed by the city manager

and the county manager. Such terms shall include duly authorized deputies, assistants and agents, provided that this section does not require that such deputies, assistants and agents be appointed by the city manager and the county manager.

(b) Any reference in this Code or in the codes herein adopted to "building inspector" or "building official" shall be deemed to mean the director or administrator, as appropriate.
(Code 1964, § 25-7; Code 1982, § 6-2; Ord. No. 6908, § 1, 6-28-1985)

State law reference—Authority to appoint building inspector, duties, etc., G.S. 160A-411 et seq.

Secs. 10-3—10-22. Reserved.

ARTICLE II. BUILDING CODES

DIVISION 1. GENERALLY

Secs. 10-23—10-47. Reserved.

DIVISION 2. PERMITS

Sec. 10-48. Permits for construction, plumbing, electrical, and mechanical work.

In order to construct, enlarge, alter, repair, move, demolish, or change the occupancy of, a building or structure, or to erect, install, enlarge, alter, repair, remove, convert or replace any electrical, gas, mechanical, or plumbing system, when such work is regulated by the North Carolina Building Code, as such code may be amended from time to time, an owner or authorized agent shall first make application to the Durham Inspections Department and obtain the required permit. Such permit shall not be required if the North Carolina Building Code specifically excuses obtaining a permit for such work. (See e.g., G.S. 160A-117 regarding exemptions for certain specified work on single family residences or farm buildings that costs $5,000.00 or less.) Provisions under the North Carolina Building Code that allow local governments to permissively exempt categories of work from permit requirements shall not be deemed to exempt such work unless this chapter clearly grants an exemption. This section regarding permit requirements shall supersede any conflicting provisions contained within this chapter. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 13246, § 1, 4-3-2006; Ord. No. 15982, § 6, 8-1-2022)

Charter reference—Submission of site plan prerequisite to issuance of building permit, § 92.

State law reference—Similar provisions, G.S. 160A-417.

Sec. 10-49. Notification of utilities; safety provisions; notice of completion of work.

Every person who obtains a permit under section 10-48 to demolish a building or structure shall notify all utility companies which furnish utility service to the property to discontinue such service. Every such person shall place or cause to be placed on such property a barricade for safety and protection of the public when so ordered by the building inspector. Every such person shall clear the property of all debris and shall leave the property in such a manner that water will not stand thereon. Every such person shall notify the building inspector when the demolition work is complete, and such work shall be subject to the final inspection and approval of the building inspector. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1982, § 6-30.1; Ord. No. 5738, § 4, 8-3-1981; Ord. No. 15982, § 7, 8-1-2022)

Sec. 10-50. Schedule of fees—Required by section 10-48.

(a) The schedule of fees required by section 10-48 is as set from time to time by the council.

(b) The homeowner's recovery fund fee is collected whenever the general contractor applies for a permit for the construction of any single-family residential dwelling unit or for the alteration of an existing single-family residential dwelling unit. A single-family residential dwelling unit is defined to include houses, condominiums, and townhouses. The director shall retain for the city the maximum portion of each such fee that the city is allowed by law to retain.

(c) Fees for permits issued for construction which does not occur shall be refunded, minus a service charge, upon application of the person to whom the permit was issued. The service charge retained by the city shall be equal to 15 percent of the permit fee. Application for refund of a permit fee must be made within six months of the date of issuance of the permit and must be accompanied by the permit.
(Code 1964, § 25-18; Code 1982, § 6-31; Ord. No. 5738, § 7, 8-3-1981; Ord. No. 5789, §§ 2—5, 10-19-1981; Ord. No. 7254, § 2, 6-29-1987; Ord. No. 7572, § 1, 6-30-1988; Ord. No. 7692, § 1, 12-19-1988; Ord. No. 7843, § 1, 6-28-1989; Ord. No. 9417, § 1, 10-21-1991; Ord. No. 10012, § 1, 11-15-1993; Ord. No. 11996, § 1, 6-19-2000; Ord. No. 12813, § 1, 6-16-2003; Ord. No. 13185, 12-5-2005)

Sec. 10-51. Same—Payment of fees.

Permit fees shall be paid in cash or by credit card. The applicant may elect to set up a charge account with the city. Under the charge account system, all required payments for fees must be paid no later than the last day of the month during which the bill is first mailed when the bill is first mailed by the 15th day of the month. When the bill is first mailed after the 15th day of the month, all required payments must be paid no later than the last day of the next month.
(Code 1964, § 25-19; Code 1982, § 6-32; Ord. No. 10390, § 1, 1-17-1995; Ord. No. 13802, § 1, 5-18-2009)

Sec. 10-52. Same—Required by the UDO.

(a) The schedule of fees for permits required by the UDO of the city is as set from time to time by the council.

(b) Fees for permits issued for construction which does not occur shall be refunded, minus a service charge, upon application of the person to whom the permit was issued. The service charge retained by the city shall be equal to 15 percent of the permit fee. Application for refund of a permit fee must be made within six months of the date of issuance of the permit and must be accompanied by the permit.
(Code 1982, § 6-33; Ord. No. 10013, § 1, 11-15-1993; Ord. No. 13185, 12-5-2005)

Sec. 10-53. Temporary electrical service for one- and two-family residential dwellings.

(a) Permits authorizing temporary electrical service to one- and two-family residential dwellings will be granted by the inspections department upon the completion of a permit application and the paying of a fee by the general contractor. The fee will cover the cost of one electrical and one mechanical inspection conducted by the inspections department. Any additional inspections will be charged a fee. Any permit issued pursuant to this section shall provide, among other things, the time period in which the temporary electrical service shall be authorized and the purpose for which such service is needed.

(b) Any contractor who violates or permits the violation of the temporary electrical service permit by permitting the occupancy of the dwelling stated in the permit (including permitting the presence of furniture, clothing, boxes or any other articles or items in the dwelling) shall be assessed a civil penalty of $2,000.00. Any contractor who violates a permit issued under this section twice within a three-year period shall be permanently barred from again obtaining a permit for temporary electrical service for one- and two-family residential dwellings. The failure of a contractor to pay a civil penalty assessed under this section shall also result in the contractor being permanently barred from obtaining a permit for temporary electrical service.

(c) Any contractor who has been assessed a civil penalty under this section may appeal such assessment to the city manager by giving written notice of appeal to the city manager no later than ten days after receiving notice of such assessment. The city manager shall consider such an appeal within 45 days after receiving the notice of appeal. The city manager's decision on the appropriateness of the assessment of the civil penalty shall be final. Any person who fails to provide the notice of appeal as required in this section shall be precluded from appealing an assessment of civil penalty.
(Code 1982, § 6-34; Ord. No. 10446, § 1, 6-5-1995)

Secs. 10-54—10-79. Reserved.

ARTICLE III. ELECTRICAL CODE

DIVISION 1. GENERALLY

Sec. 10-80. Definitions.

For the purposes of this article, except as the context may otherwise require, the following words and phrases shall have the meanings respectively ascribed to them:

Hazardous location means a building or part of a building determined hazardous by the majority opinion of the director, the chief of the fire department and the electrical inspector.

Qualified electrician means any person who has been qualified as an electrical contractor by the state board of examiners of electrical contractors.
(Code 1964, § 26-1; Code 1982, § 6-40; Ord. No. 9787, § 1, 3-15-1993)

Sec. 10-81. Cutting or disconnection of wires.

The director may cut or disconnect or have disconnected any wire in cases of emergency where necessary for safety to life or property or where such wire may interfere with the work of the fire department. The director may disconnect or order the discontinuance of electric service to any electric wiring, device, appliance or equipment found to be dangerous to life or property because they are defective or defectively installed until such wiring, device, appliance or equipment and their installation have been made safe and approved by the director.
(Code 1964, § 26-11; Code 1982, § 6-41)

Sec. 10-82. Approval of temporary service connections.

A temporary service connection may be approved by the director for a limited period of time, where such temporary service connection is necessary due to incomplete installation, temporary heat, etc. Each approval certificate for a temporary service connection shall state the length of time for which the approval has been granted. A copy of each certificate of approval for a temporary service connection shall be sent to the owner or occupant of the building in question. At the expiration of the period for which the approval has been granted, if the electrical contractor has not completed the work and requested a final inspection, or requested and received from the director an extension of time for the temporary service, the director shall notify the utility to disconnect the existing temporary service.
(Code 1964, § 26-12; Code 1982, § 6-42)

Sec. 10-83. Liability for damages.

This article shall not be construed to relieve from or lessen the responsibility or liability of any person owning, operating, controlling or installing any electric wiring, devices,

appliances or equipment for damages to person or property caused by any defect therein, nor shall the city be held as assuming any such liability by reason of the inspection authorized herein or the certificate of approval issued as provided herein.
(Code 1964, § 26-4; Code 1982, § 6-44)

Sec. 10-84. Reserved.

Sec. 10-85. Industries and institutions generally—Employment of helpers or apprentices by industries or institutions.

Any industry or institution, as provided for in this article, may employ one or more helpers and apprentices who shall not be required to possess an electrical contractor's license issued by the state board of examiners of electrical contractors; provided, such helper or apprentice shall engage in work under the direct supervision of a licensed electrician qualified by the state board of examiners of electrical contractors.
(Code 1964, § 26-66; Code 1982, § 6-46; Ord. No. 9787, § 4, 3-15-1993)

Sec. 10-86. Same—Installation, etc., of wiring, etc.

All work of installing, altering, repairing and maintaining wiring, devices, appliances and equipment on the immediate premises of any industry or institution, as provided for in this article, shall comply with the statutes of the state, and the same shall be subject to the inspection of the director.
(Code 1964, § 26-67; Code 1982, § 6-47)

Sec. 10-87. Industries and institutions renting out property—Installation, etc., of wiring, etc.

All work of installing, altering, repairing and maintaining wiring devices, appliances, and equipment on premises of an industry or institution which are held for rental purposes shall conform to all the rules of this article. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 26-68; Code 1982, § 6-48; Ord. No. 15982, § 8, 8-1-2022)

Sec. 10-88. Same—Permits, fees, etc.

In connection with the work referred to in section 10-87, a permit shall be secured for each such job and fees shall be paid for inspection according to the fee schedule of this chapter and calls for inspection of each installation, alteration or repair made on such rental property. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 26-69; Code 1982, § 6-49; Ord. No. 15982, § 9, 8-1-2022)

Sec. 10-89. Right of holder of state electrical contractor's license to engage in business of installation, etc., of electrical wiring, etc.; bond.

An electrical contractor's license issued by the state board of examiners of electrical contractors, while in force and good standing, shall entitle the person who qualified for such license to secure a privilege license to engage in the business of the installation, alteration and repair of any electrical wiring, devices, appliances or equipment within the city.
(Code 1982, § 6-50; Ord. No. 9787, § 5, 3-15-1993; Ord. No. 10014, § 2, 11-15-1993; Ord. No. 10389, § 2, 1-17-1995; Ord. No. 11916, § 1, 2-21-2000)

Secs. 10-90—10-106. Reserved.

DIVISION 2. PERMITS AND INSPECTIONS

Sec. 10-107. Permit required generally.

Except as otherwise provided, no electric wiring, devices, appliances or equipment shall be installed within or on any building, structure or premises, nor shall any alteration be made in any such existing wiring, devices, appliances or equipment unless a permit therefor shall first have been secured from the director of inspection services. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 26-17; Code 1982, § 6-80; Ord. No. 15982, § 10, 8-1-2022)

Sec. 10-108. Permit not required for installation of certain devices, etc., for operation of signals or transmission of intelligence.

No permit shall be required for the installation, alteration or repair of wiring, devices, appliances or equipment for the operation of signals or the transmission of intelligence where such wiring, devices, appliances or equipment operate at a voltage not exceeding 50 volts between conductors and do not include generating or transforming equipment capable of supplying more than 1,000 watts of energy.
(Code 1964, § 26-18; Code 1982, § 6-81)

Sec. 10-109. Permit not required for installation of certain equipment by public service corporations.

No permit shall be required of public service corporations for the installation of equipment necessary in the generation, transmission and distribution of electrical energy and the servicing of their customers' utilization equipment.
(Code 1964, § 26-19; Code 1982, § 6-82)

Sec. 10-110. Application for permit.

Any person desiring to do work for which a permit is required, as provided in this division, shall file an application therefor in writing with the director. Such application shall state the

name and address of the person for whom the work is to be done and shall be accompanied by such plans, specifications and schedule as may be necessary to determine whether the installation as described will be in conformity with the requirements of this article.
(Code 1964, § 26-20; Code 1982, § 6-83)

Sec. 10-111. Issuance of permit.

If it shall be found that the installation as described in the application will generally conform with the requirements of this article, a permit for such installation shall be issued; provided, however, issuance of the permit shall not be taken as permission to violate any of the requirements of this article.
(Code 1964, § 26-21; Code 1982, § 6-84)

Sec. 10-112. Permittee to be holder of state electrical contractor's license.

No permit shall be issued to any person unless such person is the holder of an electrical contractor's license issued by the state board of examiners of electrical contractors. A contractor's license issued by the state board of examiners of electrical contractors, while in force and good standing shall entitle the person who qualified for such license to secure permits for the installation, alteration and repair of any electrical wiring, devices, appliances or equipment within the city; provided, however, that the licensee shall give a surety bond, as required in section 10-89.
(Code 1964, § 26-22; Code 1982, § 6-85; Ord. No. 9787, § 7, 3-15-1993)

Sec. 10-113. Effect of failure to correct defects within 48 hours of notice.

Any person failing to correct any defects in any electrical work subject to inspection by the director within 48 hours after having been duly notified by the electrical inspector shall not receive further permits until such defects have been corrected.
(Code 1964, § 26-23; Code 1982, § 6-86)

Sec. 10-114. Schedule of fees.

(a) The fees for the inspection of electric wiring and equipment within or on any building, structure or premises in the city shall be set by the city council from time to time.

(b) Fees for permits issued for construction which does not occur shall be refunded, minus a service charge, upon application of the person to whom the permit was issued. The service charge retained by the city shall be equal to 15 percent of the permit fee. Application for refund of a permit fee must be made within six months of the date of issuance of the permit and must be accompanied by the permit.
(Code 1964, § 26-24; Code 1982, § 6-87; Ord. No. 5739, § 1, 8-3-1981; Ord. No. 5789, § 6, 10-19-1981; Ord. No. 7254, § 3, 6-29-1987; Ord. No. 7572, § 2, 6-30-1988; Ord. No. 7692, § 2, 12-19-1988; Ord. No. 7843, § 2, 6-28-1989; Ord. No. 10012, § 2, 11-15-1993; Ord. No. 11996, § 2, 6-19-2000; Ord. No. 13185, 12-5-2005)

Sec. 10-115. Payment of fees.

Permit fees shall be paid in cash or by credit card. The applicant may elect to set up a charge account with the city. Under the charge account system, all required payments for fees must be paid no later than the last day of the month during which the bill is first mailed when the bill is first mailed by the 15th day of the month. When the bill is first mailed after the 15th day of the month, all required payments must be paid no later than the last day of the next month.
(Code 1964, § 26-28; Code 1982, § 6-90; Ord. No. 10390, § 2, 1-17-1995; Ord. No. 13802, § 1, 5-18-2009)

Sec. 10-116. Effect of failure to pay fees.

Any electrical contractor who shall fail to pay fees as prescribed in this division shall not be granted permits.
(Code 1964, § 26-29; Code 1982, § 6-91)

Sec. 10-117. Notice and performance of inspection upon completion of work.

Upon completion of the work which has been authorized by issuance of a permit, the person installing such work shall notify the director, who shall inspect the installation within 24 hours, if practicable.
(Code 1964, § 26-30; Code 1982, § 6-92)

Sec. 10-118. Completion of rough-in work.

The rough-in work on any electrical installation shall not be considered complete until all splices have been properly made, soldered and taped.
(Code 1964, § 26-37; Code 1982, § 6-93)

Sec. 10-119. Inspection prior to concealment of work.

During the course of construction when any part of the electrical installation is to be hidden from view by permanent placement of parts of the building, the person installing the wiring shall notify the director and such parts of the wiring installation shall not be concealed until they have been inspected and approved by the director of inspection services. On large installations, where concealment of parts of the wiring proceeds continuously, the person installing the wiring shall give the electrical inspector due notice and inspection shall be made periodically as the work progresses. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 26-32; Code 1982, § 6-94; Ord. No. 15982, § 11, 8-1-2022)

Sec. 10-120. Certificate of approval.

When the director finds the installation inspected to be in conformity with the provisions of this article and the permit issued for the work, he or she shall issue to the person making the installation a certificate of approval, authorizing the use of the installation and

connection to the source of supply and shall post a suitable notice at the entrance equipment indicating that the wiring has been approved for connection to the source of supply and make this information available to the utility for convenience in making the connection. The director shall also send a copy to the owner or occupant of the building, if so requested.
(Code 1964, § 26-31; Code 1982, § 6-95)

Sec. 10-121. Notice of defects.

If upon inspection any electrical installation is found not to be fully in conformity with the provisions of this article, the director shall at once notify the person making the installation either verbally or by written notice, stating the defects which have been found to exist.
(Code 1964, § 26-33; Code 1982, § 6-96)

Sec. 10-122. Approval of wiring upon reconnection of commercial and industrial type occupancies.

In all commercial and industrial type occupancies which have been vacated and to which electric service has been discontinued, the electric service shall not be reconnected until the wiring has been approved by the director. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 26-36; Code 1982, § 6-97; Ord. No. 15982, § 12, 8-1-2022)

Secs. 10-123—10-142. Reserved.

DIVISION 3. STANDARDS AND SPECIFICATIONS

Sec. 10-143. Installation of electrical wiring and appliances in existing residence buildings.

In existing residence buildings, no person shall install electric wiring or appliances which will contribute to family occupancy number in excess of the restriction for that particular zone under the UDO. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 26-62; Code 1982, § 6-103; Ord. No. 15982, § 13, 8-1-2022)

Sec. 10-144. Wires over streets and sidewalks.

No person shall install wires or cables above the city's streets or sidewalks unless such person has a franchise for the purpose or has first secured a permit from the city council. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 26-63; Code 1982, § 6-104; Ord. No. 15982, § 14, 8-1-2022)

Secs. 10-145—10-171. Reserved.

ARTICLE IV. MECHANICAL CODE

Sec. 10-172. Permit.

(a) *Required for installations, etc.* No person shall begin the installation or major repair of any boiler, warm-air heating, fired or unfired vessel unless he or she shall first have obtained a permit therefor from the director in accordance with the provisions of this article.

(b) *Application.* Any person desiring a permit, as required in this article, shall file an application therefor with the director.

(c) *Conditions.* All permits, as required in this article, shall be given upon condition that the director may at any time revoke and annul the permit when the work being done pursuant thereto is not being properly executed and upon the further condition that the parties interested shall not have any claim for damages in consequence of such permit's being revoked or annulled.

(d) *Available remedies.* In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, §§ 27-10—27-12; Code 1982, §§ 6-113—6-115; Ord. No. 15982, § 15, 8-1-2022)

Sec. 10-173. Inspection fees—Generally.

(a) Every person who obtains a permit prescribed by section 10-172(a) shall pay to the city a fee for inspection of the work authorized by the permit according to the fee schedule as is set from time to time by the council.

(b) Fees for permits issued for construction which does not occur shall be refunded, minus a service charge, upon application of the person to whom the permit was issued. The service charge retained by the city shall be equal to 15 percent of the permit fee. Application for refund of a permit fee must be made within six months of the date of issuance of the permit and must be accompanied by the permit.
(Code 1964, § 27-13; Code 1982, § 6-116; Ord. No. 5025, § 1, 11-20-1978; Ord. No. 5740, § 1, 8-3-1981; Ord. No. 5789, § 7, 10-19-1981; Ord. No. 6770, § 1, 9-3-1985; Ord. No. 7254, § 4, 6-29-1987; Ord. No. 7572, § 3, 6-30-1988; Ord. No. 7692, § 3, 12-19-1988; Ord. No. 7843, § 3, 6-28-1989; Ord. No. 10012, § 3, 11-15-1993; Ord. No. 11996, § 3, 6-19-2000; Ord. No. 13185, 12-5-2005)

Sec. 10-174. Same—Payment on cash basis.

Permit fees shall be paid in cash or by credit card. The applicant may elect to set up a charge account with the city. Under the charge account system, all required payments for fees must be paid no later than the last day of the month during which the bill is first mailed

when the bill is first mailed by the 15th day of the month. When the bill is first mailed after the 15th day of the month, all required payments must be paid no later than the last day of the next month.
(Code 1964, § 27-14; Code 1982, § 6-117; Ord. No. 10390, § 3, 1-17-1995; Ord. No. 13802, § 1, 5-18-2009)

Secs. 10-175—10-201. Reserved.

ARTICLE V. PLUMBING CODE

Sec. 10-202. Schedule of fees.

(a) The schedule of plumbing code fees shall be set from time to time by the council.

(b) Fees for permits issued for construction which does not occur shall be refunded, minus a service charge, upon application of the person to whom the permit was issued. The service charge retained by the city shall be equal to 15 percent of the permit fee. Application for refund of a permit fee must be made within six months of the date of issuance of the permit and must be accompanied by the permit.
(Code 1964, § 28-2(d); Code 1982, § 6-134; Ord. No. 5742, § 1, 8-3-1981; Ord. No. 5789, §§ 8, 9, 10-19-1981; Ord. No. 7254, § 5, 6-29-1987; Ord. No. 7572, § 4, 6-30-1988; Ord. No. 7692, § 4, 12-19-1988; Ord. No. 7843, § 4, 6-28-1989; Ord. No. 11996, § 4, 6-19-2000; Ord. No. 13185, 12-5-2005)

Sec. 10-203. Payment of fees.

Permit fees shall be paid in cash or by credit card. The applicant may elect to set up a charge account with the city. Under the charge account system, all required payments for fees must be paid no later than the last day of the month during which the bill is first mailed when the bill is first mailed by the 15th day of the month. When the bill is first mailed after the 15th day of the month, all required payments must be paid no later than the last day of the next month.
(Code 1982, § 6-136; Ord. No. 13802, § 1, 5-18-2009)

Secs. 10-204—10-229. Reserved.

ARTICLE VI. HOUSING CODE*

Sec. 10-230. Title.

*__Editor's note—__Ord. No. 14271, §§ 1, 2, adopted June 4, 2012, repealed and reenacted article VI in its entirety to read as herein set out. Formerly, article VI, §§ 10-230—10-238 pertained to similar subject matter and derived from the Code of 1982, §§ 6-150—6-158; Ord. No. 10064, § 2, adopted February 7, 1994; Ord. No. 10156, § 1, adopted April 4, 1994; Ord. No. 10187, § 1, adopted June 20, 1994; Ord. No. 10342, §§ 1—3, adopted November 21, 1994;

This article shall be known and may be cited and referred to as the "Housing Code."
(Ord. No. 14271, § 2, 6-4-2012)

Sec. 10-231. Legislative findings.

The city council hereby finds and declares that there exists in the city, housing which is unfit for human habitation due to dilapidation, defects increasing the hazards of fire, accidents or other calamities, lack of ventilation, light or sanitary facilities and other conditions rendering such housing unsafe or unsanitary or dangerous or detrimental to the health or safety or otherwise inimical to the welfare of the residents of the city and that a public necessity exists to exercise the police powers of the city pursuant to G.S. 160D-1201 et seq., to cause the repair and rehabilitation, closing or demolishing of such housing in the manner herein provided.
(Ord. No. 14271, § 2, 6-4-2012; Ord. No. 15851, pt. 1, 6-21-2021)

Sec. 10-232. Scope, application and administration of article.

(a) The provisions of this article shall apply to all housing irrespective of when such housing was constructed, altered or repaired. Portable, mobile or demountable buildings or structures, including trailers, when used or intended for use for housing within the city's jurisdiction shall be subject to the applicable provisions of this article.

Ord. No. 10414, § 1, adopted March 6, 1995; Ord. No. 10636, § 1, adopted November 20, 1995; Ord. No. 11715, §§ 1—5, adopted June 7, 1999; Ord. No. 12322, §§ 1, 2, adopted June 18, 2001; Ord. No. 12790, § 1, adopted April 21, 2003; Ord. No. 13305, §§ 1—4, adopted September 5, 2006; Ord. No. 13336, §§ 1, 2, adopted November 20, 2006; Ord. No. 13574, Pt. 1, adopted April 7, 2008; Ord. No. 13677, § 1, adopted August 18, 2008; Ord. No. 13679, § 1, adopted August 18, 2008; Ord. No. 13991, §§ 1, 2, adopted May 17, 2010, and Ord. No. 14231, § 2, adopted March 5, 2012.

Charter reference—Unsafe buildings, § 100.

State law reference—Unsafe buildings, etc., G.S. 160D-1118 et seq.

(b) Exercise of powers and duties by administrator. The administrator is designated and appointed to exercise the powers and perform the duties described by this article.

(c) The administrator may determine that housing is unfit for human habitation if he or she finds that sufficient conditions exist in such housing which is dangerous or injurious to the health or safety of the occupants of such housing, the occupants of neighboring housing or other residents of the city. Such conditions may include the following: defects therein increasing the hazards of fire, accident, or other calamities, lack of adequate ventilation, light or sanitary facilities; dilapidation, disrepair, structural defects, uncleanliness; or any violation described in this article.
(Ord. No. 14271, § 2, 6-4-2012)

Sec. 10-233. Definitions.

The following words and phrases shall have the meanings set forth herein unless the context clearly indicates otherwise:

Accessory structure means a structure that is a detached building, like a shed, that is on the same lot as the main housing, but is used for a different purpose other than a dwelling.

Administrator means the housing code administrator or his or her designee.

Agent means any person, firm or corporation who is responsible for the management, maintenance, operation, renting, leasing or sale of any property, or who makes application for or seeks a permit or certificate on behalf of the owner or who in any other way represents the owner in any particular case.

Alley means a strip of land, typically no more than 20 feet in width, either publicly or privately owned, or dedicated or maintained by a public agency, that is set aside primarily for vehicular service access to the rear or side of properties otherwise abutting on a street.

Areaway means any subsurface space adjacent to a building for affording access to or for lighting or ventilating the basement or a cellar of such building.

Basement means the lowest level or story which has its floor sub-grade on at least three sides.

Bathroom means a heated enclosed space containing a lavatory, a toilet, and either a tub, a shower or a tub/shower combination.

Ceiling means the surface suspended from or attached to the underside of floors or roofs which does not form a structural part of a floor or roof or the underside of an exposed floor or roof construction.

Ceiling height means the clear distance between the floor and the ceiling directly above.

Cellar means the lowest space in a building located under the basement story.

Central heating unit means a unit controlled by a thermostat or some other device designed to provide heating to a dwelling or dwelling unit through a duct, wall-mounted system or baseboard-mounted equipment.

Dwelling means any building, or structure, or part thereof, used and occupied for human habitation or intended to be so used, and includes any outhouses and the appurtenances belonging thereto or usually used therewith.

Dwelling unit means a habitable space occupied or intended for occupation as a single housekeeping unit with facilities which are used or intended for use for living, sleeping, cooking and eating.

Excessive means exceeding what is usual, proper, necessary, or normal.

Exit means a way of departure from the interior of a building or structure to the exterior at street or grade level.

Extermination means the control and elimination of insects, rodents and other pests by eliminating their harborage, by removing or making inaccessible materials that serve as their food, by poisoning, spraying, fumigating, trapping or by any other recognized and lawful pest elimination method approved by the administrator.

Family means one or more persons living together and having common housekeeping facilities.

Fireproofing means protected to resist the damaging effects of fire in accordance with the requirements of this article for such construction.

Flue means an enclosed pipe, duct or passageway used only for the transmission of heat or the products of combustion.

Garbage means the animal and vegetable waste resulting from the handling, preparation, cooking and consumption of food.

Habitable space, habitable room means any room or enclosed floor space in a structure used or intended for use for living or sleeping and finished basements, but excluding bathrooms, half-baths, halls, corridors, pantries, storage space, closets, laundries, kitchens and other spaces not used frequently or for extended periods.

Half-bath means an enclosed space containing a toilet or urinal and lavatory basin.

Hearth means the brick, stone or cement area in front of a fireplace.

Heating unit means all mechanical devices or other appliances that utilize fuel or another form of energy to produce heat.

House, housing means any dwelling, multifamily dwelling, apartment, residency hotel, roominghouse, boardinghouse, bed and breakfast, inn or similar building or structure, or part thereof, containing habitable space.

Housing certificate means written certification by the administrator that a dwelling or dwelling unit or rooming unit is in compliance with this article.

Impervious to water (as to floors) means a clean, smooth floor, without cracks or holes, made of terrazzo, ceramic, asphalt or rubber tile, smooth concrete, linoleum or other similar material, or made of wood, and, if made of wood, then with tightly fitting joints, covered with varnish, lacquer or other similar water-resistant coating.

Infestation means the presence within or around any housing of insects, rodents, or other pests.

Lavatory means a fixed wash bowl equipped with plumbing.

Maintenance of a building, structure, apparatus or equipment means the way or manner in which any such building, structure, appliance, apparatus or equipment is serviced, repaired or altered to perpetuate the use or purpose for which such building, structure, appliance, apparatus or equipment was originally intended.

Multifamily dwelling means a building or structure occupied or intended for occupation as the home or residence of two or more families living independently of each other and doing their own cooking within their respective dwelling unit.

Neighborhood association means a person who represents a neighborhood-based group with organized membership meetings, focusing on neighborhood-related issues.

North Carolina State Building Code means all of the North Carolina Building Codes as adopted by the Building Code Council including but not limited to the North Carolina Residential Code, Plumbing Code and Electric Code.

Occupant means any person living, sleeping, cooking, or eating in or having actual possession of a dwelling unit or rooming unit.

Owner means any person, firm, corporation, guardian, conservator, receiver, trustee, executor, or other judicial officer, who alone or jointly owns, holds, or controls the freehold or leasehold title to any dwelling or dwelling unit and every mortgagee of record.

Parties in interest mean all individuals, associations and corporations who have an interest of record in a dwelling and any who are in possession thereof.

Person means any individual, firm, co-partnership, corporation, company or association, and shall include any personal representative, trustee, receiver, assignee or other similar representative.

Plumbing means the water supply system, the sanitary sewer system, the vent system, fixtures and traps and shall include their respective connections, devices, appliances and nonessential components within the property lines of the premises.

Portable heating unit means an unvented air heating appliance which is designed for environmental heating and is not secured or attached to a building by any means other than an electrical cord.

Premises means a lot or group of lots including any building or group of buildings or other structures or parts thereof, which may be situated thereon and considered as a unit devoted to a certain use or occupancy, including the necessary and customary accessory buildings and other open spaces required or used in connection with such use of a lot or group of lots.

Public area means that space within any housing which is open to use or access by the general public.

Public authority means any housing authority or any officer who is in charge of any department or branch of the government of the city, county or state relating to health, fire, building regulations or to other activities concerning dwellings in the city.

Removal means the demolition and removal of the entire structure, leaving the property free and clear of debris and without holes or pockets which may retain water.

Residency hotel means a building or group of buildings containing ten or more guest rooms for transient or permanent residents. Occupancy shall not exceed two people per guest room. Registration facilities, 24-hour on site management and housekeeping services shall be provided. This definition does not include hotels, motels or other places of lodging that are inspected by the county health department.

Roofing means the shingles, tiles, composition, sheet metal covering or other waterproof protection on top of a roof.

Rooming unit means a room or group of rooms forming a single habitable space, used or intended to be used for living and sleeping, but not for cooking or eating purposes. Any room or group of rooms in a roominghouse, boardinghouse, bed and breakfast inn, residency hotel or other similar building that is used for human habitation shall constitute a rooming unit.

Roominghouse, boardinghouse means any housing or part of any housing containing one or more rooming units in which space is let by the owner or operator to four or more persons who are not members of the family of the owner or operator.

Rubbish means combustible and noncombustible waste materials, except garbage, and the word shall include, but not be limited to, the residue from the burning of wood, coal, coke and other rubber, leather, tree branches, yard trimmings, tin cans, metals, mineral matter, glass, crockery and dust.

Space heating unit means a permanently installed unit which utilizes fuel or another form of energy and is designed to provide continuous heat to a dwelling or part of a dwelling.

Structure means a walled and roofed building that is principally above ground and constructed or erected, the use of which requires location on land.

Substantial means that the structure or fence is firmly constructed, sturdy, safe, sound, solid, or stout in a manner to adequately perform its original purpose.

Tenant means a person, co-partnership, firm or corporation occupying or using a building, premises or any part thereof owned by another.

Ventilation means the adequate supply and removal of air to and from a space through windows, skylights, doors, louvers, grilles, ducts or other similar devices.

Water heating unit means an appliance listed by a testing laboratory which is capable of heating water to a temperature between 120 and 140 degrees Fahrenheit to all appropriate plumbing fixtures within a dwelling or dwelling unit.

Weather tight means so constructed that the structure resists weather and excludes rain and snow, and prevents the infiltration of air.

Workmanship means executed in a skilled manner that is generally plumb, level, square, in line, undamaged and without marring adjacent work.
(Ord. No. 14271, § 2, 6-4-2012)

Sec. 10-234. Standards of fitness.

(a) *Space and use standards.*

(1) *Contents of dwelling unit.* Every dwelling unit shall contain the following:

a. A principal room of not less than 120 square feet;

b. A bathroom that affords privacy and contains a toilet, lavatory and either a tub or shower;

c. A habitable room, including all bedrooms, shall not be less than seven feet in any plan dimension, have at least 70 square feet and shall have a clear ceiling height of not less than seven feet;

d. At least 150 square feet of floor area in habitable rooms for the first occupant, at least 100 square feet for each additional occupant. The floor area shall be calculated on the basis of the total floor area of the dwelling unit, exclusive of stairways. For the purpose of such calculation, only the floor area in a basement meeting the requirements for basement occupancy shall be counted.

e. A closet or storage space, such as an armoire or wardrobe, suitable for clothing and personal belongings, providing a minimum storage area of 20 cubic feet.

(2) *Kitchen and kitchen facilities.*

a. Every dwelling unit shall contain a room or space for the preparation and cooking of food which shall include space and connections for a stove or other cooking facilities, space for dry food storage and space for refrigerated food storage and a kitchen sink.

b. The use of gasoline stoves or other similar fuel burning appliances using highly flammable liquids and the use of portable kerosene stoves or other similar fuel burning portable appliances for cooking are prohibited.

c. Hoods and ducts over kitchen ranges shall be cleaned to remove grease or other flammable materials. The owner shall provide a clean hood fan and the occupant is responsible for the cleaning of the hood fan during occupancy.

d. All fuel burning appliances shall be properly vented to the outside.

(3) *Basement occupancy.* No room in any basement shall be occupied as a habitable room, bathroom or toilet room unless:

a. There are no pipes, ducts or other obstructions to a walk area less than six feet above the floor level or less than five feet eight inches above the floor level in a bathroom or toilet room existing on the effective date of this article, and ceiling heights are in accordance with this article, except that a bathroom existing on the effective date of this article with at least one-half of the floor area having a ceiling height of not less than six feet six inches shall be permitted to continue;

b. Light and ventilation for habitable rooms are provided in accordance with this article and 70 percent of the regular window area is above the ground level, except when window areaways or window wells are provided so that the minimum width of the areaway or well is not less than twice the distance from the bottom of the window to the finished grade; and

c. The floor and walls, if in contact with the earth, are waterproof and dampproof in accordance with an acceptable method that assures that the damp proofing and water proofing continues to be effective.

(4) *Passing through bathrooms.* Each dwelling unit shall be provided with a means of circulation giving access to all rooms without passing through a bathroom; but any passage through a bathroom existing at the time of the effective date of this article may be continued.

(5) *Doors.* Doors shall be provided at all doorways leading to bedrooms, bathrooms and all rooms adjoining a public area.

(6) *Prohibited uses.* Kitchen and non-habitable or public spaces shall not be used for sleeping purposes. No cellar space shall be used as a habitable space.

(b) *Entrances and exits.*

(1) All entrances and exits must meet the applicable standards set forth in the North Carolina State Building Code.

(2) All entrances and exits shall be reasonably weather tight, and in good repair including door, frame, and casing.

(3) Doors providing entrance and exit for any dwelling unit shall have locking devices capable of being operated from the inside and outside of the dwelling. Barrel bolts and hasps with padlocks are not adequate for primary doors. This requirement shall not apply to screen, storm or louver doors.

(4) A clear means of egress shall be provided from all habitable areas of a dwelling or dwelling unit. Clear passage shall not be obstructed by the placement, construction, and/or storage of any items or materials. Doors shall be capable of opening to 90 degrees of door frame to allow for clear passage.

(5) Safe, continuous and unobstructed exit shall be provided from interior of building to the exterior at street or grade level.

(6) Platforms and steps shall be provided, where appropriate, to serve exits and shall be maintained in a safe condition.

(7) In all multifamily dwellings, all exit signs required by the laws and ordinances of the city shall be provided and maintained so as to be clearly visible at all times when the building is occupied.

(c) *Light and ventilation standards.*

(1) Every habitable room in a dwelling or dwelling unit shall contain a window opening directly to the outside air and the total glass area of such window shall not be less than eight percent of the floor area of such room, provided that the administrator may approve such other arrangement as will adequately light and ventilate the room where provision for openable windows is not feasible. All window sashes shall be glazed and provided with suitable hardware including a locking mechanism and shall be made to open freely to the extent of not less than four percent of the floor area of such room.

(2) When a window cannot be provided to open directly to the outside air, a ventilating system which is vented to the outside may be substituted for the required window area. A blind, bathroom or toilet room shall be provided with artificial light and mechanical ventilation. However, existing ventilating systems in bathrooms and toilet rooms which are functioning adequately may be permitted to remain.

(3) All operable and openable windows shall be adequately screened or equipped with storm windows with screens included. Screens shall not be permanently fixed to the window frame or sash unless designed by the manufacturer. All operable or openable exterior doors shall have either a screen door or a storm door, equipped with a self-closing device. Note: This requirement shall not apply to dwelling units containing a heating and air conditioning system providing the dwelling unit with year round mechanical ventilation, including permanently installed systems which provide such mechanical ventilation for one or more rooms. This requirement shall apply to dwelling units equipped with window air conditioning units which are not permanently installed.

(4) Window frames and glass shall be reasonably weather tight, with no cracked or broken glass. If, in the opinion of the administrator, certain cracked glass does not present a danger or hazard, a waiver of this provision may be granted.

(5) Openable window area in each toilet room and bathroom shall be at least one and one-half square feet, unless served by other approved ventilation.

(6) Every sleeping room, unless it has two exits, or one exit direct to the outside, shall have at least one window that can be opened without the use of tools, including burglar bars, to provide a clear opening not less than 16 inches in least dimension

and 432 square inches in area, or if of fixed glass must be at least 24 inches by 24 inches, with the bottom of the opening not more than four feet above the floor. Required openable window area shall have fixed screens.

(7) Clothes dryer exhaust systems shall be vented in accordance with the manufacturer's instruction.

(d) *Lighting of halls and stairs.* Every common hallway and stairway in every multifamily dwelling shall be adequately lighted at all times with fixtures sufficient to provide at least three foot-candles of light at the floor or stair tread level at all times. Non multifamily dwellings may be supplied with conveniently located light switches controlling the lighting system which provides the illumination required herein and which may be turned on when needed.

(e) *Heating.*

(1) *Heating facilities.* Every dwelling and dwelling unit shall be provided with a heating unit which is properly designed, installed and balanced or adjusted, maintained in good and safe condition and which is capable of safely and adequately heating all habitable rooms, bathrooms and water compartments located therein to a temperature of 68°F (20°C) in all habitable rooms, bathrooms and toilets. The required room temperatures shall be measured three feet above the floor near the center of the room and two feet inward from the center of each exterior wall. All rooms may vary in temperature by as much as ten degrees Fahrenheit. Either central or space heating units designed for continuous use may be used. Portable or temporary space heaters are strictly prohibited as a primary source of heat, but may be used to supplement heating.

(2) *Central heating units.*

a. Every central heating unit shall:

1. Have every duct, pipe or tube free of leaks and functioning properly to provide an adequate amount of heat or hot water to the intended place of delivery;

2. Be provided with proper seals between sections of hot air furnaces to prevent the escape of noxious fumes and gases into heat ducts;

3. Be properly connected to an electric circuit of adequate capacity in an approved manner if electrical power is required; and

4. Be provided with all required automatic or safety devices and be installed and operated in the manner required by the laws, ordinances and regulation of the city.

b. All liquid fuel used to operate any central heating unit shall be stored in accordance with the city's fire prevention and building codes;

c. All gas and oil heating equipment installed on the premises shall be listed by a testing laboratory and shall be installed, including proper ventilation, in accordance with the applicable provisions of the North Carolina State Building Code.

(3) *Space heating units.*

a. Every space heating unit shall:

1. Not use gasoline or other similar highly flammable liquid fuel;
2. Not be of portable type using solid, liquid or gaseous fuel;
3. Be properly connected according to the manufacturer's instructions on installation;
4. Be so located or protected as to prevent any overheating of adjacent combustible material;
5. If employing electricity, be connected to a circuit of adequate capacity in an approved manner;
6. Be provided with all required automatic or safety devices; and
7. Be installed under permit and be properly operated.

b. A kerosene space heater which has its fuel piped to the heater from a remotely installed bulk tank shall be permissible under this section. Other portable kerosene space heaters are strictly prohibited as a primary source of heat.

c. All unvented gas-fired heating units are strictly prohibited, as a primary source of heat.

d. Ornamental gas logs may be installed in a fireplace provided that such installation is in compliance with the applicable portions of the North Carolina State Building Code.

(4) *Fireplaces and chimneys.* The following standards and conditions shall be applicable to fireplaces and chimneys unless rendered inoperable:

a. Chimneys shall be tight and safe, and capable of maintaining proper draft for carriage of combustion by-products to outside air.

b. Chimneys shall be kept clean of soot and other debris.

c. No holes shall be permitted in flue, except for necessary vent connections and clean out doors.

d. All existing hanging masonry chimneys shall be removed.

e. Thimbles shall be grouted in tight.

f. Thimbles shall be located high enough to provide proper draft for the heating appliances served thereby.

g. Fireplaces may be used only for supplemental heat and not as the primary heating source for a dwelling. This section does not exclude the use of wood burning stoves or inserts as the primary heating source for a dwelling.

h. The hearth and the hearth extension shall extend a minimum of 36 inches from the back of the firebox to the end of the hearth extension. The hearth extension shall extend at least 16 inches in front of and at least eight inches beyond each side of the fireplace opening. Where the fireplace opening is six square feet or larger, the hearth extension shall extend at least 20 inches in front of and at least 12 inches beyond each side of the fireplace opening.

i. No combustible materials shall be permitted within seven inches of the top and seven inches of either side of the fireplace opening.

j. Where fireplace is closed and converted to other use, there shall be masonry closure of face and proper lining or vent installed in chimney where same does not exist.

(f) *General requirements relating to safety and maintenance.*

(1) *Good repair and safe condition.* Every building and all parts thereof used or occupied as a dwelling shall be kept in good repair, in safe condition and fit for human habitation. The roof and walls of all such buildings shall be maintained so as not to leak; and all means of draining water therefrom shall be maintained as to prevent dampness in the walls, ceiling or crawl space or basement.

(2) *Quality of materials and workmanship.* All materials shall be of similar design and similar quality and shall meet the applicable standards set forth in the North Carolina State Building Code. Plumbing, mechanical, and electrical components shall meet the applicable standards set forth in the North Carolina State Building Code. The quality of workmanship shall be based on standards generally accepted in the construction industry.

(3) *Boarding of doors and windows.* No structure or portion of a structure shall be permitted to have any door or window boarded, secured, or obstructed with wood, plywood or other opaque material, unless authorized by the administrator. The administrator shall establish a policy regarding securing a dwelling.

(g) *Structural standards.*

(1) *Foundation.*

a. Every dwelling unit shall be on firm ground. Foundation drainage shall be provided and maintained so as to prevent standing water or other conditions that contribute to mold. Crawlspaces shall be free of high-moisture conditions or sealed from dwelling areas.

b. Footings shall be sound with adequate bearing.

c. All elements of the foundation, including structural members and masonry, shall be in good repair. An engineer's report indicating structural soundness satisfies this requirement.

d. No piers shall be used for support in which the plumb line from top center falls outside the middle one-third of the base of the pier. (A plumb bob held firmly against the top of the pier and hanging down the sidewall indicates the vertical alignment.)

e. No isolated masonry piers exceeding in height ten times the least dimension of pier shall be permitted.

f. A crawl space access hole having a door shall be provided to any under floor space in all dwellings.

(2) *Walls, exterior.*

a. All exterior surfaces shall be structurally sound, waterproof, weatherproof, and vermin proof.

b. All exterior finishes shall be weather tight with no holes, cracks or rotted boards which permit outside air or water to penetrate rooms.

c. Windows shall be easily openable, shall have panes without cracks or holes and the sash shall fit properly.

d. All structure or load bearing walls, exterior or interior, shall not be bowed or out of plumb and shall be structurally sound. A report from licensed engineer indicating compliance with this provision satisfies this requirement.

e. Studs shall provide sufficient support for sheathing or exterior finish.

(3) *Roofs.*

a. Roofing shall be provided to prevent the entrance of moisture and shall be maintained by renewal, repair, waterproofing or other suitable means.

b. Gutters and downspouts, if installed, shall be provided to properly collect, conduct and discharge the water from the roof and away from the structure.

c. Roofs shall be supported and no rafters shall be rotted, broken, sagging or have improperly supported ends. A report from a licensed engineer indicating compliance with this provision satisfies this requirement.

d. Attics shall have ventilation that allows the movement of air to dissipate excessive heat buildup. Heat buildup is excessive if it causes deterioration of any structural member or roofing material.

e. Sheathing shall not be rotted, loose or sagging excessively.

f. Roof covering shall not be loose, have missing shingles or other damaged roofing components, nor have holes, leaks, or evidence of current leaks.

g. Adequate flashing shall be provided at walls and chimneys in a manner that continues to be effective.

h. Roofs shall be kept free of vegetation which compromises or otherwise damages the integrity of materials or function of the roof, roof overhang, fascia, soffit,

gutters, or other portion of the roof structure. However, this section does not apply to properly functioning "living" or "green" roof systems approved through a city or county approval or permitting process.

(4) *Stairs steps and porches.*

a. Stairs and steps shall be free of holes, grooves and cracks large enough to constitute accident hazards.

b. Handrails shall be provided on at least one side of stairways of four or more risers.

c. No flight of stairs shall be settled out of its intended position or pulled away from supporting or adjacent members. A report from a licensed engineer indicating compliance with this provision satisfies this requirement.

d. Stairs shall be strongly supported and supports shall not be rotting, sagging or deteriorated. A report from a licensed engineer indicating compliance with this provision satisfies this requirement.

e. Stairs shall be plumb, level and treads shall be uniform in width, and risers shall be uniform in height, sound and securely fastened to structure. A slight uniform tilt of the treads to aid in the runoff of water is permissible for exterior steps.

f. Every stairway, including inside stairs and rails, porches, decks and appurtenances thereto shall be kept in sound condition and good repair.

g. Platforms and steps shall be provided to serve exits and shall be maintained in a safe condition.

h. Guards shall be provided along open-sided walking surfaces, including stairs, ramps and landings where the distance from the surface to the grade is greater than 30" at any point within 36" horizontally to the edge of the open side. Newly installed guards shall meet current NC State Building Code standards.

(5) *Ceilings.*

a. Joists and supporting members shall provide sufficient support for the ceiling.

b. No holes or cracks which permit outside air to penetrate rooms shall be permitted.

c. There shall be no loose plaster, boards, sheetrock, or ceiling finish. Any materials used in the repair of the ceiling shall be of a material that is similar in texture and appearance to the original material. This provision does not prohibit the replacement of the entire ceiling; provided that the material used is contiguous over the entire ceiling area within the affected room.

d. Ceilings shall be maintained free of holes, excessive cracks or loose or deteriorated materials.

e. All ceilings shall be kept clean and free of any flaking, loose or peeling paint and paper.

f. A minimum clear opening (attic access hole) into each attic space of 14 inches by 24 inches shall be provided to allow for access, inspection and repair. The administrator may grant a waiver of this requirement in cases where meeting this requirement would necessitate major alterations of the structure, or would produce harmful accumulations of heat or moisture that cannot be removed by ventilation.

g. Every dwelling unit shall have a minimum of R-19 insulation in the attic area. The approved types include blown insulation, batt insulation or other insulation equivalent to a total of R-19 insulation value.

(6) *Walls, interior.*

a. Interior finish shall be free of excessive holes and excessive cracks which:

1. Permit outside air or moisture to penetrate rooms;

2. Allow rodent or insect infiltration; or

3. Contain loose or flaking materials.

b. All walls, woodwork, doors and windows shall be kept clean and free of any flaking, loose or peeling paint.

c. There shall be no loose plaster, boards, or other loose wall materials.

d. Cardboard, newspaper or other highly combustible or improper wall finish is prohibited.

e. Studs shall provide sufficient support for interior wall.

f. Doors must fit the opening in which they are hung and be equipped with hardware that allows for their opening and closing.

(7) *Floors.*

a. Broken, overloaded, excessively decayed or sagging structural floor members are prohibited.

b. Structural floor members shall be supported on foundation walls and piers that are not deteriorated and perform the function for which they were intended.

c. Floor joists shall be supported on structural bearing members and shall not be made structurally unsound by deterioration.

d. Flooring shall be reasonably smooth, not rotten or worn through, and without holes or excessive cracks which permit outside air to penetrate rooms.

e. Flooring shall not be loose.

f. Split, splintered or badly worn floor boards shall be repaired or replaced.

g. Floors in contact with soil shall be paved either with concrete not less than three inches thick or with other masonry not less than four inches thick, which shall be sealed tightly to the foundation walls.

h. All laundry and kitchen floors shall be constructed and maintained so as to be impervious to water.

(h) *Property maintenance.*

(1) *Structures.*

a. Floors, walls, ceilings and fixtures shall be maintained in a clean and sanitary condition.

b. Every dwelling unit shall be maintained so as to prevent persistent excessive dampness or moisture on interior or exterior surfaces. Building materials discolored or deteriorated by mold or mildew or conditions that may contribute to mold, shall be cleaned, dried, and repaired.

(2) *Open areas.*

a. Surface and subsurface water shall be appropriately drained from open areas to protect structures and to prevent development of stagnant ponds.

b. Fences and all accessory structures shall be maintained in a safe and substantial condition, and be kept in good repair. Accessory structures shall include, but are not limited to sheds, storage buildings and detached carports and garages.

c. Yards and courts within the boundaries of the property shall be kept clean and free of physical hazards, rubbish, trash, garbage, debris, litter, or unstacked wood.

d. Unmaintained accumulations of dense weeds, grass, vines or briars over 12 inches in height, and within either 100 feet of an abutting public street or 50 feet of a primary residential structure, not including detached accessory structure, shall be prohibited if deemed to constitute a public nuisance by the administrator. A public nuisance in this provision is defined as conditions that serve as a harborage for rodents, vermin, mosquitoes and other pests and represents a detriment, danger or hazard to the health, safety and welfare of the residents of the city's jurisdiction. Such accumulations of growth shall be cleared and cut to no more than six inches in height.

e. Every owner shall provide a site for storage of trash receptacles in a location away from the curb and located to the side or back of the dwelling structure so that trash and garbage will not scatter on the property beyond that site. Occupants shall be responsible for ensuring that all garbage and containers are placed at the site provided.

f. Retaining walls or any other wall supporting systems shall not present a physical hazard and shall be structurally safe and supported properly.

g. Sidewalks and driveways. All sidewalks, walkways, stairs, driveways, parking spaces and similar areas shall be kept in a proper state of repair, and maintained free from hazardous conditions.

h. Premises identification. Housing (dwellings) shall have approved address numbers, building numbers or approved building identification that is plainly legible and placed in a position visible from the street or road fronting the property. These numbers shall contrast with their background. Address numbers shall be a minimum of 4" high with a minimum stroke of ½ inch.

(3) *Infestation.*

a. Grounds and structures shall be maintained free of insect vermin, and rodent harborage and infestation by generally accepted method of extermination. The owner of any structure shall be responsible for extermination within the structure prior to renting or leasing the structure.

b. Every basement window used or intended to be used for ventilation, and every other opening to a basement which might provide an entry for rodents, shall be supplied with a screen or such other device as will effectively prevent their entrance.

c. In every dwelling unit, unless the dwelling is provided with an air conditioning system as provided for in subsection (c)(3) of this section, for protection against mosquitoes, flies, and other insects, every door opening directly from a dwelling unit to outdoor space shall have supplied and installed screens and a self-closing device; and every window or other device with openings to outdoor space, used or intended to be used for ventilation, shall likewise be supplied with screens installed.

(i) *Electrical standards.*

(1) *Electrical service.*

a. Every dwelling unit and all public and common areas shall be supplied with adequate electric service, which shall be properly installed pursuant to the applicable portions of the North Carolina State Building Code.

b. No receptacles, ceiling fixtures or other devices shall be permitted to hang loose.

c. All switches, fixtures and devices shall be safely operable or else properly sealed off and disconnected.

d. Flexible cords shall not be used as a substitute for the fixed wiring; run through holes in walls, ceilings, or floors; run through doorways, windows or similar openings; attached to building surfaces; concealed behind building walls, ceilings or floors.

e. Circuits shall not be overloaded.

f. Fuses shall be sized correctly and not bridged out.

g. Every public hall and stairway in every multifamily dwelling shall be adequately lighted at all times. Refer to subsection (d) of this section.

h. All electric wiring, devices, appliances and fixtures shall be installed and maintained in accordance with the current city and state electrical codes, except as herein stated.

(2) *Electrical outlets.*

a. Every habitable room shall contain at least two separate duplex convenience outlets. Outlets shall be located as reasonable as possible to provide service to appliances in different parts of the same room.

b. All outdoor outlets and electrical devices shall be ground-fault circuit interruption (GFCI) protected.

(3) *Electrical fixtures.* At least one fixed in place ceiling or wall type electric light fixture shall be provided in every toilet room, bathroom, laundry room, furnace room, public hall, basement or any other area in which artificial light is required for the safety and welfare of the occupants. A switched wall receptacle or light fixture shall be acceptable in a bedroom, living room or den.

(j) *Plumbing standards.*

(1) *General.*

a. Every dwelling unit shall be connected to a city water supply and/or sanitary sewer system unless the dwelling unit is connected to a county approved water supply and/or sanitary sewer system.

b. All plumbing, water closets and other plumbing fixtures in every dwelling or dwelling unit shall be installed and maintained in good working condition and repair and in accordance with the requirements of this article and the applicable portions of the North Carolina State Building Code.

c. All plumbing shall be so maintained and used as to prevent contamination of the water supply through cross connections or back siphoning.

d. All fixtures, piping and other plumbing system components shall be in proper working condition with no leaks.

e. No fixtures shall be cracked, broken or badly chipped.

f. All water piping shall be protected from freezing by proper installation in enclosed or concealed areas or by such other means as approved by a city plumbing inspector.

g. At least one three-inch minimum size main plumbing vent shall be properly installed for each building.

h. Soil and water lines shall be properly supported with no broken or leaking lines.

i. Access to all bathrooms shall be through a weather tight and heated area.

j. Every dwelling unit shall contain within a room which affords privacy, a bathtub or shower in good working condition which shall be properly connected to both hot and cold water lines and to the public sanitary sewer or to an approved sewage disposal system. The floor of such room shall be made impervious to water to prevent structural deterioration and any development of unsanitary conditions.

k. Cleanable nonabsorbent water-resistant material on bathroom wall surfaces shall extend at least 48 inches above a bathtub and 72 inches above the floor of a shower stall. Such materials on walls shall form a watertight joint with the bathtub or shower.

(2) *Water heating unit.* Every dwelling or dwelling unit shall have supplied a water heating unit which has been listed by a testing agency and is properly installed, operated and maintained in safe and good working condition and is properly connected to the bathtub or shower, sink and lavatory basin, as required in this article. Such water heating unit shall be capable of automatically heating water to a temperature of 120 degrees Fahrenheit and capable of meeting normal demands at every required outlet, even though the dwelling's heating unit is not in operation. All gas-fired water heaters shall be vented to the outside.

(3) *Bathroom.* Every dwelling unit shall contain, within a room which affords privacy, a toilet, lavatory basin and either a tub or shower in good working condition which shall be properly connected to the public sanitary sewer or to an approved sewage disposal system. The lavatory basin shall be properly connected to both hot and cold water lines, and the water closet shall be properly connected to a cold water line.

(k) *Painting.* Effective January 1, 1995, all exterior surfaces of buildings and structures, not inherently resistant to deterioration, shall be treated with a protective coating, such as paint or other suitable preservative, with sufficient frequency to prevent deterioration. All such portions shall be cleaned and free of flaking, loose or defective surfacing materials prior to painting or coating. All interior loose or peeling wall covering or paint shall be removed and the exposed surface shall be placed in a smooth and sanitary condition. No paint shall be used for interior painting of any dwelling or dwelling unit that exceeds the amount of lead paint pigment as established by the Consumer Products Safety Commission. Paint chips or paint dust shall not be left on interior or exterior surfaces of the dwelling or on the premises.

Lead abatement is enforced by the North Carolina Lead-Based Paint Hazard Management Program (N.C.G.S. §130A-453.01 through 453.11 and 10A NCAC .0800). Lead renovation, repair and painting activities are enforced by the North Carolina Lead-Based Paint Hazard Program (N.C.G.S. § 130A-453.22 through 31, and10A NCAC 41C .0900). Firms and individuals performing renovation, repair and painting that disturbs lead-based paint in housing or child occupied facilities built before 1978, are required to be certified if performing these activities for compensation and must follow specific work practices to prevent the spread of lead.

(l) *Fire and safety standards.*

(1) *Fireproofing and fire protection.* Every building used in whole or in part for dwelling purposes shall be provided with the fireproofing required by laws and ordinances of the city. Such fireproofing shall include, but not be limited to, the separation between occupancies, the enclosure of furnace rooms and the enclosure of stairwells, where applicable. All required fireproofing shall be maintained in a good state of repair. All fire doors shall be maintained in openable condition and shall be equipped with approved self-closing devices.

(2) *Fire extinguishing equipment.* All fire extinguishing equipment required by the laws, ordinances and regulations of the city shall be provided and maintained in an operable condition.

(3) *Smoke detectors.* All dwellings and dwelling units shall be equipped with a smoke detector (battery operated or 110 volt) which has been listed by a testing agency (such as Underwriters Laboratories) and such detector shall be installed in each sleeping room and outside of each sleeping area inside the dwelling unit. All smoke detectors shall be located on or near the ceiling of the room wherein it is located and shall be installed in accordance with the manufacturer's instructions and maintained in proper working condition. When a dwelling unit is subject to a rental agreement, the landlord and/or tenant shall be responsible for placement of batteries in the smoke detector as provided in G.S. 42-42(a)(5).

(4) *Fire alarm systems.* All fire alarm systems required by the laws, ordinances and regulations of the city shall be provided and maintained in an operable condition.

(5) *Flammable liquids.* The use of gasoline stoves or other similar fuel-burning appliances using highly flammable liquids and the use of portable kerosene stoves or other similar fuel-burning portable appliances for cooking is prohibited. The occupant of any dwelling or dwelling unit shall not have or store flammable liquids or gas or any combustible material in a quantity greater than that permitted by the city's fire prevention code.

(6) *Abandoned iceboxes.* The doors shall be removed from all iceboxes, refrigerators and other large air-tight containers which are abandoned and which are accessible to children, unless the door or lock can be released or opened from the inside.

(7) *Lead remediation.* When notified by the county health department of the existence of a lead hazard effecting children less than six years old, the administrator shall initiate action requiring the owner to remediate the hazard by approved methods, within a time specified by the administrator, or to vacate and close the dwelling. The failure of an owner to remediate the hazard as directed by the administrator may result in the condemning and demolishing of the dwelling.

(8) *Carbon monoxide alarms.* A minimum of one operable carbon monoxide alarm per habitable level shall be provided in all dwelling units having a fossil-fuel burning heater, appliance, or fireplace, and in any dwelling unit having an attached garage.

(Ord. No. 14271, § 2, 6-4-2012; Ord. No. 15009, § 1, 9-6-2016)

Sec. 10-235. Rooming houses, boardinghouses, bed and breakfast inns, residency hotels and other similar buildings.

(a) *Rooms numbered.* Any person who operates an establishment covered under this section shall cause each rooming unit therein to be numbered in a plain and conspicuous manner. The number to be placed on the outside of the door and no two doors shall bear the same number.

(b) *Cleanliness of premises.* The operator of every establishment covered under this section shall keep the same and every part thereof clean and free from any accumulation of dirt, filth, rubbish, garbage, or similar matter and shall keep the same free from, and effectively protected against, vermin and rodent infestation.

(c) *Space and occupancy.* Space and occupancy in all establishments covered under this section shall comply with the provisions of subsection 10-234(a).

(d) *Basement occupancy.* No rooming unit, bathroom or toilet room serving a rooming unit shall be located in the basement unless such basement complies with the provisions of subsection 10-234(a)(3).

(e) *Structural standards.* Structural standards in all establishments covered under this section shall comply with the provisions of subsection 10-234(g).

(f) *Heating.* Heating in all establishments covered under this section shall comply with the provisions of subsection 10-234(e).

(g) *Light and ventilation.* Light and ventilation in all establishments covered under this section shall comply with the provisions of subsection 10-234(c).

(h) *Lighting of halls and stairs.* Lighting of public halls and stairways in all establishments covered under this section shall comply with the provisions of subsection 10-234(d).

(i) *Sinks.* Sinks in all establishments covered under this section shall comply with the provisions of subsection 10-234(j).

(j) *Bathing and toilet facilities.* At least one toilet, lavatory basin and bathtub or shower, properly connected to a water and sewer system approved by the administrator and in good working condition, shall be supplied, within a room which affords privacy, for each eight persons or fraction thereof residing within an establishment covered under this section, including members of the operator's family wherever they share the use of the facilities. All such facilities shall be so located within the dwelling as to be reasonably accessible from a common hall or passageway to all persons sharing such facilities. Every lavatory basin and bathtub or shower shall be supplied with hot water at all times. No such facilities hereinabove required shall be located in a basement, but nothing herein shall prohibit the installation of such facilities in a basement in addition to those hereinabove required if it meets the requirements of subsection 10-234(a)(3) basement occupancy.

(k) *Water heating units.* Water heating units in all establishments covered under this section shall comply with the provisions of subsection 10-234(j).

(l) *Plumbing installation and maintenance.* All plumbing, water closets, and other plumbing fixtures in every establishment covered under this section shall be installed and maintained in proper working condition and repair and in accordance with the requirements of subsection 10-234(j) and of the applicable provisions of the North Carolina State Building Code.

(m) *Cooking.* Every establishment covered under this section shall be provided with a kitchen that is in a location accessible to all rooming units and which meets the requirements of subsection 10-234(a)(2). Cooking is strictly prohibited in any rooming unit. Charcoal and gas grills are prohibited within ten feet of any portion of any establishment covered under this section, except fixed mounted gas grills installed according to the manufacturer's instructions where the grill and piping are stationary and the L.P. tank is located at grade level are permitted.

(n) *Garbage, rubbish and ashes.* Every establishment covered under this section shall be provided, in a location accessible to all rooming units, with an adequate number of receptacles or a stationary bulk refuse container to contain all garbage, rubbish and ashes that may accumulate during the usual interval between the collection thereof. All such receptacles and any stationary bulk refuse container shall be maintained at all times in good order and repair. All such receptacles and any stationary bulk refuse container shall conform to the standards set for such equipment as provided in chapter 58.

(o) *Entrances and exits.* All entrances and exits must meet the applicable standards set forth in the North Carolina State Building Code which is or was in effect at the time of construction. Every rooming unit in an establishment covered under this section shall have safe, unobstructed means of egress leading to safe and open space at ground level.

(p) *Painting.* Painting of all establishments covered under this section shall be in compliance with subsection 10-234(k).

(q) *Fire and safety standards.* The fire and safety standards established in subsection 10-234(l) shall apply to all establishments covered under this section.

(r) *Safety and maintenance requirements.* The general requirements relating to safety and maintenance established in subsection 10-234(f) shall apply to all establishments covered under this section.

(s) *Property maintenance standards.* The property maintenance standards established in subsection 10-234(h) shall apply to all establishments covered under this section.

(t) *Electrical standards.* The electrical standards established in subsection 10-234(i) shall apply to all establishments covered under this section.
(Ord. No. 14271, § 2, 6-4-2012)

Sec. 10-236. Responsibilities of occupants.

(a) *Sanitary maintenance.* Every occupant of a dwelling, dwelling unit or rooming unit shall keep in a clean and sanitary condition that part of the dwelling, dwelling unit or rooming unit and the premises thereof which he or she occupies and controls. A clean and sanitary condition shall include, but is not limited to, the following standards:

(1) Floors, floor coverings and other walking surfaces shall be kept clean and free of dirt, filth, garbage, human and animal wastes, litter, refuse and any other unsanitary matter;

(2) Walls, ceilings, windows and doorways shall be kept clean and free of dirt, greasy film, soot and any other unsanitary matter;

(3) Plumbing fixtures shall be kept in a clean and sanitary condition; and no material shall be deposited in any such fixture which may result in the obstruction of such fixture or of any lines connected thereto. Every occupant shall be responsible for the exercise of reasonable care in the proper use and operation of all plumbing fixtures; and

(4) All screens on windows and doors shall be maintained in good condition. This subsection shall not be construed as requiring any occupant to furnish and install, or cause to be installed, screens on windows or doors at any dwelling, dwelling unit or rooming unit.

(b) *Extermination of insects, rodents, etc.* Every occupant of a single dwelling unit shall be responsible for the extermination of insects, rodents or other pests therein or on the premises. Any grounds and structures being used or occupied by such occupant shall be maintained free of insects, vermin, and rodent harborage and infestation by generally accepted methods of extermination.

(c) *Garbage and rubbish.* Every occupant of a (single) dwelling, dwelling unit (or rooming unit) shall dispose of all garbage and refuse in a clean and sanitary manner and place it in a proper receptacle as required by chapter 58. Discarded or abandoned articles of such bulk as to preclude disposal in such receptacles and refuse not otherwise collected by the city as defined in chapter 58 shall be conveyed by the occupant to the city landfill or some other approved private landfill.

(d) *Heat.* Where the heating facilities of any dwelling, dwelling unit or rooming unit are under the control of the occupant thereof, it shall be the responsibility of the occupant to operate such facilities in order to maintain above-freezing temperatures at all times in all portions of the dwelling, dwelling unit or rooming unit and the premises thereof which he or she occupies and controls so as to prevent injury or damage to water pipes and plumbing.

(e) *Removal of required services, facilities, etc.* No occupant shall cause any service, facility, equipment or utility, which is required under this article, to be removed or shut off from, or discontinued for, any occupied housing let or occupied by him or her, except for such process, or during temporary emergencies when discontinuance of service is approved by the administrator.

(f) *Termination of occupancy.* So as to aid in preventing vandalism to the property, the occupant of a dwelling, dwelling unit or rooming unit shall, upon vacating, secure and lock all doors and windows and openings in the basement and any crawl space and shall leave the premises clean and free from all debris and trash.

(g) *Access for repairs.* Every occupant of a dwelling, dwelling unit or rooming unit shall give the owner thereof, or his or her agent or employee, access to any part of such dwelling, dwelling unit or rooming unit and its premises at all reasonable times for the purpose of making such repairs or alterations as are necessary to effect compliance with the provisions of this article or with any lawful order issued pursuant to the provisions of this article.

(h) *Cleanliness of sidewalks, alleys, ditches and street gutters.* Every occupant of any dwelling, dwelling unit or rooming unit bordering any street, lane or alley shall not deposit garbage or rubbish into the street gutters, alleys, or ditches abutting the premises. In any single-family dwelling or in any dwelling where the occupants of a particular dwelling unit or rooming unit have exclusive control over the rear yard, the occupants of such dwelling shall maintain in a clean and sanitary condition, free of garbage, rubbish, bulk trash, or other offensive material, both that portion of the sidewalk and the gutter that abuts the property and that portion of any alley that abuts the property and is bounded by the property lines of the adjoining properties and the mid-point of such alley.

(i) *Accumulation of materials inside dwelling.* Accumulation or storage of items or materials that result in dangerous, unsafe, or hazardous conditions shall not be permitted in any habitable portion of a dwelling unit.
(Ord. No. 14271, § 2, 6-4-2012; Ord. No. 15009, § 2, 9-6-2016)

Sec. 10-237. Responsibilities of owners.

(a) *Prohibited occupancy.* No owner shall occupy or lease or permit the subletting to another for occupancy any vacant or vacated dwelling, dwelling unit or rooming unit which does not comply with the provisions of this article, nor shall any owner let to another any vacant dwelling, dwelling unit or rooming unit unless it is reasonably clean, sanitary and fit for human occupation.

(b) *Number of occupants.* Every owner or agent of an owner shall advise, in writing, the occupant leasing or subletting property owned by him or her of the maximum number of occupants permitted in the dwelling, dwelling unit or rooming unit leased or rented.

(c) *Sanitary maintenance.* Every owner of a multifamily dwelling containing four or more dwelling units and every owner of a rooming house, residency hotel or other establishment covered by section 10-235 shall be responsible for maintaining in a clean and sanitary condition the shared or public areas of the dwelling and premises thereof. A clean and sanitary condition shall include, but is not limited to, the following:

(1) The exterior property areas of all premises shall be kept free of objects and materials, including abandoned or immobile motor vehicles, which may create a hazard to the health and safety of the occupants or surrounding community or which is a public nuisance.

(2) All sheds, barns, garages, fences and other appurtenant structures standing on the premises shall be kept in good repair.

(3) All yard spaces and other open areas adjacent to the dwelling shall be sloped, paved or otherwise constructed to properly drain water around or away from the premises.

(4) All required screens shall be furnished and installed in the dwelling and shall be maintained in good condition.

(5) Any high grass and noxious weeds shall be kept mowed or cut to a height of not more than six inches.

(d) *Garbage and rubbish.* For every multifamily dwelling containing four or more dwelling units and any rooming house, residency hotel or other establishment covered by section 10-235, the owner shall provide, in a location accessible to all dwelling occupants, an adequate number of receptacles or a stationary bulk refuse container into which garbage and rubbish from the dwelling unit or rooming unit receptacles may be emptied for storage between the days of collection as required by chapter 58. Any stationary bulk refuse container provided by the owner shall meet all of the capacity specifications as stated in chapter 58. The area surrounding the receptacles provided by the owner or the stationary bulk refuse container shall be maintained in such a way as to prevent the scattering of garbage or refuse on the ground.

(e) *Removal of required services, facilities, etc.* No owner or agent of an owner shall cause any service, facility, equipment or utility, which is required under this article, to be removed or shut off from, or discontinued for, any occupied housing let or occupied by him or her, except for such temporary interruption as may be necessary while actual repairs or alterations are in process, or during temporary emergencies when discontinuance of service is approved by the administrator.

(f) *Ratproofing and pest extermination.* Every owner of a multifamily dwelling containing two or more dwelling units and every owner of a rooming house, residency hotel or other establishment covered by section 10-235 shall be responsible for the extermination of rodents, or other pests in all dwelling units or rooming units therein and in the shared public areas of the dwelling and premises thereof by an approved method. The owner of any structure shall be responsible for extermination within the structure prior to renting or leasing the structure. Such extermination shall include, but is not limited to the following:

(1) Preventing the entrance by blocking or stopping up all passages, by which rats may secure entry from the exterior with rat impervious material;

(2) Preventing the interior infestation by rat stoppage, harborage removal, the paving of basements, cellars and any other areas which are in contact with the soil, and such cleanliness as may be necessary to eliminate rat breeding places;

(3) Providing screens or such other devices for basement windows which might provide a point of entry for rodents.

(g) *Cleanliness of sidewalks, alleys, and gutters.*

(1) The owner of any premises bordering any street, lane or alley shall not allow garbage or rubbish to be deposited into the street, gutters, or alleys abutting the premises.

(2) The owner or operator of any dwelling containing more than one dwelling unit and the owner of any rooming house, residency hotel or other establishment covered by section 10-235 shall maintain in a clean and sanitary condition, free of garbage, rubbish, bulk trash, or other offensive material, both that portion of the sidewalk and the gutter that abuts the property and that portion of any alley that abuts the property and is bound by the property lines of the adjoining properties and the mid-point of such alley.

(Ord. No. 14271, § 2, 6-4-2012)

Sec. 10-238. Housing appeals board.

(a) *Creation; membership; terms; compensation.*

(1) There is hereby created a board which shall be known as the housing appeals board ("board"). The housing appeals board is established pursuant to G.S. 160D-305 and 160D-1208 and special legislation adopted for the city.

(2) The board shall consist of five members and three alternate members who shall be appointed by the council. Members and alternate members shall serve for a term of three years. Council shall appoint members and alternate members in manner that provides for staggered terms. Appointments to fill vacancies shall be for the unexpired term of vacating member. Every member or alternate member shall continue to hold office until a successor is appointed or until the member or alternate member resigns or is removed by council.

(3) Criteria for council appointments. Council shall consider making appointments from the below categories but appointments are in the discretion of council and are not required to be based on membership in these categories. Council shall seek to appoint members and alternate members from the following areas: attorney licensed in North Carolina; real estate broker licensed in North Carolina, including a provisional broker; person employed by a bank, credit union or other financial institution with experience in lending or finance related to housing; landlord; tenant; homeowner and neighborhood association.

Any remaining members and alternate members may be appointed with or without considering the above categories and in the discretion of council.

(4) Each member of the board who attends an official meeting and each alternate member who officially attends and votes at an official meeting of the board shall be entitled to compensation set by council.

(b) *Quorum.* The presence of four members of the board shall be necessary for a quorum. A quorum is necessary to take official action. A roll call vote may be taken upon request of any member.

(c) *Meetings and rules of procedure.*

(1) All meetings shall be held at such times and places as the board shall determine. All meetings shall be open to the public and shall conform to the North Carolina Open Meetings Law, G.S. ch. 143, art. 33C.

(2) The board shall adopt its own rules of procedure and elect its own officers. Such rules shall be consistent with the laws of North Carolina and the ordinances and policies of the council. Such rules of procedure and any amendments shall be filed in the office of the city clerk within ten days after adoption.

(d) *Powers and duties.*

(1) The board shall hear appeals from any decision or order of the administrator.

(2) The board shall have authority to adopt ordinances ordering the administrator to proceed with the repair, alteration, improvement, or vacating and closing of a dwelling, dwelling unit or rooming unit or demolition and removal of a dwelling, when the owner fails to comply with the administrator's order as provided in this article, without the necessity of further action by the council as provided in Charter Section 102(a).

(3) The board shall have authority to hear and decide, as assigned by council, cases pursuant to the authority under G.S. 160D-305, 160D-1208; Ch. VI, Article 11 of the City Charter, and G.S. 160A-193 without the necessity of further action by the council, as provided in Charter Section 102(b).

(4) The board shall perform such other duties as may be assigned to it by the city council.

(5) Each alternate member of the board, while attending any regular or special meeting of the board and serving in the absence of any member, shall have and exercise all the powers and duties of such member.

(Ord. No. 14271, § 2, 6-4-2012; Ord. No. 15851, pt. 1, 6-21-2021)

Sec. 10-239. Enforcement.

(a) *Duties of administrator.* It shall be the duty of the administrator:

(1) To investigate the dwelling conditions, and to inspect dwellings, dwelling units, and rooming units located in the city, in order to determine which of the same are unfit for human habitation, and for the purpose of carrying out the objectives of this article with respect to such dwellings, dwelling units and rooming units;

(2) To take such action, together with other appropriate departments and agencies, public and private, as may be necessary to effect rehabilitation of housing which is deteriorated;

(3) To keep a record of the results of inspections made under this article and an inventory of those dwellings that do not meet the minimum standards of fitness herein prescribed; and

(4) To perform such other duties as may be herein prescribed.

(b) *Powers of administrator.* The administrator is authorized to exercise such powers as may be necessary or convenient to carry out and effectuate the purpose and provisions of this article, including the following powers in addition to others herein granted.

(1) To investigate the dwelling conditions in the city in order to determine which dwellings herein are unfit for human habitation;

(2) To administer oaths and affirmations, examine witnesses and receive evidence;

(3) To enter upon premises for the purpose of making examinations and inspections; provided, such entries shall be made in such a manner as to cause the least possible inconvenience to the person in possession;

(4) To appoint and fix the duties of such officers, agents, and employees as he or she deems necessary to carry out the purposes of this article; and

(5) To delegate any of his or her functions and powers under this article to other officers and other agents.

(c) *Inspections; duty of owner and occupants.* For the purpose of making inspections, the administrator is hereby authorized to enter, examine and survey at all reasonable times, all dwellings, dwelling units and rooming units and premises as defined in this article. The owner, occupant or other person in charge of any dwelling, dwelling unit or rooming unit shall, upon being presented with proper credentials, give the administrator free access to such dwelling, dwelling unit or rooming unit and its premises at all reasonable times for the purpose of such inspection, examination and survey. If the owner or occupant refuses admission for this purpose, admission may be obtained through the provisions of G.S. 15-27.2 et seq.

(d) *Emergency repairs.* Upon a showing that a condition in a dwelling or dwelling unit poses an immediate threat of danger or harm to the safety of the occupants in such dwelling or dwelling unit, the housing appeals board shall adopt an ordinance ordering the administrator to repair such condition. The owner of and parties in interest in such dwelling or dwelling unit shall be given at least 72 hours' notice prior to the making of any repairs or improvements by the administrator. The amount of the cost of such repairs, alterations or improvements shall be a lien against the real property upon which such cost was incurred, which lien shall be filed, have the same priority and shall be collected as provided by G.S. 160A-216 et seq.

(e) *Preliminary investigation; notice, hearing.*

(1) Whenever a petition is filed with the administrator by a public authority or by at least five residents of the city charging that any dwelling, dwelling unit or rooming unit is unfit for human habitation, or whenever it appears to the administrator, upon inspection, that any such place is unfit for human habitation he or she shall, if his or her preliminary investigation disclosed a basis for such charges, issue and cause to be served upon the owner of and parties in interest in such dwelling, dwelling unit or

rooming unit a complaint stating the charges and containing a notice that a hearing will be held before the administrator at a place therein fixed, not less than ten nor more than 30 days after the serving of such complaint.

(2) It shall be unlawful for the owner or the agent of any owner upon whom such complaint has been served to permit any person to occupy any such dwelling, dwelling unit or rooming unit which, at the time of service of such complaint is vacant, or which shall subsequently become vacant, until such owner or the agent of such owner shall have obtained from the administrator a housing certificate. The administrator shall issue such housing certificate upon a determination that the dwelling unit complies in all respects with the provisions of this article.

(3) The owner or any party in interest shall have the right to file an answer to the complaint and to appear in person, or otherwise, and give testimony at the place and time fixed in the complaint.

(4) Notice of such hearing shall also be given to at least one of the persons signing a petition relating to such dwelling. Any person desiring to do so may attend such hearing and give evidence relevant to the matter being heard.

(5) The rules of evidence prevailing in courts of law or equity shall not be controlling in hearings before the administrator.

(f) *Service of complaints and orders.* Complaints or orders issued by the administrator shall be served upon persons either personally or by registered mail or certified mail and, in addition thereto, may be served by regular mail. When service is made by registered or certified mail and, in addition thereto, regular mail and the registered mail or certified mail is unclaimed but the regular mail is not returned by the post office within ten days after mailing, service shall be deemed sufficient under this section and the general statutes. If the whereabouts of persons is unknown and cannot be ascertained by the administrator in the exercise of reasonable diligence, the administrator shall make an affidavit to that effect, and then the serving of such complaint or order upon the unknown owner or other persons may be made by publication in a newspaper having general circulation in the city at least once no later than the time at which personal service would be required under the provisions of this article. When service is made by publication, a notice of the pending proceeding shall be posted in a conspicuous place on the premises thereby affected.

(g) *Authorized agent.* Each owner of rental property located within the city shall authorize a person residing either in the city or the surrounding counties of Durham, Wake, Orange, Person, Granville or Chatham to serve as his or her agent for the purpose of accepting service of process under this section. The owner shall provide written notification to the Department of Neighborhood Improvement Services ("NIS"), the authorized agent's name, address, and phone number. The owner shall notify NIS of any changes in the information provided not less than ten days after such changes have occurred. Nothing in this section shall be interpreted to require an owner to designate an agent to accept service of process where the owner of the rental property resides within the city or one of the surrounding counties referenced herein. The initial failure of an owner to authorize an

agent, as required in this section, will not result in the imposing of a civil penalty as authorized in this article; however, a penalty will be imposed if an owner still fails to authorize an agent after being notified by the administrator that such a designation is required under this article.

(h) *Notice of lis pendens (notice of pending housing code complaint or order binding on successors and assigns of owner).* Any complaint and notice or order issued pursuant to this article may be filed in the notice of lis pendens, with a copy of the complaint and notice or order attached thereto, in the office of the clerk of superior court of the county. The notice of lis pendens and a copy of the complaint and notice or order shall be indexed and cross-indexed in accordance with the indexing procedures of G.S. 1-117. From the date and time of indexing, the complaint and notice or order shall be binding upon the successors and assigns of the owners of and parties in interest in the building or dwelling. A copy of the notice of lis pendens shall be served upon the owners and parties in interest in the building or dwelling at the time of filing in accordance with G.S. 106D-1206. The clerk may cancel the notice of lis pendens upon a showing by the administrator that the action in which the complaint and notice or order was issued has been settled, discontinued, or abated.

(i) *Findings of facts; issuance of order to repair, demolish, etc.* If, after such notice and hearing as provided for in subsection (e), the administrator determines that the housing under consideration is unfit for human habitation under the terms of this article, he or she shall state in writing his or her findings of fact in support of such determination and shall issue and cause to be served upon the owner thereof an order:

(1) If the repair, alteration or improvement of such house can be made at a cost not to exceed 50 percent of the value of the house, the order shall require the owner, within the time specified in the order, to repair, alter or improve such house to render it fit for human habitation. The order may require that the property be vacated and closed only if continued occupancy during the time allowed for repair will present a significant threat of bodily harm, taking into account the nature of the necessary repairs, alterations, or improvements; the current state of the property; and any additional risks due to the presence and capacity of minors under the age of 18 or occupants with physical or mental disabilities.

(2) If the repair, alteration or improvement of such housing cannot be made at a cost not to exceed 50 percent of the value of the housing, the order shall require the owner, within the time specified in the order to repair, alter or improve such housing to render it fit for human habitation or to demolish and remove such housing. However, notwithstanding any other provision of law, if the dwelling is located in a historic district of the city and the historic district commission determines, after a public hearing, that the dwelling is of particular significance or value toward maintaining the character of the district, and the dwelling has not been condemned as unsafe, the order may require that the dwelling be vacated and closed consistent with G.S. 160D-949.

(j) *Failure to comply with order.*

(1) If the owner fails to comply with an order to repair, alter or improve or to vacate and close the dwelling, dwelling unit or rooming unit, the administrator may cause such dwelling, dwelling unit or rooming unit to be repaired, altered or improved or to be vacated and closed; and the administrator may cause to be posted on the main entrance of any dwelling, dwelling unit or rooming unit so closed, a placard with the following words: "This building is unfit for human habitation; the use or occupation of this building for human habitation is prohibited and unlawful."

(2) If the owner fails to comply with an order to remove or demolish the dwelling, the administrator may cause such dwelling to be removed or demolished; provided, however, that the duties of the administrator as set forth in this subsection and subsection (j)(1) of this section shall not be exercised until the housing appeals board shall have by ordinance ordered the administrator to proceed to effectuate the purpose of this section with respect to the particular property which the administrator shall have found to be unfit for human habitation and which property shall be described in the ordinance. No such ordinance shall be adopted to require demolition of a dwelling until the owner has first been given a reasonable opportunity to bring it into conformity with the housing code. Such ordinance shall be recorded in the office of the register of deeds of the county and shall be indexed in the name of the property owner in the grantor index.

(3) If the housing appeals board has adopted an ordinance as provided in subsection (2) of this section authorizing vacating and closing of the dwelling, or if the administrator shall have commenced proceedings under this article requiring a dwelling to be repaired or vacated and closed, and if the dwelling has been vacated and closed for a period of six months pursuant to the ordinance or after such proceedings have commenced, then if the housing appeals board shall find that the owner has abandoned the intent and purpose to repair, alter or improve the dwelling in order to render it fit for human habitation and that the continuation of the dwelling in its vacated and closed status would be inimical to the health, safety, morals and welfare of the city in that the dwelling would continue to deteriorate, would create a fire and safety hazard, would be a threat to children and vagrants, would attract persons intent on criminal activities, would cause or contribute to blight and the deterioration of property values in the area, and would render unavailable property and a dwelling which might otherwise have been made available to ease the persistent shortage of decent and affordable housing in this state, then in such circumstances the housing appeals board may, after the expiration of such six-month period, enact an ordinance and serve such ordinance on the owner, setting forth the following:

a. If it is determined that the repair of the dwelling to render it fit for human habitation can be made at a cost not exceeding 50 percent of the then current value of the dwelling, the ordinance shall require that the owner either repair or demolish and remove the dwelling within 90 days; or

b. If it is determined that the repair of the dwelling to render it fit for human habitation cannot be made at a cost not exceeding 50 percent of the then current value of the dwelling, the ordinance shall require the owner to demolish and remove the dwelling within 90 days.

This ordinance shall be recorded in the office of the register of deeds and shall be indexed in the name of the property owner in the grantor index. If the owner fails to comply with this ordinance, the administrator shall effectuate the purpose of the ordinance.

(k) *Costs of lien on premises.*

(1) The amount of the cost of repairs, alterations or improvements, or vacating and closing, or removal or demolition by the administrator shall be a lien against the real property upon which the cost was incurred, which lien shall be filed, have the same priority, and be collected as provided by G.S. 160A-216 et seq.

(2) The amount of the cost of repairs, alterations or improvements, or vacating and closing, or removal or demolition by the administrator shall be a lien on any other real property of the owner located within the city limits or within one mile thereof except for the owner's primary residence. The additional lien provided in this subsection is inferior to all prior liens and shall be collected as a money judgment.

(3) If the dwelling is removed or demolished by the administrator, he or she shall sell the materials of the dwelling and any personal property, fixtures or appurtenances found in or attached to the dwelling, and shall credit the proceeds of the sale against the cost of the removal or demolition and any balance remaining shall be deposited in the superior court by the administrator, shall be secured in a manner directed by the court, and shall be disbursed by the court to the persons found to be entitled thereto by final order or decree of the court. Nothing in this section shall be construed to impair or limit in any way the power of the city to define and declare nuisances and to cause their removal or abatement by summary proceedings, or otherwise.

(l) *Placarding*. After the failure of an owner of a dwelling, dwelling unit or rooming unit to comply with an order of the administrator issued pursuant to this article and upon adoption by the housing appeals board of an ordinance authorizing and directing him or her to do so, as provided by G.S. 160D-1203 and this article, the administrator shall proceed to cause such dwelling, dwelling unit or rooming unit to be repaired, altered or improved to comply with the minimum standards of fitness established by this article, or to be vacated and closed, or removed or demolished, as directed by the ordinance of the housing appeals board, and shall cause to be posted on the main entrance of such place of habitation a placard with the following words: "This building is unfit for human habitation, the use or occupation of this building for human habitation is prohibited and unlawful."

(m) *Cancellation or reduction of demolition and other remediation liens in limited circumstances.*

(1) The city manager may authorize the reduction or cancellation of the amount of the cost of repairs, alterations, or improvements; vacating and closing; securing, or

removal or demolition, or other remediation by the administrator which is a lien against the real property upon which the cost was incurred as provided for in this article, or other appropriate provisions of law, in the following circumstances:

a. When the owner of the property completes construction of a dwelling on the property to be used for affordable housing. The owner must also obtain and provide a certificate of compliance from the city/county inspections department.

b. When the owner of the property conveys the property subject to the lien to a person who completes construction of a dwelling on the property to be used for affordable housing. Completion of construction shall be evidenced by a certificate of compliance issued by the city/county inspections department.

(2) The city council may, in its discretion, reduce or cancel the cost described in this subsection, when the cost is past due, the owner offers to convey the property to the city and the city council agrees to accept the deed to the property in payment of the cost.

(3) The city manager shall establish a policy to implement this subsection. The policy shall define "affordable housing," and contain criteria for which owners may apply for the reduction or cancellation of a lien under this subsection. The policy shall include other provisions designed to effectuate the purposes of this subsection. Such other provisions may include time limits for completion of construction of the dwelling, descriptions of covenants to be incorporated in the title to property conveyed to ensure it will be used for affordable housing; and requirements that a lien be in effect for a specified period of time before the manager will consider reducing or canceling a lien under this subsection. For each instance of exercising the authority to reduce or cancel a lien under this subsection, the city manager shall make a record of the reasons why such action is appropriate.

(4) This subsection also applies to liens arising from the enforcement of the state unsafe building law (G.S. 160D-1119 et seq.), nonresidential building code, and abatement of public health nuisances (G.S. § 160A-193).

(5) In this subsection (m), references to "this subsection" mean "this subsection (m).

(n) *Notice to affordable housing agencies.* Whenever a determination is made pursuant to subsection (i) of this section that a dwelling must be vacated and closed, or removed or demolished, under the provisions of this article, notice of the order shall be given by first-class mail to any organization involved in providing or restoring dwellings for affordable housing that has filed a written request for such notices. A minimum period of 45 days from the mailing of such notice shall be given before removal or demolition by action of the administrator, to allow the opportunity for any organization to negotiate with the owner to make repairs, lease, or purchase the property for the purpose of providing affordable housing. The city clerk shall certify the mail of the notices, and the certification shall be

conclusive in the absence of fraud. Only an organization that has filed a written request for such notices may raise the issue of failure to mail such notices, and the sole remedy shall be an order required the administrator to wait 45 days before causing removal or demolition.

(o) *Alternative remedies.* Neither this article nor any of its provisions shall be construed to impair or limit in any way the power of the city to define and declare nuisances and to cause their abatement by summary action or otherwise, and the enforcement of any remedy provided herein shall not prevent the enforcement of any other remedies provided herein or in other ordinances or laws.

(p) *Conflict with other provisions.* In the event any provision, standard or requirement of this section is found to be in conflict with any other applicable law, code or ordinance pertaining to housing, the provision which establishes the higher standard or more stringent requirement for the promotion and protection of the health and safety of the residents of the city shall prevail.
(Ord. No. 14271, § 2, 6-4-2012; Ord. No. 15009, § 3, 9-6-2016; Ord. No. 15851, pt. 1, 6-21-2021; Ord. No. 15982, § 16, 8-1-2022)

Sec. 10-240. Appeal from order of administrator.

(a) *Appeal.* Where compliance with an order of the administrator, or where the literal application of the provisions of this article, would appear to cause undue hardship on an owner or other party in interest, or when it is claimed that the true intent and meaning of this article or any of the minimum standards or requirements herein has been wrongly interpreted, the owner or other party in interest may appeal from the order of the administrator to the housing appeals board ("board").

(1) Notice of appeal shall be in writing and filed with the housing code administrator within ten days after service of the order of the administrator. The administrator shall place the appeal on the agenda for hearing by the board at its next regular meeting or if that is not possible within a reasonable time.

(2) When an appeal is from a decision of the administrator refusing to allow the person aggrieved thereby to do any act, the administrator's decision shall remain in force until modified or reversed by the board.

(3) When any appeal is from a decision of the administrator requiring the person aggrieved to do any act, the appeal shall have the effect of suspending the requirements until the hearing by the board, unless the administrator certifies to the board that because of facts in the certificate (a copy of which shall be furnished to the appellant), a suspension of the requirements would cause imminent peril to life or property. In which case the requirements shall not be suspended except by a restraining order, which may be granted for due cause shown upon not less than one day's written notice to the administrator, by the board or by a court of record upon petition made to the Durham County Superior Court.

(b) *Action by the board.*

(1) The board may reverse or affirm, wholly or partly, or may modify the decision or order appealed from, and may make any decision and order that in its opinion ought to be made in the matter, and to that end it shall have all the powers of the administrator, but the concurring vote of four members of the board shall be necessary to reverse or modify any decision or order of the administrator.

(2) The board upon such appeal, and after a hearing, may extend the time for compliance with the administrator's order, or vary the application of any provisions of this article in hardship cases when, in its opinion, the enforcement thereof would do manifest injustice and would be contrary to the spirit and purpose of this article or the public interest, or when, in its opinion the interpretation of the administrator was wrong and should be modified or reversed. In hardship cases, a hardship peculiar to the appellant must be shown.

(3) A decision of the board to extend the time for compliance with an order of the administrator, or to vary the application of any provision of this article, or to modify an order of the administrator, shall specify in what manner such extension, variation, or modification is made, the conditions upon which it is made, and the reasons therefore.

(4) Every such decision of the board shall be in writing, and shall be promptly filed in the office of the administrator, and shall be open to public inspection; a certified copy shall be sent by mail, or otherwise, to the appellant.

(5) If a decision of the board reverses or modifies a refusal, order or disallowance of the administrator, or varies the application of any provision of this article, the administrator shall immediately take action in accordance with such decision.

(6) Every decision of the board shall be subject to review by proceedings in the nature of certiorari as provided in state law.

(c) *Petition to superior court.* Any person aggrieved by an order issued by the administrator or a decision rendered by the board may petition the Durham County Superior Court for an injunction restraining the administrator from carrying out the order or decision as provided in state law.

(Ord. No. 14271, § 2, 6-4-2012; Ord. No. 15009, § 4, 9-6-2016)

Sec. 10-241. Violations; penalty; fees.

(a) Offenses.

(1) It shall be unlawful for the owner of any dwelling, dwelling unit or rooming unit to fail, neglect or refuse to repair, alter or improve the same, or to vacate and close or remove or demolish the same, upon order of the administrator duly made and served as herein provided, within the time specified in such order, and each day that any such failure, neglect or refusal to comply with such order continues shall constitute a separate and distinct offense.

(2) It shall be unlawful for the owner or agent of the owner in charge of such dwelling, dwelling unit or rooming unit with respect to which an order has been issued pursuant to this article, to occupy or permit the occupancy of the same in a dilapidated or deteriorated condition found to be unfit for human habitation in violation of such order for its repair, alteration or improvement or its vacation, closing or demolition, and each day that such unlawful occupancy continues after the expiration of the time prescribed in the order to repair, alter, improve, vacate, close or demolish such dwelling, dwelling unit or rooming unit shall constitute a separate and distinct offense.

(b) Civil penalties.

(1) Any owner of a dwelling or dwelling unit, except an owner who occupies the dwelling as his or her principal place of residence, who fails to comply with any of the provisions of this article shall be subject to a civil penalty.

a. The initial civil penalty shall be $300.00 and an additional civil penalty of $300.00 shall be imposed each month. The penalty shall be imposed until the dwelling or dwelling unit is brought into compliance. However, the maximum cumulative civil penalty shall not exceed $5,000.00. This penalty may be recovered by the city in a civil action in the nature of debt if the owner does not pay the same within 30 days after the initial day of noncompliance.

b. The administrator shall formulate written guidelines to use in assessing and calculating civil penalties. Such written guidelines shall authorize the city manager to discharge certain penalties deemed uncollectible by the finance department director after good faith efforts have been made to collect such penalties.

c. An owner may request, in writing to the administrator, reduction or cancellation of a civil penalty imposed pursuant to this subsection (subsection (b)(1)). The city manager or his/her designee may authorize the reduction or cancellation of a civil penalty. The city manager or his/her designee shall formulate written guidelines to use in determining any reduction in civil penalties.

(2) The city manager may agree, in writing only, to release, in whole or in part, a subsequent owner from liability for a civil penalty imposed pursuant to subsection (b)(1) of this section under the following circumstances:

a. The previous owner incurred a civil penalty due to failure to comply with the administrator's order to bring the house into compliance;

b. When the subsequent owner acquired the same house, it was still not in compliance with the administrator's order, and a civil penalty was assessed against the subsequent owner as provided in subsection(b)(1); and

c. The subsequent owner agrees to bring the house into compliance within an agreed upon timeframe.

However, if the subsequent owner fails to comply with the agreement, then the civil penalty shall remain and be computed from the date that the subsequent owner acquired the house.

(c) Fees.

(1) The owner of any dwelling, dwelling unit or rooming unit who fails to repair or vacate and close it, or demolish or remove it, upon order of the administrator duly made and served as herein provided, within the time specified in such order, shall be subject to an administrative fee set by the city council for noncompliance. This fee allows the city to recover some of its administrative costs incurred due to the owner's failure to comply with the administrator's order described herein.

(2) Any owner of a dwelling or dwelling unit, except an owner who uses the dwelling as his or her principal place of residence, who requests a re-inspection after failing an initial inspection shall be subject to a re-inspection fee when the re-inspection shows that the owner's dwelling still fails to comply with the provisions of this article. The re-inspection fee shall not be imposed when the owner's dwelling passes the re-inspection. Re-inspection fees adopted by the city council shall be charged.

(d) Removal of occupant. If any occupant fails to comply with an order to vacate a dwelling, the administrator may file a civil action in the name of the city to remove such occupant. The action to vacate the dwelling shall be in the nature of summary ejectment and shall be commenced by filing a complaint naming as parties-defendant any person occupying such dwelling. The clerk of superior court shall issue a summons requiring the defendant to appear before a magistrate at a certain time, date and place not to exceed ten days from the issuance of the summons to answer the complaint. The summons and complaint shall be served as provided in G.S. 42-29. The summons shall be returned according to its tenor, and if on its return it appears to have been duly served, and if at the hearing the administrator produces a certified copy of an ordinance adopted by the housing appeals board pursuant to this article authorizing the administrator to proceed to vacate the occupied dwelling, the magistrate shall enter judgment ordering that the premises be vacated and that all persons be removed. The judgment ordering that the dwelling be vacated shall be enforced in the same manner as the judgment for summary ejectment entered under G.S. 42-30. An appeal from any judgment entered hereunder by the magistrate may be taken as provided in G.S. 7A-228, and the execution of such judgment may be taken as provided in G.S. 7A-227. An action to remove an occupant of a dwelling may not be in the nature of a summary ejectment proceeding pursuant to this subsection unless such occupant was served with notice at least 30 days before the filing of the summary ejectment proceeding that the housing appeals board has ordered the administrator to proceed to exercise his or her duties under this article to vacate and close or remove and demolish the dwelling.

(e) Nothing in this section shall be construed as a waiver of the housing certificate requirements in subsection 10-239(e).

(f) It shall be unlawful for the owner of a place of habitation that is imminently dangerous to health or safety to collect rent from another person who occupied the place of habitation at the time it became imminently dangerous to health or safety or to permit any other person to begin occupancy of such place of habitation A place of habitation is imminently dangerous to health or safety if it is in violation of any one of the following minimum standards of fitness:

(1) Rotted, fire damaged, or insect damaged steps, flooring, or structural supports, as provided in subsections 10-234(g)(1), 10-234(9)(4), 10-234(g)(7), 10-234(h)(1), and 10-234(h)(3).

(2) Fire hazard in a chimney that is in use, as provided in section 10-234(e)(4).

(3) Unsafe wiring, as provided in subsection 10-234(i).

(4) Unsafe ceiling or roof, as provided in subsections 10-234(g)(3) and 10-234(g)(5).

(5) No potable water supply, as provided in subsection 10-234(j)(1).

(6) No operable heating equipment, during November, December, January. February, or March, as provided in section 10-234(e).

(7) Dangerous space heating unit, as provided in 10-234(e)(3).

(8) No operable sanitary facilities, as provided in subsection 10-234(j).

(9) Severe pest infestation, as provided in subsection 10-234(h)(3).

(10) No safe, continuous, and unobstructed exit from the interior of the building to the exterior at street or grade level, as provided in subsection 10-234(b)(5).

(11) Any window or door providing access to any dwelling unit or rooming unit lacking an operable lock or the owner failing to provide a change of locks or keys to a new tenant of such dwelling unitor rooming unit, as provided in subsection 10-234(b)(3).

(Ord. No. 14271, § 2, 6-4-2012; Ord. No. 15009, § 5, 9-6-2016; Ord. No. 15982, § 17, 8-1-2022; Ord. No. 16560, § 1, 10-20-2025)

Secs. 10-242—10-269. Reserved.

ARTICLE VII. UNSAFE BUILDINGS*

DIVISION 1. SUPPLEMENTAL PROCEDURES†

Sec. 10-270. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Housing code administrator or *administrator* means inspector or local inspector as that term "inspector" is used in G.S. 160D-402; 160D-404; 160D-1102 and it includes a designee of the administrator.

Unsafe buildings means buildings that fall within the statutory definitions as set forth in G.S. 160D-1119, or section 100 of the City Charter.
(Code 1982, § 6-210; Ord. No. 12788, § 2, 4-21-2003; Ord. No. 15852, pt. 1, 6-21-2021)

Sec. 10-271. Appeal to housing appeals board.

Any owner who has received an order under G.S. 160D-1122 may appeal from the order to the housing appeals board by giving notice of appeal in writing to the administrator within ten days following issuance of the order. In the absence of appeal, the order of the housing code administrator shall be final. The housing appeals board shall hear an appeal within a reasonable amount of time and may affirm, modify and affirm, or revoke the order. It shall be a violation of this article to fail to comply with a final order under this section.
(Code 1982, § 6-211; Ord. No. 12788, § 2, 4-21-2003; Ord. No. 15852, pt. 1, 6-21-2021)

Sec. 10-272. Service of complaints and orders.

(a) Complaints or orders issued by the administrator pursuant to G.S. 160D-1122, 160D-1206 et seq., or section 100 of the Charter shall be served upon persons either personally or by registered or certified mail and in addition thereto, may be served by regular mail. When service is made by registered or certified mail and, in addition thereto, regular mail and the registered or certified mail is unclaimed but the regular mail is not returned by the post office within ten days after mailing, service shall be deemed sufficient.

(b) If the name or whereabouts of persons is unknown and cannot be ascertained by the administrator in the exercise of reasonable diligence, the administrator shall make an affidavit to that effect, and then the serving of such complaint or order upon the unknown owner or other persons may be made by publication in a newspaper having general circulation in the city at least once no later than the time at which personal service would be

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***Charter reference—**Unsafe buildings, § 100.

State law reference—Unsafe buildings, etc., G.S. 160D-1118 et seq.

†**Editor's note—**The title of this division 1 was added by Ord. No. 13716, § 1, adopted October 20, 2008.

required under the provisions of this article. When service is made by publication, a notice of the pending proceeding shall be posted in a conspicuous place on the premises thereby affected.
(Code 1982, § 6-212; Ord. No. 12788, § 2, 4-21-2003; Ord. No. 15852, pt. 1, 6-21-2021)

Sec. 10-273. Remedies.

(a) Remedies for violation of this article shall include all remedies authorized by common law or statute including: G.S. 160D-1124, and G.S. 160D-1125.

(b) Civil penalties. In addition to the above mentioned remedies, any owner of a building or structure who fails to comply with an order to take corrective action regarding an unsafe building as defined in section 10-270 shall be subject to a civil penalty of $100.00 for the first day following expiration of an order to remedy the defective conditions by repairing, vacating and closing or demolishing any building or structure and $10.00 each day thereafter.
(Code 1982, § 6-213; Ord. No. 12788, § 2, 4-21-2003; Ord. No. 15852, pt. 1, 6-21-2021)

Sec. 10-274. Lis pendens.

(a) Any complaint and notice or order issued pursuant to this article may be filed in the notice of lis pendens in the office of the clerk of superior court of the county where the property is located. A copy of the complaint containing a notice of hearing or a copy of the order shall be attached to the lis pendens. When the lis pendens is filed with the clerk, it shall also be served on the owners and parties in interest in the building or dwelling, including any lienholders and tenants who may be determined by the exercise of reasonable diligence. From the date of recording of such complaint and notice or order, it shall be binding upon the successors and assigns of the owners of the building or dwelling.

(b) The administrator may cancel the lis pendens upon a determination by the administrator that the property is no longer unsafe and that the owner has fully complied with the administrator's order. Cancellation must be made in a writing signed by the administrator and provided to the clerk of court.
(Code 1982, § 6-214; Ord. No. 12788, § 2, 4-21-2003)

Secs. 10-275—10-299. Reserved.

DIVISION 2. NONRESIDENTIAL BUILDING CODE

Sec. 10-300. Title.

This division shall be known and may be cited and referred to as the "Nonresidential Building Code."
(Ord. No. 13715, § 1, 10-20-2008)

Sec. 10-301. Purpose.

In order to protect the health, safety and welfare of the city and its residents and citizens including but not limited to owners and occupants of nonresidential buildings or structures, it is the purpose of this division to establish minimum standards of maintenance, sanitation, and safety relating to nonresidential buildings or structures, as expressly authorized by G.S. § 160D-1129. This division provides for the repair, closing or demolition of nonresidential buildings or structures as a result of a public necessity caused by conditions that are dangerous to the public health, safety and welfare.
(Ord. No. 13715, § 1, 10-20-2008; Ord. No. 15852, pt. 1, 6-21-2021)

Sec. 10-302. Definitions.

The following words and phrases shall have the meanings set forth herein unless the context clearly indicates otherwise:

Administrator means the administrator or the designee of the administrator.

Agent means any person, firm or corporation who is responsible for the management, maintenance, operation, renting, leasing or sale of any property, or who makes application for or seeks a permit or certificate on behalf of the owner of any property or who in any other way represents the owner of the property in any particular case.

Bathroom means a heated enclosed space with privacy containing a toilet with access to a lavatory (either within enclosed space or specifically accessible by enclosed space).

Building means any structure built for the shelter or enclosure of persons, animals or property of any kind or any part of such structure, shelter or property.

Nonresidential means any building or structure or portion of a building or structure occupied or intended to be occupied, in whole or in part, for a use other than a dwelling, home, residing place, or permanent living space or sleeping space for one or more human beings.

Owner shall mean any person who alone, jointly, or severally with others:

(1) Shall have title in fee simple to, or hold mortgage or deed of trust in, any nonresidential building or structure, with or without accompanying actual possession thereof; or

(2) Shall have charge, care or control of any nonresidential building or structure as owner or agent of the owner, or as executor, executrix, administrator, administratrix, trustee or guardian of the estate of the owner. Any such person thus representing the actual owner shall be bound to comply with the provisions of this division and of rules and regulations adopted pursuant thereto, to the same extent as if such person were the owner.

Parties in interest mean all individuals, associations and corporations who have interests of record in a nonresidential building or structure and any who are in possession thereof.

Premises means any lot or parcel of land inclusive of any building or improvements located thereon.

Structure means, in addition to its ordinary meaning, anything constructed, regardless of where it was constructed.

Vacant industrial warehouse means any building or structure designed for the storage of goods or equipment in connection with manufacturing processes, which has not been used for that purpose for at least one year and has not been converted to another use.

Vacant manufacturing facility means any building or structure previously used for the lawful production or manufacturing of goods, which has not been used for that purpose for at least one year and has not been converted to another use.
(Ord. No. 13715, § 1, 10-20-2008)

Sec. 10-303. Applicability and compliance.

(a) The provisions of this division shall apply to all nonresidential buildings or structures which are now in existence or which may be built within the corporate limits of the city.

(b) Every nonresidential building or structure and the premises on which it is situated shall comply with the provisions of this division, whether or not such building or structure shall have been constructed, altered, or repaired before or after the enactment of this division, and irrespective of any permits or licenses which have been issued for the use or occupancy of the building or structure or for the installment or repair of equipment or facilities. This division establishes minimum standards for all nonresidential buildings or structures and does not replace or modify standards otherwise established for the construction, repair, alteration, or use of the building or structure contained therein.
(Ord. No. 13715, § 1, 10-20-2008)

Sec. 10-304. Maintenance standards for nonresidential buildings and structures.

(a) *Space and use standards.*

(1) The floor and walls, if in contact with the earth, are waterproof and dampproof in accordance with the state building code requirements. Such waterproofing and dampproofing shall be between the floor or wall finish and the ground.

(2) Access. Access shall be provided to all rooms within a nonresidential building or structure such that reasonable exit is available if necessitated by circumstances.

(3) Doors. Doors shall be provided at all doorways leading to bathrooms.

(4) Kitchens. Kitchens shall be used only for intended purposes and shall not be used in such a way that will promote danger for the occupants, employees or public in or near kitchen.

(b) *Entrances and exits.*

(1) All entrances and exits must meet the standards set forth in the state building code.

(2) Doors providing entrance and exit for any nonresidential building or structure shall have locking devices capable of being operated from the inside and outside of the nonresidential building or structure.

(3) Safe, continuous and unobstructed exit shall be provided from interior of building or structure to the exterior at street or grade level.

(4) Platforms and steps shall be provided, where appropriate, to serve exits and shall be maintained in a safe condition.

(c) *Light and ventilation standards.* Window frames and glass shall be reasonably weathertight, with no cracked or broken glass. If, in the opinion of the administrator or his or her designee, certain cracked glass does not present a danger or hazard, a waiver of this provision may be granted.

(d) *Lighting of halls and stairs.* Every enclosed area shall be adequately lighted at all times with fixtures with conveniently located light switches controlling the lighting system which provides the illumination required therein and which may be turned on when needed. This provision may be waived by the administrator.

(e) *Heating.* Heating facilities. Every nonresidential building or structure shall have a heating unit appropriate for the use of the nonresidential building or structure.

(f) *General requirements relating to safety and maintenance.*

(1) *Good repair and safe condition.* Every nonresidential building or structure and all parts thereof used or occupied as an enclosed area shall be kept in good repair, in safe condition and fit for any use. The roof and walls of all such buildings or structures shall be maintained so as not to leak; and all means of draining water therefrom shall be maintained as to prevent dampness in the walls, ceiling or crawl space or basement.

(2) *Quality of materials and workmanship.* Material used in making any repairs shall be of a quality suitable for the purpose and of a kind normally used by a contractor or tradesman to accomplish such a repair. Such repair shall be accomplished in a manner that is in accordance with the accepted standards and practices of the trade.

(3) *Boarding of doors and windows.* No structure or portion of a structure shall be permitted to be obstructed with plywood, wood, or other opaque material, unless authorized by the administrator. The administrator shall establish a policy regarding securing a structure.

(g) *Structural standards.*

(1) *Foundation.*

a. Every nonresidential building or structure unit shall be on firm ground. Foundation drainage shall be provided and maintained so as to prevent standing water.

b. Footings shall be sound with adequate bearing.

c. All elements of the foundation, including structural members and masonry, shall be in good repair.

d. No piers shall be used for support in which the plumb line from top center falls outside the middle one-third of the base of the pier. (A plumb bob held firmly against the top of the pier and hanging down the side wall indicates the vertical alignment).

e. No isolated masonry piers exceeding in height ten times the least dimension of pier shall be permitted.

f. A crawl space access hole having a door shall be provided to any under-floor space in all nonresidential buildings or structures.

(2) *Walls, exterior.*

a. All exterior surfaces shall be structurally sound, waterproof, weatherproof and vermin proof.

b. All exterior finishes shall be weathertight with no holes, cracks or rotted boards which permit outside air or water to penetrate rooms.

c. All structure or load bearing walls, exterior or interior, shall not be bowed or out of plumb and shall be structurally sound.

d. Studs shall provide sufficient support for sheathing or exterior finish.

(3) *Roofs.*

a. Roofing shall be provided to prevent the entrance of moisture and shall be maintained by renewal, repair, waterproofing or other suitable means.

b. Gutters and downspouts, if installed, shall be provided to properly collect, conduct and discharge the water from the roof and away from the structure.

c. Roofs shall be supported and no rafters shall be rotted, broken, sagging or have improperly supported ends.

d. Attics shall have ventilation that allows the movement of air to dissipate excessive heat build-up. Heat buildup is excessive if it causes deterioration of any structural member or roofing material.

e. Sheathing shall not be rotted, loose or sagging excessively.

f. Roof covering shall not be loose, nor have holes or leaks.

g. Flashing shall be provided at walls and chimneys and shall be installed in accordance with the state building code.

(4) *Porches.* Porches, balconies or raised floor surfaces located more than 30 inches above the floor or grade below shall have guardrails not less than 36 inches in height. Such guardrails shall not be rotted, broken or termite damaged.

(5) *Stairs and steps.*

a. Stairs and steps shall be free of holes, grooves and cracks large enough to constitute accident hazards.

b. Handrails having minimum and maximum heights of 30 inches and 38 inches respectively, measured vertically from the nose of the treads, shall be provided on at least one side of stairways of four or more risers.

c. No flight of stairs shall be settled out of its intended position or pulled away from supporting or adjacent members.

d. Stairs shall be strongly supported and supports shall not be rotting, sagging or deteriorated.

e. Stairs shall be plumb, level and treads shall be uniform in width and risers uniform in height, sound and securely fastened to structure. A slight uniform tilt of the treads to aid in the runoff of water is permissible for exterior steps.

f. Every stairway, including inside stairs and rails, porches, decks and appurtenances thereto shall be kept in sound condition and good repair.

g. Platforms and steps shall be provided to serve exits and shall be maintained in a safe condition.

(6) *Ceilings.*

a. Joists and supporting members shall provide sufficient support for the ceiling.

b. No holes or cracks which permit outside air to penetrate rooms shall be permitted.

c. There shall be no loose plaster, boards, sheetrock, or ceiling finish. Any materials used in the repair of the ceiling shall be of a material that is similar in texture and appearance to the original material. This provision does not prohibit the replacement of the entire ceiling; provided that the material used is contiguous over the entire ceiling area within the affected room.

d. Ceilings shall be maintained free of holes, cracks or loose or deteriorated materials.

e. All ceilings shall be kept clean and free of any flaking, loose or peeling paint and paper.

(7) *Walls, interior.*

a. Interior finish shall be free of holes and excessive cracks which:

1. Permit outside air or moisture to penetrate rooms; or

2. Contain loose or flaking materials.

b. All walls, woodwork, doors and windows shall be kept clean and free of any flaking, loose or peeling paint.

c. There shall be no loose plaster, boards, or other loose wall materials.

d. Cardboard, newspaper or other highly combustible or improper wall finish is prohibited.

e. Studs shall provide sufficient support for interior wall.

f. Doors must fit the opening in which they are hung and be equipped with hardware that allows for their opening and closing.

(8) *Floors.*

a. Broken, overloaded, excessively decayed or sagging structural floor members are prohibited.

b. Structural floor members shall be supported on foundation walls and piers that are not deteriorated and perform the function for which they were intended.

c. Floor joists shall be supported on structural bearing members and shall not be made structurally unsound by deterioration.

d. Flooring shall be reasonably smooth, not rotten or worn through, and without holes or excessive cracks which permit outside air to penetrate rooms.

e. Flooring shall not be loose.

f. Split, splintered or badly worn floor boards shall be repaired or replaced.

g. Floors in contact with soil shall be paved either with concrete not less than three inches thick or with other masonry not less than four inches thick, which shall be sealed tightly to the foundation walls.

h. All bathroom, laundry and kitchen floors shall be constructed and maintained so as to be impervious to water by covering with a waterproof nonabsorbent material.

Examples of this type of material include asphalt tile, ceramic tile, linoleum tile or sheet, rubber tile, terrazzo, vinyl tile, vinyl plastic tile or sheet, finished wood, parquet, masonry, polyurethane. Certain absorbent materials covered with a waterproof finish shall also be permitted. Porch and deck-type enamel paints shall be prohibited due to their nondurable nature. The administrator can approve other types of waterproof nonabsorbent materials that meet the criteria of this section.

(h) *Property maintenance.*

(1) *Structures.* Floors, walls, ceilings and fixtures shall be maintained in a clean and sanitary condition.

(2) *Open areas.*

a. Surface and subsurface water shall be appropriately drained from open areas to protect structures and to prevent development of stagnant ponds.

b. Fences and all accessory structures, either attached to or detached from the primary nonresidential building or structure, shall be maintained in a safe and substantial condition. Accessory structures shall include, but are not limited to, sheds, storage buildings, carports, and garages.

(i) *Electrical standards.* Electrical service.

(1) Every enclosed area shall be supplied with adequate electric service, of at least 100 amp service which shall be properly installed and connected to the source of electric power in a manner prescribed by the ordinances, rules and regulations of the city and applicable portions of the North Carolina State Building Code.

(2) No receptacles, ceiling fixtures or other devices shall be permitted to hang loose.

(3) All switches, fixtures and devices shall be safely operable or else properly sealed off and disconnected.

(4) Flexible cords shall not be used as a substitute for the fixed wiring; run through holes in walls, ceilings, or floors; run through doorways, windows or similar openings; attached to building surfaces; concealed behind building walls, ceilings or floors.

(5) Circuits shall not be overloaded.

(6) Fuses shall be sized correctly and not bridged out.

(7) All electric wiring, devices, appliances and fixtures shall be installed and maintained in accordance with the current city and state electrical codes.

(j) *Plumbing standards.*

(1) *General.*

a. Every nonresidential building or structure shall be connected to city water supply and/or sanitary sewer system where they are available; unless a private water supply and sanitary sewer system for each nonresidential building or structure is approved by the county health department. This provision may be waived by the administrator.

b. All plumbing, water closets and other plumbing fixtures in every nonresidential building or structure shall be installed and maintained in good working condition and repair and in accordance with the requirements of this division and the state plumbing code. All plumbing shall be so maintained and used as to prevent contamination of the water supply through cross connections or back siphoning.

d. All fixtures shall be in proper working condition with no leaks existing.

e. No fixtures shall be cracked, broken or badly chipped.

f. All water piping shall be protected from freezing by proper installation in enclosed or concealed areas or by such other means as approved by a city plumbing inspector.

g. Access to all bathrooms shall be through a weathertight and heated area.

(2) *Water heating unit.* Every enclosed area shall have supplied a water heating unit which has been listed by a testing agency and is properly installed, operated and maintained in safe and good working condition and is properly connected to the bathtub or shower, sink and lavatory basin, as required in this division and the state plumbing code. Such water heating unit shall be capable of automatically heating water to a temperature of 120 degrees Fahrenheit and capable of meeting normal demands at every required outlet, even though the enclosed areas' heating unit is not in operation. All gas-fired water heaters shall be vented to the outside.

(3) *Bathroom.* Every enclosed area shall have access to a bathroom in good working condition which shall be properly connected to the public sanitary sewer or to an approved sewage disposal system. The lavatory basin shall be properly connected to both hot and cold water lines, and the water closet shall be properly connected to a cold water line.

(k) *Painting.* Effective January 1, 2009, all exterior surfaces of buildings and structures, not inherently resistant to deterioration, shall be treated with a protective coating, such as paint or other suitable preservative, with sufficient frequency to prevent deterioration. All such portions shall be cleaned and free of flaking, loose or defective surfacing materials prior to painting or coating. All interior loose or peeling wall covering or paint shall be removed and the exposed surface shall be placed in a smooth and sanitary condition. No paint shall be used for interior painting of any enclosed area unless the paint is free from any lead pigment.

(l) *Fire and safety standards.*

(1) *Fireproofing and fire protection.*

(2) *Fire extinguishing equipment.* All fire extinguishing equipment required by the state fire code shall be provided and maintained in an operable condition.

(3) *Smoke detectors.* Enclosed areas shall be equipped with a smoke detector (battery operated or 110 volt) which has been listed by a testing agency (such as Underwriters Laboratories). All smoke detectors shall be located on or near the ceiling of the room wherein it is located and shall be installed in accordance with the manufacturer's instructions and maintained in proper working condition.

(4) *Abandoned iceboxes.* The doors shall be removed from all iceboxes, refrigerators and other large air-tight containers which are abandoned and which are accessible to children, unless the door or lock can be released or opened from the inside.

(m) *Awnings.* All canopies, metal awnings, stairways, porches, fire escapes, standpipes, exhaust ducts, air conditioners, and similar overhanging extensions shall be maintained so as to be free of missing, defective, rotting or deteriorated foundations, supports, floors, other members, and steps thereto, so as to be safe to use and kept in sound condition and in good repair.

(n) *Other dangerous conditions prohibited.* Any combination of conditions which in the judgment of the administrator renders any nonresidential building or structure dangerous or injurious to the health, safety, or general welfare of owners, occupants or members of the general public.
(Ord. No. 13715, § 1, 10-20-2008; Ord. No. 15010, §§ 1, 2, 9-6-2016)

Sec. 10-305. Designation of the administrator as public officer.

The administrator is hereby designated as the public officer pursuant to G.S. 160D-1129.
(Ord. No. 13715, § 1, 10-20-2008; Ord. No. 15852, pt. 1, 6-21-2021)

Sec. 10-306. Powers of the administrator.

The administrator is authorized to exercise such powers as may be necessary or convenient to carry out and effectuate the purpose and provisions of this division, including the following powers:

(1) To investigate nonresidential buildings and structures in the city to determine whether they have been properly maintained in compliance with the minimum standards established by this division so that the safety or health of the occupants or members of the general public are not jeopardized;

(2) To administer oaths and affirmations, examine witnesses and receive evidence;

(3) To enter upon premises for the purpose of making examinations and inspections provided that such entries shall be made in accordance with law and in such manner as to cause the least possible inconvenience to the persons in possession;

(4) To appoint and fix duties of such officers, agents, and employees as the administrator deems necessary to carry out the purposes of this division; and

(5) To delegate any of his or her functions and powers under this division to other officers and agents.

(Ord. No. 13715, § 1, 10-20-2008)

Sec. 10-307. Inspections.

For the purpose of making inspections, the administrator is hereby authorized to enter, examine, and survey at all reasonable times, any nonresidential building or structure as defined in this division. If entry upon the premises for purposes of investigation is necessary, such entry shall be made pursuant to a duly issued administrative search warrant in accordance with G.S. 15-27.2 or with permission of the owner, the owner's agent, a tenant, or other person legally in possession of the premises.

In addition, the administrator may adopt a periodic inspection program, subject to the council's approval, to provide for the routine inspection of all nonresidential buildings or structures as defined in this division.

(Ord. No. 13715, § 1, 10-20-2008)

Sec. 10-308. Procedure for enforcement.

(a) *Preliminary investigation.* Whenever it appears to the administrator that any nonresidential building or structure has not been properly maintained so that the safety or health of its occupants or members of the general public are jeopardized for failure of the property to meet the minimum standards established by this division, the administrator shall undertake a preliminary investigation.

(b) *Complaint and hearing.* If the preliminary investigation discloses evidence of a violation of the minimum standards established by this division, the administrator shall issue and cause to be served upon the owner of and parties in interest in the nonresidential building or structure a complaint. The complaint shall state the charges and contain a notice that a hearing will be held before the administrator at a place within the county, not less than ten days nor more than 30 days after the serving of the complaint; that the owner and parties in interest shall be given the right to answer the complaint and to appear in person, or otherwise, and give testimony at the place and time fixed in the complaint; and that the rules of evidence prevailing in courts of law or equity shall not be controlling in hearings before the administrator.

(c) *Procedure after hearing; issuance of order.*

(1) If, after notice and hearing, the administrator determines that the nonresidential building or structure has been maintained in that the property meets the minimum standards established by this division, the administrator shall state in writing findings of fact in support of that determination and shall issue and cause to be served upon the owner thereof a copy of said determination and the matter shall be closed.

(2) If, after notice and hearing, the administrator determines that the nonresidential building or structure has not been properly maintained so that the safety or health of its occupants or members of the general public is jeopardized for failure of the property to meet the minimum standards established by this division, the administrator shall state in writing findings of fact in support of that determination and shall issue and cause to be served upon the owner thereof an order in accordance with the provisions of either subsections (c)(3) or (c)(4) and subject to the limitations set forth in this division.

(3) If the administrator determines that the cost of repair, alteration, or improvement of the nonresidential building or structure would not exceed 50 percent of its then current value, then the administrator shall state in writing the findings of fact in support of such determination and issue an order that requires the owner, within a reasonable time specified in the order, to either:

a. Repair, alter, or improve the nonresidential building or structure in order to bring it into compliance with the minimum standards established by this division, or

b. Vacate and close the nonresidential building or structure for any use.

(4) If the administrator determines that the cost of repair, alteration, or improvement of the nonresidential building or structure would exceed 50 percent of its then current value, then the administrator shall state in writing the findings of fact in support of such determination and issue an order that requires the owner, within a reasonable time specified in the order, to either:

a. Remove or demolish the nonresidential building or structure, or

b. Repair, alter or improve the nonresidential building or structure to bring it into compliance with the minimum standards established by this division.

(d) *Failure to comply with order; adoption of ordinance by housing appeals board.*

(1) If the owner fails to comply with an order to either:

a. Repair, alter, or improve the nonresidential building or structure, or

b. Vacate and close the nonresidential building or structure, the administrator may request that housing appeals board adopt an ordinance ordering the administrator to cause such nonresidential building or structure to be repaired, altered, or improved in order to bring it into compliance with the minimum standards established by this division or to be vacated and closed for any use. The property or properties shall be described in the ordinance. The ordinance shall be recorded in the office of the register of deeds and shall be indexed in the name of the property owner or owners in the grantor index. Following the housing appeals board adoption of an ordinance, the administrator may cause the building or structure to be either repaired or vacated and closed for any use. The administrator may cause to be posted on the main entrance of any nonresidential building or structure so closed a placard with the following words: "This building is unfit for any use; the use or occupation of this building for any purpose is prohibited and unlawful."

(2) If the owner fails to comply with an order to either:

a. Remove or demolish the nonresidential building or structure, or

b. Repair, alter, or improve the nonresidential building or structure, the administrator may request that the housing appeals board adopt an ordinance ordering the administrator to cause such nonresidential building or structure to be removed or demolished. No ordinance shall be adopted to require removal or demolition of a nonresidential building or structure until the owner has first been given a reasonable opportunity to bring it into conformity with this division. The property or properties shall be described in the ordinance. The ordinance shall be recorded in the office of the register of deeds and shall be indexed in the name of the property owner or owners in the grantor index. Following the housing appeals board adoption of an ordinance, the administrator may cause the building or structure to be removed or demolished.

(Ord. No. 13715, § 1, 10-20-2008; Ord. No. 15982, § 18, 8-1-2022)

Sec. 10-309. Limitations on orders and ordinances—Historic landmark or historic district.

Notwithstanding any other provision of this division, if the nonresidential building or structure is designated as a local historic landmark, listed in the national register of historic places, or located in a locally designated historic district or in a historic district listed in the national register of historic places and the housing appeals board determines, after a public hearing, that the nonresidential building or structure is of individual significance or contributes to maintaining the character of the district, and the nonresidential building or structure has not been condemned as unsafe, an order issued by the administrator pursuant to this division and an ordinance approved by housing appeals board pursuant to this division may only require that the nonresidential building or structure be vacated and closed until it is brought into compliance with the minimum standards established by this division.
(Ord. No. 13715, § 1, 10-20-2008)

Sec. 10-310. Same—Vacant manufacturing facility or vacant industrial warehouse.

Notwithstanding any other provision of this division, an order issued by the administrator pursuant to this division and an ordinance approved by the housing appeals board pursuant to this division may not require repairs, alterations, or improvements to be made to a vacant manufacturing facility or a vacant industrial warehouse to preserve the original use. The order and ordinance may require such building or structure to be vacated and closed, but repairs may be required only when necessary to maintain structural integrity or to abate a health or safety hazard that cannot be remedied by ordering the building or structure closed for any use.
(Ord. No. 13715, § 1, 10-20-2008)

Sec. 10-311. Limitation on enforcement of complaint or order—Approved renovation plan.

(a) If the owner of the nonresidential building or structure is served with complaint or order due to exterior and interior violations on such nonresidential building or structure and if such owner repairs the exterior violations and secures the nonresidential building or structure within an agreed upon timeframe, then administrator may suspend the enforcement of this division for a two-year period from date of issuance of complaint or order if:

(1) Owner presents proof that owner is actively seeking to sell the property. Such proof includes posting a sign in a conspicuous place on the premises indicating such nonresidential building or structure and premises is for sale or lease or other evidence that such building or structure is being actively marketed for sale or lease; and

(2) Owner states that purpose of not repairing interior is to allow a new owner or tenant to upfit or renovate the interior of the building or structure.

(b) When the owner secures the nonresidential building or structure pursuant to this section, the administrator may require the owner to take reasonable measures to ensure that the building or structure in its closed and boarded-up state is in a safe and sanitary condition. Such measures include but are not limited to requiring the owner to keep boarded windows free of graffiti.

However, the administrator may reinstate the enforcement of the provisions of this division at any time if the nonresidential building or structure is no longer secure, other exterior violations appear or if the nonresidential building or structure has conditions or a change of circumstances that make it dangerous and injurious to public health, safety and welfare.
(Ord. No. 13715, § 1, 10-20-2008)

Sec. 10-312. Vacated and closed nonresidential buildings or structures; abandonment of intent to repair.

(a) If the housing appeals board has adopted an ordinance or the administrator has issued an order requiring the nonresidential building or structure to be repaired or vacated and closed and such building or structure has been vacated and closed for a period of two years pursuant to the ordinance or order, then if the housing appeals board finds that the owner has abandoned the intent and purpose to repair, alter, or improve the building or structure and that the continuation of the building or structure in its vacated and closed status would be inimical to the health, safety, and welfare of the city in that it would continue to deteriorate, would create a fire or safety hazard, would be a threat to children and vagrants, would attract persons intent on criminal activities, or would cause or contribute to blight and the deterioration of property values in the area, then the housing appeals board may, after the expiration of the two-year period, adopt an ordinance and serve such ordinance on the owner, setting forth the following:

(1) When the cost to repair is less than or equal to 50 percent of the nonresidential building or structure's current value, the ordinance shall require that the owner either:

   a. Demolish and remove the nonresidential building or structure within 90 days, or

   b. Repair, alter, or improve the nonresidential building or structure to bring it into compliance with the minimum standards established by this division within 90 days; or

(2) When the cost to repair exceeds 50 percent of the nonresidential building or structure's current value, the ordinance shall require that the owner demolish and remove the nonresidential building or structure within 90 days.

(b) In the case of a vacant manufacturing facility or a vacant industrial warehouse, the building or structure must have been vacated and closed pursuant to an order or ordinance for a period of five years before housing appeals board may take action under this section.

(c) If the owner fails to comply with the requirements of the ordinance, the administrator shall demolish and remove the nonresidential building or structure.
(Ord. No. 13715, § 1, 10-20-2008)

Sec. 10-313. Methods of service of complaints and orders.

(a) Complaints or orders issued by the administrator under this division shall be served upon persons either personally or by registered or certified mail and, in conjunction therewith, may be served by regular mail. When service is by regular mail in conjunction with registered

or certified mail is unclaimed or refused, but the regular mail is not returned by the post office within ten days after mailing, service shall be deemed sufficient. If regular mail is used, a notice of the pending proceedings shall be posted in a conspicuous place on the premises thereby affected.

(b) If the identifies of any owner or the whereabouts of persons are unknown and cannot be ascertained by the administrator in the exercise of reasonable diligence, and the administrator makes an affidavit to that effect, then the serving of the complaint or order upon the owners or other persons may be made by publication in a newspaper having general circulation in the city at least once no later than the time at which personal service would be required under the provisions of this division. When service is made by publication, a notice of the pending proceedings shall be posted in a conspicuous place on the premises thereby affected.
(Ord. No. 13715, § 1, 10-20-2008)

Sec. 10-314. Notice of lis pendens.

Upon issuance of a complaint and notice of hearing or order, a notice of lis pendens with a copy of the complaint and notice of hearing or order attached thereto may be filed in the office of the clerk of superior court of Durham County or the county where the property is located. The notice of lis pendens and a copy of the complaint and notice or order shall be indexed and cross-indexed in accordance with the indexing procedures of G.S. 1-117. From the date and time of indexing, the complaint and notice or order shall be binding upon the successors and assigns of the owners of and parties in interest in the nonresidential building or structure. A copy of the notice of lis pendens shall be served upon the owners and parties in interest in the nonresidential building or structure at the time of filing. The administrator may cancel the notice of lis pendens if the action in which the complaint and notice or order was issued has been settled, discontinued, or abated.
(Ord. No. 13715, § 1, 10-20-2008)

Sec. 10-315. Costs, lien on premises.

(a) The amount of the cost of repairs, alterations, or improvements, or vacating and closing, or removal or demolition by the administrator shall be a lien against the real property upon which the cost was incurred, which lien shall be filed, have the same priority, and be collected as the lien for special assessment provided in G.S. ch. 160A, art. 10.

(b) The amount of the cost of repairs, alterations or improvements, or vacating and closing, or removal or demolition by the administrator shall be a lien on any other real property of the owner located within the city limits except for the owner's primary residence. The additional lien provided in this subsection is inferior to all prior liens and shall be collected as a money judgment.

(c) If the nonresidential building or structure is removed or demolished by the administrator, the administrator shall offer for sale the recoverable materials of the building or structure and any personal property, fixtures, or appurtenances found in or attached to the

building or structure and shall credit the proceeds of the sale, if any, against the cost of the removal or demolition, and any balance remaining shall be deposited in the superior court by the administrator, shall be secured in a manner directed by the court, and shall be disbursed by the court to the persons found to be entitled thereto by final order or decree of the court. Nothing in this section shall be construed to impair or limit in any way the power of the council to define and declare nuisances and to cause their removal or abatement by summary proceedings or otherwise.
(Ord. No. 13715, § 1, 10-20-2008)

Sec. 10-316. Housing appeals board to hear appeals.

Where compliance with an order of the administrator, or where the literal application of the provisions of this division, would appear to cause undue hardship on an owner or other party in interest, or when it is claimed that the true intent and meaning of this division or any of the minimum standards or requirements herein have been wrongly interpreted, the owner or other party in interest may appeal from the order of the administrator to the housing appeals board ("board").

(1) The housing appeals board is established in accordance with G.S. 160D-305; 160D-1208 and special legislation adopted for the city regarding the board. As the appeals body, the board shall have the power to fix the times and places of its meetings, to adopt necessary rules of procedure and any other rules and regulations which may be necessary for the proper discharge of its duties.

(2) Notice of appeal shall be in writing and filed with the administrator within ten days after service of the order of the administrator. The appeal shall be placed on the agenda for hearing by the housing appeals board at its next regular meeting if possible but in any event within a reasonable time.

(3) The housing appeals board upon such appeal, and after a hearing, may extend the time for compliance with the administrator's order, or vary the application of any provisions of this division in hardship cases when, in its opinion, the enforcement thereof would do manifest injustice and would be contrary to the spirit and purpose of this division or the public interest, or when, in its opinion the interpretation of the administrator was wrong and should be modified or reversed. In hardship cases, a hardship peculiar to the appellant must be shown.

(4) A decision of the housing appeals board to extend the time for compliance with an order of the administrator, or to vary the application of any provision of this division or to modify an order of the administrator, shall specify in what manner such extension, variation, or modification is made, the conditions upon which it is made, and the reasons therefore.

(5) Every such decision of the housing appeals board shall be in writing, and shall be promptly filed in the office of the administrator, and shall be open to public inspection; a certified copy shall be sent by mail, or otherwise, to the appellant.

(6) If a decision of the housing appeals board reverses or modifies a refusal, order or disallowance of the administrator, or varies the application of any provision of this division, the administrator shall immediately take action in accordance with such decision.

(Ord. No. 13715, § 1, 10-20-2008; Ord. No. 15852, pt. 1, 6-21-2021)

Sec. 10-317. Temporary injunction remedy for aggrieved person and certiorari review.

(a) Any person aggrieved by an order issued by the administrator or a decision rendered by the housing appeals board may petition the superior court for an injunction restraining the administrator from carrying out the order or decision. The petition shall be filed within 30 days after issuance of the order or rendering of the decision. A hearing on the petition shall be as provided in G.S. 160D-305; 160D-1208.

(b) Certiorari review. Every decision of the board shall be subject to review by the superior court by proceedings in the nature of certiorari instituted within 15 days of the decision of the board, but not otherwise.

(Ord. No. 13715, § 1, 10-20-2008; Ord. No. 15852, pt. 1, 6-21-2021)

Sec. 10-318. Conflict with other provisions.

In the event any provision, standard or requirement of this division is found to be in conflict with any other ordinance or code of the city, the provision which establishes the higher standard or more stringent requirement for the promotion and protection of health and safety of the citizens of the city shall prevail.

(Ord. No. 13715, § 1, 10-20-2008)

Sec. 10-319. Ejectment.

If any occupant fails to comply with an order to vacate a nonresidential building or structure, the administrator may file a civil action in the name of the city to remove the occupant. The action to vacate shall be in the nature of summary ejectment and shall be commenced by filing a complaint naming as parties-defendant any person occupying the nonresidential building or structure. The clerk of superior court shall issue a summons requiring the defendant to appear before a magistrate at a certain time, date, and place not to exceed ten days from the issuance of the summons to answer the complaint. The summons and complaint shall be served as provided in G.S. 42-29. The summons shall be returned according to its tenor, and if on its return it appears to have been duly served and if at the hearing the administrator produces a certified copy of an ordinance adopted by the housing appeals board to vacate the occupied nonresidential building or structure, the magistrate shall enter judgment ordering that the premises be vacated and all persons be removed. The judgment ordering that the nonresidential building or structure be vacated shall be enforced in the same manner as the judgment for summary ejectment entered under G.S. 42-30. An appeal from any judgment entered under this subsection by the magistrate may be taken as provided in G.S. 7A-228, and the execution of the judgment may be stayed as provided in G.S.

7A-227. An action to remove an occupant of a nonresidential building or structure who is a tenant of the owner may not be in the nature of a summary ejectment proceeding pursuant to this subsection unless the occupant was served with notice, at least 30 days before the filing of the summary ejectment proceeding, that the housing appeals board has ordered the administrator to proceed to exercise his duties to vacate and close or remove and demolish the nonresidential building or structure.
(Ord. No. 13715, § 1, 10-20-2008)

Sec. 10-320. Violations; penalty; fee; remedies.

(a) It shall be unlawful for the owner of any nonresidential building or structure to fail, neglect or refuse to repair, alter or improve the same, or to vacate and close or remove or demolish the same, upon order of the administrator duly made and served as herein provided, within the time specified in such order, and each day that any such failure, neglect or refusal to comply with such order continues shall constitute a separate and distinct offense.

(b) It shall be unlawful for the owner or agent of the owner in charge of such nonresidential building or structure with respect to which an order has been issued pursuant to this division, to occupy or permit the occupancy of the same in a dilapidated or deteriorated condition found to be unfit for any use in violation of such order for its repair, alteration or improvement or its vacation, closing or demolition, and each day that such unlawful occupancy continues after the expiration of the time prescribed in the order to repair, alter, improve, vacate, close or demolish such nonresidential building or structure shall constitute a separate and distinct offense.

(c) Any person that fails to comply with any of the provisions of this division shall be subject to an initial civil penalty in the amount of $300.00 and an additional civil penalty of $300.00 shall be imposed each month. The penalty shall be imposed until the nonresidential building or structure is brought into compliance. However, the maximum cumulative civil penalty shall not exceed $5,000.00. This penalty may be recovered by the city in a civil action in the nature of debt if the person does not pay the same within 30 days after the initial day of noncompliance.

(d) The owner of any nonresidential building or structure who fails to repair or vacate and close it, or demolish or remove it, upon order of the administrator duly made and served as herein provided, within the time specified in such order, shall be subject to an administrative fee in an amount set by the city council for noncompliance. This fee allows the city to recover some of its administrative costs incurred due to the owner's failure to comply with the administrator's order described herein.

(e) A violation may be corrected by any appropriate equitable remedy, a mandatory or prohibitory injunction, or an order of abatement as authorized by G.S. 160A-175. The city shall have a lien on the property for the cost of executing an order of abatement in the nature of a mechanic's and materialman's lien.

(f) This section is adopted pursuant to Section 102.1 of the Charter and other applicable statutes.
(Ord. No. 13715, § 1, 10-20-2008; Ord. No. 15010, § 3, 9-6-2016; Ord. No. 15982, § 19, 8-1-2022)

Secs. 10-321—10-349. Reserved.

ARTICLE VIII. PERIODIC INSPECTION OF RENTAL DWELLINGS*

DIVISION 1. GENERALLY

Sec. 10-350. Definitions.

As used in this article, unless the context clearly requires otherwise, the following words have the listed meanings. The singular includes the plural, unless otherwise specified.

Administrator means administrator as defined in section 10-230.

Dwelling means dwelling as defined in section 10-230.

Dwelling unit means dwelling unit as defined in section 10-230.

Housing code means code sections found in chapter 10, article VI captioned "Housing Code."

Landlord means any rental management company, rental agency, manager or any other person paid by the owner to manage any rental unit which is leased or offered for lease.

Other codes means code sections found in chapter 26, article VI captioned "Removal of Trash and Undergrowth from Property" and code sections found in chapter 26, article V, division 2 captioned "Removal and Disposition of Abandoned Vehicles, Hazardous Vehicles and Junked Motor Vehicles."

Owner means owner as defined in section 10-230.

Periodic inspection means an inspection that occurs at regular or scheduled intervals or occurs from time to time with or without specific cause.

Rental unit means a dwelling, dwelling unit or rooming unit that is leased or offered for lease.

Residential rental property means (i) a building containing at least one rental unit, regardless of whether other portions of the building are available for residential use by tenants; and (ii) the tax lot or tax lots on which the building is located. If more than one building is located entirely on a single tax lot, the buildings and the tax lot are one residential rental property.

***Editor's note—**Ord. No. 14934, § 1, adopted June 6, 2016, amended art. VIII title from Residential Rental Property Registration to as set out.

Rooming unit means rooming unit as defined in section 10-230.

Tax lot means a parcel of land as specified in the county tax office record that shows the parcel's ownership; dimensions; location, including street number, if any; and a parcel identifier number (PIN) that is unique to each tax lot.

Unsafe building law means code sections found in chapter 10, article VII, division 1 captioned "Supplemental Procedures" and G.S. 160A-424 et seq. when these laws were applied against a residential building.

Verified violation means each noncompliant condition listed or set forth in a complaint and/or notice issued pursuant to the housing code, unsafe building law or other codes.
(Ord. No. 14231, § 1, 3-5-2012)

Secs. 10-351—10-360. Reserved.

DIVISION 2. PERIODIC INSPECTIONS

Sec. 10-361. Council findings.

Council finds that most complaints and notices issued under the housing code originate from dwellings (residential buildings) that are not owner-occupied. Since the majority of complaints and violations of the housing code arise from dwellings that are not owner-occupied, the administrator or housing inspector may make periodic inspections that solely target residential rental property.
(Ord. No. 14231, § 1, 3-5-2012)

Sec. 10-362. Reasonable cause periodic inspections.

(a) The administrator or housing inspector shall make periodic inspections when there is reasonable cause to believe that unsafe, unsanitary or otherwise hazardous or unlawful conditions exist in a residential building or structure. Residential rental property shall be placed in a program of periodic inspections when reasonable cause is established as follows:

(1) The owner or landlord of a building which has three or more verified violations of the housing code or unsafe building law within a 12-month period, then that building shall be placed in the program;

(2) The building has been the subject of a complaint that substandard conditions exist within the building or there has been a request that the building be inspected, the entire building shall be placed in the program;

(3) The administrator or housing inspector has actual knowledge of an unsafe condition within the building, the entire building shall be placed in the program; or

(4) Violations of the housing code, unsafe building law or other codes are visible on the residential rental property from the outside of the property then the entire property shall be placed in the program.

(b) Program regarding reasonable cause inspections. The administrator shall establish a program to implement reasonable cause periodic inspections authorized by this section. Such program of periodic inspection shall only place residential rental properties in the program. Where notice to a landlord is required in this section, the owner shall be included in such notice.
(Ord. No. 14231, § 1, 3-5-2012)

Sec. 10-363. Council designated area periodic inspections.

(a) The city hereby requires periodic inspections of residential buildings or structures as part of a targeted effort within the geographic areas specified by council. The provisions of G.S. 160A-424(b) shall be followed in designating the specified geographic areas.

(b) Program regarding council designated area inspections. The city manager shall establish a program that implements this section. The program shall focus solely on the periodic inspection of residential rental property.
(Ord. No. 14231, § 1, 3-5-2012)

Secs. 10-364—10-370. Reserved.

DIVISION 3. RESERVED*

*__Editor's note—__Ord. No. 14934, § 2, adopted June 6, 2016, repealed division 3 §§ 10-371—10-378, which pertained to residential rental property registration and derived from Ord. No. 14231, § 1, 3-5-2012.

Chapters 11—13

RESERVED

Chapter 14

CEMETERIES

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Sec. 14-5. Cemetery manager may eject violators.
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Article II. Monuments, Mausoleums, Markers, Coping, Etc.

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Article III. Sale of Lots and Columbarium Niches

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ARTICLE I. IN GENERAL

Sec. 14-1. Definitions.

In the construction of this chapter of the City Code and of all instruments prepared or issued pursuant to this chapter, the following definitions shall be observed, unless inconsistent with the manifest intent of the council or the context clearly requires otherwise:

Biodegradable material means material that can break down into natural materials in the environment without causing harm and are capable of being decomposed by bacteria or other living organisms.

Green burial means a more environmentally friendly form of burial that does not involve chemicals and any non-biodegradable material.

Lot or *grave* includes the ground and not any monuments, foundations or mausoleums.

Natural conservation area means an area in any city cemetery in which only green burials can occur.
(Code 1982, § 7-32; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 16219, § 1, 10-2-2023)

Sec. 14-2. Cemetery manager; appointment, duties generally.

There shall be a cemetery manager of the city cemeteries who shall be appointed by the city manager. The cemetery manager shall perform all duties prescribed herein and such other duties as may be assigned to him or her by the city manager.
(Code 1982, § 7-1; Ord. No. 11943, § 2, 4-3-2000)

Sec. 14-3. Control of cemeteries.

The city manager through the cemetery manager, shall have absolute charge of the city cemeteries with authority to enforce all ordinances, rules, and regulations relating to the cemeteries; shall have the same kept in good order, and shall manage the digging of all graves and all interments and disinterments.
(Code 1982, § 7-2; Ord. No. 11943, § 2, 4-3-2000)

Sec. 14-4. Promulgation and enforcement of rules.

The city manager is authorized, subject to the approval of the city council, to make and carry out and enforce suitable rules and regulations for the operation and maintenance of the city cemeteries not inconsistent with this chapter. In addition to any other remedy available in the Code, it shall be a misdemeanor punishable by a maximum fine of $500.00 for any person to fail, neglect, or refuse to comply with such rules.
(Code 1982, § 7-3; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 20, 8-1-2022)

Sec. 14-5. Cemetery manager may eject violators.

The cemetery manager may eject any person willfully violating any of the cemetery rules or regulations or ordinances.
(Code 1982, § 7-4; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 16219, § 2, 10-2-2023)

Sec. 14-6. Cremains.

The city manager shall designate an area within city cemeteries for the scattering of cremains. The scattering of cremains in any city cemetery, except within the area designated by the city manager, is prohibited. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-5; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 21, 8-1-2022)

Sec. 14-7. When burials and disinterments prohibited.

Burials and disinterments are prohibited in city cemeteries on Easter Day, Christmas Day, Thanksgiving Day, and Independence Day (July 4th). In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-6; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 22, 8-1-2022)

Sec. 14-8. When opened to the public.

Between March 1 and September 1 the city cemeteries shall remain open to the public from 7:30 a.m. until the earlier of sunset or 7:00 p.m. The cemetery manager may alter the closing time until change is made by daylight savings time. Between September 1 and March 1 the city cemeteries shall remain open to the public from 7:30 a.m. to 5:00 p.m. The city manager may order city cemeteries closed during an emergency. The following occurrences may be deemed emergencies by the city manager: ice storms, floods, hurricanes, tornadoes, extreme snow, natural disaster or any other situation of a serious nature.
(Code 1982, § 7-7; Ord. No. 11943, § 2, 4-3-2000)

Sec. 14-9. Entering cemeteries after closing hours.

No person shall enter any city cemetery except during the hours in which they are open to the public as set forth herein, except upon permission first granted by the cemetery manager. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-8; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 23, 8-1-2022)

Sec. 14-10. Ingress and egress; climbing walls.

It shall be unlawful for any person to enter the enclosures or grounds of the city cemeteries, or to go out therefrom, except at the gates located at the proper places of

entrance and exit to and from such cemeteries, or to mount or walk or run upon the walls, fences thereof. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-9; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 24, 8-1-2022)

Sec. 14-11. Advertisements, posters, etc.

No advertising of any description shall be permitted within any of the city cemeteries. No bills, posters, placards, pictures, or any other like or similar device shall be attached or posted on either the inside or outside of any wall or fence enclosing any of the city cemeteries. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-10; Ord. No. 15982, § 25, 8-1-2022)

Sec. 14-12. Trucks and wagons forbidden.

Commercial trucks and wagons, or other similar vehicles or equipment that are deemed to be a nuisance by the cemetery manager, shall not be permitted inside the gates of any of the city cemeteries, unless engaged in cemetery business. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-11; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 26, 8-1-2022)

Sec. 14-13. Bicycle, horseback, and other similar activities prohibited.

(a) Horseback riding, riding of bicycles or go-carts, three and four wheelers, skating, skate boarding, rollerblading, jogging and other substantially similar activities are hereby prohibited in the city cemeteries.

(b) This section shall not apply to law enforcement officers while in discharge of their official duties.

(c) In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-12; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 27, 8-1-2022)

Sec. 14-14. Driving on roads; speed limits.

No person shall drive a vehicle on any part of the grounds of the city cemeteries except upon the main roads and avenues provided therein for vehicular traffic. The speed of vehicles in the cemeteries shall not exceed 15 miles per hour. In addition to any other remedy available in the Code, violation of this section is an infraction punishable by a maximum fine of $50.00.
(Code 1982, § 7-13; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 28, 8-1-2022; Ord. No. 16219, § 3, 10-2-2023)

Sec. 14-15. Parking.

No person shall park or cause to remain parked any vehicle within any city cemetery unless in attendance at burial services or otherwise engaged in activities which call for the presence of such vehicle within the cemetery. In addition to any other remedy available in the Code, violation of this section is an infraction punishable by a maximum fine of $50.00.
(Code 1982, § 7-14; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 16219, § 4, 10-2-2023)

Sec. 14-16. Disturbances.

Any person disturbing the quiet and good order of any of the city cemeteries by unreasonably loud noise of any kind may be ejected from the grounds. Any person refusing to leave the cemetery when notified to do so for any disturbance, disorderly conduct or other violation of any of the regulations or ordinances concerning such cemetery, shall be guilty of a misdemeanor. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-16; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 29, 8-1-2022)

Sec. 14-17. Defacing or removing property generally - flowers, etc.—Reserved.
(Code 1982, § 7-17; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 30, 8-1-2022; Ord. No. 16219, § 5, 10-2-2023)

State law reference—See G.S. 14-148, 14-149.

Sec. 14-18. Same—monuments, etc.—Reserved.
(Code 1982, § 7-18; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 31, 8-1-2022; Ord. No. 16219, § 6, 10-2-2023)

State law reference—See G.S. 14-148.

Sec. 14-19. Animals.

It shall be unlawful for any person to allow his or her animal, except service animals trained to assist the person with his or her specific disability, to enter any city cemetery, and all dogs and fowl, except said service animals, found within the enclosures or grounds of any city cemetery shall be impounded. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-19; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 32, 8-1-2022)

Sec. 14-20. Grave mounds; permanent boxes, urns, etc., on graves or lots.

No grave mounds will be permitted in any city cemetery except in natural conservation areas. The placing of permanent boxes, urns, metal ornaments, concrete ornaments, wind socks, non: commemorative flags, or similar items deemed by the cemetery manager to be inappropriate or unsightly are prohibited upon any grave or lot within the cemetery. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-20; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 33, 8-1-2022; Ord. No. 16219, § 7, 10-2-2023)

Sec. 14-21. Trees, shrubs, other plants, floral arrangements planting and removal.

(a) *Consent and approval*. No trees, shrubs or plants shall be planted, pruned, or removed in the city cemeteries without the consent and approval of the cemetery manager. The cemetery manager shall have the authority to prune, remove or transplant any tree, shrub, plant or other growth upon a lot when he or she may consider such a course necessary for the general beauty, welfare and best interest of the cemetery.

(b) *Planting permitted*. Planting is permitted only on cemetery lots with upright monuments and a minimum of four grave spaces. No evergreens shall be planted on the corners of any lot; no shrubbery of any kind shall be planted nearer than 18 inches from the lot line and must be of dwarf size and not exceed the height of the monument when fully grown. The planting of shrubs and trees on a lot shall conform to the general landscape features of the grounds.

(c) *Shrubbery and planted flower prohibited in certain areas.* Shrubbery and planted flowers are prohibited in that portion of Maplewood Cemetery Annex bounded on the west by Anderson Street, on the south by Morehead Avenue, on the east by Chapel Hill Road and on the north by a branch or creek, and in all sections opened on or after August 1, 1987 in Beechwood Cemetery, except in areas specifically designated and approved by the cemetery manager, and in these areas so designated and approved, shrubbery and planted flowers may be furnished and planted by the city.

(d) *Removal or pruning when detrimental.* If any trees, shrubs, or other plants situated in any lot shall, by means of their encroaching roots or branches, become detrimental to the adjacent lots, driveways or walks the cemetery manager is authorized and empowered to enter onto the lot and remove or trim any trees or shrubs that have become objectionable.

(e) *Removal of nonconforming or unsightly flowers, etc.* The cemetery manager shall have authority to remove all floral designs, flowers, weeds, plants, breakable containers, glass, clay, wire or any dangerous or potentially dangerous item.

(f) *Number of floral arrangements allowed during certain period; exception.* Between March 1 and November 1, more than one floral design or floral arrangement per grave is prohibited in city cemeteries, except for a period of seven days following interment.

(g) *Available remedies*. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, §§ 7-21—7-25; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 34, 8-1-2022)

Sec. 14-22. Floral arrangements in city cemeteries.

In any city cemetery, all floral designs or floral arrangements, other than those placed in the vase or container, are prohibited during the grass mowing seasons from March 1 to November 1. During this period vases must be attached to the marker. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-26; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 35, 8-1-2022)

Sec. 14-23. Interment—Notice.

Notice of interment in any of the city cemeteries must be given to the cemetery manager not less than 24 hours in advance, at which time the precise location and payment for the interment must be completed. Notice for interment to be held on Sunday or holiday shall be given to the cemetery manager not later than 11:00 a.m. of the preceding day. Holiday burials shall start no later than 12:00 p.m. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-27; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 36, 8-1-2022)

Sec. 14-24. Same—Records to be kept.

Suitable books shall be provided and kept for entries by the cemetery manager of interments in the city cemeteries. Such entries shall contain the name, age, sex, date of death, burial date and location of every person buried in the city cemeteries.
(Code 1982, § 7-28; Ord. No. 11943, § 2, 4-3-2000)

Sec. 14-25. Prices for services, fees, established by city council.

Except as otherwise provided, the city council shall set rates for all cemetery charges, services and fees. A schedule of rates shall be available for inspection in the office of the cemetery manager. All charges shall be payable in advance, in the form of check, cash or credit card charge.
(Code 1982, § 7-29; Ord. No. 11943, § 2, 4-3-2000)

Sec. 14-26. Promotional pricing.

The cemetery manager, is authorized, subject to the approval of the city manager, to offer promotional pricing of city cemetery services and products including waiving or reducing the interest rate on an installment purchase to increase sales. However, prices set by city council shall not be reduced by more than 50 percent with the exception of the interest rate on installment purchases and shall not extend longer than 90 days for any given period. The cemetery manager shall set the duration and location of the promotion. The cemetery manager will furnish to the city council an annual report detailing whether city management offered price reductions and the revenue generated by the price reductions.
(Code 1982, § 7-30)

Sec. 14-27. Sales commission offer to funeral homes and crematories.

(a) The cemetery manager is authorized, subject to the approval of the city manager to offer a sales commission for services rendered to an approved funeral home or crematory who acts as an agent for the city by referring persons to city to purchase cemetery services and products and the referral results in a sale. The city may offer a sales commission of up to $150.00 to an approved funeral home or crematory for referrals to the cemeteries staff that result in a sale. The cemetery manager shall set a uniform commission fee based on the particular incentive offered. The cemetery manager shall set the duration of the offered

sales commission. Commissions will be paid only when the sale is the result of the direct efforts of the approved funeral home or crematory or their agents and the cemeteries staff has received payment in full from the person purchasing the service or product or when a product is being purchased pursuant to an installment plan as set forth in section 14-78. The funeral home or crematory or their agents shall not be permitted to purchase niches for resale.

(b) The cemetery manager shall require prior to payment of sales commission that the funeral home or crematory or their agents submit proof evidencing that the person who was referred signed a disclosure statement establishing that the person was made aware that the funeral home or crematory may be paid a sales commission if the referral results in a sale. An approved funeral home or crematory is any licensed funeral home or crematory that refers a person to a city-owned cemetery that ultimately results in a sale of cemetery products or services.
(Code 1982, § 7-30.5; Ord. No. 11943, § 2, 4-3-2000)

Sec. 14-28. Grave liner approval.

In all cases in which the casket is not placed in an approved vault, no interment in any city cemetery shall be permitted unless a grave liner of concrete or such other material as may be approved by the cemetery manager is installed in the grave to contain the casket. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00. This section does not apply to human cremains interred in any natural conservation area located within a city cemetery.
(Code 1982, § 7-31; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 37, 8-1-2022; Ord. No. 16219, § 8, 10-2-2023)

Sec. 14-29. Approved materials used for cemetery vases or containers.

Cemetery vases or containers that retain artificial or fresh flowers must be made of durable material, such as concrete, steel, brass, or bronze. Cemetery vases or containers made of glass, fiberglass, plastics, tin, or other non durable type fibers biodegradable material are prohibited from being placed on graves in city cemeteries, unless the grave is located in a natural conservation area. In such designated areas, only cemetery vases or containers made of biodegradable material are permitted. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-33; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 38, 8-1-2022; Ord. No. 16219, § 9, 10-2-2023)

Secs. 14-30—14-46. Reserved.

ARTICLE II. MONUMENTS, MAUSOLEUMS, MARKERS, COPING, ETC.

Sec. 14-47. Location to be determined by city.

The location of markers, monuments, and mausoleums shall be determined by the cemetery manager and when located shall not be removed except on written approval of the cemetery manager. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-34; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 39, 8-1-2022)

Sec. 14-48. Permit, bond and insurance for persons installing monuments or other memorials.

No monument, marker, urn or mausoleum may be set or moved in the cemetery except by a person holding a permit from the cemetery manager to do such work. The cemetery manager will issue permit only when satisfactory evidence is furnished that the applicant has complied with the laws with reference to monument dealer and is qualified to perform the work for which employed. A permit shall be revoked at any time for violation of the cemetery rules or for other reason satisfactory to the cemetery manager. The city may require of any dealer, bond insurance securing performance or liability insurance indemnifying the city and the public from any negligence, and guaranteeing faithful performance of all work. The permit fee will be paid at the cemetery manager's office. The placement of markers shall occur during normal business hours only after receiving permission from cemetery manager. The cemetery manager or designated staff person shall accompany the person or business that is installing the marker. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-35; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 40, 8-1-2022)

Sec. 14-49. Application for placement.

No memorial may be brought into the cemetery unless and until duplicate written applications, signed by the owner and monument dealer holding a permit, on forms prescribed, are filed with the cemetery manager and written approval has been received from the cemetery manager. All information requested on the forms or by this chapter must be furnished, and, after approval, payment of charges for erection of the foundation (where applicable) shall be paid in advance, and no memorial shall be brought into the cemetery grounds until the dealer has been notified that the foundation is ready. Monument dealers are required to inspect the lot and study the size, location and contour of the lot and surrounding lots and monuments before making application, and to certify such fact in the application and that the proposed memorial complies with all rules and regulations of the cemetery. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-36; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 41, 8-1-2022)

Sec. 14-50. Monument specifications—Foundations.

(a) Monuments shall be placed or erected only in designated sections of city cemeteries determined by the cemetery manager. Such monuments shall be placed on lots with four or more grave spaces in the designated sections. Only one monument may be placed upon any one lot. The location of all monuments shall be subject to the approval of the cemetery manager.

(1) The cemetery manager shall have discretion in the designated sections to allow monuments to be placed in the center of the lot. The grave spaces in such a lot may be sold to individual owners. Each person owning a grave space in this type of a lot shall have equal monument space to place burial information (such as the deceased person's name) on a common monument. Flat markers are prohibited in these designated sections.

(2) When an individual grave space in a monument lot as set forth in subsection (a)(1) of this section is transferred, the burial information shall be removed from the face of the monument. At the time of burial, use of each individual monument space shall be paid for in full. If the individual grave space is purchased back by the city the original fee for the use of the monument space shall be refunded less the cost incurred to remove the burial information. If the grave space is sold to someone other than the city the cost of any changes to the monument will be the responsibility of the new owner.

(b) A monument lot is defined as any lot in a section so designated by the cemetery manager that has four or more grave spaces. A nonmonument lot is defined as any lot located in a section where monuments are prohibited.

(c) When unnecessary hardship would result from carrying out the strict letter of this section, the cemetery manager may authorize variation from the terms of this article if said variance involves a section of the city cemeteries designated for monuments, would not unduly interfere with grounds maintenance or future burials and would not be injurious to the general appearance of the section in which the lot is located. City council shall set a variance application fee for requesting a variance.

(d) No monument shall be placed or erected which shall have a face greater than 15 percent of the lot area, nor with a width greater than 60 percent of the average width of the lot.

(e) No monument shall be placed or erected on any lot unless such monument shall be a minimum of two feet in height, not including the base, two feet in width and eight inches thick, and the length shall not exceed 60 percent of the lot width, provided that the cemetery manager may authorize reasonable exception within old Maplewood Cemetery and annex A of such cemetery only to conform to existing monuments therein.

(f) All monuments shall be constructed of first-quality granite or marble only unless the grave is located in a natural conservation area. In such designated areas, only monuments made of biodegradable material are permitted.

(g) The foundation for all monuments shall be at least four feet deep unless solid rock or other suitable conditions, approved by the cemetery manager as being safe and substantial, are encountered at less depth. The cemetery manager shall issue any other specifications as may be necessary for the proper setting of monuments generally or individually. Foundations shall be constructed by cemetery employees under the direction of the cemetery manager at the expense of the lot owner.

(h) Orders for foundations shall be submitted to the cemetery manager at least five days before the monument shall be set and no monument shall be set until notice to proceed has been given by the cemetery manager.

(i) Reserved.

(j) In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-37; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 12970, § 2, 6-21-2004; Ord. No. 15982, § 42, 8-1-2022; Ord. No. 16219, § 10, 10-2-2023)

Sec. 14-51. Erection of upright monuments and mausoleums in certain sections prohibited.

The city manager through the cemetery manager may designate certain locations for mausoleums in all city cemeteries.
(Code 1982, § 7-38; Ord. No. 11943, § 2, 4-3-2000)

Sec. 14-52. Mausoleum locations; specifications; foundations, crypt placement.

The requirements as to mausoleums in city cemeteries shall be as follows:

(1) No mausoleum shall be erected in city cemeteries, except upon lots specifically designated by the cemetery manager for that purpose.

(2) No mausoleum shall be erected on any lot within the city cemeteries until complete plans and specifications shall have been submitted to the cemetery manager for approval and permit issued thereof.

(3) Mausoleums shall be constructed of first quality granite or marble with outside walls to be not less than six inches in thickness, unless the grave is located in a natural conservation area. In such designated areas, only mausoleums made of biodegradable material are permitted.

(4) Foundations for mausoleums shall be constructed to specifications of the director of building inspections. The expense of the foundation must be paid by the lot owner prior to pouring the foundation, Foundations shall not ordinarily be less than six feet deep unless specifically authorized by the cemetery manager. Orders for foundations shall be submitted to the cemetery manager at least ten days before the mausoleum is to be constructed, and no mausoleum shall be constructed until notice to proceed has been given by the cemetery manager and the city-county inspections department has issued a building permit.

(5) No more than one crypt may be placed above another crypt except in family mausoleums. Three crypts may be placed above another crypt in family mausoleums. A family mausoleum is defined as a mausoleum located in one of the city owned cemeteries that is located on a specific lot, deeded to a specific person, and constructed with private funds, with all designs and sizes approved by the city-county inspections department. A family mausoleum may range in sizes from one to several crypts and must conform to the boundary restrictions outlined in this chapter.

In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-39; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 43, 8-1-2022; Ord. No. 16219, § 11, 10-2-2023)

Sec. 14-53. Markers—Placement; specifications.

The requirements as to markers in the city cemeteries shall be as follows:

(1) No more than one marker may be placed on any grave within the city cemeteries, except where a single grave space has been divided into two cremation spaces for urn or infant burials.

(2) Single markers which shall be placed on any grave within the city cemeteries shall be 12 inches in width, and 24 inches in length, and six inches thick; provided that standard markers furnished to the family of any deceased veteran by the United States government, and which may not be within the limits specified herein, may be placed on any grave of any deceased veteran. Single markers which shall be placed on any grave in sections 16, 17, 18, 19, Maplewood Cemetery shall be 12 inches in width, 24 inches in length, and six inches thick, with rough or smooth sides. Such markers must include a vase located inside the base of the marker area. Companion markers or double markers are allowed in the above sections provided the markers shall be 12 inches in width, 48 inches in length, and six inches thick, with rough or smooth sides. Such markers must include a vase located inside the base of the marker area.

(3) All grave markers shall be constructed of first quality granite or marble, or of bronze, unless the grave is located in a natural conservation area. In such designated areas, only markers made of biodegradable material are permitted.

(4) All markers will be installed at grade level.

(5) Bronze markers shall be 12 inches wide and 24 inches long; and if a vase is attached, the vase shall not be included in the overall dimensions of the marker. Bronze markers shall be installed in a concrete base, granite or marble base, so as to lie flush with the ground.

(6) a. All graves shall have a permanent marker.

b. The owner will have six months in which to provide a suitable marker or monument. The owner must present evidence to the city that the grave has been marked or that owner has signed a contract for such marker or monument.

(7) In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.

(Code 1982, § 7-40; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 44, 8-1-2022; Ord. No. 16219, § 12, 10-2-2023)

Sec. 14-54. Premier lot.

A premier lot is a lot so designated by the cemetery manager based on its location. In determining the premier lot designation the cemetery manager must take into account factors making the location of the lot desirable including but not limited to: elevation of the lot on a hill, proximity to landmarks such as roads and trees and proximity to historic burial sections.

(Code 1982, § 7-41; Ord. No. 11943, § 2, 4-3-2000)

Sec. 14-55. Markers—Floral vase attachments in sections 16, 17, 18, 19 of Maplewood Cemetery and sections F and G of Beechwood.

All grave markers in section 17 of Maplewood Cemetery, and in all sections opened on or after August 1, 1987, in any city cemetery, must be of a design to which a vase can be attached. Markers installed after July 1, 2000, in sections 16, 18 and 19 of Maplewood and sections F and G of Beechwood must be of a design to which a vase can be attached. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.

(Code 1982, § 7-42; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 45, 8-1-2022)

Sec. 14-56. Removal of certain items.

The cemetery manager shall promptly remove any item that is placed on a grave or left remaining at a city cemetery in violation of any ordinance, rule or regulation relating to the cemeteries and shall dispose of it, by sale, destruction, or otherwise as directed by the city manager.

(Code 1982, § 7-43; Ord. No. 11943, § 2, 4-3-2000)

Sec. 14-57. Enclosures around lot or grave spaces.

No coping, curbing, fencing, plantings, or enclosures of any kind shall be permitted around any lot or grave space within the city cemeteries, unless the lot or grave space is in a natural conservation area. In such designated areas, fencing, plantings, or enclosures are permitted

with the prior approval of the cemetery manager. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-44; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 46, 8-1-2022; Ord. No. 16219, § 13, 10-2-2023)

Sec. 14-58. Columbarium associated memorial items.

Various memorial items may be purchased and engraved for placement in the columbarium memorial court. These include memorial court floor plaques, memorial benches, and flagpoles. A charge shall also be made of engraving columbarium niche covers. The charges for purchase and engraving of memorial items associated with the columbarium shall be set by city council.
(Code 1982, § 7-45; Ord. No. 11943, § 2, 4-3-2000)

Sec. 14-59. Fees for foundation cost for family monuments and mausoleums.

Upon request the city will provide the service of forming and pouring concrete for monument and mausoleum foundations. The fee for such service will be set by the city council. Payment must be made prior to the pouring of the foundation. This charge applies to all foundations that are formed and poured by city personnel.
(Code 1982, § 7-46)

Secs. 14-60—14-76. Reserved.

ARTICLE III. SALE OF LOTS AND COLUMBARIUM NICHES

Sec. 14-77. Cash sales.

Persons desiring to purchase lots or columbarium niches in the city cemeteries shall apply to the cemetery manager, whose duty it shall be to lay off the lot in question or mark the appropriate niche and require an immediate cash payment according to charges established by the city council. On payment of the required sum, the cemetery manager shall issue a certificate to the purchaser of such lot or niche specifying the same and the price thereof. Upon presentation of such certificate to the city clerk a deed shall be made out, and executed. A copy of such deed shall be delivered to the purchaser and a copy thereof shall be kept in a book of entries in the office of the city clerk for that purpose.
(Code 1982, § 7-47; Ord. No. 11943, § 2, 4-3-2000)

Sec. 14-78. Installment sales.

(a) The city manager may permit prospective purchasers of lots or columbarium niches in the city owned cemeteries to make installment deposits in the aggregate amount of the purchase price upon the terms and conditions as follows: The prospective purchaser may deposit 25 percent of the sale price of the lot or niche at the time of purchase and thereafter

deposit 25 percent once every six months until the full amount of the sale price is deposited. An interest rate of nine percent will be charged on the outstanding balance and may be changed annually. The city manager may set up procedures and forms to document the above described transaction.

(b) Upon making the final deposit in accordance with such terms, the person making such deposits shall be entitled to receive a cemetery deed; provided, however, no deed shall be delivered for any such lot or niche, nor shall any burial be permitted therein, until the entire sale price has been deposited with and accepted by the city in compliance with these provisions; and provided, further, failure or refusal to make any deposit as and when the same falls due shall authorize the city manager to return to the depositor such sums as he or she may have deposited, less 25 percent thereof which shall be retained by the city to cover expenses of handling the transaction. Upon the return of such sum to the depositor, the matter shall be considered terminated, and the depositor shall have no right or privilege to purchase such lot or niche because of having made a designation and made one or more deposits.
(Code 1982, § 7-48; Ord. No. 11943, § 2, 4-3-2000)

Sec. 14-79. Cremation remains interred.

No more than eight cremation remains may be interred in a single grave space in designated sections or portions of a section as determined by the cemetery manager.
(Code 1982, § 7-49; Ord. No. 12970, § 1, 6-21-2004)

Sec. 14-80. Sales to corporations and business concerns.

Sales of cemetery lots or columbarium niches to any corporation or business concerns are hereby expressly forbidden. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-50; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 47, 8-1-2022)

Sec. 14-81. Speculation prohibited.

It shall be unlawful for any person to buy or otherwise acquire any city cemetery lot or columbarium niche for the purpose of sales or exchange the same for speculation or for profit or gain, or to sell or exchange burial space in any such lot or niche for profit or gain. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-51; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 48, 8-1-2022)

Sec. 14-82. Procedure for transfer.

(a) It shall be unlawful for any person to sell or transfer any lot or columbarium niche in the city cemeteries without first obtaining the consent of the city manager. The city manager shall consent to transfer upon determining that all owners of the lot or niche have signed the transfer.

(b) Whenever any sale and transfer of any city cemetery lot or niche has been approved by the city manager, such transfer shall not be valid unless the transferee or the transferor presents the deed in question to the city clerk, who shall make a notation thereon, and on the copy of the same in a book of entries showing the date of transfer and the name of transferee.

(c) An administrative fee set by the city council will be charged to cover the expenses of handling the transaction for each individual transfer document and payment is due at the time of the request for transfer.

(d) In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-52; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 49, 8-1-2022)

Sec. 14-83. Procedure and fees for disinterment.

(a) No body shall be disinterred from the city cemeteries without written permission of the persons determined by the city manager to be necessary after consultation with the city attorney or attorney's designee. Person shall include surviving spouse and next of kin as defined by the General Statutes of North Carolina. The written permission shall be on a form approved by the city manager.

(b) The city manager upon evidence that the request for disinterment is proper shall approve it and forward it to the city clerk. The city clerk shall notarize the approved disinterment form and make record in the book of entries showing the date of disinterment and the name, and new location of the burial of deceased.

(c) Each disinterment charge will be assessed in accordance with the fee established by city council. The time allowance for each disinterment shall not exceed four hours. An excess time charge will be assessed in increments of each one-half hour, thereafter.

(d) An administrative fee set by the council will be charged to prepare each instrument of disinterment and payment is due at the time of the request for disinterment.

(e) In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 7-53; Ord. No. 11943, § 2, 4-3-2000; Ord. No. 15982, § 50, 8-1-2022)

Sec. 14-84. Reserved.

Editor's note—Ord. No. 15982, § 51, adopted August 1, 2022, set out provisions intended to repeal § 14-48, referring to 'penalty' in said ordinance. At the editor's discretion, as former § 14-84 pertained to 'penalty,' § 14-84 has been repealed. Said section derived from Code 1982, § 7-54; Ord. No. 11943, § 2, 4-3-2000.

Chapters 15—17

RESERVED

Chapter 18

CONTRACTING WITH THE CITY

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ARTICLE I. IN GENERAL

Secs. 18-1—18-18. Reserved.

ARTICLE II. LIVABLE WAGE

Sec. 18-19. Service contracts with the city.

It is the policy of the city that all service contractors doing business with the city pay their workers an hourly wage while working on city service contracts that is equivalent to or greater than the livable wage set in section 18-23 of the Code.
(Code 1982, § 27-1; Ord. No. 11333, § 1, 1-20-1998; Ord. No. 13744, 12-1-2008; Ord. No. 15012, § 1, 10-3-2016)

Sec. 18-20. Definitions.

As used in this chapter, the following terms have the meanings indicated, unless the context clearly requires a different meaning:

Livable wage means the minimum hourly wage rate that shall be paid to those who work on service contracts with the city.

Person means any individual, business entity, corporation, limited liability company (LLC), partnership or joint venture.

Service contract means a contract designated by the city manager as a service contract subject to this chapter. These shall include only those contracts for services to the city and its agencies which the city could provide for itself with its own employees, should it decide to do so, and shall not include contracts governed by state or federal procurement or bidding requirements, or those where services are performed by nonprofit, tax-exempt organizations. Notwithstanding the foregoing, the city council may make a determination that a contract with a nonprofit tax exempt organization is one for which the city could have provided the contracted service with its own employees, and that upon such determination the contract shall be subject to the provisions of this chapter.

Service contractor means the person awarded a city service contract, specifically including all subcontractors of service contractors.

Service worker means any employee of a service contractor, except for those persons occupying part-time positions where the job duties are not substantially the same as any full time position of an employee of the city.
(Code 1982, § 27-2; Ord. No. 11333, § 1, 1-20-1998; Ord. No. 13744, 12-1-2008)

Sec. 18-21. Administration of the livable wage.

(a) Each service contractor shall pay its employees working on city service contracts a livable wage during those hours that the employees work on city service contracts.

(b) The city has determined that it is an important goal to ensure that employees of its service contractors earn a livable wage, and has therefore made it mandatory that contractors bidding on city service contracts comply with this chapter. In order to accomplish the statutory objectives of this chapter, the city narrows its pool of eligible contractors, because some contractors will not be eligible for consideration for such contracts. Therefore, when a service contractor who has been awarded a city service contract subject to this chapter fails to fulfill the requirements of this chapter, the city suffers damages. The precise dollar amount of those damages is difficult to ascertain. Therefore, all service contracts falling under this chapter shall include language in substantial conformance with the following paragraph:

"In the event of a finding by the city manager or a judicial officer that any service worker has been paid less than the compensation to which the service worker is entitled under the city's livable wage ordinance, contractor shall make restitution to the service worker for the amount due. Contractor shall also pay liquidated damages to the city in the amount of $50.00 per day for each employee so underpaid, provided, however, that these damages shall not be assessed for wage underpayment violations to any individual which amount to a total of less than $1.00 in any payroll period. Should a service worker be found to have been discriminated against for seeking to enforce the provisions of the city's livable wage ordinance, and if the service worker has been terminated from employment, he or she shall be reinstated upon an order to do so from the city manager or a judicial officer. A flyer stating the city's livable wage amount shall be posted at the workplace of every service contractor in a location easily seen by all employees."

(c) When a service contractor has been found to have failed to pay a livable wage in the course of performing more than three separate service contracts in a two-year period, the city manager may prohibit that service contractor from participating in future service contracts for up to three years.

(d) Within one year from the date of work performed on a service contract, a service worker may file a protest in writing with the city manager claiming that the amount of wages paid to that worker on that service contract was less than the livable wage at the time the work was performed.

(e) A service contractor shall not discharge, reduce the compensation or otherwise discriminate against any service worker for seeking to enforce the provisions of this chapter. Actions protected under this chapter include, but are not limited to, making a complaint to the city manager, participating in any city proceedings, or making use of any civil remedies. If any violation of this subsection is found to have occurred, the city manager may order appropriate restitution and the reinstatement of such service worker, in accordance with the terms of the service contract.

(f) The city may withhold or cause to be withheld from the service contractor so much of any accrued payments owed to the contractor as may be necessary to:

(1) Pay the service workers employed by the service contractor the full amount of wages required by the provisions of this chapter; and

(2) Satisfy any liability of the contractor for liquidated damages accrued under the terms of the service contract.

The city may withhold payments from any service contractor who has failed to post and keep posted a copy of the livable wage as required herein, until such default of the service contract's terms shall have been corrected.

(g) The city manager shall cause investigations to be made as may be necessary to determine whether there has been compliance with the provisions of this chapter, the regulations promulgated thereunder, and those contained in the service contract. The service contractor shall permit representatives of the city to observe work being performed upon the work site, to interview service workers and to examine the books and records relating to the payrolls on the project being investigated to determine the correctness of classifications and any payment of proper regular and overtime rates as required. All such information provided by the service contractor will be treated as confidential, to the extent permitted by G.S. ch. 132, the Public Records Law, as it may be amended from time to time. Complaints of alleged violations shall be investigated promptly and statements, written or oral, made by a service worker shall be treated as confidential and shall not be disclosed to the service contractor without the consent of the service worker.

(h) If necessary for the enforcement of this heading, the city manager may issue subpoenas, compel the attendance and testimony of witnesses and the production of books, papers, records, and documents relating to payroll records necessary for investigations and hearings. Any such subpoena shall be served by the sheriff of the county. In case of refusal to obey or fully comply with any such subpoena, the person not complying may be summoned before the general court of justice, and upon failure to give satisfactory explanation of such failure or refusal, the court shall find the failure to be a misdemeanor punishable by a fine not exceeding $100.00 per day or imprisonment as allowed by law. In addition, the general court of Justice may issue any civil orders as may be within its jurisdiction in order to enforce subpoenas issued under this chapter.

(i) In addition to any other remedy available in the Code, intentional violation of subsection (a), (b) or (g) is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 27-3; Ord. No. 11333, § 1, 1-20-1998; Ord. No. 13744, 12-1-2008; Ord. No. 15982, § 52, 8-1-2022)

Sec. 18-22. Intentional violation.

In the event the city manager shall determine, after notice and hearing, that any service contractor has failed to pay the livable wage or has otherwise violated the provisions of this chapter and that such failure was intentional, no contract shall be awarded to such service contractor, or to any business in which such service contractor has an interest, until one year has elapsed from the date of such determination. Each day's violation shall constitute a separate offense.
(Code 1982, § 27-4; Ord. No. 11333, § 1, 1-20-1998; Ord. No. 13744, 12-1-2008; Ord. No. 15982, § 53, 8-1-2022)

Sec. 18-23. Setting the livable wage rate.

(a) *July 1, 2016*—June 30, 2019. The livable wage rate shall be $13.35 per hour for FY 2016—2017, $14.15 per hour for FY 2017—2018 and $15.00 per hour for FY 2018—2019.

(b) *July 1, 2019*—Beginning on July 1, 2019, the livable wage rate shall be determined once per year, before the beginning of the fiscal year to which it will apply. The rate for the upcoming fiscal year shall be whichever is the greatest of the following: (i) $15.00 per hour, (ii) the amount derived from the modified Universal Living Wage (ULW) methodology, or (iii) the livable wage rate that applied to the fiscal year that is about to end.

(c) *Modified ULW methodology.* The modified ULW methodology calculates a livable wage as follows: (1) Determine the average monthly cost of fair market rents for a one bedroom apartment over the most recent four full years of available data according to the rates reflected in the Durham-Chapel Hill, NC HUD Metro FMR Area, (2) Divide that average monthly cost by 0.30 to find the 30% monthly gross income needed to cover the cost of housing, (3) Multiply the monthly gross income figure allocated to housing by 12 to derive an annualized salary needed to cover housing at a minimum, and (4) Divide that annualized salary amount by 2,080 (the number of hours worked per year assuming 40 hours of work for 52 weeks) to determine a minimum livable hourly wage rate. The abbreviated formula is ([4 year blended FMR (1BR)/0.30] x 12) / 2080.
(Code 1982, § 27-5; Ord. No. 11333, § 1, 1-20-1998; Ord. No. 12964, § 1, 6-21-2004; Ord. No. 13744, 12-1-2008; Ord. No. 15012, § 2, 10-3-2016)

Secs. 18-24—18-49. Reserved.

ARTICLE III. EQUAL BUSINESS OPPORTUNITY PROGRAM*

Sec. 18-50. General.

(a) This article establishes a plan to help to ensure that the city's contracting practices provide equal opportunities for city contracting for underutilized business enterprises owned by minorities and women doing business in the city's contracting marketplace.

{b) This article is enacted pursuant to authority provided by law, including section 84.1 of the Charter of the City and G.S. 160A-17.1(3a).
(Ord. No. 16292, § 1, 4-1-2024)

***Editor's note—**Ord. No. 16292, § 1, adopted April 1, 2024, amended art. III in its entirety to read as herein set out. Former art. III, §§ 18-50—18-63, pertained to similar subject matter, and derived from Code 1982, §§ 26-1—26-13; Ord. No. 12793, § 1, 5-8-2003; Ord. No. 13232, § 1, 3-20-2006; Ord. No. 13559, § 1, 3-17-2008; Ord. No. 13967, § 1, 3-15-2010; Ord. No. 14238, § 1, 3-19-2012; Ord. No. 14418, § 1, 4-1-2013; Ord. No. 14595, § 1, 3-20-2014; Ord. No. 14907, § 1, 3-21-2016; Ord. No. 15785, § 1, 3-15-2021.

Sec. 18-51. Policy statement.

It is the policy of the city to provide equal opportunities for city contracting for underutilized business enterprises owned by minorities and women doing business in the city's contracting marketplace. It is further the policy of the city to prohibit discrimination against any firm in pursuit of these opportunities, to conduct its contracting activities to prevent such discrimination, to correct the present effects of past discrimination, and to resolve complaints of discrimination.
(Ord. No. 16292, § 1, 4-1-2024)

Sec. 18-52. Definitions.

The following words as used in this article have the indicated meanings:

Participation goals mean the targeted levels established by the city for the annual aggregate participation in city contracts of underutilized business enterprises owned by minorities and *women based on disparity studies.*

Bid means an offer or response to the city to furnish goods or services, including offers in response to formal and informal bids, responses to requests for proposals, and responses to requests for qualifications.

Bidder means a person that has submitted a bid to the city.

City's contracting marketplace means the geographic and procurement areas in which the city contracts on an annual basis.

Commercially useful function means responsibility for the execution of a distinct element of the work and the risk of the contract which is carried out by actually performing, managing, and supervising the work involved.

Contract means any contract, purchase order, or other financial transaction through which the city procures goods or services.

Contract classifications means the categories of contracts entered into by the city for which contract specific goals may be established. Contract classifications may include, but are not limited to, contracts for (i) construction and repair, (ii) purchase of goods, (iii) professional services, and (iv) other services.

Contract specific goals means the goals established for a particular contract classification based upon the availability of UBEs in the scopes of work under the contract, delineated into percentages of UBEs owned by minorities and women.

Contractor means a person that has a contract with the city to provide goods or services.

Disqualification refers to a MBWE firm's disqualification from participation in the program for loss of certification for any reason, including expiration of certification, the decision not to renew certification, acquisition of a firm by a non-MWBE, graduation from ube status, or withdrawal of certification because certification was obtained fraudulently.

Director means the director of the finance department or their designee.

Equal business opportunity policy is the policy document adopted by the city manager setting forth detailed procedures and *standards for administration of the program.*

Good faith efforts are actions that the city finds are sufficient to meet the standards as set forth in the equal business opportunity policy.

Goods means apparatus, materials, supplies and equipment.

Joint venture means an association of two or more persons, or any combination of types of business enterprises and persons numbering two or more, proposing to perform a single for prom business enterprise, in which each joint venturer contributes property, capital, efforts, skill and knowledge, and in which the UBE is responsible for a distinct, clearly defined portion of the work of the contract with the city and whose share in the capital contribution, control, management risks, and profits of the joint venture are commensurate with its ownership interest. Joint ventures must have an agreement in writing specifying the terms and conditions of the relationships between the joint venturers and their relationship and responsibility regarding the contract with the city.

Minority business enterprise (MBE) means a UBE that is owned by any of the following minorities identified by race or ethnicity:

(1) Black, that is a person having origins in any of the black racial groups of Africa;

(2) Hispanic, that is a person of Spanish or Portuguese culture with origins in Mexico, South or Central America, or the Caribbean Islands, regardless of race;

(3) Asian American, that is a person having origins in any of the original peoples of the Far East, Southeast Asia and Asia, the Indian subcontinent, or the Pacific Islands; or

(4) American Indian, that is, a person having origins in any of the original Indian peoples of North America.

Participation plan means the list of UBEs that the bidder commits will be utilized, their scopes of work, and dollar value or the percentage of the project or the scopes of work of the contract they will perform.

Program means the equal business opportunity (EBO) program.

Subcontractor means a person that directly or indirectly contracts with a contractor,to provide goods and/or services in connection with a contract, including persons that contract with subcontractors of any tier.

UBC means the Underutilized Business Compliance division of the city's finance department.

User department means the department of the city that the city manager designates as responsible for initiating the procurement process.

Underutilized business enterprise (UBE) means a business, including a sole proprietorship, partnership, corporation, limited liability company, joint venture or any other business

or professional entity that is certified by (i) the State of North Carolina as a historically underutilized business (HUB) pursuant to G.S. 143-128.4, as amended; (ii) the North Carolina Department of Transportation as a disadvantaged minority-owned or woman-owned business pursuant to G.S. 136-28.4, as amended; or (iii) the Small Business Administration 8{a) Business Development Program of the Small Business Administration of the U.S. Department of Commerce pursuant to 15 U.S.C. 637(a), as amended.

Women business enterprise (WBE) means a UBE that is owned by a woman.
(Ord. No. 16292, § 1, 4-1-2024)

Sec. 18-53. Administration.

(a) The city manager or their designees shall implement this article.

(b) Duties of the city manager and their designees include:

(1) Developing the rules and procedures for the implementation and administration of the program through adoption of a comprehensive equal business opportunity program policy.

(2) Informing UBEs of city contracting opportunities.

(3) Providing information and assistance to UBEs relating to city procurement practices and procedures, and bid specifications, requirements, and prerequisites.

(4) Identifying relevant contract classifications and establishing MBE and WBE goals for each identified contract classification.

(5) Evaluating bidders' and contractors' achievement of the contract specific goals or good faith efforts to meet contract specific goals.

(6) Working with user departments to monitor contracts to facilitate prompt payments to UBEs and compliance with contract specific goals and commitments.

(7) Receiving, reviewing, and acting upon complaints and suggestions concerning the program.

(8) Collecting data to evaluate the program and other city contracting initiatives.

(9) Monitoring and reporting on the program and the city's progress towards the participation goals.

(10) Updating and modifying the equal business opportunity program policy from time to time, as necessary to effectively implement the program.

(11) Establishing and implementing other administrative procedures and processes not directly addressed in this article or the policy, but still necessary to effectively implement the program.

(c) The duties of the user departments, which receive appropriate delegation for project management, contract management, and/or construction and/or design contract responsibility, are outlined in the equal business opportunity program policy.
(Ord. No. 16292, § 1, 4-1-2024)

Sec. 18-54. Race- and gender-neutral measures to ensure equal opportunities for all contractors and subcontractors and to promote business development.

(1) The UBC manager shall develop and use race- and gender-neutral measures to facilitate the participation of UBEs in city contracting activities. These measures may include arranging solicitation times for the presentations of bids, quantities, specifications, and delivery schedules so as to facilitate the participation of interested persons.

(2) Providing timely information on contracting procedures, bid preparation, and specific contracting opportunities.

(3) Holding pre-bid conferences, where appropriate, to explain the projects and to encourage potential bidders to solicit available UBEs as subcontractors or as joint venturers.

(4) Adopting prompt payment procedures, including requiring by contract that contractors pay their direct subcontractors within a stated period of receipt of payment from the city, subject to appropriate exceptions.

(5) Reviewing bonding and insurance requirements to eliminate unnecessary barriers to contracting with the city.

(6) Maintaining a bidders list, consisting of all persons bidding on city prime contracts and bidding or quoting on city-funded subcontracts.

(7) Providing assistance to UBEs to address technical obstacles to the bidding process and subcontracting requirements.
(Ord. No. 16292, § 1, 4-1-2024)

Sec. 18-55. EBO program eligibility.

(a) Only businesses that meet the definition of a UBE may be eligible for participation in the program.

(b) Where federal or state law or regulations, or any agreement between the city and a federal or state agency, requires different EBO program eligibility standards, the applicable federal or state standards shall apply, including the regulations promulgated by the federal government and individual federal agencies for contracts involving federal funds. Where the city is to receive, apply, administer, or use funds from the federal government or the state government or any entity, agency, or grantee of either of them, and the city is required to apply a different equal opportunity business program, that other program, instead of this article, shall apply in the award and administration of the contract.

{c) To remain eligible, a UBE must actively maintain its original certification status with its certifying entities during participation in the city's EBO program. Any change in its certification status shall be grounds for disqualification and removal from the EBO program.

(d) It is the responsibility of the UBE to notify the UBC manager or designee in writing of any change in its circumstances affecting its status with its certifying entity and eligibility for the program. Failure to do so within a reasonable time of the change may result in the firm's disqualification.
(Ord. No. 16292, § 1, 4-1-2024)

Sec. 18-56. MBE and WBE goal setting.

(a) To encourage prime contracting opportunities for UBEs, no goals shall be set for contracts where the city estimates the contract value to be less than $30,000.00.

The UBC manager or designee shall establish contract-specific goals according to contract classifications for MBEs and WBEs based on normal industry practice and the availability of at least three UBEs to perform the scopes of work under the contract. If less than three UBEs are available to perform the scopes of work under the contract, no goals will be established. The contract specific goals for the contract classifications shall be maintained by the director.

(b) The UBC manager or designee shall periodically evaluate, and if appropriate, make adjustments to the contract specific goals applied to the contract classifications for MBEs and WBEs during the life of program as necessary to maintain the integrity and purpose of the program and incorporate such contract specific goals applied to contract classifications in the policy.
(Ord. No. 16292, § 1, 4-1-2024)

Sec. 18-57. Counting participation of UBES.

(a) *Construction.* The entire amount of that portion of a construction contract that is performed by the UBE's own forces shall be counted, as well as the cost of goods obtained or leased by the UBE for the work of the contract (except goods the UBE subcontractor or joint venture partner purchases or leases from the prime contractor or its affiliate).

(b) *Professional services.* The entire amount of fees or commissions charged by a UBE for providing a bona fide service, such as professional, technical, consultant or managerial services, or for providing bonds or insurance specifically required for the performance of a contract, shall be counted, provided the fee is reasonable and not excessive as compared with fees customarily charged for similar services.

(c) *Joint venture.* When a UBE performs as a participant in a joint venture, only the portion of the total dollar value of the contract equal to the distinct, clearly defined portion of the work of the joint venture's contract that the UBE performs with its own forces and for which it is separately at risk shall be counted.

(d) *Only expenditures to a UBE that is performing a commercially useful function shall be counted.* A UBE does not perform a commercially useful function if its role is limited to that of an extra participant in the contract through which funds are passed in order to obtain the appearance of UBE participation. To determine whether a firm is performing a commercially useful function, the city will evaluate the amount of work contracted (whether by prime contract or subcontract), industry practices, whether the amount the firm is to be paid under the contract is commensurate with the work it is actually performing, and other relevant factors. To perform a commercially useful function, the UBE must be responsible, with respect to goods used on the contract, for negotiating price, determining quality and quantity, ordering the goods, installing (where applicable), and paying for the goods itself. If a UBE subcontracts a greater portion of the work of a contract than would be expected on the basis of normal industry practice, it is presumed not to perform a commercially useful function. When a UBE is presumed not to be performing a commercially useful function, the UBE may present evidence to rebut this presumption at a time and manner as determined by the city manager.

(e) *Goods.* One hundred percent of the cost of the goods obtained from a UBE manufacturer or regular dealer shall be counted. The term "manufacturer" means a firm that operates or maintains a factory or establishment that produces, on the premises, the goods required under the contract. The term "regular dealer" means a firm that owns, operates, or maintains a store, warehouse, or other establishment in which the goods of the general character described by the specifications or required under the contract are bought, kept in stock, and regularly sold or leased to the public in the usual course of business. To be a regular dealer, the firm must be an established business that engages, as its principal business and under its own name, in the purchase and sale or lease of the goods. Packagers, manufacture representatives, or other persons who arrange or expedite transactions are not regular dealers.

(f) One hundred percent of the fees for the delivery of goods required on a job site shall be counted only if the payment and amount of such fees are customary in the applicable industry. The cost of the goods shall not be counted towards the fees.

(g) If a UBE is disqualified during its performance of a contract, the dollar value of work performed after it has ceased to be certified shall not be counted.

(h) In determining achievement of contract specific goals, the participation of a UBE shall not be counted until that amount has been paid to the UBE.

(i) If a UBE meets the definition of either an MBE and a WBE, its participation may only be counted as either an MBE or WBE.

(Ord. No. 16292, § 1, 4-1-2024)

Sec. 18-58. Contract pre-award compliance procedures.

(a) In all solicitations for which contract specific goals have been established, the bidder shall submit a participation plan in accordance with the policy and the schedule and instructions required by the city manager. If the bidder that is recommended for contract award fails to achieve the contract specific goals, documentation of its good faith efforts to do so is due at the time specified in the solicitation.

(b) Any agreement between a bidder and a UBE in which the bidder requires that the UBE not provide subcontracting quotations to other bidders is prohibited.

(c) Where the bidder has not achieved the contract specific goals, the city manager will follow guidelines in the city's policy to determine whether the bidder has made good faith efforts to achieve those goals.

(d) In determining whether a bidder has made good faith efforts, the performance of other bidders in meeting the contract specific goals may be considered.

(e) A signed letter of intent from all listed UBEs describing the work, including goods and services to be performed or provided by the UBE and the agreed upon dollar value for bids or percentage of professional services pursuant to a request for proposals or description of the services to be rendered pursuant to a request for qualifications, shall be due in accordance with the city manager's instructions.

(f) The city manager or designee shall review the participation plan prior to award, including the scope of work and the letters of intent from UBEs. The city manager may request clarification in writing of items listed in the participation plan, provided such clarification shall not include the opportunity to augment listed UBE participation or good faith efforts.

(g) If the city manager determines that the participation plan demonstrates that the contract specific goals have been achieved or good faith efforts were made, or that award is in the best interest of the city, then the city manager shall recommend award.

(h) If the city manager finds that a bidder did not make good faith efforts, the city manager shall send notice of the finding to the bidder using the procedure outlined in Section 18-63.
(Ord. No. 16292, § 1, 4-1-2024)

Sec. 18-59. Contract performance compliance procedures.

(a) Contracts shall provide that the participation plan is binding on the contractor. Contract specific goals become elements of performance by the contractor in favor of the city.

(b) The contractor shall provide a listing of all subcontractors to be used in the performance of the contract, and subcontractor payment information to the city with each request for payment submitted to the city. The director and the user department shall have reasonable access to all contract-related documentation held by the contractor relevant to the contract upon request.

(c) After the city and the contractor have executed the contract, the contractor shall not make changes to the participation plan or substitute UBEs named in the participation plan without the prior written approval of the city manager or designee. Unauthorized changes or substitutions shall be a violation of this article, and may constitute grounds to terminate the contract for breach, withhold payment, and/or subject the contractor to contract penalties or other sanctions.

(d) Where the contractor has established the basis for the substitution to the satisfaction of the city manager, or if the city requires the substitution of a subcontractor listed in the participation plan, the contractor shall makegood faith efforts to fulfill the participation plan. The contractor may seek the assistance of the UBC division of the finance department in obtaining a new UBE subcontractor. If the contract-specific goals cannot be reached and good faith efforts have been made, the contractor may substitute with a non-UBE.

(e) If a contractor plans to hire a subcontractor on any scope of work that was not previously disclosed in the participation plan, the contractor shall obtain the approval of the UBC manager to modify the participation plan and must make new good faith efforts to ensure that UBEs have a fair opportunity to bid on the new scope of work.

(f) Changes to the scopes of work shall be documented by the user department at the time they arise. The user department should establish the reasons for the change and the UBC manager or director's designee will evaluate the effect on achievement of the UBE goals.

(g) If the city manager determines that the contractor has failed to comply with the provisions of the contract, the city manager shall notify the contractor in writing of the deficiencies. The contractor shall have 14 days, or such time as specified in the contract, to cure the deficiencies or establish that there are no deficiencies. If the deficiencies are not cured, the city shall have the right to take all lawful actions.
(Ord. No. 16292, § 1, 4-1-2024)

Sec. 18-60. Penalties.

(a) The following violations of this article are unlawful and may be prosecuted as a misdemeanor.

(1) Providing false or misleading information to the city in connection with an application for eligibility as a UBE.

(2) Providing false or misleading information to the city in connection with submission of a bid, responses to requests for qualifications or proposals, good faith efforts documentation, post- award compliance or other program operations.

(3) Substituting UBE subcontractors without prior approval.

(4) Committing any other violations of this article.

(b) The UBC manager is empowered to receive and investigate complaints and allegations regarding compliance with the program and to initiate their own investigations.

(c) A contractor is subject to any legal recourse available to the city including withholding of payments under the contract, termination of the contract for breach, contract penalties, or deemed non-responsive or not responsible in future city solicitations and contract awards, if it is found to have:

(1) Provided materially false or misleading information in connection with this chapter, an application for eligibility.

(2) Provided false or misleading information in connection with the submission of a bid or proposal or documentation of good faith efforts, post-award compliance, or other program operations.

(3) Failed in bad faith to fulfill contract specific goals, thereby materially breaching the contract.

(4) Repeatedly failed to comply in good faith with substantive provisions of this chapter.
(Ord. No. 16292, § 1, 4-1-2024)

Sec. 18-61. EBO steering committee.

(a) The city manager shall appoint a steering committee to review, track, and monitor UBE utilization and advise the city manager on the EBO program.

(b) The steering committee membership shall consist of city staff appointed by the city manager to include the finance director and representatives of the city manager's office and representative user departments.

(c) The city manager shall make efforts to include representation from the contracting community on the steering committee.
(Ord. No. 16292, § 1, 4-1-2024)

Sec. 18-62. Program review and sunset.

(a) The director shall make an annual report to the city council, detailing the city's performance under the program, department by department for the preceding fiscal year.

(b) The city council will review this report, including the participation goals and the city's progress towards meeting the participation goals and eliminating discrimination in its marketplace, and revise the program as necessary to meet legal and program requirements.

(c) If the city council finds that the objectives of the program have been achieved, the city shall discontinue the program.

(d) The program shall continue in effect until 11:59 p.m. on March 31, 2026, at which time it shall be deemed repealed without further action by the city council.
(Ord. No. 16292, § 1, 4-1-2024)

Sec. 18-63. Notice.

All notices required or allowed by this article shall be in writing and shall be given either by personal delivery, fax, or United States Mail, addressed to the last-known address of the addressee. The notice shall be deemed given and received at the time of actual delivery, if it is personally delivered or sent by fax. If sent by United States Mail, it shall be deemed given and received upon the third calendar day following the day on which it is deposited with the United States Postal Service.
(Ord. No. 16292, § 1, 4-1-2024)

Secs. 18-64—18-79. Reserved.

ARTICLE IV. SMALL LOCAL BUSINESS ENTERPRISE PROGRAM

Sec. 18-80. General.

This article establishes a small local business enterprise program in order to increase employment opportunities for city residents and to enhance the city's tax base by promoting city contracting opportunities for small local business enterprises. If a contract is in the SLBE program, it will be awarded to only a small local business enterprise.
(Ord. No. 14431, 4-1-2013; Ord. No. 16531, § 1, 6-16-2025)

Sec. 18-81. Definitions.

As used in this article, the following definitions have the meaning indicated, except where the context clearly requires a different meaning:

Bid means the offer to furnish services to the city.

Bidder means a person that has submitted a bid to the city.

Contract means any contract through which the city procures services.

Contractor means a person that has a contract with the city to provide services.

Director means the director of the finance department or their designee. For purposes of administering this article IV, the director shall act as the designee of the city manager.

Small local business enterprise (SLBE) means a small business enterprise that is certified by the city as a SLBE.

Slbe program means the program authorized by this article.

User department means a city department with primary responsibility for administering the relevant contract.
(Ord. No. 14431, 4-1-2013; Ord. No. 16531, § 1, 6-16-2025)

Sec. 18-82. Administration.

The city manager or their designee shall:

(1) Adopt rules to implement the SLBE program.

(2) Encourage participation from as many potentially eligible SLBEs as practicable.

(3) Certify small business entities as SLBEs, maintain certification records, and maintain a SLBE availability database.

(4) Coordinate with user departments to identify and classify contracting opportunities in order to solicit bids from SLBE with the expertise to perform the work.

(5) Collect data to evaluate the SLBE program.

(Ord. No. 14431, 4-1-2013; Ord. No. 16531, § 1, 6-16-2025)

Sec. 18-83. Eligibility and certification process.

(a) A person including an underutilized business enterprise certified under article III, may be certified as an SLBE if the city manager finds that it:

(1) Is not a governmental person, as defined in section 1-2;

(2) Meets the size standards described in the U.S. Small Business Administration pursuant to 13 CFR 121.201, averaged over the last three years;

(3) Has (a) its principal office located within the geographic area defined by the counties of Durham, Chatham, Orange and Person (Durham MSA), or (b) a regional, branch or satellite office in which at least 25 percent of the full time employees reside in the Durham MSA and that has been established within the MSA for at least one year prior to the date of submission of application to the city for SLBE certification. "Principal office" means the physical location where the majority of the bidder's (a) employees, (b) principals, and (c) managers are required to work and where the majority of the bidder's accounting, financial, and payroll activities originate and are managed.

(b) Certification will be granted for only the specific areas of work in which the SLBE has been found by the city manager to have the skills, knowledge, and ability to perform in the field of endeavor in which certification is sought, as defined by normal industry practices, including licensure where required. Certification for specific areas of work does not mean the SLBE is prequalified to bid on any city contract, including contracts included in the SLBE program. Certification does not constitute a finding that the SLBE meets the requirements that the city may have for contract award.

(c) The city shall certify the eligibility of joint ventures or partnerships in which the partners are SLBEs.

(Ord. No. 14431, 4-1-2013; Ord. No. 16531, § 1, 6-16-2025)

Sec. 18-84. Maintenance of SLBE certification status and recertification.

(a) Certification as an SLBE expires four years from the certification date. Certification may be revoked when the director finds that the SLBE:

(1) Ceases to meet the certification requirements to be an SLBE, or

(2) Provided materially false or misleading information to the city in seeking certification.

(b) Failure of an SLBE to seek recertification by filing the necessary documentation with the city manager within 90 [days] of notification of the expiration of its certification shall result in automatic decertification until such time that the city is able to recertify the SLBE pursuant to its normal application process.

(1) It is the responsibility of the SLBE to notify the director of any change in its circumstances affecting its continued eligibility for the SLBE program. Failure to do so within a reasonable time of the change may result in the firm's decertification.

(2) The director shall decertify a firm that does not continuously meet the eligibility criteria.

(Ord. No. 14431, 4-1-2013; Ord. No. 16531, § 1, 6-16-2025)

Sec. 18-85. Protest if denied certification or recertification or decertification.

A person that has been denied certification or recertification or that has been decertified may protest the denial or decertification only as follows:

(1) Within seven days of receipt of denial of certification or recertification, or notice of decertification, the person may protest such action in writing to the director. The written protest must evidence that it was sent or postmarked within the seven days of receipt of denial of certification or recertification, or notice of decertification.

(2) A hearing shall be held by the city manager at which hearing the protester may present additional facts and evidence in support of its eligibility. The city manager shall control all aspects of the hearing, including scheduling, conduct, witnesses, and evidence, and may request the attendance of witnesses and production of documents. The protester's failure to comply promptly with these requests may be grounds for denial of relief sought by the protester.

(3) The city manager shall send notice of the written decision to the protester within 30 days of the hearing. The city manager's decision shall be final.

(4) A protester found to be ineligible to be certified as a SLBE shall not apply for certification for one year after the effective date of the final decision. However, if the denial or decertification is made in whole or in part because the protester had previous to the protest provided materially false or misleading information in support of its SLBE status the protester shall not apply for certification for two years after the effective date of the final decision.

(Ord. No. 14431, 4-1-2013; Ord. No. 16531, § 1, 6-16-2025)

Sec. 18-86. Selection of contracts for SLBE program; contract award.

Except as provided under section 18-89, a proposed contract shall be subject to the SLBE program if the contract meets the standards in subsections (1) and (2).

(1) The contract is for:

a. Construction and repair work involving the expenditure of public money less than $500,000; or

b. Other services, in which the estimated expenditure of city money is equal to $5,000 and less than $100,000; or

c. Goods, in which the estimated expenditure of city money is equal to $5,000 and less than $90,000 if the city manager has, in his or her discretion, designated the contract for the SLBE program.

(2) That the city manager has found a sufficient number, but not fewer than three, of the SLBEs certified for the specific area of work, available to bid on the proposed contract and the City receives the required minimum number qualified bids.

(Ord. No. 14431, 4-1-2013; Ord. No. 16531, § 1, 6-16-2025)

Sec. 18-87. Termination of contract if SLBE status ends.

When the award of a contract is restricted to SLBEs pursuant to section 18-86, and the contractor's SLBE certification is revoked pursuant to section 18-84, the city manager has the authority to terminate the services of the contractor as of the date of revocation or as of a later date as provided by the notice of revocation. The termination does not affect accrued amounts owed to the contractor as of the date of termination.

(Ord. No. 14431, 4-1-2013; Ord. No. 16531, § 1, 6-16-2025)

Sec. 18-88. Effect on equal business opportunity program.

Nothing in this article is intended to prevent the operations of the provisions of article III (the equal business opportunity program) with respect to contracts placed in the SLBE program, when article III would apply in the absence of this article.

(Ord. No. 14431, 4-1-2013; Ord. No. 16531, § 1, 6-16-2025)

Sec. 18-89. Exemptions.

This article shall not apply to the following:

(1) Grants from other governments. Contracts funded in whole or in part from grants from other government entities, including this state and the federal government, are exempt from this article IV.

(2) On-call service contracts. Contracts subject to an on-call request for proposals or request for qualifications are exempt from this article IV where the initial solicitation for the on-call services allows for participation of qualified SLBEs.

(3) If in the best interest of the city. Contracts that the city manager determines to be in the best interest of the city to be exempt from this article IV. The city manager shall provide the reasons for such an exemption in writing.

(Ord. No. 16531, § 1, 6-16-2025)

Editor's note—Ord. No. 16531, § 1, adopted June 16, 2025, amended § 18-89 in its entirety to read as herein set out. Former § 18-89 pertained to applicability to grants from other governments, and derived from Ord. No. 14431, 4-1-2013.

Chapters 19—21

RESERVED

Chapter 22

EMERGENCIES AND EMERGENCY MANAGEMENT*

Article I. Declaring a State of Emergency

Sec. 22-1. Purpose and construction of this article.
Sec. 22-2. Declaration of state of emergency.
Sec. 22-3. Authority to impose prohibitions and restrictions.
Sec. 22-4. Content of prohibitions and restrictions.
Sec. 22-5. Authority of the city council.
Sec. 22-6. Methods to take actions.
Sec. 22-7. Who may act when mayor is not available.

***Editor's note—**Ord. No. 14652, § 1, adopted June 16, 2014, repealed ch. 22, arts. I—III, and § 2 enacted a new ch. 22, art. I, §§ 22-1—22-7. Former ch. 22 pertained to similar subject matter and was derived from Code 1982, §§ 8-1—8-3, 8-20—8-28, 8-40, 8-41; Ord. No. 9549, § 1, adopted October 1, 1990 and Ord. No. 9738, § 1, adopted December 21, 1992.

State law references—Emergency Management Act, G.S. 166A-1 et seq.; municipal emergency management, G.S. 166A-7.

ARTICLE I. DECLARING A STATE OF EMERGENCY

Sec. 22-1. Purpose and construction of this article.

The North Carolina Emergency Management Act, G.S. 166A-19 et seq., grants cities and their officials various powers to address emergencies. This article is intended to carry out that grant of authority. It is intended that the terms used in this article will be construed in accordance with that Act. Additional authority for this article is found in G.S. Ch. 160A, including sections 160-70, 160A-149 and 160A-150, and in sections 9, 10, 16, and 17 of the city Charter.
(Ord. No. 14652, § 2, 6-16-2014)

Sec. 22-2. Declaration of state of emergency.

The mayor is authorized to declare a state of emergency.
(Ord. No. 14652, § 2, 6-16-2014)

Sec. 22-3. Authority to impose prohibitions and restrictions.

The mayor is authorized to impose by declaration prohibitions and restrictions under G.S. 166A-19.31, and to impose those prohibitions and restrictions at a particular time as appropriate. The mayor may determine and impose the prohibitions or restrictions that he or she deems necessary or suitable to a particular state of emergency.
(Ord. No. 14652, § 2, 6-16-2014)

Sec. 22-4. Content of prohibitions and restrictions.

The prohibitions and restrictions referred to in section 22-3 include:

(1) Of movements of people in public places, including imposing a curfew; directing and compelling the voluntary or mandatory evacuation of all or part of the population from any stricken or threatened area within the city's corporate limits and to property and rights-of-way belonging to the city and located outside its corporate limits; prescribing routes, modes of transportation, and destinations in connection with evacuation; and controlling ingress and egress of an emergency area, and the movement of persons within the area.

(2) Of the operation of offices, business establishments, and other places to or from which people may travel or at which they may congregate.

(3) Upon the possession, transportation, sale, purchase, and consumption of alcoholic beverages.

(4) Upon the possession, transportation, sale, purchase, storage, and use of gasoline, and dangerous weapons and substances, except that this subsection does not authorize prohibitions or restrictions on lawfully possessed firearms or ammunition. As used in

this subsection, the term "dangerous weapons and substances" has the same meaning as it does under G.S. 14-288.1. As used in this subsection, the term "firearm" has the same meaning as it does under G.S. 14-409.39(2).

(5) Upon other activities or conditions the control of which may be reasonably necessary to maintain order and protect lives or property during the state of emergency.

(Ord. No. 14652, § 2, 6-16-2014)

Sec. 22-5. Authority of the city council.

This article does not affect the city council's power to declare a state of emergency or to impose prohibitions and restrictions under G.S. 166A-19.31.
(Ord. No. 14652, § 2, 6-16-2014)

Sec. 22-6. Methods to take actions.

To the extent allowed by law, the mayor may, by writing, oral communication, or electronic means, take any of the actions referred to in section 22-2 and section 22-3.
(Ord. No. 14652, § 2, 6-16-2014)

Sec. 22-7. Who may act when mayor is not available.

(a) During the disability of the mayor, or the mayor's absence from the city, or at other times when the mayor is not authorized by law to exercise the functions of the office, the mayor pro tempore may exercise the functions assigned to the mayor in this article. During the disability of the mayor pro tempore, or the mayor pro tempore's absence from the city, or at other times when the mayor pro tempore is not authorized by law to exercise the functions of the office, the city manager may exercise the functions assigned to the mayor in this article.

(b) The person designated or approved by the city council to perform the duties of the city manager during the absence or disability of the city manager, or while the office of city manager is not filled, may exercise the functions assigned to the mayor in this article. This subsection applies only when (1), (2), and (3) apply:

(1) During any of the following: the disability of the mayor, the mayor's absence from the city, the time when the mayor is not authorized by law to exercise the functions of the office, or the time when the office of mayor is vacant;

(2) During any of the following: the disability of the mayor pro tempore, the mayor pro tempore's absence from the city, the time when the mayor pro tempore is not authorized by law to exercise the functions of the office, or the time when the office of mayor pro tempore is vacant; and

(3) During the absence or disability of the city manager, or while the office of city manager is not filled.

(c) The functions assigned to the mayor in this article include the power to terminate a state of emergency.

(d) In this section, "city manager" means only the individual appointed as city manager by the city council, and does not include any designees of the city manager.
(Ord. No. 14652, § 2, 6-16-2014)

Chapters 23—25

RESERVED

Chapter 26

ENVIRONMENT, LITTER, VANDALISM AND POLLUTION*

Article I. In General

Sec. 26-1. Creation of noxious odors in places of assembly.
Sec. 26-2. Public urination and defecation prohibited.
Sec. 26-3. Burning animal carcasses and flesh.
Secs. 26-4—26-22. Reserved.

Article II. Noise

Sec. 26-23. Generally.
Sec. 26-24. Radios and mechanical musical instruments.
Sec. 26-25. Chimes on religious facilities, etc.
Secs. 26-26—26-53. Reserved.

Article III. Smoking Pollution Control

Sec. 26-54. Purpose.
Sec. 26-55. Definitions.
Sec. 26-56. Smoking prohibited in specified public places.
Sec. 26-57. Regulation of smoking in restaurants.
Sec. 26-58. Regulation of smoking in bars and small restaurants.
Sec. 26-59. Regulation of smoking in places of employment.
Sec. 26-60. Sale of cigarettes to minors prohibited.
Sec. 26-61. Posting of signs required.
Sec. 26-62. Enforcement and penalties.
Sec. 26-63. Exclusions.
Secs. 26-64—26-84. Reserved.

Article IV. Vandalism and Grafitti

Sec. 26-85. Damaging, defacing property.
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Article V. Littering; Cleanliness of Premises; Abandoned Vehicles

Division 1. Generally

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Sec. 26-115. Placing leaflets on vehicles in city parking garages and city off-street parking lots.
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Sec. 26-117. Sweeping dirt, etc., upon sidewalk or street; disposition of sweepings.
Sec. 26-118. Prohibited fill material.
Sec. 26-119. Vehicles littering or soiling streets, etc.

***State law reference—**Pollution control and environment, G.S. 113A-1 et seq.

Sec. 26-120. Permission prerequisite to placing building materials upon street or sidewalk.
Sec. 26-121. Duty of seller of goods, etc., of such nature that purchases throw containers, etc., on sidewalks and streets.
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Division 2. Removal and Disposition of Abandoned Vehicles, Hazardous Vehicles and Junked Motor Vehicles

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Sec. 26-146. Definitions.
Sec. 26-147. Abandoned vehicle.
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Sec. 26-149. Junked motor vehicles.
Sec. 26-150. Notice prior to removal; pre-tow notice.
Sec. 26-151. Post-tow notice and hearing requirements.
Sec. 26-152. Disposition of removed vehicles.
Sec. 26-153. Protection against criminal or civil liability.
Sec. 26-154. Applicability of division.
Sec. 26-155. Administrative search and inspection warrant.
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Article VI. Removal of Trash and Undergrowth from Property

Sec. 26-179. Accumulation of refuse and debris declared public nuisance; abatement.
Sec. 26-180. Dead trees declared public nuisance; abatement.
Sec. 26-181. Accumulation of weeds and undergrowth declared public nuisance; abatement.
Sec. 26-182. Responsibility of property owner and persons in possession of property.
Sec. 26-183. Property conditions prohibited.
Sec. 26-184. Procedure for notice of violation; definitions.
Sec. 26-185. Chronic violator defined; notice of violation; remedies.
Sec. 26-186. Hearing and appeal; city self help remedy.
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Sec. 26-226. Maintenance; permit required; conditions.
Sec. 26-227. Removal and replacement; permit required; conditions.
Sec. 26-228. Construction affecting the condition of city trees.
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Sec. 26-247. Duties of the city manager.
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Sec. 26-249. Legality of chapter or parts thereof.
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Sec. 26-251. Vegetation management planning.
Sec. 26-252. Vegetation management communication.
Sec. 26-253. Vegetation management standards, requirements and prohibited practices.
Sec. 26-254. Supervision and oversight of contractors.
Sec. 26-255. Vegetation management clean-up.
Sec. 26-256. Vegetation management annual review.

ARTICLE I. IN GENERAL

Sec. 26-1. Creation of noxious odors in places of assembly.

(a) It shall be unlawful for any person to discharge any artificially compounded mixture of hydrogen sulphide or other gaseous substances with an obnoxious odor in any theater, cafe, restaurant, religious facility building or other building used for public entertainment or public meetings in the city.

(b) It shall be unlawful to sell or possess for the purpose of violating subsection (a) of this section of any such substances which when mixed or blended will create obnoxious odors. The sale or possession of such substances shall be prima facie evidence that the same are intended for the unlawful uses as set forth in subsection (a) of this section.

(c) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 13-20; Code 1982, § 12-1; Ord. No. 15982, § 54, 8-1-2022)

Sec. 26-2. Public urination and defecation prohibited.

Except in designated water closets or toilet facilities, it shall be unlawful for any person to urinate or defecate on any public place, sidewalk, street, alleyway or right-of-way or in any public building or on any private property. Having written permission of the owner or person in lawful possession shall constitute an affirmative defense to the charge of urinating or defecating on private property. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1982, § 12-30; Ord. No. 11558, 8-17-1998; Ord. No. 15982, § 55, 8-1-2022)

Sec. 26-3. Burning animal carcasses and flesh.

It shall be unlawful for any person to burn or cause to be burned, except in an incinerator, any carcass, or flesh of any animal or fowl. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 4-7; Code 1982, § 5-7; Ord. No. 13574, Pt. 1, 4-7-2008; Ord. No. 15982, § 56, 8-1-2022)

Cross reference—As to disposition of dead animals generally, see § 58-133. As to incinerators, see UDO 5.2.7A.

Secs. 26-4—26-22. Reserved.

ARTICLE II. NOISE*

Sec. 26-23. Generally.

(a) *Unreasonably loud and disturbing noises prohibited.* Subject to the provisions of this section, it shall be unlawful for any person to make, permit, continue, or cause to be made or to create any unreasonably loud and disturbing noise in the city. For purposes of this section, the following definitions shall apply:

(1) *Unreasonably loud.* Noise which is substantially incompatible with the time and location where created to the extent that it creates an actual or imminent interference with peace or good order.

(2) *Disturbing.* Noise which is perceived by a person of ordinary sensibilities as interrupting the normal peace and calm of the area. In determining whether a noise is unreasonably loud and disturbing, the following factors incident to such noise are to be considered: Time of day; proximity to residential structures; whether the noise is recurrent, intermittent, or constant; the volume and intensity; whether the noise has been enhanced in volume or range by any type of electronic or mechanical means; the character and zoning (if applicable) of the area; whether the noise is related to the normal operation of a business or other labor activity and whether the noise is subject to being controlled without unreasonable effort or expense to the creator thereof.

(b) *Particular noises prohibited.* The following acts, among others, are declared to be unreasonably loud and disturbing noises in violation of this section but the enumeration shall not be deemed to be exclusive, namely.

(1) The sounding of any horn or signal device on any automobile, motorcycle, bus or other vehicle while not in motion, except as a danger signal if another vehicle is approaching apparently out of control, or if in motion only as a danger signal; the creation by means of any such signal device of any unreasonably loud or harsh sound, and the sounding of such device for an unnecessary and unreasonable period of time.

(2) The playing of any radio, phonograph or any musical instrument in such a manner or with such volume, particularly during the hours between 11:00 p.m. and 7:00 a.m., as to annoy or disturb the quiet, comfort or repose of persons in any dwelling, hotel or other type of residence.

(3) The keeping of any animal or bird which, by causing frequent or long continued noise, shall disturb the comfort and repose of any person in the vicinity.

(4) The use of any automobile, motorcycle or other vehicle so out of repair, so loaded or in such manner as to create loud or unnecessary grating, grinding, rattling or other noise.

***State law references—**Authority to abate health nuisances, G.S. 160A-193; abatement by local health director, G.S. 130-20.

(5) The blowing of any steam whistle attached to any stationary boiler except to give notice of the time to begin or stop work or as a warning of danger.

(6) The discharge into the open air of the exhaust of any steam engine, stationary internal combustion engine or motor vehicle, except through a muffler or other device which will effectively prevent loud or explosive noises therefrom.

(7) The use of any mechanical device operated by compressed air unless the noise created thereby is effectively muffled and reduced.

(8) The erection (including excavation), demolition, alteration or repair, or cleaning the outside of, any building in a residential or business district other than between the hours of 7:00 a.m. and 8:00 p.m. on weekdays, except in cases of urgent necessity in the interest of public safety or convenience; provided, however, in cases in which the work is required by an emergency, or by the nature of the particular project or specified portion thereof it is necessary to have a continuous operation without break, or where the specified work cannot be performed while the plant or enterprise is in operation,the city manager may issue a permit for such work to be carried on between hours and on days in addition to the hours and days herein mentioned. The term "weekdays," when used in this subsection, means any day except Sunday.

(9) The creation of any excessive noise on any street adjacent to any school, institution of learning, library, sanitarium or court while the same is in session, or adjacent to any hospital, or any religious facility during services, which unreasonably interferes with the working of such place.

(10) The creation of loud and excessive noise in connection with loading or unloading any vehicle or the opening and destruction of bales, boxes, crates and containers.

(11) The sounding of any bell or gong attached to any building or premises which disturbs the quiet or repose of persons in the vicinity thereof.

(12) The shouting and crying of peddlers, hawkers and vendors which disturb the quiet and peace of the neighborhood.

(13) The use of any drum, loudspeaker or other instrument or device for the purpose of attracting attention by creation of noise to any performance, show, sale, display or advertisement of merchandise.

(c) *Small motors.* The running of a motor not exceeding one horsepower on a refrigeration truck for the purpose of keeping perishable fruits, vegetables and all other perishable meats and foods contained in such a truck from spoiling, shall not constitute an unnecessary noise or disturbance within the meaning of this section.

(d) *Particular standards established:*

(1) In addition to the violations established by subsections (a) and (b) of this section, no person shall cause, produce, or allow any mechanically or electronically produced or amplified sound that: (i) exceeds the levels set out in subsection (d) of this section as such sound is measured at any point beyond the boundary of the property from which

the sound emanates, and (ii) is not authorized by a permit issued pursuant to the City Code or state or federal authority; or otherwise exempted from regulation by the exceptions established by subsection (e) of this section;

(2) No nighttime (11:00 p.m.—8:00 a.m.) sound level shall exceed 50 dB(A);

(3) No daytime or evening (after 8:00 a.m.—before 11:00 p.m.) sound level shall exceed 60 dB(A); and

(4) "Decibel" (dB) as used in this subsection shall mean a unit for describing the amplitude of sound, equal to 20 times the logarithm to the base ten of the ratio of the pressure of the sound measured to the reference pressure, which is 20 micronewtons per square meter. The sound level shall be measured by the use of a sound level meter and frequency weighting network "A" as specified in the American National Standards Institute specifications for sound level meters.

(e) *Exceptions.* The following sounds shall be exempt from the provisions of this section:

(1) Sounds of safety signals, warning devices, and emergency pressure relief valves;

(2) Sounds resulting from any authorized emergency vehicle when responding to any emergency call or acting in time of emergency;

(3) Any sound resulting from activities of a temporary duration permitted by law and for which a license or permit has been granted by the city or a state or federal agency when such sounds do not exceed the conditions and limits stated in the license or permit;

(4) Sounds emanating from the normal operations of properly equipped aircraft (not including model aircraft);

(5) Sounds emanating from a motor vehicle, or lawnmower or agricultural equipment operated between the hours of 7:00 a.m. and 9:00 p.m. when the vehicle or equipment is properly equipped with the manufacturer's or other authorized standard mufflers and sound reduction equipment and in use under proper operating conditions; and

(6) Musical chimes emanating from a public or religious institution or facility, provided that the sound is less than 15 minutes in duration and occurs not more than three times per day.

(7) Sounds emanating from unamplified musical performances held at Durham Central Park between the hours of 10:00 a.m. and 9:00 p.m.

(f) *Violations.* In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1964, § 13-17; Code 1982; Ord. No. 6445, §§ 1, 2, 7-23-1984; Ord. No. 6884, § 1, 2-17-1986; Ord. No. 11687, § 1, 5-17-1999; Ord. No. 15257, § 1, 2-19-2018; Ord. No. 15946, 6-6-2022)

State law reference—Authority to regulate noise, G.S. 160A-184.

Sec. 26-24. Radios and mechanical musical instruments.

It shall be unlawful for any person to maintain and operate in any building or on any premises in the city or on any public street or on any motor vehicle using the streets or any airplane flying over the city, any radio device or mechanical musical instrument or amplifier or device of any kind whereby the sound therefrom is cast directly upon the public streets and places or for the purpose of attracting the attention of the public, or which is so placed and operated that the sounds coming therefrom can be heard to the annoyance or inconvenience of travelers upon any street or public place, or of persons in neighboring premises; provided, however, this section shall not apply to the actual conduct of auction sales of real estate on or adjacent to the premises to be sold where the auctioneer or auction company is properly licensed; provided, further, nothing herein shall be construed to affect official warning sounds promulgated by the emergency management agency. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 13-18; Code 1982; Ord. No. 15982, § 57, 8-1-2022)

Sec. 26-25. Chimes on religious facilities, etc.

Nothing contained in section 26-23 or 26-24 shall be construed as prohibiting the playing of chimes by mechanical musical instrument or device, electronics or other method on religious facilities, business buildings, and any other place within the city.
(Code 1964, § 13-19; Code 1982)

Secs. 26-26—26-53. Reserved.

ARTICLE III. SMOKING POLLUTION CONTROL

Sec. 26-54. Purpose.

The city council finds and declares that the purpose of this article is to protect and promote the public health and safety of the citizens of the city by controlling and limiting the smoking of tobacco in public places and places of employment as hereinafter set forth. The restrictions and limitations of this article should be viewed as minimum standards, and should not be construed as limiting, in any way, the authority of persons in control of a public place or place of employment from prohibiting smoking within their establishment altogether.
(Code 1982, § 12-71; Ord. No. 9971, § 1, 9-7-1993)

Sec. 26-55. Definitions.

The following words and phrases shall have the meanings set forth herein unless the context clearly indicates otherwise:

Bar means an area comprising 15 feet or less from the perimeter of a permanent counter which is primarily devoted to serving alcoholic beverages and within which the serving of food is only incidental to the consumption of such beverages. Although a restaurant may contain a bar, the term "bar" shall not include the restaurant/dining area. The city council may extend the 15-foot limitation to encompass a larger area upon a demonstration by the owner of an establishment that such an area is primarily devoted to the serving of alcoholic beverages (such as a barroom, cocktail lounge or similar facility) and the serving of food is only incidental to the consumption of such beverages.

Business means any sole proprietorship, partnership, joint venture, corporation, or other business entity formed for profit or non-profit making purposes, as well as professional corporations and other entities where professional services are delivered.

Child care facility means any licensed nursery, day care center, preschool, or other facility engaged in the practice of providing care for children. A private residence is not a child care facility, except during those hours and in those portions of the residence when it is being used for the purpose of providing care for children.

Employee means any person who is employed by any employer in consideration for monetary compensation or profit, as well as any person who volunteers his or her services.

Employer means any person, partnership or corporation, including a municipal corporation or non-profit entity who employs the services of one or more individual persons.

Nonprofit entity means any corporation, unincorporated association or other entity created for charitable, philanthropic, educational, character building, political, social or other similar purposes, the net proceeds from the operations of which are committed to the promotion of the objects or purposes of the organization and not to private financial gain.

Nonsmoking area means an area in which smoking is prohibited.

Place of employment means any enclosed area under the control of a public or private employer which employees normally frequent during the course of employment, including, but not limited to, work areas, employee lounges, restrooms, conference and classrooms, employee cafeterias, and hallways. A private residence is not a place of employment.

Public area/place means any enclosed area to which the public is invited or in which the public is permitted. A private residence is not a public place.

Restaurant means any coffeeshop, cafeteria, sandwich stand, private and public school cafeteria, and any other eating establishment which gives or offers for sale food to the public, guests, or employees, except that the term "restaurant" shall not include a cocktail lounge or tavern if such cocktail lounge or tavern is a "bar" as defined hereinabove.

Retail store means any sole proprietorship, partnership, joint venture, corporation or other business entity where goods or services are sold or offered for sale.

Service line means any indoor line at which one or more persons are waiting for or receiving service of any kind, without regard to whether such service involves the exchange of money.

Smoking means inhaling, exhaling, burning or carrying any lighted cigar, cigarette, or other combustible tobacco product in any manner or in any form.

Sports arena means an enclosed sports pavilion, gymnasium, health spa, swimming pool, and other similar public place where members of the general public assemble either to engage in physical exercise, participate in athletic competition, or witness sports events.

Violation means the failure by any business, employer, nonprofit entity, restaurant or retail store to comply with any section of this article or the failure of any individual to observe any restrictions on smoking that are promulgated as a result of this article. Nothing in this article shall be interpreted as requiring an employer, restaurant or retail storeowner or any other person in charge of a place wherein smoking is regulated to be responsible for enforcing any provision of this article.
(Code 1982, § 12-72; Ord. No. 9971, § 1, 9-7-1993)

Sec. 26-56. Smoking prohibited in specified public places.

(a) Except as otherwise provided, smoking shall be prohibited in the following places:

(1) Child care facilities;

(2) Enclosed shopping malls;

(3) Elevators;

(4) Grocery stores;

(5) Polling places;

(6) Public restrooms;

(7) Public areas of retail stores;

(8) Service lines;

(9) Public forms of transportation, including, but not limited to, buses, vans and taxicabs;

(10) Public areas of galleries, libraries and museums when open to the public;

(11) Seating areas and adjacent aisles of any building not open to the sky which is primarily used for exhibiting any motion picture, stage drama, lecture, musical recital or similar performance, except when smoking is part of a stage production;

(12) Seating areas and adjacent aisles of enclosed sports arenas and convention halls;

(13) All rooms, chambers, place of meeting or public assembly under the control of the city or any other political subdivision of the state whenever a public meeting is in progress therein, to the extent such place is subject to the jurisdiction of the city;

(14) Smoking is prohibited in all buildings owned or leased by the city or in any portion thereof, provided, however, in the Carolina Theater, the Arts Council building, the Armory at the southeast corner of West Morgan Street and Foster Street; the Civic Center at the southwest corner of West Morgan Street and Foster Street, and Spruce Pine Lodge, smoking shall continue to be allowed in ten percent of each of the buildings. The city manager shall be responsible for designating those areas which will constitute ten percent of the indoor space of said buildings where smoking will be permitted and the city manager will cause to be conspicuously posted in those areas designated as smoking or nonsmoking, one or more signs stating that smoking is or is not permitted in the area;

(15) Lobbies, hallways, and other common areas in apartment buildings, condominiums, retirement facilities, nursing homes, and other multiple-unit residential facilities;

(16) All buildings owned or leased by Durham Technical Community College or any portion thereof.

(b) Nothing in this article shall be interpreted as limiting or prohibiting the right of any owner or lessee of any building from designating such building as a nonsmoking establishment or from designating any room or section in such building as a nonsmoking area.
(Code 1982, § 12-73; Ord. No. 9971, § 1, 9-7-1993; Ord. No. 10707, § 1, 4-1-1996; Ord. No. 13574, Pt. 1, 4-7-2008)

Sec. 26-57. Regulation of smoking in restaurants.

The owner of every restaurant with a seating capacity of 30 or more shall designate a nonsmoking area, consisting of at least 50 percent of the indoor seating capacity of the restaurant. The seating capacity of any bar or lounge, if it also serves as a dining area of restaurant, shall be included in the calculation of the total seating capacity of the restaurant.
(Code 1982, § 12-74; Ord. No. 9971, § 1, 9-7-1993)

Sec. 26-58. Regulation of smoking in bars and small restaurants.

All bars and restaurants which have a seating capacity of less than 30 shall post one of the following signs at every entrance notifying patrons of their smoking policy: "We Do Not Provide A Nonsmoking Section," "Nonsmoking Section Available," or "No Smoking."
(Code 1982, § 12-75; Ord. No. 9971, § 1, 9-7-1993)

Sec. 26-59. Regulation of smoking in places of employment.

(a) Employers shall be responsible for providing smoke-free areas for nonsmoking employees within existing facilities and, to the maximum extent possible, separating nonsmoking employees from smoking employees. However, employers are not required to incur any expense to make structural or other physical modifications in providing these areas.

(b) Notwithstanding the provisions of subsection (a) of this section, any employer shall have the right to designate any place of employment as a nonsmoking establishment.
(Code 1982, § 12-76; Ord. No. 9971, § 1, 9-7-1993)

Sec. 26-60. Sale of cigarettes to minors prohibited.

Any retail store, restaurant, bar, or other establishment that offers cigarettes for sale in vending machines or otherwise shall post a conspicuous five-inch by seven-inch sign stating, "The sale of cigarettes to minors under the age of 18 years is a misdemeanor punishable by a fine not to exceed $500.00, imprisonment for not more than six months, or both (G.S. 14-313)."
(Code 1982, § 12-77; Ord. No. 9971, § 1, 9-7-1993)

Sec. 26-61. Posting of signs required.

"No Smoking," or other signs relating to an establishment's smoking policy, whichever are appropriate, with letters of not less than one inch in height or the international "No Smoking" symbol (consisting of a pictorial representation of a burning cigarette enclosed in a red circle with a red bar across it) shall be clearly, sufficiently and conspicuously posted in every building or other place where smoking is regulated by this article, by the owner, operator, manager or other person having control of such building or other place. No person shall remove or deface any sign required to be posted by or under the authority of this article.
(Code 1982, § 12-78; Ord. No. 9971, § 1, 9-7-1993)

Sec. 26-62. Enforcement and penalties.

(a) The proprietor, employer, or other person in charge of a public place of employment where smoking is regulated shall make reasonable efforts to prevent smoking in nonsmoking areas.

(b) Any person who violates any provision of this article during the first 60 days from its effective date shall be given a warning of violation only. Thereafter, any violator shall be subject to payment of a civil penalty of $25.00 for each violation. A person, duly authorized by the city council, shall be authorized to send a civil penalty citation to the violator by certified

mail or personally deliver such citation to the violator stating the nature of the violation, the amount of the penalty, and directing that the violator pay the penalty to the city tax collector's office within 14 days of receipt of the citation.
(Code 1982, § 12-79; Ord. No. 9971, § 1, 9-7-1993)

Sec. 26-63. Exclusions.

The following areas shall not be subject to the restrictions of this article:

(1) Private residences, except where otherwise provided herein;

(2) Restaurants (or any separate room or section thereof), hotel rooms, conference or meeting rooms, and public transportation vehicles while they are being rented for private functions;

(3) State and federal facilities.

(Code 1982, § 12-80; Ord. No. 9971, § 1, 9-7-1993)

Secs. 26-64—26-84. Reserved.

ARTICLE IV. VANDALISM AND GRAFITTI

Sec. 26-85. Damaging, defacing property.

(a) *Buildings used for public or private educational purposes.* It shall be unlawful for any person willfully and without authority to destroy, defile, deface, desecrate, place any mark upon or otherwise damage any building or structure used or designated for use as a place of public or private educational purposes, or any part thereof or appurtenance thereto, or willfully and without authority to break, deface or otherwise damage any book, picture, furniture, ornament, furnishing, musical instrument, article of silver or plated ware or any other chattel or personal property kept in any building or structure for use in connection with public or private educational work.

(b) *Buildings used for religious observance.* It shall be unlawful for any person willfully and without authority to destroy, defile, deface, desecrate, place any mark upon or otherwise damage any building or structure used or designated for use as a place of religious observance or worship or instruction, or any part thereof or appurtenance thereto, or willfully and without authority to break, deface or otherwise damage any book, picture, furniture, ornament, furnishing, musical instrument, article of silver or plated ware or any other chattel or personal property kept in any building or structure for use in connection with religious observance or worship or instruction.

(c) *Violations.* In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1964, §§ 13-7, 13-8; Code 1982, §§ 12-11, 12-13; Ord. No. 15982, § 58, 8-1-2022)

State law references—Injury to churches, etc., G.S. 14-144; care of school buildings and liability for damage thereto by teachers and principals, G.S. 115-149.

Secs. 26-86—26-113. Reserved.

ARTICLE V. LITTERING; CLEANLINESS OF PREMISES; ABANDONED VEHICLES

DIVISION 1. GENERALLY

Sec. 26-114. Distribution of handbills.

It shall be unlawful for any person to place on the streets or sidewalks of the city, or yards adjacent thereto, or in or on automobiles or other vehicles, any loose bills or circulars of an advertising nature. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 13-2; Code 1982, § 12-4; Ord. No. 15982, § 59, 8-1-2022)

Sec. 26-115. Placing leaflets on vehicles in city parking garages and city off-street parking lots.

It shall be unlawful for any person to place a leaflet of an advertising, political or other nature in or on a vehicle parked in a city parking garage or on any of the off-street parking lots of the city. This section shall not apply to the owner, operator, or passengers of the vehicle. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 13-4.2; Code 1982, § 12-5(a); Ord. No. 15982, § 60, 8-1-2022)

Sec. 26-116. Depositing refuse upon street, etc., generally.

Except as otherwise provided, it shall be unlawful for any person to knowingly throw, place, drop or deposit upon any public sidewalk, street, lane, alley, drive, bridge, overpass, underpass, culvert, branch or catchbasin, or upon any grounds, walk, path, or drive appurtenant to any public building, park, recreation area or facility, or in or about any public swimming pool or facility, or upon any private property or railroad right-of-way without the previous permission of the owner or lessee thereof, any trash, garbage, dirt, rock, debris, paper, cardboard, melon rind, peanut hulls, empty carton or container, bottle, beer can, tin can, chewing gum, rag, glass, napkin, discarded food, refuse, dead animal, box, fruit or fruit peeling, vegetable, sweepings or any other litter, refuse or waste of any kind. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 9-30; Code 1982, § 10-100; Ord. No. 15982, § 61, 8-1-2022)

State law reference—Littering, G.S. 14-399.

Sec. 26-117. Sweeping dirt, etc., upon sidewalk or street; disposition of sweepings.

No householder or business operator or his or her agent, shall sweep from any house, yard, store or elsewhere any dirt, ashes, leaves, yard trimmings or other refuse in or upon the

streets, sidewalks or other public ways. Such dirt, ashes, leaves, yard trimmings or other refuse shall be disposed of in accordance with the provisions of this chapter. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 9-32; Code 1982, § 10-101; Ord. No. 15982, § 62, 8-1-2022)

Sec. 26-118. Prohibited fill material.

No garbage or offensive disease-producing, rodent-producing or insect-producing material shall be dumped in any lot or space for the purpose of filling or for any other purpose. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 9-33; Code 1982, § 10-102; Ord. No. 15982, § 63, 8-1-2022)

Sec. 26-119. Vehicles littering or soiling streets, etc.

(a) *By deposit of mud, clay on paved streets and other public ways.* It shall be unlawful for any person, being the owner, driver or person in charge or in control of any vehicle, to enter upon the paved streets, sidewalks and other public places with such vehicle in such manner as to cause the excessive deposit of mud or clay or other foreign materials from such vehicle upon the paved streets, sidewalks and other public places so as to litter or soil the same. If it is impractical to clean vehicle tires and wheels before entering the public streets, sidewalks or other public places, the person owning, driving or in charge or in control of any vehicle so littering and soiling streets, sidewalks or other public places shall make suitable provision promptly to clean the streets, sidewalks or other public places upon which such littering or soiling has occurred.

(b) *Scattering dirt, rock, sawdust, etc., from vehicle.* It shall be unlawful for any person, being the owner, driver or person in charge or in control of any vehicle, to scatter therefrom any dirt, rock, sand, cement, coal, sawdust, cinders, ashes or other materials or refuse upon the streets, sidewalks or other public ways of the city.

(c) *Construction of vehicle to prevent scattering of dirt, refuse, etc.* It shall be unlawful for any person, being the owner, driver or person in charge or control of any vehicle, to use such vehicle for hauling any dirt, sand, cement, coal, sawdust, cinders, ashes or other materials or refuse upon the streets, sidewalks or other public ways of the city, unless the vehicle in question is so constructed or covered as to prevent the falling and scattering of such materials or refuse while the vehicle is passing over the streets, sidewalks or other public ways of the city.

(d) *Violations.* In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, §§ 9-51—9-53; Code 1982, §§ 10-103—10-105; Ord. No. 15982, § 64, 8-1-2022)

Sec. 26-120. Permission prerequisite to placing building materials upon street or sidewalk.

It shall be unlawful for any person to drop, place or leave any brick, stone, gravel, sand, or other building materials of any kind or nature whatsoever on any public street, sidewalk or

other public way, or to permit any person in his or her employ to drop, place or leave any brick, stone, gravel, sand or other building materials of any kind whatsoever, upon any public street, sidewalk, or other public way without immediately removing the same, except upon permission of the transportation department. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 9-54; Code 1982, § 10-106; Ord. No. 15982, § 65, 8-1-2022)

Sec. 26-121. Duty of seller of goods, etc., of such nature that purchases throw containers, etc., on sidewalks and streets.

It shall be unlawful for any person selling goods, wares or merchandise of such nature that the purchasers thereof throw the containers or wrappers of such goods, wares or merchandise or portions of the goods, wares or merchandise themselves on the sidewalks, streets or other public ways of the city to allow such containers, wrappers or portions of such goods, wares or merchandise, or any part thereof, to remain thereon. Any person selling goods, wares or merchandise of such a nature shall also keep his or her premises clean and free from such containers or wrappers or portions of goods, wares and merchandise, so that the same will not be blown or otherwise transferred to the streets, sidewalks or other public ways. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 9-56; Code 1982, § 10-107; Ord. No. 15982, § 66, 8-1-2022)

Sec. 26-122. Rules and regulations as to cleaning and cleanliness of streets.

The director of general services, subject to the approval of the city manager, shall have the authority to establish rules and regulations, consistent with the provisions of this article, governing the cleaning of streets and the maintenance of conditions related to the cleanliness of streets. It shall be unlawful for any person to fail, neglect or refuse to comply with such regulations. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 9-58; Code 1982, § 10-108; Ord. No. 15982, § 67, 8-1-2022)

Sec. 26-123. Rules and regulations governing litter control.

(a) *Dumping of litter.*

(1) *Generally.* No person, firm, organization, private corporation, governing body, or the agent or employee thereof shall scatter, spill, place, dump, deposit, drop, throw, discard, leave, cause or permit the scattering, spilling, placing, dumping, depositing, dropping, throwing, discarding or leaving of litter upon any public or private property not owned by him or her in the city unless:

a. The property has been designated by the city and the state as a public landfill site for the disposal of litter, the site is being maintained by the city as a public landfill, and the litter is deposited at the landfill in accordance with the rules and regulations for the proper disposal of litter;

b. The litter is placed in a private receptacle or other container intended by the owner or tenant of that property on which the receptacle is located for the deposit of litter or is otherwise disposed of in a manner that is in conformity with federal, state and other laws regulating the disposal of waste; or

c. The litter is placed in a receptacle maintained and designated by the city for the deposit of litter.

(2) *Prohibitions.*

a. No person, firm, organization, private corporation, governing body or the agent or employee thereof shall place litter around a public receptacle or on top of a full receptacle so as to result in litter falling outside of the receptacle.

b. No person, firm, organization, private corporation, governing body, or the agent or employee thereof shall dispose of household or commercial solid waste in receptacles in city parks and recreation areas, sidewalk receptacles designated for pedestrian use or other city owned receptacles.

c. No person, firm, organization, private corporation, governing body, or the agent or employee thereof shall scatter, spill, place, dump, deposit, drop, throw, discard or otherwise dispose of litter from any motor vehicle or boat into any river, lake, pond, stream or body of water in the city.

d. No person, firm, organization, private corporation, governing body, agent or employee thereof shall place, throw, leave or abandon on any road, sidewalk, alley or parking facility in the city any glass bottle or the fragments thereof, any broken glass or crockery of any kind, nails, tacks, bricks, bats, or any other article or object capable of and liable to injure or puncture the tires of an automobile, motorcycle, bicycle or other motor vehicle.

e. No person shall place in a public receptacle: fire or embers, herbicides, liquids, pesticides, poisons, chemicals, dead animals, furniture, large appliances (including, but not limited to, stoves, refrigerators, freezers, washers and dryers), hazardous substances (including, but not limited to, oil and toxic chemicals), construction debris.

(b) *Places of business.*

(1) The owner, person or organization in control of any property that is open to the public for the transaction of business, as a place for assemblage, recreation or as a public way and, including but not limited to, restaurants, shopping centers, fast food outlets, convenience stores, hotels, motels, industrial establishments, apartment buildings, housing projects, construction sites, loading and unloading docks, gas stations, trailer parks and hospitals and clinics shall at all times keep the premises clean of all litter thrown or left on such premises and shall take all necessary measures, including immediate cleanup of the premises to prevent litter from drifting or blowing onto any adjoining property.

(2) The owner, person or organization in control of any property named in subsection (b)(1) of this section shall place receptacles of sufficient size and number on the property for the disposal of litter. Such receptacles shall be conspicuously identified as being available for the disposal of litter.

(c) *Other laws.* The provisions of this section are additional and supplemental to G.S. 14-399, which prohibits the littering of publicly and privately owned property.

(d) *Violations.* In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1982, § 10-108.1; Ord. No. 9519, § 1, 4-6-1992; Ord. No. 13263, § 2, 6-5-2006; Ord. No. 15982, § 68, 8-1-2022)

Secs. 26-124—26-144. Reserved.

DIVISION 2. REMOVAL AND DISPOSITION OF ABANDONED VEHICLES, HAZARDOUS VEHICLES AND JUNKED MOTOR VEHICLES*

Sec. 26-145. Administration.

The department of housing and community development shall be responsible for the administration and enforcement of this division. Nothing in this division shall be construed to limit the legal authority or the powers of officers of the city's police department and fire department in enforcing any laws or in carrying out their duties.
(Code 1982, § 10-109; Ord. No. 11625, § 2, 12-21-1998)

Sec. 26-146. Definitions.

For the purpose of this division the following terms, phrases and words shall apply:

Abandoned motor vehicle means a motor vehicle that:

(1) Is left on any public street or highway for longer than seven days;

(2) Is left on property owned or operated by the city for longer than 24 hours; or

(3) Is left on private property without the consent of the owner, occupant, or lessee thereof for longer than two hours.

City means the City of Durham, North Carolina, and the city's authorized agent.

Department means the housing and community development department.

***Charter reference—**Authority for the removal of abandoned or junked motor vehicles from private property, § 55.

State law references—Authority, G.S. 160A-303; removal by the secretary of state department of transportation, G.S. 20-137.6 et seq.

Hazardous motor vehicle means a motor vehicle on private or public property that is declared to be a health or safety hazard by the housing code administrator when the vehicle is found to be:

(1) A breeding ground or harbor for mosquitoes or other insects, snakes, rats, or other pests;

(2) A point of weed growth and/or other vegetation over 12 inches in height; or

(3) A point of collection for pools or ponds of water;

(4) A point of concentration of gasoline, oil or other flammable or explosive materials; or

(5) So located that there is a danger of the vehicle falling or turning over;

(6) A place in which debris, bottles or other solid waste is discarded and is present within the vehicle;

(7) A source of danger for children through entrapment in areas of confinement that cannot be opened from the inside or from exposed surfaces of metal, glass or other rigid materials; or

(8) The creation of another similar condition or circumstance which exposes the general public to safety or health hazards.

Housing code administrator means the director of the housing and community development department and designees of the director.

Junked motor vehicle means a vehicle that does not display a current and valid license plate lawfully upon that vehicle and that:

(1) Is partially dismantled or wrecked; or

(2) Cannot be self-propelled or moved in the manner which it originally was intended to move; or

(3) Is more than five years old and appears to be worth less than $500.00.

Motor vehicle means all machines designed or intended to travel over land by self-propulsion or while attached to any self-propelled vehicle.

Owner means an individual, firm, partnership, association, corporation, governmental agency, or any combination thereof, holding and presenting the legal certificate of title to the particular motor vehicle.
(Code 1982, § 10-110; Ord. No. 11625, § 2, 12-21-1998; Ord. No. 14935, § 1, 6-6-2016)

Sec. 26-147. Abandoned vehicle.

It shall be unlawful for any person to leave an abandoned motor vehicle:

(1) On any public street or highway longer than seven days; or

(2) On property owned or operated by the city for longer than 24 hours; or

(3) On private property without the consent of the owner, occupant or lessee thereof for longer than two hours.

(Code 1982, § 10-111; Ord. No. 11625, § 2, 12-21-1998)

Sec. 26-148. Hazardous vehicle.

It shall be unlawful for the owner of a motor vehicle or for the owner, lessee or occupant of the real property upon which the motor vehicle is located to leave or allow to remain on the public or private property any hazardous motor vehicle.

(Code 1982, § 10-112; Ord. No. 11625, § 2, 12-21-1998)

Sec. 26-149. Junked motor vehicles.

(a) *Purpose.* G.S. 160A-303.2 authorizes the city to regulate and to prohibit junked motor vehicles on public grounds and on private property. Pursuant to that authority, the city council finds that such regulation, restraint or prohibition is necessary and desirable to promote or enhance the:

(1) Quality of urban attractiveness and the aesthetic appearance of the city;

(2) Protection of property values throughout the city;

(3) Preservation of the livability and the attractiveness of neighborhoods;

(4) Promotion of tourism, conventions and other opportunities for economic development for the city;

(5) Attractiveness of the city's thoroughfares and commercial roads which present the primary, public visibility to visitors and to passersby of the city; and

(6) Promotion of the comfort, happiness and emotional stability of the occupants of property in the vicinity of junked motor vehicles.

(b) *Valid inspection decal as evidence of stationary character.* In determining whether a vehicle constitutes a junked motor vehicle, the housing code administrator, in applying the specific criteria in the definition of a junked motor vehicle shall take into consideration, but not be limited to, whether the vehicle has a valid inspection decal as evidence of the stationary character of the vehicle, whether the tires, wheels and other essential parts of the vehicle are present for the operation of the vehicle, flat tires, removed parts, the condition of the exterior or any other specific evidence that would support a finding that the vehicle violates this section. If such a determination is made, then the housing code administrator shall state that determination in writing.

(c) *Prohibited to leave or allow vehicle to remain on property.* It shall be unlawful for the registered owner or person entitled to the possession of a junked motor vehicle or for the owner, lessee, or occupant of the real property upon which a junked motor vehicle is located to leave or allow the vehicle to remain on the property after the vehicle has been ordered removed.

(d) *Required finding; order to remove.* Upon investigation, the housing code administrator may order the removal of a junked motor vehicle as defined in this division from private property after finding in writing that the aesthetic benefits of removing the vehicle outweigh the burdens imposed on the private property owner. Such finding shall be based on a balancing of the monetary loss of the apparent owner against the corresponding gain to the public by promoting or enhancing community, neighborhood or area appearance. The following, among other relevant factors, may be considered by the housing code administrator:

(1) Protection of property values;

(2) Promotion of tourism and other economic development opportunity;

(3) Indirect protection of public health and safety;

(4) Preservation of the character and integrity of the community; and

(5) Promotion of the comfort, happiness, and emotional stability of area residents.
(Code 1982, § 10-113; Ord. No. 11625, § 2, 12-21-1998)

Sec. 26-150. Notice prior to removal; pre-tow notice.

(a) A motor vehicle to be removed because it has been abandoned, or declared to be hazardous or junked shall be towed only after notice to the registered owner or person entitled to possession of the vehicle. In such instances, the housing code administrator shall give written notice to the registered owner of such vehicle at the last known address on file with the Division of Motor Vehicles at least seven days prior to towing. Such notice shall contain:

(1) A description of vehicle;

(2) The location of vehicle;

(3) The violation alleged;

(4) The procedure the owner can follow to request a pre-tow hearing;

(5) The date the vehicle will be towed; and

(6) Notice that the vehicle is subject to a lien if towed. Service of notice is complete by depositing the notice in first class mail addressed to the registered owner or person entitled to possession of the vehicle.

(b) If the motor vehicle does not have a license plate or other identification such that the housing code administrator can ascertain ownership, then the administrator shall provide notice by posting a warning notice on the vehicle by affixing it to the windshield or some other conspicuous place on the vehicle. The notice shall contain the date the vehicle will be towed and a telephone number to request a pre-tow hearing. The notice shall also state that the vehicle will be removed by the city on a specified date, no sooner than seven days after the notice is affixed to the vehicle, unless the vehicle is brought into compliance by the owner or legal possessor prior to that time.

(c) The owner or legal possessor may request a hearing within seven days after the notice is mailed or affixed to the vehicle. The request for a hearing shall be in writing and received by the housing code administrator within seven days of the date notice is affixed to the vehicle or mailed to the owner.

(d) The requirement that notice be affixed to an abandoned, hazardous or junked vehicle at least seven days prior to removal may be omitted in those circumstances where there is a special need for prompt action to eliminate traffic obstructions or to otherwise maintain and protect the public safety and welfare. Such findings shall in all cases be entered by the authorizing officer in the appropriate daily records.
(Code 1982, § 10-114; Ord. No. 11625, § 2, 12-21-1998)

Sec. 26-151. Post-tow notice and hearing requirements.

(a) Whenever a motor vehicle is removed pursuant to this division, the city shall give post-tow notice as required by G.S. 20-219.11(a) and (b).

(b) The owner or any other person entitled to claim possession of the vehicle towed pursuant to this division may request in writing a hearing to determine if probable cause existed for the towing within 21 days of mailing or posting of the post-tow notice pursuant to G.S. 20-219.11(a) and (b). Service of notice by mailing is complete by depositing the notice in first class mail addressed to the owner or other person entitled to possession of the vehicle.

(c) The request shall be filed with the housing code administrator, who shall set the hearing within 72 hours of receiving the request. The owner and the person who requested the hearing, if someone other than the owner, shall be notified of the time and place of the hearing.

(d) The owner and any other interested parties may present evidence at the hearing.

(e) The only issue at the hearing is whether or not probable cause existed for the towing. If the housing code administrator finds that probable cause did exist, the lien continues. If the housing code administrator finds that probable cause did not exist, the lien is extinguished.

(f) Any aggrieved party may appeal the housing code administrator's decision to district court by filing appropriate judicial pleadings.

(g) At any stage in the proceedings, including before the probable cause hearing, the owner or other person entitled to possession may obtain possession of the vehicle by:

(1) Paying the towing fee and costs incident to such fee; or

(2) Posting a bond for double the amount of the towing fee.

(Code 1982, § 10-115; Ord. No. 11625, § 2, 12-21-1998)

Sec. 26-152. Disposition of removed vehicles.

(a) *Authority to remove or enter into a contract.* The department shall have the authority to remove or enter into a contract to have removed to a storage garage or area any abandoned motor vehicles, junked motor vehicles and hazardous motor vehicles, after notice in compliance with section 26-150.

(b) *Redemption.* Any abandoned or junked motor vehicle removed may be reclaimed by paying to the city all reasonable costs incidental to the removal and storage of the vehicle. Whenever the tow of such vehicle is contested, the vehicle may be released pending a hearing upon the posting of a bond. Any such vehicle ordered to be released as a result of a post-tow hearing may be reclaimed consistent with the terms of such order.

(c) *Sale or destruction.* When any junked motor vehicle, abandoned motor vehicle, or hazardous motor vehicle is removed, the department shall provide in its notice the information required by G.S. 20-114(c), 44A-4(c) and 44A-4(f). The housing code administrator is authorized to dispose of any vehicle removed by public or private sale 30 days after the maturity of the obligation to pay reasonable costs incidental to removal and storage if such vehicle has not been redeemed or the removal of such vehicle has not been contested. Any such sale shall be conducted by a sales procedure in accordance with G.S. 44A-4, 44A-5, and 44A-6, except that

no hearing in addition to the probable cause hearing is required. If no one purchases the vehicle at the sale and if the value of the vehicle is less than the amount of the costs, the city may destroy the vehicle.

(d) *Indemnity.* A person requesting the city to remove a junked motor vehicle or abandoned motor vehicle or hazardous motor vehicle from private property shall indemnify the city against any loss, expense or liability incurred because of the removal, storage or sale thereof.

(e) *Authority to authorize the disposition of a motor vehicle.* The department shall have the authority to authorize the disposition of a motor vehicle immediately if the owner of the vehicle signs a consent form authorizing the city to sell or to dispose of the vehicle immediately without complying with any statutory requirements pertaining to the disposition of such vehicles.
(Code 1982, § 10-116; Ord. No. 11625, § 2, 12-21-1998)

Sec. 26-153. Protection against criminal or civil liability.

No person shall be held to answer to any civil or criminal action to any owner or other person legally entitled to the possession of any abandoned motor vehicle, junked motor vehicle or hazardous motor vehicle, for disposing of such vehicle as provided in this division.
(Code 1982, § 10-117; Ord. No. 11625, § 2, 12-21-1998)

Sec. 26-154. Applicability of division.

This division shall not apply to:

(1) Any motor vehicle in an enclosed building or any motor vehicle on the premises of a business enterprise being operated in a lawful place and manner if the vehicle is necessary to the operation of the enterprise, or to any vehicle in an appropriate storage place or depository maintained in a lawful place and manner by the city. A "lawful place and manner" shall include, but not be limited to, compliance with the city's UDO. A vehicle "is necessary to the operation of a business enterprise" if there is clear, active use or involvement of the vehicle in the operation of the business enterprise. Mere storage or idle standing of a vehicle does not constitute a vehicle "necessary to the operation of the enterprise."

(2) A motor vehicle kept or stored at a bona fide "automobile graveyard" or "junkyard," as defined in G.S. 136-143.

(Code 1982, § 10-118; Ord. No. 11625, § 2, 12-21-1998)

Sec. 26-155. Administrative search and inspection warrant.

The housing and community development department is authorized to secure an administrative search and inspection warrant, as provided by G.S. 15-27.2, in order to conduct any

necessary inspection of the premises on which an abandoned motor vehicle, junked motor vehicle, or hazardous motor vehicle may be located and to obtain evidence to determine whether there is any violation of any provisions of this division.
(Code 1982, § 10-119; Ord. No. 11625, § 2, 12-21-1998)

Secs. 26-156—26-178. Reserved.

ARTICLE VI. REMOVAL OF TRASH AND UNDERGROWTH FROM PROPERTY*

Sec. 26-179. Accumulation of refuse and debris declared public nuisance; abatement.

It is found and determined that there exist in the city lots and tracts of land, occupied and unoccupied, privately and publicly owned, upon which refuse and debris have been allowed to accumulate and remain. Such conditions provide a harborage for rodents, vermin, mosquitoes and other pests, depreciate property values of neighboring properties, constitute a detriment, danger or hazard to the health, safety and welfare of the residents of the city, and are hereby declared to be a public nuisance. A public necessity exists to exercise the police power of the city to cause the abatement of such conditions in the manner hereinafter provided.
(Code 1982, § 10-120; Ord. No. 6775, § 1, 9-3-1985)

Sec. 26-180. Dead trees declared public nuisance; abatement.

It is also found and determined that there exist in the city lots and tracts of land, occupied and unoccupied, privately and publicly owned, upon which dead trees of sufficient size and proximity to a public street or sidewalk have been allowed to remain such that the trees, or limbs therefrom, upon falling, could interfere with the free and safe passage along the street or sidewalk by pedestrians or vehicular traffic. Such conditions constitute a detriment, danger or hazard to the health, safety and welfare of the residents of the city and are hereby declared to be a public nuisance. A public necessity exists to exercise the police power of the city to cause the abatement of such conditions in the manner hereinafter provided.
(Code 1982, § 10-121; Ord. No. 6775, § 1, 9-3-1985)

Sec. 26-181. Accumulation of weeds and undergrowth declared public nuisance; abatement.

It is further found and determined that there exist in the city lots and tracts of land, occupied and unoccupied, privately and publicly owned, upon which dense growths of weeds, vines, briars or undergrowth have been allowed to grow, accumulate or remain. Where such conditions provide a harborage for rodents, vermin, mosquitoes or other pests, exist in such proximity to houses and other structures as to increase the hazards of disease, injury or fire,

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***Charter reference—**Removal of trash, weeds, etc., § 63.

State law references—General authority to enact regulatory ordinances, G.S. 160A-174 et seq.; to abate public health nuisances, G.S. 160A-193.

or otherwise constitute a detriment, danger or hazard to the health, safety and welfare of the residents of the city, they are hereby declared to be a public nuisance. Under such circumstances, a public necessity exists to exercise the police power of the city to cause the abatement of such public nuisance in the manner hereinafter provided.
(Code 1982, § 10-122; Ord. No. 6775, § 1, 9-3-1985)

Sec. 26-182. Responsibility of property owner and persons in possession of property.

It shall be unlawful for any person to keep or maintain any real property in a condition prohibited by this article.
(Code 1982, § 10-123; Ord. No. 6775, § 1, 9-3-1985)

Sec. 26-183. Property conditions prohibited.

The following enumerated and described conditions are prohibited:

(1) A place upon which refuse or debris is permitted or caused to accumulate. The term "refuse or debris" shall be taken to refer to all classifications of solid waste and shall include garbage, rubbish, bulky waste items, yard waste, construction, debris, ashes, street refuse, dead animals, abandoned automobiles and industrial refuse. Refuse derives from such places as homes, hotels, institutions, stores, restaurants, markets, wholesalers, processing plants, factories, shops, garages, office buildings, streets, sidewalks, alleys, vacant lots, power plants and the like. Provided, however this section does not apply to:

   a. Industrial refuse temporarily stored within a delineated storage area for purposes of refuse or disposal;

   b. Building rubbish temporarily stored in a confined area on construction sites during construction;

   c. Sites approved by the state as sanitary landfills, provided such sites comply with state landfill rules and regulations; and

   d. Salvage or junk operations carried on in compliance with the UDO.

(2) Where found to constitute a public nuisance under the provisions of this article:

   a. A place of dense growth of weeds, grass, vines, or briars, or an area reasonably considered as a lawn, over 10 inches in height, and within either 100 feet of an abutting public street or 50 feet on all sides of a house or other residential, commercial or industrial building; provided, however, the term building shall not include detached structures which are accessory to a dwelling unit or other residential, commercial or industrial building. The weeds, grass, vines or briars constituting a prohibited condition described by this subsection shall be cleared and cut to not more than four inches in height.

   b. Areas of vegetation including natural areas; and flower, vegetable or other gardens; shall be kept free of trash, debris, and weeds kept to a height not to exceed 10 inches.

c. The public sidewalk, curb and gutter that abut the owner's property consist of an accumulation of dirt, grass, weeds, mud, trash, debris and vegetation of any kind.

d. Any vegetation protruding from the abutting owner's property onto or over the public sidewalk, curb, alley and/or gutter shall be removed, cut or trimmed so as not to require a pedestrian or vehicle to take evasive action to avoid physical contact with the same or otherwise hinder safe passage.

e. The area, between the sidewalk that abuts the owner's property and the curb, or between the owner's property and the curb, becomes a place of dense growth of weeds, grass, vines, briars, over 10 inches in height.

f. Any portion of any alley that abuts owner's property and is bounded by the property lines of the adjoining properties and the mid-point of such alley is not maintained in a clean and sanitary condition, free of garbage, rubbish, bulk trash, or other offensive material.

(3) A place upon which any dead tree, under the circumstances specified in section 26-180 been allowed to remain.

(4) No person shall place or allow to remain exposed to the elements, whether outdoors or within an enclosed porch or similar area, any upholstered chair, sofa, bed, table or similar furniture, which is not designed and intended for outdoor use and which is thereby readily susceptible to deterioration. This section shall not apply to furniture which is placed outside as refuse for collection and disposal.

(5) No person shall place or allow to remain exposed to the elements appliances or other electro-domestic items not intended for outdoor use.

(6) No person shall place or allow to remain exposed to the elements laundry, clothing, rags, or other cloth items hung or stored on a front porch or front or other street yard of a dwelling.

(Code 1982, § 10-124; Ord. No. 6775, § 1, 9-3-1985; Ord. No. 14272, § 1, 6-4-2012; Ord. No. 14933, § 2, 6-6-2016)

Sec. 26-184. Procedure for notice of violation; definitions.

(a) When any condition prohibited by this article is found to exist, the housing code administrator shall notify the owner of the property by posting a notice of violation in a conspicuous place on the property. The notice shall include the following:

(1) The property location and a description of the prohibited conditions found to exist.

(2) An order that the owner correct the conditions within ten days from posting of the notice of violation; provided, however, the housing code administrator may extend the time for correcting said conditions for a period not to exceed ten additional days, where he or she finds such extension to be necessary and reasonable.

(3) An explanation of the hearing and appeal procedure set forth in section 26-186.

Service of a notice of violation shall be complete upon posting of the notice. In addition. The city shall mail a copy of the notice of violation to the owner of the property as shown on the county tax listing of the subject property on the date of posting, or within a reasonable time after the date of posting. The housing code administrator shall adopt a policy for mailing and posting a notice of violation.

(b) The term "owner", or "property owner" when used in this article, means the holder of the title in fee simple, every mortgagee of record, all individuals, associations and corporations who have an interest of record in the property, and any individual, association or corporation in possession of the property. The phrase "any individual, association or corporation in possession of the property" is intended to include persons who occupy real property under any recognized form of tenancy.
(Code 1982, § 10-125; Ord. No. 6775, § 1, 9-3-1985; Ord. No. 7247, § 1, 6-15-1987; Ord. No. 13337, § 1, 11-20-2006; Ord. No. 13602, § 1, 5-22-2008; Ord. No. 14933, § 2, 6-6-2016)

Sec. 26-185. Chronic violator defined; notice of violation; remedies.

(a) *Chronic violator defined.* A chronic violator is a person who owns property whereupon, in the previous calendar year, the city issued a notice of violation pursuant to section 26-184 at least two times due to conditions prohibited by this article.

(b) *Annual notice to chronic violator.* The housing code administrator may notify a property owner who is a chronic violator as defined in subsection (a) of this section that, if the violator's property is found to be in violation of this article, the city may, without further notice in the calendar year in which the notice is given, take action to remedy the violation and the expense of the action shall become a lien upon the property and shall be collected as unpaid taxes. The annual notice shall be served by registered or certified mail and regular mail. If the owner of the property refuses to accept notice of the violation, or if the name or whereabouts of the owner of the property cannot be discovered through the exercise of due diligence, then the notice shall be posted on the property in question and published one time in a newspaper of general distribution in the city.
(Ord. No. 13008, § 2(10-125.1), 10-4-2004; Ord. No. 13601, § 1, 5-22-2008)

Sec. 26-186. Hearing and appeal; city self help remedy.

(a) If the property owner does not correct the conditions in the notice of violation (includes an order) issued pursuant to section 26-184(a), then the housing code administrator shall have authority to enter the premises involved and correct the conditions. However, within the time period to correct the conditions as set forth in section 26-184(a), the owner may appeal the findings to the housing appeals board by giving written notice of the appeal to the housing code administrator to stay the abatement of the nuisance (prohibited conditions) by the housing code administrator until a final determination by the housing appeals board. In the event no appeal is taken, the housing code administrator may proceed to correct the conditions.

(b) The housing code administrator shall place the appeal on the agenda of the housing appeals board within a reasonable time. The housing appeals board may, after hearing all interested persons and reviewing the findings of the housing code administrator, reverse the finding and order made pursuant to section 26-184(a); but if the housing appeals board shall determine that the findings of the housing code administrator are correct and proper, it shall adopt an order affirming the determination of the housing code administrator and specifically declaring the conditions existing on the property to be a danger and hazard to the health, safety, morals and general welfare of the inhabitants of the city and a public nuisance and directing the housing code administrator to cause the conditions to be abated.
(Ord. No. 13008, § 2(10-126), 10-4-2004)

Sec. 26-187. Collection of cost of enforcement.

(a) After correction of the conditions (abatement of nuisance) as provided in section 26-186, the cost of abatement, together with interest of eight percent per annum accruing thereon, shall constitute a lien against the property and shall have the same priority and be collected in the same manner as unpaid ad valorem taxes upon such property.

(b) The cost of enforcement is also a lien on any other real property owned by the property owner, where such property is located within the city limits or within one mile of the city limits, except for the owner's primary residence. The additional lien provided in this subsection is inferior to all prior liens and shall be collected as a money judgment. This subsection shall not apply if the owner can show that the violation was created solely by the actions of another or if the owner prevails in an appeal as set forth in section 26-186.

(c) In the alternative, in the discretion of the city, the cost of enforcement may be recovered as a civil penalty by the city in a civil action in the nature of debt as provided in G.S. 160A-175(c).
(Ord. No. 13008, § 2(10-127), 10-4-2004)

Sec. 26-188. Remedies.

This article may be enforced by any one, all, or a combination of the remedies described below or elsewhere in this article or otherwise authorized by common law or statute. Such statutes include but are not limited to G.S. 160A-175.
(Ord. No. 13008, § 2(10-128), 10-4-2004)

Sec. 26-189. Criminal penalties.

It shall be unlawful for any person to fail to comply with any final order or direction of the housing code administrator or housing appeals board made by virtue and in pursuance of this article. Every day such person shall fail to comply with any final order or other direction shall constitute a separate and distinct offense. Such violation shall constitute a misdemeanor or infraction, as provided by G.S. 14-4. The maximum fine for each violation shall be $500.00.
(Ord. No. 13008, § 2(10-129), 10-4-2004)

Sec. 26-190. Civil penalty.

Any owner who fails to comply with any of the provisions of this article shall be subject to an initial civil penalty of $50.00 and an additional civil penalty of $50.00 shall be imposed each month thereafter. The penalty shall be imposed until the property is brought into compliance. However, the maximum cumulative civil penalty shall not exceed $1,000.00. This penalty may be recovered by the city in a civil action in the nature of a debt if the owner does not pay the same within 30 days after the initial day of noncompliance.
(Ord. No. 13008, § 2(10-130), 10-4-2004; Ord. No. 13337, § 3, 11-20-2006; Ord. No. 14933, § 3, 6-6-2016)

Sec. 26-191. Administrative fee.

Any owner of a property within the city who fails to correct the prohibited conditions within the time specified in section 26-184(a) shall be subject to an administrative fee set by the city council in addition to any other charge. This fee allows the city to recover some of its administrative costs incurred due to the owner's failure to comply with section 26-184(a).
(Ord. No. 13337, § 2, 11-20-2006; Ord. No. 13574, Pt. 1, 4-7-2008)

Sec. 26-192. Cancellation or reduction of cost of abatement liens in limited circumstances.

(a) The city manager may authorize the reduction or cancellation of the cost of abatement to correct conditions prohibited by this article which is a lien against the real property upon which the cost was incurred in the following circumstances:

(1) When the owner of the property completes construction of a dwelling on the property to be used for affordable housing. The owner must also obtain and provide a certificate of compliance from the city/county inspections department.

(2) When the owner of the property conveys the property subject to the lien to a person who completes construction of a dwelling on the property to be used for affordable housing. Completion of construction shall be evidenced by a certificate of compliance issued by the city/county inspections department.

(b) The city council may, in its discretion, reduce or cancel the cost described in this section, when the cost is past due, the owner offers to convey the property to the city and the city council agrees to accept the deed to the property in payment of the cost.

(c) The city manager shall establish a policy to implement this section. For each instance of exercising the authority to reduce or cancel a lien under this section, the city manager shall make a record of the reasons why such action is appropriate.
(Ord. No. 14933, § 4, 6-6-2016)

Secs. 26-193—26-218. Reserved.

ARTICLE VIII. TREES

Sec. 26-219. Preamble.

(a) The purpose of this article is to recognize the valuable asset the city has in the trees and shrubs that have been planted by the city over the years and to encourage the protection of trees and shrubs along streets and on city grounds, because they are a continuing asset to the sound development of the city.

(b) To accomplish this purpose, this article:

(1) Establishes standard procedures and practices for the treatment of trees on city property, when conditions require that they be pruned or removed, and of trees on private property, when city crews are required to correct or abate certain conditions set out in this article;

(2) Defines those situations in which trees growing on private property constitute a public nuisance; and

(3) Encourages the planting of trees and shrubs on city property in conformity with an approved plan.

(c) This article is not intended to be punitive or to cause hardship to any person who uses care and diligence to protect trees on city property.
(Code 1982, § 21-0; Ord. No. 5922, preamble, 4-19-1982)

Sec. 26-220. Definitions.

Unless a different meaning clearly appears from the context, the following words and terms, whenever used or referred to in this chapter, shall have the meanings respectively ascribed to them by this section:

Agent means a person authorized by another to act for him or her, one entrusted with another's business. Agency may be based on fact or pursuant to written agreement.

City tree means a tree (see definition of "tree" set out in this section) located on city property or right-of-way or planted by the city on private property pursuant to and for the duration of an agreement between the city and the private property owner.

Drip line means the circumferential line on the horizontal ground plane perpendicular to a tree's outer branching extremities.

Owner means the person in whom is vested the ownership, dominion or title of property, including each joint or common owner, or life tenant, as determined from the public records of the county.

Person means any individual, citizen, partnership, corporation, association, organization, business trust, estate, trust, public or municipal corporation, or any other legal entity however designated.

Public utility company means a railroad company, pipeline company, gas company, electric power company, telephone company or any other company that performs a public service and is regulated as such by a public authority such as the North Carolina Utilities Commission or the city as franchiser.

Shrub means a self-supporting multistemmed woody plant, generally achieving an average maximum height of 12 feet in the environs of the city.

Sight distance means the distance required for nearly all drivers to perceive and properly respond to traffic conditions or control devices.

Topping means the severe cutting back of limbs to stubs larger than three inches in diameter within the tree's crown so as to remove the normal canopy and disfigure the tree.

Tree means a self-supporting woody plant having a well-defined stem or trunk, or the capability of having a single stem through trained growth, a more or less definite crown, a height at maturity of at least eight feet in the environs of the city, and a trunk caliber at maturity of five inches or greater at a height six inches above the ground.

Tree committee means a body appointed by the mayor to study the problems and needs of the city's urban forestry program and to make recommendations to the city council related to these problems and needs; and to assist in the dissemination of news and information about tree planting, protection and maintenance to the general public.

Tree planting and maintenance specifications and standards means criteria adopted by the city manager to govern the planting designs, selection, locations and methods; pruning, removal, fertilization, spraying, bracing and protection of city trees.
(Code 1982, § 21-1; Ord. No. 5922, § 1, 4-19-1982)

Sec. 26-221. Public nuisances on private property.

(a) *Duty of property owner.* The owner or agent of the owner of any real property bordering on any street and upon whose property there are trees shall maintain those trees so that they do not interfere with or endanger the use of the public streets; interfere with or obstruct illumination of street lights; obscure sight distance or create a traffic hazard; interfere with the visibility of any traffic-control device or sign; obstruct or impair the free passage of pedestrians on sidewalks; project into or overhang city sidewalks or other city rights-of-way at a vertical clearance of less than seven feet; or endanger the life, health, safety or property of the public.

(b) *Declaration of public nuisance.* The city manager may declare that any obstruction or interference identified in this section is a public nuisance. When the city manager so declares, he or she shall notify the owner or agent of the owner by certified mail (return receipt requested) of the existence of the nuisance and shall allow a specified period of time of 30 days or less in which to correct or to remove the nuisance. If the owner or agent of the owner does not correct or remove the nuisance within the specified period of time after receipt of notice, the city manager may enter upon the property to correct or remove the nuisance. The city shall perform all corrective maintenance according to the tree planting and maintenance specifications and standards.

(c) *Cost of correction.* Violation of this section shall subject the property owner to a civil penalty based on the cost of correction or removal of the nuisance and to be recovered by the city in a civil action in the nature of debt if the property owner does not pay the penalty within 30 days after he or she has been cited for violation of this section and demand for payment has been made by the city manager.
(Code 1982, § 21-2; Ord. No. 5922, § 1, 4-19-1982)

Sec. 26-222. Transmissible disease infections and insect infestations of trees on private property.

(a) *Authority of city manager.* The city manager may order that the property owner or agent of the owner of any tree located on private property, infected by transmissible disease or infested with insects, and located proximate to any city tree, treat or allow the city to treat the infected or infested tree located on private property. The city manager shall determine proximity based on the type of disease infection or insect infestation and its likelihood of

spread to city trees. The city manager shall have the authority to enter upon private lands to make field inspections, including the removal of specimens for any laboratory analysis that may be necessary to determine the presence of a transmissible infection or infestation.

(b) *Issuance of order.* When the city manager determines that an infectious disease or insect infestation is present, he or she shall assess the need for drastic action to curb the spread of the infection or infestation to city trees. If the infection or infestation warrants drastic action to prevent spread to city trees, the city manager shall order the property owner to immediately remove and dispose of the infected or infested trees, or allow the city to do so. If the infection or infestation does not warrant drastic action, the city manager may order that the property owner or agent of the owner treat, or remove and dispose of the infected or infested trees within a specified time, but not less than ten days. The city manager's order shall be issued by certified mail (return receipt requested). If the owner or agent of the owner does not satisfactorily complete the necessary work within the time allowed by the city manager's order, the city manager may enter upon the property to treat, to remove, or to destroy the infected or infested tree by approved practice.

(c) *Cost of correction.* Violation of this section shall subject the property owner to a civil penalty based on the cost of any tree removal or other corrective treatment unless the city manager determines that the disease infection or insect infestation originated on the adjacent city property. Any civil penalty so assessed shall be recovered by the city in a civil action in the nature of debt if the property owner does not pay the penalty within 30 days after he or she has been cited for violation of this section and demand for payment has been made by the city manager.

(Code 1982, § 21-3; Ord. No. 5922, § 1, 4-19-1982)

Sec. 26-223. Tree planting by the city on private property adjacent to street right-of-way.

Along any street where the existing right-of-way is not wide enough to accommodate trees, the city, with the consent of the owner of property adjacent to that street, may enter into a temporary easement agreement with the property owner to permit the city to plant trees within the easement. The easement shall abut the property line that divides the street right-of-way from private property. The easement shall not be more than 15 feet wide. The city shall maintain the trees planted within the easement for a maximum period of five years as specified in each agreement. The city shall not plant trees on easements where their placement will interfere with travel on public streets or endanger the use of those streets by the public, as described in section 26-221. The city shall follow the tree planting and maintenance specifications and standards in all planting on easements. If, at a later date, the city acquires, by purchase or condemnation, the land upon which trees were planted by the city pursuant to a temporary easement agreement, the city shall not be required to compensate the property owner for these trees.

(Code 1982, § 21-4; Ord. No. 5922, § 1, 4-19-1982)

Sec. 26-224. Permits required for work or activity affecting city trees.

(a) *Permit required.* No person shall perform or undertake, or cause to be performed or undertaken, any work or activity governed by and included within this chapter on any city property without first filing an application with and obtaining a permit from the city manager. The city and public utility companies are eligible for a master permit as described in section 26-231 (in lieu of individual permits) for jobs requiring tree maintenance or excavation affecting city trees.

(b) *Standards for review.* Application for permits must be made at the office of the city manager not less than 48 hours prior to the time the work is to be done. The city manager shall issue the permit provided for herein when he or she determines that the proposed work or activity is consistent with the city's interest in city trees and the proposed method and workmanship are consistent with the tree planting and maintenance specifications and standards.

(c) *Scope of permit.* Each permit shall include a description of the location and nature of the work or other activity authorized by it. The permit holder shall perform all work in strict accordance with the tree planting and maintenance specifications and standards. The permit shall bear a definite date of expiration, and the work shall be completed within the time allowed by the permit and in the manner described therein. The permit holder shall notify the city manager that the project has been completed no later than five days after project completion. The city manager may require inspection of the site upon completion of the project. (Code 1982, § 21-5; Ord. No. 5922, § 1, 4-19-1982)

Sec. 26-225. Planting; permit required; conditions.

(a) *Permit required.* No person shall plant any tree or shrub on city property without first filing an application with and obtaining a permit from the city manager. The application required herein shall state the number of trees or shrubs to be planted; the location, grade, size, species, cultivar or variety of each tree or shrub; and such other information as the city manager shall find reasonably necessary to a thorough review of the application. All tree planting must conform to the master tree planting plan. The city manager may cause the removal of any tree or shrub that is planted in conflict with the provisions of this section. When the person who planted the tree or shrub can be identified, the city manager shall notify him or her of the violation of this chapter and shall order him or her to remove the tree or shrub and to restore the site to its condition before the tree or shrub was planted within ten days. If the tree or shrub has not been removed after ten days, the city manager shall remove the tree or shrub.

(b) *Planting plans required.* Any person desiring to plant more than 25 trees or shrubs on any city property shall, in addition to applying for a permit, submit a planting plan or written statement to the city manager. The city manager shall review and approve the statement or plan before issuing a permit to plant. All planting plans shall show accurately:

(1) The proposed or existing street right-of-way width; the subdivision of pavement, curb and gutter within the street right-of-way; distance from face of curb to property line; and location of sidewalk. All plans shall be drawn to a definite, indicated scale.

(2) The proposed location of each new tree and shrub and the location of each existing tree and shrub within the proposed street line. The location of each proposed or existing tree and shrub shall be shown in scaled relation to the other features of the plan.

(3) The species, cultivar or variety of each tree and shrub proposed to be planted and of those already existing within the proposed street lines, either indicated on the plans or referenced with a number to a key list.

(4) The distance (in feet) between trees and shrubs in any one row.

(5) The nature of the soil in the planting space to a depth of two feet, and any existing or proposed surface or subsoil drainage system.

All statements filed in lieu of a planting plan shall contain the same information as required on the plan.
(Code 1982, § 21-6; Ord. No. 5922, § 1, 4-19-1982)

Sec. 26-226. Maintenance; permit required; conditions.

(a) *Permit required.* No person shall spray, fertilize, preserve, prune, brace, perform surgery on, treat for disease infection or insect infestation, cut any branch or root, or otherwise disturb any city tree without first obtaining a permit from the city manager. The application required herein shall state the number and kinds of trees to be maintained, the kind of treatment and method of workmanship to be administered, the composition of the material to be applied, and other information as the city manager shall find reasonably necessary to a thorough review of the application.

(b) *Topping not allowed.* No person shall top any city tree. The city manager may exempt an applicant from the requirement of this subsection upon a finding that the tree has been severely damaged by storm or other causes or is under utility wires, and other pruning practices are impractical. (Refer to section 26-234.)
(Code 1982, § 21-7; Ord. No. 5922, § 1, 4-19-1982)

Sec. 26-227. Removal and replacement; permit required; conditions.

No person shall remove a city tree without first obtaining a permit from the city manager. As a condition to any permit for the removal of any city tree, the city manager may require that

the permit holder pay a fee of not more than the amount set by the city council for each tree to be removed for the city to plant a designated species of trees as nearly equivalent in size and value as reasonably possible in place of the one removed.
(Code 1982, § 21-8; Ord. No. 5922, § 1, 4-19-1982)

Sec. 26-228. Construction affecting the condition of city trees.

(a) *Permit required.* No person shall change grade by cut or fill; excavate any ditches, tunnels or trenches; bore beneath ground surface; or lay any driveway within a distance (in feet) from a city tree that is equal to or less than the diameter (in inches) of the trunk of the city tree as measured at 4½ feet from the ground without first obtaining a permit from the city manager. (Example: City tree trunk diameter = eight inches, proscribed area = eight feet or closer to city tree.) The application for a permit shall include a construction plan.

(b) *Conditions attached.* As a condition of the permit required by this section, the city manager may require that the applicant remove any tree that the city manager determines will not survive the proposed grading change, excavation or boring. When a condition of the permit requires that a tree be removed, the city manager may also require that the permit holder pay a fee of not more than the amount set by the city council per tree for the city to plant a designated species of trees to replace the trees required to be removed. The city manager may require that the replacement tree be planted at the original removal site or at some alternative site located proximate to the original site. The tree planting and maintenance specifications and standards shall be followed for any city tree that is planted or removed. As a condition of the permit, the city manager may require that any city tree adjacent to private property on which any excavation or construction of any building or structure is taking place be surrounded with a substantial fence, frame or box. The fence, frame or box shall measure, at most, four feet high and shall be placed at a distance no closer to the tree trunk than halfway between the trunk and the drip line of the tree's crown. All equipment, building material (e.g., stone, brick, sand, concrete, etc.), dirt, or other debris shall be kept outside the barrier.

(c) *City personnel available.* The city manager shall make available upon request the services of the appropriate city personnel to consult on methods of protecting and planting trees on city property.
(Code 1982, § 21-9; Ord. No. 5922, § 1, 4-19-1982)

Sec. 26-229. Placing materials on city property; permit required; conditions.

No person shall deposit, place, store or maintain upon any city property any stone, brick, sand, concrete or other materials which may impede the free passage of water, air and fertilizer to the roots of any city tree, except by written permission of the city manager.
(Code 1982, § 21-10; Ord. No. 5922, § 1, 4-19-1982)

Sec. 26-230. Building relocation; permit required; conditions.

No person shall move a building or other large object which is reasonably likely to injure any city tree or part thereof without first obtaining a permit from the city manager. Whenever a

city tree must be transplanted to avoid injury or damage due to the relocation of any building or structure or other cause, the city shall transplant the city tree. (See sections 26-227 and 26-228 when tree removal is required.)
(Code 1982, § 21-11; Ord. No. 5922, § 1, 4-19-1982)

Sec. 26-231. Reserved.

Editor's note—Ord. No. 15436, § 1, adopted March 4, 2019, repealed § 26-231, which pertained to public utility companies; master permit; conditions and derived from § 21-12 of the 1982 Code; Ord. No. 5922, § 1, 4-19-1982.

Sec. 26-232. Parking or maintaining vehicles on city property.

No person shall drive, park, haul, store or maintain any automobile, truck, trailer, boat, motorcycle, snowmobile, motor home or other motorized wheeled vehicle on city property within 25 feet of any city tree except while within the clearly delineated travel or parking zones of any roadway, alley, driveway cut or parking lot without first obtaining a permit from the city manager. This provision does not preclude parking on any publicly installed or maintained gravel, concrete, or bituminous driveway or entryway, or operating a motor vehicle on any gravel-surfaced roadway within 25 feet of a city tree.
(Code 1982, § 21-13; Ord. No. 5922, § 1, 4-19-1982)

Sec. 26-233. Abuse or mutilation of city trees.

Unless specifically authorized by the city manager, no person shall:

(1) Damage, cut, carve, break, transplant or remove, climb with spikes, kill or cause to be killed any city tree;

(2) Cut, disturb or interfere in any way with any root within the drip line of the tree crown of any city tree, including the changing of existing grade by cut or fill;

(3) Attach any rope, wire, nails, signs, advertising posters or other device to, around or through any city tree;

(4) Place, spray or allow any solid, liquid or gaseous substance which the person or agent of the person placing, spraying or otherwise allowing such substance to come in contact with any city tree knows or should have known would reasonably likely be harmful to any city tree;

(5) Remove or damage any guard devices placed to protect any city tree;

(6) Raze, remove or renovate any structure so as to damage any city tree;

(7) Set fire or permit any fire to burn when the fire or its heat is likely to injure any portion of any city tree; or

(8) Maintain any device within such proximity as is likely to vaporize noxious fumes that are deleterious to the condition of any city tree.

(Code 1982, § 21-14; Ord. No. 5922, § 1, 4-19-1982)

Sec. 26-234. Emergencies.

In case of emergencies, such as windstorms, ice storms, floods, hurricanes, major interruptions of utility service, or other disasters, any requirement of this chapter which would hamper private or public work to restore order to the city shall be waived during the emergency work so as to prevent injury or damage to the public. Within 48 hours, the city manager shall be notified of the location and nature of any emergency maintenance affecting a city tree. This work shall be done in accordance with emergency standards as outlined by the city manager.
(Code 1982, § 21-15; Ord. No. 5922, § 1, 4-19-1982)

Sec. 26-235. Violation and penalty.

(a) No person shall fail, neglect or refuse to comply with an order or notice of violation from the city manager or with the provisions of this chapter.

(b) The provisions of this chapter may also be enforced by an appropriate equitable remedy issuing from a court of competent jurisdiction. The remedies and penalties established by this section are in addition to the specific remedies and penalties established by other sections of this chapter. The remedies and penalties established by this section may be applied in combination with the remedies and penalties of other sections of this chapter or with each other.
(Code 1982, § 21-16; Ord. No. 5922, § 1, 4-19-1982; Ord. No. 15982, § 69, 8-1-2022)

Sec. 26-236. Appeals.

(a) *Appeal to city manager.* Not later than ten city working days after notice of the decision, any person dissatisfied with a decision of the city manager made pursuant to this chapter may file a written appeal to the city manager. The written appeal shall be filed on forms provided by the office of the city manager and shall clearly state what adjustments are being requested and the reason such adjustments are warranted, and shall be accompanied with such supplementary data as is deemed necessary to substantiate the requested adjustment. The city manager may approve, modify or deny the requested adjustment based upon the public interest, the intent of this chapter, and any unreasonable hardship likely to result. The city manager shall act on the appeal as expeditiously as possible and shall mail written notice of his or her decision to the appellant no later than ten working days after the appeal is received.

(b) *Appeal to city council.* Within 14 days after notification of the decision, but not thereafter, any aggrieved person may appeal any decision of the city manager to the city council. This appeal shall be made on a form provided by and filed with the office of the city manager and may be first heard by the appropriate committee of the city council. The city

council or city council committee may appoint a person from the tree committee to hear the complaint and to report a recommended decision to the city council or city council committee. The appellant shall be notified of the time and place this appeal will be heard. The city council shall act on the appeal as expeditiously as possible and shall notify the appellant in writing no later than five days after the final decision.
(Code 1982, § 21-17; Ord. No. 5922, § 1, 4-19-1982)

Secs. 26-237—26-245. Reserved.

ARTICLE IX. UTILITY VEGETATION MANAGEMENT*

Sec. 26-246. Purpose and intent.

(a) The purpose of sections 26-246 through 26-256 of this article is to establish guidelines for the routine cutting, pruning, and removal of trees and vegetation (sometimes referred to herein as "vegetation maintenance" or "vegetation management") by public utility companies on public streets or rights-of-way, city-owned or controlled property within the city limits and to encourage ,the promotion of urban tree canopy as much as is practical by ensuring the following:

(1) That the utility acknowledges the intrinsic value of trees, and that the city's goal of maintaining canopy over urban areas is not mutually exclusive to the utility's goal of providing reliable and affordable power. That the impact to individual trees within the city's tree canopy is kept to a minimum by virtue of vegetation maintenance activities in accordance with Arboricultural best practices as outlined by the American National Standard Institute (ANSI) and the International Society of Arboriculture (ISA).

(2) That communication with respect to vegetation management is maintained between all utility companies and the city.

(3) That communication with respect to vegetation management is enhanced between the utility companies, on the one hand, and the city, communities and owners or residents of any occupied public or private property ("occupied property") on the other hand.

(4) That maintained or landscaped, occupied public or private property (referred to hereinafter as "occupied maintained property") receive certain protections with respect to the removal of trees from those properties.

(5) That the provision of safe and reliable overhead utility service is promoted.

***Editor's note—**Ord. No. 15436, § 2, adopted March 4, 2019, set out provisions intended for use as 26-231. For purposes of classification, and at the editor's discretion, these provisions have been included as a new article IX as herein set out.

(6) That overhead utilities are protected while decreasing the potential for service interruptions.

(Ord. No. 15436, § 2, 3-4-2019)

Sec. 26-247. Duties of the city manager.

For the purposes of carrying out the provisions of sections 26-246 through 26-256 of this article, the city manager (either the duly appointed individual or a designee of the city manager shall be the responsible party to oversee and coordinate utility vegetation management activities on all trees and vegetation growing within the city limits and the planting, removal, care, maintenance, and protection thereof.

(Ord. No. 15436, § 2, 3-4-2019)

Sec. 26-248. Exceptions.

Although it is anticipated that the bulk of utility vegetation maintenance that will occur within the city will be of a routine nature that is governed by the provisions of sections 26-246 through 26-256 of this article, there are certain limited types of vegetation maintenance, as set forth below, hat are excepted from coverage under sections 26-246 through 26-256 of this article:

(a) Although sections 26-246 through 26-256 of this article apply to overhead electrical distribution lines, said sections do not apply to nor prohibit vegetation management activities pertaining to: (i) electrical transmission lines, or (ii) underground electrical distribution lines. The term "transmission lines" as it is used herein means electric utility lines energized at voltages 44,000 volts or greater and typically carried on steel poles or towers; however, some lower voltage transmission lines may be on wood pole structures.

(b) Sections 26-246 through 26-256 of this article do not apply to nor prohibit vegetation management activities pertaining to non-routine vegetation management which includes, without limitation, customer requested work (such as construction projects where new service lines are requested or projects where ,lines need to be relocated or extended), maintenance of overhead facilities (such as changing out transformers, other pole-mounted equipment or damaged or rotten poles), North Carolina Department of Transportation related work, addressing public safety incidents, or restoring the utility service following emergencies or any other unanticipated interruption or outage.

(c) Sections 26-246 through 26-256 of this article shall not apply to nor prohibit the vegetation maintenance of any tree or shrub on public or private property within the city limits, if such vegetation maintenance is done in order to repair or replace the same as a result of damage or deterioration as a result of accident, casualty, or natural elements such as wind, rain, ice, electrical storm, or the like.

(Ord. No. 15436, § 2, 3-4-2019)

Sec. 26-249. Legality of chapter or parts thereof.

Should any section, clause or provision of sections 26-246 through 26-256 of this article be declared by the courts to be invalid, the same shall not affect the validity of any other provision of sections 26-246 through 26-256 of this article.
(Ord. No. 15436, § 2, 3-4-2019)

Sec. 25-250. Violation of ordinance.

If utility does not comply with sections 26-246 through 26-256 of this article, the city manager is authorized to issue a stop work order to the utility to voluntarily resolve compliance concerns. Should the city manager and the utility fail to voluntarily resolve their compliance concerns, the parties reserve the right to seek appropriate relief before the North Carolina Utilities Commission or other appropriate authority authorized to oversee and regulate the vegetation management practices of public utilities and to resolve compliance concerns.
(Ord. No. 15436, § 2, 3-4-2019)

Sec. 26-251. Vegetation management planning.

(1) *Annual vegetation management plan.*

(a) Each utility shall submit an annual vegetative management plan to the city manager each year prior to the start of overhead utility vegetation maintenance activities within the city limits or upon any city-owned or controlled property, which vegetative management plan shall: (i) depict the general areas involved in the maintenance plan, and (ii) set forth a tentative vegetation maintenance schedule within the city's limits.

(b) If a utility desires to amend its vegetative management plan at any time during the year, that utility shall submit amendments to the city manager. Amendments to the vegetative management plan shall: (i) depict the general areas involved in the maintenance plan, and (ii) set forth the intended schedule for vegetation maintenance.

(c) Annual vegetative management plans and amendments to such plans submitted in accordance with subsections (a) and (b) above shall be deemed accepted by the city after the 10th business day after submission to the city by the utility unless the city has provided the applicable utility with a written objection to the plan or amendment prior to that time.

(2) *Operational plan.*

(a) If a utility desires to perform vegetation maintenance within the city limits or upon any city-owned or controlled property, then the utility company shall obtain the acceptance of an operational plan before commencing any such desired vegetation maintenance. After the submission of an annual vegetative management plan, each utility company shall submit an operational plan to the city manager depicting in specific detail the circuits, locations, and timing involved in the line maintenance 30

days prior to commencement of work. If the operational plan is timely submitted and sets forth the specific detail required in this sub-section, it shall be accepted following submission to the city manager, unless the city manager requests a meeting with the utility company for the purpose of reviewing the operational plan. If requested, this meeting shall occur no later than ten business days after submission of the operational plan. If such a meeting is held, then the operational plan shall be accepted within five business days of the meeting unless the city has provided the applicable utility with a written objection to the plan or amendment prior to that time. Nothing in this subsection prevents or prohibits the city manager and the utility company to mutually agree upon shorter periods of time for submission and acceptance on a case-by-case basis.

(b) If a utility company desires to amend its operational plan at any time during the year, the utility company shall submit an amended operational plan to the city depicting in specific detail the circuits, locations, and timing involved in the line maintenance 30 days prior to commencement of work. If the amended operational plan is timely submitted and sets forth specific detail required in this subsection, it shall be accepted following submission to the city manager, unless the city manager requests a meeting with the utility company for the purpose of reviewing the amended operational plan. If requested, this meeting shall occur no later than ten business days after submission of the amended operational plan. If such a meeting is held, then the operational plan shall be accepted within five business days of the meeting. Nothing in this subsection prevents or prohibits the city manager and the public utility company to mutually agree upon shorter periods of time for submission and acceptance on a case-by-case basis.

(Ord. No. 15436, § 2, 3-4-2019)

Sec. 26-252. Vegetation management communication.

(1) *Communication between city and utilities.* Each utility company will communicate with the city regarding vegetation maintenance as desired herein in connection with the annual vegetative maintenance plan, the operational plan, and the vegetation maintenance annual review.

(2) *Communication between utility and owners or residents of occupied property.*

(a) *Notification to owners or residents of occupied property.* Prior to the performance of vegetation maintenance by a utility on occupied property, the utility shall make reasonable efforts to provide prior notification of such activities to the owner or resident of occupied property. Such prior notification may include, but is not limited to, either of the following methods: (i) door hangers; and (ii) automated outbound telephone calling. Such prior notification shall be attempted at least five business days prior to the date that the vegetation maintenance is scheduled to commence, unless circumstances reasonably require a shorter time period.

(b) *Meeting with owners or residents of occupied property.* If an owner or resident of occupied property requests a meeting with a utility regarding vegetation maintenance that is to occur on said property, then the subject utility will make reasonable efforts to meet with the owner or resident of said property to discuss which trees will be impacted and which methods will be utilized by the utility in connection with the vegetation maintenance.

(c) *Provision of authority.* If an owner or resident of occupied property so requests, a utility subject to the jurisdiction of the North Carolina Utilities Commission shall provide a copy of written authority to perform vegetation maintenance on the property. Acceptable written authority may include, but not be limited to, pertinent service regulations on file with the North Carolina Utilities Commission.

(Ord. No. 15436, § 2, 3-4-2019)

Sec. 26-253. Vegetation management standards, requirements and prohibited practices.

(1) *Methods of pruning, trimming and cutting.*

(a) To the extent the utility files a vegetative management plan with the North Carolina Utilities Commission, then the vegetative management plan and any revisions to the vegetation management plan required by the North Carolina Utilities Commission shall constitute the standards to be adhered to by the utility when performing vegetation management activities within the city limits. The most recent utility vegetation management plan may be found by accessing the links below:

Utility's Vegetation Management Plan: http://ncuc.coinmerce.state.nc.us/cgi- bin/webview/senddoc.pgm?dispfmt=&itype=Q&authorization=&parm2=CA AAAA 16221B&parm3=000138905.

The utility shall provide the city manager with notice of any proposed revision to its vegetation management plan on file at the North Carolina Utilities Commission that would impact its distribution system at the same time it files such proposed revision with the North Carolina Utilities Commission.

(b) Regardless of whether a utility files a vegetative management plan with the North Carolina Utilities Commission, a utility will comply with the following in connection with any vegetation maintenance within the city limits:

1. Vegetation maintenance shall be done using the "ANSI A300 method" (part 1) BMP manual compiled by the International Society of Arboriculture, and subsequent revisions.
2. Topping and rounding over of trees is prohibited.
3. Climbing irons, spurs, or spikes are not to be used unless m accordance with the ANSI A300 standard.
4. The use of "tree paint", "wound dressing" and similar substances is not recommended.

5. Under normal circumstances, no more than one-fourth of a tree's live crown should be removed per year. If reduction of more than one-fourth or twenty-five percent (25%) of a tree's crown is needed for safety and reliability clearances, or if the tree is otherwise a danger tree, the tree should be evaluated by the utility company for removal. The term danger tree, as it is used in sections 26-246 through 26-256 of this agreement, means a tree that has the potential of adversely impacting utility service by falling into a utility line as a result of being cut, blown into, or otherwise falling, by virtue of its physical condition.

6. When virulent disease is prevalent, as per notification of the city manager, the utility will work with the city manager to develop a reasonable plan to properly prune or remove the subject tree. This plan will be designed to prevent the spread of disease as a result of line maintenance activities.

7. For the removal of a limb the triple cut method shall be used if there is a possibility that the limb may tear out from the trunk if a single cut is made.

8. Utility companies shall use natural target pruning which requires all cuts to be made at laterals (limb junctions). These lateral limbs should be no less than one-third the diameter of the limb removed at the point of removal. The term lateral limb, as used herein, means a subordinate limb originating from a main branch or stem.

9. Limbs shall be pruned back to an appropriate new leader, angled away from or around the lines. In no circumstances are stubs or abruptly pruned limbs to be left by the pruning. The term leader, as used herein, means a dominant upright stem which is usually the main trunk of a tree.

10. No obvious "hangers" shall be left in the trees after performing line maintenance activities. The term "hanger" as used herein, means a cut limb that is left in a tree after pruning operations are complete.

(2) Determinations by utility companies that a tree is to be removed; appeal process.

(a) If a utility company determines that a tree must be removed in its entirety from occupied maintained property within the city limits, then the utility or its representative shall make reasonable efforts to seek the consent of the owner or resident of the occupied maintained property. Reasonable efforts by the utility or its representative to seek the consent of the owner or resident of the occupied maintained property may include any of the following, without limitation: (i) a request for consent to remove a tree set forth on a door hanger; (ii) a request for consent to remove a tree made in a communication with said owner or resident; (iii) a request for consent to remove a tree set forth in a message left on the answering machine or voicemail of said owner or resident; (iv) a request for consent to remove a tree set forth in a letter served by mail to said owner or resident; (v) a request for consent to remove a tree made during a meeting with said owner or resident on the affected property; or (vi) a request for consent to remove a tree served by email to said owner or resident.

(b) Nothing in this subsection shall be construed to preclude, prevent, or impair any property owner, resident, or the city from pursuing its legal remedies before the North Carolina Utilities Commission or from requesting the assistance of the Public Staff of the North Carolina Utilities Commission formally or informally at any time pursuant to the procedures set forth by those agencies. Formal complaints pertaining to a utility's vegetation management practices may be filed with the North Carolina Utilities Commission, addressed to the Chief Clerk, North Carolina Utilities Commission, 4325 Mail Service Center, Raleigh, NC 27699-4325. Prior to filing a formal complaint with the North Carolina Utilities Commission, said party may request informal resolution of the issue through the involvement of the Consumer Services Division of the Public Staff of the North Carolina Utilities Commission.

(Ord. No. 15436, § 2, 3-4-2019)

Sec. 26-254. Supervision and oversight of contractors.

Each utility shall be responsible for oversight of its contractors in the performance of all work and will ensure that contractors adhere to agreement provisions and proper vegetation maintenance practices. As part of the operational plan, the utility will identify a certified arborist for each project who will be involved in the oversight of the crews and serve as a primary contact to the city manager and owner or resident of occupied property.

(Ord. No. 15436, § 2, 3-4-2019)

Sec. 26-255. Vegetation management clean-up.

(1) All debris from vegetation maintenance should be cleaned up each day, or within a reasonable amount of time, as described below, unless permission is given by the city manager or owner or resident of the occupied property to do otherwise. The clean-up required by this subsection includes the following:

(a) Impacted lawn areas shall be cleaned of debris.

(b) Impacted streets and sidewalks shall be cleaned of debris.

(c) Brush (having a diameter of 6 inches or less), branches and logs shall be dealt with as follows:

(1) In landscaped and maintained areas, brush should be chipped and removed from the site. When feasible and agreed to by the owner or resident of the occupied maintained property and the utility, chips may be blown into an area either within the right of way or adjacent to the right of way corridor. Larger wood, which belongs to the owner or resident of the occupied maintained property, should be cut into manageable lengths and stacked neatly at the base of the tree. In the case of wood or brush cut down from dead or dying trees, all wood regardless of diameter shall be stacked neatly at the base of the tree. There is no requirement that such brush be chipped due to safety concerns.

(2) In non-maintained areas, trees and limbs shall be cut, left on site, and windrowed along the edge of the right of way. At the utility's discretion, brush will either be chipped or mechanically processed when the site and terrain reasonably allows for it. If the terrain or ground conditions preclude the use of mechanized equipment, the debris may be manually windrowed and eitP.er loaded for off-site disposal or manually cut and left to bio-degrade naturally.

(Ord. No. 15436, § 2, 3-4-2019)

Sec. 26-256. Vegetation management annual review.

Once each calendar year, the city manager will meet with each utility in order to review the tree pruning, trimming and cutting that had been conducted and to discuss each of the following: (i) the challenges and problems experienced by the City of Durham; (ii) the challenges and problems experienced by the utility; (iii) the successes experienced by the City of Durham; (iv) the successes experienced by the utility; and (v) what the City of Durham and the utility can try to do differently in an effort to enhance future communication, execution of future tree pruning and opportunities to continue to promote the enhancement of the urban tree canopy.

(Ord. No. 15436, § 2, 3-4-2019)

Chapters 27—29

RESERVED

Chapter 30

FINANCE AND REVENUE*

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Article III. License Tax on Motor Vehicles

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***State law references—**Local government finance, G.S. 159-1 et seq.; authority to regulate and license businesses, trades and professions, G.S. 160A-194.

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ARTICLE I. IN GENERAL

Secs. 30-1—30-18. Reserved.

ARTICLE II. TAXES ON GROSS RECEIPTS*

DIVISION 1. GROSS RECEIPTS TAX ON SHORT-TERM LEASE OR RENTAL OF VEHICLES

Sec. 30-19. Definitions.

In addition to the common meanings of words, the following definitions shall be applicable herein:

Customer means any person that leases or rents a vehicle on a short-term lease or rental basis.

General Statutes refers to the North Carolina General Statutes and any reference to a particular section thereof shall include the same as may be from time to time amended, modified, supplemented, revised or superseded.

Gross receipts means the amount that is or would be reported as gross receipts on a business's state income tax return, or on the federal income tax return filed with the state income tax return if the state return does not separately state gross receipts for the most recently completed tax year. Gross receipts do not include the taxes collected pursuant to this chapter.

Lease or rental means a transfer, for consideration, of the use but not the ownership of property to another for a period of time.

Person means any individual, trustee, executor, other fiduciary, corporation, unincorporated association, partnership, sole proprietorship, company, firm, or other legal entity.

Short-term lease or rental means any lease or rental of a vehicle, whether made under a written or verbal contract or agreement, made to the same person for a period of less than 365 continuous days.

Tax collector refers to that individual appointed by the governing body pursuant to G.S. 105-349 and the provisions of section 22 of the Charter to collect taxes on behalf of the city and any other person authorized to carry out the duties and functions of such individual.

Taxpayer means any person liable for the taxes imposed by the ordinance from which this article was derived.

***Editor's note—**Ord. No. 13730, § 1, adopted October 23, 2008, redesignated the former article II, "Gross receipts tax on short-term lease or rental of vehicles," as article II, "Taxes on gross receipts" and added division 1, §§ 30-19—30-28 as set out herein.

State law reference—Authority to levy tax, G.S. 160A-215.1.

Vehicle means any of the following:

(1) A motor vehicle of the private passenger type, including a passenger van, minivan, or sport utility vehicle.

(2) A motor vehicle of the cargo type, including a cargo van, pickup truck, or truck with a gross vehicle weight of 26,000 pounds or less used predominantly in the transportation of property for other than commercial freight, and that does not require the operator to possess a commercial drivers license.

(3) A trailer or semitrailer with a gross vehicle weight of 6,000 pounds or less.

(Code 1982, App. G, § 1; Ord. No. 11993, § 1, 6-19-2000)

Sec. 30-20. Levy of tax.

A tax is hereby imposed and levied in an amount equal to 1.5 percent of the gross receipts derived from the short-term lease or rental of vehicles at retail to the general public. This tax on gross receipts is in addition to the privilege taxes authorized by G.S. 160A-211.

(Code 1982, App. G, § 2; Ord. No. 11993, § 1, 6-19-2000)

Sec. 30-21. Collection of the tax.

Every person engaged in the business of the short-term lease or rental of vehicles at retail to the general public shall collect at the time of the lease or rental the tax herein levied, place the tax so collected in a segregated account, and thereafter remit such tax to the tax collector in accordance with the provisions of this chapter. The taxpayer shall include a provision in each retail short-term lease or rental agreement stating that the percentage amount enacted by this chapter of the total lease or rental price, excluding sales tax, is being charged as a tax on gross receipts. The amount of the tax shall be stated separately from the lease or rental and shown separately on the taxpayer's records. The customer shall pay the tax to the taxpayer as trustee for and on account of the city. The taxpayer shall be liable for the collection thereof and for its payment to the tax collector and the taxpayer's failure to charge or to collect said tax from the customer shall not affect such liability.

(Code 1982, App. G, § 3; Ord. No. 11993, § 1, 6-19-2000)

Sec. 30-22. Report and payment.

Taxes levied under this chapter are due and payable when a return is required to be filed. Every taxpayer shall, within the time specified, submit a return to the tax collector on the form prescribed by the tax collector. A return must be signed by the taxpayer or the taxpayer's agent. Returns of taxpayers are due to the tax collector each month on or before the 15th day of the month following the month in which the tax accrues. As provided in G.S. 160A-208.1, a return shall not be considered a public record and information contained in a return may be disclosed only in accordance therewith.

(Code 1982, App. G, § 4; Ord. No. 11993, § 1, 6-19-2000)

Sec. 30-23. Taxpayer to keep records.

The taxpayer shall keep and preserve suitable records of the gross receipts received by such taxpayer in the conduct of business and such other books or accounts as may be necessary to determine the amount of the tax for which such taxpayer is liable under the provisions of this chapter. It shall be the duty of the taxpayer to keep and preserve for a period of three years all such records of gross receipts and other books and accounts described. All records, books and accounts herein described shall be open for examination at all reasonable hours during the day by the tax collector or his or her duly authorized agent.
(Code 1982, App. G, § 5; Ord. No. 11993, § 1, 6-19-2000)

Sec. 30-24. Tax collector to provide forms.

The tax collector shall design, prepare, print and make available to all taxpayers operating within the municipal boundaries of the city forms and instructions for filing returns to insure a full collection of and an accounting for taxes due. The failure of any taxpayer to obtain or receive forms shall not relieve such taxpayer from the payment of the tax at the time and in the manner provided.
(Code 1982, App. G, § 6; Ord. No. 11993, § 1, 6-19-2000)

Sec. 30-25. Situs.

The transaction giving rise to the tax herein levied shall be deemed to have occurred at the location of the entity from which the customer takes delivery of the vehicle.
(Code 1982, App. G, § 7; Ord. No. 11993, § 1, 6-19-2000)

Sec. 30-26. Penalties and remedies.

The provisions with respect to remedies and penalties applicable to Subchapter VIII (Local Government Sales and Use Tax) of Chapter 105 of the General Statues, as contained in G.S. 105-164.1 et seq. and G.S. 105-228.90 et seq., shall be applicable in like manner to the tax authorized to be levied and collected under this chapter, to the extent that the same are not inconsistent with the provisions hereof. The city council may exercise any power the Secretary of Revenue may exercise in collecting sales and use taxes.
(Code 1982, App. G, § 8; Ord. No. 11993, § 1, 6-19-2000)

Sec. 30-27. Administration.

In addition to the provisions herein, the levy and collection of the taxes herein imposed shall be otherwise administered in the same manner as the sales and use tax as provided in G.S. 105-164.1 et seq.
(Code 1982, App. G, § 9; Ord. No. 11993, § 1, 6-19-2000)

Sec. 30-28. Authority.

This article is enacted pursuant to the provisions of G.S. 160A-215.1.
(Code 1982, App. G, § 11; Ord. No. 11993, § 1, 6-19-2000)

Secs. 30-29, 30-30. Reserved.

DIVISION 2. GROSS RECEIPTS TAX ON SHORT-TERM LEASE OR RENTAL OF HEAVY EQUIPMENT

Sec. 30-31. Definitions.

Except where the context requires otherwise, the following definitions apply in this division:

Heavy equipment means earthmoving, construction, or industrial equipment that is mobile, weighs at least 1,500 pounds, and is either:

(1) A self-propelled vehicle that is not designed to be driven on a highway, or

(2) Industrial lift equipment, industrial material handling equipment, industrial electrical generation equipment, or a similar piece of industrial equipment.

The term heavy equipment includes an attachment for heavy equipment, regardless of the weight of the attachment.

Lease or rental means a transfer of possession or control of tangible personal property for a fixed or indeterminate term for consideration. The term does not include any of the following:

(1) A transfer of possession or control of property under a security agreement or deferred payment plan that requires the transfer of title upon completion of the required payments;

(2) A transfer of possession or control of property under an agreement that requires the transfer of title upon completion of required payments and payment of an option price that does not exceed the greater of $100.00 or one percent of the total required payments; or

(3) The providing of tangible personal property along with an operator for a fixed or indeterminate period of time if the operator is necessary for the equipment to perform as designed. For the purpose of this subsection (3), an operator must do more than maintain, inspect, or set up the tangible personal property.

Short-term lease or rental means any lease or rental of heavy equipment, whether made under a written or oral agreement, made to the same person for a period of less than 365 continuous days.

(Ord. No. 13730, § 1, 10-23-2008)

Sec. 30-32. Imposition of tax.

A tax is hereby imposed at the rate set by the city council on the gross receipts from the short-term lease or rental of heavy equipment by a person whose principal business is the short-term lease or rental of heavy equipment at retail, if the place of business from which the heavy equipment is delivered is located in the city. A person is not considered to be in the short-term lease or rental business if the majority of the person's lease and rental gross receipts is derived from leases and rentals to a person who is a related person under G.S.

105-163.010. Without limiting the preceding provisions of this section, the tax authorized by this section applies to gross receipts that are subject to tax under G.S. 105-164.4(a)(2). This tax is imposed pursuant to G.S. 160A-215.2. The ordinance adopting this division shall also be deemed a resolution for purposes of G.S. 160A-215.2(b).
(Ord. No. 13730, § 1, 10-23-2008)

Sec. 30-33. Return and payment.

Every person whose principal business is the short-term lease or rental of heavy equipment is required to remit the tax imposed by section 30-32 to the city finance officer. Such person shall complete, sign, and submit to the city finance officer the return designated for that purpose by the city finance officer. The return is due by the last day of the month following the end of the quarter. The tax is payable quarterly and is due by the last day of the month following the end of the quarter. The tax is intended to be added to the amount charged for the short-term lease or rental of heavy equipment and paid to the heavy equipment business by the person to whom the heavy equipment is leased or rented. Attention is directed to G.S. 160A-208.1, relating to disclosure of certain local tax information.
(Ord. No. 13730, § 1, 10-23-2008)

Sec. 30-34. Taxpayer to keep records.

All persons to whom this division applies shall keep and preserve suitable records of the gross receipts in the conduct of the short-term lease or rental of heavy equipment and such other books or accounts as may be necessary to determine the amount of the tax for which such person is liable under this division. It shall be the duty of such persons to keep and preserve for a period of three years all such records, books, and accounts. All such records, books, and accounts shall be open for examination at all reasonable hours during the day by the city finance officer or his or her duly authorized agent.
(Ord. No. 13730, § 1, 10-23-2008)

Sec. 30-35. Penalties and remedies.

The penalties and collection remedies that apply to the payment of sales and use taxes under G.S. ch. 105, art. 5 apply to the tax imposed by section 30-32, to the extent that said remedies are not inconsistent with the provisions of this division. The city finance officer has the same authority as the state secretary of revenue in imposing these penalties and remedies. This section is not in derogation of other penalties and collection remedies that may apply.
(Ord. No. 13730, § 1, 10-23-2008)

Secs. 30-36—30-59. Reserved.

ARTICLE III. LICENSE TAX ON MOTOR VEHICLES*

Sec. 30-60. License tax.

Every person residing in the city who owns a motor vehicle, which is registered in the state and operated and subject to property taxation in the city, and every person maintaining a place

*__State law references—__Authority, G.S. 160A-213; limitation, G.S. 20-97.

of business in the city that owns a motor vehicle, which is registered in the state and operated and subject to property taxation in the city, shall pay annually to the city collector of revenue, or the collector's agent, a license tax. The amount of such license tax shall be set by the city council. Said tax shall be due at the same time each year as property taxes are due on the motor vehicle pursuant to G.S. 105-271 et seq.
(Code 1964, § 12-219; Code 1982, § 20-180; Ord. No. 5778, § 1, 10-5-1981; Ord. No. 6136, § 1, 7-5-1983; Ord. No. 10054, §§ 1, 2, 2-7-1994; Ord. No. 13026, 11-1-2004)

Sec. 30-61. Exemptions.

The provisions of this article shall not apply to:

(1) Motor vehicles exempt from registration under the provisions of G.S. ch. 20.

(2) Motor vehicles owned as inventory or demonstrators by a motor vehicle dealer that are being operated on the public streets and highways for demonstration purposes only.

(Code 1964, § 12-221; Code 1982, § 20-182)

State law reference—Exemptions, G.S. 20-51.

Secs. 30-62—30-80. Reserved.

ARTICLE IV. STREETS, PARKS AND RECREATION AND OPEN SPACE LAND IMPACT FEES*

Sec. 30-81. Findings.

The city council hereby finds and declares that:

(1) An adequate system of streets, parks and recreation facilities, and open space land is vital and necessary to the health, safety, welfare, and prosperity of the city and its citizens. Substantial growth and new construction has taken place in recent years and is anticipated to continue in the future. This causes and imposes increased, substantial demands upon, and needs for, city facilities and infrastructure, including the system of streets, parks and recreation facilities, and open space land, that would not otherwise exist. Meeting these demands and needs is very costly. However, failure to do so will result in an inadequate system of streets, parks and recreation facilities, and open space land. This would make the city a less desirable community and be detrimental to the health, safety, welfare, and prosperity of the city and its citizens.

(2) To the extent that future growth and new construction in the city places demand upon, and creates needs for, the city's system of streets, parks and recreation, and open space land, the demands and needs should be met by shifting a portion of the capital costs of providing streets, parks and recreation facilities, and open space land from the public at large to the new construction which creates, in whole or in part, these demands and

*__Charter reference—__Capital facilities fees, § 115.1 et seq.
State law reference—Acquisition of open space, G.S. 160A-401 et seq.

needs. The impact fees prescribed by this article are equitable, do not impose an unfair or disproportionate burden on developers and new construction, and are in the best interests of the general welfare of the city and its citizens.

(Code 1982, § 25-1; Ord. No. 12965, § 1, 6-21-2004)

Sec. 30-82. Definitions.

The following definitions apply in this article. Where terms are not defined, the definitions in use in the UDO shall apply.

Accessory dwelling unit means a dwelling that exists as part of a principal dwelling or on the same lot as the principal dwelling and is subordinate to the principal dwelling.

Amusements and fairgrounds means commercial recreational activities, including but not limited to skateboard parks, water slides, roller coasters, Ferris wheels, and similar amusements.

Assisted living means residential settings that provide either routine or general protective oversight or assistance with activities necessary for independent living to mentally or physically limited persons.

Bowling alleys means a recreational facility that contains bowling lanes.

Business park means a development containing flex-type or incubator one- or two-story buildings served by a common roadway system. The space may include offices, retail and wholesale stores, restaurants, recreational areas, and warehousing, light industrial, or scientific research functions. The mix of uses must have a maximum of 30 percent office/commercial and a minimum of 70 percent industrial/warehousing.

Capital costs has the meaning set forth in G.S. 159-48(h). The term "purpose authorized," as used in G.S. 159-48(h), shall be deemed to refer to the purposes authorized by section 115.3 of the city Charter. The term "capital costs" includes payment of the principal and interest on any debt or other financial obligation incurred by the city with respect to a purpose authorized by section 115.3 of the city Charter.

College and university means four-year postsecondary institution which grants bachelor's degrees and the primary function of which is instruction. May or may not offer postgraduate degrees. Land uses include instructional and research buildings, student dormitories, and other related support facilities. Employee to student ratio is typically less than 0.5 (employee per student). This use category does not include buildings or uses that are separated from the main campus, or uses such as retail, hospital, or hotel/motel which are separately categorized in this article.

Continuing care retirement community (CCRC) means a residential setting that provides housing options for multiple stages of senior adult living. A CCRC can contain combinations of retirement community (attached and detached), assisted living, and skilled nursing care.

Developer means any person, firm, corporation, or other legal entity, including but not limited to political subdivisions of the state, who or which constructs or creates new construction.

Driving range means an outdoor facility containing driving tees for golfers to practice.

Dwelling unit means a single unit providing complete, independent living facilities for one or more persons, including permanent provisions for living, sleeping, eating, cooking, and sanitation. For purposes of this section, dwelling unit shall also include bedrooms separately rented in a facility, such as a dormitory or a fraternity house.

Expend means to spend or to encumber as required by G.S. ch. 159.

Feepayor means a person who pays any applicable impact fees.

Golf course means any facility related to the game of golf such as putting greens, 18-hole or nine-hole golf courses.

Group care facilities means an establishment or institution, public or private, where unrelated persons are housed and furnished with meals and supervision. This includes, without limitation, family care homes, group homes, orphanages, rest homes, and nursing homes of all types.

Health club means any facility that includes as the major focus of the facility, by way of example and not limitation, swimming pools, whirlpools, saunas, tennis, racquetball and handball courts, exercise classes, weightlifting and gymnastics equipment, locker rooms, and a restaurant/snack bar. A health club is distinguished from a recreational facility primarily by the emphasis on exercise and recreational facilities rather than open meeting spaces.

Hotel/motel means either:

(1) Any building containing six or more guests rooms intended to or designed to be used, or which are used, rented, or hired out to be occupied or which are occupied for sleeping purposes by guests; or

(2) A bed and breakfast establishment.

Impact fees means facilities fees on new construction as authorized by sections 115.1 et seq. of the City Charter.

Incidental use means a use which is subordinate to and serves a prevailing use.

Industrial/manufacturing/agricultural processing means establishments engaged in the processing of materials, fabricating, manufacturing, mixing, printing, assembly, cutting or repairing of articles, and products for handling, distribution of materials, articles or products. These are usually described as factories, mills, and plants. Materials processed by these establishments include agricultural, forestry, fishing, mining and quarrying as well as products of other manufacturing establishments.

Institutional means the use of a building or structure for the gathering of persons for religious or educational functions, for day care, for the provision of medical treatment and care, or for incarceration. Examples of this category are listed in the UDO.

Junior/Community college means two-year junior, community or technical colleges which award two-year degrees and the primary function of which is instruction. Land uses include instructional buildings and other related support facilities.

Major research university means a university which grants postgraduate degrees in multiple disciplines including science and/or engineering, and which provides a significant percentage of campus office and laboratory space to research programs in addition to regular student instruction. Land uses include instructional and research buildings, student dormitories, and related support facilities, including, but not limited to, dining halls and bookstores. Employee to student ratio is typically 0.5 (employee per student) or greater. This use category does not include buildings or uses that are separated from the main campus, or uses such as limited retail, hospital, or hotel/motel and clinics (except where the prevailing use is research) which are separately categorized in this article.

Manufactured home park means any portable, manufactured housing unit designed for transportation on its own chassis and for placement on a temporary or semi-permanent foundation where the unit is located adjacent to other manufactured homes in a development of manufactured homes. Manufactured homes that are located outside a development for manufactured homes will be treated as single-family homes for calculation of all impact fees.

Medical office means establishments where humans receive treatment of illnesses or pregnancy, or examinations by a doctor, dentist, optician, psychologist, or other similar medical professional on an outpatient basis.

Miniature golf course means any freestanding facility consisting of one or more putting courses.

Miniwarehousing means a building in which a storage unit or vault is rented for the storage of goods. Each unit is physically separated from other units and access is provided through an overhead door.

Multifamily means a structure which contains two or more dwelling units. Multifamily structures include, by way of illustration and not limitation:

(1) Duplexes;

(2) Condominiums;

(3) Townhouses;

(4) Apartments;

(5) Off-campus sorority or fraternity houses;

(6) Roominghouses and boardinghouses; and

(7) Off-campus dormitories.

Multiplex movie theater means a theater containing a minimum of ten screens.

New construction means any new development, construction or installation that results in any real property improvement or for which a building permit is required. This term shall include the installation of a manufactured home and factory built and modular housing. This term shall not include fences, poles, pipelines, transmission lines, or similar structures and improvements, or renovation and repairs, which do not generate the need for additional or expanded streets, parks and recreation facilities, or open space land upon completion of the new construction.

Nonresidential means the use of a building that is not a residential use. This includes the following:

(1) Office;

(2) Industrial;

(3) Retail;

(4) Institutional; and

(5) Recreational.

Office means an office building housing one or more occupants and is the location where the affairs of a business, commercial or industrial organization, professional person or firm are conducted.

Office park means a subdivision or planned unit development containing general office buildings and support services, including but not limited to banks, restaurants, and service stations, arranged in a park- or campus-like configuration, and served by a common roadway system.

Open space means the provision or acquisition of open space land in accordance with G.S. 160A-401 et seq.

Parks and recreation facilities means the provision of facilities, including without limitation land, athletic fields, parks, playgrounds, courts, recreation centers, shelters, stadiums, arenas, permanent and temporary stands, golf courses, swimming pools, wading pools, marinas, lighting, trail construction, and bikepaths.

Place of worship means a building primarily used by a nonprofit organization for organized religious services and supporting uses.

Racquet club means a facility that offers tennis, racquetball or handball courts as a primary attraction, possibly in conjunction with other minor recreation facilities.

Recreational means the use of a building or structure for the gathering of persons for civic, social, or recreational functions.

Recreational community center means a facility in which a substantial portion of the space is used for meeting or gathering areas. The facility may also include incidental offerings, by

way of example and not limitation, classes and clubs for adults and children, swimming pools, whirlpools, saunas, tennis, racquetball and handball courts, exercise classes, weightlifting and gymnastics equipment, locker rooms, and a restaurant/snack bar.

Residential means the use of a building as a dwelling unit.

Retail means establishments engaged in retail trade, or the sale, lease or repair of merchandise, including reproductions, to the general public for use or consumption. Included in this category are all retail uses, whether freestanding or part of a shopping center. Stock areas used to inventory, replenish or prepare merchandise sold to the public are retail.

Retirement community means any congregate care or life care facility which contains two or more dwelling units and are occupied by persons 62 and older. These facilities provide shared food preparation and dining areas, and common recreation, social and service facilities for the use of all residents.

Service zones means geographically defined subareas of the city established pursuant to section 115.1 et seq. of the city Charter. For parks and recreation and open space land impact fees, these areas are shown on a map labeled "Impact Fee Service Zones," attached to and made a part of this article as Attachment 2. For street impact fees, these areas are shown on a map labeled "Street Impact Fee Service Zone," attached to and made a part of this article as Attachment 3.

Single family means a single residential structure located on its own lot and not physically connected in any way to any other residences or buildings containing a nonresidential use. Single family includes detached dwellings including detached units approved as part of a townhouse, condominium or cluster development.

Skating rink means any facility used for ice skating-oriented or roller skating-oriented sports and entertainment activities.

Street refers to any major or minor thoroughfare as shown in the Durham Urban Area Thoroughfare Plan. The provision of a street includes, by way of illustration and not limitation, bridges, viaducts, causeways, overpasses, underpasses, and alleys; paving, grading, resurfacing and widening of the street; sidewalks, curbs and gutters, culverts and drains; traffic controls, signals, and markers; lighting; and grade crossings and the elimination thereof and grade separations.

Temporary structures means those structures or uses in place for three months or less or are those placed on a construction site during construction and which are used exclusively to shelter construction plans, personnel and telephones, but are not used as a temporary sales office or model home.

Theater/arena/stadium means facilities or structures (including indoor or outdoor places) that have fixed seating that are used for cinemas, stage performances, live sporting events, or other entertainment events. Amphitheaters and racetracks are included in the definition.

Trip means a single or one direction vehicle movement with origin or destination at the location of new construction.

Truck terminal means facilities where goods are transferred between trucks, or between trucks and railroads.

Warehousing/wholesale-distribution/transfer-storage facilities means an establishment or place of business with storage area of 500 or more square feet engaged in one or more of the following activities:

(1) Selling merchandise to retailers;

(2) Acting as agents or brokers in buying merchandise or retailers;

(3) Transferring or storing household goods or pets, commercial goods, agricultural products or any other item.

(Code 1982, § 25-2; Ord. No. 12965, § 1, 6-21-2004)

Sec. 30-83. Application and exemptions.

(a) Impact fees shall apply to all new construction in the applicable service zone for which a building permit is required, or for which a person has agreed to pay an impact fee for property being annexed by the city, except for the following circumstances:

(1) Governmental authorities which are exempted by law from paying the fees.

(2) Alterations, repairs, renovations, or expansion of a residential building where no additional residential units are created, and the use, as shown within the fee schedule, is not changed.

(3) Replacement of a building or structure or manufactured home with a new building or structure or manufactured home of the same dwelling type or nonresidential use. Nonresidential alterations, repairs, renovations, or replacement buildings or structures must be of the same size and use as the original building or structure and must meet the same parking, acreage, or other fee basis requirements.

(4) The construction of walls, fences, monuments, poles, pipelines, antennas, transmission lines, unmanned utility stations or substations, wells, water towers; off-street parking decks, garages, or lots with vehicular parking as the primary use.

(5) Accessory land uses listed in Section 5.4 of the UDO, including accessory buildings, structures and signs.

(6) Incidental water sports, play courts, or play fields, provided that there is no solicitation of off-site traffic or business and there is no separate charge or membership fee associated with the use of such facilities.

(7) Temporary structures or uses.

(8) Croplands, pasturelands, incidental sheds and barns.

(b) No certificate of compliance shall be issued for any activity requiring the payment of impact fees or for property which through a utility extension or other similar agreement is required to pay an impact fee until the impact fees hereby required have been paid in full.

Payment of such fees shall not relieve the developer from the obligations to comply with any other applicable city ordinances, regulations, and requirements, including but not limited to, the land development regulations of the UDO.

(Ord. No. 13592, § 1, 5-5-2008)

Editor's note—Ord. No. 13592, § 1, adopted May 5, 2008, amended § 30-83 in its entirety to read as herein set out. Formerly, § 30-83 pertained to impact fees imposed on new construction, and derived from the Code of 1982, § 25-3, and Ord. No. 12965, § 1, adopted June 21, 2004.

Sec. 30-84. Computation of fees.

(a) The inspections department shall determine and collect all impact fees. The fees to be collected shall be determined at the time of building permit application. Where properties are subject to a utility extension or similar agreement requiring payment of impact fees, the fee shall be calculated with reference to the date of the building permit application for each property included in such agreement, notwithstanding when such fee is paid. Before a certificate of compliance is issued for any part of a building, the impact fees for the entire structure must be paid in full. The inspections department shall have the authority to determine the appropriate use category, using the definitions in this article, the definitions in the UDO, similarities between proposed uses and defined uses, historic patterns of traffic generation in the Durham community, and reasonable professional discretion.

(b) The impact fees shall be as set by the city council, as found in the fee schedule of the city.

ALTERNATIVE STREET IMPACT FEE CALCULATION

In the event that a feepayor believes that the attributable costs for improving the system of streets to serve the feepayor's new construction is less than the street impact fee schedule, the feepayor may submit an alternative fee calculation to the department of public works based upon the following:

$$\text{Impact fee} = (\text{PHT}) \times (\text{DR}) \times (0.75 \times \text{Cost per trip end}^{1})$$

where

PHT = the number of peak hour trips of the new construction, determined using the peak hour (AM or PM) that generates the highest number of trips

DR = diversion ratio (1 - the percent of diverted trip). The diversion ratio is one for all uses except retail uses, and

COST = the capital costs of providing streets, less: credits for existing street deficiencies, through-trip discount, NCDOT Transportation Improvement Plan contributions, double payment credits, and time differential adjustments.[2] For purposes of this calculation, it is the policy of the city to only charge 75 percent of the actual cost per trip end.

The department of public works shall determine in its discretion whether the above calculations are reasonable, giving consideration, among other things, to generally accepted professional practices and methodology, appropriateness and applicability of submitted data

on peak hour trips, local conditions, and qualifications of professionals submitting the data. If the director of the department of public works determines that the calculations are reasonable, the director may authorize use of the alternative street impact fee for the new construction. The cost of performing the alternative fee calculation shall be borne by the feepayor.

[1]The cost per trip end for the south zone is $2,782.00.

The cost per trip end for the north service zone is $1,051.00.

The cost per trip end for the downtown service zone is $581.00.

[2]These credits and offsets to the calculation of costs are further explained in City of Durham Transportation Impact Fee Study Update, dated February 6, 2008.

(c) The inspections department shall calculate the amount of the applicable impact fees due for each structure by:

(1) Determining the applicable impact fee service zone;

(2) Verifying the type and number of residential dwelling units and the type of nonresidential new construction and square footage or other applicable measuring criteria for which each certificate of compliance is sought;

(3) Determining the applicable impact fee per unit or other measuring criteria set forth in the fee schedule or in subsection (b); and

(4) Multiplying the applicable impact fee per unit or other measuring criteria set forth in the fee schedule or in subsection (b) by:

a. The appropriate number of residential dwelling units (or, for hotel/motel, the number of rooms), or

b. The appropriate number of the measuring criteria for nonresidential new construction (e.g., parking spaces, square feet/1,000 acres, students).

(d) The inspections department shall take the following special cases into account when calculating the applicable impact fees.

(1) *Alterations, expansions, or redevelopments.* In the case of an alteration, expansion, renovation or redevelopment of an existing development, impact fees shall be levied based upon the net increase, if any, above that which the existing development would pay.

(2) *Change of use or the addition of other uses.* In the case of a change of use, such as residential to office, or the addition of other uses such as daycare to a church, which increase the fee rate or total fee above that which the existing use would pay, impact fees shall be paid based upon the net increase in the fee for the new use as compared to the previous use. There shall be no reimbursement of any impact fees due to a change of use which has a lower fee than the current use, nor shall there be any reimbursement if a use is terminated.

(3) *Mixed use developments and buildings.* In the case of mixed use developments, whether or not denominated "mixed use" in zoning, or a mixture of uses in buildings,

or multiple tenants or unit owners, impact fees shall be based on individual uses, or, if the inspections director determines that is unfeasible or impractical, on the prevailing use, as determined in the discretion of the inspections director in light of traffic generation of the different uses.

(4) *"Shell only" permits.* In the case of a "shell only" permit, the impact fee amounts may be based on the use or uses used to determine the amount of required off-street parking or as shown on the building permit when no off-street parking is required. If it is found during review of the "up-fit" permit that the uses differ from those uses for the shell, a determination shall be made as to whether or not an additional fee or refund is due. Before the first tenant up-fit certificate of compliance is issued, the impact fees for the entire structure must be paid in full.

(5) *Size of retail establishments.* In the case of retail uses which share common drives or parking areas and which are eligible for the off-street parking requirements of the "stores, retail high volume" use classification contained in the UDO, all such retail uses, including those located on separate outparcels, shall pay a street impact fee based on the appropriate square footage range of all the retail uses located within the shopping center even if this is a greater fee than for any single retail use or other combinations of retail uses.

(6) *Unscheduled activity.* If the type of new construction activity is not specified on the street impact fee schedule, the inspections department shall use the street impact fee applicable to the most nearly comparable type of land use on the street fee schedule. If the feepayor disagrees with the determination of the inspections department, then the feepayor shall use the alternate street impact fee calculation set forth in this chapter, with the cost per trip end as set forth in the alternative street impact fee calculation schedule.

(7) *Incidental use.* In the case where there is a part of a structure used that is accessory or customary to activity within the structure and that is used primarily by those occupying the structure, then the primary use of the structure shall prevail for the impact fee calculation.

(8) *Vacant parcel with proof of former structure.* In the case where a parcel is vacant but has had a structure on the parcel within five years of the effective date of this chapter [effective November 1, 1989], the inspections department shall consider the use of the former structure in calculating the impact fee upon proof of such structure as provided by the feepayor. Impact fees shall be paid upon the net increase in the fee for the new use as compared to the previous use. There shall be no reimbursement of any impact fees due to a change of use which has a lower fee than the former use.

(9) *Change in impact fee schedule.* In the event that the impact fee schedule is changed, the city will assess the impact fee based on the fee schedule in effect at the time the developer submits a completed building permit application in a form approvable by the city without further modification, including:

a. All necessary site plan submissions;

b. Architectural, electrical, mechanical and plumbing drawings; and

c. All other submissions to the city necessary to constitute a completed building permit application form.

There shall be no reimbursement or recalculation of any impact fees due to a lower fee. (Code 1982, § 25-4; Ord. No. 12965, § 1, 6-21-2004; Ord. No. 13592, § 1, 5-5-2008)

Sec. 30-85. Funds collected.

(a) *Creation of trust funds.* The impact fees collected by the city pursuant to this article shall be kept separate from other revenue of the city in a manner consistent with the Local Government Budget and Fiscal Control Act. There shall be nine trust funds, one established for each Impact fee type by service zone. All impact fee funds collected shall be properly identified by the appropriate trust account.

(b) *Limitation on expenditure of funds collected.*

(1) Funds from impact fee trust accounts shall be expended for no other purpose than capital costs for streets, parks and recreation facilities, or open space. Capital costs specifically include the administrative and legal costs associated with assessing and collecting impact fees. One percent of all impact fees collected shall be retained by the city-county inspections department as an administrative fee ("administrative fee") to reimburse the city-county inspections department's expenses in assessing and collecting impact fees. After collection and disbursement of the administrative fee to the city-county inspections department, the remainder of the impact fee shall be deposited in the appropriate trust fund account. No funds shall be used for the performance of periodic or routine maintenance activities.

(2) All funds shall be used exclusively within the service zone from which the funds were collected. An annual report shall be made to the city council showing where the fees have been collected and what projects have been funded with impact fee monies. The council shall consider this report and whether within each service zone the fees are being spent for the benefit of new construction within the service zone. If the council determines that this is not the case, then it shall adjust the city's capital improvements program and other projected capital expenditures to correct this condition.

(3) Funds shall be expended in the order in which they were collected. Funds not obligated for expenditure within ten years after their collection may be returned to the feepayor, subject to subsection (e) of this section.

(c) *Disbursal of funds.* Funds withdrawn from these trust accounts must be used solely in accordance with the provisions of this section. Prior to withdrawal, the city council, upon recommendation of the city manager, shall make a finding as to the connection between new construction and the proposed use of funds. The motion for each project wholly or partially financed with impact fees shall read:

"To find that (project name) is at least _____% necessitated by new construction and that up to _____% of the capital costs of that project may be paid by impact fees collected within the same service zone and collected for the same purpose."

(d) *Interest on funds.* Any funds on deposit not immediately necessary for expenditure shall be invested as allowed in G.S. 159-30 for other public monies. All income derived shall be deposited in the applicable trust account.

(e) *Return of fees.* If it is determined by the city that fee assessments collected pursuant to this article have not been spent or encumbered for expenditure by the end of the calendar quarter immediately following ten years from the date the fee was received, then said funds, minus the administrative fee, shall be eligible for refund to the then present owner in accordance with the following procedures:

(1) The then present owner must petition the city manager for the refund within one year following the end of the calendar quarter immediately following ten years from the date on which the fee was received by the city.

(2) The petition must be submitted to the city manager and must contain:

a. A notarized sworn statement that the petitioner is the current owner of the development site;

b. A copy of the dated receipt issued for payment of the fee;

c. A certified copy of the latest recorded deed;

d. A copy of the most recent ad valorem tax bill; and

e. Such other information which may be reasonably necessary to ascertain current ownership of the development site.

(3) Within 60 days from the date of receipt of petition for refund, the city manager shall advise the petitioner of the status of the fee requested for refund. For the purpose of determining whether fees have been spent or encumbered, the first money placed in a trust fund account shall be deemed to be the first money taken out of that account when withdrawals have been made.

(4) When the money requested is still in the trust fund account and has not been spent or encumbered by the end of the calendar quarter immediately following ten years from the date the fees where paid, the money, minus the administrative fee, shall be returned with interest at the rate of four percent per annum.

(Code 1982, § 25-5; Ord. No. 12965, § 1, 6-21-2004; Ord. No. 14120, 5-16-2011)

Sec. 30-86. Credits.

(a) *Street impact fees.* A feepayor shall be entitled to credits against street impact fees pursuant to this article for rights-of-way dedications, and street construction in excess of the direct need of the new development for streets that have been included in impact fee calculations. These include major and minor thoroughfares contained in the thoroughfare plan but do not include freeways, collectors, and local roads. The credits shall be determined by the department of public works as follows:

(1) Rights-of-way. Credits shall be granted for rights-of-way for eligible streets dedicated by the feepayor and accepted by the city in accordance with the following provisions:

a. Credits shall be based on a prorata share of the appraised land value of the parent parcel as determined by calculating 120 percent of the appraised value

according to the county tax administrator's office. Adjustments to the appraised value of property between property revaluations by the county will be made annually based on cumulative changes in the Consumer Price Index since the most recent revaluation.

b. Credits shall be granted for dedication of right-of-way in excess of the standard 60-foot right-of-way for any eligible street the new construction accesses; provided, however, that there shall be no credit for right-of-way dedications necessary to install turn lanes that directly serve the new construction.

c. If a right-of-way is dedicated and accepted for an eligible street to which the new construction has no direct access, then the entire right-of-way will be included in the credit.

(2) Street construction. Credits shall be granted for street construction for portions of eligible streets in excess of the direct need of the new construction as determined by the department of public works in accordance with the following provisions:

a. Credits shall be based on the feepayor's actual cost of construction, not to exceed the city's cost of construction according to recent bid sheet information.

b. Credits shall be granted for construction of the portion of the street in excess of the standard 38 feet face to face of curb for streets that are directly accessed by the new construction; provided, however, that there shall be no credit for construction of turn lanes that directly serve the new construction.

c. All improvements to streets not directly accessed by the new construction are eligible for credits.

d. Credits may be granted for future street construction when the developer provides security to the city through an instrument such as a letter of credit or performance bond acceptable to the city. Each such security instrument shall be in a form and amount satisfactory to the city. The amount of any such letter or performance bond shall include the estimated cost of improvements and shall allow for administrative costs, inflation, and other contingencies.

(3) The cost of land or capital improvements for public transportation-related projects or participation in employee ridesharing, bus subsidy, or other traffic demand management programs to the extent that such programs reduce the external vehicular trip generation of the land use as confirmed by studies and methodologies acceptable to the city. In the case of employee ridesharing, bus subsidy, or other traffic demand management programs, the applicant must first describe, to the satisfaction of the city, the extent of the program and expected usage by employees. The city will collect the entire street impact fees due from the feepayor and set aside an amount equal to the street impact fee credit in reserve. If the owner of the property demonstrates to the satisfaction of the city that the traffic demand management program results in the anticipated automobile trip reduction within three years of the issuance of the certificate of occupancy, then the feepayor will receive a rebate equal to the street

impact fee credit or a lesser amount based on actual trip reduction. The provisions for awarding credits for land or capital improvements shall follow those provided in this section for right-of-way and street construction where applicable.

(4) Any feepayor seeking a credit against a street impact fee prescribed by this article shall submit a petition to the department of public works. To be eligible for consideration, the petition must be submitted within 180 days after the date the impact fee is paid pursuant to section 30-84(a) and must contain where appropriate:

a. A notarized sworn statement that the petitioner is the current owner of the property;

b. A copy of any documentation on which the feepayor relies for the claim which may pertain to the issuance of such credits;

c. A copy of the latest recorded deed to the property;

d. A description of land or improvements for which the credit is requested;

e. For new construction involving more than one building, a plan for allocating credits among the various buildings proposed; and

f. Such other information which may be reasonably necessary to ascertain current ownership of the property or otherwise enable the department of public works to evaluate the feepayor's petition.

(5) Credits shall be applied against the payment of street impact fees for the property being developed and shall not be transferable to other property. Credits may not be used for payment of any other charges or other impact fees due to the city. Credits may be transferred to subsequent owners of the property, and shall be valid for a period of ten years after being granted by the city. Calculation of the ten-year period shall be tolled, or suspended, during the time period January 1, 2008 through December 31, 2010 for any credit that exists during this time period. A subsequent owner to whom credits have been transferred shall submit the following to the department of public works prior to any use of such credits:

a. A notarized sworn statement that the feepayor is the current owner of the property;

b. A copy of any documentation on which the feepayor relies in support of the claim for the transfer of credits;

c. A copy of the latest recorded deed to the property; and

d. Such other information which may be reasonably necessary to ascertain current ownership of the property or otherwise enable the department of public works to evaluate the feepayor's claim pertaining to the transfer and use of credits.

No payments or refunds shall be made by the city for credits granted to the feepayor which are not used within the ten-year period provided for in this subsection.

(6) Extensions to the time period for using credits may be granted by the city council, in incremental periods totaling not more than five years in exceptional circumstances

where the delay of city completion of a major thoroughfare that was shown on the city's capital improvement plan at the time the credits were granted has delayed the credit-holder's ability to utilize its credits during the ten-year time period. Any extension must be applied for in writing prior to the expiration of the ten-year period.

(b) *Parks and recreation impact fees.* A feepayor shall be entitled to credits against parks and recreation impact fees pursuant to this article for the costs of parks and recreation facilities dedicated by the feepayor and accepted by the city. The credits shall be determined by the parks and recreation department in accordance with the following provisions:

(1) Park land. Credits shall be granted for park land dedicated by the feepayor and accepted by the city. Credits shall be based on a prorata share of the appraised land value of the parent parcel as determined by calculating 120 percent of the appraised value according to the county tax administrator's office. Adjustments to the appraised value of property between property revaluations by the county will be made annually based on cumulative changes in the Consumer Price Index since the most recent revaluation.

(2) Other parks and recreation facilities. Credits shall be granted for other parks and recreation facilities dedicated by the feepayor and accepted by the city. Credits shall be based on the feepayor's cost of construction based on invoices, bids and other documentation supplied by the feepayor.

(3) Any feepayor seeking a credit against a parks and recreation impact fee assessed shall submit a petition to the parks and recreation department. To be eligible for consideration, the petition must be submitted within 180 days after the date the impact fee is paid pursuant to section 30-84(a) and must contain where appropriate:

a. A notarized sworn statement that the petitioner is the current owner of the property;

b. A copy of any documentation on which the feepayor relies for the claim which may pertain to the issuance of such credits;

c. A copy of the latest recorded deed to the property;

d. A description of land or improvements for which the credit is requested;

e. For new construction involving more than one building, a plan for allocating credits among the various buildings proposed; and

f. Such other information which may be reasonably necessary to ascertain current ownership of the property or otherwise enable the parks and recreation department to evaluate the feepayor's petition.

(4) Credits shall be applied against the payment of parks and recreation impact fees for the property being developed and shall not be transferable to other property. Credits may not be used for payment of any charges or other impact fees due to the city. Credits may be transferred to subsequent owners of the property, and shall be valid for a period of ten years after being granted by the city. Calculation of the ten-year period shall be

tolled, or suspended, during the time period January 1, 2008 through December 31, 2010 for any credit that exists during this time period. A subsequent owner to whom credits have been transferred shall submit the following to the city department of parks and recreation prior to any use of such credits:

a. A notarized sworn statement that the feepayor is the current owner of the property;

b. A copy of any documentation on which the feepayor relies in support of the claim for the transfer of credits;

c. A copy of the latest recorded deed to the property; and

d. Such other information which may be reasonably necessary to ascertain current ownership of the property or otherwise enable the city department of parks and recreation to evaluate the feepayor's claim pertaining to the transfer and use of credits. No payments or refunds shall be made by the city for credits granted to the feepayor which are not used within the ten-year period provided for in this subsection.

(c) *Open space impact fees.* A feepayor shall be entitled to credits against open space impact fees pursuant to this article for the costs of land dedicated by the feepayor and accepted by the city in excess of the 575 square feet per dwelling unit minimum standard contained in section 12.5.2B of the UDO. The credits shall be determined by the city department of parks and recreation in accordance with the following provisions:

(1) Such credits shall be based on a prorata share of the appraised land value of the parcel as determined by calculating 120 percent of the appraised value according to the county tax administrator's office. Adjustments to the appraised value of property between property revaluations by the county will be made annually based on cumulative changes in the Consumer Price Index since the most recent revaluation.

(2) Any feepayor seeking a credit against an open space impact fee assessed shall submit a petition to the city/county department of planning. To be eligible for consideration, the petition must be submitted within 180 days after the date the impact fee is paid pursuant to section 30-84(a) and must contain where appropriate:

a. A notarized sworn statement that the feepayor is the current owner of the property;

b. A copy of any documentation on which the developer relies for the claim which may pertain to the issuance of such credits;

c. A copy of the latest recorded deed;

d. A description of land or improvements for which the credit is requested;

e. For new construction involving more than one building, a plan for allocating credits among the various buildings proposed; and

f. Such other information which may be reasonably necessary to ascertain current ownership of the property or otherwise enable the department of parks and recreation to evaluate the feepayor's petition.

(3) Credits shall be applied against the payment of open space impact fees for the property being developed and shall not be transferable to other property. Credits may not be used for payment of any other charges or other impact fees due to the city. Credits may be transferred to subsequent owners of the property, and shall be valid for a period of ten years after being granted by the city. Calculation of the ten-year period shall be tolled, or suspended, during the time period January 1, 2008 through December 31, 2010 for any credit that exists during this time period. A subsequent owner to whom credits have been transferred shall submit the following to the city department of parks and recreation prior to any use of such credits:

a. A notarized sworn statement that the feepayor is the current owner of the property;

b. A copy of any documentation on which the feepayor relies in support of the claim for the transfer of credits;

c. A copy of the latest recorded deed to the property; and

d. Such other information which may be reasonably necessary to ascertain current ownership of the property or otherwise enable the city department of parks and recreation to evaluate the feepayor's claim pertaining to the transfer and use of credits.

No payments or refunds shall be made by the city for credits granted to the feepayor which are not used within the ten-year period provided for in this subsection.

(Code 1982, § 25-6; Ord. No. 12965, § 1, 6-21-2004; Ord. No. 13592, § 1, 5-5-2008; Ord. No. 14054, § 1, 9-20-2010)

Sec. 30-87. Appeals.

(a) After the amount of the impact fees or credits, if any, has been paid, a feepayor may, within ten days, file a written appeal contesting the amount of the impact fees or credits by requesting a conference with the city manager. If the feepayor, during the pendency of the appeal before the city, desires and is otherwise entitled to receive a certificate of compliance with respect to the new construction for which the amount of the impact fees or credits, if any, has been appealed, then the appealing party shall pay the impact fees with such payment clearly marked as paid under protest. The city manager shall notify the appealing party of the time and place for the conference. Failure of the appealing party, or representative thereof, to appear at the conference shall be considered an abandonment and withdrawal of the appeal.

(b) At the conference, the city manager shall consider any statements and evidence presented by the appealing party, and any information provided by the applicable city departments. The city manager shall then render a decision amending or confirming the amount of impact fees and credits, if any. The city manager shall make a record of the conference and of the decision rendered.

(c) Where the appealing party believes that the decision of the city manager is not in accord with the provisions of this article, the appealing party may appeal such decision to the city council by notifying the city manager in writing within ten days of the date of the decision.

(d) The city manager shall notify the appealing party by registered or certified mail, return receipt requested, at least ten days in advance of the date and time of the council meeting at which the appeal will be heard. Failure of the appealing party, or representative thereof, to appear at the council meeting shall be considered an abandonment and withdrawal of the appeal.

(e) At the hearing before the city council, the council shall hear from the appealing party and other interested persons, the city manager, and applicable city departments. The council shall review the evidence presented, and enter a final decision amending or confirming the amount of impact fees and credits, if any. The decision shall include findings of fact and conclusions explaining the basis for the decision. The decision shall be delivered to the appealing party by personal service, or by registered or certified mail, return receipt requested.

(f) Every such decision of the city council shall be subject to review by the superior court by proceedings in the nature of certiorari. Any petition for review shall be filed with the clerk of superior court within 30 days after the decision of the city council is delivered to the appealing party.
(Code 1982, § 25-7; Ord. No. 12965, § 1, 6-21-2004)

Sec. 30-88. Review.

The city shall conduct a periodic review of the impact fee system in addition to the report prescribed by section 30-85(b)(2). This review may include, by way of illustration and not limitation:

(1) New construction occurring during the previous year;

(2) City street, parks and recreation facilities and open space provided or underway during the prior year to serve new construction;

(3) Changing needs for such city systems;

(4) Revised cost estimates for such city systems;

(5) Administration of the impact fee ordinance; and

(6) Other such factors as may be relevant.
(Code 1982, § 25-8; Ord. No. 12965, § 1, 6-21-2004)

Secs. 30-89—30-119. Reserved.

ARTICLE V. PRIVILEGE LICENSE TAXES*

DIVISION 1. GENERALLY

Sec. 30-120. Definitions.

When used in this article (unless the context clearly requires a different meaning):

Business includes each trade, occupation, profession, business, and franchise taxed under this article.

Conducts business means the engaging by a person in one act of any business taxed under this article.

Conducts business in or within the city means if the person maintains a business location within the city; or, personally or through agents, solicits business within the city limits, or picks up or delivers goods or delivers services within the city limits.

Person includes any individual, trustee, executor, other fiduciary, corporation, unincorporated association, partnership, sole proprietorship, company, firm, or other legal entity.

Seasonal or seasonal in nature means conducted for profit six months out of the year or less.
(Code 1982, App. A, § 1; Ord. No. 9167, 5-31-1990)

Sec. 30-121. Construction of this article.

This article is enacted for revenue purposes only. Therefore, it should be construed to require payment of the maximum tax permitted under its terms. In addition, issuance of a license pursuant to this article does not excuse a licensee from compliance with any other applicable ordinance or statute. This article does not prevent the city from imposing license taxes on additional businesses, from increasing or decreasing the amount of any license tax, or from regulating any business taxed.
(Code 1982, App. A, § 2; Ord. No. 9167, 5-31-1990)

Secs. 30-122—30-140. Reserved.

DIVISION 2. LEVY

Sec. 30-141. Levy of tax.

An annual privilege license tax is hereby levied on each business conducted within the city listed in divisions 5 and 6, in the amounts set forth in those divisions. When business is

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***State law reference—**Authority to levy privilege license taxes on trades, occupations, professions and businesses, G.S. 160A-211.

conducted or privilege exercised within one mile of the corporate limits of the city, the same tax shall be imposed and collected as if the business conducted or the privilege exercised were inside the corporate limits of the city.
(Code 1982, App. A, § 3; Ord. No. 9167, 5-31-1990)

Sec. 30-142. Who must pay tax.

Each person who conducts business within the city is subject to this article.
(Code 1982, App. A, § 4; Ord. No. 9167, 5-31-1990)

Sec. 30-143. Period of license; due date.

(a) *Annual licenses.* Beer and wine licenses are good for the 12-month period beginning May 1 and ending April 30. The beer and wine license tax is due May of each year. All other licenses issued pursuant to this article are good for the 12-month period beginning July 1 and ending June 30. The tax on these licenses is due July 1 of each year. If, however, a person begins a business after May 1 or July 1, whichever is the applicable due date, the tax for that year is due before the business is begun.

(b) *Licenses for periods shorter than one year.* If the section of this article levying the privilege license tax applicable to a particular business so provides, a license may be issued for a period of one day, one week, or some comparable period of less than a full license year. A person may not commence a business conducted within the city and taxed under such a provision until the privilege license tax due is paid, and may not continue such a business beyond the period for which the license is issued.
(Code 1982, App. A, § 5; Ord. No. 9167, 5-31-1990)

Sec. 30-144. Proration of tax.

If a business is begun after December 31 and before July 1, the amount of tax due is one-half the amount otherwise due. If a business is seasonal in nature, and if the amount of tax is not based on gross receipts, the amount of tax due is one-half the amount otherwise due.
(Code 1982, App. A, § 6; Ord. No. 9167, 5-31-1990)

Sec. 30-145. Refunds.

If for any reason a licensee discontinues business during the license year, he or she is not entitled to a refund.
(Code 1982, App. A, § 7; Ord. No. 9167, 5-31-1990)

Sec. 30-146. Separate businesses.

A separate license is required and a separate privilege license tax must be paid for each place of business unless two or more places of business under common ownership, each conducting a business subject to the same tax under this article, are contiguous to each other, communicate directly with and open into each other, and are operated as a unit. In addition,

a separate privilege license tax must be paid for each business taxable under this article conducted by the taxpayer at any one location; however, the tax collector may issue a single license for all taxable businesses conducted at one location by a single taxpayer.
(Code 1982, App. A, § 8; Ord. No. 9167, 5-31-1990)

Sec. 30-147. Computation of tax based on gross receipts.

(a) When the amount to be paid for a license depends upon the amount of the gross sales or receipts of the business or enterprise, the person applying for the license must render to the tax collector a statement of the preceding calendar year's gross sales or receipts of each store or place of business for which a license application is being made. The tax collector may also require any other proof of such gross sales as he or she may deem necessary.

(b) If a business has not been in operation long enough for the information required in subsection (a) of this section to be available, the tax collector shall estimate gross receipts for the business, based on gross receipts of comparable businesses or any other information that the tax collector considers useful. On or before July 30 immediately after each license year, each licensee for whom the tax paid in the license year just concluded was based on estimated gross receipts shall submit to the tax collector a sworn final report showing the amount of gross receipts for the license year. If the amount shown is more than estimated gross receipts, the licensee shall pay the amount of additional tax that would have been due had the estimate been accurate. If the amount shown is less than estimated gross receipts, the city shall refund to the licensee the difference between the actual tax paid and the amount of tax that would have been due had the estimate been accurate.
(Code 1982, App. A, § 9; Ord. No. 9167, 5-31-1990)

Sec. 30-148. Exemptions.

(a) *Generally.* Except as otherwise provided in this section or by state law, no person is exempt from the payment of a privilege license tax levied by this article.

(b) *Charitable organizations.* A person who operates a business for a religious, educational, civic, patriotic, charitable, or fraternal purpose, when the entire gross income of the business is used for such a purpose, is exempt from paying any privilege license tax levied by this article.

(c) *Blind persons and members of the armed forces and merchant marine.* Blind persons and persons who serve in the United States Armed Forces or the merchant marine are exempt from paying any privilege license tax levied by this article to the extent provided by G.S. 105-249.1.

(d) *Must obtain license.* A person exempt from paying a license tax levied by this article shall nevertheless obtain a license from the tax collector. The license shall state that the licensee is exempt from paying the privilege license tax.
(Code 1982, App. A, § 10; Ord. No. 9167, 5-31-1990)

Secs. 30-149—30-179. Reserved.

DIVISION 3. LICENSES

Sec. 30-180. Application.

A person shall apply to the tax collector for each license required by this article no less than 30 days before the date the tax is due. The application, which shall be submitted on forms provided by the tax collector, shall contain:

(1) The name of the applicant and whether he or she or it is an individual, a partnership, a corporation, or some other entity;

(2) The nature of the business;

(3) Where the business is conducted;

(4) An address to which notices and statements required by this article may be mailed;

(5) Whether the business is one regulated by a state occupational licensing board subject to G.S. ch. 93B, and if so, the serial number of the state license the applicant currently holds; and

(6) Any other information the tax collector determines to be necessary to compute the amount of tax due.

(Code 1982, App. A, § 11; Ord. No. 9167, 5-31-1990)

Sec. 30-181. Reasons for refusal or revocation of a license.

The tax collector shall refuse to issue a license or shall revoke a license for either of the following reasons:

(1) The applicant misrepresents a fact relevant to the amount of tax due or his or her qualifications for a license; or

(2) The applicant refuses to provide information necessary to compute the amount of tax due.

(Code 1982, App. A, § 12; Ord. No. 9167, 5-31-1990)

Sec. 30-182. Unqualified applicants; right to a conference.

(a) If, after receipt of the completed application, the tax collector believes that a reason exists for refusing a license under section 30-181, the tax collector shall refuse to accept payment of the tax and shall not issue the license. At the applicant's request, the tax collector shall, pursuant to section 30-192, give the applicant a written statement of the reason for refusing the license. The applicant may, within ten days after the day receiving the statement, request in writing a conference to discuss the refusal. The request shall specify why the application for a license should not be refused. The tax collector shall hold a conference within ten days after receipt of the request.

(b) If the tax collector refuses to issue a license, the applicant may reapply for a license at any time thereafter. If the reason for which the application was refused no longer exists, and if no other reason exists for refusing to issue a license, the tax collector shall issue the license pursuant to section 30-183.
(Code 1982, App. A, § 13; Ord. No. 9167, 5-31-1990)

Sec. 30-183. Tax collector to issue license; payment of tax a prerequisite.

If, after receipt of the completed application, the tax collector believes that no reason exists for refusal of a license under section 30-181, the tax collector shall determine the amount of tax due and notify the applicant of that amount. The tax collector shall not issue a license until the tax is paid.
(Code 1982, App. A, § 14; Ord. No. 9167, 5-31-1990)

Sec. 30-184. Amount of tax disputed.

If the applicant disputes the amount the tax collector determines to be due, he or she may either refuse to pay and request in writing a conference with the tax collector to discuss the determination, or pay the amount and request in writing a conference to discuss his or her right to a refund. If a conference is requested, the tax collector shall hold a conference within ten days after receiving the request.
(Code 1982, App. A, § 15; Ord. No. 9167, 5-31-1990)

Sec. 30-185. Revocation.

(a) The tax collector shall revoke a license if a reason exists to revoke it as set forth in section 30-181. The licensee may, within ten days after the day on which notice is served, request in writing a conference with the tax collector. The request shall specify the reasons why the license should not be revoked. The tax collector shall arrange the conference within a reasonable time.

(b) If the licensee fails to request a conference within ten days after the day on which notice is served, the tax collector shall revoke the license. If the licensee requests a conference, the tax collector may not revoke the license until after the conference.

(c) If the tax collector revokes a license, the former licensee may apply for a new license at any time thereafter. If the reason for which the license was revoked no longer exists, and if no other reason exists for refusing to issue a license, the tax collector shall issue the license pursuant to section 30-183.
(Code 1982, App. A, § 16; Ord. No. 9167, 5-31-1990)

Sec. 30-186. Form and contents of license.

A license shall show the name of the person licensed, the place where the business is conducted (if it is to be conducted at one place), the nature of business licensed, the period for

which the license is issued, and the amount of tax paid. In addition, if a machine is licensed, the license shall show the serial number of the machine. The tax collector shall keep a copy of each license issued.
(Code 1982, App. A, § 17; Ord. No. 9167, 5-31-1990)

Sec. 30-187. Assignments.

A license may be assigned if:

(1) A business licensed under this article and carried on at a fixed place is sold as a unit to any person; and

(2) The purchaser is to carry on the same business at the same place. Such a change shall be reported to the tax collector pursuant to section 30-188. Otherwise, each license issued under this article is a personal privilege and is not assignable.
(Code 1982, App. A, § 18; Ord. No. 9167, 5-31-1990)

Sec. 30-188. Changes in the business conducted by licensee during the tax year.

A licensee or the licensee's assignee shall report a change in the information contained in the license application to the tax collector within ten days after the change occurs. If information shown on the license itself is affected thereby, the licensee or assignee shall surrender the license to the tax collector when reporting the change.

(1) *Changes affecting the amount of tax due.* If there are no reasons for revoking the license under section 30-181 and the change results in the imposition of a separate or additional tax, the tax collector shall reissue a license reflecting the change upon payment of the separate and additional tax.

(2) *Changes not affecting the amount of tax due.* If there are no reasons for revoking the license under section 30-181 and the change does not result in an imposition of a separate or additional tax, the tax collector shall reissue a license reflecting the change upon payment of a fee in the amount set by the city council.

(3) *Change requiring refusal of a license.* If there is reason for revoking the license under section 30-181, the tax collector shall refuse to reissue a license and shall instead begin proceedings to revoke the license pursuant to section 30-185.
(Code 1982, App. A, § 19; Ord. No. 9167, 5-31-1990)

Sec. 30-189. Tax collector to furnish duplicates.

Upon satisfactory proof that a license has been lost or destroyed, the tax collector shall furnish a duplicate for a fee in an amount authorized or set by the city council.
(Code 1982, App. A, § 20; Ord. No. 9167, 5-31-1990; Ord. No. 12971, § 7, 6-21-2004)

Sec. 30-190. Letter of verification.

The city may issue a letter of verification to a business that requests written verification that it previously had a privilege license in a prior tax year. The fee for such verification is in the amount set by the city council.
(Code 1982, App. A, § 20.1; Ord. No. 9167, 5-31-1990; Ord. No. 12971, § 8, 6-21-2004)

Sec. 30-191. Record of conferences.

The tax collector shall maintain a record of each conference held pursuant to this article. The record shall contain the applicant's or licensee's name, the date of the conference, and a brief statement of the issues discussed and the result reached.
(Code 1982, App. A, § 21; Ord. No. 9167, 5-31-1990)

Sec. 30-192. Providing notice to an applicant or licensee.

Whenever this article requires the tax collector to give a written statement or notice to an applicant or a licensee, he or she may do so in any one of three ways:

(1) By personally delivering the statement or notice to the applicant or licensee;

(2) By mailing the statement or notice by registered or certified mail, return receipt requested, to the address specified for that purpose in the license application; or

(3) By causing the statement or notice to be served on the applicant or licensee in accordance with the procedures for service of process under Rule 4, North Carolina Rules of Civil Procedure.

(Code 1982, App. A, § 22; Ord. No. 9167, 5-31-1990)

Secs. 30-193—30-222. Reserved.

DIVISION 4. ENFORCEMENT AND COLLECTION

Sec. 30-223. Duty to determine whether tax due.

Each person has the duty to determine whether the business he or she conducts is taxed under this article, and if so, whether that tax has been paid for the current year.
(Code 1982, App. A, § 23; Ord. No. 9167, 5-31-1990)

Sec. 30-224. Tax collector to investigate.

If the tax collector has reason to believe that a person is conducting a business in the city in violation of this article, the tax collector shall conduct an investigation to determine the person's tax liability.
(Code 1982, App. A, § 24; Ord. No. 9167, 5-31-1990)

Sec. 30-225. Duty to keep books.

Each person who conducts a business taxed under this article shall keep all records and books necessary to compute tax liability. If a person fails to keep books and records as required, the tax collector shall make a determination of that person's tax liability from the information available to the tax collector.
(Code 1982, App. A, § 25; Ord. No. 9167, 5-31-1990)

Sec. 30-226. Duty to permit inspection.

Each person who conducts business in the city shall permit the tax collector to inspect his or her business premises during normal business hours to determine the nature of the business conducted there, and to examine the business books and records to determine the nature and amount of business transacted.
(Code 1982, App. A, § 26; Ord. No. 9167, 5-31-1990; Ord. No. 13574, Pt. 1, 4-7-2008)

Sec. 30-227. Duty to post license.

A licensee shall post his or her license conspicuously in the place of business licensed. If he or she has no regular place of business, the license must be kept where it may be inspected at all times by the proper city officials. If a machine is licensed, the license shall be affixed to the machine.
(Code 1982, App. A, § 27; Ord. No. 9167, 5-31-1990)

Sec. 30-228. Notice of deficiency.

If the tax collector determines that a person has not paid the full amount of tax due under this article, either for the current license year or for a prior license year, the tax collector shall give the person written notice of the deficiency, pursuant to section 30-192. The notice of deficiency shall specify: The total of tax due; the section of this article upon which the tax is based; the amount of tax paid; and interest due; the balance owned; the manner and time period in which the person may respond to the notice of the deficiency; and the consequences to the person for failure to respond as specified.
(Code 1982, App. A, § 28; Ord. No. 9167, 5-31-1990)

Sec. 30-229. Request for a conference.

The person may, within ten days after the day on which the notice is served, request in writing a conference with the tax collector. The request shall specify the person's objections to the notice of deficiency. By way of illustration, but not limitation, a person who receives notice of deficiency may object on the following grounds:

(1) That the tax due has already been paid;

(2) That the tax collector miscalculated the amount of tax due;

(3) That the tax collector based the calculation on incorrect or insufficient information concerning either the nature or amount of business conducted; or

(4) That the tax collector based the determination on an erroneous interpretation of a section of this article that established a category of business subject to a particular tax.

(Code 1982, App. A, § 29; Ord. No. 9167, 5-31-1990)

Sec. 30-230. Deficiency to become final.

If the taxpayer fails to request a conference under section 30-229, the deficiency becomes final and the tax collector shall proceed to collect the deficiency.

(Code 1982, App. A, § 30; Ord. No. 9167, 5-31-1990)

Sec. 30-231. Conference held.

If the taxpayer requests a conference, the tax collector shall not proceed to collect the deficiency until he or she hears the taxpayer's objections and determines that the deficiency should become final.

(Code 1982, App. A, § 31; Ord. No. 9167, 5-31-1990)

Sec. 30-232. Collection of deficiency.

(a) The tax collector may use any of the following methods to collect a deficiency:

(1) Criminal prosecution in accordance with section 30-233(a);

(2) Equitable relief in accordance with section 30-233(b);

(3) Levy and sale and attachment and garnishment, in accordance with G.S. 153A-147; or

(4) Levy and sale of real and personal property of the taxpayer within the city in accordance with the provisions of G.S. 105-109.

(b) Any person who commences or continues to conduct business taxed under this article without payment of the privilege license tax is liable for the additional tax of five percent each 30 days, imposed by G.S. 105-109.

(Code 1982, App. A, § 32; Ord. No. 9167, 5-31-1990)

Sec. 30-233. Enforcement of article.

The city may seek an injunction against any person conducting a business in violation of this article.

(Code 1982, App. A, § 33; Ord. No. 9167, 5-31-1990; Ord. No. 15982, § 70, 8-1-2022)

Secs. 30-234—30-259. Reserved.

DIVISION 5. PRIVILEGE LICENSE TAXES RESTRICTED BY STATE REVENUE LAWS (IDENTICAL TO COUNTY PROVISIONS)

Sec. 30-260. Amusements—Circuses, menageries, wild west, dog and/or pony shows, etc.

(a) Every person engaged in the business of exhibiting performances, such as a circus, menagerie, wild west show, dog and/or pony show, or any other show, exhibition or performance similar thereto, not otherwise taxed in other sections of this article, shall apply for and obtain from the tax collector a city license for the privilege of engaging in such business, and shall pay for such license a tax of $25.00.

(b) Every such person, firm, or corporation by whom or which any such exhibition or performance described in this section is given in this city, or within five miles thereof, during the week of the annual county agricultural fair, shall pay a city license tax of $500.00 for each exhibition or performance in addition to the license tax first levied in this section, to be assessed and collected by the tax collector or the tax collector's duly authorized deputy.

(c) The provisions of this section, or any other section of this article, shall not be construed to allow without the payment of the tax imposed in the section, any exhibit or performance described in this section for charitable, benevolent, educational, or any other purpose whatsoever, by any person, firm, or corporation who is engaged in giving such exhibitions or performances, no matter what terms of contract may be entered into or under what auspices such exhibitions or performances are given. It being the intent and purpose of this section that every person, firm, or corporation who or which is engaged in the business of giving such exhibitions or performances, whether a part or all of the proceeds are for charitable, benevolent, educational, or other purposes or not, shall pay the city license tax imposed in this section.

(d) Upon all performances taxable under this section there is levied, in addition to the license tax levied in this section, a tax upon the gross receipts of such business at the rate of 1½ percent. The license tax herein levied shall be treated as an advance payment of the tax upon gross receipts herein levied, and the license tax shall be applied as a credit upon or advance payment of the gross receipts tax.

(Code 1982, App. A, § 34; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-38.

Sec. 30-261. Same—Certain exhibitions, performances, and entertainments exempt from license tax.

All exhibitions, performances, and entertainments, except as in this article expressly mentioned as not exempt, produced by local talent exclusively, and for the benefit of religious, charitable, benevolent or educational purposes, and where no compensation is paid to such local talent, shall be exempt from the city license tax.

(Code 1982, App. A, § 35; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-40.

Sec. 30-262. Pawnbrokers.

Every person engaged in and conducting the business of lending or advancing money or other things of value for a profit, and taking as a pledge for such loan specific articles of personal property, to be forfeited if payment is not made within a definite time, shall be deemed a pawnbroker and shall apply for and obtain from the tax collector a city license for the privilege of transacting such business and shall pay for such license an annual tax of $275.00. (Code 1982, App. A, § 36; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-50.

Sec. 30-263. Peddlers, itinerant merchants and specialty market operators.

(a) *Peddler.* Every person engaged in business or employed as a peddler in the city shall obtain from the tax collector a license for the privilege of peddling goods and shall pay a tax for the license in the amount specified in this section. A "peddler" is a person who travels from place to place with an inventory of goods, who sells the goods at retail or offers the goods for sale at retail and who delivers the identical goods carried with him or her. A peddler of only farm products shall pay a tax of $25.00. A peddler who travels from place to place on foot, selling goods other than or in addition to farm products shall pay a tax of $10.00. A peddler who travels from place to place by vehicle, selling goods other than or in addition to farm products, shall pay a tax of $25.00.

(b) *Itinerant merchant.* Every person engaged in business as an itinerant merchant in the city shall apply for and obtain a license from the tax collector for the privilege of engaging in business and shall pay a tax for the license of $100.00. An "itinerant merchant" is a merchant, other than a merchant with an established retail store in the city, who transports an inventory of goods to a building, vacant lot, or other location in the city and who, at that location, displays the goods for sale and sells the goods at retail or offers the goods for sale at retail. An itinerant merchant's license is not required to engage in the business of a specialty market vendor at a location licensed as a specialty market under subsection (c) of this section or at a specialty market that is exempt from the license requirement under subsection (c) of this section because the specialty market operator is the state or a unit of local government. A merchant who sells goods, other than farm products, for less than six consecutive months is considered an itinerant merchant unless he or she stopped selling goods because of his or her death or disablement, the insolvency of the business, or the destruction of the business's inventory by fire or other catastrophe.

(c) *Specialty market operator.* Every person, other than the state or a unit of local government, engaged in business as a specialty market operator in the city shall apply for and obtain a license from the tax collector for the privilege of engaging in business and shall pay a tax for the license of $200.00. A "specialty market operator" is a person, other than the state or a unit of a local government, who rents space, at a location other than a permanent retail store to others for the purpose of selling goods at retail or offering goods for sale at retail.

(d) *Exemptions.* This section does not apply to the following:

(1) A peddler or itinerant merchant:

a. Who sells farm or nursery products which he or she produced;

b. Who sells crafts or goods he or she made, or sells his or her own household personal property;

c. Who is a nonprofit charitable, educational, religious, scientific, or civic organization;

d. Who sells printed material, wood for fuel, ice, seafood, meat, poultry, livestock, eggs, dairy products, bread, cakes, or pies; or

e. Who is an authorized automobile dealer licensed pursuant to G.S. ch. 20.

(2) A peddler who maintains a fixed permanent location from which at least 90 percent of his or her sales are made, but who sells some goods in the city of his or her business's fixed location by peddling.

(3) An itinerant merchant:

a. Who locates at a farmer's market;

b. Who is part of the State Fair or an agricultural fair which is licensed by the Commissioner of Agriculture pursuant to G.S 106-520.3; or

c. Who sells goods at an auction conducted by an auctioneer licensed pursuant to G.S. ch. 85B.

(4) A peddler who complies with the requirements of G.S. 25A-38 through 25A-42, or who complies with the requirements of G.S. 14-401.13.

(e) *Person defined.* As used in this section, "person" includes any individual, firm, copartnership, joint venture, association, corporation, estate, trust, business trust, receiver, syndicate or other group, or combination acting as a unit body politic, or political subdivision whether public or quasi-public and the plural as well as the singular number.

(f) *Exemption.* The board of county commissioners, upon proper application, may exempt from the annual license tax levied upon peddlers or itinerant merchants in this section disabled veterans of World War I, World War II, Korean Conflict, and Vietnam Era, who have been bona fide residents of this state for 12 or more months continuously, and widows with dependent children; and when so exempted, the board of county commissioners shall furnish such person with a certificate of exemption, and such certificate shall entitle the holder thereof to sell within the limits of the city without payment of any license tax to the city.
(Code 1982, App. A, § 37; Ord. No. 9167, 5-31-1990; Ord. No. 13574, Pt. 1, 4-7-2008)

State law reference—Similar provisions, G.S. 105-53.

Sec. 30-264. Installing elevators and sprinkler systems.

(a) Every person engaged in the business of selling or installing elevators or automatic sprinkler systems must apply for and obtain from the tax collector an annual license for the privilege of transacting such business and shall pay a tax of $100.00.

(b) Provided, however, no tax shall be collected under this section from any person who does not maintain an established place of business in the city.
(Code 1982, App. A, § 38; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-55.

Sec. 30-265. Fortunetellers, palmist, etc.

Any person receiving rewards for pretending to tell and/or telling fortunes, practicing the art of palmistry, clairvoyance and other crafts of a similar kind, in the city shall apply for in advance and procure from the tax collector a license for the privilege of practicing such arts or crafts, and shall pay for such license a tax of $200.00. Provided, that the tax levied under this section shall not apply to fortunetellers or other artists practicing the art of palmistry, clairvoyance, and other crafts of similar kind, when appearing under contract in regularly state-licensed theaters under G.S. 105-37.
(Code 1982, App. A, § 39; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-58.

Sec. 30-266. Music machines.

(a) Every person engaged in the business of operating, maintaining, or placing on location in this city any machine which records, or produce music, shall apply for and obtain from the tax collector an annual city license for each machine operated and shall pay therefore the sum of $5.00.

(b) The applicant for license under this section shall, in making application for license, specify the serial number of the machine proposed to be operated, together with a description of the service offered for sale thereby, and the amount of deposit required by or in connection with the operation of such machine. The license shall carry the serial number to correspond with that on the application and no such license shall under any condition be transferable to any other machines. It shall be the duty of the person in whose place of business the machine is operated or located to see that the proper license is attached in a conspicuous place on the machine before its operation shall commence.

(c) The city shall have power through its tax collector upon nonpayment of the tax levied by him or her, or of any interest or penalty thereon, or upon failure to attach the evidence of license issued to any such machines, to seize, remove and hold such machines until all such defaults have been remedied.
(Code 1982, App. A, § 40; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-65.

Sec. 30-267. Electronic video games.

(a) Every person engaged in the business of owning or operating machines that play electronic video games when a coin or other thing of value is deposited in the machine owned or operated, and shall pay a tax of $5.00 for each license.

(b) As used in this section, a person is "engaged in the business of owning an electronic video game machine" if he or she owns the machine and locates it in his or her own place of business. A person is "engaged in the business of operating an electronic video game machine" if he or she locates, exhibits, displays, or permits to be exhibited or displayed an electronic video game machine in a place of business other than his or her own.
(Code 1982, App. A, § 41; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-66.1.

Sec. 30-268. Firearms dealers and dealers in other weapons.

(a) *Firearms.* Every person engaged in the business of selling or offering for sale firearms, other than antique firearms or firearms that are weapons of mass death and destruction, shall obtain a city license from the tax collector for the privilege of engaging in business, and shall pay a tax of $50.00 for the license.

(b) *Antique firearm defined.* As used in this section, the term "antique firearm" means any firearm manufactured in or before 1898 (including any matchlock, flintlock, percussion cap, or similar early type of ignition system) or replica thereof, whether actually manufactured before or after the year 1898; and also any firearm using fixed ammunition manufactured in or before 1898, for which ammunition is no longer manufactured in the United States and is not readily available in the ordinary channels of commercial trade.

(c) *Weapon of mass death and destruction defined.* As used in this section, the term "weapon of mass death and destruction" includes:

(1) Any explosive, incendiary, poison gas or radioactive material:

a. Bomb;

b. Grenade;

c. Rocket having a propellant charge of more than four ounces;

d. Missile having an explosive or incendiary charge of more than one-fourth ounce;

e. Mine; or

f. Device similar to any of the devices described above; or

(2) Any type of weapon (other than a shotgun or a shotgun shell of a type particularly suitable for sporting purposes) which will, or which may be readily converted to, expel a projectile by the action of an explosive or other propellant, and which has any barrel with a bore of more than one-half inch in diameter;

(3) Any firearm capable of fully automatic fire, any shotgun with a barrel of less than 18 inches in length or an overall length of less than 26 inches, any rifle with a barrel or barrels of less than 16 inches in length or an overall length of less than 26 inches, any muffler or silencer for any firearm, whether or not such firearm is included within this definition. For the purposes of this section, a rifle is defined as a weapon designed or redesigned, made or remade, and intended to be fired from the shoulder;

(4) Any combination of parts either designed or intended for use in converting any device into any weapon described above and from which a weapon of mass death and destruction may readily be assembled;

(5) Radioactive material, which means any solid, liquid or gas which emits or may emit ionizing radiation spontaneously or which becomes capable of producing radiation or nuclear particles when controls or triggering mechanisms of any associated device are operable.

As used in this section, the term "weapon of mass death and destruction" does not include any device which is neither designed nor redesigned for use as a weapon, any device, although originally designed for use as a weapon, which is redesigned for use as a signaling, pyrotechnic, line-throwing, safety, or similar device; surplus ordnance sold, loaned, or given by the Secretary of the Army pursuant to the provisions of 10 USC 4684(2), 4685, or 4686; or any other device which the secretary of the treasury finds is not likely to be used as a weapon, is an antique, or is a rifle which the owner intends to use solely for sporting purposes, in accordance with 18 USC 44.

(d) *Engaged in the business of defined.* As used in this section, the term "engaged in the business of" shall mean devoting time and attention, and labor to selling or offering for sale firearms as a regular course of trade or business with the principal objective of profit through the repetitive purchase and sale, or the manufacture for sale, of firearms. Such term shall not include the making of occasional sales, exchanges, or purchases of firearms for the enhancement of a personal collection, or the sale of all or part of a personal collection of firearms.

(e) *License authorizes licensee to engage in business; location.* A license issued under this section authorizes the licensee to engage in business at the location for which the license is issued and at a gun show held in the city. A "gun show" is an event sponsored either by an organization devoted to the collection, competitive use, or other sporting use of firearms or by an organization that sponsors events devoted to the collection, competitive use, or other sporting use of firearms in the community.

(f) *Other weapons.* Every person, firm, or corporation who is engaged in the business of selling or offering for sale bowie knives, dirks, daggers, leaded cans, iron or metallic knuckles, or similar weapons shall obtain a city license from the tax collector for the privilege of engaging in business and shall pay a tax of $200.00 for the license.

(Code 1982, App. A, § 42; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-80.

Sec. 30-269. Laundries—Outside city.

(a) Every person, firm, or corporation engaged in the business of laundry work and/or supplying or renting clean linen or towels or wearing apparel when said work is performed outside of the city or when the linen or towels or wearing apparel are supplied by a business outside of the city, shall apply for and obtain from the tax collector a city license for the privilege of conducting business, and shall pay for such license an annual tax of $12.50.

(b) Provided, that the tax collector may not collect a city privilege license tax under this section unless the state license tax, if due pursuant to G.S. 105-85, has been first paid.
(Code 1982, App. A, § 43; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-85.

Sec. 30-270. Loan agencies or brokers.

(a) Every person, firm, or corporation engaged in the regular business of making loans or lending money, accepting liens on, or contracts of assignment of, salaries or wages, or any part thereof, or other security or evidence of debt for repayment of such loans in installment payment or otherwise, and maintaining in connection with same any office or other location or established place in the city for the conduct, negotiation, or transaction of such business in any manner whatsoever, shall be deemed a loan agency, and shall apply for and obtain from the tax collector a city license for the privilege of transacting or negotiating such business at each office or place so maintained, and shall pay for such license an annual tax of $100.00.

(b) Nothing in this section shall be construed to apply to banks, industrial banks, trust companies, building and loan associations, cooperative credit unions, nor installment paper dealers, nor shall it apply to the business of negotiating loans on real estate as described in G.S. 105-41, nor to pawnbrokers lending or advancing money on specific articles of personal property, nor to insurance premium finance companies licensed under G.S. 58-4-1 et seq. This section shall apply to those persons or concerns operating what are commonly known as loan companies or finance companies and whose business as herein before described, and those persons, firms or corporations pursuing the business of lending money and taking as security for the payment of such loan and interest an assignment of wages or an assignment of wages with power of attorney to collect same, or other order or chattel mortgage or bill of sale upon household or kitchen furniture. No real estate mortgage broker shall be required to obtain a privilege license under this section merely because he or she advances his or her own funds and takes a security in real estate to secure such advances and if, at the time of the advance: (1) he or she has already made arrangements with others for sale of discount of the obligation at a later date, and the obligation is sold or discounted within the period specified in said arrangement or extensions; or (2) at the time of the advance of his or her own funds he or she intends to sell the obligation to others at a later date and does arrange with others within 12 months from the date of initial advance for the sale of said obligation, and the obligation is sold within the period specified in said arrangement or extensions; or (3) he or she advances his or her own funds in temporary financing directly involved in the production of permanent-type loans for sale to others. No real estate mortgage broker whose mortgage lending operations are essentially as described above shall be required to obtain a privilege license under this section.
(Code 1982, App. A, § 44; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-88.

Sec. 30-271. Automobiles, wholesale supply dealers and service stations.

(a) *Automotive service stations.*

(1) Every person engaged in the city in the business of servicing, storing, painting, repairing, welding, or upholstering motor vehicles, trailers, semitrailers, or engaged in

the business of retail selling and/or delivering of any tires, tools, batteries, electrical equipment, automotive accessories, including radios designed for exclusive use in automobiles, or supplies, motor fuels and/or lubricants, or any of such commodities, shall apply for and obtain from the tax collector a city license for the privilege of engaging in such business, and shall pay for such license an annual tax of $12.50 for each location where such business is carried on.

(2) No additional license tax under this subsection shall be levied upon or collected from any employee, agent, or salesman whose employer or principal has paid the tax for each location levied under this subsection.

(b) *Automobile equipment and supply dealers at wholesale.*

(1) Every person, firm or corporation engaged in the business of buying, selling, distributing, exchanging, and/or delivering, automotive accessories, including radios designed for exclusive use in automobiles, parts, tires, tools, batteries, and/or other automotive equipment or supplies or any of such commodities at wholesale shall apply for and obtain from the tax collector a city license for the privilege of engaging in such business and shall pay for such license an annual tax of $37.50 for each location where such business is carried on. Provided, any person, firm or corporation engaged in the business enumerated in this subsection and having no located place of business, but selling to retail dealers by use of some form of vehicle, shall obtain from the tax collector a city license for the privilege of engaging in such business in the city, and shall pay for such license an annual tax of $25.00, for each vehicle used in carrying on such business.

(2) For the purpose of this subsection, the word "wholesale" shall apply to manufacturers, jobbers, and such others who sell to retail dealers, except manufacturers of batteries.

(3) No additional license tax under this subsection shall be levied upon or collected from any employee, agent, or salesperson whose employer or principal has paid the tax for each location levied in this subsection.

(4) No person who has paid the wholesaler's tax as levied in subsection (b) of this section shall be required to pay any additional tax under subsection (a) of this section for engaging in any of the types of business levied upon in said subsection (a) of this section.

(c) *Motor vehicle dealers.*

(1) Every person engaged in the city in the business of buying, selling, distributing, servicing, storing, and/or exchanging motor vehicles, trailers, semitrailers, tires, tools, batteries, electrical equipment, supplies, lubricants, and/or automotive equipment, including radios designed for exclusive use in automobiles, shall apply for and obtain from the tax collector a city license for the privilege of engaging in such business, and shall pay for such license an annual tax of $25.00 for each location where such business is carried on. Provided, that persons dealing in secondhand or used motor vehicles

exclusively shall be liable for the tax unless such business is of a seasonal, temporary, transient, or itinerant nature, in which event the tax shall be $300.00 for each location where such business is carried on.

(2) Any person who deals exclusively in motor fuels and lubricants, and has paid the license tax levied under subsection (a) of this section, shall not be subject to any license tax under this subsection and subsection (b) of this section. A person licensed under this subsection is not required to be licensed under subsection (a) or (b) of this section.

(3) No additional license tax under this subsection shall be levied upon or collected from any employee or salesperson whose employer has paid the tax levied in this subsection; nor shall the tax apply to dealers in semitrailers weighing not more than 500 pounds and carrying not more than 1,000-pound load, and to be towed by passenger cars, nor to dealers in four-wheel, farm-type wagons equipped with rubber tires and designed to be pulled or towed by passenger cars or farm tractors.

(4) Premises on which cars are stored or sold, when owned or operated by a licensed car dealer under the same name, shall not be deemed as a separate place of business when the premises are within the corporate limits of any city or town in which such car business is conducted.

(Code 1982, App. A, § 45; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-89.

Sec. 30-272. Motorcycle dealers.

(a) Every person engaged in the business of buying, selling, distributing, and/or exchanging motorcycles or motorcycle supplies or any of such commodities in the city shall apply for and obtain from the tax collector a city license for the privilege of engaging in such business in the city, and shall pay for such license an annual tax of $12.50 for each location where such business is carried on.

(b) No additional license tax shall be levied upon or collected from any employee or salesperson whose employer has paid the tax levied in this section.

(Code 1982, App. A, § 46; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-89.1.

Sec. 30-273. Emigrant and employment agents.

(a) Every person engaged in the city, either as agent or principal, in the solicitation, hiring and/or contracting with male or female laborers for employment shall obtain from the tax collector a city license for the privilege of engaging in such business. The annual tax for this license shall be $100.00.

(b) Every person who engages in the city in the business of securing employment for others and charging a fee, commission, or other compensation for this service, shall obtain from the tax collector a city license for the privilege of engaging in such business. The annual tax for this license shall be $100.00 for each location in which such business is conducted.

(c) This section shall not apply to any employment agency operated by the federal government, the state, any county or municipality, or whose sole business is procuring employees for work in the production and harvesting of farm crops within the state. Nor shall it apply to any registry for registered nurses or licensed practical nurses when not operated for profit; and provided further that under this section the tax on any employment agency the sole business of which is the placement of teachers and/or other school employees and which has been approved by the state superintendent of public instruction shall be $50.00. Provided further that the tax on employment agencies where the sole business is the placement of domestic servants or unregistered nurses for employment within the city shall be $50.00.
(Code 1982, App. A, § 47; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-90, 105-90.1.

Sec. 30-274. General business license.

(a) Every person engaging in the city in any one of the businesses listed in subsection (b) of this section shall apply for and procure from the tax collector a "general business license." The tax for each license shall be as set forth below and one license shall be obtained for each location at which any of the businesses enumerated in subsection (b) of this section is engaged in. However, only one general business license is required for any one location regardless of how many of the enumerated businesses are being engaged in by the person at that location.

(b) The tax paid for each general business license shall be as follows:

(1) Operating billiard or pool tables, whether operated by slot or otherwise: $25.00.

(2) Operating a bowling alley, or alleys of like kind: $10.00 per alley.

(3) Operating a bagatelle table, merry-go-round, other riding devices, hobbyhorse, switchback railway, shooting gallery, swimming pool, skating rink, other amusement of a like kind, or a place for other games or play with or without name (unless used solely and exclusively for private amusement or exercise) at a permanent location: $25.00.

(Code 1982, App. A, § 48; Ord. No. 9167, 5-31-1990; Ord. No. 9171, § 1, 2-4-1991)

State law reference—Similar provisions, G.S. 105-102.5.

Secs. 30-275—30-296. Reserved.

DIVISION 6. PRIVILEGE LICENSE TAXES RESTRICTED BY STATE REVENUE LAWS (NOT IDENTICAL TO COUNTY PROVISIONS)

Sec. 30-297. Amusements—Outdoor theatres.

Every person, firm or corporation engaged in the business of operating an outdoor or drive-in moving picture show for compensation shall apply for and obtain in advance from the tax collector a city license for the privilege of engaging in such business and shall pay for such license a tax of $100.00.
(Code 1982, App. A, § 49; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-36.1.

Sec. 30-298. Same—Moving pictures—Admission.

(a) Every person engaged in the business of operating a moving picture show for compensation shall apply for and obtain in advance from the tax collector a city license for the privilege of engaging in such business, and shall pay for such state license for each room, hall, or tent used a tax of $200.00.

(b) For any motion picture show operating three days or less each week, the tax levied shall be one-half the annual tax provided above.

(c) Motion picture shows promoted and managed by a qualifying corporation that operates a center for the performing and visual arts are exempt from the license tax imposed under this section if the motion pictures are shown at the center and if the showing of motion pictures is not the primary purpose of the center. As used in this subsection, the terms "qualifying corporation" and "center for the performing and visual arts" have the same meaning as in G.S. 105-37.1(a).

(Code 1982, App. A, § 50; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-37.

Sec. 30-299. Same—Forms of amusement not otherwise taxed.

(a) Every person engaged in the business of giving, offering or managing any form of entertainment or amusement not otherwise taxed or specifically exempted in this article, for which an admission is charged, shall pay an annual license tax of $25.00 for each room, hall, tent or other place where such admission charges are made.

(b) Every person, firm, or corporation giving, offering, or managing any dance or athletic contests, for which an admission fee in excess of $0.50 is charged, shall pay an annual license tax of $25.00 for each location where such charges are taxed shall be levied on admission fees for high school and elementary school contests.

(c) Dances and other amusements actually promoted and managed by civic organizations and private and public secondary schools; shall not be subject to the license tax imposed by this section. The mere sponsorship of dance or other amusement by such a school, civic, or fraternal organization shall not be deemed to exempt such dance or other amusement as provided in this subsection, but the exemption shall apply only when the dance or amusement is actually managed and conducted by the school, civic, or fraternal organization and the proceeds are used as hereinbefore required.

(d) Dances and other amusements promoted and managed by a qualifying corporation that operates a center for the performing and visual arts are exempt from the license tax and the gross receipts tax imposed under this section if the dance or other amusement is held at the center. The term "qualifying corporation" means a corporation that is exempt from income tax under G.S. 105-130.11(a)(3). The term "center for the performing and visual arts" means a facility, having a fixed location, that provides space for dramatic performances, studios, classrooms and similar accommodations to organized arts groups and individual artists. This exemption shall not apply to athletic events.

(e) The license and gross receipts taxes imposed by this section do not apply to a person, firm, or corporation that is exempt from income tax under article 4 of G.S. ch. 105 and is engaged in the business of operating a teen center. A "teen center" is a fixed facility whose primary purpose is to provide recreational activities, dramatic performances, dances, and other amusements exclusively for teenagers.
(Code 1982, App. A, § 51; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-37.1.

Sec. 30-300. Collecting agencies.

(a) Every person engaged in the business of collecting, for a profit, claims, accounts, bills, notes, or other money obligations for others, and of rendering an account for same, shall be deemed a collection agency, and shall apply for and receive from the tax collector a city license for the privilege of engaging in such business, and pay for such license a tax of $50.00.

(b) This section shall not apply to a regularly licensed practicing attorney at law.
(Code 1982, App. A, § 52; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-45.

Sec. 30-301. Undertakers and retail dealers in coffins.

(a) Every person engaged in the business of burying the dead, or in the retail sale of coffins, shall apply for and procure from the tax collector a city license for transacting such business within the city and shall pay for such license a tax of $50.00.

(b) This section shall not apply to a cabinetmaker who makes coffins to order.
(Code 1982, App. A, § 53; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-46.

Sec. 30-302. Contractors and construction companies.

Every person who, for a fixed price, commission, fee, or wage, offers or bids to construct within the city any building, highway, street, sidewalk, bridge, culvert, sewer or water system, drainage or dredging system, railway, reservoir or dam, hydraulic or power plant, transmission line, tower, dock, wharf, excavation, grading or other improvement or structure, or any part thereof, the cost of which exceeds the sum of $10,000.00, shall apply for and obtain from the tax collector an annual city license, and shall pay for such license a tax of $10.00 at the time of or prior to offering or submitting any bid on any of the above enumerated projects.
(Code 1982, App. A, § 54; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-54.

Sec. 30-303. Hotels, motels, tourist courts and tourist homes.

(a) Every person engaged in the business of operating any hotel or motel, tourist court, tourist home, or similar place advertising in any manner for transient patronage, or soliciting such business, shall apply for and procure from the tax collector a city license for the privilege of transacting or engaging in such business, and shall pay for such license a tax of $1.00 per room. The minimum tax shall be $25.00.

(b) For the purpose of this section, the lobby, clubroom, office, dining room, kitchen and rooms occupied by the owners or lessees of the premises, or members of their family, for their personal or private use, shall not be counted in determining the number of rooms for the basis of the tax. The tax herein levied shall be in addition to any tax levied in section 30-304 for the sale of prepared food.

(c) Hotel as referred to in this section shall be given its general or customary meaning; that is, a building or group of buildings providing lodging and usually (but not necessary) meals, entertainment, and various personal services for the public.

(d) Motel as referred to in this section shall be given its general or customary meaning; that is, a building or group of buildings in which the rooms usually are directly accessible from an outdoor parking area and which are used primarily as lodgings for the public.

(e) In addition to hotels and motels, there is included within the meaning of this section tourist courts, tourist homes and similar places, including, but not limited to, tourist camps, semi-detached apartments, resort lodgings and detached structures whenever the operator advertises in any manner for transient patronage, or solicits such business. The principal test of liability is the use of such places for temporary abode by transient patrons. Such patrons are defined as staying for a short time, stopping for a brief period only, not permanently.

(f) It is immaterial for the purposes of this section whether the rental to patrons is on a daily, weekly, biweekly or monthly basis, and it is also immaterial, as to any particular room, whether such room is occupied by a "permanent" guest.

(Code 1982, App. A, § 55; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-61.

Sec. 30-304. Restaurants.

(a) Every person, firm, or corporation engaged in the city in the business of operating a restaurant, cafe, cafeteria, hotel with dining service on the European plan, drugstore, or other place where prepared food is sold shall apply for and obtain from the tax collector or city license for the privilege of engaging in the business. The tax for the license is $25.00 for a business that has no seating capacity for customers who purchase the food or seating capacity for no more than four customers and is $42.50 for a business that has seating capacity for at least five customers who purchase the food. The tax levied in this subsection does not apply to industrial plants maintaining a nonprofit restaurant, cafe, or cafeteria solely for the convenience of its employees. In addition, a person, firm or corporation required to be licensed under this section is not required to procure the license under either section 30-274 or section 30-315 for the same location.

(b) No tax shall be levied under this section, for the privilege of operating vending machines or selling any commodity through such machines, against any vending machine operator licensed by the state and required by G.S. 105-65.1 to pay a gross receipts tax.

(Code 1982, App. A, § 56; Ord. No. 9167, 5-31-1990; Ord. No. 9171, § 2, 2-4-1991)

State law reference—Similar provisions, G.S. 105-62.

Sec. 30-305. Security dealers.

(a) Every person who is engaged in the business of dealing in securities as defined in G.S. ch. 78A, or who maintains a place for or engages in the business of buying and/or selling shares of stock in any corporation, bonds, or any other securities on commission or brokerage, shall apply for and procure from the tax collector a city license for the privilege of transacting such business, and shall pay for such license a tax of $50.00.

(b) Every dealer, as defined herein, who shall maintain in the city more than one office for dealing in securities, as hereinbefore defined, shall apply for and procure from the tax collector a license for the privilege of transacting such business at each such office, and shall pay for such license the same tax as hereinbefore fixed.

(c) Every foreign dealer, as dealer is hereinbefore defined, who shall maintain an office in this state, or have a salesman in this state, shall apply for and procure from the tax collector a city license for the privilege of transacting such business, and shall pay for such license the tax hereinbefore imposed.

(Code 1982, App. A, § 57; Ord. No. 9167, 5-31-1990)

Sec. 30-306. Persons, firms, or corporations selling certain oils.

Every person engaged in the business of selling illuminating oil or greases, or benzine, naphtha, gasoline, or other products of like kind shall apply for and procure from the tax collector a city license for the privilege of conducting such business, and shall pay for the same a tax of $50.00.

(Code 1982, App. A, § 58; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-72.

Sec. 30-307. Pressing clubs, dry cleaning plants, and hat blockers.

(a) Every person engaging in the business of operating a dry cleaning plant, pressing club or hat blocking establishment shall apply for and procure from the tax collector a city license for the privilege of conducting such a business, and shall pay for such license a tax of $50.00.

(b) Every person soliciting cleaning work and/or pressing in the city where the actual cleaning and/or pressing is done in a cleaning plant or press shop located outside the city shall procure from the tax collector a city license for the privilege of soliciting in the city and pay for the same a tax of $50.00.

(c) For the purpose of this section, the following definitions shall apply:

Dry cleaning, and/or hat blocking, and/or pressing establishments means any place of business, establishment or vehicle wherein the services of dry cleaning, wet cleaning as a process incidental to dry cleaning, spotting and/or pressing, finishing and/or reblocking hats, garments, or wearing apparel of any kind is performed.

Person means any person, firm, corporation, partnership, or association.

Soliciting means the acceptance of any article or garment to be dry cleaned and/or pressed.

(d) This section shall not apply to any bona fide student of any college or university in this state operating such pressing and dry cleaning business at such college or university during the school term of such college or university.

(Code 1982, App. A, § 59; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-74.

Sec. 30-308. Barbershops and beauty salons.

Every person engaged in business as a barber, manicurist, cosmetologist, beautician or other operator in a barbershop, beauty shop or parlor shall apply for and procure from the tax collector a city license for the privilege of conducting such business, and shall pay for such license a tax of $2.50.

(Code 1982, App. A, § 60; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-75.1.

Sec. 30-309. Tobacco warehouses.

Every person engaged in the business of operating a warehouse for the sale of leaf tobacco upon commission shall apply for and obtain from the tax collector a city license for the privilege of operating such warehouse for the next ensuing year, and shall pay for such license a tax of $50.00 for each warehouse.

(Code 1982, App. A, § 61; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-77.

Sec. 30-310. Laundries—Inside city.

(a) Every person engaged within the city limits in the business of laundry work and/or supplying or renting clean linen or towels or wearing apparel shall apply for and obtain from the tax collector a city license for the privilege of conducting business, and shall pay for such license an annual tax of $50.00. Provided that any person engaging in the business above enumerated when the work is performed outside the city shall only pay a license tax of $12.50.

(b) Provided also that the tax collector may not collect a city privilege license tax under this section unless the state license tax, if due pursuant to G.S. 105-85, has first been paid.

(Code 1982, App. A, § 62; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-85.

Sec. 30-311. Outdoor advertising.

Every person engaged in the business of outdoor advertising by placing, erecting or maintaining one or more outdoor advertising signs or structures of any nature by means of signboards, poster boards, or painted bulletins, or other painted matter, or any other outdoor advertising devices, erected upon the grounds, walls or roofs of buildings, shall apply for and obtain from the tax collector a city license for the privilege of engaging in such business in this city, and shall pay the city for such license an annual tax of $35.00.

(Code 1982, App. A, § 63; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-86.

Sec. 30-312. Plumbers, heating contractors, and electricians.

(a) Every person engaged in the business of a plumber, installing plumbing fixtures, piping or equipment, steam or gas fitter, or installing hot-air heating systems, or installing electrical equipment, or offering to perform such services, shall apply for and obtain from the tax collector a city license for the privilege of engaging in such business, and shall pay for such license a tax of $50.00.

(b) Provided that any person engaged exclusively in the businesses enumerated in and licensed under this section shall not be liable for the tax provided in sections 30-264 or 30-302.

(c) With respect to electricians and electrical contractors, a license procured under this section shall cover the installation of electrical equipment, fixtures and wiring in or upon the consumer's premises, or on the "customer's side" of the point of delivery of electric service, but shall not cover the installation of or service to transmission or distribution lines or work on the "distributor's side" of the point of delivery of electric service. With respect to plumbers and plumbing contractors, a license procured under this section shall cover plumbing work and plumbing installations in buildings and upon the premises upon which the buildings are situated and up to the connection with the sewer or water mains, but shall not cover the construction of or work upon water mains, but shall not cover the construction of or work upon water or sewer systems or mains.

(Code 1982, App. A, § 64; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-91.

Sec. 30-313. Manufacturers of ice cream.

(a) Every person engaged in the business of manufacturing or distributing ice cream at wholesale shall apply for and obtain from the tax collector a city license for the privilege of doing business in this city and shall pay for each factory or place where manufactured and/or stored for distribution the following base tax: Where the machine or the equipment unit used is of the continuous freezer type the rate of tax shall be $0.375 per gallon capacity based on the rated capacity in gallons per hour according to manufacturer's rating of such freezer, but in no case shall the tax be less than $12.50 per annum for any freezer used; and where the machine or equipment unit used is not of the continuous freezer type the rate of tax shall be $1.25 per gallon capacity for the freezer used; but in no case shall the tax be less than $12.50 per annum for any freezer used; provided that the secretary shall have the right to check the correctness or accuracy of any such manufacturer's rating herein referred to and to levy the tax herein authorized on the basis of such determined capacity; and provided, further that where no standard freezer equipment with manufacturer's capacity rating is used, a tax of $12.50 shall apply; and provided, further that the license tax herein shall not apply to any farmer who manufactures and sells only the products of his or her own cows. Each truck, automobile or other vehicle coming into this state from another state and selling and/or delivering ice cream on which the tax has not been paid under the provisions of this section shall pay an annual license tax for the privilege of doing business in this state in the sum of $25.00 per truck, automobile or vehicle. The license secured from the state under this section shall be posted in the cab of the truck, automobile or other vehicle.

(b) For the purpose of this section, the term "ice cream" shall apply to ice cream, frozen custards, sherbets, water ices, and/or similar frozen products.
(Code 1982, App. A, § 65; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-97.

Sec. 30-314. Branch or chain stores.

(a) Every person engaged in the business of operating or maintaining in this city under the same general management, supervision, or ownership, two or more stores, or mercantile establishments where goods, wares, and/or merchandise are sold or offered for sale, or from which such goods, wares, and/or merchandise are sold and/or distributed at wholesale or retail, or who or which controls by lease, either as lessor or lessee, or by contract, the manner in which any such store is operated, or the kinds, character, or brands of merchandise which are sold therein, shall be deemed a branch or chain store operator, and shall apply for and obtain from the tax collector a city license for the privilege of engaging in such business of a branch or chain store operator, and shall pay for such license a tax of $50.00 on each and every such store operated in this city.

(b) The term "chain store" as used in this section shall include stores operated under separate charters of incorporation, if there is common ownership of a majority of stock in such separately incorporated companies, and/or if there is similarity of name of such separately incorporated companies, and/or if such separately incorporated companies have the benefit in whole or in part of group purchase of merchandise, or of common management. And in like manner the term "chain store" shall apply to any group of stores where a majority interest is owned by an individual or partnership. The term "chain store" as used in this section shall not include retail outlets owned and operated by wholesale bakeries at locations separate and apart from the wholesale bakery under the same ownership, management and control of the wholesale bakery and used solely as outlets for the disposition at retail of surplus or broken products of the wholesale bakery operating same and which do not deal in any other products and where the operation of such stores is only incidental to the operation of the wholesale bakery, such stores being commonly known as "bakery thrift stores." Provided, however, that no chain store license tax shall be collected from stores which are so denominated merely because the manner in which they are operated, or the kinds, character or brands of merchandise sold therein are controlled by lease or by contract. For the purpose of ascertaining the particular unit in each chain of stores not subject to taxation by the city under this section, the particular store in which the principal office of the chain is located in this state shall be designated as the unit in the chain not subject to this tax.

(c) In enforcing the provisions of this section, the tax collector may prorate the total amount of tax for a chain to the several units and the amount so prorated may be recovered from each unit in the chain in the same way as other taxes levied in this article.

(d) This section shall not apply to retail or wholesale dealers in motor vehicles and automotive equipment and supply dealers at wholesale who are not liable for tax hereunder on account of the sales of other merchandise, nor shall it apply to retail stores of nonprofit

organizations engaged exclusively in the sale of merchandise processed by handicapped persons employed by any nonprofit organization in the city. This section shall not apply to manufacturers, retail or wholesale dealers solely by reason of the sales of fertilizers, farm chemicals, soil preparants or seeds.

(Code 1982, App. A, § 66; Ord. No. 9167, 5-31-1990)

State law reference—Similar provisions, G.S. 105-98.

Sec. 30-315. General business license.

(a) Every person engaging in any one of the businesses listed in subsection (b) of this section shall apply for and procure from the tax collector a city "general business license" for the transaction of such business. The tax for each license shall be the amount listed below and one license shall be obtained for each location at which any of the businesses enumerated in subsection (b) of this section is engaged in; however, only one general business license is required for any one location regardless of how many of the enumerated businesses are being engaged in at that location by the person, firm, or corporation.

(b) The general business license shall be procured and the tax paid by the person, firm, or corporation engaged in any one or more of the following business activities:

(1) Selling, leasing, furnishing, and/or distributing movies, including video movies, for use in the places where no admission fee is charged or in schools, public or private, or other institutions of learning in the city—$25.00.

(2) Selling bicycles, bicycle supplies, or accessories—$25.00.

(3) Operating a campground, trailer park, tent camping area, or similar place for profit, advertising in any manner for transient patronage, or soliciting such business, regardless of whether the rental to patrons is on a daily, weekly, biweekly or monthly basis—$12.50.

(4) Selling sandwiches (such term not to be construed to include crackers or cookies in combination with any food filling) in drugstores or any other stands or places not operating as a restaurant; operating, maintaining or placing on location fewer than five cigarettes or other tobacco products dispensers, soft drink dispensers, food or other merchandising dispensers, or weighing machines; retailing soft drinks; or retailing or jobbing cigarettes or any other tobacco products—$4.00.

(5) Selling, offering, ordering for sale, repairing, or servicing pianos, organs, record players, records, tape players, tape cartridges designed for use in tape players, television sets, television accessories or repair parts, radios, or radio accessories or repair parts, including radios designed for exclusive use in motor vehicles—$5.00. Persons, firms, or corporations required to be licensed under G.S. 105-65.1 are exempt from the taxes listed above.

(c) Exemptions:

(1) A person required to be licensed under section 30-271 or 30-272 is not required to procure for same location the general business license imposed by this section.

(2) The tax levied on the business described in subsections (b)(1) and (2) of this section does not apply to fraternal organizations having a national charter, American Legion Posts, or local chapters of other veterans' organizations chartered by Congress or organized and operating on a statewide or nationwide basis, Young Men's Christian Associations, Young Women's Christian Associations, or nonstock, nonprofit charitable recreational corporations, foundations, or centers to which a municipality or county contributes any portion of the operating expense.

(3) The tax levied on the business described in subsection (b)(3) of this section does not apply to machines and devices licensed under section 30-266.

(Code 1982, App. A, § 67; Ord. No. 9167, 5-31-1990; Ord. No. 9171, § 3, 2-4-1991)

State law reference—Similar provisions, G.S. 105-102.5.

Sec. 30-316. City beer and wine retail licenses.

(a) *License and tax.* A person holding any of the following retail ABC permits for an establishment located in the city shall obtain from the tax collector a city license for that activity. The annual tax for each license is as stated.

ABC Permit	*Tax for Corresponding License*
On-premises malt beverage	$ 15.00
Off-premises malt beverage	5.00
On-premises unfortified wine, on-premises fortified wine, or both	15.00
Off-premises unfortified wine, off-premises fortified wine, or both	10.00

(b) *Tax on additional license.* The tax stated in subsection (a) of this section is the tax for the first license issued to a person. The tax for each additional license of the same type issued to that person for the same year is 110 percent of the base license tax, that increase to apply progressively for each additional license.

(Code 1982, App. A, § 68; Ord. No. 9167, 5-31-1990; Ord. No. 9171, § 4, 2-4-1991)

State law reference—Similar provisions, G.S. 105-113.77.

Sec. 30-317. Franchise or privilege tax on electric light, power and gas companies not otherwise taxed.

(a) Every person, firm or corporation engaged in the city in the business of operating an electric light or power business shall apply for and obtain from the tax collector a city license for the privilege of conducting such business in the city and shall pay for such license a tax of $1,500.00.

(b) Every person, firm or corporation engaged in the city in the business of operating a natural gas business shall apply for and obtain from the tax collector a city license for the privilege of conducting such business in the city and shall pay for such license a tax of $1,000.00.

(Code 1982, App. A, § 69; Ord. No. 9167, 5-31-1990; Ord. No. 9171, § 4, 2-4-1991)

State law reference—Similar provisions, G.S. 105-116.

Sec. 30-318. Franchise or privilege tax on express companies.

Every person, firm or corporation engaged in the city in the business of an express company as defined in G.S. ch. 105 shall apply for and obtain from the tax collector a city license for the privilege of conducting such business in the city and shall pay for such license a tax of $75.00.

(Code 1982, App. A, § 70; Ord. No. 9167, 5-31-1990; Ord. No. 9171, § 4, 2-4-1991)

State law reference—Similar provisions, G.S. 105-118.

Sec. 30-319. Franchise or privilege tax on telegraph companies.

Every person, firm or corporation engaged in the city in operating the apparatus necessary for communication by telegraph between points within the city shall apply for and obtain from the tax collector a city license for the privilege of conducting such business in the city and shall pay for such license a tax of $50.00.

(Code 1982, App. A, § 71; Ord. No. 9167, 5-31-1990; Ord. No. 9171, § 4, 2-4-1991)

State law reference—Similar provisions, G.S. 105-119.

Secs. 30-320—30-341. Reserved.

DIVISION 7. PRIVILEGE LICENSE TAXES NOT RELATED TO OR RESTRICTED BY STATE LAW

Sec. 30-342. Service establishments and businesses.

Every person engaged in the business of rendering or furnishing personal, industrial, commercial or home services to others for compensation and not otherwise specifically taxed under this article and not exempt from taxation for license tax purposes by the statutes of the state, shall pay for each store or place of business operated by him or her and located within the city, an annual tax based upon the annual gross receipts of such store or place of business, according to the schedule set by the city council. The maximum tax under this section shall not exceed the amount set by the city council for each separate location, regardless of the amount of gross receipts.

(Code 1982, App. A, § 72; Ord. No. 9167, 5-31-1990; Ord. No. 9171, § 4, 2-4-1991; Ord. No. 11449, § 1, 6-1-1998; Ord. No. 12971, § 2, 6-21-2004)

Sec. 30-343. Retail and wholesale merchants.

(a) *Retail merchants.* Every person conducting any kind of business at retail, and not specifically taxed for such business in division 5 and not exempt from taxation for license tax purposes by the statutes of the state, shall pay for each store or place of business operated by him or her and located within the city, the graduated tax based on the amount of gross receipts as set by the city council. The term "business at retail" shall be deemed to be any person, partnership or corporation selling tangible personal property to the ultimate consumer.

(b) *Wholesale merchants.* Every person conducting any kind of business at wholesale or in the capacity of a jobber shall pay for each store or place of business operated by him or her and located in the city, the graduated tax based on the amount of annual gross receipts as set by the city council. The term "business at wholesale" shall be deemed to be any person, partnership or corporation selling tangible personal property to anyone other than the ultimate consumer. The maximum tax under this section shall not exceed the amount set by the city council for each separate location, regardless of the amount of the gross receipts.

(c) *Definition of ultimate consumer.* The term "ultimate consumer" shall be deemed to be a purchaser who last uses or consumes a product without reselling it or without incorporating or converting it by manufacturing process into another form for resale.

(d) *Tax on retail dealers.* Any merchant engaged in both wholesale and retail trade shall be deemed to be a retail merchant and pay the tax herein imposed on retail dealers.
(Code 1982, App. A, § 73; Ord. No. 9167, 5-31-1990; Ord. No. 9171, § 4, 2-4-1991; Ord. No. 11449, § 2, 6-1-1998; Ord. No. 12971, §§ 3, 4, 6-21-2004)

Sec. 30-344. Manufacturers.

(a) *Fee.* Every person engaged in the business of manufacturing or conducting a business as a manufacturer shall pay for each plant or manufacturing place of business operated by him or her and located within the city, the graduated tax based on the amount of gross receipts as set by the city council. The maximum tax under this section shall not exceed the amount set by the city council for each separate location, regardless of the amount of gross receipts.

(b) *Definition of manufacturing.* The term "manufacturing" means the producing by the person to be taxed of a new article for use or ornament by the application of skill and labor to the raw material of which it is composed, or the making of a new product by the person to be taxed from raw or partly wrought materials.

(c) *Separate support offices.* Any person that engages in the business of manufacturing in the city and pays a tax under this article or section for the same and that maintains a support office in the city to support the licensee's manufacturing operation within the city (e.g., for personnel, accounting, payroll or maintenance), located separately from the manufacturing operation within the city, shall pay an annual tax for each separate support office, of the amount set by the city council.

(d) *Manufacturers selling at retail.* Any manufacturer that sells at retail, in addition to the license tax imposed for manufacturing, shall pay as an additional license tax for each retail operation or location operated by him or her for him or her and located within the city, the following graduated tax based on the amount of annual gross receipts as set by the city council. (Code 1982, App. A, § 74; Ord. No. 9167, 5-31-1990; Ord. No. 9171, § 4, 2-4-1991; Ord. No. 11449, § 3, 7-1-1998; Ord. No. 12971, §§ 5, 6, 6-21-2004)

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Sec. 34-87. Civil action in lieu of administrative hearing.
Sec. 34-88. Private right of action.

***Editor's note—**Ord. No. 15762, § 1(Exh. A), adopted January 19, 2021, effective, July 1, 2021 amended chapter 34 in its entirety to read as herein set out. Former chapter 34, §§ art. II, div. 1, §§ 34-19—34-21, div. 2, §§ 34-46—34-53, div. 3, §§ 34-80—34-89, art. III, §§ 34-107—34-113, pertained to Human Relations. See Code Comparative Table for complete derivation.

Sec. 34-89. Records.

Article III. Employment and Public Accommodations Ordinance

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ARTICLE I. IN GENERAL

Sec. 34-1. Title.

This chapter shall be known and may be cited as the "Non-Discrimination Ordinance of the City of Durham."
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-2. Purpose.

(a) It is the policy of the City of Durham to bring about through fair, orderly, and lawful procedures the opportunity for every person to obtain employment, access to all places of public accommodation, and housing, without regard to race, color, religion, national origin, sex, disability, familial status, military status, sexual orientation, gender identity, and protected hairstyle. The City of Durham is proud of the diversity of its employees and is proud of the diversity of its residents. The city strongly encourages all entities within the city, including those who are excepted from the requirements of this chapter, to recognize the rights of every individual to work and earn wages through gainful employment, to obtain and enjoy goods, services, facilities, privileges, advantages, and accommodations in all places of public accommodation, and to obtain housing. The denial or deprivation of these rights because of a person's actual or perceived status is detrimental to the health, safety, and welfare of the residents of Durham and is within the power and responsibility of the city to prevent.

(b) The general purpose of this chapter is to provide individuals within the City of Durham freedom from discrimination, in connection with housing, employment, and public accommodations, because of race, color, religion, national origin, sex, disability, familial status, military status, sexual orientation, gender identity, and protected hairstyle to promote harmony in human relations and to prevent commercial advantage from unethical practices.

(c) The non-discrimination ordinance of the City of Durham is comprised of the fair housing ordinance of the City of Durham, article II, and the employment and public accommodations ordinance, article III, and this non-discrimination ordinance of the City of Durham is enforced by the City of Durham through its human relations commission, enabled and authorized by article IV.

(d) This chapter shall be construed according to the fair import of its terms.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-3. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Administrative hearing means a hearing conducted by the hearing board to adjudicate discrimination complaints that have resulted in a finding of reasonable cause.

Aggrieved person means any person who:

(1) Claims to have been injured by a discriminatory practice; or

(2) Believes that the person will be injured by a discriminatory practice that is about to occur.

Commission means the Durham Human Relations Commission, as established by the City Council of the City of Durham by ordinance dated October 7, 1968.

Complainant means the person or group of persons who files a complaint with the commission in accordance with the provisions of this chapter.

Complaint means a written complaint which has been filed with the commission in accordance with the provisions of this chapter, alleging one or more discriminating practices.

Conciliation means the attempted resolution of issues raised by a complaint, or by the investigation of such complaint, through informal negotiations involving the aggrieved person, the respondent, and the commission.

Conciliation agreement means a written agreement setting forth the resolution of the issues in conciliation.

Covered multifamily dwellings means:

(1) A building, including all units and common use areas, in which there are four or more units if the building has one or more elevators; or

(2) Ground floor units and ground floor common use areas in a building with four or more units.

Director means the director of the department where the human relations division is located, or designee of the director, or the city manager.

Disability with respect to a person, means:

(1) Having a physical or mental impairment which substantially limits one or more of a person's major life activities; or

(2) Having a record of such impairment; or

(3) Being regarded as having such an impairment.

Discriminatory practice (or *discrimination*) means an act that is unlawful under this chapter, or otherwise has the effect of subjecting a person to differential treatment as a result of that person's actual or perceived race, color, religion, national origin, sex, disability, familial status, military status, sexual orientation, gender identity, or protected hairstyle.

Dormitory property includes housing accommodations owned or operated by a bona fide private, state-owned, or state-supported educational institution for the purpose of housing its students. The term "dormitory property" shall also include housing accommodations owned or operated by a bona fide hospital, nursing home, correctional institution, or similar facility in connection with its purpose of providing for the care or custody of the residents

thereof. The term "dormitory property" shall also include other housing accommodations operated and occupied in the style of a dormitory, as that term is commonly understood, taking into account such characteristics as required common usage of kitchen facilities, bathroom facilities and/or sleeping quarters.

Dwelling means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure or portion thereof.

Employee means any individual employed by or seeking employment from an employer. It does not include (1) any individual employed by the individual's parents, spouse, or child, or (2) an individual participating in a specialized employment training program conducted by a nonprofit sheltered workshop or rehabilitation facility.

Employer means any person employing one or more persons within the City of Durham and any person acting in the interest of an employer, directly or indirectly, including an employment agency. Employer shall include the City of Durham and any city contractor.

Familial status means one or more individuals (who has not attained the age of 18 years) being domiciled with:

(1) A parent or another person having legal custody of such individual; or

(2) The designee of such parent or other person having such custody, with the written permission of such parent or other person.

The protections afforded against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process of securing legal custody of any individual who has not attained the age of 18 years.

Family includes a single individual.

Financial institution means any banking corporation or trust company, savings and loan association, credit union, insurance company, or related corporation, partnership, foundation, or other institution engaged primarily in lending or investing funds.

Gender means the attitudes, feelings, and behaviors that a culture or society associates with a person's biological sex.

Gender identity means the actual or perceived gender-related identity, expression, appearance, or behavior, or other gender-related characteristics of an individual, regardless of the individual's designated sex at birth.

Hearing board means the panel or person constituted in accordance with this chapter to hear and adjudicate discrimination complaints.

Housing accommodation includes any improved or unimproved real property, or part thereof, which is used or occupied, or is intended, arranged or designed to be used or occupied, as the home or residence of one or more individuals.

Military status means being on active duty in, or any reserve component of, any branch of the Armed Forces of the United States, the State of North Carolina, or any other state, or (2) being a veteran of any such branch of the armed forces.

National origin means an individual's actual or perceived characteristics related to the individual's place of birth, the individual's ancestor's place of birth, language, culture, accent, ethnicity, or appearance of ethnicity.

Person includes one or more individuals, partnerships, associations, corporations, labor organizations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in bankruptcy, receipts, or any other legal or commercial entity.

Protected hairstyle means any hairstyle, hair type, or hair texture historically associated with race such as, but not limited to, braids, locks, twists, tight coils or curls, cornrows, Bantu knots, and afros.

Public accommodation (or *place of public accommodation*) means any place, facility, store, other establishment, hotel, or motel, which supplies accommodations, goods, or services to the public or which solicits or accepts the patronage or trade of the public. The term does not include any private club, bona fide membership organization, or other establishment that is not in fact open to the public.

Qualifying resident or *senior citizen* means a person 62 years of age or older, or 55 years of age or older in a senior citizen housing community.

Real estate broker or *agent* includes any person authorized to perform an action on behalf of another person regarding any matter related to the sale or rental of dwellings, including offers, conciliations or contracts and the administration of matters regarding such offers, solicitations or contracts or any residential real estate-related transactions.

Real estate transaction includes the sale, exchange, rental, or lease of real property, or of any interest therein.

Real property includes buildings, structures, real estate, lands, leaseholds, cooperatives, condominiums, and hereditaments, corporeal and incorporeal, or any interest therein.

Respondent means a person who is alleged to have committed a discriminatory practice and against whom a complaint has been filed pursuant to this article.

Staff means the director or designees of the director who enforce this article on behalf of the commission.

Sexual orientation means a person's actual or perceived emotional, romantic, or sexual attraction to other people, which includes, but is not limited to, homosexuality, heterosexuality, or bisexuality.

To rent includes to lease, to sublease, to let and otherwise to grant for a consideration the right to occupy premises not owned by the occupant.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-4. Interpretation and effect.

Nothing in this chapter shall be interpreted or applied so as to create any requirement, power, or duty in conflict with any existing federal or state law. Nothing in this chapter shall be construed as supporting or advocating any particular lifestyle or religious view. To the contrary, it is the intention of this chapter that all persons be treated fairly and equally.

Unless otherwise prohibited by law, nothing contained in this chapter shall be construed to prohibit diversity and inclusion efforts and promotional activities and practices designed primarily to encourage participation by members of any historically marginalized protected group, in furtherance of the purposes of this chapter.

This chapter does not create a private cause of action under article III, the employment and public accommodations ordinance.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-5. Other remedies.

This chapter may not be construed to limit any other remedies available under state or federal law.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-6. Severability.

In the event any section, subsection, subdivision, paragraph, subparagraph, item, sentence, clause, phrase or word of this chapter is declared or adjudged to be invalid or unconstitutional, such declaration or adjudication shall not affect the remaining provisions of this chapter which shall remain in full force and effect as if the portion so declared or adjudged invalid or unconstitutional was not originally a part of this chapter.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Secs. 34-7—34-18. Reserved.

ARTICLE II. FAIR HOUSING

DIVISION 1. GENERALLY

Sec. 34-19. Title.

This article shall be known and may be cited as the "Fair Housing Ordinance of the City of Durham."
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Secs. 34-20—34-45. Reserved.

DIVISION 2. PROHIBITED ACTS

Sec. 34-46. Discriminatory practices unlawful.

It is unlawful to commit or to attempt to commit directly or indirectly a discriminatory practice as defined in this article.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-47. Discrimination in real estate transactions.

(a) It is a discriminatory practice for an owner or any other person engaging in a real estate transaction, or for a real estate broker or agent, or for any other person because of the race, color, religion, national origin, sex, disability, familial status, military status, sexual orientation, gender identity, or protected hairstyle to:

(1) Refuse to engage in a real estate transaction with a person after the making of a bona fide offer;

(2) Discriminate against a person in the terms, conditions or privileges of a real estate transaction or in the provision of services or facilities in connection therewith;

(3) Refuse to receive or to fail to transmit a bona fide offer to engage in a real estate transaction from a person;

(4) Refuse to negotiate for a real estate transaction with a person, or otherwise make unavailable or deny a dwelling to any person;

(5) Represent to a person that real property is not available for inspection, sale, rental or lease, when in fact it is so available; or to fail to bring a property listing to a person's attention, or to refuse to permit a person to inspect real property;

(6) Make, print, circulate, post, mail, or cause to be made, printed or published, a statement, advertisement or sign, or to use a form of application for a real estate transaction or to make a record or inquiry in connection with a prospective real estate transaction, which indicates, directly or indirectly, an intent to make a limitation, specification, or difference with respect to race, color, religion, national origin, sex, disability, familial status, military status, sexual orientation, gender identity, or protected hairstyle;

(7) For profit, to induce or attempt to induce any person to sell or rent any dwelling by representations regarding entry or prospective entry into the neighborhood of a person of a particular race, color, religion, sex, disability, familial status, national origin, military status, sexual orientation, gender identity, or protected hairstyle;

(8) Offer, solicit, accept, use or retain a listing of real property with the understanding that a person may be discriminated against in a real estate transaction or in the provisions of facilities or services in connection therewith;

(9) Discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a disability of:

a. That buyer or renter; or

b. A person residing in or intending to reside in that dwelling after it is so sold, rented, or made available; or

c. Any person associated with that buyer or renter.

(10) Discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services of facilities in connection with such dwelling, because of a disability of:

a. That person; or

b. A person residing in or intending to reside in that dwelling after it is so sold, rented, or made available; or

c. Any person associated with that person.

(b) For purposes of subsections (a)(9) and (10) of this section, discrimination includes:

(1) A refusal to permit, at the expense of the person with a disability, reasonable modifications of existing premises occupied or to be occupied by such person if such modification may be necessary to afford such person full enjoyment of the premises, except that, in the case of rental, the landlord may, where it is reasonable to do so, condition permission for a modification on the renter agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted;

(2) A refusal to make reasonable accommodations in rules, policies, practices, or services when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling; or

(3) The failure to design and construct those covered multifamily dwellings available for first occupancy after March 13, 1991, in such a manner that:

a. The dwellings have at least one building entrance on an accessible route, unless it is impractical to do so because of terrain or unusual site characteristics; or

b. With respect to dwellings with a building entrance on an accessible route:

1. The public use and common use portions of such dwelling are readily accessible to and usable by persons with disabilities;

2. All the doors designed to allow passage into and within all premises within such dwellings are sufficiently wide to allow passage by persons with disabilities in wheelchairs; and

3. All premises within such dwellings contain the following features of adaptive design:

(i) An accessible route into and through the dwelling;

(ii) Light switches, electrical outlets, thermostats, and other environmental controls in accessible locations;

(iii) Reinforcements in the bathroom wall to allow later installation of grab bars; and

(iv) Usable kitchens and bathrooms such that an individual in a wheelchair can maneuver about the space.

Compliance with the appropriate requirements of the American National Standard for Buildings and Facilities Providing Accessibility and Usability for Physically Handicapped People (commonly cited as "ANSI A117.1-1986") suffices to satisfy the requirements of subsection (b)(3) of this section.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-48. Exemptions.

(a) The provisions of section 34-47 (other than section 34-47(a)(6)) do not apply to:

(1) Any single-family house sold or rented by an owner; provided, that such private individual owner does not own more than three such single-family houses at any one time, provided further, that in the case of the sale of any such single-family house by a private individual owner not residing in such house at the time of such sale or who was not the most recent resident of such house prior to such sale, the exemption granted by this subsection shall only apply with respect to one such sale within any 24-month period, provided further, that such bona fide private individual owner does not own any interest in, nor is there owned or reserved on such owner's behalf, under any express or voluntary agreement, title to or any right to all or a portion of the proceeds from the sale or rental of, more than three such single-family houses at one time, provided further, that the sale or rental of any such single-family house shall be exempted from the application of this article only if such house is sold or rented:

a. Without the use, in any manner, of the sales or rental facilities or the sales or rental services of any real estate broker or agent, or of such facilities or services of any person in the business of selling or renting housing accommodations, or of any employee or agent of any such broker, agent, or person; and

b. Without the publication, posting, or mailing, after notice, of any advertisement or written notice in violation of section 34-47(a)(6).

1. Nothing in subsection (1) of this section shall prohibit the use of attorneys, escrow agents, abstractors, title companies, or other such professional assistance as necessary to perfect or transfer the title.

2. For the purposes of subsection (1) of this section, a person shall be deemed to be in the business of selling or renting housing accommodations if:

(i) The person has, within the preceding 12 months, participated as principal in three or more transactions involving the sale or rental of any housing accommodations or interest therein, or

(ii) The person has, within the preceding 12 months, participated as agent, other than in the sale of the person's own personal residence, in providing sales or rental facilities or sales or rental services in two or more transactions involving the sale or rental of any housing accommodation or interest therein, or

(iii) The person is the owner of any housing accommodation designed or intended for occupancy by, or occupied by, five or more families.

(b) Rooms or units in housing accommodations containing living quarters occupied or intended to be occupied by no more than three families living independently of each other, if the owner actually maintains and occupies one of such living quarters as the owner's residence.

(c) With respect to discrimination based on sex, the rental or leasing of housing accommodations in a single-sex dormitory property.

(d) To private clubs, not in fact open to the public, which incident to their primary purpose, provide lodging, which they own or operate for other than a commercial purpose, to their members or give preference to their members.

(e) To the sale, rental, exchange, or lease of commercial real estate. For purposes of this article, commercial real estate means real property which is not intended for residential use.

(f) Nothing in this article shall prohibit a religious organization, association, or society, or any nonprofit institution or organization operated, supervised, or controlled by or in conjunction with a religious organization, association, or society, from limiting the sale, rental or occupancy of a dwelling which it owns for other than a commercial purpose to persons of the same religion, or from giving preference to such persons, unless membership in such religion is restricted because of race, color, national origin, sex, disability, familial status, military status, sexual orientation, gender identity, or protected hairstyle.

(g) No provision of this article regarding familial status applies with respect to housing for older persons. The term "housing for older persons" means housing:

(1) Provided under any federal or state program that the secretary of the department of housing and urban development determines is specifically designed and operated to assist elderly persons, as defined in the state or federal program.

(2) Intended for and solely occupied by persons 62 years of age or older.

(3) Intended for and operated for occupancy by at least one person 55 years of age or older per unit as shown by the following factors:

a. The existence of significant facilities and services specifically designed to meet the physical and social needs of older persons or, if this is not practicable, that such housing is necessary to provide important housing opportunities for older persons;

b. That at least 80 percent of the units are occupied by at least one person 55 years of age or older per unit;

c. The publication of and adherence to policies and procedures which demonstrate an intent by the owner or manager to provide housing for persons 55 years or older.

(4) Housing shall not fail to meet the requirements for housing for older persons by reason of:

a. Persons residing in such housing as of the date of enactment of the ordinance from which this article is derived who do not meet the requirements of subsections (g)(2) and (3) of this section; provided that new occupants of such housing meet the age requirements of subsections (g)(2) and (3) of this section.

b. Unoccupied units, provided that such units are reserved for occupancy by persons who meet the age requirements of subsections (g)(2) and (3) of this section.

(5) Housing facilities newly constructed for first occupancy after March 12, 1989 shall satisfy the requirements of subsection (g)(3) of this section if, when 25 percent of the units are occupied, 80 percent of the occupied units are occupied by at least one person 55 years or older.

(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-49. Discrimination in financial practices.

It is an unlawful discriminatory housing practice for any person or other entity whose business includes engaging in residential real estate related transactions to discriminate against any person in making available such a transaction, or in the terms and conditions of such a transaction, because of race, color, religion, sex, national origin, disability, familial status, military status, sexual orientation, gender identity, or protected hairstyle. As used in this article, "residential real estate related transaction" means:

(1) The making or purchasing of loans or providing financial assistance:

a. For purchasing, constructing, improving, repairing, or maintaining a dwelling; or

b. Where the security is residential real estate; or

(2) The selling, brokering, or appraising of residential real estate.

The provisions of this section shall not prohibit any financial institution from using a loan application which inquires into a person's financial and dependent obligations or from basing its actions on the income or financial abilities of any person.

(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-50. Discrimination in the provisions of brokerage service.

It is a discriminatory practice to deny any person access to membership or participation in any real estate brokers' organization, multiple listing service, or other service, organization, or facility relating to the business of engaging in real estate transactions, or to discriminate

against a person in the terms or conditions of such access, membership, or participation because of race, color, religion, national origin, sex, disability, familial status, military status, sexual orientation, gender identity, or protected hairstyle.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-51. Other unlawful practices.

(a) It is an unlawful practice for any person to alter, destroy, or conceal any document or object or any other evidence in anticipation of or during the investigation or hearing of a fair housing complaint or to fail to make available to the commission or its duly authorized representatives any evidence subpoenaed or otherwise lawfully demanded with regard to such complaint, or to procure the absence of a witness subpoenaed by the commission.

(b) Restrictive covenants and conditions.

(1) Every provision in an oral agreement or written instrument relating to real property which purports to forbid or restrict the conveyance, encumbrance, occupancy or lease thereof to individuals of a specified race, color, religion, national origin, sex, disability, familial status, military status, sexual orientation, gender identity, or protected hairstyle is a discriminatory practice and is void.

(2) Every condition, restriction, or prohibition, including a right of entry or possibility of reverter, which directly or indirectly limits the use or occupancy of real property on the basis of race, color, religion, national origin, sex, disability, familial status, military status, sexual orientation, gender identity, or protected hairstyle is a discriminatory practice and is void except as permitted by the exemption of section 34-48(d).

(c) It is an unlawful practice for a person, as a party to a conciliation agreement made under this article, to violate the terms of the agreement.

(d) It shall be unlawful to:

(1) Coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of the person having exercised or enjoyed their rights under this article or on account of the person having aided or encouraged any other person in the exercise or enjoyment of their rights under this article;

(2) Aid, abet, incite, compel or coerce a person to engage in any of the acts or practices declared unlawful by this article;

(3) Obstruct or prevent a person from complying with the provisions of this article or any order issued thereunder;

(4) Resist, prevent, impede, or interfere with the commission or any of its members or employees in the lawful performance of a duty under this article.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-52. Acting for another person no defense.

It shall be no defense to a violation of this article by a person that the violation was requested, sought or otherwise procured by another person.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-53. Right of persons with disabilities to housing.

(a) Each person with a disability shall have the same right as any other person to live and reside in residential communities, homes or group homes, and no person or group of persons, including governmental bodies, shall be permitted, or have the authority, to prevent any person with a disability, on the basis of their handicap, from living and residing in residential communities, homes, and group homes on the same basis and conditions as any other person. Nothing herein shall be construed to conflict with the provisions of G.S. ch. 122C.

(b) Any person with a disability who has or obtains a service animal shall be accorded the same rights under this article as are accorded in the provisions of G.S. 168-4.2.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Secs. 34-54—34-79. Reserved.

DIVISION 3. ENFORCEMENT

Sec. 34-80. Powers of the commission.

The commission shall, in addition to the powers set forth in this article, have the power:

(1) To receive, initiate, investigate, seek to conciliate, to arbitrate and conduct hearings on complaints filed under this article; to make recommendations to parties named in such complaints; and to approve or disapprove plans to eliminate or reduce the effects of discriminatory practices and monitor compliance with such plans.

(2) To require entry upon land and premises in the possession of a party to a complaint alleging a violation of the ordinance; to require answers to interrogatories and the production of documents and other tangible things for the purpose of inspection, copying, or translating; to administer oaths and examine witnesses under oath or affirmation and to compel the attendance of witnesses at hearings, depositions and other examinations by members of the commission or its agents, and the production of documents and other tangible things. Witnesses whose depositions are taken or who are summoned before the commission or its agents shall be entitled to the same witness and mileage fees as are paid to witnesses in the courts of this state.

(3) To apply to the Durham County Superior Court upon the failure of any person to respond to or comply with a lawful interrogatory, subpoena or request for the production of relevant evidence or possible sources of evidence, for an order requiring such person to respond to or comply with the interrogatory, subpoena or request for

the production of relevant evidence or possible sources of evidence. The court shall have jurisdiction to issue such order after notice to all proper parties. On petition of the person to whom the subpoena is directed, the court may vacate or modify the subpoena.

(4) To petition the court for any appropriate relief, if the commission determines following a hearing as provided for in section 34-84 that there is reasonable cause to believe that a violation of this article has occurred, and if efforts at conciliation have not been concluded to the satisfaction of the commission, or if the terms of any conciliation agreement negotiated by the commission, or binding arbitration entered into by the parties, under the provisions of this article, are not being complied with by the respondents.

(5) To adopt, promulgate, amend and rescind such rules and regulations to effectuate the purposes and policies of this article and the policies and practices of the commission, in connection therewith, including regulations requiring the posting or inclusion in advertising material of notices prepared or approved by the commission and regulations as to filing, approval or disapproval of plans to eliminate or reduce the effects of discriminatory practices. Such rules and regulations shall be approved by the city council.

(6) To impanel a hearing board to hear complaints, which board shall consist of five hearing officers who shall be members of the commission nominated by the chair of the commission and approved by at least a majority, a quorum being present and voting. No member of the hearing board shall have a part in the investigation of a complaint, except as to the issuance of subpoenas or interrogatories and other appropriate legal process.

(7) To seek prompt judicial action for appropriate temporary or preliminary relief pending final disposition of a complaint if the commission concludes that such action is necessary to carry out the purpose of this article. The commencement of a civil action under this section shall not affect the commission's continued investigation of any complaint filed pursuant to this article or the commission's initiation of a separate civil action pursuant to other sections of this article.

(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-81. Investigations; subpoenas.

(a) In conducting an investigation or hearing, the commission shall have access at all reasonable times to premises, records, documents, individuals, and other evidence or possible sources of evidence and may examine, record, and copy such materials and take and record the testimony or statements of such persons as are reasonably necessary for the furtherance of the investigation or hearing; provided, however, that the commission first complies with the provisions of the Fourth Amendment to the United States Constitution relating to unreasonable searches and seizures.

(b) The commission may issue subpoenas to compel access to or the production of such materials, or the appearance of such persons, and may issue interrogatories to a respondent, to the same extent and subject to the same limitations as would apply if the subpoenas or interrogatories were issued or served in aid of a civil action in the general courts of justice.

(c) Upon written application to the commission, a respondent shall be entitled to the issuance of a reasonable number of subpoenas subject to the same limitations as subpoenas issued by the commission. Subpoenas issued at the request of a respondent shall show on their face the name and address of such respondent and shall state that they were issued at the respondent's request.

(d) In case of contumacy or refusal to obey a subpoena, the commission or the respondent may petition for its enforcement in the superior court for the district in which the person to whom the subpoena was addressed resides, was served, or transacts business.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-82. Provisions for enforcement.

(a) Any person who claims to have been aggrieved by an unlawful discriminatory housing practice or who reasonably believes that the person will be aggrieved by an unlawful discriminatory housing practice may file a complaint with the city's human relations staff. A fair housing enforcement organization, as defined in regulations adopted under 42 USC 3602 (1968), may file a complaint with the staff on behalf of a person who claims to have been injured by or reasonably believes the person will be irrevocably injured by an unlawful discriminatory housing practice. A complaint shall be filed within one year after the alleged violation occurred or terminated. Complaints shall be in writing, shall state the facts upon which the allegation of an unlawful discriminatory housing practice is based, and shall contain such other information and shall be in such form as the staff requires. The staff shall assist complainants in reducing complaints to writing and in setting forth the information in the complaint as may be required by the staff. Within ten days after receipt of the complaint, the staff shall cause to be served on the respondent, by certified mail or personal service, a copy of the complaint and a notice advising the respondent of the respondent's procedural rights and obligations under this article; within the same time period, the staff shall serve on the complainant, by certified mail or personal service, a notice acknowledging the filing of the complaint and advising the complainant of the respondent's time limits and choice of forums under this article.

(b) A respondent may file an answer to the complaint against him or her within ten days after receiving a copy of the complaint. The complaint and the answer may be amended at any time with leave of the staff, which shall be granted whenever it would be reasonable and fair to do so. Complaints and answers shall be verified.

(c) A person who is not named as a respondent in a complaint, but who is identified as a respondent in the course of the investigation, may be joined as an additional or substitute respondent upon the director sending such person as a respondent, a copy of the complaint and written notice identifying the alleged discriminatory housing practice and advising the

respondent of the respondent's procedural rights and obligations under this article. The notice shall also explain the basis for the staff's belief that the person to whom the notice is addressed is properly joined as a respondent.

(d) Within 30 days after the filing of the complaint, the staff shall commence an investigation of the complaint to ascertain the facts relating to the alleged unlawful discriminatory housing practice. If the complaint is not resolved before the investigation is completed, upon completion of the investigation, the staff shall determine whether there are reasonable grounds to believe that an unlawful discriminatory housing practice has occurred or is about to occur. The staff shall conclude its investigation and make a determination of reasonable cause within 100 days after the filing of the complaint. If the staff is unable to complete the investigation and make a determination within 100 days after the filing of the complaint, the staff shall notify the complainant and respondent in writing of the reasons for not doing so.

(e) At the conclusion of each investigation under this section, the staff shall prepare a final investigative report containing:

(1) The names and dates of contacts with witnesses;

(2) A summary and the dates of correspondence and other contacts with the aggrieved person and the respondent;

(3) A summary description of other pertinent records;

(4) A summary of witness statements; and

(5) Answers to interrogatories.

(f) A final investigative report may be amended if additional evidence is later discovered.

(g) The staff shall make available to the aggrieved person and the respondent, at any time, upon request following completion of the staff's investigation, information derived from an investigation and any final investigative report relating to that investigation.

(h) If, it is decided by the director that there is no reasonable cause to believe that the respondent has engaged or is about to engage in a discriminatory practice in violation of this division, the director shall issue a short and plain written statement of the facts upon which the director has based the no reasonable cause determination, dismiss the complaint, and notify the aggrieved person and the respondent of the dismissal by certified mail or personal service within ten days after making such a determination.

(i) If the director determines that reasonable cause exists to believe that a discriminatory housing practice has occurred or is about to occur, the director shall immediately issue a charge on behalf of the aggrieved person and shall notify the aggrieved person and the respondent of this determination by certified mail or personal service. Such charge:

(1) Shall consist of a short and plain statement of the facts upon which the director has found reasonable cause to believe that a discriminatory housing practice has occurred or is about to occur;

(2) Shall be based on the final investigative report; and

(3) Need not be limited to the facts or grounds alleged in the complaint filed under subsection (a) of this section.

(j) Together with the service of the charge, the director shall provide the aggrieved person and the respondent with the following:

(1) Information as to how to make an election under section 34-87 and the effect of such an election; and

(2) A notice of an opportunity for a hearing under section 34-84 at a time and place specified in the notice unless that election is made.

(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-83. Conciliation procedures.

(a) During the period beginning with the filing of the complaint and ending with the filing of a charge or the dismissal of the complaint by the director, the director shall to the extent feasible, attempt to conciliate the complaint.

(b) In conciliating a complaint, the director will attempt to achieve a just resolution of the complaint and to obtain assurances that the respondent will satisfactorily remedy any violations of the rights of the aggrieved person, and take such action as will assure the elimination of discriminatory housing practices, or the prevention of their occurrences, in the future.

(c) A conciliation agreement arising out of such conciliation shall be an agreement between the respondent and the complainant, and shall be subject to approval by the director.

(d) The terms of a settlement of a complaint will be reduced to a written conciliation agreement. The conciliation agreement shall seek to protect the interests of the aggrieved person, other persons similarly situated, and the public interest. Each conciliation agreement shall be made public unless the complainant and the respondent otherwise agree and the commission determines that disclosure is not required to further the purposes of this article.

(e) Nothing said or done in the course of conciliation under this article may be made public or used as evidence in a subsequent proceeding under this article without the written consent of the persons concerned.

(f) A conciliation agreement negotiated by the director may include but is not limited to the:

(1) Affirmative or prohibitory language regarding the sale, exchange, lease, rental, assignment, or sublease of real property to a person;

(2) Extension to all persons of the full and equal enjoyment of the advantages, facilities, privileges and services of the respondent;

(3) Reporting as to the manner of compliance;

(4) Posting of notices in conspicuous places in the respondent's place of business in a form prescribed by the commission; and

(5) Payment to the complainant of actual damages, including compensation for humiliation or embarrassment, and reasonable attorney fees.

(g) At any time, but not later than one year from the date of a conciliation agreement, the director shall investigate whether the terms of the agreement are being complied with by the respondent. Upon deciding that the terms of the agreement are not being complied with by the respondent, the director shall take informal action to seek voluntary compliance with the agreement. If informal action does not result in compliance, the director, shall file a civil action for the enforcement of the terms of the conciliation agreement.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-84. Administrative hearing.

(a) Unless the director has decided that there is no reasonable cause to believe that a discriminatory practice has occurred or is about to occur, an election has been made under section 34-87, or a conciliation agreement has been negotiated under section 34-83, a hearing board, as constituted under section 34-80(6), shall hold a hearing, after proper notice, under the rules and procedures adopted by the council under this article.

(b) At a hearing under this section, each party may appear in person, be represented by counsel, present evidence, cross examine witnesses, and obtain the issuance of subpoenas under section 34-81. Any aggrieved person may intervene as a party in the proceeding. The commission shall be considered a party in the proceeding without the need to intervene and shall maintain the proceeding on behalf of the aggrieved person.

(c) The director shall have the authority to promulgate rules and regulations providing for expedited discovery.

(d) The hearing board shall have the authority to conduct hearings under this section, issue subpoenas under section 34-81, conciliate all matters in controversy and enter into binding conciliation agreements, make final findings of fact and conclusions of law, and enter all orders necessary to the conduct of hearings held under this section.

(e) If the hearing board determines as a result of the hearing that there is no reasonable cause to believe that the respondent has engaged in a discriminatory practice under this article, the hearing board shall state its findings of fact and conclusions of law and shall issue an order dismissing the complaint and furnish a copy of the order to the complainant, the respondent, and such persons as the commission deems proper.

(f) If the hearing board finds that a respondent has engaged or is about to engage in a discriminatory housing practice, it shall promptly issue an order for such relief as may be appropriate, which may include actual damages suffered by the aggrieved person and injunctive or other equitable relief. Such order may, to vindicate the public interest, assess a civil penalty against the respondent:

(1) In an amount not exceeding $10,000.00 if the respondent has not been adjudged to have committed any prior discriminatory housing practice;

(2) In an amount not exceeding $25,000.00 if the respondent has been adjudged to have committed one other discriminatory housing practice during the five-year period ending on the date of the filing of this charge; and

(3) In an amount not exceeding $50,000.00 if the respondent has been adjudged to have committed two or more discriminatory housing practices during the seven-year period ending on the date of the filing of this charge.

If the acts constituting the discriminatory housing practice that is the object of the charge are committed by the same natural person who has been previously adjudged to have committed acts constituting a discriminatory housing practice then the civil penalties set forth in subsections (b) and (c) of this section may be imposed without regard to the period of time within which any subsequent discriminatory housing practice occurred.

(g) The hearing board shall commence the hearing under this section no later than 120 days following the issuance of the charge, unless it is impracticable to do so. If the board is unable to commence the hearing within 120 days after the issuance of the charge, it shall notify the director, the aggrieved person on whose behalf the charge was filed, and the respondent, in writing of the reasons for not doing so.

(h) The hearing board shall make findings of fact and conclusions of law within 30 days after the end of the hearing under this section, unless it is impracticable to do so. If the board is unable to make findings of fact and conclusions of law within such period, or any succeeding 30-day period thereafter, the board shall notify the director, the aggrieved person on whose behalf the charge was filed, and the respondent, in writing of the reasons for not doing so.

(i) The director shall have the authority to review any finding, conclusion, or order issued under this section not later than 30 days after the finding, conclusion, or order is issued, otherwise the finding, conclusion, or order becomes final.

(j) The director shall cause any findings of fact and conclusion of law made with respect to any final orders for relief under this section, together with a copy of such order, to be served upon each aggrieved person and each respondent in the proceeding.

(k) The commission shall make final administrative deposition of a complaint within one year of the date the complaint is filed, unless it is impracticable to do so. If the commission is unable to do so, it shall notify the complainant and respondent in writing of the reasons for not doing so.

(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-85. Judicial review of committee orders.

(a) Any party aggrieved by a final order for relief under this division granting or denying in whole or in part the relief sought may obtain a review of such order under G.S. 150B-38 et seq.

(b) Notwithstanding such statute, petitions for judicial review shall be filed in the Superior Court of Durham County. The trial court judge may grant to the petitioner, or to any other party, such temporary relief, restraining order, or other order as the court determined is just and proper and the trial court judge may affirm, modify, or set aside, in whole or in part, the committee's order, or remand the order for further proceedings and enforce the order to the extent that the order is affirmed or modified.

(c) The term "agency," whenever used in G.S. 150B-38 et seq., shall mean the Durham Human Relations Commission.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-86. Enforcement of commission orders.

(a) If, within 60 days after entry of an order of the commission, a respondent has neither complied with nor sought review of such order, any aggrieved person or the commission may apply to the Superior Court of Durham County for any order of the court enforcing the order of the commission.

(b) Within 30 days after the court's receipt of the petition for enforcement of the commission's order, or within such additional time as the court may allow, the commission shall transmit to the court the original or a certified copy of the entire record of the proceedings leading to the order. With the permission of the court, the record may be shortened and testimony submitted by tape recording, by stipulation of all parties. Any party unreasonably refusing to stipulate to limit the record may be taxed by the court for such additional cost as may be occasioned by the refusal. The court may require or permit subsequent corrections or additions to the record when deemed desirable.

(c) The hearing on the petition for enforcement of the commission's order shall be conducted by the court without a jury. The court shall hear oral arguments and receive written briefs, but shall take no evidence not offered at the commission's hearing; except that in cases of alleged irregularities in proceedings before the commission not shown in the record, testimony thereon may be taken by the court; and except that where no record was made of the proceedings or the record is inadequate, the judge in their discretion, may hear all or part of the matter de novo.

(d) The court shall issue the order requiring compliance with the commission's order, unless it finds that enforcement of the commission's order would prejudice substantial rights of the party against whom the order is sought to be enforced, because the commission's findings, inferences, conclusions or decisions are:

(1) In violation of constitutional provisions;

(2) In excess of the statutory authority or jurisdiction of the commission;

(3) Made upon unlawful procedure;

(4) Affected by other error of law;

(5) Unsupported by substantial evidence in view of the entire record as submitted; or

(6) Arbitrary or capricious.

(e) If the court declines to enforce the commission's order for one of the reasons specified in subsection (d) of this section, it shall either:

(1) Dismiss the petition;

(2) Modify the commission's order and enforce it as modified; or

(3) Remand the case to the commission for further proceedings.

(f) Any party to the hearing on the petition for enforcement of the commission's order may appeal the court's decision to the appellate division under the rules of procedure applicable to other civil cases.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-87. Civil action in lieu of administrative hearing.

(a) After the director or commission makes a finding of reasonable cause, the aggrieved person or the respondent has the right to elect to proceed immediately to the Durham County Superior Court rather than proceed through the administrative hearing process. The election must be submitted in writing to the city human relations department within 20 working days after the receipt by the electing person of service of the commission's decision. The person making the election shall give the notice of doing so to all other complainants and respondents to whom the charge relates.

(b) If an election is made under this subsection, the commission shall, no later than 60 days thereafter, commence a civil action in the Durham County Superior Court in its own name on behalf of the complainant. In such an action, the commission shall be represented by an attorney employed by the city at the city's expense. If the court, in such an action, finds that the respondent has engaged in or is engaging in a discriminatory housing practice charged in the complaint, the court may enjoin the respondent from engaging in such discriminatory housing practice, award special damages, actual damages and punitive damages.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-88. Private right of action.

(a) The complainant has a private right of action under the Civil Rights Act of 1968, as amended, and under this article. The complainant shall file a civil action under this article not later than one year after an alleged discriminatory housing practice has occurred or terminated. The computation of such one-year period shall not include any time during which all administrative proceeding under this article was ending with respect to a

complaint or charge under this article based upon such discriminatory housing practice. The foregoing sentence shall not apply to actions arising from a breach of a conciliation agreement.

(b) If the court finds that the respondent has engaged in or is engaging in an unlawful housing practice charged in the complaint, the court may enjoin the respondent from engaging in such unlawful housing practice, award special damages, actual damages and punitive damages. The court, in its discretion, may allow the prevailing party in any action or proceeding under this article, other than the commission, a reasonable attorney's fee and costs.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-89. Records.

(a) Every person subject to this article shall make, keep and preserve records relevant to the determination of whether discriminatory practices have been or are being committed, such records being maintained and preserved in a manner and to the extent required under the Civil Rights Act of 1968, as amended, and any regulations promulgated thereunder. Nothing in this article shall be interpreted to require the making, keeping and preserving of records other than and except as required under the Federal Act of 1968, 42 USC 3601 et seq., and any regulations promulgated thereunder.

(b) In connection with a complaint filed under this article, the commission or commission members, upon complete disposition of the complaint, shall have access at any reasonable time to premises, records and documents relevant to the complaint, and the right to examine, photograph and copy evidence, in compliance with the North Carolina Rules of Civil Procedure.

(c) Neither a complaint filed with the commission pursuant to this article nor the results of the commission's investigations, discovery or attempts at conciliation, in whatever form prepared and preserved, shall be subject to inspection, examination or copying under G.S. ch. 132. Each conciliation agreement shall be public record unless the aggrieved person and respondent otherwise agree and either the director or the commission determine that disclosure is not required to further the purposes of this article.

(d) The provisions of G.S. 143-318.9 et seq. shall not be applicable to the activities of the commission to the extent that it is receiving a complaint or conducting an investigation, discovery or conciliation pertaining to a complaint filed pursuant to this article. Hearings before the hearing board pursuant to section 34-84 hereof shall not be private, but shall be public.

(e) Nothing said or done in the course of such conciliation may be made public or used as evidence in a subsequent proceeding without the written consent of the persons concerned.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

ARTICLE III. EMPLOYMENT AND PUBLIC ACCOMMODATIONS ORDINANCE

DIVISION 1. GENERALLY

Sec. 34-90. Title.

This article shall be known and may be cited as the " Employment and Public Accommodations Ordinance of the City of Durham."
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

DIVISION 2. PROHIBITED ACTS

Sec. 34-91. Discriminatory practices unlawful.

It is unlawful to commit or to attempt to commit directly or indirectly a discriminatory practice in the City of Durham as defined in this article.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-92. Discrimination in places of public accommodation prohibited.

It shall be unlawful for any owner, proprietor, employer, keeper, or manager in a place of public accommodation to deny the full and equal enjoyment of the accommodations, advantages, facilities, or privileges thereof to any person in the City of Durham or to discriminate against any person in the City of Durham because of the person's race, color, religion, national origin, sex, disability, familial status, military status, sexual orientation, gender identity, and protected hairstyle.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-93. Discrimination in employment prohibited.

It shall be unlawful for any employer to refuse to hire any person in the City of Durham or to discriminate against any person in the City of Durham with respect to hiring, tenure, conditions, or privileges of employment, or any matter directly or indirectly related to employment because of the person's race, color, religion, national origin, sex, disability, familial status, military status, sexual orientation, gender identity, and protected hairstyle.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-94. Other unlawful practices.

(a) It is an unlawful practice for any person to alter, destroy, or conceal any document or object or any other evidence in anticipation of or during the investigation or hearing of a discrimination complaint or to fail to make available to the city or the commission or its duly authorized representatives any evidence subpoenaed or otherwise lawfully demanded with regard to such complaint, or to procure the absence of a witness subpoenaed by the commission.

(b) It shall be unlawful to:

(1) Coerce, intimidate, threaten, or interfere with any person in the City of Durham in the exercise or enjoyment of, or on account of the person having exercised or enjoyed their rights under this article or on account of the person having aided or encouraged any other person in the exercise or enjoyment of their rights under this article;

(2) Aid, abet, incite, compel or coerce a person to engage in any of the acts or practices declared unlawful by this article;

(3) Obstruct or prevent a person from complying with the provisions of this article or any order issued thereunder;

(4) Resist, prevent, impede, or interfere with the city or its employees or the commission or any of its members in the lawful performance of a duty under this article.

(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-95. Exceptions.

(1) Notwithstanding the foregoing, the following are not discriminatory practices prohibited by sections 34-92 and 34-93:

(2) A religious organization or religious entity that employs an individual of a particular religion to perform work connected with the performance of religious activities by the organization or entity.

(3) Use of a person's unfavorable discharge from military service as a valid employment or employment eligibility criterion where (i) authorized by federal or state law or regulation or (ii) due to a business necessity.

(4) Giving preferential treatment to veterans and their relatives.

(5) An employer who observes the conditions of a bona fide seniority system or bona fide affirmative action plan that is not a pretext to evade the purposes of this chapter. An affirmative action plan is any plan devised to effectuate remedial or corrective action taken in response to past discriminatory practices against a historically marginalized group, or as otherwise required by state or federal law.

(6) A religious educational institution or an educational institution operated, supervised, or controlled by a religious organization or religious entity that limits admission or gives preference to an applicant of the same religion.

(7) A religious organization that limits its non-commercial accommodations, advantages, facilities, membership, and privileges to persons of the same religion.

(8) A private club in fact not open to the public, which as an incident to its primary purpose provides lodging which it owns or operates for other than a commercial purpose, limits the rental or occupancy to its members, or gives preference to its members.

(9) A private club or other enterprise in fact not open to the public that limits the services or amenities that it provides to its members or gives preference to its members.

(10) Nothing in this article shall prohibit an employer from requiring an employee, during the employee's hours at work, to adhere to reasonable dress or grooming standards that are due to a business necessity and that are not prohibited by federal, state, or local law.

(11) Nothing in this article shall require an employer to hire unqualified individuals or to retain employees when there is a legitimate non-discriminatory or non-retaliatory reason to terminate employment.

(12) Nothing in this article shall require any individual, business, club, institution, or membership organization to take action in violation of the rights granted by the Constitutions of the United States and the State of North Carolina.

(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-96. Acting for another person no defense.

It shall be no defense to a violation of this article by a person that the violation was requested, sought or otherwise procured by another person.

(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

DIVISION 3. ENFORCEMENT

Sec. 34-97. Penalties and enforcement.

(a) Any person violating any provisions of this article may be subject to an enforcement action brought under G.S. 160A-175(d) and (e) for an appropriate equitable remedy, including for a mandatory or prohibitory injunction commanding the defendant to correct the discrimination prohibited under this article.

(b) Each day's continuing violation of any provisions of this article shall be a separate and distinct offense for purposes of all remedies.

(Ord. No. 15762, § 1(Exh. A), 1-19-2021; Ord. No. 15982, § 71, 8-1-2022)

Secs. 34-98—34-106. Reserved.

ARTICLE IV. HUMAN RELATIONS COMMISSION

Sec. 34-107. Established.

There is hereby established a commission to be known as the human relations commission, herein referred to as the commission, which shall be appointed, organized, and function as hereinafter provided.

(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

State law reference—Appointment of human relations committee, G.S. 160A-492.

Sec. 34-108. Composition; appointment and terms of members; filling vacancies.

(a) The commission shall consist of 17 members. Sixteen members shall be appointed by council. One member shall be appointed by the mayor. Such persons shall be citizens and residents of the city. The goal is that these 17 voting members represent the diverse social, economic, gender, sexual orientation, ability, religious affiliations, and racial and ethnic composition of the city. To assist the council in achieving this goal, the commission shall proactively encourage applicants of diverse backgrounds to apply to serve on the commission.

(b) The recommended commission membership shall consist of a diverse body representative of the City of Durham. Ideally, all racial and ethnic groups shall be represented with an effort to ensure that a single racial/ethnic group does not exceed 35 percent of the commission. Ideally, all genders shall be represented with an effort to ensure that no gender be represented by more than 53 percent. The mayor's appointee may be from any racial, ethnic, or gender group.

The city clerk shall cause public notice to be given when vacancies occur in one of the aforementioned seats. However, after three months from the date of such public notice, if there is no applicant appointed who identifies as one or more of the missing racial/ethnic groups, then the council shall fill the vacancy with otherwise qualified applicants.

(c) The term of office of each commissioner is three years; the terms are staggered, so that the terms of five members shall expire each year. The term of office of each commissioner expires on June 30 of the last year of the term; provided, however, that a commissioner shall continue in office beyond the expiration of the term until such time as a successor may be appointed. Commissioners are limited to serving two consecutive terms. Citizens must wait for one full term before reapplying for appointment except in unusual circumstances.

(d) A person appointed to fill a vacancy occurring prior to the expiration of a term shall be appointed only for the unexpired part of that term.

(e) Any member absent for more than two consecutive regular meetings or more than three regular meetings in a year shall be deemed as having an excess of absences and recommendation will be made to the city council for removal from the commission. The commission may excuse the absence of a member of the commission for good cause provided that notice is given prior to the meeting.

(Ord. No. 15762, § 1(Exh. A), 1-19-2021; Ord. No. 16270, § 1(Exh. A), 2-19-2024)

Sec. 34-109. Meetings; officers.

The commission shall fix the time and place for its regular meetings and shall hold at least one regular meeting each month, except for the month of July. The commission shall elect a chair and vice-chair. The chair, vice-chair, the city manager or the director hereinafter provided for may call special or emergency meetings of the commission consistent with G.S. 143-318.9 et seq. The person calling a special or emergency meeting shall promptly notify each member of the commission of the called meeting.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-110. Voting.

Each member of the commission, including the officers, but not the director, shall have one vote. A quorum shall consist of a majority of the appointed members at any regular or special meeting, and no business or function of the commission shall be transacted at regular or special meetings unless a quorum is present. Proxies shall not be permitted, and no vote on any questions shall be considered or counted unless cast by such member of the commission. All questions and actions shall require at least a majority vote of the number of members present at any regular or special meeting for passage or approval.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-111. Rules of procedure.

The commission may adopt rules of procedure to be followed in conducting its affairs.
(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Sec. 34-112. Powers and duties of commission.

In order to carry out the general intent and purpose of this article, the commission shall have the following powers and duties:

(1) To act as public forum in hearing complaints involving racial tension, to bring together the parties involved to discuss the facts, and to assist in the resolution of such complaints.

(2) To receive complaints alleging discrimination in housing because of race, color, sex, religion, national origin, familial status, disability, military status, sexual orientation, gender identity, or protected hairstyle, and to investigate, mediate, and conciliate such complaints.

(3) To develop an atmosphere conducive to the best possible human relations, to conduct studies, suggest areas of concern and recommend any action to the city council that the commission feels is necessary and may be lawfully taken to minimize areas of conflict and to promote harmonious relations.

(4) To provide open channels of useful communication among the various racial, religious, ethnic and economic groups in the city and between those groups and the city council so that misunderstandings and wide differences leading to conflict may be ameliorated.

(5) To do research, obtain factual data, hold meetings with citizens and consider and recommend the best and fairest means of progressively improving human relations among all citizens of the city.

(6) To institute and conduct educational programs that promote fairness and courtesy in dealing with people of all racial, religious, ethnic and economic backgrounds and status and that promote equal treatment, equal opportunity and mutual understanding and respect for all citizens; and to sponsor meetings, forums and courses of instruction intended to lead to a clearer understanding by all citizens of the true meaning of responsible citizenship in the community and of the obligations inherent in being a good citizen; all with the end in view that the programs should contribute in a helpful way to a positive atmosphere of human relations between people of different racial, religious, ethnic or economic status toward each other and to the reaching of a fair and just solution of problems in human relations.

(7) To render at least annually a written report to the city council. In its report, the commission may make recommendations to the council and propose legislation that the commission considers desirable.

(8) To promote equitable and proportionate representation of all traditionally underrepresented groups on public boards and agencies in the city.

(Ord. No. 15762, § 1(Exh. A), 1-19-2021)

Chapters 35—37

RESERVED

Chapter 38

PARKS AND RECREATION*

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Sec. 38-1. Department of recreation and office of director—Creation.
Sec. 38-2. Same—Function of director.
Sec. 38-3. Recreation advisory commission—Created; composition.
Sec. 38-4. Same—Organization.
Sec. 38-5. Same—Functions.
Sec. 38-6. Same—Annual reports.
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Sec. 38-8. Use after closing hours; removing locks and barriers.
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Sec. 38-14. Outdoor musical concerts and performances generally—Permit required.
Sec. 38-15. Same—Concerts in city parks; permit required.
Sec. 38-16. Police protection at dances, etc., at recreational facilities.
Sec. 38-17. Ejection of disorderly persons from recreational facilities.
Sec. 38-18. Spruce Pine property; supervision and inspection.
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Article II. Lake Michie

Sec. 38-73. Lake warden—Official custodian.
Sec. 38-74. Same—Collection, etc., of fees by lake warden.
Sec. 38-75. Same—Reports by lake warden.
Sec. 38-76. Posting of copies of article, etc.
Sec. 38-77. Adoption of wildlife resources commission regulations as to fishing, etc.
Sec. 38-78. Adoption of Uniform State Waterway Marking System.
Sec. 38-79. Purpose of regulations.
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ARTICLE I. IN GENERAL

Sec. 38-1. Department of recreation and office of director—Creation.

Subject to the general control and supervision of the city manager, there is hereby created the department of parks and recreation and the office of director of parks and recreation. (Code 1964, § 16-1; Code 1982, § 13-1)

Sec. 38-2. Same—Function of director.

The director of parks and recreation shall have general supervision, direction and control over all public recreation personnel, programs, activities, facilities and areas of the city. (Code 1964, § 16-2; Code 1982, § 13-2)

Sec. 38-3. Recreation advisory commission—Created; composition.

(a) There is hereby created a recreation advisory commission.

(b) The city council shall appoint nine persons to serve without compensation as members of the recreation advisory commission. The terms of the members shall be staggered so that the terms of three members shall expire each year. Each member shall serve for a term of three years, provided, however, the terms of members first appointed may be shortened in order to achieve the required staggered terms. The city council shall fill any vacancy which may occur prior to the end of a term by appointment for the unexpired portion of the term. Each member shall be a resident of the city. At least one of the nine appointed members shall be a person with a disability. Members are limited to serving two consecutive terms. Citizens must wait for one full term before reapplying for appointment except in unusual circumstances. (Code 1964, §§ 16-3, 16-4; Code 1982, § 13-3; Ord. No. 4996, § 1, 9-18-1978; Ord. No. 5450, § 1, 9-2-1980; Ord. No. 7958, §§ 1, 2, 11-20-1989; Ord. No. 10393, § 1, 1-17-1995)

Sec. 38-4. Same—Organization.

(a) The recreation advisory commission shall annually elect a chair and a vice-chair from its members. The director of recreation shall serve as the secretary.

(b) The recreation advisory commission shall hold meetings regularly at least each month on such days and at such hours as may be fixed by the commission. Special meetings may be held on call of the chair upon 24 hours' notice to the members of the commission. A full account of all meetings shall be recorded in a minute book to be kept by the secretary. (Code 1964, §§ 16-5, 16-6; Code 1982, § 13-4)

Sec. 38-5. Same—Functions.

(a) The recreation advisory commission shall perform the following functions:

(1) To formulate a master plan for recreation for the city.

(2) To make recommendations to the city council from time to time with respect to recreation programs, facilities, resources and needs of the city.

(3) To advise with the director of recreation with respect to the conduct of recreation programs and activities.

(4) To assist in the coordination of the city recreation program with that of private, public or semipublic agencies.

(5) To perform such other duties as may be assigned by the city council.

(b) It is hereby declared that all of the functions of the recreation advisory commission are recommendatory only, and its actions are not binding upon the director of recreation, the city manager or the city council.
(Code 1964, § 16-7; Code 1982, § 13-5)

Sec. 38-6. Same—Annual reports.

The recreation advisory commission shall make a report of its activities and plans to the city council at least annually before July 1.
(Code 1964, § 16-8; Code 1982, § 13-6)

Sec. 38-7. Violation of rules and regulations of department of recreation.

It shall be unlawful for any person to knowingly violate any rule or regulation adopted by the department of recreation and approved by the city council. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 16-11; Code 1982, § 13-7; Ord. No. 15982, § 72, 8-1-2022)

Sec. 38-8. Use after closing hours; removing locks and barriers.

(a) In every case in which the department of recreation has posted a notice setting forth the closing time of a particular area, it shall be unlawful for any person to use or be in or on any such park or recreational area or facility after the closing hour set forth on the notice applying to the particular area. The use by, or presence of, any person in such park or recreational area or facility for any purpose after the closing hour applying to such area shall constitute a trespass. This section shall not be construed to apply to persons in or upon such areas in pursuance of or in connection with their official duties.

(b) It shall be unlawful and shall constitute a trespass for any unauthorized person to remove a lock or a barrier installed to prohibit access into a park facility without written permission for that removal by the department of recreation. This prohibition does not apply to employees of the city acting pursuant to employment duties.

(c) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 13-26; Code 1982, § 13-8; Ord. No. 13460, §§ 1, 2, 8-6-2007; Ord. No. 15982, § 73, 8-1-2022)

Editor's note—Ord. No. 13460, § 1, adopted August 6, 2007, changed the title of § 38-8 from "Use after closing hours" to "Use of or entrance into closed facility." At the direction of the city, the title of § 38-8 has been changed to "Use after closing hours; removing locks and barriers."

Sec. 38-9. Hitting golf balls.

It shall be unlawful for any person to drive or hit a golf ball with golf club in or upon any public park or public playground under the supervision and control of the city, except where designated otherwise. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 13-21; Code 1982, § 13-9; Ord. No. 14420, § 1, 4-1-2013; Ord. No. 15982, § 74, 8-1-2022)

Sec. 38-10. Horseback riding.

It shall be unlawful for any person to ride horseback in any public park or playground, except upon bridle paths and areas specifically designated by the director of recreation for such purposes. When the director of recreation designates such bridle paths or other areas wherein horseback riding is permitted, appropriate signs shall be posted. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 13-22; Code 1982, § 13-10; Ord. No. 15982, § 75, 8-1-2022)

Sec. 38-11. Flying of model airplanes.

It shall be unlawful for any person to fly a model airplane in any park, playground or recreational area or property owned or operated by the city. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 13-23; Code 1982, § 13-11; Ord. No. 15982, § 76, 8-1-2022)

Sec. 38-12. Dumping rubbish, trash, etc.

It shall be unlawful for any person to dump, scatter or deposit, or to allow or permit the dumping, scattering or depositing of any rubbish, loose paper, trash, garbage, bottles or other refuse in or upon any public playground or public park area within the city. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 13-25; Code 1982, § 13-12; Ord. No. 15982, § 77, 8-1-2022)

Sec. 38-13. Breaking of glass bottles.

It shall be unlawful for any person knowingly or intentionally to break any glass bottle in any playground, park, swimming or wading pool or any other area in the city which is under the supervision of the department of public recreation. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 13-24; Code 1982, § 13-13; Ord. No. 15982, § 78, 8-1-2022)

Sec. 38-14. Outdoor musical concerts and performances generally—Permit required.

(a) The provisions of sections 26-23 and 26-24 shall not apply to the holding or conducting of outdoor musical concerts or performances for which a permit first has been obtained in the manner provided by this section.

(b) Any person may apply for a permit to hold or conduct an outdoor musical concert or performance by filing a written application for such permit with the city manager. The application shall be upon a form prescribed by the city manager.

(c) The city manager shall issue such permit upon making the following findings:

(1) That the concert is scheduled for a time that will not unreasonably interfere with the normal activities of surrounding residents, businesses or institutions;

(2) That the site proposed for the concert or performance will accommodate reasonably and safely the number of persons expected to attend such concert or performance;

(3) That the anticipated noise level of the concert or performance will not have an unreasonably adverse effect upon surrounding residents, businesses or institutions;

(4) That the pedestrian and motor vehicle traffic generated by the concert can be accommodated reasonably and safely on the streets and walkways of the area surrounding the proposed site of the concert or performance;

(5) That adequate security and crowd control can be provided by responsible public agencies;

(6) That adequate fire control and fire prevention service can be provided by responsible public agencies;

(7) That the applicant has obtained such liability insurance coverage as may be required for such events by a schedule of insurance to be maintained by the city manager and approved by the city council; and

(8) That all permits required by law or regulation have been obtained.

(d) Applications for outdoor musical concert or performance permits shall be filed with the city manager not later than 15 days before the proposed date of the concert or performance. The permit shall be granted or denied within a reasonable time after the filing of the application. The city manager shall provide for holding an informal hearing for any person whose application for a permit has been refused, provided however, that such person requests such informal hearing within a reasonable time after such denial.

(e) Any person aggrieved by a decision of the city manager may appeal such decision to the city council by giving notice for such appeal in writing to the city manager on a form prescribed by the city manager within 15 days after such decision. The appeal shall be set for hearing before the city council at the next regular meeting of the council. The city manager shall notify the person filing the appeal in writing of the time and place of the hearing. The city council may affirm, modify or reverse the decision of the city manager.
(Code 1964, § 13-18.1; Code 1982, § 13-14; Ord. No. 5303, § 1, 11-19-1979)

Sec. 38-15. Same—Concerts in city parks; permit required.

It shall be unlawful for any person to hold or conduct an outdoor musical concert or performance in a city park unless such person shall first apply for and obtain a permit from

the city manager authorizing the holding or conducting of such concert or performance. Said permit shall be in addition to the permit required by section 38-14. The city council shall establish by resolution the conditions upon which the city manager shall issue such permits. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 13-18.2; Code 1982, § 13-14.1; Ord. No. 5304, § 1, 11-19-1979; Ord. No. 15982, § 79, 8-1-2022)

Sec. 38-16. Police protection at dances, etc., at recreational facilities.

Persons operating or conducting dances or other functions in any recreational facility or building under the supervision of the recreation department shall provide such special protection as may be necessary to maintain order on the premises during the period of usage covered by the permit for such function.
(Code 1964, § 16-9; Code 1982, § 13-15)

Sec. 38-17. Ejection of disorderly persons from recreational facilities.

Any police officer and any employee of the parks and recreation department in charge of a city recreational facility shall have the right to eject from such recreational facility any person creating or engaging in any disturbance, breach of the peace or illegal or disorderly conduct and require such person to remain away from such premises for the remainder of the dance or other performance or, in the case of swimming pools, for the remainder of the day.
(Code 1964, § 16-10; Code 1982, § 13-16)

Sec. 38-18. Spruce Pine property; supervision and inspection.

The lake warden of Lake Michie shall help supervise the Spruce Pine property and make inspections under the direction of the director of recreation or the director of transportation and utilities, depending on use of the area.
(Code 1964, § 16-14; Code 1982, § 13-19)

Sec. 38-19. Twin Lakes Park—Authorized activities.

Fishing and the operation of rowboats are authorized at Twin Lakes Park.
(Code 1964, § 16-16; Code 1982, § 13-21; Ord. No. 5222, 8-6-1979; Ord. No. 5691, § 1, 6-1-1981)

Sec. 38-20. Motorized boats on city lakes.

Motorized boats shall not be used on lakes owned by the city, except by city employees in the performance of their duties, or by firefighting personnel, law enforcement personnel, EMS personnel, health care workers or providers, military personnel, civil preparedness personnel, emergency management personnel, public works personnel, public utility employees,

or other persons authorized by the city manager. In addition to any other remedy available in the Code, violation of this section is a misdemeanor. This section does not apply to Lake Michie or Little River Lake.

(Ord. No. 14421, § 1, 4-1-2013; Ord. No. 15982, § 80, 8-1-2022)

Editor's note—Ord. No. 14421, § 1, adopted April 1, 2013, amended section 38-20 in its entirety to read as herein set out. Formerly, section 38-20 pertained to Twin Lakes Park—Fee schedule, and derived from the Code of 1964, § 16-17; the Code of 1982, § 13-22; Ord. No. 5222, adopted August 6, 1979, and Ord. No. 5691, § 2, adopted June 1, 1981.

Sec. 38-21. Alcoholic beverages—Possession and consumption in public buildings and parks.

(a) Definitions. The following words shall have the meanings set forth herein unless the context clearly indicates otherwise:

Alcoholic beverage means any beverage containing at least one-half of one percent alcohol by volume including malt beverages, unfortified wine, fortified wine, spirituous liquor, and mixed beverages.

(b) Except as is provided in this section, no person shall consume any alcoholic beverage on any property owned or occupied by the city.

(c) The consumption of alcoholic beverages shall be lawful, upon the securing of the necessary permits from the city and the state alcoholic beverage control commission, in all city parks to include the following facilities and areas owned or operated by the city:

(1) West Point on the Eno;

(2) The police training and recreational facility at Lake Michie;

(3) The plaza on top of the Durham Centre Parking Garage (Peoples Plaza);

(4) Forest Hills Park;

(5) The Durham Armory;

(6) The CCB Plaza (being the area bounded by Chapel Hill St., Corcoran St., Parrish St., and Market St.);

(7) The Spruce Pine Lodge in the Lake Michie Recreation Area, including its lawn, the associated picnic areas, and the playfield;

(8) The Boat House in the Lake Michie Recreation Area, including its deck;

(9) The Historic Parrish Street Forum;

(10) The Leigh Farm Park;

(11) Rock Quarry Park;

(12) Duke Park;

(13) Oval Drive Park;

(14) Southern Boundaries Park;

(15) Northgate Park; and

(16) The following parks located within the downtown area of the city only when such parks are being used for events that are open to the general public: Muirhead Plaza, located at Five Points; Rotary Park, located at the intersection of Mangum Street and Morgan Street; and the park at the intersection of Mangum and Main Streets.

(d) Any person desiring to provide alcoholic beverages for consumption in one of the facilities or areas listed in subsection (c) of this section shall obtain a permit from the city manager or the city manager's designee and shall abide by any and all rules or regulations approved by the city manager concerning such consumption. Any issued permit shall specify the grounds and buildings of any of the named facilities and areas in which the consumption of alcohol has been approved. The permit may be issued only to groups sponsored by the City of Durham or groups renting City of Durham facilities.

(e) The consumption of alcoholic beverages shall be lawful, upon securing the necessary permits from the state alcoholic beverage control commission, in the following facilities and areas which have been leased from the city by outside agencies or are managed by a third party on behalf of the city:

(1) The property leased by the city to the Museum of Life and Science;

(2) Durham Convention Center and its Plaza;

(3) Durham Arts Council Building;

(4) Carolina Theatre Building;

(5) Farmers' Market Pavilion, the Sister Cities Grove (being the area bounded by the Farmers' Market Pavilion on the south, Roney Street on the west, the adjacent private property on the north, and Foster Street on the east), and the grassy meadow on the east side of Foster Street of Durham Central Park. However, the skate park area of Durham Central Park shall be excluded from alcohol consumption;

(6) Durham Athletic Park; provided, however, that the contents of any beer or wine sold in bottles or cans must be poured into cups;

(7) Durham Bulls Athletic Park; provided, however, that the contents of any beer or wine sold in bottles or cans must be poured into cups; and

(8) Durham Performing Arts Center and its plazas.

Nothing in this section shall be interpreted as preventing any of the agencies operating facilities listed in this subsection from determining under what circumstances, if any, they will permit the consumption of alcoholic beverages in those facilities.

(f) The following permit terms for alcohol usage shall apply:

(1) Any person serving alcoholic beverages shall post on site at all times during which alcoholic beverages are consumed one or more persons who shall be responsible for ensuring that no alcoholic beverages are provided to underage or intoxicated persons;

(2) Participants, guests and attendees of private and public functions where alcohol is served shall not be permitted to bring their own alcohol to an event; and

(3) City facilities leased from or managed pursuant to a third party agreement shall be governed by those agreements if they address liability requirements for events where alcohol may be served. Any person desiring to serve alcoholic beverages shall maintain general liability insurance applicable to the serving of alcoholic beverages at the event and shall name the city as an additional insured on the policy with respect to claims arising out of the use of the property owned or operated by the city. A certificate evidencing such insurance shall be submitted to the city manager's office or the manager's designee prior to the holding of an event where alcoholic beverages are served. Insurance shall be at the rate (combined single limit for bodily injury and property damage liability) designated by the city's risk manager. The city's risk manager may vary or waive any requirements stated in this subsection, depending upon the nature of the event for which the permit is to be issued.

(g) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(h) Nothing in this section shall be interpreted as preventing persons from consuming of alcoholic beverages within city parks, in conformity with what is permitted under the social district ordinance as set out in chapter 54 article VII titled Social Districts. This exception does not extend to parks displaying signage that alcoholic beverages or consumption of alcoholic beverages are prohibited within the park. Park(s) is defined as parks owned, operated, or maintained by the city.

(Code 1964, § 13-12; Code 1982, § 12-16; Ord. No. 4884, § 1, 3-20-1978; Ord. No. 4925, § 1, 7-17-1978; Ord. No. 5207, § 1, 7-16-1979; Ord. No. 5287, § 1, 11-5-1979; Ord. No. 5605, § 1, 3-2-1981; Ord. No. 5655, § 1, 4-21-1981; Ord. No. 6219, § 1, 11-7-1983; Ord. No. 6718, § 1, 5-7-1985; Ord. No. 6893, §§ 1, 2, 4-7-1986; Ord. No. 8024, § 1, 3-19-1990; Ord. No. 8072, § 1, 6-4-1990; Ord. No. 9677, § 1, 8-17-1992; Ord. No. 9687, § 1, 9-8-1992; Ord. No. 9993, § 1, 10-4-1993; Ord. No. 13291, §§ 1, 2, 6-19-2006; Ord. No. 13389, §§ 1—3, 3-5-2007; Ord. No. 14241, § 1, 4-2-2012; Ord. No. 14422, § 1, 4-1-2013; Ord. No. 14654, 6-16-2014; Ord. No. 15461, 5-6-2019; Ord. No. 15982, § 81, 8-1-2022; Ord. No. 16040, §§ 1,2, 11-7-2022)

State law reference—Drinking in public buildings, G.S. 18A-30.

Sec. 38-22. Parking in city parks.

(a) Unless otherwise designated by signage in a particular lot, no vehicle may park in a parking space in a city park lot longer than three hours.

(b) The director of recreation shall cause appropriate signs or markings to be maintained on each parking lot to which this section applies.

(c) It shall be unlawful for any person to park a vehicle in such way that such vehicle shall not be entirely within the limits of the parking space. It shall be unlawful for any person to park any vehicle across any line or marking of a space.

(d) It shall be unlawful for any person to cause, allow, permit, or suffer any vehicle registered in the name of or operated by such person to be parked overtime or beyond the period of legal parking time established for any parking space.

(e) It shall be unlawful to wash any vehicle or to make any repairs, except emergency repairs, to any vehicle parked in a park parking lot. In addition to any other remedy available in the Code, violation of this subsection (e) is a misdemeanor.

(f) The provisions of section 13-20 shall not apply to employees of the city acting pursuant to employment duties.
(Ord. No. 13460, §§ 3, 4, 8-6-2007; Ord. No. 15982, § 82, 8-1-2022)

Sec. 38-23. Water supply protection property.

Property owned by the city that protects the water quality of the city's surface water supplies and identified as such on a map maintained by the department of water management, shall be posted. In such case, hunting, fishing, or trapping; cutting trees or underbrush; possession of firearms; alcohol or drug use; and littering shall all be prohibited.
(Ord. No. 15520, § 1, 8-5-2019)

Secs. 38-24—38-72. Reserved.

ARTICLE II. LAKE MICHIE

Sec. 38-73. Lake warden—Official custodian.

The city lake warden shall be the official custodian of the lake and surrounding premises under the supervision of the director of recreation.
(Code 1964, § 11-1; Code 1982, § 13-30)

Sec. 38-74. Same—Collection, etc., of fees by lake warden.

Except as otherwise provided, the lake warden shall collect and properly account for all fees required by this article to be collected by him or her.
(Code 1964, § 11-2; Code 1982, § 13-31)

Sec. 38-75. Same—Reports by lake warden.

The lake warden shall from time to time render full and complete reports of his or her transaction as custodian of the city lake premises.
(Code 1964, § 11-3; Code 1982, § 13-32)

Sec. 38-76. Posting of copies of article, etc.

The lake warden shall post copies of this article and rules and regulations applying to the use of Lake Michie in the warden's office and other conspicuous places about the lake premises and recreation areas and shall direct every person to read them before fishing in Lake Michie.
(Code 1964, § 11-4; Code 1982, § 13-33)

Sec. 38-77. Adoption of wildlife resources commission regulations as to fishing, etc.

All regulations of the state wildlife resources commission with regard to licenses, manner of taking fish and the size and number of fish to be taken are hereby adopted by reference and shall be a part of this article.
(Code 1964, § 11-18; Code 1982, § 13-34)

State law reference—Wildlife Resources Law, G.S. 143-237 et seq.

Sec. 38-78. Adoption of Uniform State Waterway Marking System.

The Uniform State Waterway Marking System adopted for use in the state, and referred to in G.S. 75A-15(c), be and it is hereby adopted by reference for use on the waters of Lake Michie. A copy of the Uniform Waterway Marking System as approved by the advisory panel of state officials to the Merchant Marine Council, United States Coast Guard, which is on file in the office of the city clerk, is hereby adopted and enacted by reference.
(Code 1964, § 11-30.1; Code 1982, § 13-35)

Sec. 38-79. Purpose of regulations.

In order to adequately protect the primary watershed of the city, the provisions of this article are hereby established and shall govern the use of Lake Michie, a primary reservoir used as a recreation area, and shall be enforced to prevent the pollution of water and the erosion of protective lands. All provisions of this article shall be subject to the standards of the city council, the state board of health and the state wildlife resources commission.
(Code 1964, § 11-5; Code 1982, § 13-36)

Sec. 38-80. Compliance with article.

It shall be unlawful for any person to violate any of the provisions of this article.
(Code 1964, § 11-43; Code 1982, § 13-37)

Sec. 38-81. Denial of admission to violators.

The lake warden shall deny admission to Lake Michie to any person known to him or her to have willfully violated the provisions of this article.
(Code 1964, § 11-38; Code 1982, § 13-38)

Sec. 38-82. Ejection of persons for violation.

The authorized personnel in charge of Lake Michie and the Lake Michie watershed area may cause the ejection and removal from the premises of any person violating any of the provisions of this article. If any person shall violate any of the provisions of this article, and shall refuse to leave the premises upon request so to do made by an authorized official, his or her refusal to obey such request to leave shall constitute such offender as a trespasser and subject to prosecution.
(Code 1964, § 11-41; Code 1982, § 13-39)

Sec. 38-83. Denial of admission to careless persons.

Persons who are consistently careless in the operation of boats or in their behavior on the lake so as to constitute a menace to themselves or to others shall be denied admission to the lake.
(Code 1964, § 11-39; Code 1982, § 13-40)

Sec. 38-84. Refuse containers—Use required.

All refuse shall be placed in proper containers provided by the city. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-35; Code 1982, § 13-41; Ord. No. 15982, § 83, 8-1-2022)

Sec. 38-85. Same—Responsibility for removal of trash and inspection and clearing of sanitary facilities.

The city shall be responsible for frequent pick-up and removal of trash and litter deposited in refuse receptacles and of any debris in the lake and for periodic inspection and clearing of sanitary facilities on the recreation areas as the need exists.
(Code 1964, § 11-42; Code 1982, § 13-42)

Sec. 38-86. Permit—Prerequisite to fishing.

No person may fish in the lake except by proper permit issued to such person by the director of recreation or his or her duly authorized representative. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-10; Code 1982, § 13-43; Ord. No. 15982, § 84, 8-1-2022)

Sec. 38-87. Same—For city-owned boats.

The issuance of a yearly fishing permit shall not entitle the permittee to the free use of city-owned boats. City-owned boats shall be rented on a daily basis only.
(Code 1964, § 11-7; Code 1982, § 13-44)

Sec. 38-88. Same—For keeping privately owned boat; registration.

A permit to keep a boat on the lake will be sold at the recreation department office only to the owners of a boat, which permit carries with it the right to fish. Not more than three

persons will be recognized as the owners of any boat, and each of such owners shall take out a boat permit in his or her name. No boat may be used on the lake by any person not the holder of a valid permit therefor unless such person is accompanied by the owner of such permit. The spouse and minor children of a holder of an annual permit may accompany the permit holder without payment but shall sign the register. Guests of persons fishing from privately owned boats shall secure a fishing permit. All persons are required to sign the register before going on the lake each time. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-11; Code 1982, § 13-45; Ord. No. 15982, § 85, 8-1-2022)

Sec. 38-89. Same—Fees.

Permits for activities at Lake Michie shall be issued and fees shall be charged in accordance with a schedule adopted by the city council.
(Code 1964, § 11-6; Code 1982, § 13-46; Ord. No. 5118, § 1, 3-19-1979)

Sec. 38-90. Same—Revocation.

Any permit, whether for fishing or keeping a boat in the lake, may be revoked and taken up whenever the holder thereof willfully violates any of the rules and regulations governing fishing or boating in the lake or any of the restrictions attached to such permit or has been guilty of conduct tending to impair the purity or sanitary condition of the water in the lake.
(Code 1964, § 11-13; Code 1982, § 13-47)

Sec. 38-91. Boat equipment and numbering.

All boats, whether privately- or city-owned, shall be equipped with at least one approved life preserver for each person, and each boat shall be equipped with a pail to be used for sanitary purposes. Each boat shall be numbered for identification with numerals not less than three inches high and the register shall show the number of the boat used. City-owned boats shall use numbers ten to 99 and privately owned boats from 100 and up. Official boats will use numbers one to nine. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-8; Code 1982, § 13-48; Ord. No. 15982, § 86, 8-1-2022)

Sec. 38-92. Responsibility for wearing life preservers.

It shall be the responsibility of the adult operator of a boat on the lake to make certain that all persons in such boat who cannot swim shall wear a life preserver at all times during which they occupy the boat. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-24; Code 1982, § 13-49; Ord. No. 15982, § 87, 8-1-2022)

Sec. 38-93. Limitations on horsepower and load of boats.

(a) All boats launched on Lake Michie will be restricted to comply with safe passenger load and an appropriate horsepower capacity; both of which will be determined by the size of the boat.

(b) The lake warden shall enforce the safe load restrictions and horsepower capacity standards developed by the United States Coast Guard and the Boating Industry Association for this purpose. These standards shall be posted in public view at the boathouse.

(c) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-21; Code 1982, § 13-50; Ord. No. 15982, § 88, 8-1-2022)

Sec. 38-94. Ages of persons in boats.

All persons in boats under 16 years of age must be accompanied by an adult. The number of children under age 12 in any boat may not exceed three, and in no case shall there be more than two children under 12 years per adult person in any boat. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-23; Code 1982, §§ 13-51, 13-63; Ord. No. 13574, Pt. 1, 4-7-2008; Ord. No. 15982, § 89, 8-1-2022)

Editor's note—Ord. No. 13574, Pt. 1, adopted April 7, 2008, changed the title of § 38-94 from "Limitation on number of children in boats" to "Ages of persons in boats."

Sec. 38-95. Where boats may land.

No shore landings by boat shall be made at other than the designated boat landing. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-15; Code 1982, § 13-52; Ord. No. 15982, § 90, 8-1-2022)

Sec. 38-96. Securing and anchoring of privately owned boats.

Every privately owned boat shall be properly secured near the boat dock of the lake and shall be anchored at the owner's expense and responsibility. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-9; Code 1982, § 13-53; Ord. No. 15982, § 91, 8-1-2022)

Sec. 38-97. When fishing and boating permitted.

Fishing and boating will be permitted between sunrise and sunset only, at which time the warden's office shall remain open. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-12; Code 1982, § 13-54; Ord. No. 15982, § 92, 8-1-2022)

Sec. 38-98. Reports at beginning and conclusion of use of boats.

The person in charge of any boat used on the lake for boating or fishing, shall report prior to and at the conclusion of such use to the lake warden at the dock designated by the city council for such purpose. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-20; Code 1982, § 13-55; Ord. No. 15982, § 93, 8-1-2022)

Sec. 38-99. Causing hazardous wake prohibited.

No boats on Lake Michie shall be operated at such rate of speed or in any manner so as to cause or create a wake of such size or intensity as to be hazardous. The lake warden may cause the removal of any boat violating the provisions of this section, and may refuse the privilege of future use of the lake of such boat or of any boat by such person. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-30; Code 1982, § 13-56; Ord. No. 15982, § 94, 8-1-2022)

Sec. 38-100. Water skiing prohibited.

Water skiing on the lake is hereby prohibited. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-22; Code 1982, § 13-57; Ord. No. 15982, § 95, 8-1-2022)

Sec. 38-101. Inspection, etc., of fish.

The lake warden may inspect any catch of any person fishing at the lake and make a record of the number caught and the approximate net combined weight. Any fish not equal to the regulation sizes or in excess of the number limit shall be confiscated.
(Code 1964, § 11-14; Code 1982, § 13-58)

Sec. 38-102. Bank fishing.

The regulations applicable to bank fishing shall be as follows:

(1) Bank fishing shall be under the jurisdiction and supervision of the lake warden and assistant wardens at all times and shall be subject to all rules and regulations passed by the city council, the state board of health and the state wildlife resources commission.

(2) All persons shall use only those refuse receptacles and sanitary facilities provided by the city.

(3) All persons shall enter and leave the designated bank fishing area only by the entrance provided.

(4) No person shall fish except in the area designated for that purpose.

(5) No person less than 12 years of age may fish unless accompanied by an adult.

In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-16; Code 1982, § 13-59; Ord. No. 15982, § 96, 8-1-2022)

Sec. 38-103. Fishing near dock.

No fishing will be permitted within a radius of 50 feet from the dock of the fishing station of Lake Michie. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-17; Code 1982, § 13-60; Ord. No. 15982, § 97, 8-1-2022)

Sec. 38-104. Areas for picnicking, camping, etc.

Picnicking and cleaning or cooking of fish or other foods on the shore of the municipal reservoir is prohibited, except in the picnic area designated for this purpose. Camping, archery and other recreation, other than water recreation, shall take place only in those areas designated for such purposes. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-25; Code 1982, § 13-61; Ord. No. 15982, § 98, 8-1-2022)

Sec. 38-105. Supervision of archery.

All archery will be supervised by members of the recreation department or an agent thereof.
(Code 1964, § 11-26; Code 1982, § 13-62)

Sec. 38-106. Firearms and fireworks.

(a) No unauthorized person shall fire a gun or pistol or any firecracker or other fireworks from a boat on the lake or from the shore.

(b) No person shall be given a permit who shall have in his or her possession on Lake Michie or the property thereof any firearm or firecracker of any kind, except as provided in section 38-114.

(c) No unauthorized person shall have firearms or fireworks on city-owned land.

(d) The provisions of subsections (b) and (c) of this section shall not apply to the lawful carrying of a concealed handgun by a person pursuant to a permit issued under G.S. 14-415.10 et seq.

(e) In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1964, § 11-28; Code 1982, § 13-64; Ord. No. 9738, § 1, 12-21-1992; Ord. No. 10626, § 6, 11-6-1995; Ord. No. 15982, § 99, 8-1-2022)

Sec. 38-107. Pollution of water.

(a) No person shall spit, bathe, swim or put his or her feet in the reservoir or commit any act that will affect the purity of the water.

(b) Any person polluting the waters of Lake Michie in any manner will be prosecuted and such pollution shall be sufficient cause for refusing such person permission to fish or use any city-owned property or facility.

(c) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-29; Code 1982, § 13-65; Ord. No. 15982, § 100, 8-1-2022)

Sec. 38-108. Parking areas.

Parking shall be permitted only in designated parking areas.
(Code 1964, § 11-31; Code 1982, § 13-66)

Sec. 38-109. Alcoholic beverages—Use.

Except as provided in section 38-21, the use of any alcoholic beverage is prohibited. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-32; Code 1982, § 13-67; Ord. No. 15982, § 101, 8-1-2022)

Sec. 38-110. Same—Persons showing evidence of intoxication.

Persons showing evidence of intoxication shall not be permitted to enter a boat or go upon Lake Michie. Persons discovered on the lake in such condition shall have their permits taken up and shall be conducted back to the dock by the lake warden.
(Code 1964, § 11-40; Code 1982, § 13-68)

Sec. 38-111. Where fires may be built; leaving fires unattended.

Fires shall be built only in designated approved ovens. Fires shall never be left unattended. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-34; Code 1982, § 13-69; Ord. No. 15982, § 102, 8-1-2022)

Sec. 38-112. Cutting trees, etc.

The cutting of trees, bushes, shrubs and wildflowers is prohibited. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-36; Code 1982, § 13-70; Ord. No. 15982, § 103, 8-1-2022)

Sec. 38-113. Killing wildlife.

Killing and taking or in any way molesting wildlife is prohibited. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-37; Code 1982, § 13-71; Ord. No. 15982, § 104, 8-1-2022)

Sec. 38-114. Duck hunting on Lake Michie.

Notwithstanding the provisions of any other section of this Code or any other ordinance, duck hunting on Lake Michie in accordance with permits issued by the director of the department of recreation, or the director's designee, is lawful and is allowed.
(Code 1964, § 11-37.1; Code 1982, § 13-71.1; Ord. No. 5021, § 1, 11-6-1978)

Sec. 38-115. Tail race at Flat River pumping station and plant—Use prohibited.

It shall be unlawful for any person to fish, trespass, play, or loiter in or on any portion of the tail race at the Flat River pumping station and plant at Lake Michie. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 11-44; Code 1982, § 13-72; Ord. No. 15982, § 105, 8-1-2022)

Sec. 38-116. Same—Posting.

The city manager shall have a sufficient number of copies of section 38-115 posted on and about the tail race at the Flat River pumping station and plant at Lake Michie in print of such size and arrangement as will be likely to bring notice of the existence of such section to any persons who may come on or about the premises; and shall cause to be posted such additional signs and notices to the public as may be necessary or advisable to acquaint persons coming on the premises of the existence of such section.
(Code 1964, § 11-45; Code 1982, § 13-73)

Secs. 38-117—38-147. Reserved.

ARTICLE III. LITTLE RIVER LAKE AREA

Sec. 38-148. Purpose and scope.

In order to adequately protect the quality of water in the Little River Lake and for other purposes including the protection of city property, this article is adopted. Nothing in this article shall be construed to violate the regulations of the North Carolina Commission for Health Services, and the North Carolina Wildlife Resources Commission.
(Code 1982, § 13-80; Ord. No. 7532, § 1, 6-20-1988)

Sec. 38-149. Definitions.

For the purposes of this article, the following terms shall have the indicated meanings:

Authorized personnel shall be any law enforcement officer or the manager.

Little River Lake shall be the "Class I Public Water Supply Reservoir" (as defined by the Rules Governing Public Water Supplies of Title 10, Chapter 10, Subchapter 10D of the North Carolina Administrative Code) owned by the city and located on the Little River.

Little River Lake Area shall be Little River Lake and the Little River Land.

Little River Land shall be the city-owned land contiguous to Little River Lake.

Recreational use and *recreational activities* include but are not limited to fishing, boating, and picnicking.

Under the influence of an impairing substance and *operator* shall have the same meanings as set forth in G.S. 20-4.01.
(Code 1982, § 13-81; Ord. No. 7532, § 1, 6-20-1988)

Sec. 38-150. Posting.

Copies of this article and rules and regulations applying to use of the Little River Lake Area shall be posted conspicuously on Little River Land.
(Code 1982, § 13-82; Ord. No. 7532, § 1, 6-20-1988)

Sec. 38-151. Ejection.

Any authorized personnel may cause the ejection and removal from the Little River Lake Area of any person violating this article or any other law, regulation, or rule applicable to the Little River Lake Area. If any passenger in, or the permittee for, a boat on Little River Lake intentionally or negligently violates this article or any of the rules and regulations governing recreational use of the Little River Lake Area or any of the restrictions attached to the permit for the use of said boat or commits conduct tending to impair the purity or sanitary condition of Little River Lake, then the permit to operate said boat shall be surrendered forthwith to the authorized personnel (without refund of any rentals), and said passenger and the permittee for said boat shall be required to promptly leave the Little River Lake Area and not return the same day. If any person not a passenger in a boat intentionally or negligently violates this article or any of the rules and regulations governing recreational use of the Little River Lake Area or commits conduct tending to impair the purity or sanitary condition of Little River Lake, then said person shall be required to promptly leave the Little River Lake Area and not return the same day.
(Code 1982, § 13-4; Ord. No. 7532, § 1, 6-20-1988)

Sec. 38-152. Pollution.

No person may spit, bathe, swim, put any part of the body in, or place any substance (except as authorized or allowed by this article) in Little River Lake or commit any other act that is likely to adversely affect the purity of the water; nor shall any person urinate or defecate at the Little River Lake Area except in designated facilities. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1982, § 13-85; Ord. No. 7532, § 1, 6-20-1988; Ord. No. 15982, § 106, 8-1-2022)

Sec. 38-153. Permit.

No person may fish in (whether from the bank or from a boat) or boat on Little River Lake except as allowed by the terms of the permit issued to such person by authorized personnel. The city council may set fees for the issuance of permits and for the rental of city-owned equipment. The following provisions apply to Little River Lake Area:

(1) *Fishing.*

a. Bank fishing activities shall be under the supervision of authorized personnel at all times.

b. No person shall bank or pier fish except in the areas designated for that purpose. No fishing may be conducted from any boat not rented from the city.

c. No person may enter or leave the designated bank fishing area except by the entrances and exits designated.

d. No person younger than 12 years of age may fish unless accompanied by an adult.

(2) *Boating.*

a. Except for emergency, security and maintenance purposes by authorized personnel, as provided by subsection (2)j. of this section, or as directed by authorized personnel, the only means of transportation allowed on Little River Lake are city-owned boats.

b. Any use of any boat motor other than city-owned electric motors is prohibited with the exception that other types of boat motors may be used by authorized personnel, as provided by subsection (2)j. of this section, or as directed by authorized personnel, for emergency, security, and maintenance purposes.

c. The permittee for boating shall make certain that all persons who cannot swim shall wear a life preserver at all times during which they occupy the boat for which the permit was issued.

d. All shore landings shall be made only at the designated boat landing areas.

e. No more than two children under 12 years per one adult person may be in any boat.

f. Except for authorized personnel, as provided by subsection (2)j. of this section, boating is prohibited within a radius of 1,000 yards of the intakes and dam of Little River Lake.

g. After use of a city-owned boat, the permittee shall return it and all other city-owned equipment to the designated area and report to authorized personnel.

h. No person shall enter, be the operator of, or be a passenger in any boat while under the influence of an impairing substance. No permit may be issued to any

person who is under the influence of an impairing substance. Persons in a boat who are under the influence of an impairing substance shall have their permits revoked and shall be conducted back to the dock by the authorized personnel.

i. The permittee for a boat shall take such action as is needed to prevent passengers from committing any violations of this article or other conduct for which a person may be ejected from the Little River Lake Area.

j. Nonmotorized boats whose operators have first received a permit may enter the Little River Lake from Little River. The permit shall allow those boats to be on the lake only while crossing the lake for the purpose of reaching the takeout point designated by the city manager on the west side of Highway 501. The boats must proceed without delay to the takeout point and be removed without delay at the takeout point from the Little River Lake Area.

(3) *Available remedies.* In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1982, § 13-86; Ord. No. 7532, § 1, 6-20-1988; Ord. No. 10190, §§ 1—5, 6-20-1994; Ord. No. 15982, § 107, 8-1-2022)

Sec. 38-154. Locations for activities and individuals.

All recreational activities on the Little River Lake Area are prohibited except in the places designated for that purpose. Except as otherwise provided in this article, the manager may designate certain areas as usable for specific recreational uses. No person other than authorized personnel may be on any part of the Little River Lake Area except in the places designated for recreational use. The dam area, including the intake area, spillway area, and pump station area, at Little River Lake shall not be a recreation area. The manager shall cause the premises to be posted, in a manner reasonably likely to come to the attention of the public, with notice not to enter the premises closed to persons who are not authorized personnel. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1982, § 13-87; Ord. No. 7532, § 1, 6-20-1988; Ord. No. 15982, § 108, 8-1-2022)

Sec. 38-155. Time limits for activities.

All recreational activities in the Little River Lake Area shall take place only during the times designated by the director of the department of parks and recreation or the director's designee. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1982, § 13-88; Ord. No. 7532, § 1, 6-20-1988; Ord. No. 15982, § 109, 8-1-2022)

Sec. 38-156. Alcoholic beverages.

The consumption of any alcoholic beverage in the Little River Lake Area is prohibited. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1982, § 13-89; Ord. No. 7532, § 1, 6-20-1988; Ord. No. 15982, § 110, 8-1-2022)

Sec. 38-157. Firearms.

(a) It shall be unlawful for any person to possess a firearm, air rifle, air pistol, pump gun, or other similar weapon of any kind in or upon the Little River Lake Area. This section shall not apply to sworn law enforcement officers, and the lawful carrying of a concealed handgun by a person pursuant to a permit issued under G.S. 14-415.10 et seq.

(b) For violation of this section, the maximum fine shall be $500.00, and the maximum term of imprisonment shall be 30 days.
(Code 1982, § 13-90; Ord. No. 7532, § 1, 6-20-1988; Ord. No. 9738, § 1, 12-21-1992; Ord. No. 10626, § 7, 11-6-1995)

Sec. 38-158. Parking.

Parking is prohibited on Little River Land except in designated parking areas.
(Code 1982, § 13-91; Ord. No. 7532, § 1, 6-20-1988)

Sec. 38-159. Fires.

Fires in the Little River Lake Area shall be allowed only in designated-approved grills. Fires shall never be left unattended. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1982, § 13-92; Ord. No. 7532, § 1, 6-20-1988; Ord. No. 15982, § 111, 8-1-2022)

Sec. 38-160. Digging; flora.

The cutting, tearing, pulling, or otherwise causing damage to trees, bushes, shrubs and wildflowers, and the digging into or scraping of the ground in the Little River Lake Area are prohibited, except by or under the direction of authorized personnel. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1982, § 13-93; Ord. No. 7532, § 1, 6-20-1988; Ord. No. 15982, § 112, 8-1-2022)

Sec. 38-161. Wildlife.

Except as otherwise provided by this article, killing, taking, or in any way molesting wildlife in the Little River Lake Area is prohibited. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1982, § 13-94; Ord. No. 7532, § 1, 6-20-1988; Ord. No. 15982, § 113, 8-1-2022)

Sec. 38-162. Cleaning of fish.

Cleaning of fish in the Little River Lake Area is prohibited. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1982, § 13-95; Ord. No. 7532, § 1, 6-20-1988; Ord. No. 15982, § 114, 8-1-2022)

Sec. 38-163. Metal detectors.

The use of a metal detector on the Little River Lake Area is prohibited, except by or under the direction of authorized personnel. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1982, § 13-96; Ord. No. 7532, § 1, 6-20-1988; Ord. No. 15982, § 115, 8-1-2022)

Chapters 39—41

RESERVED

Chapter 42

PERSONNEL

Sec. 42-1. Purpose of chapter.
Sec. 42-2. Rules and regulations.
Sec. 42-3. Municipal employment.
Sec. 42-4. Plan of position classification.
Sec. 42-5. Plan of position compensation.
Sec. 42-6. Probationary period for new and promoted employees.
Sec. 42-7. Vacation.
Sec. 42-8. Sick leave.
Sec. 42-9. Longevity merit compensation.
Sec. 42-10. Salary continuation and job disability with approval of workers' compensation.
Sec. 42-11. Military leave.
Sec. 42-12. Civil leave.
Sec. 42-13. Retirement.
Sec. 42-14. Special separation allowance for retired law enforcement officers.
Sec. 42-15. Residence requirement for manager, attorney and clerk.
Sec. 42-16. City holidays.
Sec. 42-17. Effect of administrative procedures on legal entitlements.
Sec. 42-18. Employees to be paid livable wage.

Sec. 42-1. Purpose of chapter.

It is the purpose of this chapter to establish a fair and uniform system of personnel administration for all employees of the city under the supervision of the city manager.
(Code 1964, § 2-17; Code 1982, § 14-1)

Sec. 42-2. Rules and regulations.

The city manager shall establish and make available to employees such detailed rules and regulations, not inconsistent with this chapter as are necessary to implement and promote good personnel administration. The city manager shall be responsible for all phases of personnel administration not specifically reserved for the council and shall perform all duties essential to effective personnel administration. The manager shall comply with all applicable federal, state and local laws with regard to personnel policy development and implementation.

The manager shall administer all city personnel programs, such as classification and compensation plans, retirement systems in accordance with the Local Government Employees' Retirement System, testing and training programs, and grievance and appeal procedures, and shall establish such personnel rules, plans and procedures necessary or desirable to implement the provisions of this chapter.
(Code 1964, § 2-26.2; Code 1982, § 14-2; Ord. No. 13408, § 1, 8-7-2006)

Sec. 42-3. Municipal employment.

Appointments to positions and subsequent employment with the city shall be on the basis of merit, fitness and general suitability of the individual and shall be in accordance with the provisions of this chapter and any standards or rules, which may be established under its authority. The city is an at will employer. No provision in this chapter, and no standard, rule or policy which has been established pursuant to this chapter, creates any property interest in employment, and no employee has been conferred a property right to employment. Department directors and other designees of the city manager with authority to make appointments shall not make a direct or implied commitment to appoint any individual until all employment procedural and policy requirements have been satisfied in conjunction with the human resources office and in accordance with administrative policy.
(Code 1964, § 2-18; Code 1982, § 14-3; Ord. No. 13408, § 1, 8-7-2006)

Sec. 42-4. Plan of position classification.

A plan of position classification is hereby established for all employees of the city. The city manager shall administer and maintain a current plan of position classification, and shall allocate and reallocate positions to classes on the basis of kind and level of duties and responsibilities. New classifications require approval by the council. Copies of the classification plan and amendments thereto shall be furnished to the members of the city council and to department directors, and shall be maintained on file in the offices of the city manager and city clerk.
(Code 1964, § 2-19; Code 1982, § 14-4; Ord. No. 13408, § 1, 8-7-2006)

Sec. 42-5. Plan of position compensation.

A plan of position compensation is hereby established for all employees of the city. Salaries and wages of employees of the city are hereby fixed in pay grades established by the city council. The annual budget adopted by the city council and any amendments thereto, together with the authorized appropriations, shall constitute approval and control by the city council of salaries and wages. Copies of the compensation plan and amendments thereto shall be furnished to members of the city council and to department directors, and shall be maintained on file in the offices of the city manager and city clerk.
(Code 1964, § 2-20; Code 1982, § 14-5; Ord. No. 13408, § 1, 8-7-2006; Ord. No. 13698, § 1, 9-15-2008)

Sec. 42-6. Probationary period for new and promoted employees.

(a) New employees and all promoted and transferred employees will serve a six-month probationary period.

(b) A new employee will not be considered a regular employee until successful completion of the probationary period as indicated by a completed performance evaluation with an overall rating of meets expectations or above. At that time, the employee will receive and be eligible to take one floating holiday.

(c) An employee may be separated during the six-month probationary period. A regular full-time employee who is promoted to a higher salary range may receive a pay increase upon promotion, in accordance with the compensation plan of the city. A promoted employee may be demoted.

(d) A six-month probationary period may be extended for an additional period of up to three months upon recommendation of the supervisor and approval of the department director.
(Code 1964, § 2-20.1; Code 1982, § 14-6; Ord. No. 9209, § 1, 4-15-1991; Ord. No. 11028, § 2, 2-17-1997; Ord. No. 13408, § 1, 8-7-2006)

Sec. 42-7. Vacation.

(a) Vacation (annual leave) time with pay shall be earned by each full-time probationary, temporary-with-benefits, and full-time regular employee in accordance with the employee's length of service as follows:

Length of service in years	*Leave hours earned per 26 bi-weekly pay period*			
	Employees who work 75 hours per pay period	*Employees who work 80 hours per pay period*	*Sworn firefighters*	*Sworn police officers*
0 through third year	3.692	3.938	5.538	3.692
Fourth through ninth year	4.615	4.923	6.923	4.615
Tenth through fifteenth year	5.538	5.908	8.308	5.538

Length of service in years	*Leave hours earned per 26 bi-weekly pay period*			
	Employees who work 75 hours per pay period	*Employees who work 80 hours per pay period*	*Sworn firefighters*	*Sworn police officers*
Sixteenth through twentieth year	6.461	6.892	9.692	6.461
Twenty-first year and more	7.384	7.877	11.077	7.384

(b) Vacation in excess of 240 hours (360 for sworn firefighters) on the record at the end of each calendar year is converted to an equivalent amount of sick leave at the end of the first full pay period which begins after January 1 in each calendar year.

(c) A full-time employee shall be able to take paid vacation (annual leave) as earned during the probationary period.

(d) An individual who leaves the employ of the city before successful completion of the probationary period is not eligible to be paid for accrued unused vacation. A regular full-time employee will forfeit pay for accrued vacation if that employee fails to give proper notice of his/her intention to resign. The length of notice required prior to resignation is as follows:

	Minimum prior notice required (Calendar weeks)
Non-exempt employees (traditionally hourly paid employees)	One week
Professional, administrative employees	Two weeks
Division managers, department directors, and above	Three weeks

(e) The city manager may grant additional vacation leave as a part of a salary negotiation for department directors and assistant or deputy city managers subject to approval of the city council or as a part of a council-approved incentive program.
(Code 1964, § 2-21; Code 1982, § 14-7; Ord. No. 6142, §§ 1, 2, 6-20-1983; Ord. No. 7295, § 1, 8-17-1987; Ord. No. 9209, § 2, 4-15-1991; Ord. No. 9355, § 1, 7-23-1991; Ord. No. 13408, § 1, 8-7-2006; Ord. No. 14423, § 1, 4-1-2013; Ord. No. 14572, § 1, 2-3-2014)

Sec. 42-8. Sick leave.

(a) Sick leave is a benefit granted to the employee in the event of preventive health care, sickness, injury, disability, disability caused by pregnancy, serious illness in the immediate family or in the event of death in the immediate family. Immediate family includes spouse (or certified domestic partner), child, parent, brother, sister, grandparent and grandchild of the employee or the spouse (or certified domestic partner).

Sick leave with pay shall be earned by each full-time probationary, temporary-with-benefits, and full-time regular employee as follows:

(1) For employees who work 75 hours per pay period and sworn police officers: 3.692 hours per bi-weekly pay period.

(2) For employees who work 80 hours per pay period: 3.938 hours per bi-weekly pay period.

(3) For sworn firefighters: 5.538 hours per bi-weekly pay period.

(b) If sick leave is not used, it shall accrue without limit for as long as a person remains a full-time regular employee of the city. At retirement, the employee shall receive retirement credit for sick leave based on local government employees' retirement system regulations at the time of his/her retirement. Current regulations grant one month retirement credit for each 20 days of unusued sick leave plus an additional month for any part of 20 days left over. If an employee leaves city employment before retirement, sick leave is forfeited.

(c) A full-time regular employee who is eligible for retirement, and who remains absent from work for more than 60 consecutive workdays because of sickness or injury, shall file application for retirement. If the employee does not wish to retire, he/she shall demonstrate to the satisfaction of the director of human resources and the city manager in consultation with the department director and medical personnel, that his/her disability is not permanent. Employees who are unable to perform the essential functions of the job, even with accommodation, will be separated from city employment.

(d) Work week designations are those listed in the city compensation plan.
(Code 1964, § 2-21; Code 1982, § 14-8; Ord. No. 9209, § 3, 4-15-1991; Ord. No. 9355, § 2, 7-23-1991; Ord. No. 10257, § 1, 8-1-1994; Ord. No. 13408, § 1, 8-7-2006; Ord. No. 14572, § 2, 2-3-2014)

Sec. 42-9. Longevity merit compensation.

(a) Longevity merit compensation (hereafter referred to as "longevity pay") will be paid in December to each employee who has completed five years of continuous full-time service on or before the first day of the preceding July, and was hired as a full time employee before July 1, 1998. The employee must be employed in a full time regular capacity on the date in December that longevity is paid in order to receive the payment for that year. A retiring employee who is no longer employed in December but otherwise meets all of the eligibility requirements for longevity shall receive a final longevity merit payment at the time of the final regular pay check in accordance with procedures established by the city manager.

(b) In order to receive longevity pay, the employee must have received an overall evaluation of "meets expectation" or higher during the most recent annual performance review; however:

(1) Longevity pay otherwise due to an employee who receives an overall evaluation rating of "does not meet expectations" shall be deferred pending a subsequent evaluation of the employee's performance three months after the initial unsatisfactory performance review. If at the three-month reevaluation the employee attains an overall rating of "meets expectations" or higher, the longevity pay shall be paid to the employee.

(2) Any employee who receives two consecutive overall ratings of "does not meet expectations" during the prior two performance review periods (including any extended period for subsequent evaluation) is not eligible for longevity pay.

(c) For the purposes of this section, "continuous full-time service" shall be defined as full-time employment without a break in service. A "break in service" occurs when an employee is rehired following resignation or discharge; provided however, when an employee is rehired within 60 days after a resignation which occurs on or after February 16, 1981 and before July 1, 1998, service shall be deemed to be continuous.

(Code 1964, § 2-20.3; Code 1982, § 14-9; Ord. No. 5597, § 1, 2-16-1981; Ord. No. 5698, § 1, 6-15-1981; Ord. No. 5786A, § 1, 10-19-1981; Ord. No. 9209, § 4, 4-15-1991; Ord. No. 13408, § 1, 8-7-2006)

Sec. 42-10. Salary continuation and job disability with approval of workers' compensation.

Any employee who suffers a work-related injury or illness as defined under G.S. ch. 97 and, therefore, is absent from duty will be eligible for and paid benefits as defined in the Workers' Compensation Act. Employees eligible for such benefits under the Workers' Compensation Act will not be entitled to sick leave or vacation leave, except as provided herein.

(1) Beginning with the first day of disability, employees disabled on the job, and for whom workers' compensation is approved, shall receive regular net pay and be granted leave without charge against accrued sick leave or annual leave during the first seven calendar days of disability to compensate him or her for wages lost during the "waiting period" as defined in G.S. ch. 97.

(2) Pursuant to the Workers' Compensation Act, an employee who becomes eligible for temporary total disability or temporary partial disability benefits following the "waiting period" will receive benefits in accordance with the act and will also be eligible to use accrued sick, vacation, or compensatory leave to supplement their income up to the amount of their regular net pay. The employee shall first provide written authorization to use accrued leave for this purpose. In no event shall an employee receive a total of workers' compensation benefits plus partial salary that exceeds net income derived from regular work.

(3) In calculating the charge to accrued leave required to reach regular net pay, sworn law enforcement officers and firefighters shall receive a credit to accrued leave equivalent to five percent of the amount of workers' compensation paid for the work period; provided, that the five percent credit shall be a maximum necessary to reach regular net pay and shall not augment the balance of accrued leave.

(4) When either the employee does not so request or all accrued leave is exhausted before the period of disability and workers' compensation coverage is ended, the employee shall receive payment in accordance with the Workers' Compensation Act.

(5) For purposes of subsections (2) and (3) of this section, "regular net pay" means the greater of: (1) the amount of payment required under workers' compensation; or (2) the normal gross salary which would be due the employee for a work period minus deductions which are required by law to be made against such salary, including by way of illustration and not limitation, deductions for state and federal income taxes, social security (FICA), and payment into the Local Government Employees Retirement System. Any additional deductions authorized by the employee shall then be taken from the employee's regular net pay prior to issuance of a check by the city.

(Code 1964, § 2-24; Code 1982, § 14-10; Ord. No. 5403, § 1, 6-19-1980; Ord. No. 5629, § 1, 4-6-1981; Ord. No. 7500, § 1, 5-16-1988; Ord. No. 12988, § I, 6-21-2004)

Sec. 42-11. Military leave.

Employees who are members of armed forces reserves or the National Guard may be granted leave with pay for military training for up to two calendar weeks per calendar year.

Military leave in excess of the two weeks shall be leave of absence without pay unless otherwise recommended by the city manager and approved by city council. Military leave includes the amount of time reasonably necessary to travel to and from the military assignment, plus a minimum of eight hours for rest upon return if the active military service is less than 30 consecutive days, 14 days if between 31—180 days, and ninety days if more than 181 days of active military service. Advanced notice must be given to the employer unless precluded by military necessity, or the giving of notice is impossible or unreasonable. City employees using military leave are granted job rights and protections as prescribed by the Uniformed Services Employment and Reemployment Rights Act of 1994 (USERRA).
(Code 1964, § 2-26; Code 1982, § 14-12; Ord. No. 13408, § 1, 8-7-2006)

Sec. 42-12. Civil leave.

Full-time regular employees are entitled to civil leave if necessary to serve as a witness or on a jury subject to policy authorized by the city manager. An employee required to be a witness or juror will receive his/her regular pay while on civil leave, even if such service may otherwise provide compensation. City employees who volunteer to serve as expert witnesses in litigation other than that in which the city is a party, are not entitled to use civil leave.
(Code 1964, § 2-26.1; Code 1982, § 14-13; Ord. No. 9209, § 5, 4-15-1991; Ord. No. 13408, § 1, 8-7-2006)

Sec. 42-13. Retirement.

(a) Eligible city employees will be enrolled in the North Carolina Local Government Employees' Retirement System upon the first day of employment.

(b) A full-time regular city employee retires by application to the North Carolina Local Governmental Employees' Retirement System and selection of a monthly benefit, effective the first day of the month that he or she selects regardless of age, except as described in subsections (b) and (c) of this section.

(c) A full-time regular city employee must be able to demonstrate physical and mental competency to perform his or her position to the satisfaction of the director of human resources and the city manager in consultation with the department head and medical personnel.

(d) A full-time regular employee who is unable to effectively and safely perform in his or her position because of physical or mental disability (after reasonable accommodation has been considered) and who meets the eligibility requirements for service retirement, early retirement or disability retirement, will make official application for retirement on the first day of the month following the date of his or her disability. A full-time regular employee who remains absent from work for more than 60 consecutive workdays, because of injury or illness, shall file for retirement or shall show evidence, approved by the director of human resources and the city manager, in consultation with the department head and medical personnel, that his or her disability is not permanent.

(e) An employee who is unable to effectively and safely perform in his or her position because of physical or mental disability, and who does not meet the eligibility requirements for retirement, will be terminated from city employment, based on inability to effectively perform position requirements in accordance with city policy.
(Code 1964, § 2-25.1; Code 1982, § 14-14; Ord. No. 5051, § 1, 12-4-1978; Ord. No. 6046, § 1, 12-20-1982; Ord. No. 6313, §§ 1—3, 2-6-1984; Ord. No. 7130, § 1, 1-20-1987; Ord. No. 9209, § 6, 4-15-1991; Ord. No. 11028, § 3, 2-17-1997)

Sec. 42-14. Special separation allowance for retired law enforcement officers.

(a) In accordance with the requirements set forth in G.S. 143-166.41 and 143-166.42, the city shall provide a special separation allowance to eligible retired law enforcement officers.

(b) The city manager shall establish necessary administrative procedures to ensure the criteria set forth in G.S. 143-166.41 and 143-166.42 are met.

(c) The city manager shall make determinations as to eligibility for the special separation allowance in accordance with the above named statutes.
(Code 1982, § 14-14.1; Ord. No. 7788, § 1, 6-19-1989)

Sec. 42-15. Residence requirement for manager, attorney and clerk.

Any person employed by the city in the position of city manager, city attorney or city clerk shall be a resident of the city. The residence requirement of this section is met when a person meets the residence requirement of G.S. ch. 163 for the purpose of voting in the municipal elections of the city. Provided, however, any person who shall be appointed city manager, city attorney or city clerk who does not reside in the city at the time of such appointment, shall have a period of six months from and after such appointment to comply with the residence requirements of this section. This section shall not apply to any person serving in an acting or interim capacity.
(Code 1964, § 2-20.2; Code 1982, § 14-15; Ord. No. 5278, § 2, 10-15-1979; Ord. No. 5460, § 1, 9-8-1980)

Sec. 42-16. City holidays.

(a) *Legal holidays.* Legal holidays observed by city government are New Year's Day, Martin Luther King Jr. Day, Good Friday, Memorial Day, Juneteenth, Independence Day, Labor Day, Veterans Day, Thanksgiving Day, the day after Thanksgiving Day, Christmas Day, and such other times as may be authorized by action of the City Council. Martin Luther King Jr. Day will be observed on the third Monday of January, beginning in 1985. Veterans Day will be observed beginning in 2016. Juneteenth will be observed beginning in 2021.

(b) *Holiday observance.* When a holiday other than Christmas falls on a Saturday, it shall be observed on the preceding Friday. When a holiday other than Christmas falls on a Sunday, it shall be observed on the following Monday. When Christmas Day falls on:

(1) A Monday, then Monday and Tuesday shall be observed as holidays;

(2) A Tuesday, then Monday, Tuesday and Wednesday shall be observed as holidays;

(3) A Wednesday, then Monday, Tuesday and Wednesday shall be observed as holidays;

(4) A Thursday, then Wednesday, Thursday and Friday shall be observed as holidays;

(5) A Friday, the Thursday and Friday shall be observed as holidays;

(6) A Saturday, then Friday and Monday shall be observed as holidays;

(7) A Sunday, then Friday and Monday shall be observed as holidays.

(c) *Holidays shall equal:*

7.5 hours for full-time regular employees assigned to a 37.5-hour workweek;

10.0 hours for full-time regular employees assigned to a 40-hour workweek;

Other full-time regular employees as covered in subsection (d) of this section. Workweek designations are indicated in the city compensation plan.

(d) *Holiday hours will granted as follows:*

7.5 hours for employees assigned to a 37.5-hour workweek;

8.0 hours for employees assigned to a 40.0-hour workweek (5-day schedule);

10.0 hours for employees assigned to a 40-hour workweek;

12.0 hours for employees assigned to a 42-hour workweek;

12.0 hours for employees assigned to a 56-hour workweek.

Employees will receive holiday time equal to the hours in their normal workday schedule. Workweek designations are listed in the city compensation plan.

(e) *Separation from employment.* If an employee as described in subsection (d) of this section separates from employment prior to December 31, after using all holiday hours, a deduction for the legal holidays remaining will be made at the rates indicated in subsection (d) of this section. If an employee described in subsection (d) of this section separates from employment prior to December 31, without using holiday hours for legally observed holidays which have passed, he or she will be paid for unused, but past holiday hours, based on the rates indicated in subsection (d) of this section. No additional holiday hours shall be given.

(f) *Holiday hours.* Holiday hours shall not be carried over from one calendar year to the next.

(g) *Administrative procedures and guidelines.* For part-time/temporary employees who have worked for six consecutive months the holidays observed in subsection (a) of this section will be granted on a prorated basis. Administrative procedures and guidelines will be established by the city manager.

(h) *Floating holiday.* In addition to the legal holidays listed in subsection (a) of this section; one additional day, a floating holiday, may be observed by city employees. The city manager shall establish administrative procedures for the scheduling of floating holidays so as to ensure that city government services maintain normal operations.
(Code 1982, § 14-16; Ord. No. 6141, § 1, 6-20-1983; Ord. No. 6383, § 1, 4-17-1984; Ord. No. 6813, § 1, 10-21-1985; Ord. No. 7289, § 1, 7-27-1987; Ord. No. 7714, § 1, 2-6-1989; Ord. No. 7846, § 1, 6-28-1989; Ord. No. 9209, § 7, 4-15-1991; Ord. No. 10257, § 2, 8-1-1994; Ord. No. 11770, § 1, 6-21-1999; Ord. No. 11859, § 1, 11-15-1999; Ord. No. 14973, § 1, 6-20-16; Ord. No. 15689, § 1, 8-3-2020)

Sec. 42-17. Effect of administrative procedures on legal entitlements.

No property rights with regard to benefits, termination or job status shall be inferred from policy memoranda, employee handbooks or other statements of administrative procedure unless such benefits or guarantees have been specifically and explicitly included in this chapter.
(Code 1982, § 14-17; Ord. No. 9209, § 8, 4-15-1991)

Sec. 42-18. Employees to be paid livable wage.

Full-time city employees, and part-time city employees performing work that is commensurate with that of full-time classifications, shall be paid no less than the livable wage rate set according to section 18-23. The annual salary for sworn police officers and sworn fire employees, and for employees that have recruit status for either of those positions, will be equal to or greater than the annual rate set according to section 18-23.
(Ord. No. 15012, § 3, 10-3-2016)

Chapters 43—45

RESERVED

Chapter 46

PUBLIC SAFETY

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Secs. 46-2—46-20. Reserved.

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Article VIII. Trespass from City Property

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Sec. 46-206. Penalties for trespass after notice of trespass.

ARTICLE I. IN GENERAL

Sec. 46-1. Equipment for decoding coded voice inversion messages; permission of city manager required for sale, use, etc.

(a) It shall be unlawful for any person, without the written permission of the city manager, to sell, own, possess, or use any device, apparatus, or equipment, electronic or otherwise, capable of decoding coded voice inversion messages transmitted by transmitters at the city communications center.

(b) No written permission referred to in this section shall be granted by the city manager until the application for such permission has been approved by the city council.

(c) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 13-5.1; Code 1982, § 12-3; Ord. No. 15982, § 116, 8-1-2022)

Secs. 46-2—46-20. Reserved.

ARTICLE II. WEAPONS

Sec. 46-21. Discharging weapons—Generally.

(a) It shall be unlawful for any person other than an officer authorized by law, or upon a range legally permitted by the chief of police, to discharge or shoot any firearm, pump gun, air rifle, air pistol, BB gun, crossbow, bow and arrow, slingshot, or any other weapon of like kind within the city.

(b) Subsection (a) shall not apply when the weapon is discharged or shot:

(1) In defense of person or property;

(2) Pursuant to the lawful directions of a law enforcement officer;

(3) In a city park for ceremonial or recreational purposes, provided that such person has first obtained, in writing, permission from the director of parks and recreation or his or her designee. In no event shall permission be given for the discharge of live ammunition;

(4) In a cemetery for the purpose of conducting a military or law enforcement funeral or commemorative exercise provided that such person has first obtained, in writing, permission from the city manager or his or her designee. In no event shall permission be given for the discharge of live ammunition;

(5) On state-designated game lands; or

(6) Pursuant to section 6-3, which permits deer archery within the city limits under specified circumstances.

(c) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1964, § 13-29; Code 1982, § 12-20; Ord. No. 9738, § 1, 12-21-1992; Ord. No. 10065, §§ 1, 2, 2-7-1994; Ord. No. 14435, 4-15-2013; Ord. No. 14516, § 2, 11-4-2013; Ord. No. 15982, § 117, 8-1-2022)

Editor's note—Ord. No. 14435, adopted April 15, 2013, changed the title of section 46-21 from "Discharging firearms—Generally" to "Discharging weapons—Generally." The historical notation has been preserved for reference purposes.

Charter reference—Authority to regulate, § 60.

State law reference—Authority to regulate, G.S. 160A-189.

Sec. 46-22. Display and possession of dangerous weapons—Prohibited on certain city property.

(a) It is unlawful for any person to display a dangerous weapon while on or in city property, or to leave displayed a dangerous weapon within a motor vehicle while the vehicle is on city property. Notwithstanding the foregoing, this section shall not prohibit the display of a long gun being stored in a locked gun rack in an attended motor vehicle, or a locked unattended motor vehicle, while the vehicle is on city property.

(b) The city manager, or his or her designee, may permit the posting of a prohibition against carrying a concealed handgun, in accordance with G.S. 14-415.11(c), on the city property identified below. The posting of a prohibition against carrying a concealed handgun at or within an athletic field shall only apply during an organized athletic event when the field has been scheduled for use with the city. Notwithstanding the foregoing, this section shall not prohibit a concealed handgun permittee from storing a handgun within the trunk, glove box, or other enclosed compartment or area within or on a locked motor vehicle while the vehicle is on city property.

(1) Any city building and its appurtenant premises;

(2) The following recreational facilities:

a. Each athletic field at or within:

1. C.M. Herndon Park located at 511 Scott King Road;
2. C.R. Wood Park located at 417 Commonwealth Avenue;
3. Campus Hills Park located at 2000 S. Alston Avenue;
4. Cook Road Park located at 602 Cook Road;
5. Crest Street Park located at 2503 Crest Street;
6. East Durham Park located at 2500 E. Main Street;
7. East End Park located at 1200 N. Alston Avenue;
8. Hillside Park located at 1301 S. Roxboro Street;
9. Lakeview Park located at 3500 Dearborn Drive;
10. Long Meadow Park located at 917 Liberty Street;
11. Lyon Park located at 1200 W. Lakewood Avenue;

12. Morreene Road Park located at 1102 Morreene Road;
13. Old Chapel Hill Road Park located at 3751 SW Durham Parkway;
14. Old Farm Park located at 7 Hedgerow Place;
15. Old North Durham Park located at 310 W. Geer Street;
16. Oval Drive Park located at 2200 W. Club Boulevard;
17. Pineywood Park located at 400 E. Woodcroft Parkway;
18. Red Maple Park located at 3320 Hinson Drive;
19. River Forest Park located at 1000 Windermere Drive;
20. Rock Quarry Park located at 701 Stadium Drive;
21. Sherwood Park located at 1720 Cheek Road;
22. Southern Boundaries Park located at 400 Third Fork Road;
23. Twin Lakes Park located at 435 Chandler Road;
24. Valley Springs Park located at 3805 Valley Springs Road;
25. Walltown Park located at 1308 W. Club Boulevard;
26. Weaver Street Park located at 3000 E. Weaver Street;
27. Whippoorwill Park located at 1632 Rowemont Drive;
28. Wrightwood Park located at 1301 Anderson Street;
29. Durham Bulls Athletic Park located at 409 Blackwell Street;
30. Durham Athletic Park located at 500 W. Corporation Street.

b. Each of the swimming pools identified below:
   1. Campus Hills Pool located at 2000 S. Alston Avenue;
   2. Edison Johnson Aquatic Center located at 500 W. Murray Avenue;
   3. Forest Hills Pool located at 1639 University Drive;
   4. Hillside Pool located at 1221 Sawyer Street;
   5. Long Meadow Pool located at 917 Liberty Street.

c. Each of the facilities used for athletic events identified below:
   1. Edison Johnson Recreation Center located at 500 W. Murray Avenue;
   2. W.D. Hill Recreation Center located at 1308 Fayetteville Street.

(b) For purposes of this section, the following words have the meaning indicated:

Athletic field means an outdoor area used for organized athletic events including any appurtenant facilities.

City property means any building including its grounds, park, recreational facility, playground, cemetery, landfill, parking garage, parking lot, streets, sidewalks, alleyways, or other public property owned by the city or leased by the city as lessee. City property does not include: property leased, subleased or rented by the city to a private person or entity; or ranges legally permitted by the chief of police.

Dangerous weapon means any firearm, pump gun, air rifle, air pistol, BB gun, crossbow, bow and arrow, bowie knife, dirk, dagger, slingshot, loaded cane, metallic knuckles, razor, shuriken, stun gun, switch blade knife, black jack, or any other weapon of like kind.

Handgun means a firearm that has a short stock and is designed to be held and fired by the use of a single hand.

Long gun means a shotgun or rifle which expels a projectile by action of an explosion.

Recreational facility means an athletic field, a swimming pool, or a facility used for athletic events.

Swimming pool means an artificially enclosed body of water intended for swimming or water-based recreation, including any appurtenant facilities used for dressing, storage of personal items, or other uses relating to the swimming pool.

(c) Conduct prohibited by this section shall not apply to:

(1) Sworn law enforcement officers who are within their jurisdiction;

(2) Members of the United States armed forces or national guard while in the discharge of their official duties;

(3) Any person possessing a dangerous weapon in a city cemetery for the purpose of conducting a military or law enforcement funeral or commemorative exercise pursuant to first having obtained written permission from the city manager or his or her designee;

(4) Any person possessing a dangerous weapon in a city park for ceremonial or recreational purposes pursuant to having first obtained valid written permission from the director of parks and recreation or his or her designee.

(d) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1964, § 13-33; Code 1982, § 12-22; Ord. No. 9738, § 1, 12-21-1992; Ord. No. 10626, § 1, 11-6-1995; Ord. No. 11708, 6-7-1999; Ord. No. 14435, 4-15-2013; Ord. No. 14651, § 1, 6-16-2014; Ord. No. 15982, § 118, 8-1-2022)

Editor's note—Ord. No. 14435, adopted April 15, 2013, changed the title of section 46-22 from "Discharging firearms—Prohibited on certain city property" to "Display and possession of dangerous weapons—Prohibited on certain city property." The historical notation has been preserved for reference purposes.

Secs. 46-23—46-57. Reserved.

Editor's note—Ord. No. 14651, § 2, adopted June 16, 2014, repealed §§ 46-23—46-27 in their entirety. Former §§ 46-23—46-27 pertained to display of firearms or other dangerous weapons at public place or public assembly prohibited; public streets temporarily closed for street fairs and other special events; prohibition on possession of weapons on public mass transportation vehicle; prohibition on possession of firearms while under the influence of drugs or alcohol; and prohibition on possession of firearms at polling places, respectively, and were derived from Code 1982, §§ 12-23—12-27; Ord. No. 10067, § 1, adopted February 7,

1994; Ord. No. 10068, § 1, adopted February 7, 1994; Ord. No. 10069, § 1, adopted February 7, 1994; Ord. No. 10070, § 1, adopted February 7, 1994; Ord. No. 10071, § 1, adopted February 7, 1994 and Ord. No. 10626, §§ 2—5, adopted November 6, 1995.

Editor's note—Ord. No. 15982, § 119, adopted August 1, 2022, repealed § 46-28, which pertained to penalties and derived from Ord. No. 14435, 4-15-2013.

ARTICLE III. FIRE PREVENTION AND PROTECTION*

DIVISION 1. GENERALLY

Sec. 46-58. False alarms; reward.

Authority is hereby given the mayor to offer a reward of $100.00 or less for the apprehension and conviction of any person who shall willfully give or cause to be given any false alarm of fire by means of the fire alarm telegraph, or otherwise.
(Code 1964, § 8-1; Code 1982, § 9-1)

State law reference—Similar provisions, G.S. 14-286.

Sec. 46-59. Riding on apparatus.

Without the fire chief's permission no person except a member of the fire department may mount or ride any of the automobiles or apparatus being used by the fire department while it is going to or returning from a fire. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 8-3; Code 1982, § 9-3; Ord. No. 15982, § 120, 8-1-2022)

Sec. 46-60. Congregating at fires.

It shall be unlawful for persons to congregate in the streets or squares adjacent to the fire so as to interfere with the operations of the fire department. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 8-6; Code 1982, § 9-6; Ord. No. 15982, § 121, 8-1-2022)

Sec. 46-61. Authority of officers during fire; obedience to orders of chief, etc.

During the continuance of any fire the chief or assistant chief of the fire department, or those acting under their authority, shall have power to call out any persons to assist in extinguishing the fire, or in pulling down or blowing up any building, or in removing any building or goods or furniture from any building on fire or in danger to some place of safety, or to assist in making arrests.
(Code 1964, § 8-7; Code 1982, § 9-7)

***Charter references—**Arrest authority of firemen, § 25; authority of chief to order destruction of hazardous buildings during fire, § 26.

State law reference—Fire protection authority, G.S. 160A-291 et seq.

Sec. 46-62. Obstructing or damaging fire hydrants.

It shall be unlawful for any person to obstruct the approach to any public or private fire hydrant or to in any manner damage such fire hydrant so as to prevent the use thereof at all times. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 13-6; Code 1982, § 9-9; Ord. No. 15982, § 122, 8-1-2022)

Secs. 46-63—46-82. Reserved.

DIVISION 2. FIRE PREVENTION CODE

Sec. 46-83. Bureau of fire prevention.

(a) *Establishment and supervision.* There is hereby established a bureau of fire prevention in the fire department. Such bureau of fire prevention shall be operated under the supervision of the chief of the fire department.

(b) *Enforcement of fire prevention code.* The fire prevention code, adopted as provided in this article shall be enforced by the bureau of fire prevention.

(c) *Appointment of officer in charge*. The officer in charge of the bureau of fire prevention shall be appointed by the chief of the fire department.

(d) *Detailing of inspectors.* The chief of the fire department shall detail such members of the fire department as inspectors as shall from time to time be necessary.

(e) *Reports.* A report of the bureau of fire prevention shall be made at least annually and transmitted to the city manager. Such report shall contain all proceedings under the fire prevention code, with such statistics as the chief of the fire department may wish to include therein.
(Code 1964, §§ 8-16—8-20; Code 1982, §§ 9-20—9-24; Ord. No. 9280, §§ 1, 2, 6-18-1991)

Sec. 46-84. Adoption of code; amendments.

(a) Except as amended in this article, for the purpose of prescribing regulations governing conditions hazardous to life and property from fire or explosion, the Fire Prevention Code of the North Carolina State Building Code is hereby adopted (together with amendments herein, hereafter "fire prevention code"). The provisions the fire prevention code shall be controlling within the limits of the city; provided, however, that whenever reference is made to the duties of certain officials named therein that designated official of the city who has duties corresponding to those of the named official in said code shall be deemed to be the responsible official insofar as enforcing the provisions of said code are concerned.

(b) The North Carolina Fire Prevention Code shall be amended and changed in the following respects:

(1) The burning of leaves, brush, trash or any other refuse is prohibited within the jurisdiction of the City of Durham.

a. The burning of brush by commercial contractors clearing large open areas properly permitted by the City of Durham Fire Prevention Division and in accordance with local air quality burning regulations shall be a limited exception to subsection (b)(1).

(Code 1964, § 8-12; Code 1982, § 9-25; Ord. No. 5198, § 1, 6-25-1979; Ord. No. 9280, § 3, 6-18-1991; Ord. No. 15685, § 1, 8-3-2020)

Sec. 46-85. Terms of permits issued under code.

Permits required under the provisions of the fire prevention code, when properly and validly issued under such fire prevention code, shall not be transferable and any charge in use or occupancy of a building or premises shall require a new permit. A permit shall continue until revoked or for such period of time as designated at time of issuance.
(Code 1964, § 8-13; Code 1982, § 9-26; Ord. No. 9280, § 4, 6-18-1991)

Sec. 46-86. Inspection and permit fees.

(a) *Permit required.*

(1) Any person desiring to engage in any activity described in Chapter 4 of the North Carolina State Building Code, Volume 5—Fire Prevention (hereinafter "code") shall obtain a permit from the bureau of fire prevention.

(2) The fire chief shall be responsible for establishing rules and regulations concerning the processing of permit applications. The form of the permit application shall be prescribed by the city manager.

(3) The fire chief may revoke a permit or deny an application for a permit under this section where the permittee or applicant fails to comply with the provisions of the code authorizing the issuance of the permit.

(4) The fire chief may also revoke a permit where it is found that the permittee provided false information on the permit application form.

(5) Any person whose application for a permit is denied or whose permit is revoked by the fire chief may appeal from such decision to the city manager.

(6) All permits shall be issued annually unless otherwise specified. Fees for the issuance of permits is as set from time to time by the council.

(b) *Notice and hearing.* Before the fire chief revokes a permit pursuant to this section or if an appeal is taken from a decision of the fire chief denying an application for a permit, the fire chief shall cause a written notice to be sent by certified mail to the permittee or applicant affected at the address stated on the permit or application. This notice shall advise the

affected party of a right to appear before the city manager, with or without legal counsel, at a stated time and place, for the purpose of presenting any evidence relevant to such revocation or denial, and for the purpose of hearing all evidence submitted and examining or cross-examining any person providing such evidence. Any permittee or applicant under this section may appeal to the city council from any final decision to the city manager.
(Code 1982, § 9-27; Ord. No. 9575, § 1, 6-29-1992; Ord. No. 9752, § 1, 1-19-1993; Ord. No. 10420, §§ 1, 2, 4-3-1995; Ord. No. 10597, § 1, 9-18-1995; Ord. No. 12323, §§ 1, 2, 6-18-2001)

Editor's note—At the city's direction, fire inspection fees are published in Part 8-102, of the city's Fee Schedule, which appears after Chapter 70 (Utilities) of the this Code.

Sec. 46-87. Use of pine straw mulch.

(a) No pine straw mulch or any other landscaping material with a fire rate of spread more than 24 inches per minute shall be placed within ten feet of buildings with combustible exterior construction.

(b) Exemptions. The word "buildings" in subsection (a) excludes detached one and two family dwellings as defined in the North Carolina Residential Building Code, including Section R101.2, and as amended from time to time. The expression "pine straw mulch" in subsection (a) excludes pine straw that falls from trees located on the same parcel as the building.

(c) The city manager shall adopt a policy to implement this section. The policy shall define "other landscaping material" and "combustible exterior construction." The policy may include any other provisions designed to effectuate the purposes of this section.

(d) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 14130, § 2, 6-6-2011; Ord. No. 15982, § 123, 8-1-2022)

Sec. 46-88. Violation of code.

(a) Any person who violates any of the provisions of the fire prevention code, or who shall fail to comply therewith, or who shall violate or fail to comply with any order made thereunder, or who shall build in violation of any detailed statement or specifications or plans submitted and approved thereunder, or any certificate or permit issued thereunder, or who shall fail to comply with such an order within the time fixed herein, shall severally for each such violation and noncompliance respectively, be guilty of a misdemeanor punishable by a fine as provided in section 1-9. All such persons shall be required to correct or remedy such violations or defects within a reasonable time; and when not otherwise specified, each ten days that prohibited conditions are maintained shall constitute a separate offense.

(b) The application of the above penalty shall not be held to prevent the enforced removal of prohibited conditions.

(c) The provisions of this division may be enforced by an appropriate equitable remedy, including a mandatory or prohibitory injunction, issuing from a court of competent jurisdiction.

(d) Reserved.

(e) Civil penalty.

(1) Violation of any provision of this division may subject the offender to a civil penalty to be recovered by the city in a civil action in the nature of debt if the offender does not pay the penalty within 30 days after the assessment has become final by exhaustion of the appeal process established by this section or by failure to appeal the assessment. The civil penalty for violation of any provision of this division shall not exceed $250.00 per day for each day of continuous violation, or a cumulative or single civil penalty of $5,000.00. The civil penalty for willful violation of any provision of this division shall not exceed $500.00 per day for each day of a continuous violation, or a cumulative or single civil penalty of $10,000.00. Any civil penalty shall be assessed by the city manager, upon the recommendation of the chief of the fire department, and shall be based upon the reasonable estimated cost of correcting the cited violation, the magnitude of the potential risk posed to the public health, safety and welfare by the violation, the cost of the cleanup or other public safety or emergency response caused by the violation, the duration of the violation, and other mitigating or aggravating circumstances associated with the violation. The city manager shall serve written notice of the civil penalty assessment on the offender and set out with reasonable care the basis of the amount so assessed.

(2) Any offender so assessed shall have a right of appeal to the city council, upon serving written notice of appeal on the city manager within ten days after the alleged offender receives notice of the assessment.

(Code 1964, § 8-15; Code 1982, § 9-28; Ord. No. 6416, § 1, 6-18-1984; Ord. No. 9280, § 6, 6-18-1991; Ord. No. 13574, Pt. 1, 4-7-2008; Ord. No. 14130, § 1, 6-6-2011)

Editor's note—Ord. No. 14130, § 1, adopted June 6, 2011, renumbered the former section 46-87 as section 46-88. The historical notation has been preserved for reference purposes.

Secs. 46-89—46-117. Reserved.

ARTICLE IV. POLICE AND FIRE ALARM SYSTEMS*

Sec. 46-118. Definitions.

The following words and phrases shall have the meanings set forth herein unless the context clearly indicates otherwise:

911 refers to the emergency communications center that receives telephone requests or signal requests for police, fire, ambulance, rescue, or other emergency service within the county and city.

Alarm system means sensors, controls and enunciators connected to detect and report an intrusion or emergency. This definition shall not include alarms which do not require a response from the police or fire departments, such as self-contained residential smoke detectors and vehicle alarms.

Alarm system installation company (or installation company) means any business whose operation includes the sale, lease or installation of alarm systems.

Alarm system installation company registration form (or registration form) means the form that must be obtained from city manager.

Alarm system monitoring company (or monitoring company) means any business whose operation includes the monitoring of signals transmitted by an alarm system.

Alarm system permit (or permit) means the permit obtained from the city manager.

Alarm system permit application (or application) means the permit application form, obtained from the city manager and submitted by the alarm system user to the city manager.

Alarm system user (or user) means any person, corporation, partnership, or governmental or educational entity that owns, leases, or occupies a property that utilizes an alarm system.

Audible alarm means any alarm system that uses audible deterrents including, but not limited to, sirens and spoken warnings.

Automatic telephone dialing devices means any alarm system that automatically contacts 911 or any other city department.

False alarm means activation of an alarm system that elicits a response by police, fire, or other emergency response units when no situation requiring such a response exists because the responding party finds no evidence of unauthorized intrusion, attempted unauthorized intrusion, robbery, attempted robbery, fire products of combustion or medical emergency. The term "false alarm" includes accidental, avoidable, and unnecessary alarm activation due to user error, equipment malfunction, improper or unsuited equipment, but does not include alarm activation caused by violent conditions of nature or other extraordinary circumstances beyond the control of the alarm system user.

***Editor's note—**Ord. No. 13194, adopted Dec. 19, 2005, repealed and replaced former Art. III, §§ 12-63—12-70 in its entirety to read as herein set out. Former Art. III pertained to similar subject matter and derived from Ord. No. 13122, adopted June 20, 2005.

Local audible alarm system means any alarm owned by an alarm system user that, by sound of a whistle, bell, buzzer, siren or other noise generator, alerts those outside the home or building, and in the near vicinity, of a police or fire emergency, but does not transmit a signal by telephone or other communication device.
(Ord. No. 13194, § 1, 12-19-2005)

Sec. 46-119. Installation company registration and alarm system permits.

(a) *Generally.*

(1) Every alarm system installation company providing services in the city shall register with the city. Registration forms may be obtained from city manager.

(2) An alarm system user may voluntarily obtain a permit from the city for each property that utilizes an alarm system but obtaining such permit is not mandatory unless the user's alarm system has generated a false alarm. Permit application forms may be obtained from city manager. The content and format of the alarm system Permit application shall be prescribed by the city manager.

(3) The alarm system user shall be required to obtain a permit when the user's alarm system generated a false alarm. Following such false alarm, the city manager shall provide written notice to the user that a permit is now required due to the false alarm. Such notice shall provide that the user shall apply for the permit within 30 days of receiving the notification. Failure to comply with this subsection shall result in the assessment of civil penalties set forth in subsection (f)(1) of this section.

(b) *Installation company registration.* The alarm system installation company registering with the city shall state on the registration form:

(1) The name, address, and telephone number of the alarm system installation company; and

(2) Requested information verifying that the alarm system installation company has a state license in accordance with G.S. 74D-1 et seq.

(c) *Alarm system permit application.*

(1) The alarm system user applying for the permit required herein shall state on the permit application form:

a. The name, address and telephone number of the person in control of the property on which the alarm system is installed;

b. The street address of the property on which the alarm system has been or will be installed;

c. The type of property (commercial, residential, religious, or governmental) on which the alarm system will be installed;

d. The name of the alarm system installation company that has installed or will install the system; and

e. The name of the alarm system monitoring company that will monitor the alarm system.

(2) The alarm system user shall update its alarm system permit as required by the city, at no additional cost to them.

(d) *Approval of registration forms and permit applications.* Alarm system permit applications and installation company registration forms shall be submitted to city manager. The city manager shall approve such applications and forms if it is determined that all applicable information required in this section has been provided. Upon approval of the permit application, a permit shall be issued.

(e) *Permit available for inspection on premises.*

(1) Each permit for a business, school, or religious facility shall be available at the premises wherein the alarm system is installed and shall be available for inspection by the city manager during normal hours of operation or when either the police or fire departments respond to an alarm at that location.

(2) Each permit for a residence shall be available at the premises wherein the alarm system is installed and shall be available for inspection by the city manager when either the police or fire departments respond to an alarm at that location.

(f) *Civil penalties.*

(1) Any alarm system user required by subsection (a)(3) of this section to obtain a permit and who fails to do so shall be assessed a civil penalty of $100.00 per alarm call while the alarm system is without said permit.

(2) Any alarm system installation company who fails to register with the city as provided in this section shall be assessed a civil penalty of $100.00. The civil penalty assessed on the installation company is related to the failure to register and not the number of false alarm calls.

(Ord. No. 13194, § 1, 12-19-2005)

Sec. 46-120. False alarms.

(a) The alarm system user shall be assessed a civil penalty for each false alarm received by 911 within the same calendar year based on the following schedule:

First and second false alarm	Written notice
Third and fourth false alarm	$100.00 each
Fifth and sixth false alarm	$150.00 each
Seventh and eighth false alarm	$200.00 each
Ninth false alarm	$250.00 each
Tenth false alarm and every one thereafter	$300.00 each

(b) The user is responsible for any and all false alarms generated by its alarm system and all civil penalties assessed by this section regardless of whether or not an alarm system permit was issued. A notice shall be issued to the alarm system user after the first and second false alarm. These notices shall make the user aware of the consequences of any further false alarms within the calendar year. These notices are intended to help the user address any controllable causes of false alarms before additional false alarms occur and civil penalties are assessed.

(c) In the event an audible alarm has been activated and the user cannot be contacted or is unable or unwilling to deactivate said alarm, the city manager reserves the right to disconnect any such alarm system.

(d) Signals or messages transmitted by the alarm system during alarm system testing procedures shall not be considered false alarms if the alarm system user or alarm system installation company first notifies and receives permission from 911 before testing the alarm system.
(Ord. No. 13194, § 1, 12-19-2005)

Sec. 46-121. Assessment of civil penalties.

The city manager shall assess civil penalties under the provisions of this article. An assessment notice shall be mailed to the alarm system user at the address stated on the permit application and/or any other valid last known address made known to city manager.
(Ord. No. 13194, § 1, 12-19-2005)

Sec. 46-122. Appeal.

(a) *Appeals process.* Assessments of civil penalties and other enforcement decisions made under this article may be appealed by filing a written notice of appeal with the city manager within 30 days after the date of notification of the assessment of civil penalties or other enforcement decision. The failure to give notice of appeal within this time period shall constitute a waiver of the right to contest the assessment of civil penalties or enforcement decision. Appeals shall be heard by the city manager.

(b) *Appeal standard.* The city manager shall review an appeal from the assessment of civil penalties or other enforcement decisions using a preponderance of the evidence standard. Notwithstanding a determination that the preponderance of the evidence supports the assessment of civil penalties or other enforcement decision, the city manager shall have the discretion to sustain, dismiss or reduce civil penalties, and sustain or reverse any other enforcement decision where warranted.
(Ord. No. 13194, § 1, 12-19-2005)

Sec. 46-123. Remedies; enforcement action.

(a) *Remedies.* A violation of this article does not constitute a misdemeanor as provided by G.S. 14-4. Except as provided in the sentence above, this article may be enforced by any of the remedies described in this article or otherwise authorized by common law or statute. Such statutes include but are not limited to G.S. 160A-175.

(b) *Collection of civil penalties.* Civil penalties imposed by this article may be recovered by the city in a civil action in the nature of a debt if the person (user or installation company) in violation does not pay the same within a prescribed period set by the city manager. (Ord. No. 13194, § 1, 12-19-2005)

Secs. 46-124—46-148. Reserved.

ARTICLE V. DRUG AND ALCOHOL-RELATED OFFENSES

Sec. 46-149. Possession of open containers of certain alcoholic beverages; disposal of containers, and consumption of certain alcoholic beverages.

(a) *Definitions.* The following definitions shall apply to this section.

Beer means any malt beverage as defined by section 38-20.

Open container means any container that has a broken seal or a container other than the manufacturer's unopened original container.

Pub bike means a non-motorized device with four wheels, steering for a forward seated driver, eight to 12 passenger saddle seats, and pedals by which the device may be propelled upon a street at a maximum speed of 15 mph when operated upon a level surface. A pub bike shall be equipped with, and maintain in good working order: at least one head lamp which, under normal atmospheric conditions and on a level road, produces a driving light sufficient to render clearly discernible a person 200 feet ahead; rear lamps which exhibit a red light plainly visible under normal atmospheric conditions from a distance of 500 feet to the rear of the pub bike; driver operated brakes adequate to control the movement of and to stop and hold the pub bike, including two separate means of applying the brakes; at least one stop lamp which exhibits a red or amber light visible from a distance of not less than 100 feet to the rear in normal sunlight, actuated upon application of the foot brake; and turn signal lamps by which the driver of the pub bike may indicate to the operator of a vehicle, approaching from either the front or rear and within a distance of 200 feet, his intention to turn from a direct line.

Public street means any highway, road, street, avenue, boulevard, or other way under the control of the city and open to public use, including sidewalks of any such street.

Wine means unfortified wine as defined by G.S. ch. 18B.

(b) *Possession of open containers.* No person, other than an occupant of a motor vehicle or a passenger on a pub bike, shall possess an open container of beer or wine on any public street except as permitted in subsection (e) of this section.

(c) *Disposal of containers.* No person shall drop, throw, cast, or deposit any used wine or beer container upon any public street or upon any public or private property without the consent of the owner.

(d) *Consumption of alcoholic beverages on public streets.* No person, other than an occupant of a motor vehicle or a passenger on a pub bike, shall consume beer or wine on any public street except as permitted in subsection (e) of this section.

(e) *Possession and consumption of beer and wine is permitted.*

(1) Possession and consumption of beer and wine is permitted within the boundaries and during the event hours of any public, community-sponsored function or celebration being conducted within a public street or other publicly owned area pursuant to a written permit issued by the city manager. This permit may also allow the sale, service, and distribution of beer and wine on designated public streets and areas reserved for the event, subject to all applicable ABC regulations. Prior to the issuance of such a permit, the city manager must establish the boundaries of the event and temporarily close the streets within the boundaries. The city manager may impose on the entity seeking the permit reasonable requirements to ensure that the sale, distribution, service, possession or consumption of beer and wine does not extend beyond the boundaries of the function or celebration.

(2) Possession and consumption of alcoholic beverages is permitted within the boundaries and during the hours in which a social district is active as set out in chapter 54 article VII titled Social Districts.

(f) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1982, § 12-16.1; Ord. No. 11557, 8-17-1998; Ord. No. 14332, § 3, 10-15-2012; Ord. No. 14434, 4-15-2013; Ord. No. 15982, § 124, 8-1-2022; Ord. No. 16041, § 1, 11-7-2022)

Sec. 46-150. Loitering for the purpose of engaging in drug-related activity.

(a) For the purpose of this section, "public place" means any street, sidewalk, bridge, alley or alleyway, plaza, park, driveway, parking lot or transportation facility, or the doorways and entranceway to any building which fronts on any of those places or a motor vehicle in or on any of those places, or any property owned by the city.

(b) If a person remains or wanders about in a public place and:

(1) Repeatedly beckons to, stops, or attempts to stop passersby, or repeatedly attempts to engage passersby in conversation;

(2) Repeatedly stops or attempts to stop motor vehicles;

(3) Repeatedly interferes with the free passage of other persons; or

(4) Repeatedly passes to or receives from passersby, whether on foot or in a vehicle, money or objects for the purpose of violating any subdivision of the North Carolina Controlled Substances Act, G.S. 90-86 et seq.

That person is guilty of a misdemeanor and, upon conviction, shall be punished in the manner prescribed by section 1-9.

(Code 1982, § 12-62; Ord. No. 7960, § 1, 11-20-1989)

Sec. 46-151. Sale of drug stem intended for illegal drug use.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Controlled substance means any substance controlled by the North Carolina Controlled Substances Act as set forth in G.S. 90-86 et seq.

Drug stem means objects that facilitate the ingestion and/or inhalation of crack cocaine, crank methamphetamine or any other controlled substance as defined by the North Carolina Controlled Substances Act. A "drug stem" is further defined as a two- to six-inch-long tube, one-eighth-inch to three-fourths-inch in diameter and that is made of glass, metal or ceramic or any other material. Drug stems include, but are not limited to, glass vials or tubes which may contain novelty items of insignificant value or may contain items that are not, in the normal course of business, packaged in such a manner.

Sell and *sale* mean the commercial transfer of ownership, possession or use of a drug stem in the regular course of wholesale or retail business for consideration of any type.

(b) *Determination.* In determining whether an object is a drug stem, the following factors, in addition to all other relevant evidence, may be considered:

(1) Statements by any person, owner, or by anyone in control of the object concerning its use.

(2) Prior convictions, if any, of any person, owner, or of anyone in control of the object, for violation of the federal or state controlled substances acts.

(3) The proximity of the drug stem, in time and space, to a controlled substance.

(4) The existence of any residue of a controlled substance on the drug stem.

(5) The proximity of the drug stem to other drug paraphernalia as defined by the North Carolina Drug Paraphernalia Act as set forth in G.S. 90-113.20 et seq.

(6) Instructions, oral or written, provided with the drug stem concerning its use.

(7) Descriptive materials accompanying the drug stem explaining or depicting its use.

(8) Advertising concerning its use.

(9) The manner in which the drug stem is displayed for sale.

(10) The existence and scope of legitimate uses of the drug stem in the community.

(11) Expert testimony concerning whether the drug stem is primarily used for introducing a controlled substance into the human body.

(12) The intent of the owner or other person in control of the drug stem to deliver it to persons whom he or she knows or reasonably should know intends to use the object to facilitate a violation of the North Carolina Controlled Substances Act.

(13) Direct or circumstantial evidence of the ratio of sales of the object to the total sales of the business enterprise.

(c) *Sale of drug stem.* It is a violation of this section for any person or retail establishment to sell, or to possess with intent to sell, a drug stem knowing that it will be used to ingest, inhale or otherwise introduce into the human body a controlled substance.

(d) *Defense.* It is a defense to a violation of this section that the drug stem is primarily designed and used for a legitimate purpose unrelated to the ingestion of a controlled substance into the human body.

(e) *Penalty; additional remedies.* The penalty and additional remedies for violation of this section shall be as follows:

(1) *Civil penalty; injunctive relief.* Any person who violates any subsection of this section shall be subject to a civil penalty of $500.00 for each violation or injunctive relief to restrain the person from continuing the violation or threat of violation, or both injunctive relief and a civil penalty. Upon application for injunctive relief and a finding that a person is violating or threatening to violate any subsection of this section, the superior court shall grant injunctive relief to restrain the violation. Failure to pay the civil penalty or file an appeal within 30 days after notification of the violation shall result in an additional penalty of $500.00. The city may establish procedures for the collection of the civil penalties and may enforce the penalties by a civil action in the nature of a debt.

(2) *Reserved.*

(3) *Forfeiture of drug stem.* Any item sold or possessed with the intent to sell by any person, after a court has adjudicated such an item to constitute drug paraphernalia as defined by this section, shall be subject to forfeiture of the drug stem to the city upon order of the court entered in any injunction proceedings instituted under the authority of this section or in a separate forfeiture action instituted by the city.

(f) *Appeal.* A notice of appeal shall be filed within 30 days after notification of the violation. The failure to give notice of appeal within this time period shall constitute a waiver of the right to contest the citation. Appeals shall be heard through an administrative process established by the city manager's office. An individual desiring a hearing must post a bond equal to the amount of the civil penalty before an appeal hearing will be scheduled. The hearing officer's decision is subject to review in the superior court of the county by proceedings in the nature of certiorari.

(Ord. No. 13328, § 1, 11-6-2006; Ord. No. 13574, Pt. 1, 4-7-2008)

Sec. 46-152. Sunday morning alcoholic beverages sales.

Pursuant to the authority contained in G.S. l60A-205.3, any establishment located within the City of Durham holding an ABC permit issued pursuant to G.S. 18B-1001 is allowed to sell alcoholic beverages in accordance with the licensed premises' permit beginning at 10:00 a.m. on Sundays.

(Ord. No. 15162, § 1, 8-7-2017)

Secs. 46-153—46-171. Reserved.

ARTICLE VI. MASSAGE

Sec. 46-172. Massage of private parts for hire prohibited.

It shall be unlawful for any person to massage or to offer to massage the private parts of another for hire. The term "massage" means the manipulation of body muscle or tissue by rubbing, stroking, kneading or tapping, by hand or mechanical device. The term "private parts" means the penis, scrotum, mons veneris, vulva or vaginal area. The provisions of this section shall not apply to licensed medical practitioners, osteopaths, chiropractors, or persons operating at their direction, in connection with the practice of medicine, chiropractic, or osteopathy. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1964, § 13-32; Code 1982, § 12-29; Ord. No. 10973, § 2, 11-18-1996; Ord. No. 15982, § 125, 8-1-2022)

Secs. 46-173—46-179. Reserved.

ARTICLE VII. RESPONSE TO HAZARDOUS MATERIALS EMERGENCIES; FEES AND CHARGES

Sec. 46-180. Purpose and authority.

As the Durham Fire Department is the authority having jurisdiction over all hazardous materials incidents as well as all chemical and biological incidents in the City of Durham the Durham Fire Chief or their designee shall have the authority to summarily abate, remove, or remedy hazardous materials which are emitted into the environment or left attended in such a manner as to endanger the health and safety of the general public or the environment. The fire chief or their designee shall have the authority to enter public or private property with or without the owner's consent, to respond to such hazardous materials emergencies.

Any person having control over a hazardous materials or substances incident, or the property owner on which such incident occurs, shall be financially responsible to the city for all costs incurred in responding, limiting, containing, controlling, abating, mitigating or monitoring of such an incident.

The fire chief or their designee shall determine the type, amount and quantity of equipment and personnel required to adequately abate, control and contain all hazardous materials which are emitted into the environment.

This cost recovery authority is not intended to supplement or replace any annual budget for the fire department. This authority is solely to recover costs directly associated with hazardous materials incidents.

(Ord. No. 15818, 6-21-2021; Ord. No. 15850, pt. 1, 6-21-2021)

Sec. 46-181. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Full hazardous materials team. Consists of hazardous materials response apparatus, decontamination apparatus and personnel.

Having control over. Shall mean, but is not limited to, using, transferring, releasing, storing or transporting of a hazardous material immediately prior to release of such hazardous material onto the land or into the air or the waters of the city. (G.S. 143-215.77)

Hazardous material. Any substance which when discharged in any quantity may present an eminent and substantial danger to the public health or welfare or to the environment. And or whose name or substantial components can be found in the EPA consolidated list of chemicals subject to reporting requirements under the Emergency Planning and Community Right-to-Know Act (EPCRA), Comprehensive Environmental Response, Compensation and Liability Act (CERCLA) and Section 112(r) of the Clean Air Act.

Hazardous materials response. The sending of fire department equipment to abate hazardous materials which endanger the health or safety of persons or the environment.

Modified hazardous materials team. Consists of hazardous materials response apparatus and personnel.

Hazardous materials technician. Fire department personnel who have completed a North Carolina Office of the State Fire Marshal approved hazardous materials technician level course.

Person. May include individuals, firms, partnerships, associations, institutions, corporations, local governments and the governmental agencies. (G.S. 143-212)

Response. A organized group of hazardous materials technicians who have been sent to a location and charged with the abatement, removal, or remediation of hazardous materials which are or could be emitted into the environment or left attended in such a manner as to endanger the health and safety of the general public or the environment. The Durham Fire Department is the only public safety entity recognized by the City of Durham to respond to hazardous materials incidents.
(Ord. No. 15818, 6-21-2021; Ord. No. 15850, pt. 1, 6-21-2021)

Sec. 46-182. Responsibilities: Fees and charges.

The property owner and/or the person having control over the hazardous material(s) that create the hazardous material(s) emergency shall be responsible for the costs incurred for the city's response, control, containment, equipment, and materials.

The city will not charge for abatement, control and containment of hazardous material responses, or fire incidents involving hazardous materials which accrue $100.00 or less in charges.

The city will charge for abatement, control and containment of hazardous material responses or fire incidents involving hazardous materials which accrue more than $100.00 in charges. In all cases, the first $100.00 of expenses shall not be charged to the persons having control over the hazardous material(s).

The property owner and/or the person having control over the hazardous material(s) shall be responsible for costs in accordance to the fee schedule as is set from time to time by the city council.

(Ord. No. 15818, 6-21-2021; Ord. No. 15850, pt. 1, 6-21-2021)

Sec. 46-183. Enforcement; recovery and retention of remediation costs and expenses and remedial fees.

The city shall serve the property owner and/or the persons having control over the hazardous material(s) with notice and an invoice within 60 days of the occurrence of the hazardous materials emergency. The invoice will provide sufficient documentation for the cost assessed, including a listing of equipment and supplies procured or used in the hazardous materials emergency response. The party served shall remit monies within the time fixed in the invoice.

(Ord. No. 15818, 6-21-2021; Ord. No. 15850, pt. 1, 6-21-2021)

Sec. 46-184. Remedies.

Expenses incurred shall be remitted into and retained by the fire department for the direct expense of recovering the consumables and offsetting other costs. Remedies available for enforcement of this article, and penalties for its violation, include, but are not limited to, those described in the following subsections.

(1) Costs, expenses, and fees imposed under this article shall be remitted to and retained by the department.

(2) Costs, expenses, and fees not remitted to the department within the time fixed in the invoice or exhaustion of the administrative review process, whichever is later, may be recovered in a civil action in the nature of debt.

(3) If a cost or expense incurred under this article is not paid as required, it shall constitute a lien upon the land or the premises where the hazardous material emergency arose and the levy shall be collected in the same manner as unpaid taxes pursuant to the authority of G.S. 160A-193.

(4) Criminal enforcement of any violation of any provision of this article is hereby prohibited. Any such violation does not constitute a misdemeanor or other criminal violation. Any such provision may be enforced only through one or more civil actions authorized by this article.

(Ord. No. 15818, 6-21-2021; Ord. No. 15850, pt. 1, 6-21-2021)

Sec. 46-185. Administrative review process.

Any person who receives notice of imposition of a cost, expense, or fee under this article may obtain review by written request to the fire chief, which must be received by the department within ten calendar days of provision of notice. Within 30 calendar days of receipt, the fire chief or their designee shall review the request and render a written decision maintaining or withdrawing, in whole or in part, the cost, expense, or fee imposed, which shall be the final decision of the city. Such decision, or absence of a request for review under this subsection, shall constitute exhaustion of the department's administrative review process. E-mail communication shall constitute written communication for purposes of this section.
(Ord. No. 15818, 6-21-2021; Ord. No. 15850, pt. 1, 6-21-2021)

Secs. 46-186—46-200. Reserved.

ARTICLE VIII. TRESPASS FROM CITY PROPERTY

Sec. 46-201. Generally.

(a) Pursuant to the city's authority to preserve and protect the health, safety, and welfare of its citizens and the peace and dignity of the city, individuals who engage in dangerous, unlawful, or unreasonably disruptive conduct and activities may be trespassed from city property, to the extent permitted by state and federal law. It is not the intent of this article to prohibit an individual from exercising their First Amendment rights at public forums, or from exercising their rights to engage in legitimate activities protected by state and federal law.

(b) The city shall provide notice to people whose entry onto city property, or continued presence on city property, may be dangerous, unlawful, or unreasonably disruptive, as those terms are defined herein, and provide persons receiving a notice of trespass with the opportunity for a prompt appeal of the terms of the notice of trespass.

(c) This article shall be enforced to emphasize voluntary compliance with laws and city rules so that inadvertent minor violations of this article can be corrected without resort to notice of trespass.

(d) This article does not impair, bar or preclude City of Durham Police Officers from enforcing North Carolina trespass statutes as allowed by law.

(e) If the individual engaging in dangerous, unlawful, or unreasonably disruptive conduct or activities is a city employee, this article is in addition to and does not impair, bar or preclude supervisors from issuing disciplinary action pursuant to city policy and procedures.

(f) A person subject to a notice of trespass wishing to enter specific city property to exercise legitimate First Amendment or other legally-protected rights or to conduct necessary city business shall contact the city manager's office. The city manager or their designee shall have authority to consider and authorize a person subject to a notice of

trespass to enter city property to exercise First Amendment or other legally-protected rights or to conduct necessary city business if there is no reasonable alternative location or means to exercise such rights or to conduct necessary city business. The city manager's office may impose reasonable restrictions on such entry in order to minimize disruption, threat, damage, or injury.

(g) The city manager is authorized to adopt rules and procedures consistent with this article.
(Ord. No. 16157, § 1, 6-20-2023)

Sec. 46-202. Definitions.

(a) *Authorized employee.* The city manager and designees having authority to issue notices of trespass pursuant to this article.

(b) *City property.* City-owned buildings, facilities, and surrounding city-owned property; any city-leased buildings, facilities, and surrounding city-leased property; any real property over which the city has control; city park lands and other city-owned or operated recreational areas and facilities; city-owned parking garages, facilities, and parking lots; and all other city-owned or controlled lands, unless the city manager exempts, in writing, a building, facility, or real property from this article.

(c) *Dangerous.* Conduct that is "Dangerous" is that which creates an imminent or unreasonable risk of injury or harm to either persons, including the actor, or property.

(d) *Notice of trespass.* Written notification issued to an individual informing them that their presence or entry onto city property is prohibited and the individual must immediately leave city property and/or refrain from returning to city property for the duration identified in the written notification. The notice of trespass shall address other items regarding this prohibition as required by section 46-204 of this article.

(e) *Unlawful.* Conduct that is "unlawful" is that which is prohibited by the laws of the United States, the State of North Carolina, Durham County, or the city.

(f) *Unreasonably disruptive.* Conduct that is "unreasonably disruptive" is that which is not legally-protected and that, in consideration of the nature, scope, use and purpose of the city property in question, unreasonably interferes with the orderly conduct of city business or with other persons' use or enjoyment of approved activities on city property, or is unreasonably inconsistent with the normal use for which the city property was designed and intended to be used.
(Ord. No. 16157, § 1, 6-20-2023)

Sec. 46-203. Delegation of authority.

(a) *Authorized employees*. The city manager is authorized to issue a notice of trespass under this article. The city manager is authorized to delegate their authority to issue a notice of trespass to other city officers or employees as the city manager deems appropriate, given their general area of responsibility within the city. All such delegations shall be in writing.

While such authorized employees have the delegated authority from the city manager, they may not delegate the authority they possess to any other person.

(b) A delegation of authority under this article expires upon the reassignment, employment separation, termination, or retirement of the authorized employee, or upon revocation by the city manager at any time for any reason. The delegated authority is delegated to city positions and not to any individual employee by name.
(Ord. No. 16157, § 1, 6-20-2023)

Sec. 46-204. Trespass procedures.

(a) *Written notice of trespass.* City employees who observe an individual engaged in conduct that is dangerous, unlawful, or unreasonably disruptive are encouraged to verbally request the individual(s) engaged in the prohibited conduct cease the dangerous, unlawful, or unreasonably disruptive conduct or leave city property voluntarily. Only an authorized employee may issue a written notice of trespass to an individual for conduct occurring on city property that is dangerous, unlawful, or unreasonably disruptive.

(b) *Contents.* A notice of trespass shall include the following:

i. *Reasons for exclusions*. A statement of the reason the individual is being notified or warned not to enter an area or to immediately depart from an area and explaining the conduct for the notice of trespass.

ii. *Area of exclusion.* The notice of trespass should describe the area of city property, including the building name and address if applicable, that the individual shall not enter, and any specific regions that the individual is not to enter, so that a reasonable person may understand the specific area(s) to which the individual may not return.

iii. *Duration of exclusion*. A notice of trespass shall be for a specific period of time based upon the seriousness of the conduct. The specific time period an individual may not return to the city property identified in the notice of trespass shall be established by the authorized employee based on relevant factors, including:

1. Whether the conduct involves intentional damage to city property;

2. Whether the conduct involves intentional injury or offensive contact with any individual;

3. Whether the conduct is unreasonably disruptive or harmful to city business or another person's reasonable use and enjoyment of approved activities on city property; and

4. Whether the individual previously engaged in similar conduct on city property.

If no specific duration is listed, then the duration of the notice of trespass shall be 30 calendar days from the date the notice of trespass was issued. The duration of a notice of trespass shall generally not exceed two years. Where an individual violates a notice of trespass, the duration of the notice of trespass may be extended beyond two years at the discretion of the city manager.

iv. *Consequences of re-entry.* The notice of trespass shall warn the individual that re-entry may result in extension of the duration of the notice of trespass and/or arrest pursuant to N.C.G.S. Chapter 14, Article 22B.

v. *Right to appeal*. The notice of trespass shall contain information that informs the individual of the procedures to appeal the notice of trespass.

(c) *Service*. The notice of trespass may be delivered in person to the individual or by first class mail to the individual at the individual's last known address or by electronic mail return receipt requested.

(d) *Trespass of city employees*. A city employee may be issued a notice of trespass should their conduct on city property constitute grounds for issuance of notice of trespass as described herein. Issuance of a notice of trespass to a city employee itself is not intended to be a disciplinary action and may not be grieved pursuant to the city's policies and procedures related to disciplinary actions and grievances. Rather, a city employee who is issued a notice of trespass may appeal the notice of trespass pursuant to the appeal process described herein. This article is in addition to and does not bar or preclude city employees from being subject to disciplinary action, up to and including termination.

(e) A copy of the notice of trespass shall be maintained by the city manager's office and, where the city manager did not issue the notice of trespass, in the office of the issuing authorized employee.
(Ord. No. 16157, § 1, 6-20-2023)

Sec. 46-205. Appeal process.

(a) *Notice.* An individual receiving a notice of trespass may appeal the trespass to the city manager by submitting a written appeal to the city clerk within seven city business days of the date the notice of trespass was issued. The written appeal may be submitted by U.S. mail, electronic mail, or hand-delivery if delivered by an individual who is not prohibited from entering City Hall. The written appeal shall be considered submitted on the date it is received in the office of the city clerk. The notice of trespass shall remain in effect during the pendency of any appeal proceeding under this article.

(b) *Contents of appeal*. The written appeal shall include the individual's contact information, notice of trespass information, date of issuance of the notice of trespass, and a detailed statement of the basis for the appeal, along with documents, photos, data, and any other information the individual wishes the manager to consider when hearing the appeal. Statements of witnesses and other individuals may also be submitted.

(c) *Review hearing.* The city clerk will notify the individual within ten city business days of receipt of the written appeal of the date, time, and place or telephone number at which a hearing reviewing the notice of trespass will be conducted. At the review hearing, the city manager may consider information that would not be admissible under the evidence rules in a court of law but that the city manager deems relevant and trustworthy. The city has the burden of proving, by a preponderance of the evidence, that the individual violated this article in order for the city manager to uphold the notice of trespass. The city manager shall rescind the notice of trespass where the violation cannot be proved. In addition, the city manager is authorized to rescind or modify a notice of trespass where the violation is proved, but:

i. The individual demonstrates by a preponderance of the evidence that their conduct was intended to be expressive conduct protected by the First Amendment; or

ii. In the judgment of the city manager, the circumstances warrant a modification or rescission of the notice of trespass.

If the city manager rescinds a notice of trespass pursuant to the above criteria, the notice of trespass shall not be considered for purposes of determining whether an individual has previously engaged in similar conduct on city property pursuant to section 46-204(b)(iii)(4).

(d) The city manager's decision shall be communicated to the individual in writing no later than five city business days following the review.

(e) The decision of the city manager shall be city's final decision. Should the individual seek administrative or judicial review of the notice of trespass, the notice of trespass shall remain in effect during the pendency of any administrative or judicial proceeding.

(f) No decision of the city manager shall have any collateral estoppel effect on a subsequent criminal prosecution or civil proceeding, and shall not preclude litigation of those same facts in a subsequent criminal prosecution or civil proceeding.
(Ord. No. 16157, § 1, 6-20-2023)

Sec. 46-206. Penalties for trespass after notice of trespass.

(a) A notice of trespass shall remain in effect for the duration stated in the notice of trespass or written decision of the city manager, and may result in arrest for violations during that time period pursuant to N.C.G.S. Chapter 14, Article 228.

(b) Violation of the terms of the notice of trespass or written decision of the city manager may result in an extension of the duration of the notice of trespass at the discretion of the city manager or their designee.

(c) Enforcement of this article may include any appropriate equitable remedy, a mandatory or prohibitory injunction, or an order of abatement as authorized by G.S. 160A-175.
(Ord. No. 16157, § 1, 6-20-2023)

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ARTICLE I. IN GENERAL

Sec. 50-1. Loitering at bus terminal.

It shall be unlawful for any person not having tickets or business with the officials to loaf or loiter on the platform or premises of any bus terminal. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 5-20; Code 1982, § 12-10; Ord. No. 15982, § 126, 8-1-2022)

Secs. 50-2—50-20. Reserved.

ARTICLE II. AVIATION*

Sec. 50-21. Definitions.

For the purposes of this article, the following terms shall have the meanings respectively ascribed to them:

Helicopter means any rotorcraft which depends principally for its support and motion in the air upon the lift generated by one or more power-driven rotors, rotating on substantially vertical axes.

Heliport means any area of land or water or any structural surface designed, used or intended to be used for the landing, or take-off of helicopters and any appurtenant areas, facilities, structures or buildings which are designed, used or intended to be used in the operation or maintenance of the heliport or in the service or maintenance of helicopters.

Helistop means any area of land or water or any structural surface designed, used or intended to be used for the landing or take-off of helicopters but without any appurtenant area, facility, structure or building designed, used or intended for use in the operation or maintenance of the helistop or in the service or maintenance of helicopters.

Obstruction clearance plane (in relation to helicopters) means a plane leading upward and outward from the heliport at an angle compatible with the flight characteristics of the helicopter through which no obstructions protrude.
(Code 1964, § 9A-1; Code 1982, § 3-1; Ord. No. 5043, § 1, 12-18-1978)

Sec. 50-22. Compliance with federal regulations and standards.

The establishment of any heliport or helistop and the operation and flight of helicopters within and above the corporate limits of the city shall at all times comply and be in conformity with at least the minimum of all pertinent regulations and standards promulgated from time to time by the Federal Aviation Administration and other applicable federal

*__State law reference—__Authority to regulate operation of aircraft over city, G.S. 160A-180.

agencies, with particular reference to applicable federal air regulations, civil air regulations, and advisory circulars or successor publications. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 9A-2; Code 1982, § 3-20; Ord. No. 5043, § 2, 12-18-1978; Ord. No. 15982, § 127, 8-1-2022)

Sec. 50-23. Minimum altitude for helicopter flight.

Except when necessary for take-off or landing, no person may operate a helicopter below the following altitudes:

(1) *Generally.* An altitude allowing, if a power unit fails, an emergency landing without undue hazard to persons or property on the surface. In addition, each person operating a helicopter shall comply with the routes, altitudes and other directions and regulations specifically prescribed for helicopters by any rule or ordinance pertaining to the same. At no time shall a helicopter be below 500 feet without special permission granted by the city manager pursuant to authority and for cause described in section 50-29.

(2) *Over congested areas.* Over any congested area of the city or over any open air assembly of persons, an altitude of 1,000 feet above the highest obstacle within a horizontal radius of 2,000 feet of the helicopter.

(3) *Over other than congested areas.* An altitude of 500 feet above the surface of open fields or areas upon which there are no trees, buildings or other obstacles; provided, however, the helicopter shall not be operated closer than 500 feet to any person, vehicle, vessel, tree, tower or structure.

In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 9A-3; Code 1982, § 3-21; Ord. No. 15982, § 128, 8-1-2022)

State law reference—Low flying prohibited, G.S. 63-13.

Sec. 50-24. Permit to operate heliport or helistop—Required; application; issuance; terms and conditions.

(a) No heliport or helistop shall be established or used unless an application for the establishment of the same shall have first been filed in writing with and approved by the city council. Such application shall contain a description of the proposed location, dimensions, obstruction clearance planes, proximity and height of nearest buildings, trees, towers or other structures, characteristics of the immediate area of such heliport or helistop and such other information as the city council may require.

(b) If the city council finds and determines that the public safety and convenience will be preserved and a nuisance or other burdensome condition will not be created and that the public interest will not be adversely affected by the establishment and use a heliport or helistop at such site and under such conditions and that such use at such site will be in accord with pertinent zoning regulations, it may issue a permit for the establishment and

use of such heliport and the operation of helicopters to and from the same. The city council may impose such terms and conditions in the issuance of such permit as it determines to be necessary in the promotion of the public safety, convenience, health and welfare.

(c) No heliport or helistop shall be established or used unless such permit therefor has been granted under the provisions hereof and the required insurance has been issued and is in effect as required in this article.

(d) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 9A-4; Code 1982, § 3-23; Ord. No. 15982, § 129, 8-1-2022)

Sec. 50-25. Same—Revocation.

In addition to any other remedies, the city council shall have the right and authority to revoke any permit which may have been issued to establish and operate a heliport or helistop within the city upon a finding, after notice, that any of the provisions and requirements of this article have been violated or that the public liability and property damage insurance required to be carried at all times by the permittee has been canceled or for any reason has ceased to be in full force and effect or if the operations at the heliport or helistop are performed in such a manner as to become unduly hazardous or to constitute a nuisance or create conditions which the city council may find to be contrary to the public safety, health, convenience and welfare. Before any such permit may be revoked, however, notice of at least ten days shall be given to the permittee and an opportunity to be heard before the city council upon any charges shall be given to such permittee.
(Code 1964, § 9A-5; Code 1982, § 3-24; Ord. No. 5043, § 3, 12-18-1978)

Sec. 50-26. Insurance requirements.

(a) As a condition precedent to the issuance of a permit to establish and use a heliport or helistop, the applicant for such permit shall first secure public liability and property damage insurance in an insurance company licensed and authorized to do business in the state in limits of not less than $250,000.00 for personal injuries or death occasioned to one person, and, subject to that limitation for one person, insuring against injuries or death in any one accident in limits of at least $500,000.00 and for property damages in the sum of $500,000.00 for any one accident; such applicant shall cause a certificate to be issued by such insurance company certifying that such policies, as herein required, have been issued and are in force and effect. Before any such policy can be canceled or substantially altered, advance written notice thereof of at least ten days shall be furnished to the city manager.

(b) This section shall not apply to the United States of America or any military branch thereof, nor shall this section apply to the state, the North Carolina National Guard, or any branch thereof.
(Code 1964, § 9A-6; Code 1982, § 3-25; Ord. No. 5043, § 5, 12-18-1978)

Sec. 50-27. Compliance with safety and fire prevention standards.

As a further condition precedent to the issuance of a permit to establish and use a heliport or helistop and to land and take-off helicopters from such heliport or helistop, the applicant for such permit shall first secure written certification from the city manager that the heliport or helistop being considered complies with all safety and fire prevention standards necessary for the safety of the operation and adjacent properties and with the other provisions contained in section 50-24.
(Code 1964, § 9A-7; Code 1982, § 3-26; Ord. No. 5043, § 6, 12-18-1978)

Sec. 50-28. Area and location of heliports and helistops.

(a) The minimum dimension of the area which describes an approved heliport or helistop shall be equal to not less than 1½ times the diameter of the rotors of the helicopter.

(b) Approved heliports and helistops shall be so located that at least two obstruction clearance planes are available which are compatible with the flight characteristics of the helicopter. Obstruction clearance planes shall be selected with due regard to the safety and convenience of persons and to the safety of property on the surface.
(Code 1964, § 9A-8; Code 1982, § 3-27; Ord. No. 5043, § 7, 12-18-1978)

Sec. 50-29. Prohibited acts generally.

It shall be unlawful to operate a helicopter within or above the corporate limits of the city or to operate a heliport or helistop within such corporate limits:

(1) In a negligent or reckless manner so as to endanger the lives or property of the operator or others.

(2) When the operator of such helicopter is under the influence of intoxicating beverages, drugs, barbiturates or other stimuli or depressants.

(3) In violation of any of the provisions set forth in section 50-23.

(4) Unless there is then outstanding and in full force and effect a valid airworthiness certificate issued for such helicopter by the Federal Aviation Administration or other federal agency with appropriate authority to issue such certificate.

(5) Unless the operator flying such helicopter shall then and there have a valid airman's certificate in full force and effect with the appropriate aeronautical ratings issued by the Federal Aviation Administration or other federal agency with appropriate authority to issue such certificate.

(6) To operate a heliport or helistop or a helicopter after the permit to do so has been revoked.

(7) To operate a helicopter to or from any property or place within the city other than a heliport or helistop in such location, with such dimensions and obstructions clearance planes and such other safety provisions as comply with the federal air regulations and the terms and conditions set forth in the permit issued by the

governing body of the city as hereinabove provided; provided, however, this provision may be varied by the city manager in emergencies in which helicopter operations at places other than at an approved heliport or helistop are necessary in connection with the immediate extending of help because of a disaster or civil disturbance or in performing an emergency errand of mercy or when the chief of police or sheriff of the county certifies to the city manager that the use of such helicopter in a special flight operation is urgent and immediately necessary in aiding law enforcement or where there exists a special and urgent necessity for the use of a helicopter at a place other than a heliport or helistop in the preservation of the public peace, health, safety and welfare; but in no case, emergency or otherwise, shall such helicopter be operated in violation of any federal air regulations or upon the property of any person except after having first obtained the permission and consent of such person owning or in control of such premises that the same may be so used.

In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1964, § 9A-9; Code 1982, § 3-28; Ord. No. 5043, § 8, 12-18-1978; Ord. No. 15982, § 130, 8-1-2022)

State law reference—Dangerous flying, G.S. 63-18.

Secs. 50-30—50-79. Reserved.

ARTICLE III. PASSENGER VEHICLES FOR HIRE*

DIVISION 1. GENERALLY

Sec. 50-80. Purpose.

The purpose of this article is to regulate passenger vehicles for hire, in order to preserve the health and welfare of the citizens and the protection of their property.

(Ord. No. 14371, § 2, 12-3-2012)

***Editor's note—**Ord. No. 14371, §§ 1, 2, adopted December 3, 2012, repealed and reenacted article III in its entirety to read as herein set out. Formerly, article III, division 1—9 pertained to similar subject matter, and derived from the Code of 1982, §§ 22-15—22-22, 22-31—22-48, 22-56—22-69, 22-76—22-81, 22-89—22-99, 22-106—22-113, 22-120—22-122, 22-124—22-127, 22-135—22-137, 22-145—22-159; Ord. No. 11787, § 2, adopted May 17, 1999; Ord. No. 12261, §§ 1—5, adopted April 2, 2001; Ord. No. 12282, § 1, adopted May 7, 2001; Ord. No. 12339, §§ 1, 2, adopted July 16, 2001; Ord. No. 12717, §§ 1—5, adopted December 16, 2002; Ord. No. 12891, § 1, adopted December 10, 2003; Ord. No. 13068, adopted January 18, 2005; Ord. No. 13069, adopted January 18, 2005; Ord. No. 13150, adopted June 20, 2005; Ord. No. 13576, §§ 1, 2, adopted April 7, 2008; Ord. No. 13960, § 1, adopted March 1, 2010; Ord. No. 14080, § 1, adopted December 6, 2010, and Ord. No. 14245, §§ 1, 2, adopted April 16, 2012.

State law reference—Authority to regulate taxicabs and drivers and operators thereof, G.S. 20-37, 160A-304.

Sec. 50-81. Definitions.

The following words and phrases shall, for the purpose of this article, have the meanings respectively ascribed to them in this section, except where the context clearly indicates a different meaning:

Administrator means the passenger vehicle for hire administrator or designee of the administrator.

Business association means any partnership, corporation, limited liability company, or other business association allowed under the Statutes of North Carolina.

Business day means weekdays and excludes Saturdays, Sundays and legal holidays. Weekday means every day of the week except Saturday and Sunday. Legal holiday is a holiday observed by city government of the city. See subsections 42-16(a) and 42-16(b) for more information on such holidays.

Call or *demand* means communication made by or on behalf of a prospective passenger that he or she wants transportation service from a passenger vehicle for hire that is within sight of the prospective passenger, in which the communication is made by gesture, sign, signal, or sound, including voice and such communication is not related to a prearranged trip.

Cruising means the movement of a passenger vehicle for hire over public streets or public vehicular areas in search of passengers or for the purpose of attracting passengers.

Driver means any person who drives a passenger vehicle for hire.

Driver's permit means the permit issued by the administrator to any person to enable that person to drive a passenger vehicle for hire.

Individual owner-driver means a person, self-employed, who engages in the business of operating a single passenger vehicle for hire, as its owner and driver. The term includes all operating permit holders who hold no more than one such operating permit.

Limousine means any motor vehicle that meets the manufacturer's specifications for a luxury limousine and that provides limousine service as defined in this section. The administrator may consider the following information when determining whether the vehicle's body style matches that of a limousine: manufacturer's certificate as defined in G.S. 20-4.01(20) or the description of the vehicle on the registration card issued by the state division of motor vehicles. Every limousine shall have a minimum of four seats or one continuous sofa-styled seating area located behind the driver of the vehicle.

Limousine sedan means those vehicles that provide executive transportation services by prearrangement and are necessarily limited to full-sized luxury sedans, The administrator shall maintain a list of all the types of vehicles that will be approved to operate as a limousine sedan.

Limousine service means the service regularly rendered to the public, not over fixed routes, which furnishes transportation by limousines for hire, based on a fee determined by increments of time and contracted for by telephone or other prearrangement with a limousine company.

Manifest means a daily record, prepared by the driver of the passenger vehicle for hire of all trips, showing time and place of origin and destination of each trip and the amount of fare.

Medallion means a nontransferable numbered insignia to provide exterior identification that a particular passenger vehicle for hire has a valid operating permit associated with it.

Operating permit means the permit, issued by the city manager, under which a person may operate a passenger vehicle for hire.

Operating permit holder means the vehicle owner and/or the supporting services provider to whom an operating permit for the operation of a passenger vehicle for hire has been issued.

Para-transit vehicle means any passenger vehicle for hire that only provides transportation to passengers with disabilities or physical impairments for compensation by prearrangement with the passenger vehicle for hire company. A para-transit vehicle shall not include any transportation services to passengers with disabilities or physical impairments being offered by any government person or by medical facilities exclusively to the patients of the medical facility.

Passenger means any person who engages a passenger vehicle for hire to carry the person from one destination to another.

Passenger vehicle for hire means any passenger vehicle with a seating capacity of 15 persons or less and for which a fee is charged by contract, agreement, or a fixed meter rate for services originating within the city limits.

Passenger vehicle for hire commission means a commission consisting of seven members appointed by the city council to hear appeals concerning passenger vehicle for hire driver permits, operating permits, suspensions, revocations, citizen complaints and passenger vehicle for hire service.

Passenger vehicle for hire company means any company, which engages in the business of operating passenger vehicle(s) for hire as the owner or franchiser.

Person means where applicable, any natural person, individual, firm, partnership, corporation, limited liability company or other business association recognized by the General Statutes.

Prearrangement means an agreement commenced by a passenger via telephone, electronic communication or other method to obtain transportation from a passenger vehicle for hire ("vehicle") in advance of the vehicle arriving at a specific location for pickup.

Rate notice means the card, displayed within each taxicab for which an operating permit has been issued, describing the schedule of fares charged by such taxicab in accordance with section 50-267.

Rooftop device means a piece of equipment attached to the roof of a passenger vehicle for hire as described in section 50-297 that may contain messages, signs, advertisements, notices, and other communications.

Shuttle means a passenger vehicle for hire, other than a taxicab, that is not equipped with a meter and that is operated by a driver under prearrangement for a fixed fee.

Street means any street, alley, avenue, highway, or any other public or private vehicular area within the corporate limits of the city as the same may exist or may be hereafter extended.

Supporting service provider means the person or company that provides, or guarantees to provide, the requirements of subsection 50-121(5).

Taxicab means any passenger vehicle for hire for which the city sets rates based on distance for a fee and for which said distance is measured by a meter.

Taxicab stand means locations within the city limits where a taxicab and driver can sit and wait for trips to be dispatched.

Unique vehicle means a vehicle that shall be, but limited to, either of the following: (i) registered as an antique vehicle with the state division of motor vehicles; (ii) manufactured at least 35 years prior to its use as a passenger vehicle for hire; (iii) manufactured in a limited or small quantity; (iv) determined by the administrator based upon the vehicle's historical and sentimental value; (v) such other vehicle as determined to be unique, vintage, or classic in nature as determined by the administrator. A taxicab shall not be designated a unique vehicle.

Waiting time shall be defined as provided in section 50-265.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-82. Administrator of passenger vehicles for hire; office created; appointment.

There is hereby created the office of administrator of passenger vehicles for hire (hereafter "the administrator"), who shall be designated by the city manager.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-83. Administrator; reports, recommendations, duties; generally.

(a) The administrator shall advise the city manager with respect to matters covered or incidentally involved in the operation or administration of this article. The administrator shall make such reports to the city manager and the city council as may be required.

(b) The administrator is charged with the duties required of him or her under this article and in general shall be responsible for the inspection of passenger vehicles for hire and the licensing of the drivers thereof.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-84. Types of service.

A passenger vehicle for hire is authorized to provide one of the following types of service:

(1) *Taxicab.*

a. *Exclusive ride.* Involving the transport of a passenger by a taxicab from a single origin to a single destination for compensation;

b. *Group ride.* Involving the transport of several passengers by a taxicab from a single origin to a single destination for compensation;

c. *Shared ride.* Involving the transport of several passengers by a taxicab, and such passengers boarding at same or different origins (locations) and traveling to different destinations for compensation as described in subsection 50-264(c).

(2) *Limousine.* Limousine is defined in section 50-81 and shall provide limousine service as defined in section 50-81.

(3) *Limousine sedan.* Limousine sedan is defined in section 50-81 and shall provide service as described in that definition.

(4) *Para-transit vehicle.* Para-transit vehicle is defined in section 50-81 and shall provide service as described in that definition.

(5) *Shuttle.* Shuttle is defined in section 50-81 and shall provide service as described in that definition.

Shuttles, limousines, limousine sedans and para-transit vehicles shall not engage in cruising or be operated on call or demand.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-85. Taxicab stands, procedure.

(a) The administrator and the city's director of transportation, or their designees, shall jointly establish and designate taxicab stands.

(b) Taxicabs shall enter designated taxicab stands from the rear only and each taxicab therein must be heading in the direction of the exit. No taxicab shall stop at a taxicab stand unless there is a vacancy therein. Unless a passenger requests otherwise, taxicabs shall exit taxicab stands in the order in which they enter. Drivers shall remain in their taxicabs or within the taxicab stand so that normal operations of the taxicab stands are maintained. Taxicab drivers may leave the taxicab stand only in case of an emergency, or to assist passengers.

(c) A list of all taxicab stands in the city shall be kept on file in the office of the administrator and shall be open to inspection by the public.

(d) The provisions of this section do not apply to taxicab stands that have been established on private property between operating permit holders and private property owners.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-86. Penalties.

(a) Upon violation of any provision of this article, the administrator may make a finding, suspend or revoke any operating permit held by such person, and the administrator may suspend or revoke any driver's permit held by such person.

(b) Any person or company who violates any provision of this article may also be subject to civil penalties up to as provided in subsection (g), but not exceeding $500.00 per day that the person or company remains in violation of this article. This penalty may be recovered by the city, in a civil action in the nature of a debt, if the violator does not pay the penalty within 30 days from the date the violator is notified, in writing, of the penalty.

(c) Progressive penalties may be applied when it is determined by the administrator that the same driver or operator has committed a second or subsequent violation of the same rule or any combination of the rules listed for the same progressive penalty schedule within any 12-month period. Assessment of penalties shall be made by the administrator and collected by the city pursuant to subsection (c) of this section. The progressive penalty schedule shall be posted in the office of the administrator.

(d) If the violator fails to pay or appeal the penalty within ten business days, the administrator may suspend or revoke the driver's and/or the operator's permit in addition to any other action taken pursuant to this section. Civil penalties may be levied against the passenger vehicle for hire company according to the total amount of civil penalties incurred during a calendar year by the passenger vehicle for hire drivers employed by that company.

(e) In addition to the authority of this article to deny, suspend, or revoke a permit, the city may seek enforcement of this article by instituting a civil action for injunctive relief, abatement order, or any other appropriate relief in the General Court of Justice in Durham County.

(f) Class I, II and III violations.

(1) *Class I violations.* Except as provided in this article, operating permit holders will not be responsible for Class I violations incurred by drivers. The administrator may assess a civil penalty of $40.00 (doubled if not paid in 30 days) against the operating permit holder (owner), or a civil penalty of $20.00 (doubled if not paid in 30 days) against the driver, who commits any of the following acts or failures to act, collectively referred to as Class I violations:

a. Fails to pay sinking fund insurance fee in a timely manner and as a result insurance is cancelled.

b. Fails to have passenger vehicle for hire inspected on scheduled inspection date and time.

c. Fails to make repairs to passenger vehicle for hire in accordance with vehicle standards.

d. Allows person to drive a passenger vehicle for hire without a valid passenger vehicle for hire driver's permit.

e. Fails to provide administrator with notification of insurance renewal.

f. Fails to have driver's permit card displayed in appropriate location.

g. Fails to keep passenger vehicle for hire clean and sanitary.

h. Fails to notify administrator of criminal offenses or infractions.

i. Exceeds seating capacity of vehicle.

j. Fails to maintain rate notice on inside of taxicab windshield.

(2) *Class II violations.* Except as provided in this article, operating permit holders will not be responsible for Class II violations incurred by drivers. The administrator may assess a civil penalty of $25.00 (doubled if not paid in 30 days) against the operating permit holder (owner), or a civil penalty of $10.00 (doubled if not paid in 30 days) against the driver, who commits any of the following acts or failures to act, collectively referred to as Class II violations:

a. Fails to notify administrator of motor vehicle accident involving passenger vehicle for hire within 48 business hours of the accident.

b. Drives with an expired driver's permit.

c. Fails to adhere to dress and cleanliness standards.

d. Smokes a cigarette, cigar, pipe or tobacco of any kind while a passenger is being transported.

(3) *Class III violations.*

a. Any person who operates a passenger vehicle for hire in the city, without first obtaining an operating permit as provided in section 50-118, is subject to a civil penalty. The civil penalty for a violation is $100.00. Each day of a continuing violation shall constitute a separate violation.

b. Any person who drives a passenger vehicle for hire in the city, without first obtaining a driver's permit as provided in section 50-154, is subject to a civil penalty. The civil penalty for a violation is $100.00. Each day of a continuing violation shall constitute a separate violation.

(Ord. No. 14371, § 2, 12-3-2012; Ord. No. 14538, §§ 1, 2, 11-18-2013; Ord. No. 15982, § 131, 8-1-2022)

Sec. 50-87. Appeals.

Persons found to be in violation of this article may appeal directly to the passenger vehicle for hire commission pursuant to the provisions of this article.
(Ord. No. 14371, § 2, 12-3-2012)

Secs. 50-88—50-117. Reserved.

DIVISION 2. OPERATING PERMIT

Sec. 50-118. Required.

No person shall operate any passenger vehicle for hire in the city without first obtaining an operating permit from the city authorizing such operation. Except, a person licensed or permitted to drive and operate a passenger vehicle for hire in another city in the state or the Raleigh-Durham Airport Authority may operate and drive such passenger vehicle for hire in the city when performing any of the following activities:

(1) Entering the city to drop off a passenger picked up outside of the city limits.

(2) Pursuant to a pre-arranged trip, picking up a passenger within the city limits and taking the same outside of the city limits.

(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-119. Issuance.

(a) The city council authorizes the city manager to issue operating permits to any applicant subject to the provisions of this article.

(b) No operating permit shall be issued to any person who shall not have fully complied with all of the prerequisite requirements of this article before the commencement of the operation of the proposed service. Upon issuance of the operating permit, the operator shall affix the permit on the dash of the vehicle.

(c) When the operating permit has been authorized, and upon determination by the administrator that the color scheme is sufficiently distinctive as not to cause confusion with other taxicabs already operating, and with respect to taxicabs upon the receipt of a fee for each medallion pursuant to section 50-134, the administrator will issue for each passenger vehicle for hire a numbered medallion to be affixed to the passenger vehicle for hire for which the operating permit is issued. Loss or destruction or defacing of the medallion shall be reported to the administrator. No vehicle shall be operated while there is affixed thereto a medallion issued pursuant to this subsection unless, pursuant to this article, the vehicle's use as a passenger vehicle for hire has been authorized and the driver of the vehicle has been authorized to drive a passenger vehicle for hire for the operating permit holder to whom the medallion was issued.

(d) The privilege of engaging in the business of operating a passenger vehicle for hire in the city granted in the operating permit is personal to the operating permit holder. The rights, requirements and responsibilities, which attach to the operating permit, remain with the holder at all times the passenger vehicle for hire is operated in the city under the authority of the operating permit. These rights, requirements and responsibilities, which include the requirements of this article, will remain unaffected by any agreement or contractual arrangement between the operating permit holder, regardless of the form or characterization of the agreement under which the operating permit holder and/or driver operates the passenger vehicle for hire.

(e) The operating permit holders shall, in the case of any change in business address or telephone number, notify the administrator, in writing, of such change within 48 hours of the effective date of the change.

(f) Before allowing a person to drive under his or her operating permit, the operating permit holder shall review the qualifications of such person to drive a passenger vehicle for hire. No operating permit holder shall permit or allow any person to drive a passenger vehicle for hire under his or her operating permit if it appears such person fails to meet the provisions contained in this article. The failure of an operating permit holder to comply with this section shall subject the operating permit holder's operating permit to revocation or suspension as provided in subsection 50-130(a)(1).

(g) Taxicabs. The initial number of taxicab operating permits available for issuance shall be set at 180. Annually or in its discretion at more frequent intervals, the council may review, study and analyze the public need for additional taxicabs and, upon finding by the council that the public convenience and necessity require the operation of additional taxicabs, other than those for which permits are presently outstanding, additional permits shall be declared available and applications may be filed in a manner prescribed by the city council. Operating permits shall then be awarded in accordance with the procedures set forth in this division. The following factors shall be considered for the purpose of determining the adequacy of taxicab service in the city and the need for additional operating permits.

(1) Total number of taxicabs then licensed and in actual operation on the streets.

(2) The number of filled and unfilled telephone requests for taxicab service made during an average 24-hour period.

(3) The demand for taxicab service at taxicab stands that is filled and unfilled.

(4) The average waiting time of persons at taxicab stands and of those persons requesting service by telephone before service is available to them.

(5) The adequacy of taxicab service provided at train stations, bus terminals and other transportation terminals.

(6) The number and availability of qualified full-time and part-time drivers to operate existing taxicabs.

(h) In addition to assuring compliance with other application requirements set forth in this article, the city manager shall consider the following in issuing operating permits.

(1) The financial responsibility, experience and quality of service being rendered, if any, by each applicant.

(2) The total number of permits held by each applicant.

(3) The number of permits requested by each applicant.

(4) The age and type of equipment to be operated.

(5) The ability of each applicant to provide an efficient level of service.

(6) Any other considerations which will tend to improve passenger vehicle for hire service in the city.

(i) In issuing available operating permits preference shall be given to applicants requesting multiple permits (in order of the greatest number of permits requested).

(j) An operating permit shall not be issued to an applicant who has had a permit revoked or who has transferred a permit within the 24-month period preceding the application.

(k) The issuance of available taxicab operating permits shall be done semiannually, on or about October 1 and April 1. All of those persons interested in obtaining an operating permit shall submit an application in accordance with section 50-121 at least 60 days prior to the scheduled date of issuance. Qualified applicants will be placed on a waiting list in chronological order.

(l) If the number of taxicab operating permits requested exceeds the number of permits available, then the permits are issued to the most qualified applicants in order of priority. If certain applicants are equally qualified, then the order of priority shall be based upon the date and time of the application (earlier applicants with higher priority).

(m) If an applicant for an operating permit refuses the operating permit or fails to provide service in accordance with the permit within 60 days of the issuance of the permit, the permit is revoked.

(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-120. Authorization to operate a passenger vehicle for hire under operating permit.

Nothing contained in this article shall prohibit any person from owning or operating a taxicab or other passenger vehicle for hire under an operating permit, in accordance with this article. Provided such person shall operate a taxicab or shuttle under the color scheme of such operating permit and a taxicab shall use a dispatcher service and radio equipment. Such person or the person's driver shall have a valid passenger vehicle for hire driver's permit issued by the administrator, as provided for in division 3.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-121. Application requirements.

All applications for an operating permit are to be submitted by the vehicle owner and the supporting service provider, hereafter called applicant, on forms provided by the administrator stating as follows:

(1) The name and address of each applicant and, in the event that an applicant is a business association, a certified copy of the organizational documents;

(2) The number of vehicles presently operated by the service provider on the date of such application, if any;

(3) The color scheme for which the operating permit is desired, if the vehicle is a taxicab or shuttle (limousines, limousine sedans, para-transit vehicles and unique vehicles as defined in section 50-81 are exempt);

(4) All court records of the applicant. If an applicant is a corporation or association, the court records of the officers, directors and supervising employees thereof, including general manager, if any;

(5) The applicant's submittal of the following conditional information:

a. Ability to provide passenger vehicle for hire service 24 hours a day, seven days a week as an individual owner or through affiliation with other owners. This subsection shall apply to taxicabs only.

b. Ability to provide adequate supervision of passenger vehicles for hire and drivers operating under the operating permit;

c. Evidence that the telephone number of the passenger vehicle for hire company (or the dispatch association with which the company is affiliated) will be listed in the next city telephone directory to be issued;

d. Assurance that each passenger vehicle for hire operating under this permit shall be kept clean and in good mechanical condition and in good physical condition at all times, pursuant to established standards, which are maintained in the office of the administrator, and shall meet all vehicle requirements of this article.

(6) The applicant shall swear that the information submitted is true and correct. Submitting, or causing to be submitted, false or misleading information is unlawful and shall be grounds for denial of an operating permit.

(7) In providing information required by subsections (1), (4), and (5) of this section, an applicant may refer to previous applications, with which the referenced information has been submitted, provided that the applicant certifies that there has been no change with respect to the documents or information referenced.

(8) This section does not reduce the city manager's authority under section 1-11.

(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-122. Indemnity agreement in the application.

The applicant for a taxicab operator's permit shall state that the applicant agrees with the provisions set forth in subsections (1) and (2) of this section. Each operator shall be under an obligation to comply with said provisions by operation of law.

(1) If the city issues an operator's permit, the applicant shall to the maximum extent allowed by law defend, indemnify, and save harmless indemnitees from and against all charges to the extent a charge arises in any manner from, in connection with, or out of the indemnitees alleged involvement with the establishment, supervision, management, or operation of or control over a fund referred to in section 50-352. In performing the duty to defend under the preceding sentence, the applicant shall at the applicant's sole expense defend indemnitees with legal counsel reasonably acceptable to the city. However, this section shall not require the applicant to defend, indemnify, or save harmless an indemnitee to the extent the negligence or wrongful act of the indemnitee was the direct and proximate cause of the charge. This section shall remain in force regardless of whether the operator's permit remains in force.

(2) As used in this section the term "charges," means claims, judgments, costs, damages, losses, demands, liabilities, obligations, fines, penalties, settlements, and expenses. Included without limitation within "charges" are interest and reasonable attorney's fees assessed as part of any such item. The term "indemnitees" means the city; the city's officers, officials, agents, and employees; the passenger vehicle for hire commission and members of the commission.

(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-123. Hearing on application.

The city manager may require a hearing with the operating permit applicant if the administrator is not convinced that the applicant meets all eligibility criteria and has provided all necessary data to the administrator as outlined in section 50-121.

(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-124. Issuance; conditions; denial.

(a) Subject to compliance by the applicant with the provisions of this article, the administrator shall authorize issuance of an operating permit to the applicant, provided:

(1) The vehicle for which application for an operating permit is made shall be in strict compliance with this article and placed into service within 60 days. However, for good cause shown the administrator may at any time within his or her discretion grant an additional 30 days to place the vehicle into service.

(2) The court record of the applicant is not such as would make it against the public interest for such application to be granted:

a. Denial. Convictions or pleas of guilty or no contest to any of the following create the presumption that the granting of the application is not in the public interest and shall be grounds for denial; sex offenses; felonious drug offenses; prostitution; felonies involving violence or attempted violence; and/or felonious illegal gambling.

b. Any applicant denied an operating permit under the provisions of this section may appeal such denial to the passenger vehicle for hire commission. The commission shall consider convictions and pleas of guilty or no contest to the above crimes as creating a rebuttable presumption that the approval of the applicant's application is not in the public's interest. If an application denied under this section is approved by the passenger vehicle for hire commission then the granting of the permit shall be presumed to be in the public interest. All appeals shall be filed pursuant to the provisions contained in section 50-132.

c. No application for an operator's permit from an applicant denied an operator's permit pursuant to the provisions of this section, shall be accepted from such applicant within two years from the date of the administrator's denial.

(3) The applicant thereof shall have complied with all the provisions of this article, including a determination by the administrator that the applicant has satisfied the provisions of subsection 50-121(5).

(4) The issuance is not in conflict with such conditions as placed by city council on the issuance of operating permits.

(b) Upon issuance of the operating permit by the administrator, he or she shall place said permit in a visible location inside the vehicle. At that time, the administrator shall affix the medallion in the passenger vehicle for hire, as required by section 50-119.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-125. Expiration.

All passenger vehicles for hire permits shall remain valid until surrendered or revoked. The operating permit shall automatically expire if the conditions, under which the permit was issued, as provided in section 50-124, change without prior approval of the administrator.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-126. Updating of operating permit information.

(a) Each year before midnight on July 1, the operating permit holder will provide the following information to the administrator:

(1) Operator's name, company name, all pertinent addresses and telephone numbers;

(2) Vehicle and insurance information;

(3) City business license.

(b) Every three years from date of issuance, the operating permit holder shall update the information associated with the operating permit application, as set forth in section 50-121.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-127. Transfer.

(a) Each permit issued pursuant to the provisions of this section is separate and distinct and shall not be transferable from the operating permit holder to another person or entity without prior approval of the administrator. The administrator shall not approve any transfer in conflict with the provisions of this article.

(b) Where the permit holder is a corporation, partnership or other legal entity (other than a natural person), voluntary transfer of the majority of the ownership interest shall result in the automatic revocation of any operating permit previously granted to the operating permit holder, unless the prospective owners of the new entity obtain prior written approval from the administrator for the transfer of the operating permit to the new entity.

(c) Whenever an application for a transfer of permit is made, the administrator shall require such information as required for the original issuance of the operating permit, as set forth in section 50-121.

(d) Upon written approval by the administrator of a transfer of an operating permit, and compliance by the applicant with all the provisions of this section the administrator, shall issue a new operating permit within 30 days of such compliance.

(e) No person shall transfer an operating permit for the first 24 months after issuance except in cases of hardship. A hardship case includes the following examples: death or court-declared incompetency of the holder of the operating permit, or the holder of the operating permit is diagnosed by a board-certified physician that he or she has a life threatening illness. The administrator shall determine whether or not a case meets the test of a hardship and the administrator's decision may be appealed to the passenger vehicle for hire commission.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-128. Transfer of state auto license.

(a) Whenever a passenger vehicle for hire has been removed from service and replaced by another vehicle, it shall be unlawful for the holder of the operating permit pursuant to which such passenger vehicle for hire so replaced was operated, to operate the replacement vehicle

pursuant to the operating permit until and after a transfer of state auto license has been filed with the administrator and with the appropriate state vehicle licensing agency. The transfer shall be made on forms furnished by the state auto license bureau.

(b) It shall also be unlawful to operate any such replacement vehicle as a passenger vehicle for hire prior to compliance with the provisions of subsection (a) of this section.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-129. Replacement of vehicles for hire; new permits.

(a) Whenever an operating permit holder replaces a passenger vehicle for hire with another vehicle, in accordance with section 50-128, the replaced vehicle must have all passenger vehicle for hire identification removed, including, insignias/stickers, top/meter lights, numbers and letters.

(b) When replacing a passenger vehicle for hire, an operating permit holder has 60 days in which to place the replacement vehicle into operation.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-130. Suspension and revocation—Grounds specified; hearing provided.

(a) The administrator may suspend or revoke an operating permit upon the occurrence of any one of the following:

(1) The operating permit holder fails to operate his or her passenger vehicle for hire in compliance with all the provisions of this article, including the provisions contained in subsection 50-119(f);

(2) The administrator finds that the operating permit holder submitted, or caused to be submitted, false or misleading information on the application for an operating permit;

(3) The operating permit holder ceases to operate any passenger vehicle for hire, during a period of 30 consecutive days, for a minimum of 20 days at least eight hours a day, without having obtained written permission for such cessation from the administrator. The operating permit holder may request in writing permission to cease operations for a stated length of time. The administrator shall approve requests, in writing, when good cause is shown such as jury duty, health problems or any other reasonable ground for ceasing operation. In making the decision, the administrator shall consider previous requests, if any, by the same applicant;

(4) The operating permit holder commits any act with the intent to defraud passengers;

(5) The administrator determines, in the interest of the public safety and welfare, and pursuant to the provisions of this article that an operating permit should be suspended or revoked;

(6) The administrator shall suspend an operating permit as provided in subsection 50-349(b) or subsection 50-356(b).

(b) The administrator may suspend or revoke an operating permit due to acts of drivers, pursuant to section 50-164.

(c) No operating permit may be suspended or revoked until the administrator has conducted a hearing thereon. The holder of the permit shall have the right to be present at the hearing and shall be given written notice at least five days in advance of the hearing. Service of the written notice is complete upon the deposit in the mail to the operating permit holder's last known address or hand delivery to the operating permit holder.

(d) Operating permits may be suspended under this section for a period not to exceed six months.

(e) An operating permit holder who has had an operating permit revoked may not apply for an operating permit for a period of six months from the date of such revocation.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-131. Same—Appeals.

(a) Upon a finding by the administrator that an operating permit should be denied, suspended or revoked, the operating permit applicant or holder shall be so notified and informed of the finding so that the finding may be appealed.

(b) The operating permit applicant or holder may appeal the denial, suspension, or revocation of an operating permit by filing with the administrator, within ten business days after the administrator's decision is rendered, written notice of appeal. The notice of appeal shall set forth the reasons why the denial, suspension or revocation is improper.

(c) The suspension or revocation of an operating permit shall not become effective until ten business days after the decision is rendered. If an appeal is filed within this period, the suspension or revocation shall be stayed pending the final decision of the passenger vehicle for hire commission.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-132. Same—Procedure upon appeal.

Upon the filing of an appeal, the administrator shall transmit the notice of appeal to the passenger vehicle for hire commission, which body shall schedule a hearing as provided in section 50-190.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-133. Surrender.

When an operating permit is revoked, the operation as a passenger vehicle for hire of the subject vehicle to such operating permit shall cease, and the operating permit and medallion for the vehicle shall be surrendered immediately to the administrator. When any operating permit holder permanently retires any passenger vehicle from service and does not replace it within 60 days and/or does not apply for operating permit transfer as specified in section 50-127, the operating permit for each such retired passenger vehicle for hire shall be

considered abandoned, and will be void; the operating permit holder shall immediately surrender each related operating permit and medallion to the administrator. Such abandoned operating permits may not be restored by any means other than through application as for new operating permits in the manner provided in this article.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-134. Fees.

Fees to cover the administrative costs for issuing, renewing, duplicating, transferring and reinstating operating permits shall be collected from the applicant by the administrator. Also, a regulatory fee shall be collected from the applicant by the administrator for each medallion issued to a passenger vehicle for hire. Fees shall be approved by the city council and placed on file with the administrator. Other fees permitted by law may be collected.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-135. Death or incapacitation of operating permit holder.

Upon the death of an operating permit holder or upon an individual operating permit holder being legally declared incompetent, the administrator may issue authorization of a temporary operating permit to heir(s) of the deceased operating permit holder or the court appointed guardian of an operating permit holder legally declared incompetent. The term "heir" means any person defined in the intestate succession chapter of the North Carolina General Statutes entitled to take real or personal property upon the death, intestate, of an operating permit holder or a beneficiary identified in the validly probated will of the deceased operating permit holder. The heir(s) issued the temporary operating permit shall be issued the deceased operating permit if the heir(s) make(s) proper application to the city for the operating permit and otherwise meets all the requirements set forth in the ordinance for issuance of the operating permit.
(Ord. No. 14371, § 2, 12-3-2012)

Secs. 50-136—50-153. Reserved.

DIVISION 3. DRIVER'S PERMIT

Sec. 50-154. Required.

No person shall drive a passenger vehicle for hire within the city without first having obtained a passenger vehicle for hire driver's permit from the administrator.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-155. Application requirements.

(a) Each applicant for a driver's permit shall make application on forms to be provided by the administrator. The application shall contain the following information:

(1) The applicant's full name and address;

(2) The applicant's physical condition, with particular reference to hearing, eyesight and abuse of alcoholic beverages or controlled substances as diagnosed by a physician;

(3) The applicant's physical description, including age, race, height, weight, color of eyes and hair;

(4) The length of time the applicant has resided at his or her present address;

(5) The applicant's places of residence and employment for the two years immediately preceding the date of application;

(6) The applicant's criminal record;

(7) The applicant's driver's history including, but not limited to North Carolina.

The application shall be signed and sworn to by the applicant before a notary authorized to take oaths in the state.

(b) Each applicant filing an application shall have two full sets of fingerprints taken and shall have three photographs, front view, taken. Such fingerprints and photographs of the applicant shall be filed with the administrator and shall accompany the written application and shall constitute a part of such application. The fingerprints of the applicant shall be forwarded to the state bureau of investigation for a search of the state criminal history record file and the state bureau of investigation shall forward a set of fingerprints to the Federal Bureau of Investigation for a national criminal history check.

(c) It shall be unlawful for any applicant to willfully include, or willfully cause to be included, a false statement in his or her application for a driver's permit.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-156. Indemnity agreement in the application.

The applicant for a taxicab driver's permit shall state that the applicant agrees with the provisions set forth in subsections (1) and (2) of this section. Each driver shall be under an obligation to comply with said provisions by operation of law.

(1) If the city issues a driver's permit, the applicant shall to the maximum extent allowed by law defend, indemnify, and save harmless indemnitees from and against all charges to the extent a charge arises in any manner from, in connection with, or out of the indemnitees alleged involvement with the establishment, supervision, management, or operation of or control over a fund referred to in section 50-352. In performing the duty to defend under the preceding sentence, the applicant shall at the applicant's sole expense defend indemnitees with legal counsel reasonably acceptable to the city. However, this section shall not require the applicant to defend, indemnify, or save harmless an indemnitee to the extent the negligence or wrongful act of the indemnitee was the direct and proximate cause of the charge. This section shall remain in force regardless of whether the driver's permit remains in force.

(2) As used in this section the term "charges" means claims, judgments, costs damages, losses, demands, liabilities, obligations, fines, penalties, settlements, and expenses.

Included within "charges" are interest and reasonable attorney's fees assessed as part of any such item. The term "indemnitees" means the city; the city's officers, officials, agents, and employees; and the passenger vehicle for hire commission and members of the commission.

(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-157. Qualifications of applicant.

Each applicant for a driver's permit must meet the following requirements:

(1) Be at least 18 years of age;

(2) Upon examination by a physician possess eyesight at least correctable to 20/40 and not suffer from any physical or mental condition which renders him or her unfit for safe operation of a passenger vehicle for hire;

(3) Be able to read, write and speak the English language sufficiently to conduct business as a passenger vehicle for hire driver;

(4) Be clean in dress and person;

(5) Not be addicted to the use of alcoholic beverages or controlled substances;

(6) Produce, on forms provided by the administrator, affidavits of his or her good character from two reputable persons who have known him or her personally and observed his or her conduct during the year preceding the date of his or her application;

(7) Possess a valid N.C. driver's license issued to him or her;

(8) Have written permission from the operating permit holder to operate a passenger vehicle for hire under the permit assigned to that operating permit holder;

(9) Produce, at applicant's expense, applicant's court records, including any criminal record of the applicant in the United States and in the applicant's country of origin if not in the United States. Where applicant has no criminal record, applicant shall provide an affidavit indicating the lack of such record;

(10) Produce evidence that applicant has successfully passed a drug test in accordance by procedures set up by the administrator. However, if a first time applicant is denied a driver's permit for having a positive drug test result establishing the use of illegal drugs or controlled substances and the decision is not overturned on appeal then the person shall wait 12 months from the date of the administrator's denial before reapplying;

(11) Produce reliable documentation evidencing applicant's eligibility to be a passenger vehicle for hire driver. Reliable documentation shall include, when necessary, a valid resident alien registration card, U.S. passport, certificate of naturalization, or any other documents allowed under 8 CFR 274(a)(2) of the Immigration and Naturalization Service Rules of the Immigration Reform and Control Act of 1986;

(12) Have no more than eight accrued points for motor vehicle violations pursuant to G.S. 20-16 during the previous two years;

(13) Each applicant must inform the administrator, in writing, if he or she has been charged with any criminal offense or infraction and produce evidence of disposition thereof. Failure to do so will result in the suspension or refusal of the same.

(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-158. Training of applicant.

Each operating permit holder must require its passenger vehicle for hire drivers to enroll in and successfully complete within 90 days from the date of the issuance of the driver's permit a training course conducted by the administrator or his or her designee.

(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-159. Refusal; grounds specified.

(a) The administrator may refuse to grant or renew a driver's permit for any applicant:

(1) Whose state motor vehicle driver's license is in a state of revocation or suspension;

(2) Who has committed, been convicted of, or pleaded guilty or no contest to, within five years immediately prior to the date of application, any of the following felonies:

a. Possession with intent to manufacture, create, sell or deliver a controlled substance or counterfeit controlled substance or any other substantially similar felony drug conviction;

b. Abduction which would not have been a crime but for a custody order;

c. Discharging a firearm into a occupied dwelling (G.S. 14-34.1);

d. Use of explosive device to injure real property (G.S. 14-49(b));

e. First and second degree burglary (G.S. 14-52);

f. Burglary with explosives (G.S. 14-57).

(3) Who has committed, been convicted of, or pleaded guilty or no contest to, within three years immediately prior to the date of application, any of the following:

a. Possession or use of a controlled substance;

b. Prostitution (G.S. 14-203 et seq.);

c. Any felony not otherwise listed;

d. Impaired driving under state law or any comparable provision of the law of any other state.

(4) Who has committed, been convicted of, or pleaded guilty or no contest to, within two years immediately prior to the date of application, any of the following:

a. Any crime involving the operation of a motor vehicle that resulted in an incapacitating injury to any person, as determined on the state traffic accident report, or the death of a person;

b. A misdemeanor violation of any city, county, state, or federal law relating to the use, possession, or sale of alcoholic beverages or substances regulated by the North Carolina Controlled Substances Act or the North Carolina Toxic Vapors Act;

c. A violation of any city, county, state, or federal law relating to prostitution or illegal gambling;

d. A material violation of section 50-167 in operating a passenger vehicle for hire, or a violation of section 50-154.

(5) Who, within a period of five years immediately prior to the date of his or her application, has been a habitual violator of traffic laws, or a habitual user of alcoholic beverages or any substance regulated by the North Carolina Controlled Substances Act (G.S. 90-86—90-113.8) or the North Carolina Toxic Vapors Act (G.S. 90-113.8A—90-113.14); or

(6) Who does not fulfill the qualifications set forth in section 50-157.

(7) In addition to the above, the administrator shall not grant a driver's permit where the applicant's court record or other information regarding the applicant demonstrates that it is not in the public interest for such application to be granted. Convictions or pleas of guilty or no contest to any of the following create the presumption that the granting of the permit is not in the public interest and shall be grounds for denial: murder; voluntary manslaughter; involuntary manslaughter; felony death by vehicle; kidnapping; felony habitual impaired driving; felonious assaults and/or batteries; rape and other sex offenses; felonious drug offenses; any felonious crime against a person.

(b) Any applicant denied a driver's permit under the provisions of this section may appeal such denial to the passenger vehicle for hire commission pursuant to section 50-165. The commission shall consider convictions and pleas of guilty or no contest to the above listed crimes as creating a rebuttable presumption that the approval of the applicant's application is not in the public's interest. If an application denied under this section is approved by the passenger vehicle for hire commission, then the granting of a driver's permit to the applicant shall be presumed to be in the public interest. No further review of the applicant under this section shall be required for any prospective renewal pursuant to section 50-166.

(c) No application for a driver's permit from the applicant denied a permit pursuant to the provisions of this section, and which was affirmed by the passenger vehicle for hire commission, shall be accepted from such applicant within two years from the date of the denial by the passenger vehicle for hire commission.

(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-160. Issuance.

(a) The administrator, upon finding that an applicant has satisfactorily complied with the provisions of this division including receipt and review of any criminal record and fingerprint check from the state bureau of investigation, shall issue to such applicant a driver's permit, which shall show the applicant's photograph, name, height, weight, expiration date, and the operating permit holder for whom the driver will be employed. The driver's permit must be displayed at all times on the glove compartment or dash of the vehicle. No driver shall operate any passenger vehicle for hire for any operating permit holder other than the operating permit holder shown on his or her driver's permit, without having advised the administrator of the new passenger for hire operating permit holder and changing his or her driver's permit within 48 hours of operating a passenger vehicle for hire for the new passenger for hire operating permit holder.

(b) After the applicant has satisfactorily complied with this division, the administrator shall issue to such applicant a driver's permit, valid for one year from date of issuance. No person shall operate a passenger vehicle for hire within the city while his or her driver's permit is expired.

(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-161. Fees.

Fees to cover the administrative cost of the driver's permit shall be approved by the city council, placed on file with the administrator, and collected from the applicant by the administrator.

(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-162. Authority to suspend; third suspension, revocation mandatory.

In addition to the other sanctions provided in this article, the administrator shall have the authority to suspend any driver's permit issued under this division for any of the grounds specified in section 50-163, for the permit holder's violation of any section of this article, or if the holder of the driver's permit is found by the administrator to have violated any federal, state, or local law pertaining to the public welfare or morals or to have been convicted of or pled guilty or no contest to any such violation. Such suspension shall not exceed 60 days. A third suspension of a driver's permit within a five-year period shall result in the mandatory revocation of such driver's permit. No application for a driver's permit will be accepted from an applicant within six months of the date of revocation.

(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-163. Revocation; grounds generally.

The administrator may revoke or refuse to renew a driver's permit if the person to whom the driver's permit was issued is, at any time after issuance:

(1) Found by the administrator to have committed, been convicted of, or pled guilty or no contest to, any of the following:

a. A violation of any federal, state or local law relating to the use, possession, manufacture or sale of alcoholic beverages or any substance regulated by the North Carolina Controlled Substances Act (G.S. 90-86—90-113.8); or the North Carolina Toxic Vapors Act (G.S. 90-113.8A—90-113.14);

b. A violation of any federal, state, or local law relating to prostitution or gambling;

c. An accumulation, under G.S. 20-16, within a three-year period, of 12 or more points, or eight or more points within the three-year period following the reinstatement of a state driver's license which has been suspended or revoked; or has been convicted of any other moving violation of traffic laws, for which the state driver's license is suspended or revoked;

d. Any felony;

e. Any violation of a federal, state or local law designed for the protection of life;

f. Any criminal assault involving the operation of a vehicle for hire;

g. Any sex offense or offense involving moral turpitude; or

h. A material violation of section 50-167 or a violation of section 50-154.

(2) Found by the administrator to be a habitual user of alcoholic beverages or any substance regulated by the North Carolina Controlled Substances Act (G.S. 90-86—90-113.8) or the North Carolina Toxic Vapors Act (G.S. 90-113.8A—90-113.14);

(3) Found by the administrator to have made or caused to be made a material false statement in his or her application for issuance or renewal of a driver's permit;

(4) Does not continue to meet the qualifications for a driver's permit as set forth in section 50-157. However, if the person who is seeking renewal of a driver's permit tests positive for illegal substances and has not previously failed the drug test as required in section 50-157 when applying for the driver's permit, then the administrator shall, suspend the driving permit for 30 days. The administrator shall require the driver who is granted the 30-day suspension in lieu of revocation to obtain a substance abuse assessment and abide by the recommendations. The person who is suspended pursuant to this section shall be subject to random drug testing for one year. If a substance abuse program is recommended then it shall be successfully completed. Without limiting other provisions in this chapter regarding suspension and revocation of a driver's permit, it is a condition of the suspension that the administrator shall revoke the driver's permit if the person violates the requirements imposed pursuant to this section;

(5) Found by the administrator to have had his or her driver's permit suspended three times in any five-year period; or

(6) Found by the administrator to have aided or abetted in the commission of any of those acts contained in subsections (1)a., b., d., e., f., or g. of this section.

(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-164. Acts of drivers.

(a) Upon a finding by the administrator that a driver has committed, been convicted of, or pled guilty or no contest to:

(1) Any of the offenses specified in section 50-163;

(2) A violation of any provision of this article pertaining to the operation of passenger vehicles for hire;

(3) A violation of any federal, state, or local law pertaining to the public health or morals; and that such offense or violation occurred while the driver was engaged in the operation of a passenger vehicle for hire or was engaged in some act related to the operation of a passenger vehicle for hire.

The administrator shall give written notice of such finding to the driver and to the operating permit holder under which the driver was operating.

(b) Upon the occurrence of three findings under subsection (a) of this section against a driver in any 24-month period, the driver and the operating permit holder under which the driver was operating shall be notified, in writing, that one additional finding against the driver within 12 months after the date of the notice may result in suspension or revocation of the operating permit.

(c) Upon one additional finding under subsection (a) of this section by the administrator against a driver within 12 months after the date of the notice provided for in subsection (b) of this section, the administrator may suspend or revoke the operating permit under which the driver was operating, pursuant to the procedure provided in subsection 50-130(c).

(d) The operator's permit shall not be suspended or revoked unless four findings against a driver occurred under the said operating permit holder except as provided in subsection 50-130(c).
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-165. Appeal of administrator's decision.

(a) The decision of the administrator not to grant or renew a driver's permit under section 50-159 or otherwise shall be subject to an administrative appeal to the passenger vehicle for hire commission.

(b) A decision by the administrator to suspend or revoke a driver's permit or a determination by the administrator under section 50-164, shall be subject to appeal to the passenger vehicle for hire commission.

(c) Any person aggrieved by a decision of the administrator to which there is a right to appeal may appeal by giving written notice of appeal to the administrator. The notice of appeal shall set forth the reasons why the administrator's decision is improper and shall be filed with the administrator within ten business days after the administrator's written decision is rendered: Appeals may be taken only from the administrator's written decision.

(d) Upon the filing of an appeal, the administrator shall transmit the notice of appeal to the passenger vehicle for hire commission which shall schedule a hearing as provided in section 50-190.

(e) A decision by the administrator to suspend or revoke a driver's permit shall not become final until ten business days after the decision is rendered. If the appeal is filed within the allowed time, the administrator's decision shall be stayed pending the final decision of the passenger vehicle for hire commission. If no appeal is filed within the allowed time, the holder of the driver's permit shall immediately surrender the permit to the administrator. Failure to surrender the permit within 15 days from the date of a suspension notification by the administrator shall result in revocation of the permit. The administrator, upon taking any action from which there is a right to appeal, shall give the driver, applicant, or operating permit holder, an appropriate written notice of the right to appeal.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-166. Renewal.

The administrator shall renew a driver's permit from year to year by appropriate endorsement thereon. The driver applying for a renewal of his or her driver's permit shall make application on a form furnished by the administrator. Such driver shall have a physician's certificate completed in accordance with section 50-157 every three years.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-167. Conduct of drivers.

(a) No driver shall:

(1) Deceive or attempt to deceive any passenger who may ride or desire to ride in his or her passenger vehicle for hire as to his or her destination or the rate of fare to be charged;

(2) Convey or cause to be conveyed any passenger to any place other than as directed by the passenger; or

(3) Take a longer route to the requested destination than is necessary, unless it is so requested by the passenger, except for shared ride service provided for in subsection (f) of this section.

(b) Drivers shall comply with all reasonable and lawful requests of the passenger as to the speed of travel and the route to be taken.

(c) No driver shall have in his or her possession a lighted cigarette, cigar, pipe, or tobacco of any kind while a passenger is being carried in his or her passenger vehicle for hire.

(d) A driver of a passenger vehicle for hire, except a taxicab, shall not engage in cruising or be operated on call or demand. This subsection includes the following types of passenger vehicles for hire: shuttles, limousines, limousine sedans, para-transit vehicles and unique vehicles.

(e) A driver of a taxicab may engage in cruising or be operated on call or demand.

(f) Driver and prearrangement. A driver of a passenger vehicle for hire, except a taxicab, must be able to demonstrate prearrangement by showing a copy of a written or electronic reservation for service from a specific location, at a specific date and time, to travel to specific

destinations. Alternatively, the driver may demonstrate prearrangement by recording on a manifest the name of the passenger requesting service, the date, time and location of commencement of trip and specific destination, prior to picking up the passenger. Prearrangement does not include accepting street hails from prospective passengers in the public street right-of-way or public vehicular area. Passenger vehicle for hire in this subsection includes: shuttles, limousines, limousine sedans, para-transit vehicles and unique vehicles.

(g) No driver shall allow the seating capacity of his or her passenger vehicle for hire to be exceeded. The administrator shall determine seating capacity based on the number of seat belts in the passenger vehicle.

(h) If agreed to by the first passenger, a taxicab carrying passengers may answer other calls, or pick up additional passengers, prior to taking the first passenger to his or her destination, provided that the first passenger agrees to the amount of additional time above that normally required for the exclusive-ride trip as estimated in advance by the driver. Taxicab drivers shall specify, as provided in section 50-264, any fare discounts to passengers participating in a ride sharing. If a child under 16 years of age and unaccompanied by a person 16 years of age or older is the original passenger, no other passengers shall be permitted in the passenger vehicle for hire.

(i) No driver shall refuse or neglect to convey an orderly prospective passenger on the basis of race, color, religion, handicap, age, sex or national origin or neglect to convey an orderly prospective passenger upon request, unless the driver has made visual contact with the prospective passenger and formed a belief that is reasonable under the circumstances, that transporting such person might be unsafe for the driver, or forbidden by provisions of this article, or has the "off-duty" placard showing prior to the request for service by a prospective passenger.

(j) A driver shall not knowingly use, sell, handle or transport illegal controlled substances at any time.

(k) A driver shall not give any information as to where illegal controlled substances may be obtained for illegal purposes.

(l) A driver shall not knowingly subject, procure, or give information in regard to or take any passenger to any location for the purpose of prostitution.

(m) A driver shall provide prompt, efficient service and be courteous at all times to passengers, the general public, other city-permitted passenger vehicle for hire drivers, and to city investigators and officers.

(n) It shall be unlawful for a driver to operate his or her vehicle in a manner which threatens a passenger or the general public, or to threaten or otherwise abuse a passenger.

(o) Every driver shall maintain on file with the administrator and operating permit holder the driver's name and address. The driver shall notify the administrator and operating permit holder of a change in address within a reasonable time.

(p) A driver must promptly notify the administrator if he or she is charged with any criminal offense or infraction and must produce evidence of the disposition of the case as soon as it is available. Failure to do so may result in the suspension of the driver's permit.

(q) A driver may not operate a passenger vehicle for hire while under the influence of an alcoholic beverage, while consuming an alcoholic beverage, with the odor of an alcoholic beverage on or about his or her person or breath or with an open container of an alcoholic beverage in the vehicle. A driver shall not purchase alcoholic beverages including, but not limited to, beer and malt liquor while operating a passenger vehicle for hire.

(r) Operating permit holders shall be responsible for the compliance of their affiliated drivers with this section. Failure of a driver to comply may result in the issuance of civil penalties and other sanctions to the operating permit holder and the driver pursuant to section 50-86.
(Ord. No. 14371, § 2, 12-3-2012)

Secs. 50-168—50-187. Reserved.

DIVISION 4. PASSENGER VEHICLE FOR HIRE COMMISSION

Sec. 50-188. Created; composition; terms; compensation; vacancies; quorum; removal.

(a) The passenger vehicle for hire commission (hereafter referred to as the "commission") shall consist of seven members who shall be appointed by the city council.

(b) Appointments to the commission shall be made to encourage diverse representation from among the following areas: visitor's industry, large employers, service providers (such as social services), elderly, law, substance abuse prevention sector, passengers, and passenger vehicle for hire operating permit holders. At least two members shall be persons required by section 50-118 to obtain a passenger vehicle for hire operating permit from the city. Each member shall serve for a term of three years. Vacancies shall be filled by the city council. Five members shall constitute a quorum in order to conduct business or hold hearings. The city council may remove any member at any time. The members of the commission shall select one member to serve as chair and one member to serve as vice-chair.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-189. Duties and responsibilities.

(a) The commission shall hear the following:

(1) Appeals from decisions of administrator not to grant an operating permit under section 50-124;

(2) Appeals from suspensions or revocations of operating permits under section 50-130;

(3) Appeals from decisions of the administrator not to grant or renew driver's permits under section 50-159;

(4) Appeals from decisions of the administrator to revoke driver's permits under section 50-164;

(5) Appeals from decisions of the administrator to suspend driver's permits under sections 50-162 and 50-271;

(6) Appeals from findings of the administrator under section 50-165;

(7) Appeals of civil penalties;

(8) Citizen complaints and recommendations concerning passenger vehicle for hire service.

(b) The commission shall promulgate rules and procedures to carry out its responsibilities under this division, and shall keep such rules and procedures on file with the city clerk.

(c) The commission shall study the adequacy of the trust or sinking fund prescribed in division 9 and shall report its recommendations with respect thereto, to the city council.

(d) The commission may have any other responsibilities as assigned by the city council. (Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-190. Hearings.

(a) All appeals provided in section 50-189 shall be submitted, to the administrator, by the party seeking to appeal. Appeals shall be on a form and in a manner designed and provided by the commission. If the information submitted is insufficient, the administrator may return the appeal to the applicant for additional information without regard to subsection (b) of this section. If the form is completed and complies with the provisions of this article then it shall be sufficient.

(b) The commission shall hold a hearing within 45 days after the receipt of the appeal. The administrator shall give written notice at least seven days prior to such hearing to all parties of the time and place for the hearing. In the event that the party seeking the appeal desires a hearing at a date other than that set by the commission, such person may file a written request for a change of hearing date, setting forth the reasons for such request and the chair is empowered to approve or disapprove such a request; provided such request must be received by the commission at least ten days prior to the date set for the hearing. For good cause, the chair of the commission may set a hearing date other than within the period set forth above, or may continue the hearing from time to time. The commission shall render a decision on an appeal within seven days after the date of the hearing.

(c) Any appealing party may appear at the hearing in person and shall have the right to representation by a person of his or her choice. The hearing shall be recorded and the commission's decision shall be in writing with copies provided to all parties. The rules of evidence normally applied in the trial of civil actions in the General Court of Justice of the State of North Carolina shall not apply to hearings conducted before the commission.

(d) When practical difficulties or unnecessary hardship would result from carrying out the strict letter of this article, the commission may vary the provisions of this article so that the spirit of this article shall be observed, public safety and welfare secured and substantial justice done.

(e) Hearings before the commission shall be de novo. Final decisions of the commission regarding revocation or denial of an operator's permit, the suspension of an operator's permit for over 60 days or the revocation of a driver's permit shall be appealable to the city council for final decision. A party may appeal by giving written notice to the administrator within ten business days of the commission's decision. If the commission's decision is not appealed within this time period then its decision is final and enforceable. If an appeal to city council is taken within this time period, then the commission's decision is stayed pending the final decision of the city council. The administrator shall calendar the appeal before the city council in a reasonable time.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-191. Action by council.

(a) The city council shall take such action, as it deems appropriate, including; but not limited to, the following:

(1) Deciding the matter based solely upon the commission's decision;

(2) Hearing arguments from the affected party, the administrator and other interested persons;

(3) Setting the matter for hearing de novo before the city council;

(4) Returning the matter to the commission for further consideration.

(b) When practical difficulties or unnecessary hardship would result from carrying out the strict letter of this article, the city council may vary the provisions of this article so that the spirit of this article shall be observed, public safety and welfare secured and substantial justice done.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-192. Notification of affected party; appeal.

The city clerk shall give prompt written notice by mail to the affected party of the decision of city council. The decision of the city council may be appealed to the General Court of Justice of the State of North Carolina by the filing of the appropriate legal process with the court within 30 days after the mailing of the city council decision, but not thereafter. Unless such appeal is filed within such period, the appeal shall be conclusively presumed to be withdrawn and abandoned and the action and decision of council shall stand as final. In the event such appeal is taken in a timely manner as herein provided the rules of procedure governing appeals from the decision of the governing body of a municipality by certiorari shall control.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-193. Compensation.

Each member of the commission who attends an official meeting of the commission shall be entitled to compensation of the sum set by the city council for each meeting attended.
(Ord. No. 14371, § 2, 12-3-2012)

Secs. 50-194—50-224. Reserved.

DIVISION 5. OPERATION

Sec. 50-225. Registration and all proper permits necessary.

No person shall operate a motor vehicle as a passenger vehicle for hire until such vehicle has been registered in accordance with all the requirements of the state and all proper permits have been obtained therefor.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-226. Compliance with state law, ordinances, etc.

(a) Every passenger vehicle for hire shall be operated in accordance with the laws of this state and the ordinances of this city and with due regard for the safety, comfort and convenience of passengers and for the safe and careful transportation of property and for the safety of the general public.

(b) No passenger vehicle for hire shall be operated at a rate of speed inconsistent with existing traffic regulations, road conditions, and the hazard at intersections and any other conditions then existing, nor in such manner or condition to endanger or to be likely to endanger the safety of passengers, pedestrians, vehicles or the person and property of others.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-227. Operation standards.

Subsequent to the receipt of an operating permit to operate a passenger vehicle for hire, an operating permit holder shall continue to meet the requirements of this article, including sections 50-121 and 50-124, as a condition of retaining such permit.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-228. Terms between owner and driver regulated.

(a) Any passenger vehicle for hire may be operated by the operating permit holder thereof, or by a duly authorized agent or employee of the operating permit holder.

(b) An operating permit holder may enter into a written contractor lease agreement with any driver, as an independent contractor, by the terms of which such driver pays to the operating permit holder a fixed or determinable sum per day for the use of such passenger vehicle for hire and is entitled to all or a portion of the proceeds of operation over and above

the fixed or determinable sum; provided however, that the vehicle owner provides and maintains such insurance on any leased passenger vehicles for hire as required by the city and the state.

(c) The agreement must impose a condition that the driver shall comply with this article and that failure to comply may be considered by the operating permit holder as a material breach of the contract or lease agreement.

(d) Nothing herein contained shall prevent any operating permit holder from paying a fixed fee or other compensation to another operating permit holder for furnishing insurance, required by this article, for use of terminal facilities or for the privilege of operating under the name of such other operating permit holder.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-229. Duty of operating permit holder to keep records and file reports.

Every operating permit holder shall maintain on file with the administrator his or her name, business address, garage address, all business telephone numbers listed in his or her name, and the names of all drivers, their license numbers and addresses. The operating permit holder shall notify administrator of changes of names of his or her drivers and their license numbers within 48 hours after such change in writing.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-230. Driver's daily manifest to be kept; right of inspection by police and the administrator.

(a) Every owner or driver of a passenger vehicle for hire shall maintain a daily manifest of calls received from persons requesting transportation. Every driver of every such passenger vehicle for hire shall keep a daily manifest of the trips made each day, the time, place of origin and destination of each trip, and the number of passengers and amount of fare for each trip. Manifests shall be in a form approved by the administrator and shall be furnished to the driver by the operating permit holder.

(b) Every operating permit holder shall retain and preserve, filed by operating permit number, all drivers' manifests in a safe place for at least 90 days, and the same shall be made available upon demand for inspection by the administrator, the city police or the city manager.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-231. Driver's dress restrictions.

Each driver shall wear clean clothes consisting of shoes, a shirt (free of obscene or offensive writings or illustrations), pants or ankle length skirt or dress or knee length shorts during spring and summer months as part of a complete uniform prescribed for all passenger vehicle for hire drivers and approved by the administrator, and, when necessary, an outer winter garment while operating a passenger vehicle for hire. If a hat is worn, it shall be free of any

offensive writings or logos. Undershirts, T-shirts and tank top shirts are not permitted as a shirt as described in this subsection but may be worn underneath the shirt. A flip-flop style sandal shoe is not permitted as a shoe.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-232. Accidents to be reported.

All accidents involving the operation of passenger vehicles for hire shall be reported to the administrator within 48 business hours of the accident. The operating permit holder for the passenger vehicle for hire involved in an accident and the driver of the passenger vehicle for hire so involved shall be jointly and individually responsible for making the required report, which shall be on a form approved by the administrator. Upon inspection by the administrator, a passenger vehicle for hire may be immediately ordered out of service by the administrator until repaired if the administrator determines that the vehicle does not meet the criteria of this article.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-233. Length of time.

Upon requesting passenger vehicle for hire service, the caller shall be advised of the probable time of delay, if service is not expected to be available within 15 minutes.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-234. Limitation on hours of driving.

It shall be unlawful for any driver of any passenger vehicle for hire to continue on active passenger vehicle for hire duty for more than 14 hours, mealtime included, during any 24-hour period. Each driver shall enter the time of commencing active duty and ending active duty upon the record provided for in section 50-230.
(Ord. No. 14371, § 2, 12-3-2012)

Secs. 50-235—50-263. Reserved.

DIVISION 6. RATES AND CHARGES

Sec. 50-264. Fare or rate of fare.

(a) Authorized fare or rate of fare for exclusive ride service. The operator of any taxicab within the city is hereby authorized to charge an amount not in excess of the following fares or rates of fare:

(b) There shall be no additional charge for groups whose trips originate at the same location and whose destination is the same.

(c) For a "shared ride" as described in subsection 50-84(1)c., the first passenger(s) leaving the taxicab shall be chargeable for the amount of the fare shown on the taximeter and before proceeding to transport the remaining passenger, the flag shall again be placed in the

earning position so as to designate the beginning of a new and separate trip as to the remaining passenger in such vehicle and such process shall be repeated each time a passenger reaches his or her destination and alights from the vehicle so that the last passenger(s) leaving the vehicle shall be chargeable with such fare appearing upon the taximeter upon leaving the vehicle unless otherwise arranged between the taxicab operator and passengers. Provided that the vehicle equipped with taximeters capable of multiple flag drops so that each passenger's fare is calculated separately from the point of pickup to his or her destination, this method shall be employed to charge each passenger unless otherwise arranged between the taxicab operator and the passengers.

(d) Fare or rate of fare for package delivery service. The operator of any taxicab may contract with any individual or with any business within the jurisdiction of the city to provide package delivery service at any fare or rate of fare which is mutually agreeable between the parties.

(e) Changes of fare. The city manager may perform or cause to be performed such studies as necessary and may make recommendations to the city council concerning changes in the fares prescribed by this section. Such studies concerning changes in fares shall occur at least every three years; provided, however, nothing herein shall preclude such studies at more frequent intervals as is necessary.
(Ord. No. 14371, § 2, 12-3-2012; Ord. No. 15930, § 1, 5-22-2022)

Sec. 50-265. Waiting time.

Waiting time shall be defined as the period of time consumed when a taxicab is not in motion at the direction of a passenger from the time of acceptance of a passenger to the time of discharge and also the time consumed while a driver is waiting for a passenger after having responded to a call but does not include the time consumed by a premature response or for the first three minutes following the timely arrival in response to a call or for delay caused by traffic interruption, the inefficiency of the taxicab or its driver or due to any cause other than the request, act or fault of the passenger.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-266. Charges for delays other than "waiting time."

No charge shall be made against a passenger for any time lost on account of any delay whatsoever other than as provided in the definition of "waiting time" as defined in section 50-265.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-267. Posting of schedule of rates.

It shall be unlawful for any operator of a taxicab carrying passengers to allow or permit the same to be driven or operated upon the streets of the city unless there is posted and kept posted in such taxicab a printed schedule of fares and rates not exceeding the maximum

amounts authorized by the provisions of this Code. Such schedule of fares and rates shall be obtained from the administrator and shall be posted in such places in the interior of the taxicab as may be approved by the administrator.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-268. Collection of fare not registered on a meter.

(a) For transportation in any taxicab within the jurisdiction of the city, it shall be unlawful to make a charge to or collect a fare from a passenger using exclusive ride service, unless the amount thereof is registered upon the face of the meter, except as provided in subsection 50-264(a) and subsection (b) of this section.

(b) Taxicab drivers may request that any passenger pay an estimated fare in advance of his or her trip. Upon completion of the trip, the amount prepaid by the passenger shall be credited to the charge shown on the taximeter. If the prepaid amount exceeds the charge on the taximeter, the difference shall be refunded to the passenger. Drivers shall make every attempt to estimate the fare as accurately as possible.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-269. Receipt for fare paid.

If demanded by the passenger, the driver in charge of a taxicab shall deliver to the person paying for the hiring of the same, at the time of such payment, a receipt therefor in legible type or writing containing the name of the operator, the name of the driver, the number of the vehicle, and any items for which a charge has been made, the total amount paid and the date of such payment.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-270. Violation of division; charging of excessive fare.

If any person shall violate any of the provisions of this division or charge or collect a fare in excess of that authorized by this division, the administrator shall summarily and immediately cause the vehicle involved in such violation to be removed from operation as a passenger vehicle for hire until the deficiencies found to be in violation of this division have been corrected. The charging or receiving of a fare in violation of the provisions of this division may be cause for suspension or revocation of the driver's permit.
(Ord. No. 14371, § 2, 12-3-2012; Ord. No. 15982, § 132, 8-1-2022)

Sec. 50-271. Disputes.

All disputes between the passenger and the driver as to fares may be arbitrated by the administrator within 20 days of service, and both passenger and driver shall comply with such determination. Appeal of the decision of the administrator may be made to the commission, asprovided by division 4.
(Ord. No. 14371, § 2, 12-3-2012)

Secs. 50-272—50-290. Reserved.

DIVISION 7. SPECIFICATIONS AND EQUIPMENT

Sec. 50-291. All passenger vehicles for hire must conform to the provisions of article.

No passenger vehicle for hire vehicle shall be granted an operating permit unless it conforms to all the provisions of this article.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-292. General vehicle requirements.

(a) All passenger vehicles for hire must be clean, operable, and in good repair. Each vehicle must have a minimum of three doors, two doors of which lead to the driver's compartment of the vehicle. All doors must be operable from the inside and outside of the vehicle and constructed with a double or safety lock on each door.

(b) All upholstery covering or interior lining in any passenger vehicle for hire shall be of washable material shall be substantially free of cuts or tears and uniform in appearance.

(c) Floor mats of rubber or other material shall be provided and shall at all times be removable. No passenger vehicle for hire shall have on the floor thereof any footrest bracket or other fixture extending above the top of the floor mat.

(d) Seat belts shall be provided in accordance to passenger capacity. Drivers shall comply with state law when transporting children as provided in G.S. 20-137.1 or any statute superseding it.

(e) Taxicabs. All taxicabs shall be equipped with a protective shield safety device, separating the passenger area (rear seat) from the driver, camera or video system.

(f) The age of any passenger vehicle for hire shall not be greater than 15 model years. At the time the vehicle is first placed in service it shall not be of an age greater than ten model years. The following types of passenger vehicles for hire defined in section 50-81 are exempt from this subsection: limousines, limousine sedans, para-transit vehicles and unique vehicles.
(Ord. No. 14371, § 2, 12-3-2012; Ord. No. 14538, § 3, 11-18-2013)

Note—Section 3 of Ord. No. 14538, adopted November 18, 2013, states that subsection (f) as applied to "shuttles" becomes effective January 1, 2015.

Sec. 50-293. General maintenance and equipment requirements.

Every vehicle used as a passenger vehicle for hire shall meet the requirements of this section. If the administrator finds that a vehicle does not meet these requirements, he or she may order that such vehicle be removed from passenger vehicle for hire service.

(1) *Conformance to manufacturer's specifications.* The vehicle body shall conform to the general specifications of the manufacturer.

(2) *Vehicle exterior.* All exterior of the vehicle shall be maintained in good condition, free of substantial rust, dents, scratches, chips, and abrasions. Body paint may not be faded or mismatched. The exterior of the vehicle shall be washed frequently and kept reasonably free of dirt, grime, and grease.

(3) *Springs.* The springs or other material used to support the seating areas of the passengers shall be maintained to ensure an elastic coefficient of at least 90 percent of the manufacturer's specifications.

(4) *Suspension components.* All suspension components affecting the ride and safety of the vehicle shall be maintained such that they comply with the manufacturer's specifications.

(5) *Windshields, windows.* All windshield and window glass shall be maintained free from cracks, scratches, pitting, abrasions, or any other condition that reduces clarity of vision below the level specified by the manufacturer. Windows shall not rattle and shall not be difficult to open or close.

(6) *Safety.* All passenger vehicles for hire must be inspected at an authorized state vehicle station every 12 months. The vehicle must meet the state's vehicle safety inspection requirements at all times.

(7) *Meter.* It shall be unlawful for the operator of a taxicab operating within the city to operate or cause such taxicab to be operated as a taxicab unless such vehicle is equipped with a meter of a type and design which has been approved by the administrator. Other required specifications are as follows:

a. Each meter shall be furnished with a tamper-proof switch and system of electric distribution so that when the meter is in the earning or hiring position, the fare indicator on the meter will be lighted and occupancy lights, located elsewhere on the vehicle and synchronized with the lights on the fare indicator, will be lighted. It shall be unlawful for any taxicab to be driven or operated for hire if the occupancy lights are out of order.

b. Each meter must be driven directly from the taxicab speedometer or speed sensor to the meter head itself. It shall be unlawful for any person to tamper with the meter or any of the electrical wiring attached to the meter or lights on any taxicab or to attach any wires, switches, pins or any other device whatsoever to the meter or the light required by this article.

c. No person shall use or permit to be used any taxicab meter which is in such a condition as to operate such that the meter charges higher than what is approved by the city council.

d. All meters shall be placed in such position in vehicle so that the face thereof and the fare numerals may be easily seen and read by a passenger sitting in any part of the vehicle.

e. When a passenger engages and enters a taxicab, the flag signal or other device affixed to such meter shall be placed in such a position as to denote that such taxicab is employed. The meter flag or signal affixed to a meter shall not be changed from a vacant to an employed position until the person engaging the vehicle has entered the vehicle, and the flag or signal shall not be moved from an employed to a vacant position at the conclusion of the trip until the fare is paid. No taxicab shall be operated for exclusive ride service while occupied by a person other than the driver with the flag or signal affixed to such meter in such a position as to denote that such vehicle is not employed.

f. All meters shall be inspected and tested by the administrator or his or her designee. No taxicab shall be driven without first having the meter approved and inspected by the administrator.

(8) *Heater and air-conditioner.* The passenger vehicle for hire must be equipped with an operating heater and an operating air-conditioner.

(9) *Headlights, taillights, and parking lights.* All such must function properly and shall not be broken or cracked.

(10) *"For hire" vehicles (except taxicabs) prohibited from having top lights and meters.* A taxicab shall be equipped with an exterior top light of a type approved by the administrator. A top light is a light or lights permanently attached to the roof of the vehicle.

It is unlawful for any person to operate a passenger vehicle for hire, except a taxicab, on which a top light or meter, has been installed, activated, or connected in or on such vehicle. Meters that are prohibited are as described in subsection (7) of this section.

This subsection shall not apply to a person licensed or permitted to drive a passenger vehicle for hire in another city in the state or Raleigh-Durham Airport Authority when such person, while operating a passenger vehicle for hire, enters the city to drop off a passenger picked up outside of the city limits, or pursuant to a pre-arranged trip, picks up a passenger within the city limits and takes the same outside the city limits.

(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-294. Meter maintenance and operation; vehicle for hire operation as passenger vehicle for hire prohibited.

(a) No person shall use or permit a taxicab to be used for the provision of passenger vehicle for hire service while the meter installed in such vehicle is unsealed or its gear is not intact. The provisions of this section shall not apply to electronic or computerized meters.

(b) Any time a taxicab operating within the jurisdiction of the city is occupied by a person other than the driver, the flag must be in a down position and the meter in an "on" and operating mode, regardless of the actual fare charged. It shall be the duty of the driver to call to the attention of passengers the amount registered on the meter. In the event that the meter is electronic and does not have a flag, the meter must be "on" and operating, regardless.

(c) No person shall operate or cause to be operated a taxicab unless the vehicle is equipped with a meter that has been duly inspected and approved by the administrator and otherwise meets all the requirements of a taxicab contained in this article. It shall be unlawful to reduce the size of wheels or tires of a taxicab or other passenger vehicle for hire or to tamper with a meter.

(d) The meter shall be mounted in such a fashion that it does not present a sight obstruction.

(e) The meter shall be mounted in such a fashion that it does not present a hazard should a passenger riding in the right front seat be thrown against the vehicle dashboard. If the meter is not mounted such that this requirement is fulfilled, then the right front seat cannot be occupied by a passenger.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-295. Color schemes for taxicabs; other regulations for all passenger vehicles for hire.

(a) Every taxicab individual or company operating two or more taxicabs shall adopt a color scheme, distinct from that of any other taxicab individual or company, for the painting of its taxicabs, and all taxicabs of an individual or company shall be of the same color scheme. An operating permit holder who operates under the name of another operating permit holder shall use the same color scheme as such other operating permit holder. All color schemes are subject to approval by the administrator.

(b) All individuals or companies operating a single taxicab shall have such vehicle painted a uniform color determined by the administrator. All individuals or companies operating a single taxicab company shall have such vehicle painted a uniform color determined by the administrator.

(c) Where taxicabs of several companies and persons have been transferred to a single corporation in order to qualify for sinking fund or trust fund coverage, the foregoing provisions relating to color schemes shall not apply, and each transferor may retain the same color scheme and ownership lettering as before the transfer to such holding corporation.

(d) A shuttle operating permit holder shall not use a color scheme that has been previously adopted by a taxicab operating permit holder. Limousines, limousine sedans, para-transit vehicles and unique vehicles defined in section 50-81 are exempt from color scheme provisions set forth in this section.

(e) The name of the passenger vehicle for hire company shall be affixed with permanent paint or decals on both sides of the vehicle in letters of not less than four inches. The passenger vehicle for hire number shall be affixed with permanent paint or decals to sides, the front and the rear of the vehicle in numbers of not less than six inches. The telephone number and Durham, N.C. shall be affixed with permanent paint or decals on both sides of the vehicle with the letters and numbers at least four inches high on each side. The administrator may adopt a policy designating any other markings on a taxicab, shuttle and other passenger vehicles for hire for the purpose of identifying the various types of passenger vehicles for hire.

(f) Colors of paint used for lettering and numbering shall be in sharp contrast with the color of the surface paint to which they are applied, so as to be evenly visible at a reasonable distance, especially at night with streetlights. Lettering or numbering shall not be acceptable where it has been painted upon a sheet of metal or other material which can be removed or detached from the passenger vehicle for hire.

(g) No person shall operate a vehicle that is identified as a passenger vehicle for hire unless use of the vehicle as a passenger vehicle for hire has been authorized pursuant to this article. No person shall operate a taxicab containing a taxicab's company's color scheme or identification without authorization from such taxicab company or after such authorization has been revoked.

(h) No passenger vehicle for hire operating permit holder that is not a taxicab shall advertise or hold itself out as supplying taxicab service if such person's vehicle does not fall within definition of a taxicab as found in section 50-81.

(i) No taxicab shall advertise or hold itself out as supplying shuttle service if such person's vehicle does not fall within definition of a shuttle as found in section 50-81.
(Ord. No. 14371, § 2, 12-3-2012; Ord. No. 14538, § 3, 11-18-2013)

Note—Section 3 of Ord. No. 14538, adopted November 18, 2013, states that subsection (d) as applied to "shuttles" becomes effective January 1, 2015.

Sec. 50-296. Radios, television sets, prohibited; exception.

No driver shall operate an AM and/or FM radio or a television in any passenger vehicle for hire while the same is being used to transport passengers for hire in the city; provided, however, that this section shall not prohibit the use in any passenger vehicle for hire operating under the provisions of this article, of a radio device for the purpose of receiving instructions from the office or headquarters of the person or company owning the passenger vehicle for hire for the carrying of passengers.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-297. Rooftop device.

(a) A passenger vehicle for hire may display a rooftop device as allowed in subsection (b).

(b) Each passenger vehicle for hire may display one rooftop device. The rooftop device may be attached only on the top of the vehicle roof. All rooftop devices must be approved by the administrator prior to mounting. In reviewing rooftop devices for approval, the administrator shall approve only those rooftop devices that:

(1) Do not obscure any required vehicle markings or lights.

(2) Do not add more than 18 inches to the overall height of the vehicle.

(3) Do not extend beyond the top of the front windshield, the rear window, or either of the sides of the vehicle.

(4) Are securely attached to the roof of the vehicle and are stationary.

(5) Do not block exits such as doors and windows or obstruct opening of trunk or hatch.

(c) No messages, signs, advertisements, notices, or other communications shall be displayed on the inside or outside of any passenger vehicle for hire except for the rooftop device and except for items authorized by law, ordinance or manufacturer specifications (e.g., car or car part manufacturer's trademark or logo).

(d) No rooftop device shall blink, chase, flash, move, rotate, revolve, flutter, spin, or be animated. No rooftop device shall include or involve animated, blinking, chasing, flashing, or moving effects. Without limiting the foregoing provisions of this subsection, no rooftop device shall include pennants, propeller discs, flags, banners, inflated devices, balloons, or sign faces that change to show different images or messages.
(Ord. No. 14371, § 2, 12-3-2012)

Secs. 50-298—50-327. Reserved.

DIVISION 8. INSPECTION AND MAINTENANCE OF EQUIPMENT

Sec. 50-328. Inspection; right of entry; withdrawal of vehicle when not in good condition; right of reinspection.

(a) Before an operating permit is issued or renewed for any operating permit holder, the passenger vehicle for hire for which such operating permit is requested shall be delivered to a place designated by the administrator, who shall ascertain whether such passenger vehicle for hire complies with the provisions of this article.

(b) The administrator or his or her agents shall have the right, at any time, after displaying proper identification, to enter into or upon any licensed passenger vehicle for hire for the purpose of ascertaining whether or not any of the provisions of this article are being violated. It shall be unlawful for any person who owns or is in control of a passenger vehicle for hire to refuse, upon the administrator's request, to present the passenger vehicle for hire to the administrator for the purpose of inspection or the removal of the medallion.

(c) All passenger vehicles for hire shall be inspected by the administrator once every year. Any passenger vehicle for hire which is found, after any such inspection, to be unsafe for passenger vehicle for hire service may be immediately ordered out of service by the administrator, or his or her designee and before again being placed in service shall be delivered to the administrator or his or her designee at a designated point of inspection.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-329. Passenger vehicle for hire found unsafe by operating permit holder to cease operation until repairs are made.

Any passenger vehicle for hire found by the operating permit holder to be unsafe for passenger vehicle for hire operation shall have such repairs and alterations made as may be required within 60 days and the operating permit holder shall not operate, or cause or permit to be operated, any such passenger vehicle for hire until all such repairs and alterations have been completed.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-330. Duty of owner to clean passenger vehicle for hire.

Every operating permit holder shall ensure that the interior and exterior of each passenger vehicle for hire is maintained at all times in a clean condition.
(Ord. No. 14371, § 2, 12-3-2012)

Secs. 50-331—50-348. Reserved.

DIVISION 9. INSURANCE, BOND AND SINKING OR TRUST FUND

Sec. 50-349. Financial responsibility.

(a) No person shall operate or cause to be operated any taxicab or other passenger vehicle for hire over the streets of the city without first furnishing proof of financial responsibility as required by G.S. 20-280, or any superseding statute or higher limits established by state law (including regulations).

(b) Any operating permit holder shall, upon the receipt of any notice of cancellation of any insurance required by this section, immediately notify the administrator and the service provider, if applicable, of said cancellation. Failure to notify the administrator of a cancellation of insurance on a passenger vehicle for hire shall result in the immediate suspension of the operating permit of the vehicle for a period of 30 days.

(c) The insurance company issuing any policy, certificate of insurance or other proof of financial responsibility required by this section shall give the administrator not less than 30 days advance written notice of any cancellation, reduction in coverage, or other material change in the policy.

(d) Any proof of insurance required by this section shall state it will comply with subsection (c) of this section.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-350. Policies of insurance to be filed with administrator.

The operating permit holder shall file with the administrator proof of compliance with the requirements of subsections 50-349(a) and (d), as a condition precedent to the operation of any such passenger vehicle for hire on the streets of the city. The proof of financial responsibility

filed shall, among other things, set forth a description of each and every passenger vehicle for hire operating under the terms of such policy, or policies by which the requirements of subsections 50-349(a) and (d) are met. The description shall supply such information as the administrator requires identifying the vehicles.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-351. Insurance, liable regardless of operator.

(a) Any policy of insurance, certificate of insurance or other proof of financial responsibility submitted under this division shall be conditioned upon the payment of any final judgment (within limits of the policy) recovered by any person as a result of the negligent operation of any passenger vehicle for hire hereunder, no matter by whom operated or driven at the time of the injury or damage.

(b) Such insurance shall contain a provision for the continuing liability thereunder to the full amount thereof notwithstanding any recovery thereon.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-352. In lieu of insurance or bond.

Every person required by this article to furnish proof of financial responsibility as a condition precedent to the right to operate taxicabs, within the city thereof may, in lieu of liability insurance or surety bonds create and maintain a sinking fund or trust fund pursuant to G.S. 20-280 or any superseding statute which shall be used solely for the payment of claims and judgments against such person for reason of the negligent operation of any taxicab, used by the operator to transport passengers for pay in the manner prescribed in this division.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-353. How created.

The sinking fund or trust fund authorized herein shall be created by the membership of a person, required by this article to furnish liability insurance or surety bonds, organized in a business association under the laws of the state, for the purpose of establishing, maintaining and operating a sinking fund or trust fund for the purpose declared in this division.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-354. Minimum monthly payments into fund by each member.

The sinking fund or trust fund shall be funded by the payment from each member into the treasury of such business association of at least the sum per month set by the council for each taxicab, for which the member has been granted a permit by the city to operate any taxicab, within the city or between the city and points within a radius of five miles thereof.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-355. Minimum corpus of fund.

(a) The aggregate payment to such business association is to be not less than the sum per month set by the council until a minimum sum set by the city council has been accumulated and deposited as a trust fund as hereinafter set forth; provided, that if on account of payment of claims or for other reasons, either before or after the minimum sum set by the city council has been deposited, the fund shall be depleted, the aggregate payment to such business association by its members shall be the sum per month set by city council to make up such deficiency or depletion so that the corpus of the fund shall continue to increase without diminution until it reaches the sum set by city council.

(b) The city manager may bring to the city council every two years recommendations regarding the amount of any sinking fund or trust fund authorized herein.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-356. When monthly payments due; certificate or report to city manager; vehicles not insured.

(a) The monthly payments shall be due and payable on the 15th day of each month by 12:00 noon to the treasurer of such business association.

(b) It shall be the duty of such business association, through its appropriate officers to certify, in writing and under oath, to the city manager not later than the 15th day of each month by 4:00 p.m., a correct list of all taxicabs, operated by the members of the business association for which sinking fund protection is provided. The business association shall, also, provide a list of the taxicabs, operated by such members for which sinking fund protection is not provided. Such certificates furnished by the appropriate officer shall contain the name of the operator's company or name of operator permit holder and the operator's medallion number. It shall be unlawful for any member of the business association to operate or cause to be operated any taxicab, within the city, unless insurance is provided or the taxicab is entitled to protection of the sinking fund or trust fund as indicated on the monthly certified list provided by such business association; further, the permit to operate such vehicle within the city thereof shall be suspended until proof of financial responsibility is furnished and in force.

(c) The business association shall provide to the city manager the following reports:

(1) *Monthly reports.*

a. Total receipts of the business association;

b. Total disbursements by the business association for settlement or judgments;

c. The balance in the sinking fund or trust fund;

d. A list of vehicles insured by the business association including the taxicab number, make, year, vehicle identification number and plate number.

(2) *Quarterly reports.*

a. A list of accidents for the previous quarter including the name of the operator and driver, the date of the accident, the taxicab number, the location of the accident, the names of persons injured and a brief description of property damage;

b. Claims made or lawsuits filed against the business association in the previous quarter;

c. Claims or lawsuits settled or lawsuits resolved judicially in the previous matter;

d. Itemization of disbursements by the business association showing the amount of each settlement or judgment.

(3) *Annual report.* The business association shall provide to the city manager an annual report of the items described in subsections (1) and (2) of this section.

(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-357. Deposit of monthly payments; payments from trust fund; investments; liability of fund damages.

(a) The monthly payments required by this division shall be collected by the business association by 12:00 noon on or before the 15th day of each month, and the entire sum so collected shall be immediately deposited with a bank chartered under the laws of the state or United States expressly and solely in trust for the payment of claims against and final judgments recovered against any member of the business association on account of property damage or bodily injuries or death of any person resulting from the negligent operation of a taxicab, entitled to protection of the trust fund. The bank shall pay from the trust fund only such claims, which have not been reduced to final judgment, as may be certified in writing to it for payment by the secretary or designee of the business association, and shall pay only judgments which have been finally rendered against such member of the business association only to the extent of the maximum limits as to the amount and only for the occurrences hereinafter defined.

(b) The bank, as trustee is hereby granted full power and authority, in its discretion, to invest and reinvest such funds, or such portion thereof as such trustee deems advisable from time to time, in federally insured securities and federally insured accounts, and such securities and accounts together with the income derived therefrom, shall be held by such trustee under the same trusts and for the same purposes as it held the original funds.

(c) The trust fund herein mentioned shall be liable only for the payment of claims and judgments against the members thereof in the maximum amounts prescribed in G.S. 20-280.

(d) The trust fund shall not be used to pay any funds to members for damages to vehicles operated by members or for bodily injuries or death of any members or their drivers when driving or operating a vehicle which is entitled to protection of the trust fund. The trust fund shall not pay notes, checks, open accounts, or other debts of any member thereof and may only be used for the purposes set forth herein.

(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-358. Discontinuance of operation of car.

When a member under the provisions of this division desires to discontinue the operation of one or more of his or her taxicabs, such member shall give notice to the secretary of the business association of such fact, describing the number of such taxicab and such other information as will properly identify it but, as long as such member has a permit to operate the same, such member shall continue to make the monthly payments into the trust fund whether or not the car is in actual operation. In such cases, the secretary shall notify the city manager, in writing, of the fact that the operation of such taxicab has been discontinued, giving proper description thereof.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-359. Prorating or refund of monthly payment prohibited.

In no case or event shall any monthly payment made under the provisions of this division be prorated or be subject to rebate or refund, either to the depositor or the depositor's heirs, administrators, successors or assigns.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-360. New members.

In the event any person, not previously a member, should be issued an operating permit for the operation of taxicabs and such person desires to have such vehicles insured by the trust or sinking fund, such person shall pay for each vehicle to be operated, a sum of money equal to the quotient obtained by dividing the amount of money then in the trust fund, less the amount of final judgments rendered or settlements made but not then actually paid, by the total number of taxicabs which are insured by the trust or sinking fund at the time the new or additional operator's permit is issued; and thereafter monthly payments into the trust of sinking fund shall continue to be made for each of such taxicabs pursuant to provisions of this article.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-361. Payments not subject to disposition by member; sale of car entitled to protection.

Payments made into the trust fund by members, as provided in this division, shall not be subject to mortgage, pledge, assignment, bequest or devise or other disposition by such member, or such member's heirs, administrators, successors or assigns. In the event of bankruptcy, assignment for the benefit of creditors, receivership or other insolvency of such member, all payments made by such member into the trust fund shall continue to be the sole and exclusive property of the trust fund and administered for the members thereof as herein set forth; provided, that in the event a member sells and transfers a vehicle, or such vehicle be sold by a trustee or officer of a court, which vehicle at the time of sale and delivery to the buyer is entitled to protection of the trust fund, so long as the purchaser thereof is properly licensed,

has been granted an operator's permit by the city, has been approved by such business association, and otherwise complies with all the provisions of this division which are applicable to members of the business association.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-362. City to have no voice; purpose of division.

The city or its officers, servants and agents shall not be members of such business association and shall have no voice in or control over the internal management of the same; and such business association to be formed under the provisions of this division shall so regulate itself and its affairs as to carry out the purpose and spirit of this division, that is, the protection, welfare, safety and indemnity of the public in the operation of taxicabs.
(Ord. No. 14371, § 2, 12-3-2012)

Sec. 50-363. Payment of expenses incurred in adjustment of defense of claims.

Notwithstanding any other provision contained in this division, in all cases where legal or other expenses are necessary to investigate, adjust or defend claims or actions asserted against an operator whose vehicle was involved in an accident or collision, a part or all of such reasonable expenses may be paid from the trust fund by the bank, as trustee, upon certification in writing to it for payment by the secretary of the business association; provided, that the investigation expenses and/or legal expenses shall not exceed the market rate for like services in the city. The market rate for expenses incurred shall be determined by the city manager.
(Ord. No. 14371, § 2, 12-3-2012)

Secs. 50-364—50-384. Reserved.

ARTICLE IV. TOW TRUCK AND VEHICLE STORAGE OPERATIONS

Sec. 50-385. Definitions.

As used in this article, the following terms shall have the meanings respectively ascribed to them:

Tow truck means any vehicle with attached crane or other devices used to move other vehicles.

Tow truck operator means any person that provides the service of towing vehicles for compensation.

Vehicle means motor vehicle as defined in G.S. 20-4.01(23), as amended from time to time.
(Code 1964, § 12-230; Code 1982, § 22-190; Ord. No. 14378, § 1, 12-17-2012)

Sec. 50-386. Stopping, standing or parking at scene of accident or emergency.

The driver of any tow truck, or other vehicle that can be used in the recovery of a disabled vehicle, shall not park, stop or leave standing said tow truck or other recovery vehicle that he or she is operating, within 200 feet of any vehicle involved in an accident upon the public streets or highways, unless requested to approach the disabled vehicle by a police officer, firefighter, the person then in control of the disabled vehicle, or the owner of the disabled vehicle.
(Code 1964, § 12-231; Code 1982, § 22-191; Ord. No. 6078, § 1, 2-21-1983)

Sec. 50-387. Solicitation of business.

No tow truck driver or tow truck operator, or any employee or agent of a tow truck operator, shall approach the person then in control of a vehicle involved in an accident for the purpose of soliciting or offering towing services, unless specifically directed or requested to do so by a police officer, a firefighter, the person then in control of the disabled vehicle, or by the owner of the disabled vehicle. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 12-232; Code 1982, § 22-192; Ord. No. 15982, § 133, 8-1-2022)

Sec. 50-388. Cleaning debris at accident scene.

The tow truck driver and the tow truck operator engaged in towing a disabled vehicle shall cleanup and remove from the street or highway any broken glass, vehicular parts, contents of a disabled vehicle, or other debris before leaving the scene of the accident, to the satisfaction of the police officer or firefighter at the accident scene. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 12-233; Code 1982, § 22-193; Ord. No. 15982, § 134, 8-1-2022)

Sec. 50-389. Undue delay in answering towing calls.

If a tow truck operator is requested to provide towing services at the scene of an accident on a public street or highway, or when a vehicle is obstructing traffic or blocking access to private property, or when the operator is under arrest, the tow truck operator must arrive at the location of the vehicle to be towed within 30 minutes after receiving the request for towing services. If the tow truck operator fails to so arrive at the location of the vehicle to be towed in any of the above situations, any police officer or firefighter may request towing services from the nearest available tow truck operator, or from a tow truck operator on the rotation list. The city, its agents and employees, shall not be liable for any cost, fee, or expense incurred or claimed by any tow truck operator who fails to arrive at the location of a vehicle towed at the request of a police officer or firefighter within 20 minutes after receiving the request for towing.
(Code 1964, § 12-234; Code 1982, § 22-194; Ord. No. 5962, § 1, 7-19-1982)

Sec. 50-390. Reporting of towed vehicles.

Every tow truck operator engaging in the business of storing vehicles that have been towed from the public streets or highways, or from private property, shall, on or before 4:30 p.m. on Wednesday of each week, deliver to the police department a list, including make, model, year, registration plate number and vehicle identification number, of all vehicles then in the possession of such tow truck operator that have been unclaimed by the registered owner, or his or her agent, for a period exceeding 48 hours. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 14378, § 2, 12-17-2012; Ord. No. 14828, § 1, 8-17-2015; Ord. No. 15982, § 135, 8-1-2022)

Sec. 50-391. Nonconsensual tow regulations.

(a) A tow truck operator on the city's rotation wrecker list, when responding to a police initiated request for towing services, shall not charge the owner of any vehicle towed without the consent of the owner an amount for towing and storage fees in excess of those fees prescribed in the schedule of police-initiated nonconsensual towing fees adopted by the city council.

Police-initiated nonconsensual tows include situations where the owner or operator is unable to consent such as in cases of: a severe accident, or as a result of the order of a police officer. Each tow truck operator on the city's rotation wrecker list shall post in a conspicuous place on the business premises and in any tow truck the permitted tow charges when conducting a police-initiated nonconsensual tow.

(b) Towing and storage fees for nonconsensual tows shall be payable by cash, debit card or credit card.

(c) In addition to any other remedy available in the Code, violation of this section is a misdemeanor. A violation of this section shall also subject the offender to a civil penalty of $200.00 for the first violation and $400.00 for the second and each subsequent violation.
(Ord. No. 14378, § 2, 12-17-2012; Ord. No. 14828, § 2, 8-17-2015; Ord. No. 15982, § 136, 8-1-2022)

Secs. 50-392—50-419. Reserved.

Editor's note—Ord. No. 15982, § 137, adopted August 1, 2022, repealed § 50-392, which pertained to penalties and derived from Code 1982, § 22-195.2; Ord. No. 12699, § 2, 12-2-2002; Ord. No. 14828, § 3, 8-17-2015.

ARTICLE V. TRANSPORTATION AUTHORITY

Sec. 50-420. Short title.

This article may be cited as "the Transportation Authority Ordinance."
(Code 1982, § 22-196; Ord. No. 11279, § 2, 10-6-1997)

Sec. 50-421. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Authority means the Durham Area Transit Authority.

Public transportation means transportation of passengers whether or not for hire by any means of conveyance, including but not limited to a street railway, elevated railway or guideway, subway, motor vehicle or motor bus, either publicly or privately owned and operated, holding itself out to the general public for the transportation of persons within the city.

Public transportation system means, without limitation, a combination of real and personal property, structures, improvements, buildings, equipment, vehicle parking or other facilities, and rights-of-way, or any combination thereof, used or useful for the purposes of public transportation.
(Code 1982, § 22-197; Ord. No. 11279, § 2, 10-6-1997)

Sec. 50-422. Creation of authority, membership.

(a) There is hereby created a transportation authority to be known as the Durham Area Transit Authority. The authority shall be a body corporate and politic and shall have the general powers prescribed in section 50-424.

(b) The authority shall consist of up to 11 members and alternate members, as determined by council, all of whom shall be residents of the city. The members of the authority shall be appointed by the council. Any member may be removed at any time by the council with or without cause. Appointments to fill vacancies which occur during the regular terms shall be made by council. No member of the authority may serve for more than two regular consecutive terms. The appointments of all members shall run until their successors are appointed and qualified.

(c) The terms of the members of the authority shall be three years, provided, however, in order to provide for staggered terms, the initial terms of members of the authority shall be as follows: (i) two members shall be appointed for terms of one year, (ii) two members shall be appointed for terms of two years, and (iii) three members shall be appointed for terms of three years.

(d) The members of the authority shall elect a chairperson and vice-chairperson from the membership of the authority. They shall also elect a secretary who may, or may not, be a member of the authority.

(e) A majority of the current members shall constitute a quorum for the transaction of business, and an affirmative vote of the majority of all current members of the authority shall be required to constitute action of the authority. Action on fare changes and on service changes affecting ten or more percent of the public served by the authority, and any other

matter that council may from time to time decide upon, however, shall require a super majority of 67 percent of all current members. Each member of the authority shall have one vote on all matters acted upon. No member shall be entitled to exercise a proxy vote for any other member, and no member may abstain from voting unless the matter involves the member's own official conduct or it creates a conflict of interest for the member, real or apparent. Any member who is present and abstains for any other reason, or who withdraws from the meeting without being excused by a majority of the remaining members present, shall have his or her vote recorded as an affirmative vote.

(f) Members and alternate members of the authority shall receive such compensation, if any, as may be fixed by the council.

(Code 1982, § 22-198; Ord. No. 11279, § 2, 10-6-1997)

Sec. 50-423. General powers of the authority.

The authority shall have the following general powers:

(1) To make rules and regulations, not inconsistent with this article, for its organization;

(2) With the approval of the city manager, to use officers, employees, agents and facilities of the city for such purposes and upon such terms as may be mutually agreeable;

(3) To retain counsel;

(4) To make plans, surveys and studies of public transportation facilities within the service area of the authority and to prepare and make recommendations in regard thereto;

(5) To establish and modify the general operating policies and the routes and schedules of any public transportation system operated by the city, subject to section 50-425;

(6) To establish the fares for any public transportation system operated by the city, subject to approval by city council, and to section 50-425;

(7) To do all things necessary or convenient to carry out its purpose and to exercise the powers granted to the authority.

(Code 1982, § 22-199; Ord. No. 11279, § 2, 10-6-1997)

Sec. 50-424. Service area; majority vote.

The service area of the authority shall be the city. The service area shall also extend up to 30 miles outside of the corporate limits of the city. The authority shall not have jurisdiction over public transportation to the extent that such jurisdiction is preempted by federal law or regulation, nor shall it have jurisdiction over intrastate public transportation classified as common carriers of passengers by the state utilities commission. The authority shall not extend service into a political subdivision without the consent of the governing body of that political subdivision. A majority vote of the governing body shall constitute consent.

(Code 1982, § 22-220; Ord. No. 11279, § 2, 10-6-1997)

Sec. 50-425. Fiscal accountability.

The authority shall submit an annual budget to the council for approval. The budget shall be submitted at such time and in such form as the city manager shall prescribe. The authority shall not approve of any fare or service change which requires the expenditure of funds inconsistent with the annual budget approved by the council. The authority shall also submit an annual statistical report to council.
(Code 1982, § 22-201; Ord. No. 11279, § 2, 10-6-1997)

Sec. 50-426. Termination.

The council may terminate the existence of the authority at any time. In the event of such termination, the city shall succeed to all rights, obligations and liabilities of the authority.
(Code 1982, § 22-202; Ord. No. 11279, § 2, 10-6-1997)

Secs. 50-427—50-444. Reserved.

ARTICLE VI. RAILROADS*

Sec. 50-445. Culverts under tracks for drainage.

Railroad companies operating in the city shall maintain culverts of sufficient size for the ready flow and passage of surface water under their tracks, and such culverts shall be made, constructed, and maintained in such a manner as to prevent the backing of water upon adjacent property or streets. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 15-6; Code 1982, § 16-1; Ord. No. 15982, § 138, 8-1-2022)

Sec. 50-446. Bumper posts.

All railroads operating in the city shall maintain proper bumper posts at the termination of all tracks inside the corporate limits where the tracks end or terminate at or near any street crossing such tracks. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 15-8; Code 1982, § 16-2; Ord. No. 15982, § 139, 8-1-2022)

Sec. 50-447. Trains delaying traffic.

It shall be unlawful for any railroad company or any agent or employee thereof to stop or permit any train, car or locomotive to be stopped across any of the streets so as to hinder or delay the free passage of vehicles for a longer time than five consecutive minutes, or for any such railroad company or agent or representative or employee thereof to stop or permit any train, car or locomotive to remain stopped so close to an intersecting street as to cause the

*__State law references—__Railroads generally, G.S. 62-220 et seq.; authority of municipalities over railroads, G.S. 160A-298; assessments against railroads, G.S. 160A-222.

light or bell signals at such crossing to light or ring for a longer time than five consecutive minutes. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 15-2; Code 1982, § 16-4; Ord. No. 15982, § 140, 8-1-2022)

Charter reference—Authority of city, § 52.

Sec. 50-448. Firefighting personnel and vehicles to have right-of-way.

It shall be the duty of all railroad companies and the engineers and employees of the same, when any engine, car or train of cars are across or on any street, upon the approach of fire apparatus, to disconnect or move such cars or train and clear the street crossing immediately and allow the firefighting personnel and vehicles to pass without any delay. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 15-3; Code 1982, § 16-5; Ord. No. 15982, § 141, 8-1-2022)

Sec. 50-449. Operation of loose cars over crossings.

It shall be unlawful for any person operating, owning or maintaining a railroad in the city to knock, push or shove any car, that is, to operate what is known as a "flying switch," on its tracks where such track crosses any street in the city or to allow any loose car not attached to an engine and controlled by an engineer to run on its tracks where such tracks cross at a surface grade any of the streets in the city. This section shall not apply to cars being pushed by a lever by employees of railroad companies for the purpose of placing cars more conveniently for loading or unloading. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 15-7; Code 1982, § 16-6; Ord. No. 15982, § 142, 8-1-2022)

Sec. 50-450. Electric flashing lights, bells, etc., at certain crossings.

(a) All railroad companies operating on tracks which cross Duke Street, Buchanan Avenue, Grant Street, Trent Drive, Pettigrew Street, Dillard Street, LaSalle Street, and Corcoran Street at grade in the city, are hereby required and directed to install, equip, maintain and operate electric flashing light signals on both sides and bells on one side of each of the above-named crossings. At the crossings of Duke Street, Buchanan Avenue, Grant Street, Elm Street, Trent Drive, Dillard Street, Pettigrew Street and Corcoran Street, the flashing light signals and bells to be installed shall be operated automatically.

(b) Automatic operation of flashing light signals and bells on tracks other than main tracks shall be limited to such time as the crossing area of such tracks is occupied by an engine or cars.

(c) At Duke Street and Buchanan Avenue, engines and cars approaching crossings on tracks other than main tracks shall proceed over the crossing only after the crossing has been flagged by a member of the train or engine crew and a hand signal has been received by the engine man from the flagman.

(d) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 15-11; Code 1982, § 16-7; Ord. No. 15982, § 143, 8-1-2022)

Sec. 50-451. Gates at certain crossings—Generally.

All railroad companies operating on tracks crossing Morgan Street, West Main Street and East Main Street at grade shall keep and maintain gates at each of the crossings and on both sides of each of the crossings, and during the hours of 6:00 a.m. to 10:30 p.m. such gates shall be closed on both sides of each of the crossings when any train, railroad car, or locomotive is approaching such streets to cross the same. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 15-12; Code 1982, § 16-8; Ord. No. 15982, § 144, 8-1-2022)

Sec. 50-452. Same—Arrangement for joint use.

When two or more railroads are operating on tracks across any street referred to in section 50-451, they may enter into a joint arrangement for the operation of the gates in question.
(Code 1964, § 15-13; Code 1982, § 16-9)

Sec. 50-453. Same—Red lights.

During darkness suitable red lights shall be attached to the gates at railroad crossings. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 15-14; Code 1982, § 16-10; Ord. No. 15982, § 145, 8-1-2022)

Sec. 50-454. Reserved.

Editor's note—Ord. No. 14424, § 1, adopted April 1, 2013, repealed the former section 50-454 in its entirety, which pertained to watchman at certain crossing, and derived from the Code of 1964, § 15-15, and the Code of 1982, § 16-11.

Sec. 50-455. Brakeman to precede train at certain crossings.

It shall be unlawful for any person to operate or cause to be operated a train, locomotive or car upon railroad tracks across Blacknall Street, Vivian Street or Pettigrew Street over the area not protected by gates, unless such train, locomotive or car be preceded by a brakeman or other person on foot, who shall give warning by such audible or visible means as shall be sufficient to adequately warn pedestrians and operators of vehicles using such streets of the approach of such locomotive, train or car. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 15-16; Code 1982, § 16-12; Ord. No. 15982, § 146, 8-1-2022)

Sec. 50-456. Clearance indicators at underpasses—Signs required; maintenance.

(a) Each railroad company operating over tracks located upon and across any underpass situated within the city shall install, upon each street side of each underpass structure over which it operates, a sign to be located over the center of such street upon which shall be painted the height-clearance dimensions of such underpass structure. Such sign shall be painted with black letters upon a white background and shall be of such size as will be clearly visible for a distance of at least 100 feet from the approach side of such structure.

(b) After installing the signs as required in subsection (a) of this section each railroad company shall keep and maintain such signs in such condition as to be clearly discernible and visible in both the daytime and nighttime at least 100 feet away by persons operating motor vehicles upon the streets and approaching the underpass in question.

(c) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, §§ 15-17, 15-18; Code 1982, § 16-13; Ord. No. 15982, § 147, 8-1-2022)

Sec. 50-457. Same—Patterns of glass reflectors on structure required.

In addition to the sign as required in section 50-456(a), a railroad company operating over tracks located upon and across any underpass situated in the city shall attach on each street-approach side of such structure a pattern of reflector glass buttons spelling out the clearance dimensions, which pattern shall be located on such structure at such point above the surface of the street as will reflect at night the lights of approaching vehicles and give proper notice to on-coming vehicles of the clearance of such underpass. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 15-19; Code 1982, § 16-14; Ord. No. 15982, § 148, 8-1-2022)

Sec. 50-458. Same—Use of underpass by more than one railroad company.

Only one complete set of signs and signals as described in sections 50-456 and 50-457 shall be required on each street approach side of an underpass, notwithstanding the fact that such underpass may be used by more than one railroad company. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 15-20; Code 1982, § 16-15; Ord. No. 15982, § 149, 8-1-2022)

Secs. 50-459, 50-460. Reserved.

Editor's note—Ord. No. 15982, §§ 150, 151, adopted August 1, 2022, repealed §§ 50-459, 50-460, which pertained to clearance indicators at underpasses; penalty and penalty for violation of chapter generally, derived from Code 1964, § 15-21; Code 1982, § 16-16; and Code 1964, § 15-10; Code 1982, § 16-17, respectively.

ARTICLE VII. SHARED MICROMOBILITY PROGRAMS*

Sec. 50-461. Adoption of definitions in general statutes.

The definitions of the following words set out in G.S. 20-4.01, as amended from time to time, are adopted as part of this article: electric assisted bicycle and vehicle.
(Ord. No. 15598, § 2, 2-3-2020; Ord. No. 16316, § 3, 5-20-2024)

Sec. 50-462. Definitions.

The following words, terms and phrases, when used in this article, have the meaning ascribed to them in this section, except where the context clearly indicates a different meaning:

Bicycle means a non-motorized vehicle with two or three wheels in tandem, a steering handle, one or two saddle seats, and pedals by which the vehicle is propelled.

Customer means a person that rents, uses, or rides a device that is part of a shared micromobility program.

Department means the city's transportation department.

Device operating area means the right-of-way where operation of a shared micromobility device is authorized by City Code and a specific permit.

Director means the director of the city's transportation department, or the director's designee.

Electric scooter means a vehicle that is steered by a steering handle, designed either (i) with a saddle seat, or (ii) to be stood upon by the operator while the vehicle is in operation, and is powered by an electric motor capable of propelling the vehicle with or without human propulsion, at a speed no greater than 20 miles per hour on a level surface; and whose wheels have diameters of 20 inches or less.

Greenway trail means a pathway for bicycles and pedestrians either paralleling a roadway and located within the right-of-way shared with the roadway but excluding any bike lane, or located within a public easement or right-of-way not associated with a roadway, and designated by signage as a public trail.

Operate means, when used in direct reference to a shared micromobility device, to use the shared device for transportation. Operate includes to park a shared micromobility device.

***Editor's note—**Ord. No. 16316, § 3, adopted May 20, 2024, amended the title of art. VII to read as herein set out. The former art. VII title pertained to shared active transportation systems. Formerly, Ord. No. 15982, §§ 150, 151, adopted August 1, 2022, repealed §§ 50-459, 50-460, which pertained to clearance indicators at underpasses; penalty and penalty for violation of chapter generally, derived from Code 1964, § 15-21; Code 1982, § 16-16; and Code 1964, § 15-10; Code 1982, § 16-17, respectively.

Other type of micromobility device means a device permitted for use as part of a shared micromobility program regulated under this article, other than a bicycle, electric assisted bicycle, or electric scooter.

Permit means a permit issued by the department pursuant to this article for a permittee to conduct a shared micromobility program.

Permittee is any person that conducts a shared micromobility program.

Person means the definition in City Code section 1-2.

Rebalance means to move shared micromobility devices from one location to another, generally for the purpose of avoiding having too many devices in one location or fulfilling another requirement of the permit or this article.

Right-of-way means the area in the city in which the public, the city, or the state owns a property interest and which includes areas open for use by the public for vehicle or pedestrian travel. Right-of-way includes the following, if they satisfy the foregoing definition: public street, highway, bridge, alley, bike lane, sidewalk, pedestrian way, trail, path, median, gutter, or shoulder.

Roadway means that portion of the public right-of-way improved, designed, or ordinarily used for vehicular travel, exclusive of any shoulder.

Shared micromobility device means bicycle, electric assisted bicycle, electric scooter, or other type of micromobility device rented by a permittee to customers through a shared micromobility program.

Shared micromobility program means the city permitted program that allows permittees to provide one or more shared micromobility devices for rentals where, by design of the permittee, the shared micromobility devices are intended to be parked in a device operating area, but not connected to a dedicated docking station, when not rented by a customer.
(Ord. No. 15598, § 2, 2-3-2020; Ord. No. 16316, § 3, 5-20-2024)

Sec. 50-463. Authorization.

Unlawful to operate a shared micromobility program without authorization. It is unlawful for any person to conduct a shared micromobility program within the city except pursuant to this article.
(Ord. No. 15598, § 2, 2-3-2020; Ord. No. 15982, § 152, 8-1-2022; Ord. No. 16316, § 3, 5-20-2024)

Sec. 50-464. Permits required; issuance; authority of director; nature of permits.

(a) No person may conduct a shared micromobility program in the city who does not hold a valid permit. A permit will be issued if the department finds that the application meets the requirements of this article for issuance of the permit, including payment of applicable fees, which shall be set from time to time by city council. Permit will be effective for a period of one year and are renewable subject to the same standards of review as for the initial permit. The

director is authorized to renew existing permits annually for up to two additional years at their reasonable discretion based on permittee performance and total number of permits in effect.

(b) The total number of permits to be in effect at any given period shall not exceed three, unless the director, in their reasonable discretion, authorizes more than three permits based on permittee performance and administrative demands.

(c) The director is authorized to limit the total citywide number of shared micromobility devices, including the total number of shared devices and the mix of shared micromobility devices, within device operating areas and to write terms and conditions in individual permits as appropriate to effectuate this article, including adjusting the mix of shared devices and fleet size of a permittee in order to:

(1) Maintain the integrity of the city's entire transportation system;

(2) Keep rights-of-way free and clear of unnecessary obstructions; and

(3) Protect the health, safety, and welfare of the citizens of the city.

(d) A permit does not grant exclusive rights to operate a shared micromobility program in device operating areas.

(e) Each permittee shall comply with its permit.

(f) A permit is non-transferable, assignable, or shareable with any other person not identified in the permit.
(Ord. No. 15598, § 2, 2-3-2020; Ord. No. 15982, § 153, 8-1-2022; Ord. No. 16316, § 3, 5-20-2024)

Sec. 50-465. Shared micromobility device equipment and requirements.

(a) Permittees shall provide, on every shared micromobility device, contact information of the permittee including the website and phone number.

(b) All shared micromobility devices must be equipped with technology, such as GPS, that allows the shared device to be located and tracked by the permittee at all times.

(c) Permittees shall see that every shared micromobility device prominently displays a unique and easily read serial number or other identifier.
(Ord. No. 15598, § 2, 2-3-2020; Ord. No. 15982, § 154, 8-1-2022; Ord. No. 16316, § 3, 5-20-2024)

Sec. 50-466. Operation of shared micromobility programs.

(a) A permit is valid for conducting a shared micromobility program within device operating areas only, and with the consent of the owner or lawful occupant on other real property. It is unlawful to operate a shared micromobility device on any real property outside device operating areas without consent of the property's owner or lawful occupant. Each permittee shall have at all times the ability to discover when its shared micromobility

devices are operated outside device operating areas and to communicate electronically that information to customers who have operated a shared device outside device operating areas. Permittees shall communicate to customers when, at the end of operating a trip, that the shared micromobility device has been operated outside device operating areas.

(b) Permittees shall not restrict the operation of shared micromobility devices to only certain geographical areas of the city unless approved by the city.

(c) Permittees shall not discriminate against low and moderate income persons in connection with permitted activities and conducting its shared micromobility program in the city. Permittees must deploy and maintain a sufficient number of shared micromobility devices to satisfy customer demand within census tracts of low and moderate income areas of the city as defined in the permit. Permittees must communicate their strategies for deployment of micromobility devices to the city, including information pertaining to the type of workforce employed, staffing levels, and general re-balancing schedules.

(d) The director is authorized to identify geographic areas in the city for the purpose of requiring distribution of shared micromobility devices in specific geographic areas to advance the city's transportation goals including, but not limited to, the equitable distribution of transportation programs.

(e) Each permittee shall implement programs to reduce barriers to low-income persons to rent its shared micromobility devices by providing diverse payment options, including options for persons with neither a smart phone nor a credit card to rent its shared device. These options shall be made accessible to low-income persons at multiple locations within the permittee's area of operation.

(Ord. No. 15598, § 2, 2-3-2020; Ord. No. 15982, § 155, 8-1-2022; Ord. No. 16316, § 3, 5-20-2024)

Editor's note—Ord. No. 16316, § 3, adopted May 20, 2024, amended the title of § 50-466 to read as herein set out. The former § 50-466 title pertained to operation of SATS.

Sec. 50-467. Permittee communication with customers.

(a) Permittees shall include substantially the following information for prospective customers on the permittee's mobile app and web site, and also displayed on the shared micromobility device for which the information is applicable:

(1) Persons operating bicycles and electric assisted bicycles are encouraged to wear helmets.

(2) Persons operating electric scooters must be at least 16 years old and are encouraged to wear helmets.

(3) NC law requires persons operating the shared micromobility device to follow applicable traffic laws.

(4) City ordinance prohibits operating the shared micromobility device on sidewalks except for parking the vehicle.

(5) Unless expressly authorized, operating electric assisted bicycles, electric scooters, and other types of micromobility devices is prohibited on greenway trails.

(b) Permittees shall adopt and implement programs to educate customers on how to safely operate shared micromobility devices, including knowledge of laws applicable to operating a shared device in the city. Permittees shall also engage in regular, repeated, and interactive community outreach activities and host recurring classes or events, in order to educate the community, at large, about the use of shared micromobility devices authorized under the permittee's permit and in order to consider community concerns and needs.

(c) Permittees shall communicate to prospective customers sufficient information on charges that may be made, including rates and dollar amounts of fees, including rental charges, minimum charges, maximum charges, charges for additional time, and charges for overage periods. If charges may be based on time or distance, information on the rate per minute, hour, mile, or other applicable time period or distance shall also be provided. Permittees shall communicate to customers diverse payment options and alternatives that neither require a smart phone nor a credit card to rent its shared micromobility device.

(d) When requested by the city, permittees shall distribute customer surveys in a form approved by the city, the results of which shall be provided to the city.

(e) Permittees shall have a 24-hour phone number and support email address for customers to report safety concerns and complaints, and to ask questions.

(f) Permittee shall communicate to its customers how and where to park a shared micromobility device in a manner required by this article, including the prohibited parking locations listed under City Code section 66-310(f).

(g) All communications required by this article to be made by a permittee to prospective customers and customers shall be in clear, plain English and displayed in a sufficiently prominent way that the communication is obvious.
(Ord. No. 15598, § 2, 2-3-2020; Ord. No. 15982, § 156, 8-1-2022; Ord. No. 16316, § 3, 5-20-2024)

Sec. 50-468. Insurance, indemnification, security, and liability.

(a) At all times when conducting a shared micromobility program, a permittee shall maintain insurance in effect and provide proof of such insurance, both as required by the department.

(b) Every permittee shall defend and indemnify the city from and against all claims and liabilities that arise from the acts and omissions of the permittee and its customers in device operating areas, to the extent the acts and omissions relate to the operation of shared micromobility devices.

(c) Permittees shall provide the city with a performance bond, or other security acceptable to the director, in an amount determined by the director to be sufficient to cover the obligations of the permittee under the permit. The form of the bond is subject to approval by

the department after it consults the city attorney, and shall be executed by one or more surety companies legally authorized to do business in the State of North Carolina. The bond shall guarantee the performance of all the obligations of the permittee under its permit. If the amount of the bond is set according to the number of deployed shared micromobility devices, when a permittee intends to increase the number of deployed devices, the permittee shall submit a revised performance bond, or other security acceptable to the director, before the additional shared devices may be deployed.

(d) Each permittee shall be responsible for the costs of repair to public property damaged by its customers' use of its shared micromobility devices.
(Ord. No. 15598, § 2, 2-3-2020; Ord. No. 15982, § 157, 8-1-2022; Ord. No. 16316, § 3, 5-20-2024)

Sec. 50-469. Parking, placement, rebalancing, and removing of shared micromobility devices.

(a) Shared micromobility devices shall not be parked in a way that may impede the regular flow of vehicular and pedestrian travel in device operating areas or otherwise cause a violation of the City Code, including this article. The permittee shall remove or re-park every one of its shared devices that is parked in violation of the permit or the City Code in accordance with the following:

(1) During the time period of 6:00 a.m. to 6:00 p.m. on weekdays, not including legal holidays, the permittee shall remove or re-park within two hours of receiving notice from any person or by the department via mobile or other web application, email, or phone number.

(2) During all other times, the permittee shall remove or re-park within 12 hours of receiving notice from any person or by the department via mobile or other web application, email or phone number.

(b) At any time the city may make it unlawful to park micromobility devices in specific locations or portions of device operating areas or public property by action of the city council or as provided in division 2 (powers and duties of city manager) of article II of chapter 66 (traffic and parking) of the City Code.

(c) Permittees shall remove any shared mobility device that has been parked in the same location in excess of a reasonable period of time as determined in the discretion of the director and as specified in the permit for each type of shared mobility device.

(d) Permittees shall not deploy a shared micromobility device that is inoperable or unsafe to operate. Permittees shall remove from device operating areas within 24 hours of notice any inoperable shared device, any shared device that is not safe to operate, or any device marked as unavailable to rent by the permittee.

(e) Each permittee shall remove and secure its entire fleet of shared micromobility devices from device operating areas for all time periods for which the National Weather Service or its successor agency forecasts (i) sustained winds of 40 mph or higher for one hour or more, or (ii) wind gusts of 58 mph or higher for any duration in the city.

(f) Each permittee shall compensate the city for the costs incurred by the city in removing and storing its shared micromobility devices that have been improperly parked or rebalanced, including under the circumstances where a permittee fails to remove its shared devices in violation of its permit or in case its permit is terminated or otherwise not in effect.

(g) Permittees shall provide the department with contact information so that it can order rebalancing. The city has the right to determine specific locations for rebalancing shared micromobility devices, as well as times when the shared devices must be removed from device operating areas.

(h) Permittees must coordinate with the city for significant events located downtown.

(i) If the city relocates or removes a permittee's shared micromobility devices because of a violation of a permit or this article, the permittee shall pay a fee in an amount set from time to time by city council.
(Ord. No. 15598, § 2, 2-3-2020; Ord. No. 15982, § 158, 8-1-2022; Ord. No. 16316, § 3, 5-20-2024)

Sec. 50-470. Reporting.

(a) Each permittee shall provide the city, or to such other persons that the city may specify, with data regarding customers and shared micromobility device trips, in the format and timeline specified by the director. The data shall include real-time availability data for all devices, archival trip data for all devices including the frequency and location of shared device trips during the permit period, identification of the shared device by type, and fare type and amount paid by the customer. This data will be used to support safe, equitable, and effective management of the shared micromobility program throughout the city. The permittee shall communicate to prospective customers that this data will be collected and shared with the city. The department shall report the data provided on the department's website.

(b) Each permittee shall compile, for all of its shared micromobility devices deployed in the city, records of collisions or accidents reported to the permittee, the police, or the NC Department of Motor Vehicles, and records of maintenance and repair. Records shall be shared with the city when and in the manner required by the permit.
(Ord. No. 15598, § 2, 2-3-2020; Ord. No. 15982, § 159, 8-1-2022; Ord. No. 16316, § 3, 5-20-2024)

Sec. 50-471. Revocation or non-renewal of permit; review of decisions.

(a) *Revocation or non-renewal; grounds and procedure for revocation or non-renewal.* The director may, (i) at any time, revoke any permit issued to a permittee or (ii) refuse to renew a permit issued to a permittee under this article and require that permittee remove its entire fleet of shared micromobility devices from city designated areas, if the director finds:

(1) Fraud, misrepresentation, or a knowingly false statement with respect to a material fact in the permit application or permit renewal application;

(2) The permittee or the permittee's agent or employee violated this article or the terms of the permit;

(3) The permittee's customers operate the shared micromobility devices in such a manner as to create unsafe traffic conditions, cause a breach of the peace or public nuisance, violate any applicable law, or interfere with the rights of property owners abutting the right-of-way, and such operation is done to such an extent that the health, safety, and welfare of the citizens or their property is at substantial risk if the permit is allowed to continue in effect;

Except in case of emergency or impracticality, before revoking the permit or denying renewal of a permit, the director shall give reasonable notice to the permittee and an opportunity to be heard. A permit may be revoked or permit renewal denied pursuant to this section even if the person making the findings pursuant to this section had made a contrary finding before the permit was issued or renewed, regardless of whether the facts upon which the finding is made had changed.

(b) *Notice.*

(1) The director shall cause a written notice of the revocation or denial of renewal to be served on the permittee by first-class mail, email or other electronic means, or fax, to the address or number shown on the permit application, or by any method allowed by law for service of a summons in a civil action. The person serving the notice may be any person who is 18 years or older, including the director.

(2) If the director finds that time before a proposed hearing is insufficient to allow service in accordance with subsection (1), the director may, as an alternative to the means listed in subsection (1), notify the permittee by telephone of the grounds for revocation or denial of renewal and of the right to appeal, provided a written notice is also sent in accordance with subsection (1) on or before the next day that is not a holiday.

(3) The notice described in subsection (1) shall set forth a brief statement of the grounds for revocation or denial of renewal and of the right to appeal.

(4) The director shall see that a written record is made to show: compliance with this section (b).

(c) *Retention of fees; waiting period.* If the city revokes a permit, the city shall retain the fee, if any, paid for the permit. In the case of a denial of a permit renewal, the city shall either not accept the renewal fee or return the renewal fee to the permittee. The person whose permit is revoked or renewal denied for grounds stated in subsection (a)(l), (a)(2), or (a)(3), regardless of whether additional grounds existed, shall not be issued a permit under the same section of this article for the remainder of the time for which the revoked permit had been issued or, in the case of a denial of a permit renewal, for the term of the renewal period. The director shall use reasonable judgment in deciding whether two applicants are the same so that, for example, technical changes in the applicant, or where the applicant one year is a corporation and the next year it is an affiliate or subsidiary of the same corporation, may be disregarded.

(d) *Review of decisions.* If the director denies the issuance of a permit, revokes a permit, denies renewal of a permit, issues a permit with terms deemed unacceptable to the permittee, or makes any other decision pursuant to this article with respect to a permit, the applicant or permittee may have that decision reviewed by filing a written request in the office of the director within ten days of the date of the notice of decision. The director or a person designated by the city manager for this purpose who is neither the person who made the decision complained of nor that person's subordinate, shall be named as the hearing officer to conduct a hearing in order to review the decision. The director shall cause a written notice of the time and place of the hearing to be given or sent to the person seeking review. The failure of the hearing officer to set a hearing within 15 days of the filing of the written request for review, or to deliver a decision within ten days after the hearing, or within any shortened periods set by the director, shall be deemed a denial of the relief sought and affirmance of the action for which review was sought. The permittee and the director may appear in person or through counsel and may present evidence, provided, however, that the hearing officer shall have the authority to conduct the hearing in the manner and for the period of time that the officer deems appropriate to make a decision. The hearing officer may affirm, deny, or modify the decision complained of, and the hearing officer's decision shall be final. Failure to request a review within the time and in the manner provided for in this subsection shall constitute a waiver of the right of review. The permit may be used during the review process only if the director determines that its use would not constitute a substantial threat that the grounds described in subsection (a)(2) or (a)(3) will occur, re-occur, or continue during the review process.

(e) *Certiorari.* A decision by the hearing officer is subject to review by the Durham County Superior Court by proceedings in the nature of certiorari. The petition for review shall be filed with the clerk of Superior Court within the earlier of 30 days after the denial and affirmance are deemed to occur pursuant to subsection (d), or within 30 days after the decision is delivered to the applicant. Delivery is made by hand-delivery of the decision to the applicant, or by first-class or certified mail to the address provided on the application. Delivery by mail is complete when placed in the custody of the U.S. Postal Service.
(Ord. No. 15598, § 2, 2-3-2020; Ord. No. 16316, § 3, 5-20-2024)

Sec. 50-472. Penalties for violations.

(a) *Assessment of civil penalties.* The director shall assess civil penalties for violation of this article, including the terms of a permit. The director shall give the offender written notice of the nature of the violation and the amount of the civil penalty. The notice shall be served by any method allowed by law for service of a summons in a civil action, provided that the person delivering the notice may be any person who is 18 years or older, including the director. The civil penalty shall be $200.00 per violation plus the costs incurred by the city resulting from the violation, including costs of removing shared micromobility devices from the right-of-way.

(b) *Review of assessment of civil penalties.* Any person who has been assessed a civil penalty under this article may have that assessment reviewed by filing a written request in the office of the director within ten days of the date of service of the notice of the civil penalty. A person designated by the city manager for this purpose who is neither the person who assessed the civil penalty nor that person's subordinate shall be named as the hearing officer to conduct a hearing in order to review the assessment. The director shall cause a written notice of the time and place of the hearing to be given or sent to the person seeking review. The person assessed the penalty and the director may appear in person or through counsel and may present evidence, provided, however, that the hearing officer shall have the authority to conduct the hearing in the manner and for the period of time that the officer deems appropriate to make a decision. The hearing officer may affirm, deny, or modify the decision complained of, and the hearing officer's decision shall be final. Failure to request review within the time and in the manner provided for in this subsection constitutes a waiver of the right of review.

(c) *Collection of civil penalties.* If the offender does not pay the civil penalty within ten days after having been served with the notice of the civil penalty, the director may collect the civil penalties by causing to be commenced civil actions in the nature of debt. The director may compromise such claims, before or after commencement of the civil action, if the director finds there is a reasonable probability that the city will be unable to collect the entire amount of the claim, that the amount offered in compromise of the claim reasonably reflects either the amount of money available from the offender or the amount the city is likely to recover in the civil action, taking into account the resources required to pursue the civil action, and that the facts and circumstances of the events giving rise to the claim, taken as a whole, indicate that the amount offered in compromise is fair and reasonable. Using the foregoing standards, in an appropriate case, the director may abandon a claim.

(d) *Criminal remedies.* Except for provisions, if any, of this article that regulate the operation of shared micromobility devices, each violation of this article, including the terms of a permit, is a misdemeanor punishable by a maximum fine of $500.00.

(e) *Available remedies.* This article and the provisions of permits issued under this article may be enforced by an appropriate equitable remedy, including abatement orders and mandatory or prohibitory injunctions, issuing from a court of competent jurisdiction. The general court of justice shall have jurisdiction to issue such orders as may be appropriate,

and it shall not be a defense to the application of the city for equitable relief that there is an adequate remedy at law. In applying City Code section 1-9(e), the city council intends that revocation of a permit be deemed to be a remedy among other authorized remedies.
(Ord. No. 15598, § 2, 2-3-2020; Ord. No. 15982, § 160, 8-1-2022; Ord. No. 16316, § 3, 5-20-2024)

Chapters 51—53

RESERVED

Chapter 54

SALES AND SOLICITATIONS; BUSINESS REGULATION*

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ARTICLE I. IN GENERAL

Sec. 54-1. Curb service.

It shall be unlawful for any person to engage or take part in what is commonly known as curb service, that is, the delivery by a merchant or his or her agent, to the occupant or person in charge of a motor vehicle, of food or drinks for consumption by the occupant of such vehicle while the vehicle is parked on a street; provided, nothing herein contained shall be construed to prohibit merchants from serving drinks in containers or receptacles to be returned to such merchant. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 19-16; Code 1982, § 17-4; Ord. No. 15982, § 161, 8-1-2022)

Sec. 54-2. Manner of parking vehicles from which merchandise is sold.

It shall be unlawful for any person operating any wagon or other vehicle to sell merchandise from such vehicle on the streets unless such vehicle shall be parked alongside the curb in such street or in that portion of the street where the curb would be constructed. Blocking the street, which prevents vehicular travel, will be considered in violation of this section.
(Code 1964, § 17-3; Code 1982, § 17-5)

Sec. 54-3. Poolrooms, billiard parlors and other places of amusement.

(a) It shall be unlawful for any proprietor, manager or owner of a billiard parlor, poolroom, skating rink, shooting gallery or other similar place or device of amusement to allow, suffer or permit the use of any of such tables, rinks, galleries or other similar devices, either for hire or gratis between the hours of 2:00 a.m. and 7:00 a.m. from the last Sunday of April of each year until the last Sunday of October of each year and between the hours of 1:00 a.m. and 7:00 a.m. at all other times; provided, however, this section shall not make unlawful the use of pool or billiard tables in private homes or private clubs and lodges which are not engaged in the business of operating such devices for hire. Provided, however, that the proprietor, manager or owner of a place of amusement regulated pursuant to this section may, with written permission of the city manager, and in accordance with rules and regulations adopted by the city manager and approved by the city council, allow a limited number of patrons to remain in the establishment after closing, to operate the electronic games therein for the purpose of establishing or attempting to establish, a record number of points or a record number of continuous playing hours on a given game or electronic machine.

(b) It shall be unlawful for any person to establish, conduct, maintain or operate, or to assist in the conduct, maintenance or operation of any public poolroom or billiard parlor in any portion of any building or structure within the corporate limits of the city, except upon the ground floor thereof.

(c) It shall be unlawful for any person who owns, operates or conducts a public poolroom or billiard parlor, to have or maintain or use partitions, screens, painted or stained windows or doors, or any other materials, fabricd, device, enclosure or obstructions which prohibit the clear or unobstructed view from the street into the entire interior of such public poolroom or billiard parlor in which the business herein referred to is being carried on.

(d) In addition to any other remedy available in the Code, violation of any provision of this section may subject the offender to a civil penalty assessed and collected in accordance with the provisions set forth in section 54-188(a) through (c).
(Code 1964, § 3-11, 3-12, 3-13; Ord. No. 4915, § 1, 6-5-78; Code 1982, § 4-6, 4-7, 4-8; Ord. No. 6074, § 1, 2-7-83; Ord. No. 13574, Pt. 1, 4-7-2008; Ord. No. 15982, § 162, 8-1-2022)

Secs. 54-4—54-24. Reserved.

ARTICLE II. SALES AND SOLICITATIONS IN THE STREET RIGHT-OF-WAY*

DIVISION 1. GENERALLY

Sec. 54-25. Purpose.

This article is adopted to promote the health, safety, and welfare of the citizens, to decrease potentially dangerous distractions to drivers and obstructions on sidewalks and other public facilities, to reduce the likelihood of motor vehicle-pedestrian collisions and collisions between motor vehicles, and to promote business activity.
(Code 1982, § 17-50; Ord. No. 12730, § 1, 12-9-2002; Ord. No. 14355, § 3, 11-5-2012; Ord. No. 14580, § 1, 2-20-2014)

Sec. 54-26. Definitions.

The following definitions apply for purposes of this article, unless the context requires otherwise.

Chief of police means the chief of police of the City of Durham or any sworn police officer designated by the chief of police.

Control, with respect to real estate that is city-controlled or controlled by the city, is used as follows: The city controls real estate when it has a possessory interest therein on account of or pursuant to a written or oral lease or other instrument evidencing a possessory interest in real property or pursuant to any form of tenancy implied by law.

Controlled-access highway means a section of state highway especially designed for through traffic and over, from, or to which highway owners or occupants of abutting property or others have only a controlled right or easement of access.

***State law reference—**Regulation of public solicitations, G.S. 108-75.1 et seq.

Core downtown park means any of the following three areas: (1) the park bounded by Parrish Street, Mangum Street, Main Street, and a privately-owned property; (2) the triangle-shaped land at Five Points, bounded on the northeast by West Main Street, on the south by West Chapel Hill Street, and on the west by privately-owned property; and (3) CCB Plaza, which is bounded by Chapel Hill Street, Corcoran Street, Parrish Street, and Market Street; provided, however, "core downtown park" is limited to the portion of each of those three areas that is owned by the city of Durham and open to the general public, and to the times that it is open to the general public.

Eating establishment means an establishment engaged in the business of regularly and customarily selling food, primarily to be eaten on the premises. Eating establishments shall include businesses that are referred to as restaurants, cafeterias, or cafes, but that do not qualify as a restaurant as that term is defined within this section. Eating establishments shall also include lunchstands, grills, snack bars, fast-food businesses, and other establishments, such as drug stores, which have a lunch counter or other section where food is sold to be eaten on the premises.

Eating establishment operator means the person, firm, or corporation operating an eating establishment and associated outdoor seating area. As used in this section, this definition includes each and every owner, and each and every manager if different from the owner(s), of the eating establishment and associated outdoor seating area.

First Amendment protected sales are sales of newspapers and other material where the sales are protected by the First Amendment to the U.S. Constitution through the application of the 14th Amendment to the U.S. Constitution.

Food means any raw, cooked, or processed edible substance including meat, meat food products, poultry, poultry products, ice, beverage, or ingredient used or intended for use or for sale in whole or in part for human consumption.

Frontage road means a street that is auxiliary to and located on the side of another street for service to abutting property and adjacent areas and for the control of access to such other street.

Goods means personal property.

Law means law, statute, ordinance, rule, regulation, or decree or order of any governmental entity, including a county health department and the State Department of Agriculture.

Litter means any garbage, rubbish, trash, refuse, can, bottle, box, container, wrapper, paper, paper product, appliance, tool, machinery, wood, or discarded material in any form.

Median means the portion of street right-of-way that separates traffic lanes, including any curbs, regardless of whether the area separating traffic lanes is at the level of the roadway.

Mobility vehicle means a device that is designed for and intended to be used as a means of transportation for a person with a mobility impairment, or who uses the device for mobility

enhancement, is suitable for use both inside and outside a building, including on sidewalks, and is limited by design to 15 miles per hour when the device is being operated by a person with a mobility impairment, or who uses the device for mobility enhancement.

Motor vehicle means every vehicle that is self-propelled and every vehicle designed to run upon the streets that is pulled by a self-propelled vehicle. The term excludes mobility vehicles. The term also excludes a vehicle that has two or three wheels, no external shifting device, and a motor that does not exceed 50 cubic centimeters piston displacement and cannot propel the vehicle at a speed greater than 30 miles per hour on a level surface.

Occupant, with respect to a motor vehicle, means the driver and all passengers.

On-street parking space means a space designated by the city or the state for parking a motor vehicle on a street right-of-way. For purposes of this article, a space is not an on-street parking space when (i) the street of which the space is a part and from which a motor vehicle immediately enters the space is closed or blocked by an order issued pursuant to section 66-430, or (ii) it is unlawful for the public to park a motor vehicle in the space.

Outdoor dining area. An area as described in subsection 54-110(b), whereon tables, chairs, benches, and other furnishings are placed for dining purposes.

Outdoor seating area. An area on a public right-of-way, public sidewalk, public alley or pedestrian way whereon tables, chairs, benches, and other furnishings are placed for drinking and/or dining purposes.

Passenger means an occupant of a motor vehicle, excluding the driver.

Pedestrian way means an improved walk or passageway on public property or right-of-way intended for use by pedestrians, but not adjacent to any city street.

Permit means, unless the context otherwise requires, a permit issued pursuant to this article.

Private club means an establishment that is organized and operated solely for a social, recreational, patriotic, or fraternal purpose and that is not open to the general public, but is open only to the members of the organization and their bona fide guests. This provision does not, however, prohibit such an establishment from being open to the general public for raffles and bingo games as required by G.S. 14-309.11(a) and G.S. 14-309.13.

Private club operator means the person, firm, or corporation operating a private club and associated outdoor seating area. As used in this section, this definition includes each and every owner, and each and every manager if different from the owner(s), of the private club and associated outdoor seating area.

Public alley means a strip of land, typically no more than 20 feet in width, on public property or right-of-way, that is set aside primarily for vehicular service access to the rear or side of properties otherwise abutting on a street.

Restaurant means an establishment substantially engaged in the business of preparing and serving meals. To qualify as a restaurant, an establishment's gross receipts from food

and nonalcoholic beverages shall not be less than 30 percent of the total gross receipts from food, nonalcoholic beverages, and alcoholic beverages. A restaurant shall also have a kitchen and an inside dining area with seating for at least 36 people.

Restaurant operator means the person, firm, or corporation operating a restaurant and associated outdoor seating area. As used in this section, this definition includes each and every owner, and each and every manager if different from the owner(s), of the restaurant and associated outdoor seating area.

Right-of-way sales activities means selling goods (i) using a sales vehicle on any street right-of-way or on any core downtown park, or (ii) by placing, directly or indirectly, goods offered for sale or samples of goods offered for sale on any street right-of-way or on any core downtown park. Selling to a customer not located on street right-of-way or on any core downtown park is excluded from this definition. For example, the following is excluded: A customer not located on the street-right-of-way places an order to a seller who may be located in or outside the street right-of-way, in response to which order the seller delivers the goods from a vehicle in the street right-of-way to a location not on the street right-of-way.

Roadway is the portion of the street right-of-way that is improved for motor vehicle traffic or ordinarily used for motor vehicle traffic. Roadway excludes any area on which parking motor vehicles is lawful.

Sale is an offer, transfer, or agreement described in the definition to "sell."

Sales gear means a sales vehicle and all items that are brought by or at the direction of the seller or salesperson for use by the seller, salesperson, or customers, including seats, power cords, trash containers, and goods to be sold.

Sales vehicle means a vehicle, cart, stand, table, or other device or thing, whether or not wheeled, 12 inches or more in height, that rests in whole or in part, directly or indirectly, on any street right-of-way or core downtown park, while selling is occurring with the use of, from, or in connection with the vehicle, stand, cart, table, or other device or thing. Without limiting the preceding sentence of this definition, "sales vehicle" includes "mobile food unit" and "pushcart," as those expressions are defined in Subchapter 18A of Title 15A of the N.C. Administrative Code. A "sales vehicle" is not necessarily a "vehicle" as "vehicle" is defined in this section.

Salesperson means the individual who engages in the transaction of selling goods, and is not necessarily the owner of the goods being sold.

Sell means to transfer, or to offer to transfer, title or possession of goods for valuable consideration or to agree to transfer, or to offer to agree to transfer, title or possession of goods for valuable consideration.

Seller means the owner of goods being sold or operator of a business or other entity from which goods are sold.

Sidewalk is the portion of the street right-of-way intended for the use of pedestrians that is between the curb and the adjacent property line. If there is no curb or right-of-way parking

area, it is the portion of the street right-of-way intended for the use of pedestrians that is between the roadway and the adjacent property line. If there is no curb but there is a right-of-way parking area, it is the portion of the street right-of-way intended for the use of pedestrians that is between the right-of-way parking area and the adjacent property line.

Solicitation-restricted right-of-way means street right-of-way on which any of the following types of streets is located: Interstate Highway System; National System of Interstate and Defense Highways; controlled-access highway; frontage road; U.S. Highway; U.S. Route; street or highway that is part of the State highway system or that is a state highway; street with a speed limit of 35 miles per hour or greater; street with more than two designated vehicle travel lanes; street on which there is a median; and one-way street regardless of the number of designated vehicle travel lanes.

Special event means an event or activity for which a permit is issued pursuant to section 66-430, or an event or activity taking place in a city-owned or city-controlled park, plaza, or other property for which written permission is granted by the city.

Special-event permit means a permit issued pursuant to section 66-430, or the written permission granted by the city for an event or activity taking place in a city-owned or city-controlled park, plaza, or other property.

Street means the street right-of-way but excludes sidewalk and areas farther from the roadway than sidewalk.

Street right-of-way means the entire area in which the public, the city, or the state owns a property interest, when a portion is open to the use of the public as a matter of right for any motor vehicular traffic. The street right-of-way includes roadway, and may include right-of-way parking area, sidewalk, median, and unpaved areas, including grassed area.

Tangible thing includes money.

Vehicle means every device in, upon, or by which any person or property is or may be transported or drawn upon a roadway. This term does not include a self-balancing nontandem two-wheeled device, designed to transport one person, with a propulsion system that limits the maximum speed of the device to 15 miles per hour or less.
(Code 1982, § 17-51; Ord. No. 12730, § 1, 12-9-2002; Ord. No. 14332, § 1, 10-15-2012; Ord. No. 14355, § 4, 11-5-2012; Ord. No. 14375, §§ 2, 3, 12-17-2012; Ord. No. 14580, § 1, 2-20-2014; Ord. No. 15680, § 1.A., 7-1-2020, exp. 12-21-2020; Ord. No. 15809, § 1A., 5-17-2021, exp. 10-31-2021; Ord. No. 15882, § 1A, 10-18-2021)

Secs. 54-27—54-83. Reserved.

DIVISION 2. TRANSACTIONS IN STREET RIGHT-OF-WAY INCLUDING SIDEWALKS*

Sec. 54-84. Interacting with or impeding traffic on roadways.

(a) Prohibitions.

(1) No individual in a solicitation-restricted right-of-way shall stop or attempt to stop any motor vehicle that is on the roadway located within that right-of-way for the purpose of soliciting employment, business, or contributions from any occupant of the motor vehicle, or for the purpose of providing any service to the motor vehicle or any of its occupants.

(2) No individual in a solicitation-restricted right-of-way shall deliver, or, by means of a sign or other device of any kind, or by means of speech, sounds, signals, or motions offer to deliver, any tangible thing to any occupant, of a motor vehicle that is on the roadway located within that right-of-way.

(3) No individual in a solicitation-restricted right-of-way shall, by means of a sign or other device of any kind, or by means of speech, sounds, signals, or motions, request any occupant of a motor vehicle that is on the roadway located within that right-of-way to deliver any tangible thing to the individual, unless the individual specifies by a sign that can be read from a distance of 30 feet that the tangible thing is to be delivered to the individual or another person only when the motor vehicle is off the street right-of-way.

(4) Unless he or she is on a paved sidewalk, no individual in a solicitation-restricted right-of-way shall, by means of a sign or other device of any kind, or by means of signals or motions, attempt to alert any occupant of a motor vehicle that is on the roadway located within that right-of-way to any commercial activity.

(b) Exceptions. Subsection (a) does not prohibit an individual aged 16 or more years from doing the following:

(1) Stopping or attempting to stop a motor vehicle on a roadway, for the purpose of soliciting employment, business, or contributions, when

a. The vehicle is in one of the following locations:

1. On a street with two-way travel, and the vehicle is located in the travel lane that is rightmost from the driver's viewpoint;

2. On a one-way street with two or more travel lanes, and the vehicle is located in the travel lane that is rightmost or leftmost from the driver's viewpoint; or

3. On a street with only one travel lane, and the vehicle is located in the travel lane;

***Editor's note—**Ord. No. 14355, § 1, adopted November 5, 2012, changed the title of division 2 from "Restrictions on street right-of-way" to "Transactions in street right-of-way including sidewalks."

b. The vehicle is approaching a traffic signal or sign that requires the vehicle to come to a complete stop; and

c. The individual is on a paved sidewalk.

The individual does not violate subsection (b)(1)b. when, for example, the vehicle is approaching a stop sign or a steady, flashing, or strobe beam light emitting red light, and the individual is in violation of subsection (b)(1)b. if the vehicle is approaching a yield sign, or a steady, flashing, or strobe beam light emitting yellow or green light.

(2) Delivering or offering to deliver a tangible thing to an occupant of a motor vehicle on a roadway when

a. The vehicle is in one of the following locations:

1. On a street with two-way travel, and the vehicle is located in the travel lane that is rightmost from the driver's viewpoint;

2. On a one-way street with two or more travel lanes, and the vehicle is located in the travel lane that is rightmost or leftmost from the driver's viewpoint; or

3. On a street with only one travel lane, and the vehicle is located in the travel lane;

b. The driver of the vehicle is, while the delivery or offer to deliver is occurring, complying with either a traffic signal that requires the vehicle to come to a complete stop and the traffic signal has not changed to allow the vehicle to proceed, or a stop sign; and

c. The individual is on the side of the vehicle that is closest to the edge of the roadway.

(3) Receiving a tangible thing from an occupant of a motor vehicle on a roadway when:

a. The vehicle is in one of the following locations:

1. On a street with two-way travel, and the vehicle is located in the travel lane that is rightmost from the driver's viewpoint;

2. On a one-way street with two or more travel lanes, and the vehicle is located in the travel lane that is rightmost or leftmost from the driver's viewpoint; or

3. On a street with only one travel lane, and the vehicle is located in the travel lane;

b. The driver of the vehicle is, while the individual is receiving the tangible thing from the occupant, complying with either a traffic signal that requires the vehicle to come to a complete stop and the traffic signal has not changed to allow the vehicle to proceed, or a stop sign; and

c. The individual is on the side of the vehicle that is closest to the edge of the roadway.

The individual does not violate subsections (b)(1)a.1., (b)(2)a.1., or (b)(3)a.1. when, for example, on a street with two northbound lanes and two southbound travel lanes, the vehicle is in either the rightmost northbound lane or the rightmost southbound lane.

(c) An individual acting pursuant to subsection (b) shall not:

(1) *First Amendment protected goods.* Sell any goods besides First Amendment protected goods. First Amendment protected goods include newspapers and magazines.

(2) *Roadway.* Stand, sit, or walk on a roadway, provided that this subsection does not prohibit an individual from standing and walking on the roadway during the time needed:

a. To travel to or from a motor vehicle whose occupant has signaled the individual to approach, and

b. To engage in transactions allowed by subsections (b)(2) and (b)(3).

(3) *Median.* Violate section 66-12 (standing, sitting, and walking on median generally prohibited).

(4) *Animals.*

a. Be accompanied by an animal, provided that an individual with a disability may be accompanied by a service animal trained to assist the individual with the individual's specific disability, upon a showing of a tag, issued by the state department of health and human services, under G.S. 168-4.3, stamped "NORTH CAROLINA SERVICE ANIMAL PERMANENT REGISTRATION" and stamped with a registration number, or upon a showing that the animal is being trained or has been trained as a service animal. An animal in training to become a service animal may accompany the individual for the purpose of training only when the animal is accompanied by a person who is training the service animal and the animal wears a collar and leash, harness, or cape that identifies the animal as a service animal in training.

b. Without limiting subsection (c)(4)a., an individual with a disability may be accompanied by a dog when:

1. The individual states that the dog is required because of the individual's disability, and the individual describes work or tasks the dog has been trained to perform, or

2. It is readily apparent that the dog is trained to do work or perform tasks for an individual with a disability.

The crime deterrent effects of a dog's presence and the provision of emotional support, well-being, comfort, or companionship do not constitute work or tasks for the purposes of this subsection.

(5) *Daylight.* Be in the solicitation-restricted right-of-way between 20 minutes before sunset and 20 minutes after sunrise. For purposes of this subsection, there is a rebuttable presumption that the United States Naval Observatory's times, as provided by the astronomical applications department or its successor division or department within the naval observatory, for sunset and sunrise are correct.

(6) *Reserved.*

(7) *Reflective outerwear.* Fail to wear class II or class III ANSI 107-2004 outerwear:

a. That is reasonably clean and in good repair, and

b. On which the total area covered by all things (except for clear plastic that does not affect the reflectiveness of the outwear) resting on or attached to it is less than a total of four square inches.

(8) *Signs in general.* Display a sign larger than two feet in any dimension, or display anything with illuminated, animated, blinking, chasing, flashing, or moving effects that can be seen by a person with 20-20 vision from a distance of four feet.

(9) *Signs in violation of UDO.* Display a sign or other device in the solicitation-restricted right-of-way that is in violation of the UDO.

(10) *Reserved.*

(11) *Safe passage of pedestrians.* Interfere with the quick and safe passage across the roadway of pedestrians.

(12) *Normal movement of pedestrians.* Impede the normal movement of pedestrians.

(13) *Littering and traffic laws.* Violate any litter or traffic safety laws, including G.S. 14-399, G.S. 20-174.1, and G.S. 20-175.

(14) *Removal of goods.* Fail to remove all goods in connection with soliciting from the solicitation-restricted right-of-way when the individual is more than 50 feet away from any such item. The phrase "goods used in connection with soliciting" means goods that the individual offered for sale or delivery to occupants of motor vehicles; structures, devices, things, and materials of any kind used to transport, protect, display, advertise, offer, or sell any goods; food brought for consumption by the individual; food partly consumed by the individual; and packaging for food or drink consumed in whole or in part by the individual or an animal accompanying the individual.

(15) *Work zones.* Be in a work zone or stop or attempt to stop a motor vehicle that is in a work zone. A "work zone" is the area between the first sign that informs motorists or drivers of the existence of a work zone, construction zone, maintenance zone, utility work zone, or similar warning on a street and the last sign that informs motorists or drivers of the end of the zone, regardless of whether a sign states the penalty for speeding in the zone. Work zones are designated as such if the secretary of the state department of transportation or the city manager determines, after engineering review, that the posting is necessary to ensure the safety of the traveling public due

to a hazardous condition; or if the posting is done at the direction of or with the consent of a governmental body or official having jurisdiction. The direction or consent may be given by any appropriate manner, including incorporation into specifications of a contract. There shall be a rebuttable presumption that any posting of a work zone has been done with the consent of a governmental body or official having jurisdiction.

(16) *Access ramps.* Be on an access ramp.

(17) *Bridges.* Be on a bridge, or on the portion of a street leading to or from a bridge that is within 100 feet of the bridge. In this subsection, "bridge" is limited to a bridge that contains a roadway.

(d) Litter. Any goods, structures, devices, things, and materials not removed in accordance with subsection (a)(14) shall be considered litter pursuant to section 26-123. Nothing in this section is intended to limit the effect of chapter 26.

(e) Penalties. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.
(Code 1982, § 17-54; Ord. No. 12890, § 1, 11-17-2003; Ord. No. 14375, § 4, 12-17-2012; Ord. No. 14580, § 1, 2-20-2014; Ord. No. 15982, § 163, 8-1-2022)

Sec. 54-85. Reserved.

Editor's note—Ord. No. 14375, § 4, adopted December 17, 2012, repealed the former section 54-85 in its entirety, which pertained to median permits, and derived from the Code of 1982, § 17-55, and Ord. No. 12890, § 1, adopted November 17, 2003.

Sec. 54-86. Reserved.

Editor's note—Ord. No. 14580, § 1, adopted February 20, 2014, repealed and renumbered § 54-86 as § 54-84(b). Former § 54-86 pertained to requirements for transactions with motor vehicle on roadway and was derived from Code 1982, § 17-56; Ord. No. 12890, § 1, adopted November 17, 2003 and Ord. No. 14375, § 4, December 17, 2012.

Sec. 54-87. Exceptions for public service activities, compliance with law enforcement directions, and emergencies.

Section 54-84 does not apply to licensees, lessees, franchisees, permittees, employees, or contractors of the city or of the N.C. Department of Transportation engaged in inspection, construction, repair, or maintenance or in making traffic or engineering surveys, or any of the following persons while engaged in the performance of their respective occupations: firefighting personnel, law enforcement personnel, EMS personnel, health care workers or providers, military personnel, civil preparedness personnel, emergency management personnel (including emergency management workers defined by G.S. 166A-19.60(e)), solid waste personnel, recycling personnel, public works personnel, or public utility employees. Section

54-84 does not apply to the extent that law enforcement personnel direct otherwise for the purpose of promoting safety of persons or property or to address an emergency. Section 54-84 does not apply to actions taken in response to an emergency.
(Code 1982, § 17-57; Ord. No. 12890, § 1, 11-17-2003; Ord. No. 14375, § 4, 12-17-2012; Ord. No. 14580, § 2, 2-20-2014)

Editor's note—Ord. No. 14375, § 4, adopted December 17, 2012, changed the title of section 54-87 from "Exceptions for public service activities" to "Exceptions for public service activities, compliance with law enforcement directions, and emergencies." The historical notation has been preserved for reference purposes.

Sec. 54-88. Prohibition on use of sales vehicle and sales gear to sell on street right-of-way; vending machines.

(a) Except to the extent authorized by this article (including section 54-91) or by provisions that are authorized by this article to be placed in a permit, no person shall engage in right-of-way sales activities, as defined in section 54-26.

(b) This section does not prohibit right-of-way sales activities on the portion of a street that is closed or blocked.

(c) This section does not prohibit or otherwise affect an automatic vending machine on a sidewalk that sells only printed matter if the machine does not impede lawful travel on the sidewalk. To qualify under this exception, the vending machine must also be placed so as to allow at least four feet of unobstructed space for pedestrians. If applicable law, including Americans with Disability Act regulations, requires a greater distance, the greater distance applies. Without limiting the preceding two sentences, if within 200 feet of the vending machine, there is no passing space for pedestrians that is at least five feet by five feet, the vending machine must be placed so as to allow at least five feet of unobstructed space for pedestrians.

(d) Compliance with this article does not excuse or exempt any person from compliance with other applicable laws.

(e) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1982, § 17-58; Ord. No. 12730, § 1, 12-9-2002; Ord. No. 14355, § 5, 11-5-2012; Ord. No. 15982, § 164, 8-1-2022)

Editor's note—Ord. No. 14355, § 5, adopted November 5, 2012, changed the title of section 54-88 from "Prohibition on use of stands, carts, etc., to sell on sidewalks; necessity for permit" to "Prohibition on use of sales vehicle and sales gear to sell on street right-of-way; vending machines." The historical notation has been preserved for reference purposes.

Secs. 54-89, 54-90. Reserved.

Editor's note—Ord. No. 14355, § 2, adopted November 5, 2012, repealed the former section 54-89 in its entirety, which pertained to general limits on selling on street right-of-way, and derived from the Code of 1982, § 17-59, and Ord. No. 12730, § 1, adopted December 9, 2002.

Sec. 54-91. Right-of-way sales activities.

(a) *Exemption from subsection 54-88(a).* Right-of-way sales activities done in compliance with this section are exempt from subsection 54-88(a), provided, however, that to qualify for this exemption, the only goods that may be offered for sale or sold are (i) food and (ii) newspapers and other material the sale of which is protected by the First Amendment to the U.S. Constitution through the application of the 14th Amendment to the U.S. Constitution. The provisions of this section apply to only persons claiming an exemption from subsection 54-88(a).

(b) *Location on street right-of-way; use of parking and loading spaces.* No person shall allow sales gear to be placed on any street right-of-way other than paved sidewalk, core downtown park, or paved on-street parking space. No sales gear other than a motor vehicle shall be placed on an on-street parking space. Such vehicles shall comply with ordinances that apply to occupying such spaces, including parking ordinances limiting the time that a parking space may be occupied. The sales gear for one sales vehicle shall not be placed in more than one on-street parking space. No sales gear shall be placed in loading zones.

(c) *Use of property of others.* No sales gear in the street right-of-way shall rest on or be attached directly or indirectly to public or private property unless the seller or salesperson has permission of the property's owner or other person who has authority to grant permission. This subsection does not prohibit resting sales gear on curbs that are less than eight inches high and on surfaces on which driving motor vehicles or walking (other than steps) is allowed.

(d) *Seating, tables, etc.* Sales gear shall not include seating for customers. Tables are allowed as sales gear only when a wheeled cart or motor vehicle is also part of the sales gear. Sales gear shall not include tables or other surfaces that are used by customers to consume or use purchases from sellers. Sales gear may include a maximum of one seat for each salesperson. Sellers and salespersons shall not allow customers to use those seats, and customers shall not use those seats. No sales gear may be placed in a manner that prohibits a motor vehicle from safely using a public or private driveway to gain access to and from a street.

(e) *Minimum distances.* No sales gear may be placed in a manner that prohibits a motor vehicle from safely using a public or private driveway to gain access to and from a street. All sales gear must be placed so as to allow at least four feet of unobstructed space for pedestrians on sidewalks, on pedestrian paths, and on other locations intended primarily for pedestrian travel. If applicable law, including Americans with Disability Act regulations, requires a greater distance, the greater distance applies. Without limiting the preceding two sentences, if within 200 feet of sales gear, there is no passing space for pedestrians that is at least five feet by five feet, sales gear must be placed so as to allow at least five feet of unobstructed space for pedestrians. All sales gear must be at least ten feet from street intersections, crosswalks, bus shelters, taxi stands, building entrances and exits, fire stations, police stations, and fire hydrants. All sales gear of one seller must be at least ten feet from all sales gear of all other sellers operating under this division, except that this

sentence does not require a minimum distance between one motor vehicle parked in an on-street parking space and another motor vehicle parked in an on-space parking space. A street intersection is the point at which the edge of one street's roadway meets the edge of another street's roadway. All sales gear must be at least 20 feet from any automated teller machine and from all entrance doors and exit doors of banks, credit unions, and savings and loan associations. All sales gear must be outside of each area that is described as follows:

Beginning at the post on which a bus stop sign is attached, and running against the direction of traffic, along the edge of pavement a distance of 40 feet to a point; from that point, on the line that is perpendicular to the roadway, a distance of ten feet from the roadway; from that point, running with the direction of traffic parallel with the edge of pavement a distance of 40 feet; from that point, on the line that is perpendicular to the roadway, a distance of ten feet to the post on which the bus stop sign is attached, the point of beginning.

(f) *Distance from restaurants.*

(1) This subsection (1) applies to restaurants neither holding a permit issued pursuant to section 54-110 nor lawfully providing one or more tables at which its customers may eat while seated outside on private property. Sellers that sell food must not, within 50 feet of the principal entrance for customers of a restaurant, without permission of the operator of the restaurant, (i) stop, stand, or park a sales vehicle, or (ii) engage in any right-of-way sales activity with a customer of the seller, such as selling goods or accepting payment. If there can be disagreement as to the location of the principal entrance of a restaurant, the city manager will determine which restaurant entrance is its principal one, and that determination is binding.

(2) This subsection (2) applies to a restaurant that (i) holds a permit issued pursuant to section 54-110, and pursuant to and in compliance with the permit the restaurant has placed one or more tables in an outdoor dining area, at which tables the restaurant's customers may be seated in order to dine; or (ii) lawfully provides one or more tables at which its customers may eat while seated outside on private property. Sellers that sell or offer to sell food must not, within the greater of 50 feet from any edge of any such table or 50 feet from the principal entrance for customers of the restaurant, without permission of the operator of the restaurant, (i) stop, stand, or park a sales vehicle, or (ii) engage in any right-of-way sales activity with a customer of the seller, such as selling goods or accepting payment. If there can be disagreement as to the location of the principal entrance of a restaurant, the city manager will determine which restaurant entrance is its principal one, and that determination is binding.

(3) For restaurants to which subsection (1) applies, this subsection (f) applies to the restaurant only while (i) the restaurant is allowing additional customers to enter its principal entrance for the purpose of ordering food prepared by the restaurant to eat while seated inside the restaurant, and (ii) the restaurant's kitchen is open and staffed for the purpose of preparing food for customers to eat while seated inside the

restaurant. For restaurants to which subsection (2) applies, this subsection (f) applies to the restaurant only while (i) the restaurant is allowing additional customers to enter its principal entrance for the purpose of ordering food prepared by the restaurant to eat while seated inside the restaurant, while seated at a table in an outdoor dining area permitted pursuant to section 54-110, or while seated at a table outdoors on private property, and (ii) the restaurant's kitchen is open and staffed for the purpose of preparing food for customers to eat while seated inside the restaurant, while seated in an outdoor dining area permitted pursuant to section 54-110, or while seated at a table outdoors on private property.

(4) For purposes of this subsection (f) but not for other portions of this article:

A *building* is a structure with walls and a roof. When it was erected, the building must have been designed and constructed to be usable for at least ten years, although it need not have been designed and constructed as a restaurant.

Inside and *outside* refer to locations inside or outside a building.

Outdoor dining area is defined in section 54-26, if a definition is provided there. If no definition is provided there, the expression means an area on a public sidewalk, public alley or pedestrian way whereon tables, chairs, benches, and other furnishings are placed for dining purposes.

Pedestrian way is defined in section 54-26, if a definition is provided there. If no definition is provided there, the expression means an improved walk or passageway on public property or right-of-way intended for use by pedestrians, but not adjacent to any city street.

Private property is land that is not a public sidewalk, public alley, or a pedestrian way.

A *restaurant* is an establishment engaged in the business of preparing and serving meals at retail for pay. It must have a kitchen and inside seating for at least ten individuals to eat food provided by the restaurant. The following are not included in determining seating capacity: (1) seats in a bar or lounge area; (2) seats in a separate room or section used exclusively for private functions; and (3) outside seats. This definition of restaurant applies to this subsection instead of any other definition of the word elsewhere in the City Code.

(g) *Garbage and recycling; litter.* Sellers and salespersons shall provide, on or within 15 feet of all sales vehicles, containers of sufficient size and number for the disposal of garbage and recyclables resulting from the sales. They shall be conspicuously identified as being available for the disposal of garbage or recyclables. At least once per hour of operation, and between ten and 30 minutes after the last sale, excluding mere offers to sell, of the day, sellers and salespersons shall remove all litter (that is not in an appropriate container) resulting from the sales that has accumulated on, or within 15 feet of, sales vehicles. In

complying with the preceding sentences of this subsection, city-provided containers shall not be used. Nothing herein is intended to limit the effect of City Code chapter 10 (garbage, other solid waste).

(h) *Fire extinguishers.* No deep fat fryer, flat top grill, or any other equipment that can produce grease vapors shall be used unless it is on a wheeled cart or motor vehicle. When sellers and salespersons use a deep fat fryer, a flat top grill, or any other equipment that can produce grease vapors, they must have on the wheeled cart or motor vehicle a minimum of ten pounds-ABC type fire extinguisher. Sellers and salespersons shall immediately prove compliance with this subsection upon the request of the city manager or any sworn law enforcement officer.

(i) *Reserved.*

(j) *Signs.* The only signs used as sales gear are signs allowed by this subsection. Two types of signs are allowed as sales gear, moveable and non-moveable signs. Both types of signs shall promote, advertise, or facilitate the sale of goods sold by direct use of that sales vehicle. Both types of signs shall have no other content. In this subsection, "sign" is defined as in article 11 of the Unified Development Ordinance (UDO). Nothing in the UDO, including article 11 (sign standards), shall reduce the requirements established by this article.

(1) A moveable sign is a freestanding sign placed on a paved sidewalk and not attached directly or indirectly to any public or private property. It shall not exceed two and one-half feet in width or four feet in height. As a further limitation, no dimension of a moveable sign as placed in use on a sidewalk shall exceed four feet. The entire moveable sign must be placed within 30 feet of the sales vehicle to which it is associated. A seller is allowed to place one moveable sign per sales vehicle, but if one salesperson uses more than one sales vehicle, no more than one moveable sign is allowed for all the sales vehicles used by that salesperson. Moveable signs shall comply with the requirements of sales gear. Moveable signs must be kept in good condition.

(2) All non-moveable signs must be securely attached to a sales vehicle.

(k) *Location of customer.* When a customer is within 50 feet of a salesperson, the salesperson shall not engage in any right-of-way sales activity with the customer, such as selling goods or accepting payment, while the customer is in an on-street parking space, on a roadway, or in a motor vehicle regardless of the motor vehicle's location.

(l) *Reserved.*

(m) *Unattended sales gear.* Sellers and salespersons shall remove all sales gear from street right-of-way when the sales gear is not attended by a responsible individual for longer than ten minutes.

(n) *Registration.* Each seller selling food shall register and pay the registration fee in an amount set by the city council. Registration expires at the end of each June 30. Each seller shall promptly notify the city manager of changes to the seller's mailing address. While engaged in selling food pursuant to this section, all sellers and salespersons shall immediately show the registration receipt issued by the city upon request of any city employee or any sworn law enforcement officer.

(o) *Available remedies.* In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 14355, § 6, 11-5-2012; Ord. No. 15982, § 165, 8-1-2022)

Secs. 54-92—54-109. Reserved.

Editor's note—Ord. No. 14355, § 2, adopted November 5, 2012, repealed the former sections 54-107—54-109 in their entirety, which pertained to fixed location vending (FLV) permit, fixed location vending permit for First Amendment protected sales (FLFA) permit, and mobile cart permit, respectively, and derived from the Code of 1982, §§ 17-63—17-65 and Ord. No. 12730, § 1, adopted December 9, 2002.

Sec. 54-110. Outdoor seating area.

(a) *Permit issued by manager.* The city manager or his or her designee may issue permits for outdoor seating areas pursuant to this section on city maintained public rights-of-way, city sidewalks, public alleys, and pedestrian ways.

(b) *Application.* Any eating establishment, restaurant, or private club desiring to operate an outdoor seating area shall, before the issuance of a permit, prepare and file an application with the city manager or his or her designee which shall contain the following information:

(1) The name, address, and telephone number of the eating establishment, restaurant, or private club desiring to operate an outdoor seating area;

(2) The name, address and telephone number of each of the eating establishment's, restaurant's, or private club's operators;

(3) The type of food, beverage, and other products to be sold and served at the outdoor seating area;

(4) The hours of operation of the eating establishment, restaurant, or private club and the proposed hours of operation of the outdoor seating area;

(5) A scaled drawing or site plan showing the proposed outdoor seating area boundary and surrounding streetscape details covering six feet on either side of the frontage of the associated eating establishment, restaurant, or private club, including but not limited to property lines, sidewalks, curb lines, lighting, trees Including tree size, tree grates, planters, street signs, bicycle parking, benches, bus stops, and fire hydrants. The drawing shall show the section of sidewalk, public alley, parking space or pedestrian way to be used for the outdoor seating area and the section to be kept

clear for pedestrian use, and depict the proposed materials and placement of tables, chairs, barriers, and other furnishings on the sidewalk, public alley or pedestrian way;

(6) Evidence of a valid insurance policy that will indemnify the city for any damage to the sidewalk, or public alley, parking space, or pedestrian way and for any damages for which the city might incur liability because of property damage or personal injury arising out of the use of the sidewalk, public alley or pedestrian ways for seating purposes. The minimum liability limit of the policy shall be $1,000,000.00;

(7) An indemnity statement, approved by the city attorney, whereby the eating establishment, restaurant, or private club owners agree to indemnify and hold harmless the city and its officers, agents and employees from any claim arising from the operation of the outdoor seating area;

(8) A copy of all permits and licenses issued by the state, County, or the city, including health permits, all applicable ABC permits and business licenses, necessary for the operation of the eating establishment, restaurant, or private club, or a copy of the application for the permit if no permit has been issued. This requirement includes any permits or certificates issued by the city for exterior alterations or improvements to the eating establishment, restaurant, or private club;

(9) Such additional information as may be requested by the city manager or his or her designee to determine compliance with this section.

(10) If a tent or canopy is to be used, it must be fire rated and the fire rating for the tent must be permitted by the city, if applicable.

(11) A fee as provided in the city fee schedule to cover the cost of processing and investigating the application and issuing the permit. In addition, applicable right of way closure fees shall also apply.

(c) *Issuance of permit.* No permit for the operation of an outdoor seating area may be issued unless the application is complete and unless the following requirements are met:

(1) The outdoor seating area must be associated with an operating eating establishment, restaurant, or private club such that it is under the same management and shares the same food preparation facilities, restroom facilities and other customer convenience facilities as the eating establishment, restaurant, or private club. The outdoor seating area must be operated under the same name as the eating establishment, restaurant, or private club and may not be open or be operated at any time when the eating establishment, restaurant, or private club is not open for business.

(2) The operation of the outdoor seating area must be clearly incidental to the associated eating establishment, restaurant, or private club business. The seating capacity of the outdoor seating area may not constitute more than 50 percent of the total seating capacity of the associated eating establishment, restaurant, or private club. Upon showing for good cause by the applicant, the city manager reserves the right to allow

the seating capacity of the outdoor seating area to constitute up to 40 percent of the total seating capacity of the associated eating establishment, restaurant, or private club.

(3) Tables, chairs, barriers, and other furnishings, as shown in the drawing or plan submitted with the permit application, may be placed on the sidewalk, public alley or pedestrian way, but must be located in such a manner so that a minimum six-foot-wide unobstructed pedestrian corridor shall be provided at all times through the sidewalk or pedestrian way. The outdoor seating area shall not block access to public amenities such as bicycle racks, street furniture, trash receptacles, dumpsters, and way finding or directional signs.

(4) An unobstructed pedestrian corridor of a minimum of four feet straight out must be maintained between any eating establishment, restaurant, or private club entrance and the pedestrian corridor.

(5) When any portion of the proposed outdoor seating area is located within a public alley, the name, address and telephone number of all property owners contiguous to the public alley at issue.

(6) The outdoor seating area may only extend beyond the property line of the eating establishment, restaurant, or private club with written permission of the current adjoining property and business owners impacted. A copy of the agreement must be filed and maintained as current with the application.

(7) The outdoor seating area may be located adjacent to the building or next to the curb, provided there is at least two feet of clearance between the seating area and the curb (three-foot clearance if adjacent to on-street parking). The seating area may be located within on-street parking areas, if approved by the transportation department. Outdoor seating areas may also be permitted on nearby public alleys if approval is granted by the appropriate city departments. A minimum clearance of four feet shall be maintained between the outdoor seating area and edge of driveways, alleys, and handicapped ramps. At street intersections, the outdoor seating area may not extend within sight triangles. At bus loading and unloading areas, additional clearances may be required.

(8) Wider pedestrian corridors or increased clearances may be required where warranted by pedestrian traffic or other circumstances or to comply with the North Carolina Building Code, Americans with Disabilities Act, or other laws. This is subject to inspection by appropriate city departments.

(9) The tables, chairs, barriers, and other furnishings used in the outdoor seating area shall be of a type that is easily movable. These items shall not be permanently affixed to the sidewalk, parking space, public alley, or pedestrian way and must remain within the designated boundaries of the approved outdoor seating permit. There shall be no permanent attachments to the sidewalk, buildings, or other structures as a component of the outdoor seating that is permitted.

(10) Except as elsewhere permitted, the operation or furnishing of the outdoor seating area shall involve no permanent alteration to or encroachment upon any street, sidewalk, public alley or pedestrian way or to the exterior of the associated eating establishment, restaurant, or private club.

(11) No electrical cords may be run from the eating establishment, restaurant, private club, or a city receptacle to the outdoor seating area.

(12) Except as required by subsection (d)(4) below, signage in the outdoor seating area shall conform to the applicable signage standards provisions of the UDO.

(13) Umbrellas must be fixed so as to leave a clear height of seven feet from the sidewalk surface. Umbrellas are not allowed within vehicular sight triangles. Umbrellas shall not include any signage as defined in the Unified Development Ordinance.

(14) Furniture must be made of durable material, and each establishment shall only use one consistent style for the outdoor seating area. Traffic barriers, platforms, and other temporary structures meet design specifications, and plans have been reviewed by transportation and other appropriate departments.

(15) The application has been reviewed and a certificate of appropriateness has been issued by the historic preservation commission, or designee, if applicable.

(d) *Alcoholic beverages.* Notwithstanding any City Code provision to the contrary, alcoholic beverages may be served at outdoor seating areas provided the following requirements are met:

(1) The outdoor seating area shall be part of a standard eating establishment, restaurant, or private club as those terms are defined in G.S. § 18B-1000, and shall otherwise be authorized, permitted or licensed under state laws and the City Code to serve and sell alcoholic beverages for on premise consumption.

(2) The portion of the outdoor seating area where alcohol is or may be served shall be delineated by clearly visible barriers and shall not have more than two designated points of ingress and egress.

(3) The outdoor seating area must comply with all applicable ABC permitting requirements and applicable State laws regarding the sale and consumption of alcoholic beverages on-premises.

(4) Signs shall be posted, visible at all designated exit points from the outdoor seating area, that it is unlawful to remove alcoholic beverages in open or unsealed containers from the premises. The eating establishment, restaurant, or private club operators shall be responsible for insuring that no alcohol is served or consumed outside the designated area.

(e) *Operation, appearance, and maintenance requirements.* An outdoor dining area shall be operated in such a manner to comply with the following requirements:

(1) Outdoor seating is limited to the area approved by the city as specified on the permit application.

(2) No more patrons than can be accommodated by the actual seats provided in the outdoor seating area may occupy the outdoor seating area. This does not include patrons travelling through the outdoor seating area to enter or exit the eating establishment, restaurant, or private club.

(3) Except for planters and pots, all furniture, barriers and associated furnishings, including but not limited to umbrellas, signage, table top candles, and other accessory items, shall be removed from the sidewalk, public alley, pedestrian way, or public right-of-way at closing and stored inside the eating establishment, restaurant, or private club, unless otherwise provided in the approved permit. In addition, planters, pots, furniture, associated furnishings, and barriers used in the operation of the outdoor seating area must be removed within 24 hours of notice from the city. If such items are not removed upon 24 hours' notice, the city shall have the right to remove and dispose of these items and may assess the property owner for the cost of such removal and disposal. The city shall also have the right to remove such items immediately in emergency situations.

(4) Eating establishment, restaurant, or private club operators shall keep the outdoor seating area clean of all litter as required by section 26-123 of the Durham City Code.

(5) Umbrellas and other outdoor seating area furniture shall be kept clean and in good repair.

(6) Compliance with all conditions required for issuance of an outdoor seating area permit shall be maintained while operating pursuant to the permit.

(7) The city shall not be responsible for damage to outdoor seating area tables, chairs, barriers, furnishings and accessories of any kind under any circumstances.

(8) The eating establishment, restaurant, or private club owners shall be responsible for repairing any incidental damage to any city property resulting from the operation of the associated outdoor seating area. Any repair work shall be in accordance with applicable federal, state, and local laws, regulations and standards.

(f) *Reservation of rights.* The city reserves the right to require any outdoor dining area established pursuant to this section to cease part or all of its operation in order to allow for construction, maintenance, or repair of any street, sidewalk, utility, or public building by the city, its agents or employees, or by any other governmental entity or public utility; and to allow for use of the street or sidewalk in connection with parades, civic festivals, and other events of a temporary nature as permitted by the city.

(g) *Transfer and expiration.* A permit is not transferable. A permit shall expire as stated on the permit, but no more than 12 months after its issuance. A permit may be revoked pursuant to section 54-141.

(h) *Available remedies.* In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Ord. No. 14332, § 2, 10-15-2012; Ord. No. 15680, § 1.B., 7-1-2020, exp. 12-21-2020; Ord. No. 15809, § 1B., 5-17-2021, exp. 10-31-2021; Ord. No. 15882, § 1B, 10-18-2021; Ord. No. 15982, § 166, 8-1-2022)

Editor's note—* Exhibit A has not been set out herein, but a copy is available for review upon request a the city clerk's office.

Editor's note—Ord. No. 14332, § 2, adopted October 15, 2012, repealed and reenacted section 54-110 in its entirety to read as herein set out. Formerly, section 54-110 pertained to sidewalk seating permit, and derived from the Code of 1982, § 17-66, and Ord. No. 12730, § 1, adopted December 9, 2002.

Sec. 54-111. Plant display permit; First Amendment protected sales on sidewalk permit.

After receipt of an application in accordance with this section, a permit may be issued by the manager under which bedding plants, flowers, and seedlings may be displayed in flats or cartons and sold at retail from a sidewalk and the portions of street right-of-way that are farther from the roadway than the sidewalk directly adjacent to a place of business. After receipt of an application in accordance with this section, the manager shall issue a permit under which First Amendment protected sales may be conducted, and the display of First Amendment protected sales material may be displayed, on a sidewalk and the portions of street right-of-way that are farther from the roadway than the sidewalk directly adjacent to a place of business. The sidewalk remaining uncovered by the goods must be sufficient for pedestrians to pass safely and conveniently. The manager may specify in the permit the boundaries of the area where the goods may be located, standards and practices for litter control, requirements for removal of the display when the store is closed, and other matters consistent with this article. The permit shall be issued only if the chief of police finds that the public safety and the convenience of pedestrians will not be harmed by the activity, without prejudice to the chief of police's later making a contrary determination after further experience. The application for the permit shall be complete only if accompanied by a fee in an amount set by the city council. Unless provided otherwise in the permit, the permit shall not expire merely by the passage of time. A permit shall continue to apply to a location even if the person operating the business changes. In exercising the authority allowed to the manager under this section to establish criteria and restrictions, the manager shall impose the same or substantially similar limitations on First Amendment protected sales as on plant sales.

(Code 1982, § 17-67; Ord. No. 12730, § 1, 12-9-2002)

Sec. 54-112. Sales near DBAP.

(a) *Sales near DBAP.* Nothing in section 54-91 shall allow sales on street right-of-way in the Durham Bulls Athletic Park (DBAP) area during the period of 90 minutes before the scheduled time of any Durham Bulls baseball game in the DBAP until 30 minutes after the

official end of the game. The DBAP area is defined to be the area bounded by Roxboro Street, Pettigrew Street, Julian Carr Street, and Highway 147. The DBAP area includes the land that would be within Julian Carr Street if that street were extended, from its current southern terminus with the same right-of-way width that it has at that southern terminus, to intersect with Highway 147. The DBAP area includes the land contained within the street right-of-way of the four streets that bound the DBAP area.

(b) *Sales near DPAC.* Nothing in section 54-91 shall allow sales on street right-of-way in the DPAC area during the period of 90 minutes before the scheduled time of any event in the DPAC until 30 minutes after the scheduled end of the event. For purposes of this subsection, an "event" in the DPAC is a performance or other activity that the person designated by the city manager or city council as the operator of the DPAC estimates is likely to draw an audience of at least 500 individuals to the DPAC, and the scheduled time and end of an event shall be as determined by said operator. This subsection shall be apply only with respect to events for which the operator has provided to the city manager, at least 20 days before the day of the event, a written statement of the nature of the event, the date of the event, and its scheduled time and end. The DPAC area is defined to be the area bounded by Roxboro Street, Pettigrew Street, Julian Carr Street, and Highway 147. The DPAC area includes the land that would be within Julian Carr Street if that street were extended, from its current southern terminus with the same right-of-way width that it has at that southern terminus, to intersect with Highway 147. The DPAC area includes the land contained within the street right-of-way of the four streets that bound the DPAC area.

(c) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1982, § 17-68; Ord. No. 12730, § 1, 12-9-2002; Ord. No. 13290, 6-19-2006; Ord. No. 14355, § 7, 11-5-2012; Ord. No. 15982, § 167, 8-1-2022)

Sec. 54-113. Walk-up windows.

This article does not prohibit sales through a walk-up window when the buyer is not located on a roadway. A walk-up window is a window, door, or other opening in a building from which sales activities take place to buyers located on the street right-of-way other than a roadway.

(Code 1982, § 17-69; Ord. No. 12730, § 1, 12-9-2002)

Sec. 54-114. Sales on closed or blocked streets in conjunction with special-event permits.

Except to the extent a special-event permit otherwise provides, no person other than the special-event permittee shall engage in right-of-way sales activities on the portion of any street that is closed or blocked by an order issued pursuant to section 66-430. Except to the extent a special-event permit otherwise provides, subsection 54-88(a) does not apply to the portion of any street that is closed or blocked by an order issued pursuant to section 66-430. Except to the extent otherwise provided by the permit and subject to such terms and

conditions as the city manager deems proper, the permittee may create exceptions to the prohibition established by the first sentence of this section on the closed or blocked street. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 14355, § 8, 11-5-2012; Ord. No. 15982, § 168, 8-1-2022)

Sec. 54-115. Sales at permitted events in city parks, plazas, and properties.

(a) *Definition of permitted sales location.* When a special-event permit is in effect for a park, plaza, or other property and the park, plaza, or other real property is owned or controlled by the city, the places in such park, plaza, or other property where the permittee or other persons are authorized by the permit to sell goods or to authorize others to sell goods are collectively referred to in this section as the "permitted sales location."

(b) *Prohibition of right-of-way sales activities.* No person shall engage in right-of-way sales activities on a permitted sales location except as authorized by the permit. If the permit authorizes activities that include selling goods on only a portion of the park, plaza, or other real property, no person shall engage in right-of-way sales activities elsewhere on the park, plaza, or other property. The permit may provide for exceptions to the prohibitions created by this subsection.

(c) *Authority to issue permits.* The city manager is authorized to issue the permits described in this section. The permit may contain such terms and conditions as the city manager deems proper. The permit may provide that only sellers specified in the permit, and/or only sellers authorized by the permittee, may sell goods on a specified portion or all of the park, plaza, or property.

(d) *Available remedies.* In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 14355, § 8, 11-5-2012; Ord. No. 15982, § 169, 8-1-2022)

Sec. 54-116. Exemption for newspaper distribution.

Except to the extent otherwise explicitly provided by an order or permit referred to in section 54-114 or section 54-115, the orders and permits shall not be construed to prohibit the distribution of newspapers within the nontraveled portion of any street. This rule of construction does not apply to the extent the newspaper distribution activities impede the normal movement of traffic on the street.
(Ord. No. 14355, § 8, 11-5-2012)

Sec. 54-117. Prohibitions cumulative.

Where any combinations of section 54-112, section 54-114, and 54-115, and/or subsections in those sections, apply, the conditions, prohibitions, and restrictions are cumulative unless the context requires otherwise or unless otherwise provided in an applicable permit.
(Ord. No. 14355, § 8, 11-5-2012)

Sec. 54-118. Right-of-way sales activities presumed subject to section 54-88.

Unless otherwise provided, section 54-112, section 54-114, and 54-115 are subject to section 54-88 with respect to right-of-way sales activities.
(Ord. No. 14355, § 8, 11-5-2012)

Secs. 54-119—54-138. Reserved.

DIVISION 3. RESERVED*

DIVISION 4. ISSUANCE, DISPLAY, AND TERMINATION OF PERMITS†

Sec. 54-139. Permits to which division applies.

The permits referred to in section 54-114 and section 54-115, including special-event permits, are deemed, for purposes of applying this division and division 5, to be required by this article and issued under this article.
(Ord. No. 14355, § 9, 11-5-2012; Ord. No. 14425, § 1, 4-1-2013)

Editor's note—Ord. No. 14355, §§ 2, 9, adopted November 5, 2012, repealed and reenacted section 54-139 in its entirety to read as herein set out. Formerly, section 54-139 pertained to application and issuance, and derived from the Code of 1982, § 17-100, and Ord. No. 12730, § 1, adopted December 9, 2002.

Sec. 54-140. Display of permit.

All individuals conducting any activity for which a permit is required under this article and all permittees shall (1) immediately show the permit upon request of the city manager or any sworn law enforcement officer, and (2) prominently display the permit at all times while conducting any activity for which a permit is required under this article so that the permit is easily seen and not covered and so that the text of the permit can be read by the public without their having to ask to see it. The city manager may amend an already-issued permit to impose, as additional conditions of the permit, additional requirements respecting the posting of permits. Those amendments shall be effective on the fourth day after the notice of amendment is mailed to the permittee's address as stated in the permit application. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1982, § 17-101; Ord. No. 12730, § 1, 12-9-2002; Ord. No. 14355, § 9, 11-5-2012; Ord. No. 15982, § 170, 8-1-2022)

***Editor's note—**Inasmuch as former sections 54-107—54-109 have been repealed, and sections 54-110—54-113 have been moved to division 2 by way of Ord. No. 14355, adopted November 5, 2012, division 3, which formerly pertained to sales on street right-of way; permits, is reserved.

†**Editor's note—**Ord. No. 14355, § 1, adopted November 5, 2012, changed the title of division 4 from "Permits" to "Issuance, display, and termination of permits." The division title was subsequently affirmed by Ord. No. 14425, § 2, adopted April 1, 2013.

Sec. 54-141. Termination and revocation of permit; review of decisions.

(a) *Termination; grounds and procedure for revocation.* The city manager may, at any time, terminate any permit issued under this article and any special-event permit referred to in this article, excluding permits issued pursuant to section 66-430 and excluding permits issued solely to allow First Amendment protected sales, for reasons satisfactory to the city manager. In addition, the city manager may revoke any permit issued under this article and any special-event permit referred to in this article, excluding permits issued pursuant to section 66-430, if:

(1) The city manager finds fraud, misrepresentation, or knowingly false statement with respect to a material fact in the permit application;

(2) The city manager finds that the permittee or the permittee's agent or employee violated this article or the terms of the permit;

(3) The city manager finds that the permittee or the petmittee's agent or employee conducted an activity for which the permit is required in such a manner as to create a public nuisance, cause of a breach of the peace, violate any applicable law, or interfere with the rights of abutting property owners.

Without limiting the foregoing provisions of this section, the city manager may revoke a permit issued under section 54-110 upon finding that the public safety or the convenience of pedestrians is not served by the permit, and the city manager may revoke a permit issued under this article solely to allow First Amendment protected sales upon finding that the public safety is not served by the permit.

Except in case of emergency, before making the decision to terminate or revoke, the city manager shall give reasonable notice to the permittee and an opportunity to be heard. A permit may be revoked pursuant to this section even if the person making the findings pursuant to this section (the city manager or chief of police, as applicable) had made a contrary finding before the permit was issued, regardless of whether the facts upon which the finding is made had changed.

(b) *Notice.* The city manager shall cause a written notice of the revocation to be served on the permittee by first-class mail to the address shown on the permit application or by any method allowed by law for service of a summons in a civil action, provided that the person delivering the notice may be any person who is 18 years or older, including the city manager. The notice shall set forth a brief statement of the grounds for revocation and of the right to appeal.

(c) *Retention of fees; waiting period.* If the city revokes a permit, the city shall retain the fee paid for the permit. The person whose permit is revoked for grounds stated in subsection (a)(1) or (a)(2), regardless of whether additional grounds existed, shall not be issued a permit under the same section of this article for the remainder of the time for which the revoked permit had been issued or 30 days after the date of the revocation, whichever time period is

longer. The city manager shall use reasonable judgment in deciding whether two applicants are the same so that, for example, technical changes in the applicant, or where the applicant one year is the wife and the next year it is the husband, may be disregarded.

(d) *Review of decisions.* If the city manager denies the issuance of a permit, revokes a permit, issues a permit with terms deemed unacceptable to the permittee, or makes any other decision pursuant to this article with respect to a permit, the applicant or permittee may have that decision reviewed by filing a written request in the office of the city manager within ten days of the date of the notice of decision. The city manager or a person designated by the city manager for this purpose who is neither the person who made the decision complained of nor that person's subordinate, shall be named as the hearing officer to conduct a hearing in order to review the decision. The city manager shall cause a written notice of the time and place of the hearing to be given or sent to the person seeking review. The permittee and the city manager may appear in person or through counsel and may present evidence, provided, however, that the hearing officer shall have the authority to conduct the hearing in the manner and for the period of time that he or she deems appropriate to make a decision. The hearing officer may affirm, deny, or modify the decision complained of, and the hearing officer's decision shall be final. Failure to request a review within the time and in the manner provided for in this subsection shall constitute a waiver of the right of review. The permit may be used during the review process only if the city manager determines that its use would not constitute a substantial threat that the grounds described in subsection (a)(2), (a)(3), or (a)(4) will occur, re-occur, or continue during the review process.
(Code 1982, § 17-106; Ord. No. 12730, § 1, 12-9-2002; Ord. No. 14355, § 9, 11-5-2012; Ord. No. 14845, § 2, 10-19-2015)

Secs. 54-142—54-187. Reserved.

DIVISION 5. OTHER PROVISIONS

Sec. 54-188. Penalties for violations.

(a) *Assessment of civil penalties.* The city manager shall assess civil penalties for violation of this article, including the terms of a permit. The city manager shall give the offender written notice of the nature of the violation and the amount of the civil penalty. The notice shall be served by any method allowed by law for service of a summons in a civil action, provided that the person delivering the notice may be any person who is 18 years or older, including the city manager. The civil penalty shall be $200.00 per violation plus the costs incurred by the city resulting from the violation, including costs of removing litter.

(b) *Review of assessment of civil penalties.* Any person who has been assessed a civil penalty under this article may have that assessment reviewed by filing a written request in the office of the city manager within ten days of the date of service of the notice of the civil penalty. A person designated by the city manager for this purpose who is neither the person who assessed the civil penalty nor that person's subordinate shall be named as the hearing officer to conduct a hearing in order to review the assessment. The city manager shall cause

a written notice of the time and place of the hearing to be given or sent to the person seeking review. The person assessed the penalty and the city manager may appear in person or through counsel and may present evidence, provided, however, that the hearing officer shall have the authority to conduct the hearing in the manner and for the period of time that he or she deems appropriate to make a decision. The hearing officer may affirm, deny, or modify the decision complained of, and the hearing officer's decision shall be final. Failure to request a review within the time and in the manner provided for in this subsection constitutes a waiver of the right of review.

(c) *Collection of civil penalties.* If the offender does not pay the civil penalty within ten days after having been served with the notice of the civil penalty, the city manager may collect the civil penalties by causing to be commenced civil actions in the nature of debt. The city manager may compromise such claims, before or after commencement of the civil action, if the city manager finds there is a reasonable probability that the city will be unable to collect the entire amount of the claim, that the amount offered in compromise of the claim reasonably reflects either the amount of money available from the offender or the amount the city is likely to recover in the civil action, taking into account the resources required to pursue the civil action, and that the facts and circumstances of the events giving rise to the claim, taken as a whole, indicate that the amount offered in compromise is fair and reasonable. Using the foregoing standards, in an appropriate case, the city manager may abandon a claim.

(d) *Reserved.*

(e) *Available remedies.* This article and the provisions of permits issued under this article may be enforced by an appropriate equitable remedy, including abatement orders and mandatory or prohibitory injunctions, issuing from a court of competent jurisdiction. The general court of justice shall have jurisdiction to issue such orders as may be appropriate, and it shall not be a defense to the application of the city for equitable relief that there is an adequate remedy at law. In applying subsection 1-9(e), the city council intends that termination and revocation of a permit be considered to be remedies.
(Code 1982, § 17-109; Ord. No. 12730, § 1, 12-9-2002; Ord. No. 14355, § 9, 11-5-2012; Ord. No. 14845, § 5, 10-19-2015; Ord. No. 15982, § 171, 8-1-2022)

Sec. 54-189. Privilege license ordinance not affected; refund of privilege tax.

This article is separate from the privilege license ordinance. Whether a privilege license tax is required does not affect whether an activity is lawful under this article. However, if a privilege license tax is paid, and the only activity that the license permits is entirely prohibited by this article for the entire time period for which the privilege license tax applies, the city shall refund the privilege license tax paid.
(Code 1982, § 17-111; Ord. No. 12730, § 1, 12-9-2002; Ord. No. 14355, § 9, 11-5-2012)

Sec. 54-190. Cumulative requirements.

No provisions of the City Code, except those explicitly repealed or explicitly amended by the ordinance adopting this article, are repealed by this article. If any provision of this article allows an activity to occur but another provision of the City Code regulates or prohibits it, the more restrictive provision applies.
(Code 1982, § 17-112; Ord. No. 12730, § 1, 12-9-2002; Ord. No. 14355, § 9, 11-5-2012)

Sec. 54-191. Reservation of rights in city; other ordinances and N.C. DOT not limited.

(a) To the extent directed by the city, any person allowed to do any activity by this article or by a permit issued under this article shall promptly cease the activity and remove all property that the city deems to interfere with the purposes for which the direction is given. The city reserves the right to require any activity allowed by this article or by a permit issued under this article to cease in whole or in part, for any purpose, including:

(1) To allow for construction, maintenance, or repair of any street, sidewalk, utility, building, or facility;

(2) To allow for use of a public street, sidewalk, utility, building, or facility in connection with parades, festivals, or other events;

(3) To remedy a nuisance; or

(4) To protect or promote the public health, safety, or welfare.

(b) To the extent directed by the city, any person allowed to do any activity by this article or by a permit issued under this article shall promptly cease the activity and remove all property that the city deems to interfere with the purposes for which the direction is given.

(c) In case of emergency, danger to property, or detriment, danger, or hazard to public health, safety, or welfare, the city manager may, orally or in writing, order a seller or salesperson to immediately move such distance as the city manager specifies, and to cease acts determined by the city manager to contribute to the emergency, danger, detriment, or hazard. Upon receiving such order, the seller or salesperson shall comply. When such an order is not complied with (including because the seller or salesperson is not readily found), the city manager may cause objects in violation of the order to be removed, disposed of, or both, and the cost of such actions shall be borne by the offender. This subsection shall not be construed to limit subsection (a).

(d) Nothing in this division shall be construed to limit any other ordinance, including section 38-22 (parking in city parks), section 66-108 (driving over curbs, gutters or sidewalks at places other than those constructed and designed for traffic), section 66-109 (driving on sidewalk), section 66-116 (operation in public parks), and those imposing parking restrictions. Nothing in this division shall be construed to limit the authority of the N.C. Department of Transportation over rights-of-way under its jurisdiction.

(e) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1982, § 17-113; Ord. No. 12730, § 1, 12-9-2002; Ord. No. 14355, § 9, 11-5-2012; Ord. No. 15982, § 172, 8-1-2022)

Editor's note—Ord. No. 14355, § 9, adopted November 5, 2012, changed the title of section 54-191 from "Reservation of rights" to "Reservation of rights in city; other ordinances and N.C. DOT not limited." The historical notation has been preserved for reference purposes.

Sec. 54-192. Severability.

By way of example in applying section 1-8, if this article is invalid as to a particular portion of a street right-of-way, it shall still be valid as to the remaining street right-of-way. This section shall not be construed to limit section 1-8.

Secs. 54-193—54-214. Reserved.

ARTICLE III. MASSAGE THERAPY

Sec. 54-215. Scope and purpose.

To protect the public health, safety and welfare, the following license provisions and regulations are ordained for the privilege of carrying on the business, trade, or profession of massage therapy. The provisions of this article shall not apply to a regularly established and licensed hospital, sanitarium, nursing home, nor to an office or clinic operated and regularly used by a duly qualified and licensed medical practitioner, osteopath, or chiropractor in connection with the practice of medicine, chiropractic, or osteopathy.
(Code 1982, § 12-52; Ord. No. 10973, § 3, 11-18-1996)

Sec. 54-216. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Business or profession of massage therapy includes the massage or treatment of any person for a fee or other compensation from the person treated.

Massage or *massage therapy* means any form of manipulation of the muscles, skin or other soft tissues of the body, by kneading, stroking, pressing, tapping or movement of extremities, whether applied manually or assisted by mechanical device.

Massage therapist means any person, whether male or female, who is engaged in the practice of massage therapy, and who receives compensation for his or her services.

Massage therapy establishment means any business or establishment wherein massage therapy is offered, including establishments commonly known as health clubs, physical culture studios, massage clinics, or similar establishments by whatever name is designated. (Code 1982, § 12-53; Ord. No. 10973, § 3, 11-18-1996)

Sec. 54-217. Licensing of massage therapy establishments.

(a) No person shall operate a massage therapy establishment as herein defined unless such person shall have first applied for and received the license provided by this section.

(b) Every application for the license prescribed herein shall be upon a form approved by the city manager and shall be filed with the city clerk. Every such application shall be made under oath and shall contain the following information:

(1) If the applicant is a person, the name and residence address of such person. If the applicant is a partnership, corporation or association, the name and residence address of each person having any legal or beneficial interest in such applicant;

(2) The address of the premises where the massage therapy establishment shall be located;

(3) A complete statement of all convictions of any person whose name is required to be given in subsection (b)(1) of this section for any felony or prostitution or any violation of the law relating to prostitution;

(4) A complete statement of any revocation, by any governmental unit, of any license to operate a massage therapy establishment or to engage in the business or profession of massage therapy held by any person whose name is required to be given in subsection (b)(1) of this section;

(5) A complete statement of any conviction of any person whose name is required to be given in subsection (b)(1) of this section; for violation of any statute, law, ordinance or regulation of any government concerning the operation of a massage therapy establishment or the business or profession of massage therapy;

(6) The name and address of any massage therapy establishment or other establishment owned or operated by any person whose name is required to be given in subsection (b)(1) of this section wherein the business or profession of massage therapy takes place; and

(7) A description of any other business to be operated on the same premises or on adjoining premises owned or controlled by the applicant.

(c) The city clerk shall transmit a copy of the application to the police department for an investigative report; to the city-county inspections department to determine compliance with all zoning and building regulations and ordinances; and the fire department to determine compliance with any law relating to fire protection. These departments shall, within a reasonable time, not to exceed 30 days, report the results of their examinations to the city clerk.

(d) An application in proper form, accompanied by all reports required by this section, shall be submitted to the city manager, who shall approve such application if the city manager determines that:

(1) The application contains no misstatement of fact;

(2) The applicant, or any person having any legal or beneficial ownership interest in the applicant is over the age of 18 years and has not been convicted of any crime involving sexual misconduct, including, but not limited to, G.S. 14-177 through G.S. 14-202.1 (Article 26, Offenses Against Public Morality and Decency) and G.S. 14-203 through G.S. 14-208 (Article 27, Prostitution), of section 46-172, or of any federal statute relating to prostitution, or of any violation of any law or ordinance of any governmental unit concerning or related to the business or profession of massage therapy;

(3) The proposed establishment conforms to all requirements of applicable zoning, building, and fire prevention codes; and

(4) The applicant or any person having a legal or beneficial ownership interest in the applicant has not, for the three-year period preceding the application, had a previously issued license for engaging in the business or profession of massage therapy revoked.

(e) Upon approval of the application by the city manager, the collector of revenue shall issue a license to applicant.

(f) A license issued pursuant to this section shall be revoked by action of the city council if the city council determines that:

(1) The licensee has violated any provision of this article including the provisions of section 54-220;

(2) The licensee, or any agent of the licensee, permits any person to perform massage therapy on the premises of the applicant's massage therapy establishment or employs any person to practice the business or profession of massage therapy who has not been issued the license required by section 54-218, or whose license under section 54-218 has been revoked;

(3) The licensee, or the legal or beneficial owner of any interest in the licensee, is convicted of any crime involving sexual misconduct, including the laws indicated in subsection (d)(2) of this section;

(4) Any employee of the licensee is convicted of any felony in connection with his or her employment, or is convicted of any crime involving sexual misconduct, including the laws indicated in subsection (d)(2) of this section; or

(5) The licensee violates any zoning, building, or fire prevention ordinance.

(g) A license issued pursuant to this section is void if the licensee moves or ceases operating a massage therapy establishment at the location required to be stated in the application for license pursuant to subsection (b)(2) of this section.

(h) Any person whose application for a license is denied by the city manager pursuant to subsection (d) of this section may appeal from such decision to the city council. An appeal is taken by filing written notice of such appeal with the city clerk within ten days following the date of the decision. The city council shall set the appeal for hearing in the manner provided by section 54-222. The city council may affirm or reverse the city manager's decision.

(i) A license issued pursuant to this section and a license issued pursuant to section 54-218 is required when a person offers massage therapy in his or her own home to clients. A license issued pursuant to section 54-218 is required when a person offers massage therapy solely on an outcall basis.

(j) In addition to any other remedy available in the Code, operating a massage therapy establishment without a license as required by this section may subject the offender to a civil penalty assessed and collected in accordance with the provisions set forth in section 54-188(a) through (c).

(Code 1982, § 12-54; Ord. No. 10973, § 3, 11-18-1996; Ord. No. 13574, Pt. 1, 4-7-2008; Ord. No. 15982, § 173, 8-1-2022)

Sec. 54-218. Licensing of massage therapists.

(a) No person shall engage in the business or profession of massage therapy unless such person shall have first applied for and received the license provided by this section.

(b) Applicants must be at least 18 years of age and must satisfy at least one of the following requirements:

(1) The applicant must have graduated from an institute or school of massage therapy and completed at least 500 hours of supervised classroom instruction. The institute or school must have been:

a. Licensed by the North Carolina Department of Community Colleges or the equivalent educational licensing authority of another state;

b. Accredited by an accreditation commission which is recognized by the United States Department of Education; or

c. Designated as curriculum-approved by the American Massage Therapy Association - Commission on Massage Training Approval/Accreditation; or

(2) The applicant is presently nationally certified in therapeutic massage and bodywork by the National Certification Board for Therapeutic Massage and Bodywork.

(c) The application for the license required by this section shall be upon a form approved by the city manager and shall be filed with the city clerk. Such application shall be given under oath and shall contain the following information:

(1) The name, age, and residence address of the applicant;

(2) A complete statement of the previous business or occupation of the applicant for the two years immediately preceding the date of application, including any massage therapy establishment experience;

(3) A complete statement of all convictions of the applicant for any felony or misdemeanor or violation of a local ordinance;

(4) A complete statement of any revocation of any license granted by any governmental unit to the applicant to engage in the business or profession of massage therapy;

(5) The date and place of applicant's birth, the names of applicant's parents and the residence address or addresses of the applicant for the five years immediately preceding the date of application; and

(6) A diploma or certificate of graduation and official transcript from an institute or school described in subsection (b)(1) of this section; or a valid certificate from the National Certification Board for Therapeutic Massage and Bodywork.

(d) The applicant shall submit, as part of the application required in subsection (b) of this section, the following:

(1) Fingerprints of the applicant taken by the police department; and

(2) Two recent photographs of the applicant's head and shoulders, of a size and quality prescribed by the city manager.

The additional information required by this subsection shall be provided at the applicant's expense. The additional information specified in subsections (d)(1) and (d)(2) of this section need not be furnished with subsequent applications to renew the license.

(e) The city clerk shall transmit a copy of the application to the police department for an investigative report. The police department shall, within a reasonable time, not to exceed 30 days, report the results of its investigation to the city clerk.

(f) An application in proper form shall be submitted to the city manager together with the police department's report required by this section. The city manager shall approve such application if the city manager determines:

(1) That the applicant is at least 18 years of age;

(2) The application contains no misstatement of fact;

(3) The applicant has not been convicted of any crime involving sexual misconduct, including sections of North Carolina General Statutes cited in section 54-217(d)(2) or of section 46-172, or of any federal statute relating to prostitution, or for violation of any law or ordinance of any governmental unit concerning or related to the business or profession of massage therapy;

(4) The applicant has not, for the three-year period preceding the application had a previously issued license for engaging in the business or profession of massage therapy revoked; and

(5) The applicant has not been previously convicted of any violation of any provision of this article.

(g) Upon approval of the application by the city manager, the collector of revenue shall issue a license to the applicant.

(h) The city council shall have authority to direct that any person licensed under this section submit to a medical examination by a licensed physician approved by the city council. This authority shall be exercised only when the council has reason to believe that any such person has contracted a communicable disease. Refusal to submit to such examination shall be grounds for revocation of such license as provided in subsection (i) of this section.

(i) A license issued pursuant to this section shall be revoked by action of the city council if the city council determines:

(1) The licensee has violated any provision of this article;

(2) The licensee is afflicted with a communicable disease;

(3) The licensee has failed to be examined by a licensed physician when required by the city council pursuant to subsection (h) of this section;

(4) The licensee has been convicted of a felony or any crime involving sexual misconduct, including sections of North Carolina General Statutes referred to in subsection (f)(3) of this section, or of violating section 46-172, or under any federal statute relating to prostitution, or for violation of any laws or ordinance of any governmental unit related to the business or profession of massage; or

(5) The licensee allows the use of his or her license by another person.

(j) Any person whose application for a license is denied by the city manager pursuant to subsection (i) of this section may appeal from such decision to the city council. An appeal is taken by filing written notice of such appeal with the city clerk within ten days following the date of the decision. The city council shall set the appeal for hearing in the manner provided by section 54-222. The city council may affirm, modify or reverse the city manager's decision.

(k) In addition to any other remedy available in the Code, engaging in the business or operation of massage therapy without a license as required by this section may subject the offender to a civil penalty assessed and collected in accordance with the provisions set forth in section 54-188(a) through (c).

(Code 1982, § 12-55; Ord. No. 10973, § 3, 11-18-1996; Ord. No. 13574, Pt. 1, 4-7-2008; Ord. No. 15982, § 174, 8-1-2022)

Sec. 54-219. Temporary licenses.

(a) The city manager is authorized to issue a temporary license to any person who has filed an application for a license under section 54-217 or section 54-218, whenever the city manager finds:

(1) That the appropriate application for a license has been filed in the manner prescribed by this article;

(2) That one or more of the departmental reports required by section 54-217(c) or the report of the police department required by section 54-218(e) has not been received in a timely manner; and

(3) That after due inquiry satisfactory to the city manager, there is no reason to believe that the application will not be approved.

(b) A temporary license, issued pursuant to this section, is void when the application is either approved or denied by the city manager. A temporary license may be withdrawn by the city manager if the city manager finds that any of the conditions prescribed in subsection (a) of this section are no longer met. A temporary license shall be on a form prescribed by the city manager.
(Code 1982, § 12-56; Ord. No. 10973, § 3, 11-18-1996)

Sec. 54-220. Employer to use only licensed employees.

No person licensed under section 54-217 shall allow or permit any person to massage or treat any person upon the premises operated by the licensee or in any other location under the licensee's authority or at the licensee's direction unless the person giving such massage or treatment has obtained a license pursuant to section 54-218 and such license is then valid. Violation of this section shall be grounds for revocation of the license issued to such violator pursuant to this article.
(Code 1982, § 12-57; Ord. No. 10973, § 3, 11-18-1996)

Sec. 54-221. Posting of license.

(a) Every massage therapist shall post the license required by this article in his or her work area at all times, provided, however, the requirements of this section are satisfied by the posting of a photocopy of the license when the massage therapist is performing outcall massage therapy.

(b) Every person licensed under section 54-217 shall display such license in a prominent place in the licensed massage therapy establishment.

(c) The provisions of this section apply to temporary licenses issued under section 54-219.

(d) In addition to any other remedy available in the Code, violation of any provision of this section may subject the offender to a civil penalty assessed and collected in accordance with the provisions set forth in section 54-188(a) through (c).
(Code 1982, § 12-58; Ord. No. 10973, § 3, 11-18-1996; Ord. No. 15982, § 175, 8-1-2022)

Sec. 54-222. Notice and hearing.

Before the city council revokes a license issued pursuant to this article, or if an appeal is taken, pursuant to section 54-217(h) or section 54-218(j), from a decision of the city manager denying an application for a license, the city council shall cause a written notice to be sent by certified mail to the licensee affected or applicant affected, at the address stated in the license or application. This notice shall advise the affected party of a right to appear before

the city council, with or without legal counsel, at a stated time and place, for the purpose of presenting any evidence relevant to such revocation or denial, and for the purpose of hearing all evidence submitted and examining or cross-examining any person providing such evidence.
(Code 1982, § 12-59; Ord. No. 10973, § 3, 11-18-1996)

Sec. 54-223. License annual.

The licenses required under this article are annual licenses. Such licenses shall be due in the same manner as prescribed for privilege licenses issued by the city pursuant to the license and privilege tax ordinance of the city.
(Code 1982, § 12-60; Ord. No. 10973, § 3, 11-18-1996)

Sec. 54-224. Grandfather provisions.

Any person, who is 18 years of age or older, who, on November 18, 1996, is licensed by the city to engage in the business of massage therapy, shall be exempt from the education and certification requirements of section 54-218, for so long as the license is kept in continuous effect by renewals thereof. The exemption provided by this section ends if the license lapses or is revoked.
(Code 1982, § 12-61; Ord. No. 10973, § 3, 11-18-1996)

Sec. 54-225. Severability.

Without limiting section 1-8, all requirements of this article that are inconsistent with G.S. 90-620 et seq. or G.S. 105-41 are void.
(Code 1982, § 12-61.1; Ord. No. 10973, § 3, 11-18-1996)

Secs. 54-226—54-240. Reserved.

ARTICLE IV. PAWNBROKERS; JUNK AND SECONDHAND GOODS DEALERS

Sec. 54-241. Definition.

For the purpose of this article, "junk" shall mean any worn out or discarded metal, old iron, other metals, automobile parts, chain, copper, parts of machinery, bottles, rags, tallow, hides, worn out automobile tires, and other articles commonly known as junk.
(Code 1964, § 14-2; Code 1982, § 17-20)

Sec. 54-242. Corporate officer information.

Any corporation engaged in the business of pawnbroker, junk dealer or secondhand goods dealer shall file and maintain with the collector of revenue a current and accurate statement

under oath setting forth the officers of such corporation. Failure to file and keep current such statement shall be sufficient cause for revocation of the license of such pawnbroker, junk dealer or secondhand goods dealer.
(Code 1964, § 14-1(b); Code 1982, § 17-21)

Sec. 54-243. Record of purchases; inspection of articles.

Persons engaged in the business of buying or dealing secondhand goods, wares and merchandise, including junk dealers and pawnbrokers, shall record in a book kept for that purpose each article purchased or pawned and the name, race, residence and occupation of the seller or pawner. Such records shall contain a full description of such articles and show all distinguishing marks, numbers, brands, letters or monograms of any kind on such articles. Every article so purchased or pawned shall remain at such place of business of such dealer open to inspection for at least five days before being moved or otherwise disposed of. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 14-4; Code 1982, § 17-22; Ord. No. 15982, § 176, 8-1-2022)

State law references—Failure of junk dealers to keep record of purchases a misdemeanor, G.S. 66-10; pawnbroker records required, G.S. 91-4.

Sec. 54-244. Daily reports.

Every person engaged in the business of buying or dealing in secondhand goods, wares, and merchandise, including junk dealers and pawnbrokers, shall, on every business day before 10:00 a.m., report to the police department, a list and description of all secondhand goods, wares, merchandise and all items of personal property received, acquired or loaned on during the preceding day, and a description of the person of whom received, including race, sex, place of residence and occupation. Such daily list shall be signed and dated by the person conducting such business, and, in the case of junk dealers and pawnbrokers, shall be signed by the person in whose name the pawnbroker or junk dealer license was issued. In the case of a corporate licensee, such daily list shall be signed by a duly authorized officer or agent of such corporation. If no such property was received, acquired or loaned upon during a business day, the daily list shall be returned marked "none." If a secondhand dealer, junk dealer or pawnbroker shall not be open for business on any weekday, such person shall return the daily list for such day marked "not open for business." In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 14-1(a); Code 1982, § 17-23; Ord. No. 15982, § 177, 8-1-2022)

Sec. 54-245. Sale of secondhand clothing rummage sales.

Any person engaged in the business of selling secondhand clothing, shoes, hats and like articles, shall first obtain a permit from the board of health, and comply with such rules and regulations as the board of health may adopt in connection with such business; provided, however, no rummage sale or sale of secondhand clothing, shoes, hats and like articles shall

be made and no display of such articles shall be permitted upon any street or sidewalk of the city. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 17-1; Code 1982, § 17-24; Ord. No. 15982, § 178, 8-1-2022)

Sec. 54-246. Permit to deal in junk.

Any person now engaged in or proposing to engage in the business of buying, selling or handling, storing or hauling any junk, as defined in section 54-241, shall make a written application to the chief of police for a permit, which application shall state the place where such business is conducted or is to be conducted and shall be signed by five residents of the city, vouching for the good character of the applicant. Such written application shall, by proper endorsement thereon, be approved by the board of health, showing that such place of business complies with the regulations of the board of health. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 14-3; Code 1982, § 17-25; Ord. No. 15982, § 179, 8-1-2022)

State law reference—Purchases from minors, G.S. 66-11.

Secs. 54-247—54-260. Reserved.

ARTICLE V. AGGRESSIVE BEGGING

Sec. 54-261. Begging or soliciting alms or contributions.

(a) Definitions:

Accosting another person means approaching or speaking to someone in such a manner as would cause a reasonable person to fear imminent bodily harm or the commission of a criminal act or damage to property in his or her immediate possession.

Forcing oneself upon the company of another person means:

(1) Continuing to request or solicit alms or contributions in close proximity to the person addressed after that person has responded negatively;

(2) Blocking the passage of the person addressed; or

(3) Otherwise engaging in conduct that reasonably could be understood as intended to force a person to accede to demands.

Public place includes streets, sidewalks, alleys, and other public property, as well as city-owned and city-controlled property and private property held open to the public unless permission to solicit has been obtained from the city or from the private property owner or other person in authority.

To beg or solicit alms or contributions includes the spoken, written, or printed word or such other acts as are conducted in furtherance of the purpose of obtaining alms or contributions.

(b) It shall not be unlawful to beg or solicit alms or contributions except when performed in the following manner:

(1) In a public place by accosting another person or forcing oneself upon the company of another person;

(2) Within 20 feet of an entrance or exit of any bank or financial institution or within 20 feet of any automated teller machine;

(3) In any public transportation vehicle owned or operated by the city or at any terminal or station for such vehicle or within six feet of a stop for such vehicle; or

(4) In a public place during the time period that begins 20 minutes after sunset and ends 20 minutes before sunrise. For purposes of enforcement of this section, the terms "sunrise" and "sunset" shall be determined by and based on the times for those events published daily by the U.S. Naval Observatory Astronomical Applications Department.

(c) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1982, § 12-28; Ord. No. 10186, § 1, 6-20-1994; Ord. No. 11950, § 1, 4-3-2000; Ord. No. 12948, § 1, 6-10-2004; Ord. No. 15982, § 180, 8-1-2022)

ARTICLE VI. CONTACT WITH AND INTRUSION INTO OCCUPIED VEHICLES ON ROADWAYS

Sec. 54-262. Purpose.

This article is intended to reduce the fear and intimidation that persons in motor vehicles feel when someone touches or intrudes into the vehicle without invitation or consent.

(Ord. No. 14581, § 1, 2-20-2014)

Sec. 54-263. Definitions.

The definitions in section 54-26 for the following words are incorporated: occupant, motor vehicle, roadway, and tangible thing.

Enclosed vehicle means a motor vehicle, excluding every vehicle designed to run upon the streets that is pulled by a self-propelled vehicle.

(Ord. No. 14581, § 1, 2-20-2014)

Sec. 54-264. Contact with and intrusion into occupied motor vehicle.

It is unlawful for a pedestrian to place a tangible thing or any part of his or her body on or inside an occupied enclosed vehicle that is on the roadway. This section is not intended to repeal or affect any other provision in this Code or any authority to act provided for by any other provision in this Code. This section does not apply:

(1) If the pedestrian has a right to possess, occupy, or use the vehicle, or the consent of a person with a right to possess, occupy, or use the vehicle;

(2) If the pedestrian has an ownership interest in the vehicle, or the consent of a person with an ownership interest in the vehicle;

(3) If an occupant requests that the pedestrian take that action or consents to the taking of the action; or if an occupant requests that the pedestrian deliver the tangible thing to an occupant or consents to such delivery; or if an occupant requests that the pedestrian receive a tangible thing from an occupant or consents to receiving it;

(4) To the following persons while engaged in the performance of their respective occupations:

a. Persons authorized by a governmental person to take the action; or

b. Firefighting personnel, law enforcement personnel, EMS personnel, health care workers or providers, military personnel, civil preparedness personnel, emergency management personnel, or emergency management workers (defined by G.S. 166A-19.60(e));

(5) To the extent that firefighting personnel, law enforcement personnel, EMS personnel, health care workers or providers, military personnel, civil preparedness personnel, emergency management personnel, or emergency management workers (defined by G.S. 166A-19.60(e)) direct otherwise for the purpose of promoting safety of persons or property or to address an emergency; or

(6) To actions taken in response to an emergency.

In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 14581, § 1, 2-20-2014; Ord. No. 15982, § 181, 8-1-2022)

ARTICLE VII. SOCIAL DISTRICTS

Sec. 54-265. Purpose and intent.

(a) Pursuant to the provisions of G.S. § 160A-205.4, et seq, a municipality may, by ordinance, designate one or more social districts within the city for use in accordance with N.C.G.S. § 18B-300.1. The social district(s) established by the city are described herein, along with the days and hours or operation.

(b) The social districts shall be created, designated, and managed in accordance with the requirements contained in G.S. § 160A-205.4 and Chapter 18B.

(c) To the extent required by applicable State law, any portion of a social district described within this article that overlaps with a premises subject to a permit for on-premises consumption of alcohol issued by the North Carolina Alcoholic Beverage Control Commission for a special event shall be suspended during the event to the extent the social district and the permitted premises are in conflict.

(d) The city shall establish and approve a management and maintenance plan for each established and designated social district. The plans are to be maintained and posted, along with a rendering of the boundaries of the social district and days and hours during which alcoholic beverages may be consumed in the social district on the city's website.
(Ord. No. 16033, § 1, 10-17-2022)

Sec. 54-266. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Non-permittee means and refers to a business that is located in a social district and does not hold any ABC permit.

Open container means any alcoholic beverage where the seal of the original manufacturer container is broken or an alcoholic beverage that is possessed in a container other than the unopened manufacturer's container.

Permittee means and refers to an establishment holding any of the following ABC permits issued by the North Carolina Alcoholic Beverage Control Commission:

(1) An on-premises malt beverage permit issued pursuant to G.S. 18B-1001(1).

(2) An on-premises unfortified wine permit issued pursuant to G.S. 18B-1001(3).

(3) An on-premises fortified wine permit issued pursuant to G.S. 18B-1001(5).

(4) A mixed beverages permit issued pursuant to G.S. 18B-1001(10).

(5) A wine shop permit issued pursuant to G.S. 18B-1001(16)

(6) A distillery permit issued pursuant to G.S. 18B-1100(5).

Person means and refers to an individual, firm, partnership, association, corporation, limited liability company, other organization or group, or other combination of individuals acting as a unit.

Premises means and refers to a fixed permanent establishment, including all areas inside or outside the permitted establishment, where the permittee has control through a lease, deed, or other legal process.

Social district means and refers to a defined outdoor area in which a citizen may consume alcoholic beverages sold by a permittee.
(Ord. No. 16033, § 1, 10-17-2022)

Sec. 54-267. Established and designated social districts.

(a) The social districts shall be created, designated, and managed in accordance with the requirements contained in G.S. § 160A-205.4 and Chapter 18B.

(1) Downtown Durham Social District. The Downtown Durham Social District shall be established and is designated as shown on a map dated ; the map is available in the office of the city clerk, and signage and/or markings shall be posted clearly delineating the boundaries of the social district. The days and hours of operation of this social district shall be between the hours of 11:00 a.m. and 10:00 p.m.. Monday through Sunday, seven days a week. At all other times, the provisions and terms contained in this article are not in effect and all provisions of state and local laws concerning the possession and consumption of alcohol shall be in full force and effect.

(b) Any person who violates this section and any person who aids, abets, encourages, assists in, or contributes to a violation of this section shall be punishable as an infraction pursuant to N.C.G.S. § 14-3.1 the procedure for disposition of infractions is as provided in Chapter 15A Article 66 of the North Carolina General Statues.
(Ord. No. 16033, § 1, 10-17-2022)

Sec. 54-268. Application.

(a) The social districts shall operate during the hours and days provided within this article. At all other times, the provisions and terms contained in this article are not in effect and all provisions of state and local laws concerning the possession and consumption of alcohol shall be in full force and effect.

(b) Any alcoholic beverage purchased for consumption in the social district shall (i) only be consumed in the social district and (ii) be disposed of before the person in possession of the alcoholic beverage exits the social district unless the person is reentering the licensed premises where the alcoholic beverage was purchased.

(c) Any person who violates this section and any person who aids, abets, encourages, assists in, or contributes to a violation of this section shall be punishable as an infraction pursuant to N.C.G.S. § 14-3.1 the procedure for disposition of infractions is as provided in N.C.G.S. Chapter 15A Article 66.
(Ord. No. 16033, § 1, 10-17-2022)

Sec. 54-269. Requirements for permittee and non-permittee participation in the social districts.

(1) A permittee located in or contiguous to the social district may sell alcoholic beverages for consumption within the social district it is located in or contiguous to in accordance with the following requirements, in accordance with N.C.G.S. § 18B-300.l:

(a) The permittee shall only sell and serve alcoholic beverages on its licensed premises;

(b) The permittee shall only sell alcoholic beverages for consumption in the social district for which they are located, in a container that meets the following requirements:

(i) The container clearly identifies the permittee from which the alcoholic beverage was purchased.

(ii) The container clearly displays a logo or some other mark that is unique to the social district in which it will be consumed.

(iii) The container is not comprised of glass.

(iv) The container displays, in no less than 12-point font, the statement, "Drink Responsibly - Be 21."

(v) The container shall not hold more than 16 fluid ounces.

(c) Nothing in this section shall be construed to authorize the sale and delivery of alcoholic beverages without proper license to be obtained by the permittee from the North Carolina Alcoholic Beverage Control Commission.

(2) Each permittee and non-permittee located within an established and designated social district and voluntarily wishes to participate shall display a uniform sign, provided by the city or its designee, indicating its inclusion in the social district, and allows alcoholic beverages on its premises when the social district is active. No business shall be required to participate or be included in the social district or to allow customers to bring alcohol onto its premises.

(3) Any person who violates this section and any person who aids, abets, encourages, assists in, or contributes to a violation of this section shall be punishable as an infraction pursuant to N.C.G.S. § 14-3.1 the procedure for disposition of infractions is as provided in N.C.G.S. Chapter 15A Article 66.
(Ord. No. 16033, § 1, 10-17-2022)

Sec. 54-270. Requirements for possession and consumption of alcoholic beverages within a social district.

(1) The possession and consumption of an alcoholic beverage in an established and designated social district is subject to all of the following requirements:

(a) Only alcoholic beverages purchased from a permittee located in or contiguous to the social district may be possessed and consumed in the social district.

(b) Open container alcoholic beverages purchased in the social district shall only be in the containers meeting the requirements set in section 54-266 above. Except for open containers sold by a permittee for consumption on the permittee's premises.

(c) Open container alcoholic beverages shall only be possessed and consumed during the days and hours set for in section 54-267 of this article for the social district in which the beverage was purchased from the participating permittee.

(d) Nothing in this subdivision shall be construed as authorizing the sale and delivery of alcoholic beverage drinks in excess of the limitation set for in N.C.G.S § 18B-1010.

(e) All open container alcoholic beverages purchased within the social district shall be disposed prior to a person exciting the social district boundaries, unless the person is reentering the licensed premises where the alcoholic beverage was purchased.

(2) As authorized by and subject to the limitations of N.C.G.S. § 18B-300.1 (f), a permittee or non-permittee business may allow a person to possess and consume on the business's premises alcoholic beverages purchased from a permittee in the social district.

(3) Any person who violates this section and any person who aids, abets, encourages, assists in, or contributes to a violation of this section shall be punishable as an infraction pursuant to N.C.G.S. § 14-3.1 the procedure for disposition of infractions is as provided in N.C.G.S. Chapter 15A Article 66.
(Ord. No. 16033, § 1, 10-17-2022)

Sec. 54-271. Consumption and possession of alcoholic beverages on city property or public vehicular areas.

(1) Except as provided by this article, it shall be unlawful for any pedestrian to consume malt beverages or unfortified wine on any city street and it shall be unlawful for any person to possess an open container of malt beverages or unfortified wine on property owned, occupied, or controlled by the city.

(2) It shall be unlawful to possess malt beverages and unfortified wine on any street, alley, or parking lot which is temporarily closed to regular traffic for a special event unless the permit provides other provisions for the possession of malt beverage and unfortified wine.

(3) Notwithstanding the above, the provisions of this section shall not be applicable to any streets or sidewalks located within a social district during the hours or operation of the social district. The provision of this section shall remain applicable for any property owned, occupied, or controlled by the city that is located within a social district unless that property has been designated by the city as eligible for the consumption of alcohol under the rules of the social district and applicable State Law.

(4) Any person who violates this section and any person who aids, abets, encourages, assists in, or contributes to a violation of this section shall be punishable as an infraction pursuant to N.C.G.S. § 14-3.1 the procedure for disposition of infractions is as provided in N.C.G.S. Chapter 15A Article 66.
(Ord. No. 16033, § 1, 10-17-2022)

Sec. 54-272. Exceptions.

When a special event held pursuant to the issuance of a special event permit, issued by the city, the terms of the special event permit supersede the provisions of this article within the boundaries of the special event. Any alcoholic beverages purchased within the boundaries of

the special event may not be taken outside the special event boundary, even if the alcoholic beverage is to be taken from the boundary of the special event into the boundary of a social district.

(Ord. No. 16033, § 1, 10-17-2022)

Sec. 54-273. Enforcement.

(1) (a) *Infraction*. Any person who violates this article and any person who aids, abets, encourages, assists in, or contributes to a violation of this article shall be punishable as an infraction pursuant to N.C.G.S. § 14-3.1 the procedure for disposition of infractions is as provided in N.C.G.S. Chapter 15A Article 66.

(b) *Civil penalty.* A permittee or non-permittee who violates or fails to comply with the provision of this article shall be subject to a civil penalty. The civil penalty of $250.00 per day shall be assessed and each day that the violation continues shall constitute a separate offense, not exceed a cumulative amount of $2,000.00.

(c) *Notice.* The special events office of the parks and recreation department shall serve written notice of any violation of this article to the offender.

(d) *Appeal*. Any offender so assessed a violation under this article shall have the right to appeal upon serving written notice of appeal on the director within ten days of issuance of the notice of violation.

(Ord. No. 16033, § 1, 10-17-2022)

Chapters 55—57

RESERVED

Chapter 58

SOLID WASTE COLLECTION AND DISPOSAL*

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ARTICLE I. IN GENERAL

Sec. 58-1. Definitions.

For the purposes of this chapter, the following terms shall have the meanings respectively ascribed to them:

Ashes means the residue from the burning of wood, coal, coke and other combustible material in homes, stores, institutions and small commercial establishments and industrial plants, which are produced as the result of heating, cooking and disposing of combustible waste material. Ashes are usually composed of a mixture of fine powdery residue, some cinders and clinkers and small portions of unburned or partially burned fuel or other material. At times ashes might include small quantities of glass, crockery, sweepings, dust, metal, brick and other inorganic materials. Ashes will also include residue from household refuse incinerators and from yard rubbish burners as well as the remains from burning leaves and yard rubbish in open fires. Cinders and clinkers include large residue from the burning of coal and coke as produced from larger furnaces such as steam-generator plants or large heating furnaces.

Building rubbish means waste material resulting from construction, remodeling, repairs and demolition operations on houses, commercial buildings and other structures, including driveways and walks, and it comprises waste and rejected matter such as excavated earth, stones, bricks, plaster, wallpaper, sheetrock and lathes, lumber, shingles, tile, concrete and waste parts occasioned by the installation or replacement of plumbing, heating systems, electrical work and roofing.

Chapter, when used in any article in this chapter, refers to those provisions of this chapter.

Combustible rubbish means any burnable materials such as paper, rags, cartons, cardboard and wooden boxes, wood, excelsior wood, furniture, bedding, leather, rubber, tree branches, yard trimmings, sawdust, leaves, linoleum, plastics and the like.

Department means the department of solid waste management or its administrative successor.

Director means the director of the department or his or her designee.

Disposal area means the area where refuse is unloaded from collection trucks, either a landfill, rubble landfill, compost facility or a transfer station.

Garbage means the animal and vegetable waste resulting from the handling, preparation, cooking and serving of foods; garbage being composed largely of putrescible organic matter and its natural moisture content and originating primarily in home kitchens, stores, markets, restaurants, hotels, hospitals, or other places where food is stored, prepared or served. The term "garbage" shall not include liquid that may be drained into the sewer.

Household trash means any waste accumulation of paper, sweepings, dust, rags, bottles, discarded toys, small appliances, cans or other material of similar kind other than garbage, which is usually attendant to housekeeping.

Industrial refuse means solid waste materials, from factories, processing plants, wholesale establishments, assembling plants or shops and garages, such as: paper, cardboard, cartons, food processing wastes, cinders and ashes, lumber scraps, sawdust, excelsior, shavings, floor sweepings, metal scrap and shavings, glass and other waste products.

Litter means any discarded or abandoned, used or unconsumed substance or waste, including, but not limited to: garbage, trash, refuse, debris, rubbish, lawn and garden waste, newspaper, magazines, glass, metal, plastic or paper containers or other packaging, construction debris, motor vehicle parts, furniture, oil and dead animals.

Noncombustible rubbish means materials such as metals, tin cans, metal furniture, dirt, glass, crockery, ashes and cinders mineral matter, etc., that will not burn in the incinerator at the ordinary operating temperatures of from 1,250 degrees to 2,000 degrees Fahrenheit.

Person in default means a person required by state law, this Code, resolution of council, department policy, or as ordered by a court of competent jurisdiction, to perform or not to perform an act, and who fails to comply with that requirement.

Recyclables means materials that can be converted into component materials for the manufacture of new products.

Refuse means all classifications of solid waste, and shall include garbage, rubbish, ashes, cinders, street refuse, dead animals, abandoned automobiles and industrial refuse. Refuse derives from such places as homes, hotels, institutions, stores, restaurants, markets, wholesalers, processing plants, factories, shops, garages, office buildings, streets, sidewalks, alleys, vacant lots, power plants and the like.

Rubbish means combustible rubbish and noncombustible rubbish.

Street refuse means both combustible and noncombustible materials such as street sweepings, dirt, leaves, catchbasin collections, grass trimmings, contents of litter receptacles and glass.

Target recyclables means materials, declared as target recyclables by written policy of the director, that can be converted into component materials for the manufacture of new products and that have a stable market which assures that the materials will be sold and will not need to be stored or disposed.

Tipping fee means a monetary charge levied per ton for the disposal of garbage, yard waste, or other types of waste at a city disposal area.

Transfer station means a facility that allows for the unloading of solid waste so that it can be put in large trailers or containers and transported to a sanitary landfill.

Yard rubbish means tree branches, stumps, twigs, grass and shrub trimmings, bushes, weeds, leaves and general yard and garden waste materials and shall include stone and dirt rakings and any waste materials resulting from landscaping.

Yard waste means tree branches, twigs, grass and shrub trimmings, bushes, weeds, leaves and general yard and garden waste materials.
(Code 1964, § 9-1; Code 1982, § 10-1; Ord. No. 7000, § 1(a), (b), 6-26-1986; Ord. No. 9518, § 1, 4-6-1992; Ord. No. 11287, § 1, 11-3-1997; Ord. No. 13263, § 2, 6-5-2006)

Sec. 58-2. Rules and regulations.

The director, subject to the approval of the city manager, shall have the authority to establish rules and regulations, consistent with the provisions of this chapter, governing the keeping, collection, removal and disposal of refuse and the maintenance and operation of the landfill area. Included, without limitation, are rules and regulations pertaining to remedial activities and civil enforcement, including collection and disposition of city or personal property located on city or other public property or right-of-way in violation of this chapter or rule or regulation established under this section, and that designate the size and type of container, location of collection, frequency of collection, types of refuse separation and other types of refuse or recyclable material collections. It shall be unlawful for any person to fail, neglect or refuse to comply with such rules and regulations.
(Code 1964, § 9-2; Code 1982, § 10-2; Ord. No. 9486, § 1, 1-21-1992; Ord. No. 13263, § 2, 6-5-2006)

Sec. 58-3. Persons authorized to haul away refuse and recyclables set out for collection.

No person other than a person under the authority of the director shall haul away any refuse or recyclables set out for collection by the city.
(Code 1964, § 9-3; Code 1982, § 10-3; Ord. No. 11287, § 2, 11-3-1997)

Sec. 58-4. Approval of vehicles used for private hauling.

In the event a person contracts for the private hauling of refuse within the city, such hauler shall first obtain the approval of the county health department as to the safe and sanitary condition of the vehicles used for hauling.
(Code 1964, § 9-4; Code 1982, § 10-4)

Sec. 58-5. Disposition within city of refuse by haulers.

Persons hauling garbage and refuse shall be subject to the direction of the director and of the county health department as to the disposal of refuse within the city.
(Code 1964, § 9-5; Code 1982, § 10-5)

Sec. 58-6. Allowing dog to run loose and turn over garbage and refuse containers.

It shall be unlawful for any person to permit or allow his or her dog to run loose on regularly scheduled days on which garbage and refuse is collected upon collection routes so as to result in such dog's turning over, spilling and scattering the contents of refuse containers.
(Code 1964, § 9-6; Code 1982, § 10-6)

Sec. 58-7. Remedial activities.

(a) The department shall have the authority to perform a remedial activity in any of the following instances:

(1) To execute an order of abatement in a civil action pursuant to section 1-9 and G.S. 160A-175;

(2) To summarily remove, abate, or remedy a condition, pursuant to G.S. 160A-193 and as authorized hereby, that is dangerous or prejudicial to the public health or safety; or

(3) To remove, abate, or remedy a condition that violates a provision of this chapter or rule or regulation established under section 58-2 and that is detrimental to the public health or safety, the environment, or citizen quality of life.

(b) The department shall have the authority to require that a person in default of legal obligations reimburse the department for costs and expenses in any instance where the department performs a remedial activity in response to such default. Such costs and expenses may be the actual costs incurred by the city to remedy the default, or standardized allocations of the city's remedial costs.
(Ord. No. 13263, § 1(10-7), 6-5-2006)

Sec. 58-8. Civil enforcement; criminal enforcement prohibited.

(a) Whenever in this chapter or rule or regulation established under section 58-2 any act is prohibited or declared unlawful or any act is required or failure to perform the act is declared unlawful, the violation of such provision shall subject the violator to a remedial fee as established by resolution of city council.

(b) Any provision of this chapter or rule or regulation established under section 58-2 may be enforced by an appropriate equitable remedy issuing from a court of competent jurisdiction. In such case, the general court of justice shall have jurisdiction to issue such orders as may be appropriate, and it shall not be a defense to the application of the city for equitable relief that there is an adequate remedy at law.

(c) Any provision of this chapter or rule or regulation established under section 58-2 making unlawful a condition existing upon or use made of real property may be enforced by injunction and order of abatement. The general court of justice shall have jurisdiction to issue such orders and such actions shall proceed pursuant to G.S. 160A-175(e). Where the city executes an order of abatement, the lien and any cancellation of the order of abatement shall constitute costs and expenses under section 58-7(a).

(d) Any provision of this chapter or rule or regulation established under section 58-2 may be enforced by any one, all, or a combination of the remedies authorized and prescribed by this section and the remedial activities authorized and prescribed by section 58-7.

(e) Except as otherwise provided, each day of any violation of any provision of this chapter or rule or regulation established under section 58-2 shall constitute a separate and distinct offense.

(f) Criminal enforcement of any violation of any provision of this chapter or rule or regulation established under section 58-2 is hereby prohibited. Any such violation does not constitute a misdemeanor or other criminal violation. Any such provision may be enforced only through one or more civil actions authorized by this section.
(Ord. No. 13263, § 1(10-8), 6-5-2006)

Sec. 58-9. Solid waste enforcement personnel.

The director or director's designee shall have the authority to pursue remedial activities or enforce any provision of this chapter or rule or regulation established under section 58-2, pursuant to rules established under section 58-2.
(Ord. No. 13263, § 1(10-9), 6-5-2006)

Sec. 58-10. Administrative review process.

Any person who receives notice of imposition of a cost, expense, or fee under section 58-7(a)(3) or 58-8(a) and (e) may obtain review by written request to the director, which must be received by the department within ten calendar days of provision of notice. Within 30 calendar days of receipt, the director shall review the request and render a written decision maintaining or withdrawing, in whole or in part, the cost, expense, or fee imposed, which shall be the final decision of the city. Such decision, or absence of a request for review under this subsection, shall constitute exhaustion of the department's administrative review process. E-mail communication shall constitute written communication for purposes of this section.
(Ord. No. 13263, § 1(10-10), 6-5-2006)

Sec. 58-11. Recovery and retention of remediation costs and expenses and remedial fees.

(a) Costs, expenses, and fees imposed under sections 58-7 and 58-8 shall be remitted to and retained by the department.

(b) Owners and occupants of real property are responsible for costs, expenses, and fees relating to that property. The department may obtain payment from owners or occupants as appropriate or necessary.

(c) Costs, expenses, and fees not remitted to the department within 30 calendar days after provision of notice or exhaustion of the administrative review process, whichever is later, may appear on the combined utility bill of the person in default under section 58-7 or the violator under section 58-8 and shall receive the same payment priority as other department charges.

(d) Costs, expenses, and fees not remitted to the department within 30 calendar days after provision of notice or exhaustion of the administrative review process, whichever is later, may be recovered in a civil action in the nature of debt if recovery under subsection (c) of this section is inapplicable.

(e) Interest on any unpaid cost, expense, or fee shall accrue at the rate of one percent per month and be incorporated into that cost, expense, or fee.

(f) If a cost or expense incurred under section 58-7(b) is not paid as required, it shall constitute a lien pursuant to G.S. 160A-193.
(Ord. No. 13263, § 1(10-11), 6-5-2006)

Secs. 58-12—58-30. Reserved.

ARTICLE II. RECEPTACLES

DIVISION 1. GENERALLY

Sec. 58-31. Householders, stores, etc., to provide.

All householders, stores, institutions, restaurants markets, hotels, and other places where refuse is collected shall provide proper receptacles as defined in the rules and regulations established pursuant to section 58-2, unless a receptacle is provided by the city.
(Code 1964, § 9-8; Code 1982, § 10-20; Ord. No. 9486, § 2, 1-21-1992)

Sec. 58-32. Types of garbage collection service provided.

The director shall provide roll-out garbage collection and sanitary bulk container garbage collection service.
(Code 1982, § 10-21; Ord. No. 11283, § 2, 10-20-1997)

Sec. 58-33. Construction; covers and handles.

Receptacles shall be made substantially of metal or plastic; watertight and provided with tight-fitting covers and strong handles.
(Code 1964, § 9-10; Code 1982, § 10-22)

Sec. 58-34. Replacement when defective, etc.

Any receptacle that does not otherwise conform to the provisions of this chapter or that has ragged or sharp edges or other defects liable to hamper or injure the persons collecting the contents thereof shall not be used for holding yard waste or any other material intended for collection, but shall be promptly replaced, on notice by the director, by a proper receptacle as a condition to collection of the contents of that receptacle.
(Code 1964, § 9-12; Code 1982, § 10-24; Ord. No. 9518, § 2, 4-6-1992)

Sec. 58-35. Construction of garbage receptacles to prevent entrance of flies.

All receptacles for garbage shall, at all times, be so constructed and maintained and so covered as to prevent the entrance of flies.
(Code 1964, § 9-13; Code 1982, § 10-25)

Sec. 58-36. Damage to roll-out refuse carts and recycling bins.

(a) *Prohibition.* It shall be unlawful for any person to deliberately set fire to, put hot ashes in, drive over, crack or otherwise damage or destroy a roll-out refuse cart or recycling bin that has been provided by the city.

(b) *Civil penalty.* Any person who violates this section shall be assessed a civil penalty of $100.00 plus the cost of replacing the roll-out cart or recycling bin for each violation.

(c) *Assessment.* The director of sanitation shall assess civil penalties under this section.

(d) *Appeal.* Any person who has been assessed a civil penalty under this section may request, orally or in writing, a hearing with the city manager. The request for a hearing shall be filed in the city manager's office within ten days of the issuance of the notice of assessment. The city manager shall schedule a hearing within 30 days from the date the request is filed. The decision of the city manager shall be final. Failure to perfect an appeal within the time and in the manner provided for in this section shall constitute a waiver of the right to appeal.

(e) *Criminal.* Any person who violates this section shall be guilty of a misdemeanor. The maximum fine shall be $100.00 and the maximum term of imprisonment shall be 30 days.
(Code 1982, § 10-29; Ord. No. 9518, § 3, 4-6-1992; Ord. No. 13263, § 2, 6-5-2006)

Sec. 58-37. Centralized roll-out cart service.

The director may, upon written request, authorize one or more suitable centralized locations for roll-out cart garbage collection service to single family detached subdivision which qualifies for roll-out cart service. The subdivision must provide an adequate area, subject to the director's approval, for such centralized pick-up. The director will set the maximum number of roll-out carts for such an arrangement on a case-by-case basis.
(Code 1982, § 10-30; Ord. No. 11283, § 3, 10-20-1997)

Sec. 58-38. Stationary container service to qualified housing units.

(a) Where housing units qualify under city ordinances for roll-out cart solid waste collection service and the housing units instead request under section 58-66(6) to be served by stationary containers in accordance with city ordinances and regulations, if the request is approved, such service will be provided with the same frequency as the city provides roll-out cart service without charging any fees for such collections, other than the fees which may be applicable to roll-out cart service.

(b) Frequency of service will be as necessary to reasonably serve the housing units, as determined by the director of solid waste or the director's designee, with usual and customary service of one collection per week.

(c) Housing units qualifying for stationary container service under this section shall be responsible for providing a suitable stationary container which complies with the provisions of this chapter and all applicable rules and regulations of the city. The placement of stationary containers for collection service by the city must be approved by the director of solid waste or

the director's designee. The provisions of division 2 shall apply to all housing units to be served by stationary containers. Where the term "unit ownership (condominium)" appears in division 2, it shall be interpreted to include all housing units approved for stationary container service under this section.
(Code 1982, § 10-31; Ord. No. 11563, § 1, 9-8-1998)

Charter reference—Authority to provide stationary container service to qualified housing units, § 38.

Secs. 58-39—58-64. Reserved.

DIVISION 2. STATIONARY BULK REFUSE CONTAINERS

Sec. 58-65. Mandatory use of stationary containers.

Each collection of garbage from a stationary container shall be for a fee, as set by the city council, except as provided in section 58-38 for service to qualified housing units. The following locations must be served by a stationary container rather than roll-out carts:

(1) Customers who generate more refuse between pickups than the capacity of four roll-out carts.

(2) Clustered or attached residences, including apartments, townhouses and condominiums, as described in section 58-66.

(3) Any location to which access is denied to city equipment and personnel, or where streets will not support city equipment without the risk of damage, or which the director determines may not be served efficiently due to design or other factors.

(4) Commercial developments in which four or more businesses operate from the same site or location.

(Code 1982, § 10-34; Ord. No. 11283, § 4, 10-20-1997; Ord. No. 11563, § 2, 9-8-1998)

Sec. 58-66. Required; specifications.

Owners of townhouse and unit ownership (condominium) developments, as defined in the UDO, owners or occupants of housing units choosing to be served by stationary container service provided by the city under section 58-38, and owners of residential apartment buildings or of a group of residence apartment buildings in the same complex wherein there are more than four living units either in a single building or in the complex treated as a unit, are hereby required to install and maintain for each townhouse or unit ownership (condominium) development or grouping of housing units and for each residence apartment building which contains more than four living units, and for each residence apartment group or complex which group or complex contains in the aggregate more than four living units, stationary bulk refuse containers according to the following specifications:

(1) A minimum four cubic yards capacity stationary bulk refuse container for each townhouse or unit ownership (condominium) development and for each residence

apartment building which contains more than four and fewer than 13 living units, and for each residence apartment group or complex which group or complex contains in the aggregate more than four and fewer than 13 living units.

(2) A minimum six cubic yards capacity stationary bulk refuse container for each townhouse or unit ownership (condominium) development and for each residence apartment building which contains more than 12 and fewer than 17 living units, and for each residence apartment group or complex which group or complex contains in the aggregate more than 12 and fewer than 17 living units.

(3) A minimum eight cubic yards capacity stationary bulk refuse container for each townhouse or unit ownership (condominium) development and for each residence apartment building which contains more than 16 and fewer than 31 living units, and for each residence apartment group or complex which group or complex contains in the aggregate more than 16 and fewer than 31 living units.

(4) Where a townhouse or unit ownership (condominium) development, a residence apartment building or a residence apartment group or complex contains in excess of 30 living units, additional stationary bulk refuse containers are required to be installed and maintained as a minimum in the same ratio as herein set forth in subsections (1), (2) and (3) of this section for the living units in excess of 30. By way of example of the application of the ratio herein intended: For a townhouse or unit ownership (condominium) development, or a residence apartment building or a residence apartment group or complex containing 35 living units, a minimum of one eight-cubic-yard container and one four-cubic-yard container is required; for 43 to 46 living units, a minimum of one eight-cubic-yard container and one six-cubic-yard container is required; for 47 to 59 living units, a minimum of one eight-cubic-yard container, one six-cubic-yard container and one four-cubic-yard container is required; and for living units in excess of 59, the same ratio will apply.

(5) The provisions of this section shall not apply to any developer, homeowners' association exercising control or ownership of the development, or other successor to the control and interest of the developer of a townhouse development conforming to the definition of townhouse or unit ownership (condominium) development set forth in the UDO who, prior to the effective date of this subsection, elected to have such development served by individual containers at each dwelling unit rather than by stationary bulk containers.

(6) Should the developer, homeowners' association or other successor to the interest of the developer referred to in subsection (5) of this section desire to install and maintain stationary bulk refuse containers and abandon the use of individual containers at each dwelling unit, it should make a written request for such a change in form of refuse collection to the city manager. The city shall bear no expense for alterations or improvements, such as the installation of concrete pads or upgraded paving, that may be required by the city manager in order to provide the requested service. In addition, the city manager, in his or her discretion and after full review of available city

resources and the demands of the request, may delay the provision of the requested service up to six months after approval of the request or until the beginning of the next fiscal year, whichever is longer.

(7) The provisions of this section related to townhouse and unit ownership (condominium) developments apply only to townhouse and unit ownership (condominium) developments that are restricted to residential use by declaration and are so used for residential purposes.

(8) Owners may satisfy the minimum cubic yards capacity requirement under this section by either installing and maintaining a stationary bulk refuse container having the minimum cubic yards capacity required in subsections (1), (2), (3) and (4) of this section or by installing and maintaining both a stationary bulk refuse container and a recycling container having a combined cubic yards capacity which equals the required minimum cubic yards capacity required in subsections (1), (2), (3) and (4) of this section.

(Code 1964, § 9-16.1; Code 1982, § 10-35; Ord. No. 5902, §§ 1—13, 3-15-1982; Ord. No. 9518, §§ 4—7, 4-6-1992; Ord. No. 11563, § 3, 9-8-1998)

Sec. 58-67. Applicability of division to new construction.

All of the provisions of section 58-66 shall apply to all new construction, alteration or conversion of residential apartment buildings and residential apartment groups or complexes for which any building permit shall be or has been issued after March 2, 1970, where the residence apartment building or residence apartment group or complex of buildings will contain more than four living units; and no building permit shall be issued after March 2, 1970, for construction, alteration or conversion of a building or group or complex of buildings falling within the application of this division unless and until a plan approved in writing by the director as showing adequate provision for installation of containerization of refuse as required by this division shall be furnished by the owner or developer; and no such residence apartment building or group or complex of residence apartment buildings to which this division applies shall be constructed, altered or converted after March 2, 1970, without providing for the use and maintenance of stationary bulk refuse containers as required by this division.

(Code 1964, § 9-16.2; Code 1982, § 10-36)

Sec. 58-68. Location.

The location of required stationary bulk refuse containers shall be so as to permit convenient and safe access by the servicing truck and equipment using all-weather streets or alleys of adequate strength, to minimize as far as reasonably permitted excessive walking distances for tenants and occupants and to be as aesthetically pleasing as the circumstances will reasonably allow, in order to conveniently permit servicing of such stationary bulk refuse containers upon a collection schedule approved by the director. Any recycling containers on the property shall also be located in such a place so as to permit convenient and safe access to them by the servicing truck and equipment.

(Code 1964, § 9-16.4; Code 1982, § 10-38; Ord. No. 9518, § 9, 4-6-1992)

Sec. 58-69. Variances; appeals.

(a) Where unnecessary hardship or inequities are created by the strict enforcement of the letter of this division, the director is authorized, after hearing, to grant reasonable variances and extensions, in harmony with the overall intent and purpose of this division, so that the spirit and objectives of this division may be carried out and substantial justice done, and at the same time unnecessary expense and inconvenience to the owners and occupants of the apartments be kept at a permissible minimum.

(b) Notwithstanding any other provision of this division, owners of residential apartment buildings may apply to the director for exemption from the requirements of this division. When such an owner by written application agrees to provide garbage collection service to buildings owned by him or her which is equal or superior to the service furnished by the city, the director may, in the exercise of his or her judgment, waive the other requirements of this division. The director will prescribe the form of application to require such information as will enable him or her to ascertain that the occupants of the buildings affected will receive garbage service which is consistent with that rendered by the city. Should the director determine that the garbage collection service rendered under a waiver is inadequate, he or she will revoke the waiver by giving the owner written notice 30 days in advance of the effective date of such revocation. Upon such revocation, the owner shall comply with the other sections of this division as if no waiver had ever been granted.

(c) Any person who is dissatisfied with any ruling or order of the director may appeal to the city council, which is hereby designated as the appeal board, and the city council may sustain or reverse the action, or modify same or remand for further hearing; provided, that any such appeal shall be in writing and signed by the owner of the property as to which the appeal is taken, or by his or her attorney, stating in a considered manner the grounds upon which the appeal is based, and filed with the city clerk not later than ten days after the rendition of the decision or order appealed. Unless such appeal is perfected in the manner and within the time herein specified, the action of the director shall be considered final. In computing the ten-day period herein provided, Saturdays, Sundays, New Year's Day, Good Friday, Independence Day, Labor Day, Thanksgiving Day and Christmas Day shall be excluded; the day upon which the decision appealed is given shall be excluded; and the tenth countable day thereafter (after the specified exclusions) shall be included.
(Code 1964, § 9-16.6; Code 1982, § 10-39)

Secs. 58-70—58-96. Reserved.

ARTICLE III. PREPARATION, ETC., OF REFUSE AND RECYCLABLES FOR COLLECTION

Sec. 58-97. Wrapping and draining garbage; refuse allowed in garbage receptacle; source separation of recyclables.

All garbage placed in receptacles shall be wrapped or contained in bags and shall be drained and free of wastewater. No liquids, except natural moisture contents of garbage, shall be

placed in receptacles. Recyclables shall be properly prepared, separated from garbage and placed into a separate bin for collection. Recyclables shall not be put in the garbage receptacle.
(Code 1964, § 9-17; Code 1982, § 10-50; Ord. No. 9518, § 10, 4-6-1992; Ord. No. 11287, 11-3-1997)

Sec. 58-98. Yard waste.

Yard waste will not be collected by the city or disposed of at the city landfill area if it is in plastic bags, plastic wrappers, or plastic sheets. Yard waste will not be collected by the city unless it is contained in biodegradable paper bags designed and marketed for yard waste, provided that such bags shall be subject to type, size, and closure restrictions and requirements as may be made pursuant to section 58-2; or set out in such receptacles or in such other manner as may be permitted by rules and regulations made pursuant to section 58-2. Notwithstanding the previous sentence, tree and shrub trimmings may be collected if set out pursuant to the preceding sentence or if they are securely tied in bundles which do not exceed four feet in length, 18 inches in diameter, and 75 pounds in weight, and which do not contain any single piece of wood exceeding six inches in diameter.
(Code 1982, § 10-55)

Sec. 58-99. Large tree and shrub trimmings, excessive amounts of refuse.

Large tree and shrub trimmings, bulky and excessive amounts of refuse, leaves and yard rakings that cannot be handled by routine collection procedure will be handled under regulations of the director, at the owner's request, for a fee to cover actual cost. This is referred to as "extra refuse" and will be hauled by the department as soon as conveniently possible, but such hauling shall not interfere with the normal collection schedule of regular refuse and garbage. Tree stumps, trunks and limbs shall be cut to sizes that can readily be loaded by two adult persons, and shall be piled in easily accessible locations for loading. This section shall not be construed to apply to material the disposition of which is referred to in section 58-154.
(Code 1964, § 9-22; Code 1982, § 10-56)

Sec. 58-100. Unauthorized use of bulk refuse containers.

It shall be unlawful for any person to place material in a bulk refuse container situated upon private property unless such person owns or occupies the property, or is an employee or agent of such owner or occupant, or has been given written permission by the owner or occupant to use such container.
(Code 1964, § 9-19.2; Code 1982, § 10-57; Ord. No. 5369, § 1, 4-21-1980; Ord. No. 13263, § 2, 6-5-2006)

Sec. 58-101. Animal litter.

Animal litter will be collected provided such is wrapped in newspaper and placed in a plastic bag that is securely tied and placed at the curbside on scheduled collection days.
(Code 1982, § 10-58; Ord. No. 7841, § 2, 6-28-1989)

Sec. 58-102. Hypodermic needles.

Hypodermic syringes and needles will be collected provided such is placed in a plastic puncture resistant carton with a tightfitting lid and placed at the curbside on scheduled collection days.
(Code 1982, § 10-59; Ord. No. 7841, § 3, 6-28-1989)

Sec. 58-103. Separate receptacles for recyclables.

Separate receptacles shall be used for the set out of recyclable materials that are collected by the city, or by the city's contractor.
(Code 1982, § 10-59.1; Ord. No. 9518, § 16, 4-6-1992)

Sec. 58-104. Use of "drop-off" containers.

Recycling "drop-off" centers situated throughout the city and marked for recyclable materials may be used only for the depositing of recyclable materials collected by the city or by the city's contractor. It shall be unlawful for any person to place any materials in such containers except clean recyclable materials.
(Code 1982, § 10-59.2; Ord. No. 9518, § 17, 4-6-1992)

Sec. 58-105. Use of stationary containers reserved for recyclables.

All stationary containers reserved for recyclables, such as corrugated cardboard, glass, and plastics, shall be used for recyclable materials only. It shall be unlawful for other types of refuse to be placed in these stationary containers. There shall be a fee, established by action of the city council, assessed to businesses that mix refuse in with recyclables.
(Code 1982, § 10-59.3; Ord. No. 11287, § 5, 11-3-1997)

Secs. 58-106—58-123. Reserved.

ARTICLE IV. REMOVAL, DISPOSITION, ETC.

DIVISION 1. GENERALLY

Sec. 58-124. Generally.

Garbage, rubbish and ashes, when stored in proper receptacles outside of buildings and placed in accessible locations, shall be removed under regulations of the director, subject to the provisions of this article.
(Code 1964, § 9-23; Code 1982, § 10-60)

Sec. 58-125. Collection schedules.

(a) Collection schedules shall be as determined by the director of solid waste. The director or the director's designee shall have the authority to alter collection schedules to observe holidays or to meet emergency situations.

(b) Businesses that generate more than two cubic yards of refuse each week, which equals approximately the capacity of four roll-out carts, must install and maintain a stationary bulk refuse container.

(Code 1964, § 9-23.1; Code 1982, § 10-61; Ord. No. 5496, § 1, 10-21-1980; Ord. No. 9518, § 18, 4-6-1992; Ord. No. 11283, § 5, 10-20-1997; Ord. No. 11563, § 4, 9-8-1998)

Sec. 58-126. Placing and storing of refuse outside of buildings.

Refuse of all classes shall be placed and stored outside of buildings at easily accessible locations.

(Code 1964, § 9-24; Code 1982, § 10-62)

Sec. 58-127. Locations at which business houses to set out refuse containers.

All business houses such as stores, markets, food serving establishments, institutions and any other businesses that have collections made by the city, shall set out their containers of refuse at locations prescribed by the director.

(Code 1964, § 9-25; Code 1982, § 10-63)

Sec. 58-128. Duty of collectors as to receptacles.

All refuse collectors shall exercise all reasonable care in handling receptacles and shall not willfully break, deface or injure such receptacles.

(Code 1964, § 9-26; Code 1982, § 10-64)

Sec. 58-129. Responsibility for kitchen utensils, etc., used as waste receptacles.

The city and its employees shall not be responsible for any kitchen utensil, kitchen waste can or other article of value used for a waste receptacle or otherwise placed with regular refuse containers for the collectors to handle.

(Code 1964, § 9-27; Code 1982, § 10-65)

Sec. 58-130. Receptacles on streets.

No private refuse receptacle of any kind shall be placed or remain upon any public street or sidewalk, on Sunday or on any other day that is not a collection day, or otherwise than as prescribed by the director or as prescribed herein.

(Code 1964, §§ 9-28, 9-31; Code 1982, § 10-66)

State law reference—Location by city of containers on highways, G.S. 136-18.3.

Sec. 58-131. Collection in certain areas.

(a) *Hours for depositing refuse.* It shall be unlawful for any person to place or cause to be placed or deposited upon any of the streets, sidewalks or thoroughfares described and set forth in section 58-131, whether in a receptacle or otherwise, any trash, rubbish, wastepaper, refuse or garbage, at any time except between the hours of 6:30 a.m. and 9:00 a.m.

(b) *Allowing receptacle to remain on street after certain hour.* It shall be unlawful for any person to allow or permit, or cause to be allowed or permitted, any receptacle in which there has been deposited for collection, any refuse, to remain upon any of the streets, sidewalks or thoroughfares described and set forth in this subsection, after 10:00 a.m., whether or not such receptacle be then empty.

(c) *Enumeration of streets to which this subsection applies.* This subsection shall apply to the area bounded by the following streets or thoroughfares and shall apply to both sides thereof, bounding the area:

Roxboro Street, from Peabody Street to Holloway—Morgan Street Connector;

Holloway—Morgan Street Connector, from Roxboro Street to Mangum Street;

Morgan Street, from Mangum Street to Chapel Hill Street;

Peabody Street, from Chapel Hill Street to Roxboro Street.

(Code 1964, §§ 9-42—9-44; Code 1982, §§ 10-67—10-69; Ord. No. 5496, § 2, 10-21-1980)

Sec. 58-132. Meddling with receptacles.

No unauthorized person shall meddle with or interfere with the contents of any receptacle set out for removal by the city.

(Code 1964, § 9-29; Code 1982, § 10-70)

Sec. 58-133. Dead animals.

(a) Dead animals shall be removed from private property and disposed of by the city upon request for a fee to be set by the city council. Dead animals shall be removed from other property and disposed of by the city upon request at no charge.

(b) The term "dead animals" as used in this section shall mean the carcass of any small animal such as a dog, cat, squirrel, opossum, rabbit, rat, reptile, fowl, bird or any other of such size. Such term shall not be construed to apply to the carcass of a large animal such as a goat, sheep, pig, horse, mule, cow or the like.

(Code 1964, §§ 9-1, 9-34; Code 1982, § 10-71; Ord. No. 7255, § 1, 6-29-1987)

Sec. 58-134. Disposal of target recyclables.

Target recyclables, as well as other recyclables handled by the city, are to be placed in a recycling bin and set out on the curb for collection. There shall be a fee, established by action of the city council, assessed to the property owner for mixing target recyclables with other refuse.

(Code 1982, § 10-72; Ord. No. 11287, § 5, 11-3-1997)

Secs. 58-135—58-151. Reserved.

DIVISION 2. REFUSE NOT COLLECTED BY THE CITY

Sec. 58-152. Hazardous refuse.

No hazardous refuse will be collected by the city, but such hazardous refuse shall be transported by the owner, responsible person or agent to the city disposal area and disposed of as prescribed and only to the extent allowed by the director pursuant to section 58-190.
(Code 1964, § 9-36; Code 1982, § 10-76; Ord. No. 7000, § 9, 6-26-1986)

Sec. 58-153. Refuse from manufacturing, etc.

Refuse from manufacturing, wholesaling, assembly or processing operations will not be collected by the city.
(Code 1964, § 9-37; Code 1982, § 10-77)

Sec. 58-154. Refuse from building operations, landscape work, etc.

(a) *Generally.* No building materials or refuse from building construction, demolition, repair or operations by contractors, or refuse from landscape work by landscape gardeners or other contractors shall be hauled by the city.

(b) *Duty of building, etc., contractor.* Building, plumbing, heating, masonry and similar contractors shall remove such refuse as may accumulate from their construction, repairing, remodeling or demolition of buildings.

(c) *Duty of tree surgeons.* Tree surgeons or others contracting to trim or remove trees shall haul their own refuse from the location at which they do work.
(Code 1964, §§ 9-38—9-40; Code 1982, §§ 10-78—10-80)

Sec. 58-155. Stable manure.

Stable manure shall be removed by persons who maintain stables.
(Code 1964, § 9-35; Code 1982, § 10-82)

Sec. 58-156. Tires.

No tires will be collected by the city, but such tires shall be transported by the owner, responsible person or agent to the city disposal area and disposed of as prescribed and only to the extent allowed by the director of sanitation or his or her designee.
(Code 1982, § 10-83; Ord. No. 7841, § 4, 6-28-1989)

Secs. 58-157—58-180. Reserved.

DIVISION 3. CITY DISPOSAL AREA

Sec. 58-181. Disposition of privately hauled refuse, etc.

The director may permit disposal of privately hauled refuse at a city disposal area under appropriate regulations and conditions.
(Code 1964, § 9-45; Code 1982, § 10-90; Ord. No. 7000, § 3, 6-26-1986; Ord. No. 11287, § 6, 11-3-1997)

Sec. 58-182. Materials delivered to be city property.

All materials, properly delivered to a city disposal area, shall become property of the city.
(Code 1964, § 9-46; Code 1982, § 10-91; Ord. No. 11287, § 6, 11-3-1997)

Sec. 58-183. Unauthorized separation, removal of materials delivered.

No person shall separate, collect, carry off, remove or dispose of materials delivered and deposited for disposal at the city disposal area unless authorized to do so by the director.
(Code 1964, § 9-47; Code 1982, § 10-92; Ord. No. 11287, § 6, 11-3-1997)

Sec. 58-184. When disposal allowed.

Hours when disposal of refuse is permitted at the city disposal area shall be established by the director and posted on the premises, and no such disposal of any materials shall be made by any person at any time other than the hours so prescribed.
(Code 1964, § 9-48; Code 1982, § 10-93; Ord. No. 7000, § 7, 6-26-1986; Ord. No. 11287, § 6, 11-3-1997)

Sec. 58-185. Responsibility of city for injuries to persons or vehicles.

The city will not be responsible for any injuries to persons hauling refuse to the city disposal area, while on the disposal area premises, nor will the city be liable for damage to vehicles from accidents on the premises. Provided, however, this section shall not be construed to apply to the employees of the city and city-owned equipment regularly employed on such premises.
(Code 1964, § 9-50; Code 1982, § 10-95; Ord. No. 11287, § 6, 11-3-1997)

Sec. 58-186. Fees; authority to enter into contracts for disposal.

The city council may from time to time establish tipping fees for use of the city disposal areas. The city manager may provide for periodic billing to frequent users of the city disposal areas. Without limiting other authority that the city manager has, the city manager is authorized to enter into contracts with users of city disposal areas, providing for, among other appropriate things, payment to be made on a monthly or other basis after the user has delivered material to disposal areas.
(Code 1982, § 10-96; Ord. No. 7000, § 4, 6-26-1986; Ord. No. 11287, § 6, 11-3-1997; Ord. No. 15467, § 1, 5-20-2019)

Sec. 58-187. Target recyclables.

The tipping fees established by this division shall apply to target recyclables. Where the load is comprised in whole or in part of an amount of target recyclables, the tipping fee charged shall be an amount equal to two times the regular tipping fee.
(Code 1982, § 10-96.1; Ord. No. 10588, § 1, 7-17-1995; Ord. No. 11287, § 6, 11-3-1997)

Sec. 58-188. Fees for violations.

The city council may from time to time establish fees to be assessed as civil penalties for violations of the ordinance from which this article is derived.
(Code 1982, § 10-96.2; Ord. No. 11287, § 6, 11-3-1997)

Sec. 58-189. Use denied.

The director may deny any person or business entity use of the city disposal areas for failure to pay the fees prescribed herein, until those fees have been paid.
(Code 1982, § 10-97; Ord. No. 7000, § 5, 6-26-1986; Ord. No. 11287, § 6, 11-3-1997; Ord. No. 13263, § 2, 6-5-2006)

Sec. 58-190. Disposal area regulations.

The city disposal areas shall be operated in accordance with the rules and policies established by the director and the laws of the state. The following items shall not be accepted at the city disposal areas:

(1) Waste determined by the director or the director's designee to be too hazardous to be safely disposed of at city disposal areas; and

(2) Automobiles and other items determined by the director to be inappropriate for a city disposal area.

(Code 1982, § 10-99; Ord. No. 7000, § 8, 6-26-1986; Ord. No. 11287, § 6, 11-3-1997)

Chapters 59—61

RESERVED

Chapter 62

STREETS AND SIDEWALKS*

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ARTICLE I. IN GENERAL

Sec. 62-1. Building numbering.

(a) It shall be the duty of the owner of each house or other building to properly display on the front thereof, or on the grounds, in a position easily observed, the proper number of his or her house or other building. The owner shall make application to the city for such house or building number assignment.

(b) It shall be unlawful for the owner of any house or other building to which a street number has been assigned and affixed to attach or paint, or permit to be or remain attached to, or painted on such house or other building, or on the grounds, any figure tending or purporting to indicate the street number on such house or other building or on the grounds, unless the number so indicated be the street number assigned to such house or other building as herein provided.

(c) Upon notice by the city to any owner or occupant of any house or other building, it shall be the duty of such owner or occupant, within ten days after such notice shall have been given, assigning to such house or other building a number, to cause such house or other building to be numbered as provided in subsection (a) of this section, at the expense of such owner or occupant.

(d) It shall be unlawful for any person to remove, obliterate or destroy any such number attached to, or painted on such house or other building, as required to be displayed by the provisions of subsection (b) of this section.

(e) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 19-4; Code 1982, § 18-1; Ord. No. 15982, § 182, 8-1-2022)

Sec. 62-2. House number on face of curb.

(a) *Required standard.* It shall be unlawful for any person, group or business entity to paint house or building numbers on the face of the curb unless done in the following manner:

(1) Paint house or building number in luminous paint on a contrasting background;

(2) Locate the house or building number near the driveway cut for the house, building or lot, or in some other easily observed no-parking area upon which the structure or lot fronts;

(3) Use plain, unflourished block numbers that are at least four inches high where the face of the curb so permits such a minimum height, or the maximum height less than four inches that is possible on the curb face; and

(4) Paint only the proper house or building number as assigned pursuant to section 62-1.

(b) *Additional requirements.* Any person, group or business entity that proposes to paint house or building numbers on the face of the curb for hire shall first obtain a privilege license from the city collector of revenue. Any person or other entity shall obtain the permission of the owner or occupant of the house, building or lot prior to painting a number on the face of the curb upon which the structure or lot fronts.

(c) *Penalties.* In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1982, § 18-1.1; Ord. No. 15982, § 183, 8-1-2022)

Sec. 62-3. Determination of street lines; furnishing engineering service.

The director of transportation and utilities shall have full power and authority to ascertain and determine the lines of any streets and shall furnish engineering service and advice to all departments of the city and to interested persons.
(Code 1964, § 19-1; Code 1982, § 18-2)

Sec. 62-4. Duty of owner of property abutting improved sidewalks, etc., with reference to grading property or constructing retaining wall.

All owners of property abutting upon concrete, brick or other permanently improved sidewalks or curb and gutter shall grade such property or construct a retaining wall in such a manner as to prevent the washing of dirt, grass, trash or other material upon the sidewalks of the city. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 19-5; Code 1982, § 18-3; Ord. No. 15982, § 184, 8-1-2022)

Sec. 62-5. Removal of material; permission required.

No person shall remove any sand, dirt or any other street building material from any street or sidewalk without permission of the city. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 19-38; Code 1982, § 18-4; Ord. No. 15982, § 185, 8-1-2022)

Sec. 62-6. Spaces under sidewalks; cellar doors, grates, roofs—Generally.

(a) No person shall use or appropriate any space under a sidewalk for cellar or other underground uses without first obtaining a permit from the city council, which permit shall be revokable at the will of the council with or without notice.

(b) It shall be unlawful for any person to construct or maintain any cellar doors or grating on the sidewalks of the city without first obtaining a permit from the city council for the same.

(c) The sidewalk over any underground space shall be constructed and maintained by such permittee so as to permit travel over the same by pedestrians free from danger. The roofs over any such underground space or vault shall be of approved incombustible material.

Glass, when used in the sidewalk over such underground space or vault shall be of approved incombustible material. Glass, when used in the sidewalk over such underground space or vault, shall measure not more than 16 inches square in one light, and each glass light shall be set in a metal shield and the joint filled with asphalt or some other acceptable material. The director of inspection services may revoke any permit granted for the building of any such roof or sidewalk whenever he or she shall ascertain that such roof or sidewalk is not being properly constructed or maintained.

(d) All such cellar doors or grates shall be on a level with the sidewalk and shall be kept in good repair by the owner or occupant of the abutting property. The design of cellar doors or grates shall conform to the requirements of the director of inspection services and the director of transportation and utilities. All such doors and grates shall be constructed of iron or some other indestructible material.

(e) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 19-6; Code 1982, § 18-5; Ord. No. 15982, § 186, 8-1-2022)

Sec. 62-7. Same—Leaving open without providing guards and lights.

It shall be unlawful for any person to leave open any cellar door or opening extending into the sidewalk, as provided for in section 62-6, without providing proper guards and lights to warn and protect the traveling public. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 19-7; Code 1982, § 18-6; Ord. No. 15982, § 187, 8-1-2022)

Sec. 62-8. Duty of occupant of lot abutting street with reference to keeping sidewalk clear and gutter open.

The occupant of a lot abutting on any street shall keep the sidewalk clear and the gutter open and free from the obstructions as far as such lot extends. If any rubbish, dirt, ashes or other material be placed or left, without authority, on such sidewalk, or, in such gutter or street, the occupant of such lot shall remove the same within 12 hours after oral or written notice from the city. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 19-8; Code 1982, § 18-7; Ord. No. 15982, § 188, 8-1-2022)

Sec. 62-9. Duty of owner of building with reference to drainage on or across sidewalks.

It shall be unlawful for the owner of any building or premises, to allow rainwater or drain water to drain from such building, lot or premises onto a sidewalk, or to allow gutters, ditches, leaders, ducts or drainpipes to empty onto the sidewalks. Such drainpipes or ducts shall be constructed to carry such water across the sidewalk areas to the gutter or a storm sewer, provided such drainpipes or ducts shall be constructed according to specifications prescribed by the city. Such drainage pipes, ducts and other devices for carrying such drain

water or rain water across the sidewalk shall at all times be properly maintained in a safe manner by such property owner from whose property it runs. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 19-9; Code 1982, § 18-8; Ord. No. 15982, § 189, 8-1-2022)

Sec. 62-10. Impeding flow of travel.

(a) It is unlawful to impede the regular flow of travel on a sidewalk in such a manner as to block a pedestrian's or motor vehicle's attempted passage into or out of a driveway, without leaving a safe and adequate alternative route into or out of the driveway. Consent to such blocking given by an owner, tenant, lawful occupant, or person in control of the property to which the driveway leads is an affirmative defense.

(b) It is unlawful to impede the regular flow of travel on a sidewalk in such a manner as to block a pedestrian's or motor vehicle's attempted passage into or out of an entrance or exit of any residence, business, or public facility, without leaving a safe and adequate alternative route into or out of the entrance or exit. Consent to such blocking given by an owner, tenant, lawful occupant, or person in control of the residence, business, or public facility is an affirmative defense.

(c) This section does not apply to acts to the extent they are allowed by, and done in conformity with, a permit issued by a governmental person.

(d) This section does not affect other sections of the City Code, including section 66-108 and 66-109.

(e) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 19-14; Code 1982, § 18-9; Ord. No. 11490, § 1, 6-20-1998; Ord. No. 14845, § 3, 10-19-2015; Ord. No. 15982, § 190, 8-1-2022)

Sec. 62-11. Same—Dumping stumps, logs, etc., in street.

It shall be unlawful for any person to dump, or cause to be dumped, any stumps, logs, bricks, concrete, metal or other like material, other than earth excavation approved by the city, in dedicated or accepted streets, sidewalks or other public ways. Any person violating this section shall be given a written notice by the city to move such materials within 15 days. In addition to any other remedy available in the Code, failure to comply with the notice is a misdemeanor.
(Code 1964, § 9-55; Code 1982, § 18-10; Ord. No. 15982, § 191, 8-1-2022)

Sec. 62-12. Maintenance of dangerous pit, embankment, etc., near or adjoining street or sidewalk.

It shall be unlawful for the owner, tenant or lessee of any premises adjacent to any street or sidewalk to maintain any dangerous pit, embankment, dangerous wall and like perilous thing near or adjoining any street or sidewalk. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 19-18; Code 1982, § 18-11; Ord. No. 15982, § 192, 8-1-2022)

Sec. 62-13. Warning lights, etc.—Required.

It shall be unlawful for any person engaged in building, altering or repairing the streets, sidewalks or other public ways of the city to leave such work in an unfinished condition without placing thereat sufficient lights or signs or other adequate means to warn the traveling public as approved by the director of transportation and utilities. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 19-19; Code 1982, § 18-12; Ord. No. 15982, § 193, 8-1-2022)

Sec. 62-14. Same—Removing or damaging barricade or signs giving notice of dangerous conditions of street.

It shall be unlawful for any person to remove, destroy, damage or tamper with any barricade, sign, lantern, torch or other device placed in any street, sidewalk or any other place by the city or anyone acting for the city or by any contractor, subcontractor or builder, intended to give notice to the traveling public that such street or portion thereof should not be traveled or as to the dangerous condition of the same or as to the existence of an obstruction. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 19-20; Code 1982, § 18-13; Ord. No. 15982, § 194, 8-1-2022)

Sec. 62-15. Removing or damaging monuments designating street lines or elevations.

It shall be unlawful for any person, engaged in the construction and repair of streets and sidewalks, to remove, relocate, destroy, damage or tamper with any monuments or metal pins designating street lines or elevations, unless approved by the director of transportation and utilities. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 19-22; Code 1982, § 18-14; Ord. No. 15982, § 195, 8-1-2022)

Sec. 62-16. Depositing brine, acid, oil, etc., on streets or sidewalks.

No person shall empty or deposit on the streets, sidewalks or other public ways any saltwater, brine, acid, alkali, oil, paint or other hazardous substances that will damage the streets, sidewalks or other public ways or vehicles using the same or storm drainpipes into which the same may run. This section shall not prevent city staff or agents of the city from

using before, during, or after a winter weather event any snow or ice removal technique (including, but not limited to, the use of saltwater or brine) that the public works department determines to be efficacious. In addition to any other remedy available in the Code, failure to comply with the notice is a misdemeanor.
(Code 1964, § 19-23; Code 1982, § 18-15; Ord. No. 14819, § 1, 8-3-2015; Ord. No. 15982, § 196, 8-1-2022)

Sec. 62-17. Petitions to close streets and alleys, filing requirements.

Any person, pursuant to G.S. 160A-299 and Durham City Charter § 51, may file a petition requesting the city council to close any street or public alley or any part of a street or public alley. The petition shall be in writing and shall be filed with the Durham City/County Planning Department. The petitioner or the petitioner's representative shall file with the petition the following:

(1) A map or sketch showing the street or public alley or part thereof which the petitioner requests to be closed;

(2) A description of the street or public alley or part thereof which the petitioner requests to be closed;

(3) An area map showing the surrounding streets and public alleys within two blocks in all directions of the street or public alley or part thereof which the petitioner requests to be closed;

(4) A statement of petitioner's reasons for requesting the closing; and

(5) If the petitioner proposes to construct any building, structure, or part thereof on any part of the area of the street or public alley or part thereof which petitioner requests to be closed, a site plan or sketch illustrating the construction and location of such construction.

(Code 1964, § 19-75; Code 1982, § 18-16; Ord. No. 5510, § 1, 11-3-1980; Ord. No. 16005, § 1, 9-19-2022)

Charter reference—Notice, § 51.

State law reference—Procedure for permanent closing of streets and alleys, G.S. 160A-299.

Sec. 62-18. Same—Compliance prerequisite to scheduling of hearing.

The city council shall not adopt a resolution setting a date for a public hearing, or authorizing and directing the city clerk to publish any notice of such public hearing, on any petition for the abandonment and closing of any public street, alley or other public way unless and until the provisions of section 62-17 have been complied with.
(Code 1964, § 19-76; Code 1982, § 18-17)

Sec. 62-19. Withdrawal of street from dedication.

Any person who, pursuant to G.S. 136-96 and Durham City Charter § 51.2, seeks to withdraw from dedication land dedicated to public use as a street or roadway that is located

in the city, must furnish the information identified below to the Durham Development Services Center ("DSC") at least 30 days prior to filing or recording the declaration of withdrawal with the register of deeds office:

(1) A cover letter stating:

a. The name of the street or roadway;

b. The book and page number of the plat that originally dedicated the land for public use;

c. The applicant's legal relationship to the original dedicator;

d. The corporate status of the original dedicator; and

e. That the dedicated land is proposed to be withdrawn from dedication pursuant to G.S. 136-96, unless the city formally accepts the dedication within 30 days of receipt of the letter or the city otherwise objects to the legality of the proposed withdrawal;

(2) The six-digit PID, or such other identifying numbers or information that the DSC determines to be sufficient, so that the location of the dedicated land proposed to be withdrawn can be clearly known, including a list of lots adjacent to the dedicated land proposed to be withdrawn;

(3) A copy of the declaration of withdrawal proposed to be recorded with the office of register of deeds;

(4) A complete application and all related plats proposed to be recorded; and

(5) If the proposed declaration lacks a description sufficient for identification of the dedicated land to be withdrawn, a legal description of the dedicated land to be withdrawn.

(Code 1982, § 18-17.1; Ord. No. 7730, § 1, 3-20-1989; Ord. No. 15605, § 1, 2-17-2020)

Sec. 62-20. Encroachment of buildings, fences, etc.

(a) No person shall dig or lay the foundation of any house or other building within any street, sidewalk or other public way or erect any wall, fence or other structure abutting upon such street, sidewalk or other public way before ascertaining from the city the true property line and elevation of such street, sidewalk or other public way.

(b) The director of inspection services shall see that such foundation, building, house or other structure, except fences, retaining walls and steps when such steps are attached to and constitute a part of the building or structure in question, do not encroach upon the street, sidewalk or other public way in question.

(c) The director of inspection services shall see that such fences, retaining walls and steps, when steps are not attached to a building, and any other encroachments, do not encroach upon such street, sidewalk or other public right-of-way.

(d) In addition to any other remedy available in the Code, failure to comply with the notice is a misdemeanor.
(Code 1964, § 19-2; Code 1982, § 18-18; Ord. No. 15982, § 197, 8-1-2022)

Sec. 62-21. Tree limbs overhang, etc.—Prohibited.

It shall be unlawful for any person to allow or suffer the limbs of trees, vines, bushes, shrubbery, flowers or other growth, or any trellis, fence, or other obstruction to project into or overhang a public sidewalk or other public way at a distance closer than seven feet above the surface of such sidewalk or other public way or in any manner so as to interfere with the free and safe passage of the public way or sidewalk by pedestrians or vehicular traffic.
(Code 1964, § 19-24; Code 1982, § 18-19)

Sec. 62-22. Same—Constitutes nuisance.

The overhanging of a public sidewalk or other public way of branches or limbs or bushes, trees, shrubbery, vines, flowers, or other growth, or the overhanging or protruding into the public way of any trellis, fence, or other growth or construction, closer than seven feet above the surface of the sidewalk or other public way, or in any event, in such way as to interfere with the free and safe passage along the sidewalk or other public way by pedestrians and vehicular traffic, shall be and is hereby declared to constitute a public nuisance. Such public nuisance may be abated summarily by the city.
(Code 1964, § 19-25; Code 1982, § 18-20)

Sec. 62-23. Same—Action by city.

If any owner, lessee or occupant of any property on which there is located any tree, bush, shrubbery, vine, fence, gate, trellis or other growth or construction with branches, limbs or parts overhanging a sidewalk or other public way in violation of the provisions of sections 62-21 and 62-22 shall fail, within the time specified and a notice from the authorized agency or department of the city to remove such parts of such growth or obstruction as are in violation of such sections, the city may, in addition to any other remedy, cut and remove all of such growth and obstruction as exists in violation thereof and such act on the part of the city shall be regarded as taken in the exercise of its governmental police power.
(Code 1964, § 19-26; Code 1982, § 18-21)

Secs. 62-24—62-49. Reserved.

ARTICLE II. CONSTRUCTION AND EXCAVATION IN THE PUBLIC WAY, INSTALLATION OF FACILITIES AND UTILITIES*

DIVISION 1. WORK WITHIN PUBLIC WAY; UTILITIES; FRANCHISES, LICENSES, AND PERMITS

Sec. 62-50. Definitions.

The following words and terms in this division shall have the meaning given below unless the context indicates otherwise. These meanings shall apply whether a word is capitalized or not or is singular or plural.

Application, collocation, small wireless facility, utility pole, wireless facility, wireless infrastructure provider, wireless provider, wireless services, and wireless services provider are defined in Section 160A-400.51 of the North Carolina General Statutes or Federal Communications Commission Order FCC 18-133, whichever is more inclusive.

Authorization means permission from the city to do work in the public way or to maintain facilities in the public way and includes but is not limited to a franchise, a license, a permit, a letter, construction drawing approval. Multiple authorizations may be required for certain activities.

Contractor means and includes any of the following, licensed or unlicensed, performing work on an owner's behalf: contractor; subcontractor; or any employee or agent of a contractor, subcontractor, or owner.

Department means the department of public works of the city.

Emergency means a condition that poses a clear and immediate danger to life or health, or a significant loss of property, or requires immediate repair to restore service to a group of users of such service.

Emergency work means the replacement or repair of damage to active facilities, including main lines and services, where all 811 dig requirements are met.

Excavate means without limitation any cutting, digging, grading, tunneling, boring, or other alteration of the surface or subsurface material or earth in the public way.

Facilities means poles, pipes, culverts, conduits, ducts, cables, wires, fiber, amplifiers, pedestals, antennae, transmission or receiving equipment, other electronic equipment,

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***Editor's note—**Ord. No. 14665, § 1, adopted August 18, 2014, amended the title of art. II to read as set out herein; and § 2, repealed div. 1, §§ 62-50—62-60 and enacted a new div. 1, §§ 62-50—62-57 to read as set out herein. Previously art. II was titled construction, excavation, etc.; and former div. 1 pertained to generally and was derived from Code 1964, §§ 19-27—19-31, 19-33—19-37; Code 1982, §§ 18-30—18-34, 18-36—18-41; Ord. No. 5147, § 1, adopted May 7, 1979; Ord. No. 11841, § 1, adopted October 18, 1999; Ord. No. 11841, § 1, adopted October 18, 1999 and Ord. No. 13094, adopted April 18, 2005.

electrical conductors, manholes, appliances, signs, poles, pavement structures, irrigation systems, landscaping, monument signs, monument mailboxes and any other similar equipment, for public or private use.

Owner means any property owner, company owner, or any entity by which work within the right-of-way has been ordered, or any entity on behalf of which any work within the right-of-way is caused to be performed, or any agent thereof.

Person means an individual, association, firm, partnership, limited liability company, joint venture, corporation, government, utility, or other organized entity able to contract for the activities described in this ordinance, whether for profit or not for profit. The term does not include the city.

Public way means the area that is used as, or offered, dedicated, or reserved for use as a public street, highway, alley, trail, sidewalk, curb, gutter, bike lane, bridge, round-about, tunnel, causeway, or shoulder, that is located in the city or in an area proposed for annexation to the city. The area also includes, without limitation, drainage areas and dedicated areas without surface improvements that are adjacent to improved areas, and areas where no roads or other improvements have been constructed but which are dedicated for one or more of the above uses. The public way encompasses the surface of the ground, and the area above and below the ground.

Softscape means areas without a paved surface of asphalt, concrete, or gravel (also called "unpaved areas")—Including, but not limited to, bare ground, ground covered with mulch, turfgrass, seeded or sodded ground surfaces, impervious pavement devices (despite including "pavement" in the description), or any surface that can be penetrated to a depth of one inch or more with a standard shovel unassisted by powered-machinery.

User means a person that proposes to place facilities in the public way, places such facilities, or owns or maintains such facilities. The term includes but is not limited to licensees and franchisees.
(Ord. No. 14665, § 2, 8-18-2014; Ord. No. 15255, § 1, 2-5-2018; Ord. No. 15296, § 1, 5-21-2018; Ord. No. 15413, § 1, 12-17-2018; Ord. No. 15791, § 1, 4-5-2021)

Sec. 62-51. General conditions for use of the public way.

The provisions of this division apply to work performed in the public way and to facilities that have been placed in the public way. Noncompliance with a requirement in this division is a violation of the law and is subject to all remedies available under the law to the city.

The right to perform work in the public way and the ability to maintain facilities in the public way are allowed subject to the conditions below, as supplemented by those set forth in other sections of this ordinance, standards adopted by the department, and requirements contained in authorizations.

(1) The city does not warrant its legal interest in the public way. Persons doing work in the public way and users may need to obtain approvals from persons with property interests in the public way.

(3) An authorization does not grant exclusive rights to provide a service or to a particular location unless such rights are explicitly guaranteed in an authorization.

(4) The city retains all rights it may have to use all portions of the public way for any purpose not prohibited by law.

(5) An authorization does not convey any legal right, title, or interest in the public way.

(6) The city and its officials, officers, and employees are not liable for any direct, indirect, or consequential damages that result when facilities in the public way are damaged during the construction, installation, inspection, maintenance, or repair of public improvements that have received city funding or that are installed pursuant to a contract with the city.

(7) Users and persons who cause work to be done in the public way shall pay for all damage that results, directly or indirectly, from work performed for their benefit in the public way, and for the installation, repair, maintenance, and operation of their facilities in the public way.

(8) Nonenforcement of one or more provisions of an authorization does not waive the city's right to enforce the provisions of an authorization.

(9) An authorization creates no third party rights against the city and is intended only for the benefit of the person receiving the authorization.

(10) An authorization does not limit the city's exercise of its regulatory, police, governmental, legislative, or contracting authority. A subsequent ordinance may regulate users more strictly than is provided in prior authorizations received by such users. If an authorization conflicts with the terms of another authorization or with the city code, the stricter of the applicable provisions shall control. The stricter provision shall not control, however, if a later-issued authorization or ordinance explicitly and specifically states that particular terms are to override prior, less strict terms in an authorization.

(Ord. No. 14665, § 2, 8-18-2014)

Sec. 62-52. Work in public way requiring prior notice; authorizations; standards; fees.

(a) *Work requiring prior notice to department.* Persons and users shall give prior notice to the department of the following activities, and obtain necessary authorizations before initiating the work:

(1) Excavation or restoration within the public way, including but not limited to construction of new portions of the public way;

(2) Cutting, moving, or alteration of any pipe, conduit, pole, meter, fire hydrant, facility, or other equipment or structure owned by the city, or attachment to such objects;

(3) Installation or repair of facilities within the public way including but not limited to placing facilities on other facilities already located in the public way;

(4) Construction of private streets (including but not limited to paving and gutters), sidewalks, or alleys;

(5) Installation or repair of facilities for the conveyance of water, sewer, or stormwater; and

(6) Installation or repair of facilities for electrical, gas, video, internet, telephone, cable, telecommunications, television, or other information or data transfer service to customers within the city.

(b) *Authorizations - franchises, licenses, permits, construction drawings, and other approvals.* The department may require, in its discretion, one or more authorizations for the work described in (a), and may require submission of all information it deems necessary for receipt of such authorization(s). The department shall determine, in its discretion whether a franchise, a license, a permit, construction drawings, or other type of authorization shall be required, or multiple authorizations, for work described in (a) and for users with facilities in the public way.

(c) *Unlawful to do work without authorizations; emergency.* Except in the event of an emergency, it shall be unlawful to do work in the public way or maintain facilities in the public way without authorizations that may be necessary. In the event of an emergency, a person may do such work as is necessary to address the emergency. Application shall immediately be made for necessary authorizations from the city, notwithstanding that work may have started or have been completed and all necessary fees shall be paid.

(d) *Standards.* The department shall develop standards and requirements for authorizations, including but not limited to franchises, licenses, permits, and other approvals, and may attach conditions to such authorizations. The department may also develop standards and requirements for doing work in the public way when an authorization is not required.

(d) *List of contractors.* The department may require that franchisees and persons who contract to have work performed in the public way maintain an updated list of the contractors working on their projects, and acknowledge responsibility for the actions of the contractors on the public way.

(e) *Fees; accounts.* The department shall charge such fees as are authorized by the city council for authorizations; applications for authorizations; review of information and plans; inspections and reinspections; maintenance of facilities in the public way; and for any other city review, oversight, or administration of proposed, ongoing, or completed activities described in (a). The department may allow persons to establish and fund escrow accounts or other accounts with the city to which fees may be charged.

(f) *Reinspection fees.* The department shall charge fees as are authorized by the city council for additional reviews and inspections required for work not completed to city standards and/or work that damaged existing infrastructure.

(g) *Civil penalties, equitable remedies, stop work orders, and misdemeanor offenses for working without authorization; appeals process.* Any person who violates this article shall be subject to all civil penalties and equitable remedies of this section and as stated in G.S. 160A-175.

(1) Civil penalties authorized by this section may be assessed against the owner on whose behalf work is being performed and against a contractor who is performing such work.

a. *Two-hundred-fifty-dollar civil penalty.* Any owner or contractor found to be performing work within the public right-of-way without a required permit or other required authorization, where the work requires a building permit and/or driveway permit for a singular, single-family dwelling, and where such work was performed without the necessary permit shall subject the offender to a civil penalty of $250.00 if such penalty is paid within 30 days of issuance of the notice of violation, and a civil penalty of $400.00 plus court costs, if any, if the $250.00 civil penalty is not paid within 30 days after issuance of the notice of violation.

b. *One-thousand-dollar civil penalty.* For work other than such work described in subsection (a) above, any owner or contractor found to be performing work within the public right-of-way without a required permit or other required authorization shall subject the offender to a civil penalty of $1,000.00 if such penalty is paid within 30 days of issuance of the notice of violation, and a civil penalty of $1,500.00 plus court costs, if any, if the $1,000.00 civil penalty is not paid within 30 days of issuance of the notice of violation.

c. *Two-thousand-dollar civil penalty.* Additional violations after the first violation for any owner or contractor performing work within the public right-of-way without a required permit or other required authorization shall subject the offender to a civil penalty of $2,000.00 if such penalty is paid within 30 days of issuance of the additional notice of violation, and a civil penalty of $3,500.00 plus court costs, if any, if the $2,000.00 civil penalty is not paid within 30 days of issuance of the additional notice of violation

d. *Emergency work exemption.* Otherwise applicable civil penalties that are specified in this Code section shall not be issued where evidence is submitted to the public works director's satisfaction that the work performed constitutes emergency work. The entity performing the emergency work will be required to pay the otherwise applicable permit fee however.

e. *Double civil penalty for false emergency work claims.* The civil penalty will be doubled for any owner or contractor found to be claiming an emergency work exemption where the work performed does not qualify as emergency work.

(2) *Stop work order.* The city may issue a stop work order to any person or entity performing work in the public way when there is a violation of this section. A stop work order shall be in writing, state the work to be stopped, state the reasons therefore, and state the conditions under which the work may be resumed.

a. Any owner or contractor found to be performing work within the public right-of-way without a required permit or other required authorization shall subject the offender to a stop work order for the duration of seven calendar days from the date of issuance of the stop work order. This duration may be shortened by the public works director or designee if the offender immediately makes arrangements to obtain the required authorization.

b. Violations beyond the first for any owner or contractor found to be performing work within the public right-of-way without a required permit or other required authorization shall subject the offender to a stop work order for a duration of 30 calendar days from the date of issuance of the stop work order.

c. Notwithstanding the foregoing, the violation of a stop work order issued pursuant to this subsection shall constitute a misdemeanor punishable under G.S. 14-4.

(3) *Appeal process.* Any owner or contractor assessed a civil penalty or ordered to stop work pursuant to this section may appeal to the director of public works by giving written notice of appeal to the director of public works no later than ten days after receiving notice of the penalty or stop work order. The director of public works shall consider such an appeal within seven days after receiving the notice of appeal. The decision of the director of public works on the appropriateness of the assessment of a civil penalty or the issuance of a stop work order shall be final. Any person who fails to provide notice of appeal as required in this section waives his or her right of appeal.

(Ord. No. 14665, § 2, 8-18-2014; Ord. No. 15296, § 1, 5-21-2018)

Sec. 62-53. General requirements for work in the public way.

(a) *Permits; required information.* Persons doing work in the public way and users, including but not limited to users with a franchise or license with the city, shall obtain required permits and shall pay applicable application, review, permit, and inspection fees. Permits may be denied if the person or user owes money to the city for prior fees, restoration costs, or other costs sustained by the city in connection with work or facilities in the public way. Applicants for permits shall furnish drawings, maps, and any other information that may be required by the department in the form the department requests and shall seek approval of construction plans, if required.

(b) *Compliance with requirements; revocation of authorizations.* Persons and users shall comply with this ordinance, with the additional standards adopted by the department, and with the requirements of authorizations. The department may revoke an authorization for noncompliance with its terms and conditions or implementing standards and requirements or when an activity endangers the public health or safety.

(c) *Bonds; performance guarantees.* The city may require a person conducting activities in the public way or a user to provide a performance bond or other performance guarantee for the work in subsection (a) or for keeping facilities in the public way. The amount, form, and content of the guarantee shall be determined in the discretion of the city. The city may increase or decrease the amount of the bond or performance guarantee required. The city shall determine, in its discretion, the time period for which a performance guarantee shall be kept in force. The city may consider, among other things, the time period for a project and assessment of the performance of the project, the length of a license or franchise, and/or the projected time during which facilities will exist in the public way. The performance guarantee shall, among other things, ensure compensation for i) damages resulting from the proposed work or a user's maintenance of facilities in the public way; ii) direct and indirect costs to the city of remedying damage to the public way or facilities within the public way; iii) direct and indirect costs to the city of remedying noncompliance with city ordinances or authorizations; and iv) fines or penalties owed to the city. The rights reserved to the city under a bond or performance guarantee do not limit the claims or rights the city may bring against a person, except where a bond or guarantee has fully satisfied a city claim. Every bond shall require the surety to provide notice of cancellation or nonrenewal by registered or certified mail, which notice must be received by the department at least 30 days prior to any cancellation or nonrenewal.

(d) *Insurance.* The city may require persons that do work in the public way and users to provide insurance by a company authorized to do business in the state, including but not limited to: i) workers' compensation coverage for all employees; ii) employers' liability insurance; iii) commercial general liability; and iv) business auto policy. The city may require that the city be named as an additional insured on such insurance policies. The amount of insurance shall be as determined by the city.

(e) *No interference with city utilities.* Persons doing work in the public way shall not interfere with existing city utilities, such as infrastructure for water and sewer, the natural and constructed stormwater system, and traffic signals and associated lines, or the repair or replacement of such systems. Persons doing work in the public way shall give the department at least ten working days to locate and mark any existing city utility lines prior to initiating work. Damage to city utilities or other infrastructure shall be paid for by the person or user contracting for the work that resulted in such damage. If facilities are installed in violation of this provision, the city may require their removal, at the owner's expense.

(f) *Compliance with regulations, safety standards, and industry codes.* Persons and users performing work in the public way shall ensure worker, traffic, and pedestrian safety and shall ensure that all work is performed in accordance with industry standards. Compliance with all federal, state, and local regulations, and all federal, state, local and industry codes and standards is required. These include but are not limited to compliance with the Occupational Safety and Health Act; compliance with the National Electrical Code and National Electrical Safety Code; compliance with fiber optic installation standards and telecommunication industry standards; compliance with plumbing and pipe installation

codes and standards; and compliance with standards and codes for traffic safety and lane closures. Persons and users shall provide all equipment and personnel necessary to meet applicable regulations, codes, and standards and shall furnish additional equipment or personnel if requested by the city. Information requested by the city regarding compliance with these standards shall be provided within the time frame requested by the city.

(g) *Licensed professionals.* Work in the public way shall be performed and supervised by licensed professionals where required under state law.

(h) *Notice of beginning and end of project.* Persons doing work in the public way shall notify the department upon beginning and ending a project in the public way.

(i) *Inspections; fees.* The department may conduct inspections of work performed in the public way. Persons performing such work and users shall comply with all directives of the city to facilitate such inspections. The department may charge fees as set by the city council for such inspections, which may be varied to account for the nature of the project, the number of inspections required, or other factors. The department may direct a person or user to do additional work as a result of an inspection and such person or user shall comply with such directive.
(Ord. No. 14665, § 2, 8-18-2014)

Sec. 62-54. Restoration of surrounding areas.

(a) *Obligation to restore disturbed areas.* A person or user that conducts excavation or other activities that disturb the public way or planting within the public way or facilities within the public way shall restore the public way to a condition equivalent to that it was in prior to the disturbance. The restoration shall include but is not limited to installation of pavement, resurfacing nearby areas, grading other surface areas, restoring below ground areas, planting and landscaping, replacing curb ramps to current standard, and repairing improvements and facilities. Restoration shall meet the standards set by the department. The department may also require restoration of areas that have not been disturbed if it is necessary to restore the disturbed areas to a similar functional condition as existed prior to the person's or user's work.

(b) *Temporary restoration.* Where permanent restoration is impractical because of weather or other circumstances, the department may require temporary restoration to be followed by permanent restoration.

(c) *Timetable set by city.* The department shall determine the time period during which restoration must be accomplished.

(d) *Repair of inadequate restoration work.* Where restoration work proves to be inadequate over time, as determined in the department's discretion, the department may require additional restoration. Such additional restoration may be required for a period of three years from the date of completion of the initial restoration work. The person or user

responsible for the work necessitating the original restoration shall be responsible for the costs of the additional restoration. The department's inspection and/or approval of original restoration work does not waive the department's right to require additional restoration.

(e) *Reimbursement to city of costs of restoration.* If a user or other person responsible for damage to the public way does not complete required restoration during the period required by the department, the city may complete the restoration. The costs shall be promptly reimbursed by the user or the person directing the original work that required restoration of the public way.
(Ord. No. 14665, § 2, 8-18-2014)

Sec. 62-55. Additional requirements for location, relocation, maintenance and removal of facilities in the public way.

In addition to complying with sections 62-51 through 62-54, users that locate, relocate, repair, maintain, or remove facilities in the public way shall also comply with the following requirements:

(1) *Locations determined in discretion of department.* The department shall have the discretion to approve, deny, alter, and condition all proposed locations of facilities in the public way, and to determine whether placement, if allowed, shall be above ground or below ground.

a. To the extent practicable, all facilities located in the public way shall be located entirely below ground (underground).

b. When locating a facility entirely below ground is not practicable, the facility shall be located such that those portions of the facility that can be located below ground are so located, and all other elements of the facility are flush with the top of grade and do not pose a tripping hazard.

c. When portions or all of the facility cannot be located below ground or flush with the top of grade, facility locations shall be proposed by a North Carolina registered professional engineer or landscape architect, under seal, including an analysis of the vehicular and pedestrian clear zone per American Association of State Highway and Transportation Officials (AASHTO) standards, and including facility locations entirely outside of the clear zone.

d. When facilities cannot be located entirely outside of the clear zone, all elements of the facility not flush with the ground or below ground shall be supported exclusively by break-away supports meeting AASHTO and/or Federal Highway Administration (FHWA) standards and specifications.

(2) *Underground locations for low-voltage wire and telecommunications cabling, including fiber optic cabling.* To the extent practicable, low-voltage wires, telecommunications cabling, including fiber, and similar conduit shall be located underground. A user that wishes to place such facilities above ground shall demonstrate to the city's satisfaction why above ground placement is necessary. It is preferred that all

low-voltage wire, telecommunications cabling, and fiber facilities within a softscape portion of the right-of-way be housed in ducts and/or conduit that can house multiple facilities. However, if the National Electric Code permits the direct bury (no duct or conduit) of the facility, the facility may be direct buried at a depth of no less than 12 inches below the ground surface. This depth of burial is required to provide protection to the direct buried facility. The facility owner shall be solely responsible for all damage to direct buried facilities that have not been installed to the required depth of 12 inches or more below the ground surface.

(3) *Existing ducts.* Facilities shall be located in existing ducts if such ducts are available and practicable to use, as determined in the discretion of the city, taking into account relevant considerations. A user shall take reasonable steps to procure the right to use existing ducts.

(4) *Documentation of sufficient space.* A user shall demonstrate to the department's satisfaction that sufficient space exists in the public way for its proposed facilities without interfering with existing or future public projects, and that placement of the facilities will not unduly disrupt use of the public way or negatively impact the condition of the public way.

(5) *Posting of notice.* The city may require a user to post written notice of proposed work or activities along the public way impacted and/or to distribute notices to individual properties located along the public way.

(6) *Documentation to city upon completion.* Users shall give the department all information it requests regarding the installation of facilities upon completion. Such information may include, but is not limited to as-built or other maps, which shall be furnished in the form required by the department, and changes to planned locations that were necessary to avoid pre-existing infrastructure.

(7) *Maps and information on file with users.* During the time period a user has facilities in the public way, the user shall maintain one or more maps showing the placement of its facilities in the public way. A user shall also maintain other information regarding the function and capacity of its facilities. Upon the city's request, the user shall furnish these maps and information to the city within the time period specified at no cost and in such form and detail as the city requires.

(8) *NC One Call.* Users with underground facilities shall maintain a membership in the NC underground locating system during the time period facilities are located in the public way and respond to and locate underground facilities as required by the Underground Damage Prevention Act, G.S. 87-101 et seq., and other applicable regulations and requirements.

(9) *Relocation of facilities.* A user shall at its own cost relocate its facilities within a time determined in the discretion of the city if the city determines in its discretion that the facilities:

a. Interfere with the use of the public way, or the provision of services to city residents; or

b. Interfere with the repair or maintenance of any city-maintained utility; or

c. Will impede the construction of a project funded in part with public funds, or a project to be dedicated to the public upon completion, or

d. That the public way can be better or more efficiently utilized by the relocation of the facilities.

(10) *Maintenance of facilities.* Users shall monitor, maintain, and repair their facilities in the public way so that they function in a safe manner and do not create a risk to persons or property. Users shall notify the department of maintenance and repair work that may impact the public way or use of the public way. Users shall give the city all information requested regarding the condition of facilities. Users shall repair facilities upon city request.

(11) *Removal of facilities in the public way.* Facilities placed in the public way without an authorization, if one is required by the city, and facilities for which a license or franchise has expired shall be removed upon order of the city. In addition, all abandoned facilities or facilities that no longer function as part of a user's system shall be removed by their owner. If facilities that are required to be removed are not removed, the city may remove them, with the cost of removal to be borne by the owner.

(12) *Third party use.* Users shall permit other licensees and franchisees, including holders of franchises awarded pursuant to G.S. 66-350 et seq., to utilize available space in or on the user's facilities upon reasonable terms and charges negotiated by and agreed to by the respective users, franchisees, and licensees. Charges calculated in accordance with section 224 of the Communications Act of 1934, as amended, 47 USC 224 shall constitute reasonable charges for pole attachments.

(Ord. No. 14665, § 2, 8-18-2014; Ord. No. 15255, § 1, 2-5-2018; Ord. No. 15297, § 1, 5-21-2018; Ord. No. 15791, § 1, 4-5-2021)

Sec. 62-56. Exemptions from requirements.

The department may exempt its contractors or the North Carolina Department of Transportation (NCDOT) from particular requirements in sections 62-51 through 62-55 when substantial compliance has been assured through the city's contracting system, or, in the case of NC DOT, where the need for state infrastructure on city roads, or a joint undertaking by the city and NC DOT, or the use of state controlled areas of the public way makes the application of such requirements unreasonable.

(Ord. No. 14665, § 2, 8-18-2014)

Sec. 62-57. Franchises and licenses.

(a) *Services in the public way subject to a franchise.* In order to place or maintain facilities in the public way, all persons that operate utilities that the city may franchise under the authority of G.S. 160A-319 or City Charter sections 67 through 73 shall apply for a franchise to be approved by the city council in accordance with the City Charter. Services for which a

franchise shall be required include telephone; electrical power; water; wastewater collection, treatment, or disposal; gas production, transmission or distribution; transportation; solid waste collection and disposal; off-street parking systems; and stormwater management and drainage services. All franchises shall provide the city with a performance bond or other performance guarantee. All franchises shall obtain a permit from public works prior to performing work in the public way.

(b) *Licenses.* A user shall apply for a license prior to placement or maintenance of facilities in the public way in situations in which the city does not issue franchises, and in which the city does not offer an exemption from license requirements as identified in subsection (iii) below. The director of public works or designee shall determine, in his/her discretion, the necessity of a license and the type of license, taking into consideration the length of time the facilities will be in the public way, the potential impact on the public way, and the city's prior practice.

(i) Facilities for which a license shall be required include monument signs, monument mailboxes and telecommunications cables.

(1) *Monument signs and mailboxes license.* A monument sign license and/or a monument mailbox license may be granted by the public works department to construct and maintain a monument sign and/or monument mailbox within the public way.

(2) *Telecommunications license.* A telecommunication license may be granted by the public works department to construct and maintain equipment that transmits/communicates between points specified by the user and provides services that are regulated under the Federal Telecommunications Act of 1996, are not subject to a franchise agreement, and are not among those facilities exempt from license requirements.

(ii) Facilities for which a license may be required include irrigation systems, specialty street signs, canopies, specialty pavement structures, and other features. Such licenses may be granted by the public works department

(iii) Facilities exempt from license requirements include small wireless facilities. Such facilities shall instead apply for a master encroachment permit and, additionally, permits for individual locations. These two types of permits shall be subject to administrative review and approval.

(c) *Compliance with all other requirements.* The requirements of sections 62-51 through 62-55 apply to franchisees and licensees and all franchisees and licensees shall apply for necessary authorizations from the department in addition to the franchise or license they hold.

(d) *Contents of franchises and licenses.* Licenses and franchises shall, at a minimum, contain the following provisions:

(1) The identity and legal status of the user;

(2) The name and contact information for the officer, agent, or employee of user responsible for communications with the city, which shall be continuously updated as the information changes;

(3) A general description of existing and proposed facilities and the portions of the public way to be utilized for such facilities, with additional specifics as may be required by the department;

(4) A description of the services, if any, to be offered within the city, and the parts of the city or properties within the city where such services will be available, which description shall be updated as services change;

(5) A description of the services or facilities to be offered to the city itself, or to other public or governmental institutions within the city, if any such services are to be offered;

(6) Acknowledgment that the license or franchise does not limit the city's police power and that the city may enact additional ordinances, standards, and requirements that will apply to user;

(7) Acknowledgment that the user will be required to obtain additional permits and approvals from the city beyond the license or franchise;

(8) Acknowledgment that the user is responsible for all damage caused by its contractors;

(9) Commitment to pay for all damages that arise in connection with the user's acts or omissions in the public way or the user's facilities;

(10) Commitment to defend and indemnify the city for all claims and liabilities that arise in connection with the user's acts or omissions in the public way or the user's facilities;

(11) A description of bonds or performance guarantees and insurance that are required, if any;

(12) The time period of the franchise or license;

(13) In the case of a franchise, acknowledgment that transfer or assignment requires approval of the city council under section 70 of the City Charter.

(e) *Assignment.* If a license allows assignment, notice of the assignment shall be given to the department not less than 30 days prior to the assignment, with ownership and contact information updated to reflect the proposed assignment.

(f) *Information available to city.* All licensees and franchisees shall provide the city i) all books, data, records, maps, plans, GIS data files, billings, and payments or submissions to the state relating to the user's facilities and their function, location, income, history, maintenance, and repair, and ii) filings with the state utilities commission. The documents shall be provided within a reasonable period of time, not to exceed 30 days. The city may

examine all such information at no cost. If information is copied for the city, the costs of copying, if any, shall be limited to the charges of a commercial copying facility selected by the city.

(g) *Declaration of forfeiture.* The city may declare a forfeiture of a license or franchise and all of the user's rights arising thereunder in the event the user does not comply with material provisions of its license or franchise, or is in substantial violation of this ordinance or other standards adopted by the city. The city shall give a franchisee or licensee at least 30 days' written notice of its intent to declare a forfeiture, which notice shall include a description of the noncompliance. The user shall have 30 days from receipt of the city's notice to cure the noncompliance or to make substantial progress toward such cure, as determined in the reasonable discretion of the city.

(h) *Licensee to perform annual review.* Licensees shall, on an annual or more frequent basis, review each license held by licensee and chapter 62 of the Durham City Code of Ordinances. Licensees shall bring to the attention of the department any discrepancies between the license and the City Code of Ordinances, any change in insurance provided pursuant to the license, or any change to any item listed in subsection (d) of this section. (Ord. No. 14665, § 2, 8-18-2014; Ord. No. 15413, § 1, 12-17-2018; Ord. No. 15791, § 1, 4-5-2021)

Editor's note—Ord. No. 14665, § 2, adopted August 18, 2014, set out provisions for use herein as § 62-56. Inasmuch as § 62-56 already existed, and at the editor's discretion, those provisions have been included herein as § 62-57.

Sec. 62-58. Small wireless facilities.

(a) Small wireless facilities meeting the height requirements of G.S. 160A-400.55(b) shall require a permit and shall be subject to sections 62-50 through 62-55, except where clarified or altered by the terms of this section. For other small wireless facilities, see section 62-58(b) below.

(1) *General.*

a. Wireless providers may occupy and use the public way to collocate small wireless facilities to provide wireless services upon, along, over and under the public way in the city such that such collocations do not inhibit other utility installations within the public way.

b. The city retains its right to impose fees and compensation to the extent not prohibited by federal and state law.

c. The city may apply lawful, future fees and compensation to small wireless facilities placed in the public way.

d. Wireless services providers shall pay taxes for telecommunications services that are subject to taxation.

e. Use of the public way is allowed only to the extent the city itself possesses such rights.

f. Small wireless providers shall obtain approvals legally necessary to use the public way from owners, other than the city, of property interests in the public way or adjacent to the roadway system located within the city.

g. No wireless provider shall have exclusive right or privilege to occupy or use the public way for delivery of wireless services or any other purpose.

h. The city reserves all rights to use the public way for any purpose not prohibited by law, including the provision of wireless services, and all rights to grant authorizations to any other person(s), including any wireless provider, to use the public way.

i. Wireless providers shall have no right, title, or interest in the public way.

j. Wireless providers use of the public way shall not divest the city of any interest in the public way.

k. The city does not warrant its legal interest in the public way.

l. Nothing in this section shall be deemed or construed to stop or limit the city from exercising any regulatory, police, governmental, or legislative function pursuant to applicable law, which powers include, but are not limited to, the authority to enact regulations, ordinances, rules, and orders not prohibited by state or federal law that affect the public way or a wireless provider's use of the public way.

m. The terms of this section do not permit the wireless services provider to operate a cable system or to provide cable service, as those terms are defined by Section 602 of the Cable Communications Policy Act of 1984, as amended (47 U.S.C. Section 522), and the wireless services provider agrees that it will not operate a cable system or provide cable service in the city unless it obtains authorization from the city.

n. This section only permits the wireless provider, upon obtaining required approvals and permits, to place its small wireless facilities in those portions of the public way approved by the city.

o. Collocation of small wireless facilities shall commence within six months of permit issuance and shall be activated for use no later than one year from the permit issuance date. Failure to commence collocation within six months of permit issuance shall void said permit. A small wireless facility not activated within one year of permit issuance shall be considered abandoned and shall be removed from the public way at the wireless provider's sole expense.

p. No more than 25 small wireless facilities may be included in a single permit application.

q. For general public safety and design purposes, documentation of compliance with the structural, operational, and insurance requirements for wireless communication facilities as found in the Unified Development Ordinance shall be required for all small wireless facility installations, unless superseded by this section.

r. Historic preservation requirements of the Unified Development Ordinance shall apply to all permit applications, as applicable.

(2) *Design standards for installations on existing poles.*

a. Small wireless facilities installed on existing utility, street light, or traffic signal poles shall comply with the following design and concealment standards:

1. For areas zoned single family residential where existing utilities are installed underground, the maximum pole height shall be 40 feet. For all other areas, the maximum height shall be 50 feet.

2. They shall be designed to match the design and color of the existing pole.

3. To the extent practicable, all accessory cables and equipment shall be installed underground.

a. If any equipment cannot be installed underground, then it shall be installed at the base of the pole and concealed with skirting compatible in design and color to the pole.

b. If any equipment cannot be installed at the base of the pole and concealed with skirting, then it shall be flush-mounted to the pole.

b. All installations shall comply with all City Code and Unified Development Ordinance undergrounding requirements.

c. Antenna shall be installed within the pole and not visible. If any antenna cannot be installed within the pole and made not visible, then it shall extend vertically from the pole or be flush-mounted to the side of the pole, and shall be designed to be an architecturally compatible extension of the pole. The diameter of the antenna shall be consistent with the diameter of the pole, not including other appurtenances or extensions from the pole, or the base to which the pole is mounted. The antenna shall not extend more than ten feet above the top of the pole.

(3) *Requirements for new poles.*

a. Unless a new pole replaces an existing pole in substantially the same location, to the extent practicable, poles shall be installed at least 300 feet from any existing or proposed pole. Any wireless services providers desiring to install poles less than 300 feet apart shall demonstrate to the city's satisfaction why such placement is necessary.

b. If possible, poles shall be designed to accommodate small wireless facilities for multiple wireless services providers.

c. Poles shall be located a minimum of 15 feet from any tree, measured to the tree-trunk center. Additionally, 80 percent of the root protection zone shall remain undisturbed. The root protection zone shall either be a six-foot radius around the tree or a one-foot radius for every inch of tree diameter at breast height, whichever is greater. This minimum separation shall not apply for a new pole that replaces an existing pole, where the new pole is installed in the same place as, or immediate vicinity of, the existing pole.

d. Poles shall be designed pursuant to city standards or the applicable utility's standard, and function as street light poles, utility poles, or traffic signal poles in consultation with the city or the applicable utility, and shall be incorporated into the applicable utility or signaling system.

e. Poles shall not exceed 40 feet in height from ground level in areas zoned single-family residential. In all other areas, the maximum height shall be 50 feet.

f. Antennae shall not extend beyond ten feet above the top of the pole.

g. Poles shall be designed and installed with materials and appearance consistent with existing poles in the adjacent public way, unless materials and appearance are prescribed by other ordinance, law, or city requirements.

h. To the extent practicable, all accessory cables and equipment shall be installed within the pole and/or placed underground per City Code and Unified Development Ordinance undergrounding requirements. If any equipment cannot be installed underground, then it shall be installed on or at the base of the pole and concealed with skirting compatible with, and integrated into, the design of the pole.

(4) *Pedestrian and vehicular movement requirements.*

a. No small wireless facility, structure, or associated equipment shall impede or interfere with pedestrian or vehicular movement, circulation, or visibility. Specifically, no small wireless facility, structure, or associated equipment shall:

1. Extend into an existing or proposed sidewalk or walkway, trail, bicycle parking area unless such extension provides at least 7.5 feet vertical clearance;

2. Extend into an existing or proposed driveway, or vehicular parking area unless such extension provides at least 15 feet vertical clearance.

3. Extend into any motor vehicle travel lane.

b. No new installation shall be installed within sight distance triangles pursuant to Unified Development Ordinance requirements.

c. Installations that replace existing poles or collocate onto existing facilities already located within sight distance triangles shall not locate or install equipment that diminishes visibility relative to existing conditions. This requirement can be waived pursuant to Unified Development Ordinance standards for alternative dimensions.

(5) *Information required.* Prior to applying for a permit to install any portion of its small wireless facilities, a wireless provider shall provide the following information to the city:

a. The identity and corporate form of the wireless provider and affiliates who will perform work in the city's public way;

b. The name and contact information for the officer, agent, or employee of the wireless provider responsible for communications with the city;

c. A statement as to whether the services provided are telecommunications services taxed under G.S. 105-164.4(a)(4c) or are video programming taxed under G.S. 105-164.4(a)(6); and

d. Attestation that small wireless facilities will be collocated on the utility pole, city utility pole, or wireless support structure, and that the small wireless facilities shall be activated for use by a wireless provider to provide service no later than one year from the permit issuance date.

(6) *Relocation of facilities.*

a. Wireless providers shall, at no cost to the city, relocate or remove portions of its small wireless facilities located in the public way in the event the public way is closed, or if the city, in its sole discretion, determines that the location of a small wireless facility interferes with the efficient provision of utility services to city residents, or interferes with public safety and welfare, or conflicts with any highway, sidewalk, trail, or utility project, or that the public way can be better or more efficiently utilized by the removal and relocation or consolidation of

certain existing facilities. The city shall provide the wireless provider 180 days' written notice prior to the required relocation or removal of small wireless facilities.

b. Except in the case of emergency repairs, before the wireless provider constructs, installs, upgrades, repairs or removes small wireless facilities along a portion of the public way, wireless providers shall provide notice as required by Code section 62-55(5).

(7) *Construction, inspection, restoration, and removal.*

a. At the city's request, as built maps in such further detail as the city may require shall be provided no more than 60 days following the conclusion of construction, or at any other time as the city may require.

b. Wireless providers will advise the city of any significant discrepancy between construction plans and actual construction.

c. Wireless providers shall advise the city if, during construction of small wireless facilities, such construction is within six feet of any water or sewer facilities.

d. Engineering, construction and as-built documents shall be provided in hard copy [paper] and/or electronic copy as requested by the city.

e. In addition to design maps and as-built maps, wireless providers shall provide such other information regarding existing facilities in the public way as the city may require, in such detail as the city may require.

f. The wireless provider shall also provide a traffic control plan that meets both city and state specifications. Approval of such plan by the city shall not constitute a determination that the traffic control measures are sufficient to protect the public.

g. The wireless provider shall take all precautions necessary to protect the public from increased risks or disruptions resulting from installation of small wireless facilities.

h. The wireless provider shall maintain adequate warning signs, barricades, signals, other devices, and traffic control personnel necessary to provide for the safe and efficient flow of traffic.

i. Wireless provider shall immediately repair and restore any damage to property resulting from installation, maintenance, or repair of, or other work performed on its small wireless facilities.

j. The wireless provider shall be responsible for any claims made for actual, consequential, or other damages to persons or property resulting from such work.

k. The wireless provider shall comply with all applicable federal, state and local regulations, such as the National Electrical Code, National Electrical Safety Code, fiber optic cable installation specifications, 1987 telecommunication

industry committee standards, traffic safety/lane closure rules and construction requirements promulgated by the city and the North Carolina Department of Transportation as amended.

l. The city may inspect the small wireless facilities and restoration work performed by the wireless provider.

m. The wireless provider shall notify the city when it has completed each permitted portion of its small wireless facilities; or at such other time the city requests. Following inspection, the wireless provider shall make any corrections necessary to bring the permitted installation into conformance with city requirements.

n. Without limitation, wireless providers and wireless infrastructure providers shall restore land, utility lines, other improvements, ground cover, and landscaping disturbed by excavation and construction in the public way to the standards specified by the city.

1. Where permanent restoration is impractical because of weather or other circumstances, temporary restoration followed by permanent restoration may be required.

2. Restoration shall be accomplished within the time approved by the city at the time the excavation permit is approved. If the wireless provider does not complete the restoration during this period, the restoration may be completed by the city and the cost of such restoration shall be promptly reimbursed by the wireless provider under the provisions of remedies section below.

3. Where restoration work performed by wireless provider proves to be inadequate over time, as determined in the sole, reasonable discretion of the city, wireless provider shall perform additional restoration work as directed by the city.

4. Inspection and approval by the city immediately after installation does not constitute a waiver of the city's rights to determine that the restoration work is riot adequate over time and needs to be remedied by wireless providers.

o. The city may approve the performance of repair or emergency work without issuance of a permit.

1. When it is impossible for wireless provider to give the city notice of repair work because of the unexpected, emergency nature of such work, wireless provider may perform such work provided notice is given to the city as promptly as possible after the commencement of such work and a permit request is submitted retroactively or within two working days.

(8) *Abandonment.*

a. Wireless providers shall remove all abandoned small wireless facilities within 180 days of abandonment.

1. Should the wireless provider fail to timely remove the abandoned wireless facility, the city may cause such small wireless facility to be removed and may recover the actual cost of such removal, including legal fees, if any, from the wireless provider.

b. A small wireless facility shall be deemed abandoned at the earlier of the date that the wireless provider indicates that it is abandoning such facility or the date that is 180 days after the date that such small wireless facility ceases to transmit a signal, unless the wireless provider gives the city reasonable evidence that it is diligently working to place such small wireless facility back in service.

(b) All other small wireless facilities shall be subject to the terms of section 62-57 and the Unified Development Ordinance.

(Ord. No. 15255, § 1, 2-5-2018; Ord. No. 15297, § 1, 5-21-2018)

Secs. 62-59—62-78. Reserved.

DIVISION 2. DRIVEWAYS AND DRIVEWAY APPROACHES

Sec. 62-79. Definitions.

For the purposes of this division, the following terms shall have the meanings respectively ascribed to them:

Commercial driveway means a driveway providing vehicular ingress and egress to and from property used for purposes other than residential with the exception of those properties used by service stations.

Corner means the point of intersection of the line of two street curb faces extended into the street intersection.

Curb parking space means a length of curb equal to 20 feet where a vehicle can park.

Curb return means that portion of a curb next to a driveway approach which includes the radius of curvature, or the ramp type lug or commercial or industrial type pavements and which connects the driveway approach to the street curb.

Driveway means a place provided to serve private property for the operation of vehicles.

Driveway approach means an area, construction or facility between the roadway of a public street and private property intended to provide access for vehicles from the roadway of the public street to private property; provided that a driveway approach shall provide access to something definite on private property, such as a parking area, a driveway or a door at least seven feet wide, intended and used for the entrance of vehicles.

Multifamily residential driveway means a driveway providing vehicular ingress and egress to and from property used for multifamily residential purposes.

Outside sidewalk line means a line parallel to the property line lying along the edge of the sidewalk nearest the street roadway or curb or, where no sidewalk exists, a line in the street right-of-way parallel to and five feet from the line of the private property.

Parcel of land means a lot or a tract officially registered under one ownership.

Residential driveway means a driveway providing vehicular ingress and egress to and from property used for residential purposes.

Service station driveway means a driveway providing for vehicular ingress and egress to and from property used for service stations for the retail sale of motor fuels.
(Code 1964, § 19-39; Code 1982, § 18-50)

Sec. 62-80. Powers and duties of director of transportation and utilities generally.

The director of transportation and utilities shall have full power and authority to ascertain and determine whether or not this article is being complied with and shall administer it in accordance with the provisions of this division.
(Code 1964, § 19-40; Code 1982, § 18-51)

Sec. 62-81. Cutting of curb to be in compliance with article.

It shall be unlawful for any person to cut, break out or remove any curb along a street or alley, except as authorized by the provisions of this division.
(Code 1964, § 19-41; Code 1982, § 18-52)

Sec. 62-82. Permit for paving driveway across public way.

No person shall pave a driveway across any public sidewalk, walkway or parkway, or into any street or alley, or cut, break out or remove any curb along a street or alley for the construction of a driveway approach, unless he or she shall first have obtained a permit therefor from the city in accordance with the provisions of this division. A charge for such permit will be as prescribed by the city council.
(Code 1964, § 19-42; Code 1982, § 18-53; Ord. No. 5147, § 1, 5-7-1979)

Sec. 62-83. Revocation of permits for use of public property.

All permits granted for the use of public property under the terms of this division shall be revoked at the will of the city council.
(Code 1964, § 19-60; Code 1982, § 18-55)

Sec. 62-84. Specifications for driveway approaches; supervision and inspection of work.

All work done in the construction of driveway approaches shall conform to the standard specifications for concrete sidewalk and driveway approaches, as established by the city manager. The city manager shall supervise and inspect all such work.
(Code 1964, § 19-44; Code 1982, § 18-56)

Sec. 62-85. Width of driveway approaches.

The requirements as to the width of driveway approaches shall be as follows:

(1) The width of a driveway approach connecting to a residential driveway shall not exceed 20 feet in width as measured along the outside sidewalk line; except, that in the case where the driveway approach is to serve separate parcels of land, the driveway shall not exceed 25 feet in width as measured along the outside sidewalk line. The width of a driveway approach connecting to a residential driveway serving a double garage shall not exceed 25 feet in width as measured along the outside sidewalk line and subject to the approval of the director of transportation and utilities. The width of a driveway approach connecting to a multifamily residential driveway shall not exceed 25 feet in width as measured along the outside sidewalk line.

(2) The width of a driveway approach connecting to a commercial driveway shall not exceed 30 feet in width as measured along the outside sidewalk line.

(3) The width of a driveway approach connecting to a service station driveway shall not exceed 35 feet in width as measured along the outside sidewalk line.

(4) The minimum width of any driveway approach shall be 12 feet.
(Code 1964, § 19-45; Code 1982, § 18-57)

Sec. 62-86. Requirements when more than one driveway approach on a street front serves a single parcel of land.

Where more than one driveway approach on a street front serves a single parcel of land, the driveway approach shall be so constructed as to provide not less than 15 feet between the driveway approaches, which distance shall be measured along the straight portion of the curbline.
(Code 1964, § 19-46; Code 1982, § 18-58)

Sec. 62-87. Direction of driveway approaches.

The sides, edges or curbs of driveway approaches shall be at right angles to the street line. The continuation of a driveway across the sidewalk area shall continue at 90 degrees to the curbline.
(Code 1964, § 19-48; Code 1982, § 18-59)

Sec. 62-88. Limitation on number of driveway approaches serving single establishment.

The number of driveway approaches serving a single residential, business or commercial establishment shall not exceed two for any one street.
(Code 1964, § 19-49; Code 1982, § 18-60)

Sec. 62-89. Distance of driveway approach or curb return from fire hydrant, etc.

No portion of any driveway approach or curb return shall be constructed closer than:

(1) Fifteen feet to the curbline of an intersecting street.

(2) Three feet to a fire hydrant, catchbasin, or end of curb circle at a corner.

(3) Five feet to the property lines extended at intersecting streets.
(Code 1964, § 19-50; Code 1982, § 18-61)

Sec. 62-90. Radius of curvature of curb returns.

The radius of curvature of the curb return shall not exceed the distance between the curbside of the sidewalk line and the curbline except that in no case shall the radius of curvature exceed five feet.
(Code 1964, § 19-51; Code 1982, § 18-62)

Sec. 62-91. Grade at which driveway approaches to cross sidewalk.

Driveway approaches shall cross the sidewalk area at the sidewalk grade established by the city.
(Code 1964, § 19-52; Code 1982, § 18-63)

Sec. 62-92. Pipe at ditch lines for private driveways, etc.

Each owner of each lot abutting upon a dirt or paved street without curb or gutter shall provide pipes of adequate size and material, as approved by the public works director, for private driveways and walkways at the ditch line on city streets to carry the flow of surface water.
(Code 1964, § 19-53; Code 1982, § 18-64; Ord. No. 5150, § 1, 5-7-1979; Ord. No. 14818, § 1, 8-3-2015)

Sec. 62-93. Construction of driveway approaches between curb and private property for use as parking space.

It shall be unlawful for any person to construct, alter or extend, or to permit or cause to be constructed, altered or extended, any driveway approach which can be used only as a parking space or area between the curb and private property.
(Code 1964, § 19-54; Code 1982, § 18-65)

Sec. 62-94. Relocation of existing driveway approaches.

Existing driveway approaches shall not be relocated, altered and reconstructed without a permit, as required in section 62-82, for such relocation, alteration or reconstruction. Such driveway approaches when so relocated, altered or reconstructed shall be subject to the limitations set forth in this division.
(Code 1964, § 19-55; Code 1982, § 18-66)

Sec. 62-95. Duty of owner of abutting property upon change in use of driveway approach making driveway approach unnecessary.

When the use of any driveway approach is changed making any portion or all of any driveway approach unnecessary in the opinion of the director of transportation and utilities, the owner of the abutting property shall, at his or her own expense, replace all curbs, gutters, parkways and sidewalks within 30 days after written notice from the director.
(Code 1964, § 19-56; Code 1982, § 18-67)

Sec. 62-96. Duty of owner of abutting property served by nonconforming driveway approach when existing building thereon is demolished.

When an existing building or structure which is served by a driveway approach not conforming to the provisions of this division is demolished, repaired or altered, the owner of the abutting property shall, at his or her own expense, reconstruct the driveway approach so as to conform to the provisions of this division.
(Code 1964, § 19-57; Code 1982, § 18-68)

Sec. 62-97. Interference with streetlighting poles, traffic-signal standards, catchbasins, etc.

No driveway approach or curb return shall interfere with municipal facilities such as streetlighting poles, traffic-signal standards, signals, catchbasins, hydrants, crosswalks, bus loading platforms, utility poles, fire alarm supports, underground pipes, or ducts, or other necessary structures. The director of transportation and utilities is authorized to alter and effect the removal of such reconstruction of any driveway approach which now conflicts with street structures or which will conflict with street structures in the future. The cost of relocating such driveway approaches shall be at the expense of the abutting property owner.
(Code 1964, § 19-58; Code 1982, § 18-69)

Sec. 62-98. Variances; appeal to city council from denial of variance; monthly report of variances approved.

If applicant can show practical or undue hardship in the way of carrying out the strict letter of this division, the director of transportation and utilities is hereby authorized to permit a variance from the provisions of this division; and in the event the director of transportation and utilities refuses to grant such a variance, the applicant shall be entitled to appeal to the city council. The director shall make monthly reports to the city manager, in writing, of all variances approved by him or her under the terms hereof.
(Code 1964, § 19-59; Code 1982, § 18-70)

Secs. 62-99—62-124. Reserved.

DIVISION 3. ACCEPTANCE OF INFRASTRUCTURE FOR MAINTENANCE BY CITY*

Sec. 62-125. Power of director as to administration.

The director of public works through the city manager shall have full power and authority to administer this division and to determine whether infrastructure subject to an acceptance request has been completed in conformance with all applicable city requirements.
(Code 1964, § 19-62; Code 1982, § 18-80; Ord. No. 14496, § 1, 9-3-2013; Ord. No. 15448, § 1, 3-18-2019)

Sec. 62-126. Application for acceptance of infrastructure.

Any person requesting street infrastructure acceptance by city council shall submit a request to public works on a form prepared by the department. A street acceptance request includes a request to city council to accept any water, sanitary sewer, or storm drainage systems located within the street subject to the acceptance request.

Any person requesting water, sanitary sewer, storm drainage system, sidewalk or greenway trail acceptance, when these items are located within dedicated public easements or state maintained streets, shall submit a request to public works on a form prepared by the department. For purposes of this division a greenway trail is defined as a two-way path that may be used by pedestrians, skaters, wheelchair users, joggers, and other non-motorized users for commuting, travel, leisure, or recreational purposes. A greenway trail is generally physically separated from motorized vehicular traffic by open space or a barrier.
(Code 1964, § 19-63; Code 1982, § 18-81; Ord. No. 14496, § 1, 9-3-2013; Ord. No. 14908, 3-21-2016; Ord. No. 15448, § 1, 3-18-2019)

***Editor's note—**Ord. No. 14496, § 1, adopted September 3, 2013, amended the title of div. 3 to read as set out herein. Previously div. 3 was titled acceptance of street for maintenance by city.

Sec. 62-127. Final acceptance.

When an infrastructure acceptance request form has been submitted as required by section 62-126, and when all applicable requirements of this division have been met, the infrastructure, or portions thereof, shall be recommended for acceptance by the director of public works through the city manager to the city council. Only city council has the authority to accept infrastructure for maintenance by the city.
(Code 1964, § 19-65; Code 1982, § 18-82; Ord. No. 14496, § 1, 9-3-2013; Ord. No. 14908, 3-21-2016; Ord. No. 15448, § 1, 3-18-2019)

Sec. 62-128. Prerequisites to acceptance.

(1) Streets and the water, sanitary sewer, or storm drainage systems located within them shall be considered for acceptance for maintenance by the city when the proper width street is dedicated for public use and a map is recorded in the office of the register of deeds of the county, and the infrastructure is improved in accordance with all applicable city requirements.

(2) Water and sanitary sewer systems, storm drainage systems, sidewalks or greenway trails located within a dedicated easement or state maintained street shall be considered for acceptance for maintenance by the city when the proper easement or width street is dedicated for public use and a map is recorded in the office of the register of deeds of the county, and the infrastructure is constructed in accordance with all applicable city requirements.
(Code 1964, § 19-67; Code 1982, § 18-83; Ord. No. 14496, § 1, 9-3-2013; Ord. No. 15448, § 1, 3-18-2019)

Secs. 62-129—62-154. Reserved.

DIVISION 4. CERTIFICATION OF STREET RIGHT-OF-WAY FOLLOWING CONSTRUCTION ACTIVITY

Sec. 62-155. Restoration of right-of-way before issuance of certificate of compliance.

(a) No certificate of compliance shall be issued for any building construction prior to certification by the city engineer or his or her designee that the condition of the street and street right-of-way adjacent to the building site is acceptable. The inspection shall include:

(1) Proper restoration of grade;

(2) Proper construction or repair of curbs, gutters and sidewalks;

(3) Proper installation of gutter downspout and/or yard drains;

(4) Proper installation and adjustment of sewer lateral cleanouts, water meters and meter boxes;

(5) Proper location and construction of driveway turnouts and/or driveway pipes;

(6) Proper restoration of drainage ditches;

(7) Proper permanent erosion control installations, including seeding and mulching of all disturbed areas;

(8) Proper restoration of street paving (including repair of damage by construction equipment);

(9) Proper restoration or repair of street plantings;

(10) Proper construction of on-site storm drainage facilities.

(b) Compliance with the above requirements concerning restoration shall not prohibit the city from inspecting other damage to the street and street right-of-way and from ensuring compliance with other applicable city ordinances.
(Code 1982, § 18-87; Ord. No. 8013, § 3, 2-19-1990)

Secs. 62-156—62-178. Reserved.

ARTICLE III. STREET AND SIDEWALK ASSESSMENTS

Sec. 62-179. Definitions.

As used in this article, the following terms shall have the respective meanings ascribed to them:

Corner lot used as a single lot means the smallest lot of record or combination of lots of record owned by a single property owner on which a structure can be built in accordance with the UDO.

Front of a corner lot means the side adjacent to a street with the least amount of frontage.

Side of a corner lot means the side adjacent to a street with the greatest amount of frontage.

Street does not include "alley."

Street and sidewalk assessments means assessments for any of the street and sidewalk improvements enumerated in this article.

Street and sidewalk improvements means any of the following, provided, it does not include "alley improvements":

(1) Curb, gutter and paving.

(2) Curb and gutter only.

(3) Paving only (does not include temporary or strip paving).

(4) Curb, gutter and pavement widening.

(5) Street opening, curb, gutter and paving.

(6) Street opening, curb, gutter and paving in accordance with the "Subsidized Street Opening Policy."

(7) Street opening in accordance with the "Minimum Dirt Street Acceptance Policy."

(8) Sidewalk.

(Code 1964, § 19-81; Code 1982, § 18-90; Ord. No. 5193, § 1, 2-20-1978; Ord. No. 5283, § 1, 11-5-1979)

Sec. 62-180. Adoption of Charter provision.

In case of corner lots the maximum exemptions specified for street and sidewalk assessments in Charter section 77(14)(a) and (b) are hereby adopted, except as they are modified by this article.

(Code 1964, § 19-77; Code 1982, § 18-91; Ord. No. 5193, § 1, 2-20-1978)

Sec. 62-181. Zones in which applicable.

The exemptions contained in this article shall apply only in areas that are zoned for residential uses or provided in section 5.1.2 of the UDO.

(Code 1964, § 19-78; Code 1982, § 18-92; Ord. No. 5193, § 1, 2-20-1978)

Sec. 62-182. Applicability when one street only paved.

With regard to street and sidewalk improvements, in the event that neither of the streets abutting on a corner lot used as a single lot has ever been paved and only the street abutting the front of the lot is to be paved, no corner lot exemption is to be given for the paving of that street.

(Code 1964, § 19-79; Code 1982, § 18-93; Ord. No. 5193, § 1, 2-20-1978)

Sec. 62-183. Scope of relief granted.

When either a street or sidewalk assessment roll is prepared and the city council has adopted a new resolution ordering street or sidewalk improvements for the other portion of a corner lot, relief will be given in such a manner, and this article will be interpreted, so as to result in the greatest exemption possible.

(Code 1964, § 19-80; Code 1982, § 18-94; Ord. No. 5193, § 1, 2-20-1978)

Chapters 63—65

RESERVED

Chapter 66

TRAFFIC AND PARKING*

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Sec. 66-3. Obedience to police.
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Sec. 66-70. Stopping or parking in hazardous locations.
Sec. 66-71. Angle parking areas.
Sec. 66-72. Parking near schools.
Sec. 66-73. Intersection at which reduction in speed is required.

***State law references—**Motor vehicles generally, G.S. 20-1, 20-328; operation and rules of the road, G.S. 20-138—20-171; powers of city regarding motor vehicles and traffic, G.S. 20-169, 160-496.1 et seq., 160A-296 et seq.

Sec. 66-74. Stop intersections.
Sec. 66-75. Yield-right-of-way intersections.
Sec. 66-76. Stoplight intersections.
Sec. 66-77. Flashing or blinker-light intersections.
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Article III. Operation of Vehicles

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ARTICLE I. IN GENERAL

Sec. 66-1. Adoption of definitions in General Statutes.

The definitions set out in G.S. 20-4.01, are hereby adopted as a part of this chapter.
(Code 1964, § 12-1; Code 1982, § 20-1)

Sec. 66-2. Other definitions.

In addition to the definitions adopted in section 66-1, the following words and phrases when used in this chapter shall, for the purpose of this chapter, have the meanings respectively ascribed to them herein:

Driver means every person who drives or is in actual physical control of a vehicle.

Official traffic-control devices means all signs, signals, markings and devices not inconsistent with this chapter placed or erected by authority of any public body or official having jurisdiction for the purpose of regulating, warning or guiding traffic. This includes official traffic signals.

Official traffic signals means any device, whether manually, electrically or mechanically operated, by which traffic is alternately directed to stop and to proceed.

Parking means the standing of a vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading.

Pedestrian means any person afoot.

Police officer means any officer of the municipal police department or any officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.

Standing means any stopping of a vehicle whether occupied or not.

Stop when required, means complete cessation of movement.

Stop or *stopping* when prohibited, means any stopping of a vehicle except when necessary to avoid conflict with other traffic or in compliance with the direction of a police officer or official traffic-control devices.
(Code 1964, § 12-2; Code 1982, § 20-2)

Sec. 66-3. Obedience to police.

No person shall willfully fail or refuse to comply with any lawful order or direction of a police officer. In addition to any other remedy available in the Code, failure to comply with the notice is a misdemeanor.
(Code 1964, § 12-4; Code 1982, § 20-3; Ord. No. 15982, § 198, 8-1-2022)

State law reference—Similar provisions, G.S. 20-114.1(a).

Sec. 66-4. Application of chapter—Generally.

The provisions of this chapter regulating the operation, parking and standing of vehicles shall apply to all vehicles using the streets of the city; provided, that this chapter shall not be construed to limit or in any manner diminish or restrict any privilege or exception as to speed or right-of-way, or any other traffic privilege or exception now granted by state statute or any provision of this Code or other ordinance of the city, to police or fire department vehicles.
(Code 1964, § 12-5; Code 1982, § 20-4)

Sec. 66-5. Same—Public employees.

The provisions of this chapter shall apply to the driver of any vehicle owned by, or used in the service of, the United States government, or this or any other state, county or city. It shall be unlawful for any such driver to violate any of the provisions of this chapter, except as otherwise permitted in this chapter or by state statutes.
(Code 1964, § 12-6; Code 1982, § 20-5)

State law reference—Similar provisions, G.S. 20-168.

Sec. 66-6. Same—Persons propelling pushcarts or riding bicycles or animals.

Every person propelling any pushcart or riding a bicycle or an animal upon a roadway, and every person driving any animal-drawn vehicle shall be subject to the provisions of this chapter applicable to the driver of any vehicle, except those provisions of this chapter which by their very nature can have no application.
(Code 1964, § 12-7; Code 1982, § 20-6)

State law reference—Similar provisions as to riding animals, G.S. 20-171.

Sec. 66-7. Reserved.

Editor's note—Ord. No. 14845, § 1, adopted Oct. 19, 2015, repealed § 66-7, which pertained to parades and processions and derived from Code 1964, § 12-8; Code 1982, § 20-7.

Sec. 66-8. Same—Identification of funerals.

A funeral composed of a procession of vehicles shall be identified in such manner as may be designated by the city manager.
(Code 1964, § 12-9; Code 1982, § 20-8)

Sec. 66-9. Unauthorized entry and assembly in city owned or operated parking facilities.

(a) The term "city owned or operated parking facility" means any parking garage or lot owned by, leased to, and/or operated by or for the city for the purpose of providing public parking.

(b) It shall be unlawful for any person to assemble with one or more other persons on a city owned or operated parking facility except for the purpose of lawfully parking or removing a vehicle in the facility. It shall not be a violation of this section to lawfully park a vehicle in a city owned or operated parking facility and leave the facility without delay or go upon a city owned or operated parking garage or lot and without delay proceed to a lawfully parked vehicle to exit the parking facility.

(c) It shall be unlawful for any person to enter upon or remain in a city owned or operated parking facility unless:

(1) Such person is the owner, operator or passenger of a motor vehicle entering, leaving or parked in such parking facility;

(2) Such person is an employee of the city regularly charged with the operation, maintenance or supervision of such parking facility; or

(3) Such person has been previously authorized by an agent or employee of the city to enter upon such parking facility.

(d) This section shall not apply to an assembly of persons pursuant to any lawfully issued permit for a parade, demonstration or other event or congregation protected under the Constitution of the United States or of this state.

(e) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1964, §§ 13-4.4, 13-31; Code 1982, § 12-9; Ord. No. 11686, § 1, 5-17-1999; Ord. No. 15982, § 199, 8-1-2022)

Sec. 66-10. Distribution of items in city parking garages and city off-street parking lots.

It shall be unlawful for any person to pass out a leaflet or any other item or thing to any person in the city parking garages or on any of the off-street parking lots of the city. This section shall not apply to the operator or passengers of a vehicle in the city parking garages or on any of the off-street parking lots of the city who pass out a leaflet or other item or thing to the operator or any passengers of the same vehicle while the operator or passengers are:

(1) In the vehicle;

(2) Traveling between an entrance and exit of the garage or lot; or

(3) Traveling between an exit and entrance of the garage or lot.

In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1964, § 13-4.2; Code 1982, § 12-5(b); Ord. No. 15982, § 200, 8-1-2022)

Sec. 66-11. Damaging, defacing property, street signs.

It shall be unlawful for any person to mutilate, deface, remove or, in any manner, damage any of the street signs, traffic signs or other signs of similar nature erected by any public governing body. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 19-21; Code 1982, § 12-12; Ord. No. 15982, § 201, 8-1-2022)

Sec. 66-12. Standing, sitting, and walking on median generally prohibited.

No person shall stand, sit, or walk on a median, provided that this section does not prohibit a person from taking such actions during the time needed to travel safely from one side of a roadway to the opposite side of the roadway, In this section, the definitions of median and roadway as set forth in section 54-26 apply. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 14375, § 1, 12-17-2012; Ord. No. 15982, § 202, 8-1-2022)

Secs. 66-13—66-38. Reserved.

ARTICLE II. SIGNS, SIGNALS AND MARKERS*

DIVISION 1. GENERALLY

Sec. 66-39. Obedience.

The driver of any vehicle shall obey the instructions of any official traffic-control device applicable thereto placed in accordance with the provisions of this chapter and other traffic ordinances of the city unless otherwise directed by a police officer, subject to the exceptions granted the driver of a police or fire department vehicle in this Code or other ordinance of the city or by state statute. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 12-11; Code 1982, § 20-20; Ord. No. 15982, § 203, 8-1-2022)

Sec. 66-40. Location of signs as prerequisite to enforcement.

No provision of this chapter for which signs are required shall be enforced against an alleged violator if at the time and place of the alleged violation an official sign is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular section does not state that signs are required, such section shall be effective without signs being erected to give notice thereof.
(Code 1964, § 12-12; Code 1982, § 20-21)

*__State law reference—__Authority, G.S. 20-158, 136-31.

Sec. 66-41. Traffic-control signal legend.

Whenever traffic is controlled by official traffic-control devices exhibiting the words "go," "caution" or "stop," or exhibiting different colored lights successively one at a time, the following colors only shall be used, and said terms and lights shall indicate as follows:

(1) *Green alone or "go":*

a. Vehicular traffic facing the signal may proceed straight through or turn right or left unless a sign at such place prohibits either such turn. But vehicular traffic shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection at the time such signal is exhibited.

b. Pedestrians facing the signal may proceed across the roadway within any marked or unmarked crosswalk.

(2) *Yellow alone or "caution" when shown following the green or "go" signal:*

a. Vehicular traffic facing the signal shall stop before entering the nearest crosswalk at the intersection, but if such stop cannot be made in safety a vehicle may be driven cautiously through the intersection.

b. Pedestrians facing such signal are thereby advised that there is insufficient time to cross a roadway, and any pedestrian then starting to cross shall yield the right-of-way to all vehicles.

(3) *Red alone or "stop":*

a. Vehicular traffic facing the signal shall stop before entering the nearest crosswalk at an intersection or at such other point as may be indicated by a clearly visible line, and shall remain standing until green or "go" is shown alone, or may turn right as authorized by statute.

b. No pedestrian facing such signal shall enter the roadway unless he or she can do so safely and without interfering with any vehicular traffic.

(4) *Green straight-through arrow (alone):*

a. Vehicles facing such signal may proceed straight through, but shall not turn right or left. Such vehicles shall yield the right-of-way to other vehicles and to pedestrians legally within the intersection at the time such signal is exhibited.

b. Pedestrians facing such signal may proceed across the roadway within the appropriate marked or unmarked crosswalk unless directed otherwise by a pedestrian signal.

(5) *Green turn arrow (alone):*

a. Vehicles facing such signal may proceed through the intersection making only the turn so indicated by the arrow over the respective lane. Such vehicles shall yield the right-of-way to other vehicles and pedestrians lawfully within the intersection at the time such signal is exhibited.

b. Pedestrians facing such signal shall not enter the roadway unless they can do so safely and without interfering with any vehicular traffic.

(Code 1964, § 12-13; Code 1982, § 20-22)

State law reference—Similar provisions, G.S. 20-158(b).

Sec. 66-42. Flashing signals.

Whenever flashing red or yellow signals are used they shall require obedience by vehicular traffic as follows:

(1) *Flashing red (stop signal).* When a red lens is illuminated by rapid intermittent flashes, drivers of vehicles shall stop before entering the nearest crosswalk at an intersection or at a limit line when marked, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

(2) *Flashing yellow (caution signal).* When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or pass such signal only with caution.

(Code 1964, § 12-14; Code 1982, § 20-23)

State law reference—Similar provisions, G.S. 20-158(b).

Sec. 66-43. Stop, yield and caution signs and markings.

(a) Whenever the type of stop sign or yield sign is used whereby the lettering is attached to a post or pole located adjacent to or near the curbline of the street, such stop sign shall bear the word "Stop" and such yield sign shall bear the word "yield" in letters not less than six inches in height, which shall be provided with reflector buttons, or if not, then shall be self-illuminated at night. In lieu of the type of stop signs or yield signs above described in this section, it shall be lawful to use stop and caution, or yield signs painted upon the surface of the street, and where the same are used they shall bear the word "stop" or "caution" or "yield" or "slow" or "one way" or "school zone" as the case may be, in letters not less than 60 inches in height painted upon the surface of the street where the same shall be readily seen and observed by the traveling public using the street.

(b) Every stop sign and yield sign shall be located as near as practical at the property line of the street at the entrance to which the stop must be made or at the nearest line of the crosswalk thereat, or if none, at a limit line to be indicated by the city manager, or where the same shall be readily seen and observed by the traveling public; provided, that this subsection shall not apply where the stop or yield or caution sign is painted upon the surface of the street in the manner herein provided.

(Code 1964, § 12-15; Code 1982, § 20-24)

State law reference—Yield signs, G.S. 20-158.1.

Sec. 66-44. Display of unauthorized signs, signals or markings.

No person shall place, maintain or display upon or in view of any highway any unauthorized sign, signal, marking or device which purports to be or is an imitation of or

resembles an official traffic-control device or railroad sign or signal, or which attempts to direct the movement of traffic, or which hides from view or interferes with the effectiveness of any official traffic-control device or any railroad sign or signal. No person shall place or maintain, nor shall any public authority permit, upon any highway any traffic sign or signal bearing thereon any commercial advertising. This shall not be deemed to prohibit the erection upon private property, adjacent to highways, of signs giving useful directional information and of a type that cannot be mistaken for official signs. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 12-16; Code 1982, § 20-25; Ord. No. 15982, § 204, 8-1-2022)

Secs. 66-45—66-61. Reserved.

DIVISION 2. POWERS AND DUTIES OF CITY MANAGER

Sec. 66-62. Crosswalks.

The city manager is hereby authorized to designate and maintain by appropriate devices, marks or lines upon the surface of the roadway, crosswalks at intersections where in his or her opinion there is particular danger to pedestrians crossing the roadway, and at such other places as he or she may deem necessary.
(Code 1964, § 12-17; Code 1982, § 20-30)

Sec. 66-63. Safety zones.

The city manager is hereby authorized to establish and indicate safety zones of such kind and character and at such places as he or she may deem necessary for the protection of pedestrians.
(Code 1964, § 12-18; Code 1982, § 20-31)

Sec. 66-64. Traffic lanes.

The city manager is hereby authorized to mark lanes for traffic on street pavements at such places as he or she may deem advisable, consistent with the provisions of this chapter and other traffic ordinances of the city.
(Code 1964, § 12-19; Code 1982, § 20-32)

Sec. 66-65. Quiet zones—In case of illness.

The city manager shall have authority, as provided in this section, to establish a zone of quiet for a period not to exceed six months upon any street where a person is seriously ill if requested to do so by the written statement of at least one registered physician certifying to its necessity. Such zone of quiet shall embrace all territory within a radius of 200 feet of the building occupied by the person named in the request of such physician. Upon the expiration of the six-month period, said zone of quiet may be extended for six-month periods upon the receipt of written statement of the physician requesting a six-month extension.
(Code 1964, § 12-20; Code 1982, § 20-33; Ord. No. 4927, § 1, 7-17-1978)

Sec. 66-66. Same—In neighborhood of religious facilities, schools, etc.

The city manager shall have authority to designate and suitably mark as "quiet zones" such territory in the neighborhood of religious facilities, schools, hospitals, or other similar places as he or she may deem necessary.
(Code 1964, § 12-21; Code 1982, § 20-34)

Sec. 66-67. Same—Signs.

Zones of quiet, as referred in sections 66-65 and 66-66 and any other zone of quiet declared by an ordinance of this city shall be designated by the city manager by placing at a conspicuous place in the street a sign or marking bearing the words "quiet zone."
(Code 1964, § 12-22; Code 1982, § 20-35)

Sec. 66-68. Play streets.

The city manager shall have authority to declare any street or part thereof a "play street" and to place appropriate signs or devices in the roadway indicating and helping to protect the same.
(Code 1964, § 12-23; Code 1982, § 20-36)

Sec. 66-69. Parking signs and other signs.

(a) The city manager is hereby authorized to place and maintain "no parking" signs and such other signs as may be necessary and as he or she may deem advisable, consistent with the provisions of this chapter and other traffic ordinances of this city.

(b) The city manager shall cause appropriate signs or markers to be placed in the areas in which parking is limited or prohibited by this Code or other ordinances of the city to notify the public of the limitations on parking in such areas.
(Code 1964, § 12-24; Code 1982, § 20-37)

Sec. 66-70. Stopping or parking in hazardous locations.

The city manager shall have authority to determine and designate by proper signs spaces not exceeding 100 feet in length at places where the stopping or parking of vehicles would create an especially hazardous condition or would cause unusual delay to traffic.
(Code 1964, § 12-25; Code 1982, § 20-38)

Sec. 66-71. Angle parking areas.

The city manager may designate those streets and parts of streets upon which vehicles shall park at an angle to the curb.
(Code 1964, § 12-26; Code 1982, § 20-39)

Sec. 66-72. Parking near schools.

The city manager shall have authority to erect signs indicating no parking upon that side of any street adjacent to any school property when such parking would, in his or her opinion, interfere with traffic or create a hazardous situation.
(Code 1964, § 12-27; Code 1982, § 20-40)

Sec. 66-73. Intersection at which reduction in speed is required.

In the event the city manager determines that reduced speed, rather than a stop, under section 66-74, is adequate for safe operation at an intersection where particular hazards exist upon other than main traveled or through streets, he or she shall determine such safe speed by engineering investigation and shall erect signs upon the approaches to such intersection giving notice of such speed.
(Code 1964, § 12-28; Code 1982, § 20-41)

Sec. 66-74. Stop intersections.

Except as otherwise provided in this chapter, the city manager may determine and designate intersections where particular hazards exist upon other than main traveled or through streets and to determine whether vehicles shall stop at one or more entrances to any such stop intersection, and shall erect a stop sign at every such place where a stop is required.
(Code 1964, § 12-29; Code 1982, § 20-42)

Sec. 66-75. Yield-right-of-way intersections.

Except as otherwise provided in this chapter, the city manager may locate and cause to be erected yield-right-of-way signs at the approaches to such street intersections as in his or her opinion such signs are necessary or advisable in promotion of the public safety.
(Code 1964, § 12-31; Code 1982, § 20-43)

State law reference—Erection of "yield-right-of-way" signs, G.S. 20-158.1.

Sec. 66-76. Stoplight intersections.

The city manager is hereby authorized and directed to cause to be erected or installed mechanical stoplights for the regulating of vehicular traffic at designated street locations.
(Code 1964, § 12-33; Code 1982, § 20-44)

Sec. 66-77. Flashing or blinker-light intersections.

The city manager is hereby authorized and directed to cause to be erected or installed mechanical flashing lights or blinker lights, other than stoplights, for the regulating of vehicular traffic at designated street intersections.
(Code 1964, § 12-33.1; Code 1982, § 20-45)

Sec. 66-78. Bus stops; taxicab stands.

(a) The city manager may require and establish bus stops and taxicab stands on such streets, highways and roadways in such places and in such manner as he or she shall determine to be of the greatest benefit and convenience to the public, and every such bus stop and taxicab stand shall be indicated by appropriate signs.

(b) All bus stops shall be clearly marked by suitable signs to be placed and maintained at the cost and expense of the company operating under this chapter, and such stops shall be made within 12 inches from the curb on its right-hand side.

(c) The regulations and restrictions in other sections of this chapter shall not operate to prevent the establishment of bus stops and taxicab stands as provided in this section.
(Code 1964, § 12-199; Code 1982, § 20-46)

Sec. 66-79. Speed limit signs.

It shall be the duty of the city manager to cause appropriate signs giving notice of the established speed limits to be erected at the requisite locations.
(Code 1964, § 12-63; Code 1982, § 20-47)

Sec. 66-80. Authority to make certain traffic control decisions delegated to public works director.

In addition to the authority delegated to the city manager by the foregoing provisions, the public works director, as the city manager's designee, and the professional engineers working for such public works director, shall be authorized to make routine determinations

regarding speed limits, parking, loading, standing, and traffic control measures, including the locations of stop signs, yield signs, turn restrictions, loading zones, bus stops, and parking restrictions within the rights-of-way using professional standards for such determinations, such as the Manual on Uniform Traffic Control Devices. The public works department shall maintain a properly indexed inventory of all signs installed or removed under this authority.
(Code 1982, § 20-48; Ord. No. 12871, § 1, 10-6-2003)

Secs. 66-81—66-103. Reserved.

ARTICLE III. OPERATION OF VEHICLES

DIVISION 1. GENERALLY

Sec. 66-104. Crossing railroad crossing when light illuminated or bell ringing.

At all public railroad crossings within the city at which the railroad company maintains and operates light and bell signaling devices, it shall be unlawful for any person to drive a vehicle across and upon such crossing when such light is illuminated and such bell is ringing to indicate and warn the approach of a train, locomotive or railroad car to such crossing. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-48; Code 1982, § 20-60; Ord. No. 15982, § 205, 8-1-2022)

State law reference—Similar provisions, G.S. 20-142.

Sec. 66-105. Right-of-way of fire apparatus.

In the event of an alarm of fire the apparatus of the fire department shall have the right-of-way in and upon the streets and railroad crossings in going to any fire. Every person in charge of any vehicle, wherever same may be located, shall, upon the sounding of a siren or other authorized alarm or the display of authorized warning lights, be in a position to and promptly move such vehicle out of the way of the firefighters, fire engines, trucks and other apparatus of the fire department. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-49; Code 1982, § 20-61; Ord. No. 15982, § 206, 8-1-2022)

State law reference—Similar provisions, G.S. 20-157(a).

Sec. 66-106. Driving, etc., through streets where public safety department is fighting fire.

It shall be unlawful for any unauthorized person to ride or drive any vehicle through the streets or other places in which the fire department is assembled for the purpose of extinguishing a fire. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-51; Code 1982, § 20-62; Ord. No. 15982, § 207, 8-1-2022)

State law reference—Parking within one block, G.S. 20-157(b).

Sec. 66-107. Running over fire hose, etc.

It shall be unlawful for any person to run, or allow to be run, any vehicle over or against the fire hose or other apparatus or equipment of the fire department. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-52; Code 1982, § 20-63; Ord. No. 15982, § 208, 8-1-2022)

State law reference—Similar provisions, G.S. 20-157(d).

Sec. 66-108. Driving over curbs, gutters or sidewalks at places other than those constructed and designed for traffic.

(a) It shall be unlawful for any person to operate or cause to be operated any vehicle upon or across any curb, gutter or sidewalk in the city at any place other than the driveways constructed and designed for such use, unless such person shall first provide a protective covering of timber or other suitable materials over such curb, gutter and sidewalk, which will be adequate to completely prevent such curb, gutter and sidewalk from being damaged by the operation of such vehicle upon, over or across the same.

(b) It shall be unlawful for any person to operate, or cause to be operated, any vehicle or equipment upon or across any curb, gutter or sidewalk in the city at any place other than a driveway constructed and designed for such use, as provided in this Code, unless such person shall first secure a permit from the city authorizing the provision of a protective covering of timber or other suitable, approved, materials for such curb, gutter and sidewalk, which protective covering shall be adequate to completely prevent such curb, gutter and sidewalk from being damaged by the operation of such vehicle or equipment upon, over or across the same.

(c) No person shall place timber or other material at the curbing for the purpose of regularly driving across the curb or driveway, without having obtained a permit therefor.

(d) In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, §§ 9-57, 12-55, 19-10; Code 1982, § 20-65; Ord. No. 15982, § 209, 8-1-2022)

Sec. 66-109. Driving on sidewalk.

It shall be unlawful for any person, other than as authorized by this chapter, to drive any vehicle upon the sidewalks of the city, subject to the following exceptions:

(1) Driving across a sidewalk over and through an established driveway, or

(2) Sworn law enforcement officers, security guards as defined by G.S. 74C-3(a)(6), or emergency medical technicians riding bicycles while in the discharge of their official duties.

In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-54; Code 1982, § 20-66; Ord. No. 14012, § 1, 6-21-2010; Ord. No. 15982, § 210, 8-1-2022)

State law reference—Similar provisions, G.S. 20-160(b).

Sec. 66-110. Vehicle with spikes on rims of wheels.

No person shall operate over, on, or along any street in the city, which is paved with batholithic or asphalt or other paving material, any tractor, motor vehicle or any other vehicle or machine, having on the rims of its wheels any spikes, flanges or other extensions which will sink into or mark the pavement. For the purpose of this section, operating shall be construed to include moving either by its own or some other source of power. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 19-12; Code 1982, § 20-67; Ord. No. 15982, § 211, 8-1-2022)

State law reference—Similar provisions, G.S. 20-122(b).

Sec. 66-111. Driving in funerals or other processions.

Each driver in a funeral or other procession shall drive as near to the right-hand edge of the roadway as practical and follow the vehicle ahead as closely as is practical and safe. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-57; Code 1982, § 20-68; Ord. No. 15982, § 212, 8-1-2022)

Sec. 66-112. Driving through processions.

No driver of a vehicle shall drive between the vehicles or pedestrians comprising an authorized procession. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-58; Code 1982, § 20-69; Ord. No. 15982, § 213, 8-1-2022)

Sec. 66-113. Entering intersection or crosswalk when vehicle cannot be accommodated on other side.

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he or she is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any official traffic-control device's indication to proceed. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-59; Code 1982, § 20-70; Ord. No. 15982, § 214, 8-1-2022)

Sec. 66-114. Sounding horn or warning device in quiet zone.

Whenever authorized signs are erected indicating a zone of quiet, no person operating a motor vehicle within any such zone shall sound the horn or other warning device of the vehicle except in an emergency. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-60; Code 1982, § 20-71; Ord. No. 15982, § 215, 8-1-2022)

Sec. 66-115. Obedience of driver of ambulance to traffic-control signals.

Whenever traffic is controlled by official traffic-control devices, placed in accordance with the provisions of this chapter or other traffic ordinances of the city, exhibiting the words "Go," "Caution" or "Stop" or exhibiting different colored lights successively one at a time, the driver of all ambulances, public or private, shall obey the instructions of such official traffic-control device applicable thereto in accordance with the traffic-control signal legend, unless otherwise directed by a police officer stationed at that intersection. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-61; Code 1982, § 20-72; Ord. No. 15982, § 216, 8-1-2022)

Sec. 66-116. Operation in public parks.

(a) Except as may be allowed by subsection (b) of this section, it shall be unlawful for any person to drive a motor vehicle in any park, playground, or other recreational area that is operated by the city, except where specifically designated for such driving. As used in this section, a motor vehicle is a self-propelled vehicle. This term shall not include a device meeting all of the following requirements:

(1) It is designated for and intended to be used as a means of transportation for a person with a mobility impairment;

(2) It is suitable for use both inside and outside a building; and

(3) Its maximum speed does not exceed 12 miles per hour when the device is being operated by a person with a mobility impairment.

(b) The city manager may make exceptions from subsection (a) of this section for:

(1) Licensees, lessees, franchisees, permittees, employees, or contractors of the city engaged in inspection, construction, repair, or maintenance; or

(2) Firefighting personnel, law enforcement personnel, or EMS personnel while engaged in the performance of their respective occupations.

(c) In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-61.1; Code 1982, § 20-73; Ord. No. 15982, § 217, 8-1-2022)

Sec. 66-117. Street closed to vehicular traffic; exceptions.

It shall be unlawful for any person to operate a motor vehicle on Orange Street Mall in the area between Parrish Street and Chapel Hill Street; provided, however, this section shall not apply to:

(1) Emergency vehicles, including police, fire, ambulance and wrecker vehicles; and

(2) Street maintenance and similar service vehicles owned and operated by the city and private delivery and service vehicles while making deliveries or carrying on loading or unloading operations on said mall.

In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-61.3; Code 1982, § 20-75; Ord. No. 15982, § 218, 8-1-2022)

Sec. 66-118. Speed limits.

It shall be unlawful for the driver of a motor vehicle to fail, neglect or refuse to comply with established speed limits. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-62; Code 1982, § 20-76; Ord. No. 15982, § 219, 8-1-2022)

State law reference—Power of local authorities with reference to speed limits, G.S. 20-141(e).

Sec. 66-119. Heavy vehicles restricted.

It shall be unlawful for any person to drive or operate, or to cause or permit to be driven or operated in designated areas, any truck, semitrailer, van or other vehicle of any description, which truck, semitrailer, van or other vehicle, together with its load, weighs in excess of the established weight for such area, or with more axles than the number permitted in such area. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, §§ 12-70, 12-74; Code 1982, § 20-77; Ord. No. 15982, § 220, 8-1-2022)

Sec. 66-120. One-way streets.

Upon those streets and parts of streets which may be established and designated as one-way streets, vehicular traffic shall move only in the indicated direction when signs indicating the direction of traffic are erected and maintained at every intersection where movement in the opposite direction is prohibited. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-78; Code 1982, § 20-78; Ord. No. 15982, § 221, 8-1-2022)

Sec. 66-121. Obedience to directional signs and signals approaching and within intersecting streets.

Whenever the approach to a street intersection is clearly marked by marks, buttons, lettering or other indications or directional signs or symbols placed upon the surface of the street within traffic lanes approaching an intersecting street or upon overhead or other type signs, indicating that no right or left or "U" turn is permitted from such lane, or that such lane shall be used for left turn only, or that such lane shall be used for right turn only, or that such lane shall not be used for any turn or deviation from such lane, or other course of travel to be followed in such lane is indicated, it shall be unlawful for any person to disobey the directions of any such signs, symbols or indications and drive such vehicle in a direction

contrary to the direction designated for vehicles using such traffic lane by such signs and other indications. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-99; Code 1982, § 20-79; Ord. No. 15982, § 222, 8-1-2022)

State law reference—Power of local authorities with reference to turning at intersections, G.S. 20-153(c).

Sec. 66-122. Operating vehicles across unbroken yellow centerlines on city streets prohibited.

It shall be unlawful for any person to operate a vehicle upon any street to the left of any unbroken yellow centerline marked on such street, subject to the following exceptions:

(1) When necessary to turn on to or off of a city street;

(2) When a broken yellow line is also marked immediately to the right side of the unbroken yellow centerline for traffic moving in the lane on that side of the unbroken yellow centerline;

(3) When an obstruction exists making it necessary to drive to the left of the unbroken yellow centerline; provided, any person doing so shall yield the right-of-way to all vehicles traveling in the proper direction upon the opposite or unobstructed portion of the highway within such distance as to constitute an immediate hazard.

In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-125.5; Code 1982, § 20-80; Ord. No. 15982, § 223, 8-1-2022)

Sec. 66-123. Stopping at stop sign or red traffic-control light.

It shall be unlawful for any person operating a motor vehicle or other vehicle upon any of the streets in the city to fail to bring such vehicle to a complete stop before entering an intersecting street where an official traffic signal facing the operator or driver of such vehicle is red, or where there is a stop sign containing the letters "Stop" thereon near such intersection and by means thereof giving notice to stop. Provided, however, any vehicle, after coming to a complete stop for a red official traffic signal or a stop sign facing the vehicle, may make a right turn after yielding to pedestrians and other vehicles, unless such right turn is prohibited by ordinance and a sign giving notice of such prohibition is posted. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-126; Code 1982, § 20-81; Ord. No. 15982, § 224, 8-1-2022)

Sec. 66-124. Yield intersections.

It shall be unlawful for any driver to fail to comply with yield-right-of-way signs notifying drivers of vehicles on the intersecting streets to yield the right-of-way to drivers of vehicles approaching the intersection on the main-traveled or through street so designated. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-32; Code 1982, § 20-82; Ord. No. 15982, § 225, 8-1-2022)

Secs. 66-125—66-146. Reserved.

DIVISION 2. TRUCK ROUTES

Sec. 66-147. Definitions.

As used in this division, the following definitions shall apply:

Cargo means any property transported by truck.

Operator means the person physically operating a truck or a person therein directing its operation.

Passenger means any person transported by truck.

Truck means any motor vehicle designed for carrying cargo or passengers which either has three or more axles or has two axles and a gross vehicle weight (GVW) rating of 18,000 pounds or more. Specifically excluded from the definition of a truck are school buses, charter buses and intracity buses; sanitation and refuse trucks when they are engaged in household pickups; and emergency vehicles, such as fire trucks.
(Code 1982, § 20-83; Ord. No. 5966, § 1, 7-19-1982)

Sec. 66-148. Initial access to truck route.

(a) *Trucks with points of origin outside the city limits.*

(1) The operator of a truck entering the city by way of a route that is not a designated truck route shall, upon entering the city, proceed to the nearest truck route.

(2) Subsection (a)(1) of this section notwithstanding, when the shortest route between the point of entry into the city and the destination of a truck is less than the shortest route from the point of entry into the city to the nearest designated truck route, the operator of the truck, upon entering the city, shall not be required to proceed to the nearest designated truck route before proceeding to his or her destination.

(b) *Trucks with points of origin within the city limits.*

(1) Where the origin of a trip is within the city, the operator of a truck shall, upon leaving the origin of his or her trip, proceed by the shortest route to the nearest designated truck route.

(2) When the shortest route between the origin and destination of a truck of local origin is less than the distance between the origin and the designated truck route, the operator of a truck shall not be required to proceed to the nearest designated truck route before proceeding to his or her destination. Also, when the shortest distance between the origin and destination of a truck of local origin is less than the distance between the destination and the designated truck route, the operator of a truck shall not be required to proceed to the nearest designated truck route before proceeding to his or her destination.

(c) *Penalties.* In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1982, § 20-84; Ord. No. 5966, § 1, 7-19-1982; Ord. No. 15982, § 226, 8-1-2022)

Sec. 66-149. Use of designated truck routes.

Once the designated truck route is reached, the operator of a truck shall proceed on such designated truck route until he or she reaches a point on that route that allows him or her to proceed by the shortest route to his or her destination. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1982, § 20-85; Ord. No. 5966, § 1, 7-19-1982; Ord. No. 15982, § 227, 8-1-2022)

Sec. 66-150. Evidence of destination and origin.

The operator of any truck not on a designated truck route shall have a bill of lading delivery slip, dispatch order, or other reasonable evidence to show the points of destination and origin of the trip then in progress. Failure to have such evidence shall constitute a separate violation of this division. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1982, § 20-86; Ord. No. 5966, § 1, 7-19-1982; Ord. No. 15982, § 228, 8-1-2022)

Secs. 66-151—66-170. Reserved.

ARTICLE IV. STOPPING, STANDING AND PARKING*

DIVISION 1. GENERALLY

Sec. 66-171. Prohibited in certain categories of places.

No person shall stop, stand or park a vehicle, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or official traffic-control device, in any of the following places:

(1) On a sidewalk.

(2) In front of a public or private driveway.

(3) Within an intersection.

(4) On a crosswalk.

(5) Within 25 feet from the intersection of curblines or if none, then within 15 feet of the intersection of property lines at an intersection of highways.

(6) Within 50 feet of the nearest rail of a railroad crossing.

(7) Alongside or opposite any street excavation or obstruction when such stopping, standing, or parking would obstruct traffic.

(8) Upon any bridge or other elevated structure upon a highway or within a highway tunnel.

(9) At any place where official signs prohibit stopping.

(10) Upon the travel portion of the roadway or street such that said vehicle obstructs or impedes the flow of vehicular traffic. For purposes of this section obstruction of the flow of vehicular traffic shall mean at least stopping a vehicle, whether occupied or not, in such a manner that other vehicles must either come to a stop, or change traffic lanes.

(Code 1964, § 12-127; Code 1982, § 20-90; Ord. No. 6725, § 1, 5-20-1985)

State law reference—Parking in front of fire hydrant, fire station or private driveway, G.S. 20-162.

Sec. 66-172. Moving vehicle into area where parking is prohibited or away from curb.

It shall be unlawful for any person to move a vehicle not owned by such person into any area in which stopping, standing or parking is prohibited or away from a curb such distance as is unlawful.

(Code 1964, § 12-128; Code 1982, § 20-91)

***Charter reference—**Authority to regulate, § 54.

Sec. 66-173. Reserved.

Editor's note—Ord. No. 14426, § 1, adopted April 1, 2013, repealed the former section 66-173 in its entirety, which pertained to parking in front of religious facilities, and derived from the Code of 1964, § 12-129, and the Code of 1982, § 20-92.

Sec. 66-174. Parking in front of theaters.

It shall be unlawful for any person to park any vehicle on any street within 15 feet of the projected centerline in front of any building used as a theater. The police department shall provide proper signs to indicate the prohibited parking zone in front of theaters.
(Code 1964, § 12-130; Code 1982, § 20-93)

Sec. 66-175. Width of roadway to be left available.

(a) No person shall stop, stand, or park any vehicle upon a street other than an alley in such manner or under such conditions as to leave available less than ten feet of the width of the roadway for free movement of vehicular traffic, except that a driver may stop temporarily during the actual loading or unloading of passengers or when necessary in obedience to traffic regulations or traffic signs or signals of a police officer.

(b) No person shall park a vehicle within an alley in such a manner or under such conditions as to leave available less than ten feet of the width of the roadway for the free movement of vehicular traffic.
(Code 1964, § 12-133; Code 1982, § 20-94)

Sec. 66-176. Manner of parking generally.

(a) *In general.* No person shall stand or park a vehicle in a roadway other than parallel with the edge of the roadway, headed in the direction of traffic, and with the curbside wheels of the vehicle within 12 inches of the edge of the roadway, except that upon those streets which have been marked or signed for angle parking vehicles, the vehicle shall stand or be parked at the angle to the curb indicated by such marks or signs.

(b) *Long vehicles.* The driver shall stand or park the vehicle entirely within the lines marking the space, except that a vehicle may occupy two spaces if it is too long to occupy one space, provided that this exception applies only when the spaces are parallel with the edge of the roadway.
(Code 1964, § 12-135; Code 1982, § 20-95; Ord. No. 14355, § 12, 11-5-2012)

Sec. 66-177. Angle parking generally.

When angle parking is authorized and lines painted on the surface of the street indicating that vehicles may be parked at an angle within the spaces between such painted lines, it shall be unlawful for any person to park a vehicle at such point in any way except at an angle to the curb, as indicated by the lines marking the space.
(Code 1964, § 12-138; Code 1982, § 20-96)

Sec. 66-178. Manner of parking trucks.

It shall be unlawful for any person to park a truck on any public street or drive in the city, either in the daytime or nighttime, except in a position parallel to and within 12 inches of the curb, unless permitted angle parking shall be plainly designated by lines painted upon the surface of the street indicating the angular spaces wherein parking may be effected. In any case in which angle parking is permitted and so designated by lines painted upon the street surface, as herein provided, it shall be unlawful for any person to park in such space so indicated if such truck is of such length as to allow less than two 12-foot wide lanes of traffic to remain open and available for moving vehicles using the street, except that, in the case of a one-way street, there shall be left open one lane for moving traffic.
(Code 1964, § 12-136; Code 1982, § 20-97)

Sec. 66-179. Backing vehicle into an angle parking space.

It shall be unlawful for any person to back a vehicle into a parking space on a public street, which parking space is marked or laid off at an angle to the curb or sidewalk, so that the rear rather than the front of such vehicle is placed at the curb or the inside of such parking space; provided, however, that nothing contained in this section shall affect the backing of a vehicle into a loading or unloading zone for the purpose of loading or unloading in accordance with the regulations applying to such loading or unloading zone.
(Code 1964, § 12-139; Code 1982, § 20-98)

Sec. 66-180. Parking for purpose of sale of vehicle.

No person shall stand or park a vehicle upon any roadway for the principal purpose of displaying such vehicle for sale.
(Code 1964, § 12-140; Code 1982, § 20-99)

Sec. 66-181. Parking for purpose of repair, etc., of vehicle.

No person shall stand or park a vehicle upon any roadway for the principal purpose of washing, greasing or repairing such vehicle, except repairs necessitated by an emergency.
(Code 1964, § 12-141; Code 1982, § 20-100)

Sec. 66-182. Application of time limits to physicians or surgeons visiting patients.

Notwithstanding any provisions of this Code or any ordinance or regulation to the contrary, any physician or surgeon may park his or her vehicle in any available parking space on any street or in any timed parking lot within the city while on a call to visit a patient without being subject to the time limit placed by any provision of this Code or any ordinance or regulation on such parking in such a parking space.
(Code 1964, § 12-142; Code 1982, § 20-101; Ord. No. 6841, § 1, 12-2-1985)

Sec. 66-183. Parking on streets in fire district after snowfall—Restrictions.

It shall be unlawful for any person to park a vehicle or permit such vehicle to remain parked on any of the streets located in the fire district in the city after two inches of snow have fallen on such streets and before the snow has been removed from such streets. It shall further be unlawful for any person to fail to remove his or her parked vehicle from any of the streets in the fire district during the period hereinabove set forth.
(Code 1964, § 12-143; Code 1982, § 20-102)

Sec. 66-184. Same—Removal of vehicle by public safety department.

In the event of a violation of section 66-183, the public safety department may cause the vehicle involved in the violation to be removed from the street at the cost of the owner thereof.
(Code 1964, § 12-144; Code 1982, § 20-103)

Sec. 66-185. Limitation on parking time in particular city block.

In all cases in which, by any provision of this Code or other ordinance of the city, the parking of vehicles is limited and restricted to a stated period of time between the hours of 7:00 a.m., and 6:00 p.m., or any other hours which may be prescribed in the particular provision of this Code or other ordinance of the city regulating such parking, such stated period of time for which such parking is permitted shall mean the total period of time for which such vehicle may be parked within the same city block at either one or more parking spaces or locations within the same city block. It shall be unlawful for any person to park a vehicle either at the same place or at two or more places or parking spaces within the same city block for a combined total parked period in the same city block, during the regulated hours, in excess of the permitted period prescribed by the particular provision of this Code or other ordinance of the city regulating parking of vehicles on such street or portion of such street. The phrase "city block" as used in this section shall mean the portion of a street lying between the nearest intersecting streets and shall not include other streets running parallel, at right angles, or otherwise, to the street upon which such vehicle may be parked.
(Code 1964, § 12-148; Code 1982, § 20-105)

Sec. 66-186. Parking so as to block driveway as nuisance.

(a) The stopping, standing or parking of a vehicle in a street in front of the entrance to a public or private driveway so as to cause the blocking of such driveway and to prohibit the use of such driveway for the purpose of gaining access to and from the street is hereby declared to be a public nuisance.

(b) In addition to the penalties prescribed for the violation of this Code, insofar as such section relates to the stopping, standing or parking of a vehicle in front of a public or private driveway, in the event of the occurrence of a public nuisance as declared in subsection (a) of this section, such public nuisance may be summarily abated and, to that end, the police officers of the city shall cause any vehicle causing such public nuisance immediately to be removed from in front of the entrance to the public or private driveway in front of which the vehicle is

stopped, standing or parked. In order to effect the abatement of such nuisance, the police officers shall employ towing apparatus and cause the vehicles to be towed away and stored for the use of the owner. The cost of such towing and storing shall be borne by the offender as a part of the cost of the enforcement of law.
(Code 1964, § 12-149; Code 1982, § 20-107)

Sec. 66-187. Parking of motor vehicles more than 6½ feet in width on streets between 6:00 p.m. and 7:00 a.m.

It shall be unlawful for any person to park any motor vehicle of a width exceeding 6½ feet on any of the public streets in the city between the hours of 6:00 p.m. and 7:00 a.m. following, except when necessary to stop for the purpose of loading or unloading, and then only during the period in which such loading or unloading operation is being carried out.
(Code 1964, § 12-150; Code 1982, § 20-108)

Sec. 66-188. Construction of terms with reference to loading and unloading.

The terms "loading and unloading zone," "for the purpose of loading and unloading" and similar terms, wording or language as used in any provision of this chapter or other ordinance of the city establishing or designating areas in which the parking of vehicles is restricted to parking for the purpose of loading or unloading passengers or property shall be construed to apply only during the period in which the operation of loading and unloading is being engaged in and such provision of this chapter or other ordinance of the city shall not be construed so as to authorize the parking of vehicles in such area for any other purpose or duration of time.
(Code 1964, § 12-152; Code 1982, § 20-109)

Sec. 66-189. Parking in specified public vehicular areas.

(a) It shall be unlawful for the operator of any motor vehicle or any other vehicle to stop, stand or park said vehicle upon any public vehicular area as specified under subsection (b) of this section during the hours indicated for each area.

(b) Subsection (a) of this section applies to the public vehicular areas indicated by the city authorities during the hours indicated by the city authorities.

(c) The owner or person in general charge of the operation and control of a public vehicular area may petition the city council to include such area within the areas specified under subsection (b) of this section by filing a written request with the city manager. Any person who submits such a petition shall pay a fee in the amount set by the city council at the time the petition is submitted.

(d) The city manager shall cause notices to be posted at one or more locations within each area specified under subsection (b) of this section. The notices may be in the form of a sign or poster with a face of at least 120 square inches. The notices shall be posted in conspicuous places. The notice shall state that it is unlawful to stop, stand or park a vehicle within the area during the hours specified under subsection (b) of this section.

(e) Any person who violates subsection (a) of this section or who mutilates, destroys or removes any of the notices, signs, or posters described in subsection (d) of this section, shall be guilty of a misdemeanor for which the maximum term of imprisonment shall be 30 days.

(f) The owner of a vehicle parked in violation of subsection (a) of this section shall be deemed to have appointed any law enforcement officer of the city as such owner's agent for the purpose of arranging for the transportation and storage of such vehicle.
(Code 1964, § 12-127.1; Code 1982, § 20-110; Ord. No. 5593, § 1, 2-2-1981; Ord. No. 5709, § 1, 6-22-1981)

Sec. 66-190. Washing and repair of vehicles in city parking garages prohibited.

It shall be unlawful to wash any vehicle or to make any repairs, except emergency repairs, to any vehicle parked in the city parking garage.
(Code 1982, § 20-111; Ord. No. 6842, § 1, 12-2-1985)

Sec. 66-191. Handicapped parking.

(a) It shall be prohibited for any person to park or leave standing any vehicle in a space designated for handicapped persons or visually impaired persons when the vehicle does not display the distinguishing license plate, placard, or identification card or a disabled veteran registration plate as provided by state law.

(b) It shall be prohibited for any person not qualifying for the rights and privileges extended to handicapped or visually impaired persons to exercise or attempt to exercise such rights or privileges by the unauthorized use of a distinguishing license plate placard or identification card.

(c) It is prohibited for any person to park or leave standing any vehicle so as to obstruct a curb ramp or curb cut for handicapped persons.
(Code 1982, § 20-112; Ord. No. 10410, § 2, 3-6-1995)

Secs. 66-192—66-218. Reserved.

DIVISION 2. TIMED PARKING LOTS

Sec. 66-219. Definitions.

For the purposes of this division, the following terms shall have the meanings respectively ascribed to them:

Holiday means the following days only: January 1st, the third Monday of January as Dr. Martin Luther King, Jr.'s birthday, Good Friday, Memorial Day, July 4th, the first Monday in September, the day designated and set aside by the President of the United States as the day of Thanksgiving, and December 25th.

Operator means any individual who shall operate a vehicle as the owner thereof or as the agent, employee or permittee of the owner, or who is in actual physical control of a vehicle.

Parking means the standing of a vehicle, whether occupied or not, upon a lot otherwise than temporarily for the purpose of and while actually engaged in receiving or discharging passengers or loading or unloading merchandise or in obedience to traffic regulations, signs or signals, or involuntary stopping of a vehicle by reason of causes beyond the control of the operator of the vehicle.

Street means any public street, avenue, road, or highway, located within the city and established for or used by vehicles.

Timed parking lot means a lot owned or leased by the city, designated as a timed parking lot, and established or used for parking of vehicles.

Timed parking space means any space within a timed parking lot and duly designated for the parking of a single vehicle by lines painted or otherwise durably marked on the curb or on the surface of the lot.

Vehicle means any device in, upon, or by which any person or property is or may be transported upon a street, except a device which is operated upon rails or tracks.
(Code 1982, § 20-120; Ord. No. 6840, § 1, 12-2-1985)

Sec. 66-220. Designation of timed parking lots.

Timed parking lots shall be as designated and described by the city council by ordinance, and as described on maps or in schedules on file in the city clerk's office.
(Code 1982, § 20-121; Ord. No. 6840, § 1, 12-2-1985)

Sec. 66-221. Designation of timed parking spaces.

The public works director shall cause to be marked off individual timed parking spaces in the timed parking lots. Such spaces shall be designated by lines painted or durably marked on the curbing or surface of the lot.
(Code 1982, § 20-122; Ord. No. 6840, § 1, 12-2-1985)

Sec. 66-222. Designation of time for parking.

Unless the ordinance establishing a particular area as a timed parking lot provides otherwise, no vehicle may park in a timed parking space longer than two hours.
(Code 1982, § 20-124; Ord. No. 6840, § 1, 12-2-1985)

Sec. 66-223. Parking within timed parking spaces.

It shall be unlawful for any person to park a vehicle in such way that such vehicle shall not be entirely within the limits of the timed parking space. It shall be unlawful for any person to park any vehicle across any line or marking of a space.
(Code 1982, § 20-126; Ord. No. 6840, § 1, 12-2-1985)

Sec. 66-224. Overtime parking.

It shall be unlawful for any person to cause, allow, permit, or suffer any vehicle registered in the name of or operated by such person to be parked overtime or beyond the period of legal parking time established for any timed parking space.
(Code 1982, § 20-127; Ord. No. 6840, § 1, 12-2-1985)

Sec. 66-225. When overtime parking prohibited.

The provisions of section 66-224 shall not apply on Sundays, holidays, or between the hours of 6:00 p.m. and 7:00 a.m.
(Code 1982, § 20-123; Ord. No. 6840, § 1, 12-2-1985)

Sec. 66-226. Signs to be posted.

The provisions of section 66-224 shall apply only if signs, curb or pavement markings, or other markings are placed so as to be sufficiently legible to be seen by an ordinarily observant person and state the length of time beyond which parking is prohibited. The director of the traffic engineering division shall cause appropriate signs or markings to be maintained on each timed parking lot.
(Code 1982, § 20-125; Ord. No. 6840, § 1, 12-2-1985)

Sec. 66-227. Towing away and storage of vehicles parked in violation of division.

In each timed parking lot, the city manager shall cause signs to be erected that state that vehicles illegally parked will be towed. In all cases in which a vehicle is parked on any timed parking lot in violation of any of the provisions of this division except sections 66-229 and 66-230, such vehicle shall be towed away from that lot and stored as provided by sections 66-394 through 66-400.
(Code 1982, § 20-129; Ord. No. 6840, § 1, 12-2-1985)

Sec. 66-228. Parking of vehicles over 20 feet in length.

It shall be unlawful for any person to park a vehicle exceeding 20 feet in length in timed parking lots.
(Code 1982, § 20-130; Ord. No. 6840, § 1, 12-2-1985)

Sec. 66-229. Backing into parking space.

It shall be unlawful for any person to back a vehicle into any timed parking space in such manner that the rear rather than the front of such vehicle is placed adjacent to the inside of such parking space.
(Code 1982, § 20-131; Ord. No. 6840, § 1, 12-2-1985)

Sec. 66-230. Washing, etc., of vehicles prohibited.

It shall be unlawful to wash any vehicle or to make any repairs, except emergency repairs, to any vehicle parked on timed parking lots.
(Code 1982, § 20-132; Ord. No. 6840, § 1, 12-2-1985)

Secs. 66-231—66-233. Reserved.

DIVISION 3. METERED PARKING SPACES*

Sec. 66-234. Definitions.

In this division, except where the context requires otherwise

Metered space means an on-street vehicular parking space that has been designated as a metered parking space to be subject to this division.

Parking meter means a device to collect payment for use of metered spaces. A parking meter may be designated to collect payment for only one space or for more than one space. A parking meter is not required to visually indicate that the paid time has expired.
(Ord. No. 15000, § 2, 9-6-2016)

Sec. 66-235. Authority to designate metered parking spaces.

The city manager, pursuant to section 66-80 or other authority, or the city council, may designate on-street vehicular parking spaces as metered parking spaces. Without limiting the city manager's authority, he or she may temporarily suspend the designation for specified parking spaces to accommodate particular activities, including parades and special events, or for the issuance of a permit pursuant to section 66-267.
(Ord. No. 15000, § 2, 9-6-2016)

Sec. 66-236. Fees for parking in metered spaces, including means of payment, refunds, and use of proceeds.

(a) *When required; applies to all vehicles.* Payment is required to park in a metered space except during such times as may be provided for in the fee schedule. It is unlawful for a vehicle to be parked in a metered space during the times when payment is required by the preceding sentence, except when payment for the time has been made and the time paid for has not expired. This subsection (a) applies, without limitation, to every vehicle driven by or transporting a person who is handicapped and that displays a license plate or placard for handicapped persons as provided by G. S. 20-37.6(a).

(b) *Amount of fees.* The fees for parking in a metered space shall be set from time to time by the city council.

***Editor's note—**Ord. No. 15000, § 1, adopted Sept. 6, 2016, enacted a new div. 3 as set out herein and renumbered the former div. 3 as div. 4, div. 4 as div. 5, and div. 5 as div. 6.

(c) *Time units.* The city manager shall specify the units of time that may be purchased for parking in a metered space. For example, available time periods may be limited to 30 minutes, 1 hour, and 2 hours.

(d) *Means of payment.* Payment may be made by any means specified by the city manager. Without limiting the preceding sentence, the city manager may arrange to allow for payment for metered spaces to be made by way of mobile electronic devices, such as cell phones and tablets, and through the use of coins, currency, credit cards, debits cards, and prepaid cards.

(e) *No refunds.* Vacating a space before the paid time period expires is not grounds for a refund of any portion of the payment.

(f) *Use of proceeds.* Proceeds from fees shall be used to defray the cost of the city's parking program or providing parking facilities, to the extent required by G.S. 160A-301 and Session Law 2014-34.
(Ord. No. 15000, § 2, 9-6-2016)

Sec. 66-237. Maximum time periods for parking in metered spaces.

The city manager is authorized to designate a maximum time period for which a vehicle may occupy each metered space. No vehicle may be parked in a metered space for more than the time limit designated for that space even if payment is made to park in the space for more than the time period.

Exceptions.

(1) A vehicle driven by or transporting a person who is handicapped and that displays a license plate or placard for handicapped persons as provided by G. S. 20-37.6(a) is not subject to this time limit, provided, however, that payment for the space is required.

(2) Vehicles driven by the following persons while engaged in the performance of their respective occupations are not subject to this time limit: firefighting personnel, law enforcement personnel, EMS personnel, health care workers or providers, military personnel, civil preparedness personnel, emergency management personnel, and emergency management workers (defined by G.S. 166A-19.60(e)).]

(3) Without limiting the city manager's authority, he or she may temporarily suspend the maximum time periods for specified parking spaces to accommodate particular activities, including parades and special events, or for the issuance of a permit pursuant to section 66-267.

(Ord. No. 15000, § 2, 9-6-2016)

Sec. 66-238. Parking meters.

The city manager shall install parking meters to collect fees for metered spaces.

No person, except those authorized by the city manager, shall deface, damage, tamper with, open, or willfully break, destroy, or impair the usefulness of a parking meter. No

person, except those authorized by the city manager, shall insert or deposit into a parking meter any object except to the extent specifically allowed by or specified in instructions provided for persons using the meter. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 15000, § 2, 9-6-2016; Ord. No. 15982, § 229, 8-1-2022)

Sec. 66-239. Handicapped persons.

The city manager may designate metered spaces for handicapped persons.
(Ord. No. 15000, § 2, 9-6-2016)

Sec. 66-240. Signs.

The city manager shall cause appropriate signs to be placed so as to notify ordinarily observant individuals as to which parking spaces are metered spaces. Except to the extent otherwise provided by law, the signs may be on displays on parking meters in lieu of signs elsewhere. The city manager shall post signs for metered spaces for handicapped persons as required by G.S. 20-37.6(d).
(Ord. No. 15000, § 2, 9-6-2016)

Sec. 66-241. Other ordinances.

Except to the extent, if any, other provisions of the City Code may be inconsistent with the provisions of this article, nothing in this article is intended to prevent the enforcement of other provisions of the City Code with respect to metered spaces, including section 66-185.
(Ord. No. 15000, § 2, 9-6-2016)

Secs. 66-242—66-253. Reserved.

DIVISION 4. CONTROLLED PARKING RESIDENTIAL AREA*

Sec. 66-254. Definitions.

For the purpose of this division the following words and phrases have the meanings indicated unless the context clearly indicates otherwise:

Block face means all the lots abutting one side of a street beginning where the street intersects with another street and continuing to the next street intersection. In the case of a loop or circular street, where the street has only one street intersection, the two edges of

*__Editor's note—__*Formerly div. 3. Refer to editor's note under div. 3 of this article.

Editor's note—Ord. No. 14811, § 1, adopted June 15, 2015, amended div. 3 to read as set out herein. Former div. 3 pertained to similar subject matter and was derived from Code 1982, §§ 20-140—20-1436; Ord. No. 9331, § 1, adopted July 22, 1991 and Ord. No. 9736, §§ 1—3, adopted December 21, 1992.

the street can be thought of as two concentric circles; the shorter, inside edge abuts one block face, and the longer, outside edge abuts the second block face. In the case of a cul-de-sac, block face means all the lots abutting the street.

Controlled parking residential area or *CPRA* means the on-street parking spaces designated as a CPRA, in which the spaces abut at least two or more residential block faces in which on-street parking of motor vehicles:

(1) Is restricted pursuant to this division; or

(2) Pursuant to a section of this Code outside this division, is subject to time limits or is prohibited.

Permit is a license that exempts a motor vehicle on which the permit is displayed in accordance with this division from the two-hour restriction on parking imposed by section 66-260.

Residential means residential in character or use.

Residential area means a portion of the city that is primarily residential.

Residential block face means a continuous portion of a block face, which continuous portion is primarily residential.
(Ord. No. 14811, § 1, 6-15-2015)

Sec. 66-255. Purpose.

In order to reduce hazardous traffic conditions resulting from the parking of motor vehicles in residential areas by persons visiting or working at nearby commercial, industrial or institutional facilities; to protect residential areas from polluted air, excessive noise, trash and refuse caused by the entry of such vehicles; to protect the individuals living in residential areas from unreasonable obstacles in access to their residences; to preserve the character of residential areas as residential areas; to promote efficiency in maintaining residential streets in a clean and safe condition; to preserve residential property values; and to preserve the safety of children, pedestrians and occupants of motor vehicles, and the peace, good order, comfort, convenience and welfare of the residents of the city generally and of the residents of residential areas in particular; it is necessary to restrict the flow of traffic from commercial, industrial or institutional facilities or uses into nearby residential areas for parking purposes.
(Ord. No. 14811, § 1, 6-15-2015)

Sec. 66-256. Findings.

Restricting traffic from commercial, industrial or institutional districts or uses from entering residential areas for parking purposes will:

(1) Reduce air pollution and other detrimental environmental effects;

(2) Assure convenient access and parking to individuals living in residential areas, and especially those who may wish to leave their cars at home; and

(3) Enhance the quality of life in residential areas by reducing noise, traffic hazards and litter.

(Ord. No. 14811, § 1, 6-15-2015)

Sec. 66-257. Determination of CPRAs.

(a) *Initiation of study.* On the initiative of the city manager, or when an individual who desires that a CPRA be designated on the street where he or she resides submits a letter of interest, the city manager may conduct a study pursuant to subsection (b). The letter of interest must indicate the nature of the problem and be in a format, and contain other information, as the city manager specifies.

(b) *Studies.* The study shall consider:

(1) The effect on the safety of residents of the block faces abutting the proposed CPRA from the parking and use of motor vehicles by nonresidents of those block faces;

(2) The need of the residents to obtain on-street parking near their places of residence, and the need of visitors to obtain adequate on-street parking near the places of residence they visit;

(3) The difficulty of residents to obtain on-street parking near their places of residence because of the widespread use of parking spaces in that area by nonresidents, and the difficulty of visitors to obtain adequate on-street parking near the places of residence they visit in the residential block faces under consideration because of the widespread use of parking spaces in that area by nonresidents who are not visiting places of residence there;

(4) The impact of major facilities and programs on the health, safety, and welfare of the residents and any unreasonable burdens placed on those residents in securing on-street parking and gaining access to their places of residence by virtue of such facilities and programs;

(5) The likelihood that designating a CPRA may alleviate the nonavailability of parking spaces for residents and their visitors;

(6) The fact that the streets in the residential block faces under consideration were constructed or improved by the city within the past five years (preceding the initiation of the study) and that the property owners of the lots abutting the residential block faces under consideration have been assessed all or some of the cost of the street construction or improvement; and

(7) The need for some parking spaces to be available in the area for use by nonresidents.

(c) *Criteria for consideration.* If the city manager determines, based on the results of the study, that all or a portion of the study area would benefit from the designation of a CPRA, the city manager shall determine whether these criteria are met:

(1) At least 70 percent of the legal on-street parking capacity of the residential block faces of the proposed CPRA must be occupied by parking or standing motor vehicles at any one time during the proposed restricted period. For the purpose of this subsection, a legal parking space is 21 feet in length except where a different length is in effect, and the restricted period shall comprise either (i) 8:00 a.m. to 5:00 p.m.

on weekdays or (ii) 6:00 p.m. to 2:00 a.m. seven days each week, in order to address parking during weekday business hours or during evening and night-time entertainment hours, respectively.

(2) At least 25 percent of the motor vehicles parked or standing in the proposed CPRA are registered in the names of persons who do not live in residences of lots abutting the proposed CPRA.

(3) The designations of CPRAs shall be codified by entries in an official map book, under category 2 (controlled parking residential areas, pursuant to section 66-254 et seq.). The maps themselves and amendments that may be made to them will not otherwise be placed in the city code.

(d) *Petition for CPRA.* If, after conducting a study pursuant to subsection (b) and determining the existence of the criteria listed in subsection (c), the city manager finds it is in the best interest of the city to designate a CPRA, the city manager shall solicit and receive a petition requesting the CPRA designation signed by an owner or an adult resident of a dwelling unit on a majority of the lots abutting the proposed CPRA. The city manager shall determine the sufficiency of each petition, and any insufficient petition shall be returned to the individual submitting it, with instructions for correction of deficiencies. For purposes of the petition, either spouse may sign as an owner when the dwelling unit is owned by tenants by the entireties.

(e) *Designation of initial and additional CPRAs.* If the city manager receives a petition for the CPRA pursuant to subsection (d), the city council may designate the area a CPRA.

(1) *Additional designation by city council.* Without requiring a study or requiring that the criteria in subsection (c) be met, the city council may designate as a CPRA, any on-street parking spaces abutting additional residential block faces near an existing CPRA where there is a substantial likelihood that persons going to nearby commercial, industrial or institutional facilities will begin to park motor vehicles in on-street parking spaces abutting residential block faces near the existing CPRA and thereby substantially contradict the purpose of this division as set forth in section 66-255.

(2) *Additional designation by city manager.* At any time after the designation of a CPRA by the city council, the city manager may designate additional on-street parking spaces abutting residential block faces near the CPRA without requiring a study, so long as (i) the additional CPRA meets the criteria in subsection (c), (ii) the cause of meeting those criteria (in terms of times of the day and days of the week) is the same cause for the designation by the city council, and (iii) the cumulative linear feet of on-street parking spaces added under this subsection do not exceed 20 percent of the total linear feet of the on-street parking spaces in the original CPRA. Such additional designations are deemed routine determinations pursuant to section 54.1 of the Charter.

(f) *Posting of signs.* The city manager shall post signs in the CPRA as needed to enforce this division.

(g) *Permits.*

(1) *Annual permit.* A resident of a lot abutting a CPRA is eligible to receive a permit for each motor vehicle that is primarily operated by him or her or that is registered in his or her name on the records of the state division of motor vehicles. As part of the application process, the resident must present the motor vehicle registration card for each motor vehicle for which a permit is desired and other information required by the city manager pursuant to section 1-11(b), (c). Permits issued under this subsection shall be issued for a period commencing at 12:01 a.m. January 1, and expiring at midnight, December 31.

(2) *Visitor's permit.* Upon submitting an application prepared pursuant to section 1-11(b), (c), any resident of a lot abutting a CPRA may obtain a temporary permit to be used by visitors to the resident's home; the permit shall be valid for the period specified in the permit, to a maximum of one week. If the visitor of a resident of a lot abutting a CPRA is visiting for more than one week, a visitor's permit may be issued for each week of the visit.

(3) *Special permit.* A special permit may be issued to nonresidents of lots abutting a CPRA upon submitting an application prepared pursuant to section 1-11(b), (c), and a finding by the city manager that good cause exists, consistent with the purposes of this division. Good cause includes employment on a lot abutting the CPRA and use of a rental vehicle. Permits issued under this subsection shall be valid for the period specified in the permit, up to 12 months.

(4) *Permit contents and display.* The permit shall bear, in addition to other information deemed appropriate by the city manager, a unique permit identification number, the CPRA in which it shall be valid and an expiration date. If the city manager chooses to issue the permit in the form of a decal, it shall be attached to the left rear window of the motor vehicle for which issued. If the city manager chooses to issue the permit in another form, the city manager shall specify on the permit how and where the permit must be displayed.

(5) *Restrictions; reissuance of permit.*

a. No person shall materially falsely represent himself or herself as eligible for a permit or furnish any materially false information in an application in order to obtain a permit.

b. Permits and decals are not transferrable; provided, however, that a holder of a permit who sells, trades or retires a motor vehicle may obtain a replacement permit by providing proof of eligibility for the permit under subsection (g)(1).

c. Lost, stolen or destroyed permits may be reissued, if the permit holder supplies proof of eligibility for the permit under subsection (g)(1).

(Ord. No. 14811, § 1, 6-15-2015)

Sec. 66-258. Enforcement; exemptions.

(a) Enforcement of restrictions imposed by a sign to be posted pursuant to section 66-257(e) shall not begin until 30 days after the sign has been posted. Replacement signs are effective immediately. A permit will not guarantee the holder a parking place; provide an exemption from any ordinances governing parking on city streets; or limit the city's authority to revoke any or all permits or to revise or repeal this division.

(b) Motor vehicles driven by the following persons while engaged in the performance of their respective occupations are exempt from this division:

(1) Persons authorized by a governmental person, as defined by section 1-2, including the city;

(2) Firefighting personnel, law enforcement personnel, EMS personnel, health care workers or providers, military personnel, civil preparedness personnel, emergency management personnel, and emergency management workers (defined by G.S. 166A-19.60(e)); or

(3) Persons providing services to owners or residents of lots abutting a CPRA when the motor vehicle is conspicuously marked on the exterior to indicate a business or service.

(Ord. No. 14811, § 1, 6-15-2015)

Sec. 66-259. Revocation of permit.

(a) The city manager may revoke the permit of any holder found to be in violation of this division, and, upon written notification thereof, the holder shall have ten days in which to file a notice of appeal or surrender the permit. Notice by mail is deemed given by the mailing of first-class mail addressed to the address on the application submitted to the city to request the permit. An appeal is deemed filed or permit surrendered when it is received by the city manager.

(b) Notice of appeal shall be in writing and filed in the office of the city manager. The city manager shall schedule a hearing on the matter within 30 days after the notice of appeal is filed. The decision of the city manager shall be final.

(c) Failure to file an appeal as provided for in this section waives the right to appeal.

(d) Revoking a permit does not limit other remedies for violation of this division.

(Ord. No. 14811, § 1, 6-15-2015)

Sec. 66-260. Violations and penalties.

Except to the extent otherwise provided in section 66-258, no person shall park a motor vehicle in a CPRA for longer than two hours without a properly displayed permit or obtain

or use a permit in a manner contrary to this division. Any person found in violation of this division shall be assessed a civil penalty as provided in section 66-370(c) and, to the extent applicable, section 1-9(b).
(Ord. No. 14811, § 1, 6-15-2015)

Sec. 66-261. Restrictions and penalties generally cumulative.

Nothing in this division limits prohibitions and restrictions that are imposed by any section of this Code outside this division on the use of an on-street parking space in a CPRA. However, section 66-260 does not apply to a space where parking is prohibited at all times. Penalties for violation of this division and for violation of restrictions imposed by any section of this Code outside this division are cumulative.
(Ord. No. 14811, § 1, 6-15-2015)

Secs. 66-262—66-264. Reserved.

DIVISION 5. TEMPORARY USE OF STREET RIGHTS-OF-WAY BY CONTRACTORS AND PARKING FOR EXTENDED PERIODS IN LIMITED TIME ZONE PARKING SPACES*

Sec. 66-265. Definitions.

In this division, the following definitions apply unless the context clearly requires otherwise.

Contractor parking permit means a permit issued pursuant to section 66-267.

Law means law, statute, ordinance, rule, regulation, or decree or order of any governmental entity.

On-street parking space means a space designated by the city or the state for parking a motor vehicle on a street right-of-way.

On-street parking space permit means a permit issued pursuant to section 66-270.

Permit depending on the context, refers to any or all of the permits issued under this division.

Street right-of-way means the entire area in which the public, the city, or the state owns a property interest, when a portion is open to the use of the public as a matter of right for any motor vehicle traffic. The street right-of-way includes roadway, and may include right-of-way parking area, sidewalk, median, and unpaved areas, including grassed area.

Temporary construction space means a portion of the street right-of-way, including on-street parking spaces, for which the city manager makes findings listed in section 66-267. The space may include an area contiguous with an on-street parking space.

***Editor's note—**Formerly div. 4. Refer to editor's note under div. 3 of this article.

Time-limited parking space means an on-street parking space in which parking a motor vehicle is lawful for a specified period that is less than 24 hours. It includes on-street parking spaces in which parking is limited by section 66-260 or by time zone parking restrictions that are adopted pursuant to section 66-345 and entered on traffic schedule (5)f. under that section. Loading and unloading spaces are not time-limited parking spaces.
(Ord. No. 14809, § 2, 6-15-2015)

Sec. 66-266. Scope.

This division applies only to the streets marked on the map labeled "On-Street Parking Program" and "Map prepared by Durham GIS on 5/7/2015." Pursuant to section 66-345 the map shall be codified by entry in an official map book, under category 1 (streets subject to temporary use of street rights-of-way by contractors and parking for extended periods in limited time zone parking spaces, pursuant to section 66-265 et seq.). The map itself and amendments that may be made to it will not otherwise be placed in the city code.
(Ord. No. 14809, § 2, 6-15-2015)

Sec. 66-267. Contractor parking permit.

The city manager may issue a contractor parking permit to allow the occupation of a temporary construction space by vehicles, fences, receptacles for solid waste, and other apparatus, supplies, material, and equipment, provided that the occupation of the space is connected with construction, maintenance, repair, servicing, or demolition, or for loading or unloading, or for moving. The city manager shall not issue a permit without finding that occupation of the space in accordance with the terms of the permit (i) is reasonably necessary for the project, (ii) can be done without interfering with the regular flow of motor vehicle traffic, and (iii) can be done without endangering or unduly inconveniencing persons or endangering property. Fees for permits shall be as set by the city council from time to time.
(Ord. No. 14809, § 2, 6-15-2015)

Sec. 66-268. Terms of permit.

The city manager shall specify in each permit any conditions that the city manager deems appropriate for the situation, including requiring the permittee to post and maintain signs, barricades, fencing, cones, lights, and other boundary or safety devices. The space shall be located where the city manager designates. On-street parking spaces may be included within the boundaries of the temporary construction space. The permit shall designate the boundaries of the space and may include vertical limitations. The permit shall expire when specified in the permit but in no event may a single permit remain effective longer than six months, provided that a new permit may be issued to continue after an existing permit expires, if the city manager finds that to be appropriate under section 66-267. Nothing in the permit shall be deemed to relieve the permittee from complying with applicable law or from complying with the appropriate standard of care. Complying with the permit is intended only to constitute a defense to a citation for violating limited time zone parking restrictions

that are adopted pursuant to section 66-345 and entered on traffic schedule (5)f. under that section, and not a defense to violation of other applicable law or the appropriate standard of care.
(Ord. No. 14809, § 2, 6-15-2015)

Sec. 66-269. Placing objects in parking spaces other than motor vehicles and sales gear.

No object other than a motor vehicle shall be placed in a space designated by the city or the state for parking a motor vehicle on a street unless an individual remains in or near the space and immediately removes the object from the space upon an indication that another individual intends to move a motor vehicle into the space. This section does not affect the placement of sales gear allowed by section 54-91(b). The violation of this section shall subject the offender to a civil penalty to be recovered by the city in a civil action in the nature of debt if the offender, or the registered owner of the object, does not pay the penalty within ten days of the violation. The violation shall not be deemed criminal and no criminal penalty shall be imposed therefor.
(Ord. No. 14809, § 2, 6-15-2015; Ord. No. 15000, § 4, 9-6-2016)

Sec. 66-270. On-street parking space permits.

(a) *Standard permits.* The city manager may issue on-street parking space permits to allow a vehicle to be parked in a time-limited parking space without regard to the time limit, when the city manager determines such parking is needed for construction, maintenance, repair, servicing, demolition, loading, unloading, or moving. The permit shall designate one or more parking spaces where the permit applies. The permit shall expire when specified in the permit but in no event may a single permit remain effective longer than six months, provided that a new permit may be issued to continue after an existing permit expires, if the city manager finds that to be appropriate under the standards of this section. Fees for permits shall be as set by the city council from time to time.

(b) *Permits for utilities.* The city manager may issue on-street parking space permits to allow a vehicle to be parked in a time-limited parking space without regard to the time limit, for vehicles operated by or for companies that have the right to place wires, cables, or pipes in the street right-of-way pursuant to a franchise ordinance or an easement from the city or the state, but only for the time period when the vehicle is used for construction, maintenance, or repair. The permit may, but need not, designate one or more specific parking spaces where the permit applies. If the permit provides for its expiration upon the passage of time or by some other measure, it expires accordingly, provided that a new permit may be issued to continue after an existing permit expires, if the city manager finds that to be appropriate under the standards of this section. Fees for permits shall be as set by the city council from time to time. (Ord. No. 14809, § 2, 6-15-2015)

Sec. 66-271. Exemptions from limited time zone parking restrictions.

The following are exempt from limited time zone parking restrictions that are adopted pursuant to section 66-345 and entered on traffic schedule (5)f. under that section:

(1) Vehicles parked by individuals attending a funeral, including the funeral director and his or her employees, if the funeral is organized by a funeral director licensed pursuant to G.S. 90-210.25, during the time period beginning one hour before the funeral is scheduled to begin, while the funeral is in progress, and ending one hour after the funeral has ended;

(2) City vehicles while parked to facilitate construction, maintenance, or repair of pipes, apparatus, and equipment used for the supply or transmission of potable water; and

(3) Vehicles parked by any of the following, while engaged in the performance of their respective occupations: firefighting personnel, law enforcement personnel, EMS personnel, health care workers or providers, civil preparedness personnel, emergency management personnel, and emergency management workers (defined by G.S. 166A-19.60(e)).

(Ord. No. 14809, § 2, 6-15-2015)

Sec. 66-272. Suspension, termination, and revocation of permit; review of decisions.

(a) *Suspension, termination, and revocation.* The city manager may, at any time, suspend or terminate a permit for reasons satisfactory to the city manager. Without limiting the preceding sentence, the city manager may suspend or terminate a permit:

(1) To allow for construction, maintenance, or repair of any street, sidewalk, utility, building, or facility;

(2) To allow for use of a public street, sidewalk, utility, building, or facility in connection with parades, festivals, or other events;

(3) To remedy a nuisance; or

(4) To protect or promote the public health, safety, or welfare.

(b) *Revocation.* The city manager may revoke a permit if:

(1) The city manager finds fraud, misrepresentation, or knowingly false statement with respect to a material fact in the permit application;

(2) The city manager finds that the permittee or the permittee's agent or employee violated this division or the terms of the permit;

(3) The city manager finds that the permittee or the permittee's agent or employee conducted an activity for which the permit is required in such a manner as to create a public nuisance, cause of a breach of the peace, violate any applicable law, or interfere with the rights of abutting property owners; or

(4) The city manager finds that the public safety or convenience of pedestrians is not served by the permit.

Except in case of emergency or insufficient time, before making the decision to suspend, terminate, or revoke, the city manager shall give reasonable notice to the permittee and an opportunity to be heard. If because of emergency or insufficient time, the decision is made without giving reasonable notice and an opportunity to be heard, notice and an opportunity to be heard shall be given promptly. A permit may be revoked pursuant to this section even if the person making the findings pursuant to this section (the city manager or chief of police, as applicable) had made a contrary finding before the permit was issued, regardless of whether the facts upon which the finding is made had changed.

(b) *Notice.* The city manager shall cause a written notice of the suspension, termination, or revocation to be served on the permittee by first-class mail to the address shown on the permit application or by any method allowed by law for service of a summons in a civil action, provided that the person delivering the notice may be any person who is 18 years or older, including the city manager. The notice shall set forth a brief statement of the grounds for the action and of the right to appeal.

(c) *Retention of fees; waiting period.* If the city suspends, terminates, or revokes a permit, the city shall retain the fee paid for the permit. However, when a permit is suspended or terminated entirely for reasons other than wrongful conduct or fault of the permittee or those for which the permittee is responsible, such as by use of the authority under section 66-272(a)(1), (2), fees paid in advance at a daily rate will be refunded to the extent advance payments are for three or more days. The person whose permit is revoked for grounds stated in subsection (a)(1) or (a)(2), regardless of whether additional grounds existed, shall not be issued a permit under the same section of this division for the remainder of the time for which the revoked permit had been issued or 30 days after the date of the revocation, whichever time period is longer. The city manager shall use reasonable judgment in deciding whether two applicants are the same so that, for example, technical changes in the applicant, or where the applicant one year is the wife and the next year it is the husband, may be disregarded.

(d) *Review of decisions.* If the city manager suspends, terminates, or revokes a permit, the permittee may have that decision reviewed by filing a written request in the office of the city manager within ten days of the date of the notice of decision. The city manager or a person designated by the city manager for this purpose who is neither the person who made the decision complained of nor that person's subordinate, shall be named as the hearing officer to conduct a hearing in order to review the decision. The city manager shall cause a written notice of the time and place of the hearing to be given or sent to the person seeking review. The permittee and the city manager may appear in person or through counsel and may present evidence, provided, however, that the hearing officer shall have the authority to conduct the hearing in the manner and for the period of time that he or she deems appropriate to make a decision. The hearing officer may affirm, deny, or modify the decision complained of, and the hearing officer's decision shall be final. Failure to request a review within the time and in the manner provided for in this subsection shall constitute a waiver of the right of review. The permit may be used during the review process only if the city manager determines that its use would not constitute a substantial threat that the grounds described in subsection (a)(2), (a)(3), or (a)(4) will occur, re-occur, or continue during the review process.

(Ord. No. 14809, § 2, 6-15-2015)

Sec. 66-273. Removal of vehicles and other objects.

(a) *Right of city to remove.* The city manager may cause to be removed any vehicle or other object from a temporary construction space or time-limited parking space when (i) a permit allowing the space to be occupied has been suspended, terminated, or revoked (whether or not the action is subject to review), (ii) the vehicle or other object in the temporary construction space or time-limited parking space violates the terms of a permit or this division, or impedes the regular flow of motor vehicle traffic, or (iii) the vehicle or other object in the temporary construction space or time-limited parking space endangers property or endangers or unduly inconveniences a person. The removal shall be to a garage or other location or facility designated by the city manager.

(b) *Duty of permittee to remove.* To the extent directed by the city, when a permit issued pursuant to this division is suspended, terminated, or revoked, any person allowed to do any activity by the permit, whether or not the permit remains valid, shall promptly cease the activity and remove all property that the city deems to interfere with the purposes for which the direction is given. In addition to any other remedy available in the Code, violation of this subsection (b) is a misdemeanor.

(Ord. No. 14809, § 2, 6-15-2015; Ord. No. 15982, § 230, 8-1-2022)

Sec. 66-274. Penalties for violations.

(a) *Assessment of civil penalties.* The city manager shall assess civil penalties for violation of this division, including the terms of a permit. The city manager shall give the offender written notice of the nature of the violation and the amount of the civil penalty. The notice shall be served by any method allowed by law for service of a summons in a civil action,

provided that the person delivering the notice may be any person who is 18 years or older, including the city manager. The civil penalty shall be in an amount $100.00 per violation plus the costs incurred by the city resulting from the violation, including costs of removing litter.

(b) *Review of assessment of civil penalties.* Any person who has been assessed a civil penalty under this division may have that assessment reviewed by filing a written request in the office of the city manager within ten days of the date of service of the notice of the civil penalty. A person designated by the city manager for this purpose who is neither the person who assessed the civil penalty nor that person's subordinate shall be named as the hearing officer to conduct a hearing in order to review the assessment. The city manager shall cause a written notice of the time and place of the hearing to be given or sent to the person seeking review. The person assessed the penalty and the city manager may appear in person or through counsel and may present evidence, provided, however, that the hearing officer shall have the authority to conduct the hearing in the manner and for the period of time that he or she deems appropriate to make a decision. The hearing officer may affirm, deny, or modify the decision complained of, and the hearing officer's decision shall be final. Failure to request a review within the time and in the manner provided for in this subsection constitutes a waiver of the right of review.

(c) *Collection of civil penalties.* If the offender does not pay the civil penalty within ten days after having been served with the notice of the civil penalty, the city manager may collect the civil penalties by causing to be commenced civil actions in the nature of debt. The city manager may compromise such claims, before or after commencement of the civil action, if the city manager finds there is a reasonable probability that the city will be unable to collect the entire amount of the claim, that the amount offered in compromise of the claim reasonably reflects either the amount of money available from the offender or the amount the city is likely to recover in the civil action, taking into account the resources required to pursue the civil action, and that the facts and circumstances of the events giving rise to the claim, taken as a whole, indicate that the amount offered in compromise is fair and reasonable. Using the foregoing standards, in an appropriate case, the city manager may abandon a claim.

(d) *Available remedies.* This division and the provisions of permits issued under this division may be enforced by an appropriate equitable remedy, including abatement orders and mandatory or prohibitory injunctions, issuing from a court of competent jurisdiction. The general court of justice shall have jurisdiction to issue such orders as may be appropriate, and it shall not be a defense to the application of the city for equitable relief that there is an adequate remedy at law. In applying section 1-9(e), the city council intends that termination and revocation of a permit be considered to be remedies.
(Ord. No. 14809, § 2, 6-15-2015; Ord. No. 15982, § 231, 8-1-2022)

Sec. 66-275. Other ordinances and N.C. DOT not limited.

Nothing in this division shall be construed to limit any provision of this Code outside this division, including section 66-108 (driving over curbs, gutters or sidewalks at places other

than those constructed and designed for traffic) and section 66-109 (driving on sidewalk). Nothing in this division shall be construed to limit the authority of the state department of transportation over rights-of-way under its jurisdiction.
(Ord. No. 14809, § 2, 6-15-2015)

Secs. 66-276—66-283. Reserved.

DIVISION 6. BUS STOPS AND TAXICAB STANDS*

Sec. 66-284. Where buses and taxicabs may stop in any business district.

The driver of a bus or taxicab shall not stand or park upon any street in any business district at any place other than at a bus stop or taxicab stand, respectively, except that this provision shall not prevent the driver of any such vehicle from temporarily stopping, in accordance with other stopping or parking regulations, at any place for the purpose of and while actually engaged in the loading or unloading of passengers.
(Code 1964, § 12-201; Code 1982, § 20-160)

Sec. 66-285. Parking in bus stops and taxicab stands.

No person shall stop, stand or park a vehicle other than a bus in a bus stop, or other than a taxicab in a taxicab stand, when any such stop or stand has been officially designated and appropriately signed, except that the driver of a passenger vehicle may temporarily stop therein, for the purpose of and while actually engaged in loading or unloading passengers, when such stopping does not interfere with any bus or taxicab waiting to enter or about to enter or already within such zone.
(Code 1964, § 12-202; Code 1982, § 20-161)

Sec. 66-286. Operation of vehicles in bus transfer area driveway prohibited.

It shall be unlawful for any person to operate a motor vehicle in the bus transfer area driveways between Main Street and Morgan Street; provided, however, this section shall not apply to: (1) buses operated by or on the behalf of the city; (2) emergency vehicles, including police, fire, ambulance and wrecker vehicles; and (3) street maintenance and similar service vehicles owned and operated by the city. In addition to any other remedy available in the Code, violation of this section is an infraction.
(Code 1964, § 12-202.1; Code 1982, § 20-162; Ord. No. 15982, § 232, 8-1-2022)

***Editor's note—**Formerly div. 5. Refer to editor's note under div. 3 of this article.

Editor's note—Ord. No. 14809, § 1, adopted June 15, 2015, renumbered div. 4, §§ 66-284—66-287, as div. 5, §§ 66-284—66-287; and § 2 enacted a new div. 4, §§ 66-265—66-275 to read as set out in this chapter.

Sec. 66-287. Rules and regulations applicable to taxicab stands.

The taxicab stands shall be subject to such rules and regulations as may be prescribed by the city manager from time to time which are deemed necessary and proper in the interest of public convenience and necessity.
(Code 1964, § 12-203; Code 1982, § 20-163)

Secs. 66-288—66-300. Reserved.

ARTICLE V. BICYCLES, MICROMOBILITY DEVICES, AND NON MOTORIZED RECREATIONAL VEHICLES

DIVISION 1. GENERALLY

Secs. 66-301—66-305. Reserved.

DIVISION 2. BICYCLES ELECTRIC SCOOTERS, AND OTHER TYPES OF MICROMOBILITY DEVICES*

Sec. 66-306. Adoption of definitions in general statutes.

The definitions of the following words set out in G.S. 20-4.01, as amended from time to time, are adopted as part of this article: electric assisted bicycle and vehicle.
(Ord. No. 15598, § 1, 2-3-2020; Ord. No. 16316, § 2, 5-20-2024)

Sec. 66-307. Definitions.

The following words, terms and phrases, when used in this division, have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bicycle means a non-motorized vehicle with two or three wheels tandem, a steering handle, one or two saddle seats, and pedals by which the vehicle is propelled.

Bike lane means that section of vehicular travel on a roadway set aside for use by bicycles, electric assisted bicycles, electric scooters, and other types of micromobility devices and designated with either signage or roadway painting or both.

Electric scooter means a vehicle that is steered by a steering handle, designed either (i) with a saddle seat, or (ii) to be stood upon by the operator while the vehicle is in operation,

*Ord. No. 16316, § 1, adopted May 20, 2024, amended the title of Div. 2 to read as herein set out. The former Div. 2 title pertained to bicycles and motorized scooters. Formerly, Ord. No. 15598, § 1, adopted February 3, 2020, repealed the former division 2, §§ 66-307—66-314, and enacted a new division 2 as set out herein. The former division 2 pertained to similar subject matter and derived from Code 1982; Ord. No. 13238, §§ 20-170—20-176, 4-3-2006; Ord. No. 15209, § 1, 10-16-2017; Ord. No. 15380, §§ 1, 2, 10-15-2018.

and is powered by an electric motor capable of propelling the vehicle with or without human propulsion, at a speed no greater than 20 miles per hour on a level surface; and whose wheels have diameters of 20 inches or less.

Greenway trail means a pathway for bicycles and pedestrians either paralleling a roadway and located within the right-of-way shared with the roadway but excluding any bike lane, or located within a public easement or right-of-way not associated with a roadway, and designated by signage as a public trail.

Micromobility device means a bicycle, electric assisted bicycle, electric scooter, or other type of shared micromobility device.

Motorized vehicle means any vehicle that can be self-propelled, including electric assisted bicycles, electric scooters, and other types of micromobility devices. Motorized vehicle does not include a device which is designed for and intended to be used as a means of transportation for a person with a mobility impairment, or who uses the device for mobility enhancement, is suitable for use inside and outside a building, including on sidewalks, and is not capable of being propelled greater than 15 miles per hour on a level surface.

Other type of micromobility device means a device permitted for use as part of a shared micromobility program regulated under article VII of chapter 50 (public transportation and aviation) of the City Code, other than a bicycle, electric assisted bicycle, or electric scooter.

Roadway means that portion of the public right-of-way improved, designed, or ordinarily used for vehicular travel, exclusive of any shoulder.
(Ord. No. 15598, § 1, 2-3-2020; Ord. No. 16316, § 2, 5-20-2024)

Sec. 66-308. Applicability.

For the purposes of this Code, bicycles, electric assisted bicycles, electric scooters, and other types of micromobility devices are deemed vehicles; and every rider of such vehicles upon a highway is subject to the provisions of this Code and of North Carolina General Statutes applicable to the driver of a vehicle except those which by their nature can have no application.
(Ord. No. 15598, § 1, 2-3-2020; Ord. No. 16316, § 2, 5-20-2024)

Sec. 66-309. Equipment and safety requirements.

(a) Bicycles, electric assisted bicycles, electric scooters, and other types of micromobility devices shall comply with the applicable vehicle equipment and safety requirements of G.S. ch. 20.

(b) Anyone riding upon a bicycle, electric assisted bicycle, electric scooter, or other type of micromobility device shall not attach the vehicle or himself or herself to any other moving vehicle upon any roadway.

(c) If authorized for use on a greenway trail, a person riding a bicycle, electric bicycle, electric scooter, or other type of shared micromobility device shall yield the right-of-way to pedestrians.
(Ord. No. 15598, § 1, 2-3-2020; Ord. No. 15982, § 233, 8-1-2022; Ord. No. 16316, § 2, 5-20-2024)

Sec. 66-310. Traffic regulations and parking.

(a) Any person operating a bicycle, electric assisted bicycle, electric scooter, or other type of micromobility device on a public right-of-way shall obey the instructions of official traffic signals, signs, and other control devices applicable to the driver of a motorized vehicle, except those which by their nature can have no application to a bicycle, electric assisted bicycle, electric scooter, or other type of micromobility device.

(b) Right-of-way at intersections shall be determined by North Carolina General Statutes whenever applicable. Bicycles, electric assisted bicycles, electric scooters, and other types of micromobility devices using bike lanes have the right-of-way over vehicles making turning movements from parallel lanes of a roadway.

(c) Bicycles, electric assisted bicycles, electric scooters, and other types of micromobility devices may be walked subject to all provisions of law applicable to pedestrians.

(d) The operator of a bicycle, electric assisted bicycle, electric scooter, or other type of micromobility device emerging from an alley, driveway, or building shall, upon approaching a sidewalk, yield right-of-way to all pedestrians in close proximity on such sidewalk, and upon entering a roadway shall yield right-of-way to all approaching motorized vehicles whose movement would be affected thereby.

(e) Whenever a lane of traffic on any roadway is indicated by pavement marking or by a sign as being assigned as a bike lane, it is unlawful for the driver of a motorized vehicle, except electric assisted bicycles, electric scooters, or other types of micromobility devices, to occupy such lane for moving or parking, except that a driver may cross such lane to make a lawful turning movement, yielding the right-of-way to riders of bicycles, electric assisted bicycles, electric scooters, or other types of micromobility devices occupying such lane.

(f) It is prohibited for an operator of a bicycle, electric assisted bicycle, electric scooter, or other type of micromobility device to park his or her vehicle in the following locations:

(1) Directly on a pedestrian sidewalk unless there is an unobstructed pedestrian corridor remaining of at least 4-feet, or the vehicle is parked inside a designated, marked electric scooter or bicycle parking area;

(2) In a manner that blocks American with Disabilities Act (ADA) accommodations, including curb ramps, braille signs, railings and signal push buttons;

(3) In front of, or blocking transit areas, including bus stops, shelters, passenger waiting areas, and bus layover and staging zones, except within areas approved by the city or public transit authority; or

(4) In front of, or blocking street furniture, loading zones, entryways, driveways, alleys, fire hydrants, or crosswalks.

(Ord. No. 15598, § 1, 2-3-2020; Ord. No. 15982, § 234, 8-1-2022; Ord. No. 16316, § 2, 5-20-2024)

Sec. 66-311. Duty of parents or guardians.

The parent of any minor child and the guardian of any minor ward shall not authorize or knowingly permit any minor child or ward to violate any provisions of this division.

(Ord. No. 15598, § 1, 2-3-2020; Ord. No. 15982, § 235, 8-1-2022; Ord. No. 16316, § 2, 5-20-2024)

Sec. 66-312. Motorized vehicles and greenway trails.

(a) No person shall drive any motorized vehicle upon any greenway trail except at public street intersections or to enter a driveway. No person shall drive across a greenway trail as permitted by this section except after yielding right-of-way to all bicycles, electric assisted bicycles, electric scooters, other types of micromobility devices, and pedestrians on the path.

(b) This section shall not apply to law enforcement officers or city maintenance staff while in discharge of their official duties.

(Ord. No. 15598, § 1, 2-3-2020; Ord. No. 15982, § 236, 8-1-2022; Ord. No. 16316, § 2, 5-20-2024)

Sec. 66-313. Enforcement.

If any person violates an ordinance of the city regulating the operation of a bicycle, electric assisted bicycle, electric scooter, or other type of micromobility device, they shall be responsible for an infraction and shall be required to pay a penalty of no more than $50.00.

(Ord. No. 15598, § 1, 2-3-2020; Ord. No. 16316, § 2, 5-20-2024)

Secs. 66-314—66-319. Reserved.

DIVISION 3. NON-MOTORIZED RECREATION VEHICLES

Sec. 66-320. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Inherent risk means those dangers or conditions that are characteristic of or intrinsic to or an integral part of skateboarding and freestyle bicycling.

Non-motorized recreation vehicle means a vehicle used in certain hazardous recreational activities, i.e., skateboarding or freestyle bicycling.

Skateboard or freestyle bicycling park means a facility that is designed and maintained by the city for the purpose of either recreational skateboard use and/or recreational freestyle bicycle use.
(Code 1982; Ord. No. 13238, § 20-177, 4-3-2006)

Sec. 66-321. Clinging to moving vehicles.

Any person riding upon any skateboard or any non-motorized recreation vehicle shall not attach the same or himself or herself to any moving vehicle upon any roadway. In addition to any other remedy available in the Code, violation of this section is an infraction and the person found responsible for such infraction shall pay a penalty not to exceed $50.00.
(Code 1982; Ord. No. 13238, § 20-178, 4-3-2006; Ord. No. 15982, § 237, 8-1-2022)

Sec. 66-322. Use of skateboards.

No person upon a skateboard or similar device shall go upon any roadway, except while crossing the street on a crosswalk and except upon streets set aside as play streets when and as authorized by the provisions of this Code or other ordinances of the city. In addition to any other remedy available in the Code, violation of this section is an infraction and the person found responsible for such infraction shall pay a penalty not to exceed $50.00.
(Code 1982; Ord. No. 13238, § 20-179, 4-3-2006; Ord. No. 15982, § 238, 8-1-2022)

Sec. 66-323. Skateboard and freestyle bicycling parks.

(a) Any person participating in, observing, or assisting in a hazardous recreational activity in a city skateboard or freestyle bicycling park assumes the known and inherent risks in these activities, irrespective of age, and is legally responsible for all damages, injury, or death to himself or herself or other persons or property that result from these activities.

(b) Any person participating in a hazardous recreational activity in a city skateboard or freestyle bicycling park is required to be wearing a helmet, elbow pads, and knee pads.

(c) Any person participating in a hazardous recreational activity is responsible for doing each of the following:

(1) Acting within the limits of his or her ability and the purpose and design of the equipment used;

(2) Maintaining control of his or her person and the equipment used; and

(3) Refraining from acting in any manner that may cause or contribute to death or injury of himself or herself or other persons.

(d) Any person participating in a hazardous recreational activity in a city skateboard or freestyle bicycling park is required to obey posted regulatory signs; failure to do so will be subject to citation under this division.

(e) In addition to any other remedy available in the Code, violation of this section is an infraction and the person found responsible for such infraction shall pay a penalty not to exceed $50.00.
(Code 1982; Ord. No. 13238, § 20-180, 4-3-2006; Ord. No. 15982, § 239, 8-1-2022)

Sec. 66-324. Liability of the city.

Neither the city nor its employees shall be liable to any person who voluntarily participates in hazardous recreational activities or for any damage or injury to property or persons that arises out of a person's participation in the activity and takes place in an area specifically designated for that activity.
(Code 1982; Ord. No. 13238, § 20-181, 4-3-2006)

Secs. 66-325—66-344. Reserved.

Editor's note—Ord. No. 15982, § 240, adopted August 1, 2022, repealed § 66-325, which pertained to enforcement and derived from Code 1982; Ord. No. 13238, § 20-182, 4-3-2006.

ARTICLE VI. ENFORCEMENT*

DIVISION 1. GENERALLY

Sec. 66-345. Traffic control and regulation schedule; official map books for certain parking regulations.

(a) Traffic regulation and control ordinances whose provisions are implemented by the posting of an appropriate sign or official traffic control device are codified by entry upon the official schedule adopted by the city council and set out below as authorized by G.S. 160A-77(b1). These ordinances are available for inspection in the office of the city clerk according to the following official traffic control and regulation schedule.

***State law reference—**Punishment generally for violation of state traffic laws, G.S. 20-176.

TRAFFIC SCHEDULES

(1) *Intersection control.*

a. Stop sign.

1. Manager delegation.

2. Designated.

b. Yield sign.

1. Manager delegation.

2. Designated.

c. Flashing or blinker light-designated.

d. Traffic light-designated.

(2) *Speed control.*

a. School zone, state street.

b. School zone, city street.

c. City residential, 25 mph.

d. Public park.

e. Intersection.

f. State system.

g. City street, maximum speed.

h. City street, minimum speed.

(3) *Turn control.*

a. Left turn as indicated.

b. No left turn.

c. No right turn.

d. No turn.

e. No "U" turn.

f. Restricted lane.

g. Prohibited right turn on red, ch. 12, art. V, div. 5, subdiv. IV.

(4) *Fire signal.*

(5) *Curb restriction.*

a. No parking anytime-tow-in.

b. Emergency service vehicle parking.

c. No parking in front of religious facility.

d. No parking in front of theater.

e. Loading zone.

f. Limited time zone parking (a category for each time period).

g. No parking-hazardous location.

h. No parking-narrow street.

i. Bus stop.

j. Taxicab stand.

k. Angle parking.

l. No parking-school area.

(6) *Pedestrian areas.*

a. Crosswalk.

b. Safety zones.

c. Play street.

d. Pedestrian mall.

(7) *Flashing lights—Other than at intersection.*

(8) *One-way street.*

(9) *Oversized vehicles-limitations.*

a. Truck route designated.

b. Vehicles with more than two axles prohibited.

c. Vehicles greater than 13,000 pounds prohibited designated.

d. Vehicles greater than 11 tons, tractor-trailers greater than 19 tons prohibited.

(10) *Public off-street parking.*

a. Parking Facility Rate Structure-Reserved. (Presently maintained in resolution book, office of the city clerk.)

b. Timed parking lots.

(11) *Bicycle travel-sidewalk.*

(12) *Bicycle travel-street lane.*

(13) *Stopping-standing in public vehicular areas.*

(14) *Quiet zones.*

(15) *No passing.*

(16) *Handicap spaces.*

a. Curb restriction.

b. Other than curb restriction.

(17) *Fire lanes on private property devoted to public use.*

(b) Maps designating areas and zones where regulations are applied to the following types of parking ordinances shall be codified by entries upon official map books to be retained by the city clerk, pursuant to G.S. 160A-77(b)(3):

OFFICIAL MAP BOOKS

(1) Streets subject to temporary use of street rights-of-way by contractors and parking for extended periods in limited time zone parking spaces, pursuant to section 66-265 et seq.

(2) Controlled parking residential areas, pursuant to section 66-254 et seq.

(Code 1982, § 20-190; Ord. No. 6290, § 1, 2-20-1984; Ord. No. 6840, § 2, 12-2-1985; Ord. No. 14809, § 3, 6-15-2015)

Editor's note—Ord. No. 14809, § 3, adopted June 15, 2015, amended the title of § 66-345 to read as set out herein. Previously § 66-345 was titled "Traffic control and regulation schedule."

Sec. 66-346. Who may place ticket in or upon vehicle.

It shall be unlawful for any person, except a law enforcement officer or other person authorized by the city manager to enforce parking ordinances, to place or cause to be placed any traffic law violation ticket, traffic law violation notice, traffic law violation citation, or any other such notice relating to traffic law violation issued by the city or its police department, on or in any motor or other vehicle in the city.

(Code 1964, § 12-34; Code 1982, § 20-191; Ord. No. 10410, § 3, 3-6-1995)

Sec. 66-347. Removal of ticket from vehicles.

It shall be unlawful for any person to remove from any vehicle a traffic law violation ticket, traffic law violation notice, traffic law violation citation, or any other notice relating to traffic law violation in the city after such ticket, notice or citation has been placed on or in such vehicle by a police officer or other person authorized by the city manager to enforce parking ordinances, except for the purpose of answering such notice or citation as required in such notice or citation.

(Code 1964, § 12-35; Code 1982, § 20-192; Ord. No. 10410, § 4, 3-6-1995)

Sec. 66-348. Altering, erasing or varying language of ticket.

It shall be unlawful for any person to alter, change, erase, substitute, add to, or in any other way vary any language, symbol or notation appearing on any such traffic law violation ticket, notice or citation after the same has been placed in or on a vehicle by a police officer or other person authorized by the city manager to enforce parking ordinances.

(Code 1964, § 12-36; Code 1982, § 20-193; Ord. No. 10410, § 5, 3-6-1995)

Secs. 66-349—66-369. Reserved.

DIVISION 2. ENFORCEMENT AND COLLECTION OF CIVIL PENALTIES FOR PARKING REGULATIONS

Sec. 66-370. Civil penalties for parking violations; appeals process.

(a) *Thirty-dollar civil penalty*. Violation of the following sections of this Code, and violation of any parking ordinance for which no civil penalty is provided in this section, shall subject the offender to a civil penalty of $30.00 if such penalty is paid within 30 days of the violation, and an additional civil penalty of $10.00 plus costs of court, if any, if the $30.00 civil penalty is not paid within 30 days after the violation. The offender shall be subject to an additional civil penalty of $15.00 plus costs of court if any previous incurred civil penalty has not been paid within 60 days after the violation.

(1) Section 14-15—Parking.

(2) Section 26-78—Parking areas.

(3) Section 32-2—Manner of parking vehicles from which merchandise is sold.

(4) Section 66-171—Prohibited in certain categories of places.

(5) Section 66-172—Moving vehicle into area where parking is prohibited or away from curb.

(6) Section 66-173—Parking in front of religious facilities.

(7) Section 66-174—Parking in front of theaters.

(8) Section 66-175—Width of roadway to be left available.

(9) Section 66-176—Manner of parking generally.

(10) Section 66-177—Angle parking generally.

(11) Section 66-178—Manner of parking trucks.

(12) Section 66-179—Backing vehicle into an angle parking space.

(13) Section 66-180—Parking for purpose of sale of vehicle.

(14) Section 66-181—Parking for purpose of repair, etc., of vehicle.

(15) Section 66-183—Parking on streets in fire district after snowfall.

(16) Section 66-185—Limitation on parking time in particular city block.

(17) Section 66-187—Parking of motor vehicles more than six and one-half feet in width on streets between 6:00 p.m. and 7:00 a.m.

(18) Section 66-189—Parking in specific public vehicular areas.

(19) Section 66-221—Parking with timed parking spaces.

(20) Section 66-222—Designation of time for parking.

(21) Section 66-224—Overtime parking.

(22) Section 66-228—Parking of vehicles over 20 feet in length.

(b) Maps designating areas and zones where regulations are applied to the following types of parking ordinances shall be codified by entries upon official map books to be retained by the city clerk, pursuant to G.S. 160A-77(b)(3):

OFFICIAL MAP BOOKS

(1) Streets subject to temporary use of street rights-of-way by contractors and parking for extended periods in limited time zone parking spaces, pursuant to section 66-265 et seq.

(2) Controlled parking residential areas, pursuant to section 66-254 et seq.

(Code 1982, § 20-190; Ord. No. 6290, § 1, 2-20-1984; Ord. No. 6840, § 2, 12-2-1985; Ord. No. 14809, § 3, 6-15-2015)

Editor's note—Ord. No. 14809, § 3, adopted June 15, 2015, amended the title of § 66-345 to read as set out herein. Previously § 66-345 was titled "Traffic control and regulation schedule."

Sec. 66-346. Who may place ticket in or upon vehicle.

It shall be unlawful for any person, except a law enforcement officer or other person authorized by the city manager to enforce parking ordinances, to place or cause to be placed any traffic law violation ticket, traffic law violation notice, traffic law violation citation, or any other such notice relating to traffic law violation issued by the city or its police department, on or in any motor or other vehicle in the city. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1964, § 12-34; Code 1982, § 20-191; Ord. No. 10410, § 3, 3-6-1995; Ord. No. 15982, § 241, 8-1-2022)

Sec. 66-347. Removal of ticket from vehicles.

It shall be unlawful for any person to remove from any vehicle a traffic law violation ticket, traffic law violation notice, traffic law violation citation, or any other notice relating to traffic law violation in the city after such ticket, notice or citation has been placed on or in such vehicle by a police officer or other person authorized by the city manager to enforce parking ordinances, except for the purpose of answering such notice or citation as required in such notice or citation. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1964, § 12-35; Code 1982, § 20-192; Ord. No. 10410, § 4, 3-6-1995; Ord. No. 15982, § 242, 8-1-2022)

Sec. 66-348. Altering, erasing or varying language of ticket.

It shall be unlawful for any person to alter, change, erase, substitute, add to, or in any other way vary any language, symbol or notation appearing on any such traffic law violation

ticket, notice or citation after the same has been placed in or on a vehicle by a police officer or other person authorized by the city manager to enforce parking ordinances. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Code 1964, § 12-36; Code 1982, § 20-193; Ord. No. 10410, § 5, 3-6-1995; Ord. No. 15982, § 243, 8-1-2022)

Secs. 66-349—66-369. Reserved.

DIVISION 2. ENFORCEMENT AND COLLECTION OF CIVIL PENALTIES FOR PARKING REGULATIONS

Sec. 66-370. Civil penalties for parking violations; appeals process.

(a) *Thirty-dollar civil penalty*. Violation of the following sections of this Code, and violation of any parking ordinance for which no civil penalty is provided in this section, shall subject the offender to a civil penalty of $30.00 if such penalty is paid within 30 days of the violation, and an additional civil penalty of $10.00 plus costs of court, if any, if the $30.00 civil penalty is not paid within 30 days after the violation. The offender shall be subject to an additional civil penalty of $15.00 plus costs of court if any previous incurred civil penalty has not been paid within 60 days after the violation.

(1) Section 14-15—Parking.

(2) Section 26-78—Parking areas.

(3) Section 32-2—Manner of parking vehicles from which merchandise is sold.

(4) Section 66-171—Prohibited in certain categories of places.

(5) Section 66-172—Moving vehicle into area where parking is prohibited or away from curb.

(6) Section 66-173—Parking in front of religious facilities.

(7) Section 66-174—Parking in front of theaters.

(8) Section 66-175—Width of roadway to be left available.

(9) Section 66-176—Manner of parking generally.

(10) Section 66-177—Angle parking generally.

(11) Section 66-178—Manner of parking trucks.

(12) Section 66-179—Backing vehicle into an angle parking space.

(13) Section 66-180—Parking for purpose of sale of vehicle.

(14) Section 66-181—Parking for purpose of repair, etc., of vehicle.

(15) Section 66-183—Parking on streets in fire district after snowfall.

(16) Section 66-185—Limitation on parking time in particular city block.

(17) Section 66-187—Parking of motor vehicles more than six and one-half feet in width on streets between 6:00 p.m. and 7:00 a.m.

(18) Section 66-189—Parking in specific public vehicular areas.

(19) Section 66-221—Parking with timed parking spaces.

(20) Section 66-222—Designation of time for parking.

(21) Section 66-224—Overtime parking.

(22) Section 66-228—Parking of vehicles over 20 feet in length.

(23) Section 66-229—Backing into parking spaces.

(24) Section 66-230—Washing, etc., of vehicles prohibited.

(25) Section 66-236—Fees for parking in metered spaces, including means of payment, refunds, and use of proceeds.

(26) Section 66-237—Maximum time periods for parking in metered spaces.

(27) Section 66-269—Placing objects in parking spaces other than vehicles and sales gear.

(28) Section 66-284—Where buses and taxicabs may stop in any business district.

(29) Section 66-285—Parking in bus stops and taxicab stands.

(30) Section 66-345—Traffic control and regulation schedule to the extent of any such ordinance regulates or prohibits parking of vehicles.

(31) Loading and unloading zones, and traffic control and regulation ordinances creating loading zones.

(b) *Reserved*.

(c) *Fifty-dollar civil penalties.* Violation of the following sections of this Code shall subject the offender to a civil penalty of $50.00 if such penalty is paid within 30 days of the violation, and an additional civil penalty of $10.00 plus costs of court, if any, if the $50.00 civil penalty is not paid within 30 days after the violation. The offender shall be subject to an additional civil penalty of $15.00 plus costs of court if any previous incurred civil penalty has not been paid within 60 days after the violation.

(1) Any provision in chapter 46 regulating or prohibiting parking of vehicles.

(2) Article IV, division 3.

(d) *Two hundred fifty-dollar civil penalty.* Violation of the following sections of this Code shall subject the offender to a civil penalty of $250.00 plus costs, if any. The offender shall be subject to an additional civil penalty of $25.00 plus costs of court if any previous incurred civil penalty has not been paid within 60 days after the violation.

(1) Section 66-191.

(e) *Appeals*. A person owning or operating a vehicle on which a law enforcement officer, or other person authorized by the city manager to enforce parking ordinances, has placed a notification of a parking violation as described in section 66-372, may appeal the issuance of that notification. Appeals must be made in writing and filed with the city manager within 30 days of issuance of notification. Appeals that are received on or before the 30th day after issuance of the notification shall be considered to have been timely filed. The person designated by the city manager shall review evidence submitted by the appellant and issue a determination. A civil penalty for failure to pay within 30 days of issuance as provided elsewhere in this section shall not be assessed until 30 days after the person designated by the city manager has issued his or her determination of the appeal.

(f) *Installment plan program for eligible low-income persons.* Notwithstanding the civil penalty payment requirements of section 66-370(a) through (d), the city manager may establish an installment plan program for eligible low-income persons based on equity considerations. The terms, eligibilities and implementation of such an installment plan program shall be stated in writing and made easily available to the general public.
(Code 1964, § 12-38; Code 1982, § 20-200; Ord. No. 7001, § 2, 6-26-1986; Ord. No. 9360, 7-22-1991; Ord. No. 9579, §§ 1—3, 10-1-1992; Ord. No. 10410, §§ 6, 7, 3-6-1995; Ord. No. 10961, § 1, 11-4-1996; Ord. No. 11395, § 1, 3-16-1998; Ord. No. 11785, §§ 1, 2, 4—6, 7-19-1999; Ord. No. 14748, § 1, 5-18-2015; Ord. No. 15000, § 3, 9-6-2016; Ord. No. 15696, § 1, 9-8-2020, eff. 10-1-2020; Ord. No. 15940, § 1, 2-6-2022, eff. 7-1-2022)

Sec. 66-371. Law enforcement officer to notify owner or operator of vehicle.

Whenever a law enforcement officer, or other person authorized by the city manager to enforce parking ordinances, has probable cause to believe a vehicle is parked in violation of this Code or other ordinance, such officer (or other person) shall complete a notification of violation as described in section 66-372 and place such notification on the vehicle. Such notification may also be served on the owner or operator of the vehicle, if feasible, at the time of the violation, and officers having probable cause to believe an owner or operator has violated any parking regulation or prohibition of this Code or other ordinance are authorized to detain such owner or operator and their vehicle only for that brief period of time necessary to identify the offender and complete the notification of violation as described in section 66-372.
(Code 1964, § 12-39; Code 1982, § 20-201; Ord. No. 7100, § 1, 6-28-1985; Ord. No. 7001, § 3, 6-26-1986)

Sec. 66-372. Contents of notification of violation; mailed notification.

(a) The notification of violation provided in section 66-371 shall indicate the general nature of the violation, the license plate or vehicle identification number of the vehicle, the time, date, and location of the violation; the make and model of the vehicle; and the officer's name and identification number. The notification of violation shall advise the owner or operator of the vehicle of the amount of the civil penalty imposed and the time and place of

payment of the civil penalty. The notification shall advise the owner or operator that the vehicle penalty increases if payment is not made within 30 days of the violation and an additional civil penalty is imposed if payment is not made within 45 days of the violation.

(b) If the civil penalty provided is not paid in full within 30 days of violation, the city manager shall cause notification of violation to be mailed to the person in whose name such vehicle is then registered and licensed at the address appearing on the records of the state division of motor vehicles, or any similar agency of a state maintaining vehicle license and registration records. This mailed notification of violation shall advise the registered owner of the civil penalty imposed and that a civil action to recover such civil penalty is authorized under the provisions of this Code.
(Code 1964, § 12-40; Code 1982, § 20-202; Ord. No. 7001, § 4, 6-26-1986; Ord. No. 11785, §§ 3, 5, 7-19-1999)

Sec. 66-373. Collection of civil penalties.

The city manager is authorized to establish procedures for the collection of civil penalties imposed by this Code for parking violations, including filing and litigating civil actions in the nature of debt against offenders, and for the enforcement of judgments rendered in favor of the city by any means provided by the statutes and laws of the state including levy and execution on any property of the offender. Any law enforcement officer of the city is authorized and empowered to the full extent allowed by the statutes and laws of the state to serve civil process and writs of execution, seize and levy upon property, and take all necessary and appropriate action for the enforcement and collection of civil judgments rendered in favor of the city.
(Code 1964, § 12-41; Code 1982, § 20-203; Ord. No. 5617, § 1, 3-16-1981; Ord. No. 7001, § 5, 6-26-1986)

Sec. 66-374. Notice prior to immobilization of vehicle.

(a) When a registered owner of a vehicle has accumulated three or more outstanding and unpaid parking tickets which are 90 days overdue the city manager shall cause a notice of impending vehicle immobilization by the use of wheel locks to be sent. In such instances, the city manager shall give written notice to the registered owner of such vehicle at the last known address on file with the division of motor vehicles informing the owner that if the vehicle is found illegally parked it shall be immobilized through the use of wheel locks pursuant to section 66-43.

(b) The registered owner may challenge the impending immobilization by making a written request for a hearing. A hearing may be held by appearing in person, or through an agent before the city manager or by letter challenging the immobilization forwarded to the city manager. The written request for a hearing shall be received and the hearing held within 21 days of the date of the notice. All matters pertaining to the hearing such as

scheduling and conducting it shall be pursuant to procedures established by the city manager. Proof of one or both of the following shall be the only basis to cancel the impending immobilization:

(1) All civil penalties for the violations cited in the notice have been paid in full; or

(2) The registered owner had not accumulated three or more tickets which were unpaid and 90 days overdue on the date of the notice of impending immobilization.

(c) Failure to timely request a hearing shall constitute a waiver of the right to the hearing. If the hearing is waived or does not result in cancellation of the impending immobilization, then if the vehicle is found illegally parked it may be immobilized using a wheel lock device.
(Code 1982, § 20-203.1; Ord. No. 11785, § 7, 7-19-1999)

Sec. 66-375. Immobilization of vehicles.

(a) The city manager may immobilize by the use of wheel locks and tow and impound any vehicle which is illegally parked in violation of article IV and for which there are three or more outstanding, unpaid, and overdue parking tickets for a period of 90 days. For the purpose of determining whether an illegally-parked vehicle has had issued against it three or more outstanding, unpaid, and overdue parking tickets for a period of 90 days, it shall be sufficient if the license plate number of the illegally-parked vehicle and the license plate number of the vehicle having received the tickets are the same.

(b) If a wheel lock is attached to a vehicle, a notice shall be affixed to the windshield or other part of the vehicle so as to be readily visible. The notice shall warn that the vehicle has been immobilized and that any attempt to move the vehicle may result in damage to the vehicle. The city shall not be responsible for any damage to an immobilized, illegally-parked vehicle resulting from unauthorized attempts to free or move the vehicle. An immobilization fee set by the city council shall be charged for the removal of the wheel lock. The notice shall include the amount of the immobilization fee and the total amount of civil penalties for parking tickets which are overdue and unpaid and attributable to such vehicle. The hours, address, and telephone number of the designated agent where the vehicle owner may pay the charges to have the wheel lock removed shall also appear on the notice.

(c) If civil penalties due and an immobilization fee as herein provided are not paid, or satisfactory arrangements in lieu of payment are not made within 24 hours of attachment of the wheel lock, such vehicle may be towed to and impounded in any public or private impoundment lot. If a private contractor tows and stores the vehicle, he or she may impose against the vehicle his or her customary fees and charges for such services. Once a vehicle has been impounded, the department designated by the city manager shall mail a notice of impoundment to the registered owner and lienholder, if known, at the address reported to the city by the state division of motor vehicles.

(d) Upon payment of all civil penalties and overdue and unpaid parking tickets issued for the vehicle and of all other charges authorized by this section, including immobilization, towing, and impoundment fees, the vehicle shall be released to the owner or any other person legally entitled to claim possession of the vehicle.

(e) The owner or other person entitled to possession of the vehicle which has been immobilized pursuant to this section, may submit a written request for a hearing to the person designated by the city manager, by certified mail or personal delivery within seven calendar days of receipt of the notice provided for in subsection (c) of this section. If a hearing is requested, a statement shall be sent by the city manager to the requesting party to inform him or her of the time and place of the hearing, of the basis of the vehicle's immobilization and impoundment, of the rules governing conduct of the hearing, and of the right to present evidence as to why the vehicle should not have been immobilized or towed, and of the right to be represented by counsel. The hearing officer appointed by the city manager shall prepare a written report of his or her findings within three days of the hearing. The report shall state his or her conclusion as to whether the vehicle was properly immobilized and towed, and the reasons underlying his or her conclusion. If it is concluded that the vehicle was improperly immobilized or towed, then any improper charges shall be canceled, or, if paid, rebated. The city shall not be responsible for any consequential damages or costs the vehicle owner incurs in conjunction with the hearing process.

(f) It shall be unlawful for anyone to remove from a vehicle a wheel lock placed pursuant to this section, or to remove from impoundment any vehicle placed therein pursuant to this section, without all civil penalties and applicable charges having first been paid or an approved payment plan having been made. In addition to any other remedy available in the Code, violation of this subsection (f) is a misdemeanor.

(g) The city manager is authorized to establish guidelines to adjust the amount of civil penalties imposed pursuant to this section, to promote the resolution of any claim against a person with ten or more outstanding delinquent parking tickets.

(Code 1982, § 20-204; Ord. No. 10960, § 2, 11-4-1996; Ord. No. 14427, § 1, 4-1-2013; Ord. No. 15982, § 244, 8-1-2022)

Secs. 66-376—66-393. Reserved.

DIVISION 3. REMOVAL AND STORAGE OF VEHICLES

Sec. 66-394. Authority to remove; causes.

(a) In addition to the removal and disposition of abandoned or junked motor vehicles from the public streets and ways, as provided in sections 26-147—26-152, any member of the police department may move or cause to be removed any motor vehicle from a street or any other public place owned or controlled by the city, to a garage or other facility designated by the police, under any of the following circumstances:

(1) When any vehicle is left unattended upon any street, public alley, bridge or underpass, where such vehicle constitutes an obstruction to traffic, impedes the cleaning or working of or on such street or public way or interferes with or obstructs authorized street parades and processions.

(2) When a vehicle upon a street or other public way is so disabled as to constitute an obstruction to traffic.

(3) When the person in charge of a vehicle upon a public street or public way is under arrest, being detained, has been removed from such vehicle by officers of the law or, by reason of physical injury or other cause, is incapacitated to such an extent as to be unable properly and safely to operate the same or properly to drive or arrange for its custody or removal.

(4) When any vehicle is left unattended upon a public street, public alley or other public way and is so parked as to constitute a hazard or an obstruction to the normal movement of traffic, or is parked unattended upon any street in front of a private driveway, within 15 feet in either direction of a fire hydrant, opposite the entrance to a fire station, within any area or zone designated as a bus zone or bus stop, in any area in which parking of vehicles is prohibited or in any area in excess of the authorized period of time for parking at such point.

(5) When towing is permitted pursuant to section 66-227.

(b) Any law enforcement officer of the city may move or cause to be removed from any public vehicular area any vehicle stopped, standing or parked in violation of section 66-189. The vehicle may be moved to a garage or other facility designated by the city manager.
(Code 1964, § 12-210(d), (e); Code 1982, § 20-210; Ord. No. 5593, § 2, 2-2-1981; Ord. No. 6840, § 3, 12-2-1985)

Sec. 66-395. Disposition of vehicles held in garages or other facilities.

Any vehicle placed in a garage or other facility pursuant to section 66-189 shall be held until claimed by the legal owner or until otherwise disposed of, as provided in this division or other applicable law.
(Code 1964, § 12-211; Code 1982, § 20-211)

Sec. 66-396. Referral for towing-in and storage of vehicles.

Except when the owner or person in control of the vehicle in question is present and desires towing service by a garage or wrecker of his or her own preference, all vehicles authorized under the provisions of this division to be towed-in and stored shall be referred to the particular garage or service with which the city has made arrangements for that service. The police department shall be furnished, for ready reference, a list of the garages or services with which the city has made towing-in and storage arrangements. This shall not exclude storage at city-owned facilities. If no advance arrangements have been made, the same may be made at the time of towing such motor vehicle to such storage place.
(Code 1964, § 12-212; Code 1982, § 20-212)

Sec. 66-397. Charges allowed for services.

Charges for towing-in and for storing vehicles under the provisions of this division shall be as set forth in written contracts to be entered into between the city and garage or towing-service operators, in schedules adopted by the city council or as stipulated at the time the motor vehicle is towed in.
(Code 1964, § 12-213; Code 1982, § 20-213)

Sec. 66-398. Lien for charges; payment of charges prerequisite to release of vehicle.

All towing-in, storage, advertising and other charges incurred by the city or imposed upon the owner or operator of the vehicle in connection with a vehicle towed-in or impounded under this division shall constitute a lien upon such vehicle. No such impounded vehicle shall be released until all such charges have been paid.
(Code 1964, § 12-214; Code 1982, § 20-214)

Sec. 66-399. Notice to owner; redemption of vehicle by owner.

When any motor vehicle is removed from a street or other public way or from any facility controlled or operated by the city, it shall be the duty of the police chief, or of such officer as he or she may designate, to give written notice of the removal of such motor vehicle from the public streets, public ways and facilities in the possession of and being operated by the city, as specifically provided in section 66-394, and such written notice of such removal shall be given to the registered owner of such vehicle at his or her last known address according to the latest registration certificate or certificate of title on file with the division of motor vehicles, if such information is available upon reasonable inquiry. The notice shall inform the owner of the possible sale or other disposition that can be made of the vehicle under the provisions of this division. The owner may regain possession of the vehicle by paying to the city or the provider of the tow-in and storage service all reasonable costs incidental to the removal and storage, as herein referred to in section 66-397. If the vehicle in question has no license plates or other identification so as to enable the police to ascertain its ownership from registration records, it shall be deemed sufficient notice if the police department causes to be published in one issue of a newspaper published in the county a description of the vehicle, the fact and place of its storage, the reasons for towing and storage, the schedule of charges required to be paid for its release and such other data as the police chief may consider advisable.
(Code 1964, § 12-215; Code 1982, § 20-215)

Sec. 66-400. Procedure with reference to locked and unlocked vehicles.

If a vehicle towed in by law enforcement authority under the provisions of this division is locked, it shall remain locked at the storage garage or facility until claimed or otherwise disposed of. If such vehicle is unlocked, the public safety officer shall list its contents and post one copy of such list on the windshield and keep a record copy at public safety headquarters.
(Code 1964, § 12-218; Code 1982, § 20-216)

Secs. 66-401—66-428. Reserved.

ARTICLE VII. TEMPORARY CLOSING OR BLOCKING OF STREETS

Sec. 66-429. Definitions.

These definitions apply in this article, unless the context requires otherwise:

First Amendment protected activity is a parade, demonstration, or other activity protected by the First Amendment to the U.S. Constitution through the application of the 14th Amendment to the U.S. Constitution.

Order means a permit issued pursuant to section 66-430.

Permit means a permit issued pursuant to section 66-430.

Street means a street as defined by section 1-2, excluding those accepted for maintenance by the state. Unless the context requires otherwise, "street" includes a portion of the street.

To close a street or sidewalk means to temporarily prohibit the public from driving motor vehicles on a street or to temporarily prohibit or limit the public's use of a sidewalk.
(Code 1964, § 19-75; Code 1982, § 20-220; Ord. No. 5302, § 1, 11-19-1979; Ord. No. 14845, § 4, 10-19-2015)

Sec. 66-430. Purposes for which orders and permits authorized.

The city manager is authorized to issue orders closing streets and sidewalks and to issue permits for the use of such streets.
(Code 1964, § 19-76; Code 1982, § 20-221; Ord. No. 5302, § 1, 11-19-1979; Ord. No. 14845, § 4, 10-19-2015)

Sec. 66-431. Permit application; conditions of issuance; appeals.

(a) The city manager shall not order a street closed or issue a permit for the use of such street pursuant to section 66-430 except upon written application. The city manager may issue such order and such permit if the city manager finds:

(1) The proposed street closing and the proposed use of the closed street will not unreasonably interfere with the normal activities of surrounding residents, businesses, or institutions.

(2) The street proposed to be closed will reasonably and safely accommodate the expected number of persons.

(3) Neither the proposed use nor the anticipated sound or noise level arising from such use will have an unreasonably adverse effect upon surrounding residents, businesses, or institutions.

(4) The pedestrian and motor vehicle traffic generated by the proposed use can be reasonably and safely accommodated on the streets and walkways of the area surrounding the street proposed to be closed.

(5) Adequate security and crowd control can be provided by responsible public agencies.

(6) Adequate fire control and fire prevention service can be provided by responsible public agencies.

(7) The proposed street closing and the proposed use of the closed street are not likely to cause an unreasonable danger to the public health or safety.

(8) The proposed street closing and the proposed use of the closed street are not likely to unreasonably interfere with public transportation and emergency services.

(9) The applicant has obtained such liability insurance coverage as may be required for the proposed events by a schedule of insurance prepared by the city manager.

(10) Notice of the proposed street closing has been given in accordance with the instructions given by the city manager.

(11) In order to take into account timing of issuance of required regulatory permits and for the applicant to arrange for required city services, the street closing order may be issued with conditions related to such permits.

(b) (1) With the advice of the city attorney, the city manager shall establish rules setting reasonable periods of time to respond to applications. Rules, including revisions, established under this subsection shall include a statement that the city attorney was consulted in writing the rules. When the city manager neither explicitly denies nor grants an application within 30 days after receiving it, the city manager shall be deemed to have denied the application on all grounds on the 30th day. The city manager's time periods shall include a provision requiring an expedited review and decision either (a) when the proposed use of the closed street or sidewalk is solely for a First Amendment protected activity, or (b) when an applicant shows compelling reasons for a shortened review period. When the city manager neither explicitly denies nor grants an application within such expedited review period, the city manager shall be deemed to have denied the application on all grounds on the last day of the review period.

(2) *Interim rules for the expedited review and decision period.* Until the city manager establishes rules that provide otherwise this subsection (2) applies. When the proposed use of the closed street or sidewalk is solely for a First Amendment protected activity, or when an applicant shows compelling reasons for a shortened review period, the application shall be submitted to the city at least 48 hours, excluding weekends and holidays, before the proposed event. When the proposed use of the closed street or sidewalk is solely for a First Amendment protected activity, and the city manager is confident that adequate preparations can be made — acting reasonably, without extraordinary actions, and without endangering public safety and property — in less than 48 hours, excluding weekends and holidays, before the proposed event, the city manager will shorten that 48-hour period accordingly. When the city manager neither explicitly denies nor grants an application with in a time period provided for it by this subsection (2), the city manager shall be deemed to have denied the application on all grounds at of the end of that time period.

(c) Except in the instance of a denial deemed to occur pursuant to subsection (b), the city manager shall specify the grounds for denial from the following:

(1) The application is not complete;

(2) The applicant has not tendered the required indemnification agreements, insurance certificates, and security deposits within times prescribed;

(3) The application contains a material falsehood, misstatement of fact, or misrepresentation;

(4) The applicant is legally incompetent to contract or to be sued;

(5) The applicant has on prior occasions made a material misrepresentation in any transaction with the city to the extent that a reasonable person would have reason to question the truth of statements made in or in connection with the application for a street closing or a special event;

(6) The applicant has previously violated or allowed a violation of a street closing or special event permit to the extent that a reasonable person would have reason to question whether the applicant will comply with the requested permit;

(7) The proposed use would conflict with a use that the city has already planned or approved;

(8) The proposed event would present an unreasonable danger to the public health or safety;

(9) The proposed event is likely to substantially or unnecessarily interfere with traffic;

(10) A reasonable alternative location, time, or date is available that would substantially better accommodate the needs and uses of the general public than the proposed location, time, or date (alternative location and time includes closing none or a smaller portion of a street and a shorter time period);

(12) The event is likely to interfere with the movement of emergency equipment and personnel and police protection;

(13) There is a substantial risk that insufficient law enforcement and traffic control officers would be available to adequately protect participants and non-participants from traffic-related hazards in light of the other demands for police protection;

(14) The use or activity intended by the applicant is prohibited by law;

(15) For all activities that are not First Amendment protected activities, the city manager shall consider these additional criteria. More positive findings on these additional criteria can allow for a street closing, or a larger street closing, while more negative findings will tend to support no street closing, a different day or time, or a smaller street closing.

i. The cultural and educational significance of the event;

ii. The extent to which the event contributes to the economic revitalization and business development of the city;

iii. The effect on, and cost of the event to, city support services;

iv. The effect of the event on the public health, safety and welfare;

v. The effect of the event on business and resident populations near the proposed event site;

vi. The evaluation of any previous event produced by the event organizer with regard to planning, quality, and public safety;

vii. The frequency and timing of the event or similar events.

(Code 1964, § 19-77; Code 1982, § 20-222; Ord. No. 5302, § 1, 11-19-1979; Ord. No. 14355, § 10, 11-5-2012; Ord. No. 14845, § 4, 10-19-2015)

Sec. 66-432. Terms of orders and permits.

To promote the public health, safety, and welfare, the city manager may impose terms and conditions in a permit that, without limitation, address access to driveways; contain requirements regarding insurance, indemnification, sound and noise limitations, and security; require the applicant to arrange for additional services from the city; and require adherence to laws and other requirements of governmental persons.

(Code 1964, § 19-78; Code 1982, § 20-223; Ord. No. 5302, § 1, 11-19-1979; Ord. No. 14845, § 4, 10-19-2015)

Sec. 66-433. Interference.

When a public assembly or parade is held on a closed street pursuant to a permit, it is unlawful to unreasonably hamper, obstruct, impede, or interfere with the public assembly or parade, or with any person, vehicle, or animal participating or used in the public assembly or parade. In addition to any other remedy available in the Code, violation of this section is a misdemeanor punishable by a maximum fine of $500.00.

(Ord. No. 14355, § 11, 11-5-2012; Ord. No. 14845, § 4, 10-19-2015; Ord. No. 15982, § 245, 8-1-2022)

Sec. 66-434. Reservation of rights in city; other ordinances and N.C. DOT not limited.

(a) To the extent directed by the city, any person allowed to do any activity by this article or by a permit shall promptly cease the activity and remove all property that the city deems to interfere with the purposes for which the direction is given. The city reserves the right to rescind in whole or in part any order and to require any activity allowed by this article or by a permit to cease in whole or in part. The city may exercise the authority listed in this subsection for any purpose, including:

(1) To allow for construction, maintenance, or repair of any public street, sidewalk, utility, building, or facility;

(2) To allow for use of a public street, sidewalk, utility, building, or facility in connection with parades, festivals, or other events;

(3) To remedy a nuisance; or

(4) To protect or promote the public health, safety, or welfare.

(b) In case of emergency, danger to property, or detriment, danger, or hazard to public health, safety, or welfare, the city manager may, orally or in writing, direct any person allowed to do any activity by this article or by a permit to immediately move such distance as the city manager specifies, and to cease acts determined by the city manager to contribute to the emergency, danger, detriment, or hazard. Upon receiving such direction, the individual shall comply. When such a direction is not complied with, the city manager may cause objects in violation of the direction to be removed, disposed of, or both, and the cost of such actions shall be borne by the offender. This subsection shall not be construed to limit subsection (a).

(c) The police may authorize any person to drive a vehicle on the closed street in order to exit the area, if the vehicle is parked in a location from which the only reasonable exit is over the closed street. The police may authorize a vehicle to enter the closed street in order to park in a space designated with a sign pursuant to G.S. 20-37.6(d) for handicapped persons.

(d) Nothing in this division shall be construed to limit any other ordinance, including section 66-108 (driving over curbs, gutters or sidewalks at places other than those constructed and designed for traffic), section 66-109 (driving on sidewalk), and those imposing parking restrictions. Nothing in this division shall be construed to limit the authority of the N.C. Department of Transportation over rights-of-way under its jurisdiction.

(e) The principle that the expression of one thing is the exclusion of another is not to be used to construe this division to grant to the public any right to use property owned or controlled by the city.

(f) In addition to any other remedy available in the Code, failure to cease any activity or acts in whole or in part, to remove any property or objects, or to follow the directives of the city manager or the manager's designee, in violation of subsections (a) or (b), is a misdemeanor punishable by a maximum fine of $500.00.
(Ord. No. 14845, § 4, 10-19-2015; Ord. No. 15982, § 246, 8-1-2022)

Sec. 66-435. Revocation of permit; review of decisions.

(a) *Revocation; grounds and procedure for revocation.* The city manager may, at any time, including while the street is closed and the permittee's activities on the closed street are taking place, revoke any permit issued under this article and any order closing a street or sidewalk issued in relation to or in connection with a permit if the city manager finds:

(1) Fraud, misrepresentation, or a knowingly false statement with respect to a material fact in the permit application;

(2) The permittee or the permittee's agent or employee violated this article or the terms of the permit;

(3) The permittee or the permittee's agent or employee conducted an activity for which a permit is required in such a manner as to create a public nuisance, cause a breach of the peace, violate any applicable law, or interfere with the rights of abutting property owners;

(4) Conditions, such as a public emergency, exist which, had they existed or been known at the time the permit was issued would have resulted in denial of the permit;

(5) There is a substantial likelihood that the proposed use of the street or sidewalk or the closing of the street or sidewalk will be detrimental to public health or safety;

(6) There is a substantial likelihood that conditions on the street or sidewalk designated to be closed will occur which would result in substantial risk of harm to persons or property; or

(7) There is a substantial likelihood that activities proposed to take place on or in connection with the street or sidewalk designated to be closed will occur which would result in substantial risk of harm to persons or property.

Except in case of emergency or impracticality, before revoking the permit, the city manager shall give reasonable notice to the permittee and an opportunity to be heard. A permit may be revoked pursuant to this section even if the person making the findings pursuant to this section had made a contrary finding before the permit was issued, regardless of whether the facts upon which the finding is made had changed.

(b) *Notice.*

(1) The city manager shall cause a written notice of the revocation to be served on the permittee by first-class mail, email or other electronic means, or fax, to the address or number shown on the permit application, or by any method allowed by law for service of a summons in a civil action. The person serving the notice may be any person who is 18 years or older, including the city manager.

(2) If the city manager finds that time before a proposed hearing is insufficient to allow service in accordance with subsection (1), the city manager may, as an alternative to the means listed in subsection (1), notify the permittee by telephone of the grounds for revocation and of the right to appeal, provided a written notice is also sent in accordance with subsection (1) on or before the next day that is not a holiday.

(3) The notice described in subsection (1) shall set forth a brief statement of the grounds for revocation and of the right to appeal.

(4) The city manager shall see that a written record is made to show compliance with this subsection (b).

(c) *Retention of fees; waiting period.* If the city revokes a permit, the city shall retain the fee, if any, paid for the permit. The person whose permit is revoked for grounds stated in subsection (a)(l), (a)(2), or (a)(3), regardless of whether additional grounds existed, shall not be issued a permit under the same section of this article for the remainder of the time for which the revoked permit had been issued or 30 days after the date of the revocation, whichever time period is longer. The city manager shall use reasonable judgment in deciding whether two applicants are the same so that, for example, technical changes in the applicant, or where the applicant one year is the wife and the next year it is the husband, may be disregarded.

(d) *Review of decisions.*

(1) If the city manager denies the issuance of a permit, revokes a permit, issues a permit with terms deemed unacceptable to the permittee, or makes any other decision pursuant to this article with respect to a permit, the applicant or permittee may have that decision reviewed by filing a written request in the office of the city manager within ten days of the date of the notice of decision. The city manager or a person designated by the city manager for this purpose who is neither the person who made the decision complained of nor that person's subordinate, shall be named as the hearing officer to conduct a hearing in order to review the decision. The city manager shall cause a written notice of the time and place of the hearing to be given or sent to the person seeking review. The city manager shall expedite the review process when the proposed use of the closed street or sidewalk is solely for a First Amendment protected activity or the person seeking review shows compelling reasons for a shortened review period. The failure of the hearing officer to set a hearing within 15 days of the filing of the written request for review, or to deliver a decision within ten days after the hearing, or within any shortened periods set by the city manager, shall be deemed a denial of the relief sought and affirmance of the action for which review was sought. The permittee and the city manager may appear in person or through counsel and may present evidence, provided, however, that the hearing officer shall have the authority to conduct the hearing in the manner and for the period of time that he or she deems appropriate to make a decision. The hearing officer may affirm, deny, or modify the decision complained of, and the hearing officer's decision shall be final. Failure to request a review within the time and in the manner provided for in this subsection shall constitute a waiver of the right of review. The permit may be used during the review process only if the city manager determines that its use would not constitute a substantial threat that the grounds described in subsection (a)(2) or (a)(3) will occur, re-occur, or continue during the review process.

(2) *Interim rules for the expedited review and decision period.* Until the city manager establishes rules that provide otherwise, when an application is subject to the expedited review and decision period pursuant to section 66-431(b) or a rule established pursuant thereto, the hearing shall be held within two days, excluding weekends and holidays, after the written request for review is filed in the office of the

city manager. When the city manager does not issue a decision on a review subject to that time period within two days after the date of the hearing, the city manager is deemed to have affirmed the decision on that second day.

(e) *Certiorari.*

(1) A decision by the hearing officer is subject to review by the Durham County Superior Court by proceedings in the nature of certiorari. The petition for review shall be filed with the clerk of Superior Court within the earlier of 30 days after the denial and affirmance are deemed to occur pursuant to subsection (d), or within 30 days after the decision is delivered to the applicant. Delivery is made by hand-delivery of the decision to the applicant, or by first-class or certified mail to the address provided on the application. Delivery by mail is complete when placed in the custody of the U.S. Postal Service.

(2) *Interim rules for the expedited review and decision period*. Until the city manager establishes rules that provide otherwise, when an application is subject to the expedited review and decision period pursuant to section 66-431(b) or a rule established pursuant thereto, the city shall file a copy of the record within five days, excluding weekends and holidays, unless the writ specifies otherwise.

(Ord. No. 14845, § 4, 10-19-2015)

Sec. 66-436. Penalties for violations.

(a) *Assessment of civil penalties.* The city manager shall assess civil penalties for violation of this article, including the terms of a permit. The city manager shall give the offender written notice of the nature of the violation and the amount of the civil penalty. The notice shall be served by any method allowed by law for service of a summons in a civil action, provided that the person delivering the notice may be any person who is 18 years or older, including the city manager. The civil penalty shall be $200.00 per violation plus the costs incurred by the city resulting from the violation, including costs of removing litter.

(b) *Review of assessment of civil penalties.* Any person who has been assessed a civil penalty under this article may have that assessment reviewed by filing a written request in the office of the city manager within ten days of the date of service of the notice of the civil penalty. A person designated by the city manager for this purpose who is neither the person who assessed the civil penalty nor that person's subordinate shall be named as the hearing officer to conduct a hearing in order to review the assessment. The city manager shall cause a written notice of the time and place of the hearing to be given or sent to the person seeking review. The person assessed the penalty and the city manager may appear in person or through counsel and may present evidence, provided, however, that the hearing officer shall have the authority to conduct the hearing in the manner and for the period of time that he or she deems appropriate to make a decision. The hearing officer may affirm, deny, or modify the decision complained of, and the hearing officer's decision shall be final. Failure to request review within the time and in the manner provided for in this subsection constitutes a waiver of the right of review.

(c) *Collection of civil penalties.* If the offender does not pay the civil penalty within ten days after having been served with the notice of the civil penalty, the city manager may collect the civil penalties by causing to be commenced civil actions in the nature of debt. The city manager may compromise such claims, before or after commencement of the civil action, if the city manager finds there is a reasonable probability that the city will be unable to collect the entire amount of the claim, that the amount offered in compromise of the claim reasonably reflects either the amount of money available from the offender or the amount the city is likely to recover in the civil action, taking into account the resources required to pursue the civil action, and that the facts and circumstances of the events giving rise to the claim, taken as a whole, indicate that the amount offered in compromise is fair and reasonable. Using the foregoing standards, in an appropriate case, the city manager may abandon a claim.

(d) *Available remedies.* This article and the provisions of permits issued under this article may be enforced by an appropriate equitable remedy, including abatement orders and mandatory or prohibitory injunctions, issuing from a court of competent jurisdiction. The general court of justice shall have jurisdiction to issue such orders as may be appropriate, and it shall not be a defense to the application of the city for equitable relief that there is an adequate remedy at law. In applying subsection 1-9(e), the city council intends that revocation of a permit be deemed to be a remedy.
(Ord. No. 14845, § 4, 10-19-2015; Ord. No. 15982, § 247, 8-1-2022)

Sec. 66-437. Cumulative requirements.

No provisions of the City Code, except those explicitly repealed or explicitly amended by the ordinance adopting this article, are repealed by this article. If any provision of this article allows an activity to occur but another provision of the City Code regulates or prohibits it, the more restrictive provision applies.
(Ord. No. 14845, § 4, 10-19-2015)

Chapters 67—69

RESERVED

Chapter 70

UTILITIES*

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***State law reference—**Powers of the city regarding public enterprises, G.S. 160A-311 et seq.

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ARTICLE I. IN GENERAL

Sec. 70-1. Damaging public water and/or sewer system, defacing property.

(a) It shall be unlawful for any person maliciously, willfully, or negligently to break, damage, destroy, uncover, deface or tamper with the public water and/or sewer system. In addition to any other remedies available by law, such person shall indemnify the city for any damages or injury to the water and/or sewer system for its construction, maintenance or repair.

(b) A fee set from time to time by the city council shall be imposed on any person who alters, tampers with, or bypasses a water meter or tampers with a water meter lock. The fee may include reimbursement for costs of materials and labor for replacement or repair. Any water meter or water meter lock found to have been altered, tampered with, or bypassed in a manner (i) that would cause such meter to inaccurately measure and register the water consumed, (ii) that would cause the water to be diverted from the recording apparatus of the meter, or (iii) that would allow the flow of water to a location whose service had been disconnected by the city due to failure to make payment, shall be prima facie evidence that the alteration, tampering, and bypassing were done by the person in whose name such meter is installed and the persons using or receiving the benefits of such unmetered, unregistered, or diverted water, all of whom shall be jointly and severally liable. Assessment of fees under this subsection does not affect liability for other charges, penalties, and consequences imposed for the same acts.

(c) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1964, § 13-11; Code 1982, § 12-15; Ord. No. 14540, § 1, 11-18-2013; Ord. No. 14774, § 1, 6-15-2015; Ord. No. 15982, § 248, 8-1-2022)

Editor's note—Ord. No. 14540, § 1, adopted November 18, 2013, amended the title of § 70-1 to read as set out herein. Previously § 70-1 was titled damaging public sewer system, defacing property.

Sec. 70-2. Right of entry.

The city manager and city employees and contractors may enter the property receiving any service described in this chapter to take meter readings or for purposes of examination, inspection, or repair related to utility service, operation, or charges.

(Code 1964, § 18-1; Code 1982, § 23-2; Ord. No. 7773, § 1, 3-20-1989; Ord. No. 10352, § 1, 12-19-1994)

Charter reference—Similar provisions as to water service, § 32.

Sec. 70-3. Reserved.

Editor's note—Ord. No. 14540, § 3, adopted November 18, 2013, repealed § 70-3 in its entirety. Former § 70-3 pertained to unauthorized tapping, etc., of water or sewer mains or connections and was derived from Code 1964, § 18-2 and Code 1982, § 23-3.

Sec. 70-4. Mandatory water and sanitary sewer connections.

(a) The owner of any property located within the city: (1) On which there is a structure served by a privately-owned, on-site or community-type water or sanitary sewer system; and (2) where a public water or sanitary sewer line is located within the property or in the street adjoining the property, shall be required to abandon and discontinue the use of the private system and connect the premises to the public water or sewer line under the circumstances provided in subsections (b) through (d) of this section. Subject to the provisions of article VII, this section shall not prohibit continued use of the private water system for nonpotable uses outside of the structure, such as lawn watering, gardening, agricultural use and car washing, where the water used does not enter the public sanitary sewer line.

(b) Where: (1) The city, on or after January 1, 1994, receives a sufficient petition pursuant to section 77 of the city Charter for construction of a public water or sewer line and thereafter determines to make such improvements; or (2) the city, on or after January 1, 1994, adopts a resolution determining to make such water or sewer system improvements pursuant to section 78 of the city Charter without having first received a sufficient petition; or (3) for a public water or sewer line not subject to assessment, construction is commenced on or after January 1, 1994; then in any such event, the property owner shall make application for connection to the public water or sewer line within five years from the date the city manager provides written notice to the property owner of completion of the water or sewer line, except as otherwise provided in subsections (c) and (d) of this section.

(c) Where: (1) The property is annexed into the city pursuant to G.S. 160A-45 et seq. on or after January 1, 1994, and (2) the public water or sewer line has been completed on or after January 1, 1994 but prior to the effective date of the annexation, then such property owner shall make application for connection to the public water or sewer line within five years from the date the city manager provides written notice to the property owner of such annexation and obligation to connect, except as otherwise provided in subsection (d) of this section. Where: (1) the property is annexed into the city pursuant to G.S. 160A-45 et seq. on or after January 1, 1994; and (2) the public water or sewer line is completed subsequent to the effective date of the annexation, then such property owner shall make application for connection to the public water or sewer line within five years from the date the city manager provides written notice to the property owner of completion of the water or sewer line, except as otherwise provided in subsection (d) of this section.

(d) Where the county, the state, or an agency of the county or state determines that the property is being served by a malfunctioning on-site or community-type water or sewer system, then such property owner shall make application for connection to the public water or sewer line within 30 days from the date the city manager provides written notice to the property owner to make such application.

(e) Upon installation of the water or sewer lateral by or on behalf of the city, the city manager shall thereafter provide written notice to the property owner of completion of such installation. Within 30 days from the date of such notice, the property owner shall connect the premises to the lateral and abandon and discontinue the use of the private system.

(f) A property owner may submit a written request to be relieved of the obligation to connect the premises to the public water or sewer line on the basis that such connection would cause a hardship to the owner. If the city council finds that relief is necessary to avoid a hardship and that continued use of the private water or sewer system will not adversely affect the public health, safety and general welfare, then the city council may grant such request. In such event, the city council may require the property owner to pay periodic availability charges for the availability of the public water or sewer line. Such availability charges shall be in an amount established by the city council. Such amount shall not exceed the monthly service charges established in section 70-51 for properties connected to the public water or sewer line.

(g) All references in this section to the "property owner" mean the owner of the property at the address or addresses as shown on the county tax records.

(h) The person designated to provide written notices pursuant to this section shall file with the city clerk a certificate showing that they were hand-delivered or mailed by first-class mail, and the date of such delivery or mailing. The certificate shall be conclusive as to compliance with the notice provisions of this section in the absence of fraud. Notice sent by first-class mail shall be deemed effective on the third business day after mailing.

(i) Violations; penalties.

(1) A violation of this section shall be a misdemeanor punishable in accordance with section 1-9. The maximum fine for each violation shall be $500.00.

(2) A person who shall violate any provision of this section shall be subject to a civil penalty pursuant to G.S. 160A-175(c) of not less than $100.00, nor more than $1,000.00, for each violation of this section.

(3) This section may be enforced by an appropriate equitable remedy issued by a court of competent jurisdiction. Violation of this section is hereby declared to be, and result in, an unlawful condition upon and use made of real property; accordingly, this section may also be enforced by injunction and order of abatement.

(4) This section may be enforced by any remedy prescribed by G.S. 160A-175. The provisions of this subsection are in addition to the specific remedies and penalties established by other sections of this chapter, and may be applied in combination with such other remedies and penalties and in combination with each other.

(Code 1982, § 23-4.1; Ord. No. 9544, § 1, 5-18-1992)

Sec. 70-5. Maintenance of meters; obstructions.

Property owners are prohibited from obstructing access to water meters. This includes, but is not limited to, placing plants or allowing them to grow in a way that makes access difficult, as well as, parking vehicles or placing other objects over water meters. In the event a meter is obstructed as described above. the city manager shall notify the customer that the obstruction needs to be removed by posting a notice of violation in a conspicuous place on the property. The notice shall provide that the customer shall be given seven calendar days from

the date of the notice to remove the obstruction. However, within the time period to correct the conditions. the customer may appeal the notice of violation to the city manager by giving written notice to the city manager. The city manager shall implement a policy that describes the hearing process.

If the customer does not remove the obstruction within timeframe in the notice of violation. then the city manager may remove the obstruction and add the costs to remove the obstruction to the customer's water bill for reimbursement.

The city manager may summarily remove an obstruction without providing notice if the obstruction is dangerous or prejudicial to the public health or public safety as provided in G.S. 160A-193. If an obstruction is removed without notifying the customer, [the] city manager shall send notice to customer after the removal notifying customer of why the obstruction constituted a public nuisance.

In the event a customer's water has been terminated for nonpayment. any such charges for removal of an obstruction shall be paid in full prior to restoration of service.
(Code 1982, § 23-5; Ord. No. 7773, § 1, 3-20-1989; Ord. No. 14974, § 3, 6-20-2016)

Sec. 70-6. Payment of charges for meter installation and water and sewer connections; signing contract books.

The charges for the installation of meters, water connections and sewer connections shall be paid in full to the designated representatives of the city before the connection shall be made. The owner or the owner's authorized agent shall sign a contract in person when making payment for water and sewer connections. However, where the installation of meters, water connections and sewer connections has been paid for by federal block grant funds, such installation will be made without charge.
(Code 1964, § 18-5; Code 1982, § 23-6; Ord. No. 5322, § 1, 1-7-1980; Ord. No. 7773, § 1, 3-20-1989)

Sec. 70-7. When use of city water facilities required; abandonment of private facilities; city water connection application, procedure and charges.

(a) The owner of any property served by a private water line which is located within a public street or right-of-way within the city, which property so served has frontage on such public street or right-of-way wherein there is located a city water main, shall be required to abandon and discontinue the use of the private water line and connect his or her premises to the city water main.

(b) Such property owner shall make application and pay for the new connection within 30 days after being notified to do so by the city engineer, after the city water main is available for connection. Upon completion of the installation of the water lateral from the water main to the property line, the owner of the premises shall have an additional 30 days within which to connect his or her premises to the lateral and abandon and discontinue the use of the

private water line. If either the application for such new connection or the connection itself is not made within the time period hereinabove provided, the city shall cease to furnish water services to such premises through the private water line.

(c) The charge for making the connection to the city water main shall be the prevailing fixed charged for the size of water service desired, less the cost of setting a meter of the size requested, as set forth in sections 70-11 and 70-12 and less a charge set by the city council for salvageable hardware. In addition, the property owner shall be required to pay any outstanding frontage charges that may be applicable for such service.
(Code 1964, § 18-2.1; Code 1982, § 23-7; Ord. No. 7773, 3-20-1989)

Sec. 70-8. Separate water connections required for each structure; exceptions.

(a) Except as herein otherwise provided, there shall be a separate tap and connection with the water pipe of the city, and a separate service pipe, tap and meter for each house or structure, and no service connection shall be used to supply water to more than one house, structure or building.

(b) When an owner of an interior lot desires to construct a nondwelling structure as a separate building in the rear of an existing house, structure or building, and such structure additions on such lot are in a common occupancy, such owner may be permitted to serve the additional structure with city water through the service connection serving the existing structure; provided, that:

(1) The interior lot fronts on one street only.

(2) The interior lot is of insufficient width to allow subdivision or construction of an additional structure which could abut such street.

(3) Such additional construction is in compliance with the city's UDO if located within the jurisdiction of the city, or with the county's UDO if located within the jurisdiction of the county.

(c) A common water connection, including a private water distribution system, will be permitted to serve more than one building of the following categories:

(1) Group apartment housing (projects consisting of more than one structure situated on one tract under common ownership and not intended to be capable of subdividing into individual lots or tracts for sale purposes).

(2) Motels, hotels.

(3) Hospitals.

(4) Warehouses, industrial buildings (under one ownership and engaged in one business only).

(5) Schools.

(6) Trailer courts.

(7) Shopping centers.

(8) Condominium developments (individual ownership of a single unit in a multi-unit structure with common elements, such as hallways, parking bays and open spaces).

(9) Townhouse developments (a development consisting of one or more residential structures comprised of two or more attached single-family residences intended for owner-occupancy with individual residences located on their own individual lots with the possibility of common ownership of open spaces, parking bays, etc.).

(10) Religious facilities.

(11) Homes for the ill or aged, including rest and convalescent homes.

(12) Accessory dwelling units such as garage apartments wherein the lot on which the primary residence and the accessory dwelling unit are situated cannot reasonably be further subdivided.

(d) A common water connection, including a private water distribution system, will be permitted to serve the above category of buildings meeting the following minimum requirements:

(1) The building to be served shall be in compliance with the city's UDO if located within the jurisdiction of the city, or with the county's UDO if located within the jurisdiction of the county.

(2) The building permit and plat shall show a single owner and shall indicate the complex of buildings to be constructed on a single lot.

(3) The applicant shall be required to submit to the director a site plan showing the proposed water construction. Such plan shall be prepared by a registered professional engineer who shall also provide full time inspection of the work. Such plan shall be approved by the director to include size of water lines, materials to be used for construction, valve locations and hydrant locations. All construction from the property line to the water meter shall be in accordance with city standards and specifications. Construction beyond the water meter may be with materials permitted in the city plumbing code. All construction shall be performed by either a licensed master plumber or a licensed utility contractor; however, all construction between the water meter and a fire hydrant or other fire protection device shall be in accordance with city standards and specifications.

(4) Should a building within such multiple constructed area be conveyed to a new owner, the city shall require a separate water connection from that building to the main in the street, except in the case of condominium and townhouse developments.

(Code 1964, § 18-13; Code 1982, § 23-8; Ord. No. 12171, § 1, 2-5-2001)

Sec. 70-9. Metering of water connections; testing meters.

(a) All connections made to the public water supply shall be metered, except fire protection connections, with metering devices selected by the city at the owner's expense. The consumer of water shall be charged for all water that passes through the metering devices whether used

or wasted unless such charges are otherwise adjusted pursuant to section 70-62. Meters shall be located on public right-of-way; except, that meters may be located on private property to serve buildings in the following categories:

(1) Group apartment housing (projects consisting of more than one structure situated on one tract under common ownership and not intended to be capable of subdividing into individual lots or tracts for sale purposes).

(2) Motels, hotels.

(3) Hospitals.

(4) Industrial buildings (under one ownership and engaged in one business only).

(5) Schools.

(6) Trailer courts.

(7) Shopping centers.

(8) Condominium developments (individual ownership of a single unit in a multi-unit structure with common elements, such as hallways, parking bays and open spaces).

(9) Townhouse developments (a development consisting of one or more residential structures comprised of two or more attached single-family residences intended for owner-occupancy with individual residences located on their own individual lots with the possibility of common ownership of open spaces, parking bays, etc.).

(10) Religious facilities.

(11) Homes for the ill or aged, including rest and convalescent homes.

(b) The location of meters on private property shall be approved by the director [city engineer].

(c) The charge set by the city council shall be made for the testing of meters which upon testing conform to the range of accuracy as bounded by the minimum 98.5 percent of one cubic foot of flow and the maximum 101.5 percent of one cubic foot of flow.
(Code 1964, § 18-20; Code 1982, § 23-9; Ord. No. 7773, § 1, 3-20-1989; Ord. No. 9577, § 1, 6-29-1992)

Sec. 70-10. Separate sewer connection required for each structure; exceptions.

(a) Except as herein otherwise provided, there shall be a separate tap and connection with the sewer pipe of the city for each house, structure or building, and no sewer connection shall be used to collect the sewage from more than one house, structure or building.

(b) When an owner of an interior lot proposes to construct a nondwelling structure as a separate building in the rear of an existing house, structure or building, and such structures and additions on such lot are in a common occupancy such owner may be permitted to serve the additional structure or building through the sewer connection serving the existing structure; provided, that:

(1) The interior lot fronts on one street only.

(2) The interior lot is of insufficient size to allow subdivision or construction of an additional structure which could abut such street.

(3) Such additional construction is in compliance with the city's UDO, if located within the jurisdiction of the city, or with the county's UDO if located within the jurisdiction of the county.

(c) A common sewer connection, including a private sewage collection system, will be permitted to serve more than one building of the following categories:

(1) Group apartment housing (projects consisting of more than one structure situated on one tract under common ownership and not intended to be capable of subdividing into individual lots or tracts for sale purposes).

(2) Motels, hotels.

(3) Hospitals.

(4) Warehouses, industrial buildings (under one ownership and engaged in one business only).

(5) Schools.

(6) Trailer courts.

(7) Shopping centers.

(8) Condominium developments (individual ownership of a single unit in a multi-unit structure with common elements, such as hallways, parking bays and open spaces).

(9) Townhouse developments (a development consisting of one or more residential structures comprised of two or more attached single-family residences intended for owner-occupancy with individual residences located on their own individual lots with the possibility of common ownership of open spaces, parking bays, etc.)

(10) Religious facilities.

(11) Homes for the ill or aged, including rest and convalescent homes.

(12) Accessory dwelling units such as garage apartments wherein the lot on which the primary residence and the accessory dwelling unit are situated cannot reasonably be further subdivided.

(d) A common sewer connection, including a private sewage collection system, will be permitted to serve the above category of buildings meeting the following minimum requirements:

(1) The building to be served shall be in compliance with the city's UDO if located within the jurisdiction of the city, or with the county's UDO if located within the jurisdiction of the county.

(2) The building permit and plat shall show a single owner and shall indicate the complex of buildings to be constructed on a single lot.

(3) The applicant shall be required to submit to the director a site plan showing the proposed sewer construction. Such plans shall be prepared by a registered professional engineer who shall also provide full time inspection of the work. Such plans shall be approved by the director to include size of sewers and materials to be used for construction. All sewers eight inches or larger in size shall be constructed in accordance with city standards and specifications. All sewers smaller than eight inches shall be constructed in accordance with the city plumbing code. All construction shall be performed by either a licensed master plumber or a licensed utility contractor.

(4) Should a building within such multiple constructed area be conveyed to a new owner, the city shall require a separate sewer connection from that building to the main in the street, except in the case of condominium and townhouse developments.

(Code 1964, § 18-7; Code 1982, § 23-10; Ord. No. 12171, § 1, 2-5-2001)

Sec. 70-11. Fixed costs with regard to existing water connections.

Water connection fixed costs with regard to existing water connection shall be as prescribed by the city council.

(Code 1964, § 18-10; Code 1982, § 23-11; Ord. No. 5149, § 1, 5-7-1979)

Sec. 70-12. Fixed costs with regard to new water connections.

Water connection fixed costs with regard to new water connections shall be as prescribed by the city council.

(Code 1964, § 18-11; Code 1982, § 23-12; Ord. No. 5149, § 2, 5-7-1979)

Sec. 70-13. Fixed costs with regard to new water connections without meters.

Water connection fixed costs with regard to new water connections without meters shall be as prescribed by the city council.

(Code 1964, § 18-12; Code 1982, § 23-13; Ord. No. 5149, § 3, 5-7-1979)

Sec. 70-14. Where two-metered connections required; installation of meter bypass.

(a) The city reserves the right to require all hotels, office buildings, factories or other establishments which require continuity of service to have at least two separate metered connections from the public water system.

(b) The city shall have the right to install and to permit the installation of a bypass to be installed for meters of the size of two inches or larger, in order to provide continuity of service.
(Code 1964, § 18-17; Code 1982, § 23-15)

Sec. 70-15. Construction, cost of water connections.

(a) The city shall furnish all materials and make all connections to the water mains and install all water service pipes from the mains to the property line; provided, that the city may award contracts for the installation of water services when the director deems such is necessary and is to the best interest of the city, except in the case of new subdivisions where it shall be the responsibility of the developer to install all water connections at his or her own cost in accordance with city standards and specifications. For the purposes of this section, a subdivision shall mean a development of two or more single-family residences where one or more lots front on a street that has been offered for dedication and is not then maintained by the city.

(b) Where the water connection is made by a developer, the installation shall include the meter box and the meter yoke. The water meter shall be installed by the city at the prevailing charge, which shall be borne by the developer. Where the water connection is made by the city, the property owner shall pay to the city in advance of such work the appropriate fixed cost as outlined in sections 70-11 and 70-12. For water connections made to the main line outside the corporate limits of the city, the charges shall be the same as above stated in this section.
(Code 1964, § 18-14; Code 1982, § 23-16)

Sec. 70-16. Construction, cost of sewer laterals and connections generally.

(a) The city shall make all sewer connections, either with the use of city forces or by contract, to the main line and construct the lateral connections from the main line to the street property line or right-of-way line and shall maintain the sewer lateral between the sewer line and the property or right-of-way line, except in the case of new subdivisions where it shall be the responsibility of the developer to install all sewer connections and laterals at his or her own cost in accordance with city standards and specifications. For the purposes of this section, a subdivision shall mean a development of two or more single-family residences where one or more lots front on a street that has been offered for dedication and is not then maintained by the city.

(b) When the connection is to be made by the city, the property owner shall pay to the city in advance of such work the sum that is prescribed by the city council for the work to be done. For sewer connections made to the main line or outfall outside the corporate limits of the city, the charges shall be the same as above stated in this section.
(Code 1964, § 18-6; Code 1982, § 23-17; Ord. No. 5149, § 1, 5-7-1979)

Sec. 70-17. Payment of frontage charges prerequisite to connection with water and sewer mains.

Where water service or sewer service, or both, is made available to a parcel due to the presence of those utilities in the street abutting the parcel, and the water main or sewer main, or both, were installed by a developer pursuant to a valid reimbursement agreement with the city, and the cost or a portion of the cost of installing the utilities has not been assessed against or paid by the abutting parcel owner, such abutting parcel owner shall be charged the prevailing frontage charge at the time service is requested by such parcel owner as a condition precedent to connecting the abutting parcel to the water main or sewer main, or both.

(Code 1964, § 18-12.1; Code 1982, § 23-18; Ord. No. 7151, § 1, 3-2-1987; Ord. No. 9362, § 1, 8-19-1991; Ord. No. 14195, § 1, 11-7-2011; Ord. No. 14898, § 1, 3-7-2016; Ord. No. 15155, § 1, 6-19-2017; Ord. No. 15483, § 1, 6-17-2019)

Sec. 70-18. Federal block grant funds for water mains and sewer mains; no charge to be made.

The charges provided for in section 70-17 do not apply to water mains and sewer mains which are installed with federal block grant funds. When water mains or sewer mains are installed with block grant funds received from the federal government, no special assessment charges are to be levied against the property benefited thereby.

(Code 1964, § 18-12.2; Code 1982, § 23-18.1; Ord. No. 5322, § 2, 1-7-1980)

Sec. 70-19. Authority to contract to provide reimbursement for the cost of certain water and sewer facilities and to require payment by future developers for such facilities as a precondition of connection.

The city may enter into agreements that provide for the reimbursement of a portion of the construction costs of certain water and sanitary sewer facilities ("developer and/or city-

constructed facilities") when the facilities have been designed at the city's direction to take into account city determined needs regarding future development and, in addition, when the scale, scope, or size of the developer and/or city-constructed facilities are atypical and substantially larger than what is needed for a specific development, or other unique circumstances apply. Without limiting the city's authority under general law or ordinance, only sewer outfalls ten inches in diameter or larger, force mains, sewer pumping stations, water mains larger than 16 inches, booster stations, flow control valves, aboveground storage, and applicable engineering costs shall be eligible for reimbursement in agreements authorized under this section. Reimbursement shall be limited to payments from future users that benefit from the developer and/or city-constructed facilities. Future users include developers of future projects. In addition to any other fees provided by law or ordinance, the city may require such future users to pay a fair portion of the cost of the developer and/or city constructed facilities as a precondition of extension of water and/or sewer infrastructure to a proposed development. If such fees are imposed on future developments, a fee ordinance enacting such fees shall be required.

For developer constructed facilities only, the city shall reimburse a developer who constructs developer constructed facilities pursuant to the terms of a written agreement made under this section and approved by city council, but only after future users of the developer constructed facilities make payment to the city. The city shall develop written policies consistent with this section that apportion the original documented costs of developer constructed facilities subject to agreements amongst future users in a fair and equitable manner, as determined in the sole discretion of the city. Agreements under this section shall, among other things, specify the time period for which reimbursements shall apply. In addition, agreements shall provide for a reasonable administrative charge to be retained by the city for the city's expense in administering a reimbursement program. No agreement shall obligate the city to reimburse costs of developer constructed facilities if payments are not received for any reason, nor shall any agreement limit the city's authority to modify this section. This section shall not limit the city's authority under any other section of this chapter.

(Ord. No. 14749, § 1, 5-18-2015)

Editor's note—Ord. No. 14749, § 1, adopted May 18, 2015, repealed and replaced § 70-19 in its entirety. Former § 70-19 pertained to authority to contract to provide reimbursement for the cost of certain sewer facilities and to require payment by future developers for such facilities as a precondition of connection, and was derived from Code 1982, § 23-18.2; Ord. No. 12501, § 1, adopted February 4, 2002 and Ord. No. 13147, adopted June 20, 2005.

Sec. 70-20. Maintenance and repair of water connections, pipes, etc.

The city shall maintain all water connections within the streets or public right-of-way and shall absorb the cost of such repairs and maintenance through the fees charged pursuant to section 70-51. All pipes and fixtures within private property shall be kept in repair by the property owner or consumer. When repairs are not made to prevent waste of water within 48 hours after receiving notice from the city manager, the city shall discontinue service until such time as the repairs are made or shall have the right to enter on the property and make the

necessary repairs. The work by the city shall be limited to the necessary water line repairs and backfilling. The cost of repairs performed by the city shall be charged to the property owner, and service may not be reinstated until they are paid.
(Code 1964, § 18-19; Code 1982, § 23-19; Ord. No. 7773, § 1, 3-20-1989; Ord. No. 9451, § 1, 11-18-1991)

Sec. 70-21. Maintenance and repair of sewer laterals outside of street property line or right-of-way line.

The maintenance and repair of sewer lines and house connections outside of the street property line or right-of-way line shall be the responsibility of the property owner. The city shall not undertake to repair or maintain the house connections to its sewer line until it has been determined that the disrepair, stoppage or other cause or impediment to the proper functioning of such line exists within that portion of the lateral between the main line and the property line or right-of-way lines. If the property owner or the representative of the property owner claims that the cause of such stoppage or disturbance exists on that portion of the lateral lying between the main line and the property line and an investigation discloses that the cause of such disturbance actually exists in that portion of the line lying between the property line and the structure which is serviced by such line, the property owner shall pay to the city the actual cost to the city of making such investigation. If, however, upon investigation it is found that the cause of such disturbance or disrepair is in that portion of the line lying between the property line and the main line, the city shall make such repair without additional cost to the property owner.
(Code 1964, § 18-9; Code 1982, § 23-20)

Sec. 70-22. Fire protection plans for certain developments prerequisite to installation of water connections.

(a) Each development in any of the following categories shall have a fire protection plan approved by the city manager, fire chief or their designee, prior to the issuance of a building permit and prior to the installation of water connections or the extension of existing water installations:

(1) Group apartment housing (projects consisting of more than one structure situated on one tract under common ownership and not intended to be capable of subdividing into individual lots or tracts for sale purposes).

(2) Motels, hotels.

(3) Hospitals.

(4) Warehouses, industrial buildings (under one ownership and engaged in one business only).

(5) Schools.

(6) Trailer courts.

(7) Shopping centers.

(8) Condominium developments (individual ownership of a single unit in a multi-unit structure with common elements, such as hallways, parking bays and open spaces).

(9) Townhouse developments (a development consisting of one or more residential structures comprised of two or more attached single-family residences intended for owner-occupancy with individual residences located on their own individual lots with the possibility of common ownership of open spaces, parking bays, etc.).

(10) Religious facilities.

(11) Homes for the ill or aged, including rest and convalescent homes.

(12) Building construction in excess of three stories aboveground level.

(b) The fire protection plan shall be submitted in triplicate to the fire chief or the fire chief's designee for approval. The city reserves the right to require proper size water lines, proper hydrant spacing and location and the installation of metering devices where it shall be determined that water is being used for other than fire protection purposes exclusively. All water facilities constructed on private property for the purpose of firefighting shall be in accordance with city standards and specifications. Construction beyond the water meter may be with materials permitted in the city plumbing code; however, all construction between the water meter and a fire hydrant or other fire protection device shall be in accordance with city standards and specifications.
(Code 1964, § 18-15; Code 1982, § 23-21; Ord. No. 7773, § 1, 3-20-1989)

Sec. 70-23. Use of fire hydrants.

Fire hydrants shall be used predominantly by the fire department for the purpose of providing fire protection. Other city departments shall be permitted to use fire hydrants on a limited basis to undertake legitimate public purposes. Fire hydrants shall not be otherwise used for any purpose, unless written approval is received from the city. Persons who wish to use hydrants to provide water during the construction process or for other purposes shall apply to the city for a permit for such use. The city shall establish policies regarding such use. These policies may, amongst other things, require that only city equipment be used to meter the water used, and to prevent the backflow of water into the system, and that users employ other special equipment and/or use certain practices in opening and closing hydrants, attaching and detaching equipment, and moving equipment to other hydrants. These policies may establish reasonable deposits for use of city equipment, which shall not exceed an amount set by the city council. Violation of the city's policies is considered a violation of the City Code which, in addition to any other remedy available in the Code, is a misdemeanor.
(Code 1964, § 18-21; Code 1982, § 23-22; Ord. No. 7773, § 1, 3-20-1989; Ord. No. 12172, § 1, 2-5-2001; Ord. No. 15982, § 249, 8-1-2022)

Sec. 70-24. Limitation on assessments for water and sewer main improvements.

The maximum cost to be assessed property owners for water and sewer main improvements per front foot of property abutting such improvements shall be the amount established by resolution adopted by the city council and available for public review in the office of the city clerk and the office of the city engineer.
(Code 1964, § 18-22; Code 1982, § 23-23; Ord. No. 4982, § 1, 9-5-1978; Ord. No. 6799, § 1, 10-7-1985)

Sec. 70-25. Resale of water and/or sewer service.

No water and/or sewer customer shall supply or resell water and/or sewer service from the public water and/or sewer system. Notwithstanding this prohibition, owners of a residential apartment complex where submeters have been installed may charge tenants for water and/or sewer service for the purpose of fairly allocating the cost of such service to each dwelling unit subject to the conditions set forth below. For purposes of this section, a residential apartment complex is defined as premises not separated by property owned by others where one or more buildings under common ownership comprising 15 or more apartments are available for rent by residential tenants.

(1) The rate charged shall be no greater than that charged by the city. Any administrative or service charge billed by the city may be apportioned among the tenant bills. Additional apartment owner service or administrative charges may be added to the amount billed by the city in accordance with the state utilities commission regulations;

(2) The owner shall be in compliance with all the regulations of the city and other governmental agencies which may have jurisdiction, including, but not limited to, the state public utilities commission and the state division of environmental health;

(3) The owner shall notify the city manager or his or her designee in writing that the structure will be submetered and indicate the expected date of the initial billing of tenants;

(4) The tenant billing cycle shall coincide with the city's billing cycle. The owner shall maintain the following records on the site for inspection during reasonable business hours by the city manager or his or her designee and the tenants:

   a. The billing from the city to the owner for the current month and the 12 preceding months;

   b. The calculation of the average cost per 100 cubic feet or per 1,000 gallons for the current month and the 12 preceding months;

   c. All submeter readings and tenant billings for the current month and the 12 preceding months;

   d. All sub-meter test results for the current month and the 12 preceding months.

(5) All rental agreements between the owner and the tenants shall clearly state that the dwelling unit is submetered, that bills will be issued based on such metered charges, that water and/or sewer charges based on water consumption for all common areas and common facilities will be the responsibility of the owner and not the tenant, and that any disputes relating to the computation of the tenant's bill and the accuracy of the submetering device will be between the tenant and the owner;

(6) The owner shall not terminate a tenant's water and/or sewer service for failure to pay tenant's water and/or sewer bill.

In addition to any other remedy available in the Code, failure to comply with the requirements of this section is a misdemeanor, and shall also be grounds for termination of the right to bill tenants in accordance with submetered charges.
(Code 1964, § 18-23; Code 1982, § 23-24; Ord. No. 11330, § 1, 1-20-1998; Ord. No. 13736, § 1, 11-3-2008; Ord. No. 14753, § 1, 5-18-2015; Ord. No. 15982, § 250, 8-1-2022)

Sec. 70-26. Unauthorized use of city water and sewer services and infrastructure.

(a) It shall be unlawful for any person to willfully, with intent to injure or defraud, commit any of the following acts:

(1) Obstruct, alter, bypass, tamper with, injure or prevent the action of a meter or other instrument used to measure or register the quantity of water passing through such meter by a person other than an employee or authorized contractor of the city.

(2) Make any connection or reconnection with the water or sewer pipes of the city, turn on or off or in any manner interfere with any valve or other portion of the city water and sewer infrastructure, and connected with city service or other pipes, for any purpose without first procuring from the city a written permit to turn on or off such valve, pump, or other appliance, or to make such connection or reconnections, or to interfere with the valves, or other appliances of such, as the case may be.

(3) Retain possession of or refuse to deliver any meter or other appliance which may be leased or rented by any person, for the purpose of furnishing water through the same, or sell, lend or in any other manner dispose of the same to any person other than the city.

(4) Reconnect water or sewer connections or otherwise turn back on one or more of those utilities when they have been lawfully disconnected or turned off by the city.

(b) Any meter found to have been altered, tampered with, or bypassed in a manner that would cause such meter to inaccurately measure and register the water consumed or which would cause the water to be diverted from the recording apparatus of the meter shall be prima facie evidence of an intent to violate and of the violation of this section by the person in whose name such meter is installed or the person or persons so using or receiving the benefits of such unmetered, unregistered, or diverted water.

(c) Criminal violations of this section shall be punishable as follows:

(1) A violation of this section is a Class 1 misdemeanor.

(2) A second or subsequent violation of this section is a Class H felony.

(3) A violation of this section that results in significant property damage or public endangerment is a Class F felony.

(4) Unless the conduct is covered under some other provision of law providing greater punishment, a violation that results in the death of another is a Class D felony.

(d) Whoever is found in a civil action to have violated any provision hereof of this section shall be liable to the city in triple the amount of losses and damages sustained or $5,000.00, whichever is greater.

(e) Nothing in this section shall be construed to apply to licensed contractors while performing usual and ordinary services in accordance with recognized customs and standards and all city requirements.

(Code 1964, § 18-24; Code 1982, § 23-25; Ord. No. 14540, § 2, 11-18-2013)

Editor's note—Ord. No. 14540, § 2, adopted November 18, 2013, amended the title of § 70-26 to read as set out herein. Previously § 70-26 was titled unauthorized use of city water.

Sec. 70-27. Water pressure reducing valves.

(a) Any water service consumer of the water system of the city whose water service has a water pressure which equals or exceeds 80 pounds per square inch is required to install and maintain an adequate pressure reducing valve on the building site of the meter. No connection to the water system shall be made without installing the pressure reducing valve herein required, and in no event shall the city be responsible for any liability for damages which might result from the failure to install and maintain such pressure reducing valve.

(b) The provisions of this section shall apply to existing as well as future construction.

(c) In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Code 1964, § 18-24.1; Code 1982, § 23-27; Ord. No. 15982, § 251, 8-1-2022)

Sec. 70-28. Depths of street sanitary sewers.

(a) Street sanitary sewers will be constructed in general a depth of six to eight feet to serve adjacent properties where there are no existing houses.

(b) Where structures exist prior to a sanitary sewer main being installed in a street, the street sewer will be built or laid to depths up to 11 feet to provide gravity flow into the street sewer. Where structures are at such elevations that sanitary sewers 11 feet deep in the street will not provide gravity flow, the property owner will be responsible for making such installations as may be necessary to discharge sewage into the street sanitary sewer.

(Code 1964, § 18-24.2; Code 1982, § 23-28)

Sec. 70-29. Requirements as to sewer cleanouts.

Sewer service shall not be furnished to any property not presently served unless a sewer cleanout shall be installed behind the property line or right-of-way line and within ten feet of the right-of-way line or property line on all sewer connections to the sewer mains and sewer outfalls of the city. The sewer cleanout shall originate with a hub-type, wye branch fitting with the slope of the fitting pointing toward the center of the street or right-of-way line at an

elevation which shall be on a continuous grade from the end of the sewer connection to and including the wye branch fitting. The cleanout shall be caulked into a hub so that it can be readily removed without disturbing or moving the cleanout stub up. The cleanout plug elevation shall be at the ground surface. Where sewer cleanout plugs are not located in accordance with the provisions of this section, the city shall not rod the sewer lateral and the property owner shall be responsible for the maintenance of the sewer lateral between the property line and the sewer main or sewer outfall to which it is connected.
(Code 1964, § 18-8; Code 1982, § 23-29; Ord. No. 5755, § 1, 9-8-1981)

Sec. 70-30. Violation of chapter.

(a) Any person violating any section of this chapter, or any part thereof shall, upon conviction, be subject to all penalties as provided by law, including, as applicable, section 32 of the Charter and section 1-9.

(b) Any customer violating any of the provisions of this chapter is liable to have the water turned off of the premises in question after notice and the city shall incur no liability whatsoever for turning off the water under such circumstances.
(Code 1964, §§ 18-25, 18-26; Code 1982, § 23-30)

Secs. 70-31—70-48. Reserved.

ARTICLE II. SERVICE CHARGES, RATES AND RENTALS

Sec. 70-49. Deposits and fees for water service.

(a) The following deposits are required inside and outside the corporate limits:

(1) Domestic customers of water, opening accounts after the effective date of the ordinance from which this section is derived, shall make a deposit in the amount set forth by city council from time to time. However, residential customers shall be exempt from deposit requirements of this subsection if they provide an acceptable letter of credit from their previous utility provider or if they currently have service with the city and have had no cutoff/past due amounts in the past 12 months or other suitable credit reference acceptable to the city manager.

(2) Domestic water customers who have water service discontinued due to failure to make payment shall not be provided again with water service unless the account holder makes an additional deposit of $50.00 for each disconnection for nonpayment, not to exceed a total deposit amount per account of $200.00. Such deposit shall be in addition to previous deposits, and applicable cut-off and reconnection (cut-on) charges. All applicable charges shall be required to be paid before water service shall again be furnished to the premises in question, unless payment arrangements agreeable to the city manager or designee are made.

(3) For all other accounts, a deposit depending on the size of the meter is required unless waived at the discretion of the city manager. A schedule of such deposit amounts shall be set by the city council.

(4) A deposit not in excess of the amount set forth by city council from time to time is required for the temporary use of water from fire hydrants, the amount of the deposit, its use, and the proportion to be returned shall be as provided by departmental policy.

(b) The deposits required by this section to be paid to the city shall be without liability on the part of the city for profit or interest.

(c) As to such deposits made prior to the effective date of the ordinance from which this section is derived, as amended, the depositor shall be entitled to surrender the certificate of deposit or receipt now held by him or her and exchange the same for an amended certificate or receipt containing the provisions that such deposit shall not bear interest or profit, and if the depositor fails and neglects to surrender such certificate of deposit and exchange the same on or before July 1, 1952, such certificate of deposit heretofore issued and then held by such depositor shall be considered amended in the particulars set forth in this section.

(d) The deposits heretofore or hereafter made shall be used for the purpose of ensuring the payment of water bills and to secure the city against any loss that might be incurred in furnishing water or servicing such account, and such deposit shall be refunded if the city finds that the customer has had no disconnections or past due accounts within a one-year period.

(Code 1964, § 18-27; Code 1982, § 23-40; Ord. No. 5967, § 1, 8-2-1982; Ord. No. 6025, § 1, 6-21-1982; Ord. No. 7773, § 1, 3-20-1989; Ord. No. 7745, § 1, 4-17-1989; Ord. No. 12172, § 1, 2-5-2001; Ord. No. 13119, 6-20-2005; Ord. No. 13270, § 1, 6-19-2006; Ord. No. 13539, § 1, 1-22-2008; Ord. No. 15233, § 1, 12-4-2017; Ord. No. 15684, §§ 1, 2, 8-3-2020)

Sec. 70-50. Capital facility and service area fees for water and sewer connections.

(a) Capital facilities fees for all new connections to the city's water and/or sewer system shall be as set by city council. The fees for one-inch meter connections to the water and sewer system shall be the same as for five-eights-inch meter connections to the water and sewer system where the larger meter is necessary not because of any additional needed capacity of volume of service but rather, solely to ensure adequate water pressure. The fees for replacement of an existing meter with a meter of larger size shall be determined by

charged for services not received, a credit adjustment will be allowed only for amounts paid by the customer for charges incurred within the prior four years for water and three years for other utility charges. Customers with complaints about the accuracy of error corrections are entitled to a review as provided in section 70-58.

(Code 1964, §§ 18-30, 18-31; Code 1982, § 23-41; Ord. No. 5352, § 1, 3-17-1980; Ord. No. 5430, § 1, 6-19-1980; Ord. No. 5707, §§ 2, 3, 6-2-1981; Ord. No. 5936, §§ 2, 3, 6-21-1982; Ord. No. 6126, § 1, 6-20-1983; Ord. No. 6465, § 1, 6-18-1984; Ord. No. 7002, § 1, 6-26-1986; Ord. No. 7624, § 1, 6-29-1987; Ord. No. 7263, § 1, 6-29-1987; Ord. No. 7570, § 1, 6-30-1988; Ord. No. 7844, § 1, 6-28-1989; Ord. No. 8083, § 1, 6-28-1989; Ord. No. 9321, § 1, 6-24-1991; Ord. No. 9576, § 1, 6-29-1992; Ord. No. 9861, § 1, 6-30-1993; Ord. No. 11157, § 1, 6-16-1997; Ord. No. 11285, § 1, 11-3-1997; Ord. No. 12586, § 1, 6-17-2002; Ord. No. 12755, § 1, 2-18-2003; Ord. No. 12815, § 1, 6-16-2003; Ord. No. 12868, § 1, 9-15-2003; Ord. No. 12966, § 1, 6-21-2004; Ord. No. 12967, § 1, 6-21-2004; Ord. No. 13121, 6-20-2005; Ord. No. 13269, § 1, 6-19-2006; Ord. No. 13426, § 1, 6-18-2007; Ord. No. 13593, § 1, 5-5-2008; Ord. No. 13804, §§ 1, 2, 5-18-2009; Ord. No. 14132, § 1, 6-6-2011; Ord. No. 14512, § 1, 9-16-2013; Ord. No. 14539, § 1, 11-18-2013)

Editor's note—Ord. No. 13804, § 1, adopted May 18, 2009, changed the title of section 70-51 from "Monthly rates for water service, sewer service, and water and sewer service" to "Rates for water service, sewer service, and water and sewer service."

Sec. 70-52. Fees for disposal of domestic and nondomestic septage.

(a) The fee for the disposal of domestic septage at city sewage treatment plants shall be set by the city council.

(b) The fee for the disposal of nondomestic septage at city sewage treatment plants shall be calculated on a case by case basis to reflect the cost to the city of treatment of the septage load.

(Code 1982, § 23-42; Ord. No. 7477, § 3, 4-5-1988; Ord. No. 8082, § 1, 6-28-1990; Ord. No. 7773, § 1, 3-20-1989; Ord. No. 10765, § 1, 6-17-1996)

Sec. 70-53. Imposition of sewer rental or charge and surcharges for use of sewers.

(a) There is hereby imposed a sewer rental or charge for the use of the sewers, sewerage system and sewage treatment works of the city upon those served thereby at the rate set forth in this article.

(b) In addition to the normal sewer charge imposed for the use of sewers, sewerage system and sewage treatment works of the city, there is hereby imposed a sewer surcharge on any sewer user discharging wastewater into the city sanitary sewer system which has a biochemical oxygen demand (BOD) or suspended solids (SS) in excess of 250 parts per million by weight (250 parts per million by weight is equivalent to 2,085 pounds of BOD or SS per million gallons of wastewater).

(c) Sewer users will be billed monthly for the surcharge. The amount of the BOD surcharge will be calculated on the basis of an amount as set by city council per 1,000 pounds of BOD removed in excess of the normal amount of BOD (2,085 pounds) or part thereof. The amount of the SS surcharge will be calculated on the basis of an amount as set by city council per 1,000 pounds of SS removed in excess of the normal amount of SS (2,085 pounds) or part thereof.

(d) The determination of the strength (BOD and SS) of wastewater shall be made by the department of water resources as provided for in sections 70-187 through 70-403 based on wastewater samples.

Method of Surcharge Calculation:

The number of thousands of pounds of BOD or SS subject to the surcharge will be determined by use of the following formula:

$P = MG \times BS \times 8.34/1000$

Where:

MG	=	Million gallons of wastewater discharged
BS	=	Strength of wastewater in ppm BOD or SS in excess of 250
8.34	=	Pounds per gallon of water
P	=	Pounds of BOD or SS (in thousands)

The sewer surcharge will then be calculated by the use of the formula: S = C x P

Where:

S	=	Amount of surcharge
C	=	Surcharge rate (per 1,000 pounds of BOD or per 1,000 pounds of SS)
P	=	Pounds of BOD or SS (in thousands)

In addition to the sewer discharge for BOD and SS, there is hereby imposed a monitoring charge on any sewer user requiring wastewater sampling for purposes of computing a BOD or SS surcharge or of ensuring compliance with the city's sewer use and pretreatment ordinances.

Sewer users will be billed regularly for the monitoring charge. The amount of the monitoring charge will be calculated on the basis of an amount as set by city council and a charge for each type of test according to a schedule of charges per sample obtained and analyzed.

Where a subclass of customers from a customer class is sampled for computing a surcharge for each customer in the customer class, the sampling charges will be prorated equally to each customer in the customer class.
(Code 1964, § 18-29; Code 1982, § 23-43; Ord. No. 5707, § 1, 6-22-1981; Ord. No. 5936, § 1, 6-21-1982; Ord. No. 6127, § 1, 6-20-1983; Ord. No. 8084, § 1, 6-28-1990; Ord. No. 9322, § 1, 6-24-1991; Ord. No. 10764, § 1, 6-17-1996)

Sec. 70-54. Sewer rental with reference to property using water from source other than city water supply.

From a property which uses water, all or a part of which is from a source other than the city's water supply system, there shall be a sewer rental, separate from and in addition to any sewer rental based on the consumption of water from the city's water supply system. Such separate or additional sewer rental shall be measured by the quantity of water from the source other than the city's water supply system, which is discharged into the city's sewers from such

property. The owner of such property shall install, without cost to the city, a meter to measure the quantity of water received from a source other than the city's water supply system and discharged into the city's sewers. No meters shall be installed or be used for such purposes without the approval of the city engineer. The owner of such property shall pay for such water so discharged into the city's sewers an amount as though all such water came from the city's water supply system. If the owner of such property fails to install and maintain, at his or her own expense, an approved meter, the director shall make an estimate of the amount of water from sources other than the city water supply system which is discharged into the city's sewers from such property, using the consumption from similar operations, and if none, a formula based upon the operations of the business of the occupant of the premises as a standard, and bill such estimated water so discharged into the city's sewer as though the same were metered.
(Code 1964, § 18-35; Code 1982, § 23-44; Ord. No. 7773, § 1, 3-20-1989)

Sec. 70-55. Sewer rental with reference to property using city water for industrial or commercial purpose and not discharging same into city sewer system.

Whenever a property upon which a sewer rental is hereby imposed uses water from the city's water supply system for an industrial or commercial purpose so that the water so used is not discharged into the sewerage system of the city, the quantity of the water so used and not discharged into the city's sewers shall be excluded in determining the sewer rental of such property; provided, that the quantity of water so used and not discharged into the city's sewers is measured by a device approved by the city engineer and installed and maintained without cost to the city; and, provided, that the water supply of such property is metered and the owner pays for such water at metered rates. The sewer rental based upon the consumption of city water to be paid by the owner of such property shall be computed at the rates established for sewer service and using a quantity of water equal to the total quantity of water furnished such property by the city, less a quantity not discharged into the city's sewer; provided, however, that where in the opinion of the city engineer it is not practical to install a measuring device to determine continuously the quantity of water not discharged into the city's sewers, the city engineer shall determine periodically, in such way and by such method as he or she may prescribe, the quantity of metered water discharged into the city's sewers, and the quantity of water used to determine the sewer rental shall be the portion so determined of the quantity measured by water meter. Any dispute as to the estimated amount shall be submitted to the city manager whose decision on the matter shall be final.
(Code 1964, § 18-36; Code 1982, § 23-45; Ord. No. 7773, § 1, 3-20-1989)

Sec. 70-56. Installation and maintenance of meters required under sections 70-54 and 70-55.

All meters or other measuring devices installed or required to be installed under the provisions of sections 70-54 and 70-55 shall be under the control of the city engineer. The owner of the property upon which a measuring device is installed shall be responsible for its maintenance and safekeeping and all repairs thereto shall be made at the owner's cost. (Code 1964, § 18-37; Code 1982, § 23-46; Ord. No. 7773, § 1, 3-20-1989)

Sec. 70-57. Payment of water, sewer and stormwater bills.

(a) All bills due the city for water, sewer, and stormwater service shall be payable within 21 days after the date of issue. The sending of a bill via U.S. postal service or e-mail to the customer shall be the notice required by the city charter. All water and sewer charges on bills not satisfied within 21 days after the date of issue shall be charged interest thereafter at a rate of one percent per month. If any bill remains unpaid for a period of ten days after the due date, the city shall send, either via US postal service or e-mail, a notice to the delinquent customer stating that if the entire amount of the delinquent balance is not paid within seven calendar days of the issuance of this notice the service shall be terminated. Where stormwater service charges are being paid by the owner of property or other designated customer who is not the occupant and water and/or sewer charges are being paid by the occupant of property, water and sewer service will not be terminated on account of unpaid stormwater charges unless the city has sent the occupant notice of the unpaid stormwater service charge and possible utility termination at least 30 days prior to the termination.

(b) If payment of the delinquent amount is not received by the date and time specified in the delinquency notice, a charge shall be added to the customer's account to defray the city's collection costs. For the purpose of this section, such a charge shall be termed a " delinquency charge." The delinquency charge shall be set by the city council from time to time. For sewer only accounts a service delinquency charge shall be set by the city council from time to time to offset the city's costs to discontinue and reestablish sewer service as necessary. A delinquency charge may be waived by a supervisor in the interest of equity where the customer has not had a prior delinquency fee assessed and there is an underlying or contributing cause beyond the reasonable control of the customer.

(c) The city may extract a water meter or water meter yoke at the discretion of the city manager in order to enforce the payment of delinquent amounts. Such extractions shall be made if the account has demonstrated a history of attempted payment by worthless check, repeated disconnection for nonpayment, or similar occurrence. The city may also extract a water meter and/or water meter yoke at the discretion of the city manager where there has been an unauthorized connection or reconnection of water service, whether by an unauthorized turn-on of the meter or by use of an unauthorized meter or other unauthorized device. In the event of an extraction, the customer shall be charged the service charge as set by city council and an additional charge as set by city council for extraction of the water meter. An additional charge as set by city council shall be made for extraction of the water meter yoke

to defray the city's cost, when necessary. In the event that the extraction of a water meter and water meter yoke are circumvented through unauthorized means, the service may be crimped, removed or otherwise discontinued. When discontinuance of service by crimping or removal is necessary, the customer shall be charged all above charges and an additional charge as set by city council to defray the cost of restoration of the service.

The city may install a valve and cleanout at the lateral of sewer customers in order to disconnect and/or discontinue sewer service at a sewer only account to enforce the payment of delinquent accounts. Such installations shall be made if the account has demonstrated a history of attempted payment by worthless check, repeated nonpayment, or similar occurrence. In the event such an installation is done, the customer shall be charged the fee as set by city council and an. additional charge as set by city council for installation of the valve and cleanout. When discontinuance of service by installation of a valve and cleanout has occurred and the customer requests restoration of service, the customer shall be charged all above charges and an additional charge as set by city council for restoration of the service.

(d) The city may engage collection agencies, at the discretion of the city manager, in order to enforce the payment of delinquent accounts. The consumer shall be obligated to pay all costs associated with third-party collection efforts prior to having service resumed at the same location or a new location.

(e) The city manager shall have authority to establish administrative procedures for short-term credit extensions where there is a documented short-term inability to pay. Additionally, the city manager shall have authority to create and establish administrative procedures for a hardship fund to provide assistance where there is a documented long-term or permanent inability to pay. Assistance received from the hardship fund may be without financial obligation to the consumer.

(f) No customer with a delinquent account may open a new account at another location until the delinquency has been satisfied.

(g) A service charge shall be set by city council from time to time to defray the city's cost of making a visit to the location of the customer's service for the purpose of an on-site inspection to check the meter, check for evidence of leaking pipes, or look for malfunctions in the plumbing inside the structure receiving service. No service charge shall be assessed if the visit is in connection with a service charged for under another section of this chapter unless an additional visit is required due to a customer's action or failure to act such as when a fixture is left open at an unoccupied premise when a meter is turned on which requires a return visit after the condition is corrected. No service charge shall be made if the visit results from error by city employees or if the visit reveals a leak from or damage to city infrastructure. No service charge shall be assessed to investigate an issue with sewer service or for an issue with clearly visible water leakage.

(h) The city manager may establish administrative policies and procedures under which a standard credit not to exceed an amount set by city council may be granted in the event that water or sewer service is erroneously terminated by the city. This authority is not a

guarantee of uninterrupted service, or an admission that the city is responsible for any damages associated with loss of service, nor does it require the city manager to establish or continue such a policy.

(i) Order of payment: Where various utility charges appear on a combined utility bill, and a customer does not pay all the outstanding amounts. The partial payment will be applied to the respective charges in the following order: delinquent stormwater charges; delinquent solid waste charges; delinquent miscellaneous charges; delinquent water and/or sewer charges; capital facilities fees; current stormwater charges; current solid waste charges; current miscellaneous charges; and current water and/or sewer charges.

(j) Should the city fail to provide an accurate bill for the customer's water and sewer usage and as a result additional payment is owed for prior billing cycles, the city shall limit its collection to a maximum of six months of service prior to the date on which an accurate bill is mailed or otherwise provided to the customer. This provision is applicable only when the city's acts or omissions are the sole cause of the city's failure to accurately bill the customer and no acts or omissions of the customer contributed to the city's failure to generate an accurate bill.

(Code 1964, § 18-38; Code 1982, § 23-47; Ord. No. 5935, § 1, 6-21-1982; Ord. No. 7291, § 1, 7-27-1987; Ord. No. 7691, § 1, 12-19-1988; Ord. No. 7773, § 1, 3-20-1989; Ord. No. 9577, § 2, 6-29-1992; Ord. No. 10183, § 2, 6-6-1994; Ord. No. 13120, § 1, 6-20-2006; Ord. No. 13268, § 1, 6-19-2006; Ord. No. 13574, Pt. 1, 4-7-2008; Ord. No. 14170, 8-15-2011; Ord. No. 14539, § 2, 11-18-2013; Ord. No. 14974, § 1, 6-20-2016; Ord. No. 15684, §§ 3—5, 8-3-2020)

Charter reference—Water department rates and charges, § 31.

Sec. 70-58. Notice and hearing.

(a) The city manager shall designate some subordinate employee to hear customer complaints concerning overcharges, charges for services not rendered or other billing errors. The city manager is authorized to review disputed bills and to correct any errors which may appear therein.

(b) The city manager shall notify water, sewer, and stormwater customers whose service may be terminated that the amount shown as due on any such customers' bill may be questioned by discussing such bill with a designated official who is authorized to correct billing errors. The notice shall include the phone number, office hours and office location of the designated official. The notice may be given by mail, by notice enclosed with a bill, by notice printed on a bill or by similar means.

(c) Neither water service nor sewer service shall be terminated for failure to pay a water, sewer and/or stormwater bill until seven days after the notice required by this section has been mailed. Additional time shall be given if the provisions in section 70-57(a) concerning separate payment of the stormwater bill are applicable.

(Code 1964, § 18-38.1; Code 1982, § 23-47.1; Ord. No. 5080, § 1, 12-18-1978; Ord. No. 7773, § 1, 3-20-1989; Ord. No. 10183, § 2, 6-6-1994)

Sec. 70-59. Time and method of payment of sewer rentals.

All sewer rentals shall be due and payable at the same time and place that water rentals or bills are due and payable. Sewer rentals shall be included in the same bills, but stated separately and shall be collected at the same time and in the same manner, and if not paid within the time limit for the payment of water rentals or bills, in addition to any other penalties provided by law, the city may cut off from such property the use of water and if such water is obtained from sources of supply other than the city water system, the discharge thereof into the city's sewerage system shall be illegal and the owner of the property subject to fine, imprisonment, and other penalties as provided by law.
(Code 1964, § 18-39; Code 1982, § 23-48)

Sec. 70-60. Refunds or damages for failure of water service.

No person shall be entitled to damages nor to have any portion of a payment refunded for any failure of water service due to any necessary construction or repairs.
(Code 1964, § 18-40; Code 1982, § 23-49)

Sec. 70-61. Procedure with reference to vacancy of premises.

When premises are vacant for not less than 30 days, no water and/or sewer bill shall be rendered for such period; provided, that written notice is given in advance to the customer services supervisor, of the date of vacancy and of reoccupancy, and the water is turned off during such period of vacancy. A charge as set by city council shall be made for turning the water off and on when water service is restored during the regular working hours of 8:00 a.m. to 4:30 p.m., Monday through Friday. If the customer requests that water service be turned on after regular working hours on city work days, on Saturday or Sunday or on a holiday, the charge shall be as set by city council.
(Code 1964, § 18-41; Code 1982, § 23-50; Ord. No. 7773, § 1, 3-20-1989; Ord. No. 10183, § 2, 6-6-1994)

Sec. 70-62. Adjustment of bills inequitable or abnormal due to unavoidable waste.

The director of water management, or his or her designee, may, with approval of the city manager, adjust and settle inequitable and abnormal water or sewer bills due to unavoidable waste.
(Code 1964, § 18-42; Code 1982, § 23-51; Ord. No. 7773, § 1, 3-20-1989; Ord. No. 15684, § 6, 8-3-2020)

Sec. 70-63. Billing records for water and sewer services.

The city shall maintain billing records for water and sewer services for a period of one year, unless a longer period is required by law. Adjustments to water and sewer bills will be based on the availability of records.
(Code 1964, § 18-33; Code 1982, § 23-52)

Sec. 70-64. Service initiation fees.

All customers of water, opening an account, will be billed a service initiation fee in an amount set by city council for the administrative and service cost of setting up water accounts inside and outside the corporate limits. These charges shall appear on the first bill sent to the customer.
(Ord. No. 13270, § 2, 6-19-2006)

Sec. 70-65. Public health incentive program.

(a) *Purpose and intent.*

(1) The United States Environmental Protection Agency (EPA) enacted revisions to the Lead and Copper Rule on December 16, 2021 which required, pursuant to 40 CFR Part 141 Subpart I, that all community water systems develop an inventory of all service line connections both system-owned and customer-owned. The City of Durham operates a community water system in North Carolina and is required to submit an initial service line inventory identifying potential presence of lead in the service line to the North Carolina Department of Environmental Quality (NCDEQ) Public Water Supply (PWS) section by October 16, 2024.

(2) The public health incentive program was enacted to assist the City of Durham with the creation of the inventory as required by the EPA and as administered by the NCDEQ. The public health incentive program incentivizes water customers to actively participate in the service line inventory by providing a $30.00 bill credit to active City of Durham water customers, with service lines installed prior to 1988, that submit a valid water line verification survey to the water management department.

(3) This program shall conclude no later than December 31, 2027.

(b) *Administration.*

(1) Active City of Durham water service customers with service lines installed prior to the year 1988 may submit a valid service line verification inspection to the department of water management. Once a submission has been received the department of water management will verify the results of the inspections prior to the city providing a $30.00 bill credit.

(2) Participation in the public health incentive program by a water service customer is voluntary. The $30.00 bill credit issued under this ordinance is a one-time bill credit issued to City of Durham water service customers participating in the public health incentive program.

(3) The city manager, or their designee, shall put in place procedures for the administration and management of the public health incentive program in compliance with this ordinance.
(Ord. No. 16271, § 1, 2-19-2024)

Secs. 70-66—70-80. Reserved.

ARTICLE III. WATER AND SEWER MAIN EXTENSIONS*

DIVISION 1. GENERALLY

Secs. 70-81—70-94. Reserved.

DIVISION 2. INSIDE THE CITY OR UPON VOLUNTARY ANNEXATION INTO THE CITY†

Sec. 70-95. Extensions authorized.

(a) Water and sewer main extensions ("main extensions") and or water and sewer services may be made to serve only properties inside the city or to properties voluntarily annexed into the city, except as provided in division 3 of this article. Sections 70-96 through 70-108 apply to properties that are inside the city prior to seeking a water and sewer main extension, while section 70-109 applies to properties that are outside the city prior to seeking a water and sewer main extension and require voluntary annexation into the city.

(b) Where a property inside the city limits is located within 500 feet of an existing water or sewer main that can be extended to serve the property, the property shall extend these mains in accordance with the section 70-96 through 70-108 below and shall not be allowed to receive a well or septic permit from the county health department unless otherwise allowed pursuant to North Carolina State General Statutes. Where only one utility exists or is capable of serving the property within 500 feet, the property shall extend those mains to serve the property but shall be allowed well or septic service permits for the unavailable utility. Measurements of the 500 feet shall be measured along right-of-way or outfall length as appropriate.

(Ord. No. 14333, § 1(Att. 3), 10-15-2012; Ord. No. 15218, 10-16-2017; Ord. No. 15440, § 1, 3-18-2019; Ord. No. 15465, § 1, 5-20-2019)

Sec. 70-96. Procedure generally.

Persons requesting water and sewer extensions to serve properties inside the city ("project") shall:

(1) Submit a written application to the city department of water management to request a utility statement. The department of water management shall issue a utility

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***Charter reference—**Assessments for water, sewer, street, sidewalk, grass plot, lighting and waterfront improvements, § 77.

†**Editor's note—**Ord. No. 14333, § 1(Att. 3), adopted October 15, 2012, repealed and reenacted division 2 in its entirety to read as herein set out. Formerly, division 2, §§ 70-95—70-108, pertained to water and sewer main extension inside city, and derived from the Code of 1964, §§ 18-43—18-46, 18-49—18-58; the Code of 1982, §§ 23-60—23-73; Ord. No. 7198, § 1, adopted April 21, 1987, and Ord. No. 11369, § 1, adopted March 2, 1998.

statement for the project that identifies the required utility extensions, upgrades, renovations, force mains and lift stations that will be required to serve the project ("improvements"). The improvements identified in the utility statement will be integrated into a utility extension agreement between the city and developer. The utility extension agreement will govern the terms for the extension of utilities to the project, and in no way shall the utility statement alter the obligations of the parties to a utility extension agreement. The issued utility statement shall be attached to an application for a utility extension agreement (see item (2) below) and shall be submitted concurrently with a petition for annexation if some or all of the project is outside the city corporate limits. The city will charge an application fee for a utility statement. A single family residential house or duplex located on a lot of record, that is not being developed through the subdivision of property, shall be exempt from submitting an application for a utility statement, but shall be required to follow all other requirements of this section.

(2) Make written application to the city public works department and the city-county planning department. The city public works department shall create an extension agreement with the applicant with any necessary additional project-specific provisions. Once this is complete, the applicant shall execute an extension agreement with the city and the extension agreement shall be approved by city council. Inside the existing city limits, the requirement of an extension agreement may be waived if the city public works director ("director") or designee determines that there will be no reimbursables associated with the extended utilities. Water and sewer main extensions ("main extensions") and or water and sewer service extensions to serve properties inside the city limits with documented water supplies of unsatisfactory quality or on-site sanitary sewer systems that are a verified health hazard may be executed by the city manager or designee and do not require city council approval;

(3) Furnish engineering service plans, maps, surveys, profiles, calculations, etc., for the proposed water and sewer extensions, as required by the director;

(4) Obtain all applicable approvals and permits necessary to construct the project;

(5) Follow all city codes, ordinances, standards, specifications, and approved plans applicable to the construction of the project; and

(6) Meet as built requirements and have streets and required infrastructure opened, graded, and accepted for maintenance by city council and/or NCDOT, if required.

(Ord. No. 14333, § 1(Att. 3), 10-15-2012; Ord. No. 15219, 10-16-2017; Ord. No. 15440, § 1, 3-18-2019; Ord. No. 15465, § 1, 5-20-2019)

Sec. 70-97. Opening, grading, etc., of streets.

Water and sewer service shall not be provided to parcels unless the streets and associated right-of-way infrastructure adjacent to the parcel, or the streets and associated right-of-way infrastructure necessary to connect the parcel to the city's existing water and sewer system,

have been accepted by city council for maintenance or the department of public works has obtained adequate security to assure completion of the streets and associated right-of-way infrastructure.
(Ord. No. 14333, § 1(Att. 3), 10-15-2012)

Sec. 70-98. Engineering work to be done by registered engineer.

Any engineering work furnished as provided in subsection 70-96(2) shall be done by a North Carolina registered professional engineer.
(Ord. No. 14333, § 1(Att. 3), 10-15-2012)

Sec. 70-99. Fixed charges and deposits for main extensions generally; cost of extension above fixed charge.

Extensions will be made to the water or sewer system at a fixed charge established by current city policy or as allowed by the City Charter. The city shall pay the cost of the extension over and above the fixed charge regardless of the size of the main to be constructed. The person requesting a main extension to serve property inside the city shall at a minimum:

(1) Enter into a extension agreement for service and potential reimbursement;

(2) Deposit, with the public works department ten percent of the fixed charge for property frontage involved on each side of the street from the point of utility connection, including the frontage of the property which he or she proposes to furnish with service to proceed with engineering design of the project; and

(3) The entire remaining balance of frontage charges as described in item (2) above shall be deposited before construction of the project is started.

(Ord. No. 14333, § 1(Att. 3), 10-15-2012)

Sec. 70-100. No fixed charge for main extensions across school, etc., property.

A person requesting a main extension to serve properties inside the city shall not be charged as provided in section 70-99 for frontage for water main extensions across property used for Durham Public School purposes, city cemeteries and city parks.
(Ord. No. 14333, § 1(Att. 3), 10-15-2012)

Sec. 70-101. Basis for figuring frontage involved in case of intermediate lots.

The basis, in the case of intermediate lots, for figuring frontage involved, in accordance with section 70-99, shall be as follows:

(1) If the line was available on February 2, 1948, in front of a 50-foot or less platted lot, the city shall assume the frontage charge for the balance of that lot.

(2) If the line was available on February 2, 1948, in front of a platted lot of more than 50 feet in width and, the city shall assume the frontage charge up to 50 feet. The person requesting the extension shall pay for the balance of the frontage of such lot.

(3) If at the date of the request for extension, the property line is not definitely determined or the lot may subsequently be re-subdivided and the lot lines changed, the person filing the request for the extension shall pay all frontage charges for extending the main from the end of the existing main.

(Ord. No. 14333, § 1(Att. 3), 10-15-2012)

Sec. 70-102. Basis for figuring frontage involved in case of corner lots.

The basis, in the case of corner lots, for figuring frontage involved, in accordance with section 70-99, shall be in accordance with section 70-17.

(Ord. No. 14333, § 1(Att. 3), 10-15-2012)

Sec. 70-103. Construction of project to be subject to federal regulations, etc.

After the necessary deposit based on the fixed frontage charge has been made in accordance with the foregoing provisions of this division, the construction of the project shall be subject to the availability of funds and materials, to federal government regulations and to the action of the city council.

(Ord. No. 14333, § 1(Att. 3), 10-15-2012)

Sec. 70-104. Refunds.

The requirements as to refunds under this division shall be as follows:

(1) Before future connections are made to that portion of the line constructed under the fixed charge deposit to serve property not owned by the original depositor at the time of the original deposit, the city shall collect the current fixed frontage charge and refund the original depositor the amount originally charged for the subject property. No future charges or refunds will be made for property owned by the original depositor at the time of the original deposit.

(2) When the fixed frontage charge has been paid for property on which the lot lines have not been definitely determined, at the time these lots are built on or otherwise definitely established, the city shall make the necessary refund to the original depositor in accordance with subsection 70-101(1) and subsection 70-102(1).

(3) If an approved map which establishes a corner lot is available at the time the deposit is made, such map shall be the control for refunds.

(Ord. No. 14333, § 1(Att. 3), 10-15-2012)

Sec. 70-105. Construction of lines at city's expense without initial deposit.

The city may, at its own expense and without initial deposit, construct water or sewer lines as follows:

(1) *Improvements to distribution system.* In the event the city decides to improve the water distribution system or sewer system by closing short gaps, connecting dead ends, or constructing feeder lines, the city may do so at its own expense without

deposit; provided, however, that payment of the fixed frontage charge as set forth in this division shall be made to the city for future structures built and connected to this portion of the line.

(2) *Extensions under proposed paving projects.* In the event a line exists part way in a block, the city may install the line in the balance of the block at its own expense. However, payment of the fixed frontage charge as set forth in this division shall be made to the city for future structures built and connected thereto.

(Ord. No. 14333, § 1(Att. 3), 10-15-2012)

Sec. 70-106. Participation by city in outfall sewer line.

Whether or not the city will participate in the building of an outfall sewer line will be determined by specific action of the city council.

(Ord. No. 14333, § 1(Att. 3), 10-15-2012)

Sec. 70-107. Reference to council of unusual cases.

Any unusual cases which may develop under this division and not covered by the regulations set forth in the foregoing provisions of this division may be considered individually and referred to the council for its specific action.

(Ord. No. 14333, § 1(Att. 3), 10-15-2012)

Sec. 70-108. Reimbursement of costs for infrastructure construction.

The city may participate in the cost of improvements to streets, sidewalks, water system components, sewage collection and disposal systems (except as provided in section 70-106), storm sewer and drainage systems, or any parts thereof ("infrastructure") to be constructed or installed by developers to the extent that the infrastructure is constructed to a greater length, width, capacity or quality at the city's request to meet city needs, and not required by the development project. The city manager is authorized to enter into cost sharing agreements with developers to make these infrastructure improvements. The city's financial contribution under a cost sharing agreement shall be calculated as the reasonable estimated cost to the developer to provide the greater length, width, capacity or quality of infrastructure that the city has requested and shall not include the cost that the developer would have incurred due to the development project without the greater length, width, capacity or quality requested by the city. The city manager may execute such cost sharing agreements so long as the city's contribution pursuant to the agreement is within the authority to execute construction and repair contracts that has been delegated to the city manager. If the city's contribution under a cost sharing agreement exceeds the city manager's delegated authority, then city council approval of the cost sharing agreement is required. This section shall not apply to participation in construction contracts with other units of local government. Participation in construction contracts with other units of local government shall require an interlocal agreement pursuant to G.S. 160A-460 et seq.

(Ord. No. 14333, § 1(Att. 3), 10-15-2012; Ord. No. 14497, § 1, 9-3-2013)

Editor's note—Ord. No. 14497, § 1, adopted September 3, 2013, amended the title of § 70-108 to read as set out herein. Previously § 70-108 was titled reimbursement of costs for water and sewer construction.

Sec. 70-109. Utility extension outside the city conditioned upon voluntary annexation into the city.

City council may approve or disapprove water mains, sewer mains, water service connections, sewer service connections, or both, ("utility service") in its discretion to property currently outside the city's corporate limits petitioning for such service upon the conditions established by this section.

Developers shall submit a written application to the city department of water management to request a utility statement. The department of water management shall issue a utility statement for a project that identifies the required utility extensions, upgrades, renovations, force mains and lift stations that will be required to serve the project ("improvements"). The improvements identified in the utility statement will be integrated into a utility extension agreement between the city and developer. The utility extension agreement will govern the terms for the extension of utilities to the project, and in no way shall the utility statement alter the obligations of the parties to a utility extension agreement. The issued utility statement shall be attached to an application for a utility extension agreement and shall be submitted concurrently with a petition for annexation. The city will charge an application fee for a utility statement. A single family residential house or duplex located on a lot of record, that is not being developed through the subdivision of property, shall be exempt from submitting an application for a utility statement, but shall be required to follow all other requirements of this section.

Utility service shall be provided pursuant to utility extension agreements approved by city council, which shall be brought to the city council on such schedule as is determined appropriate by the city manager. Utility extension agreements shall include those terms and conditions that city council determines, in its discretion, to be in the interests of the city, and that address potential impacts of the proposed development on the city and/or its citizens. Such terms and conditions may address, in addition to the water and/or sewer service requested, other utilities, and associated regulations within the city, such as stormwater. At a minimum, utility extension agreements shall ensure that:

(1) Water, sewer, and stormwater infrastructure is constructed to fully address all impacts of the development, and, in addition, to meet city requirements, which may include but are not limited to the sizing of infrastructure to best meet the city's needs for the efficient and effective provision of services. Where approved by the city, payments toward the construction of shared infrastructure to be built by the city or a private developer may be accepted in lieu of construction of such infrastructure by the petitioning property;

(2) Annexation of properties receiving utility service shall be required, except as provided in division 3 of this article. A valid petition for annexation, with supporting materials as required by the city, shall be submitted on a timetable directed by the city, and the petition and supporting materials shall be updated as necessary to maintain the validity of the petition until final action on the annexation is taken by

the city council. The city's obligations under a utility extension agreement shall be effective upon the date an annexation becomes effective, unless the council specifically approves an earlier date;

(3) Annexed property shall be subject to all city regulations, requirements, standards, and policies existing as of the effective date of the annexation; to zoning as determined by the city council; and to capital facilities and impact fees in accordance with city schedules for all development within the annexed property, whether constructed before or after annexation;

(4) The utility extension and cost of compliance with the utility extension agreement shall be at no cost to the city and, among other things, all costs of design, environmental studies, permitting, construction, and legal costs shall be borne by the property owner, unless the city makes the determination to participate in all or a portion of the costs;

(5) Infrastructure that is connected to the city system, and the associated underlying land, shall be dedicated to the city as may be required by city policy;

(6) An approved utility extension agreement shall be binding on future owners of the property.

The above requirements do not apply to utility agreements with other governmental units. The city manager or designee shall develop policies and procedures to implement these requirements, as well as other necessary requirements.
(Ord. No. 14333, § 1(Att. 3), 10-15-2012; Ord. No. 15440, § 1, 3-18-2019; Ord. No. 15465, § 1, 5-20-2019)

Secs. 70-110—70-126. Reserved.

DIVISION 3. OUTSIDE THE CITY WITHOUT ANNEXATION INTO THE CITY*

Sec. 70-127. Agreement with Town of Cary relating to water and sewer service areas, etc.

The city council of the city hereby adopts the ordinance from which this section is derived [Ord. No. 10900, adopted August 19, 1996] approving the agreement entitled "Agreement Between Cary and Durham Defining Water and Sewer Service Areas, Annexation Boundar-

*__Editor's note—__Ord. No. 14333, § 1(Att. 3), adopted October 15, 2012, repealed and reenacted division 3 in its entirety to read as herein set out. Formerly, division 3, §§ 70-125—70-129, pertained to water and sewer main extensions outside city, and derived from the Code of 1964, § 18-60; the Code of 1982, § 23-83.1; Ord. No. 4967, §§ 1, 2, adopted August 7, 1978; Ord. No. 5255, § 1, adopted September 4, 1979; Ord. No. 5334, § 1, adopted February 18, 1980; Ord. No. 5335, § 1, adopted February 18, 1980; Ord. No. 6247, § 1, adopted December 19, 1983; Ord. No. 6833, §§ 1—5, adopted November 18, 1985; Ord. No. 10900, adopted August 19, 1996; Ord. No. 13479, § 1, adopted September 17, 2007; Ord. No. 13574, Pt. 1, adopted April 7, 2008, and Ord. No. 14063, § 1, adopted October 18, 2010.

ies, and Conditions for the Purchase of Water," and authorizes the ordinance from which this section is derived to be codified as this section, and to be considered also as a resolution in compliance with G.S. 160A-461.
(Ord. No. 14333, § 1(Att. 3), 10-15-2012)

Sec. 70-128. Agreement with Town of Morrisville relating to water and sewer service areas, etc.

The city council of the city hereby adopts the ordinance from which this section is derived [Ord. No. 11246, adopted September 2, 1997] approving the agreement entitled "Agreement between Morrisville and Durham Defining Water and Sewer Service Areas and Annexation Boundaries" and authorizes the ordinance from which this section is derived to be codified as this section and to be considered also as a resolution in compliance with G.S. 160A-461.
(Ord. No. 14333, § 1(Att. 3), 10-15-2012)

Sec. 70-129. Conditions to be complied with in extending city water and sewer service outside the city.

City council may approve or disapprove water mains, sewer mains, water service connections, or sewer service connections ("utility service") in its discretion to property outside the city's corporate limits petitioning for such service upon the conditions established by this section. Utility extension agreements shall be required for utility service provided pursuant to this section.

Developers shall submit a written application to the city department of water management to request a utility statement. The department of water management shall issue a utility statement for a project that identifies the required utility extensions, upgrades, renovations, force mains and lift stations that will be required to serve the project ("improvements"). The improvements identified in the utility statement will be integrated into a utility extension agreement between the city and developer. A utility extension agreement will govern the terms for the extension of utilities to a project, and in no way shall the utility statement alter the obligations of the parties to a utility extension agreement. The issued utility statement shall be attached to an application for a utility extension agreement and submitted concurrently with a petition for annexation. The city will charge an application fee for a utility statement. A single family residential house or duplex located on a lot of record, that is not being developed through the subdivision of property, shall be exempt from submitting an application for a utility statement, but shall be required to follow all other requirements of this section.

Utility extension agreements shall include those terms and conditions that the city determines are in the interests of the city, and that address potential impacts of the proposed development on the city and/or its citizens. Such terms and conditions may address, in addition to the water and/or sewer service requested, other utilities, and associated

regulations within the city, such as stormwater. The city water distribution system and sewage collection system shall not be extended beyond the limits of the city or without voluntary annexation into the city except:

(1) Pursuant to an effective and valid contract, agreement, complete residential building permit submission and approval, or city council resolution entered into by city council or passed by city council prior to October 15th 2012; or

(2) Water to properties within the legal boundaries of Research Triangle Park, NC; or

(3) To public properties; or

(4) To extensions for water mains extended outside the city to complete a loop in the water distribution system to assure adequate water quality or pressure to an area inside the city; or

(5) To individual properties outside the city for which an assessment for a main extension has already been levied; or

(6) A limited exception to the voluntary annexation requirement may be provided to property located in an economic development zone that is established pursuant to an interlocal cooperation agreement entered into between the City of Durham and another unit of local government. For individual properties within this category, city council may in its sole discretion allow the extension of utility service without requiring annexation based upon the city's assessment of the ease or difficulty of serving the property with other municipal services; or

(7) To properties with verified water supplies of unsatisfactory quality, a collapsed well, unsatisfactory water supply quantity, or on-site sanitary sewer systems that are a verified health hazard as demonstrated through documentation from Durham County Health Department or the North Carolina Department of Environmental Quality (NCDEQ) and determined to be sufficient by the Public Works Director.

Utility extension agreements for the extension of the water distribution system and sewage collection system to serve properties with documented water supplies of unsatisfactory quality or on-site sanitary sewer systems that are a verified health hazard may be executed by the city manager or delegee, and do not require city council approval. Any such extension shall be made in accordance with the following conditions:

a. Construction of authorized extensions shall be in accordance with all applicable policies, standards and specifications of the city;

b. The utility extension agreement shall require that any future enlargement of the water or sewer service or the future proposed addition of additional water or sewer services to the property will require either a new utility extension agreement or a modification of the existing utility extension agreement pursuant to the modification requirements in the utility extension agreement. The new utility extension agreement or modified utility extension agreement

shall be subject to city council approval, as determined by the City Manager of Durham, and the property to which the utility extension will serve may be subject to annexation at the discretion of city council;

c. The city shall bear no part of the construction cost of extensions beyond the city limits to serve a school or industry. No refund policy shall apply to such lines unless specifically stated in the extension agreement;

d. The city may participate in the construction cost of extensions made pursuant to this subsection (7) provided such extension request is accompanied by a signed petition that meets the requirements of article 7, section 77, paragraph (7) of the City Charter. The question of city participation shall be determined by city council for each project. In no case shall assessments be less than the standard rate established for extensions outside the city.

(8) To individual lots of record of 20 acres or less, that are not contiguous to the city's corporate limits, that were platted prior to July 1, 2012, or recombined, but not subdivided, and platted after July 1, 2012, and that serve no more than two residential units and that are located within 500 feet of existing water and/or sewer lines that were constructed as part of a development project that was approved without an annexation requirement.

(9) City council, in its sole discretion, may excuse the annexation requirement, when the annexation of property pursuant to an annexation petition would create an enclave or the property to be annexed is not contiguous to the city's existing corporate limits, and one or both of the following findings is made:

a. The development of the property proposed for annexation is found to not be revenue positive based on a fiscal impact analysis conducted by the city's budget and management services department; or

b. A city department has identified an operational impact associated with the provision of a city service to the property proposed for annexation.

(10) Except as provided in this section, conditions to be complied with in extending city water and sewer service outside the city. No sewer or water extension shall be granted to serve any property outside of the Urban Growth Boundary as adopted by the city council in the Durham Comprehensive Plan.

(Ord. No. 14333, § 1(Att. 3), 10-15-2012; Ord. No. 14897, 3-7-2016; Ord. No. 15220, 10-16-2017; Ord. No. 15440, § 1, 3-18-2019; Ord. No. 15465, § 1, 5-20-2019; Ord. No. 16488, §§ 1, 2, 4-21-2025)

Secs. 70-130—70-154. Reserved.

DIVISION 4. SEWER EXTENSION PERMIT PROGRAM

Sec. 70-155. Definitions and general provisions.

(a) *Definitions.* The following terms, whether or not capitalized, as used in this division are defined as follows:

City sewer system means the portion of the facilities owned by the city which are used to collect and carry wastewater to a city-owned treatment plant but does not include the plant, pumping stations, or force mains.

Commission means the North Carolina Environmental Management Commission.

DENR means the North Carolina Department of Environment and Natural Resources.

Documents include writings, drawings, graphs, charts, photographs, phono-records, and other data compilations from which information can be obtained, translated if necessary through detection devices into reasonably usable form.

Engineer means the city engineer or the city engineer's designee, except in the fourth sentence of section 70-156(b). If the position of engineer is vacant, the city manager shall promptly designate an individual to act temporarily as engineer for purposes of this division.

Permit means a permit issued pursuant to this division.

Person and *sewer system* have the meanings stated in G.S. 143-212 and 143-213, as amended from time to time.

To include (the verb) in all its form is used without limitation.

Utility service area is the area described in G.S. 143-215.1(f) as the "service area" for a municipality.

(b) *General provisions.* Unless otherwise provided, service of a document pursuant to this division shall be done by first-class, registered, or certified mail or by any of the means authorized by G.S. 1A-1, Rule 4.
(Code 1982, § 23-84; Ord. No. 10593, § 1, 9-5-1995)

Sec. 70-156. When permit required; city standards; technical requirements.

(a) *Work for which permit required.* No person shall do any of the following things or carry out any of the following activities until or unless such person shall have applied for and shall have received from the city a permit therefor and shall have complied with such conditions, if any, as are prescribed by such permit:

(1) Construct any sewer system within the city's utility service area if the system is proposed to be connected with the city sewer system;

(2) Alter, extend, or change the construction or method of operation of any sewer system within the city's utility service area if the system is, or is proposed to be, connected with the city sewer system; or

(3) Enter into a contract for the construction and installation, or the alteration or extension, of any sewer system that both is within the city's utility service area and is proposed to be connected with the city sewer system.

(b) *City standards.* The engineer shall issue, and modify as needed, technical standards (hereinafter "the city standards") applicable to all work required to be permitted pursuant to this division. The standards shall be effective only when approved in writing by DENR. All of the work referred to in subsection (a) of this section shall be designed and constructed in conformity with applicable provisions of the city standards. The plans and specifications for all construction, extensions, alterations, and changes shall be prepared by or under the direct supervision of an engineer licensed to practice in the state.

(c) *Compliance with state requirements.* The engineer shall cause the city standards and all other requirements for issuance of permits to be at least as stringent as G.S. 143-211 et seq., and the rules implementing said statute. Without further action by the city council, all future amendments to the rules implementing said statute shall be incorporated into the city's permit process and requirements on the 60th day after the effective date of such future amendments. The engineer shall see that the city complies with those rules, as amended. In order to put the provisions of this division into effect, the engineer shall have the authority to establish procedures not inconsistent with it or other ordinances of the city.
(Code 1982, § 23-85; Ord. No. 10593, § 1, 9-5-1995)

Sec. 70-157. Processing of applications.

(a) *Form of applications.* The engineer shall determine the form of and information required to be in applications. The applications shall include the following: The names and addresses of the applicant and of the engineering firm certifying the application; the quantity of wastewater expected to be generated by the project, broken down as domestic, commercial, industrial, and other; the size and slope of the proposed sewer pipe; whether the sewer pipe will be subject to traffic-bearing loads and if so, whether measures have been taken to enable them to withstand the loads; whether the infiltration/exfiltration test rate exceeds allowable standards; whether appropriate measures have been taken to protect manholes from flooding; other information that the engineer determines is needed to assess whether the work will be in accordance with the city standards; and a nonrefundable payment in the amount set by the city council. The city council may provide that the city shall pay no application fee when it is the applicant.

(b) *Action on applications.* The engineer shall notify the applicant in writing when an application is complete. All applications for new permits and for renewals of existing permits under this division, and all permits and renewals, shall be in writing. The engineer shall act on a permit application within 90 days after the applicant submits all information required by the engineer. The engineer may conduct any inquiry or investigation that the engineer considers necessary before acting on an application and may require an applicant to submit plans, specifications, and other information the engineer considers necessary to evaluate the application. Permits and renewals shall be effective until the event (which may include lack of

sustained progress on the permitted work) or expiration date specified therein or until suspended, modified, or revoked pursuant to the City Code or otherwise as provided by law. A permit may contain such conditions as the engineer determines to be reasonably necessary. The engineer's decision to grant, deny, or grant with conditions shall be based upon the design, capacity, and manner of operation of the city sewer system; applicable rules, regulations, statutes, and ordinances of all governmental entities; and the city standards. Permits are not transferable. The director shall send notice of and a copy of each application for a permit to DENR. The director shall send copies of approved permits and plans to DENR upon request by the commission.

(c) *Information provided in case of denial.* The denial of an application for a permit or renewal shall be made in writing and shall state the city's estimate of the changes in the applicant's proposed activities or plans which will be required in order that the applicant may obtain a permit. If the applicant makes those changes, nothing in the estimate shall preclude the city from denying a permit or renewal because of changed circumstances or information not previously known by the engineer. The preceding sentence is not to be construed so as to lessen the authority of the city to deny a permit or renewal.
(Code 1982, § 23-86; Ord. No. 10593, § 1, 9-5-1995)

Sec. 70-158. Enforcement.

(a) *Suspension, revocation, and modification.* The engineer may suspend, revoke, or modify a permit, which action shall be effective 30 days after service of a notice stating good cause. Good cause includes:

(1) Violation of the permit;

(2) Obtaining a permit by misrepresentation or failure to disclose fully all relevant facts; or

(3) Refusal of the permittee or its contractors, agents, or employees to allow authorized employees of the city upon presentation of credentials to inspect or observe any work authorized or required by the permit.

(b) *Civil penalty.* The engineer's designee may assess a civil penalty of not more than $10,000.00 against any person who is required but fails to apply for or to secure a permit or who violates or fails to act in accordance with the terms, conditions, or requirements of a permit. If any action or failure to act for which a penalty may be assessed under this division is continuous, the engineer's designee may assess a penalty not to exceed $10,000.00 per day for so long as the violation continues. Penalties up to the maximum authorized may be based on any one or combination of the following factors:

(1) The degree and extent of harm to the natural resources of the state, to the public health, or to private property resulting from the violation;

(2) The duration and gravity of the violation;

(3) The effect on groundwater or surface water quantity or quality or on air quality;

(4) The cost of rectifying the damage;

(5) The amount of money saved by noncompliance;

(6) Whether the violation was committed willfully or intentionally;

(7) The prior record of the violator in complying or failing to comply with programs over which the commission has regulatory authority; and

(8) The cost to the city of the enforcement procedures.

The engineer's designee shall serve each person assessed a civil penalty with a notice of the assessment and the specific reasons therefor by registered or certified mail, or by any means authorized by G.S. 1A-1, Rule 4. The penalty shall be due 35 days after the date of the notice.

(c) *Remission of civil penalty.* Consistent with the limitations in subsection (b) of this section, requests to remit the civil penalty may be resolved by the engineer and the violator. Requests for remission of civil penalties shall be served on the engineer. Remission requests shall not be considered unless served on the engineer within 30 days of the date of the notice of assessment. Remission requests must by accompanied by a waiver of the right to an administrative review hearing of the penalty and a stipulation of the facts on which the assessment was based. If the engineer and the violator are unable to resolve the request, the engineer shall deliver remission requests and the engineers recommended action to the city manager. In determining whether a remission request will be approved, the city manager shall consider the recommendation of the engineer and the following factors:

(1) Whether one or more of the civil penalty assessment factors in subsection (b) of this section were wrongly applied to the detriment of the petitioner;

(2) Whether the violator promptly abated continuing environmental damage resulting from the violation;

(3) Whether the violation was inadvertent or a result of an accident;

(4) Whether the violator had been assessed civil penalties for any previous violations; and

(5) Whether payment of the civil penalty will prevent payment for the remaining necessary remedial actions.

The city manager may remit the entire amount of the penalty only when neither the commission nor any entity in its capacity of administering a general permit program pursuant to G.S. 143-215.1(f) has assessed the violator civil penalties for previous violations, and when payment of the civil penalty will prevent payment for the remaining necessary remedial actions.

(d) *Equitable relief; civil actions; remedies nonexclusive.* The city manager is authorized to seek equitable relief, including injunctive relief, to prevent violations of the terms of a permit or of this division. The city manager is authorized to commence civil actions to collect civil penalties or to seek equitable relief in any appropriate division of the general court of justice in any appropriate county. To the extent allowed by law, the procedures and remedies of civil

penalties and actions, including equitable relief, may be used in combination or singly. The city manager shall not commence a civil action to collect a civil penalty until the administrative review has been completed.
(Code 1982, § 23-87; Ord. No. 10593, § 1, 9-5-1995)

Sec. 70-159. Administrative review; judicial review.

(a) *Right to administrative review.* The following persons are entitled to administrative review: (1) Any applicant denied a permit or any permittee whose permit is made subject to conditions which are unacceptable to the applicant; (2) any permittee that has received notice that its permit has been suspended, revoked, or modified; and (3) any person assessed a civil penalty pursuant to section 70-158(b). Any person entitled to administrative review pursuant to this section shall serve a demand for administrative review to the engineer within 30 days of the date of the notice of the action complained of, or the administrative review shall be deemed waived. The following information must be included in the demand, or the administrative review shall be deemed waived. For the administrative review to consider:

(1) The denial of a permit, the applicant must identify separately each reason for denying the permit that the applicant contends to be improper and every basis for such contention;

(2) A permit granted subject to unacceptable conditions, the applicant must identify separately each unacceptable condition and every basis for such contention;

(3) The modification or revocation of a permit, the permittee must state separately each reason for modifying or revoking the permit that the permittee contends to be improper and every basis for such contention;

(4) A civil penalty assessment, the person to whom such penalty was assessed must state separately each reason why such penalty should not be assessed, or if the person contends that the civil penalty was assessed in an improper amount, each reason why the amount of the penalty is improper.

The person seeking review shall be deemed to have waived the right to raise any reason, basis, or allegedly improper condition that is required to be stated in the demand unless it is specified in the demand.

(b) *Nature of administrative review; procedure.* The administrative review shall include a hearing conducted by a hearing officer, who shall be the engineer or some other unbiased person designated by the engineer. The person seeking review may appear personally and through representatives and may arrange for persons with pertinent knowledge to provide information to the hearing officer. The hearing shall be held and a decision issued by the hearing officer within 90 days of the receipt of the written demand for a hearing. If the hearing is to consider the suspension, modification, or revocation of a permit, the hearing officer shall attempt to hold the hearing and issue a decision within ten days of the receipt of the written demand for a hearing. The hearing officer may affirm, reverse, or modify the action appealed from and shall serve notice of the decision on the person who sought the hearing. When the

hearing officer's decision is to deny a permit, to grant a permit with conditions, to modify a permit, to revoke a permit, or to affirm a civil penalty in whole or in part, the person who sought the hearing, in order to complete the administrative review process, shall serve the engineer within ten days of the date of the decision with notice that said person is dissatisfied with the decision. Within 15 days of the service of said notice of dissatisfaction, the hearing officer shall prepare, and the engineer shall serve on said person, findings with respect to the decision. The hearing officer's decision, including findings if any, shall constitute the final decision of the city for purposes of administrative review.

(c) *Rules.* The engineer may propose rules concerning the conduct of the hearing that is provided pursuant to subsection (b) of this section and concerning any other matter associated with the hearing. The rules shall become effective upon approval by the city manager.

(d) *Transcript of administrative review hearing.* The hearing officer may, and if requested by the person seeking review shall, provide for any part of the hearing to be recorded. The hearing officer may select audio, video, or writing as the means of recording. A transcript of any hearing, or part thereof, which is recorded need not be prepared unless requested. If the person seeking review requests that a transcript be prepared, the engineer shall arrange for the preparation, and the person seeking review shall bear the preparation cost. If a transcript is prepared, a licensed court reporter shall prepare the transcript, unless all parties and the engineer agree otherwise. The engineer shall require the person seeking review to post an advance deposit sufficient to defray said cost. If the person seeks judicial review pursuant to section 42-159(e), said person shall provide the original transcript to the engineer at no cost to the city.

(e) *Judicial review.* Any person who had a right to administrative review pursuant to section 42-159(a) may petition for judicial review, but only after having exhausted administrative review, including giving a notice of dissatisfaction and receiving findings. For purposes of the right to petition for judicial review, making a remission request pursuant to section 70-158(c) shall not be considered part of administrative review. When the hearing officer's decision is to deny a permit or grant it with conditions, or to affirm a civil penalty in whole or in part, service of a notice of dissatisfaction shall be considered part of administrative review. If the person made a request for remission of a civil penalty pursuant to section 70-158(c), there shall be no judicial review of the civil penalty. Judicial review shall be obtained by filing a written petition within 30 days after the service by the engineer of the findings which the hearing officer issued regarding the action complained of, but not thereafter, with the superior court of Durham County. The petition shall specifically and with particularity state the grounds for claiming that the decision of the hearing officer is contrary to law. If not previously requested, said person shall request in writing, at or before the date of filing the petition with the superior court, that a transcript be prepared for every part of the administrative hearing that was recorded. A copy of the petition shall be served on the city in the manner required by law. Within 30 days after service of a copy of the petition upon the city or such other time as may be ordered by the court, the city shall prepare and transmit to the court the original or a

certified copy of the official record of the hearing as hereinafter set forth. Unless the city manager and the persons seeking judicial review agree otherwise, the official record of the administrative hearing shall include:

(1) The documents presented by the petitioner at the administrative hearing;

(2) The documents considered by the hearing officer in reaching the decision complained of;

(3) The decision and findings of the hearing officer; and

(4) The transcript of each part of the hearing that was recorded, if available at the time the remaining portion of the official record is transmitted to the court. If the transcript is not available at that time, it shall be transmitted to the court as soon as reasonably possible after the transcript has been prepared.

The court may consider the official record, the City Code of the city, and the city standards, and shall not consider additional evidence. Except to the extent otherwise required by law, the judicial review shall be limited to contentions properly raised in the administrative review, and the court shall remand the decision for appropriate further proceedings if the court finds the decision is: (1) in violation of constitutional provisions, (2) in excess of the statutory authority or jurisdiction of the city, (3) made upon unlawful procedure, (4) affected by other error of law, (5) unsupported by substantial evidence in view of the entire record as submitted, the City Code, and the city standards, or (6) arbitrary and capricious. The city manager shall have the authority to settle and compromise, on behalf of the city, any of said proceedings filed in the superior court.

(Code 1982, § 23-88; Ord. No. 10593, § 1, 9-5-1995)

Secs. 70-160—70-186. Reserved.

ARTICLE IV. WATER AND SEWER SYSTEMS*

DIVISION 1. GENERAL PROVISIONS

Sec. 70-187. Purpose and policy.

This article sets forth uniform requirements for direct and indirect contributors into the wastewater collection and treatment system for the city, hereafter referred to as the city, and

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***Editor's note—**Ord. No. 13523, adopted December 17, 2007, amended article IV, divisions 1—12 in its entirety to read as herein set out. Formerly, article IV pertained to permissive and prohibited use of public sewers, and derived from the Code of 1982, §§ 23-90—23-136; Ord. No. 10406, adopted March 6, 1995; Ord. No. 12044, § 1, adopted September 5, 2000, and Ord. No. 12416, § 1, adopted October 15, 2001.

Ord. No. 13693, § 1, adopted September 15, 2008, states the following: "The City Council adopted ordinance 13523 on December 17, 2007, effective January 1, 2008. The ordinance rewrote the article of the City Code titled "Permissive and Prohibited Use of Public Sewers" by rewriting sections 23-90 through 23-134 of the City Code. It was intended that the ordinance repeal 1982 City Code section 23-135 (Surcharges) (2008 City Code section 70-468), 1982 City Code section 23-136 (Program Administration Fees) (2008 City Code section 70-469), and 1982 City-Code section 23-137 (Severability; Conflict), but it did not explicitly repeal them. The purpose of this ordinance is to explicitly repeal those sections."

enables the city to comply with all applicable state and federal laws, including the Clean Water Act (33 United States Code § 1251 et seq.) and the General Pretreatment Regulations (40 CFR, Part 403).

The objectives of this article are:

(1) To prevent the introduction of pollutants and wastewater discharges into the municipal wastewater system which will interfere with the operation of the system or contaminate the resulting sludge;

(2) To prevent the introduction of pollutants and wastewater discharges into the municipal wastewater system which will pass through the system, inadequately treated, into any waters of the state or otherwise be incompatible with the system;

(3) To promote reuse and recycling of industrial wastewater and sludges from the municipal system;

(4) To protect both municipal personnel who may be affected by sewage, sludge, and effluent in the course of their employment as well as protecting the general public;

(5) To provide for equitable distribution of the cost of operation, maintenance and improvement of the municipal wastewater system; and

(6) To ensure that the municipality complies with its NPDES or non-discharge permit conditions, sludge use and disposal requirements and any other federal or state laws to which the municipal wastewater system is subject.

This article provides for the regulation of direct and indirect contributors to the municipal wastewater system, through the issuance of permits to certain non-domestic users and through enforcement of general requirements for the other users, authorizes monitoring and enforcement activities, requires user reporting and provides for the setting of fees for the equitable distribution of costs resulting from the program established herein.

This article shall apply to all users of the municipal wastewater system, as authorized by G.S. 160A-312 and/or 153A-275. The city shall designate an administrator of the publicly owned treatment works or POTW and pretreatment program hereafter referred to as the director. Except as otherwise provided herein, the director shall administer, implement, and enforce the provisions of this article. Any powers granted to or imposed upon the director may be delegated by the director to other city personnel. By discharging wastewater into the municipal wastewater system, industrial users located outside the city limits agree to comply with the terms and conditions established in this article, as well as any permits, enforcement actions, or orders issued hereunder.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-188. Definitions and abbreviations.

(a) Unless the context specifically indicates otherwise, the following terms and phrases whether capitalized or not capitalized, as used in this article, shall have the following meanings:

Act or *the Act* means the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S.C. § 1251, et seq.

Approval authority means the director of the division of water quality of the state department of environment and natural resources or his designee.

Authorized representative of the industrial user.

(1) If the industrial user is a corporation, authorized representative shall mean:

a. The president, secretary, or a vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation, or

b. The manager of one or more manufacturing, production, or operation facilities, provided, the manager is authorized to make management decisions which govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for control mechanism requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

(2) If the industrial user is a partnership or sole proprietorship, an authorized representative shall mean a general partner or the proprietor, respectively.

(3) If the industrial user is a federal, state or local government facility, an authorized representative shall mean a director or highest official appointed or designated to oversee the operation and performance of the activities of the government facility, or their designee.

(4) The individuals described in subsections (1)—(3) may designate another authorized representative if the authorization is in writing, the authorization specifies the individual or position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the company, and the written authorization is submitted to the City.

(5) If the designation of an authorized representative is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, or overall responsibility for environmental matters for the company, a new authorization satisfying the requirements of this section must be submitted to the Director prior to or together with any reports to be signed by an authorized representative.

Biochemical oxygen demand (BOD) means the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedures for five days at 20° centigrade, usually expressed as a concentration (e.g. mg/l).

Building sewer means a sewer conveying wastewater from the premises of a user to the POTW.

Bypass means the intentional diversion of waste streams from any portion of a user's treatment facility.

Categorical standards means the national categorical pretreatment standards or pretreatment standard.

Control authority refers to the POTW organization if the POTW organization's pretreatment program approval has not been withdrawn.

Director means the director of water management for the city who is designated by the city to supervise the operation of the publicly owned treatment works and who is charged with certain duties and responsibilities by this article for the pretreatment program and enforcement of this article. The director may further delegate in writing his/her authority to other city employees.

Environmental Protection Agency or *EPA* means the U.S. Environmental Protection Agency, or where appropriate the term may also be used as a designation for the administrator or other duly authorized official of said agency.

Grab sample means a sample which is taken from a waste stream on a one-time basis without regard to the flow in the waste stream and over a period of time not to exceed 15 minutes.

Holding tank waste means any waste from holding tanks, including but not limited to such holding tanks as vessels, chemical toilets, campers, trailers, septic tanks, and vacuum-pump tank trucks.

Indirect discharge or *discharge* means the discharge or the introduction from any nondomestic source regulated under section 307(b), (c), or (d) of the Act, (33 U.S.C. 1317), into the POTW (including holding tank waste discharged into the system).

Industrial user means any person which is a source of indirect discharge.

Interference means the inhibition, or disruption of the POTW collection system, treatment processes, operations, or its sludge process, use, or disposal, which causes or contributes to a violation of any requirement of the control authority's NPDES or non-discharge permit or prevents sewage sludge use or disposal in compliance with specified applicable state and federal statutes, regulations, or permits. The term includes prevention of sewage sludge use or disposal by the POTW in accordance with section 405 of the Act, (33 U.S.C. 1345) or any criteria, guidelines, or regulations developed pursuant to the Solid Waste Disposal Act (SWDA)(42 U.S.C. § 6901, et seq.), the Clean Air Act, the Toxic Substances Control Act, the Marine Protection Research and Sanctuary Act (MPRSA) or more stringent state criteria (including those contained in any state sludge management plan prepared pursuant to Title IV of SWDA) applicable to the method of disposal or use employed by the POTW.

Medical waste means isolation wastes, infectious agents, human blood and blood products, pathological wastes, sharps, body parts, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes, and dialysis wastes.

North American Industry Classification Standard (NAICS) means a classification pursuant to the NAICS manual issued by the executive office of the President, Office of Management and Budget, 1997.

National categorical pretreatment standard or *categorical standard* means any regulation containing pollutant discharge limits promulgated by EPA in accordance with sections 307(b) and (c) of the Act (33 U.S.C. § 1317) which applies to a specific category of industrial users, and which appears in 40 CFR Chapter 1, Subchapter N, Parts 405—471.

National prohibitive discharge standard or *prohibitive discharge standard* means absolute prohibitions against the discharge of certain substances; these prohibitions appear in section 70-216 and are developed under the authority of 307(b) of the Act and 40 CFR, section 403.5.

New source means:

(1) Any building, structure, facility, or installation from which there may be a discharge of pollutants, the construction of which commenced after the publication of proposed categorical pretreatment standards under section 307(c) of the Act which will be applicable to such source if such standards are thereafter promulgated in accordance with section 307(c), provided that:

a. The building, structure, facility, or installation is constructed at a site at which no other source is located;

b. The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or

c. The production or wastewater generating processes of the building, structure, facility, or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source, should be considered.

(2) Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility, or installation meeting the criteria of subsections (1)b. or c. but otherwise alters, replaces, or adds to existing process or production equipment.

(3) For purposes of this definition, construction of a new source has commenced if the owner or operator has:

a. Begun, or caused to begin, as part of a continuous on-site construction program:

1. Any placement, assembly, or installation of facilities or equipment; or

2. Significant site preparation work including clearing, excavation, or removal of existing buildings, structures or facilities which is necessary for the placement, assembly, or installation of new source facilities or equipment; or

b. Entered into a binding contractual obligation for the purchase of facilities or equipment which are intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this definition.

Noncontact cooling water means water used for cooling which does not come into direct contact with any raw material, intermediate product, waste product, or finished product.

National pollution discharge elimination system permit or *NPDES permit* means a permit issued pursuant to section 402 of the Act (33 U.S.C. § 1342), or pursuant to G.S. 143-215.1 by the state under delegation from EPA.

Non-discharge permit means a disposal system permit issued by the state pursuant to G.S. 143-215.1(d) for a waste which is not discharged directly to surface waters of the state or for a wastewater treatment works which does not discharge directly to surface waters of the state.

Pass through means a discharge which exits the POTW into waters of the state in quantities or concentrations which, alone or with discharges from other sources, causes a violation, including an increase in the magnitude or duration of a violation, of the control authority's POTW's NPDES, collection system or non-discharge permit, or a downstream water quality standard even if not included in the permit.

Person means any individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity or any other legal entity, or their legal representatives, agents or assigns. This definition includes all federal, state, and local government entities.

pH means a measure of the acidity or alkalinity of a substance, expressed as standard units, and calculated as the logarithm (base 10) of the reciprocal of the concentration of hydrogen ions expressed in grams per liter of solution.

Pollutant means any "waste" as defined in G.S. 143-213(18) and dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, medical wastes, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt and industrial, municipal, and agricultural waste and certain characteristics of wastewater (e.g., pH, temperature, TSS, turbidity, color, metals, BOD, COD, toxicity, and odor).

POTW treatment plant means that portion of the POTW designed to provide treatment to wastewater.

Pretreatment means the reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater prior to or in lieu of discharging or otherwise introducing such pollution into a POTW collection system and/or treatment plant. The reduction or alteration can be obtained by physical, chemical or biological

processes, or process changes or other means, except by diluting the concentration of the pollutants unless allowed by an applicable pretreatment standard as defined in 40 CFR 403.6(d).

Pretreatment program means the program for the control of pollutants introduced into the POTW from non-domestic sources which was developed by the city in compliance with 40 CFR 403.8 and approved by the approval authority as authorized by G.S. 143-215.3(a)(14) in accordance with 40 CFR 403.11.

Pretreatment requirements means any substantive or procedural requirement related to pretreatment, other than a pretreatment standard.

Pretreatment standards means any prohibited discharge standard, categorical standard, or local limits which applies to an industrial user.

Publicly owned treatment works (POTW) or *municipal wastewater system* means a treatment works as defined by section 212 of the Act, (33 U.S.C. § 1292) which is owned in this instance by the city. This definition includes any devices or systems used in the collection, storage, treatment, recycling, and reclamation of municipal sewage or industrial wastes of a liquid nature. It also includes sewers, pipes, and other conveyances only if they convey wastewater to the POTW treatment plant. For the purposes of this article, "POTW" shall also include any sewers that convey wastewaters to the POTW from persons outside the city who are, by contract or agreement with the city, or in any other way, users of the POTW of the city.

Severe property damage means substantial physical damage to property, damage to the user's treatment facilities which causes them to become inoperable, or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

Significant industrial user or SIU means any industrial user that discharges wastewater into a publicly owned treatment works and that:

(1) Discharges an average of 25,000 gallons per day or more of process wastewater to the POTW (excluding sanitary, noncontact cooling and boiler blowdown wastewaters) or

(2) Contributes process wastewater which makes up five percent or more of the NPDES or non-discharge permitted flow limit or organic capacity of the POTW treatment plant. In this context, organic capacity refers to BOD, TSS, and ammonia; or

(3) Is subject to categorical pretreatment standards under 40 CFR Part 403.6 and 40 CFR Chapter I, Subchapter N, Parts 405-471; or

(4) Is designated as such by the control authority on the basis that the industrial user has a reasonable potential for adversely affecting the POTW's operations, or for violating any pretreatment standard or requirement, or for contributing to violations of the POTW's effluent limitations and conditions in its NPDES or non-discharge permit, or for contributing to violations of the POTW's receiving stream standard, or for limiting the POTW's sludge disposal options.

(5) Subject to division approval under 15A NCAC 02H .0907(b), the control authority may determine that an Industrial User meeting the criteria in subsections (1) and (2) has no reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standards or requirement, or for contributing to violations of the POTW's effluent limitations and conditions in its NPDES or non-discharge permit, or for contributing to violations of the POTW's receiving stream standard, or for limiting the POTW's sludge disposal options, and thus is not a significant industrial user.

(6) Subject to division approval under 15A NCAC 02H .0907(b), the control authority may determine that an Industrial User meeting the criteria in subsection (3) meets the requirements of 40 CFR Part 403.3(v)(2) and thus is a non-significant categorical industrial user.

(7) Subject to division approval under 15A NCAC 02H .0907(b), the control authority may determine that an industrial user meeting the criteria in subsection (3) meets the requirements of 40 CFR Part 403.12(e)(3) and thus is a middle tier significant industrial user. Sampling and inspection requirements may be cut in half as per 40 CFR Parts 403.8 (f)(2)(v)(C).and 403.12 (e)(3).

Significant noncompliance or *SNC* is the status of noncompliance of a significant industrial user when one or more of the following criteria are met. Additionally, any industrial user which meets the criteria in Subparagraph (a)(935), Parts (C), (D), or (H) shall also be SNC.

(1) Chronic violations. Chronic violations of wastewater discharge limits, defined here as those in which 66 percent or more of all the measurements taken for the same pollutant parameter (not including flow) during a six-month period exceed (by any magnitude) a numeric pretreatment standard or requirement including instantaneous limits, as defined by 40 CFR Part 403.3(1);

(2) Technical review criteria (TRC) violations, defined here as those in which 33 percent or more of all the measurements taken for the same pollutant parameter during a six-month period equal or exceed the product of the numeric pretreatment standard or requirement including instantaneous limits, as defined by 40 CFR Part 403.3(1) multiplied by the applicable TRC; (TRC = 1.4 for BOD, TSS, fats, oil and grease, 1.2 for all other pollutants (except flow and pH);

(3) Any other violation of a pretreatment standard or requirement as defined by 40 CFR Part 403.3(1) (daily maximum, long-term average, instantaneous limit, or narrative standard) that the control authority and/or POTW determines has caused, alone or in combination with other discharges, interference or pass through (including endangering the health of POTW personnel or the general public);

(4) Any discharge of a pollutant or wastewater that has caused imminent endangerment to human health, welfare or to the environment or has resulted in either the control authority's or the POTW's, if different from the control authority, exercise of its emergency authority under 40 CFR Part 403.8(f)(1)(vi)(B) and section 70-341 of this SUO to halt or prevent such a discharge;

(5) Violations of compliance schedule milestones, contained in a pretreatment permit or enforcement order, for starting construction, completing construction, and attaining final compliance by 90 days or more after the schedule date.

(6) Failure to provide reports for compliance schedule, self-monitoring data, baseline monitoring reports, 90-day compliance reports, and compliance reports within 30 days from the due date.

(7) Failure to accurately report noncompliance.

(8) Any other violation or group of violations that the control authority determines will adversely affect the operation or implementation of the local pretreatment program.

Slug load or *discharge* means any discharge at a flow rate or concentration which has a reasonable potential to cause interference or pass-through, or in any other way violates the POTW's regulations, local limits, or industrial user permit conditions. This can include but is not limited to spills and other accidental discharges; discharges of a non-routine, episodic nature; a non-customary batch discharge; or any other discharges that can cause a violation of the prohibited discharge standards in section 70-92.

Standard industrial classification (SIC) means a classification pursuant to the standard industrial classification manual issued by the Executive Office of the President, Office of Management and Budget, 1987.

Storm water means any flow occurring during or following any form of natural precipitation and resulting therefrom.

Suspended solids means the total suspended matter that floats on the surface of, or is suspended in, water, wastewater or other liquids, and which is removable by laboratory filtering.

Upset means an exceptional incident in which there is unintentional and temporary noncompliance with categorical pretreatment standards because of factors beyond the reasonable control of the user. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities lack of preventive maintenance, or careless or improper operation.

User means any person who contributes, causes or permits the contribution of wastewater into the city's POTW.

Wastewater means the liquid and water-carried industrial or domestic wastes from dwellings, commercial buildings, industrial facilities, mobile sources, treatment facilities and institutions, together with any groundwater, surface water, and storm water that may be present, whether treated or untreated, which are contributed into or permitted to enter the POTW.

Wastewater permit means the approval to discharge into the city sewer system that is required for certain users and is further described in this article.

Waters of the state means all streams, rivers, brooks, swamps, sounds, tidal estuaries, bays, creeks, lakes, waterways, reservoirs and all other bodies or accumulations of water, surface or underground, natural or artificial, public or private, which are contained within, flow through, or border upon the state or any portion thereof.

(b) This article is gender neutral and the masculine gender shall include the feminine and vice-versa.

(c) Shall is mandatory; may is permissive or discretionary.

(d) The use of the singular shall be construed to include the plural and the plural shall include the singular as indicated by the context of its use.

(e) The following abbreviations when used in this article, shall have the designated meanings:

(1)	BOD	Biochemical oxygen demand
(2)	CFR	Code of Federal Regulations
(3)	COD	Chemical oxygen demand
(4)	EPA	Environmental Protection Agency
(5)	gpd	Gallons per day
(6)	I	Liter
(7)	mg	Milligrams
(8)	mg/l	Milligrams per liter
(9)	N.C.G.S.	North Carolina General Statutes
(10)	NPDES	National pollution discharge elimination system
(11)	O & M	Operation and maintenance
(12)	POTW	Publicly owned treatment works
(13)	RCRA	Resource Conservation and Recovery Act
(14)	SIC	Standard industrial classification
(15)	SWDA	Solid Waste Disposal Act
(16)	TSS	Total suspended solids
(17)	TKN	Total Kjeldahl nitrogen
(18)	U.S.C	United States Code.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Secs. 70-189—70-215. Reserved.

DIVISION 2. GENERAL SEWER USE REQUIREMENTS

Sec. 70-216. Prohibited discharge standards

(a) *General prohibitions.* No user shall contribute or cause to be contributed into the POTW, directly or indirectly, any pollutant or wastewater which causes interference or pass through. These general prohibitions apply to all users of a POTW whether or not the user is a significant industrial user or subject to any national, state, or local pretreatment standards or requirements.

(b) *Specific prohibitions.* No user shall contribute or cause to be contributed into the POTW the following pollutants, substances, or wastewater:

(1) Pollutants which create a fire or explosive hazard in the POTW, including, but not limited to, waste streams with a closed cup flashpoint of less than 140° (60°) using the test methods specified in 40 CFR 261.21.

(2) Solid or viscous substances in amounts which will cause obstruction of the flow in the POTW resulting in interference but in no case solids greater than one-half-inch in any dimension.

(3) Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin, in amounts that will cause interference or pass through.

(4) Any wastewater having a pH less than 5.0 or more than 12.0 or wastewater having any other corrosive property capable of causing damage to the POTW or equipment.

(5) Any wastewater containing pollutants, including oxygen-demanding pollutants, (BOD, etc) in sufficient quantity, (flow or concentration) either singly or by interaction with other pollutants, to cause interference with the POTW.

(6) Any wastewater having a temperature greater than 150° (66°), or which will inhibit biological activity in the POTW treatment plant resulting in interference, but in no case wastewater which causes the temperature at the introduction into the treatment plant to exceed 104° (40°).

(7) Any pollutants which result in the presence of toxic gases, vapors or fumes within the POTW in a quantity that may cause acute worker health and safety problems.

(8) Any trucked or hauled pollutants, except at discharge points designated by the director in accordance with section 70-224.

(9) Any noxious or malodorous liquids, gases, or solids or other wastewater which, either singly or by interaction with other wastes, are sufficient to create a public nuisance or hazard to life or are sufficient to prevent entry into the sewers for maintenance and repair.

(10) Any substance which may cause the POTW's effluent or any other product of the POTW such as residues, sludges, or scums, to be unsuitable for reclamation and reuse or to interfere with the reclamation process. In no case, shall a substance discharged to the POTW cause the POTW to be in noncompliance with sludge use or disposal regulations or permits issued under section 405 of the Act; the Solid Waste Disposal Act, the Clean Air Act, the Toxic Substances Control Act, or state criteria applicable to the sludge management method being used.

(11) Any wastewater which imparts color which cannot be removed by the treatment process, including, but not limited to, dye wastes and vegetable tanning solutions, which consequently imparts sufficient color to the treatment plant's effluent to render

the waters injurious to public health or secondary recreation or to aquatic life and wildlife or to adversely affect the palatability of fish or aesthetic quality or impair the receiving waters for any designated uses.

(12) Any wastewater containing any radioactive wastes or isotopes except as specifically approved by the director in compliance with applicable state or federal regulations.

(13) Storm water, surface water, ground water, artesian well water, roof runoff, subsurface drainage, swimming pool drainage, condensate, deionized water, noncontact cooling water and unpolluted industrial wastewater, unless specifically authorized by the director.

(14) Fats, oils, or greases of animal or vegetable origin in concentrations greater than 250 mg/l.

(15) Any sludges, screenings or other residues from the pretreatment of industrial wastes.

(16) Any medical wastes, except as specifically authorized by the director in a wastewater discharge permit.

(17) Any material containing ammonia, ammonia salts, or other chelating agents which will produce metallic complexes that interfere with the municipal wastewater system.

(18) Any material that would be identified as hazardous waste according to 40 CFR Part 261 if not disposed of in a sewer except as may be specifically authorized by the director.

(19) Any wastewater causing the treatment plant effluent to violate state water quality standards for toxic substances as described in 15A NCAC 2B .0200.

(20) Wastewater causing, alone or in conjunction with other sources, the treatment plant's effluent to fail a toxicity test.

(21) Recognizable portions of the human or animal anatomy.

(22) Any wastes containing detergents, surface active agents, or other substances which may cause excessive foaming in the municipal wastewater system.

(23) At no time, shall two successive readings on an explosion hazard meter, at the point of discharge into the system (or at any point in the system) be more than five percent nor any single reading over ten percent of the lower explosive limit (LEL) of the meter.

Pollutants, substances, wastewater, or other wastes prohibited by this section shall not be processed or stored in such a manner that they could be discharged to the municipal wastewater system. All floor drains located in process or materials storage areas must discharge to the industrial user's pretreatment facility before connecting with the system.

When the director determines that a user(s) is contributing to the POTW, any of the above enumerated substances in such amounts which may cause or contribute to interference of POTW operation or pass through, the Director shall:

(1) Advise the user(s) of the potential impact of the contribution on the POTW in accordance with section 70-341; and

(2) Take appropriate actions in accordance with division 4 for such user to protect the POTW from interference or pass through.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-217. National categorical pretreatment standards.

Users subject to categorical pretreatment standards are required to comply with applicable standards as set out in 40 CFR Chapter 1, Subchapter N, Parts 405—471 and incorporated herein.

(1) Where a categorical pretreatment standard is expressed only in terms of either the mass or the concentration of a pollutant in wastewater, the director may impose equivalent concentration or mass limits in accordance with 40 CFR 403.6(c).

(2) When wastewater subject to a categorical pretreatment standard is mixed with wastewater not regulated by the same standard, the director shall impose an alternate limit using the combined wastestream formula in 40 CFR 403.6(e).

(3) A user may obtain a variance from a categorical pretreatment standard if the user can prove, pursuant to the procedural and substantive provisions in 40 CFR 403.13, that factors relating to its discharge are fundamentally different from the factors considered by EPA when developing the categorical pretreatment standard.

(4) A user may obtain a net gross adjustment to a categorical standard in accordance with 40 CFR 403.15.

(5) A user may request a removal credit adjustment to a categorical standard in accordance with 40 CFR 403.15.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-218. Local limits.

An industrial waste survey is required prior to a user discharging wastewater containing in excess of the following average discharge limits.

BOD	250	mg/l	
TSS	250	mg/l	
NH 3	25	mg/l	
Arsenic	0.003	mg/l	
Cadmium	0.003	mg/l	
Chromium	0.05	mg/l	(total chromium)
Copper	0.061	mg/l	

Cyanide	0.015	mg/l
Lead	0.049	mg/l
Mercury	0.0003	mg/l
Nickel	0.021	mg/l
Silver	0.005	mg/l
Zinc	0.175	mg/l

Industrial waste survey information will be used to develop user-specific local limits when necessary to ensure that the POTW's maximum allowable headworks loading are not exceeded for particular pollutants of concern. User-specific local limits for appropriate pollutants of concern shall be included in wastewater permits. The director may impose mass based limits in addition to, or in place of concentration based limits.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-219. State requirements.

State requirements and limitations on discharges shall apply in any case where they are more stringent than federal requirements and limitations or those in this article.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-220. Right of revision.

The city reserves the right to establish limitations and requirements which are more stringent than those required by either state or federal regulation if deemed necessary to comply with the objectives presented in section 70-187 or the general and specific prohibitions in section 70-216, as is allowed by 40 CFR 403.4.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-221. Dilution.

No user shall ever increase the use of process water or, in any way, attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with the limitations contained in the national categorical pretreatment standards, unless expressly authorized by an applicable pretreatment standard, or in any other pollutant-specific limitation developed by the city or state.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-222. Pretreatment of wastewater.

(a) *Pretreatment facilities.* Users shall provide wastewater treatment as necessary to comply with this article and wastewater permits issued under section 70-262 and shall achieve compliance with all national categorical pretreatment standards, local limits, and the prohibitions set out in section 70-216 within the time limitations as specified by EPA, the state, or the director, whichever is more stringent. Any facilities necessary for compliance shall be provided, operated, and maintained at the user's expense. Detailed plans showing the pretreatment facilities and operating procedures shall be submitted to the city for review, and

shall be approved by the director before construction of the facility. The review of such plans and operating procedures shall in no way relieve the user from the responsibility of modifying the facility as necessary to produce an effluent acceptable to the city under the provisions of this article. Any subsequent changes in the pretreatment facilities or method of operation shall be reported to and be approved by the director prior to the user's initiation of the changes.

(b) *Additional pretreatment measures.*

(1) Whenever deemed necessary, the director may require users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers, relocate and/or consolidate points of discharge, separate sewage wastestreams from industrial wastestreams, and such other conditions as may be necessary to protect the POTW and determine the user's compliance with the requirements of this article.

(2) The director may require any person discharging into the POTW to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of flow. A wastewater discharge permit may be issued solely for flow equalization.

(3) *Fat, oil, grease and sand removal systems.*

a. *When removal systems are required.* Certain users that prepare, process, or serve food shall install a removal system meeting approved standards that removes and collects fat, oil, and grease from wastewater and shall establish acceptable standard operating procedures for grease disposal. Such users include but are not limited to grocery stores, restaurants, bakeries, and companies, schools, and institutions with on-site cafeterias. The director shall promulgate guidelines that implement this section. These guidelines may, among other things, further define and categorize those users covered by this requirement, and distinguish amongst them; specify the types of removal systems the various categories of establishments must install and the specifications of such systems; establish cleaning schedules for various types of removal systems and frequency of removal of the fat, oil, and grease from the establishment. Other users that generate sand, oil and grease such as car washes, and automotive and machine shops shall install sand, oil, and grease removal systems when the director notifies the user of the need for such system or when it is required by the plumbing code.

b. *Prohibited discharges into a user's fat, oil and grease removal system.* The following shall not be discharged into any fat, oil, and grease removal system:

1. Waste that does not contain fat, oil, grease, and that otherwise does not require treatment;

2. Wastewater from dish washing machines or wastewater with temperature exceeding 150°;

3. Ground residue from food waste grinders and garbage disposals;

4. Sanitary waste;

5. Emulsifiers, chemicals, and enzymes.

c. *Maintenance and cleaning of system; maintenance of records.* Users with removal systems shall clean such systems in accordance with the director's guidelines. Such users shall maintain cleaning records showing the date and time of cleaning and person doing the cleaning for a period of three years.

d. *Collection of fat, oil, and grease; maintenance of records.* Users shall contract for the removal of the fat, oil, and grease collected from the removal system. The contract shall be available on site for inspection by the city. The user shall require the contractor to complete a form provided by the city indicating the ultimate disposition of the fat, oil, and grease collected—e.g., the location of the landfill it is being taken to, if it is conveyed to such landfill, or whether the fat, oil, and grease are being reprocessed or rendered. The user shall also require the contractor to indicate on a form, which, if it is not the city's form, shall be acceptable to the city, each collection made from the user. Such form shall be maintained for a period of three years.

e. *Monitoring of discharge.* The director or designee may require that any user monitor and test their discharge for fat, oil, grease, and/or sand in such a manner and with such methods as are specified by the director. All monitoring results shall be shared with the city. In addition, as a condition of discharging to the system, all users may be monitored by the city without prior notice.

f. *Variances.* The director is authorized to vary application and enforcement of this section in cases where pre-existing users cannot site outside removal systems without extreme hardship because of lack of available adjacent land or other similar circumstances.

g. *Exemptions.* Users that existed prior to October 15, 2001, and have an average monthly water consumption of 1,500 cubic feet or less and which do not discharge more than 250 mg/liter of fat, oil, and grease are exempted form these requirements. Users may be required to prove that they qualify for exemption.

(4) Users with the potential to discharge flammable substances may be required to install and maintain an approved combustible gas detection meter.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-223. Accidental discharge/slug control plans.

(a) The director shall evaluate whether each significant industrial user needs a plan or other action to control and prevent slug discharges and accidental discharges as defined in section 70-188. All SIUs must be evaluated within one-year of being designated an SIU. The director may require any user to develop, submit for approval, and implement such a plan or other specific action. Alternatively, the director may develop such a plan for any user.

(b) All SIUs are required to notify the POTW immediately of any changes at its facility affecting the potential for spills and other accidental discharge, discharge of a non-routine, episodic nature, a non-customary batch discharge, or a slug load. Also see sections 70-285 and 70-286.

(c) An accidental discharge/slug control plan shall address, at a minimum, the following:

(1) Description of discharge practices, including non-routine batch discharges;

(2) Description of stored chemicals;

(3) Procedures for immediately notifying the director of any accidental or slug discharge, as required by section 70-286; and

(4) Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants, including solvents, and/or measures and equipment for emergency response.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-224. Hauled wastewater.

(a) Septic tank waste may be introduced into the POTW only at locations designated by the director, and at such times as are established by the director. Such waste shall not violate division 2 or any other requirements established by the city. The director may require septic tank waste haulers to obtain wastewater discharge permits.

(b) The director shall require haulers of industrial waste to obtain wastewater discharge permits. The director may require generators of hauled industrial waste to obtain wastewater discharge permits. The director also may prohibit the disposal of hauled industrial waste. The discharge of hauled industrial waste is subject to all other requirements of this article.

(c) Industrial waste haulers may discharge loads only at locations designated by the director. No load may be discharged without prior consent of the director. The director may collect samples of each hauled load to ensure compliance with applicable standards. The director may require the industrial waste hauler to provide a waste analysis of any load prior to discharge.

(d) Industrial waste haulers must provide a waste-tracking form for every load. This form shall include, at a minimum, the name and address of the industrial waste hauler, permit number, truck identification, names and addresses of sources of waste, and volume and characteristics of waste. The form shall identify the type of industry, known or suspected waste constituents, and whether any wastes are RCRA hazardous wastes.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Secs. 70-225—70-240. Reserved.

DIVISION 3. FEES

Sec. 70-241. Purpose.

It is the purpose of this section to provide for the recovery of costs from users of the wastewater disposal system of the city for the implementation of the program established herein. The applicable charges or fees shall be set forth in a schedule of sewer use charges and fees by the director and approved by the city council. A copy of these charges and fees will be made available from the director.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-242. User charges and credits.

Users shall pay sewer charges and surcharges as provided in this Code provisions on rates and surcharges. In addition to the basic sewer service charge, all users of the POTW are subject to surcharges as are described below and in other City Code sections. The director may approve a sewer credit if a user produces evidence that more than ten percent of the total annual volume of water consumed is not returned to the sewer. Evidence produced must include 12 months of data; all meters used to determine such evidence shall be calibrated at least annually. A percent sewer credit may be applied to the sewer account. The director may require the user to install appropriate meters and submit monthly readings to the director in order to receive a sewer credit. Updates to the original submission shall be submitted annually to the director to confirm the continued justification of sewer credit.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-243. Surcharges.

The city may adopt fees for surcharges based upon the volume of flow and the character and concentration of identified constituents of the wastewater:

(1) The volume of flow used in determining surcharges shall be based on metered water consumption or other measuring techniques or flow monitoring devices as may be approved by the director. Any flow monitoring devices shall be accessible to the city and safely located, and paid for by the user.

(2) The character and concentration of the constituents of the wastewater used in determining surcharges shall be determined by samples collected and analyzed by the city. Samples shall be representative of the actual discharge and shall be analyzed using procedures set forth in 40 CFR Part 136. Character and concentration may be determined for categories of users, based on sampling. Upon approval by the director, users may also submit data from samples taken by the user using city-approved procedures.

(3) The determination of the character and concentration of the constituents of the wastewater discharge by the director shall be binding as a basis for charges.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-244. Pretreatment program administration charges.

The schedule of charges and fees adopted by the city may include charges and fees for:

(1) Reimbursement of costs of setting up and operating the pretreatment program;

(2) Monitoring, inspections and surveillance procedures;

(3) Reviewing slug control plans, including accidental and/or slug load discharge procedures and construction plans and specifications;

(4) Applications;

(5) Permitting;

(6) Other fees as the city may deem necessary to carry out the requirements of the pretreatment program.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Secs. 70-245—70-260. Reserved.

DIVISION 4. WASTEWATER DISCHARGE PERMIT APPLICATION AND ISSUANCE

Sec. 70-261. Wastewater dischargers.

It shall be unlawful for any person to connect or discharge to the POTW without first obtaining the permission of the city. When requested by the director, a user must submit information on the nature and characteristics of its wastewater within 30 days of the request. The director is authorized to prepare a form for this purpose and may periodically require users to update this information.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-262. Wastewater permits.

All significant industrial users shall obtain a significant industrial user permit prior to the commencement of discharge to the POTW. Existing industrial users who are determined by the director to be significant industrial users shall obtain a significant industrial user permit within 180 days of receiving notification of the director's determination. Industrial users who do not fit the significant industrial user criteria may at the discretion of the director be required to file a permit application and/or to obtain a wastewater discharge permit for non-significant industrial users.

(1) *Significant industrial user determination.* All persons proposing to discharge non-domestic wastewater, or proposing to change the volume or characteristics of an existing discharge of non-domestic wastewater shall request from the director a significant industrial user determination. If the director determines or suspects that the proposed discharge fits the significant industrial user criteria he will require that a significant industrial user permit application be filed.

(2) *Significant industrial user permit application.* Users required to obtain a significant industrial user permit shall complete and file with the [city], an application in the form prescribed by the [POTW director], and accompanied by an application fee in the amount prescribed in the schedule of charges and fees. Significant industrial users shall apply for a significant industrial user permit within 90 days after notification of the POTW director's determination in subsection (1). The application shall include at a minimum:

a. Name of industrial user;

b. Address of industrial user;

c. Standard industrial classification (SIC) code(s) or expected classification and industrial user category;

d. Wastewater flow;

e. Types and concentrations (or mass) of pollutants contained in the discharge;

f. Major products manufactured or services supplied;

g. Description of existing on-site pretreatment facilities and practices;

h. Locations of discharge points;

i. Raw materials used or stored at the site;

j. Flow diagram or sewer map for the industrial user;

k. Number of employees;

l. Operation and production schedules; and

m. Description of current and projected waste reduction activities in accordance with G.S. 143-215.1(g).

(3) *Application signatories and certification.* All wastewater discharge permit applications and user reports must be signed by the current authorized representative of the user on file with the director and must contain the following certification statement:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

(4) *Application review and evaluation.* The director will evaluate the data furnished by the user and may require additional information.

a. The director is authorized to accept applications for the city and shall refer all applications to the POTW staff for review and evaluation.

b. Within 45 days of receipt the director shall acknowledge and accept the complete application; or if not complete, shall return the application to the applicant with a statement of what additional information is required.

(5) *Tentative determination and draft permit.*

a. The POTW staff shall conduct a review of the application and an on-site inspection of the significant industrial user, including any pretreatment facilities, and shall prepare a written evaluation and tentative determination to issue or deny the significant industrial user permit.

b. If the staffs tentative determination in subsection a. is to issue the permit, the following additional determinations shall be made in writing:

1. Proposed discharge limitations for those pollutants proposed to be limited;

2. A proposed schedule of compliance, including interim dates and requirements, for meeting the proposed limitations; and

3. A brief description of any other proposed special conditions which will have significant impact upon the discharge described in the application.

c. The staff shall organize the determinations made pursuant to subsections a. and b. and the general permit conditions of the City into a significant industrial user permit.

(6) *Permit supporting documentation.* The control authority staff shall prepare the following documents for all significant industrial user permits.

a. An allocation table (AT) listing permit information for all significant industrial users, including but not limited to permit limits, permit effective and expiration dates, and a comparison of total permitted flows and loads with division approved maximum allowable loadings of the POTW, including flow, on forms or in a format approved by the division. The AT shall be updated as permits are issued or renewed, and as permits are modified where the permitted limits or other AT information is revised.

b. The basis, or rationale, for the pretreatment limitations, including the following:

1. Documentation of categorical determination, including documentation of any calculations used in applying categorical pretreatment standards; and

2. Documentation of the rationale of any parameters for which monitoring has been waived under 40 CFR Part 403.12(e)(2).

(7) *Permit synopsis.* A fact sheet providing a brief synopsis of the application shall be prepared by the POTW staff for submission to the applicant and the approval authority and shall be made available to the public upon request. The contents of such fact sheets shall include at least the following information:

a. A sketch and detailed description of the industrial facilities and pretreatment facilities including the location of all points of discharge to the POTW and all established compliance monitoring points.

b. A quantitative description of the discharge described in the application which includes at least the following:

1. The rate or frequency of the proposed discharge; if the discharge is continuous, the average daily flow;

2. The actual average daily discharge in pounds per day of any limited pollutant and any pollutant identified in the application as known or suspected present; and

3. The basis for the pretreatment limitations including the documentation of any calculations in applying categorical pretreatment standards.

(8) *Final action on significant industrial user permit applications.*

a. The director shall take final action on all applications not later than 90 days following receipt of a complete application.

b. The director is authorized to:

1. Issue a significant industrial user permit containing such conditions as are necessary to effectuate the purposes of this article and G.S. 143-215.1;

2. Issue a significant industrial user permit containing time schedules for achieving compliance with applicable pretreatment standards and requirements;

3. Modify any permit pursuant to the procedures specified hereafter in this article;

4. Revoke any permit pursuant to the procedures specified hereafter in this article;

5. Suspend a permit pursuant procedures specified hereafter in this article;

6. Deny a permit application when in the opinion of the director such discharge may cause or contribute to pass-through or interference of the wastewater treatment plant or where necessary to effectuate the purposes of G.S. 143-215.1.

c. The hearing procedures specified hereafter in this article may be utilized to appeal a final action on a permit.

(9) *Permit modification.*

a. Modifications of permits shall be subject to the same procedural requirements as the issuance of permits except as listed below. Any changes or new conditions in the permit shall include a reasonable time schedule for compliance.

1. Changes in the ownership of the discharge when no other change in the permit is indicated;

2. A single modification of any compliance schedule not in excess of four months;

3. Modification of compliance schedules (construction schedules) in permits for new sources where the new source will not begin to discharge until control facilities are operational.

b. Within nine months of the promulgation of a national categorical pretreatment standard, the wastewater discharge permit of users subject to such standards shall be revised to require compliance with such standard within the time frame prescribed by such standard. Where a user, subject to a national categorical pretreatment standard, has not previously submitted an application for a wastewater discharge permit as required by this article, the user shall apply for a wastewater discharge permit within 180 days after the promulgation of the applicable national categorical pretreatment standard.

c. A request for a modification by the permittee shall constitute a waiver of the 60-day notice required by G.S. 143-215.1(b) for modifications.

(10) *Permit conditions.*

a. The director shall have the authority to grant a permit with such conditions attached as he believes necessary to achieve the purpose of this article and G.S. 143-215.1. Wastewater permits shall contain, but are not limited to, the following:

1. A statement of duration (in no case more than five years);

2. A statement of non-transferability;

3. Applicable effluent limits based on categorical standards or local limits or both;

4. Applicable monitoring, sampling, reporting, notification, and record keeping requirements. These requirements shall include an identification of pollutants to be monitored, sampling location, sampling frequency, and sample type based on federal, state and local law;

5. Requirements for notifying the POTW in the event of an accidental discharge or slug load;

6. Requirements to implement a plan or other controls including but not limited to construction of pretreatment facilities for prevention of accidental discharges and/or slug loads, if determined by the director to be necessary for the user; and

7. Requirements for immediately notifying the POTW of any changes at its facility affecting the potential for spills and other accidental discharges, or slug load. Also see sections 70-285 and 70-286;

8. A statement of applicable civil and/or criminal penalties for violation of pretreatment standards and requirements and any applicable compliance schedule.

b. In addition, permits may contain, but are not limited to, the following:

1. Limits on the average and/or maximum rate of discharge, and/or requirements for flow regulation and equalization.
2. Limits on the instantaneous, daily and/or monthly average and/or maximum concentration, mass, or other measure of identified wastewater pollutants or properties.
3. Requirements for the installation of pretreatment technology or construction of appropriate containment devices, etc., designed to reduce, eliminate, or prevent the introduction of pollutants into the treatment works.
4. Development and implementation of waste minimization plans to reduce the amount of pollutants discharged to the municipal wastewater system.
5. The unit charge or schedule of user charges and fees for the management of the wastewater discharged to the system.
6. Requirements for installation and maintenance of inspection and sampling facilities and equipment.
7. Specifications for monitoring programs which may include sampling locations, frequency of sampling, number, types, and standards for tests, and reporting schedules.
8. Requirements for immediate reporting of any instance of noncompliance and for automatic resampling and reporting within 30 days where self-monitoring indicates a violation(s).
9. Compliance schedules for meeting pretreatment standards and requirements.
10. Requirements for submission of periodic self-monitoring or special notification reports.
11. Requirements for maintaining and retaining plans and records relating to wastewater discharges as set forth hereafter in this article, and affording the director, or his representatives, access thereto.
12. Requirements for prior notification and approval by the director of any new introduction of wastewater pollutants or of any significant change in the volume or character of the wastewater prior to introduction in the system.
13. Requirements for the prior notification and approval by the director of any change in the manufacturing and/or pretreatment process used by the permittee.
14. A statement that compliance with the permit does not relieve the permittee of responsibility for compliance with all applicable federal and state pretreatment standards, including those which become effective during the terms of the permit.
15. Other conditions as deemed appropriate by the director to ensure compliance with this article, and state and federal laws, rules, and regulations.

(11) *Permit duration.* Permits shall be issued for a specified time period, not to exceed five years. A permit may be issued for a period less than a year or may be stated to expire on a specific date.

(12) *Permit transfer.* Wastewater permits are issued to a specific user for a specific operation. A wastewater discharge permit shall not be reassigned or transferred or sold to a new owner, new user, different premises, or a new or changed operation.

(13) *Permit reissuance.* A significant industrial user shall apply for permit reissuance by submitting a complete permit application in accordance with this article a minimum of 180 days prior to the expiration of the existing permit.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Secs. 70-263—70-280. Reserved.

DIVISION 5. REPORTING REQUIREMENTS

Sec. 70-281. Baseline monitoring reports.

(a) Within either 180 days after the effective date of a categorical pretreatment standard, or the final administrative decision on a category determination under 40 CFR 403.6(a)(4), whichever is later, existing categorical users currently discharging to or scheduled to discharge to the POTW shall submit to the director a report which contains the information listed in subsection (b). At least 90 days prior to commencement of their discharge, new sources, and sources that become categorical users subsequent to the promulgation of an applicable categorical standard, shall submit to the director a report which contains the information listed in subsection (b). A new source shall report the method of pretreatment it intends to use to meet applicable categorical standards. A new source also shall give estimates of its anticipated flow and quantity of pollutants to be discharged.

(b) Users described above shall submit the information set forth below.

(1) *Identifying information.* The name and address of the facility, including the name of the operator and owner.

(2) *Environmental permits.* A list of any environmental control permits held by or for the facility.

(3) *Description of operations.* A brief description of the nature, average rate of production, and standard industrial classifications of the operation(s) carried out by such user. This description should include a schematic process diagram which indicates points of discharge to the POTW from the regulated processes.

(4) *Flow measurement.* Information showing the measured average daily and maximum daily flow, in gallons per day, to the POTW from regulated process streams and other streams, as necessary, to allow use of the combined waste stream formula set out in 40 CFR 403.6(e).

(5) *Measurement of pollutants.*

a. The categorical pretreatment standards applicable to each regulated process.

b. The results of sampling and analysis identifying the nature and concentration, and/or mass, where required by the standard or by the director, of regulated pollutants in the discharge from each regulated process. Instantaneous, daily maximum, and long-term average concentrations, or mass, where required, shall be reported. The sample shall be representative of daily operations and shall be analyzed in accordance with procedures set out in section 70-290.

c. Sampling must be performed in accordance with procedures set out in section 70-291 and 40 CFR 403.12(b) and (g), including 40 CFR 403.12(g)(4).

(6) *Certification.* A statement, reviewed by the user's current authorized representative and certified by a qualified professional, indicating whether pretreatment standards are being met on a consistent basis, and, if not, whether additional operation and maintenance (O&M) and/or additional pretreatment is required to meet the pretreatment standards and requirements.

(7) *Compliance schedule.* If additional pretreatment and/or O&M will be required to meet the pretreatment standards, the shortest schedule by which the user will provide such additional pretreatment and/or O&M. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard. A compliance schedule pursuant to this section must meet the requirements of this article.

(8) *Signature and certification.* All baseline monitoring reports must be signed and certified in accordance with subsection 70-106(3).

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-282. Compliance schedule progress reports.

The following conditions shall apply to the compliance schedule required in the previous section of this article:

(1) The schedule shall contain progress increments in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet the applicable pretreatment standards (such events include, but are not limited to, hiring an engineer, completing preliminary and final plans, executing contracts for major components, commencing and completing construction, and beginning and conducting routine operation);

(2) No increment referred to above shall exceed nine months;

(3) The user shall submit a progress report to the director no later than 14 days following each date in the schedule and the final date of compliance including, as a minimum, whether or not it complied with the increment of progress, the reason for any delay, and, if appropriate, the steps being taken by the user to return to the established schedule; and

(4) In no event shall more than nine months elapse between such progress reports to the director.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-283. Reports on compliance with categorical pretreatment standard, deadline.

Within 90 days following the date for final compliance with applicable categorical pretreatment standards, or in the case of a new source following commencement of the introduction of wastewater into the POTW, any user subject to such pretreatment standards and requirements shall submit to the director a report containing the information described in subsections 70-281(b)(4)—(6). For users subject to equivalent mass or concentration limits established in accordance with the procedures in 40 CFR 403.6(c), this report shall contain a reasonable measure of the user's long-term production rate. For all other users subject to categorical pretreatment standards expressed in terms of allowable pollutant discharge per unit of production (or other measure of operation), this report shall include the user's actual production during the appropriate sampling period. All compliance reports must be signed and certified in accordance with subsection 70-262(3).

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-284. Periodic compliance reports.

Municipalities may sample and analyze user discharges in lieu of requiring the users to conduct sampling and analysis.

(1) All significant industrial users shall, at a frequency determined by the director but in no case less than once every six months, submit a report indicating the nature and concentration of pollutants in the discharge which are limited by pretreatment standards and the applicable flows for the reporting period. Sampling and analysis must be performed in accordance with procedures set out hereafter. All periodic compliance reports must be signed and certified in accordance with subsection 70-106(3).

(2) If a user subject to the reporting requirement in this section monitors any pollutant more frequently than required by the director, using the procedures prescribed hereafter in this article, the results of this monitoring shall be included in the report.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-285. Reports of changed conditions.

Each user must notify the director of any planned significant changes to the user's operations or system which might alter the nature, quality, or volume of its wastewater at least 30 days before the change. The permittee shall not begin the changes until receiving written approval from the control authority and/or municipality. See section 70-286 for other reporting requirements.

(1) The director may require the user to submit such information as may be deemed necessary to evaluate the changed condition, including the submission of a wastewater discharge permit application under this article.

(2) The director may issue a wastewater discharge permit or modify an existing wastewater discharge permit in response to changed conditions or anticipated changed conditions.

(3) For purposes of this requirement, significant changes include, but are not limited to, flow or pollutant increases of 20 percent or greater, and the discharge of any previously unreported pollutants. Change may also include increases or decreases to production; increases in discharge of previously reported pollutants; discharge of pollutants not previously reported to the control authority and/or municipality; new or changed product lines; new or changed manufacturing processes and/or chemicals; or new or changed customers.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-286. Reports of potential problems.

(a) In the case of any discharge, including, but not limited to, accidental discharges, discharges of a non-routine, episodic nature, a non-customary batch discharge, or a slug load, that may cause potential problems for the POTW, the user shall immediately telephone and notify the director of the incident. This notification shall include the location of the discharge, type of waste, concentration and volume, if known, and corrective actions taken by the user.

(b) Within five days following such discharge, the user shall, unless waived by the director, submit a detailed written report describing the cause(s) of the discharge and the measures to be taken by the user to prevent similar future occurrences. Such notification shall not relieve the user of any expense, loss, damage, or other liability which may be incurred as a result of damage to the POTW, natural resources, or any other damage to person or property; nor shall such notification relieve the user of any fines, penalties, or other liability which may be imposed pursuant to this article.

(c) A notice shall be permanently posted on the user's bulletin board or other prominent place advising employees whom to call in the event of a discharge described in subsection (a). Employers shall ensure that all employees, who may cause such a discharge to occur, are advised of the emergency notification procedure.

(d) All SIUs are required to notify the POTW immediately of any changes at its facility affecting the potential for spills and other accidental discharge, discharge of a non-routine, episodic nature, a non-customary batch discharge, or a slug load.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-287. Reports from users without permits.

All users not required to obtain a wastewater discharge permit shall provide appropriate reports to the director as the director may require. All users classified as non-significant categorical industrial users under section 70-188(a)(SIU definition 6) shall provide appropriate

reports to the director as the director may require. At a minimum, this shall include the annual certification of continuing to meet the non-significant categorical industrial user criteria as required under 40 CFR 403.12(q).
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-288. Notification of violation/repeat sampling and reporting.

(a) If sampling performed by a user indicates a violation, the user must notify the director within 24 hours of becoming aware of the violation. The user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the director within 30 days after becoming aware of the violation. If allowed by the director, the user is not required to resample if:

(1) The director monitors at the user's facility at least once a month; or

(2) The director samples between the user's initial sampling and when the user receives the results of this sampling.

(b) If the director has performed the sampling and analysis in lieu of the industrial user and the POTW sampling of the user indicates a violation, the director shall repeat the sampling and obtain the results of the repeat analysis within 30 days after becoming aware of the violation(s), unless one of the following occurs:

(1) The director monitors at the user's facility at least once a month; or

(2) The director samples the user between their initial sampling and when the POTW receives the results of this initial sampling; or

(3) The director requires the user to perform sampling and submit the results to the director within the 30-day deadline of the POTW becoming aware of the violation.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-289. Notification of the discharge of hazardous waste.

Users are prohibited from disposing of hazardous waste except as specifically authorized by the director. Users authorized to dispose of hazardous waste must comply with 40 CFR 403.12(p).
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-290. Analytical requirements.

All pollutant analyses, including sampling techniques, to be submitted as part of a wastewater discharge permit application or report shall be performed by a laboratory certified by the state to perform the wastewater analyses in accordance with the techniques prescribed in 40 CFR Part 136, unless otherwise specified in an applicable categorical pretreatment standard or unless otherwise performed in accordance with procedures approved by the EPA

or city. If 40 CFR Part 136 does not contain sampling or analytical techniques for the pollutant in question, sampling and analyses must be performed in accordance with procedures approved by the EPA and city.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-291. Grab and composite sample collection.

(a) All wastewater samples must be representative of the user's discharge. Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of a user to keep its monitoring facility in good working order shall not be grounds for the user to claim that sample results are unrepresentative of its discharge.

(b) Grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide, volatile organic compounds, and any other pollutants as required by 40 CFR 136. The POTW shall determine the number of grabs necessary to be representative of the user's discharge. See 40 CFR 403.12(g)(5) for additional grab sample number requirements for BMR and 90-day compliance reports. Additionally, the director may allow collection of multiple grabs during a 24-hour period which are composited prior to analysis as allowed under 40 CFR 136.

(c) Composite samples. All wastewater composite samples shall be collected with a minimum of hourly aliquots or grabs for each hour that there is a discharge. All wastewater composite samples shall be collected using flow proportional composite collection techniques, unless time-proportional composite sampling or grab sampling is authorized by the director. When authorizing time-proportional composites or grabs, the samples must be representative and the decision to allow the alternative sampling must be documented.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-292. Timing.

Written reports will be deemed to have been submitted on the date postmarked. For reports which are not mailed, postage prepaid, into a mail facility serviced by the United States Postal Service, the date of receipt of the report shall govern.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-293. Record keeping.

Users subject to the reporting requirements of this article shall retain, and make available for inspection and copying, all records of information obtained pursuant to any monitoring activities required by this article and any additional records of information obtained pursuant to monitoring activities undertaken by the user independent of such requirements. Records shall include the date, exact place, method, and time of sampling, and the name of the person(s) taking the samples; the dates analyses were performed; who performed the analyses; the analytical techniques or methods used; and the results of such analyses. These records

shall remain available for a period of at least three years. This period shall be automatically extended for the duration of any litigation concerning the user or the city, or where the user has been specifically notified of a longer retention period by the director.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-294. Electronic reporting.

The director may develop procedures for receipt of electronic reports for any reporting requirements of this article. Such procedures shall comply with 40 CFR Part 3. These procedures shall be enforceable under division 8 of this article.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-295. Special reporting requirements for IUs in satellite POTWs.

In the case of industrial user located in a satellite POTW organization's jurisdiction, all information required to be reported to the industrial user's pretreatment program control authority by this article shall also be reported to the POTW treatment plant organizations.
(Ord. No. 14551, 12-16-2013)

Secs. 70-296—70-315. Reserved.

DIVISION 6. COMPLIANCE MONITORING

Sec. 70-316. Monitoring facilities.

The city requires the user to provide and operate at the user's own expense, monitoring facilities to allow inspection, sampling, and flow measurement of the building sewer and/or internal drainage systems. The monitoring facility should normally be situated on the user's premises, but the director may, when such a location would be impractical or cause undue hardship on the user, allow the facility to be constructed in the public street or sidewalk area and located so that it will not be obstructed by landscaping or parked vehicles.

There shall be ample room in or near such sampling manhole or facility to allow accurate sampling and preparation of samples for analysis. The facility, sampling, and measuring equipment shall be maintained at all times in a safe and proper operating condition at the expense of the user.

Whether constructed on public or private property, the sampling and monitoring facilities shall be provided in accordance with the requirements of the city and all applicable local construction standards and specifications. Construction shall be completed within 90 days following written authorization from the city to construct the facility.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-317. Inspection and sampling.

The city will inspect the facilities of any user to ascertain whether the purpose of this article is being met and all requirements are being complied with. Persons or occupants of premises

where wastewater is created or discharged shall allow the city, approval authority and EPA or their representative ready access at all reasonable times to all parts of the premises for the purposes of inspection, sampling, records examination and copying or in the performance of any of their duties. The city, approval authority and EPA shall have the right to set up on the user's property such devices as are necessary to conduct sampling, inspection, compliance monitoring and/or metering operations. Where a user has security measures in force which would require proper identification and clearance before entry into their premises, the user shall make necessary arrangements with their security guards so that upon presentation of suitable identification, personnel from the city, approval authority and EPA will be permitted to enter, without delay, for the purposes of performing their specific responsibilities. Denial of the city's approval authority's or EPA's access to the user's premises shall be a violation of this article. Unreasonable delays may constitute denial of access.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-318. Search warrants.

If the city, approval authority, or EPA has been refused access to a building, structure, or property, or any part thereof, and is able to demonstrate probable cause to believe that there may be a violation of this article, or that there is a need to inspect and/or sample as part of a routine inspection and sampling program of the city designed to verify compliance with this article or any permit or order issued hereunder, or to protect the overall public health, safety and welfare of the community, then the director, approval authority, or EPA may seek issuance of a search warrant from the court having jurisdiction within the city.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Secs. 70-319—70-330. Reserved.

DIVISION 7. CONFIDENTIAL INFORMATION

Sec. 70-331. Confidentiality.

Information and data on a user obtained from reports, questionnaires, permit applications, permits and monitoring programs and from inspections shall be available to the public or other governmental agency without restriction unless the user specifically requests and is able to demonstrate to the satisfaction of the director that the release of such information would divulge information, processes or methods of production entitled to protection as trade secrets of the user. Any such request must be asserted at the time of submission of the information or data.

When requested by the person furnishing a report, the portions of a report which might disclose trade secrets or secret processes shall not be made available for inspection by the public, but shall be made available upon written request to governmental agencies for uses related to this article, the national pollutant discharge elimination system (NPDES) permit, non-discharge permit and/or the pretreatment programs; provided, however, that such

portions of a report shall be available for use by the state or any state agency in judicial review or enforcement proceedings involving the person furnishing the report. Wastewater constituents and characteristics will not be recognized as confidential information.

All records relating to compliance with pretreatment standards shall be made available to city officials and EPA upon request.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Secs. 70-332—70-340. Reserved.

DIVISION 8. ENFORCEMENT

Sec. 70-341. Administrative remedies.

The director may utilize any or all of the following actions, singly or in combination for violations of this article and permits issued under authority of this article. Unless specifically provided herein, none of these remedies is a requisite to the director utilizing any other remedy. In addition, the use of these remedies does not limit the city's right to use any other remedy provided for under this article, state or federal law, or common law.

(1) *Notice of violation.* Whenever the director finds that any user or industrial user has violated or is violating this article, wastewater permit, or any prohibition, limitation or requirements contained therein or any other pretreatment requirement the director may serve upon such a person a written notice stating the nature of the violation. Within 30 days from the date of this notice, an explanation for the violation and a plan for the satisfactory correction thereof shall be submitted to the city by the user. Submission of this plan does not relieve the discharger of liability for any violations occurring before or after receipt of the notice of violation.

(2) *Consent orders.* The director is hereby empowered to enter into consent orders, assurances of voluntary compliance, or other similar documents establishing an agreement with the person responsible for the noncompliance. Such orders will include specific action to be taken by the discharger to correct the noncompliance within a time period also specified by the order. Consent orders shall have the same force and effect as an administrative order issued pursuant to this article.

(3) *Show cause proceeding.* The director may order any user or industrial user who causes or is responsible for an unauthorized discharge, has violated this article or is in noncompliance with a wastewater discharge permit to show cause why a proposed enforcement action should not be taken. The director shall notify the user specifying the time and place for the proceeding, the proposed enforcement action, the reasons for such action, and a request that the user show cause why this proposed enforcement

action should not be taken. The notice of the proceeding shall be served personally or by registered or certified mail (return receipt requested) at least ten days before the proceeding. Service may be made on any agent or officer of a corporation.

The director shall review the information presented at the proceeding and determine whether the proposed enforcement action is appropriate. A show cause proceeding under this section is not a prerequisite to the assessment of a civil penalty nor is any action or inaction taken by the director under this section subject to an administrative appeal.

(4) *Administrative orders.* When the director finds that a user or industrial user has violated or is violating this article, permits or orders issued hereunder, or any other pretreatment requirement the director may issue an order to cease and desist all such violations and direct those persons in noncompliance to do any of the following:

a. Immediately comply with all requirements;

b. Comply in accordance with a compliance time schedule set forth in the order;

c. Take appropriate remedial or preventive action in the event of a continuing or threatened violation;

d. Disconnect water and/or sewer service unless adequate treatment facilities, devices or other related appurtenances are installed and properly operated within a specified time period.

(5) *Emergency suspensions.* The director may suspend the wastewater treatment service and/or wastewater permit when such suspension is necessary in order to stop an actual or threatened discharge which presents or may present an imminent or substantial endangerment to the health or welfare of persons or the environment, interferes with the POTW or causes the POTW to violate any condition of its NPDES or non-discharge permit.

Any user notified of a suspension of the wastewater treatment service and/or the wastewater permit shall immediately stop or eliminate the contribution. An informal hearing will be held within 15 days of the notice of suspension to determine whether the suspension may be lifted or the user's waste discharge permit terminated. In the event of a failure to comply voluntarily with the suspension order, the director shall take such steps as deemed necessary including immediate severance of the sewer connection, to prevent or minimize damage to the POTW system or endangerment to any individuals. The director shall reinstate the wastewater permit and the wastewater treatment service upon proof of the elimination of the noncompliant discharge. The industrial user shall submit a detailed written statement describing the causes of the harmful contribution and the measures taken to prevent any future occurrence to the director prior to the date of the above-described hearing.

(6) *Termination of permit or permission to discharge.* The director may revoke a wastewater discharge permit or permission to discharge for good cause, including, but not limited to, the following reasons:

a. Failure to accurately report the wastewater constituents and characteristics of his discharge;

b. Failure to report significant changes in operations, or wastewater constituents and characteristics;

c. Refusal of reasonable access to the user's premises for the purpose of inspection or monitoring; or

d. Violation of conditions of the permit or permission to discharge, conditions of this article, or any applicable state and federal regulations.

Noncompliant industrial users will be notified of the proposed termination of their wastewater permit and will be offered an opportunity to show cause under why the proposed action should not be taken.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-342. Appeals and hearings.

(a) *Appeal.* An applicant whose permit is denied, terminated, or granted subject to unacceptable conditions, and a user assessed a civil penalty or in receipt of an administrative order under the authority of this article shall have the right to an adjudicatory hearing. The applicant or user must submit a written request, identifying the specific issues to be contested, to the director within 30 days following receipt of the industrial wastewater discharge permit, civil penalty assessment, or administrative or termination order. Unless such written request is made within the time specified herein, the action subject to appeal shall be final and binding and further appeal is barred. For modified permits, only the parts of the permit being modified are subject to appeal. The director shall negotiate with the appealing party prior to the hearing and attempt to resolve the contested issues prior to a hearing.

(b) *Effect of appeal on permits.*

(1) *New permits.* Upon appeal, including judicial review in the general courts of justice, of the terms or conditions of a newly issued permit, the terms and conditions of the entire permit are stayed and the permit is not in effect until either the conclusion of judicial review or until the parties reach a mutual resolution. The applicant for a permit does not have the right to discharge into the POTW during this period.

(2) *Renewed permits.* Upon appeal, including judicial review in the general courts of justice, of the terms or conditions of a renewed permit, the terms and conditions of the existing permit remain in effect until either the conclusion of judicial review or until the parties reach a mutual resolution.

(3) *Terminated permits.* Upon appeal of terminated permit, no permit is in effect until either the conclusion of judicial review or until the parties reach a mutual resolution. The former permit holder does not have the right to discharge into the POTW during this period.

(c) *Hearing.* The director or his designee shall serve as hearing officer and shall conduct the adjudicatory hearing. The city and the appealing party shall have the right to examine and cross examine witnesses, to present written evidence and testimony of witnesses, and may compel the attendance of city employees. Reasonable time limits may be established for such

hearing. A complete transcript shall be made of the hearing if requested and paid for by the appealing party prior to the hearing. If a complete transcript is not requested, a written summary of the evidence presented at the hearing shall be made by the city.

(d) *Decision.* The hearing officer shall issue a written decision, which shall include findings of fact and conclusions. The decision shall be sent to the appealing party by certified or registered mail or hand delivered to the party's place of business. The decision is final and binding unless appealed to superior court within 30 days of receipt of the decision.

(e) *Settlement.* The director shall have the authority to settle any case or controversy that has been decided in an adjudicatory hearing or that has been appealed to court, except for settlements involving payment of city funds, which may only be approved in accordance with procedures specified by the city council.

(f) *Judicial review.* A decision in an adjudicatory hearing is subject to review by the superior court by proceedings in the nature of certiorari. A petition for review must be filed with the clerk of superior court within 30 days after the receipt of the decision by the appealing party. A decision hand delivered to a person's place of business shall be deemed delivered on the date of hand delivery if within normal business hours, and on the subsequent date, if not within such hours. Noncompliance by the city with technical timelines of this article is not grounds for judicial review.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-343. Civil penalties.

(a) Any user who is found to have failed to comply with any provision of this article, or the orders, rules, regulations and permits issued hereunder, may be assessed a civil penalty of up to $25,000.00 per day per violation.

Penalties between $10,000.00 and $25,000.00 per day per violation may be assessed against a violator:

(1) For any class of violation, only if a civil penalty has been imposed against the violator with in the five years preceding the violation; or

(2) In the case of failure to file, submit, or make available, as the case may be, any documents, data, or reports required by this article, or the orders, rules, regulations and permits issued hereunder, only if the director determines that the violation was intentional and a civil penalty has been imposed against the violator within the five years preceding the violation.

(b) In determining the amount of the civil penalty, the director shall consider the following:

(1) The degree and extent of the harm to the natural resources, to the public health, or to public or private property resulting from the violation;

(2) The duration and gravity of the violation;

(3) The effect on ground or surface water quantity or quality or on air quality;

(4) The cost of rectifying the damage;

(5) The amount of money saved by noncompliance;

(6) Whether the violation was committed willfully or intentionally;

(7) The prior record of the violator in complying or failing to comply with the pretreatment program;

(8) The costs of enforcement to the city.

(c) Appeals of civil penalties may be made as provided above.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-344. Other available remedies.

Remedies, in addition to those previously mentioned in this article, are available to the director who may use any single one or combination against a noncompliant user. Additional available remedies include, but are not limited to:

(1) *Criminal violations.* The district attorney for the applicable judicial district may, at the request of the city, prosecute noncompliant users who violate the provisions of G.S. 143-215.6B. [Note: Under state law, it is a crime to negligently violate any term, condition, or requirement of a pretreatment permit, or negligently fail to apply for a pretreatment permit, issued by local governments (G.S. 143-215.6B(f)), to knowingly and willfully violate any term, condition, or requirement of a pretreatment permit, or knowingly and willfully fail to apply for a pretreatment permit, issued by local governments (G.S. 143-215.6B(g)), to knowingly violate any term, condition, or requirement of a pretreatment permit issued by local governments, or knowingly fail to apply for a pretreatment permit, knowing at the time that a person is placed in imminent danger of death or serious bodily injury, (G.S. 143-215.6B(h)), and to falsify information required under G.S. ch. 143, art. 21 (G.S. 143-215.6B(i)).]

(2) *Injunctive relief.* Whenever a user is in violation of the provisions of this article or an order or permit issued hereunder, the director, through the city attorney, may petition the superior court of justice for the issuance of a restraining order or a preliminary and permanent injunction which restrains or compels the activities in question.

(3) *Water supply severance.* Whenever a user or industrial user is in violation of the provisions of this article or an order or permit issued hereunder, water service to such user may be severed and service will only recommence, at the user's expense, after it has satisfactorily demonstrated ability to comply.

(4) *Public nuisance.* Any violation of the prohibitions or effluent limitations of this article or of a permit or order issued hereunder, is hereby declared a public nuisance and shall be corrected or abated as directed by the director. Any person(s) creating a public nuisance shall be subject to the remedial provisions of city ordinance, state statutes, and/or common law.

(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-345. Remedies nonexclusive.

The remedies provided for in this article are not exclusive. The director may take any, all, or any combination of these actions against a noncompliant user. Enforcement of pretreatment violations will generally be in accordance with the city's enforcement response plan. However, the director may take other action against any user when the circumstances warrant. Further, the director is empowered to take more than one enforcement action against any noncompliant user.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Secs. 70-346—70-365. Reserved.

DIVISION 9. ANNUAL PUBLICATION OF SIGNIFICANT NONCOMPLIANCE

Sec. 70-366. Publication.

At least annually, the director shall publish in a newspaper of general circulation that provides meaningful public notice within the city's jurisdiction(s) a list of those industrial users which were found to be in significant noncompliance, also referred to as reportable noncompliance, in 15A NCAC 2H .0903(b)(10), with applicable pretreatment standards and requirements, during the previous 12 months.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Secs. 70-367—70-375. Reserved.

DIVISION 10. AFFIRMATIVE DEFENSES TO DISCHARGE VIOLATIONS

Sec. 70-376. Upset.

(a) An upset shall constitute an affirmative defense to an action brought for noncompliance with categorical pretreatment standards if the requirements of subsection (b) are met.

(b) An industrial user who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs, or other relevant evidence that:

(1) An upset occurred and the user can identify the cause(s) of the upset;

(2) The facility was at the time being operated in a prudent and workman-like manner and in compliance with applicable operation and maintenance procedures; and

(3) The user has submitted the following information to the director within 24 hours of becoming aware of the upset [if this information is provided orally, a written submission must be provided within five days]:

a. A description of the indirect discharge and cause of noncompliance;

b. The period of noncompliance, including exact dates and times or, if not corrected, the anticipated time the noncompliance is expected to continue; and

c. Steps being taken and/or planned to reduce, eliminate, and prevent recurrence of the noncompliance.

(c) In any enforcement proceeding, the industrial user seeking to establish the occurrence of an upset shall have the burden of proof.

(d) Industrial users will have the opportunity for a judicial determination on any claim of upset only in an enforcement action brought for noncompliance with categorical pretreatment standards.

(e) Industrial users shall control production of all discharges to the extent necessary to maintain compliance with categorical pretreatment standards upon reduction, loss, or failure of its treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost, or fails.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-377. Prohibited discharge standards defense.

An industrial user shall have an affirmative defense to an enforcement action brought against it for noncompliance with the general prohibitions in subsection 70-216(a) or the specific prohibitions in subsections 70-216(b)(2), (3), and (5)—(7) and (9)—(23) if it can prove that it did not know, or have reason to know, that its discharge, alone or in conjunction with discharges from other sources, would cause pass through or interference and that either:

(1) A local limit exists for each pollutant discharged and the user was in compliance with each limit directly prior to, and during, the pass through or interference; or

(2) No local limit exists, but the discharge did not change substantially in nature or constituents from the user's prior discharge when the city was regularly in compliance with its NPDES permit, and in the case of interference, was in compliance with applicable sludge use or disposal requirements.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Sec. 70-378. Bypass.

(a) Bypass is prohibited, and the director may take an enforcement action against a user for a bypass, unless:

(1) Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;

(2) There were no feasible alternatives to the bypass such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventive maintenance; and

(3) The user submitted notice as required under subsection (b), if such was possible, and if such was impossible, notified the director immediately when such notification became reasonable, and, at a minimum as required under subsection (c).

(b) If a user knows in advance of the need for a bypass, it shall submit prior notice to the director at least ten days before the date of the bypass, if possible. The director may approve an anticipated bypass, after considering its adverse effects, if the director determines that it will meet the conditions listed in subsection (a) or if the director determines that bypass is essential for maintenance required for the efficient operation of the pretreatment unit and that the bypass will not likely result in violation of pretreatment standards or requirements.

(c) A user shall give oral notice to the director of an unanticipated bypass that exceeds applicable pretreatment standards within 24 hours from the time it becomes aware of the bypass. A written submission shall also be provided within five days of this time the user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass. The director may waive the written report on a case-by-case basis if the oral report has been received within 24 hours.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Secs. 70-379—70-410. Reserved.

DIVISION 11. SEVERABILITY

Sec. 70-411. Severability.

If any provision, paragraph, word, section or article of this article is invalidated by any court of competent jurisdiction, the remaining provisions, paragraphs, words, sections, and chapters shall not be affected and shall continue in full force and effect.
(Ord. No. 13523, 12-17-2007; Ord. No. 14551, 12-16-2013)

Secs. 70-412—70-491. Reserved.

ARTICLE V. STORMWATER MANAGEMENT AND POLLUTION CONTROL

DIVISION 1. GENERALLY

Sec. 70-492. Purpose.

The purpose of this article is to further the health, safety and general welfare and convenience of the public through:

(1) Regulating the use, placement, storage, and management of pollutants in order to prevent pollution of stormwater;

(2) Limiting pollution of stormwater in the public and private drainage system so as to limit pollution of the waters of the state and restore, protect, and maintain better water quality and the benefits that come from better water quality;

(3) Prohibiting illicit discharges and illicit connections to the public and private drainage system that increase pollution;

(4) Protecting the conveyance capacity of the drainage system by controlling blockages, and the emission or disposal of substances or effluents, including sediment, that are injurious to the drainage system;

(5) Complying with the city's National Pollutant Discharge Elimination System permit issued under the authority of section 402(p) of the clean water act and implementing regulations at 40 CFR 122.26;

(6) Establishing inspection, surveillance, monitoring, and enforcement and penalty procedures to the maximum extent authorized under law to achieve the above-described objectives, and to ensure compliance with this article; and

(7) Authorizing fees necessary to conduct inspections and monitoring of the stormwater system.

(Ord. No. 13342, § 1(23-140), 11-20-2006)

Sec. 70-493. Definitions.

(a) The acronyms used herein are:

BMP	Best Management Practice
NPDES	National Pollutant Discharge Elimination System
MS4	Municipal Separate Storm Sewer System
NCDENR	North Carolina Department of Environment and Natural Resources
NOI	Notice of Intent
SWPPP	Stormwater Pollution Prevention Plan
USEPA	United States Environmental Protection Agency

(b) In this article, the following terms and phrases shall be defined as indicated unless the surrounding context indicates such definition is clearly erroneous. The definitions shall apply whether the term is used in the singular or in the plural, and whether or not the term is capitalized.

Best management practice (BMP) means government-approved controls, including both nonstructural and structural measures that are designed to reduce the flow of stormwater runoff, or to reduce the amount or concentration of pollutants that enter stormwater and/or the drainage system. Examples of nonstructural BMPs include inspections for leaks and spills, general maintenance and good house keeping practices to prevent pollution, education, and on-site maintenance of a spill cleanup kit. Examples of structural BMPs are facilities such as a roofed shed or elevated storage area to keep precipitation or runoff from reaching raw material storage areas, bioretention cells, and retention and detention ponds.

Clean water act means the Federal Water Pollution Control Act (33 USC 1251 et seq.) and any subsequent amendments thereto.

Director, unless otherwise specified, means the director of the department of public works of the city or any successor department in which stormwater services is located, and includes any individual to whom the director delegates responsibilities under this article.

Discharge means any release, spill, leak, pumping, flow, escape, dumping, deposit, or disposal of any gas, liquid, semi-solid, or solid substance.

Drainage system means the system of natural and constructed conveyances for collecting and transporting stormwater, whether publicly or privately owned. It includes lakes, ponds, rivers, perennial and intermittent streams, connected wetlands, open ditches, catch basins and other inlets, pipes, sewers, drains, culverts, and, in addition, created stormwater management facilities that provide partial treatment by passive means such as wet detention ponds, detention basins, and stormwater wetlands. The MS4 and waters of the state within the city are components included within the drainage system, among other components.

Guidelines means the written guidelines of the stormwater services division, or any successor division responsible for stormwater management, approved by the director.

Hazardous substance means materials or mixtures containing materials which pose a physical, environmental, health or safety hazard by virtue of their ignitable, reactive, corrosive, highly irritating or sensitizing, carcinogenic or toxic properties. Hazardous substances include, but are not limited to, those designated pursuant to 33 USC 1321(b)(2)(A), and those listed or defined in 29 CFR 1910.1200, 40 CFR 116, and 40 CFR 261 subpart B.

Illicit connection means any drain, junction, or conveyance, whether on the surface or subsurface, that can discharge nonstormwater discharges, such as sewage, process wastewater, or wash water, to the MS4 or to watercourses. Illicit connections include, but are not limited to, interior floor drains, whether or not previously allowed under the building code.

Illicit discharge generally means any discharge to the drainage system that is not composed entirely of stormwater, unless specifically allowed as an authorized discharge in section 70-513.

Municipal separate storm sewer system (MS4) means the system of constructed conveyances, including municipal streets, catch basins, curbs, gutters, pipes and ditches owned and operated by the municipality and designed or used for collecting and conveying stormwater, and which is not intended to be used to convey sewage or other wastewaters. In the city, the MS4 generally includes that part of the storm sewer system within street rights-of-way or on other city owned property.

National Pollution Discharge Elimination System (NPDES) permit means a permit that authorizes the discharge of pollutants to waters of the United States issued under the clean water act 33 USC 1242 by the USEPA, or issued by the NCDENR under authority delegated by USEPA.

Nonstormwater discharge means any discharge to or pollution of the drainage system that is not entirely from a form of natural precipitation.

Notice of intent or *NOI* means the notice of intent that is required by the NPDES stormwater multisector general permit issued by USEPA, or the notice of intent required by an NPDES general permit issued by the NCDENR.

Person means any individual, partnership, co-partnership, LLC, firm, company, corporation, unincorporated association, organization, joint stock company, trust, estate, institution, governmental entity or any other entity that owns a property, conducts a business, or controls management or activities.

Pollutant means a substance that alters the chemical, physical, biological, thermal, or radiological integrity of water in a manner that may cause or contribute to the impairment of waters of the state based on the water quality classifications assigned under 15A NCAC 2B.0300. Pollutants include, but are not limited to: paints, varnishes, and solvents; gasoline and other petroleum fuels; oil and other automotive fluids; detergents; food waste, including cooking oil and grease; nonhazardous liquid and solid wastes and yard wastes; refuse, rubbish,

garbage, litter, or other discarded or abandoned objects, floatables; insecticides, fungicides, herbicides and other pesticides; fertilizers; soot, slag, and ash; hazardous substances and wastes; inadequately treated sewage, animal wastes, fecal coliform, Escheria coli and pathogens; dissolved and particulate metals; hot water; wastes and residues that result from constructing a building or structure (including, but not limited to, sediments, slurries, and concrete rinsates); eroded soils, sediments and particulate matter; and noxious or offensive matter of -any kind.

Pollution and polluted means containing pollutants.

Repeat violation means a violation occurring on the same property, or a violation by a person that has committed a previous violation, or by an entity in which a previous person who has committed a violation is part owner or in partial control. A violation for the purposes of determining a repeat violation includes, but is not limited to, violations in which the violator has been notified of the violation by any governmental entity, whether or not any action, remedy, or penalty has occurred as the result of such violation.

Responsible means having direct or indirect control over the occurrence of an action, incident, or condition. Responsibility includes the ability to control what occurs on property through ownership of property, or through ownership, control, or management of a business, organization, or other entity whose activities occur on property and cause in part or in whole the action, incident, or condition. Causation may be through deliberate action or through negligence, omission, or inattention.

Stormwater means any surface flow, runoff, and drainage consisting entirely of water from any form of precipitation, and resulting from such precipitation.

Stormwater pollution prevention plan or *SWPPP* means a government-approved plan identifying actual or potential pollutants that could enter the drainage system at a site, and which describes the best management practices that will be employed to reduce pollutant discharges to the drainage system.

Wastewater means any water or other liquid, other than uncontaminated stormwater, discharged from a facility after use. Examples include water used for washing, flushing, cleaning, or in a manufacturing process.

Watercourse means the open channel and open water components of the drainage system and includes lakes, ponds, rivers, perennial and intermittent streams, connected wetlands, open ditches, and stormwater management facilities such as wet detention ponds, detention basins, and stormwater wetlands.

Waters of the state, as defined in G.S. 143-212(6), means any stream, river, brook, swamp, lake, sound, tidal estuary, bay, creek, reservoir, waterway, or other body or accumulation of water, whether surface or underground, public or private, or natural or artificial, that is contained in, flows through, or borders upon any portion of this state, including any portion of the Atlantic Ocean over which the state has jurisdiction.
(Ord. No. 13342, § 1(23-141), 11-20-2006)

Secs. 70-494—70-510. Reserved.

DIVISION 2. PROHIBITIONS AND REQUIREMENTS

Sec. 70-511. Illicit discharges; containment of spills and discharges; plans to prevent discharges.

(a) *Prohibition.* The discharge, emission, disposal, pouring, or pumping, directly or indirectly, to the drainage system of any liquid, solid, gas, or other substance, other than stormwater, is an illicit discharge and is prohibited, except as allowed in section 70-513. This prohibition also includes airborne emissions where such emissions deposit pollutants into the drainage system.

(b) *Containment of discharges and spills; notice.* Persons responsible for property where an illicit discharge or a spill that may enter the drainage system has occurred shall immediately take appropriate and timely action to contain the discharge or spill. Such person shall notify the director within one working day and comply with all other legally required reporting requirements.

(c) *Plans to prevent illicit discharges.*

(1) Where the location or manner of storage of pollutants on property may cause a significant illicit discharge, or where an illicit discharge has previously occurred on property, the director may require that a responsible person for such property:

a. Develop and maintain BMPs meeting guidelines;

b. Apply for and follow a local permit; and

c. Develop, submit for approval, and follow an SWPPP.

(2) In determining whether to impose such additional requirements the director shall consider:

a. The history of the property;

b. The likelihood of illicit discharges without additional measures; and

c. The impact of such discharges.

(3) A permit or plan required under this section is a regulatory requirement and not a penalty.

(d) *Available remedies*. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 13342, § 1(23-142), 11-20-2006; Ord. No. 15982, § 252, 8-1-2022)

Sec. 70-512. Illicit connections.

(a) *Prohibition.* Construction, creation, or maintenance of an illicit connection is prohibited, except that maintenance during a grace period may be allowed as described in subsection (c) of this section.

(b) *Examples of illicit connections.* Examples of illicit connections include, but are not limited to, pipes or ditches that carry process wastewater or wash water to the MS4 or to watercourses, including but not limited to indoor drains whether or not previously allowed under the building code.

(c) *Removal; grace period.* Illicit connections that were legal prior to passage of the ordinance from which this article is derived may continue to exist until June 1, 2007, at which point they must be removed. However, where the connection has the potential to discharge hazardous substances, the connection shall be removed immediately unless an extension is granted. The director may allow an extension of up to three months for removal of such illicit connection upon a showing of substantial hardship and minimal risk to the public from the delay.

(d) Available remedies. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.

(Ord. No. 13342, § 1(23-143), 11-20-2006; Ord. No. 15982, § 253, 8-1-2022)

Sec. 70-513. Authorized nonstormwater discharges.

The following discharges are not considered illicit discharges prohibited under this article:

(1) *NPDES authorized.* Discharges specifically authorized from a property by an NPDES individual or general permit, a discharge waiver, or a waste discharge order, provided that the discharger demonstrates full compliance with all requirements of the permit, waiver, or order in accordance with section 70-514.

(2) *Flushing.* Discharges of treated potable water used to flush and clean-up a sewage spill where sewage and flush water are collected and returned to the sanitary sewer system, and discharges from water line flushing that have been dechlorinated.

(3) *Emergency firefighting or spill removal.* Discharges from emergency firefighting activities, or emergency remediation of a spill of a hazardous substances authorized by a federal, state, or local government on-scene coordinator, and other discharges specifically allowed in writing by the director as necessary to protect public health and safety.

(4) *Dye testing.* Dye testing using suitable dyes, if verbal notification is given to the director prior to the test.

(5) *Specific listed activities.* Certain conditionally exempt discharges listed in this subsection, provided they are not found to be significant contributors of pollutants. The director may determine in writing that any such discharge from any property is no longer exempt if there is evidence of significant pollution from such discharge.

a. Water line flushing;

b. Landscape irrigation;

c. Diverted stream flows;

d. Rising groundwaters;

e. Groundwater infiltration;

f. Uncontaminated pumped groundwater;

g. Discharges from potable water sources;

h. Foundation drains;

i. Air conditioning condensate (commercial/residential);

j. Irrigation waters (does not include reclaimed water as described in 15A NCAC 2H .0200);

k. Springs;

l. Water from crawl space pumps;

m. Footing drains;

n. Lawn watering;

o. Residential and charity car washing;

p. Flows from riparian habitats and wetlands;

q. Dechlorinated swimming pool discharges;

r. Street wash water;

s. Discharges from flushing and cleaning stormwater conveyances with dechlorinated, unmodified water.

(6) *Wetland dredging.* Dredging or filling of wetlands authorized by a state or federal agency pursuant to the clean water act if conducted in accordance with applicable requirements.

(7) *Mitigation.* Mitigation projects approved by a state or federal agency pursuant to the clean water act if conducted in accordance with applicable requirements.

(8) *Piping.* Piping of streams or stabilization of stream banks and shorelines in accordance with requirements of the Durham City-County Unified Development Ordinance and state or federal authorization and requirements pursuant to the clean water act.

(9) *Farming and forestry.* Ongoing farming and forestry activities that are exempt from permit requirements of section 404 of the clean water act, as specified in 40 CFR 302, conducted in accordance with applicable requirements such as the provisions of 15A NCAC 2B .0233 regarding riparian buffers in the Neuse River Basin.

(Ord. No. 13342, § 1(23-144), 11-20-2006)

Sec. 70-514. Demonstration of compliance under NPDES permits, SWPPPs, BMPs, general NPDES permits, or similar authorizations.

(a) *Required documentation, on-site record maintenance.* Properties subject to a plan to control discharges to the drainage system under NPDES permits, SWPPPs, BMPs, or local permits must demonstrate compliance. The following records shall be maintained on site and shall be available for inspection and copying by city representatives upon request.

(1) A copy of the NPDES permit, state or EPA-issued order, SWPPP, or notice of coverage, as applicable, issued for the premises, activity or operation;

(2) If applicable, a copy of the NPDES permit application, NOI to comply with a general NPDES permit, application for an sedimentation and erosion control permit, or similar application;

(3) Any monitoring plan required as a provision of a permit, SWPPP, or BMP;

(4) All inspection and monitoring data collected for a three-year period, or such shorter period as the property has been required to collect such data.

(b) *Noncompliance.* Failure to demonstrate full compliance with a permit, SWPPP, BMP, or other legal authorization, and failure to obtain a permit required under applicable law, shall, among other things, result in a discharge being considered an illicit discharge under section 70-511.

(c) *Available remedies.* In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 13342, § 1(23-145), 11-20-2006; Ord. No. 15982, § 254, 8-1-2022)

Sec. 70-515. Pollution prevention requirements for automotive activities.

(a) *Secondary containment; spill cleanup kits.* Motor oil, antifreeze, other automotive fluids, and other petroleum products that are stored outdoors shall have secondary containment and shall be stored under a covered area. Gas stations, other fuel-dispensing facilities, nonresidential properties on which ten or more gallons of petroleum or automotive products are stored, and tow-truck operators shall maintain a spill clean-up kit of a type and size to meet guidelines.

(b) *Auto towing, maintenance, service, salvage.* Properties that are used for storage of towed vehicles, vehicle maintenance, vehicle service, or salvage of vehicle parts from vehicles shall have:

(1) One or more spill clean-up kits of a type and size to meet guidelines;

(2) Secondary containment and a covered storage area for substances covered under subsection (a) of this section;

(3) Covered bays in which all vehicle service or maintenance shall be conducted, except for emergency road service, glass repair, and electrical service, such as battery replacement; and

(4) Storage for vehicle parts, both new and used, so that the parts are not exposed to stormwater runoff or precipitation.

(c) *Spills/leaks.* Persons responsible for property where a spill or leak of automotive or petroleum products has occurred shall clean up the spill or leak and report it in accordance with section 70-511(b).

(d) *NPDES permit.* Demonstration under section 70-514 of compliance with a valid NPDES permit that specifically addresses an activity controlled under this section, and imposes different requirements than those stated in this section, shall be deemed compliance with this section.

(e) *Available remedies.* In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 13342, § 1(23-146), 11-20-2006; Ord. No. 15982, § 255, 8-1-2022)

Sec. 70-516. Stormwater pollution prevention plans (SWPPPs) for storage of salvaged vehicles.

(a) *Submission of SWPPP.* Storage of ten or more junked, salvaged, or unlicensed vehicles (hereafter "salvage vehicles") outside, such that they are exposed to precipitation, shall require an SWPPP if the facility does not possess an NPDES permit for such activity. The SWPPP shall be developed and submitted to the director in accordance with the schedule below.

(1) By September 1, 2007, for facilities with 30 or more salvage vehicles; or

(2) By February 1, 2008, for facilities with more than ten but less than 30 salvage vehicles.

(b) *Content of SWPPP.* The SWPPP shall be in compliance with guidelines and shall prevent the discharge of used motor oil and other petroleum products, antifreeze, solvents, other automotive fluids, brake dust, sediment from land disturbance, and other pollutants. The SWPPP shall include the following and such other information as may be required in guidelines:

(1) A map showing the general location of the facility, and a separate site map, drawn to scale, showing location of structures, drainage features on the property, salvage autos, and vehicle parts and equipment cleaning areas;

(2) A description of storage practices, loading and unloading activities, outdoor process areas, activities that generate dust or particulates, and waste disposal practices;

(3) A list of significant spills or leaks of pollutants that have occurred at the site during the three previous years and any corrective actions taken in response;

(4) Methods, in accordance with guidelines, to reduce risk of stormwater pollution, such as secondary containment, and BMPs; and

(5) Monitoring schedule and method for documenting compliance with the SWPPP.

(c) *Alternative SWPPP.* A SWPPP developed pursuant to a valid NPDES general or individual permit for stormwater discharge shall be deemed compliant with this section provided compliance is demonstrated under 70-514.

(d) *Maintenance of SWPPP.* The SWPPP shall be maintained on site, and shall be readily available for review by the city upon request.

(e) *Available remedies*. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 13342, § 1(23-147), 11-20-2006; Ord. No. 15982, § 256, 8-1-2022)

Sec. 70-517. Pollution prevention requirements for hazardous substances.

Hazardous substances that are stored outdoors shall have secondary containment and shall be stored in a covered area. Where the volume or location of hazardous substances presents a risk of pollution to the drainage system, the director may require a person to submit an SWPPP or application for a local permit for approval, and to follow such SWPPP or permit. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 13342, § 1(23-148), 11-20-2006; Ord. No. 15982, § 257, 8-1-2022)

Sec. 70-518. Spills and releases of pollutants.

(a) *Containment.* Persons responsible for a spill or other release of pollutants upon the roads, highways, or in the right-of-way shall take appropriate and timely action to contain and clean up the spilled material to prevent it from entering any drainage system. Appropriate action may include contracting with a third party that is licensed by the state to handle and dispose of the spilled material.

(b) *Report.* A person responsible for a spill that is subject to G.S. 143-215.75 et seq. or other applicable law shall immediately report the spill to the Durham City-County Emergency Management System ("EMS"). The Durham City-County EMS shall report all spills, with details as to location and nature of the spill, within one working day to the director.

(c) *Available remedies*. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 13342, § 1(23-149), 11-20-2006; Ord. No. 15982, § 258, 8-1-2022)

Secs. 70-519—70-524. Reserved.

DIVISION 3. INSPECTIONS

Sec. 70-525. Authority to enter, inspect, and monitor; routine inspection program.

(a) *Right to inspect.* City representatives, upon presentation of credentials and other documents as may be required by law, may enter public or private properties at all reasonable times to inspect, investigate, or monitor activities and conditions subject to this

article. If consent has not been given through a permit or other similar authorization, or a person able to give consent has not consented to entry or inspection, or entry is not otherwise authorized, the director shall obtain an administrative search warrant from a magistrate as provided under G.S. 15-27.2. The director shall show either that the property is subject to a routine inspection program and inspection under such program is due, or that probable cause exists to inspect.

(b) *Inspection activities.* City representatives are authorized to do the following as necessary to determine compliance or noncompliance with this article:

(1) Observe, inspect, measure, sample, test, and monitor;

(2) Place devices to remain on site for runoff or discharge sampling, monitoring, flow measuring, or metering;

(3) Inspect, copy, or examine any records, reports, plans, test results or other information; and

(4) Photograph or video record property conditions, activities, potential causes of pollution, and potential violations.

(c) *Confidential information.* City representatives shall treat as confidential information the composition of materials and substances documented during an investigation if a claim is timely made and substantiated that such substances are trade secrets.

(d) *Obstruction.* No person shall obstruct, hamper, or interfere with a city representative carrying out official duties. Upon presentation of credentials by city inspectors, necessary arrangements shall be made to allow immediate access onto premises or into an area protected by security measures. Any obstruction to the safe and easy access to property, a facility or enclosure on property, or to monitoring devices shall immediately be removed. Unreasonable delays in providing safe and reasonable access or removing obstructions shall be a violation of this article.

(e) *Routine inspection program.* The director may establish, though guidelines, a routine inspection program for properties, businesses, or other activities in order to gather information regarding stormwater, pollution of the drainage system, and compliance with this article. The inspection cycles for categories of properties, businesses, or activities may differ depending on location, proximity to particular streams or other waters of the state, prior history, type of business or activity conducted on site, size of facility, nature of substances on site, or other parameters related to the objectives of this article.

(f) *Available remedies.* In addition to any other remedy available in the Code, violation of this subsection (d) is a misdemeanor.
(Ord. No. 13342, § 1(23-150), 11-20-2006; Ord. No. 15982, § 259, 8-1-2022)

Secs. 70-526—70-530. Reserved.

DIVISION 4. DRAINAGE SYSTEM MAINTENANCE; CONSTRUCTION PERMITS

Sec. 70-531. Maintaining drainage systems; permitted alterations.

(a) *Maintaining clear drainage system.* All persons shall keep and maintain the drainage system, both surface and underground, located on their property free from obstructions, trash, and debris.

(b) *Obstructing drainage system.* No person shall deposit, or allow or cause to be deposited, into any part of the drainage system, including, but not limited to, street gutters, catchbasins, ditches, pipes, and streams, any material or substance that will cause or contribute to blockage or reduced discharge of the drainage system, or that will damage the drainage system. This includes, but is not limited to, refuse, rubbish, construction waste, leaves, landscaping debris, garbage, and dirt and sediment.

(c) *Upset.* The prohibition above shall not apply to NPDES-authorized discharges of sediment that result from an upset as defined in the applicable NPDES permit.

(d) *Permitted activities.* The provisions above do not prohibit the construction, reconstruction or alteration of drainage systems and BMPs that comply with city design standards and sound engineering practices where construction is in accordance with section 70-533, or the applicable sedimentation and erosion control program, and where the work employs adequate sediment and erosion control practices.

(e) *Available remedies*. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 13342, § 1(23-151), 11-20-2006; Ord. No. 15982, § 260, 8-1-2022)

Sec. 70-532. Obstructing the free flow of water.

No person shall construct, install or maintain any stormwater or drainage system in such a manner as to obstruct or impede the free flow of water. This section does not apply to the construction, reconstruction or alteration of drainage systems and BMPs in compliance with city design standards and sound engineering practices and for which a permit or other approval has been secured from the city's stormwater services division. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 13342, § 1(23-152), 11-20-2006; Ord. No. 15982, § 261, 8-1-2022)

Sec. 70-533. Permit requirements for construction; fees.

(a) *Approvals for BMPs, construction connecting to MS4.* All construction of, or nonroutine maintenance work on a BMP, or other drainage feature that is intended to prevent pollutants from entering the drainage system, or a natural or constructed portion of the drainage system that directly connects to the MS4 or to the waters of the state shall require a permit or other approval from the city.

(b) *Guidelines.*

(1) Guidelines may require that:

a. Permits or approvals be obtained for other work on the drainage system;

b. Certain work is exempt from permitting or approvals, based on:

1. The nature of the activity;

2. The size of the infrastructure;

3. Other permits that are in place; and

4. Other criteria relevant to drainage system impacts; and

c. Mandated practices for work on the drainage system be followed in lieu of obtaining a permit or approval.

(2) Guidelines may also specify the information required to be submitted for a permit or approval, or for a determination that a permit or approval is not required.

(c) *Fees.* The city shall establish appropriate fees to recover the costs of review of applications and issuance of permits and approvals authorized in this division, and for the monitoring of BMPs and other drainage features that discharge directly or indirectly to the MS4. The city may also require security instruments or other financial guarantees, or payment into a fund in lieu of such guarantees, to ensure the continuous upkeep and/or reconstruction of city-required BMPs or other pollution prevention features.

(d) *Available remedies.* In addition to any other remedy available in the Code, failure to obtain a permit or approvals as required by this section is a misdemeanor.
(Ord. No. 13342, § 1(23-153), 11-20-2006; Ord. No. 15982, § 262, 8-1-2022)

Secs. 70-534—70-537. Reserved.

DIVISION 5. ADMINISTRATION AND ENFORCEMENT

Sec. 70-538. Administration and enforcement of article and stormwater program.

The director is authorized to administer and enforce the provisions of this article and other regulations of the city concerning the stormwater system unless a contrary intention is expressed in such other regulations. Among other things, the director shall have the authority to issue guidelines to implement this article, and to establish fees, as authorized by the city council, in the adopted budget or otherwise, to implement the stormwater activities authorized in this article and in other sections of this Code. The director is also authorized to remediate any violations, to alter any previously issued remedies, and, except as limited below, to settle any case or controversy arising under this article, including, but not limited to, those subject to administrative remedies. In the event of judicial action that has been

filed on behalf of or against the city regarding this article or the city's stormwater program, any settlement shall be approved by the city manager or city council, as applicable, consistent with the city manager's delegated settlement authority.
(Ord. No. 13342, § 1(23-154), 11-20-2006)

Sec. 70-539. Declaration of violation; remedies.

(a) *Violation.* Failure to comply with the provisions of this article or the guidelines, conditions, plans, permits, approvals, or other similar authorizations issued pursuant to this article is a violation of this article, unlawful, and subject to all remedies authorized under law, including, but not limited to, those described in this division.

(b) *Separate offense.* Each day of a violation may be considered a separate violation or offense.

(c) *Persons responsible.* All persons considered under the definitions of this article to be responsible for a violation shall be considered violators. Violators include, but are not limited to, owners of property where a violation occurs; persons in the design or construction field who have created, directed, or assisted in the design or construction of an improvement or feature in violation of the requirements of this article; and persons who have control over the use or maintenance of property or the activities occurring on property where a violation has occurred. Multiple violations may be charged against multiple individuals or entities for an action that violates this article.

(d) *Remedies not limited.* The remedies provided herein, whether civil, criminal, or administrative, are not exclusive; may be exercised singly, simultaneously, or cumulatively; may be combined with any other remedies authorized under the law; and may be exercised in any order.

(e) *Public nuisance.* A violation that results in observable or detectable negative impacts to the drainage system or to the public health or safety is a public nuisance and subject to all remedies for a nuisance available in law and equity.
(Ord. No. 13342, § 1(23-155), 11-20-2006)

Sec. 70-540. Remedies and penalties.

Remedies available for enforcement of this article, and penalties for its violation, include, but are not limited to, those described in the following subsections. Pursuit of certain remedies and penalties requires compliance with the procedures specified in section 70-541.

(1) *Administrative remedies.*

a. *Show cause meeting.* The director may have a meeting with the violator prior to taking any enforcement action under this article. The violator shall receive notice of such meeting consistent with procedures in section 70-541, and shall have an opportunity to be heard.

b. *Consent orders.* The director may enter into consent orders, assurances of voluntary compliance, or other similar agreements with a violator. Such

agreements shall include, but not be limited to, specific action to be taken by the violator to correct the violation within the time period established in the order. A consent order may also include a mitigation project undertaken to improve environmental quality of the drainage system in the event that the director and the violator agree on such project as an additional compliance measure to generally remediate the impacts of a violation.

c. *Administrative orders.* The director may direct a violator to comply with this article through an administrative order which sets forth specific actions that must be taken and a timetable for taking them.

d. *Mandatory security for compliance.* The director may require a violator to post a bond or provide other financial security of a type, form, and amount as specified in the discretion of the director, to assure performance of any actions required to bring a property into compliance with this article.

e. *Termination of utility service.* Where it appears that the continuation of water and/or sewer service may contribute to a violation of this article, as, for example, an illicit connection, utility service may be terminated.

f. *Costs added to utility bill.* The costs of any action taken by the city to investigate and remediate a violation of this article may be added to the violator's utility bill, and, if unpaid, may result in termination of utility service as otherwise provided in this Code.

g. *Termination of access.* Any property on which illicit discharges to the MS4 have occurred may have their access to the MS4 terminated if such termination would contribute to the likelihood that the illicit discharge would be reduced or abated.

h. *Withholding of inspections, permits, certificate of occupancy or other approvals.* Building inspections; permits for development or other improvements; requests for plan approval for zoning, subdivision, other development or construction; and certificates of occupancy may be withheld or conditioned upon compliance with this article until a violator with ownership or management of the property for which permits or approvals are sought has fully complied with this article and all actions taken pursuant to this article.

(2) *Civil penalties.*

a. *Assessment of penalty.* The director may assess civil penalties for violations of this article after providing the violator notice and opportunity to respond described in the procedures set forth in section 70-541. Such penalty, if unpaid within 30 days of notice to the violator that payment is due, may be collected through a civil action in the nature of debt as described in subsection (3) of this section. The director shall apply the standards and criteria set forth in subsections (2)b through (2)d of this section in determining the amount of the penalty.

b. *Penalty amounts for properties used for nonresidential purposes.* A maximum base penalty of up to $10,000.00 per violation may be assessed for violations occurring on properties used, in whole or in part, for nonresidential purposes or containing nonresidential uses, subject to the following limitations and additions:

1. An additional $10.00 per gallon may be added to the base amount for an illicit discharge to the drainage system that exceeds 1,000 gallons;
2. An additional 25 percent may be added to the base amount for repeat violations; and
3. First-time violations on property, or by a person, shall be limited to $2,000.00 per violation unless the property or person is an industrial activity subject to NPDES requirements.

c. *Penalty amounts for properties used for residential purposes.* A maximum base penalty of up to $500.00 per violation may be assessed for violations occurring on properties used entirely for residential purposes, subject to the following limitations and additions:

1. Penalties for blockages of the drainage system shall be limited to $100.00 per violation, except for multifamily residential properties, or when the blockage causes off-site impacts.
2. The maximum base penalty may be doubled for repeat violations.

d. *Criteria for assessing penalty.* In determining the amount of the penalty, the director shall consider the following factors in addition to any factors set forth in guidelines:

1. The degree and extent of harm to the environment, the public health, public property, and private property;
2. The duration and gravity of the violation;
3. The effect on ground or surface water quality or on air quality or on flood hazard;
4. The cost of rectifying the damage;
5. The amount of money saved by noncompliance;
6. Knowledge of the requirements by the violator, and/or reasonable opportunity or obligation to obtain such knowledge;
7. Whether the violation was willful;
8. Actions taken by the violator to prevent or remediate the impacts;
9. Whether the violation is a repeat violation; and
10. The costs of enforcement to the city.

(3) *Judicial actions.*

a. *Injunction, abatement.* The director may institute an action in a court of competent jurisdiction for a mandatory or prohibitory injunction and/or an order of abatement or other equitable remedy that requires, among other things, that action be taken on property to correct a violation. A violator who fails to comply may be cited for contempt, and the city may execute the order under G.S. 160A-175(e). A violator may also be subject to remedies available for a nuisance under G.S. 160A-193 or other law. Costs of prosecution and/or correction and of remediation of the violation may be assessed as a lien on the property upon which the violation has occurred, and collected as unpaid taxes, as provided by law.

b. *Collection of civil penalties.* Action may be instituted against the violator to recover any civil penalty that has not been paid within 30 days of the date the violator receives notice of the penalty.

(Ord. No. 13342, § 1(23-156), 11-20-2006; Ord. No. 15982, § 263, 8-1-2022)

Sec. 70-541. Procedures for notifying violator and meeting with director.

(a) *Content of notice.*

(1) Except in emergencies, as described hereafter, upon determining that a violation has occurred, the director shall provide to each violator against whom remedial action or penalties may be pursued, written notice that describes:

a. The location of the property and the nature of the violation;

b. A general description of the remedies and penalties that may be incurred if the violation is not corrected;

c. The action needed to correct the violation;

d. The time period during which corrective actions must occur;

e. How to provide explanatory or additional information and a contact person with whom the violation can be discussed;

f. How to request a meeting with the director available for certain violations as described below; and

g. The deadline for providing information or requesting a meeting.

(2) Only one such notice shall be required to each violator, regardless of the number of remedies or penalties that are pursued or the timing of their institution.

(b) *Service.* The notice shall be placed in an envelope bearing the name of the violator and, in addition, any names of individuals upon whom service is intended. Delivery shall be by one or more of the following methods, as appropriate:

(1) Certified or registered mail, return receipt requested;

(2) Hand delivery to the individual, if the violator is an individual;

(3) Hand delivery to an adult at the business or institutional address of the violator if the violator is an entity;

(4) Any means authorized for the service of documents by Rule 4 of the North Carolina Rules of Civil Procedure; or

(5) First class mail addressed to the violator, if notice of the violation is also posted at the violator's residence or place of business, as may be appropriate.

(c) *Delay in imposing certain remedies/penalties.* Except in emergencies, as described hereafter, utility service shall not be terminated under section 70-540(1)e., civil penalties shall not be assessed, and judicial action shall not be initiated prior to the expiration of the time period allowed for the violator to correct the violation. The director may extend the times allowed in the written notice for correction of the violation. The extension must be in writing.

(d) *Meeting.* If the violator makes a timely request for a meeting with the director, during the time period set forth in the notice provided under subsection (a) of this section, such meeting shall be scheduled at a time determined in the discretion of the director prior to terminating utility service under section 70-540(1)e., imposing a civil penalty, or initiating judicial action. The violator shall have the opportunity to present any information relevant to the violation or proposed remedy or penalty at the meeting, in writing or orally.

(e) *Additional written notice of termination of utility service or imposition of civil penalties.*

(1) Except in emergencies as described hereafter, when the director determines to terminate utility service under section 70-540(1)e., or assess a civil penalty, additional written notice of such proposed action shall be given to the violator. The notice shall contain:

a. Copy of the notice initially given under subsection (a) of this section; and

b. The director's written determination regarding the termination of utility service and/or civil penalties to be assessed and the reasons for such action.

(2) Service on the violator shall be as provided in subsection (a) of this section.

(3) A right to appeal prior to termination of utility services may be available as further provided in the utility payment provisions of this chapter.

(Ord. No. 13342, § 1(23-157), 11-20-2006)

Sec. 70-542. Emergencies.

If delay in correcting a violation would seriously threaten the effective enforcement of this article or pose an immediate danger to the public health, safety, or welfare, or to the waters of the state, then the director may order the immediate cessation of the violation without utilizing the procedures described in section 70-541. Any person ordered to cease such violation or to remedy such violation shall do so immediately. The director may seek

immediate enforcement through any remedy or penalty authorized in this article or other applicable law. In addition to any other remedy available in the Code, violation of this section is a misdemeanor.
(Ord. No. 13342, § 1(23-158), 11-20-2006; Ord. No. 15982, § 264, 8-1-2022)

Secs. 70-543—70-551. Reserved.

ARTICLE VI. WATER EFFICIENCY*

DIVISION 1. YEAR-ROUND WATER EFFICIENCY REQUIREMENTS

Sec. 70-552. Definitions.

The definitions below are applicable to all divisions within this article. The following words and phrases and their derivation shall have the meaning as set forth below. The word "shall" is always mandatory and never directory.

City water means potable water supplied through pipes by the city to users.

Director means the director of the City of Durham's Department of Water Management or his/her designee.

Drip irrigation means the application of city water to the ground through drip emitter devices emitting drops or small streams at low pressure, volume, and velocity near or at ground level.

Even-numbered properties mean properties with addresses that end in even-numbered digits, and other properties so designated by the director.

Inspection means an entry into and examination of premises for the purpose of ascertaining compliance with the requirements of this article.

Installer means any person that constructs, installs and/or repairs irrigation systems.

Irrigate or *irrigation* means apply, or the application of, city water to outdoor soil or landscape surfaces.

Irrigation system means a device or combination of devices having a hose, pipe, or other conduit which transmits city water to outdoor soil or landscape surfaces.

***Editor's note—**Ord. No. 13919, adopted November 2, 2009, repealed and reenacted article VI in its entirety to read as herein set out. Formerly, article VI, divisions 1 and 2, pertained to water conservation, and derived from the Code of 1982, §§ 23-163—23-168; Ord. No. 7028, § 1, adopted July 28, 1986; Ord. No. 12461, § 1, adopted December 3, 2001; Ord. No. 12503, § 1, adopted February 4, 2002; Ord. No. 12644, § 1, adopted August 19, 2002; Ord. No. 13505, §§ 1, 2, adopted November 19, 2007; Ord. No. 13560, § 3, adopted March 17, 2008, and Ord. No. 13793, §§ 1, 2, adopted May 4, 2009.

Odd-numbered properties mean properties with addresses that end in odd-numbered digits, and other properties so designated by the director.

Public purpose athletic or recreational field means an athletic or recreational field owned or leased by a public or not-for-profit entity which is operated for public use, through general invitation and is not operated for the purpose of profit.

Public purpose botanical site means a site owned or leased by a public or not-for-profit entity in which a variety of plants are grown for scientific purposes or for education of the public.

Rain sensor means an automatic device that will override the irrigation cycle of an irrigation system and turn it off when a predetermined amount of rain has fallen or a moisture parameter is met that is equivalent to that amount of rain.

Recreational field means an athletic or recreational field that is not located at a residence.

Runoff means city water which is not absorbed by the outdoor surface to which it is applied.

Soil moisture sensor means a calibrated automatic device that is designed to measure the quantity of water contained in a material, such as soil, on a volumetric or gravimetric basis and override the irrigation cycle of the irrigation system and turn it off when a predetermined soil moisture level is reached.

User means any person who is an owner or occupant of real property, whether inside or outside of the city, to which water is supplied by the city, or who uses water supplied by the city, or who is billed for water supplied by the city, or who is responsible for or otherwise has the right or permission to utilize water supplied by the city.

Water conservation plan means the plan submitted to the director by large users, botanical sites, recreational fields and other special water users specifying particular conservation measures, including irrigation measures, to be employed during stages of water shortage.

Water shortage response plan refers to a written plan required under state law that is approved by the director and the manager for submission to the state, and which establishes, among other things, various levels of response to water shortage and the triggers for such levels.

Water waste refers to any non-beneficial use of city water.
(Ord. No. 13919, 11-2-2009)

Sec. 70-553. Purpose and intent.

It is the purpose and intent of this division to:

(1) Assure that available water resources are put to reasonable beneficial uses and maximize the efficient use of the city water supply so as to potentially avoid unnecessary water supply expansion;

(2) Reduce damage to publicly-owned streets and sidewalks caused by landscape runoff and overspray;

(3) Increase safety on streets and sidewalks by reducing the potential for pooling and frozen water on such areas; and

(4) Prevent pollution of streams, lakes, and other surface waters by reducing water runoff from landscaped areas.

This division shall be liberally construed to effectuate this purpose and intent.
(Ord. No. 13919, 11-2-2009)

Sec. 70-554. Mandatory irrigation efficiency requirements.

The following requirements are applicable to all users:

(1) *Year round irrigation schedule for spray irrigation systems.*

a. *Spray irrigation.* Users shall not operate spray irrigation systems more than three days per week and shall follow the following irrigation schedule:

1. Even-numbered properties may be irrigated only on Sundays, Wednesdays, and/or Fridays.

2. Odd-numbered properties may be irrigated only on Tuesdays, Thursdays, and/or Saturdays.

3. Irrigation may not occur between 10:00 a.m. and 6:00 p.m.

b. *Exemptions from year round requirements.* The restrictions in subsection a. above shall not apply to the following:

1. Properties using drip irrigation, hand watering, or tree or shrub watering bags;

2. Watering of containerized plants and commercial plant stock in trade for sale;

3. Outdoor irrigation necessary to establish newly sodded or seeded lawns or new non-turf plant materials within the first 45 days of planting provided that the customer secures a written license from director, and prominently displays the license. A limit of two licenses per address per year may be issued, and licenses may be revoked for any cause.

4. Irrigation for a maximum of one day necessary when treatment with an application of chemicals requires immediate watering to preserve an existing landscape or to establish a new landscape, provided that such irrigation does not occur between the hours of 10:00 a.m. and 6:00 p.m.

5. City water used to control dust or to compact soil when alternate methods are not available.

6. Visually supervised operation of irrigation systems for short periods of time to check system condition and effectiveness.

7. City water applied to prevent or abate health, safety, or accident hazards when alternate methods are not available.

8. City water used for construction or maintenance activities where the application of water is the appropriate methodology and where no other practical alternative exists.

9. Public purpose athletic fields, recreational fields, and botanical sites operated in compliance with a water conservation plan that has been approved by the director. The plan must specify the conservation measures and irrigation operating modes to be employed at the site year-round and during successive stages of a declared water shortage.

(2) *Sensor requirement for new and existing irrigation systems.* Users and installers shall not install automatic irrigation systems of any type without a rain or soil moisture sensor that will prevent irrigation during periods of rainfall and when there is sufficient moisture in the ground for plant health and survival. Existing irrigation systems shall install a rain or soil moisture sensor by November 30, 2009.

(3) *Sensor settings.* All rain sensors shall be adjusted and set so that they automatically shut off the irrigation system after not more than one-fourth inch of rainfall has occurred or an equivalent moisture parameter is reached. All rain sensors shall be installed according to manufacturer's instructions in a location that will provide full exposure to rainfall or appropriate moisture parameter such that accuracy of operation is assured. All rain sensors shall be maintained in good working condition. No person shall adjust either the rain sensor or irrigation system so that the sensor is not able to override and turn off the irrigation system after one-fourth inch of rain has fallen or an equivalent moisture parameter is reached.

(4) *Hand operated equipment.* All hoses used for hand watering, vehicle washing, or other allowable outdoor uses shall be equipped with shutoff nozzles.

(5) *System design.* All irrigation systems shall be designed, maintained, and operated to prevent, to the extent practicable, water from flowing onto paved or other impervious surfaces.

(Ord. No. 13919, 11-2-2009)

Sec. 70-555. Prohibition of water waste.

No user shall:

(1) Cause or allow run off of city water from landscape areas into adjoining impervious areas, adjacent property, or streets, sidewalks, gutters, stormwater drains, or other paved surfaces as a result of incorrectly directed or maintained sprinklers, irrigation systems, or other application devices, or excessive watering.

(2) Cause or allow irrigation while precipitation is falling.

(3) Knowingly allow water to escape through leaks, breaks or malfunction within the water user's plumbing or distribution system for any period of time beyond which such a leak or break should reasonably have been repaired or corrected. All leaks, breaks or malfunctions shall be corrected within 30 days of identification of the source of the leak.

(4) Use or allow the use of water or flushing from any public or private fire hydrant for any purpose other than fire suppression, necessary fire hydrant or water distribution system maintenance, public emergency, or with prior approved written exception from the city.

(5) Willfully or negligently waste water in a manner not otherwise prohibited above.

(6) The prohibitions listed in the subsections above do not apply to:

a. Water waste that occurs prior to June 1, 2009;

b. Flow from firefighting, inspection of fire hydrants, fire training activities, or from similar government activities;

c. Water applied to prevent or abate health, safety, or other hazards when reasonable alternate methods are not available; and

d. Flow resulting from the inspection, operation, or maintenance of a public utility system.

(Ord. No. 13919, 11-2-2009)

Sec. 70-556. Enforcement and variances.

This division may be enforced, and the provisions of this division may be varied, through the provisions contained in division 3.
(Ord. No. 13919, 11-2-2009)

Sec. 70-557. Relationship to water shortage stages.

The requirements of this division may be superseded by a declaration of a water supply shortage or emergency, or by mandatory water restrictions set forth in division 2.
(Ord. No. 13919, 11-2-2009)

Secs. 70-558—70-562. Reserved.

DIVISION 2. WATER SHORTAGE RESPONSE REQUIREMENTS

Sec. 70-563. Purpose and intent.

It is the purpose and intent of this division to ensure that available water resources are put to reasonable beneficial uses to avoid depletion of the city water supply during a water shortage. This division shall be liberally construed to effectuate such purpose and intent.
(Ord. No. 13919, 11-2-2009)

Sec. 70-564. Response to water shortage.

The director shall report to the city manager conditions adversely affecting the city water supply that trigger mandatory restrictions prescribed by the city's water shortage response plan. Upon receiving such report, the city manager will declare a water shortage to exist and will enact the appropriate stage of water restriction as outlined in the city's water shortage response plan. The restrictions required under each stage shall be as set forth in this division. The city manager or the city council may terminate any stage of water restriction once the triggers for rescission prescribed by the water shortage response plan occur. The imposition of drought-related mandatory construction restrictions shall be in accordance with section 70-567.
(Ord. No. 13919, 11-2-2009)

Sec. 70-565. Water conservation plan requirements for large users and others.

All users of more than 100,000 gallons per day, or that own botanical sites, or recreational fields, or golf courses, and other users whose water use is determined by the director to be unique or amenable to individually-determined controls shall have a water conservation plan on file with the department of water management. New users shall submit such a plan within six months of beginning operation, or within such time period as allowed by the director. The plan must specify the conservation measures to be used by the site or sites of the entity during successive stages of a declared water shortage, which measures shall be targeted to achieve the general percentage reductions for each stage as set forth in this article. For botanical sites and recreational fields, the plan must specify the irrigation operating modes to be employed at the site year-round and during successive stages of a declared water shortage. The director may approve, disapprove, or require modifications to the plan. An approved plan may vary the requirements of this division. The user shall operate in accordance with the approved plan and shall keep records as required to document compliance with the plan. Users that do not have an approved plan are subject to all of the requirements of this division.
(Ord. No. 13919, 11-2-2009)

Sec. 70-566. Mandatory water restriction stages.

(a) *Stage 1 water shortage.* Upon declaration of a stage 1 water shortage, users shall comply with the following measures:

(1) *Spray irrigation.* Users shall not operate spray irrigation systems more than one day per week as specified by the director and based on the location address. Irrigation may not occur between 10:00 a.m. and 6:00 p.m.

been added to the user's utility bills pursuant to subsection (e). If termination is for a fourth violation, a notice of violation shall be sent as described above. If it is for nonpayment, the notice and procedures otherwise applicable in city ordinance shall apply. Service reconnection shall only be allowed upon payment of any past due utility bills, including but not limited to civil penalties and reconnection charges.

(e) *Assessment of penalties.* Notice of civil penalties imposed shall be given by first class mail, and may subsequently be added to the violator's utility bills.
(Ord. No. 13919, 11-2-2009)

Sec. 70-574. Variances.

(a) Administrative variances of the restrictions in this article may be issued by the director provided that the general intent of this article is met, compliance is proven to cause practical difficulties and unnecessary hardship, and all reasonable options for abatement through modified water management have been exhausted. The criteria to determine hardship shall include but not be limited to the level of capital outlay and time required to achieve compliance.

(b) Variances may be issued for a time-limited period, and shall stipulate both short-term corrective measures and a schedule for completion of long-term corrective measures. Variances may be renewed for good cause shown.
(Ord. No. 13919, 11-2-2009)

Sec. 70-575. Appeal.

(a) *Time for appeal.* A user may appeal a determination of a violation, or any penalty for violation to the director by filing an appeal within seven calendar days of receiving a notice of violation. The appeal shall identify the property and state the grounds of appeal together with all material facts in support thereof. Violations already appealed may not be appealed again if a determination regarding the contested facts has already been made.

(b) *Meeting.* A User who appeals shall be offered the opportunity for a meeting with the director, and may present any information in addition to that presented in writing. Notice of the meeting time shall be sent certified or registered mail, return receipt requested.

(c) *Decision.* The decision of the director shall be in writing and shall explain the basis for the decision, and the penalty imposed. If corrective action is ordered, the director shall specify the time frame during which it must taken so as to avoid additional penalties.
(Ord. No. 13919, 11-2-2009)

Secs. 70-576, 70-577. Reserved.

ARTICLE VII. CROSS-CONNECTION CONTROL*

Sec. 70-578. Purpose.

The purpose of the City of Durham's (the city) Cross Connection Control (CCC) Ordinance is to protect public health and to control cross connections that could allow contaminants or pollutants to enter the city water distribution system via backflow from a customer's water system through connections to the city water distribution system.

This article outlines the requirements for City of Durham water customers to control cross connections and install and maintain backflow prevention assemblies (BFPA), consistent with Federal,

State, and local regulations. This article is subject to periodic amendments as laws and industry standards continue to evolve.
(Ord. No. 15942, § 1, 6-6-2022)

Sec. 70-579. Applicability.

This article applies to all commercial, industrial, non-residential, and multi-family residential service connections with a connection to the city's water system as well as to any persons outside the city who are, by contract or agreement, users of the city's water system. In addition, the CCC Ordinance applies to single-family residences with a connection to the city's water system when a cross connection (e.g., irrigation system, reclaimed water systems, certain residential fire protection systems, make-up lines to swimming pools) is installed at the residence. This article also applies to State and Federal owned properties.
(Ord. No. 15942, § 1, 6-6-2022)

Sec. 70-580. No city liability.

The provisions of this article shall not create any liability in the city or city staff members for failure to detect any cross connection, BFPA malperformance, hazard, or contamination of the potable water distribution system.
(Ord. No. 15942, § 1, 6-6-2022)

Sec. 70-581. Federal, state, and local requirements.

(a) *Federal requirements*. The CCC Program shall, at a minimum, comply with the Federal Safe Drinking Water Act (1974) and Safe Drinking Water Act Amendments (1986). These Acts state that the water purveyor has the primary responsibility for preventing the introduction of pollutants or contaminants into the public water distribution system. The

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***Editor's note—**Ord. No. 15942, § 1, adopted June 6, 2022, repealed the former Art. VII, §§ 70-578—70-593, and enacted a new Art. VII as set out herein. The former Art. VII pertained to similar subject matter and derived from Ord. No. 6723, § 1, adopted May 20, 1985; Ord. No. 14137, adopted June 20, 2011; Ord. No. 14428, § 1, adopted April 1, 2013; Ord. No. 15382, § 1, adopted Oct. 15, 2018; Ord. No. 15439, §§ 1, 2, adopted March 18, 2019.

requirements of these Acts, applicable State laws, and other implementing regulations are incorporated into this article as minimum requirements for compliance with the City of Durham CCC Program.

(b) *State requirements*. The CCC Program shall, at a minimum, comply with the North Carolina Drinking Water Act, the North Carolina Building Code, and regulations issued thereunder. The CCC Program shall also comply with North Carolina Administrative Code (NCAC) and NC General Statues.

(c) *Local requirements*.

(1) CCC Ordinance. This CCC Ordinance applies to all users connected to the City of Durham's water supply system. The ordinance delegates responsibilities, provides right of entry authority, allocates degree of hazard provisions, assigns testing and repair requirements for BFPAs, delineates facilities requiring containment, issues requirements for connections to unapproved water supply sources, and outlines enforcement criteria. This CCC Ordinance complies with the Federal Safe Drinking Water Act (Public Law [PL] 93-523), the North Carolina State Administrative Code (15A NCAC 08G), Department of Environmental Quality (DEQ) Public Water Supply Subchapter 18C, and the North Carolina Building Code (Volume II) (i.e., the North Carolina Plumbing Code) as they pertain to cross connections within the water distribution system (Section 28-231).

(2) CCC policy. The City of Durham CCC Policy (i.e., the Standards) are written requirements initially approved by city council, and subsequently maintained by the Department of Water Management and the City of Durham Code of ordinance section 1-16 - Reference guide for development that meet, at a minimum, the requirements of the Federal and State regulations.

The policy outlines BFPA installation requirements, requirements for issuing connections to unapproved water supply sources, the permitting process, specific backflow prevention requirements for fire protection systems, and the criteria for enforcement.
(Ord. No. 15942, § 1, 6-6-2022)

Sec. 70-582. Definitions.

The following definitions shall apply to this Article:

"A" class certified tester means a certificate is issued to fire sprinkler contractors licensed by the State of North Carolina (NC) for the purpose of testing any backflow preventer and limited to installation, cleaning, repairing, and/or replacing only fire protection backflow preventers. Testers may be included on the City of Durham's Certified Testers list.

Accessible (access to) means capable of being reached for testing and maintenance; however, it first may require the removal of an access panel, door, dirt, sod, or similar obstruction.

Administrator means CCC Administrator; the official in the Department designated by the director to perform certain functions regarding administration of the city's CCC Program.

Air gap means a physical separation between the free-flowing discharge end of a potable water supply pipeline and an open or non-pressure receiving vessel. An "approved air gap" shall be at least twice the diameter of the supply pipe measured vertically above the flood-level rim of the receiving vessel, in no case less than one inch (2.54 centimeters (cm)). An air gap is the only absolute method for preventing backflow, however it is the easiest to alter or breach.

Approved means meeting the standards for cross connections or certified in writing as acceptable by the CCC Administrator, provided that such certifications do not contradict the standards.

Approved backflow prevention assembly (BFPA) means an assembly that has been approved for use by the Department of Water Management [DWM] CCC Group. Approval of a BFPA includes the approval of shut-off valves (SOV) and test cocks (TC) (and is in-line testable).

Atmospheric vacuum breaker (AVB) means a device that prevents backsiphonage by creating an atmospheric vent when there is either negative pressure or sub-atmospheric pressure in a water system; it includes those devices permanently attached to a hose bibb (e.g., hose bibb vacuum breaker [HBVB]). (e.g. ASSE 1001).

Auxiliary intake/water means any water supply on or available to a consumer's property other than the city's approved public potable water supply. Auxiliary waters may include water from another purveyor or any natural source (e.g., well, spring, any unknown water source).

"B" class certified tester means a certificate is issued to personnel who are employed and work at a facility owned by their employer for the purpose of testing BFPAs on their premises only; and testers, without contractor licenses, who test in other jurisdictions. BFPA testing is authorized under this class. No internal cleaning, repair, or replacement work is authorized.

Backflow means the undesirable reversal of flow of a liquid, gas, or other substance in a potable water distribution piping system at a cross connection.

Backflow permit means a document issued by DWM that authorizes a particular action or use of a particular BFPA or another device.

Backflow preventer (BP) means an assembly, device, or method that prevents the backflow of water into potable water supply systems. (Note: The definitions of specific backflow preventer types provided in the American Water Works Association (AWWA) Manual of Water Supply Practices M14: Recommended Practice for Backflow Prevention and Cross Connection Control are adopted by reference, including subsequent amendments and editions.)

Backpressure means a form of backflow where the pressure in the user's water system is greater than the city's water distribution system pressure which can cause a reversal of the normal direction of flow (e.g., booster pumps, lawn irrigation, equipment that allows for extreme temperature increases (e.g., boiler], elevation differences).

Backsiphonage means a form of backflow due to the supply line pressure falling below atmospheric pressure (14.7 pounds per square inch (psi) at sea level) or a reduction in system pressure resulting in sub-atmospheric pressure in the water system. (e.g., water line flushing, firefighting, breaks in the water mains).

Bypass means any arrangement of pipes, plumbing, or hoses that divert flow around an installed backflow device (BPD) or BFPA through which the flow normally passes.

"C" class certified tester means a certificate is issued to a contractor (i.e., plumbing and utility contractors) licensed by the State of North Carolina for the purpose of installing, cleaning, testing, repairing, removing, or replacing any BFPA. Testers may be included on the City of Durham's certified testers list.

CCC administrator means staff within the City of Durham responsible for the implementation and enforcement of the CCC Program as defined by this article and the Standards.

CCC policy means the written requirements approved by the Durham City Council, and maintained by the department, in the City of Durham Reference Guide for Development, paper and online, that meet, at a minimum, the Federal, State, and local cross connection control regulations (see the definition for Standards).

Certified tester means a person who meets minimum requirements for "A" Class Certified Tester, "B" Class Certified Tester, or "C" Class Certified Tester which include successful completion of a training program approved by the DWM Director and performance of work that meets standards outlined in the CCC Policy document.

Commercial property means a property that includes office buildings, industrial facilities, institutional facilities, medical centers, hotels, retail stores (including malls), farmland, multi-family housing (e.g., apartment complexes, condominiums), warehouses, and commercial garages. Refer to the definition of *non-residential*.

Consumer means any person, firm, or corporation responsible for any property at which water from the city's water distribution system is received. In the absence of other parties or failure of the other parties to accept responsibilities herein set forth, the owner of record shall be ultimately responsible.

Containment means when backflow preventer(s) (BP) are installed downstream of the primary water meter and before any branching or point of use connections to contain any contaminants in the consumer's system from backflowing into the city's water distribution system.

Contamination means the introduction of any substance that negatively impacts the quality of water supplied by the city presenting a hazard to public health (e.g., severe illness or death).

Contractor means an individual, firm, or corporation that undertakes a contract to provide materials or labor to perform a service or do a job.

Customer means see definition of consumer.

Cross connection (CC) means an actual or potential physical connection between any part of a water system and any other environment containing other substances in a manner that under certain circumstances allow such other substances to enter the potable water system. Other substances may be gases, liquids, or solids. Other substances may be chemicals, water products, steam, water from other sources (potable or non-potable), or any matter that may change the color or add odor to the potable water. Cross connections include, but are not limited to, bypass arrangements, jumper connections, removable sections, swivel or changeover assemblies, or any other temporary or permanent connecting arrangement through which backflow may occur.

CCC group means City of Durham employees in the CCC Program that are responsible for the implementation and enforcement of this article and the standards.

CCC program means a program to eliminate, monitor, protect, and/or prevent unprotected cross connections from allowing backflow.

Dead end lines means a water line extending more than 50 feet from the city's water main.

Department means City of Durham Department of Water Management

Device (BPD) means a backflow prevention mechanism only, not in-line testable.

Director means City of Durham Department of Water Management Director.

Drinking water supply system means the piping that distributes potable water supplied by the city. (Note: The system on the street side of the water meter is the "City's Water Distribution System." The system on the user's side of the water meter is the "User's Water Supply System.")

Double check detector assembly (DCDA) means a specially designed BFPA composed of a line-sized-approved DC with a bypass containing a specific water meter and an approved DC; the meter shall register accurately for only very low flow rates up to three gallons per minute (gpm) and shall show a registration for all rates of flow; this assembly shall only be used to protect against a Low Hazard (Non-Health/Moderate) (i.e., pollutant). (e.g. ASSE 1048).

Double check valve assembly (DC) means a complete assembly consisting of two internally loaded, independently operating check valves, located between two tightly closing, resilient-seated shutoff valves with four properly placed resilient-seated test cocks; this assembly shall only be used to protect against a low hazard (Non-Health/Moderate) (i.e., pollutant). (e.g. ASSE 1015).

Dual check valve device (DUC) means a device that contains two spring-loaded, independently operating check valves in series, without tightly closing shut off valves and test cocks (e.g. American Society of Sanitary Engineers [ASSE] 1022, 1024).

Employees exempted from licensure means an unlicensed person who is directly and regularly employed in the ordinary course of business by a contractor licensed pursuant to General Statute 87, Article 2.

Fire line means a system of pipes and equipment for a fire protection system (FPS) used to supply water for the purposes of extinguishing a fire.

High hazard (health/severe) means a substance that can adversely affect human health and safety.

Hose bibb means an outside spigot or faucet located on the exterior of a building.

In-ground means an installation below ground or below finished grade, including, but not limited to below concrete, sod, mulch, pine straw, or sand. An in-ground piping system is any in-ground piping, sprinklers, drip tubing, valve, control wiring of 30 volts or less, and associated components, thereby making the in-ground piping not readily accessible (see definition of readily accessible below).

Irrigation means the supply of water to land to assist with vegetative growth (e.g., grass, trees, shrubs, flowers). (See Irrigation System.)

Irrigation contractor means any person who, for compensation or other consideration, constructs, installs, expands, services, or repairs irrigation systems. An irrigation contractor that is not a licensed plumber may only perform work downstream of an irrigation system backflow preventer.

Irrigation system means all piping, fittings, sprinklers, drip tubing, valves, control wiring of 30 volts or less, and associated components installed for delivery and application of water for the purpose of irrigation.

Inspector means a qualified individual certified through the NC Code Officials Qualifications Board to serve as a code official employed by local and state government.

Isolation means providing a BP at each cross connection found within the customer's facility to protect and isolate the potential cross connection water line from the remainder of the facility's potable water supply.

Lock wing (valve) means a type of lockable shut-off valve to isolate an individual tenant of a building that is primary metered. This type of lockable valve is required for potential compliance and enforcement measures.

Low hazard (non-health/moderate) means a substance that does not affect public health; however, it will affect the aesthetic quality of the water (e.g., taste, odor, color).

Manufacturer air gap fitting means an unobstructed fitting that provides an air gap and allows for the connection between the water outlet relief valve of an approved reduced pressure type backflow preventer and indirect waste to convey normal discharge and nuisance spitting, ASME A112.1.3. An approved manufacturer air gap fitting shall be sized properly based on the outlet size of the relief valve.

Meter means a device for measuring the number of gallons or cubic feet of water which passes through a pipe.

Non-potable water means water of questionable quality that is not approved for drinking.

Non-regulated public water system means a system for the provision of water to the public for human consumption, through pipes or other constructed conveyances, that serves 15 or more service connections or that regularly serves 25 or more individuals, but to which the scope of article 10 - North Carolina Drinking Water Act does not apply due to the regulatory exclusion criteria in North Carolina General Statute (NCGS) 130a-314.

Non-residential means refer to the definition for Commercial Property.

Non-willful violation means an act done without the intent to disregard the applicable federal, state, or city requirements or the standards.

Notice of violation means a written notice provided to the user or owner of a property that identifies a violation and that includes a date by which the violation must be corrected in order to avoid the issuance of penalties or the initiation of additional enforcement measures.

Operator in responsible charge (ORC) means a person assigned by the North Carolina Water Treatment Facility Operators Board (NCWTFOB) who is responsible for the administration of a CCC Program in partnership with the department and director.

Owner means a person who owns property.

Owner of record means the name of the party identified in the city's billing system as the water customer associated with a property or a unit within a property.

Plumbing permit means a permit required for the installation, extension, or general repair of any plumbing system. (Refer to the North Carolina Administrative Code and Policies.) In Durham, plumbing permits are issued by the Durham City-County Inspections Department.

Pollution means any substance that generally would not be a health hazard but would constitute a nuisance or be aesthetically objectionable if introduced into the potable water supply. (Also known as a Non-Health or Low Hazard.)

Potable water supply means water approved for drinking or another household use (i.e., water that is safe for consumption and aesthetically pleasing).

Pressure vacuum breaker assembly (PVB) means an assembly consisting of an independently operating, internally loaded check valve, and an independently operating, loaded air-inlet valve located on the discharge side of the check valve, with properly located resilient-seated test cocks and tightly closing resilient-seated shutoff valves attached at each end of the assembly designed to be operated under pressure for prolonged periods of time to prevent backsiphonage; the PVB may not be subjected to any backpressure. (e.g. ASSE 1020).

Primary meter means a meter used to measure, for billing purposes, the total amount of water used in an entire building, including combined use from individually leased, rented, or owned units and all common areas.

Readily accessible (ready access) means access that enables piping, fittings, sprinklers, drip tubing, valves, control wiring of 30 volts or less, and associated components to be directly reached without requiring the removal or movement of any panel, door, dirt, concrete, sod, mulch, sand, or other obstruction similar to those included in this list.

Reduced pressure principle backflow prevention assembly (RP) means a BFPA containing an independently operating, hydraulically dependent relief valve located between two independently operating, spring-loaded check valves located between two tightly closing resilient-seated shutoff valves; the RP includes four properly located, resilient-seated test cocks. (e.g. ASSE 1013).

Reduced pressure principle detector backflow prevention assembly (RPDA) means BFPA composed of a line-size approved RP with a bypass containing a specific water meter and approved RP; the meter shall register accurately for very low flow rates of up to three gpm, and shall show a registration for all rates of flow; this assembly may be used to protect against either a Low Hazard (Non-Health/Moderate) (i.e., pollutant) or High Hazard (Health/Severe) (i.e., contaminant) (e.g. ASSE 1047).

Reference Guide for Development means the Reference Guide for Development shall serve as the technical code or standards applicable to infrastructure construction and development within the City.

Residential property means property that is designated as a private dwelling (e.g., single-family home, or duplex); residential properties shall exclude multi-family housing (e.g., apartment complexes, condominiums).

Service connection means the connection between the city's water distribution system main and the user's water system as defined by the NC Plumbing Code.

Shut-off valve (SOV) means a handle that can be used to turn water on or off when it is connected to an inlet water pipe.

Spill resistant vacuum breaker (SVB) means an assembly consisting of an internally loaded check valve and a load air-inlet valve located on the discharge side of the check valve; an inlet and outlet, resilient-seated, fully ported shutoff valve; and a properly located, resilient-seated test cock and vent valve designed to operate under pressure for prolonged periods of time to prevent backsiphonage; the SVB may not be subjected to any backpressure. (e.g. ASSE 1056).

Standards means written requirements that shall serve as the technical code, issued and maintained by the Department that meet, at a minimum, the requirements of the Federal and State regulation (Refer to §70-581 and the CCC Policy), Reference guide for development, and the requirements of this article of the Durham City Code. The standards shall be

maintained in a document available in paper and online that may bear any title, including, but not limited to, "manual", "requirements", "guidelines", "reference guide for development", or "policy."

User means any person that uses the water from the city's water distribution system. Refer to the definition for consumer.

Water hammer means a phenomenon that occurs in any piping system where valves are used to control the flow of liquids causing a knocking or shaking sound in the piping.

Willful violation means an act done voluntarily with an intentional disregard of, or planned indifference to, the standards.

Wye strainer means a device that mechanically removes solids from the potable water supply via a perforated or wire mesh strainer.
(Ord. No. 15942, § 1, 6-6-2022)

Sec. 70-583. General responsibilities.

(a) *Department of Water Management (Department) CCC Program Responsibilities.* The department shall administer the City of Durham's CCC Program, which must address containment and isolation of potential contamination of the potable water supply due to cross connections.

The CCC Program shall, in conjunction with the DWM, set standards that address both containment and isolation of potential contamination resulting from cross connections. The CCC Program shall ensure that requirements of this article and the standards are implemented.

The CCC Program shall also review building permit applications and perform plan reviews as they pertain to cross connection and backflow protection. CCC staff shall verify the following prior to issuance of building permits or issuance of Certificates of Compliance (COC) by the Durham City-County Inspections Department:

(1) That the building has the required backflow protection;

(2) That the design of new buildings includes the required backflow protection;

(3) That installed backflow preventers are in compliance with the annual testing requirements of this article and the standards.

(b) *Department of Water Management Director (Director) Responsibilities.*

(1) The director shall appoint a CCC Administrator who, along with the director, is authorized to interpret this article and the standards, and enforce the CCC Program.

(2) The director is authorized to enter into agreements (or contracts) delegating oversight of compliance with the city's backflow testing requirements to connected User water systems when the following requirements are met:

a. The ORC must be, a NCWTFOCB certified ORC Cross Connection Control System Operator (15A NCAC 180.0206 subsection (d)l.

b. Containment backflow preventers must be installed and maintained at all connections to the city's water distribution system immediately downstream of the water meter and prior to any branching of the user's water system. The annual reporting of City Code §70-588 must still be met.

c. Isolation backflow preventers must be installed and maintained at all cross connections downstream of the water meter within the user's/consumer's potable water system at the point of use. The annual reporting of City Code §70-588 must still be met.

(c) *Responsibilities of the CCC Administrator (Administrator).* The administrator will, in conjunction with the director, interpret this article and the standards, and enforce the CCC Program. A delegated organization (Refer to §70-583.B) shall maintain records for all containment and isolation BFPAs, including the location, type, manufacturer, model, size, serial number, and hazard of each BFPA. All tests and maintenance records for each BFPA shall be available to the city for audit and inspection upon request.

(d) *Responsibilities of the user.*

(1) Existing conditions.

(a) Users shall not allow contamination of the city's water distribution system, nor allow the creation or use of a cross connection that is prohibited under this article.

(2) Users shall:

a. Eliminate all unprotected cross connections that are prohibited under this article.

b. Install one or more approved BFPAs for those cross connections requiring BFPAs under this article within the time frames established under the standards.

c. Bear all responsibility and cost for the installation, testing, maintenance, cleaning, repair, replacement, relocation, inspection, and permitting of BFPAs required under this article and for all associated plumbing work.

d. Ensure installers and testers hold the appropriate licenses as required by the North Carolina State Building Code and City of Durham Code of Ordinances.

e. Maintain BFPAs and ensure all BFPAs are functioning properly by the deadline established by the CCC Administrator.

f. Ensure all BFPAs are tested and results of operational tests are submitted using the City's designated electronic reporting system managed by the currently contracted vendor as published at www.durhamnc.gov. Required reports shall be submitted by the deadline established by the CCC Administrator.

g. Ensure that all non-residential properties have domestic containment.

h. Ensure that all properties have isolation backflow protection in compliance with all applicable codes.

i. All tests and maintenance records for each BFPA shall be available to the City for audit and inspection upon request.

j. Ensure that all backflow prevention assemblies are protected against freeze damage. No Backflow shall be installed in a manner by which it is subject to freezing. Systems such as lawn irrigation may be installed with unions and an upstream, shut-off valve not subject to freezing.

(3) Notification of Property Change.

a. Use Change - Users shall notify the CCC Administrator regarding any changes in the use of a property. The CCC Administrator will determine if changes to the cross connection protection (i.e., BFPAs) are required based on the change.

b. Ownership Change - Users shall notify the CCC Administrator, or the City's designated electronic reporting system regarding any changes in the ownership of a property. The CCC Administrator will determine if changes to the cross connection protection (i.e., BFPAs) are required based on the change.

(4) Installation of Backflow Prevention Assemblies.

a. Installation of BFPAs shall be performed by persons with the appropriate licenses as required by the North Carolina Administrative Code and the North Carolina Building Code.

b. Person performing the work shall be defined as an employee in accordance with 21 NCAC 50.0512 of a company holding the proper licenses.

c. The Department may require permits for BFPA installation, replacement, relocation, removal, and any other application required under this Article. Users shall obtain required backflow, plumbing, and/or fire protection system permits that are required prior to BFPA installation. Initial testing shall not be performed using a jumper or by-pass around a missing meter.

d. All BFPA installations shall be completed in accordance with established standards.

e. All BFPA installations shall have an approved shut-off valve installed upstream of each backflow, excluding fire protection, in accordance with the NC Plumbing Code section 606.2.

f. All BFPA installations shall have an approved wye mesh strainer installed upstream of each backflow, excluding fire protection, in accordance with manufacturer recommendations. The strainer provided in a pressure reducing valve is not an approved wye mesh strainer.

g. All backflow preventers are to be installed in manner where they will not become submerged. All BFPA shall have positive drainage with adequate gravity drainage to atmosphere, not pumped.

(5) Compliance Deadlines.

a. A user that has not met the minimum testing requirements for annual testing as described in Code §70-588(8) by the established deadline shall be in violation of this code.

b. A user that has received a notice as described in §70-591, shall comply with the requirements. If the notice requires the installation of an approved BFPA or requires the removal of an unprotected cross connection, and an imminent danger to the water system or to public health does not exist, the User shall take the required action within 60 days from the date that the notification is deemed received, as described in Code §70-591.

c. If the CCC Administrator has determined that an imminent danger to the water system or to public health exists, a shorter compliance time may be specified in the notice.

d. In cases that do not present an imminent danger to the water system or to public health, the CCC Administrator may extend the time for compliance for up to an additional 30 days if compliance efforts are underway and continuing, and the existence of a hardship or special circumstances can be demonstrated. The extension shall only be valid if it is provided in writing and signed by the CCC Administrator.

e. All BFPAs shall be tested and results submitted, including failures, to the City of Durham, via the City's designated electronic reporting system by the deadline established by the CCC Administrator.

(6) Failure to Comply. A User that fails to comply with a notice issued by the CCC Administrator, or with the deadlines described in Code § 70-583.D.4 will be in violation of this Article.

(7) Responsibilities of an Inspector. Cross connection inspectors are required to inspect properties served by the City's water distribution system on such a schedule as set by the CCC Administrator to:

a. Identify protected, unprotected, and under protected CCs to determine compliance with regulations;

b. Provide a detailed inspection summary to ensure compliance with Standards;

c. Determine the hazard level (High or Low) of cross connections and required BFPAs;

d. Inspect installed BFPAs to determine if there are problems with the installation; and

e. Perform inspections per the NC Building Code and the City Code and Standards, and enter accurate notes into the City's designated electronic portal.

As a condition of continued city water service, the cross connection inspectors shall have the right to enter, at any reasonable time, any property connected to

the city's water distribution system for the purpose of performing the duties of this article. Refusal of entry may result in the termination of water service. No person shall interfere with a cross connection inspector in the performance of the activities authorized by this article.

(8) Responsibilities of a tester. Responsibilities of certified backflow testers include:

a. Testing installed BFPAs at the time of installation, at least annually, after repairs, after cleaning, after relocation or replacement, and when responding to a reported backflow incident.

b. Maintaining required certifications and licenses to test BFPAs in the City of Durham as required by State law and the City Code and Standards.

c. Tester ethics and code of conduct:

i. Testers shall not falsify any data or results obtained from field tests performed by the tester.

ii. Tester shall not sign or submit any test reports to the City of Durham if the tester did not personally perform the test.

iii. Testers shall not make any unneeded repairs, replacements, not repair BFPAs with any part not specifically designed for the BFPA being repaired.

iv. A Tester shall not remove, straight-pipe, or bypass any BFPA that would create an unprotected cross connection.

v. A Tester shall not perform a test using water through a bypass or jumper around a meter.

vi. A tester shall perform tests using City of Durham- Specified Test Procedures only (Vertical Sight Tube or Differential Pressure Gage, short downstream tube, compensating tee and bleed off valve). A copy of these test procedures will be provided to all City of Durham Approved Testers upon request. Furthermore, Testers will verify all components required for field-testing are present (i.e., inlet and outlet shut off valves, all test cocks). Any discrepancies shall be listed on the Testing and Maintenance Report.

vii. Following the installation of a new BFPA, testers are required to submit appropriate Testing and Maintenance Report to the City of Durham prior to scheduling the Cross Connection Control Backflow Permit inspection.

viii. The tester shall also provide a copy of their test results to the customer or tenant upon completion of the procedure.

ix. For existing BFPAs, testers are required to submit the appropriate Testing and Maintenance Report, both passing and failing to the City of Durham, via the city's designated electronic reporting system no later than the established deadline set by the CCC Administrator. In addition, the Testing and Maintenance Report shall be submitted to the city by the

deadline or within five calendar days of the date the test is performed, whichever is earlier. If test reports are received more than five days after the date of test, they will not be accepted and the Tester will be required to re-test the BFPA in question and submit the form within the required period. The tester shall also provide a copy of their test results to the customer upon completion.

x. Tester shall be employed in accordance with 21 NCAC 50.0512 EMPLOYEES EXEMPTED FROM LICENSURE.

xi. It is the responsibility of all City of Durham approved backflow testers to maintain their testing equipment, including differential pressure gauges which shall be checked per manufacturer specifications at least once annually.

xii. A tester is required to observe, verify, and record the make, model, size, serial number, and location of all BFPAs while performing a field test.

xiii. A tester shall recognize the degree of hazard present when testing an BFPA, and if the BFPA is not adequate to safeguard the degree of hazard, the tester shall test the BFPA and notify the CCC Administrator of the inadequate protection. If the BFPA is installed in a manner inconsistent with existing City of Durham code requirements or Standards (in a ceiling, PVC, etc.), a Tester is required to note that discrepancy on the Test and Maintenance Report.

Any tester failing to conform to the provisions of this article or the Tester Ethics and Code of Conduct will be in violation of this Code and will be subject to loss of testing privileges within the City of Durham's water system jurisdiction. Loss of testing privileges in Durham will result in notification to the approved reciprocal testing entities in NC.
(Ord. No. 15942, § 1, 6-6-2022)

Sec. 70-584. Standards.

The City of Durham shall promulgate standards that control actual or potential cross connections, and that promote the containment and isolation of potential contamination caused by cross connections. The standards shall be considered requirements of this article and are incorporated herein. These standards are contained in the city's Cross Connection Control Policy document. Among other things, the standards shall set forth the types of backflow preventers, including manufacturers and models that are approved for control of backflow from different types of cross connections. Backflow preventers addressed in the standards shall include the following: air gap, Due, RP, RPDA, DC, DCDA, PVB, SVB, AVB, and HBVB.

The standards shall also address other activities necessary for the successful operation of the city's CCC Program, including installation, cleaning, maintenance, removal, relocation,

testing, repair, plan review for building permit applications, permitting of backflow preventers, permitting of other activities (e.g., fire prevention system installation), and qualifications of certified testers.

(a) *Approved backflow preventers and devices*.

(1) Backflow device and assembly approval:

a. Only ASSE approved or University of Southern California Foundation for Cross Connection and Hydraulic Research (USCFCCHR) devices or BFPAs will be permitted in the standards.

b. An approved backflow preventer shall mean a device or BFPA that has been manufactured in full conformance with the standards established by the ASSE.

c. BFPAs installed on fire protection systems shall be approved for installation on fire protection systems, be approved by Factory Mutual, and be in compliance with the National Fire Protection Association (NFPA) Code.

(2) Manufacturers and Models. Installed devices or BFPAs shall consist of only those included in the most recent version of the ASSE International Seal Authorization Booklet or https://fccchr.use.edu/list.html.

(b) *Required permits*.

(1) Plumbing Permit shall be required for the installation of a new BFPA for new construction, renovations, and/or identification of a previously unprotected cross connection. A plumbing permit is not required for the replacement of a BFPA if the replacement is with the same type of BFPA (e.g., Replace an existing RP with a new RP) and there are no significant changes in piping; however, the new BFPA must be from an approved manufacturer and an approved model. Refer to §70-584(A)(2) for references listing approved manufacturers and models.

(2) Users shall obtain a backflow preventer permit (also referred to as a cross connection control permit) for the installation, replacement, removal, or relocation of BFPAs prior to starting work.

(3) A fire protection system permit is required for the installation of new and replacement BFPAs (other than like-for-like assemblies) on fire protection systems.

(4) A building permit is required for any inspections, including CCC, for customers seeking a COC.

(5) A CCC Plan Review Request application, along with payment of any applicable fees established by the city, shall be submitted in conjunction with the building permit application.

(c) *Installation requirements*.

(1) BFPAs shall be installed in conformance with the NC Building Code, manufacturer recommendations, and according to details and specifications approved by the director and ASSE or USCFCCHR. The installation requirements shall be described in the CCC Policy.

(2) Internal components of BFPAs shall be lubricated only with approved, Food and Drug Administration (FDA) lubricants.

(3) BFPAs that have been determined through annual or other testing (Refer to §70-588) to require cleaning, repair, or replacement must complete the cleaning, repairs, or be replaced within 15 days following a failing test results.

(d) *Containment.* All non-residential water customers/ users shall have an approved BFPA, as defined in §70-584(A) installed on the potable water supply line, directly after the meter and prior to any tee-offs. This containment backflow isolates the entire property from potentially contaminating the city's water distribution system. Single family residences do not require a BFPA to be installed; however, a backflow prevention device (e.g., a DuC) is required to be installed immediately downstream of the water meter prior to any branches on the user's water system.

(e) *Other cross connections (Isolation).* Cross connections to the city's water distribution system that do not occur at the point of water service or metering (Containment), and cross connections internal to the user's property or facilities require backflow preventers as identified in the CCC Policy to isolate an individual hazard from potentially contaminating the customers internal plumbing system. These cross connections and the approved backflow preventers for these cross connections are described in the standards.

(f) *Wye strainer.*

(1) An approved wye strainer shall be installed immediately upstream of each installed BFPA, excluding BFPAs in fire protection systems.

(2) Wye strainers shall not be installed on fire protection systems, pre-fabricated bulk meters, or fire hydrant meters with backflow preventers issued by the city.

(3) All approved wye strainers shall be installed per manufacturer and NC Building Code requirements.

(4) The strainer provided in a pressure reducing valve is not an approved wye mesh strainer.

(Ord. No. 15942, § 1, 6-6-2022)

Sec. 70-585. Hazardous connections and uses.

(a) *Hazards.* Any connection or use identified in the standards as requiring a BFPA is deemed hazardous. The city recognizes two levels of cross connection hazards:

(1) High hazard (Health/Severe) - Actual or potential threat of contamination that present an imminent danger to the public health, with the potential for serious

illness or death. Actual or potential threat of contamination from pumps; tanks or any other containers conveying, storing or otherwise handling sewage, radioactive, lethal, or toxic substances; boiler and steam connections; sewer waste lines; low inlets to receptacles containing toxic substances; coils or jackets used as heat exchangers; bacterial and viral materials; private wells or other private water supply; irrigation systems; irrigation systems interconnected to well water; water systems or hose connections with booster pumps such as fire department connections (FDC) and private hydrants used in conjunction with FDCs; carbonation equipment; or other similar installations with severe hazard potential as determined by the CCC Administrator and approved by the director, that present an imminent danger to the public health with the potential for serious illness or death.

(2) Low hazard (Non-Health/Moderate) - Actual or potential threat that presents foreseeable and significant potential for pollution, nuisance, aesthetically objectionable, or other undesirable alternations to the water supply.

(b) *Notifying the CCC Administrator of Hazards.* Any person that installs, repairs, replaces, relocates, or inspects any plumbing line that serves a hazardous connection, or that serves a facility that is not equipped with BFPAs as required by this article and the standards, shall immediately notify the CCC Administrator of such connections and uses.

Any user that occupies or owns property in which there is a plumbing line that serves a hazardous connection, or that serves a facility that is not equipped with BFPAs as required by this article and the standards, shall immediately notify the CCC Administrator of such connections and uses. Users shall comply with the requirements of this article regardless of whether the connection or facility pre-existed the requirements of this article.
(Ord. No. 15942, § 1, 6-6-2022)

Sec. 70-586. Residential and non-residential water connections.

Users that construct any residential or non-residential building of any type shall include an approved containment backflow preventer near the point of connection to the city's water distribution system, as set forth under the standards.

Building plans for non-residential buildings that show the locations of plumbing connections, CCs, and uses within each building shall be submitted to the CCC Administrator and approved BFPAs shall be installed as required under the standards.

The city may refuse water service and/or refrain from issuing of a certificate of compliance if the requirements of this article and the Standards are not met, in addition to other available remedies.

(a) *Non-residential connections*.

(1) All non-residential properties as defined in Code §70-582 are required to have an approved, in-line, testable containment BFPA, installed downstream of the water meter and prior to any branching of the user's system.

(2) The type of BFPA required for installation for specific non-residential facilities is further defined in the standards.

(b) *Residential connections.*

(1) All residential properties as defined in Code §70-582 shall have an approved DuC installed immediately downstream of the water meter and prior to any branching of the user's system.

(2) The type of BFPA required for installation for specific residential connections is further defined in the standards.

(Ord. No. 15942, § 1, 6-6-2022)

Sec. 70-587. Inspections of backflow prevention assemblies.

(a) *Designated inspector.*

(1) CCC Program personnel are designated as cross connection inspectors for the city.

(2) A cross connection inspector shall inspect properties served by the city's water distribution system on such a schedule as set by the CCC Administrator.

(b) *Right of entry.*

(1) As a condition of continued water service, cross connection inspectors shall have the right to enter, at reasonable times and upon reasonable conditions any property connected to the city's water distribution system in order to assess compliance with the requirements of this article.

(2) Refusal of reasonable entry requests by CCC Program personnel, may result in termination of city water service.

(c) *Inspection and testing by the city.*

(1) The city may inspect and test any BFPA where:

a. Written notice has been provided to the user; and

b. The user has not provided an approved inspection or test results by the required deadline.

(2) The fee for city BFPA inspection and testing, plus an administrative fee, set by the city council, may be added to the user's utility bill.

(3) Refer to Code §70-590 and §70-591 for additional information regarding notices of violation and civil penalty assessment.

(4) The city and designated City of Durham staff shall bear no liability for damage resulting from BFPA inspection and testing performed pursuant to this section.

(d) *Interference with site survey or inspections.* The CCC Administrator and city employees designated as inspectors shall inspect properties served by the city water supply system on such schedule as set by the administrator. As a condition of continued water service, and in compliance with NCAC section 204.2.6 Right of entry, inspectors shall have the right to

enter, at any reasonable time, any property connected to the city drinking water supply system for the purpose of performing the duties of this article. Refusal of entry may result in termination of water service. No person shall interfere with an inspector in the performance of the activities authorized by this article.
(Ord. No. 15942, § 1, 6-6-2022)

Sec. 70-588. Testing of backflow prevention assemblies.

(a) *Initial testing.*

(1) Installers shall obtain a cross connection control permit (i.e., backflow preventer permit) for the installation, replacement, removal, or relocation of BFPAs prior to beginning work and in accordance with 21 NCAC 50. 0402.

(2) Installers shall ensure work is performed in accordance with NC Building Codes, this article, and the Standards.

(3) Installers shall ensure that new installation testing is performed and results are submitted to the CCC Administrator following the installation, replacement, or relocation of a BFPA in accordance with the standards.

(4) Installers shall schedule a CCC inspection to close out the backflow permit in accordance with 21 NCAC 50. 0402.

(5) Any person that installs a BFPA shall report such actions to the CCC Administrator in accordance with 21 NCAC 50. 0402.

(6) The CCC Administrator or CCC Inspectors shall inform that person if additional inspection or testing is required. Upon a failed inspection, a retest of the backflow preventer is required after corrections have been made.

(7) Installers who fail to report the new installation test results within ten days of the system being made operational or placed into service, shall be in violation of this article. Refer to §70-589B.

(b) *Annual testing.*

(1) The user or owner of record shall have all BFPAs tested at least annually or more frequently as may be required by the Standards.

(2) Annual BFPA testing shall be conducted by an approved Certified Tester.

(3) The certified tester shall report the results of the test to the CCC Administrator, via the city's designated electronic reporting system by the established deadline. In addition, test results shall be submitted to the city by the deadline or within five calendar days of the date the test is performed, whichever is more stringent. Submittal process shall be in compliance with the CCC Policy.

(4) The certified tester shall verify and supply all testing information required by the city and the designated electronic reporting system including, but not limited to: test values, size, make, model, serial number, and location of the BFPA, as well as the

name and address of owner as recorded on the notice. If any of this information has changed from the initial installation or from the last testing report, the certified tester shall email CCCProgram@durhamnc.gov.

(5) The certified tester shall provide BFPA testing results to the user or owner of record upon completion of the testing.

(6) Refer to §70-589 and the CCC Policy for certified tester requirements.

(c) *Other testing.*

(1) BFPA testing shall be conducted and submitted to the CCC Administrator when any BFPA is repaired, relocated, or cleaned. The test results must be uploaded to the City's designated electronic reporting system within five (5) days of when the test was performed. When replacing a backflow, the test results must be uploaded to the City's designated inspection portal at the time the inspection is scheduled.

(2) Any person that removes, repairs, relocates, cleans, or replaces a BFPA shall report such actions to the CCC Administrator within five (5) days of these actions.

(3) The CCC Administrator shall inform that person if additional inspection or testing of the BFPA is required above and beyond that required in subsection (1) of this section.

(4) If the person who conducted the work fails to make such a report within ten (10) days of the inspection or testing, the certified tester is in violation. Refer to §70-589 B.

(5) All other BFPA testing shall be performed by a Certified Tester as specified in §70-589 and the Standards incorporated herein.

(6) The City reserves the right to perform testing in accordance to §70-587.C, Inspection and Testing by the City.

(Ord. No. 15942, § 1, 6-6-2022)

Sec. 70-589. Certification and qualification of testers.

(a) *Certification and other qualifications.*

(1) The standards shall establish qualifications for certified testers, which shall include successful completion of a training program recognized by the director, as well as, meeting performance standards relating to compliance with this article.

(2) Contact the CCC Administrator or review the city's designated electronic reporting system, for a list of certified testers.

(b) *Disqualification of certified tester.* A certified tester may be disqualified for failure to meet qualifications established by the Department in the Testers Ethics and Code of Conduct included in §70-583.F.

(1) The department shall provide written notice to a certified tester, mailed or emailed to the address or email address that the certified tester has provided to the department, setting forth the basis for disqualification.

(2) Disqualification shall be effective three days after such mailing.

(3) The department shall also provide email notice to the certified tester or testing company if the tester has provided an e-mail address.

(4) The department shall provide an opportunity for a certified tester who has been disqualified to obtain reconsideration by the director or the director's designee upon written request from the tester. The reconsideration request must be received no later than ten days following the effective date of disqualification.

(5) A disqualified tester may not request reinstatement within three years of the disqualification.

(Ord. No. 15942, § 1, 6-6-2022)

Sec. 70-590. Violation of ordinance.

(a) *Violation.* A person who fails to comply with this article, as well as any order, certificate, or permit issued hereunder, or who installs or alters a plumbing system in nonconformance with approved specifications or plans that address CCs or BFPAs regulated under this article, shall be determined to be in violation of this article.

(b) *Civil penalty.*

(1) Civil penalty assessment.

a. Any civil penalty shall be assessed by the director and, at a minimum, shall consider the factors identified in §70-343(b).

b. The director is authorized to reduce civil penalties previously assessed if compliance has been achieved and reduction appears justified as determined by the director.

c. A civil penalty that has become final following the determination process in § 70-343(b), may be added to a user's or the owner of record's water bill, and water service may be terminated for nonpayment.

(2) Maximum civil penalty.

a. A customer in violation of this article is subject to a civil penalty, which may be recovered by the city in a civil action if the violator does not pay the penalty within 30 days after the assessment has become final by exhaustion of the appeal process established by this section, or by failure of the customer to appeal the assessment.

b. The civil penalty for a non-willful violation shall not exceed $250.00 per day for each day of violation, or a cumulative penalty of $5,000.00.

c. The civil penalty for a willful violation shall not exceed $500.00 per day for each day of violation, or a cumulative penalty of $10,000.00.

d. A civil penalty that has become final pursuant to this ordinance may be added to a user's water bill and/or water service may be terminated for non-payment.

(3) Appeal.

a. A violator may appeal an assessment of a civil penalty by mailing a written appeal to the director, including all arguments that support reducing or eliminating the penalty.

b. The appeal must be received within 18 business days from the date of receipt for the notice of penalty. The notice is deemed received pursuant to §70-591(C).

c. An appeal mailed by first-class mail shall be deemed received three days from the date it is mailed.

d. The director or his/her designee shall review the written appeal and penalty and make a final determination, which shall be sent to the violator in accordance with §70-591(B).

(Ord. No. 15942, § 1, 6-6-2022)

Sec. 70-591. Notice to user of need for action, violation, or penalty.

(a) *Notice to violator.* Upon identification of the potential for pollution, contamination or a hazard to the city's water distribution system, or a failure to comply with any requirement of this article or the standards, the CCC Administrator shall notify the user and/or the owner of record of the property at which the potential contamination or hazard exists via first-class mail. The notice of violation shall include a description of the location and nature of the potential contamination or hazard, identification of the applicable section of this article or standard, and the order of the CCC Administrator regarding actions to be taken in order to return the property to compliance.

The CCC Administrator shall, among other things, determine if there is an imminent danger to the city's water distribution system or to public health. The CCC Administrator's determination shall impact deadlines for compliance as described in §70-583(0)(4). The CCC Administrator may issue any follow-up orders deemed necessary, including orders for testing and other actions related to compliance.

(b) *Communication standards.* The CCC Administrator shall send a violator written notice of the civil penalty and the basis of the amount assessed via one of the following methods:

(1) Certified mail with a return receipt requested;

(2) First-class mail;

(3) Email with read receipt.

(c) *Deadline of receipt.* A notice of penalty shall be deemed received three days from the time it is mailed to the owner of record of the property.

(Ord. No. 15942, § 1, 6-6-2022)

Sec. 70-592. Discontinuance of service for violations.

(a) *Procedure.* The department may discontinue water service to any structure or parcel for a violation of this article. Prior to discontinuing drinking water service, the director will provide written notice to the customer as shown on the revenue billing roll and to the owner of record, occupant, or other persons in apparent control of the structure or parcel.

The director is not required to provide additional written notice prior to discontinuing irrigation water service.

(b) *Service restoration.* When service is discontinued as described in in §70-592(A), it shall not be reinstated until the CCC Administrator determines that compliance with this article and the standards have been achieved. Prior to service restoration, all fees required by the director for the restoration of water service shall be paid, in addition to any civil penalties assessed as described in §70-590.B.

(c) *No liability.* The city and designated City of Durham staff shall bear no liability for damage resulting from the discontinuance of service pursuant to this section.
(Ord. No. 15942, § 1, 6-6-2022)

Sec. 70-593. Fees.

Fees for the activities authorized under this article, including fees for manuals, permits, city inspections and re-inspections, city testing, city plan review, city locking or unlocking of water meters, training courses, and tester certifications will be established by the city council.
(Ord. No. 15942, § 1, 6-6-2022)

Secs. 70-594—70-629. Reserved.

ARTICLE VIII. STORMWATER UTILITY

DIVISION 1. GENERALLY

Sec. 70-630. Findings.

(a) Stormwater poses a threat to the public health, safety, and welfare because it floods properties, erodes watercourses and channels, and pollutes streams and rivers.

(b) By mapping, planning, constructing, operating, cleaning, regulating and maintaining natural and constructed stormwater management facilities, the city reduces the adverse effects of stormwater and improves the quality of groundwater, streams, rivers, and lakes in and around the city.

(c) Providing a stable source of funding for the activities heretofore described can best be accomplished through the creation of a stormwater utility. Such a utility will benefit owners and occupants of developed land in the city and other citizens.

(d) The amount of impervious surface on a property is the single most important factor affecting the peak rate of runoff, the total volume discharged, and pollutant loadings of stormwater that flows from property. It is equitable to fund a stormwater utility through a system in which service charges are based on the amount of impervious surface on developed land.

(Code 1982, § 23-200; Ord. No. 11083, § 1, 4-23-1997)

Sec. 70-631. Definitions applicable to article.

All definitions found elsewhere in this chapter apply in this article, in addition to the ones below, unless the context of the article language clearly indicates otherwise. The city engineer is authorized to interpret and to apply these definitions. If a property could be interpreted to fall into more than one category the city engineer shall determine the applicable category.

Customer or *consumer* means the person or entity to which a bill for stormwater service charges is sent. This may include the owner, occupant, or tenant of property, a homeowners' association with responsibility for property or for common areas associated with property, or a person or entity who has requested in writing to be billed for stormwater service charges for a property.

Developed land means property that contains impervious surface, and includes improved land without structures and land on which improvements are under construction, with the exception of city streets.

Equivalent Residential Unit (ERU) is 2,400 square feet of impervious surface, which is the average amount of impervious surface on a single family property in the city.

Impervious surface means a surface which, because of its composition or compacted nature, impedes or prevents natural infiltration of water into the soil, including, but not limited to, roofs, solid decks, driveways, patios, sidewalks, parking areas, tennis courts, concrete or asphalt streets, or compacted gravel surfaces. Wooden slatted decks and the water area of swimming pools are considered pervious.

Other residential and nonresidential land means any developed land not fitting the definition of a residential unit. It includes, but is not limited to, land upon which there are residential structures that contain more than two units, such as triplexes, townhouses, condominiums, apartments, boardinghouses; churches; institutional buildings, whether public or private; commercial, office, and industrial buildings; parking lots, driveways, and private streets; and land containing improvements under construction or impervious surfaces that are not structures, with the exception of city streets.

Property owner or *owner* means the owner of a parcel of land as shown on the county tax records.

Residential unit means a detached single-family house, a duplex, or a manufactured home or mobile home located on an individual lot or parcel of land rather than in a manufactured home park.

Stormwater means the runoff from precipitation that travels over natural or developed surfaces to the nearest stream, other conduit, or impoundment and appears in lakes, rivers, ponds, or other bodies of water.

Stormwater services means the city program for protection of stormwater quality and for the partial control and conveyance of stormwater. It includes, without limitation, public education; monitoring, removing, and regulating stormwater pollutants; other activities described in the state-issued NPDES permit; mapping; planning; regulating, reviewing and inspecting private stormwater infrastructure; and operating, cleaning, and maintaining the city's stormwater system. The existence of stormwater services does not extend the city's ownership or responsibility to portions of the stormwater system that are privately owned, nor does it allow the city to control the conveyance of stormwater so as to prevent property damage from flooding.

Stormwater system or *drainage system* means the system of natural and constructed conveyances for collecting and transporting stormwater, whether publicly or privately owned. It includes lakes, ponds, rivers, perennial and intermittent streams, connected wetlands, open ditches, catch basins and other inlets, pipes, sewers, drains, culverts, and, in addition, created stormwater management facilities that provide partial treatment by passive means such as wet detention ponds, detention basins, and stormwater wetlands.

Stormwater utility funds mean the stormwater service charges and the interest generated by those charges.
(Code 1982, § 23-201; Ord. No. 11083, § 1, 4-23-1997; Ord. No. 12039, § 1, 8-21-2000; Ord. No. 12968, § 1, 6-21-2004; Ord. No. 13948, § 1, 12-21-2009)

Secs. 70-632—70-650. Reserved.

DIVISION 2. ESTABLISHMENT OF STORMWATER SERVICE CHARGES AND CREDITS

Sec. 70-651. Creation of stormwater account; activities of the stormwater services division.

Stormwater service charges and interest generated by such charges shall be placed in a separate city account and shall be used by the city solely for the operational costs, indirect costs, debt principal and debt service, and establishment of a reserve fund for stormwater services.
(Code 1982, § 23-202; Ord. No. 11083, § 1, 4-23-1997; Ord. No. 12039, § 2, 8-21-2000; Ord. No. 12968, § 1, 6-21-2004)

Sec. 70-652. Stormwater service charges.

All developed land in the city, whether public or private, shall be subject to a stormwater service charge set by the city council. Exemptions shall not be allowed based on age, tax exemption, or other status of an individual or organization. Service charges may be subject to a credit system as further provided in this article.
(Code 1982, § 23-203; Ord. No. 11083, § 1, 4-23-1997; Ord. No. 12968, § 1, 6-21-2004)

Sec. 70-653. Billing method, responsible parties.

(a) Bills for stormwater service shall be sent at regular, periodic intervals, which may range from monthly to yearly. In the event that annual billing is utilized, the public works department shall develop policies that allow more frequent billing of residential customers based on hardship, nonpayment, or other relevant circumstances. Stormwater service charges may be billed on a combined utility bill that also contains charges for water and/or sewer service. Stormwater service charges that are shown on a combined utility bill may be for a different service period than that used for water and/or sewer service.

(b) Stormwater service bills for a property that receives water and/or sewer service may be sent to the customer receiving such service. However, where multiple water and sewer accounts exist for a single parcel, the stormwater service bill may be sent to the property owner. Additional guidelines concerning billing will be developed by the city.

(c) The property owner is ultimately responsible for payment of the stormwater service charge for property for which the party billed has not paid the service charge.

(d) Owners and occupants of property may designate which party shall receive the stormwater service bill by completing and properly executing a form provided by the city. Such transfer does not relieve either the owner or occupant from liability for stormwater service charges if they are not paid by the party billed.

(e) Townhouse and condominium developments and other similar properties containing impervious surface in common ownership shall be charged for the total impervious surface of all commonly-owned property within the development. The stormwater service bill for the commonly-owned property within the development shall be sent to the homeowners' association. Individually-owned property within the development shall be billed at the residential Tier 1 rate for each individual parcel and the stormwater service bill shall be sent to the owner of each individual parcel.
(Code 1982, § 23-204; Ord. No. 11083, § 1, 4-23-1997; Ord. No. 13785, § 1, 4-20-2009; Ord. No. 13840, § 1, 6-15-2009; Ord. No. 14128, § 1, 5-16-2011)

Sec. 70-654. Payment provisions, utility termination.

(a) Where stormwater service charges appear on a combined utility bill, and a customer does not pay the service charges for all the utilities on the bill, the partial payment will be applied to the respective service charges in the following order: delinquent stormwater charges; delinquent water and/or sewer charges; capital facilities fees; current stormwater charges; current water and/or sewer charges.

(b) Stormwater service charges are due at the collection office in city hall within 21 days after a bill has been issued. Bills not paid within this time shall be charged interest at the rate of one percent per month.

(c) Where a property receives water and/or sewer service, if stormwater service charges for that property are not paid, water and/or sewer service to that property may be terminated, whether or not the stormwater charges were included on a combined utility bill. Termination will be handled in accordance with sections 70-57, 70-58, and 70-59 regarding notice, appeal, and termination of utility service. Where stormwater service charges have not been included on a combined utility bill for a property, water and/or sewer service to that property will not be terminated unless the city has sent the occupant notice of the unpaid stormwater service charge and possible utility termination at least 30 days prior to the termination.

(d) No property for which stormwater service charges are outstanding is entitled to receive water and/or sewer service until the outstanding stormwater service charge on that property is paid. No customer with a delinquent stormwater service account is entitled to open a water and/or sewer account at the same or different location until the delinquency has been satisfied.

(e) If property is incorrectly billed, or not billed, or a bill is sent to the wrong party, the city may backbill a property for up to a three-year period.

(f) Customers with complaints about the accuracy of stormwater service charges are entitled to a review as provided in section 70-58. No charge will be adjusted unless the complaining customer has filed a written complaint with the city within one year of the date the city first sent the customer notice of the charge.

(Code 1982, § 23-205; Ord. No. 11083, § 1, 4-23-1997)

Sec. 70-655. Credits.

(a) The city may provide a system of credits against stormwater service charges for properties on which stormwater facility construction or maintenance substantially mitigates the peak discharge or runoff pollution flowing from such properties or substantially decreases the city's cost of maintaining the public stormwater system. The engineering department will develop written policies to implement the credit system. The amount of credit for maintenance may be limited to properties that have a specified minimum impervious surface area. The city's policies may make credits retroactive to the date stormwater service charges were initiated.

(b) A 100 percent credit, conditioned upon the continued maintenance of the drainage systems on such properties to city standards, shall be provided to the following properties:

(1) Improved public roads, not including internal roads within public facilities, which have been conveyed to and accepted for maintenance by the North Carolina Department of Transportation and which are used by the public for motor vehicle transportation; and

(2) Railroad corridors and tracks.

(c) The above credits are provided in recognition of the use and utility of the above properties as corridors with independently, regularly improved and maintained drainage systems that pass through numerous private and public properties and that collect and control the drainage through those properties.

(Code 1982, § 23-206; Ord. No. 11083, § 1, 4-23-1997; Ord. No. 12968, § 1, 6-21-2004)

Secs. 70-656—70-683. Reserved.

DIVISION 3. USE OF STORMWATER UTILITY FUNDS FOR CONSTRUCTION, IMPROVEMENTS, AND MAINTENANCE*

Sec. 70-684. Purpose and definitions.

(a) *Purpose.* This division establishes the conditions under which funds from the stormwater utility will be used for work on drainage system components located outside the city-owned drainage system or within city-owned rights-of-way. Drainage system components located

*__Editor's note—__Ord. No. 13948, § 2, adopted December 21, 2009, repealed and reenacted division 3 in its entirety to read as herein set out. Formerly, division 3, §§ 70-684—70-689, pertained to similar subject matter, and derived from the Code of 1982, §§ 23-210—23-214; Ord. No. 11083, § 1, adopted April 23, 1997, and Ord. No. 12039, §§ 3—5, adopted August 21,

within city-owned rights-of-way play an essential function in carrying stormwater and the public impact when such components malfunction is generally greater than when such components are located outside the rights-of-way. Therefore, the first priority use of stormwater utility funds is for maintenance of and improvements to drainage system components within city-owned rights-of-way. Stormwater utility funds may also be used to fund drainage system construction, improvement, repair, or maintenance on property outside of city rights-of-way. The city has an interest in helping to assure that components of the drainage system that have an impact on the overall system are maintained and/or improved, whether located inside or outside city rights-of-way. Such components are generally those that carry in whole or in part runoff from publicly maintained streets.

The intent of this section is not to transfer responsibility or liability to the city for drainage system components on property not owned by the city that carry such runoff. Rather, it is to establish criteria and priorities to be used when making available stormwater utility funds for work on drainage system components located outside of city-owned rights-of-way. No action or inaction of the city pursuant to this section shall impose upon the city, its agents, officers, or employees, any responsibility or liability of any kind, past or future, relating to any person or property. No action by the city, including but not limited to funding of work on drainage system components not owned by the city, shall be considered as a taking or appropriation of, or assumption of responsibility for any stream, drain, ditch or other drainage system feature that is outside city-owned property or right-of-way.

City participation in work on drainage system components outside of the right-of-way is limited to the extent to which funds are available for such purpose and no entitlement to receive funds for such work arises from this division.

(b) *Definitions.* In addition to definitions previously appearing in division 1 of this article, the definitions below also apply to this division. Interpretation and application of this division shall be by the director of public works, whose decisions are final and not subject to appeal.

Director means the city's director of the department of public works or any successor department in which primary responsibility for administering the stormwater services resides, and includes any individual to whom the director delegates responsibilities under this article.

Flood or *flooding* means a general and temporary condition of partial or complete inundation of normally dry land areas from the overflow of inland waters and/or, the rapid accumulation of runoff of surface waters from any source.

Public street means an area for vehicular traffic that is maintained by the city or North Carolina Department of Transportation and is within publicly owned right-of-way.

2000.

Section 3 of Ord. No. 13948 states the following: This ordinance shall become effective upon adoption. Notwithstanding this effective date, active drainage assistance projects for which the city has developed project scopes and estimates of probable cost prior to January 1, 2010 may be completed under the terms of the Code sections repealed by the enactment of this ordinance.

Routine maintenance means activities that allow the drainage system to function properly by keeping it clean and free of blockage. It does not include construction or major repair. Examples include but are not limited to, cleaning grates and inlets, flushing pipes, removing blockages in pipes, removing litter and debris from channels and ditches, minor clearing of overgrown vegetation and minor repair of erosion control measures.
(Ord. No. 13948, § 2, 12-21-2009)

Sec. 70-685. Criteria for use of stormwater utility funds for drainage assistance projects located outside of city-owned rights-of-way.

(a) Work on drainage projects may be funded with stormwater utility funds provided that all of the following eligibility criteria are met:

(1) The drainage system carries, in whole or in part, runoff from public streets.

(2) The property on which the drainage system is located has not received any credit under section 70-655 for stormwater service utility charges within the preceding five years.

(3) The drainage system is not part of a water quality treatment facility or water quantity control device that was required to be constructed and maintained as part of an approved development.

(4) The drainage system is not located on property which is undergoing development or redevelopment unless the development/redevelopment project is funded in part by other city funds.

(5) The condition of the drainage system must impact or threaten an existing inhabited or occupied building or a public street, sidewalk, or other public pedestrian walkway.

Conditions that do not qualify include but are not limited to:

- Moisture or ponding not attributable to flooding;
- Groundwater seepage;
- Landscaping;
- Minor erosion;
- Minor ponding or standing water;
- Routine maintenance activities;
- Drainage conditions involving lot to lot drainage of private properties;
- Roof drains and downspouts.

(6) The drainage problem is not caused by flooding due to the periodic temporary inundation of stream flow on lands adjacent to open channels or within mapped floodplains or wetlands.

(7) A formal request for assistance complying with city requirements is submitted to the stormwater services division by the current property owner(s).

The application of the above factors and the determination as to eligibility for stormwater utility funding shall be made by the director and this decision is not subject to appeal.

All authorized work referred to herein shall be performed by the city, its agents and/or contractors. The city will direct all necessary activities including but not limited to design, engineering, contracting, and construction.

(b) In addition, eligible projects must meet the following criteria:

(1) The property owner, if the owner is not the city, must dedicate a stormwater drainage easement of a width, length, and type as specified by the director. The dedication of such easement will be at no cost to the city and shall not relieve the property owner of responsibility or liability for drainage system maintenance;

(2) The property owner shall not owe delinquent fees, charges, assessments, or taxes to the city.

(3) The project shall be the most cost effective, reasonable and practical alternative to correct the existing problem, as determined by the director. Any excess costs shall be borne entirely by the property owner. Design criteria shall meet, but are not limited to, the following criteria:

- The proposed project shall meet current city stormwater design standards to the maximum extent practical;
- Existing open channels shall not be piped unless engineering reasons require such work or significant cost savings would be realized;
- Streams and their associated buffers shall be protected to the maximum extent practical.

(4) The owner must pay the applicable owner's share of the cost of the work as specified in section 70-687.

(5) The owner must execute an agreement with the city that meets city requirements prior to the city's proceeding with the project.

(Ord. No. 13948, § 2, 12-21-2009)

Sec. 70-686. Priority categories for eligible requests for drainage assistance.

Prioritization of eligible requests shall be based on the severity of the problem, the cost, and the number of properties affected and shall be assessed using written criteria approved by the director. The determination as to the priority a drainage project located outside of city-owned rights-of-way receives shall be made by the director and this decision is not subject to appeal. The following priority categories shall be used, with priority A the highest priority:

(1) *Priority A.* The condition of the drainage system affects the ability of the system to function under normal design conditions and causes structural impacts to an existing inhabited or occupied building or a public street, sidewalk, or other public pedestrian walkway. Examples include but are not limited to failed systems that cause:

- Sustained street flooding;

- Living space flooding of residential structures; or
- Flooding of an occupied building constructed on a permanent foundation connected to utility services (electric, gas, water, sewer).

(2) *Priority B.* The condition of the drainage system poses an imminent threat of constituting a priority A project. Examples include but are not limited to failed systems that cause:

- Crawlspace flooding that has not affected the structure's integrity;
- Flooding of attached garages to residential structures.

(Ord. No. 13948, § 2, 12-21-2009)

Sec. 70-687. Amount of funding from stormwater utility funds.

The amount of funding from stormwater utility funds for projects meeting criteria in section 70-685 shall be limited as set forth below. City funding shall be based on the cost estimate prepared for the most cost-effective alternative, as determined by the director, and this decision is not subject to appeal. Estimated costs shall include, but are not limited to, expenditures for the construction services needed to complete the project. The following funding criteria and formulas apply:

(1) Single-family residential properties that are either owner-occupied or that are rental properties, with rents no greater than 80 percent of area median income. The city will pay for 90 percent of the estimated project cost, not to exceed $60,000.00 per property, per project. The owner shall pay the remaining cost.

(2) All other properties. The city will pay for 70 percent of the estimated project cost, not to exceed $35,000.00 per property, per project. The owner shall pay the remaining cost.

(3) Stormwater utility funding for drainage assistance requests for single-family residential properties that are either owner-occupied or that are rental properties, with rents no greater than 80 percent of area median income, shall not exceed $60,000.00 per property in a ten-year period. For all other properties, the stormwater utility funding shall not exceed $35,000.00 in a ten-year period. Additionally, a property owner that receives drainage assistance from the city may not qualify for assistance more than one time in any ten-year period.

(Ord. No. 13948, § 2, 12-21-2009; Ord. No. 14825, § 1, 8-3-2015; Ord. No. 16129, § 1, 4-17-2023)

Sec. 70-688. Installment payments.

(a) The property owner share of the stormwater drainage repair or improvement project cost, as determined in sections 70-687 and 70-686, may be paid in installments.

(b) The property owner shall submit a request in writing and a completed application for payment of the cost in installments prior to scheduling the stormwater repair or improvement.

(c) The property owner share of the cost shall be payable in eight equal annual installments. The first installment is due and payable 50 days from the date the city manager approves payment of the cost in installments. Subsequent installments, with accrued interest, shall be due and payable on the same date in each successive year thereafter until the property owner share of the stormwater drainage project cost and interest thereon is paid in full. Installment payments shall bear interest at a rate fixed by the city council in the fee schedule.

(d) From and after the date that the city manager or designee approves payment of the cost in installments, the unpaid portion of the owner's cost shall be a lien on the property as provided in section 35 of the Charter of the city and any other applicable law.

(e) The monies collected shall be used by the stormwater services division solely for stormwater services.
(Ord. No. 13948, § 2, 12-21-2009; Ord. No. 14825, § 2, 8-3-2015)

Sec. 70-689. Other projects not prohibited.

This division does not prohibit or otherwise limit the use of stormwater funds on private property to alleviate or remedy a public nuisance, or to comply with permitting, regulatory, or statutory requirements.
(Ord. No. 13948, § 2, 12-21-2009)

Sec. 70-690. Severability.

If any section, subsection, paragraph, or clause of this article is held to be invalid or unenforceable, all other sections, subsections, paragraphs, and clauses shall nevertheless continue in full force and remain in effect. In addition, if the city's use of funds for any portion of its stormwater program is held invalid, all other funded portions of the program shall continue in full force and remain in effect.
(Ord. No. 13948, § 2, 12-21-2009)

Sec. 70-691. Private drainage assistance hardship program.

A property owner may apply for the private drainage assistance hardship program for drainage assistance projects located on single-family residential parcels. The applicant must complete the city's application, and submit all required documentation, to be considered for the private drainage assistance hardship program. The city will only provide private drainage assistance hardship program funding assistance if the eligibility requirements are met, and city funding is available.

(1) The following financial hardship criteria shall apply:

a. the applicant must be a City of Durham resident and the owner of the property on which the project will be constructed for at least 90 days prior to the date of application, and

b. the applicant must be enrolled in a Durham County property tax relief program, such as the long-term payment plan deferral program, the elderly and disabled homestead exemption, the elderly and disabled deferment program, or the disabled veteran exclusion program, or

c. the applicant's household income (accounting for household size) is less than or equal to 200 percent of the most recent Federal poverty income guidelines, or

d. the applicant's household income is less than or equal to Durham County's median household income for the most recent year of data available.

(2) If a property owner meets the financial hardship criteria, the maximum cost share for the property owner is $2,000.00 for a project with an estimated total project cost less than or equal to $102,000.00. A property owner is responsible for all project costs in excess of $102,000.00.

(3) Despite language to the contrary in section 70-688(c), a property owner qualifying for the private drainage assistance hardship program may pay its share of the cost in eight equal annual installments. No interest will be charged. The first installment will be due and payable 50 days after the date the city manager approves payment of the cost in installments. Subsequent installments shall be due and payable on the same date in each successive year thereafter until the property owner's share of the stormwater drainage project cost is paid in full.

(4) Despite language to the contrary in section 70-687, for property owners qualifying for the private drainage assistance hardship program, the city's drainage assistance can be as much as $100,000.00 per property over a ten-year period.

(Ord. No. 16129, § 2, 4-17-2023)

Secs. 70-692—70-706. Reserved.

ARTICLE IX. EXTENSION PERMIT PROGRAM

Sec. 70-707. Definitions and general provisions.

(a) *Definitions.* The following terms, whether or not capitalized, as used in this article are defined as follows:

City water system means the portion of the facilities owned by the city which are used to distribute piped water for human consumption.

DENR means the North Carolina Department of Environment and Natural Resources.

Documents include writings, drawings, graphs, charts, photographs, phonorecords, and other data compilations from which information can be obtained, translated if necessary through detection devices into reasonably usable form.

Engineer means the city engineer or the city engineer's designee, except in section 42-708(c)(1). If the position of engineer is vacant, the city manager shall promptly designate an individual to act temporarily as engineer for purposes of this article.

Permit means a permit issued pursuant to this article. The permit shall authorize the construction or alteration of the distribution system of a public water system. As used in the preceding sentence, "distribution system" means the network of pipes, valves, hydrants, and related appurtenances.

Person shall have the meaning stated in G.S. 130A-313, as amended from time to time.

Public water system shall have the meaning stated in G.S. 130A-313, as amended from time to time.

To include (the verb) in all its form is used without limitation.

Utility service area is the area described in G.S. 130A-317(d) as the "service area" for a municipality.

(b) *Service of documents.* Unless otherwise provided, service of a document pursuant to this article shall be done by first-class, registered, or certified mail or by any of the means authorized by G.S. 1A-1, Rule 4.
(Code 1982, § 23-215; Ord. No. 10657, § 1, 12-18-1995)

Sec. 70-708. When permit required; city standards; technical requirements.

(a) *Work for which permit required.*

(1) No person shall award a contract for construction or alteration of a public water system within the city's utility's service area if the system is, or is proposed to be, connected with the city water system until such person shall have received from the city a permit therefor and shall have complied with such conditions, if any, as are prescribed by such permit.

(2) No person shall begin construction or alteration of a public water system within the city's utility's service area if the system is, or is proposed to be, connected with the city water system until such person shall have received from the city a permit therefor and shall have complied with such conditions, if any, as are prescribed by such permit.

(b) *City standards.* The engineer shall issue, and modify as needed, technical standards (hereinafter "the city standards") applicable to all work required to be permitted pursuant to this article. The standards shall be effective only when approved in writing by DENR. All of the work referred to in subsection (a) of this section shall be designed and constructed in conformity with applicable provisions of the city standards. The plans and specifications for all construction, extensions, alterations, and changes shall be prepared by or under the direct supervision of an engineer licensed to practice in North Carolina.

(c) *Compliance with state requirements.* The engineer shall cause the city standards and all other requirements for issuance of permits to be at least as stringent as G.S. 130A-311 et seq. and the standards and rules adopted pursuant to said section. Without further action by the city council, all future amendments to the rules implementing said Article 10 shall be incorporated into the city's permit process and requirements on the 60th day after the effective date of such future amendments, unless the engineer finds that it is likely that the public health would be jeopardized by such a delay, in which case the rules shall be so incorporated on said effective date. The engineer shall see that the city complies with those rules, as amended. In order to put the provisions of this article into effect, the engineer shall have the authority to establish procedures not inconsistent with it or other ordinances of the city. The engineer shall notify DENR within ten days of any change in staff, budget, or other resources that may adversely affect the ability of the city to effectively carry out its obligations under this article. Without limiting the foregoing, no permit shall be issued unless:

(1) The plans for construction or alteration have been prepared by an engineer licensed by the state;

(2) The engineer has determined that the system, as constructed or altered, will be capable of compliance with the rules adopted pursuant to G.S. 130A-311 et seq.;

(3) The engineer has determined that the system is capable of interconnection at an appropriate time with an expanding municipal, county, or regional system;

(4) The engineer has determined that adequate arrangements have been made for the continued operation, service, and maintenance of the public water system; and

(5) The engineer has approved the plans and specifications.

(Code 1982, § 23-216; Ord. No. 10657, § 1, 12-18-1995)

Sec. 70-709. Processing of applications.

(a) *Form of applications.* The engineer shall determine the form of and information required to be in applications. The applications shall include the following: the names and addresses of the applicant and of the engineering firm certifying the application; the quantity of water expected to be distributed through the system proposed to be constructed; the size of the proposed water lines; whether the water lines will be subject to traffic-bearing loads and if so, whether measures have been taken to enable them to withstand the loads; whether the pressure test rate exceeds allowable standards; other information that the engineer determines is needed to assess whether the work will be in accordance with the city standards; and a nonrefundable payment in the amount set by the city council. The city council may provide that the city shall pay no application fee when it is the applicant.

(b) *Action on applications.* The engineer shall notify the applicant in writing when an application is complete. All applications for new permits and for renewals of existing permits under this article, and all permits and renewals, shall be in writing. The engineer shall act on a permit application within 90 days after the applicant submits all information required by the engineer. The engineer may conduct any inquiry or investigation that the engineer considers necessary before acting on an application and may require an applicant to submit plans, specifications, and other information the engineer considers necessary to evaluate the application. Permits and renewals shall be effective until the event (which may include lack of sustained progress on the permitted work) or expiration date specified therein or until unless suspended, modified, or revoked pursuant to the City Code or otherwise as provided by law. A permit may contain such conditions as the engineer determines to be reasonably necessary. The engineer's decision to grant, deny, or grant with conditions shall be based upon the design, capacity, and manner of operation of the city water system; applicable rules, regulations, statutes, and ordinances of all governmental entities; and the city standards. Permits are not transferable. The engineer shall send to DENR notice of and a copy of each application for a permit and a copy of approved plans.

(c) *Information provided in case of denial.* The denial of an application for a permit or renewal shall be made in writing and shall state the city's estimate of the changes in the applicant's proposed activities or plans which will be required in order that the applicant may obtain a permit. If the applicant makes those changes, nothing in the estimate shall preclude the city from denying a permit or renewal because of changed circumstances or information not previously known by the engineer. The preceding sentence is not to be construed so as to lessen the authority of the city to deny a permit or renewal.

(Code 1982, § 23-217; Ord. No. 10657, § 1, 12-18-1995)

Sec. 70-710. Post-completion submittals.

(a) *Certification and as-built drawings.* Upon completion of the construction or alteration work allowed by the permit and before operating the system that was constructed pursuant to the permit or any portion of the system that was altered pursuant to the permit, the permittee shall submit the following to the engineer:

(1) A statement stating that construction was completed in substantial accordance with approved plans and specifications and revised only in accordance with 15A N.C. Administrative Code 18C.0306, as amended; and

(2) As-built drawings of the work allowed by the permit, certified by a registered professional engineer to be in compliance with approved plans and specifications. The engineer shall provide a copy of the statement to DENR.

(b) *Certifications.* The statement referred to in subsection (a)(1) of this section and the certification referred to in subsection (a)(2) of this section shall be signed by a registered professional engineer and shall be based upon adequate observations during and upon completion of construction by the engineer or a representative of the engineer's office supervised by the engineer.
(Code 1982, § 23-218; Ord. No. 10657, § 1, 12-18-1995)

Sec. 70-711. Enforcement.

(a) *Suspension, revocation, and modification.* The engineer may suspend, revoke, or modify a permit, which action shall be effective 30 days after service of a notice stating good cause. Good cause includes:

(1) Violation of the permit or of this article;

(2) Obtaining a permit by misrepresentation or failure to disclose fully all relevant facts; or

(3) Refusal of the permittee or its contractors, agents, or employees to allow authorized employees of the city upon presentation of credentials to inspect or observe any work authorized or required by the permit.

(b) *Civil penalty.* The engineer's designee may assess a civil penalty of not more than $10,000.00 against any person who is required but fails to apply for or to secure a permit or who violates or fails to act in accordance with the terms, conditions, or requirements of a permit. If any action or failure to act for which a penalty may be assessed under this article is continuous, the engineer's designee may assess a penalty not to exceed $10,000.00 per day for so long as the violation continues. Penalties up to the maximum authorized shall be based on a consideration of the degree and extent of harm caused by the violation and the cost of rectifying the damage. The engineer's designee shall serve each person assessed a civil penalty with a notice of the assessment and the specific reasons therefor by registered or certified mail, or by any means authorized by G.S. 1A-1, Rule 4. The penalty shall be due 35 days after the date of the notice.

(c) *Equitable relief; civil actions; remedies nonexclusive.* The city manager is authorized to seek equitable relief, including injunctive relief, to prevent violations of the terms of a permit or of this article. The city manager is authorized to commence civil actions to collect civil penalties or to seek equitable relief in any appropriate division of the General Court of Justice in any appropriate county, which shall include Durham County, the county where the violation occurred, and the county where a defendant resides. To the extent allowed by law, the procedures and remedies of withholding water service and civil penalties and actions, including equitable relief, may be used in combination or singly. The city manager shall not commence a civil action to collect a civil penalty until the administrative review has been completed.

(d) *Criminal enforcement.*

(1) Violation of this article shall not be a violation of the penal laws of North Carolina, except for violation of section 70-708(a)(1), which shall be a violation of the penal laws of North Carolina.

(2) Nothing in this subsection shall prevent enforcement of G.S. 130A-1 et seq. or G.S. 130A-311 et seq., including G.S. 130A-22(b). If subsection (d)(1) of this section is construed by a court of competent jurisdiction to prevent enforcement of G.S. 130A-1 et seq. or G.S. 130A-311 et seq., subsection (d)(1) of this section shall be of no effect.

(e) *Withholding of water service.* While the permittee is in violation of the permit or of any provisions of this article, the city manager shall withhold water service through any line if a permit is required for construction or alteration of the line, provided that the withholding of such service shall be preceded by a notice in writing, sent by the engineer to the permittee and to the persons whose water service is to be withheld, setting forth one or more violations on which the decisions to withhold service is based. The city manager shall not withhold water service pursuant to this subsection if the city manager finds that the withholding of water service would be inequitable or that the public safety or health is likely to be endangered thereby.

(Code 1982, § 23-219; Ord. No. 10657, § 1, 12-18-1995)

Sec. 70-712. Administrative review; judicial review.

(a) *Right to administrative review.* The following persons are entitled to administrative review: (1) any applicant denied a permit or any permittee whose permit is made subject to conditions which are unacceptable to the applicant; (2) any permittee has received notice that its permit has been suspended, revoked, or modified; (3) any person assessed a civil penalty pursuant to section 70-711(b); and (4) any person denied water service pursuant to section 70-711(e). Any person entitled to administrative review pursuant to this section shall serve a demand for administrative review to the engineer within 30 days of the date of the notice of the action complained of, or the administrative review shall be deemed waived. The following information must be included in the demand, or the administrative review shall be deemed waived. For the administrative review to consider:

(1) The denial of a permit, the applicant must identify separately each reasons for denying the permit that the applicant contends to be improper and every basis for such contention;

(2) A permit granted subject to unacceptable conditions, the applicant must identify separately each unacceptable condition and every basis for such contention;

(3) The modification or revocation of a permit, the permittee must state separately each reason for modifying or revoking the permit that the permittee contends to be improper and every basis for such contention;

(4) A civil penalty assessment, the person to whom such penalty was assessed must state separately each reason why such penalty should not be assessed, or if the person contends that the civil penalty was assessed in an improper amount, each reason why the amount of the penalty is improper;

(5) The withholding of water service, the person denied water service must identify separately each reason for withholding water service that the applicant contends to be improper and every basis for such contention.

The person seeking review shall be deemed to have waived the right to raise any reason, basis, or allegedly improper condition that is required to be stated in the demand unless it is specified in the demand.

(b) *Nature or administrative review; procedure.* The administrative review shall include a hearing conducted by a hearing officer, who shall be the engineer or some other unbiased person designated by the engineer. The person seeking review may appear personally and through representatives and may arrange for persons with pertinent knowledge to provide information to the hearing officer. The hearing shall be held and a decision issued by the hearing officer within 90 days of the receipt of the written demand of a hearing. If the hearing is to consider the suspension, modification, or revocation of a permit or the withholding of water service, the hearing officer shall attempt to hold the hearing and issue a decision within ten days of the receipt of the written demand for a hearing. The hearing officer may affirm, reverse, or modify the action appealed from and shall serve notice of the decision on the person who sought the hearing. When the hearing officer's decision is to deny a permit, to grant a permit with conditions, to modify a permit, to revoke a permit, to affirm a civil penalty in whole or in part, or to affirm the withholding of water service pursuant to section 70-711(e), the person who sought the hearing, in order to complete the administrative review process, shall serve the engineer within ten days of the date of the decision with notice that said person is dissatisfied with the decision. Within 15 days of the service of said notice of dissatisfaction, the hearing officer shall prepare, and the engineer shall serve on said person, findings with respect to the decision. The hearing officer's decision, including findings if any, shall constitute the final decision of the city for purposes of administrative review.

(c) *Rules.* The engineer may propose rules concerning the conduct of the hearing that is provided pursuant to subsection (b) of this section and concerning any other matter associated with the hearing. The rules shall become effective upon approval by the city manager.

(d) *Transcript of administrative review hearing.* The hearing officer may, and if requested by the person seeking review shall, provide for any part of the hearing to be recorded. The hearing officer may select audio, video, or writing as the means of recording. A transcript of

any hearing, or part thereof, which is recorded need not be prepared unless requested. If the person seeking review requests that a transcript be prepared, the engineer shall arrange for the preparation, and the person seeking review shall bear the preparation cost. If a transcript is prepared, a licensed court reporter shall prepare the transcript, unless all parties and the engineer agree otherwise. The engineer shall require the person seeking review to post an advance deposit sufficient to defray said cost. If the person seeks judicial review pursuant to subsection (e) of this section, said person shall provide the original transcript to the engineer at no cost to the city.

(e) *Judicial review.* Any person who had a right to administrative review pursuant to subsection (a) of this section may petition for judicial review, but only after having exhausted administrative review, including giving a notice of dissatisfaction and receiving findings. When the hearing officer's decision is to deny a permit or grant it with conditions, or to affirm a civil penalty in whole or in part, service of a notice of dissatisfaction shall be considered part of administrative review. Judicial review shall be obtained by filing a written petition within 30 days after the service by the engineer of the findings which the hearing officer issued regarding the action complained of, but not thereafter, with the superior court of Durham County. The petition shall specifically and with particularity state the grounds for claiming that the decision of the hearing officer is contrary to law. If not previously requested, said person shall request in writing, at or before the date of filing the petition with the superior court, that a transcript be prepared for every part of the administrative hearing that was recorded. A copy of the petition shall be served on the city in the manner required by law. Within 30 days after service of a copy of the petition upon the city or such other time as may be ordered by the court, the city shall prepare and transmit to the court the original or a certified copy of the official record of the hearing as hereinafter set forth. Unless the city manager and the persons seeking judicial review agree otherwise, the official record of the administrative hearing shall include:

(1) The documents presented by the petitioner at the administrative hearing;

(2) The documents considered by the hearing officer in reaching the decision complained of;

(3) The decision and findings of the hearing officer; and

(4) The transcript of each part of the hearing that was recorded, if available at the time the remaining portion of the official record is transmitted to the court. If the transcript is not available at that time, it shall be transmitted to the court as soon as reasonably possible after the transcript has been prepared.

The court may consider the official record, the City Code of the city, and the city standards, and shall not consider additional evidence. Except to the extent otherwise required by law, the judicial review shall be limited to contentions properly raised in the administrative review, and the court shall remand the decision for appropriate further proceedings if the court finds the decision is: (1) in violation of constitutional provisions, (2) in excess of the statutory authority or jurisdiction of the city, (3) made upon unlawful procedure, (4) affected by other error of law, (5) unsupported by substantial evidence in view of the entire record as

submitted, the City Code, and the city standards, or (6) arbitrary and capricious. The city manager shall have the authority to settle and compromise, on behalf of the city, any of said proceedings filed in the superior court. The city manager shall suspend any or all of the withholding of water service pending any administrative or judicial review, to the extent that the city manager finds that the withholding of water service would it be inequitable or that the public safety or health is likely to be endangered thereby.
(Code 1982, § 23-220; Ord. No. 10657, § 1, 12-18-1995)

Secs. 70-713—70-735. Reserved.

ARTICLE X. STORMWATER PERFORMANCE STANDARDS FOR DEVELOPMENT*

Sec. 70-736. Purpose and definitions.

(a) *Purpose.* The purpose of article X is to further the health, safety, general welfare and convenience of the public through:

(1) Protecting receiving waters impacted by stormwater runoff discharged from development within the City of Durham through maintaining performance standards for total suspended solids (TSS), nitrogen, phosphorus, and bacteria for such development;

(2) Complying with the city's municipal stormwater National Pollutant Discharge Elimination System permit, issued under the authority of Section 402(p) of the Clean Water Act and implementing regulations at 40 CFR Part 122.26 et seq.;

(3) Complying with the various General Statutes of North Carolina including but not limited to Article 4A, GS 113A-70 et seq. and implementing regulations for such state statutes, including but not limited to the statutes and regulations implementing nutrient management requirements for the Neuse Basin and the Falls Basin; and

(4) Limiting potential flooding of downstream properties and protecting streams and other waterways from erosion by ensuring that development manages the increases in peak flows that result from changes in land cover.

(b) *Definitions.* Within this article, the following terms and phrases, regardless of capitalization, shall have the meanings set forth below:

Baseline date or *applicable baseline date* means the following dates when stormwater requirements were adopted for the basins indicated:

Jordan Basin	March 17, 2009

*__Editor's note—__*Ord. No. 14274, § 1, adopted June 4, 2012, amended article X in its entirety to read as herein set out. Formerly, article X, sections 70-736—70-741 pertained to similar subject matter and derived from Ord. No. 13773, § 3, adopted March 16, 2009, and Ord. No. 14009, § 1, adopted June 7, 2010.

Falls Basin	July 6, 2012
Lower Neuse Basin	March 9, 2001

City stormwater standards means written standards related to stormwater adopted by the public works department or city council. They include but are not limited to: the Reference Guide for Development and content published for the public's viewing and inspection; other written and adopted specifications for the design, construction, maintenance, and operation of Stormwater Control Measures or Stormwater Conveyances; and all state standards related to stormwater or state approved alternatives to such standards that have been adopted by the city's public works department or city council. The city shall submit to NC DEQ for approval all technical standards that require approval.

Common plan of development means staged or coordinated development pursuant to an approved plan such as a development plan or site plan whether or not by the same owner, or successive improvements over a period of years initiated by the owner(s) of and conducted on a parcel or contiguous parcels of land for the benefit of such parcel(s). Factors to be considered in determining whether a common plan of development exists include but are not limited to: ownership; scope, content, and history of approved plans; other information regarding the development such as contracts, advertisements, or marketing materials; equitable factors; and common or joint use of infrastructure such as roads or utilities.

Department means the Public Works Department of the City of Durham.

Development means any land-disturbing activity that increases the amount of impervious surface area or that otherwise decreases the infiltration of precipitation into the subsoil. When additional development occurs at a site that has existing development, the impervious surface area of the existing development shall not be included in the density calculations for additional stormwater control requirements, and stormwater control requirements cannot be applied retroactively to existing development. It does not include agriculture or forestry activities.

Director means the Director of the Public Works Department of the City of Durham, or such person(s) as designated in writing by the director to perform all or a portion of the functions set forth in this article.

Department of environmental quality or DEQ means the North Carolina Department of Environmental Quality (NC DEQ).

Downtown area means the Downtown Tier, Compact Neighborhoods, and Suburban Transit Zones as shown on the Durham Comprehensive Land Use Plan most recently approved by the Durham City Council.

Existing development means development that, prior to the effective date of this ordinance has either been lawfully constructed, or has established a vested right under North Carolina law to construct a proposed project, or portion thereof. With regard to application of this ordinance, a vested right will be recognized as follows:

a) for development that does not require a state permit, a vested right shall exist for any portion of a development that has an approved or a completed application for a

site plan or subdivision plat covering that portion, or in the event a site plan or subdivision plat is not required, a building permit or a construction drawing for that portion of the development. An approved development plan does not accord vested rights in the absence of an approved or completed application for the above-described plans or permits. A "completed application" is one that meets all application requirements, including payment of all required fees and submission of all required information, prior to the effective date of this article. A vested right shall expire if the validity of an approved or completed application or approval is not continuously maintained as otherwise required under the Unified Development Ordinance or City Code;

b) for development that requires a state permit, vested rights shall be recognized if the project meets all the requirements of a) above, and additionally has received necessary state permits required for the use or for construction.

Falls Basin means the area that drains to the Falls Reservoir as determined by the Durham City-County Planning Department.

Impervious surface means a surface that because of its composition and/or its use impedes the natural infiltration of water. It includes but is not limited to buildings, roofs, solid decks, driveways, parking areas, patios, sidewalks, and compacted gravel areas. It does not include areas that are part of permitted stormwater controls; the open surface water such as swimming pools; a surface of 57 stone, as designated by the American Society for Testing and Materials, laid at least four inches thick over a geotextile fabric; a trail as defined in G.S. 113A-85 that is either unpaved or paved as long as the pavement is porous with a hydraulic conductivity greater than 0.00l centimeters per second (1.41 inches per hour); or landscaping material, including, but not limited to, gravel, mulch, sand, and vegetation, placed on areas that receive pedestrian or bicycle traffic or on portions of driveways and parking areas that will not be compacted by the weight of a vehicle, such as the area between sections of pavement that support the weight of a vehicle. The owner or developer of a property may opt out of any of the exemptions from "impervious surface" set out in this definition.

Jordan Basin means the area that drains to Jordan Lake as determined by the Durham City-County Planning Department.

Land disturbance means a change in the cover or topography of land that may result in sedimentation, and includes but is not limited to grubbing, stump removal, removal of topsoil, coarse or fine grading, and exposure of the subgrade.

Limited residential means single family and duplex residential and recreational development.

Lower Neuse Basin means the area that drains to the Neuse River but not to the Falls Basin as determined by the Durham City-County Planning Department.

Multifamily and other development means development not included in limited residential, and includes but is not limited to multifamily residential development (e.g., townhomes, condominiums, apartments), office, industrial, institutional (including local government institutional), and commercial development.

Pervious means surface that does not qualify as "Impervious Surface."

Redevelopment means any land-disturbing activity that does not result in a net increase in impervious surface area and that provides greater or equal stormwater control to that of the previous development.

Regional SCM means a Stormwater Control Measure, as defined below, utilized for treatment of stormwater runoff from more than one project and/or properties through an adopted local or state regulated stormwater program. These must meet or exceed minimum design and construction standards. Individual properties approved to utilize a Regional SCM to either eliminate or reduce the use of on-site SCMs shall have a legal, binding agreement with the owner of the Regional SCM.

Stormwater control measure, or *SCM*, means a device or practice that is designed to trap, settle out, filter, or otherwise reduce pollutants from stormwater runoff, and/or to alter or reduce runoff velocity, amount, timing, or other stormwater characteristics. The term includes all measures formerly known as "best management practices" or "BMPs". Such measures include but are not limited to stormwater detention facilities, constructed wetlands, bioretention areas, sand filters, rainwater harvesting systems, vegetative areas, level spreaders, filter strips, buffers, vegetated swales, and appurtenant drainage facilities.

SCM maintenance certifier means a North Carolina licensed professional engineer or North Carolina registered landscape architect that has demonstrated to the department's satisfaction that they meet or exceed minimum knowledge and experience criteria for maintenance and inspection of stormwater control measures as detailed in City Stormwater Standards. This individual is conditionally approved by the department by formal issuance of a certificate. This individual is authorized to conduct annual maintenance inspections of stormwater control measures, prepare findings, and submit annual maintenance inspection reports in accordance with City Stormwater Standards.

Stormwater conveyance means a physical feature, including constructed devices, that conveys stormwater. A conveyance may also serve as a stormwater control measure.

Stormwater facilities means stormwater control measures and stormwater conveyances.

Stormwater pollutant or *pollutant* means nutrients (nitrogen and phosphorus), bacteria, total suspended solids (TSS), and any other substance that can be transported via stormwater and that is identified in this article or City Stormwater Standards as requiring regulation.

(Ord. No. 14274, § 1, 6-4-2012; Ord. No. 15468, § 1, 5-20-2019; Ord. No. 16135, § 1, 4-17-2023)

Sec. 70-737. General; prior requirements; additional standards; interpretations.

(a) *Applicability.* This article provides requirements for the control of stormwater discharges containing stormwater pollutants and the management of stormwater peak flows from developments within the city. All development shall be subject to the requirements of this article unless specifically exempted.

(b) *Approval contingent upon compliance.* No site plan, preliminary or final subdivision plat, construction drawing for a street or for utilities, or utility permit shall be approved until the applicant has submitted information required by the City Stormwater Standards sufficient to determine compliance with this article, and review for compliance has been conducted.

(c) *Prior requirements, violations continue.* Prior stormwater requirements that have been superseded by the requirements of this article shall continue to apply to existing development approved and/or constructed under such prior requirements, in the event that the requirements of this article do not apply. Existing development, or portions thereof, that is not required to comply with this article must continue to manage stormwater pollutants and peak flow in accordance with the stormwater requirements appearing on approved plans for the development and the requirements in effect when such plans were approved. Violations of superseded stormwater requirements shall continue as violations and be subject to enforcement under this article unless this article explicitly allows the development or action that constitutes the violation.

(d) *City stormwater standards.* The public works department is authorized to promulgate technical standards for use in the administration of this article, which standards may be amended from time to time. Technical standards may include but are not limited to requirements for design, construction, performance, financial security, review, and professional certification of stormwater facilities. City Stormwater Standards are considered requirements of this article. They shall be in writing, approved and signed by the director, and shall be maintained in the city's reference guide for development or in other written documents. If such standards conflict with technical standards that have been adopted pursuant to other portions of the City Code, the director shall be authorized to resolve such conflicts. Any such resolution shall be consistent with the requirements of this article. The city shall submit to NC DEQ for approval all technical standards that require approval.

(e) *Maps.* The watershed maps for the Falls Basin, the Jordan Basin, and the Lower Neuse Basin maintained by the Durham City-County Planning Department, as supplemented by particular drainage information that may be required pursuant to City Stormwater Standards or the Unified Development Ordinance, shall be used to determine the drainage basin in which a property is located and other determinations regarding drainage.

(f) *Final decisions/interpretations.* The director shall be authorized to render all interpretations of, and final decisions under, this article. No interpretation shall be binding unless it is in writing and signed by the director.

(g) *Requirements supplementary; conflict.* The requirements in this article implement and in some cases supplement other statutory and regulatory requirements including, but not limited to, requirements for buffers, water protection (watershed) overlays, and controls for sedimentation and erosion that are contained in the Durham City-County Unified Development Ordinance. In the event of a conflict between the requirements of this article and statutory or regulatory requirements, the statutory or regulatory requirements shall control.

(h) *Fees.* The city is authorized to charge fees to recoup all estimated direct and indirect costs of administering this article, and such fees shall be reviewed and approved on a periodic basis by the Durham City Council.

(i) *Severability.* If any portion of this article is determined to be invalid by a court of competent jurisdiction, such determination shall not affect or invalidate the remaining portions of this article.
(Ord. No. 14274, § 1, 6-4-2012; Ord. No. 15468, § 1, 5-20-2019; Ord. No. 16135, § 1, 4-17-2023)

Sec. 70-738. Peak runoff control requirements.

(a) *Purpose.* The purpose of this section 70-738 is to ensure that the increases in volume, velocity, and peak flow of storm water discharges from development are addressed, in order to mitigate the impacts on downstream properties and receiving waters. All development, including development that may be exempt from pollutant reduction requirements set forth in remaining sections of this article, is subject to the requirements of this section unless exempted in (b) below.

(b) *Applicability; calculation of prior impervious surface area.* This subsection 70-738 applies to the following development, assessed in comparison to pre-development prior Impervious Surface conditions as defined in (1) and (2) below: (i) relocation of existing impervious surface area on a multifamily and other lot; (ii) increase in Impervious surface area on any lot subject to limitations on impervious surface area in an approved plat or plan for reasons such as watershed protection or stormwater control measure requirements; (iii) increase of more than 500 square feet in impervious surface area on a multifamily and other lot; (iv) increase of more than 2,000 square feet of impervious surface area on a single family or duplex residential lot included on a preliminary or final plat submitted for review, or on any lot utilized for recreation. For purposes of calculating these thresholds, subject development that is part of a common plan of development shall be assessed with other portions of such common plan that have not previously complied with peak flow requirements.

(1) For purposes of applying peak flow requirements for the 2- and 10-year storms, the land cover (including type and location) existing as of April 23, 1997 shall be considered the "pre-development conditions";

(2) For purposes of applying the peak flow requirement for the 1-year storm, the land cover (including type and location) that existed as of March 9, 2001 for land in the Falls Basin and Lower Neuse Basin, and as of March 17, 2009 for land in the Jordan Basin shall be considered the "pre-development conditions";

(c) *Requirements.*

(1) *Stormwater impact analysis.* Development that is not exempt under (b) above shall submit a stormwater impact analysis or approved alternative to such analysis that complies with City Stormwater Standards as part of the application for site plan or subdivision plat approval, or if such is not required, as part of submittals for construction drawings or utility permit approval. Calculations shall be made in conformance with City Stormwater Standards. No subdivision plats, site plans, utility permits, or construction drawings shall be approved in the absence of a determination by the department that required submissions have been made and approved.

(2) *One-year storm.* Development that requires one or more of the following must prevent any increases in the peak runoff rate from the 1-year storm from pre-development conditions in accordance with City Stormwater Standards: (i) 2-year, 10-year, or other design storm detention in accordance with this section; (ii) Stormwater pollutant removal in accordance with section 70-740; (iii) stormwater control in accordance with Section 8.7 Watershed Protection Overlay Standards of the Unified Development Ordinance.

(3) *Two- and ten-year storms.* Development that increases the peak runoff rate from either the 2-year or the 10-year storm from pre-development conditions may be required to provide stormwater management facilities to address the impact, as determined in accordance with City Stormwater Standards.

(4) *Other design storms.* Development that increases the peak runoff from other design storms such as the 100-year storm may be required to install stormwater management facilities to address the impact, as determined in accordance with City Stormwater Standards.

(Ord. No. 14274, § 1, 6-4-2012; Ord. No. 15468, § 1, 5-20-2019; Ord. No. 16135, § 1, 4-17-2023)

Sec. 70-739. Stormwater pollutant standards; exemptions.

Sections 70-739 through 70-741 set forth requirements for Stormwater Pollutants, which include nitrogen, phosphorus, total suspended solids (TSS), and bacteria. All Development shall comply with these standards unless exempted as set forth in this subsection 70-739.

(a) *Exemptions for limited disturbances.* Development in which Land Disturbance, calculated cumulatively as of the Applicable Baseline Date, is less than the thresholds in Table I below is exempt from the standards in subsections 70-740 and 70-741, subject to paragraphs (1) and (2) below.

Table 1
Thresholds for Application of Stormwater Pollutant Requirements

	Land Disturbance	
Project Location	*Limited Residential*	*Multifamily and Other*
Jordan Basin	1 acre	1 acre
Falls Basin	0.5 acre	12,000 sq. ft.
Lower Neuse Basin	1 acre	0.5 acre

* Exempt if five percent or less Impervious Surface. For the purpose of calculating the percentage of Impervious Surface area for single family residential and duplex lots, Existing Development prior to May 1, 2023 shall be excluded.

(1) *Common plan of development.* Development that is part of a Common Plan of Development shall be included in the calculation. If the applicable threshold set forth in Table l is exceeded, all other portions of the Common Plan are subject to the requirements of this Article unless exempted by the following: i) the lot(s) within the Common Plan was lawfully constructed after the baseline date in accordance with the applicable requirements in effect at the time, ii) the lot(s) had a different applicant at the time of development, and iii) the lot(s) has a different owner(s), parent, subsidiary, or other affiliate than does the project area.

(2) *Redevelopment and existing development; maintenance of treatment.* Redevelopment and Existing Development that are exempt under these thresholds must continue to maintain and reconstruct all SCMs in compliance with approved plans, prior ordinance requirements, and City Stormwater Standards.

(b) *Other exemptions.* Additionally, Development is exempt if:

(1) It qualifies in its entirety as Existing Development; or

(2) It does not increase Impervious Surface area over the Applicable Baseline Date; or

(3) It is undertaken on land controlled by a state or federal entity and development approval is granted under the jurisdiction of NCDEQ; or

(4) It is undertaken by an entity, other than the City of Durham, covered by its own individual National Pollutant Discharge Elimination System (NPDES) Municipal Separate Storm Sewer System (MS4) permit.

(5) It is a single family or duplex residential lot of record existing prior to the baseline dates in the Jordan or Falls Basin or it is a single family or duplex residential lot legally recorded by deed or exempt plat in the Jordan or Falls Basin.

(Ord. No. 14274, § 1, 6-4-2012; Ord. No. 15468, § 1, 5-20-2019; Ord. No. 16135, § 1, 4-17-2023)

Sec. 70-740. Required reductions for nutrients and TSS; alternatives; calculations:

(a) *Nutrient loading rate limits.* Development not exempt under subsection 70-739 shall construct and implement SCMs so as to limit the post construction loading rate of nitrogen and phosphorus from the project area to the limits set forth in Table 2 below, or shall comply with allowed alternative (b) below. A portion of the reduction requirements for nitrogen and phosphorus may be met through off-site measures or payments as set forth in section 70-741.

Table 2
Nutrient Export Loading Rate Limits

Project Location	*Export Limit lbs/acre/year*	
	Nitrogen	*Phosphorus*
Falls Basin	2.2	0.33
Lower Neuse Basin	3.6	not required

(b) *Alternative for low impact development.* Development will be considered compliant with the nutrient reduction obligations of this section 70-740 if:

(1) In the Falls Basin it demonstrates that it meets the post development hydrologic criteria set forth in Chapter 2 of the North Carolina Low Impact Development Guidebook dated June of 2009, as it may be amended from time to time; or

(2) In any basin it demonstrates compliance with pre-development runoff volume matching criteria using NC DEQ's Storm-EZ spreadsheet.

(c) *TSS reduction.* TSS reduction is applicable to Development as further described in this subsection (c) when the following conditions are met:

- An increase in Impervious Surface area occurs as compared to what existed as of March 17, 2009; and
- The increase in Impervious Surface area assessed in comparison to Pervious area existing as of March 17, 2009 exceeds 24 percent.

All increased Impervious Surfaces, as reasonably practical, must drain to an allowed SCM that is designed to provide a minimum of 85 percent TSS removal or designated as a Primary SCM in the North Carolina Stormwater Control Measure Credit Document and is sized to capture runoff from the first one inch of rainfall from all surfaces that drain to the SCM. These requirements are expanded, and/or modified as follows:

(1) *Piped areas in low density projects.* Projects that are exempt from TSS reduction requirements through paragraph (c) above or through Section 8.7 Watershed Protection Overlay Standards must treat TSS in stormwater runoff that results from increases in Impervious Surface and that is conveyed in non-vegetated conveyances, such as stormwater pipes (road and driveway culverts excluded).

(2) *Overtreatment to address untreatable areas.* Where treatment for TSS is not reasonably practicable as determined by the Department, such as when Impervious

Surface areas include off-site transportation improvements or small noncontiguous areas at the edge of a project, additional reductions of TSS may be required in treatable areas, such as overtreatment in other project areas.

(d) *Calculations for nutrient loading and tss removal.* Pollutant loading calculations shall be made using City Stormwater Standards. All increases in Impervious Surfaces shall be included, including but not limited to internal and off-site transportation improvements in city maintained right-of-way. Approved methodologies for calculating pollutant loading will be maintained in writing by the Public Works Department, and will include those methodologies and calculations required by NC DEQ or alternative methodologies approved by the Public Works Department and NC DEQ.

(e) *Submittals.* An applicant shall submit pollutant loading calculations for the pre- and post-development conditions in accordance with City Stormwater Standards as part of its application and as part of the stormwater impact analysis for approval of a subdivision or site plan, utility permit, or construction drawings for a street or utility.
(Ord. No. 14274, § 1, 6-4-2012; Ord. No. 15468, § 1, 5-20-2019; Ord. No. 16135, § 1, 4-17-2023)

Sec. 70-741. On-site treatment requirements; offsite purchase and credit options; bacteria control.

(a) *On-site nutrient treatment requirements.* Nitrogen and phosphorus reduction requirements may be met, in part, through off-site management measures or the purchase of nutrient credits. At a minimum, however, in the Falls Basin a percentage of the required nitrogen and phosphorus reductions must be achieved through on-site treatment in the amount shown in Table 3 below. In addition to meeting the percentage reductions below, in the Lower Neuse Basin, nitrogen export load from the site must be reduced through runoff treatment when TSS reduction requirements are applicable. (Note: off-site credit purchases do not meet TSS removal requirements, which must be met on-site.)

Table 3
Onsite Nutrient Treatment Requirements

	Minimum Onsite Nutrient Treatment	
Project Location	*Nitrogen*	*Phosphorus*
Falls - General	*50% of required reduction	*50% of required reduction
Falls Downtown Area	*30% of required reduction	*30% of required reduction
Falls exceeding thresholds but with less than 1 acre land disturbance	*30% of required reduction	*30% of required reduction
Lower Neuse	No Percentage reductions apply, but on-site** runoff treatment required when TSS reduction requirements are applicable	Not required

* The "required reduction" is the difference between the post-development loading rate in pounds per year before treatment minus the loading rate target in pounds per year. The percentage shown in the chart above is applied to the difference and the resulting number is the amount in pounds per year that the nutrient loading rate must be reduced on-site.

** Regional SCMs can be utilized to meet on-site runoff treatment in the Lower Neuse Basin. Development undertaken by the city solely as a public road expansion or public sidewalk project may meet the nutrient export loading rate entirely through the use of permanent nutrient offset credit pursuant to sub-section (b) below.

(b) *Offset payments to state approved nutrient mitigation banks.* Development shall have the option of purchasing nutrient credits from state-approved nutrient banks to partially offset nitrogen and/or phosphorus loads as allowed by State law and regulation, including but not limited to 15A NCAC 02B.071 l, and 15A NCAC 02B.0703, as they may be amended from time to time. The number of pounds for which credits are purchased shall be increased by five percent if the nutrient bank is not located in the City of Durham. The following additional requirements shall apply:

(1) Location of nutrient banks. Development in the Falls Basin must use nutrient banks located in the upper Falls portion of the Falls Basin - the portion that is north and/or west of Highway 50.

(2) Certification of Nutrient Bank Provider. Offset credits may only be obtained from nutrient banks certified by the state.

(3) Utilization of NC DEQ Division of Mitigation Services (formerly known as Ecosystem Enhancement Program). Credits may also be obtained from the NC Division of Mitigation Services if such credits are available, and if applicable state requirements regarding utilization of private nutrient banks are first met.

(4) Certification of credits. Credits purchased pursuant to this subsection (b) shall be verified by the State and proof of such verification that meets city requirements shall be presented prior to approval of a final plat, or if no plat is required, prior to issuance of the first building permit within the project, or such earlier deadline as may be required by City Stormwater Standards.

(c) *Bacteria removal; control of other identified stormwater pollutants.* All Development which constructs SCMs in order to comply with section 70-740 of this article and which is located in an area that is subject to a state-approved Total Maximum Daily Load for bacteria shall be required to have, for each stormwater discharge, at least one primary SCM that is rated as medium, good, high, or excellent for its ability to remove bacteria from stormwater. Ratings shall be those that appear in the utilized version of the NC DEQ Storm water design manual and/or North Carolina Stormwater Control Measure Credit Document as specified in the Reference Guide for Development or as determined or approved by the Director. In

addition, SCMs required to be constructed under this Article must also treat any other pollutant for which a Total Maximum Daily Load has been identified for the area within which the SCM is located.
(Ord. No. 14274, § 1, 6-4-2012; Ord. No. 15468, § 1, 5-20-2019; Ord. No. 16135, § 1, 4-17-2023)

Sec. 70-742. Design, construction, and completion of SCMs and stormwater conveyances.

The owner(s) and/or the developer(s) of any Development for which SCMs and/or Stormwater Conveyances have been approved, and persons or entities that have contracted to perform all or a part of an owner's or developer's obligations, shall be responsible for complying with the requirements set forth below.

(a) *Design.* Stormwater Facilities required by this article shall be designed in accordance with City Stormwater Standards. Dams, as defined by the North Carolina Dam Safety Law, including but not limited to NCGS 143-215.23 et seq., and associated state administrative codes, as they may be amended in the future, are subject to the above-cited state requirements.

(b) *Approvals for stormwater facilities.* Stormwater Facilities required by this article or any other requirement of City Code or by the Unified Development Ordinance shall be constructed in accordance with City Stormwater Standards. Plans for Stormwater Facilities shall be submitted to the Department for review and approval on such timetable as required in City Stormwater Standards. City Stormwater Standards may require that permits be obtained for such work.

(c) *Construction plans, fees, financial guarantees.* For a Development in which construction of one or more Stormwater Control Measures is required, the owner(s) and/or developer(s) must ensure compliance with (1) through (5) below prior to one of the following: i) recordation of final plat for development involving individual ownership of lots or units within the development; ii) issuance of a utility permit for development which is not exclusively for residential home/condominium ownership; iii) issuance of a building permit for construction within a development which is not exclusively for residential home/condominium ownership and does not require a utility permit; or iv) construction drawing approval for any infrastructure within the development which will not require a building or utility permit.

(1) Review and approval of the stormwater impact analysis;

(2) Review and approval of plans and specifications for the SCMs and Stormwater Conveyances within the development;

(3) Payment of permit and review fees required by the Department;

(4) In the case of development involving individual ownership of lots or units within the development, creation of an owners' association prior to recordation

of covenants that both comply with City Stormwater Standards and provide, among other things, for the long term maintenance, inspection, repair, and reconstruction of the SCMs in accordance with City Standards;

(5) Provision of financial guarantees to ensure the long-term maintenance, inspection, repair, and reconstruction of stormwater control measures in accordance with City Code section 70-743, the Unified Development Ordinance, and City Stormwater Standards.

(d) *Completion of construction.* Construction of SCMs and stormwater conveyances shall be completed prior to final plat approval, if a final plat approval is required for the development. For a building, structure, or use not deemed single family or duplex residential development, construction of SCMs and stormwater conveyances shall be completed prior to issuance of a certificate of occupancy unless a performance guarantee to ensure completion is approved pursuant to (e) below.

(e) *Performance guarantees.* The owner or developer of a Development in which the requirements of (d) above have not been completed shall provide a performance guarantee of a type as set forth in City Stormwater Standards. The amount provided shall be as set forth in City Stormwater Standards, or as determined by the Director, which shall at a minimum require that all direct and indirect costs of completion and compliance with city requirements be guaranteed. City Stormwater Standards shall also include deadlines for completion of facilities for which performance guarantees have been provided. Deadlines may be modified by the Director to better ensure the protection of the city and the public, or to address special circumstances.

(f) *Conditional certificates; reduction of guarantees.* The city is authorized to issue conditional certificates of compliance for buildings for which performance guarantees have been provided and completion has been ensured consistent with City Stormwater Standards. In addition, City Stormwater Standards may allow for reduction of performance guarantees as approved by the Department as Stormwater Facilities are completed and requirements are met.

(g) *Obligation to complete facilities; city use of land.* The owner of property for which a stormwater facility has been approved as part of a Development, and any parties that have obligated themselves to construct such facilities under approved plans, permits, or previously approved agreements, are legally obligated to construct the facilities approved, or to pay for the construction of such facilities, if any land disturbing activity has occurred in the Development.

An owner that applies for and receives approval to construct a stormwater facility in a Development agrees that the city and its agents are authorized to enter upon the property and to construct the stormwater facilities if the owner fails to do so. This provision does not: i) require the city to take any action, acquire any property, or construct any facility; or ii) create any right or entitlement for any persons or entities other than the city; or iii) limit the city's ability to require other persons or entities not identified in this subsection (g) to construct stormwater facilities that have not

been constructed; or iv) limit the city's ability to utilize any other authority it may have under law to recoup the cost of construction of storm water facilities, including but not limited to authority to assess properties served by such facilities.

(h) *Rights under contracts.* The city is entitled to enforce any third party rights for the benefit of the public or itself that may be expressly or implicitly created in contracts for the design and construction of SCMs or Stormwater Conveyances. Contractors that have not performed in accordance with such contracts may be considered responsible parties under this article.

(Ord. No. 14274, § 1, 6-4-2012; Ord. No. 15468, § 1, 5-20-2019; Ord. No. 16135, § 1, 4-17-2023; Ord. No. 16535, § 1, 8-4-2025)

Sec. 70-743. Inspection, maintenance, repair, and reconstruction.

(a) The city shall ensure the continued maintenance, repair, and reconstruction of stormwater facilities through recorded agreements and covenants that meet the provisions of this section and other City Code requirements, and through financial guarantees that ensure that adequate funds are available to provide for the long term maintenance and replacement of facilities. Agreements, covenants, and requirements for type and amount of financial guarantees shall meet the written guidelines or policies of the public works department. These financial guarantees shall be in addition to performance guarantees the city may require to ensure initial construction of stormwater facilities.

(b) *Private maintenance responsibility.* The inspection, maintenance, repair and reconstruction of Stormwater Control Measures and Stormwater Conveyances shall be the responsibility of: i) the owner(s) of the property on which such SCMs and conveyances are located, ii) any person(s) or entity that is legally responsible pursuant to applicable agreements and/or covenants, and iii) the owner(s) of properties served by the SCMs or conveyances, as determined by reference to site plans, plats, and construction drawings for the SCMs.

(c) *Level of maintenance.* Every SCM and Stormwater Conveyance shall be maintained, repaired, and reconstructed so as to continue its functionality to the level for which it was designed for the control and/or conveyance of stormwater and for the treatment of Stormwater Pollutants. Maintenance, repair, and reconstruction shall be performed in compliance with City Stormwater Standards. Standards for maintenance include but are not limited to the most recently approved version of the operation and maintenance manual specifically prepared for each facility, a recorded stormwater facility agreement, and the most recent version of the "Owner's Maintenance Guide for Stormwater SCMs Constructed in the City of Durham."

(d) *Annual private inspection.* An annual inspection shall be conducted by an SCM Maintenance Certifier and a report that meets City Stormwater Standards shall be submitted to the Director for each Stormwater Control Measure by the persons or entities responsible for such facility, identified in (a) above. The report shall be submitted on such

schedule as assigned by the Department. In addition, such persons or entities shall maintain inspection and repair reports regarding the SCMs as required by City Stormwater Standards.

(e) *City right to inspect.* The city may inspect Stormwater Control Measures and Stormwater Conveyances located on private property. Inspection may include but is not limited to testing of structures, water, or vegetation as the city determines may be useful to determine the history or performance of the SCM or conveyance.

(f) *Financial guarantees.* The owner(s) and/or developer(s) must provide financial guarantees to ensure the long-term maintenance, repair, and reconstruction of stormwater control measures. Owner(s) may provide such financial guarantees by electing to use one of the following:

(1) For owner(s) and/or developer(s) who provide such financial guarantees on or after August 16, 2023:

(i) Provide a financial guarantee in accordance with section 70-751; or

(ii) Within five years of the as-builts for the stormwater control measure being approved by the city, retain funds equal to ten percent of the stormwater control measure's original cost of construction. These funds must be retained in a segregated account and used solely for the purposes of maintaining, repairing, replacing, and reconstructing the owner's stormwater control measure. Proof of such account shall be provided to the City in a form acceptable to the City.

(2) Owners who provided such financial guarantees prior to August 16, 2023 in accordance with section 70-751 may:

(i) Retain their financial guarantee in the stormwater facility replacement fund and obtain loans from the fund in accordance with section 70-752, or

(ii) Request a refund from the stormwater facility replacement fund in accordance with section 70-753. Any refunds issued in accordance with section 70-753 shall not exceed the amount originally paid into the fund by owner. If the owner elects this option, the owner must then retain funds in accordance with section 70-743(f)(1)(ii) above.

(3) Owners who provided financial guarantees prior to August 16, 2023 of a type other than that outlined in section 70-751 may (i) retain that financial guarantee or (ii) replace that financial guarantee with an account, separate from other funds, equal to ten percent of the stormwater control measure's original cost of construction. These funds must be used solely for the purposes of maintaining, repairing, replacing, and reconstructing the owner's stormwater control measure.

(Ord. No. 14274, § 1, 6-4-2012; Ord. No. 15468, § 1, 5-20-2019; Ord. No. 16135, § 1, 4-17-2023; Ord. No. 16535, § 2, 8-4-2025)

Sec. 70-744. Remedies for violation.

The following are considered a violation of this article: noncompliance with any requirement of this article or prior stormwater ordinances; noncompliance with City Stormwater Standards implementing this article; and noncompliance with any approval, permit, or similar authorization granted pursuant to this article. A violation of this article is a violation of the City Code and is subject to all civil and criminal penalties allowed under law, in addition to those specifically set forth below. Persons and entities identified in sections 70-742 and 70-743(a) as responsible for compliance with this article shall be responsible for any violation. Remedies are cumulative, and may be exercised separately, together, or in any order.

(a) *Withholding of permits, approvals, and certificates of occupancy/compliance.* In the event of violation of this article, the city may withhold any approval or permit for any development activity occurring on the property or in the development where the violation exists, including but not limited to withholding any permit or certificate of occupancy/compliance for any structure served by an actual or proposed SCM or stormwater conveyance that is in violation.

(b) *Stop work order.* The city may issue a stop work order to any person or entity performing work on property and/or in a development where there is a violation of this article.

(c) *Injunction; nuisance; costs as lien.* The city may institute an action in a court of competent jurisdiction for an injunction, order of abatement, or any other equitable remedy not prohibited by law to remediate a violation of this article. The city may also maintain an action under GS 160A-193 to remedy a condition prejudicial to the public health and safety. Costs of correction sustained by the city may be assessed as a lien against property, as allowed by law.

(d) *Incorporation of section 70-538 et seq.* In addition, all remedies and procedures set forth in sections 70-538 through 70-542 of the City Code shall apply to violations of this article whether or not such violations are also violations of City Code chapter 70, article V.

(Ord. No. 14274, § 1, 6-4-2012; Ord. No. 15468, § 1, 5-20-2019; Ord. No. 16135, § 1, 4-17-2023)

Secs. 70-745—70-749. Reserved.

ARTICLE XI. STORMWATER FACILITY REPLACEMENT FUND

Sec. 70-750. Creation and management of stormwater facility replacement fund.

(a) In this article, the term "stormwater facility" shall mean a constructed improvement, which may also include a constructed natural area, that controls stormwater pollution.

(b) The stormwater facility replacement fund ("the fund") shall be created and maintained by the city to receive payments made by any person (which includes, but is not limited to associations, and is defined as set forth in this recodified 2008 City Code) pursuant to a stormwater facility agreement and covenants ("facility agreement") that guarantees the perpetual maintenance, repair, and reconstruction of a stormwater facility by a person that is not the city. Pursuant to S.L. 2023-108 section 13(a) and (b), the city is not permitted to require payments from owners of stormwater control systems for future maintenance or replacement of a system as of August 16, 2023.

(c) The city may pool all payments made pursuant to facility agreements but shall otherwise keep the payments separated from other stormwater funds and nonstormwater funds.

(d) Funds may be invested as allowed in G.S. 159-30 for other public monies. All income derived shall be returned to the "fund" and shall only be used for capital expenses associated with the purchase, design, construction, reconstruction, and repair of stormwater facilities that have paid into the fund or for stormwater facilities or projects created or funded by the city that replace or mitigate the stormwater impacts to identified private stormwater facilities that have paid into the fund.
(Ord. No. 13611, § 2, 6-2-2008; Ord. No. 14010, § 1, 6-7-2010; Ord. No. 16535, § 3, 8-4-2025)

Sec. 70-751. Payments to stormwater facility replacement fund; stormwater agreements and covenants.

(a) Payments into the stormwater facility replacement fund shall be at the election of the developer. If the developer chooses to participate in the fund, the requirements outlined in this section shall apply.

(b) The city shall ensure the continued maintenance, repair, and reconstruction of stormwater facilities through recorded agreements and covenants that meet the provisions of this section and other City Code requirements, and through financial guarantees that ensure that adequate funds are available to provide for the long term maintenance and replacement of facilities.

(c) Agreements, covenants, and requirements for type and amount of financial guarantees shall meet the written guidelines or policies of the public works department. These financial guarantees shall be in addition to performance guarantees the city may require to ensure initial construction of stormwater facilities. The department may allow a financial guarantee to be provided through payment to the stormwater facility replacement fund. When accepted by the city, payments to the stormwater facility replacement fund for new facilities that meet department standards for construction and long term ownership and maintenance shall be 25 percent of the construction cost of the stormwater facility, as calculated by the department. Guidelines may allow a reduced payment of up to 50 percent for nonprofit, nongovernmental entities that demonstrate to the satisfaction of the city manager and public works director that the focus of the development project is on low-income housing for physically or mentally challenged persons. The department's written guidelines and policies

for stormwater facility agreements and covenants shall ensure the long term maintenance, repair, and reconstruction of the facility by a financially capable owner. Requirements may include, among other things, ownership of other property or buildings in addition to the facility, timely recordation of agreements or covenants regarding responsibilities of future owners, creation of reserve funds, or other measures determined to be useful or necessary to ensure the long term performance and replacement of the facilities. Conversion of security instruments for maintenance and repair of stormwater facilities that are a condition of stormwater agreements entered into by a current or prior owner of a facility may, in the discretion of the department, be converted into payments to the stormwater replacement fund if the facility and provision for long term maintenance, repair, and reconstruction by a financially capable owner meet department requirements. For such facilities, the amount required to be paid into the fund may exceed that required for new facilities if all conditions cannot be met by existing facilities.

(Ord. No. 13611, § 2, 6-2-2008; Ord. No. 13662, § 1, 8-4-2008; Ord. No. 14010, § 1, 6-7-2010; Ord. No. 16535, § 4, 8-4-2025)

Editor's note—Ord. No. 14010, § 1, adopted June 7, 2010, changed the title of section 70-751 from "Payments to stormwater facility replacement fund" to "Payments to stormwater facility replacement fund; stormwater agreements and covenants." The historical notation has been preserved for reference purposes.

Sec. 70-752. Loans from stormwater facility replacement fund.

(a) Any person who owns a stormwater facility that has paid into the stormwater replacement fund, and that entered into a stormwater facility agreement and covenants with the city may apply for a loan from the fund, where:

(1) The stormwater facility has been damaged or destroyed by natural disaster or other catastrophe such that repair or reconstruction costs exceed 75 percent of the original cost of construction adjusted for inflation;

(2) Insurance does not provide for the reconstruction of the facility; and

(3) The person faces a financial hardship and cannot reasonably provide for the reconstruction of the facility without the benefit of the loan.

(b) The city shall determine in its reasonable discretion whether the applicant meets the standards set forth above.

(c) The city may loan money from the fund to such person(s) in an amount and for a term and in accordance with other conditions as determined in the reasonable discretion of the city. The term of the loan shall not exceed 15 years and the interest on the loan shall be set at the prevailing prime lending rate as published in the Wall Street Journal.

(d) The loan shall be used for the design, engineering, and reconstruction costs of stormwater facilities.

(Ord. No. 13611, § 2, 6-2-2008; Ord. No. 16535, § 5, 8-4-2025)

Sec. 70-753. Refund of payment into stormwater facility replacement fund.

(a) A person or entity that owns an SCM for which a payment was made into the stormwater facility replacement fund may request a refund of this payment, pursuant to this section, up to the total amount paid into the fund. For the purpose of this section, the person or entity described herein shall be referred to as "owner."

(b) Payments made into the fund on or after August 16, 2023 shall be subject to a full refund. All other payments are subject to the terms outlined in subsections (c) and (d) below.

(c) Payments into the fund prior to August 16, 2023 shall be provided to owner at their request. Any funds subject to this subsection shall be made available to owner for maintenance, repair, replacement, and reconstruction costs for the owner's stormwater control measure.

(d) Any refunds from the stormwater facility replacement fund shall not exceed the amount originally paid into the fund. Once a refund is requested for some or all of the money paid into the fund on behalf of a particular stormwater control measure, loans from the fund to maintain, repair or replace that stormwater control measure cannot be obtained. The owner must then retain funds equal to ten percent of the stormwater control measure's original cost of construction in a segregated account used solely for the purposes of maintaining, repairing, replacing, and reconstructing the owner's stormwater control measure.

The city shall create procedures to facilitate refunds and request for funds as proscribed in subsections (b) and (c) above.
(Ord. No. 16535, § 6, 8-4-2025)

Appendix

App. A. Fee Schedule

APPENDIX A

FEE SCHEDULE OF THE CITY OF DURHAM
ORDINANCE 15981

This edition of the Fee Schedule was revised August 2, 2022. It reflects City Council actions through August 1, 2022.

Ordinances adopted after August 1, 2022 that change the Fee Schedule are available at the City Clerk's office. To obtain any of those ordinances, call 919-560-4166; TTY 919-560-4809; or email City.Clerk@durhamnc.gov

Ordinances can be searched on this webpage:

https://cityordinances.durhamnc.gov/PublicAccess/DatasourceTemplatelinksUpdate1.aspx

Previous revisions of the Fee Schedule are listed at the end of the Fee Schedule.

Please see the Introduction below to learn which fees, charges, rates, taxes, etc. are included in the Fee Schedule.

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APPENDIX A

Introduction

This Fee Schedule is issued pursuant to city code section 1-3. In general, it is intended to include fees, charges, rates, taxes, etc. charged by the City of Durham when a dollar amount has been specified pursuant to City Council action. The Fee Schedule includes minimum and maximum charges where those have been set.

In many instances, it will be necessary to refer to city code provisions in order to determine when a fee, charge, rate, tax, etc. is to be imposed. The Fee Schedule generally includes a citation to the applicable city code provisions.

Section A. The Fee Schedule is intended to include

i. tax rates (except as noted in section B of this Introduction);

ii. utility and other public enterprise rates;

iii. limits on fares, rates, and charges that may be charged by passenger vehicles for hire;

iv. filing fees for candidates to municipal office; and

v. other fees, charges, rates, taxes, etc. to be charged or imposed by the City.

Section B. The Fee Schedule does not include

i. assessments under sections 77—81 of the charter or G.S. 160A-216 et seq., other than interest on assessments;

ii. ad valorem property taxes;

iii. most privilege license taxes (also called business taxes); however, the Fee Schedule generally includes privilege license taxes adopted pursuant to division 7 (Privilege License Taxes Not Related to or Restricted by State Law) of chapter 30 of the city code; also, the Fee Schedule includes fees (as contrasted with taxes) adopted pursuant to article V (Privilege License Taxes) of the city code;

iv. charges specifically named "civil penalty" or "civil penalties";

v. charges for infractions or criminal violations, including misdemeanors; and

vi. other charges not yet incorporated into the Fee Schedule. Only City Council action can authorize the repeal of City fees, charges, rates, taxes, etc., so the fact that a fee, charge, rate, tax, etc., does not appear in the Fee Schedule does not necessarily mean that it is not in effect.

The historical and source references in the Fee Schedule are intended to help the reader find Council actions that addressed the fees, charges, etc., but any inaccuracies in the references will not affect the validity of any fees, charges, etc.

"PR" in historical and source references indicates the "Parent Request" number in Onbase Client, the City's agenda review computer program, where one can find relevant City Council agenda material.

As provided by city code sections 1-2 and 1-10, "City Manager" includes the City Manager's designee, and when a particular subordinate of the City Manager (such as a department head) is specified, designees are automatically included. Therefore, the Fee Schedule does not use the phrase "or designee" or similar references to designees of the City Manager or of other subordinates of the City Manager.

If an "Under Construction" notice appears, consult the appropriate City department.

The rates, charges, fees, fares, taxes, and limits set out in this Fee Schedule shall apply.

Chapter 1 - General Provisions

Part 1-101 (Interest applicable to certain delinquent debts)

(a) *Imposition of interest for delinquent debt.* The City Council of the City of Durham has found that it is in the public interest to impose late payment charges on certain delinquent and past-due general billing accounts because such charges may help ensure that the accounts are paid on time. A rate of interest of 8% simple interest per year from the date of delinquency shall be imposed on debts in this Fee Schedule where the City Council's intention to impose this Part 1-101 is manifest. A provision stating substantially "The provisions of Part 1-101 (Interest applicable to certain delinquent debt) apply to [the indicated obligations]" shall be a non-exclusive and sufficient method to show that manifest intention. The date of delinquency shall be the date described by the ordinance, resolution, or other legal authority establishing when the debt is delinquent or past-due. If an ordinance, resolution, or other legal authority does not establish the date of delinquency, then the debt shall be delinquent 60 days after the debt is payable. For purposes of this Part, a debt includes charges, penalties and fees.

(b) *Grace period on debts that were delinquent before January 23, 2008.* Subpart (a) applies to debts that become delinquent beginning January 23, 2008. Subpart (a) shall also apply to debts that were delinquent before January 23, 2008 but only to the extent they remain delinquent on February 22, 2008.

(c) *Security deposits.* The City Manager may require security deposits of $200.00 or more on any or all commercial credit accounts on which the City Council's intention to impose this Part 1-101 is manifest.

Source: resolution 9527, adopted 1-22-2008.

Part 1-102 (Civil penalties not affected by the Fee Schedule).

This Fee Schedule is not intended to affect or limit the imposition of charges that are denominated as "civil penalties."

Chapter 2 - Primary implementing department: Budget and Management Services

Part 2-101 (Voluntary Annexation Petitions).

The fee for submitting a Voluntary Annexation Petition is $250.00, to be paid at the time of submittal.

Source: resolution 9259, Onbase PR 1932, adopted 6-20-2005.

Chapter 3 - Primary implementing department: City Clerk

Part 3-101 (Filing fees for candidates to municipal office).

BACKGROUND.

1. North Carolina General Statutes section 163-294.2(e) requires that municipal governing boards fix the amount of the required filing fees in nonpartisan elections.

2. The amount of such filing fees may not be less than $5.00 nor more than one percent of the annual salary of the office sought.

3. The annual salary of the Mayor of the City of Durham at the time of Council action setting filing fees was $48,058.00.

4. The annual salary of each Council Member of the City of Durham at the time of Council action setting filing fees was $40,727.00.

FINDING BY COUNCIL. It is the finding of the City Council that a filing fee of one percent of the annual salary of the office sought, as of the time of Council action setting filing fees, is a fair and reasonable filing fee.

Section 1. Pursuant to G.S. section 163-294.2(e) the filing fee for the office of Mayor is fixed at $480.58.

Section 2. Pursuant to G.S. section 163-294.2(e) the filing fee for the office of Council Member is fixed at $407.27.

Source: ordinance 15116, Onbase PR 11905, adopted 6-5-2017; ordinance 16120, adopted 3-20-2023; ordinance 16461, adopted 1-21-2025.

Part 3-102 (Mailing or delivery of meeting notices).

The fee charged to persons other than the media, who request notice of meetings (other than meetings on a schedule of regular meetings), is $10.00 per calendar year. No fee is charged for notices sent by email.

Editor's note: This Part 3-102 was not placed in the Fee Schedule by the City Council. It is included in the Fee Schedule only as a convenience. These fees are set by N.C.G.S. section 143-318.12(b)(2).

Chapter 4 - Primary implementing department: City-County Inspections

Part 4-101 (Building fees).

Pursuant to city code section 10-50(a), the following schedule of fees applies to permits required by city code section 10-48:

All building plan reviews will require a plan review fee at the time of building plan application submittal. The amount of the plan review fee will be subtracted from the cost of the building permit fee at the time of permit issuance. If the building permit application exceeds six months with no activity, the building permit application will be voided, and the plan review fee will not be refunded.

Schedule A.

New residential Dwellings (One-and Two-Family, Including Townhouse Unit Ownership).

	Building Permit Fee	*Plan Review Fee*
Up to 1200 sq. ft. (gross area)	$146.00	$146.00
1201 to 1800 sq. ft.	325.00	146.00
1801 to 2400 sq. ft.	400.00	146.00
2401 to 3000 sq. ft.	456.00	146.00
3001 to 3600 sq. ft.	537.00	146.00
3601 to 4200 sq. ft.	650.00	146.00
4201 to 5000 sq. ft.	740.00	146.00
5001 sq. ft. and over	810.00	146.00

Schedule B.

New Multifamily Residential Buildings (Apartments, Condominiums, Triplex, and Four-plex).

	Building Permit Fee	*Plan Review Fee*
First unit	$300.00	$450.00
Each additional unit, per building	150.00	no additional fee

Schedule C.

Accessory Buildings

	Building Permit Fee	*Plan Review Fee*
No footing	$50.00	$50.00
Footing	100.00	50.00

Schedule D.

Copy of contract may be required to determine the cost basis for calculating fees.
Residential Renovations and Additions

	Building Permit Fee	*Plan Review Fee*
Additions		
0 to $10,000.00—no footing (add $50.00 if footing required)	$125.00	$125.00
$10,001.00 and over—no footing (add $50.00 if footing required)	250.00	125.00
Interior renovations		
0 to $10,000.00	125.00	125.00
$10,001.00 and over	250.00	125.00

Schedule E.

Nonresidential Buildings - Cost will be based on construction contracts unless a reason is identified to base cost on other information:

0 to $5,000.00	$104.00	$104.00
$5,001.00 to $50,000.00	104.00	104.00
plus, per thousand or fraction thereof over $5,000.00	7.80	
$50,001 to $100,000.00	456.00	230.00
plus, per thousand or fraction thereof over $50,000.00	6.60	
$100,001.00 to $500,000.00	786.00	400.00
plus, per thousand or fraction thereof over $100,000.00	4.32	
Over $500,000.00	2,513.00	1,300.00
plus, per thousand or fraction thereof over $500,000.00	1.25	

Schedule F.

Miscellaneous:

Mobile home (unit installation and foundation)		$150.00
Modular unit (unit installation and foundation)		200.00
Moving permit (including new foundation)		125.00
Demolition permit:		
	Up to 5,000 sq. ft.	75.00
	Over 5,000 sq. ft. (no additional cost per thousand)	150.00
Demolition associated with a forthcoming permit		75.00
Residential reroofing (addition)		75.00
Commercial roofing/reroofing:		
	0 to $20,000.00	100.00

	Over $20,000.00	150.00
Residential decks (single and two-family)		100.00
Change of occupancy permit (if no building permit is otherwise required/no construction necessary)		50.00
Reinspection fees:		
	Not ready for inspection	100.00
	8 or more code violations found	100.00
	2nd reinspection	100.00
	3rd reinspection	200.00
	4th reinspection	300.00
Re-stamp Plans or replacement copy of digital plans, fee per plan		20.00
Change of address, PID, or PID on permits (building, electrical, plumbing, mechanical, and/or fire), fee per trade		10.00
Issuance of duplicate placard		5.00
Work begun without a permit		Double Fee
Voiding of permits (no maximum)		15% of permit cost
Stocking -approval		100.00
Partial occupancy approval		-200.00
Posting of occupancy (not associated with a permit)		50.00
Homeowner's recovery fund		10.00
Change of impervious surface on a permit		250.00
Plans Review - re-review (applies to each trade re-review)		
	1st re-review	No charge
	2nd re-review	200.00
	Each re-review thereafter	300.00
Floodplain Development Permit (Small): Floodplain Development Permit initiated through the Inspections Department that does not require review of a flood study or approval by an elected body.		150.00
Floodplain Development Permit (Large): Floodplain Development Permit initiated through the Inspections Department that requires review of a flood study or approval by an elected body.		500.00

Schedule G:

Fire Prevention Construction Permits and Plans Review Fees:

Emergency Responder Radio Coverage (ERRC) Systems Permit	$65.00
Gate and Barricade Permit	65.00

Smoke Control or Smoke Exhaust System Fees	
Smoke Control/Smoke Exhaust System Permit	65.00
Smoke Control/Smoke Exhaust System Review Fee	70.00
Solar Photovoltaic Power Systems Fees	
Solar Photovoltaic Power Systems Permit	65.00
Solar Photovoltaic Power Systems Review Fee	70.00
Building plans review	53.00
Sprinkler plans review	60.00
Fire alarm plans review	70.00
Other plans review	53.00
Fire protection construction permits	65.00

Schedule H:

Enhanced Plan Review - This is a face to face meeting in our office whereby the owner's design/construction team and the Inspections Department staff meet over the construction drawings and work collectively to make the drawings code compliant. This is an optional plan review service that helps construction projects needing to meet financing deadlines and other timetables:

An Enhanced Plan Review fee of $600.00 is required for reserving an appointment (will be applied to the total cost of the review).

Cancellations must be made at least 3 business days prior to the scheduled appointment. The Enhanced Plan Review fee can be refunded (minus 15% handling) or applied toward future scheduled appointments.

Cancelling the review after the deadline (3 business days), the Enhanced Plan Review fee of $600.00 will not be refunded or applied to future Enhanced Plan Reviews.

All Enhanced Plan Review fees, based on the calculated time taken to complete the review, must be paid at the conclusion of the review.

Enhanced Plan Review fees do not contribute towards permit fees.

$600.00 per hour (minimum 1 hour)

$150.00 per 15 minute increments

Schedule I:

After Hours Inspections - Scheduling after hours inspections requires 24 hour notice to the Chief Inspector/Supervisor of the applicable trade. After hours inspections are scheduled based solely on the availability of an inspector. The fee must be paid at the time the inspection is scheduled.

$125.00 per hour - Minimum of two hours directly following work hours.

$125.00 per hour - Minimum of three hours if the inspector has to leave their home to perform the inspection.

Source: ordinance 15302, Onbase PR 12558, adopted 6-18-2018.

Source: For historical reference, see 1982 city code section 6-30 and section 6-31.

Part 4-102 (Reserved).

Editor's Note: Part 4-102 (Sign Fees) was repealed by Ordinance 15302, Onbase PR 12558, adopted 6-18- 2018.

Source: For historical reference, see 1982 city code section 6-33.

Part 4-103 (Temporary electrical service).

Pursuant to city code section 10-53(a), the fee for an application for permit for temporary electrical service is $100.00, and the fee for each additional inspection is $50.00.

Source: For historical reference, see 1982 city code section 6-34.

Part 4-104 (Electric wiring and equipment).

Pursuant to city code section 10-114(a), the following schedule of fees applies to the inspection of electric wiring and equipment within or on any building, structure or premises in the city:

Schedule A:

New Residential (One-and Two-Family, Including Townhouse Unit Ownership):

Multifamily Residential (Apartments, Condominium, Triplex and Fourplex):

100 amp to 200 amp service	$156.00
400 amp service	187.00

Schedule B:

Outlets:

Outlets for lights, receptacles and switches, which are installed on general-purpose branch circuits having 2 or more outlets, except for main service switches and feeder distribution switches, small appliances of less than 500 watts or motor drivers of one-eighth horsepower or less as kitchen or hood fans, bell ringing transformers, etc.:

1 to 10 outlets	$21.00
Each additional outlet	0.83

Schedule C:

Fixtures:

1 to 10 fixtures	$21.00
Each additional fixture	0.83

Schedule D:

Motors and Generators of One-Sixth Horsepower or Larger:

Electric motors and generators:

Minimum charge	$18.00
Each motor	3.22
Additional charge per hp or fraction thereof, applied against total hp	0.62

Schedule E:

Branch Circuits Supplying Appliances, Devices or Equipment:

Disposal under 1 hp	$10.90	
Dryers and dishwashers	10.90	
Electric water heaters or boilers	10.90	
Electric signs and outline lighting		
First circuit		10.90
Each additional circuit for same sign		3.22
Electric heat:		
Wall or baseboard heaters, first unit	10.90	
Each additional unit	3.95	
Electric unit heaters:		
First kW	10.90	
Each additional kW	1.56	
Electric furnaces, duct heating units, supplementary or auxiliary units installed in ducts or plenums:		
First kW	10.90	
Each additional kW	1.56	
All other devices, appliances or equipment which are installed on individual branch circuits and not covered in other schedules, each	10.90	

Schedule F:

Miscellaneous Wiring Not Covered in Schedules A, B, C, D, E:

Lampholders for marquise and/or festoon lighting	$55.00
Service equipment as determined by ampacity of buses in equipment.	
Up to 100 amperes	34.00
Each additional 100 amperes or fraction thereof	6.97
Transformers, dry or liquid type, each:	
Up to 45 kVA	33.00
46 to 150 kVA	43.00

Over 150 kVA	55.00
Feeders of all types:	
Each feeder up to 100 amps	10.90
Additional charge per 100 amps or fraction thereof applied against total ampacity after deducting 100 amps per feeder	1.56

Schedule G:

Miscellaneous:

Solar panel inspections	
Residential	$100.00
Commercial roof top	150.00
Commercial ground-mounted	150.00
Commercial ground-mounted, charge per trip for 3rd and subsequent inspections	50.00
Service or saw pole—one inspection only	65.00
Service or saw pole—extra inspection, each (instead of 2nd, 3rd, and 4th reinspection fees listed below in this Schedule G)	47.00
Temporary service connection—commercial	150.00
Mobile home—one inspection	65.00
Mobile home—extra inspection, each (instead of 2nd, 3rd, and 4th reinspection fees listed below in this Schedule G)	47.00
Modular unit	69.00
Commercial reinspection	65.00
Minimum electrical permit fee	65.00
Reinspection fees:	
Not ready for inspection	100.00
5 or more code violations found	100.00
2nd reinspection	100.00
3rd reinspection	200.00
4th reinspection	300.00
HVAC replacement - one inspection	65.00
HVAC replacement - additional inspections, each (instead of 2nd, 3rd, and 4th reinspection fees listed above in this Schedule G)	50.00
Work begun without a permit	Double fee
Voiding of permits (no maximum)—	15% of permit cost
Minimum fee for any permit requiring a rough-in inspection:	
Commercial	150.00

Residential	100.00

Schedule H:

After Hours Inspections - Scheduling after hours inspections requires 24 hour notice to the Chief Inspector/Supervisor of the applicable trade. After hours inspections are scheduled based solely on the availability of an inspector. The fee must be paid at the time the inspection is scheduled.

$125.00 per hour - Minimum of two hours directly following work hours.

$125.00 per hour - Minimum of three hours if the inspector has to leave their home to perform the inspection.

Editor's note: The last line above ("$125.00 per hour - Minimum of three hours...the inspection.") is not indicated as additional text in ordinance 15302.

Editor's note: The provisions of Part 1-101 (Interest applicable to certain delinquent debt) apply to all charges for inspection permits imposed under this Part.

Source: ordinance 15302, Onbase PR 12558, adopted 6-18-2018.

Source: For historical reference, see 1982 city code section 6-87.

Source: For historical reference, see 1982 city code section 6-113 and section 6-116.

Part 4-105 (Mechanical (heating and air) code-related)

Pursuant to city code section 10-173(a), every person who obtains a permit prescribed by city code section 10-172(a) shall pay to the city a fee for inspection of the work authorized by the permit according to the following schedules:

Schedule A:

Residential (One- and Two-Family, including Townhouses and Condominiums, -per Dwelling Unit or Side):

Installation of a heating/cooling system with any concealed ductwork or component	$125.00
Replacement or conversion of a heating/cooling system - 1st inspection	65.00
Subsequent inspections, each (instead of 2nd, 3rd, and 4th reinspection fees listed below in Schedule G)	50.00
Installation of fireplace stoves, factory-built fireplaces, floor furnaces and wall furnaces	52.00
Gas piping	65.00
Fuel lines	65.00

Schedule B:

Multifamily Residential (Apartments, Triplexes, and Fourplexes):

Installation of a heating/cooling system (each dwelling unit)	$100.00
Replacement or conversion of a heating/cooling system	65.00
Subsequent inspections, each (instead of 2nd, 3rd, and 4th reinspection fees listed below in Schedule G)	50.00

Schedule C:

Nonresidential heating/cooling: Installation of heating/cooling system, including boiler, furnace, duct heater, unit heater, air handling units and air distribution system:

Upfits, per sq. ft. (minimum $98.00, maximum - $3,000.00)	$0.058
Heating system in total BTU input per floor, or per individual system:	
0 to 150,000	$131.00
150,001 to 300,000	205.00
300,001 to 500,000	290.00
500,001 to 1,000,000	426.00
1,000,001 to 2,500,000	510.00
2,500,001 to 5,000,000	644.00
5,000,001 to 10,000,000	774.00
Over 10,000,000	929.00
Replacement of any component of heating/cooling system such as furnace, boiler, unit heater, duct heater, condensate receiver, feedwater pump, etc.	70.00

Schedule D:

Commercial Cooling (With Separate Distribution System):

Installation of a complete cooling system, including the distribution system and air handling units, with either a condenser, receiver, cooling tower, or evaporative condenser coils.

Cooling or chiller in total tons:	
0 to 25 tons	$83.00
Over 25 tons	166.00
Replacement of any component of cooling system	83.00

Schedule E:

Commercial Ventilation and Exhaust Systems:

Installation of ventilation and/or exhaust systems, including fans, blowers, and duct systems for the removal of dust, gases, fumes, vapors, etc.:

Total motor horsepower:	
0 to 5	$72.00
6 to 15	111.00
16 to 25	178.00
26 to 50	219.00
Over 50	262.00

Schedule F:

Hood for commercial type cooking, per hood	$150.00
Minimum fee for any heating/cooling permit or ventilation	65.00

Schedule G:

Miscellaneous:

Reinspection fees:	
4 or more code violations	$100.00
Not ready for inspection	100.00
2nd reinspection	100.00
3rd reinspection	200.00
4th reinspection	300.00
Work begun without a permit	Double Fee
Voiding of permits (no maximum)	15% of permit cost

Schedule H:

After Hours Inspections - Scheduling after hours inspections requires 24 hour notice to the Chief Inspector/Supervisor of the applicable trade. After hours inspections are scheduled based solely on the availability of an inspector. The fee must be paid at the time the inspection is scheduled.

$125.00 per hour -	Minimum of two hours directly following work hours.
$125.00 per hour -	Minimum of three hours if the inspector has to leave their home to perform the inspection.

Source: ordinance 15302, Onbase PR 12558, adopted 6-18-2018.

Source: For historical reference, see 1982 city code section 6-113 and section 6-116.

Part 4-106 (Plumbing)

Pursuant to city code section 10-202(a), the following fee schedule is adopted in connection with plumbing work:

Schedule A:

New Residential Construction; One-and Two-Family, and Townhouse Unit Ownership; Installation of New Plumbing Fixtures, Building Water and Sewer Service:

All dwellings	$170.00

See Note 1.

Schedule B:

New Multifamily Construction (Three-and Four-Family Apartments); Installation of New Plumbing Fixtures, Building Water and Sewer:

Per fixture	$6.24
Minimum, per building	127.00

See Note 1.

Schedule C:

New Nonresidential; Installation of New Plumbing Fixtures, Building Water and Sewer:

Per fixture	$7.90
Minimum (without water and sewer)	187.00
Minimum (with water and sewer)	265.00

See Note 1.

Schedule D:

Additions, Residential and Nonresidential; Installation of New Plumbing Fixture:

Building sewer and water	$65.00
1-7 fixtures	94.00
8-15 fixtures	119.00
Over 15 fixtures (per fixture)	7.90

See Note 1.

Schedule E:

Fixture Replacement; No Change to Rough-in:

1 to 4 fixtures		$65.00
5 fixtures and over:		
	Per fixture	6.86
	Electric water heater (permit required)	65.00

See Note 1.

Schedule F:

Miscellaneous:

Residential sprinkler permit	$170.00
Gas piping	65.00
Mobile home	65.00
Modular unit	78.00

Not listed above but has water or sewer connection	65.00
Reinspection fees:	
4 or more code items	$100.00
Not ready for inspection	100.00
1st reinspection	100.00
2nd reinspection	200.00
3rd reinspection	300.00
Work begun without a permit	Double fee
Voiding of permits (no maximum)	15% of permit cost

See Note 1.

Schedule G:

After Hours Inspections - Scheduling after hours inspections requires 24 hour notice to the Chief Inspector/Supervisor of the applicable trade. After hours inspections are scheduled based solely on the availability of an inspector. The fee must be paid at the time the inspection is scheduled.

$125.00 per hour - Minimum of two hours directly following work hours.

$125.00 per hour - Minimum of three hours if the inspector has to leave their home to perform the inspection.

Note 1: For inspections under all Schedules in this Part 4-106: When due to the length of water or sewer work more than two trips are required, an additional charge for each trip after the second trip is imposed, of $50.00.

Source: For historical reference, see 1982 city code section 6-113, section 6-116, and section 6-134.

Part 4-107 (Surcharge for paper application).

A $5.00 surcharge will be added to the total fee for each plumbing, electrical, or mechanical application that is submitted manually (paper submittal) as opposed to an electronic submittal (paperless submittal).

Parts 4-108—4-111 (Reserved).

Part 4-112 (Impact fees imposed on new construction).

Impact fees pursuant to city code section 30-84(b) shall be as follows:

Editor's note: The tables showing the Street Impact Fee Schedule, the Open Space Land Impact Fee Schedule, and the Parks and Recreation Facility Impact Fee Schedule are found at the end of the Fee Schedule, appearing after Part 17-111.

These four footnotes apply to the Street Impact Fee Schedule:

1. Square footage shall be calculated according to gross floor area (the area within the inside perimeter of the exterior walls, with no deduction for corridors, stairs, closets, thickness of walls, columns or other features, exclusive of court and vent shafts).
2. Student - the total student capacity of any school or any addition to an existing school.
3. A standard based on acreage refers to the total land and water surface area of any lot or lots on which any primary, accessory, or incidental use or portion thereof is located.
4. Hotels or motels that contain any convention or civic center shall, in addition to paying street impact fees based on rooms, also pay the street impact fee based on general recreation for the civic center or convention center.

Part 4-113.

Source: Part 4-113 was repealed by ordinance 14604, Onbase PR 9802, adopted 5-5-2014.

These source notes apply to Chapter 4.

Source: ordinance 13592, Onbase PR 5022, adopted 5-5-2008; ordinance 13801, Onbase PR 6139, adopted 5-18-2009; ordinance 14122, Onbase PR 7728, adopted 5-16-2011; ordinance 14604, Onbase PR 9802, adopted 5-5-2014.

Source: For historical reference, see 1982 city code chapter 25, in particular city code section 25-3(a)-(b).

Chapter 5 - Primary implementing department - Neighborhood Improvement Services

Part 5-101 (Housing code re-inspection).

The following re-inspection fees shall be charged pursuant to city code section 10-241(c)(2):

First re-inspection if it shows the dwelling still to be noncompliant	$50.00
Second re-inspection if it shows the dwelling still to be noncompliant	$75.00
Third re-inspection if it shows the dwelling still to be noncompliant	$100.00

Source: For historical reference, see 1982 city code section 6-158(r)(6).

Part 5-102 (Administrative fee for failure to respond to order).

The administrative fee charged pursuant to city code section 10-241(c)(1) is $250.00.

Source: For historical reference, see 1982 city code section 6-158(r)(5).

Part 5-103 (Administrative fee for failure to correct prohibited conditions.)

The administrative fee charged pursuant to city code section 26-191 is $250.00.

Source: For historical reference, see ordinance 13337 and 1982 city code section 10-131.

Part 5-104 (Administrative fee for noncompliance with an order made by an administrator under the Nonresidential Building Code).

The administrative fee charged pursuant to city code section 10-320(d) is $250.00.

Source: ordinance 13717, Onbase PR 5452, adopted 10-20-2008.

Part 5-105 (Interest rate for cleaning property of weeds, trash, etc.).

The interest rate on costs to the city of cleanup work is 8% per annum.

Editor's note: This Part 5-105 was not placed in the Fee Schedule by the City Council. It is included in the Fee Schedule only as a convenience. The reader's attention is directed to city charter section 63 and city code section 26-187.

Part 5-106 (Reserved).

Source: ordinance 14232, Onbase PR 8234, adopted 3-5-2012 and 3-8-2012; repealed entirely by ordinance 14936, Onbase 11113, adopted 6-6-2016.

Part 5-107 (Housing Appeals Board compensation).

The compensation provided for in section 10-238 of the city code is $25.00.

Source: ordinance 14273, Onbase PR 8504, adopted 6-4-2012.

Chapter 6 - Primary implementing department: City-County Planning

Part 6-101 (General fees)

Section 1.

City County Planning Fees are not transferable and are nonrefundable except in instances of incorrect payments or overpayments. Cases withdrawn after intake and before the first review will be refunded, minus a 10% service fee.

A. Zoning Map Change (Rezoning). Application fees shall be calculated based on the type of application (general rezoning, textual development plan, or graphic development plan) plus the per-acre fee, if noted, for the acreage rounded up to the next whole acre.

   1. Comprehensive Plan Inconsistency Fees: For all zoning map changes, add fees for each of the following when the proposal is not consistent with the adopted Comprehensive Plan map(s) on the date the case is submitted:

      a. Place Type Map (PTM): $1,040.00.

      b. Urban Growth Boundary (UGB): $2,080.00.

2. General Rezoning (No Development Plan), S Acres or Less: $1,352.00 per case, plus additional fees for advertising, letter notice, and signs.

3. General Rezoning (No Development Plan), More than 5 Acres: $2,392.00 per case, plus additional fees for advertising, letter notice, and signs.

4. Textual Development Plan, 5 Acres or Less: $2,912.00 per case, plus additional fees for advertising, letter notice, and signs.

5. Textual Development Plan, 6 to 10 Acres: $3,952.00 per case, plus additional fees for advertising, letter notice, and signs.

6. Textual Development Plan, more than 10 Acres: $4,992.00 per case, plus $78.00 per acre or portion of an acre, rounded up, plus additional fees for advertising, letter notice, and signs.

7. Modifications to Text Commitments on Existing Development Plans (this can only be used for changing text; changing or adding graphics is charged at the applicable Graphic Development Plan rate listed below): $1,872.00 per case, plus additional fees for advertising, letter notice, and signs.

8. Graphic Development Plan: $4,992.00 per case, plus $78.00 per acre or portion of an acre, rounded up, plus additional fees for advertising, letter notice, and signs.

9. Public Hearing Continuance or Referral Back to Administration: For each instance where a public hearing is continued or referred back to administration (unless staff requests the action), a processing fee of $500.00 will be charged to the applicant. Additional re-review fees may also apply depending on changes made by the applicant.

10. Engineering Zoning Review: $104.00 per case, in addition to the applicable zoning map change fee.

B. Consolidated Annexation.

1. All Consolidated Annexation, except those Provided in Section 1, Paragraph B.2 or B.3, Below: $1,144.00 per case, plus additional fees for advertising, letter notice, and signs as required, and recordation. This does not include fees for any other associated application.

2. Consolidated Annexation of One Single-Family or Two-Family Residential Lot: $416.00 per case, plus additional fees for advertising, letter notice, and signs as required, and recordation. This does not include fees for any other associated application.

3. Annexation of Right-of-Way Only: $416.00 per case, plus additional fees for advertising, letter notice, and signs as required, and recordation. This does not include fees for any other associated application.

C. Comprehensive Plan Amendment (Each Requires a Separate Fee).

1. Comprehensive Plan Map Amendment, All Except Paragraph C.2, Not Associated with a Zoning Map Change: $2,184.00 per case, plus additional fees for advertising, letter notice, and signs, as applicable.

2. Comprehensive Plan Map Amendment, Urban Growth Boundary, Not Associated with a Zoning Map Change: $4,264.00 per case, plus additional fees for advertising, letter notice, and signs, as applicable.

3. Comprehensive Plan Text Amendment: $4,160.00 per case, plus additional fees for advertising, letter notice, and signs, as applicable.

D. Development Agreement (per N.C. Gen. Stat. 160D, Art. 10): $7,280.00 per case, plus additional fees for advertising, letter notice, and signs. Recordation fees are the responsibility of the applicant. This does not include any other fees associated with other applications that may be required as part of the development of the property.

E. Board of Adjustment Applications.

1. Appeal of an Administrative Decision: $416.00 per case, plus additional fees for letter notice, and signs, as applicable.

2. Single-Family and Two-Family Variance for Additions to Existing, Nonconforming Residential Buildings Only (not for new construction of structures or accessory dwelling units (ADUs) where there is a nonconforming residential building on site, nor for vacant nonconforming lots): $260.00 per case, plus additional fees for letter notice and signs.

3. Single-Family and Two-Family Projects (other variances, minor special use permits, etc.) and Reasonable Accommodation Requests: $494.00 per case, plus additional fees for letter notice, signs, and recordation fees for special use permit orders.

4. Wireless Communication Facilities Minor Special Use Permit: $3,380.00 per case, plus additional fees for letter notice, signs, and recordation fees; plus $5,000.00 for independent professional consultant review.

5. All Other BOA Applications, Not Listed Elsewhere in This Section E: $1,560.00 per case, plus additional fees for letter notice, signs, and recordation fees for special use permit orders.

F. Major Special Use Permit Applications.

1. Transportation Special Use Permit: $2,340.00 per case, plus additional fees for letter notice, signs, and recordation.

2. Wireless Communication Facilities Major Special Use Permit: $3,380.00 per case, plus additional fees for letter notice, signs, and recordation fees; plus $5,000.00 for independent professional consultant review.

3. All Other Major Special Use Permit Applications: $2,106.00 per case, plus additional fees for letter notice, signs, and recordation.

G. Site Plans.

Site Plan Type	*Fee Amount*
1. Administrative Site Plan - Level 1, defined as a site plan with no new impervious surfaces added, no changes in stormwater management, no new, habitable building area, less than 12,000 square feet of land disturbance, and requiring only Planning Department and Inspections Department review.	$468.00
2. Administrative Site Plan - Level 2, defined as a site plan with a maximum of 500 square feet of new impervious surfaces added, no changes in stormwater management, no more than 1,000 square feet of new, habitable building area, and less than 12,000 square feet of land disturbance.	$936.00
3. Administrative Site Plan - Level 3, defined as a site plan with a maximum of 500 square feet of new impervious surfaces added, no changes in stormwater management, greater than 1,000 square feet of new, habitable building area, and less than 12,000 square feet of land disturbance.	$2,184.00
4. Administrative Site Plan - Level 4, defined as a site plan that does not meet the definitions of a Level 1, Level 2, Level 3, or Major Site Plan, and proposes:	
a. From 0 to 5,000 square feet of new, habitable building area. (Tier 1)	$4,992.00
b. From 5,001 to 10,000 square feet of new, habitable building area. (Tier 2)	$6,032.00
c. From 10,001 to 50,000 square feet of new, habitable building area. (Tier 3)	$8,632.00
d. From 50,001 to 100,000 square feet of new, habitable building area. (Tier 4)	$11,752.00
e. Greater than 100,000 square feet of new, habitable building area. (Tier 5)	$4,992.00, plus $52.00 per 1,000 square feet (rounded up)
f. A site plan for the development of new lots with no more than 5,000 total square feet of incidental nonresidential development (see Example A in G.6.e). (Tier 6)	$4,992.00, plus $52.00 per new lot

Site Plan Type	*Fee Amount*
g. A site plan with a mixture of nonresidential or multifamily buildings totaling more than 5,000 square feet and new lots, such as townhomes or other residential lots (see Example Bin G.6.f). (Tier 7)	$4,992.00, plus $52.00 per new lot. Plus, the new, habitable building area total fee from G.4.a-G.4.e, according to the total square footage of the building(s)
5. Major Site Plan. A site plan that involves at least one of the following: a. The requirements of a Major Special Use Permit or Transportation Special Use Permit; or b. Standards that require Governing Body approval; or c. A site located in a Watershed Protection Overlay Critical Area (A) with proposed impervious surfaces that exceed the maximum permitted by the Low-Density Option under UDO Section 8.7, Watershed Protection Overlay Standards.	$6,032.00, plus $78.00 per 1,000 square feet of new, habitable building area (rounded up), or $78.00 per new lot, whichever is the higher fee, plus additional fees for letter notice
6. Notes for Section 1.G, Site Plans: a. All new building square footage shall be rounded up to the next whole number and applies to the entire, habitable square footage (area) within nonresidential, multifamily, and mixed-use buildings. b. Structured parking, accessory buildings, and service areas within a building are considered habitable building areas. c. Townhomes and other single buildings on multiple lots require the per-lot fee. d. Open space and common area lots are considered new lots being created. e. Example A: Calculation of fees for a SO-lot townhome development with common building(s) totaling 5,000 square feet or less and 3 open space lots, proposed on one existing lot. 1) 50 new townhome lots + 3 open space lots -1 existing lot = 52 new lots x $52.00/lot = $2,704.00. 2) + $4,992.00 application fee 3) Total fee= $7,696.00 f. Example B: Calculation of fees for a SO-lot townhome development with new common building(s) totaling 5,000 square feet or less and 3 open space lots proposed on an existing lot, plus a new 10,000 square foot nonresidential building on a separate, new lot: 1) Calculate the townhome portion, including the common building, as in Example A, for a total of $7,696.00.	

Site Plan Type	*Fee Amount*
2) Add $6,032.00 for a new 10,000 square foot nonresidential building on its own lot (Administrative Site Plan Level 4, Tier 2 (4.b, above). 3) Total fee= $7,696.00 + 6,032.00 = $13,728.00. g. Site Plans which do not require an initial re-review will be reimbursed 33% of the original review fee.	

H. Floodplain Reviews:

1. Floodplain As-Built Review: Review of floodplain development permit as-built documentation when construction is complete, and prior to a Certificate of Compliance or final approval:

   $104.00 base fee per phase of construction.

2. Enhanced Floodplain Building Permit Review: Review of a building permit application that is associated with an enhanced building permit review on a parcel with floodplain, to confirm whether a floodplain development permit is required: $208.00.

3. Floodplain Development Permit, Large: A Floodplain Development Permit, initiated through the Planning Department, that requires review of proposed development in the floodplain, and that requires review of a flood study, no-rise certification, CLOMR, or LOMR, etc.: $780.00.

4. Floodplain Development Permit, Medium: A Floodplain Development Permit, initiated through the Planning Department, that requires review of proposed development that obstructs or modifies the floodplain without increasing the dimensions of the floodway and non-encroachment areas, and that requires review and approval of flood hazard calculations or an engineer's certification: $390.00.

5. Floodplain Development Permit, Small: A Floodplain Development Permit, initiated through the Planning Department, that requires review of proposed development in the floodplain, and that does not modify or obstruct floodway or non-encroachment areas: $208.00.

6. No Practical Alternatives/Authorization Certificate (NPAA) (Jordan Basin Only): $104.00.

I. Subdivision Plats.

1. Exempt Private Easement Plat or Right-of-Way Withdrawal Plat: $624.00.

2. Exempt Plat, All Others: $208.00.

3. Major Final Plat: $1,248.00, plus $52.00 per new lot; plans which do not require an initial re-review will be reimbursed 33% of the original review fee.

4. Minor Plat, defined as the subdivision of land into six lots or less that does not require right-of-way dedication, does not require new utilities or the extension of utilities, does not require stormwater management, and does not require a preliminary plat: $624.00.

5. Preliminary Plat: $4,784.00, plus $52.00 per new lot, plus additional fees for letter notice on projects requiring governing board approval; plans which do not require an initial re-review will be reimbursed 33% of the original review fee.

6. Preliminary Plat Amendments: $1,872.00.

J. Landscape Extensions.

1. Major Nonresidential or Multifamily on One Lot, defined as greater than 25,000 square feet in gross floor area: $312.00 per lot.

2. Minor Nonresidential or Multifamily on One Lot, defined as less than or equal to 25,000 square feet in gross floor area: $156.00 per lot.

   Residential: $78.00 per lot.

K. Site Compliance.

1. Site Plan Field Changes that Require Plan Review: $208.00 per plan.

2. Site Compliance Inspection Fees:

   a. First Site Compliance Inspection for All Building Permits, Except Attached Units on Individual Lots: $104.00 per building permit for first inspection.

   b. First Site Compliance Inspection of Attached Units on Individual Lots (Applies to Duplexes, Triplexes, and Townhouses): $26.00 per building permit for first inspection.

   c. Street Tree in the Right-of-Way: $104.00 per tree (which includes two inspections maximum). Additional re-inspections will be $52.00 each.

3. Site Compliance Re-Inspection Fees:

   a. Site Compliance Re-Inspection for All Building Permits, Except Attached Units on Individual Lots:

      1) First Re-Inspection: $104.00 per building permit.

      2) For each subsequent re-inspection, the total fee per building permit under this subsection will increase by $104.00. (For example, the total fee per building permit for the first re-inspection will be $104.00; the total fee per building permit for the second re-inspection will be $208.00; and the total fee per building permit for the third re-inspection will be $312.00.)

   b. Site Compliance Re-Inspection of Attached Units on Individual Lots (Applies to Duplexes, Triplexes, and Townhouses):

      1) First Re-Inspection: $26.00 per building permit.

      2) For each subsequent re-inspection, the total fee per building permit under this subsection will increase by $26.00. (For example, the total fee per building permit for the first re-inspection will be $26.00; the total fee per building permit for the second re-inspection will be $52.00; and the total fee per building permit for the third re-inspection will be $78.00.)

L. Historic Preservation.

1. Historic District Designation or Repeal: $20,800.00 per application, plus additional fees for advertising, letter notice, and signs.

2. Historic Landmark Designation or Repeal: $416.00 per application, plus additional fees for advertising, letter notice, and recordation.

3. Historic Landmark Sign Designation or Repeal: $156.00 per sign, plus additional fees for advertising, and letter notice.

4. Major Works Certificate of Appropriateness, Historic Preservation Commission Review for New Construction or Large Additions (greater than 25% of the existing building square footage): $312.00 per application, plus additional fees for letter notice and signs.

5. Major Works Certificate of Appropriateness, Historic Preservation Commission Review Except New Construction, and/or Large Addition: $104.00 per application, plus additional fees for letter notice and signs.

6. Major Works Certificate of Appropriateness, Historic Preservation Commission Review for Demolition of a Primary Structure: $520.00 per application, plus additional fees for letter notice and signs.

7. Major Works Certificate of Appropriateness, Historic Preservation Commission Review for Demolition of an Accessory Structure: $156.00 per application, plus additional fees for letter notice and signs.

8. Master Certificate of Appropriateness, Historic Preservation Commission Review: $312.00 per application, plus additional fees for letter notice and signs.

9. Master Certificate of Appropriateness, Staff Review: $104.00 per application.

10. Minor Works Certificate of Appropriateness, Staff Review: $42.00 per application.

11. After-the-Fact Application Fee shall be added to any base application fee for work in this paragraph L done without obtaining the required approval before work commenced: First after-the-fact, $52.00; Second after-the-fact, $104.00; Third after-the-fact and each thereafter, $208.00. After-the-fact fees apply to individual applicants rather than the property location.

M. Signage.

1. Banner Plan Review: $182.00 per banner, including one inspection. Applications associated with projects begun or completed without required approval pay $312.00 per sign including one inspection.

2. Common Signage or Wayfinding Signage Plan Review: $234.00 per plan or amendment.

3. Permanent Signs Requiring Permits, as Defined by the Durham UDO: $182.00 per sign, including one inspection. Applications associated with projects begun or completed without required approval pay $312.00 per sign including one inspection.

4. Temporary Signs Requiring Permits, as Defined by the Durham UDO: $104.00 per sign, including one inspection. Applications associated with projects begun or completed without required approval pay $156.00 per sign including one inspection.

5. Sign Compliance Inspection Fee: $52.00 for each re-inspection per sign.

N. Street or Alley Closing: $1,040.00, plus additional fees for advertising, letter notice, signs, and recordation.

O. Street, Alley, or Driveway Renaming: $1,040.00, plus additional fees for advertising, letter notice, signs, and recordation, in addition to reimbursement for all street sign replacement costs.

P. Unified Development Ordinance Text Amendment: $4,160.00, plus additional fees for advertising.

Q. Planning Department Development Services:

1. Architectural Review, as Required by the Durham UDO: $234.00.

2. Copies - Large Format: $1.00 per square foot. (For example: a 3-foot by 6-foot map equals 18 square feet for a copying charge of $18.00).

3. Custom Letters, Maps, and Reports: $104.00.

4. Departmental Publications: Copies of publications on hand: $5.00. Reproductions or new publications will be priced according to costs including technology fees.

5. Due Diligence Property Information:

   a. Business Verification Letters, including DMV letters: $52.00 per address.

   b. Family Care Home Verification Letters: $52.00 per address.

   c. Zoning Verification Letters: $26.00 per lot or address.

6. Formal Letter of Interpretation: $208.00.

7. Home Occupation Permit: $52.00 per home occupation at one address (not transferable).

8. Multi-Departmental Pre-Submittal Meetings: $276.00 per hour, with a one-hour minimum charge.

9. Off-Site File Retrieval Fee: $21.00 per hard-copy file when plan is available on-site in digital format at the time of the request. When a plan is not available in digital format, there is no charge.

10. Outdoor Seating Permit: Application for initial annual permit, changes to initial permit, or to re-apply if permit is not renewed each year by July 1st: $260.00; Renewal of annual permit prior to expiration: $104.00.

11. Planning Review of Building Permit: $104.00 per building permit.

12. Property Report for One Single-Family or Two-Family Residential Lot: $42.00.

13. Property Report for Nonresidential or Multifamily Lot: $83.00.

14. Street (Mobile) Vendor Registration and Annual Renewals by July 1st: $10.40 per cart or truck.

15. Temporary Use Permit and Extensions: $104.00 per use, per term or renewal.

16. Permit Choice/Vested Rights Determination: Formal determination by the Planning Director of the applicants' choice of development rules to follow, based on either the application date or subsequent ordinance changes: $104.00 per determination.

R. Site Specific Vesting Plan: $5,200.00 application fee, plus additional fees for advertising, letter notice, and signs.

S. Watershed Determination: $2,600.00 application fee.

T. Temporary Right-of-Way Closure:

1. Administrative Fee: $130.00 per permit, per calendar week or portion of a calendar week, plus Additional Temporary Closure Fees, below, that apply.

2. Renewals, Extensions, and Changes: $130.00 per permit, per calendar week or portion of a calendar week, plus Additional Temporary Closure Fees, below, that apply.

3. Additional Temporary Closure Fees shall be added to the base fee for use and occupation of portions of right-of-way, as applicable:

    a. Roadway Closure: Major Thoroughfare - $73.00 per travel lane, per day; All other City streets - $21.00 per travel lane, per day.

    b. Sidewalks between Street Intersections in Design Districts: Partial or complete sidewalk closure - $11.00 per sidewalk, per day.

    c. Sidewalks between Street Intersections in All Other Districts: Partial or complete sidewalk closure - $2.00 per day.

4. Applicable fees for temporary use of loading zones, metered or limited time zone parking spaces referenced in Part 17-109 shall be in addition to this Part 6-101(T).

U. Additional Fees.

1. Table of Additional Fees by Planning Application Type. An "x" in the table means the Additional Fee Category does not apply to the Application Type.

APPENDIX A

Application Type	*Additional Fee Category*			
	Advertising (Published), Each Hearing[1]	*Letter Notice, Each Hearing*[1,3]	*Each Sign*[2,3]	*Recording Fees*[6]
a. Annexation of One 1-Family or 2-Family Lot or Annexation of Right-of-Way Only	$260.00	$130.00	$182.00	$49.00 ($54.00 Digital)
b. Annexation with Direct Translation Zoning, All Other	$624.00	$338.00	$182.00	$49.00 ($54.00 Digital)
c. Annexation with Concurrent Zoning Map Change, All Other	$624.00	X	X	$49.00 ($54.00 Digital)
d. Appeal of an Administrative Decision[7]	X	$130.00	$182.00	X
e. Board of Adjustment, Reasonable Accommodation or Variance	X	$130.00	$182.00	X
f. Board of Adjustment, 1- or 2- Family Variance for Addition to a Nonconforming Residential Building Only	X	$104.00	$182.00	X
g. Board of Adjustment, Minor Special Use Permit	X	$130.00	$182.00	$27.00 ($32.00 Digital)
h. Certificate of Appropriateness-Major or Master (w/HPC Review)	X	$11.00	$182.00	X
i. Comprehensive Plan Map Amendment (fee is not charged for inconsistent zoning map change)	$624.00	$338.00	$182.00	X

Application Type	*Additional Fee Category*			
	Advertising (Published), Each Hearing[1]	*Letter Notice, Each Hearing*[1,3]	*Each Sign*[2,3]	*Recording Fees*[6]
j. Comprehensive Plan Text Amendment	$624.00	X	X	X
k. Development Agreement, Statutory	$624.00	$338.00	$182.00	(Recording fee)
l. Historic District Designation or Repeal; Historic District Preservation Plan Text Amendment	$624.00	$260.00	$182.00	X
m. Historic Landmark Designation or Repeal	$624.00	$22.00	X	$27.00 ($32.00 Digital)
n. Landmark Sign Designation or Repeal	$624.00	$11.00	X	X
o. Major Preliminary Plat or Major Site Plan	X	$234.00	X	X
p. Major, Transportation, and WCF Special Use Permits (All)	X	$338.00	$182.00	$27.00 ($32.00 Digital)
q. Street or Alley Permanent Closing, City Jurisdiction[4]	$624.00	$312.00	$364.00	$49.00 ($54.00 Digital)
r. Street or Alley Permanent Closing, County Jurisdiction[4,5]	$1,248.00	$312.00	$364.00	$49.00 ($54.00 Digital)
s. Street, Alley, or Driveway Renaming	X	$208.00	X	$49.00 ($54.00 Digital)
t. Unified Development Ordinance Text Amendment	$624.00	X	X	X
u. Statutory Vested Rights Determination	$624.00	$260.00	$182.00	X
v. Zoning Map Change (All)	$624.00	$338.00	$182.00	X

2. Footnotes to Section 1, Table U.1:

[1] Newspaper advertising fees and letter notice fees are listed for each public hearing. If two public hearings are required, the listed fees will be doubled. If three are required, such as for UDO text amendments and Comprehensive Plan text amendments, the fees listed will be tripled.

[2] Additional Notification Sign Postings on Property: Properties with multiple frontages require at least one sign per road or street frontage. If additional signs are necessary to adequately notify neighbors, $182 per additional sign will be charged at the time of case intake.

[3] Resident Signs in Lieu of Letter Notices for Multifamily Properties: At least one Resident Sign will be posted at each existing multifamily property within the required letter notice area in lieu of sending letters to individual multifamily residents for all application types. Applicants will be charged $182 at the time of case intake for each Resident Sign needed. This fee is in addition to signs posted on the road or street frontage at the project site.

[4] For all permanent street or alley closings, at least two signs are required along the street frontage and included in the table; if more signs are needed, additional sign fees will be charged at the time of intake at the rate of $182 per sign.

[5] For permanent street or alley closing in the County's jurisdiction, newspaper notice for street closings is required for four consecutive weeks instead of the standard two weeks. The extra two weeks are included in the table for a total of $1,248. However, if the required advertising length is changed, advertising fees will be charged at the rate of $624 (for two weeks) + $312 per additional week of required advertising.

[6] Recording fees are set by the Durham County Register of Deeds and may be increased if needed to cover recordation of additional sheets.

[7] For Appeal of Administrative Decision, signs are not required when the appeal is not site specific.

V. Technology Surcharge on All Fees: The technology fee of 4% is included in the listed fee. Technology fees are not refundable except when the payment is incorrect, or the case or permit is withdrawn prior to any review.

W. Re-Review Fees, Applicable to All Development Applications: Half of filing fee, applicable at time of 2nd re-review (3rd staff review of project) and charged for each subsequent review. The Planning Director may amend the re-review fees for reviews after the first re-review for a development application using the following criteria:

1. The number of departments required and involved in the re-review;
2. Whether the re-review includes new comments due to (1) a change submitted by the applicant, either substantial or minor change, or (2) Staff error;
3. Whether the re-review includes major and/or minor Staff comments;

4. The scope of the review and the Staff time to complete such review, and
5. Any other criteria that the Planning Director deems relevant and appropriate so long as the fee is proportional to Staff time and effort.

   Reduced re-review fees shall be charged consistent with the review level fee that most closely aligns with the amount of staff time involved with the re-review. The fee charged shall be roughly proportional to the cost of staff time and other measures, as determined at the absolute and sole discretion of the Planning Director.

Source: ordinance 15827, Onbase PR 14727, adopted 6-21-2021; ordinance 16172, adopted 6-20-2023; ordinance 16255, adopted 1-2-2024; ordinance 16345, adopted 6-17-2024.

Part 6-101 (General Fees), Section 2 (Administrative Reductions).

Administrative reductions of the fees in this Part for review of a submitted development application may be made in writing by the Planning Director or designee when the Director determines that the time, effort, and processing by staff will be substantially reduced compared to what is required for a typical review that it would be inequitable to charge the standard fee for such review. The Planning Director shall consider the following criteria when considering a reduction fees:

A. The number of departments involved in the review of a development application, and
B. Any other criteria that the Planning Director deems relevant and appropriate so long as the fee reduction is proportional to Staff time and effort.

The fee charged shall be roughly proportionate to the cost of staff time and other required measures, as determined at the absolute discretion of the Planning Director.

Editor's note: Part 6-101 appears as adopted by the City Council, without editorial changes.

Source: ordinance 15635, Onbase PR 14002, adopted 6-15-2020; ordinance 16345, adopted 6-17-2024.

Part 6-102 (Traffic Impact Analyses).

The fees to be charged by the City-County Planning Department for development review undertaken by the City of Durham Department of Transportation, including the 4% technology fee, shall be as follows:

A. Traffic Impact Analysis, fewer than 1,000 peak hour trips: $9,360.00.
B. Traffic Impact Analysis, equal to or greater than 1,000 peak hour trips: $12,480.00.
C. Traffic Impact Phasing Analysis, fewer than 1,000 peak hour trips: $4,680.00.
D. Traffic Impact Phasing Analysis, equal to or greater than 1,000 peak hour trips: $6,240.00.

Source: ordinance 14987, Onbase PR 11164, adopted 6-20-2016; ordinance 16172, adopted 6-20-2023; ordinance 16345, adopted 6-17-2024.

Chapter 7 - Primary implementing department: Finance

Part 7-101 (Motor vehicle license tax).

The license tax on motor vehicles charged pursuant to city code section 30-60 is $15.00. Editor's note: The tax was $10.00. The increase to $15.00 was effective October 1, 2009.

Source: City Charter section 46.1; N.C.G.S. 20-97; SL 2009-166; ordinance 13905, Onbase PR 6486, adopted 9-21-2009; ordinance 13947, Onbase PR 6785, adopted 12-21-2009.

Part 7-102 (Privilege license reissuance, duplicates, and letters of verification).

The fee to reissue a license pursuant to city code section 30-188(2) is $2.00. The fee for a duplicate license pursuant to city code section 30-189 is $5.00. The fee for a letter of verification pursuant to city code section 30-190 is $5.00.

Source: For historical reference, see 1982 city code Appendix A sections 19, 20, and 20.1.

Part 7-103 (Privilege license taxes on service establishments and businesses).

The schedule under city code section 30-342 is:

For annual gross receipts not exceeding $15,000.00 per annum, the tax is $50.00. For each $1,000.00 or fraction thereof in excess of $15,000.00, the additional tax is $0.50. The maximum tax under section 30-342 for each separate location, regardless of the amount of gross receipts, is $8,000.00.

Editor's note: Because of a change in State law, the tax imposed by this Part 7-103 ceased to apply as of 7-1-2015.

Source: For historical reference, see 1982 city code Appendix A section 72.

Part 7-104 (Privilege license taxes on retail and wholesale merchants).

The schedule under city code section 30-343(a) (retail merchants) is:

> For annual gross receipts not exceeding $15,000.00 per annum, the tax is $50.00. For each $1,000.00 or fraction thereof in excess of $15,000.00, the additional tax is $0.50.
>
> The schedule under city code section 30-343(b) (wholesale merchants) is:
>
> For annual gross receipts not exceeding $100,000.00 per annum, the tax is $50.00. For each $1,000.00 or fraction thereof in excess of $100,000.00, the additional tax is $0.25. The maximum tax under section 30-343(b) for each separate location, regardless of the amount of gross receipts, is $2,500.00.

Editor's note: Because of a change in State law, the tax imposed by this Part 7-104 ceased to apply as of 7-1-2015.

Source: For historical reference, see 1982 city code Appendix A section 73(a)-(b).

Part 7-105 (Privilege license taxes on manufacturers).

The schedule under city code section 30-344(a) is:

For annual gross receipts not exceeding $15,000.00 per annum, the tax is $50.00. For each $1,000.00 or fraction thereof in excess of $15,000.00, the additional tax is $0.50. The maximum tax under section 30-344(b) for each separate location, regardless of the amount of gross receipts, is $2,500.00.

The annual tax for separate support offices pursuant to city code section 30-344(c) is $50.00. The schedule under city code section 30-344(d) (manufacturers selling at retail) is:

For annual gross receipts not exceeding $15,000.00 per annum, the tax is $50.00. For each $1,000.00 or fraction thereof in excess of $15,000.00, the additional tax is $0.50.

Editor's note: Because of a change in State law, the tax imposed by this Part 7-105 ceased to apply as of 7-1-2015.

Source: For historical reference, see 1982 city code Appendix A section 74.

Part 7-106 (Gross-receipts tax on short-term lease or rental of heavy equipment).

The rate imposed pursuant to city code section 30-32 is 0.8 percent.

Source: ordinance 13730, Onbase PR 5594, adopted 10-23-2008.

Part 7-107 (Gross-receipts tax on the short-term lease or rental of vehicles at retail).

The rate imposed pursuant to city code section 30-20 is 1.5 percent.

Editor's note: This Part 7-107 was not placed in the Fee Schedule by the City Council. It is included in the Fee Schedule only as a convenience. The reader's attention is directed to city code section 30-20.

Part 7-108 (Reserved).

Part 7-109 (Reserved).

Part 7-110 (Charges for returned and denied payments).

(a) Processing fee for a check on which payment has been refused by the payor bank because of insufficient funds or because the drawer did not have an account at that bank: $25.00

(b) Processing fee for payment denials on all other forms of payment, including but not limited to credit cards, debit cards, and e-checks: $25.00

Source: ordinance 14776, Onbase PR 10520, adopted 6-15-2015.

Chapter 8 - Primary implementing department: Fire

Part 8-101 (Interest).

The provisions of Part 1-101 (Interest applicable to certain delinquent debt) apply to all charges imposed under Chapter 8 of this Fee Schedule.

APPENDIX A

Part 8-102 (Permits, inspections, and reviews).

Pursuant to city code section 46-86(a), fees for the issuance of permits shall be as follows:

(a) *Permit Fee.*

Aerosol products	$90.00
Amusement buildings	90.00
Aviation facilities	90.00
Blasting (Explosives) 60 Day Permit	400.00
Bonfire (1 day)	175.00
Carbon dioxide systems >100 lbs	90.00
Carnivals and fairs	180.00
Cellulose nitrate plastic	90.00
Combustible fibers/dust	90.00
Compressed gases	90.00
Construction burning (30 days)	400.00
Covered mall buildings	180.00
Cryogenic fluids	90.00
Discharge of fireworks/pyrotechnics (1 day)	200.00
Dry cleaning plants	180.00
Exhibits and trade shows	180.00
Flammable/combustible liquids	180.00
Fumigation and thermal insecticide fogging (15 days)	180.00
Hazardous materials permitted per NC Fire Code requirements in excess of exempt quantities. In this category, gallons apply to liquids, and pounds apply to solids and gases.	
Class A—Up to 500 gallons/pounds	180.00
Class B— >500 gallons/pounds	400.00
High piled combustible stock >500 sq. ft	90.00
Installation or removal of (per site) AGST or UGST Tank	360.00
Liquid/gas fueled vehicles/equipment in assembly	180.00
Lumber yards >100k board feet	180.00
Magnesium >10 lbs	180.00
Industrial ovens	180.00
Places of assembly	90.00
Repair garage servicing vehicles	180.00
Tent (30 days >800 sq. ft. closed >1800 sq. ft. open), per tent	175.00
Tire rebuilding plant	180.00
Welding and Cutting (365 days)	90.00
Junk yards/waste handling/scrap yards	180.00
All other permits required by technical code not listed above	90.00

(b) *Inspection:*

(1) In general. Inspection fees based upon gross square footage shall be charged to businesses for required periodic fire inspections. Inspections based upon gross square footage shall be conducted on the following schedule by occupancy type:

1 Year Inspections

- Residential

- Institutional

- Hazardous

- High Rise

- Any occupancy that is protected with a fire protection system (to include tenants that are protected)

- All daycares, charter, and private schools

2 Year Inspections

- Any occupancy that is not protected with a fire protection system and is not included in the 1 year inspection list above.

An additional fee as follows shall be applied on all subsequent occasions where a business must be re-inspected because it did not comply with the code during the first inspection. 1st Re-inspection- $60.00, 2nd Re-inspection-$120.00, 3rd Re-inspection-$240.00. Re-inspection fees for construction inspection types will be based on the square footage in the rate table below per re-inspection.

Inspection fee rates are set forth below:

Square Feet	*Cost*
Up to 999	$60.00
1,000 to 2,499	85.00
2,500 to 9,999	130.00
10,000 to 49,999	235.00
50,000 to 99,999	390.00
100,000 to 249,999	550.00
250,000 to 499,999	725.00
500,000 and Above	900.00

Complaint investigation, life safety w/violation, First Offense (Per Calendar Year)	$600.00
Second Offense (Per Calendar Year)	900.00
Third Offense & Subsequent Offenses (Per Calendar Year)	1,200.00
Complaint investigation, all others	125.00

Working without a permit, First Offense (Per Calendar Year)	600.00
Second Offense (Per Calendar Year)	900.00
Third Offense & Subsequent Offenses (Per Calendar Year)	1,200.00

(2) Commercial cooking hood inspection fees. An annual fee of $100.00 Per Hood (acceptance test only) shall be charged for the inspection of commercial cooking hoods and fire extinguishment systems. A fee of $100.00 Per Hood shall be charged when the owner, at the time of the initial inspection, has failed to fully install the hood and fire extinguishment system.

(3) No fee for foster homes. No fee shall be charged under this section for the inspection of homes which have been designated as foster homes by the appropriate county Department of Social Services or for the inspection of homes as part of the procedure administered by said department of social services for the qualification or certification of new foster homes.

Source: ordinance 15494, Onbase PR 13291, adopted 6-17-2019; ordinance 16336, adopted 6-3-2024.

Source: For historical reference, see 1982 city code section 9-27(a)(6).

Chapter 9 - Primary implementing department: General Services Department

Chapter 9A - Primary implementing department: General Services Department, through the Cemeteries Division

Part 9A-101 (Interest).

The provisions of Part 1-101 (Interest applicable to certain delinquent debt) apply to all charges imposed under Chapter 9A of this Fee Schedule.

An interest rate of 9% is charged on the outstanding balance of installment sales of lots and columbarium niches in the city owned cemeteries made under city code section 14-78(a).

Editor's note: The second paragraph of this Part 9A-101, relating to interest on sales of lots and columbarium niches, was not placed in the Fee Schedule by the City Council. It is included in the Fee Schedule only as a convenience. The reader's attention is directed to city code section 14-78(a).

Editor's note: See also Part 9A-102 Section 14, relating to interest, and city code section 14-26 (promotional pricing).

Part 9A-102 (Cemetery charges).

Pursuant to city code section 14-25:

Section 1. Interment - Urn burial (below ground below ground, 8:00 AM until 9:00 PM):

a.) Monday through Friday	$450.00
b.) Saturday	550.00
c.) Sunday and holidays	700.00

Section 2. Interment - grave, crypt, or mausoleum (8:00 AM until 9:00 PM):

a.) Monday through Friday until 4:00 p.m.	$800.00
b.) Saturday	1,10.00
c.) Sunday and holidays	1,300.00

This section's weekday (Monday through Friday) interment fee is waived for infant remains. "Infant remains" refers to the remains of an infant who was 3 years old or younger at death. The fee for infant remains on a Saturday is $600.00 and on a Sunday or holiday is $700.00.

Section 3. Cemetery lot charges:

a.) Non-monument lot - Standard	
grave space for an adult or youth	$1,200.00
grave space for an infant or an urn	600.00
b.) Non-Monument lot - Premier	
grave space for an adult or youth	$1,400.00
grave space for an infant or an urn	700.00
c.) Monument Lot	
grave space for an adult or youth	$1,400.00
grave space for an infant or an urn	700.00

Section 4. Transfer lot fee and/or Disinterment fee:

a.) Administrative charge for each instrument of disinterment or transfer	$150.00
b.) Disinterment fee for an adult grave space	1,200.00
c.) Disinterment fee for an infant/urn grave space	800.00
c.) Disinterment fee for columbarium niche	150.00

Section 5. Interment-columbarium niche (above ground, 8:00 AM until 4:00 PM):

a.) Monday through Friday	$150.00
b.) Saturday	300.00
c.) Sunday and holidays	400.00

Section 6. Columbarium niche charge.

Double niche (space for two urns)	$2,000.00
Single niche (half of double, space for one urn):	1,000.00

Section 7. Overtime charges (additional interment charge when city employees required to work past 4:00 p.m.:

a.) Weekdays (Monday through Friday, per half hour)	$100.00
b.) Weekend or holidays (per half hour)	150.00

Section 8.	Floral arrangement fee	$10.00
Section 9.	Duplicate deed charge:	$25.00
Section 10.	Fees for setting individual markers, companion markers, VA markers, etc.:	
	a.) Concrete base and installation for bronze veteran's marker	$75.00
	b.) Setting fee for private or veteran's single granite or marble marker	60.00
	c.) Setting fee for private companion or double individual marker	150.00
	d.) Permit fee to set monuments or mausoleums	65.00
	e.) Fee for forming and pouring concrete for mausoleum or monument foundations, per cubic foot	15.00
	f.) Application fee for variance	150.00

Section 11. Fees for cleaning and reconditioning cemetery markers, monuments, crypts, mausoleums:

a.) Companion markers	$90.00
b.) Individual grave markers	50.00
c.) Monuments	150.00
d.) Crypts (per individual crypt)	200.00
e.) Mausoleums (per niche)	200.00

Section 12. The purchase price of miscellaneous cemetery products (e.g., vases) is the City's total cost to acquire the miscellaneous cemetery product multiplied by a markup rate of up to 150%, except for the sale of mausoleums.

Section 13.	The fee for planting or removal of ornamentals, trees, shrubs, etc., per plant	$25.00
Section 14.	Interest rate on outstanding balances is 8% per year.	

Editor's note: See also city code section 14-26 (promotional pricing) and city code section 14-27 (sales commission offer to funeral homes and crematories).
Source: ordinance 14269, Onbase PR 8496, adopted 6-4-2012.
Source: For historical reference, see 1982 city code section 7-29.

Chapter 9B Reserved

Chapter 9C - Primary implementing department: General Services Department, through the Urban Forestry Division

Part 9C-101 (Replacement trees).

Pursuant to city code section 26-227, the fee for a permit to remove city tree and for city to plant replacement is $100.00. Pursuant to city code section 26-228(b), the fee for the City to plant a replacement city tree is $100.00.

Source: For historical reference, see 1982 city code section 21-8 and section 21-9(a).

Chapter 10 - Primary implementing department: Communications (formerly known as Office of Public Affairs

Part 10-101 (Fees for Providing Copies of Public Records).

Section 1. For the purposes of this Part, the following definitions apply.

a) Actual cost is the sum of the direct, chargeable costs related to the copying, as determined by generally accepted accounting principles, but excluding costs that would have been incurred if a request to copy the record had not been made.

b) Burdensome copying is copying records in response to a request that requires extensive use of information technology resources or extensive clerical or supervisory assistance by City personnel.

c) Copies are either electronic or paper reproductions of any electronic or paper record.

d) Larger than standard size original is an original page longer than 11 inches in one dimension or longer than 17 inches in the other dimension.

e) Page is one side of a piece of paper.

f) Personnel Costs are determined at an hourly rate equal to the employee's gross salary during the applicable fiscal year divided by the number of hours worked by that employee during that fiscal year.

g) Standard size copy is an 8.5 x 11-, 8.5 x 14-, or 11 x 17-inch copy made from an original page that is not longer than 11 inches in one dimension and not longer than 17 inches in the other dimension.

Section 2. All fees established by this Part shall apply to any person who requests copies of City records, other than persons acting on behalf of the City.

Section 3.

(a) Except as provided otherwise, the following charges shall be made for copies:

Ink on copy	Size of paper of copy (inches)	Fee per page
Black	8.5 X 11	3 cents
Black	8.5 X 14	4 cents
Black	11 X 17	5 cents
Color	8.5 X 11	8 cents
Color	8.5 X 14	9 cents
Color	11 X 17	10 cents

The City Council finds that the amounts listed in this section are the actual costs.

(b) If the copying is burdensome, Section 6 shall apply instead of this section.

(c) A two-sided copy will be made when reasonably practicable and will be charged as two pages.

(d) There will be no charge for the first 34 pages of copies made in black and white and on paper no larger than 11 x 17 inches.

(e) In the future, if the City Manager finds that any actual cost has changed, the City Manager shall modify the fees provided for in this section accordingly.

Section 4. The City Manager is authorized to charge fees for copying larger than standard size originals. The fees shall be the amounts that the City Manager finds to be the actual cost. If the copying is burdensome, Section 6 shall apply instead of this section.

Section 5. The fee for copying records using a medium, such as a flash drive, CD, or other tangible data storage device, that does not use a photocopy machine to produce copy images on paper shall be the actual cost to the City of the medium onto which the copy is made. If the copying is burdensome, Section 6 shall apply instead of this section.

Section 6. The City Manager is authorized to charge fees for burdensome copying.

(a) The fee for burdensome copying shall be at the amounts that the City Manager finds to be equal to the actual cost of duplication, including the cost of equipment, materials, and personnel.

(b) The City Manager shall also charge a service charge on burdensome copying requests equal to the lesser of $25.00 or 15% of the actual cost of duplication.

(c) The fees authorized in this section shall apply to burdensome copying instead of the fees authorized in Section 3, Section 4, or Section 5.

Section 7. The City Manager may waive any fees authorized by this Part when the fees that would be charged are too small to be worth processing. The City Manager may promulgate rules and procedures to carry out this section.

Source: resolution 9312, Onbase PR 2390, adopted 12-5-2005; ordinance 16030, adopted 10-17-2022.

Chapter 11 - Primary implementing department: Parks and Recreation Department

Part 11-101 (Durham Bulls Athletic Park rental fees).

The following rental fees for the DBAP, for uses other than minor league baseball games, are as provided in this Part:

	Per Game	*Per Doubleheader*	*Per Tournament Day*
Section 1. Baseball Uses			
BASE CHARGES:			
Youth Recreational League Baseball	$500	$685	$1,000
Adult Recreational League Baseball	$500	$685	$1,000
Collegiate/Olympic Baseball	$650	$900	N/A
Additional Charges:			
(as deemed applicable by City Staff)			
Security Fee Per Officer Per Hour	$18		
Field Lighting Fee Per Hour	$25		
Note: Collegiate/Olympic Baseball Tournaments are classified as Special Baseball Events. (See Special Baseball Events fees.)			
Section 2. Picnics			
	Per Picnic		
BASE CHARGES:			
All Groups	$250		

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	Per Game	*Per Doubleheader*	*Per Tournament Day*
ADDITIONAL CHARGES:			
(as deemed applicable by City Staff)			

	Per Game	*Per Doubleheader*	*Per Tournament Day*
Security Fee Per Officer Per Hour	$18		
Field Lighting Fee Per hour	$25		
Note: Use of playing field will be an additional charge to groups hosting picnics. Applicable fee under Baseball Uses will apply.			
Section 3. Special Baseball Events			
	Per Day		
BASE CHARGES:			
Collegiate/Olympic			
Baseball Tournaments	$1,300		
Other Special Baseball Events	$1,300		
ADDITIONAL CHARGES:			
(as deemed applicable by City Staff)			
Security Fee Per Officer Per Hour	$18		
Field Lighting Fee Per Hour	$25		
Stadium Cleanup Fee Per Day	$1,530		
Percentage of Event Revenues	Negotiated		
Note: The percentage of event revenues retained by the City will be negotiated on a case by case basis.			
Section 4. Concerts and Other Special Events			
	Per Day	Damage Deposit	
BASE CHARGES:			
Non-Profit Organizations	$1,000	$5,000	
For-Profit Organizations	$2,500	$5,000	
ADDITIONAL CHARGES:			
(as deemed applicable by City Staff)			
Security Fee Per Officer Per Hour	$18		
Field Lighting Fee Per Hour	$25		
Stadium Cleanup Fee Per Day	$1,530		
Percentage of Event Revenues	Negotiated		

	Per Game	*Per Doubleheader*	*Per Tournament Day*
Note: The percentage of event revenues retained by the City will be negotiated on a case by case basis.			

Source: resolution 8101, adopted 6-19-1995.

Part 11-102 (Fees and charges in general).

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CITY OF DURHAM
PARKS AND RECREATION DEPARTMENT
FEE SCHEDULE

Effective: June 1, 2017

RECREATION PROGRAM FEES

RECREATION PROGRAM CATEGORY	*ACTIVITY*	*FEE*
Aquatics	Challenges - CPR/AED (each)	$28.00
Aquatics	Challenges - Lifeguard Training (each)	$83.00
Aquatics	CPR/AED for the Professional Rescuer	$88.00
Aquatics	CPR/AED for the Professional Rescuer - Review	$50.00
Aquatics	CPR/AED for the Professional Rescuer Text	$13.00
Aquatics	Guard Start	$22.00
Aquatics	Lifeguard Instructor	$209.00
Aquatics	Lifeguard Training	$190.00
Aquatics	Pocket Masks {Non-resident fees are not applicable (NR n/a)}	$10.00
Aquatics	Swimming Lessons	$52.00
Aquatics	Swimming Lessons: Adaptive (per 1/2 hour)	$52.00
Aquatics	Swimming Lessons: Infant and Pre-School Aquatic Program (IPAP)	$46.00
Aquatics	Swimming Lessons: Private (per ½ hour)	$22.00
Aquatics	Swimming Lessons: Semi-Private (2 students) (per ½ hour)	$33.00
Aquatics	Triathlon Swim Training	$61.00
Aquatics	Water Safety Instructor	$209.00
Athletic Leagues	Basketball ages 18+ (1 league; 6 max)	$375.00
Athletic Leagues	Basketball ages 18+ (2 leagues; 18 max)	$495.00
Athletic League	Basketball ages under 18 (per player)	$28.00
Athletic League - Special Programs	Basketball League - Special Programs (per player)	$28.00
Athletic Leagues	Flag Football ages under 18 (per player)	$28.00
Athletic Leagues	Soccer - Women's ages 30+	$535.00
Athletic Leagues	Soccer - Women's Open ages 17+	$795.00
Athletic Leagues	Soccer ages under 18 (per player)	$39.00
Athletic Leagues	Softball ages 18+ (additional sanctioning fees may be charged)	$475.00
Athletic Leagues	Volleyball - COED - ages 18+	$80.00
Athletic Leagues	Volleyball - Women's - ages 18+ (with officials)	$240.00

RECREATION PROGRAM CATEGORY	*ACTIVITY*	*FEE*
Athletic Leagues	Late Fee - ATHLETICS (per person per sport) (NR n/a)	$10.00
Athletic Programs	Tournament (generic) (per person)	$5.00
Athletic Programs	Tournament (generic) (per team)	$75.00
NOTE: USTA Fees - the following USTA programs will only list the fees assessed by the City of Durham Parks and Recreation Department. USTA will assess additional fees including a "NC Head tax" and other fees associated with Active.net		
Athletic (USTA) Leagues	USTA 18 & Over Tennis League	$12.00
Athletic (USTA) Leagues	USTA 40 & Over Adult League	$12.00
Athletic (USTA) Leagues	USTA 55 & Over Adult League	$4.00
Athletic (USTA) Leagues	USTA 65 & Over Adult League	$0.00
Athletic (USTA) Leagues	USTA 18 & Over Mixed Doubles League	$5.00
Athletic (USTA) Leagues	USTA 40 & Over Mixed Doubles League	$5.00
Athletic (USTA) Leagues	USTA 55 & Over Mixed Doubles League	$3.00
Athletic (USTA) Leagues	USTA 65 & Over Mixed Doubles League	$0.00
Athletic (USTA) Leagues	USTA Tri-Level	$12.00
Athletic (USTA) Leagues	USTA 18 & Over Singles League	$3.00
Athletic (USTA) Leagues	USTA 40 & Over Singles League	$3.00
Athletic (USTA) Leagues	USTA 55 & Over Singles League	$3.00
Athletic (USTA) Leagues	USTA 65 & Over Singles League	$0.00
Athletic (USTA) Leagues	USTA 18 & Over Doubles Combo League	$5.00
Athletic (USTA) Leagues	USTA 40 & Over Doubles Combo League	$5.00
Athletic (USTA) Leagues	USTA 55 & Over Doubles Combo League	$3.00
Athletic (USTA) Leagues	USTA 65 & Over Doubles Combo League	$0.00
Athletic (USTA) Leagues	USTA JTT (per person)	$12.00
Athletic (USTA) Leagues	Durham Tennis Tournament Doubles	$14.00
Athletic (USTA) Leagues	Durham Tennis Tournament Singles	$27.00
Care Programs	Fun Days (10.5 hours)	$26.00
Care Programs	Camps - per week	$132.00
Care Programs	After School (annual) Prorate based upon registration date	$1,188.00
Care Programs	Late Pickup Fee (every 15 minutes or fraction thereof) (NR n/a)	$20.00
Clinics and Workshops	Workshops - Basic (up to 2 hours) (No special supplies required)	$1.00
Clinics and Workshops	Instructional Clinic - Basic	$6.00
Clinics and Workshops	Instructional Clinic - Intermediate	$8.00
Clinics and Workshops	Instructional Clinic - Advanced	$11.00

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RECREATION PROGRAM CATEGORY	*ACTIVITY*	*FEE*
Instructional Classes	Basic Level: Per Course Hour (Youth, Teen, and Senior) (supply fee may be added if needed)	$1.50
Instructional Classes	Intermediate Level: Per Course Hour (Youth, Teen, and Senior) (supply fee may be added if needed)	$2.00
Instructional Classes	Advanced Level: Per Course Hour (Youth, Teen, and Senior) (supply fee may be added if needed)	$2.50
Instructional Classes	Basic Level: Per Course Hour (Adult) (supply fee may be added if needed)	$4.00
Instructional Classes	Intermediate Level: Per Course Hour (Adult) (supply fee may be added if needed)	$5.00
Instructional Classes	Advanced Level: Per Course Hour (Adult) (supply fee may be added if needed)	$6.00
Fitness	Fitness Training - 2-party - per session (50 minutes) - per person	$22.00
Fitness	Fitness Training - 3-party - per session (50 minutes) - per person	$17.00
Fitness	Fitness Training - Individual - per session (50 minutes)	$33.00
Ropes Course - Low Challenge	Youth and Teens (ages 18 and under) - 1/2 Day	$20.00
Ropes Course - Low Challenge	Youth and Teens (ages 18 and under) - Full Day	$33.00
Ropes Course - Low Challenge	Adult - 1/2 Day	$30.00
Ropes Course - Low Challenge	Adult - Full Day	$40.00
Ropes Course - Low Challenge	Corporate Groups - 1/2 Day	$40.00
Ropes Course - Low Challenge	Corporate Groups - Full Day	$50.00
Ropes Course - High Ropes	1/2 day (Youth and Teens - ages 18 and under)	$25.00
Ropes Course - High Ropes	1/2 day (Adult (ages 19+), Corporate)	$45.00
Ropes Course - High Ropes	1/2 day (Nonprofit and Higher Educational Groups)	$40.00

RECREATION PROGRAM CATEGORY	*ACTIVITY*	*FEE*
Ropes Course - Combo Package (Half day High Ropes Course, Half Day Low Activities)	Youth and Teen (ages 18 and under)	$40.00
Ropes Course - Combo Package (Half day High Ropes Course, Half Day Low Activities)	Adult (ages 19+), Corporate	$60.00
Ropes Course - Combo Package (Half day High Ropes Course, Half Day Low Activities)	Nonprofit and Higher Educational Groups	$55.00
Trips	Field Trips - 1/2 day (Trips less than 5 hours) - Adults	$6.00
Trips	Field Trips - Day (Trips more than 5 hours) - Adults	$12.00
Trips	Field Trips - Specialty trips - Adults (such as beach excursion, mountain explorations, etc.) are determined on a trip by trip basis utilizing DPR's trip formula for cost recovery (to include transportation, admissions, food, lodging, and other expenses associated with the specific trip). Fees will be determined based on actual cost per person.	TBD

RECREATION ADMISSION FEES	*ACTIVITY*	*FEE*
Daily Activity Pass: (includes indoor pool, exercise equipment, and fitness programs) Note: some items may be age restricted	Daily Pass - Youth, Teen	0.00
Daily Activity Pass: (includes indoor pool, exercise equipment, and fitness programs) Note: some items may be age restricted	Daily Pass - Seniors	3.00
Daily Activity Pass (includes indoor pool, exercise equipment, and fitness programs)	Daily Pass - Adult	4.00

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RECREATION ADMISSION FEES	*ACTIVITY*	*FEE*
Aquatics	Outdoor Pools: Youth, Teen	0.00
Aquatics	Outdoor Pools: Seniors	2.00
Aquatics	Outdoor Pools: Adult	3.00
City Lakes	Bank Fishing (per day)	3.00
City Lakes	Battery Rental (per day) (NR n/a)	11.00
City Lakes	Boat/Canoe Rentals (per 6 hours)	6.00
City Lakes	Electric Motor Rental (per 6 hour rental) (NR n/a)	11.00
City Lakes	Motor Boat Launching	6.00
City Lakes	Non-Motor Boat Launching	5.00
City Lakes	University Seasonal Launching Fee (NR n/a)	500.00
Outreach	Dog Park - replacement tag (NR n/a)	5.00
Outreach	Dog Park Fee - multiple dogs (per additional dog)	15.00
Outreach	Dog Park Fee (per dog)	17.00
Outreach	Baby Sitting Service Fee - per hour	3.00
Mature Adults	Senior Fitness - Per Class	1.00
Racquetball	Per court per hour	8.00
Special Events	Senior Holiday Party (per person)	15.00
Special Events - Mature Adults	Senior Games: Early Bird Registration	12.00
Special Events - Mature Adults	Senior Games: Registration	14.00

RECREATION PASS SALE FEES	*ACTIVITY*	*FEE*
Aquatics	Pass Sales: Adult Recreational Swim/Lap Swim: 10 Visits	$27
Aquatics	Pass Sales: Adult Recreational Swim/Lap Swim: 25 Visits	$64
Aquatics	Pass Sales: Adult Recreational Swim/Lap Swim: 50 Visits	$120
Aquatics	Pass Sales: Wellness plus Open Recreational Swim/Lap Swim: Per Month (Unlimited; Expires 30 Days From Purchase)	$40
Aquatics	Pass Sales: Senior - Recreational Swim/Lap Swim: 10 Visits	$18
Aquatics	Pass Sales: Senior - Recreational Swim/Lap Swim: 25 Visits	$43

RECREATION PASS SALE FEES	*ACTIVITY*	*FEE*
Aquatics	Pass Sales: Senior - Recreational Swim/Lap Swim: 50 Visits	$80
Aquatics	Pass Sales: Water Exercise Class: 10 Visits	$36
Aquatics	Pass Sales: Water Exercise Class: 25 Visits	$85
Aquatics	Pass Sales: Water Exercise Class: 50 Visits	$160
Athletics	Pass Sales: Adult Pickleball: 10 Visits	$27
Athletics	Pass Sales: Adult Pickleball: 25 Visits	$64
Athletics	Pass Sales: Adult Pickleball: 50 Visits	$120
RECREATION PASS SALE FEES	ACTIVITY	FEE
Athletics	Pass Sales: Senior Pickleball: 10 Visits	$18
Athletics	Pass Sales: Senior Pickleball: 25 Visits	$43
Athletics	Pass Sales: Senior Pickleball: 50 Visits	$80
Fitness	Pass Sales: Corporation Play Pass: 50 Passes	$250
Fitness	Wellness Pass - Per Month. Provides Access To Unlimited Land- Based Group Fitness And Mind/Body Classes (Including Zumba, Boot Camp, Dance Fusion, Total Body, Yoga, And African Relaxation). Use Of Weights And Fitness Equipment. Open Gym.	$20
Mature Adults	Pass Sales: Mature Adult Activity : 10 Visits	$9
Mature Adults	Pass Sales: Mature Adult Activity: 25 Visits	$21
Mature Adults	Pass Sales: Mature Adult Activity: 50 Visits	$40

RECREATION SPECIAL EVENT FEES	*ACTIVITY*	*FEE*
Special Events	Bimbé: Vendor (Food) Deposit (refundable)	50.00
Special Events	Bimbé: Vendors (Artist) (per day)	50.00
Special Events	Bimbé: Vendors (Educational/Non-Profit) (per day)	30.00
Special Events	Bimbé: Vendors (Food) (per day) (drink sales allowed)	250.00
Special Events	Earth Day and Latino Festival: Deposit (refundable)	50.00
Special Events	Earth Day and Latino Festival: Vendors (Artist) (per day)	50.00

RECREATION SPECIAL EVENT FEES	*ACTIVITY*	*FEE*
Special Events	Earth Day and Latino Festival: Vendors (Educational/Non-Profit) (per day)	30.00
Special Events	Earth Day and Latino Festival: Vendors (Food) (per day)	125.00
Special Events	Earth Day and Latino Festival: Vendors (Non-Food) (per day)	100.00
Special Events	Summer Music Festival: Vendors (Food) (per concert)	50.00
Special Events	Summer Music Festival: Vendors (Nonfood) (per concert)	25.00
Special Events	Vendor Booth Fee: (Recreation Center Events and other events not specified elsewhere) - Events 5 hours or longer	35.00
Special Events	Vendor Booth Fee: (Recreation Center Events, Barktoberfest, and other events not specified elsewhere) - Events lasting less than 5 hours	25.00

FACILITY AND EQUIPMENT RENTALS	*SPACE/SERVICE*	*FEE*
RECREATION CENTERS (Edison Johnson Aquatic Center, Edison Johnson Recreation Center, Holton Career and Resource Center, I. R. Holmes, Sr. Recreation Center at Campus Hills, W. D. Hill Recreation Center and the Weaver Street Recreation Center)		
Recreation Centers	Rental Application Fee (nonrefundable) (NR n/a)	$15.00
Recreation Centers	Food Fee (Assessed when food/beverages served) (NR n/a)	$25.00
Recreation Centers	Security Deposit (refundable) (without alcohol) (NR n/a)	$200.00
Recreation Centers	All rentals with Admission Fees or Ticket Sales (NR n/a)	$200.00
Recreation Centers	Custodial/Maintenance Fee (per 50 guests) with max @ $200.00 per rental (NR n/a)	$25.00
Recreation Centers	Security and additional fees determined at time of rental (based on direct costs). City of Durham and other agencies, government or private, may require other permits, security services or equipment for the rental activity. Acquisition of these extra services and equipment is the renter's responsibility and expense.	TBD

FACILITY AND EQUIPMENT RENTALS	*SPACE/SERVICE*	*FEE*
Recreation Centers (only available at Holton Career and Resource Center)	Auditorium (per hour) Friday - Sunday & Holidays	$120.00
Recreation Centers (only available at Holton Career and Resource Center)	Auditorium (per hour) Monday - Thursday	$100.00
Recreation Centers	Single Meeting Room (per hour)	$30.00
Recreation Centers	Gymnasiums (per hour)	$60.00
Recreation Centers	Gym Floor Covering - required for gymnasium rentals where tables and chairs will be used (NR n/a)	$40.00
Recreation Centers	Non-Operational Hours (extra fee) (per hour)	$15.00
SPECIAL USE FACILITIES (Armory; Forest Hills Clubhouse; Lake Michie Boathouse, McCown Mangum House, Spruce Pine Lodge; and West Point on the Eno amphitheater)		
Special Use Facilities	Rental Application Fee (nonrefundable) without alcohol (NR n/a)	$15.00
Special Use Facilities: (only locations specified to allow serving of alcohol in City Ordinance)	Rental Application Fee (nonrefundable) with alcohol (NR n/a)	$50.00
Special Use Facilities (excludes Armory)	Security Deposit (refundable) (without alcohol) (NR n/a)	$200.00
Special Use Facilities (excludes Armory)	Deposit (refundable) With Alcohol (NR n/a)	$250.00
Armory	Deposit (refundable) Without Alcohol (NR n/a)	$300.00
Armory	Deposit (refundable): With Alcohol (NR n/a)	$350.00
Special Use Facilities	Food Fee (Assessed when food/beverages served) (NR n/a)	$25.00
Special Use Facilities	All rentals with Admission Fees or Ticket Sales (NR n/a)	$200.00
Special Use Facilities	Custodial/Maintenance Fee (per 50 guests) with max @ $200.00 per rental (NR n/a)	$25.00

Special Use Facilities	Security and additional fees determined at time of rental (based on direct costs). City of Durham and other agencies, government or private, may require other permits, security services or equipment for the rental activity. Acquisition of these extra services and equipment is the renter's responsibility and expense.	TBD
Armory	Monday - Thursday (per hour) (4 hour minimum required)	$50.00
Armory	Friday - Sunday & Holidays (per hour) (6 hour minimum required)	$60.00
Armory	Meeting Rooms only (per room - per hour) (4 hour minimum required)	$25.00
Forest Hills Clubhouse	Monday thru Sunday (per hour) (3 hour minimum required)	$30.00
Lake Michie Boathouse	Monday thru Sunday (per hour) (3 hour minimum required)	$30.00
McCown Mangum House Rental	Monday thru Thursday (per booking)	$100.00
McCown Mangum House Rental	Friday-Sunday & Holidays (per booking)	$200.00
Spruce Pine Lodge	Friday-Sunday & Holidays (per hour) (minimum 6 hours required)	$50.00
Spruce Pine Lodge	Monday - Thursday (per hour) (minimum 6 hours required)	$40.00
West Point on the Eno Amphitheater	Friday - Sunday & Holidays (per hour) (minimum 6 hours required)	$25.00
West Point on the Eno Amphitheater	Monday - Thursday (per hour) (minimum 6 hours required)	$20.00
ATHLETIC FIELDS AND COURTS		
Athletic Fields and Courts	Rental Application Fee (nonrefundable) (Seasonal - does not apply if renter is only reserving a one-time usage of a field) (NR n/a)	$15.00
Athletic Fields and Courts	Rescheduling Fee; amendments to booking permit after permit has been issued (Fee is per amendment requested) (NR n/a)	$5.00
Athletic Courts	Outdoor Courts - per hour	$5.00
Athletic Fields	Artificial Turf Fields: Day: Without Lights (per hour)	$40.00

Athletic Fields	Artificial Turf Fields: Night: With Lights (per hour)	$60.00
Athletic Fields	Fields (all other): Day: Without Lights (per hour)	$20.00
Athletic Fields	Fields (all other): Dragging and Lining per field per event (NR n/a)	$10.00
Athletic Fields	Fields (all other): Night: With Lights (per hour)	$40.00
Tennis Courts	Rental (per hour/court)	$3.00
Concession Building	Rental - per hour	$10.00
CAMPSITES		
Campsites (Lake Michie)	Lake Michie Campsites: Group (per night)	$20.00
Campsites (Lake Michie)	Lake Michie Campsites: Individual (per night)	$10.00
EQUIPMENT		
Equipment Rental	Ballfield bases (1 set) per day	$50.00
Equipment Rental	Deposit (refundable) - ballfield bases (per set rented) (NR n/a)	$200.00
Equipment Rental	Racquetball Equipment Rental (per hour)	$2.00
Equipment Rental	Wallyball Equipment Rental (per hour)	$4.00
Equipment Rentals	Deposit (refundable) - mobile stage (NR n/a)	$300.00
Equipment Rentals	Deposit (refundable) - Scoreboard (NR n/a)	$300.00
Equipment Rentals	Mobile Stage - Rental Application Fee (nonrefundable)	15.00
Equipment Rentals	Mobile Stage - Commercial Rate (per day)	$600.00
Equipment Rentals	Mobile Stage - Nonprofit and Government (Durham) (per day)	$300.00
Equipment Rentals	Picnic Kits (Per Day) Rental	$30.00
Equipment Rentals	Picnic Kits: Damage Deposit (refundable) (NR n/a)	$50.00
EVENT FIELDS & TRAILS		
Event Fields & Trails	Rental Application Fee (nonrefundable) (NR n/a)	$15.00
Event Fields & Trails	Deposit (refundable) (NR n/a)	$100.00
Event Fields & Trails	All rentals with Admission Fees or Ticket Sales (NR n/a)	$200.00
PICNIC SHELTERS		
Picnic Shelter Rentals	Tier 1: Friday - Sunday & Holidays {Forest Hills Park, Hillside Park (Large), Piney-wood Park, Twin Lakes Park (Large)}	$105.00

Picnic Shelter Rentals	Tier 1: Monday - Thursday {Forest Hills Park, Hillside Park (Large), Pineywood Park, Twin Lakes Park (Large)}	$80.00
Picnic Shelter Rentals	Tier 2: Friday - Sunday & Holidays {Cook Road, Edgemont Park, Elmira Park, Garrett Road Park, Long Meadow Park, Northgate Park (Medium), Orchard Park, River Forest Park, Sherwood Park, Solite Park, Twin Lakes Park (Medium), Valley Springs Park, West Point on the Eno (Medium), Whippoorwill Park}	$75.00
Picnic Shelter Rentals	Tier 2: Monday - Thursday {Cook Road, Edgemont Park, Elmira Park, Garrett Road Park, Long Meadow Park, Northgate Park (Medium), Orchard Park, River Forest Park, Sherwood Park, Solite Park, Twin Lakes Park (Medium), Valley Springs Park, West Point on the Eno (Medium), Whippoorwill Park}	$50.00
Picnic Shelter Rentals	Tier 3: Friday - Sunday & Holidays {All other Shelters: American Village Park, Burton Park, C.M. Herndon Park, C.R. Woods Park, Campus Hills Park, Crest Street Park, Duke Park, East Durham Park, East End Park, Hillside Park (Small), Holt School Road Park, Lakeview Park, Lyon Park, Morreene Road Park, Northgate Park (Small), Old Farm Road Park, Oval Drive Park, Red Maple Park, Rockwood Park, Sandy Creek Park, Spruce Pine Lodge/Lake Michie Recreation Area, Trinity Park, Unity Village Park, Walltown Park, West Point on the Eno Park (Small), White Oak Park, Wilkins Road Park/Lake Michie Recreation Area, Wrightwood Park}	$55.00

Picnic Shelter Rentals	Tier 3: Monday - Thursday {All other Shelters: American Village Park, Burton Park, C.M. Herndon Park, C.R. Woods Park, Campus Hills Park, Crest Street Park, Duke Park, East Durham Park, East End Park, Hillside Park (Small), Holt School Road Park, Lakeview Park, Lyon Park, Morreene Road Park, Northgate Park (Small), Old Farm Road Park, Oval Drive Park, Red Maple Park, Rockwood Park, Sandy Creek Park, Spruce Pine Lodge/Lake Michie Recreation Area, Trinity Park, Unity Village Park, Walltown Park, West Point on the Eno Park (Small), White Oak Park, Wilkins Road Park/Lake Michie Recreation Area, Wrightwood Park}	$30.00
PLAZAS (CCB Plaza)		
Plazas	Rental Application Fee (nonrefundable) without alcohol (NR n/a)	$15.00
Plazas	Rental Application Fee (nonrefundable) with alcohol (NR n/a)	$50.00
Plazas	Deposit (refundable) With Alcohol (NR n/a)	$200.00
Plazas	Deposit (refundable) Without Alcohol (NR n/a)	$100.00
Plazas	Rental (per hour) (4 hour minimum required)	$10.00
SWIMMING POOLS		
Swimming Pool Rentals	Group (operational hours) Up to 10 Participants (per 2 hours) (only during rec swim)	$25.00
Swimming Pool Rentals	Lane (non-operational hours) (per Lane per hour)	$11.00
Swimming Pool Rentals	Lane (operational hours) (per Lane per hour)	$9.00
Swimming Pool Rentals	Private (non-operational hours) Up to 40 Participants (per hour)	$70.00
Swimming Pool Rentals	Private (operational hours) Up to 40 Participants (per hour)	$50.00
Swimming Pool Rentals	Rental Application Fee (nonrefundable) (NR n/a)	$15.00

APPENDIX A

FEE ADJUSTMENTS

New Programs/Administrative Adjustments

New programs developed within the fiscal year shall have fees established based upon the direct cost to offer the programs. The Director of Parks and Recreation shall have the authority to approve these new program fees. The City Manager may approve administrative adjustments recommended by the Department Director in response to market changes or when other circumstances deem it necessary.

Late Fees

DPR services and rental facilities must be paid for in advance of receipt of services or usage of facilities. Failure to pay in advance of service/rental may result in cancellation of registration and/or rental. A $20.00 late payment fee per month (30 days) will be applied for ALL outstanding balances. Any individual, person, or agency with a balance past due of 60 days or greater will be barred from using DPR services and facilities until the account is made current.

Discounts

Unless otherwise stated, discounts for rental fees and similarly described charges do not apply to other fees, such as application fees, security deposits, and late fees. Only one discount may apply to a fee.

Nonresident Fees

Unless otherwise specified in this document (including but not limited to fees marked NR n/a, indicating Nonresident fees are not applicable), participant residing outside of the City of Durham will be required to pay additional fees for programs, rentals, and services provided by the City of Durham Parks and Recreation Department based on the following schedule:

Non-Resident Fees	Fee: $0 - $25.99	$5.00
Non-Resident Fees	Fee: $26.00 - $125.99	$15.00
Non-Resident Fees	Fee: $126.00 +	$25.00
Non-Resident Fees (Athletic Teams)	Athletic Teams: per person per sport	$12.00

For rental of athletic fields by Athletic Associations and Leagues: teams or leagues with fewer than 75% of their participants residing in the City of Durham will be charged for a rental at the Non-City Resident fee rate, regardless of where the organization itself is based.

Holton Career and Resource Center

As part of the Mayor's Transformation in Ten Initiative (formerly known as the Poverty Reduction Initiative) all programs and activities provided by the Parks and Recreation Department at the Holton Career and Resource Center (HCRC), including admissions to the fitness center, the computer lab and the open gym programs are provided at no cost to City Residents. This program excludes Care Programs (Note: The Sliding Fee Scale may apply to Care Programs), athletic leagues, and rentals of the facility.

Reduced Rates: Employees, Families, and Senior Citizens

ONLY ONE TYPE OF DISCOUNT MAY BE UTILIZED FOR EACH REGISTRATION	
City Employee Discount	Current City of Durham employees receive a twenty-five percent (25%) discount on all instructional classes and recreational passes for activities sponsored by the City of Durham Parks and Recreation Department. Child Care programs and facility, field, and equipment rentals are excluded from this discount.
Facility and Field Fee Waivers	Fee Waivers or reduced fees are determined on a case by case basis for community events that align with the Mission of Durham Parks and Recreation. The Recreation Advisory Commission may review the Facility and Fee Waiver Applications and make a recommendation to the Director. All waivers or reductions must be approved the Director of Durham Parks and Recreation. Those interested in more information may call 560-4355 or visit the departmental website to obtain an application for a Facility and Field Fee Waiver. Please note that applications for reduced or waived fees for rentals must be received a minimum of 45 days prior to the scheduled event. Renters are required to secure their reservation with a nonrefundable application fee (if applicable) and a refundable deposit (if applicable) prior to the submission of an application for reduced or waived fees.

<table>
<tr><td colspan="3">**ONLY ONE TYPE OF DISCOUNT MAY BE UTILIZED FOR EACH REGISTRATION**</td></tr>
<tr><td>Multi-Child Discount</td><td colspan="2">The multi-child discount applies to childcare programs for families who do not qualify for reduced fees under the sliding
fee scale program and have more than one child registering for the program. It also applies to all instructional programs.</td></tr>
<tr><td></td><td colspan="2">The discount is as follows:</td></tr>
<tr><td></td><td>1st Child</td><td>Registrant pays 100% of registration fee.</td></tr>
<tr><td></td><td>Each Additional Child</td><td>Registrant pays 90% of the registration fee.</td></tr>
<tr><td rowspan="2">Rental Discount - applies only to Non-profits, City of Durham, and County of Durham.</td><td colspan="2">Non-profits (with required 501(c)3 verification) (BASED IN CITY OF DURHAM), City of Durham, and the County of Durham: the rental fees will be waived for usage of Recreation Center space Monday - Friday; between 9:00 am - 3:00 pm. Rules apply: meetings must be "open public meeting". No fees, dues, or donations may be charged to or solicited from those attending meetings eligible for this waiver. Reservations will be accepted on a meeting to meeting basis. Application may be made no more than 90 days in advance. The discount does not apply to private social functions (such as weddings, birthday parties), or for personal usage). Refundable deposit will apply. In addition, the Food Fee and Setup/Dismantle fee will apply if applicable.</td></tr>
<tr><td colspan="2">Non-profits (with required 501(c)3 verification), City of Durham, and the County of Durham will receive a fifteen percent (15%) discount on rental fees for recreational facilities.</td></tr>
</table>

ONLY ONE TYPE OF DISCOUNT MAY BE UTILIZED FOR EACH REGISTRATION	
Senior Discount	Seniors, aged 55 or better, receive a ten percent (10%) discount on all recreational programs and admissions to facilities for activities sponsored by the Durham Parks and Recreation Department. Activities with specified senior rates, senior or mature adult programs, and facility, field, and equipment rentals are excluded from this discount.
Economically Disadvantaged Discount and Fee Waivers	The Sliding Fee Scale provides for reduced fees for After School, Summer Camps, Intersession, Nature Caravan, and Fun Day programs. The Director of Parks and Recreation shall have the authority to further reduce or waive fees in their entirety for those programs for individuals facing extreme hardship and are unable to pay the Sliding Fee Scale rate.
	The Program Fee Waiver applies to all other recreation programs (that is, excluding After School, Summer Camps, Intersession, Nature Caravan, and Fun Day programs). The Department will waive fees in their entirety for participants who receive services or benefits from the County Department of Social Services or the Durham Housing Authority.

Special Terms, Conditions, and Definitions

Adult	Person aged 19+ (at least 19 years of age or older).
Age	Unless otherwise indicated, an age range is stated includes individuals who are of the ages at both ends of the range. For instance, "ages 13-18" means an individual who is at least 13 but is under the age of 19.
Application fees	Unless otherwise stated, application fees will not be refunded, regardless of whether the application is withdrawn or denied.
Athletic Fields and Courts	A Reservations Permit is required for all League Games and Team practices on Athletic Fields and Courts.
Basic	No prerequisite knowledge required. Gain basic familiarity. Minimal equipment or supplies required.

Intermediate	Participant has generalized knowledge or skill. Gain a new ability or skill. Learn more in-depth, detailed or special ability.
Advanced	Participant has proficiencies and knowledge further along in complexity or skill level. Take away a new experience or higher level skill.
Clinic	Instructional activity that takes place within one day.
Booking	Each specific block of time rented by an organization; each single usage.
Cancellation Policy: Rentals	Cancellation by the rental applicant less than 14 days prior to rental date will result in forfeit of all rental fees and the security deposit.
Commercial Rental	Event organized by a business or individual(s) at which money is intended to be made for private gain. For example: fund raisers hosted by tax exempt community organizations are not considered commercial, whereas a dance to which an admission is charged and is hosted by a promoter or Promotions Company would be considered Commercial.
Holiday	Legal holiday observed by the City of Durham pursuant to City Code section 42-16 or any successor provision.
Mature Adult	Senior (person aged 55 or older)
Nonprofit	An organization must be able to provide evidence of 501(c)3 status to be categorized as "Nonprofit."
On-Line Registrations	On-Line Registrations are assessed a service fee by Active Network, Inc. These fees, established by Active Network, Inc. are passed to the users of the online registration system.
Organized Recreational Swim Group	A pre-planned group of 10 or more participants contracted a minimum of 4 times per season during recreational swim hours.
Pass Sales (expiration)	All "pass sales" are good for one year from the date of issue.
Play More Card	Those to whom a Play More Card is issued receive a 10% discount on specific programs and other benefits offered by DPR. Participants must purchase a Play More Card in order to qualify to purchase punch passes.
POS	Point of Sale - how fee will be processed in CLASS software system. Typically includes programs where registration and attendance tracking are not required; or may include an item which we sell at cost to the public.

Program Fees: Per Person	All program fees listed are "per participant" unless otherwise indicated.
Reduced Rates (Discounts)	Only one type of discount may be utilized for each registration.
Rental	All bookings made within one application from an organization.
Security - Armory & Spruce Pine Lodge	Security for all Events: Durham Police Department (DPD) will review Event Plans and assign security officers if necessary. Officers will be assigned at the approved hourly rate assigned by the DPD. Renter is responsible for paying the assessed security fee directly to the officers at the start time of the rental.
Senior	Person aged 55 or older
Teen	Person aged 13-18 (at least 13 years of age and under the age of 19)
Wellness	Category includes aerobics, aquatic lap/recreational swim, exercise equipment, fitness admissions, open gym, and access to the fitness centers.
West Point on the Eno	Additional Fees will be assessed for security officers, toilet facilities, traffic control resources, added park staff, etc.
Youth	Person aged 0-12 (under the age of 13).

APPENDIX A

Sliding Fee Scale (2017)

	90 % Discount	*60 % Discount*		*30 % Discount*		*0 % Discount*	
Family Size	*10% Pay*	*40% Pay*		*70% Pay*		*100% (Full) Pay*	
1	$12,060	$12,061	$18,090	$18,091	$27,137	$27,138	and up
2	$16,240	$16,241	$24,360	$24,361	$36,542	$36,543	and up
3	$20,420	$20,421	$30,630	$30,631	$45,947	$45,948	and up
4	$24,600	$24,601	$36,900	$36,901	$55,352	$55,353	and up
5	$28,780	$28,781	$43,170	$43,171	$64,757	$64,758	and up
6	$32,960	$32,961	$49,440	$49,441	$74,162	$74,163	and up
7	$37,140	$37,141	$55,710	$55,711	$83,567	$83,568	and up
8	$41,320	$41,321	$61,980	$61,981	$92,972	$92,973	and up
9	$45,500	$45,501	$68,250	$68,251	$102,377	$102,378	and up
10	$49,680	$49,681	$74,520	$74,521	$111,782	$111,783	and up
11	$53,860	$53,861	$80,790	$80,791	$121,187	$121,188	and up
12	$58,040	$58,041	$87,060	$87,061	$130,592	$130,593	and up

In the 90% discount column, the dollar amount indicates maximum income.

This Sliding Fee scale is available for DPR's Care Program participants (After School, Summer Camp, Intersession, and Fun Days). This scale is based on the U. S. Federal Poverty Guidelines issued each year in the Federal Register by the Department of Health and Human Services (HHS). The scale is based on number of persons in household and household income. The Director of Parks and Recreation has the authority to update this Sliding Fee Scale, on an annual basis, based on any changes that are made to the U. S. Federal Poverty Guidelines, including the authority to change the dates in the scale and in the notes to the scale, in order to accurately reflect the applicable facts.

This is the current scale in effect for June 1, 2017 based on the Guidelines published January 31, 2017.

PLAY MORE CARD INFORMATION

Durham Parks and Recreation has an exciting benefits program for our program participants! Participants may purchase a "DPR Play More Card" which will give them a discounted rate on all programs, in addition to other benefits listed below. The cards are renewable annually. You will see that the price listings on programs have changed - each listing now has four prices: two prices for City Residents (with and without a Play More Card), and two prices for Non-City Residents (with and without a Play More Card). Play More cards are currently available at the DPR Administrative Office, I.R. Holmes, Sr. Recreation Center and Edison Johnson Recreation and Aquatic Center. Play More Cards will be available at more sites throughout the fall. Please check our website at www.dpr-playmore.org for an
updated listing. Questions? Call (919) 560-4355 or e-mail dprinfo@durhamnc.gov.

This card and associated benefits will be offered to our participants at a minimal cost as follows:

Play More Card Fee Structure

Individual: $20 Residents; $25 Non-Residents

Benefits apply to 1 adult plus all youth under the age of 13 residing in the same dwelling unit

2 Party: $35 Residents; $45 Non-Residents

Benefits apply to 2 adults plus all youth under the age of 13 residing in the same dwelling unit

Teen: $10 Residents; $12 Non-Residents

Benefits apply to individual teen (ages 13—17)

Replacement card: $5

**No discounts are applicable to the price of the Play More Card.

IMPORTANT INFORMATION

The DPR Play More Card provides a 10% discount for all program fees with the following exceptions:

Does not apply to Athletic League (group rates), Adventure Program (Challenge Course Rates), Swim Meet fees, and Special Event fees (vendors, floats, etc.).

Does not apply to items purchased (such as pocket masks), late fees, or rental fees.

The Play More card is required for participants to purchase volume discount Pass sales for many "drop in" programs.

Play More Card Benefits

Participants receive a 10% discounted fee rate for all recreation programs (excludes rental facilities);

Play More Card holders may purchase volume punch passes for "drop-in" programs: racquetball, swimming, wellness/open gym, mature adult dance, aerobics, water exercise, etc.
Provides ease of access to pass programs through a scanned entry (rather than waiting for account check-in by Attendant)
Early Registration for a few designated DPR programs;
Can be used as photo identification for quick entry into DPR facilities.
Free Admission to selected workshops as determined by the Director of Parks and Recreation (example: Environmental workshops lasting less than 3 hours).
Free Admission to Arthritis Foundation Exercise courses.
Free Admission for Mature Adults to attend Mature Adult Chair Exercise
Free Admission for Mature Adults for identified "local trip" activities (both within the corporate limits of the City and lasting less than 5 hours)

Source: ordinance 15115, Onbase PR 11903, adopted 5-18-2017.

Chapter 12 - Primary implementing department: Police Department

Part 12-101 (Fingerprint cards and photographs).

A charge for requesting a photograph or for providing a copy of a photograph by any member of the Durham Police Department shall be $10.00. No charge shall be made to law enforcement agencies or to the City of Durham.

A charge for providing up to three fingerprint cards at the request of any individual or public or private organization shall be $10.00. No charge shall be made to law enforcement agencies or to the City of Durham.

Source: resolution 8680, adopted 6-19-2000

Part 12-102 (Immobilization).

Pursuant to code section 66-375(b), the immobilization fee is $50.00.

Source: For historical reference, see 1982 city code section 22-204(b).

Part 12-103 (Precious metal dealers).

Nature	*When required*	*Amount*
Dealer permit	initial and annual	$180.00
Certificate of compliance to employee	initial	10.00
Certificate of compliance to employee	annual renewal	3.00
Special occasion permit application filing	initial	180.00
Special occasion permit application	annual renewal	180.00

Editor's note: This Part 12-103 was not placed in the Fee Schedule by the City Council. It is included in the Fee Schedule only as a convenience. These fees are set by N.C.G.S. section 66-165.

Part 12-104 (Police-Initiated Nonconsensual Tow Fees).

Pursuant to City Code Section 50-391, the following maximum charges are allowed and apply to police- initiated (Durham rotation wrecker request) nonconsensual tows in the City.

(a) Towing of vehicles as a result of Durham rotation wrecker request:

Non-collision tows: maximum charge of $125.00

Basic collision tows (includes use of dollies and basic winching): maximum charge of $225.00

Collision tows requiring recovery services (recovery services are for over-turned vehicles, fatality crashes, use of snatch blocks, or the removal of a vehicle from an embankment or beyond the roadway and its shoulder/right-of-way): maximum charge $325.00

(b) Release of vehicle or retrieval of personal property outside of the tow truck operator's regular business hours:

Maximum charge of $50.00

(c) Storage of vehicle:

A heavy-duty vehicle is a vehicle whose gross vehicle weight (GVW) is equal to or greater than 10,000 pounds.

$35.00 charge for non-heavy-duty vehicle will apply after 8:00 a.m. the following day, then $35.00 each day or portion of a day thereafter

$75.00 charge for each heavy-duty vehicular unit (1 tractor = 1 vehicular unit and 1 trailer = 1 vehicular unit) will apply after 8:00 a.m. the following day, then $75.00 each day or portion of a day thereafter

(d) DMV filing fee:

Maximum charge of $75.00

This charge may be made only if the tow truck operator reports to the Division of Motor Vehicles that the vehicle is unclaimed. In order to make this charge, the tow truck operator must on or after the tenth day of storage complete DMV form #ENF-260 or a revised form if any is issued by the DMV and deliver the form to the DMV. A copy of the completed form shall remain on file at the tow truck operator's business for review.

(e) Administrative Fee:

Maximum charge of $20.00

(f) Heavy-duty tow fee:

A heavy-duty vehicle is a vehicle whose gross vehicle weight (GVW) is equal to or greater than 10,000 pounds.

The maximum charges in this part do not apply to the towing of a heavy-duty vehicle. However, sections (b), (c), (d) and (e) of this part (release of vehicle/retrieval of property, storage of vehicle, DMV filing fee, and administrative fee) apply to heavy-duty vehicles.

Source: ordinance 15780, Onbase PR 14467, adopted 2-15-2021.

Part 12-105 (Reserved).

Repealed by ordinance 14829, Onbase PR 10614, adopted 8-17-2015.

Part 12-106 (Wrecker Dispatch Fee).

Pursuant to city code section 50-391(f), a tow truck operator on the city's rotation wrecker list shall pay $10.00 per vehicle towed.

Source: ordinance 14379, Onbase PR 8918, adopted 12-17-2012.

Chapter 13A - Reserved.

Chapter 13B - Primary implementing department: Public Works Department

Pursuant to city code section 62-52, 62-53, 62-82, and 70-96, the following schedule of fees applies to permits required by city code.

Part 13B-101 (Water meter testing).

Pursuant to city code section 70-9(c), the testing charge is $50.00.

Salvageable hardware credit. Pursuant to city code section 70-7(c), the charge to be credited by the city for salvageable hardware is $10.00.

Source: ordinance 14446, Onbase PR 9160, adopted 5-6-2013.

Source: For historical reference, see 1982 city code section 23-9(c) and section 23-7(c).

Part 13B-102 (Reserved).

Part 13B-103 (Interest on assessments).

Editor's note: The interest rate on assessments for public improvements is set by the City Council for each assessment roll in light of Resolution 9753, which provides for a recommended interest rate to be the lesser of (i) the Prime Interest Rate published in The Wall Street Journal on the fourth Friday of May of each year, plus 4.25%, or (ii) 9%. The new interest rate according to this formula is effective for the July 1—June 30 that follows the

fourth Friday in May. Resolution 9753 is Resolution Stating City Council's Intention to Base Special Assessment Interest Rates on the Prime Rate, adopted by City Council on 2-21-2011, at Onbase PR 7581.

Part 13B-104 (Permits for inspections of utility installations in public rights-of-way).

All private utility installations in the public right-of-way, immediately adjacent to right-of-way, or future public right-of-way shall be permitted and fees, if applicable, shall be charged to offset the costs of the City's program to track, review, and inspect such work. The charges below shall apply to such permits, if applicable. Permits shall be valid for 120 days from the date of issuance. Each permit shall cover work to be performed in a defined contiguous geographic area.

A. (Underground installations).

1. For permits to install 5,280 linear feet of infrastructure or less, the following fees shall apply:

Tiered Schedule (in linear feet of installation)	*Fee Structure*
200 feet or less	$50.00
Over 200 feet, up to 1,000 feet	120.00
1,000 feet, up to 5,000 feet	460.00
Over 5,000 feet, but less than 5,280 feet, calculate per above rates	Additive for above rates (ex. 5,150 lf = $510.00)

2. For permits to install greater than 5,280 linear feet of infrastructure, the following fee schedule shall apply:

Base Rate	*Linear Foot Charge*
$150.00	$0.20

3. The fees in sections 1 and 2 above shall not be charged against the following categories of service providers:

   a. Natural gas providers

   b. Telecommunications services providers

   c. Video programming providers

   d. Electricity providers

   Penalties will however be assessed against any entity that performs work in the right-of-way without a permit under conditions that do not constitute a documented emergency as determined in the sole discretion of the Public Works Director or the Public Works Director's Designee, in accordance with Fee Schedule Part__*.

B. (Aboveground installations).

1. For aboveground installations such as poles, hand holes, pedestals, and single services, but not including City street lights, the following fees shall apply:

Aboveground Installations	*Fee Structure*
Pole, hand hole, pedestal, single service (each)	$50.00

2. The fees in sections 1 above shall not be charged against the following categories of service providers:

   a. Natural gas providers

   b. Telecommunications services providers

   c. Video programming providers

   d. Electricity providers

   Penalties will however be assessed against any entity that performs work in the right-of-way without a permit under conditions that do not constitute a documented emergency as determined in the sole discretion of the Public Works Director or the Public Works Director's Designee, in accordance with Fee Schedule Part ___*.

C. (Small Wireless Facilities).

1. For small wireless facilities the following fees shall apply

Small Wireless Facilities	*Fee Structure*
Per facility up to five facilities	$100.00
Each additional facility	50.00

D. (Re-Inspection fees).

1. Re-Inspection Fees for permits regardless of size - where additional inspections are required as a result of non-compliant work discovered during the initial inspection, or for any other reason, a Re-Inspection Fee shall be applied to each location of such inspections performed beyond the initial inspection of any work, i.e. possibly generating multiple fees for the same permit:

Type of Fee	*Fee*
Re-inspection	$325.00

2. The fees in sections 1 above shall not be charged against the following categories of service providers:

   a. Natural gas providers

   b. Telecommunications services providers

   c. Video programming providers

   d. Electricity providers

   Penalties will however be assessed against any entity that performs work in the right-of-way without a permit under conditions that do not constitute a documented emergency as determined in the sole discretion of the Public Works Director or the Public Works Director's Designee, in accordance with Fee Schedule Part ___*.

Editor's note: In accordance with the Fee Schedule's style, the editor removed several dollar signs and changed some of the fonts. The editor made no changes to the words or the punctuation.

Editor's note: Ordinance 14021 labeled another fee as Part 13B-104, but because Part 13B-104 was taken (by ordinance 14011), the fee under Ordinance 14021 has been assigned Part 13B-111.

Source: ordinance 15256, Onbase PR 12304, adopted 2-5-2018.

* Editor's note: The editor has effaced this cross reference. For more information, consult the Public Works Department.

Part 13B-105 (Public Works re-inspection fee).

A fee for each re-inspection of $100 is charged as follows:

(1) All inspection visits starting with the third inspection for single inspection driveways, street cuts, sidewalks, cow horn irrigation or other single permit one time inspections.

(2) All inspection visits starting with the third inspection for final right-of-way inspections performed by Public Works on building permits or any Land Office Development (LDO) related inspections.

Source: ordinance 14020, Onbase PR 7146, adopted 6-21-2010.

Part 13B-106 (Will Serve Permit, Due Diligence Property Information, Building Permit, Construction drawing review, As-Built Review, CCTV Review, Construction Security Management).

Note: All items in this section shall be charged the fees listed below plus a 4% technology surcharge fee.

Will Serve Permit	$500.00
Due Diligence Property Information	20.00
Public Works Residential Building Permit Review	400.00
Public Works Commercial Building Permit Review	500.00
Commercial construction drawing review - No Water/Sewer Permits. See note 1 below.	2,500.00
Commercial construction drawing - Water or Sewer Permits (includes apartment buildings). See note 1 below.	3,500.00
The fee is the sum of the two fees shown in the two rows to the right of this cell; the dollar amount in the upper row, which is a flat fee, plus the dollar amount in the lower row, which is per additional apartment building.	500.00
Construction drawing revision	1,000.00
Pump Station Review	20,000.00
Construction drawing field change	300.00

Subdivision (Single-Family or Townhome) construction drawing review. See note 1 below. The fee is the sum of the two fees shown in the two rows to the right of this cell; the dollar amount in the upper row, which is a flat fee, plus the dollar amount in the lower row, which is per lot.	4,500.00 plus 100.00 per lot
As-Built Review. See note 1 below.	500.00
CCTV Review (Storm and Sanitary Sewer only)	2.00 per foot
Construction Security Management. The fee is a percentage of the amount of construction security per bond issued ($250.00 minimum)	0.4%
Sewer Flow Monitoring	$1,200.00 per month for minimum of 3 months

Note 1: Base fee applies per phase of project plans (i.e., if a 3 phase project is submitted, the fee is 3 x the base fee plus lot fees if lot fees apply). Phasing any type of project after CD approval will result in a base fee charge per phase only.

Editor's note: Both the note that is above the table and Note 1 are shown as they were adopted by the city council.

Source: ordinance 15634, Onbase PR 14002, adopted 6-15-2020; ordinance 15829, Onbase 14727, adopted 6-21-2021; ordinance 16210, adopted 9-18-2023; ordinance 16522, adopted 6-16-2025.

Part 13B-107 (Development-related permits, agreements, and fire flow tests).

	Effective for all connections performed on or after 10-1-2017
Water extension permit	$450.00
Sewer extension permit	450.00
Extension agreement	500.00
Extension agreement (for each Single-Family residence)	100.00
License agreement	200.00
Fire flow test (public)	945.00
Fire flow test (private)	400.00

Source: ordinance 15634, Onbase PR 14002, adopted 6-15-2020; ordinance 15829, Onbase PR 14727, adopted 6-21-2021; ordinance 16347, adopted 6-17-2024.

Part 13B-108 (Assessment rates and frontage charges)

Street Paving Assessments:

Type of improvement	*Pay Period*	*Assessment Rate*
Curb, gutter and paving for existing city-maintained gravel streets (including any associated water, sewer or storm sewer utilities)	8 years	100% of Full Cost*
Curb, gutter and paving for existing city-maintained ribbon paved streets (including any associated water, sewer or storm sewer utilities)	8 years	100% of Full Cost*
Ribbon paving for existing city-maintained gravel streets (including any associated water, sewer or storm sewer utilities)	8 years	100% of Full Cost*

*Full Cost shall mean all costs associated with design, construction, inspection, rights-of-way and/or easement acquisition.

Sidewalk Assessment:

Type of improvement	*Pay Period*	*Assessment Rate*
Petitioned sidewalk inside of the Durham Bike+Walk plan	8 years	$35.00 a linear foot
Petitioned sidewalk outside of the Durham Bike+Walk plan	8 years	100% of Full Cost*

*Full Cost shall mean all costs associated with design, construction, inspection, rights-of-way and/or easement acquisition.

Water and Sewer Mains Only (not included in a street paving project)

Location	*Pay Period*	*Assessment Rate*
Property inside the city limits	8 years	75% of Full Cost*
Property outside the city limits	8 years	100% of Full Cost*

*Full Cost shall mean all costs associated with design, construction, inspection, rights-of-way and/or easement acquisition.

Water and Sewer Lateral Assessments:

Type of improvement	*Pay Period*	*Assessment Rate*
Property inside the city limits	8 years	100% of Full Cost*
Property outside the city limits	8 years	100% of Full Cost*

*Full Cost shall mean all costs associated with construction and inspection.

Frontage Charges:

Location	*Type*	*Rate perfrontfoot*
Property inside the city limits	Water	$27.00
	Sewer	50.00
Property outside the city limits	Water	29.50
	Sewer	56.00

Editor's note: Regarding certain frontage fees collected between July 1, 2018 and June 17, 2019, see city code section 70-17 and section 2 of ordinance 15484.

Source: ordinance 15815, Onbase PR 14686, adopted 6-7-2021

Part 13B-109 (Water and sewer engineering connections).

Existing water connections (setting meter)	*Effective for connections performed beginning 10-1-2017*
5/8" meter in existing box and service	$285.00
1" meter in existing box and service	420.00
1 ½" meter in existing box and service	656.00
2" compound meter	2,100.00
3" compound meter	2,625.00
4" meter	3,675.00
6" meter	10,500.00
8" meter	Atcost
10" meter	Atcost
12" meter	Atcost
Return visit if meter box not ready for setting	50.00
New water connections	*Effective for connections performed beginning 10-1-2023*
¾" service	$6,750.00
1" service	$6,750.00
	Effective for connections performed beginning 10-1-2021
Second, water-only service for irrigation purposes	$1,050

	Effective for connections performed beginning 10-1-2021
Purchase of water meter	actual cost
Relocation of 5/8"	429
Relocation of a 1" water meter	563
Lateral sewer connections	*Effective for connections performed beginning 10-1-2023*
4" sewer connection	$8,000.00

Source: ordinance 15129, Onbase PR 11923, adopted 6-19-2017 ordinance 15829, Onbase PR 14727, adopted 6-21-2021; ordinance 16210, adopted 9-18-2023.

Part 13B-110 (Copies of certain items).

Widening and property maps	
9" x 15"	$3.00
12" x 18"	3.00
18" x 24"	3.00
24" x 36" plan & profile	4.00
Block # map	25.00
Water or sewer base map (1" = 1,500')	
Full map	$50.00
½ base map	25.00
Aerial photographs	Per Part 10-101 of the Fee Schedule, Section 6, Burdensome
Water and sewer specifications	$10.00
Street design specifications	5.00
Street construction specifications	5.00
Storm drain manual	2.00

In case of conflict between this Part and Part 10-101, this Part controls.

Source: ordinance 14003, Onbase PR 7105, adopted 6-7-2010.

Part 13B-111 (Single-permit, one-time inspections not otherwise provided for).

All items in this section are charged the fees listed below plus a 4% technology surcharge fee.

For all driveways (connecting to Public Streets, Private Streets, Driveways, or Private Access and Common Areas - Whether proposed or existing), street cuts, sidewalks, cow horn irrigation or any other single permit one time inspection that does not have an established fee, the fee is $250.00 per inspection.

Re-inspection fees for the above permits in Part 13B-111 shall be $200.00.

Source: ordinance 15634, Onbase PR 14002, adopted 6-15-2020; ordinance 15829, Onbase PR 14727, adopted 6-21-2021; ordinance 16347, adopted 6-17-2024; ordinance 16522, adopted 6-16-2025.

Part 13B-112 (Payment-in-lieu for sidewalks).

The payment in-lieu for sidewalks is $925.00 per linear foot. This amount will be used when applying UDO Section 12.4.6 (Payment-In-Lieu).

Source: ordinance 14001, Onbase PR 7105, adopted 6-7-2010; ordinance 16347, adopted 6-17-2024.

Part 13B-113 (Curb, gutter, driveway, sidewalk, and wheelchair ramp construction; inspection of streets and water and sewer mains).

	Basis	
Driveway closure	per foot	$35.00
Curb cut (downspout)	each	60.00
Removal of curb only	per foot	10.00
Removal of curb & gutter	per foot	23.00
Driveway widening, up to 5'	each	520.00
Driveway widening, over 5'		actual cost
Construction of driveway entrance without drainage pipe		
3' radius: 12' width	$795.00	
3' radius: 15' width	990.00	
3' radius: 20' width	1310.00	
3' radius: 25' width	1635.00	
3' radius: 30' width	1950.00	
4' radius: 12' width	1060.00	
4' radius: 15' width	1320.00	
4' radius: 20' width	1750.00	
4' radius: 25' width	2175.00	
4' radius: 30' width	2600.00	
5' radius: 12' width	1325.00	
5' radius: 15' width	1650.00	
5' radius: 20' width	2185.00	
5' radius: 25' width	2725.00	
5' radius: 30' width	3250.00	
Sale and/or installation of concrete driveway pipe: this fee is in addition to any driveway entrance construction fee shown above in this Part.		
Install owner-furnished pipe	$36.00 per foot	
Install city-furnished pipe	actual cost of pipe plus $36.00 per foot	
Sidewalk construction or repair	*Basis*	
4" concrete sidewalk	per square yard	$30.00

Sidewalk construction or repair	*Basis*	
6" concrete sidewalk	per square yard	35.00
Wheelchair ramp (for residence)	each	300.00

Inspection of infrastructure for private and public projects that require City inspections by City Code Provisions

Infrastructure	*Per linear foot*
Street (Public and Private Construction)	$2.00
Driveways, Alleys (public or private), Private Access and Common Area (measured along centerline)	$2.00
Water main (Public or Private)	1.00
Sewer main (Public or Private)	1.00

Source: ordinance 14002, Onbase PR 7105, adopted 6-7-2010; ordinance 16522, adopted 6-16-2025.

Part 13B-114 (Interest rate on construction for water and sewer service and for stormwater drainage work).

The interest rate on installment payments for the construction of water and sewer service done pursuant to Charter Section 82 and for installment payments allowed by city code section 70-688 for the property owner share of stormwater drainage repair and improvements is the lesser of (i) the Prime Interest Rate published in The Wall Street Journal on the fourth Friday of May of each year, rounded to the nearest basis point, plus 4.25%, or (ii) 9%. The new interest rate set according to this formula is effective for the next fiscal year.

Installment payments are subject to the interest rate in effect during the fiscal year that the City Manager receives the completed petition for time payments. The date of receipt of the petition or application is set under procedures established by the City Manager.

The interest rate as determined by the two preceding paragraphs does not apply with respect to completed petitions received July 1, 2010 through June 30, 2011, which instead are subject to an interest rate of 7.5%.

The interest rate set under this Part for a particular property will remain in effect for that property, regardless of changes in interest rates that may occur in later fiscal years.

If a court of competent jurisdiction determines that an interest rate set lower than 9% pursuant to this Part is invalid or unenforceable, the applicable interest rate shall be 9% for the entire period that the lower interest would have applied if it had been valid and enforceable.

Source: ordinance 14831, Onbase PR 10584, adopted 8-3-2015.

Editor's note: Interest rate set according to the formula in this Part. This table also applies to Part 15-117 (Interest rate on capital facilities fees for water and sewer connections).

Table of Interest Rates

APPENDIX A

When announced	*Announced by*	*Fiscal year to which applies*	*Interest rate*
5-27-2011	Deputy Finance Director	2011-12	7.5%
5-25-2012	Deputy Finance Director	2012-13	7.5%
5-24-2013	Deputy Finance Director	2013-14	7.5%
5-23-2014	Deputy Finance Director	2014-15	7.5%

When announced	*Announced by*	*Fiscal year to which applies*	*Interest rate*
5-22-2015	Deputy Finance Director	2015-16	7.5%
5-31-2016	Deputy Finance Director	2016-17	7.75%
5-30-2017	Deputy Finance Director	2017-18	8.25%
5-25-2018	Deputy Finance Director	2018-19	9.00%
5-24-2019	Deputy Finance Director	2019-20	9.00%
5-22-2020	Deputy Finance Director	2020-21	7.5%

Part 13B-115 (Utility surcharge for Lick Creek Basin 25 or utility basins that discharge into Basin 25).

Any project that extends utilities through a City of Durham extension agreement shall be subject to a utility basin surcharge fee as stated below. Exceptions to this charge shall be defined in the Basin 25 Utility Contract Reimbursement Agreement.

For detached single-family dwellings (including townhomes and condo style townhomes), per unit, $2,500.00

For all uses other than detached single-family dwellings (as stated above), such as multifamily (condominium apartments, apartments, mixed use) and nonresidential development, per gallon per day of permitted wastewater flow (as defined by the sewer design flow rates found in the North Carolina Administrative Code Section 15A NCAC 02H.0200 - Waste Not Discharged to Surface Waters), $11.57

Source: ordinance 14331, Onbase PR 8785, adopted 10-15-2012.

Part 13B-116 (Processing fees for submission of application for consideration of proposed alternate materials, design, or methods)

The fees associated with applications for consideration of proposed alternate materials, design, or methods pursuant to city code section 1-16 shall be paid to the City department processing the application and shall be as follows:

1. Tier 1 Alternative application fee - $1,500.00
2. Tier 2 Alternative application fee - $4,000.00

Tier assignment will be determined by staff based upon the tier definitions set forth in the Reference Guide for Development.

Sources: ordinance 15615, Onbase PR 13913, adopted 5-18-2020.

Chapter 13C - Primary implementing department: Public Works, through Stormwater Services

Part 13C-101 (Stormwater Permit and surety fees).

Note: The stormwater permit fee and the level spreader permit fee in this section shall be charged as listed below plus a 4% technology surcharge fee.

The Stormwater permit fee is $3,700.00 for each BMP except level spreaders. The level spreader BMP permit fee is $800.00.

The Stormwater surety fee is 25% of construction cost.

Editor's note: The note is shown as it was adopted by the city council.

Source: resolution 9476, Onbase PR 4112, adopted 6-18-2007; ordinance 15304, Onbase 12558, adopted 6-18-2018.

Editor's Note: Resolution 9649, Onbase PR 6276, adopted 6-15-2009, has been superseded.

Part 13C-102 (Stormwater services charges on developed land)

Service charges authorized by city code section 70-652 on developed land are:

(1) Residential units: $5.70 per month for residential units with less than 2,000 square feet of impervious surface; $11.80 per month for residential units with 2,000 square feet or more of impervious surface but less than 4,000 square feet of impervious surface; and $23.64 per month for residential units with 4,000 square feet or more of impervious surface.

(2) Residential customers are billed on an annual basis, unless a request for a billing schedule change from the property owner is received and approved by the Public Works Stormwater Billing Services Unit.

(3) Other residential and nonresidential land is charged $11.80 per month for each equivalent residential unit (ERU), which is defined in city code section 70-631. ERUs of less than 0.5 shall be rounded down and those of 0.5 or greater shall be rounded up to the nearest whole number. There is no service charge for non-residential property that contains less than 0.5 ERU of impervious surface.

Source: ordinance 15937, Onbase PR 15402, adopted 5-16-2022; ordinance 16149, adopted 5-15-2023; ordinance 16311, adopted 5-6-2024.

Part 13C-103 (Stormwater service charges - miscellaneous).

Fees for miscellaneous stormwater services charges are:

closed circuit television - location of sanitary sewer laterals	$200.00
sewer lateral connections, 6" sewer connection, adding a manhole	2,200.00

Source: ordinance 13992, Onbase PR 7053, adopted 5-17-2010.

Part 13C-104 (Stormwater linear-foot inspection).

A charge for inspection of stormwater lines is charged as follows:

(1) $1.00 per linear foot of pipe.

(2) $0.50 per linear foot of open channel conveyances.

Source: ordinance 14019, Onbase PR 7146, adopted 6-21-2010.

Part 13C-105 (Animal collection and disposal).

Weekly collection and disposal of animals for frequent users (veterinary clinics, etc.)	Per month	$50.00
Infrequent Users	Per month	10.00

Part 13C-106 (Street Sweeping and Flushing).

Street sweeping call-out	Per hour, leaving shop until return	$60.00
Street flushing	Per hour, leaving shop until return, and water rate for that location	55.00 pluscharge for water used

Source: ordinance 13996, Onbase PR 7105, adopted 6-7-2010.

Chapter 13D - Reserved

Chapter 13E - Primary implementing department: Public Works, through Street Maintenance

Reserved.

Chapter 14 - Primary implementing department: Solid Waste Management

Part 14-101 (Municipal Solid Waste at Waste Recycling and Disposal Center).

Transfer Station

1. Municipal solid waste delivered by commercial vehicles.	Per ton	$65.00
2. Comingled recyclable material delivered by account holders authorized to deliver recycling.	By contract only	variable

Composting Facility

3. Organic waste delivered by commercial vehicles.	Per ton		$40.00
4. Yard waste — flat rates for non-commercial vehicles.	When brought in a ¾ ton pick-up truck. The charge is by volume.	Clearly below top of bed	5.00
		Approximately even with top of bed	8.00
		Above top of bed	11.00
	When brought in a minivan, station wagon, or small SUV, the charge is per vehicle.		5.00
	When brought in a full size van, or full size SUV, the charge is per vehicle.		8.00
	When brought in a passenger car, the charge is per vehicle.		2.00
*Contaminated organic loads will be charged as municipal solid waste according to the type of vehicle (see rows 1 and 5 for applicable rates)			

Convenience Center

5. Municipal solid waste — flat rates for non-commercial vehicles.	When brought in a ¾ ton pick-up truck, the charge is by volume.	Clearly below top of bed	$10.00
		Approximately even with top	15.00
		Above top of bed	20.00
	When brought in a minivan, station wagon, or small SUV, the charge is per vehicle.		10.00
	When brought in a full size van, or full size SUV, the charge is per vehicle.		15.00
	When brought in a passenger car, the charge is per vehicle.		5.00

6. Tires	Tires without N.C. State certification	Per ton	100.00
	Tires with N.C. State certification	Per load	Free
	Surcharge for tires mixed with other waste	Per tire	6.00
	Disposal of individual tires by someone other than a tire collector, tire processor, or tire hauler.	Five or fewer	Free
7. Compostable food waste delivered by non-commercial vehicles.	By special arrangement only		variable
8. Recyclable materials delivered by non-commercial vehicles in residential quantities are to be placed in the specifically labeled area.	Commingled recycling (bottles, cans, jars, and paper) Cardboard White goods (large appliances) Scrap metal Motor oil Anti-freeze Cooking oil Textiles		Free
9. Household hazardous waste	Paint, pesticides, solvents, cleaning chemicals, automotive fluids, fluorescent lights and other potentially hazardous materials from residential sources. No commercial, medical, radioactive, or explosive materials are permitted.		Free

Compliance

10. Non-compliant loading	Additional fee for unsecured or uncovered load (applied regardless of whether refuse actually drops or blows from vehicle)	Per load	$20.00
	Additional fee for loads delivered to the transfer station that contain material or items that cannot be lawfully disposed of in a landfill	Per load	2 times charge

Source: ordinance 15466, Onbase PR 13174, adopted 5-20-2019; ordinance 15828, Onbase PR 14727, adopted 6-21-2021; ordinance 15960, Onbase PR 15501, adopted 6-21-2022; city code section 58-152; N.C.G.S. section 130A-309.81(b); ordinance 15960, adopted 6-21-2022; ordinance 16171, adopted 6-20-2023; ordinance 16346, adopted 6-17-2024; ordinance16521, adopted 6-16-2025.

Part 14-102 (Bulky items collection).

Bulky items	Per collection of more than 5 items: Up to ½ trailer load ½ trailer load to a full trailer load	80.00 160.00

Bulky brush / yard cleanup	Per 3 cubic yard scoop or 5 biodegradable bags	20.00

Source: ordinance 15130, Onbase PR 11923, adopted 6-19-2017.

Part 14-103 (Reserved).

Source: ordinance 15960, Onbase PR 15501, adopted 6-21-2022.

Part 14-104 (Reserved).

Source: repealed by ordinance 15466, Onbase PR 13174, adopted 5-20-2019.

Part 14-105 (Reserved).

Source: repealed by ordinance 15466, Onbase PR 13174, adopted 5-20-2019.

Part 14-106 (Cart charges and service fees).

Household trash cart and service	First cart	Rent per cart per month	Free
	Up to 3 additional carts	Rent per cart per month	$1.50
Household recycle cart and service	Up to 4 carts	Rent per cart per month	Free
Household yard waste cart	First cart	Fee per month	7.50
	Up to 3 additional carts	Rent per cart per month	1.50

Yard waste is an optional service and the fees above are designed to cover the full costs of providing the service. Trash and recycling costs are primarily covered through property taxes, other than the costs of extra carts shown above.

Source: ordinance 15130, Onbase PR 11923, adopted 6-19-2017.

Part 14-107 (Reserved).

Source: ordinance 15130, Onbase PR 11923, adopted 6-19-2017.

Part 14-108 (Reserved).

Source: ordinance 13996, Onbase PR 7105, adopted 6-7-2010.

Part 14-109 (Reserved).

Source: ordinance 13996, Onbase PR 7105, adopted 6-7-2010

Part 14-110 (Reserved).

Source: repealed by ordinance 15495, Onbase 13291, adopted 6-17-2019.

Part 14-111 (Remedial fees for violations).

Remedial fee for violation of any provision of Chapter 58 of the city code	First fee	$50.00
	Second fee within the same fiscal year as the first fee	50.00
	Third fee and thereafter within the same fiscal year as the first and second fees. Instead of charging any particular fee, the City Manager may proceed with a court action for relief.	$50.00

1. Interest on any unpaid fee shall accrue at the rate of 1% per month and shall be incorporated into that fee.

2. Section 58-8(a) of the city code authorizes the City Council to establish remedial fees for violations of chapter 58 and rules and regulations established under section 58-2. Such fees are not intended to be punitive in nature, nor are they intended to deter noncompliance with the provisions of chapter 58. They are instead intended to defray damages accruing to City taxpayers resulting from violations of chapter 58 and rules and regulations established thereunder, specifically administrative and operational resources expended by the Department of Solid Waste Management on education of, and notification to, violators prior to fee issuance, and on assistance to citizens injured by violations.

Source: ordinance 15130, Onbase PR 11923, adopted 6-19-2017.

Part 14-112. (Interest).

The provisions of Part 1-101 (Interest applicable to certain delinquent debt) apply to all landfill fees authorized by this Fee Schedule.

Source: ordinance 15130, Onbase PR 11923, adopted 6-19-2017.

Part 14-113 (Definitions).

In this chapter, these definitions apply:

1. "Commercial vehicle" means a "commercial motor vehicle" as defined by N.C.G.S. 20-4.01(3d) as amended, a dump truck, a vehicle with one or more trailers, a vehicle modified to increase the volume it can hold, any motor vehicle with tandem axles, a vehicle driven for commercial purposes, and any motor vehicle that is not defined as a non-commercial vehicle in these definitions.

2. "Non-commercial vehicle" means any of the following motor vehicles that (a) is not used for commercial purposes and (b) that has not been modified to increase the volume it can hold: ¾-ton or smaller pickup trucks; minivans; vans; station wagons; SUVs; and passenger cars.

3. "Motor vehicle" means a "motor vehicle" as defined by N.C.G.S. 20-4.01(23) as amended.

Source: ordinance 15466, Onbase PR 13174, adopted 5-20-2019.

As to Chapter 14 generally—

Source: ordinance 13714, Onbase PR 5535, adopted 10-20-2008; ordinance 15130, Onbase PR 11923, adopted 6-19-2017.

Chapter 15 - Primary implementing department: Water Management

Part 15-101 (Deposits for water service).

Pursuant to city code section 70-49, the following charges apply.

The deposit for opening an account as provided in 70-49(a)(1) shall be $100.00. Pursuant to city code section 70-49(a)(2), the deposit after each disconnection for nonpayment shall be $50.00, not to exceed a total deposit amount per account of $200.00. The schedule of deposits under section 70-49(a)(3) shall be:

Meter size in inches	*Deposit*
5/8	$100.00
1	150.00
1 ½	200.00
2	300.00
3	400.00
4	500.00
6	600.00
8	1,000.00
10	1,500.00
Over 10	2,000.00

Source: ordinance 14944, Onbase PR 11167, adopted 6-20-2016.

Source: For historical reference, see 1982 city code section 23-40.

Part 15-102 (Service initiation fee) Pursuant to city code section 70-64, the service initiation fee is $50.00.

Source: ordinance 14446, Onbase PR 9160, adopted 5-6-2013.

Source: For historical reference, see 1982 city code section 23-40.2.

Part 15-103 (Capital facilities fees)

(a) (New connections to water and/or sewer system) Pursuant to city code section 70-50(a), the capital facility fees for all new connections to the city's water and/or sewer system shall be:

Meter Size	*Water Capacity Needed (gallons per day)*	*Sewer Capacity Needed (gallons per day)*	*Water Fee*	*Sewer Fee - Combined*	*Sewer Fee - Collection*	*Sewer Fee -Treatment*
5/8"	321	276	$2,591	$3,028	$1,013	$2,015
1"	801	690	$6,478	$7,570	$2,533	$5,038
1-1/2"	1,603	1,380	$12,956	$15,140	$5,065	$10,075
2"	2,564	2,209	$20,729	$24,224	$8,104	$16,120
3"	4,808	4,141	$41,458	$48,449	$16,208	$32,240
4"	8,014	6,902	$64,778	$75,701	$25,325	$50,375
6"	16,028	13,804	$129,555	$151,402	$50,651	$100,751
8"	25,645	22,086	$207,288	$242,243	$81,042	$161,202
1O"	38,467	33,128	$544,132	$635,888	$212,734	$423,154
12"	84,948	73,159	$686,642	$802,430	$268,450	$533,980

(a) Capital Facility Fees for Sewer Collection only are charged to new connections in the Triangle Basin Served by City Lines. New connections made to the City sewer system outside Triangle Basin charged for Treatment and Collection

(b) (New sewer connections in the Southeast Service Area) This table represents service area fees applied to new sewer connections in the Southeast Service Area:

	Fee
single-family residence	$4,473.00
multi-family and non-residential, rate per gallon of average daily flow	12.43

The fees stated in Part 15-103(c) shall increase 5% compounding annually effective July 1 of each year, with the first annual increase occurring on July 1, 2016. The rates shall be rounded up to the nearest cent with each increase.

(d) (New water connections in the Farrington Road Waterline Service Area).

This table represents service area fees applied to new water connections in the Farrington Road Waterline Service Area:

	Fee
residential unit	$377.11
Non-residential unit, rate per gallon of average daily flow	1.05

The fees stated in Part 15-103(d) shall increase 5%, compounding annually effective July 1 of each year, with the first annual increase occurring on July 1, 2018. The rates shall be rounded up to the nearest cent with each increase.

Source: ordinance 15118, Onbase PR 11904, adopted 6-5-2017; ordinance 15348, Onbase PR 12601, adopted 6-18-2018; ordinance 16221, adopted 10-2-2023; ordinance 16523, adopted 6-16-2025.

For historical reference, see 1982 city code section 23-40.1.

APPENDIX A

Part 15-104 (Rates for water service, sewer service, and water and sewer service).

Pursuant to city code section 70-51(a), the schedule of rates for water service only, water service only for irrigation/outdoor use, sewer service only, and water and sewer service is:

(a) (1) WATER RATES

Monthly Use (CCF = hundred cubic foot)	*Inside City Water Rate per CCF*	*Outside City Water Rate per CCF*
Tier 1 0—2 CCF	$2.66	$5.32
Tier 2 > 2—5 CCF	4.01	8.02
Tier 3 > 5—8 CCF	4.40	8.80
Tier 4 >8—15 CCF	5.73	11.46
Tier 5 greater than 15 CCF	8.59	17.18
Irrigation/Outdoor Use	8.59	17.18

(2) Non-Residential accounts are billed at the Tier 3 fixed commodity charge per 100 cubic feet of water use. Irrigation/Outdoor Use rate applies to all metered Irrigation/Outdoor use.

(3) Service Charge. There is a service charge applied monthly, in addition to the rates prescribed in subsections (a) (1) and (a) (2) above, as follows:

Meter Size	*Inside City Water*	*Outside City Water*
5/8"	$10.25	$20.50
1"	20.92	41.84
1½"	38.72	77.44
2"	60.07	120.14
3"	110.20	220.40
4"	188.27	376.54
6"	391.29	782.58
8"	563.08	1,126.16
Over 8"	1,035.18	2,070.36

(b) SEWER RATES

(1) Sewer Consumption Rates per CCF

BASIN	*Inside City Limits*	*Outside City Limits*
Other than Triangle Basin	$5.71	$11.42
Triangle Basin Served by City Sewer Lines	**	**

BASIN	*Inside City Limits*	*Outside City Limits*
Triangle Basin Served by County Sewer Lines	**	**

** Per the adopted Durham County Utility Fee Schedule for FY 2025-2026

(2) Service Charge. There is a service charge applied monthly, in addition to the rates prescribed in subsection (b) (1) above, as follows:

Meter Size	*Served by City Sewer Lines INSIDE CITY LIMITS*	*Served by City Sewer Lines OUTSIDE CITY LIMITS*	*Triangle Basin Served by County Sewer Lines* **
5/8"	$11.29	$22.58	
1"	23.22	46.44	
1 ½"	43.10	86.20	
2"	67.18	134.36	
3"	130.58	261.16	
4"	211.57	423.14	
6"	439.87	879.74	
8"	639.58	1,279.16	
8"+	1,156.53	2,313.06	

** Per the adopted Durham County Utility Fee Schedule for FY 2025-2026

(3) Fixed Consumption Charge for Sewer Only Residential Inside City Limits (other than Triangle Basin served by County Lines). Fixed consumption charges for sewer only are $51.39 based on an average discharge of 900 cubic feet per month per unit. Households with fewer than four persons may qualify for the fixed rate of $39.97 based on 700 cubic feet (for three persons) or the fixed rate of $28.55 based on 500 cubic feet (for one or two persons) or $0.00 based on vacant households (service charges in the table above, column 2, apply unless service has been disconnected).

(4) Fixed Consumption Charge for Sewer Only Residential Outside City Limits (other than Triangle Basin served by County Lines). Fixed consumption charges for sewer are $102.78 (based on an average discharge of 900 cubic feet per month per unit). Households with fewer than four persons may qualify for the fixed rate of $79.94 based on 700 cubic feet (for three persons) or the fixed rate of $57.10 based on 500 cubic feet (for one or two persons) or $0.00 based on vacant households (service charges in the table above, column 3, apply unless service has been disconnected).

(5) Fixed Consumption Charge for Sewer Only Residential Triangle Basin served by County Lines). Such charges billed per the adopted Durham County Utility Fee Schedule.

Source: ordinance 15804, Onbase PR 14601, adopted 5-3-2021; ordinance 15933, Onbase 15399, adopted 5-16-2022; ordinance 16141, adopted 5-15-2023; ordinance 16307, adopted 5-6-2024; ordinance 16498, adopted 5-5-2025.

Source: For historical reference, see 1982 city code section 23-41.

Part 15-105 (Disposal of domestic septage).

Pursuant to city code section 70-52(a), the fee for disposal of domestic septage at City water reclamation facilities shall be $144.00 per load. For purposes of this fee, a "load" is 1,600 gallons or any fraction thereof.

Source: ordinance 14023, Onbase PR 7146, adopted 6-21-2010; ordinance 16348, adopted 6-17-2024.

Part 15-106 (Surcharge for use of sewers)

Sewer Use Fees are described in Division 3 Fees Sections 70-241 and 70-243 of the Sewer Use Ordinance.

Conventional Pollutant Surchani:es	
(Discharges with concentrations greater than 250 mg/L)	
BOD (per 1000 lbs)	$210.00
TSS (per 1000 lbs)	$90.00

Sewer Use Fees are described in Division 3 Fees Sections 70-241 and 70-243 of the Sewer Use Ordinance.

Monitoring / Analytical Fees	
Sampling	$110
Laboratory Analyses (w/sampling)	
BOD and TSS (per event)	$125
BOD, TSS and O&G (per event)	$140
BOD, TSS and 8 metals (per event)	$213
BOD, TSS 8 metals and Fluoride (per event)	$225
8 metals (per event)	$198
8 metals and fluoride (per event)	$210

Source: ordinance 15161, Onbase PR 12013, adopted 8-7-2017; ordinance 16523, adopted 6-16-2025.

Source: For historical reference, see 1982 city code section 23-43.

Part 15-107 (Monitoring charge; testing charges).

Pursuant to city code section 70-53(d), the monitoring charge shall be $55.00. A charge shall be made for each type of test according to the following schedule per sample obtained and analyzed:

BOD	$10.00
SS	5.00
Oil and grease	15.00

Fluoride	12.00
Metals	11.00

Source: For historical reference, see 1982 city code section 23-43.

Part 15-108 (Location visits).

Pursuant to city code section 70-57(g), the service visit fee to defray the city's cost of making a visit to the location of the customer's service is $25.00.

Source: ordinance 14974, Onbase PR 11050, adopted 6-20-2016.

Source: For historical reference, see 1982 city code section 23-47(b) and section 23-47(g).

Part 15-109 (Extraction and restoration).

Pursuant to city code section 70-57(c), the service charge for an extraction is $50.00, and the additional charge for extraction of the water meter is $75.00. The additional charge for extraction of the water meter yoke referred to in city code section 70-57(c) is $150.00. The additional charge to defray the cost of restoration referred to in city code section 70-57(c) is the greater of $500.00 or the reimbursement of the actual cost of materials and labor.

Source: ordinance 14944, Onbase PR 11167, adopted 6-20-2016.

Source: For historical reference, see 1982 city code section 23-47(c).

Part 15-110 (Standard credit after erroneous termination).

Pursuant to city code section 70-57(h), the standard credit shall not exceed $25.00.

Source: For historical reference, see 1982 city code section 23-47(h).

Part 15-111 (Vacancy property service visit).

Pursuant to city code section 70-61, the service visit fee to defray the city's cost of making a visit to the location of vacant property to turn the water service on or off between the hours of 8:00 a.m. and 4:30 p.m. Monday through Friday shall be $25.00. If the customer requests that the water be turned off or on after hours, or on a weekend or holiday, the fee shall be $100.00.

Editor's note: The provisions of section 4 of ordinance 14539 appear here, instead of in Part 15-102.

Source: ordinance 14539, Onbase PR 9518, adopted 11-18-2013.

Source: For historical reference, see 1982 city code section 23-50.

Part 15-112 (Program administration fees).

Sewer Use Fees are described in Division 3 Fees Sections 70-241 and 70-244 of the Sewer Use Ordinance.

Discharge Permit Fees	
Permit Application	$200

Discharge Permit Fees	
Groundwater Remediation Permit	$200
Categorical Industrial User Permit	$300
Industrial User with Metals and /or Organic Limits Pennit	$200
Industrial User with Conventional Pollutants Pennit	$100
Permit Modifications (At pennittee's request)	$100

Sewer Use Fees are described in Division 3 Fees Sections 70-241 and 70-244 of the Sewer Use Ordinance.

Industrial Pretreatment Program	
PFAS (Per- and Polyfluoroalkyl Substances) (per event)	$600
1,4 Dioxane (per event)	$140
Phannaceutical Parameters (per event)	$375

Source: ordinance 16523, adopted 6-16-2025.

Source: For historical reference, see 1982 city code section 23-136(a).

Part 15-113 (Delinquency charge).

Pursuant to city code section 70-57(b), the delinquency charge shall be $50.00.

Source: ordinance 14974, Onbase PR 11050, adopted 6-20-2016.

Part 15-114 (Reserved).

Part 15-115 (Reconnection after violation of mandatory restrictions).

The reconnection service charge and penalty pursuant to city code section 70-555(b)(2) shall be $400.00 for the first reconnection and $800.00 for any subsequent reconnection.

Source: ordinance 13694, Onbase PR 5409, adopted 9-15-2008.

Part 15-116 (Backflow preventer permit and backflow preventer testing and minor repairs).

A $100.00 permit fee is charged for Backflow Preventer Permits required by the Department of Water Management Cross-Connection Control Program.

A fee of $95.00 is charged to participants in the City's Backflow Prevention Assembly Testing and Minor Repair Program.

Source: ordinance 14622, Onbase 9903, adopted 6-16-2014; ordinance 15829, Onbase PR 14727, adopted 6-21-2021.

Part 15-117 (Interest rate on capital facilities fees for water and sewer connections).

The interest rate on time payments for capital facilities fees for water and sewer connections made under Article 15 (Capital Facilities Fees) of the Charter shall be the lesser of (i) the Prime Interest Rate published in The Wall Street Journal on the fourth Friday of May of each year, rounded to the nearest basis point, plus 4.25%, or (ii) 9%. The new interest rate set according to this formula is effective for the July 1 - June 30 that follows the Friday in May.

Time payments are subject to the interest rate in effect during the fiscal year that the City Manager receives the completed application for time payments. The date of receipt of the application is set under procedures established by the City Manager.

The interest rate as determined by the two preceding paragraphs does not apply with respect to completed applications received July 1, 2010 through June 30, 2011, which instead are subject to an interest rate of 7.5%.

The interest rate set under this Part for a particular property will remain in effect for that property, regardless of changes in interest rates that may occur in later fiscal years.

If a court of competent jurisdiction determines that an interest rate set lower than 9% pursuant to this Part is invalid or unenforceable, the applicable interest rate shall be 9% for the entire period that the lower interest would have applied if it had been valid and enforceable.

Source: ordinance 14098, Onbase PR 7581, adopted 2-21-2011.

Editor's note: The Table of Interest Rates can be found in Part 13B-114 (Interest rate on construction for water and sewer service and for stormwater drainage work). That table applies equally to the interest rate set under this Part 15-117.

Part 15-118 (Administrative Fees for Plan Review, Testing, and Inspection of Backflow Preventers).

The plan review fee for plans submitted through the Land Development Office (LDO) permitting program for Backflow Preventer device compliance with Department of Water Management, Cross-Connection Control regulation is $150.00.

The administrative fee for annual testing and inspection of a backflow preventer pursuant to city code section 70-591(b) is $100.00.

The fee for each reinspection of backflow prevention installations pursuant to city code section 70- 591(b) is $100.00.

The fee for a site visit to turn on or unlock a meter which has been turned off or locked for non-compliance with the City's Cross Connection Control Ordinance is $75.00.

Source: ordinance 14622, Onbase 9903, adopted 6-16-2014; ordinance 15496, Onbase PR 13291, adopted 6-17-2019.

Part 15-119 (Disconnection and reconnection fees for sewer only customers).

The following fees apply for disconnection and reconnection of sewer services for sewer only customers when sewer service has been discontinued for non-payment:

(1) Initial Disconnection: Actual cost of installation for sewer valve and cleanout, including labor and materials

(2) Subsequent Disconnection (if the valve is already installed): No charge

(3) Re-establishment of Service: $250 each time

Source: city code section 70-57(c); ordinance 14171, Onbase PR 7935, adopted 8-15-2011.

Part 15-120 (Hydrant Meter Deposits and Rental Rates).

Pursuant to city code section 70-23 and section 70-49(4):

Deposits for hydrant meters

Size of meter	*Deposit amount*
Box assembly	500.00*
	*refundable

Rental rates for hydrant meters

	Amount
Box assembly	
monthly	150.00

Service initiation or application fees shall be those as authorized under Part 5-102 of the Fee Schedule for water service.

Source: ordinance 14364; Onbase PR 8856; adopted 11-19-2012; ordinance 14872; Onbase PR 10785; adopted 11-16-2015; ordinance 15245; Onbase PR 12285; adopted 1-2-2018; ordinance 15829, Onbase PR 14727, adopted 6-21-2021.

Part 15-121 (Water meter and lock tampering, Hydrant meter tampering).

Pursuant to city code section 70-1(b), the following fees apply:

		Fee
1	Altering, tampering with, or bypassing a water meter	The actual cost of materials and labor for replacement or repair, plus $50.00
2	Tampering with the smallest type of water meter lock	10.00

		Fee
3	Tampering with any other type of water meter lock	50.00
4	Altering or tampering with a hydrant meter box assembly	The actual cost of materials and labor for replacement or repair, plus $500.00

Source: ordinance 14775, Onbase PR 10520, adopted 6-15-2015; ordinance 15829, Onbase PR 14727, adopted 6-21-2021.

Part 15-122 (Electronic filing fee for submittal of test reports for backflow preventers).

The fee for each electronically filed backflow preventer test report pursuant to city code sections 70-586 and 70-593 is $9.95 per test submitted.

Source: ordinance 15449; Onbase PR 13028, adopted 3-18-2019.

Chapter 16 - Primary implementing department: Technology Solutions through the GIS Division

Section 1. Where this chapter applies, Part 10-101 (Fees for Providing Copies of Public Records) does not apply, except for Part 10-101, Section 7 (relating to charges for certified copies).

Section 2. Various charges.

Part 16-101 (Reserved).

Part 16-102 (Customized Services).

Customized services include special data preparation, application development, data conversion, data analysis, etc. There is a $35 per hour service charge for staff time and customization, with a minimum charge of one hour. After the first one hour, charges are in 30-minute increments. The City Manager may require buyers to agree to indemnification and to post notices and disclaimers.

Part 16-103 (Printing of GIS DATA at Public Access Stations).

	Charge per copy
8 ½" x 11"	$2.00
11" x 17"	2.00
34" X 42"	10.00

Part 16-104 (GIS Data Distribution).

The fees in the "charge, without re-use agreement" column are charged unless the buyer agrees in writing that the copies will not be used for trade or commercial purposes and that

the copies will not be resold. If the buyer makes such a written agreement, the "charge, with re-use agreement" column will apply. In any transaction under this Part, the City Manager may require buyers to agree to indemnification and to post notices and disclaimers.

Digital map data are available in GeoDatabase and ESRI shapefile format. Image data (Digital Orthophotos) may be compressed using MrSID software and may require compatible software for viewing. The charges shown in this Part apply to various formats supplied, including CD-ROM or DVD, or via FTP.

Data layer	*Data coverage*	*Unit*	*Charge, without re-use agreement*	*Charge, with re-use agreement*
Cadastral layer	countywide	countywide data, with one update included at no charge if requested within one year of purchase	$1,000.00	$100.00
Planimetric features	within city limits and some county areas	all available data	500.00	100.00
2-foot contours	countywide	all available data	500.00	25.00
Digital orthophotography	countywide (1467 tiles, each half-mile square)		35.00, plus $1.00 per tile	35.00
Hydrography	countywide feature layer	all available data	100.00	25.00
Zoning	countywide	countywide data	100.00	25.00
Street centerlines	countywide	countywide data	100.00	25.00
Municipality boundaries	county boundary and city limits	all available data	100.00	25.00
Voting precincts	countywide	countywide data	100.00	25.00
Emergency service districts	countywide	countywide data	100.00	25.00
Police districts	citywide	citywide data	100.00	25.00

Source: ordinance 13783, Onbase PR 6016, adopted 4-6-2009.

Chapter 17 - Primary implementing department: Transportation

APPENDIX A

Part 17-101 (Fixed route and paratransit).

The fixed route and paratransit fare schedule for the GoDurham is:

Fare Description	*Fare Amount*
Regular cash fare	$1.00
Discount cash fare	0.50
Regular 1 day unlimited ride pass	2.00
Discount 1 day unlimited ride pass	1.00
Regular 7 day unlimited ride pass	12.00
Discount 7 day unlimited ride pass	6.00
Regular 30 day unlimited ride pass	36.00
Discount 30 day unlimited ride pass	18.00
Persons 12 years old or younger	FREE
Persons 13-18 years old	FREE
Persons 19-21 years old enrolled in a GED program	FREE
Age 65 and older	FREE
ACCESS cash	2.00
ACCESS 10 ticket book	17.00
State Fair Express fare	5.00
Discount State Fair Express fare	2.50

The fares listed in this table as "discount" are available to persons who have a qualified disability or who have a Medicare card. Either a GoDurham photo identification card or a Medicare card must be presented to be eligible for the discount fare.

Persons 12 years or younger ride free. If a person 12 years old or younger but taller than 60", then they must present a GoDurham photo identification card.

Persons 13-18 years old must obtain a Youth GoPass from a GoTriangle authorized Youth GoPass location to be eligible for the "Persons 13-18 years old" free ride. Authorized Youth GoPass locations in Durham include Durham Station, Durham Recreation Centers, and Durham County Public Libraries. Persons having a Youth GoPass issued by regional partners including GoTriangle, GoRaleigh, and GoCary are also eligible for the "Persons 13-18 years old" free ride.

Persons 19-21 who are enrolled in a GED program must obtain a GoDurham Student ID Pass from the Durham Station to be eligible for the "Persons 19-21 years old enrolled in a GED program" free ride.

Persons 65 years of age or older must present either a GoDurham photo identification care or a government issued photo identification card to be eligible for the "Age 65 or older" free fare.

Persons paying fares through mobile-ticketing technology will have fares capped at the following levels. Once the cap amount has been reached, the person will not pay until the period (as described below) has ended.

Fare Cap Type	*Cap Amount (Regular Fare)*	*Cap Amount (Discount Fare)*	*Period*
Day	$2.00	$1.00	Once capped, a person's trips are not charged until 1:00 am of the next day. The defined period is the current day.
Week	$12.00	$6.00	Once capped, a person's trips are not charged until 1:00 am on Sunday. The defined period is Sunday—Saturday.
Month	$36.00	$18.00	Once capped, a person's trips are not charged until 1:00 am on the first day of the next month. The defined period is the calendar month.

Tickets, including mobile tickets, passes, ID Cards, and fares must be presented at the time or boarding.

The 2-Trip pass is available only to non-profit agencies.

Editor's Note: The text of Part 17-101 is as passed by city council, without edits.

Source: ordinance 15636, Onbase PR 14002, adopted 06-15-2020.

Part 17-102 (Fixed-route TRANSPASS pricing schedule).

Effective April 4, 2005, the fixed-route TRANSPASS pricing schedule is:

Number of people	*Per person cost*	
	monthly	*yearly*
50 - 99	$10.00	$120.00
100 - 999	7.50	90.00
1,000 - 9,999	5.00	60.00
10,000 - 19,999	2.50	30.00
20,000 plus	1.25	15.00

Organizations may purchase unlimited rides on the entire fixed route system for all of their members in accordance with the schedule shown immediately above. Organizations must certify the number of members initially and annually thereafter, and must remit payment for all such members on a monthly basis.

Source: resolution 9223, Onbase PR 1566, adopted 3-7-2005.

Part 17-103 (Passenger vehicles for hire: miscellaneous).

The following fees apply with respect to passenger vehicles for hire:

Initial operator's permit fee $100.00. This fee includes the following services: administrative costs of researching information, processing paperwork, decals, stickers, placards, etc.; investigation of court records of individual applicant and/or if corporation or business investigation of court records of all members; investigation of terminal/switchboard facility location; investigate telephone advertisement; and interview applicant.

Bi-annual inspection fee	$50.00
Operating permit transfer fee (administrative costs)	$25.00
Vehicle replacement fee (one vehicle inspection)	$50.00

Source: ordinance 11787, page 48, adopted 5-17-1999.

Part 17-104 (Driver's permits).

The following driver's permit fees apply with respect to passenger vehicles for hire:

New driver's fee	$15.00
Renewal driver's fee	$10.00
Late renewal driver's fee within 30 days of expiration	$15.00 driver's fee and $5.00 late fee.

If after 30 days, applicant will go through entire process as a new applicant.

Change of ID card fee	$5.00.

Source: ordinance 11787, page 48, adopted 5-17-1999.

Part 17-105 (Exclusive-ride service maximums).

Pursuant to city code section 50-264(a):

Authorized fare or rate of fare for exclusive ride service.

The operator of any taxicab within the city is hereby authorized to charge an amount not in excess of the following fares or rates of fare:

(1) The initial fare (drop charge) upon being seated for one or more persons shall be no more than $3.60 and $0.30 for each 1/8 mile or part thereof. This $0.30 rate shall increase to no more then $0.35 on July 1, 2023; $0.40 on July 1, 2025; and $0.45 on July 1, 2027.

(2) For each 60 seconds, or part thereof, of waiting time the fare shall be no more than $0.35.

(3) A night surcharge for night service between the hours of 12:00 midnight and 5:00 a.m. shall be no more than $1.00 per trip.

(4) Baggage. The charge for each piece of baggage (suitcase, grocery bag, etc.) in excess of 3 loaded and unloaded at the request of the passenger shall be no more than $0.25.

(5) A fuel surcharge shall be no more than $1.00 per trip.

Source: ordinance 13770, Onbase PR 5919, adopted 3-2-2009; ordinance 13959, Onbase PR 6887, adopted 3-1-2010; ordinance 15930, Onbase PR 15359, adopted 5-2-2022; ordinance 15996, adopted 9-6-2022.

Source: For historical reference, see 1982 city code section 22-106(a)—(b).

Part 17-106 (Sinking or trust fund).

Pursuant to city code section 50-354. Minimum payments into sinking fund or trust fund by each member. The minimum monthly payment for each taxicab shall be $40.00.

Source: For historical reference, see 1982 city code section 22-150.

Part 17-107 (Parking Fees).

Section 1. (Monthly rates)

Parking facility	*Monthly rate*	
	Regular Parking	*Evening Parking*
Corcoran St. Garage, Church St. Garage, Durham Centre Garage, Chapel Hill St. Garage, and Morgan/Rigsbee Garage		*
All Motorcycles	$80.00	
Assigned	160.00	*
Non-Assigned	140.00	$20.00**
Morgan Street & Holland St. Mall Lot, when not leased to hotel	125.00	*
Morgan St. & E. Chapel Hill St. Lot (Lot 29)	125.00	*
102 Corcoran Street (Lot 20)	125.00	*
City Hall Annex (Lot 39)	125.00	*
400 Cleveland Street (Lot 40)	125.00	*
Parrish & Church St. Lot (Lot 8)	125.00	*
Residential Parking - Reserved 24 hours 7 days a week	195.00	*

* An asterisk indicates that no evening parking rate is available.

** The evening monthly parking is available from 3:00 p.m.—5:30 a.m.

Except for the Residential Parking, the regular monthly parking rates apply 5:30 a.m. to 7:00 p.m. Monday—Friday.

Section 2. (Off-street hourly rates)

The following rates apply to all vehicles including motorcycles:

Facility	*Hourly rate*	*Maximum for all day (8:00 a.m.—7:00 p.m.)*	*Special Event Rate*
Durham Centre Garage	2.25	24.75	7.00
Chapel Hill St. Garage	2.25	24.75	7.00
Parrish & Church St. Lot (Lot 8)	2.25	24.75	N/A
Morgan/Rigsbee Parking	2.25	24.75	7.00
Main & Ramseur St. Lot (Lot 32)	2.25	24.75	7.00

a) The hourly rates apply only 8:00 a.m. to 7:00 p.m. Monday—Friday, except for days on which holidays are observed by City government, as specified by City Code 42-16(a)-(b). However, parking charges under Part 17-108 (Special Events Parking Fees) may apply.

b) The City Manager shall accept prepayment for hourly parking prescribed in this section. The price is $225.00 for 100 hours of parking.

c) The City Manager has the discretion to not impose the hourly rates provided for in this Section 2 when the City Manager finds that charging them is likely to interfere with optimum operation of an event or program that the City has a substantial interest in promoting. The City Manager shall make a record of the decisions made under this Section 2 to not impose hourly rates.

Section 3. (Parking in on-street metered parking spaces)

(a) Pursuant to city code section 66-236, the following schedule of fees applies when a parking meter can be used to make payment for use of the space. The schedule applies to all vehicles, including motorcycles.

(i) The standard rate to park in each on-street vehicular parking space that has been designated as a metered parking space is $2.50 per hour, or for any part of an hour. However, when the maximum lawful time in which a vehicle may be parked in a space is less than one hour, the rate is prorated to reflect that maximum lawful time. For example, when the maximum lawful time is 30 minutes, the rate is $0.75 for 30 minutes.

(b) The fees apply only between 8:00 a.m. to 7:00 p.m. Monday-Friday except for days on which holidays are observed by City government, as specified by City Code 42-16(a)-(b).

(c) In addition to the authority granted by city code section 66-235 (Authority to designate metered parking spaces) the city manager has the discretion to not impose the fees provided for in this section 3 when the City Manager finds that charging them is likely to interfere with optimum operation of an event or program that the City has a substantial interest in promoting. The City Manager shall make a record of the decisions made under this subsection (c) to not impose these fees.

Section 4. (Parking cards)

Description	*Rate*
Parking Card Replacement	25.00

Editor's note: The definition of "downtown resident" was deleted on 6-17-2019 by ordinance 15477.

Source: ordinance 15697, Onbase PR 14120, adopted 9-8-2020; ordinance 15941, Onbase PR 15449, adopted 6-6-2022, Ord. No. 16420, adopted 10-21-2024.

Part 17-108 (Special Events Parking Fees).

Section 1. Definitions.

a) "Off street parking facility" means any facility owned by, leased to, and/or operated for the City for the purpose of providing public parking accommodations, when that facility has been designated by the City Manager to be staffed by a uniform security presence to accommodate any special event.

b) "Special events" means those events as determined by the City Manager to warrant the provision of a uniformed staff presence in an off street parking facility.

c) "Standing special events" means an event that is determined by the City Manager to warrant the provision of a uniformed staff presence in an off street parking facility, and declared by the City Manager, in his or her discretion, to be a special event.

Section 2. If a uniformed staff presence is provided in an off street parking facility for any special event, the City Manager shall have the discretion to declare the event a special event. All vehicles will be charged a secured special event parking fee of $7.00 per vehicle to park in the affected off street parking facility during a designated time period, regardless of whether the individuals in those vehicles attend the special event.

Section 3. The residential parking permit allows the use of any one of a designated group of spaces during the hours of 6:00 p.m. to 8:00 a.m. Monday—Friday and 6:00 p.m. Friday to Monday at 8:00 a.m.

A vehicle parked during those hours pursuant to this permit is not subject to the hourly rates established by section 2 of Part 17-107 or the secured special event parking fee. The charge for a residential parking permit is $195.00 per month.

Section 4. The City Manager shall not declare a regularly scheduled meeting of the City Council or the Durham County Board of Commissioners as a special event. To the extent that a regularly scheduled meeting of the City Council or the Durham County Board of Commissioners coincides with any special event, all patrons who park in any affected off street parking facility for any reason are subject to the secured special event parking fee.

Section 5. Nothing in this Part 17-108 shall affect the hourly and monthly rates imposed on the patrons of the affected off street parking facilities between the hours of 8:00 a.m. through 7:00 p.m.

Section 6. Individuals who rent monthly parking spaces in the parking facility in which the secured special event parking fee is imposed shall be exempted from paying the secured special events parking fee upon presentation of the electronic access card to the parking attendant.

Source: ordinance 14999, Onbase PR 11346, adopted 9-6-2016; ordinance 15697, Onbase PR 14120, adopted 9-8-2020; ordinance 15941, Onbase PR 15449, adopted 6-6-2022.

Part 17-109 (Temporary use of street rights-of-way and parking spaces by contractors).

(a) For a permit issued pursuant to Part 6-l0l(T) or City Code section 66-267 (Contractor parking permit):

(i) for loading zone and limited time zone parking spaces, $27.50 per space, per day or part thereof, plus a 4% technology surcharge; and

(ii) for metered parking spaces, cost of the metered parking, per space, per day, plus a 4% technology surcharge.

(b) For a permit issued pursuant to Part 6-101(T) or City Code section 66-270 (On-street parking space permit):

(i) for loading zone or limited time zone parking spaces, $27.50 per space, per day or part thereof, plus a 4% technology surcharge; and

(ii) for metered parking spaces, cost of the metered parking, per space, per day, plus a 4% technology surcharge.

Source: ordinance 14810, Onbase PR 10411, adopted 6-15-2015; ordinance 16172, adopted 6-20-2023.

Part 17-110 (Shared micromobility program permittees) Effective beginning May 20, 2024.

Pursuant to city code section 50-461 et seq., the following fees apply to permittees:

	Fee
Initial permit application	$1,000.00
Permit issuance, per shared device deployed per month	
Electric scooter (operated while standing)	10.00
Electric scooter (with saddle seat)	5.00
Electric assisted bicycle	5.00
Bicycle	1.00
Shared device relocation by the City, per shared device	50.00
Noncompliance charge, per shared device per day	50.00
Annual permit renewal	500.00

Editor's note: These fees were adopted pursuant to city code 50-461, et seq., which was adopted by ordinance 15380 on 10-15-2018; ordinance 16317, adopted 5-20-2024.

Source: For the fees in the table effective 5-20-2024: ordinance 16317, adopted 5-20-2024.

Part 17-111 (Election Day public transit system fare).

All fares for fixed route and paratransit schedules for the GoDurham transportation system are free all day on the date of a general election on which voting by any City of Durham resident will take place and on the date of a general municipal election for Durham City Council members or for the Mayor.

Source: ordinance 15558, Onbase PR 13455, adopted 10-7-2019.

Previous revisions of this Fee Schedule: April 21, 2008; July 31, 2008; August 19, 2008; December 11, 2008; March 3, 2009; June 24, 2009; July 10, 2009; September 4, 2009; October 1, 2009; February 19, 2010; July 1, 2010; August 6, 2010; March 16, 2011; June 2, 2011; June 28, 2011; August 31, 2011; March 12, 2012; June 29, 2012; November 16, 2012; February 12, 2013; April 22, 2013; April 23, 2013; May 3, 2013; May 4, 2013; June 28, 2013; August 27, 2013; December 9, 2013; January 24, 2014; May 27, 2014; June 23, 2014; August 11, 2014; June 30, 2015; 7-7-2015; 11-3-2015; 11-23-2015; 3-30-2016; 5-31-2016; 6-10-2016; 6-30-2016; 1-6-2017; 4-24-2017; 5-31-2017; 6-30-2017; 8-22-2017; 10-25-2017; 12-1-2018; 3-9-2018; 7-3-2018; 7-6-2018; 8-3-2018; 10-22-2018; 3-22-2019; 6-27-2019; 10-22-2019; 2-26-2020; 5-27-2020; 6-17-2024.

APPENDIX A

STREET IMPACT FEE SCHEDULE

Fee Schedule Tables, Part 4-112*

STREET IMPACT FEE SCHEDULE						
	North (Zone 5)	*South (Zone 4)*	*Downtown (Zone 6)*	*North (Zone 5)*	*South (Zone 4)*	*Downtown (Zone 6)*
Land Use	*Effective 7/1/08 6/30/09*	*Effective 7/1/08 - 6/30/09*	*Effective 7/1/08 - 6/30/09*	*Effective 7/1/09 forward*	*Effective 7/1/09 forward*	*Effective 7/1/09 forward*
Residential						
Single-Family (per dwelling unit)	$372	$983	$205	$531	$1,405	$293
Accessory Dwelling Unit (per dwelling unit)	$372	$983	$205	$531	$1,405	$293
Multifamily (per dwelling unit)	$228	$604	$126	$326	$862	$180
Manufactured Home Park (per dwelling unit)	$217	$574	$120	$310	$821	$171
Retirement Community - Detached (per dwelling unit)	$96	$253	$53	$137	$362	$76
Retirement Community - Attached (per dwelling unit)	$40	$107	$22	$58	$153	$32
Assisted Living (per bed)	$81	$214	$45	$116	$306	$64
Continuing Care Retirement Community (per dwelling unit plus assisted living beds)	$107	$282	$59	$152	$403	$84
Hotel/Motel (per room)	$257	$682	$142	$368	$974	$203
Recreational						
Amusements/ Fairgrounds (per acre)	$1,453	$3,846	$803	$2,076	$5,494	$1,147
Public Park or Playground (per acre)	$22	$58	$12	$32	$83	$17
Racquet Club (per court)	$1,232	$3,262	$681	$1,760	$4,660	$973
Golf Course (per acre)	$110	$292	$61	$158	$417	$87
Driving Range (per tee)	$460	$1,217	$254	$657	$1,739	$363
Miniature Golf Course (per hole)	$121	$321	$67	$173	$459	$96
Theater/Arena/ Stadium (per seat)	$26	$68	$14	$37	$97	$20
Multiplex Movie Theater (per seat)	$29	$78	$16	$42	$111	$23

*This portion of the fee schedule was revised on July 10, 2009. It reflects city council actions through June 24, 2009.

Note: These tables are to be read with Part 4-112 of the Fee Schedule.

STREET IMPACT FEE SCHEDULE						
	North (Zone 5)	*South (Zone 4)*	*Downtown (Zone 6)*	*North (Zone 5)*	*South (Zone 4)*	*Downtown (Zone 6)*
Land Use	*Effective 7/1/08 6/30/09*	*Effective 7/1/08 - 6/30/09*	*Effective 7/1/08 - 6/30/09*	*Effective 7/1/09 forward*	*Effective 7/1/09 forward*	*Effective 7/1/09 forward*
Recreational, continued						
Skating Rink (per 1,000 s.f.)	$868	$2,298	$480	$1,240	$3,283	$686
Health Club (per 1,000 s.f.)	$1,490	$3,943	$824	$2,128	$5,634	$1,177
Bowling Alley (per 1,000 s.f.)	$1,302	$3,447	$720	$1,860	$4,924	$1,028
Recreation Community Center (per 1,000 s.f.)	$603	$1,597	$333	$862	$2,281	$476
General Recreation (per acre)	$2,122	$5,618	$1,173	$3,032	$8,026	$1,676
Industrial						
Manufacturing (per 1,000 s.f.)	$272	$721	$150	$389	$1,029	$215
Warehouse/Distribution (per 1,000 s.f.)	$173	$458	$96	$247	$654	$137
Truck Terminal (per acre)	$2,678	$7,089	$1,480	$3,826	$10,126	$2,115
Mini-Warehousing (per 1,000 s.f.)	$96	$253	$53	$137	$362	$76
Institutional						
Place of Worship (per 1,000 s.f.)	$265	$701	$146	$378	$1,002	$209
Hospital (per 1,000 s.f.)	$441	$1,168	$244	$631	$1,669	$349
Elementary School (per student)	$154	$409	$85	$221	$584	$122
Middle School (per student)	$195	$516	$108	$279	$737	$154
High School (per student)	$151	$399	$83	$215	$570	$119
Daycare (per 1,000 s.f.)	$1,457	$3,856	$805	$2,081	$5,508	$1,150
Junior College/Tech Institute (per 1,000 s.f.)	$408	$1,081	$226	$583	$1,544	$322
College or University (per 1,000 s.f.)	$397	$1,052	$220	$568	$1,502	$314
Major Research University (per 1,000 s.f.)	$357	$944	$197	$510	$1,349	$282
Group Care Facilities (per bed)	$81	$214	$45	$116	$306	$64
General Retail (per 1,000 s.f.)						
< 50,000 sq. ft.	$1,170	$3,096	$647	$1,671	$4,423	$924
50,000—99,999 sq. ft.	$1,493	$3,953	$826	$2,134	$5,647	$1,179

STREET IMPACT FEE SCHEDULE						
	North (Zone 5)	*South (Zone 4)*	*Downtown (Zone 6)*	*North (Zone 5)*	*South (Zone 4)*	*Downtown (Zone 6)*
Land Use	*Effective 7/1/08 6/30/09*	*Effective 7/1/08 - 6/30/09*	*Effective 7/1/08 - 6/30/09*	*Effective 7/1/09 forward*	*Effective 7/1/09 forward*	*Effective 7/1/09 forward*
General Retail (per 1,000 s.f.) continued						
100,000—199,999 sq. ft.	$1,324	$3,505	$732	$1,892	$5,008	$1,046
200,000—500,000 sq. ft.	$1,107	$2,931	$612	$1,582	$4,187	$874
> 500,000 sq. ft	$1,056	$2,795	$584	$1,508	$3,992	$834
General Office (per 1,000 s.f.)						
Medical Office	$1,368	$3,622	$756	$1,955	$5,175	$1,081
< 50,000 sq. ft.	$570	$1,509	$315	$815	$2,156	$450
50,000—99,999 sq. ft.	$636	$1,685	$352	$909	$2,406	$503
100,000—149,999 sq. ft.	$655	$1,733	$362	$935	$2,476	$517
150,000—199,999 sq. ft.	$581	$1,538	$321	$830	$2,198	$459
> 200,000 sq. ft	$522	$1,383	$289	$746	$1,975	$413
Office Park (per 1,000 s.f.)						
< 50,000 sq. ft.	$890	$2,356	$492	$1,272	$3,366	$703
50,000—99,999 sq. ft	$835	$2,210	$462	$1,193	$3,158	$659
100,000—149,999 sq. ft.	$769	$2,035	$425	$1,098	$2,907	$607
150,000—199,999 sq. ft.	$728	$1,928	$403	$1,040	$2,754	$575
> 200,000 sq. ft	$669	$1,772	$370	$956	$2,532	$529
Business Park (per 1,000 s.f.)						
< 50,000 sq. ft.	$533	$1,412	$295	$762	$2,017	$421
50,000—99,999 sq. ft.	$530	$1,402	$293	$757	$2,003	$418
100,000—149,999 sq. ft.	$522	$1,383	$289	$746	$1,975	$413
150,000—199,999 sq. ft.	$519	$1,373	$287	$741	$1,961	$410
> 200,000 sq. ft.	$515	$1,363	$285	$736	$1,947	$407

OPEN SPACE LAND IMPACT FEE SCHEDULE		
	Effective 7/1/08—6/30/09	*Effective 7/1/09 Forward*
Residential		
Single-Family	$148/unit	$222/unit
Manufactured Home Park	$155/unit	$233/unit
Multifamily	$118/unit	$176/unit

PARKS AND RECREATION FACILITY IMPACT FEE SCHEDULE		
	Effective 7/1/08—6/30/09	*Effective 7/1/09 Forward*
Residential		
Single-Family	$354/unit	$425/unit
Manufactured Home Park	$372/unit	$446/unit
Multifamily	$281/unit	$337/unit

CODE COMPARATIVE TABLE

1964 CODE

This table gives the location within this Code of those sections of the 1964 Code, which are included herein. Sections of the 1964 Code not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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9-8	58-31	11-13	38-90
9-10	58-33	11-14	38-101
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11-40	38-110
11-41	38-82
11-42	38-85
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CODE COMPARATIVE TABLE

1982 CODE

This table gives the location within this Code of those sections of the 1982 Code, as updated, which are included herein. Sections of the 1982 Code, as supplemented, not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

1982 Code Section	Section this Code	1982 Code Section	Section this Code
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12-12	66-11
12-13	26-85
12-15	70-1
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ORDINANCES

This table gives the location within this Code of those ordinances adopted since the 1982 Code, as updated, which are included herein. Ordinances adopted prior to such date were incorporated into the 1982 Code, as supplemented. This table contains some ordinances which precede the 1982 Code, but which were never included in the 1982 Code, as supplemented, for various reasons. Ordinances adopted since the 1982 Code, and not listed herein, have been omitted as repealed, superseded or not of a general and permanent nature.

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13479	9-17-2007	1	Added	70-129(a)(4)
13505	11-19-2007	1		70-555
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13523	12-17-2007			Ch. 70, Art. IV
13539	1-22-2008	1		70-49(a)(2)
13559	3-17-2008	1		18-62(d)
13560	3-17-2008	1	Rnbd	70-557
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13594	5- 5-2008	1		70-50(a)
13601	5-22-2008	1		26-185(a)
13602	5-22-2008	1		26-184(a)(2)
13611	6- 2-2008	2	Added	Ch. 70, Art. XI, §§ 70-750—70-752
13662	8- 4-2008	1		70-751
13677	8-18-2008	1		10-238(j)(3)
13679	8-18-2008	1		10-238(c)
13693	9-15-2008	1	Rpld	70-468, 70-469
13698	9-15-2008	1		42-5
13715	10-20-2008	1	Added	Ch. 10, Art. VII, Div. 2, §§ 10-300—10-320
13716	10-20-2008	1	Added	Ch. 10, Art. VII, Div. 1 (title)
13730	10-23-2008	1		Ch. 30, Art. II(title)

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13744	12- 1-2008			Ch. 18, Art. II, §§ 18-19—18-23
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13773	3-16-2009	1		Ch. 70, Art. X (title)
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13918	11- 2-2009	1		6-1
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13919	11- 2-2009		Rpld	Ch. 70, Art. VI, Divs. 1, 2
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13948	12-21-2009	1		70-631
		2	Rpld	Ch. 70, Art. VIII, Div. 3, §§ 70-684—70-689
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13960	3- 1-2010	1	Added	50-293(10)
13967	3-15-2010	1		18-62(d)
13991	5-17-2010	1	Rnbd	10-238(o)—(r)

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14080	12- 6-2010	1		50-188(c)
14097	2-21-2011	1		70-50(b)(4)
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14128	5-16-2011	1		70-563(e)
14130	6- 6-2011	1	Rnbd	46-87
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14132	6- 6-2011	1		70-51
14137	6-20-2011		Rpld	Ch. 70, Art. VII, §§ 70-578—70-598
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14170	8-15-2011			70-57(c)
14195	11- 7-2011	1		70-17(b)
14231	3- 5-2012	1	Added	Ch. 10, Art. VIII, Divs. 1—3
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14238	3-19-2012	1		18-62(d)
14241	4- 2-2012	1		38-21
14245	4-16-2012	1		50-81
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14271	6- 4-2012	1	Rpld	Ch. 10, Art. VI, §§ 10-230—10-238
		2	Added	Ch. 10, Art. VI, §§ 10-230—10-241
14272	6- 4-2012	1	Added	26-183(4)
14274	6- 4-2012	1		Ch. 70, Art. X, §§ 70-736—70-744
14332	10-15-2012	1		54-26
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14371	12- 3-2012	1	Rpld	Ch. 50, Art. III, Divs. 1—9
		2	Added	Ch. 50, Art. III, Divs. 1—9
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14416	4- 1-2013	1		1-3(e)(4)
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14418	4- 1-2013	1		18-59(c)
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14516	11- 4-2013	1		6-3
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14539	11-18-2013	1	Added	70-51(d)
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14595	3-20-2014	1		18-62(d)
14651	6-16-2014	1		46-22
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14652	6-16-2014	1	Rpld	Ch. 22, Arts. I—III, §§ 22-19—22-21, 22-46—22-56
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14654	6-16-2014			38-21
14665	8-18-2014	1		Ch. 62, Art. II (Tit.)
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14753	5-18-2015	1		70-25
14774	6-15-2015	1		70-1
14809	6-15-2015	1	Rnbd	Ch. 66, Art. IV, Div. 4
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14898	3- 7-2016	1		70-17
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14994	8-15-2016			70-50
15000	9- 6-2016	1	Added	Div. 3
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15010	9- 6-2016	1	Added	10-304(f)(3)

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15382	10-15-2018	1		70-578
15413	12-17-2018	1		62-50
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15439	3-18-2019	1		70-586
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15483	6-17-2019	1		70-17
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15598	2- 3-2020	1	Rpld	ch. 66, art. V, div. 2, §§ 66-307—66-314
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15605	2-17-2020	1		62-19
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15685	8- 3-2020	1		46-84
15689	8- 3-2020	1		42-16(a)
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15850	6-21-2021	pt. 1		46-180—46-185
15851	6-21-2021	pt. 1		10-231
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15946	6- 6-2022		Added	26-23(f)
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*__Note—__The adoption, amendment, repeal, omissions, effective date, explanation of numbering system and other matters pertaining to the use, construction and interpretation of this Code are contained in the adopting ordinance and preface which are to be found in the preliminary pages of this volume.

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